



EDITED BY

CHERYL
SAUNDERS

ADRIENNE
STONE

≡ The Oxford Handbook *of*
**THE AUSTRALIAN
CONSTITUTION**

THE OXFORD HANDBOOK OF
THE AUSTRALIAN CONSTITUTION

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FOREWORD

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The Oxford Handbook of the Australian Constitution is a remarkable publication. It consists of forty four chapters, each written by leading constitutional lawyers. Collectively the chapters cover virtually every significant aspect of the Australian constitutional system. Each chapter is directed to a particular aspect of that system and, generally speaking, sets it in its historical, political, and conceptual context, identifies the problems which have arisen, and attempts to track its future development.

Two unique features of the Australian Constitution were: (a) non-recognition of Australia's indigenous peoples and (b) the absence of a guarantee of a range of human rights and fundamental freedoms. The two features are explicable by reference to the history of the British settlement of Australia and that of the six Australian colonies which were united in a federation by the Commonwealth of Australia Constitutional Act 1900 by a statute of the Imperial Parliament at Westminster. Non-recognition of Australia's indigenous peoples has been an ongoing problem but, as [chapter 1](#) 'First Peoples' of this book suggests, a solution may be just around the corner.

The Australian Constitution had its origins in (a) English public law and the tradition of responsible government and (b) the United States Constitution with its provisions relating to federation, representative government, and separation of powers. Initially, the High Court of Australia, established by the Constitution as a constitutional court and general final court of appeal, subject to an appeal to the Privy Council (limited in relation to constitutional matters) until 1975, was influenced by decisions of the Supreme Court of the United States on constitutional cases, but subsequently gave greater weight to English decisions before developing a distinctive Australian public law jurisprudence.

The High Court has continued to make selective use of comparative law, the most notable example being the adoption by a narrow majority in

*McCloy v NSW*¹ of the doctrine of structured proportionality, a doctrine with German and European antecedents, in determining the validity of legislation claimed to infringe the implied freedom of political communication, a matter discussed by Susan Kiefel in [chapter 21](#) ‘Standards of Review in Constitutional Review of Legislation’.

The Australian Constitution, now 117 years old, has exhibited astonishing resilience. Despite the reluctance of the electorate to approve proposals for amendment of the Constitution under section 128—only eight out of forty four have succeeded—the Constitution has significantly evolved in a number of ways as discussed in [chapter 4](#) ‘Independence’. Yet it seems to have in large measure reflected the will of the people over its long life.

The Constitution’s resilience and the apparent absence of popular support for amendment under section 128 may be explained by two considerations. First, the Constitution is in essence a framework for government concerned with powers, not rights. In this respect, the Australian Constitution is a conservative instrument, leaving the protection of the interests of the individual to institutions and the political process, following the British and colonial tradition of responsible government. The adoption of a constitutional separation of powers amounted to a rejection of the United Kingdom doctrine of parliamentary supremacy. As is noted in chapter VI, the Australian Constitution has generated a distinctive constitutional order.

Secondly, the High Court of Australia has interpreted the Constitution in such a way that its provisions have applied to the changing conditions and circumstances that have come to pass since 1900. In doing so, the Court has not adopted a particular theory of interpretation, such as originalism, and has, in some instances, given the constitutional provisions an application which would not have been foreseen or contemplated by the founders of the Constitution or the Australian community in 1900. Moreover, the Court has achieved this outcome by interpretive methodologies which have been characterised in [chapter 4](#) as largely legalistic. The characteristics of Australian legalism are discussed in [chapter 23](#) ‘Techniques of Adjudication’.

Although the Court’s approach to the Constitution has been regarded as legalistic, the Court has not been averse to making implications. Chapter CXI of the Constitution, dealing with judicial power, is the principal source of these implications. They have been designed to reinforce the separation

of powers, particularly the separation of judicial power, to protect effectively the independence of the judiciary, to generate the concept of a uniform common law for Australia, and to preserve the capacity of the courts to supervise, by means of judicial review, the legality of legislative and executive action. A core element in judicial review of executive action has been the judicial insistence on the existence of jurisdictional error as an indispensable element in a remedy by way of judicial review. The insistence on jurisdictional error has been accompanied by an emphasis on the requirement of procedural fairness and due process in the administrative decision-making process.

The process of implication has resulted in the constitutionalization of aspects of the common law with a corresponding impairment of legislative capacity to make different dispositions. On the other hand, constitutionalization has made Australian public law more coherent. The effect of constitutionalization is illustrated by the link between the limits of judicial power under the Constitution and the scope of statutory interpretation in accordance with common law rules of interpretation. The most dramatic example of constitutionalization, however, is the constitutionalization of administrative law, discussed in detail in [chapter 29](#) 'The Constitutionalization of Administrative Law', the effect of which is to deny the efficacy of a privative clause in matters of jurisdictional error and to preserve the Court's jurisdiction to review discretionary exercises of power for legal unreasonableness.

The vitality of Australian constitutional jurisprudence is attested by the emergence of the *Kable*² principle, which prohibits State legislatures from conferring on their courts functions or jurisdiction the exercise of which would compromise the integrity of those courts as recipients of federal jurisdiction. The Australian Constitution is unique in its provisions which authorize the Commonwealth Parliament to invest State courts with federal jurisdiction. The High Court has experienced no little difficulty in determining what are the functions or jurisdiction the grant or deprivation of which will compromise the integrity of State courts, but the Court has generally taken the view that the grant of functions or jurisdiction that are inconsistent with the essential characteristics of a court will be invalid. Likewise, a law which excludes an essential characteristic of a court will be invalid.

An off-shoot of the *Kable* principle has been the *Kirk*³ principle, where the High Court held that the essential characteristics of State Supreme Courts included powers and functions which they historically exercised and that they in turn included the exercise of supervisory jurisdiction for jurisdictional error. In recognising the State Supreme Courts, the Constitution gave constitutional force to their essential characteristics so that a clause denying such a characteristic is of no effect.

Both the *Kable* and *Kirk* principles reflect the Court's vision of Chapter CXI of the Constitution as providing for an integrated judicial system with the High Court at the apex of the system, exercising both its original and appellate jurisdictions. In order to convert the vision into comprehensive practical reality, further decisions by the High Court may be required.

The implication of freedom of political communication⁴ has its primary source in the representative government for which Chapter I of the Constitution specifically provides. In its relatively short life, the implied freedom has generated many judicial decisions. In the light of a subsequent decision, *Murphy v Electoral Commission*,⁵ the status and scope of structured proportionality in Australian constitutional law, embraced earlier in *McCloy v NSW*, remains uncertain.

Although the federal character of the Constitution was of dominant importance in its early days, giving rise to federal implications which were overthrown in 1920,⁶ when an interpretation favouring a broad view of Commonwealth legislative powers was adopted, the subsequent interpretation of the Constitution has seen an ever-increasing expansion of Commonwealth power to the detriment of the States. By means of High Court decisions and constitutional amendment,⁷ the Commonwealth has become the dominant player in the financial affairs of the nation and in other areas as well, mainly by means of the grants power under section 96 of the Constitution. While this development is not consistent with the federal character of the Constitution, it is a development that accords with the emergence of Australia as a nation with a strong sense of national identity and national economy.

The discussion of the federal principle in [chapter 35](#) 'The Federal Principle' identifies the shortcomings in the Constitution in its failure to protect the position of the States, particularly in matters of finance. And the discussion also identifies the failure of the High Court to devise limits on

the scope of Commonwealth legislative powers, based on the federal principle, with a view to protecting the States. As things stand, the implications designed to protect the institutional integrity of the States as polities within the federation seem to be less than adequate, though there are some signs of a revival of federalism as a constitutional consideration.

A parallel development has been the recognition, already mentioned, that, unlike the United States, Australia has a uniform Australian common law. This implication arises from section 73 of the Constitution and the doctrine of precedent.⁸ Although the constitutionally based uniform Australian common law does not prevent a State legislature from directly amending by statute the common law as it applies in that State, it impairs State courts from amending the common law in the State by reference to a new statutory policy expressed only in a statute of that State.⁹ Other consequences of the uniform common law concept remain to be identified.

This development is an illustration of the growing influence of the Constitution on the common law, as well as statute law. The stand out example of this influence is *Lange v Australian Broadcasting Corporation*¹⁰ where the High Court held that:

the development of the common law cannot run counter to constitutional imperatives. The common law and the Constitution cannot be at odds.¹¹

So, in that case, the common law of defamation was reformulated in order to comply with the Constitution.

The exposition of the executive power of the Commonwealth in section 61 of the Constitution is a recent important development, discussed in depth by Cheryl Saunders in [chapter 26](#) 'Separation of Legislative and Executive Power'. Important questions concerning the executive power remain to be resolved.

My final reference is to [chapter 44](#) 'Legality' by Dan Meagher. In the absence of an entrenched national bill of rights, the inaptly named 'principle of legality' has much work to do in Australia. Chapter 44 contains a profound examination of the principle and its place in Australian law, its competing rationales, and its uncertainties. The author links its future development with the Constitution, its values, and the values on which it is based. The author makes the further point that these values might well include the federal principle and thus require a statute to be expressed with the utmost clarity if it encroaches upon the core constitutional powers and

functions of the States. The author also suggests the High Court should clarify the rights and freedoms which are protected by the principle and should adopt a more flexible approach to the degree of clarity required in a statute in order to displace the application of this principle, the degree of clarity varying, according to the nature and importance of the value at stake.

In conclusion, I have no hesitation in saying that the forty four chapters of this book present an invaluable repository of insights into the history and development of Australian Constitutional Law, a lengthy catalogue of uncertainties and questions that await resolution and intriguing and perceptive suggestions for their future resolution.

Sir Anthony Mason

¹ (2015) 257 CLR 178.

² *Kable v Director of Public Prosecutions (NSW)* (1996) 189 CLR 51.

³ *Kirk v Industrial Court (NSW)* (2010) 239 CLR 531.

⁴ See *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520.

⁵ [2016] HCA 36; (2016) 90 ALJR 1027.

⁶ *Amalgamated Society of Engineers v Adelaide SS Co Ltd (the Engineers' Case)* (1920) 28 CLR 129.

⁷ Australian Constitution, s 105A.

⁸ *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520 at 562-566; *Lipohar v The Queen* (1999) 200 CLR 485, [26], [46], [50].

⁹ *Esso Resources Australia v Commissioner of Taxation* (1999) 201 CLR 49, [25]-[27] [97].

¹⁰ (1997) 189 CLR 520.

¹¹ *ibid* 566.

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LIST OF ABBREVIATIONS

AAT	Administrative Appeals Tribunal
ANA	Australian Natives' Association
ATSIC	Aboriginal and Torres Strait Islander Commission
CAR	Council for Aboriginal Reconciliation
CAT	Convention against Torture and other Cruel, Inhuman or Degrading Treatment or Punishment
COAG	Council of Australian Governments
CROC	Convention on the Rights of the Child
FCAATSI	Federal Council for the Advancement of Aborigines and Torres Strait Islanders
FTA	Free Trade Agreement
ICCPR	International Covenant on Civil and Political Rights
ICERD	International Convention on the Elimination of All Forms of Racial Discrimination
ICESCR	International Covenant on Economic, Social and Cultural Rights
ICJ	International Court of Justice
ILO	International Labour Organization
MoU	Memorandum of Understanding
MRA	Mutual Recognition Agreement
NAC	National Aboriginal Conference
NACC	National Aboriginal Consultative Committee
NPM	New Public Management
PBS	Portfolio Budget Statement
PCIJ	Permanent Court of International Justice
PJCHR	Parliamentary Joint Committee on Human Rights

UNDRIP Declaration on the Rights of Indigenous Peoples

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INTRODUCTION

CHERYL SAUNDERS AND ADRIENNE STONE

A. ORIENTATION

THE Oxford Handbook of the Australian Constitution is designed as an authoritative resource on the history, substance, meaning, and operation of the Australian constitutional system in the second decade of the twenty-first century. While the chapters present the perspectives of insiders, they are written with an eye to global constitutional settings, in order to make the volume useful for Australian specialists and international readers alike. The Handbook is structured to reveal the assumptions on which the Australian Constitution is based, to expose the fault lines across which disagreement runs, and to identify constitutional issues that are actively in play. We hope that it conveys the dynamism of the Australian Constitution, as it has evolved and continues to evolve over time.

The first, substantive part of this chapter introduces the subject matter of the Handbook by placing the Australian Constitution in comparative perspective. It does so both to throw additional light on Australian constitutional law and practice and to identify ways in which Australian constitutionalism contributes to the present store of global constitutional experience. To these ends, the next part of the chapter begins by contrasting features of the Australian constitutional system that are broadly familiar in constitutional democracies elsewhere with characteristics of Australian constitutional law that are more distinctive. The mix of similarities and differences that emerges is replicated, at least in broad terms, across the constitutional systems of the world. The degree of similarity speaks to the extent of constitutional convergence that has taken place through the forces of globalization as they have shaped developments over time. At the same time, however, the distinctiveness of Australian constitutional arrangements, in conceptual underpinnings and on matters of important

detail, shows that evidence of convergence coexists with, and sometimes serves to mask, substantial difference. At least with the benefit of hindsight, some of these differences might be gleaned from the terms of the Constitution itself, using constitutional ‘architecture’ and its accoutrements as a guide.¹ For the most part, however, reliable conclusions about both similarity and difference go well beyond the constitutional text to the many dimensions of context that this volume can be used to reveal.

One significant characteristic of any constitutional system is the way in which it is positioned in relation to the rest of the world. Australia is unusual in this regard. It has always been outward looking, in terms of the sources of constitutional ideas. It has generally been an active supporter of international law and multilateral arrangements. At the same time, however, Australia retains a significant degree of effective state sovereignty by comparison with countries elsewhere, and maintains a relatively sharp distinction between domestic and international legal rules. This apparent paradox is examined more fully in [section B.3](#), below. [Section B](#) concludes with a reflection on the ways in which the Australian constitutional system currently is grappling with change or might need to do so in the foreseeable future. The most prominent of these, at the time of writing in 2017, is the constitutional recognition of Indigenous peoples, which in turn is the tip of a very profound question that goes to the heart of the constitutional order.²

Discussion of the Australian Constitution in comparative perspective provides one lens through which the chapters in this volume can be explored. [Section C](#) of this introductory chapter offers a more specific guide, by explaining the seven broad concepts around which the chapters have been organized. A brief and final concluding part touches on aspects of the methodology by which this volume was brought together and expresses our grateful thanks to the very many people who have made it possible to complete a major project of this kind.

B. AUSTRALIAN CONSTITUTION IN COMPARATIVE PERSPECTIVE

1. Familiar Features

At one level, there are many features of the Australian constitutional system that are shared with many or even most constitutional democracies

elsewhere. The most prominent are sketched broadly here.

Australia has a written and, to this extent, codified Constitution that establishes, empowers, and limits the principal organs of the central state. The Constitution is entrenched, in the sense that it can formally be amended only by a procedure that differs from that used for ordinary law; in Australia's case, ratification at referendum, by double majorities, of a proposed law to alter the Constitution that has been passed by the Houses of Parliament in accordance with a constitutionally prescribed procedure.³ It has become generally accepted that the Constitution derives its authority from the sovereign people of Australia.⁴ The Constitution is enforced by judicial review in common law style through an integrated system of federal and State courts with the High Court of Australia at its apex.⁵ Many of the principles and practices of judicial review are familiar in other courts with constitutional jurisdiction. A still tentative acceptance of proportionality reasoning in Australia is only the most recent example.⁶

The Australian Constitution provides for a form of federation loosely, although not exclusively, modelled on that of the United States. The resulting arrangements have all the hallmarks of a federation formed by aggregation, as a means of bringing together six, separately governed British colonies in a Commonwealth of Australia.⁷ Thus, in particular, each of the six States has its own Constitution to which, subject to the Australian Constitution, arrangements for the organization of State systems of government are sourced.⁸ The Australian Constitutions collectively provide for parliamentary representative democracy nationally and in each of the States and territories, organized around the principles and practices of responsible government originally developed at Westminster.⁹ A form of separation of powers exists at each level of government, although it is more evidently mandated for the Commonwealth by the Australian Constitution and necessarily is affected, as between the legislature and the executive in both spheres, by the design and assumptions of Westminster-style parliamentary government.¹⁰ Judicial independence and the integrity of the judicial process are protected by a combination of a strict separation of judicial power and adherence to precepts of the rule of law.¹¹ Consistently with the trend elsewhere in the world, review of the lawfulness of executive action, including on administrative law grounds, to some extent has been

constitutionalized.¹² Civil and political rights are broadly respected although only very partially entrenched.¹³ Interests that under other Constitutions may be characterized as social, economic, or cultural rights also are taken seriously, although handled entirely through the political process and the general law.¹⁴

As might be expected in these circumstances, many of the challenges confronting the Australian constitutional system are shared with other states as well. In Australia, as elsewhere, there is inevitable tension between constitutional rigidity and the need for flexibility over time. The tension has been exacerbated by the unexpected resistance to formal change of the now aging Australian Constitution and eased by its somewhat sparse, broadly expressed provisions, of which more below. Even so, in Australia as elsewhere, it falls to the courts to strike a balance that respects the status of the Constitution while enabling evolution to meet changed conditions and new contexts.¹⁵

Controversy over where this balance should lie further fuels the familiar potential for friction between courts that enforce the law, including the Constitution, against the elected branches and the responsibilities of the latter, with greater claim to democratic legitimacy, to develop and implement policies with the public interest in view.¹⁶ A longstanding challenge of a different kind, also with resonance elsewhere, dates to the foundations of the Australian state as a polity formed through European colonization of territory long since inhabited by Indigenous peoples with deep connections with the land and laws and customs of their own. For more than 200 years, Australia has grappled, none too successfully, with the conceptual question of the relationship between First Peoples and the Australian state and with practical problems of policy development and implementation for a small proportion of the population with highly distinctive interests and needs.¹⁷

At least some of the shared challenges confronting the Australian constitutional system have more recent origins, at least in their current form. As in the rest of the world, global conditions, including internationalization, globalization, the information revolution, and collaboration on trans-national problems have left their mark on Australian constitutional arrangements. We argue later in this chapter that, in some respects, Australia has resisted internationalization to a greater degree than

some countries elsewhere. The constitutional effects of these global phenomena nevertheless are broadly familiar. Thus, for example, internationalization and globalization are amongst the many causes of the centralization of the Australian federation, encouraging an ever-deepening internal market, with the uniformity that this is deemed to entail.¹⁸ Similarly, internationalization, aggravated by concerns about border security and transnational terrorism, has been a catalyst for the augmentation of executive power in Australia, where international relations traditionally have been assumed to be the prerogative of the executive branch alone.¹⁹ This in turn has contributed to pressures, which also are familiar elsewhere, for greater accountability of the executive branch to both Parliament and the courts. Thus, to use one illustration, in Australia as in other countries in the same tradition, there has been pressure for greater accountability of the executive, through the legislature, for decisions to contribute to military operations elsewhere in the world or for entry into international commitments with significant implications for domestic policy.²⁰

Ironically perhaps, what essentially is a demand to reconceive the processes of representative democracy co-exists with growing disenchantment with elected representatives of a kind that also is familiar elsewhere, manifested in a dwindling base for traditional parties, political polarization and concern about the subversive influences of sources from which representatives derive funding.²¹ The impact of disenchantment is mitigated somewhat by the long-established Australian practice of compulsory voting, coupled with relatively short legislative terms of three years, in the Commonwealth sphere. It is manifested nevertheless in the emergence of minor parties and the election of independents, making Parliaments more difficult to manage and providing further incentives for unilateral executive action.

In a complication of another, associated kind, patterns of migration have dramatically increased Australian cultural diversity, requiring new techniques to ensure inclusion and placing pressure on standards, including the limits of free speech, developed for a less obviously plural society. Last but by no means least, the nature and source of constitutional constraints on extraterritorial action by representatives of the Australian state are an

emerging issue, the contours of which are only just beginning to be explored.²²

These and other similarities between Australian and other constitutional systems offer considerable potential for constitutional comparisons leading to insights that can assist to resolve problems. At the same time, however, constitutional comparison needs to be informed by understanding of the distinctive features of Australian constitutional law and practice, which are the subject of the next section.

2. Distinctive Characteristics

All constitutional systems are distinct in various ways and Australia is no exception in this respect. Difference typically can be attributed to a variety of causes, including history; constitutional purpose; demography; geography; constitutional design choices, individually and in combination; the context in which a Constitution operates and evolves over time. All have been significant in the Australian case.

History has had a particular impact on Australian constitutional arrangements. The current Australian state initially was settled by the British in the hey-day of the second British empire.²³ Over the course of the nineteenth century, six self-governing colonies were established. There was no claim of conquest and no attempt at agreement with the Indigenous peoples who, for their part, never ceded sovereignty. The common law was introduced as the foundation of the legal system of each colony.

Federation in 1901 brought the colonies together in the Commonwealth of Australia.²⁴ This was not a revolutionary moment, in the sense that there was no legal break with the past. The common law, including the existing colonial, now State, Constitutions continued.²⁵ The new Commonwealth itself was subject to continuing Imperial authority and the new Constitution derived its status as superior law from enactment by the Parliament at Westminster.²⁶ Independence was achieved gradually over the ensuing decades in ways that retained many of the symbols of the colonial past, including the monarch and her representatives in Australia, adapting them to the proprieties of independence through legislation and political practice.²⁷ This evolutionary approach to constitutional development has remained a hallmark of Australian constitutionalism.²⁸

In these circumstances, in 1901, the primary goals of the Australian Constitution were to achieve unity, through federation, under the umbrella of a new national polity that met democratic ideals that were progressive, by the standards of the time.²⁹ The framers of the Australian Constitution achieved their ambitions by bringing together a host of ideas from different constitutional systems and adding some embellishments of their own. The combination was unusual from the outset and has developed organically since. It is explored more fully below.

Amongst the many contextual features of the state in which the Constitution commenced operation, geography deserves mention for its particular significance: distance between the principal centres of population within Australia; distance between Australia and much of the rest of the world; and location on the fringe of the vast Indo-Pacific region, where diversity defies regional integration, at a time when integration is advanced elsewhere. The peace and prosperity that have, at least in part, been the products of distance, are features of constitutional context in their own right, which also have attracted to Australia migrants from all parts of the world, progressively diversifying the population.³⁰

The Constitution that emerged from the federation movement of the 1890s has sometimes been disparaged as a free trade agreement or hailed as a simple 'rule book' that is inappropriate for the expression of values.³¹ Neither captures its essence. While the Australian Constitution may be a 'small brown bird' as Arcioni and Stone have described it, it was a remarkable achievement nevertheless.³² It was not transformative as the term has come to be used in the twenty-first century,³³ but it involved radical changes in political practice and was aspirational by the standards of the time. The resistance of the Constitution to formal change has meant that, inevitably, certain provisions have dated, sometimes badly, of which those dealing with 'race' are notorious examples;³⁴ other provisions now are spent; and there are gaps in relation to matters, including citizenship, with which most Constitutions deal.³⁵ More generally, however, the clean lines and sparse wording of the Constitution have enabled it to adapt to changing conditions in ways that also are structured by the constitutional principles on which it is built.³⁶ The Constitution can be seen as expressivist, insofar as it is consistent with Australian pragmatism while providing a secure framework for federal democracy and the rule of law.³⁷

Any account of the distinctive features of the Australian constitutional system must begin with the terms of the Constitution itself. The Australian Constitution is thin, in terms of substance rather than status.³⁸ Most notably, it provides little direct protection for rights; on one view of the jurisprudence, no protection at all, if rights can be distinguished from limits on power. Rather, the Australian Constitution is directed primarily to establishing the federal system and creating institutions of government for the Commonwealth, but not the State, sphere.³⁹ Notably also, the framework that the Constitution provides for the executive branch focusses almost exclusively on the ‘dignified’ components of the Queen, the Governor-General, and the Executive Council, leaving the ‘efficient’ institutions of the Ministry and Cabinet almost entirely to constitutional convention.⁴⁰ Australian constitutionalism thus relies heavily on the integrity of the institutions that the Constitution creates and constrains through federalism and the separation of powers.⁴¹ Respect for rights is dependent on a combination of federal parliamentary democracy and the common law under an entrenched, essentially procedural Constitution, interpreted and applied by independent courts, whose decisions are broadly respected.⁴²

The implications of this striking mixture of legal and political constitutionalism can be demonstrated by showing how an array of contemporary constitutional questions, which in other states are shaped through judicial review of rights provisions, are handled in Australia. The lawfulness of abortion is entirely a matter for the common law and the political process, primarily at the level of the States⁴³ and the same is true for euthanasia.⁴⁴ The limits of anti-terrorism legislation are determined by the federal allocation of legislative power and the separation of judicial power.⁴⁵ It is now clear that provision for same sex marriage is a matter for legislation by the Commonwealth Parliament, after the High Court invalidated an attempt by a sub-national jurisdiction to deal with the issue, incidentally confirming the scope of federal power to do so.⁴⁶ Legislative restrictions on hate speech may fall foul of the implied constitutional freedom of political communication in particular cases, but activism is directed primarily to legislative change in the Commonwealth or State spheres.⁴⁷

Many of these questions are as controversial in Australia as elsewhere, but the modalities for dealing with them are different. Both the latitude left to the political process and the judicial focus on the lawful bounds of power rather than rights are consistent with Australian political and legal culture, as these have evolved.⁴⁸ Inevitably, in comparative terms, a price also is paid for the absence of constitutional rights protection. The standards for rights protection are opaque, a rights culture is underdeveloped, majority opinion is slow to shift where the rights of minorities are involved, and there are obvious gaps in Australian human rights practice. Three examples illustrate the problems that arise. Provision for same sex marriage has been delayed in Australia well beyond its recognition in comparable countries elsewhere.⁴⁹ Federal ‘intervention’ with inadequate consultation into the lives of Indigenous communities in the Northern Territory from 2007, in the face of allegations of widespread child abuse, would not have been possible had an equality right been constitutionally entrenched.⁵⁰ The detention of asylum seekers in off-shore regional processing centres in Nauru and Papua New Guinea, which Australia has been instrumental in establishing and operating, offends, *inter alia*, the right to liberty.⁵¹ On the other hand, levels of public support make it highly likely that same sex marriage will happen in due course. The intervention has become highly controversial, fuelling Indigenous demands for more systemic consultation.⁵² Both these examples therefore might be advanced as evidence of Australian constitutionalism at work, albeit slowly and at risk of damage on the way. At the time of writing, however, there is no sign of a change of heart in relation to off-shore detention, where both political and legal accountability have been complicated by the extraterritorial dimensions of the problem.

In these circumstances, while the principles around which the Constitution is structured are familiar, both their contours and their operation in practice have a distinctive cast. The federation that originally was designed as dualist, with the important exception of a single, final court of appeal, has become highly centralized. Even so, the federal character of the Constitution is a primary justification for judicial review, and judicial federalism is taken seriously. Responsible government in Australia is tempered by the prevalence of powerful, elected, second Chambers in most legislatures, not least in the Commonwealth sphere, where the powers of the Senate contribute to a more pronounced separation of legislative and

executive power than typically found in Westminster systems elsewhere.⁵³ The Australian separation of powers is notoriously asymmetrical, nevertheless. A strict separation of judicial power constrains the judiciary as well as the other branches, precluding the federal courts from exercising functions that elsewhere might be considered appropriate for the judiciary while protecting the judiciary from interference in respect of the functions within its own sphere. The prevailing approach to constitutional reasoning, widely accepted as appropriate, is often described as ‘Australian legalism’. As developed in the Australian constitutional context, legalism gives priority to constitutional text and structure and generally eschews express reliance on external considerations but nevertheless allows for some flexibility in outcomes, drawing on judicial techniques honed in the development of the common law.⁵⁴

3. Global Orientation

The Australian constitutional experience can be examined from the perspective of global constitutionalism, to which it also makes a distinctive contribution. Global constitutionalism for this purpose refers to the ways in which Constitutions are shaped by and interact with influences outside the state for which they are made, both during the Constitution-making phase and subsequently.⁵⁵ Interest in the interdependence of national constitutions with the wider world has been sparked in the twenty-first century by conditions of globalization but is by no means a new phenomenon as, indeed, the Australian case shows.⁵⁶

The Australian Constitution was drawn up in Australia by a Constitutional Convention comprising delegations of largely elected delegates from participating colonies.⁵⁷ A requirement in the various colonial Enabling Acts for the draft to be put to referendum in each of the colonies operated as a significant downstream constraint on the drafters.⁵⁸ These aspects of the Australian Constitution-making process were progressive for the time and contribute to the foundation for later claims that the Australian Constitution derives its authority from the people.⁵⁹ Another downstream constraint, however, also acknowledged in the Enabling Acts, was the need for the Constitution, once approved at referendum, to be enacted by the Imperial Parliament.⁶⁰ British authorities

did not play an overtly heavy hand during the drafting of the Australian Constitution, but their influence was indisputable, especially on matters regarded as pertaining to Empire, including maintenance of the jurisdiction of the Privy Council. Even in the final stages of the Constitution-making process, after the draft had been approved at referendum and sent to London for enactment, negotiations with the British government continued and further changes were made.⁶¹ The Constitution that came into effect, moreover, included provisions to manage the ongoing relations with Imperial authorities, some of which now are effectively spent and at least two of which played a significant role in effecting transition to independence.⁶²

The same external forces shaped understanding of the ‘people’ as well, as the Constitution was made and as independence was achieved.⁶³ There was no legal status of Australian citizen until 1948 and, even then, it followed from agreement at a conference of British Commonwealth leaders.⁶⁴ Rather, at federation, the only civic status was that of ‘British subject’, which gave rise to political rights. Even after the recognition of Australian citizenship in 1948, British subject status continued to be significant and British subjects, who were not Australian citizens, continued to vote in Australian elections and referendums to amend the Constitution, as of right, until 1984.⁶⁵ Some continue to do so still, pursuant to entitlements that accrued before 1984.⁶⁶

Changing patterns of thought about the composition of the ‘people’, driven by changes in Australia’s relations with the outside world, have had implications for the meaning of the Constitution as well. The scope of Commonwealth power to make laws with respect to ‘aliens’ has shifted with the corresponding concept of belonging.⁶⁷ The ‘subjects of the Queen’ who receive protection against discrimination on the ground of State residence under section 117 are now understood to comprise only subjects of the ‘Queen of Australia’,⁶⁸ itself a construct of a transnational character. The expansion over time of the application of the disqualification of those holding allegiance to a ‘foreign power’ from membership of Parliament is another illustration of the ways in which relations between Australia and the external world affect the delimitation of the ‘people’ and the political rights to which they are entitled under the Australian Constitution.⁶⁹

The Constitution that came into effect in Australia in 1901 reflected multiple external influences. Even the concept of the Constitution itself was an amalgam of ideas, drawing on the written, codified, Constitution of the United States, drafted in a Constitutional Convention representing delegations of States, the superior status of a statute enacted by the British Parliament, and the reliance on convention for compliance with important practices of a constitutional kind in the United Kingdom. In terms of substance, the principal obvious borrowings were United States federalism, British parliamentary government and the Swiss referendum process for ratification of constitutional change, although details of the federal division of legislative power in Germany and Canada were influential as well.⁷⁰ Nothing was absorbed unchanged, however, and each of the components has been further altered by others as the combination has evolved organically over time. Australia offers an instructive case for the study of constitutional transplants.⁷¹

Recourse to external constitutional experience continued after the Constitution came into effect, as it was interpreted and applied by the courts. This was inevitable, for a time, while the jurisdiction of the Privy Council continued, at least in relation to the restricted range of constitutional matters for which appeals to the Privy Council were retained.⁷² Both before and after the jurisdiction of the Privy Council was brought to an end,⁷³ however, and irrespective of the status of the authority of other British courts,⁷⁴ the High Court readily considered the jurisprudence of the courts of other countries deemed relevant to the issues before it.⁷⁵ Even the seminal decision in the *Engineers Case*, concerning the methodology for the interpretation and application of Commonwealth legislative powers, involved a contest between competing approaches deriving, respectively, from the United Kingdom and the United States.⁷⁶ The frequency of foreign references has varied over time as doctrine became settled and new issues emerged, but it has never created controversy in its own right, of the kind that emerged in the United States at the turn of the twenty-first century.⁷⁷

Initially, references to foreign law in Australian constitutional cases were constrained by considerations of availability and access to the decisions of other jurisdictions, quite apart from issues that might arise from comparative difference. In these circumstances, citations typically tended to

be confined to the broadly comparable, English speaking, common law jurisdictions of the United Kingdom, the United States, and Canada. By the end of the twentieth century, those constraints were significantly lessened by the growth of electronic databases, facilitating reference to some additional jurisdictions, although without dramatically changing previous citation patterns in the High Court.⁷⁸ It may be that, in recent years, a degree of greater caution has crept into the manner in which the Court uses foreign experience, causing Justices to more deliberately apply comparative method in weighing the applicability of foreign cases cited to them, in the light of the Australian constitutional context. If so, this development may have several causes: the greater accessibility of foreign law; consciousness of the distinctiveness of the framework within which Australian constitutionalism has developed; the more public profile that the practice has acquired. Whatever the cause, it is manifested in, for example, divisions in the Court over the introduction of an explicit principle of proportionality and whether and how it should be adapted to Australian use.⁷⁹

Australian constitutionalism is much less open to the direct influence of the international legal order. While enthusiasm waxes and wanes, Australia historically has been an active player in the international state system. Australia participated in negotiation of the UN Charter in San Francisco; was a founding member of the United Nations; and is party to most major multilateral international arrangements.⁸⁰ If only for reasons of geographical location, however, Australia is party to no supranational arrangements of the type that has prompted claims of constitutional pluralism elsewhere.⁸¹ Even the close, quasi-domestic relationship between Australia and New Zealand is essentially intergovernmental in character.⁸² In a world in which the dichotomy between dualism and monism has significantly eroded, moreover, Australia remains a relatively clear example of the former, justified on the basis of separation of powers, given exclusive executive authority to enter into treaties.⁸³ International legal commitments do not come into effect domestically unless incorporated by valid legislation of the Commonwealth or a State Parliament.⁸⁴ There has been resistance to domestic incorporation of international human rights obligations, even with the status of statutory law, ostensibly on the basis that rights already are relevantly protected in other ways.⁸⁵ There is continuing doubt about the status even of international customary law in

Australian domestic law.⁸⁶ International treaty commitments may influence the interpretation of statutes, at least in cases of ambiguity, where the statute postdates the treaty.⁸⁷ As the law presently stands, however, international law is not taken into account in constitutional interpretation, for reasons that appear to involve both considerations of intent at the time the Constitution was written and separation of powers concerns.⁸⁸

The Australian Constitution shows both its age and its lineage in its provision for the exercise of external sovereignty. It makes no specific provision for authority to enter into international commitments, or for the status of such commitments from the standpoint of domestic law.⁸⁹ It does not distinguish between different categories of international commitments by reference to their effect or their implications for sovereignty or territory. In these respects, it also now is in contrast with most Constitutions elsewhere in the world.⁹⁰ The only substantive provision that links with the exercise of external sovereignty is the power of the Commonwealth Parliament to make laws with respect to 'external affairs', which can be used to bring international commitments into domestic law and has been a source of friction between the levels of government.⁹¹ In part, this reaction itself reflects the dearth of an open, constitutionally structured process for entry into treaties in the first place.

Australian constitutional silence in relation to the exercise of external sovereignty is attributable both to lack of independence at the time the Constitution was made and to the assumptions of the British constitutional tradition on which, for this purpose, the Australian Constitution draws, about executive power over international affairs. Consistently with that tradition, once independence was secured, the general executive power of the Commonwealth in section 61 of the Constitution was expanded, through judicial interpretation, to accommodate Australia's new international position.⁹² Some extra-constitutional, procedural changes have since been made, to give the Commonwealth Parliament an opportunity to comment on proposed treaties before commitments are finalized and to involve State representatives where treaties have federal implications.⁹³ These procedures are weak and opaque, however, and treaty-making is intermittently controversial including, for example, in relation to trade agreements with interstate dispute settlement clauses that by-pass the Australian court system.⁹⁴ As the world becomes increasingly interdependent, it may be

necessary for Australia to find new ways to constitutionalize the exercise of its external sovereignty.

4. Work in Progress

Working Constitutions are never static. Like others, the Australian Constitution is constantly evolving. Change, which often is substantial, comes through various processes, including political practice within or between governments and judicial review. Political practice, for example, largely accounts for the concentration of tax powers in the Commonwealth sphere, which in turn underpins the centralization of Australian federalism through revenue redistribution.⁹⁵ It also accounts for a vast array of intergovernmental arrangements, achieving policy co-ordination across Australia while retaining a State voice of some kind in decisions that are made.⁹⁶ Judicial review has been the medium for a host of evolutionary changes including adaptation of constitutional meaning to the realities of independence;⁹⁷ delineation of the scope of Commonwealth executive power within the framework of Australian federal parliamentary democracy;⁹⁸ identification of the due process implications of the separation of judicial power under the Australian Constitution;⁹⁹ and recognition of a small handful of the political rights on which representative democracy depends.¹⁰⁰

Evolution through formal constitutional change is another matter. Only eight out of forty-four proposals have been accepted at referendum since federation; many more have fallen by the wayside at an earlier stage; no referendum has attracted the necessary majorities in favour of change since 1977.¹⁰¹ New proposals for change are greeted with scepticism and undertaken with trepidation. Nevertheless, there are at least two issues confronting the Australian constitutional system in the first part of the twenty-first century that will require formal constitutional change if they proceed at all. One is the constitutional recognition of the Aboriginal and Torres Strait Islander peoples of Australia. The other is the establishment of Australia as a republic, in the sense of breaking ties with the Crown and providing for a head of state by other means.¹⁰²

The Australian Constitution does not mention the First Peoples at all. Aboriginal and Torres Strait Islander peoples did not participate in making

the Constitution in the 1890s. Exclusionary references to them in the Constitution that came into effect in 1901 were removed by referendum in 1967, one effect of which was to bring Indigenous Australians within the ambit of Commonwealth legislative power.¹⁰³ Notwithstanding this change, fifty years after the 1967 referendum, Indigenous communities are still grievously disadvantaged in socio-economic terms, health and mortality statistics for Indigenous peoples are dismal, and prison rates are disproportionately high.¹⁰⁴ These are all signs of policy failure, including failure of the policy-making process.

The debate on constitutional recognition that was underway in 2017 can be traced to a proposal floated in the context of a general election in 2007.¹⁰⁵ At one level, it represents a gesture towards reconciliation by incorporating express reference to the First Peoples within the terms of a Constitution from which they were originally excluded. The options for doing so, which evolved through several bodies of inquiry, included symbolic reference to Indigenous peoples in preamble of some kind; replacement of the ‘race’ power in section 51(xxvi), under which laws for Indigenous peoples presently can be made, with a specific power to that end; and addition to the Constitution of a prohibition against discrimination on the grounds of race.¹⁰⁶

Agreement on a suitable option was complicated from the outset, however, by opposition to the very idea of constitutional recognition by many Indigenous Australians for reasons that can be traced to deep disagreement over the implications of the circumstances in which Europeans originally claimed sovereignty. Deliberations in a series of Indigenous Regional Dialogues from the end of 2016, culminating in a First Nations National Constitutional Convention at Uluru in May 2017, revealed Indigenous concern that constitutional recognition could be construed as a surrender of sovereignty, inadvertently and with nothing in return to redress the flaws in their relationship with the Australian state. Instead, the Uluru Convention made a ‘Statement from the Heart’ that sought three things, only one of which involves formal constitutional change: constitutional provision for a First Peoples body to be consulted by the Parliament before laws applying specifically to Indigenous peoples are made; a treaty-making process that is overseen by a ‘Makarrata’ Commission; and a commitment to truth-telling about the past.¹⁰⁷

As [chapter 1](#) notes, the Uluru proposal for constitutional change to give First Peoples a ‘voice’ to Parliament was rejected by the incumbent Commonwealth government in October 2017.¹⁰⁸ Other political leaders have been more equivocal, however, and it remains to be seen whether, ultimately, the proposal that emerged from Uluru will be put to referendum and accepted by voters. Whatever the outcome, however, the debate on constitutional recognition has cast light on one of the most important fault-lines underlying the Australian Constitution and on what is needed to begin the process of repair.

In a sense, the issue of an Australian republic involves a fault-line of another kind.¹⁰⁹ On one view, the continuing link with the Crown represents unfinished business from colonial times, calling for change to provide for an Australian head of state. On another, however, the construct of a distinct ‘Queen of Australia’ and the evolution of the office of Governor-General as de facto head of the Australian state have fixed the problem in another way. There are divisions within Australia over whether formal constitutional change is necessary or desirable. There are divisions also over what should replace the monarch, if change were to be pursued. As matters presently stand, the incumbent government has almost total control of the appointment and removal of the de facto head of state. The political class, on both sides of politics, prefers a mechanism for constitution of the office of President that retains these features. Polls both during and after a failed referendum in 1999, however, suggest that a majority of voters prefer a directly elected President and would be unlikely to support a model for a republic which gives the executive government effective control of the office of President.¹¹⁰ Provision for an elected President in a parliamentary system, however, requires specification of the powers of the President and the procedures for exercising them and thus would involve codification of many of the conventions that the Constitution presently assumes. This might be no bad thing in principle, but it is complicated in practice with disagreement about what some of the key conventions are, in the long wake of the controversial dismissal of a Prime Minister by a Governor-General in 1975.

These divisions became manifest over the course of the decade of the 1990s leading to the constitutional centenary, during which a move to a republic was seriously explored. The model ultimately put to referendum involved a President nominally chosen by Parliament, who was removable

by the Prime Minister and whose powers continued to be structured by constitutional convention.¹¹¹ The referendum was rejected, by a national majority and by majorities in all States.¹¹² The issue of a republic has subsequently faded as a national priority, but it is likely to revive again in due course, forcing some of the more difficult questions to be faced.

This section began with the observation that constitutions are never static. One hazard of preparing a Handbook of this kind is that significant changes continue to occur after the manuscript is submitted. This work is no exception; a series of noteworthy developments has taken place since the chapters were finalised. These include decisions of the High Court of Australia in *Brown v Tasmania*,¹¹³ in which a majority relied on the implied freedom of political communication to invalidate a Tasmanian statute restricting protest in relation to forestry land, and which provides another example of the cautious use of proportionality analysis; in *Wilkie v Commonwealth; Australian Marriage Equality v Cormann*,¹¹⁴ in which a unanimous Court upheld the validity of the legal framework through which the voluntary plebiscite on same sex marriage was conducted, including reliance on an appropriation from the Advance to the Finance Minister; in *Graham v Minister for Immigration and Border Protection; Te Puia v Minister for Immigration and Border Protection*,¹¹⁵ in which the Court invalidated a legislative provision to the extent that it prevented disclosure of information to courts in a manner inconsistent with chapter III of the Constitution; and *Re Canavan; Re Ludlam; Re Waters; Re Roberts [No 2]; Re Joyce; Re Nash; Re Xenophon*,¹¹⁶ in which a unanimous Court held that section 44(i) of the Constitution disqualifies dual citizens from standing for the Commonwealth Parliament ‘unless the person has taken all steps that are reasonably required by the foreign law to renounce ... citizenship and within his or her power’.¹¹⁷

These developments may have implications for the detail and the nuance of the analysis in some of the Handbook chapters: most obviously, [chapter 21](#) (Standards of Review in Constitutional Review of Legislation); [chapter 24](#) (Parliaments); [chapter 26](#) (Separation of Legislative and Executive Power); [chapter 28](#) (The Separation of Judicial Power); [chapter 29](#) (The Constitutionalization of Administrative Law); and [chapter 39](#) (Expression). We can confidently predict that developments of this kind will continue to occur. As in these cases, however, at least for the most part, they should not

affect the principal lines of analysis in particular chapters or throughout the Handbook as a whole.

C. CONCEPTUAL ORGANIZATION

The organization of the Handbook is designed to capture the depth and complexity of Australia's constitutional system. To this end, the forty-four substantive chapters are divided into seven discrete parts, which are conceived as follows.

The last three of the parts into which the Handbook is divided deal respectively with the three primary functional dimensions of the Constitution: establishment of the institutions of government in accordance with a separation of powers ([Part V](#)); provision for a federal form of government ([Part VI](#)); and recognition and protection of rights ([Part VII](#)). Within each of these parts, individual chapters are devoted to the topics that might be expected and a few that might not. Thus, the chapters in [Part V](#) deal both with the institutions of the legislature, executive, and judiciary and with the nature of the power that each exercises. This part includes, in addition, a chapter on the constitutionalization of administrative law, which has been a by-product of constitutional provision for the federal judiciary ([chapter 29](#)). [Part VI](#) deals not only with such obvious federal issues as the division of power, jurisdiction, and resources but also canvasses the overall design of the Australian federation ([chapter 30](#)), the federal principles on which it rests, the character of the internal, federal economic union, and the array of mechanisms for intergovernmental co-operation. [Part VII](#), which is concerned with rights, begins with an overview of the Australian approach to rights, its rationale and consequences ([chapter 37](#)), but also comprises chapters dealing individually with the relatively few rights arguably protected by the Constitution explicitly or by implication: property ([chapter 41](#)); freedom of religion ([chapter 42](#)); due process ([chapter 38](#)); political expression ([chapter 39](#)); political participation ([chapter 40](#)); and equality ([chapter 43](#)). The final chapter in this part explains the important interpretive principle of legality ([chapter 44](#)), which also contributes to Australian rights protection.

The first four parts of the Handbook deal with cross-cutting issues, which form the bedrock of assumptions on which the functional chapters rest and provide a source from which additional insights can be drawn.

Part I comprises chapters dealing with different aspects of the foundations of the Australian constitutional system: the constitutional position of the First Peoples ([chapter 1](#)); the historical moments of colonization, federation and independence ([chapters 2–4](#)); the evolution of the Constitution over time ([chapter 5](#)); some of the ideas that infuse Australian constitutional discourse, both historically and now ([chapter 6](#)). **Part II** incorporates chapters about the bodies of law and practice that interact with the written Constitution in various ways and so constitute the ‘constitutional domain’. This part begins with a chapter on the rule of law, which pervades interpretation and application of the Constitution and other sources of law in Australia ([chapter 7](#)). Other chapters in this part deal respectively with State Constitutions; the common law, unwritten rules including constitutional conventions; international law and comparative law. **Part III** of the Handbook is devoted to a series of themes that recur across the range of Australian constitutional issues: the legitimacy of the Constitution and the institutions for which it provides ([chapter 13](#)); citizenship ([chapter 14](#)); constitutionalism ([chapter 15](#)); republicanism ([chapter 16](#)); unity, albeit within a federal framework ([chapter 17](#)); and Australia’s role in the international global order ([chapter 18](#)). And a final, cross-cutting group of chapters, in **Part IV**, deal with some very different questions, about aspects of judicial practice and process that need to be borne in mind in reading and understanding Australian constitutional case law. These chapters cover, respectively, the authority of the High Court of Australia, as the apex court ([chapter 19](#)); Australian judicial reasoning ([chapter 20](#)); standards of review in Australian constitutional jurisprudence ([chapter 21](#)); Australian approaches to justiciability and relief in constitutional cases ([chapter 22](#)); and techniques of advocacy and adjudication ([chapter 23](#)).

The authors of the Handbook chapters are drawn from all segments of the Australian constitutional law community and include scholars with expertise on particular constitutional questions in Australia and elsewhere; judges or former judges of courts with an extensive public law case load including the High Court of Australia; and members of the practising profession who appear regularly in constitutional cases. The chapters thus reflect a wide range of voices, different perspectives, and a variety of analytical styles. The selection of authors gives readers of the Handbook exposure to the work of some of the most familiar names in Australian

constitutional law, as well as to that of emerging leaders in Australian and comparative constitutional law whose names for the moment are less well-known.

There is plenty of disagreement amongst the chapter authors, which is to be expected and welcomed. Differences of view enrich the collection by demonstrating many of the cross-currents in Australian constitutional discourse. In Australia, as elsewhere, there are divisions over the respective merits of empowered state institutions and effective checks and balances; of legal and political constitutionalism; of more or less creative approaches to constitutional interpretation; of deeper unity and greater diversity; of nationalism and cosmopolitanism. It may be that, as a generalization, Australia occupies a particular place on the spectrum of the more or less liberal democratic constitutional systems of the world, based on its commitment to electoral democracy, resistance to constitutionalization of rights, relatively formalistic approach to constitutional interpretation, and maintenance of the dualism of international and domestic law. Orthodoxy, such as it is, however, is under constant pressure, not only from competing views but from changing conditions that make old solutions less viable or attractive. The rise of comparative constitutional law plays a role in this regard as well, not necessarily, or only, by offering a smorgasbord of alternatives but by enabling Australian constitutionalists to hold up a mirror to themselves.

D. WITH THANKS

As editors, we express our thanks to the chapter authors for their generosity in committing so much thought and time to this project. The authors developed their chapters to suit the conceptual framework that we had proposed for the Handbook enthusiastically and with considerable insight, from which we also benefitted. Many attended a conference mid-way through the project to reflect on its scope and purpose, share ideas, and compare drafts; a technique that we would recommend for any large-scale project of this kind. In any event, all authors submitted initial drafts for comment and revised their chapters, sometimes significantly, before finalization. Some authors were faced with the additional task of editing their chapters to length, at the cost of omitting excellent material. It would not have been possible to complete the Handbook in a more or less timely

way without the willing co-operation of everyone who contributed in this way. We very much enjoyed working with them all.

Our thanks are due to others as well, including colleagues and students in the Centre for Comparative Constitutional Studies at Melbourne Law School, who have been supportive throughout. Deserving particular mention are our two assistants with the project, Minh-Quan Nguyen (to July 2016) and Joshua Quinn-Watson (from July 2016). Between them, Minh-Quan and Josh managed the complex logistics of the Handbook, as multiple chapters by multiple authors went through multiple drafts. They handled much of the correspondence with the authors and the publisher as well. Minh-Quan, in addition, organized the Handbook conference. Their workload significantly eased ours and it was a pleasure to work with them both. The Handbook would not have been possible without them. We acknowledge also the generous support of the Australian Research Council through Adrienne Stone's Laureate Fellowship.

Many thanks also to Oxford University Press for offering us the opportunity to edit the Australian Handbook. It has been a privilege and a task that we have greatly enjoyed. Particular thanks to Natasha Flemming, who oversaw production from the OUP end until almost the final stages, whose advice was invaluable, and whose patience was inexhaustible. She was succeeded by Eve Ryle-Hodges, for the final phases of the project, for whose assistance we also are most grateful. We hope they are both as pleased as we are with the published Handbook.

Last, but in no way least, our thanks go to Sir Anthony Mason, for agreeing to write the foreword to the Handbook. Sir Anthony is one of Australia's greatest constitutional jurists, whose own mark on Australian constitutional law has been profound. It is an honour to have him associated with the Handbook in this way.

¹ Gunther Frankenberg, 'Comparing Constitutions: Ideas, Ideals and Ideology—Towards a Layered Narrative' (2006) 4 *International Journal of Constitutional Law* 439.

² See Chapter 1 'First Peoples'.

³ *Constitution of the Commonwealth of Australia (Commonwealth Constitution)*, s 128. Amendments require a majority of voters nationally and a majority of voters in a majority of the six States. See Chapter 6 'Ideas'.

⁴ *Australian Capital Television Pty Ltd v The Commonwealth* (1992) 177 CLR 106, 137–38 (Mason CJ); Cheryl Saunders, *The Constitution of Australia; A Contextual Analysis* (Hart Publishing

2011) 59–62. See Chapter 13 ‘Legitimacy’.

⁵ Characterization of the Australian courts as ‘integrated’ was settled in *Kable v Director of Prosecutions (NSW)* (1996) 189 CLR 51, 84 (Dawson J), 101–02 (Gaudron J), 112 (McHugh J), 138 (Gummow J). See Chapter 36 ‘Federal Jurisdiction’; Chapter 19 ‘Authority of the High Court of Australia’; Chapter 27 ‘The Judicature’.

⁶ *McCloy v New South Wales* (2015) 257 CLR 178, 193 [2] (French CJ, Kiefel, Bell and Keane JJ); cf *Murphy v Electoral Commissioner* (2016) 90 ALJR 1027, 1050 [101] (Gageler J), 1079 [296]–[297] (Gordon J). See Chapter 39 ‘Expression’; Chapter 21 ‘Standards of Review in Constitutional Review of Legislation’.

⁷ Nicholas Aroney, ‘Constituent Power and the Constituent States: Towards a Theory of the Amendment of Federal Constitutions’ (2017) 17 *Jus Politicum: Revue de Droit Politique* 31. See Chapter 3 ‘Federation’; Chapter 35 ‘The Federal Principle’.

⁸ See Chapter 12 ‘State Constitutions’.

⁹ See Chapter 24 ‘Parliaments’.

¹⁰ There is judicial authority that denies a separation of powers at the State level, but in context this applies to the entrenchment of a separation of judicial power and should not be understood more broadly: see, eg, *Kable* (n 5) 109 (McHugh J), 77 (Toohey J). See Chapter 28 ‘Separation of Judicial Power’.

¹¹ Murray Gleeson, ‘Courts and the Rule of Law’ in Cheryl Saunders and Katherine LeRoy (eds), *The Rule of Law* (Federation Press 2003) 178. See Chapter 7 ‘Rule of Law’.

¹² *Constitution of the Republic of South Africa Act 1996* (South Africa), s 33; *Constitution of Kenya 2010*, art 47. See Chapter 29 ‘Constitutionalisation of Administrative Law’.

¹³ See Chapter 38 ‘Due Process’; Chapter 39 ‘Expression’; Chapter 40 ‘Political Participation’; Chapter 41 ‘Property’; Chapter 42 ‘Religion’; Chapter 43 ‘Equality’.

¹⁴ See Chapter 15 ‘Constitutionalism’; Chapter 37 ‘Rights Protection in Australia’.

¹⁵ See Chapter 5 ‘Evolution’.

¹⁶ See Chapter 22 ‘Justiciability’.

¹⁷ See Chapter 1 ‘First Peoples’.

¹⁸ See Chapter 34 ‘The Passage Towards Economic Union in Australia’s Federation’; Chapter 17 ‘Unity’; Chapter 32 ‘Money’.

¹⁹ See Chapter 25 ‘Executives’; Chapter 26 ‘Separation of Legislative and Executive Power’.

²⁰ See, eg, Senate Foreign Affairs, Defence and Trade References Committee, *Blind Agreement: Reforming Australia’s Treaty Making Process* (June 2015) [2.6].

²¹ See Chapter 40 ‘Political Participation’.

²² See *XYZ v The Commonwealth* (2006) 227 CLR 532; *CPCF v Minister for Immigration and Border Protection* (2015) 225 CLR 514; *Plaintiff M68/2015 v Minister for Immigration and Border Protection* (2016) 257 CLR 42.

²³ See Chapter 2 ‘Settlement’.

²⁴ See Chapter 3 ‘Federation’.

²⁵ *Commonwealth Constitution*, ss 106, 107. See Chapter 8 ‘Common Law’.

²⁶ *Commonwealth of Australia Constitution Act 1900* (Imp).

²⁷ *Imperial Conference, 1926: Summary of Proceedings* (His Majesty’s Stationery Office 1926) VI; *Imperial Conference 1930: Summary of Proceedings* (His Majesty’s Stationery Office 1926) VI(g); *Royal Style and Titles Act 1973* (Cth); see Chapter 4 ‘Independence’.

²⁸ See Chapter 17 ‘Unity’.

²⁹ James Bryce described it, in 1901, as the ‘high-water mark of popular government’: James Bryce, *Studies in History and Jurisprudence*, vol 1 (OUP 1901) 536, cited in *McGinty v Western Australia* (1996) 186 CLR 140, 271 (Gummow J).

³⁰ In 2016, 49 per cent of the Australian population of 24.4 million people had been born overseas or had at least one parent born overseas, in a variety of different regions: Australian Bureau of Statistics, ‘Census Reveals: We’re a Fast Changing Nation’ (Media Release, 27 June 2017).

³¹ See, eg, Jeffrey Goldsworthy, ‘Constitutional Cultures, Democracy, and Unwritten Principles’ [2012] *University of Illinois Law Review* 683.

³² Patrick Keane, ‘In Celebration of the Constitution’ [2008] *Queensland Judicial Scholarship* 64, cited in Elisa Arcioni and Adrienne Stone, ‘The Small Brown Bird: Values and Aspirations in the Australian Constitution’ (2016) 14 *International Journal of Constitutional Law* 60. See Chapter 6 ‘Ideas’.

³³ Pius Lange, ‘Transformative Constitutionalism’ (2006) 17 *Stellenbosch Law Review* 351.

³⁴ *Commonwealth Constitution*, ss 25, 51(xxvi).

³⁵ See Chapter 14 ‘Citizenship’.

³⁶ See Chapter 5 ‘Evolution’.

³⁷ See Chapter 7 ‘Rule of Law’; Chapter 44 ‘Legality’.

³⁸ Joseph Raz, *Between Authority and Interpretation* (OUP 2009) 323, 324. See Chapter 6 ‘Ideas’; Chapter 15 ‘Constitutionalism’.

³⁹ Although references to the State court systems have had significant constitutional consequences: see Chapter 28 ‘The Separation of Judicial Power’.

⁴⁰ Walter Bagehot, *The English Constitution* (2nd edn, Cornell University Press 1963) 61.

⁴¹ See Chapter 30 ‘Design’.

⁴² See Chapter 37 ‘Rights Protection in Australia’; Chapter 15 ‘Constitutionalism’.

⁴³ See, eg, *Abortion Law Reform Act 2008* (Vic); *Health Act 1993* (ACT), Pt 6; *Health Act 1911* (WA), s 334; *Reproductive Health (Access to Terminations) Act 2013* (TAS); *Termination of Pregnancy Law Reform Act 2017* (NT); *Criminal Law Consolidation Act 1935* (SA), s 82A; cf *Crimes Act 1900* (NSW), ss 82–84; *Criminal Code 1899* (QLD), ss 224–26.

⁴⁴ See, recently, the *Voluntary Assisted Dying Bill 2017* (NSW). See also the *Rights of the Terminally Ill Act 1995* (NT), which was overridden by the *Euthanasia Laws Act 1997* (Cth).

⁴⁵ See, eg, *Thomas v Mowbray* (2007) 233 CLR 307.

⁴⁶ *Commonwealth v Australian Capital Territory* (2013) 250 CLR 441.

⁴⁷ See, eg, Parliamentary Joint Committee on Human Rights, *Freedom of Speech in Australia: Inquiry into the operation of Part IIA of the Racial Discrimination Act 1975 (Cth) and related procedures under the Australian Human Rights Commission Act 1986 (Cth)* (February 2017) <http://www.aph.gov.au/Parliamentary_Business/Committees/Joint/Human_Rights_inquiries/Freedom_of_Speech_in_Australia/~media/Committees/humanrights_ctte/Freedom_of_Speech_in_Australia/report.pdf> accessed 18 July 2017. See Chapter 39 ‘Expression’.

⁴⁸ See Chapter 31 ‘Power’.

⁴⁹ Same sex marriage is legal in, for instance, New Zealand, the United Kingdom, the United States, Canada, South Africa, and France.

⁵⁰ *Northern Territory National Emergency Response Act 2007* (Cth). The legislation was criticized at the time of enactment by the Human Rights and Equal Opportunity Commission, *Submission to the Senate Legal and Constitutional Committee on the Northern Territory National Response Legislation* (10 August 2007).

⁵¹ See, eg, *M68* (n 22).

⁵² Referendum Council, 'Final Report of the Referendum Council' (Referendum Council, 30 June 2017) <<https://www.referendumcouncil.org.au/final-report>> accessed 14 July 2017(hereafter Referendum Council, 'Final Report').

⁵³ Bicameralism also affects understanding of responsible government at the State level: see *Egan v Willis* (1998) 195 CLR 424. See Chapter 12 'State Constitutions'.

⁵⁴ See *Swearing in of Sir Owen Dixon as Chief Justice* (1952) 85 CLR xi, xiv; Sir Owen Dixon, 'Concerning Judicial Method' (1956) 29 Australian Law Journal 468. See Chapter 23 'Techniques of Adjudication'; Chapter 20 'Judicial Reasoning'.

⁵⁵ See Wen Cheng Chen and Shirley Chi Chu, 'Taking Global Constitutionalism Seriously: A Framework for Discourse' (2016) 11 National Taiwan University Law Review 383.

⁵⁶ Australia thus provides further evidence for the commonality of the influence of 'externalities' on Constitution-making, as suggested by Chaihark Hahm and Sung Ho Kim in relation to their study of Japan and South Korea: Chaihark Hahm and Sung Ho Kim 'To Make "We the People": Constitutional Founding in Postwar Japan and South Korea' (2010) 8 International Journal of Constitutional Law 800(hereafter Hahm and Kim, 'We the People').

⁵⁷ John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (Rev edn, LexisNexis Butterworths 2015) 161–65. A draft agreed by an earlier, unelected, National Australasian Convention 1891 failed in the sense that it never became law, although it influenced the final Constitution.

⁵⁸ Jon Elster, 'Forces and Mechanisms in the Constitution-Making Process' (1995) 45 Duke Law Journal 364, 373. See, eg, *The Australasian Federation Enabling Act (South Australia) 1895*, Pt II.

⁵⁹ The extent of 'popular' involvement should not be overstated for the purposes of contemporary understanding: the right to vote was restricted, in ways that varied across the colonies, by reference to sex, race, and property qualifications: Australian Electoral Commission, 'Federation Fact Sheet 1—The Referendums 1898–1900' (Australian Electoral Commission, 24 March 2011) <http://www.aec.gov.au/about_aec/Publications/Fact_Sheets/factsheet1.htm> accessed 18 July. See Chapter 13 'Legitimacy'.

⁶⁰ For example, *The Australasian Federation Enabling Act (South Australia) 1895*, Pt III.

⁶¹ Quick and Garran, *The Annotated Constitution* (n 57) 223–39.

⁶² *Commonwealth Constitution*, ss 51(xxxviii), 74; arguably also s 2.

⁶³ Again, there is a parallel here with the arguments put by Hahm and Kim, 'We the People' (n 56).

⁶⁴ The British Commonwealth Conference of Nationality and Citizenship 1947, from which followed the *Nationality and Citizenship Act 1948* (Cth).

⁶⁵ *Australian Citizenship (Amendment) Act 1984* (Cth).

⁶⁶ *Commonwealth Electoral Act 1918* (Cth), s 93(1)(b)(ii). See Chapter 14 'Citizenship'.

⁶⁷ *Commonwealth Constitution*, s 51(xix), *Re Patterson; ex parte Taylor* (2001) 207 CLR 391; *Koroitamana v Commonwealth* (2006) 227 CLR 31.

⁶⁸ *Shaw v Minister for Immigration and Multicultural Affairs* (2003) 218 CLR 28.

⁶⁹ *Commonwealth Constitution*, s 44(i); *Sue v Hill* (1999) 199 CLR 462.

⁷⁰ Quick and Garran, *The Annotated Constitution* (n 57) 139, 1215; Cheryl Saunders, 'The Parliament as Partner: A Century of Constitutional Review' in Geoffrey Lindell and Robert Bennett (eds), *Parliament: The Vision in Hindsight* (Federation Press 2001) 454. See Chapter 30 'Design'.

⁷¹ See, eg, Cheryl Saunders, 'Transplants in Public Law' in Mark Elliott, Jason Varuhas, and Shona Wilson Stark (eds), *The Unity of Public Law: Doctrinal, Theoretical and Comparative Perspectives* (Hart Publishing, forthcoming).

⁷² *Commonwealth Constitution*, s 74, excluding 'inter se' questions involving disputes over the boundaries of power between the Commonwealth and the States or the States themselves.

⁷³ *Privy Council (Limitation of Appeals) Act 1968* (Cth). The significance of Privy Council jurisdiction for present purposes had been muted some time before by including Australian judges on Australian cases

⁷⁴ Decisions of the House of Lords ceased to be binding in Australia in 1963: *Parker v R* (1963) 111 CLR 610.

⁷⁵ Cheryl Saunders and Adrienne Stone 'Reference to Foreign Precedents by the Australian High Court: A Matter of Method' in Tania Groppi and Marie-Claire Ponthoreau (eds), *The Use of Foreign Precedents by Constitutional Judges* (Hart Publishing 2013) 14 (hereafter Saunders and Stone, 'Reference to Foreign Precedents').

⁷⁶ *Amalgamated Society of Engineers v Adelaide Steamship Co Ltd (Engineers' Case)* (1920) 28 CLR 129.

⁷⁷ See, eg, the divergent views presented by the United States' Supreme Court in *Roper v Simmons* 543 US 551 (2005).

⁷⁸ Saunders and Stone, 'Reference to Foreign Precedents' (n 75). See Chapter 11 'Comparative Constitutional Law'.

⁷⁹ See *Murphy* (n 6) 1038–39 [37] (French CJ and Bell J); cf 1079 [299]–[300] (Gordon J); *McCloy* (n 6) 269 [255] (Nettle J), 1050 [101] (Gageler J). See Chapter 21 'Standards of Review in Constitutional Review of Legislation'.

⁸⁰ See Chapter 18 'Australia in the International Order'.

⁸¹ See Neil MacCormick, 'Beyond the Sovereign State' (1993) 56 *Modern Law Review* 1; Neil Walker, 'The Idea of Constitutional Pluralism' (2002) 65 *Modern Law Review* 317.

⁸² Cheryl Saunders, 'To Be or Not to Be: The Constitutional Relationship Between New Zealand and Australia' in David Dyzenhaus, Murray Hunt, and Grant Huscroft (eds), *A Simple Common Lawyer: Essays in Honour of Michael Taggart* (Hart Publishing 2009) 251.

⁸³ See, eg, *Tajjour v New South Wales* (2014) 88 ALJR 860, 878–79 (French CJ).

⁸⁴ *Minister of State for Immigration and Ethnic Affairs for Teoh* (1995) 183 CLR 273, 286–87 (Mason CJ and Deane J).

⁸⁵ Commonwealth of Australia, *Common Core Document Incorporating the Fifth Report under the International Covenant on Civil and Political Rights and the Fourth Report under the International Covenant on Economic, Social and Cultural Rights* (June 2006) <https://dfat.gov.au/international-relations/themes/human-rights/Documents/core_doc.pdf> accessed 18 July 2017.

⁸⁶ See, eg, *Nulyarimma v Thompson* (1999) 165 ALR 621, 631 (Wilcox J), 638 (Whitlam J); cf 653 (Merkel J). See generally Gillian Triggs, 'Customary International Law and Australian Law' in M P Ellinghaus, A J Bradbrook, and A J Duggan, *The Emergence of Australian Law* (Butterworths 1989) 376, 381; Anthony Mason 'The Relationship Between International Law and Domestic Law' in Brian Opeskin and Donald Rothwell (eds), *International Law and Australian Federalism* (Melbourne UP 1996) 210, 218.

⁸⁷ *Teoh* (n 84) 287 (Mason CJ and Deane J).

⁸⁸ See, eg, *Al-Kateb v Godwin* (2004) 219 CLR 562, 589–92 [62]–[68] (McHugh J); *Roach v Electoral Commissioner* (2007) 233 CLR 162, 224–25 [181] (Heydon J); cf *Kartinyeri v Commonwealth* (1998) 195 CLR 337, 418 [166] (Kirby J). See Chapter 10 'International Law'.

⁸⁹ Stephen Donaghue, 'Balancing Sovereignty and International Law: The Domestic Impact of International Law in Australia' (1995) 17 *Adelaide Law Review* 213, 214.

⁹⁰ cf *Constitution of the Republic of Singapore* (Singapore, 1999 reprint), Pt III; *La Constitution du 4 octobre 1958* [French Constitution of 4 October 1958], art 53; *Grundgesetz für die Bundesrepublik Deutschland* [Basic Law of the Federal Republic of Germany], art 80(1); *Constitution of the Republic of South Africa Act 1996* (South Africa), s 231(3).

⁹¹ *Commonwealth Constitution*, s 51(xxix). See, eg, *Commonwealth v Tasmania* (1983) 158 CLR 1 ('*Tasmanian Dam Case*'); *Victoria v Commonwealth* (1996) 187 CLR 416 ('*Industrial Relations Case*'); *Queensland v Commonwealth* (1989) 167 CLR 232.

⁹² Anne Twomey, 'International Law and the Executive' in Brian Opeskin and Donald Rothwell (eds), *International Law and Australian Federalism* (Melbourne UP 1996) 69, 71–74; Leslie Zines, 'The Growth of Australian Nationhood and its Effect on the Powers of the Constitution' in Leslie Zines and Geoffrey Sawer (eds), *Commentaries on the Australian Constitution* (Butterworths 1997) **ch 1**.

⁹³ Foreign Affairs, Defence and Trade References Committee, *Blind Agreement* (n 20).

⁹⁴ See Robert French, 'Investor-state Dispute Settlement—A Cut above the Courts?' (Speech delivered to Supreme and Federal Courts Judges' Conference, 9 July 2014, Darwin); Justin Gleeson SC, 'The Increasing Internationalisation of Australian Law' (2017) 28 *Public Law Review* 25; see Chapter 10 'International Law'.

⁹⁵ The courts have played a role in this as well, through rejection of early challenges to the uniform income tax arrangements (*South Australia v The Commonwealth* (1942) 65 CLR 373 ('*First Uniform Tax Case*'); *Victoria v The Commonwealth* ('*Second Uniform Tax Case*') (1957) 99 CLR 575), generous interpretation of the grants power in s 96 (*Victoria v The Commonwealth* (1926) 38 CLR 399) ('*Federal Roads Case*'), and expansive interpretation of the exclusive Commonwealth power to impose duties of excise (*Peterswald v Bartley* (1949) 80 CLR 229). See Chapter 32 'Money'; Chapter 33 'Co-operative Federalism'; Chapter 34 'The Passage Towards Economic Union in Australia's Federation'.

⁹⁶ See Cheryl Saunders, 'Intergovernmental Agreements and the Executive Power' (2005) 16 *Public Law Review* 294.

⁹⁷ *Sue v Hill* (1999) 199 CLR 462; *Barton v The Commonwealth* (1974) 131 CLR 477.

⁹⁸ See *Williams v Commonwealth* (2012) 248 CLR 156 ('*Williams (No 1)*'); *Williams v Commonwealth* (2014) 252 CLR 416 ('*Williams (No 2)*'). See Chapter 26 'Separation of Legislative and Executive Power'; Chapter 32 'Money'.

⁹⁹ See Chapter 38 'Due Process'.

¹⁰⁰ See Chapter 24 'Parliaments'.

¹⁰¹ Australian Electoral Commission, 'Referendum Dates and Results' (Australian Electoral Commission, 24 October 2012) <http://www.aec.gov.au/Elections/referendums/Referendum_Dates_and_Results.htm> accessed 14 July 2017. See Chapter 40 'Political Participation'.

¹⁰² See Chapter 16 'Republicanism'.

¹⁰³ *Western Australia v Commonwealth* (1995) 183 CLR 373, 461 ('*Native Title Act Case*').

¹⁰⁴ See, eg, Overcoming Indigenous Disadvantage Working Group, *Overcoming Indigenous Disadvantage: Key Indicators 2016, Report* (17 November 2016) <<http://www.pc.gov.au/research/ongoing/overcoming-indigenous-disadvantage/2016/report-documents/oid-2016-overcoming-indigenous-disadvantage-key-indicators-2016-report.pdf>> accessed 18 July 2017.

¹⁰⁵ John Howard, 'The Right Time: Constitutional Recognition for Indigenous Australians' (Speech delivered at the Sydney Institute, 11 October 2007).

¹⁰⁶ See, eg, Joint Select Committee on Constitutional Recognition of Aboriginal and Torres Strait Islander Peoples, *Final Report* (June 2015); Expert Panel on Constitutional Recognition of Indigenous Australians, *Recognising Aboriginal and Torres Strait Islander Peoples in the Constitution* (January 2012). See Chapter 1 'First Peoples'.

¹⁰⁷ 2017 National Constitutional Convention, ‘Uluru Statement From the Heart’ (Referendum Council, 26 May 2017) <https://www.referendumcouncil.org.au/sites/default/files/2017-05/Uluru_Statement_From_The_Heart_0.PDF> accessed 14 July 2017; Referendum Council ‘Final Report of the Referendum Council’ (Referendum Council, 30 June 2017) <<https://www.referendumcouncil.org.au/final-report>> accessed 14 July 2017.

¹⁰⁸ Prime Minister of Australia, ‘Response to Referendum Council’s Report on Constitutional Recognition’, 26 October 2017, <<https://www.pm.gov.au/media/2017-10-26/response-referendum-councils-report-constitutional-recognition>> accessed 3 November 2017.

¹⁰⁹ See Chapter 16 ‘Republicanism’.

¹¹⁰ John Warhurst, ‘The Trajectory of the Australian Republic Debate’ (2009) 51 Papers on Parliament <http://www.aph.gov.au/sitecore/content/Home/About_Parliament/Senate/Powers_practice_n_procedures/pops/pop51/warhurst> accessed 14 July 2017.

¹¹¹ *Constitution Alteration (Establishment of Republic) Bill 1999* (Cth).

¹¹² Australian Election Commission ‘1999 Referendum Report and Statistics’ (Australian Electoral Commission, 19 January 2011) <http://www.aec.gov.au/Elections/referendums/1999_Referendum_Reports_Statistics/summary_republic.htm> accessed 14 July 2017.

¹¹³ [2017] HCA 43.

¹¹⁴ [2017] HCA 40.

¹¹⁵ [2017] HCA 33.

¹¹⁶ [2017] HCA 45.

¹¹⁷ [72].

PART I

FOUNDATIONS

CHAPTER 1

FIRST PEOPLES

SEAN BRENNAN AND MEGAN DAVIS

A. INTRODUCTION

ABORIGINAL societies have existed on the Australian continent for an estimated 60,000 years.¹ The Torres Strait Islands off the north-eastern tip of the continent were occupied by Aboriginal people and later by people of Papuan origin around 4,000 years ago.² There are nearly 700,000 Aboriginal and Torres Strait Islander people, around 3 per cent of the Australian population.³ The Constitution makes no reference to these First Peoples or their societies, laws, and cultures.⁴ Beneath that silence is a deeper story of the relationship between First Peoples and the Australian state, and an unresolved challenge for Australia's constitutional future. This chapter will explore that silence and the story below the surface, in the process illuminating the nature of those future challenges. To do so demands attention to legal domains beyond the founding document of 1901, such as legislation and the common law, as well as government policy and practice, and their interplay with the Constitution, in its original and amended form.

We analyse the situation through four prisms: sovereignty and treaty-making, rights and freedoms, political participation and decision-making, and constitutional symbolism. Each section draws on particular events from the past, and the chapter begins with a historical overview to situate those events.

B. BACKGROUND

In the 1890s, when the Constitution was written, the period of frontier violence was largely over and Aboriginal people had been dispossessed of large areas in favour of Europeans. Australia had entered what is known as the ‘Protection era’. Protection policies encouraged the creation of ‘reserves’. These areas, withheld from sale or lease by the Crown, were occupied by Indigenous people but conferred no property rights or security of tenure, and were administered by government officials or as ‘missions’ run by church authorities. Forced movement onto reserves facilitated an administratively convenient concentration of populations, and authorities were moving to intensify legal controls over First Peoples as debates over a new Constitution took place.⁵

In London, the Privy Council had just passed judicial comment on the legal basis for Australian colonization. The judgment in *Cooper v Stuart* was dismissive of the idea that the continent was occupied in 1788 by groups with territory and authority. New South Wales was instead ‘practically unoccupied, without settled inhabitants or settled law, at the time when it was peacefully annexed to the British dominions’.⁶ It was a Eurocentric legal account of colonization that airbrushed away the harsh facts of dispossession and frontier violence. The absence of judicial interest in constitutional pluralism matched the attitude of colonial officials over the preceding century, and particularly from the 1840s, to the operation of Aboriginal systems of law—‘the newcomers treated indigenous culture as irrelevant to the legal organisation of the colony’.⁷ The drafters of the 1890s followed suit. The preamble to the Constitution took for granted the successful and exhaustive assertion of Crown authority over Australia and made no reference to any preceding people or societies.

The creation of a nation in 1901 did not cause Australians to revisit their relationship to the peoples whose lands they had occupied. Rather, the Constitution provided for legal and administrative continuity at the sub-national level in the area of Indigenous affairs. There were two references to First Peoples and both seemed to say that they were of no intrinsic national importance. Section 51(xxvi) excluded Aboriginal people living in the States from Commonwealth jurisdiction under the so-called ‘races power’ and section 127 excluded Aboriginal people from the population headcount

relevant to the distribution of funds and allocation of seats in the Parliament:

51. The Parliament shall ... have power to make laws ... with respect to:

...

(xxvi) the people of any race, other than the aboriginal race in any State, for whom it is deemed necessary to make special laws.

127. In reckoning the numbers of the people of the Commonwealth, or of a State or other part of the Commonwealth, aboriginal natives shall not be counted.

Left constitutionally undisturbed in their administration of Indigenous affairs, the States pursued 'protection' policies heavily weighted with paternalistic controls over children, freedom of movement, marriage, labour, wages, and property.⁸ Legislation conferred power on regulatory authorities such as Protectors, reserve managers, and Welfare Boards. Many Aboriginal people found ways of resisting, subverting, and escaping bureaucratic controls. This was partly because Indigenous affairs was often a neglected policy area and only meagre resources reached these official outposts from the centres of political power. Inattention also meant, however, that local officials could exercise authority over people's lives with little accountability.⁹

While the States were ascendant in Aboriginal affairs, the Commonwealth also exerted influence. After 1911 it acquired the Northern Territory, which had a significant Aboriginal population. Section 122 of the Constitution conferred broad legislative power on the Commonwealth to govern Territories and, by delegated authority, the government made Ordinances regulating that population in ways similar to the States.¹⁰ Intergovernmental conferences kept a degree of national policy alignment in Indigenous affairs. But calls for federal control of Aboriginal affairs fell on deaf ears.

The most powerful force at the time was perhaps political constitutionalism. Aboriginal and Torres Strait Islander people had no Bill of Rights or like constitutional protections to challenge the legislation and bureaucratic authority that frequently dominated their lives. The majoritarian arithmetic of electoral politics, compounded by legal and practical limits on access to the franchise, left them with little leverage over government decision-making.

After the Second World War there was a shift towards ‘Assimilation’ policies that encouraged the socio-cultural absorption of Aboriginal people into wider Australian society.¹¹ This included the incremental repeal of express discrimination against Aboriginal people, which had denied them the right to vote, eligibility for pensions and other entitlements associated with citizenship. It was at the end of this era, in 1967, that the government led by Prime Minister Harold Holt held a referendum to remove section 127 from the Constitution and extend Commonwealth jurisdiction under the races power in section 51(xxvi) to include Aboriginal people living in the States.

By that time, a new political consciousness and identity was emerging within Indigenous communities. Assimilation policies gave little attention to group identity and showed ambivalence about the value of Aboriginal culture.¹² With the formal legal equality for which campaigners from previous generations had fought now coming to fruition, a new generation began to more visibly assert the distinctiveness of First Peoples in Australia, based on a shared history of colonization and their status as original owners.¹³ The advocacy of ‘self-determination’ struck a chord with the Prime Minister who came to power in December 1972, Gough Whitlam, and that label was attached, with debatable accuracy, for more than two decades to Commonwealth Indigenous affairs policy.

The last quarter of the twentieth century saw rapid developments. First Peoples experienced both successes and disappointments, as they pressed for structural change and greater recognition of inherent Indigenous rights. Utilizing its expanded powers after 1967, the Commonwealth massively increased expenditure on Indigenous affairs. It also enacted Indigenous-specific laws, as did some States and Territories under their concurrent constitutional powers over Indigenous affairs, notably in relation to land and cultural heritage. A series of national representative bodies came and went, with the Aboriginal and Torres Strait Islander Commission (ATSIC) having the greatest impact and longevity—it was established in 1990 by legislation reliant on section 51(xxvi).

A landmark event was the High Court’s decision in *Mabo v Queensland (No 2)*¹⁴, involving a claim of traditional ownership of land by Meriam people in the Torres Strait. The proposition that Britain acquired sovereignty over Australia was left undisturbed, but the Court refuted the

assumption that the Crown thereby acquired full ownership of the land. Instead, the pre-existing rights in land held by Aboriginal and Torres Strait Islander groups under their local law and custom continued as a burden on the Crown's 'radical title', though subject to an overriding power of extinguishment without compensation. The government led by Paul Keating achieved passage of the *Native Title Act 1993* (Cth). It protected native title against easy extinguishment by the States and offered some other benefits to Indigenous people, while providing certainty to non-Indigenous property rights and rules for future development that were conducive to the continuation of mining and like activities on Indigenous land. Government consultations about a Social Justice Package in the wake of *Mabo* revealed strong Indigenous support for wider structural reform.¹⁵

The 1990s were in formal terms a decade for 'Reconciliation', a policy initiated by the Commonwealth after it backed away from the promise of a national treaty with Aboriginal people. The Council for Aboriginal Reconciliation (CAR) presided over a range of grassroots and official activities intended to build better mutual understanding between non-Indigenous Australians and First Peoples. By contrast with some countries that have embraced the notion of Reconciliation, however, there was no formal truth or justice element institutionally embedded in the process. In delivering its Final Report in 2000, CAR recommended a treaty process and constitutional amendments, including a racial non-discrimination clause.¹⁶

Keating's successor as Prime Minister from 1996 to 2007, John Howard, opted to see Reconciliation through the prism of addressing socio-economic disadvantage. He rebuffed proposals for a treaty and created a dichotomy between an Indigenous 'rights agenda', which he referred to as 'symbolic' reconciliation, and his preferred 'practical' reconciliation approach. His government shifted policy away from self-determination, watered down the *Native Title Act* and abolished ATSIC in 2005. In 2007, it introduced sweeping and intrusive measures across remote Aboriginal communities in the Northern Territory as part of what became known as the Intervention, in response to serious concerns about child welfare and family violence. After eleven years of the Howard government, constitutional reform had all but disappeared from the political agenda.

It was, however, Howard who then initiated the contemporary debate on constitutional change. He promised, if re-elected, to hold a referendum to recognize Indigenous people in a preamble to the Constitution,¹⁷ but he lost

the October 2007 election. His successor Kevin Rudd did not advance constitutional reform, though in Parliament in 2008 he did deliver a National Apology to Aboriginal and Torres Strait Islander people for past government policies, with a particular focus on the ‘Stolen Generations’ of children removed by authorities from their families.

In 2010, Rudd’s successor Julia Gillard agreed to establish an Expert Panel on Constitutional Recognition of Indigenous Australians. When the Panel reported in January 2012, it recommended a package that included a substantive legal reform, the insertion of a racial non-discrimination clause in the Constitution. It said a new power to replace section 51(xxvi) should refer to ‘Aboriginal and Torres Strait Islander people’ rather than ‘race’ and contain a preambular statement of acknowledgment regarding Indigenous peoples, their heritage and so on. The Panel also recommended a declaratory recognition of Indigenous languages and the repeal of section 25, a provision regarded as defunct and inappropriate. Neither the Gillard government nor its successor, the government led by Tony Abbott, formally responded to the Expert Panel recommendations and both refrained from committing to a particular model, while continuing to express support for ‘constitutional recognition’.

The contemporary debate that John Howard commenced was unresolved after nearly a decade. A basic disagreement over the scope of the term ‘recognition’ underpinned the stalemate between those who would confine it to symbolic textual amendments and the proponents of substantive reforms that addressed the rights of First Peoples or the balance of power as between them and the state. There was a parallel tension between the political constitutionalism long ascendant in Australian law and government and a desire for something offering greater protection to First Peoples as an electoral minority. The debate over constitutional change was jolted back into life and transformed by the outcomes of a deliberative process amongst First Peoples held in 2016–17. Those Regional Dialogues and the Uluru Statement that emerged from them will be discussed later and we now turn to the first of four prisms through which the constitutional situation of First Peoples in Australia will be analysed.

C. SOVEREIGNTY AND TREATY-MAKING

The colonization of occupied territory creates difficult questions about sovereignty when understood as the location of ultimate legal and political authority in a given polity. Whether the legal paradigm used to explain colonization is ‘conquest’, ‘cession’, or ‘settlement’, the reality is that colonizers were intruders who imposed their will upon societies that had pre-existing systems of law and governance. The unilateral motivations for colonization and the involuntary nature of the experience for those in prior occupation set the stage for protracted disagreement over this most fundamental question of where sovereignty subsists. The Constitution is premised on the assumption that Crown sovereignty was effectively asserted over Australia, but it has not put the issue to rest. It is a widely held view amongst Aboriginal people and Torres Strait Islanders that their societies never validly ceded sovereignty to the Crown. The relationship between sovereignty claims, the Constitution, and modern day treaties has consistently featured in recent constitutional debate.

The invisibility in Australian law of Indigenous legal systems persisted for seventy years after Federation,¹⁸ until the decision of Justice Blackburn in *Milirrpum v Nabalco* in 1971. This was the first test case of Aboriginal property rights under the common law. The defendants argued that ‘in the Aboriginal world there was nothing recognizable as law at all’.¹⁹ Based on what the Yolngu plaintiffs had shown him, Justice Blackburn was unimpressed by this argument:

The evidence shows a subtle and elaborate system highly adapted to the country in which the people led their lives, which provided a stable order of society and was remarkably free from the vagaries of personal whim or influence. If ever a system could be called ‘a government of laws, and not of men’, it is that shown in the evidence before me.²⁰

In 1979, Paul Coe, a Wiradjuri man, asserted Aboriginal sovereignty, or recognition within the Australian state as a ‘domestic dependent nation’ (the status attributed to Native American nations by the United States Supreme Court in the nineteenth century).²¹ The High Court denied Coe leave to amend his legal statement of claim to this effect and Gibbs CJ said that the contention ‘that there is in Australia an aboriginal nation exercising sovereignty, even of a limited kind, is quite impossible in law to maintain’.²²

In *Mabo v Queensland (No 2)*, despite rejecting the hypothesis ‘that there was no local law already in existence’,²³ the High Court left intact the doctrine that Australia was a ‘settled’ colony and said that a domestic tribunal could not adjudicate a legal challenge to Crown sovereignty. However, in recognizing ‘native title’, the Court in *Mabo* ‘left room for the continued operation of some local laws or customs among the native people’.²⁴ Justice Brennan also referred to the fiction ‘that there was no sovereign law-maker in the territory of a settled colony before sovereignty was acquired by the Crown’.²⁵

These glimpses in *Mabo* of a concession to the existence of Indigenous sovereignty in 1788, and the willingness to recognize customary law as an operative source of law in the present day, prompted another round of test cases. But the High Court drew a firm line around the common law recognition of Indigenous law, quarantining it to property rights and resisting its spread, for example, into Australian criminal law.²⁶ A post-*Mabo* claim in 1993 for judicial recognition of Indigenous sovereignty or domestic dependent nation status was no more successful than the earlier pre-*Mabo* attempt.²⁷ In a 2002 native title case, three High Court judges nailed the door even more emphatically shut against such extrapolations from *Mabo*, insisting that ‘what the assertion of sovereignty by the British Crown necessarily entailed was that there could thereafter be no parallel law-making system in the territory over which it asserted sovereignty’.²⁸

Some Aboriginal and Torres Strait Islander people look to future validation of their sovereignty claim by an international tribunal. The world’s Indigenous peoples have made significant inroads at the United Nations. Political pressure yielded new processes for scrutinising ‘the way in which states treat indigenous peoples behind the shield of state sovereignty’,²⁹ including the adoption by the General Assembly of the Declaration on the Rights of Indigenous Peoples (UNDRIP) in September 2007. International law, however, remains highly responsive to the concerns of nation-states and their claims to territorial integrity. Much of the discussion in Australia has instead focused on reconstituting arrangements internally, for the exercise of First Peoples’ sovereignty or self-determination within the Australian nation-state.³⁰

Outside the courts, one typical way of addressing the inherently conflictual nature of colonization elsewhere has been treaty-making. The

establishment of a penal colony under the control of a Governor differentiated New South Wales from other British colonies. The earliest British encounters in Australia were ‘well-armed expeditions controlled by the imperial government. The North American colonies and New Zealand, by contrast, were settled first by small, weak groups operating largely outside the reach of the government.’³¹ This early vulnerability provided pragmatic reasons for agreement-making with First Peoples in those places. The distinct pattern of colonization in New South Wales helps explain the absence of treaty-making in Australia.³²

The official mindset, which saw the British arrive in 1788 with the assumption that the Governor was free to commence the immediate alienation of land to settlers and freed convicts, had its own implacable logic that worked itself out through the period of territorial expansion in the nineteenth century. This mindset, which later came to be known by the shorthand Latin phrase *terra nullius* (land belonging to no one), was judicially ratified in *Cooper v Stuart* in 1889. It also helps explain how Australian colonization took a distinctively treaty-free path through the nineteenth century and why, for the Australian Constitution that came into being in 1901, treaties were a non-issue.

The absence of Indigenous consent, however, has powered a series of modern treaty campaigns. They have been fuelled by the loss and legal subordination experienced at the frontier and on the missions and reserves where many were herded during the Protection era. It also draws on dissatisfaction with the conventional legal account of how the British acquired legal authority over occupied territory. The conviction that a modern day settlement is needed to address unresolved issues animated a strong push for a national treaty in the late 1970s. The National Aboriginal Conference, an elected body established by the federal government in 1977, sought a treaty or ‘makarrata’ with the federal government.³³ Although troubled by the word ‘treaty’, the government led by Malcolm Fraser welcomed the makarrata initiative, but eventually the political momentum dissipated and the Hawke government elected in 1983 switched the policy focus to land rights.

The notion of a modern day treaty process has returned to political prominence periodically thereafter. Resistance to non-Aboriginal Australians celebrating 200 years of British colonization led to a resurgence of Indigenous political mobilization in 1988. The Barunga Statement

presented that year to Prime Minister Bob Hawke by Aboriginal people from the Northern Territory included a demand that the government ‘negotiate with us a Treaty recognising our prior ownership, continued occupation and sovereignty and affirming our human rights and freedom’.³⁴ Hawke responded that there would be a treaty but, like his promise of national land rights legislation, he later abandoned the commitment.

The Final Report of the Council for Aboriginal Reconciliation in 2000 also urged ‘agreements or treaties’. The recommendation was rejected by Prime Minister John Howard. His attachment to a monistic view of sovereignty and resistance to such modern settlement processes was captured in the insistence that ‘a nation ... does not make a treaty with itself’.³⁵

After the delivery of the Expert Panel report on constitutional change in 2012, which included a chapter on treaty and agreement-making reflecting the primary aspiration of Indigenous communities during its consultations,³⁶ pressure again escalated for a treaty process. For the first time State and Territory governments opened the door to such negotiations in Victoria and South Australia. The Uluru Statement issued from a First Nations Constitutional Convention held in May 2017 called for a treaty process overseen by a newly legislated Makarrata Commission, and that will be discussed in the conclusion to this chapter.

No treaty process in Australia has advanced far enough to illuminate what such an agreement might look like. But frequently First Peoples speak of a settlement addressing ‘Unfinished Business’: the unresolved issues of the past, the pressing issues of the present, and a new basis for the relationship between government and First Peoples into the future. The topics for negotiation contemplated include recognition of Indigenous jurisdiction over agreed policy areas; settlement of land claims; and reparations for past wrongs. Frequently First Peoples invoke the plural ‘treaties’, on the basis that local or regional settlements accord with Indigenous norms of governance that connect to traditional territory—with perhaps a national framework providing negotiation guidelines and minimum standards.

Large unanswered questions remain about form, content, and legal effect, as well as what political spark would motivate a federal government to follow through with such a complex undertaking. But with the issue returning repeatedly to the political agenda since the 1970s, it is possible to

imagine a national treaty process in Australia, and that one day it could be recognized in the Australian Constitution. A Senate Committee, constituted during makarrata discussions under the Fraser government, reported in 1983 on a constitutional amendment that expressly authorized agreement-making, spelt out a non-exhaustive description of negotiation topics, and confirmed that such agreements could be given overriding legal effect.³⁷

If such agreements come to fruition, they may or may not involve explicit recognition of Indigenous sovereignty. But the issue will likely need to be addressed in some way. The monolithic notion of sovereignty as authority located in a single set of hands may once have resembled reality.³⁸ However, in an era of globalization, supranational institutions such as the World Trade Organization have put qualifications on national sovereignty. Australia shared its authority in the external world with an Imperial power long after 1901, arguably gaining full legal independence only in 1986.³⁹ Internally, its federal Constitution has divided authority between a national government and the States, and allocated it across legislative, executive, and judicial branches. In these circumstances, a more modest and pluralistic conception of shared sovereignty has gained intellectual traction. It remains to be seen whether politics will loosen the legally absolute conception of Crown sovereignty espoused by the High Court. Perhaps through mutual recognition that the other side *asserts* its sovereign authority to enter into agreement-making with the other, both sides might navigate the question of sovereignty without it becoming a roadblock to a binding legal compact, even if behind those words there is an agreement to disagree.⁴⁰

D. RIGHTS AND FREEDOMS

The preference for political constitutionalism amongst drafters of the Australian Constitution in the 1890s meant they were reluctant to entrench judicially enforceable rights and freedoms. The nationalism of politicians was expressly discriminatory towards people of colour,⁴¹ so constitutional commitments to a bill of rights or equal protection before the law were also inconsistent with the racialized politics of the day. Only a handful of express rights or freedoms found their way into the text of the Australian Constitution. In the tradition of AV Dicey, the rest was left to Parliament,

tempered by the conventions of responsible government, periodic elections, and the common law.

Apart from the effect on Aboriginal and Torres Strait Islander people of this *general* approach to rights protection, there is the additional question of *specific* rights as a group or collective. Has Australia legally recognized inherent rights that accrue to Aboriginal and Torres Strait Islander peoples by virtue of being First Peoples for the land? While the text of the Constitution is relevant in answering these questions, it is mainly for its interplay with significant statutory and common law developments.

At the start of the twentieth century, Indigenous people were regarded as subjects of the Queen and, in that loosely defined sense, they formed an undifferentiated part of an Australian community. In reality, as a marginalized minority in social, political, and economic terms, they were in a far more vulnerable position. For decades after 1901, First Peoples struggled politically to achieve formal equality in the basic entitlements enjoyed by other Australians. They were often, as Chesterman and Galligan put it, ‘citizens without rights’.⁴²

Many rights were afforded to Australians not by express recognition in the Constitution but, in classically liberal terms, by the unwillingness of parliaments to intrude upon the liberty of individuals to exercise basic freedoms in their daily lives. These civil liberties—such as freedom of movement, work, and family life—had some protection under the common law. For example, judges might interpret statutes to ward off excessive intrusion upon them by the state. Here the equal enjoyment of basic, if uncodified, ‘citizenship rights’ by First Peoples was hostage to State-by-State variations in legislation and explicit discrimination on the basis of race, particularly until the mid-twentieth century. For example, under Queensland legislation, the Minister could direct the movement of an Aboriginal person; wages, aside from some ‘pocket-money’, were paid to the district Protector; and Aboriginal women needed written permission before marrying a non-Aboriginal man. Local police and officials who implemented the Act were given broad discretions. This Queensland legislation was ‘more or less replicated in three jurisdictions’.⁴³

Other rights arise from government action or inscription in the law. In a Benthamite culture that emphasized utilitarianism and legalism,⁴⁴ federal politicians from the outset in 1901 moved to legislate entitlements such as old age pensions, other forms of social security, carefully defined

workplace pay and conditions, and eventually universal health care. Together they constituted the unentrenched realization of socio-economic rights through legislation on a significant scale. Indigenous entitlement to most federal social security benefits, however, followed a pattern across the twentieth century: ‘aboriginal natives’ were initially excluded, eligibility was later broadened to include those in possession of a State or Territory exemption certificate (1942), and then all Aboriginal people other than the ‘nomadic or primitive’ (1960), before the race-based restrictions were entirely dismantled in 1966.⁴⁵

Faced with the unequal enjoyment of civil liberties at common law and citizenship rights under statute, the Constitution was of no use to Aboriginal and Torres Strait Islander people. There was no entrenched guarantee of equality. As discussed later, even the apparent promise of protection for the right to vote in section 41 proved elusive. It was changing social attitudes and political campaigning that caused the eventual elimination of express discrimination and, even then, the struggle for formal equality continued past the mid-twentieth century, particularly in Queensland.⁴⁶ With the eradication of formal discrimination, the legal questions by the late 1960s became more complex. Rights to land and greater control in one’s daily life had always been core concerns for Indigenous advocates. They now assumed new prominence and the Australian legal system was forced to grapple with claims for recognition of inherent rights distinctive to Indigenous peoples, such as traditional rights to land and self-determination.

From the 1970s to the 1990s, First Peoples made progress on these claims through the common law and through legislation, as they switched back and forward between test case litigation and pressure for reform in the political arena. In terms of property rights, legislation delivered substantial gains in recovering control over lost territory. In jurisdictions such as the Northern Territory and South Australia, these laws conferred title on groups in recognition of ongoing rights under their traditional law. By contrast in New South Wales, where the impacts of colonization hit earliest and hardest, statutory land rights were compensation for the expropriation of Aboriginal land during colonization. An early attempt to achieve common law recognition of pre-existing rights to land was defeated in 1971 in *Milirrpum v Nabalco*.⁴⁷ In the 1980s, the Hawke government’s promise to legislate for national land rights was abandoned in the face of political and

mining industry pressure. Eventually, ninety-one years after Federation and more than 200 years after a colony was founded at Sydney, the High Court gave national recognition to inherent Indigenous property rights through the concept of ‘native title’ in *Mabo (No 2)*.⁴⁸

By the late twentieth century, because of these significant developments in statute and the common law, the Constitution began to have greater traction for First Peoples. The *Racial Discrimination Act 1975* (Cth) (RDA), which incorporated international non-discrimination law into statute, enabled First Peoples to capitalize on the supremacy of federal law under section 109 of the Constitution. This put new disciplines on the States in their conduct towards Indigenous people. By taking a constitutional challenge to the High Court in 1982, John Koowarta and Wik people from Cape York overrode a Queensland Cabinet decision refusing to transfer land to Aboriginal groups.⁴⁹ A few years later, the RDA nullified Queensland’s attempt to bring the *Mabo* litigation to an end by extinguishment legislation.⁵⁰ After the *Mabo* judgment was delivered, Aboriginal groups, by relying on federal statutes and section 109 of the Constitution, again thwarted State legislation aimed at diminishing their newly recognized rights.⁵¹

The general protection offered to property rights in section 51(xxxi) of the Constitution—a guarantee of ‘just terms’ in the case of forced federal acquisition—became relevant for First Peoples with the growing salience of native title and Indigenous land rights under statute and the common law. In drafting legislation that responded to *Mabo* in 1992, the Commonwealth ensured that, in defined circumstances, the impairment or extinguishment of native title attracted ‘just terms’ compensation.⁵² In 2009 the High Court confirmed that section 51(xxxi) also applies to federal land rights legislation in the Northern Territory that confers fee simple titles on Aboriginal traditional owners.⁵³

One of the other rare rights provisions in the Constitution is section 116, offering legal protections regarding religion. Future litigation may test whether, as two judges have suggested, section 116 applies to the shared practices and beliefs of Aboriginal people.⁵⁴ The High Court has placed particular significance in native title law on the spiritual nature of Aboriginal connection to land.⁵⁵

For much of its history, then, the Australian Constitution was of little or no benefit to First Peoples regarding the enjoyment of rights and freedoms. Some generally applicable provisions have become more meaningful to First Peoples, particularly as developments in statute and common law have recognized inherent Indigenous entitlements. But the absence of an equality guarantee leaves the door open to federal politicians who wish to suspend anti-discrimination legislation, as native title amendments in 1998 and the Northern Territory Intervention in 2007 made clear. Advocacy of a racial non-discrimination clause for the Australian Constitution continues to encounter the same resistance to judicially enforceable rights guarantees that was evident in the 1890s.⁵⁶

Australia has endorsed the UNDRIP and it forms a part of the general corpus of international law that may be drawn upon in interpreting statutes, but its wider influence is undetermined. For the moment there is no prospect that Australia will follow the lead of Canada in 1982 by embracing a generalized and explicit form of constitutional protection for Indigenous rights in the Constitution.

E. PARTICIPATION AND DECISION-MAKING

In the same way that the Australian Constitution provides a formal legal framework in which authority is exercised by legislative, executive, and judicial institutions, First Peoples' authority is asserted and exercised from within Indigenous legal frameworks. The assertion and exercise of this inherent Indigenous authority has received limited and piecemeal recognition in Australian law and governance since Federation and none in the Constitution itself.

Historically, Paul McHugh points out that, as against comparable Anglophone settler societies, Australia was distinctive for the steadfast non-recognition of Indigenous authority. He wrote that statutes prior to the 1967 referendum 'took an implicit view of Aborigines as an unorganized collection of individuals ... There was never any sustained attempt to constitute the Aboriginal polity through law even for the purposes of convenience—such as getting their land—or control. Thus the 'tribe' of the Chief Justice Marshall's American Supreme Court, the 'band' of Canada's Indian Act and the re-casting of the Maori *hapu* into the tenancy in common

of the Native Land Acts had no Australian counterpart.’⁵⁷ That legacy made latter-day recognition of Indigenous jurisdiction an even more uphill battle than elsewhere.

At the same time, in the mainstream political process, voting inequality interfered with individual Indigenous participation at the most basic level of Australian democracy. After 1901, one of the federal Parliament’s first laws excluded from the Commonwealth franchise ‘aboriginal native[s] of Australia ... unless so entitled under Section 41 of the Constitution’.⁵⁸ Where Aboriginal people already had the vote at State level in four jurisdictions in 1901, section 41 prevented exclusion by Commonwealth law from the federal franchise. Despite its ostensibly prospective wording, government lawyers adopted a ‘transitional’ interpretation of section 41 (later accepted by the High Court⁵⁹) that confined it to those entitled to vote in 1901. The beneficial effect of section 41 thus waned as those originally enfranchised voters aged and died. The Commonwealth franchise was only fully extended to Indigenous people by legislation in 1962 and it was 1971 before Australia had its first Indigenous member of federal Parliament, Senator Neville Bonner. In 2017 there were four Indigenous incumbents.⁶⁰

At a sub-national level, Indigenous activism in the early twentieth century led to loose alliances and organizations aimed at agitating on Indigenous rights and political participation, however, these did not mobilize into national movements.⁶¹ From the late 1950s, bodies emerged that would pave the way for later political organizations and an Indigenous voice at the national level.⁶²

The Federal Council for the Advancement of Aborigines and Torres Strait Islanders (FCAATSI), a civil society organization, was created to facilitate interstate co-operation in advancing Indigenous rights, and included Indigenous and non-Indigenous members.⁶³ FCAATSI advocated for fundamental citizenship rights for Indigenous peoples, including civil and political rights and equal pay.⁶⁴ It also led a successful campaign for federal constitutional reform, which culminated in the 1967 referendum recording the highest ‘Yes’ vote in Australian history (90.77 per cent).⁶⁵

Despite the success of the 1967 referendum, FCAATSI faced criticism for lacking ‘grass roots support’ from Aboriginal people.⁶⁶ It fractured in 1970 because of tension over non-Aboriginal control and was soon eclipsed

by a proliferation of Indigenous led and run organizations.⁶⁷ With the election of the Whitlam government in 1972, the Commonwealth adopted a policy of self-determination aimed at improving the situation of Aboriginal and Torres Strait Islander people by giving them greater decision-making power over their own affairs.⁶⁸ This led to the creation of an Indigenous domain whereby the Indigenous community would deliver services to their own people through the establishment of community-controlled medical, legal, and other organizations. This delivered a degree of autonomy, subject to the regulatory compliance associated with government funding. It also spoke to the magnitude of discrimination that Aboriginal people faced in the broader community. There was a widespread belief in the Indigenous community that the successful referendum had not impacted upon the attitudes of many non-Indigenous Australians towards First Peoples.

A significant institutional development in 1973 was the creation of the National Aboriginal Consultative Committee (NACC), a ministerial advisory body of forty-one Aboriginal and Torres Strait Islander representatives elected by region.⁶⁹ The era also saw the recruitment of Aboriginal bureaucrats to the Australian public service and the Aboriginal protest movement was 'severely blunted' as many activists became public servants implementing the new policies of service delivery.⁷⁰

A review commissioned by the new Fraser government in 1976 found that the formal activities of the NACC were little known to most Aboriginal people and it did not effectively advise the Minister.⁷¹ The review also highlighted tensions between urban Aboriginal people, rural populations, and remote people living more traditional lifestyles.⁷²

The NACC was replaced in 1977 by the National Aboriginal Conference (NAC). Elected representatives from thirty-five (later thirty-six) regional electorates were grouped into State branches from which a smaller national executive committee was also formed. The NAC was the first Aboriginal organization to be incorporated under the *Aboriginal Councils and Associations Act 1976* (Cth).⁷³ It participated in political advocacy on a wide-ranging agenda including social security, land rights, health, the right to self-determination, institutional racism, and racial discrimination.⁷⁴ Importantly, the NAC advocated for a makarrata or treaty between Aboriginal people and the state.⁷⁵

After a critical review found political, administrative, and financial flaws, the Hawke Labor government abolished the NAC. Two other factors said to have contributed to the NAC's downfall were a lack of government funding impeding its capacity to be an effective advocate for indigenous peoples and the imposed structure of the corporate form, alien to Aboriginal culture.⁷⁶ The government announced that it would again consult the Indigenous community with a view to establishing a new extra-parliamentary body to represent Indigenous peoples.

ATSIC was designed after more than 500 preliminary meetings, and after the responsible Minister Gerry Hand visited and spoke with 6,000 Aboriginal and Torres Strait Islander people.⁷⁷ It took fourteen months for the Bill to pass through Parliament. The *Aboriginal and Torres Strait Islander Commission Act 1989* (Cth) (*ATSIC Act*), empowered ATSIC as a statutory body, with a range of representative and other roles. There were thirty-five elected Regional Councils plus one Regional Authority for the Torres Strait, and zonal representatives elected from those bodies constituted a seventeen-person national board.

The objects of the *ATSIC Act* were to ensure maximum participation of Aboriginal and Torres Strait Islander people in government policy formulation and implementation; to promote Indigenous self-management and self-sufficiency; to further Indigenous economic, social, and cultural development; and to ensure co-ordination of Commonwealth, State, Territory, and local government policy affecting Indigenous people.⁷⁸ Its statutory basis and capacity to decide the allocation of public resources differentiated it from the NAC and NACC.

ATSIC was alternatively lauded as 'innovative'⁷⁹ and faulted as an 'amalgam'⁸⁰ because it had dual roles as a representative body accountable to Indigenous peoples and as an administrative body that formed part of the federal government. In its representative role, ATSIC advised governments at all levels on Indigenous issues, and advocated for the recognition of Indigenous rights regionally, nationally, and internationally. The administrative function of ATSIC was overseen by a Chief Executive Officer who was appointed by the Minister for Aboriginal Affairs. It oversaw programme and service delivery, which involved implementing ATSIC Board decisions and administering grants and funding to service

providers. It also provided administrative support to the elected representatives.

In 2003, in order to insert a 'separation of powers' between policy development and implementation, the Howard government split ATSIC into two arms, establishing Aboriginal and Torres Strait Islander Services (ATSIS) to administer ATSIC programmes, separate from the elected representative arm. This pre-empted a review of ATSIC then underway.⁸¹ The review subsequently recommended various reforms but the government, with bipartisan support, instead abolished ATSIC in 2005 (though the Regional Authority for the Torres Strait survived).⁸² The removal of a representative body with statutory functions and decision-making power severely diminished Aboriginal participation in the Australian polity. Attempts at self-determination and representation again reverted to heavy reliance on incorporation legislation, a distinctive feature of the Australian experience compared with other Indigenous jurisdictions. Whatever its merits in terms of autonomy or independence from direct government control, the dominance of the corporate form may have impeded wider public recognition of First Nations groupings as polities, entitled to exercise inherent jurisdiction.

Incorporation was again a feature when the Rudd government moved to fill the gap in political participation and decision-making left by the abolition of ATSIC. This process began in 2008 and culminated in the formation of a company limited by guarantee registered as the National Congress of Australia's First Peoples, as an advocacy body. The Congress has three chambers, representing in turn individuals, Indigenous organizations, and national Indigenous peak bodies. One of the limitations of the Congress has been its reliance on government funding. If the government were to withdraw funding, as occurred with the NAC, then Congress would likely become insolvent and be wound up. Situated outside the system of government, Congress can also be treated by government like another stakeholder, with no legal requirement to take account of its views.

In 2015 a Referendum Council was established by Prime Minister Turnbull to bring to a conclusion the debate over Indigenous 'constitutional recognition' that had been running since 2007. As part of that Council's work, the Aboriginal and Torres Strait Islander members conducted a deliberative dialogue process with Indigenous communities in order to better understand what form of recognition was meaningful to them. The

dialogues were themselves a novel exercise in Indigenous political participation.⁸³ A frequent topic of discussion at the dialogues was the paucity of decision-making across the country on Indigenous issues by Indigenous peoples themselves. The First Nations Constitutional Convention at Uluru, which concluded the deliberative process, called for a ‘Voice to the Parliament’ to be enshrined in the Constitution, meaning a representative advisory body that would be consulted by the federal Parliament and the Commonwealth public service on issues that impact upon Indigenous communities. The participants at Uluru and in the regional dialogues were adamant that the Voice needed to be a government-funded public institution that has some decision-making authority and mandates Aboriginal and Torres Strait Islander participation in parliamentary and bureaucratic decision-making. A key influence on the decision-making at Uluru was the UNDRIP. The UNDRIP contains more than twenty general provisions pertaining to Indigenous peoples and decision-making, political participation of that kind being crucial to the enjoyment of many other human rights.

F. CONSTITUTIONAL SYMBOLISM

Aside from its direct legal operation, a written constitution unavoidably has symbolic significance. This can be very overt, especially if its authors choose to espouse values, express ‘higher law’ aspirations,⁸⁴ or affirm rights. It can also be more subtle or indirect. Even documents that content themselves with structuring the allocation of power across governmental institutions communicate value choices. Discerning the symbolism in a Constitution also depends on interpretation and so it can vary over historical time and depend upon the standpoint of the interpreter.

The drafters of the Australian Constitution did not choose the path of heroic philosophising or urging the achievement of high ideals, and the document is mostly dry, technical, and prosaic. This ‘small brown bird’ of a Constitution,⁸⁵ however, is far from value-neutral. Technical choices reflect deeper commitments and, as Arcioni and Stone have said, the symbolic significance of its text and structure (as judicially interpreted) should not be underestimated.⁸⁶ The symbolic dimension of the Australian Constitution and its treatment of First Peoples will be examined across three periods in

history: the creation of the Commonwealth in 1901, the 1967 referendum, and the decade of debate over constitutional reform after 2007.

1. Symbolism and the Original Constitution

What symbolic significance might we derive from the deliberative work done in the 1890s? First, there is an unmindfulness about First Peoples. Though race, especially as an immigration issue, was politically very prominent in the constitutional drafting decade of the 1890s, the Convention debates reveal that the authors of the Constitution were not particularly exercised about the people who had been in occupation when the British arrived.⁸⁷ In the repertoire of public policy approaches in Indigenous affairs over succeeding decades, apathy or indifference⁸⁸ has continued to co-exist or alternate with other tendencies, from active exclusion and authoritarian control through to more benign, if sometimes paternalistic, reformism.

The preamble to the Constitution, for example, referred to the ‘people’ of the colonies who agreed to unite in one indissoluble Commonwealth, but not to the societies that pre-existed them by perhaps 2,000 generations. That omission symbolically reflects ‘values ... found in the preexisting legal order’,⁸⁹ notably the mindset which has come to be known as *terra nullius*.

If references to ‘the people’ are understood to embody in a symbolic sense ‘the constitutional community’⁹⁰ that the Constitution seeks to recognize, unite, and govern, then section 127 powerfully communicated a sense that First Peoples were outsiders to the constitutional settlement. The practical motivation for the provision, headed ‘Aborigines not to be counted in reckoning population’, may not have been to deny personhood,⁹¹ but even at the time some colonial politicians saw in it an insult to the humanity of Aboriginal people.⁹²

The complication is that once other aspects of the Constitution, the federal system, and wider realities are taken into account, the perception of constitutional exclusion has to be placed alongside other legal and symbolic ideas present at the same time. There was, first, the active exercise of sovereignty authority over First Peoples then going on—drafters would have been aware that legal regulation of Aboriginal people was actually intensifying at the time.⁹³ There is also the puzzle of section 25 of the

Constitution, which had a complicated and overlapping relationship with section 127 in the area of calculating federal representation for each State. Section 25 effectively penalized a State for having electoral laws that excluded groups from the franchise on the basis of race. The symbolic significance of the disincentive in section 25 would appear to have been greater racial inclusiveness. But in practical terms section 127 cancelled out the potential for section 25 to promote Indigenous enfranchisement and, in any case, drafters may have had federalist rather than anti-racist motivations in mind.⁹⁴

The other reference to Aboriginal people in the Constitution was in section 51(xxvi). In giving the Commonwealth power to make special laws deemed necessary for the people of a particular race, the drafters included the proviso ‘other than the aboriginal race in any state’. The records of the Constitutional Convention debates are silent on why the drafters did so. The effect was to leave governmental authority over Indigenous affairs with the colonies that had become States in the new federation. In symbolic terms, and in contrast to the United States and Canada (both former British colonies in North America where federal jurisdiction applied), there was no felt national responsibility in relation to First Peoples. Whether, as a matter of history, that should be interpreted as indifference or a more deliberate commitment on questions of federalism is unclear.⁹⁵ What was clear though was that this explicit exclusion of any reference to Aboriginal people was informed by racial theories that dominated Australia at the time including the sentiment that the Aboriginal race were dying and that the States would ‘smooth the dying pillow’. As the twentieth century proceeded, social attitudes and legal policy towards Aboriginal people began to change, to the point that a referendum was held in 1967 to amend the Constitution.

2. Symbolism and the 1967 Referendum

The ‘Aborigines’ referendum in May 1967, as noted earlier, involved the removal of section 127 and the conferral on the Commonwealth of national law-making authority in Indigenous affairs by amendment of the races power. The technical specifics of the referendum regarding Aboriginal people appear to have been secondary to a more generalized sentiment: that by saying ‘Yes’, voters were acting in a positive way towards Aboriginal people. An official ‘Yes’ case was distributed to voters that advocated

support for the proposed amendments to section 127 and section 51(xxvi). It encapsulated the effect of each in a way that combined a technical operation with these positive sentiments.⁹⁶ There was no dissenting vote in Parliament on the proposed amendments and the ‘Yes’ case won with a record vote.

The seeds for a later shift in the symbolic meaning of the referendum, however, were already present. They were in the ambiguity of using section 51(xxvi) as the vehicle for the extension of Commonwealth power. As former Chief Justice of the High Court of Australia Robert French has written extra-judicially:

The debate leading up to the 1967 amendment to s 51(xxvi) was apparently informed by exclusively beneficial objectives with respect to Aboriginal people. ... A tension immediately arose between these beneficial objectives and the predominantly negative discrimination envisaged by the drafters of the original provision.⁹⁷

That tension took some decades to fully surface. The default understanding of the amendment was that it would enable the fulfilment of those ‘beneficial objectives’. That was validated in a practical sense when the Commonwealth subsequently utilized the power for legislation that delivered benefits to Aboriginal and Torres Strait Islander people, particularly after the election in 1972 of the reformist government led by Gough Whitlam and in 1975 of his successor as Prime Minister, Malcolm Fraser.

That resulted in Indigenous-specific legislation such as the *Aboriginal Corporations and Associations Act 1976* (Cth), a bespoke statute for incorporation of Indigenous organizations, and the *Aboriginal Land Rights (Northern Territory) Act 1976* (Cth), which created powerful representative organizations, conferred strong-form legal ownership over large tracts of Northern Territory land on Aboriginal traditional owners,⁹⁸ and made development on that Aboriginal land conditional on the informed consent of the traditional owners. Later governments followed, for example with a national law for the last-resort protection of Aboriginal and Torres Strait Islander cultural heritage,⁹⁹ the legislation establishing ATSIC as a national and regional representative body with direct links into the structure of Australian government, and in the *Native Title Act 1993* (Cth) to enshrine the High Court’s recognition of native title in the *Mabo Case* and protect

against State governments derogating from this newly-recognized property right.¹⁰⁰

In symbolic terms, the exercise of this amended power altered the character of Australian law and politics. Australians became more familiar with the legal and institutional recognition of First Peoples as holders of inherent rights. These laws also showed that power could be redistributed, away from what had essentially been White monopoly control of Indigenous affairs.

The notion that 1967 was a blend of benign symbolism and positive law-making intent was captured by Brennan J in 1983:

No doubt par (xxvi) in its original form was thought to authorize the making of laws discriminating adversely against particular racial groups ... The approval of the proposed law for the amendment of par (xxvi) ... was an affirmation of the will of the Australian people that the odious policies of oppression and neglect of Aboriginal citizens were to be at an end, and that the primary object of the power is beneficial.¹⁰¹

The words ‘primary object of the power’ were, however, a tell-tale sign: while sentiment favoured a beneficial interpretation of s 51(xxvi), a possibility remained that the power could be used adversely to Aboriginal and Torres Strait Islander people.

This hypothetical possibility was made real when the Commonwealth legislated in 1997 to partially repeal the *Aboriginal and Torres Strait Islander Heritage Protection Act 1976* (Cth). This helped free a bridge development to proceed at Hindmarsh Island in South Australia, over objections from Ngarrindjeri women that it would violate a sacred site.¹⁰² A constitutional challenge to the legislation in *Kartinyeri v Commonwealth*¹⁰³ was effectively a test of whether the positive sentiment behind the 1967 referendum could sweep aside the ambiguities of having relied on section 51(xxvi) as the vehicle for constitutional reform.

The answer from *Kartinyeri* was made somewhat oblique by its particular circumstances: the partial repeal of the law meant the case could be analysed in terms of parliamentary sovereignty and the constitutional ability of a legislature to undo what it had done, regardless of the head of power. By a five to one margin, the High Court found that the law was valid for this reason. Two judges stopped there and the Court split several ways in its more general comments about the power. However, orthodox legal opinion favours the view that the races power supports laws adverse to people of a particular race including, after 1967, Aboriginal and Torres

Strait Islander people.¹⁰⁴ Notably Gaudron J, a judge earlier attracted by a benefit-only interpretation,¹⁰⁵ concluded that the 1967 referendum was insufficient to displace an original and inherent capacity for adverse operation.¹⁰⁶

First Peoples were put on notice that the power in section 51(xxvi) had this adverse potential in the post-1967 era. The fortieth anniversary of the referendum around the same time triggered a historical reappraisal of the event. Historians sought to dispel certain myths, including that 1967 conferred citizenship on Aboriginal people or had given them the vote, both of which had occurred earlier through legislation. Bringing greater legal precision to the discussion was part of a general shift towards a more hard-headed assessment of 1967 and also its symbolic significance. Clearly it retained some positive expressive power, with its general message of greater inclusion, and the campaigning success of Aboriginal organizations in winning the support of Australian voters in record numbers was a source of pride and celebration. But the conflation of the referendum changes with other legal reforms, such as those relating to citizenship and the vote, suggested a risk that an exaggerated symbolism could swamp accurate analysis.

Commentators such as Marcia Langton have also identified a damaging symbolism in the constitutional association of First Peoples with ‘race’. Langton said that ‘defining Aboriginal people as a “race” ... sets up the conditions for Indigenous people to be treated not just as different, but also exceptional and inherently incapable of joining the Australian polity and society’.¹⁰⁷ The risk is that ‘entrenched racial thinking’¹⁰⁸ hampers the attempt of First Peoples to effect a re-conceptualization of their status. It makes it easier for non-Indigenous Australians to consider First Peoples as merely one of a range of minorities making claims upon the majority, and the terminology of ‘race’, rather than a distinctive First Peoples status, helps obscure truth-telling about colonization and its consequences.

A different symbolic dimension also came to the fore in the decades after 1967. In an era when, outside the Constitution, law and policy was coming to recognize the distinctive identity and entitlements of First Peoples, the Constitution itself was, after the referendum, silent as to their existence.

For many (especially non-Aboriginal) people, the 1967 referendum can stand as one of the few triumphs in an otherwise bleak story of referendum

failure and perhaps more subtly function as a redemptive gesture after a harsh history of colonization. But particularly from the late 1990s, awareness grew within Aboriginal and Torres Strait Islander communities that the legacy of 1967 was complex and ambiguous.

3. Symbolism and the Contemporary Debate

This revisionist thinking intensified in the early 2000s, following a shift in government policy towards more coercive and intrusive measures. This was epitomized by the Commonwealth's Northern Territory Intervention in 2007.¹⁰⁹ Aboriginal people living in those communities impacted by the Intervention had not been consulted about these reforms, which were initially implemented using military personnel, and many regarded the reforms in areas such as social security and access to alcohol as a form of neo-paternalism that echoed the Protection era. Whether or not that oversimplified the situation, the perception was that Indigenous empowerment and recognition of inherent rights were giving way to a period of reversal and disempowerment. The apparent fragility of some advances made in the late twentieth century and the sense that once more Aboriginal people could be singled out for adverse treatment drew attention to silences and omissions in the Constitution, and further diminished the positive symbolism of 1967.

It was in this context, a matter of months after introducing the Intervention, that Prime Minister John Howard launched the contemporary era of debate over constitutional reform, with his proposal for a preamble recognizing Indigenous people. Howard was defeated at the 2007 election but, for many Australians, the association of constitutional change exclusively with textual symbolism persisted. The idea of inserting text in the Constitution that was symbolically (but not legally) significant gained traction at a sub-national level. Between 2004 and 2016 all six States added provisions to their Constitutions that to varying degrees acknowledged Indigenous people, their status, their relationship to land, and their ongoing contribution to the State. The symbolic power of these declaratory provisions was undercut by the inclusion (except in Western Australia and Tasmania) of a 'no legal effect' clause, which has been described as 'a giving and taking at the same time'.¹¹⁰

The package of constitutional reforms recommended by the Expert Panel to the Gillard government in 2012 included the symbolic measure of a statement of acknowledgment inside a new legislative power that would replace the races power. Conservative commentators expressed strong objections in the media to the Panel's primary recommendation for substantive constitutional change: the insertion of a racial non-discrimination clause. As noted earlier, this reflected a strong re-assertion of political constitutionalism and antipathy to judicially enforceable rights. Governments remained ostensibly non-committal about the precise form of a referendum proposal. But a strong impression built up that federal politicians, especially from the centre-right Coalition parties, would not support a racial non-discrimination clause. And history indicated that proposals which lack bipartisan political support have no prospect of succeeding at a referendum. This helped reinforce a perception for many that only symbolic change would be deemed politically acceptable.

In the absence of a decision from government, the debate over constitutional change lost momentum in the mid-2010s. Meanwhile the association of 'constitutional recognition' with symbolism stirred ever stronger resistance within the very communities which the reform purported to address. First Peoples, aware that the political will to enact intrusive and paternalistic measures had survived the 1967 referendum, pushed back against proposals based solely on textual symbolism. At a meeting in 2015 with the Prime Minister and Leader of the Opposition, Aboriginal and Torres Strait Islander attendees insisted on reform that went beyond symbolism:

A minimalist approach that provides preambular recognition, removes section 25 and moderates the races power (section 51(xxvi)) does not go far enough and would not be acceptable to Aboriginal and Torres Strait Islander peoples.¹¹¹

The emergent message was that if energy was to be channelled into a referendum, the focus should primarily be on substantive change to the dynamics of law-making and the structural way in which governments relate to First Nations.

For almost a decade after 2007, this stop-start debate continued without resolution. Matters were brought to a head when the unprecedented process of deliberative dialogues for Aboriginal and Torres Strait Islander people was introduced. This series of region-by-region gatherings was held around Australia in 2016–17. The process was Indigenous designed and led, with

the support of the Referendum Council, an advisory body appointed by the Commonwealth government. Elected delegates from each Regional Dialogue gathered at Uluru in central Australia in May 2017 and at the end of this First Nations Constitutional Convention they issued the Uluru Statement from the Heart.

The substance of the Uluru Statement is discussed below. It was undoubtedly drafted with an eye to the symbolic significance of constitutional change and, significantly, it was released on the fiftieth anniversary of the 1967 referendum. To the extent its focus on voice, agreement-making, and truth-telling was symbolic, it was symbolism that connected directly to substantive legal change, with a strong emphasis on Indigenous empowerment.

G. CONCLUSION

The Uluru Statement called for two reforms. First, it said the Constitution should be amended to enshrine a First Nations Voice to the Parliament. The idea was to place a representative body of First Nations in the national capital, to influence law and policy-making through direct dealings with the Parliament and the government. Popular validation at a referendum and constitutional entrenchment were intended to protect the body against abolition, as happened to ATSIC in 2005. The proposal picked up on decades of political advocacy for a stronger say in Indigenous affairs. It also sought to align with the political constitutionalism that has dominated Australian law and politics, by preserving the central role of the Parliament.

The second reform involved legislative change to establish a Makarrata Commission. This body would have two responsibilities: to supervise a process of treaty-making between government and First Nations, and to oversee a national process of truth-telling about the past. Together these proposals were a rejection of minimalist or purely symbolic change, in favour of structural solutions.

The 1967 referendum took place at a time of more limited constitutional possibilities. The preceding period had been marked by the slow dismantling of express discrimination. But an era based on assimilation was not conducive to claims to distinctive First Nations identities and greater political empowerment. For decades there had been suppression of rights to traditional land, the speaking of Indigenous languages, and the practice of

culture. The monopolization of decision-making authority by non-Aboriginal people and institutions had remained essentially unquestioned.

The 2017 First Nations Constitutional Convention occurred after fifty years of significant legal advances and social change. Developments such as the recognition of land rights and native title, the proliferation of Indigenous-run organizations in areas such as health, housing and legal services, the election of Indigenous members to Parliament, and the emergence of modern treaty-making as a political possibility at a State and Territory level all exerted influence on the nature of contemporary constitutional debate.

However, the deeper past is not easily escaped and the difficulty of achieving these reforms is not to be underestimated. Australia is a place where constitutional change has proved very difficult, regardless of the topic, with only eight successful referendums after forty-four attempts. The Australian state has not readily ceded power or influence to First Peoples in the past, the history (and the truth) of dealings with First Peoples, especially in the era of frontier violence, remains under-explored, and the notion of modern day treaty-making has proved a hard nut to crack at the national level. While federal politicians may be generally well-disposed to the idea of symbolic textual references to First Peoples in the Constitution, the Uluru Statement posed a more significant challenge, reconfiguring a debate over ‘constitutional recognition’ to align it more closely with the longer-term political aspirations of First Peoples.

The Referendum Council—distinguished Indigenous and non-Indigenous Australians appointed by the Commonwealth to advise it on the question of constitutional change—recommended in June 2017 that the government should accept the proposal in the Uluru Statement for a Voice to Parliament to be enshrined in the Constitution. It was, in light of the Regional Dialogues, ‘the only option for a referendum proposal that accords with the wishes of Aboriginal and Torres Strait Islander peoples’.¹¹² Four months later, Prime Minister Turnbull announced the government’s rejection of the proposal. It was said to be neither ‘desirable’ nor ‘capable of winning acceptance in a referendum’, and to be inconsistent with a ‘fundamental principle’ that all Australian citizens have ‘equal civic rights’.¹¹³ The government’s announcement confirmed the difficulties Aboriginal and Torres Strait Islander people face in achieving structural reform. It was unclear at the end of 2017 whether the Uluru Statement would yet provide a

catalyst for reshaping the relationship between First Peoples and the Australian state.

¹ Peter Veth and Sue O'Connor, 'The Past 50,000 Years: An Archaeological View' in Alison Bashford and Stuart Macintyre (eds), *The Cambridge History of Australia. Volume 1: Indigenous and Colonial Australia* (CUP 2013) 17, 19.

² *Akiba v Queensland (No 3)* (2010) 204 FCR 1, 24.

³ Australian Bureau of Statistics, *Census* <<http://www.abs.gov.au/websitedbs/D3310114.nsf/Home/2016%20QuickStats>> accessed 2 October 2017. The figure of 649,173 initially reported from the 2016 census in June 2017 was expected to be revised upward due to undercounting.

⁴ With a variety of identifying words in use, we adopt an ecumenical approach to collective terms including 'First Peoples', 'First Nations', and 'Indigenous'.

⁵ For example, *Aboriginals Protection and Restriction of the Sale of Opium Act 1897* (Qld).

⁶ *Cooper v Stuart* (1889) 14 App Cas 286, 291.

⁷ Cheryl Saunders, *The Constitution of Australia: A Contextual Analysis* (Hart 2011) 31.

⁸ Victoria was followed by other jurisdictions in the late nineteenth and early twentieth century in enacting a comprehensive scheme to administer Aboriginal affairs: John Chesterman and Brian Galligan, *Citizens without Rights: Aborigines and Australian Citizenship* (CUP 1997) 12.

⁹ Heather Goodall, *Invasion to Embassy: Land in Aboriginal Politics in New South Wales, 1770-1972* (Sydney UP 1996) [ch 15](#).

¹⁰ *Kruger v Commonwealth* (1997) 190 CLR 1 involved constitutional challenges to the validity of Ordinances made for the Northern Territory that authorized the removal of children.

¹¹ Russell McGregor, *Indifferent Inclusion: Aboriginal People and the Australian Nation* (Aboriginal Studies Press 2011) 14–15.

¹² *ibid* 93–118.

¹³ Demands for autonomy and land did appear alongside claims for equal enjoyment of citizenship rights in earlier decades: see, eg, John Maynard, *Fight for Liberty and Freedom: The Origins of Aboriginal Australian Activism* (Aboriginal Studies Press 2007).

¹⁴ (1992) 175 CLR 1.

¹⁵ Aboriginal and Torres Strait Islander Commission, *Rights, Recognition and Reform: A Report to Government on Native Title Social Justice Measures* (1995).

¹⁶ Council for Aboriginal Reconciliation, *Reconciliation: Australia's Challenge* (2000) [ch 10](#).

¹⁷ The Hon John Howard MP, 'The Right Time: Constitutional Recognition for Indigenous Australians' (Speech delivered at the Sydney Institute, 11 October 2007).

¹⁸ In an isolated exception, following a maritime strike by Torres Strait Islanders in 1936, the Queensland government gave 'island councils a considerable degree of local autonomy, including control over the island police and courts' and, when sitting as a court, the councils drew on local by-laws 'partly derived from tradition': Jeremy Beckett, *Torres Strait Islanders: Custom and Colonialism* (CUP 1987) 54, 56.

¹⁹ (1971) 17 FLR 141, 265.

²⁰ *ibid* 267.

²¹ *Cherokee Nation v Georgia* 30 US (5 Peters) 1 (1831), 17.

- ²² *Coe v Commonwealth* (1979) 24 ALR 118, 129.
- ²³ *Mabo v Queensland (No 2)* (1992) 175 CLR 1, 36.
- ²⁴ *ibid* 79.
- ²⁵ *ibid* 58.
- ²⁶ *Walker v New South Wales* (1994) 182 CLR 45.
- ²⁷ *Coe v Commonwealth (No 2)* (1993) 68 ALJR 110, 115.
- ²⁸ *Members of the Yorta Yorta Aboriginal Community v Victoria* (2002) 214 CLR 422, 443–44 (Gleeson CJ, Gummow and Hayne JJ).
- ²⁹ Megan Davis, ‘Indigenous Struggles in Standard-Setting: The *United Nations Declaration on the Rights of Indigenous Peoples*’ (2008) 9 Melbourne Journal of International Law 439, 444.
- ³⁰ See Michael Mansell, *Treaty and Statehood: Aboriginal Self-determination* (Federation Press 2016) 191–97 and Noel Pearson, ‘Reconciliation: To Be or Not to Be: Separate Aboriginal Nationhood or Aboriginal Self-Determination and Self-Government Within the Australian Nation?’ (1993) 3(61) Aboriginal Law Bulletin 14.
- ³¹ Stuart Banner, ‘Why *Terra Nullius*? Anthropology and Property Law in Early Australia’ (2005) Law and History Review 95, 111.
- ³² Peter H Russell, *Recognizing Aboriginal Title: The Mabo Case and Indigenous Resistance to English-Settler Colonialism* (UNSW Press 2005).
- ³³ Makarrata, from the Yolngu language, translates as ‘coming together after a struggle’.
- ³⁴ See also the Aboriginal Sovereign Treaty ‘88 campaign: <<https://aiatsis.gov.au/collections/collections-online/digitised-collections/treaty/treaty-88>> accessed 2 October 2017.
- ³⁵ The Hon John Howard MP, Prime Minister, Interview with John Laws, 2UE Radio (29 May 2000) PM Transcripts. Transcripts from the Prime Ministers of Australia <<http://pmtranscripts.pmc.gov.au/release/transcript-22788>> accessed 2 October 2017.
- ³⁶ Expert Panel on Constitutional Recognition of Indigenous Australians (‘Expert Panel’), *Recognising Aboriginal and Torres Strait Islander Peoples in the Constitution: Report of the Expert Panel* (2012).
- ³⁷ Senate Standing Committee on Constitutional and Legal Affairs, *Two Hundred Years Later ... , Report on the Feasibility of a Compact or ‘Makarrata’ between the Commonwealth and Aboriginal People* (1983). The proposal was modelled on an existing provision dealing with Commonwealth-State Financial Agreements in s 105A of the Constitution.
- ³⁸ Stéphane Beaulac, ‘The Social Power of Bodin’s “Sovereignty” and International Law’ (2003) 4 Melbourne Journal of International Law 1.
- ³⁹ *New South Wales v Commonwealth* (1975) 135 CLR 337, 408, 443, 469; *Yarmirr v Commonwealth* (2001) 208 CLR 58; *Sue v Hill* (1999) 199 CLR 462.
- ⁴⁰ See the extrajudicial suggestion of former High Court Chief Justice Robert French in ‘Native Title—A Constitutional Shift?’ in H P Lee and Peter Gerangelos (eds), *Constitutional Advancement in a Frozen Continent* (Federation Press 2009) 126, 144–45 and also Mansell (n 30) 113–15.
- ⁴¹ McGregor (n 11) xx.
- ⁴² Chesterman and Galligan (n 8).
- ⁴³ *ibid* 39 and see generally discussion of the *Aboriginals Protection and Restriction of the Sale of Opium Act 1897* (Qld) at 39–53.
- ⁴⁴ Hugh Collins, ‘Political Ideology in Australia: The Distinctiveness of a Benthamite Society’ in Stephen R Graubard (ed), *Australia: The Daedalus Symposium* (Angus and Robertson 1985) 147, 148.

⁴⁵ Sean Brennan and Zoe Craven, ‘Eventually They Get It All’ ... *Government Management of Aboriginal Trust Money in NSW* (Indigenous Law Centre 2006) 17, 22, 25–26, 39.

⁴⁶ A Human Rights and Equal Opportunity Commission inquiry found that the Queensland government had intentionally underpaid employees after 1975 on account of their race: *Bligh v Queensland* (1996) HREOCA 28.

⁴⁷ (1971) 17 FLR 141.

⁴⁸ (n 23) .

⁴⁹ *Koowarta v Bjelke-Petersen* (1982) 153 CLR 168. Subsequent political manoeuvring enabled the Queensland government to neutralize Koowarta’s victory in court.

⁵⁰ *Mabo v Queensland* (1988) 166 CLR 186.

⁵¹ *Western Australia v Commonwealth* (1995) 183 CLR 373.

⁵² *Native Title Act 1993* (Cth), s 51. No compensation rights, constitutional or otherwise, apply to most Indigenous land lost through colonization, due to a four to three majority finding in *Mabo (No 2)* (n 23) 175 CLR 1, 16 on the common law situation prior to 1975.

⁵³ *Wurridjal v Commonwealth* (2009) 237 CLR 309.

⁵⁴ *Kruger* (n 10) (Gaudron and Toohey JJ).

⁵⁵ *Western Australia v Ward* (2002) 213 CLR 1, 64.

⁵⁶ Shireen Morris, ‘Undemocratic, Uncertain and Politically Unviable? An Analysis of and Response to Objections to a Proposed Racial Non-Discrimination Clause as Part of Constitutional Reforms for Indigenous Recognition’ (2014) 40 *Monash University Law Review* 488, 495.

⁵⁷ Paul McHugh, *Aboriginal Societies and the Common Law: Sovereignty, Status, and Self-Determination* (OUP 2004) 277.

⁵⁸ *Commonwealth Franchise Act 1902* (Cth), s 4.

⁵⁹ *R v Pearson; Ex parte Sipka* (1983) 152 CLR 254.

⁶⁰ A fifth, Senator Jacqui Lambie, identified as having Aboriginal ancestry.

⁶¹ Jennifer Clark, *Aborigines and Activism: Race, Aborigines and the Coming of the Sixties to Australia* (UWA Press 2008) 5.

⁶² Bain Attwood and Andrew Markus, *The Struggle for Aboriginal Rights: A Documentary History* (Allen & Unwin 1999) 18–19.

⁶³ *ibid* 170–72.

⁶⁴ *ibid*.

⁶⁵ National Archives of Australia, *The 1967 Referendum—Fact Sheet 150* <<http://www.naa.gov.au/collection/fact-sheets/fs150.aspx>> accessed 2 October 2017.

⁶⁶ See response of Joe McGinness, ‘Letter to the Editor’ *Nation Review* (12 August 1972) in Attwood and Markus (n 62) 267.

⁶⁷ Peter Read, ‘Cheeky, Insolent and Anti-White: The Split in the Federal Council for the Advancement of Aborigines and Torres Strait Islanders—Easter 1970’ (1990) 36 *Australian Journal of Politics and History* 73.

⁶⁸ Gough Whitlam, ‘It’s Time for Leadership: 1972 Campaign Launch for the Australian Labor Party’ (Speech delivered at the Blacktown Civic Centre, 13 November 1972) <http://www.whitlam.org/gough_whitlam/Treasures_from_the_Collection> accessed 2 October 2017.

⁶⁹ See ‘Black Voices’ *The Sydney Morning Herald* (Sydney, 19 December 1973) at <kooriweb.org> accessed 2 October 2017.

⁷⁰ Attwood and Markus (n 62) 277.

⁷¹ Committee of Inquiry into the Role of the National Aboriginal Consultative Committee, Parliament of Australia, *National Aboriginal Consultative Committee: Report of Committee of*

Inquiry, November 1976 (Parliamentary Paper No 343/1976).

⁷² Sally Weaver, 'Australian Aboriginal Policy: Aboriginal Pressure Groups or Government Advisory Bodies?' (1983) 54 *Oceania* 1, 7–8.

⁷³ National Aboriginal Conference, *Establishment, Role and Functions* (1983) 5, 15.

⁷⁴ Attwood and Markus (n 62) 278, 297–301.

⁷⁵ Tim Rowse, *Obligated to be Difficult: Nugget Coombs' Legacy in Indigenous Affairs* (CUP 2000) 179.

⁷⁶ Attwood and Markus (n 62) 278.

⁷⁷ Commonwealth, *Parliamentary Debates* (House of Representatives, 24 August 1988) 251 (Gerry Hand).

⁷⁸ *Aboriginal and Torres Strait Islander Commission Act 1989* (Cth), s 3.

⁷⁹ Michael Dillon, 'Institutional Structures in Indigenous Affairs: The Future of ATSIC' in Patrick Sullivan (ed), *Shooting the Banker: Essays on ATSIC and Self-Determination* (North Australia Research Unit, ANU 1996) 89, 89.

⁸⁰ Chesterman and Galligan (n 8) 213.

⁸¹ Review of the Aboriginal and Torres Strait Islander Commission, *In the Hands of the Regions—A New ATSIC: Report of the Review of the Aboriginal and Torres Strait Islander Commission* (2003) 9.

⁸² *Aboriginal and Torres Strait Islander Commission Amendment Act 2005* (Cth).

⁸³ Referendum Council, *Dialogues* <<http://www.referendumcouncil.org.au/dialogues>> accessed 2 October 2017.

⁸⁴ Jack Balkin, *Living Constitutionalism* (Harvard UP 2011).

⁸⁵ The Hon Justice Patrick Keane, 'In Celebration of the Constitution' (Speech given to the National Archives of Australia, 12 June 2008) <<http://www.naa.gov.au/collection/publications/papers-and-podcasts/australian-constitution/keane.aspx>> accessed 2 October 2017.

⁸⁶ Elisa Arcioni and Adrienne Stone, 'The Small Brown Bird: Values and Aspirations in the Australian Constitution' (2016) 14 *International Journal of Constitutional Law* 60.

⁸⁷ Geoffrey Sawer, 'The Australian Constitution and the Australian Aborigine' (1965) 2 *Federal Law Review* 17, 17–18.

⁸⁸ In the late 1960s anthropologist Bill Stanner famously referred to 'the Great Australian Silence' about Aboriginal people and dispossession: 'What may have begun as a simple forgetting of other possible views turned under habit and over time into something like a cult of forgetfulness practised on a national scale.' See W E H Stanner, *After the Dreaming* (Australian Broadcasting Commission 1969) 25 and also McGregor (n 11).

⁸⁹ Arcioni and Stone (n 86) 75.

⁹⁰ Elisa Arcioni, 'Excluding Indigenous Australians from 'the people': A Reconsideration of Sections 25 and 127 of the *Constitution*' (2012) 40 *Federal Law Review* 287, 289.

⁹¹ Legally, s 127 was consequential for States rather than First Peoples: it affected calculations of how many electorates each State was entitled to in the federal House of Representatives as well as the allocation of money under Commonwealth-State financial arrangements.

⁹² Greg Taylor, 'A History of Section 127 of the *Commonwealth Constitution*' (2016) 42 *Monash University Law Review* 206. See also Sawer (n 87) 17–18, 30.

⁹³ See, eg, the *Aboriginals Protection and Restriction of the Sale of Opium Act 1897* (Qld).

⁹⁴ See Anne Twomey, 'An Obituary for s 25 of the Constitution' (2012) 23 *Public Law Review* 125, 135 and Dylan Lino and Megan Davis, 'Speaking Ill of the Dead: A Comment on s 25 of the

Constitution' (2012) 23 Public Law Review 231.

⁹⁵ McGregor (n 11) xviii-xx and Sawyer (n 87) 17.

⁹⁶ Chief Electoral Officer of the Commonwealth, *The Arguments For and Against the Proposed Alterations Together with a Statement Showing the Proposed Alterations* (6 April 1967) 11.

⁹⁷ Robert French, 'The Race Power: A Constitutional Chimera' in H P Lee and George Winterton (eds), *Australian Constitutional Landmarks* (CUP 2003) 180, 189–90.

⁹⁸ This law was equally and entirely referable to another source of Commonwealth legislative power that pre-existed the 1967 referendum, the Territories power in s 122.

⁹⁹ *Aboriginal and Torres Strait Islander Heritage Protection Act 1984* (Cth).

¹⁰⁰ *Native Title Act 1993* (Cth).

¹⁰¹ *Commonwealth v Tasmania* (1983) 158 CLR 1, 242.

¹⁰² *Hindmarsh Island Bridge Act 1997* (Cth).

¹⁰³ (1998) 195 CLR 337.

¹⁰⁴ See, eg, French, 'The Race Power: A Constitutional Chimera' (n 97) 206.

¹⁰⁵ *Kruger* (n 10) 111.

¹⁰⁶ *Kartinyeri* (n 103) 361–63. Gaudron J developed her own text-based argument for constraining the adverse use of the races power.

¹⁰⁷ Marcia Langton, 'Finding a Resolution to Constitutional Recognition of Indigenous Australians' in Megan Davis and Marcia Langton (eds), *It's Our Country: Indigenous Arguments for Meaningful Constitutional Recognition and Reform* (Melbourne UP 2016) 27, 31.

¹⁰⁸ Russell (n 32) 123.

¹⁰⁹ This law was also equally and entirely referable to the Territories power in s 122 of the Constitution.

¹¹⁰ Expert Panel (n 36) 115.

¹¹¹ 'Statement Presented by Aboriginal and Torres Strait Islander Attendees at a Meeting Held with the Prime Minister and Opposition Leader on Constitutional Recognition' (2015) 8(19) *Indigenous Law Bulletin* 26, 27.

¹¹² Referendum Council, *Final Report of the Referendum Council* (Commonwealth of Australia 2017) 2.

¹¹³ The Hon Malcolm Turnbull MP, Prime Minister of Australia, 'Response to Referendum Council's Report on Constitutional Recognition' (26 October 2017) <<https://www.pm.gov.au/media/2017-10-26/response-referendum-councils-report-constitutional-recognition>> accessed 27 October 2017.

CHAPTER 2

SETTLEMENT

JOHN WAUGH

A. A CHANGING HISTORY

JOHN Quick and Robert Garran's encyclopaedic *Annotated Constitution of the Australian Commonwealth*, published in 1901 to greet the new federation, set the Constitution firmly in the context of European colonization. At its inception it was, as they said, 'a colonial Constitution'.¹ Their long historical introduction—a substantial book in itself—serves both as the first extended prehistory of the Constitution and as a reference point in the evolution of ideas about the Commonwealth's historical foundations. Beginning with ancient Greece, they outlined ancient and modern European colonization and the constitutional history of the Australian colonies, before turning to a detailed narrative of the federal movement in Australia. The foundations of colonial legal authority were unproblematic for them, and their introduction mentions the Indigenous people of Australia just once.²

In the Constitution's second century, nothing has changed more in writing about Australia's colonial legal history than the approach of non-Indigenous historians to relations between Indigenous people and colonists. Lawyers and historians have scrutinized the classification, established in the nineteenth century, of the Australian colonies as territories empty of people whose societies colonial law would recognize. From the 1970s onwards, inspired particularly by the work of historian Henry Reynolds, historians and lawyers came to focus on the concept of *terra nullius* (no-one's land, or unoccupied land) in accounts of Australian settlement. Among the questions in this body of historical and legal writing—for example, in Reynolds's influential book *The Law of the Land* (1987) and in the judgments of

Brennan, Deane, Gaudron and Toohey JJ in the High Court in *Mabo v Queensland (No 2)*³—were why lawyers treated the Australian colonies as *terra nullius*, and whether this error could be corrected.

Reynolds's writing, and the discussion in *Mabo* of the doctrine of *terra nullius*, fostered a widespread belief that the British had classified Australia as *terra nullius* at the time of colonization. Yet historians investigating the concept of *terra nullius* found it to be in some ways misleading when applied to Australia. The term itself was used in discussion of European colonization only late in the nineteenth century, and then in the context of international law, rather than domestic law.⁴ As a description of law at the time of the establishment of the Australian colonies, the term was at best convenient shorthand for their classification as unpopulated on settlement, and at worst anachronistic and suggestive of a degree of coherence and stability in legal doctrine that the historical sources did not support. For many, however, it still powerfully evokes a mindset in which the Indigenous occupation of Australia was denigrated or dismissed.

Behind the apparent simplicity of the concept of *terra nullius* lay a cluster of changing legal principles derived in part from international law and in part from the common law. The way lawyers and administrators worked through these principles in the case of the Australian colonies emerges in court decisions and official records from the 1760s onwards. Between the 1820s and the 1840s, most such references to the legal foundations of the Australian colonies did not concern land ownership—the context in which discussion of *terra nullius* arose in *Mabo*—but the jurisdiction of colonial courts over Indigenous people.

Historians' thinking about the law of colonization continues to change. Recent writing relies on rapidly growing digitized historical sources, especially newspapers and court records. Writing about the legal status of Indigenous people in New South Wales was transformed by the publication of early court records under the leadership of Bruce Kercher in the 1990s. The scope of that project was limited to the superior courts, and as digitization and historical research continue in lower courts, other official records and private correspondence, in other regions of Australia, and in the Indigenous experience of colonization, new insights can be expected.

Alongside these methodological considerations lies the pervasive influence, less easy to isolate and define, of thinking by both Indigenous and non-Indigenous Australians about their relationship with each other,

with the law, and with history. Even as conservative a leader as Tony Abbott, then federal leader of the opposition, could describe that relationship in the following terms, in 2013:

Australia is a blessed country. Our climate, our land, our people, our institutions rightly make us the envy of the earth, except for one thing—we have never fully made peace with the First Australians. This is the stain on our soul that Prime Minister Keating so movingly evoked at Redfern 21 years ago. We have to acknowledge that pre-1788 this land was as Aboriginal then as it is Australian now. Until we have acknowledged that we will be an incomplete nation and a torn people.⁵

Aboriginal activist and leader Noel Pearson has referred to ‘the scabrous wound of the country’s legal foundations’.⁶

Abbott was speaking in 2013 about a bill for constitutional recognition of Aboriginal and Torres Strait Islander peoples. As proposals for recognition of Indigenous people come to dominate discussion of constitutional change, the status of Indigenous laws takes on corresponding significance in the historical origins of the Constitution.

At the same time, historians both within and outside the discipline of legal history have been revisiting the record of judicial decisions and broader colonial practice in the period before the orthodoxy of non-recognition of Indigenous laws became established. The relationship between colonists and Indigenous people has become a key issue in studies of the early legal history of the Australian colonies, directing attention to the clash of Indigenous and colonial laws, and to alternative juridical possibilities explored in the colonies’ early years. Much of this recent historical writing designates colonists as ‘settlers’. In doing so, it draws on recent historiography of the British Empire that investigates the distinctive characteristics of lands characterized by the British as colonies of settlement, while rejecting the connotation that those lands were unoccupied on colonization.

Law did not control or dictate the course of the British colonization of Australia. As expatriate Australian lawyer Richard Latham wrote in 1937, ‘Always the law followed the facts at a respectful distance’.⁷ In the frequent clashes that occurred between British settlers and Indigenous people, law had mainly a retrospective role, vindicating or punishing their actions. In the words of historians Heather Douglas and Mark Finnane: ‘Law belonged to a time after force had done its work.’⁸

Nevertheless, the British colony in New South Wales and its successors in other parts of the continent were not anarchic. The British brought with

them laws about both the governance of the new colony and the establishment of colonies in general. Those laws influenced the administration of the colony and its relationship with the systems of Indigenous law that the colonists displaced. Crucially for the historical background of the Australian Constitution, the Australian legal system at the start of the twenty-first century is the descendant of the colonial legal system. No revolutionary break has disrupted the line of legal continuity that links the Constitution to the assertion of British law made in the years after colonization. In decisions on the status of Indigenous laws, the High Court continues to apply doctrines established in the nineteenth century, with the important exception of the recognition of native title to land. Against that background, this chapter explores the law of Australian colonization and its relationship with the laws of Australia's Indigenous peoples.

B. FOUNDATIONS

The Indigenous peoples of Australia have occupied the continent for tens of thousands of years, developing diverse and intricate systems of law that have a more pervasive influence on life, and much greater spiritual significance, than European legal systems. Indigenous lawyer Irene Watson writes: 'My ancestors walked in the law, as they walked over the land. They sang the law; they danced the law, becoming beings of the law, living in the way of the law.'⁹

The British were not the only outsiders to arrive in Aboriginal Australia. The earlier visits of most seafarers and explorers were fleeting, but Macassan collectors of *trepang* (*bêche-de-mer*) from what are now the islands of Indonesia were visiting and trading with Aboriginal people of northern Australia around the time of British colonization.¹⁰

When the British established the convict colony of New South Wales in 1788, they were the first Europeans to settle permanently in Australia. British knowledge of eastern Australia and its inhabitants was sketchy, derived from the visit of James Cook in 1770. Cook himself had little direct contact with Aboriginal people. The fragmentary information brought back to England by Cook and his companions (notably the naturalist Joseph Banks) left the British government with little to go on when considering the

stance of the projected colony towards the Aboriginal inhabitants. In many colonies, British practice had been to negotiate with Indigenous people, seeking settlement by agreement and sometimes by the purchase of land.

The instructions of the British government to the first governor of New South Wales, Arthur Phillip, required him to try to ‘open an intercourse with the natives, and to conciliate their affections’, but they said nothing about treaties or land purchases.¹¹ Banks’s report on eastern Australia encouraged an expectation that its Aboriginal inhabitants were either not numerous enough to obstruct British occupation or had forms of social organization that the British would not recognize for the purposes of treaty-making. In the absence of any rival colonizing power (despite the arrival of a French exploring expedition soon after Phillip himself), the British did not need Aboriginal allies against a third force.¹²

Following the initial landing at Sydney Cove, permanent settlements were established (sometimes after earlier, short-lived ventures) in Van Diemen’s Land, later Tasmania (1803), Moreton Bay, later Queensland (1824), Western Australia (1829), the Port Phillip District, later Victoria (1834–35), South Australia (1836), and the Northern Territory (1869).

The British soon found the Eora, the Indigenous people of Sydney Cove, more numerous and aggressive than earlier reports suggested. For the Eora, the new arrivals’ unwillingness to move on was unexpected.

From an Aboriginal point of view, it was a surprise that the British decided to stay. European ships sailing by were a rare but not uncommon experience and they always moved on. In the Aboriginal world view, it is inconceivable that people would not stay on their own land, but move on to land belonging to someone else. Oral histories from the Sydney region show that Aboriginal people had not expected British presence to be permanent. As it became clear that the British were staying, conflict and tensions with local Aboriginal tribes increased.¹³

The laws and customs of many Aboriginal peoples allowed for visits by outsiders, once the proper welcome had been given. ‘Aboriginal groups all over Australia seem to have had rules that governed the conduct of meetings between peoples who were not in regular face-to-face contact with one another,’ Bain Attwood writes, ‘and these appear to have been often followed when they came into contact with European strangers.’¹⁴

Such a ceremony, known as *tanderrum* by the Kulin people of Port Phillip, was probably the Aboriginal understanding of the only British attempt to negotiate the sale of Aboriginal land, John Batman’s so-called treaty of 1835.¹⁵ The treaty, actually two deeds in the form of English

conveyances of land, was designed to give an appearance of legitimacy to the occupation of Port Phillip by Batman and his colleagues. It misrepresented the intentions of the Aboriginal leaders who met him, and it was disavowed by the British authorities. After that episode, the British colonizers sometimes conciliated the traditional owners of the Australian lands they occupied, but they never again tried to purchase them or occupy them by consent. In Australia, the British did not repeat the widespread use they had made of treaties and land purchases in North America, despite occasional advocacy by officials and others.¹⁶

A pattern was established of colonial expansion without consent and often by force, Indigenous resistance, and a widely varying mix of hostility, accommodation, and co-existence along a permeable and rapidly moving frontier. In the words of Angela Woollacott: 'The early settler frontiers were mixed places of violence and peaceful interaction with Aboriginal people, and the "frontiers" were not just at the receding edges of settlement.'¹⁷

C. EARLY CASES

The changing legal framework for these colonial ventures reflected uncertainty about conditions in the new colonies, growing colonial capacities, and new information about the land and its inhabitants. The European law of nations had long described the circumstances under which colonial powers could or should acquire new territory. The writings of Emer de Vattel in the eighteenth century were quoted repeatedly in British and Australian assessments of the legal foundations of the Australian colonies.

Influenced by ideas about natural law and the philosophical underpinnings of land ownership, such writings shaded off into political philosophy. Vattel took the cultivation of the soil as both a right and a duty, justifying a nation in taking possession of a country 'in which there are none but erratic nations whose scanty population is incapable of occupying the whole'.¹⁸ A mere ceremony of taking possession (such as that performed by Cook in 1770) did not confer rights of property or sovereignty until matched with actual occupation.

European writing on the subject of territorial occupation was not (nor could it be) unanimous or settled. Andrew Fitzmaurice has highlighted the role of such texts in debates about the justice of imperial expansion.¹⁹ Seen

in this light, they were not so much declarations of settled law as interventions in debates about the justice of occupation and the rights of subject peoples.

Some British colonists were uncomfortably aware of the sources and limits of the law of nations.

As Edward Eyre, explorer and later colonial governor, observed in his journals in 1845, the law of nations was ‘a law that provides not for the safety, privileges and protection of the Aborigines, and owners of the soil, but which merely lays down the rules for the direction of the privileged robber in the distribution of the booty of any newly discovered country’.²⁰

James Stephen, permanent head of the British Colonial Office, made an equally brutal assessment in 1840: ‘Whatever may be the ground occupied by international jurists they never forget the policy and interests of their own Country. Their business is to give to rapacity and injustice, the most decorous veil which legal ingenuity can weave ... All such law is good, just as long as there is power to enforce it, and no longer.’²¹

The most influential idea derived from these sources and applied to the Australian colonies was the threefold classification of colonies into those conquered, ceded (by treaty), and settled. Unusually for him, William Blackstone drew heavily on the law of nations in his exposition of the common law principles applicable to the acquisition of colonies.²² In conquered and ceded colonies, he explained, pre-existing laws continued in force, although the British monarch could change them. In a previously uninhabited colony, on the other hand, ‘all the English laws are immediately there in force’.²³

The domestic law of the United Kingdom supplied a legal framework within the Australian colonies. In the first of them to be established, New South Wales, a royal charter created civil and criminal courts (the latter under authority conferred by statute), and a commission issued by the King gave his representative, the governor, broad powers of administration. Power to make local laws for the new colony was overlooked; the resulting doubts were removed by the creation of a Legislative Council in 1823.²⁴

English law applied to the colonists. The British statute that authorized the creation of the New South Wales Court of Criminal Jurisdiction said explicitly that the Court would apply English law. The Court of Civil Jurisdiction followed the same principle, although it was assumed, rather than stated, by its founding charter. In 1819 the Attorney-General and

Solicitor-General in London confirmed the classification of New South Wales as a settled colony in which English law applied, ‘the part of New South Wales possessed by His Majesty, not having been acquired by conquest or cession, but taken possession of by him as desert and uninhabited, and subsequently colonized from this country’.²⁵ James Stephen concurred in 1822.²⁶ The Australian Courts Act 1828 mandated the application of English common and statute law, as it stood at the date of royal assent to the Act (25 July 1828), in the courts of New South Wales and Van Diemen’s Land.²⁷

Francis Forbes, first chief justice of the Supreme Court of New South Wales, stated what was then long-established doctrine in colonial courts when he wrote in 1834: ‘The Colony of New South Wales is a settled Colony—on a possession acquired by the act of His Majesty’s subjects settling an uninhabited country.’²⁸ Forbes’s colleague on the bench, William Burton, explained at more length in 1833:

I take it to be clear law, without the aid of an Act of Parliament to make it such, that if an uninhabited country (as this at the time of its settlement must be considered to have been, for the wandering tribes of its natives, living without certain habitation and without laws were never in the situation of a conquered people, or this colony that of a ceded country), if such a country be discovered and planted by English subjects, all the English laws then in being which are applicable to their situation, and the condition of an infant colony, are *immediately* their birthright, and as their applicability arises from their improving condition, come daily into force.²⁹

Colonial authorities in the other Australian colonies followed a similar course. The first lieutenant-governor of Western Australia proclaimed that the laws of the United Kingdom applied there.³⁰ The preamble to the South Australia Act 1834 (4 & 5 Will 4 c 95) declared that the area of the proposed colony consisted of ‘waste and unoccupied Lands which are supposed to be fit for the Purposes of Colonization’.

The Australian colonies’ highest judicial authority, the Privy Council in London, had confirmed the classification of Tasmania as a colony of occupation in 1858, albeit only in passing, in a decision concerning parliamentary privileges.³¹ In 1889 it did the same for New South Wales, although the question arose in a roundabout way. In a decision on the validity of a reservation in a crown grant, the Privy Council held that in 1788 New South Wales had been ‘a tract of territory practically unoccupied, without settled inhabitants or settled law, at the time when it was peacefully

annexed to the British dominions’.³² The law of England therefore applied there. The qualifications in this statement—*practically* unoccupied, without *settled* inhabitants or *settled* law—did all the work: the Privy Council could not say that New South Wales had been uninhabited in 1788, and some Australian judges had already noted the laws observed by Aboriginal people. The Privy Council relied instead on the inferred size of the Aboriginal population and the differences between their cultures and that of the colonists. Not finding societies that resembled their own, the judges, like the colonial authorities, found it easier to treat the Indigenous inhabitants and their laws as if they did not exist.

In contrast with the confidence with which early legal opinions declared that English law applied to the settlers, the law that applied to Indigenous people was for nearly fifty years a matter of dispute among colonial lawyers. Significantly, the classification of New South Wales as a colony of settlement did not immediately resolve the issue. In one sense, the question was an empty one. At the time of settlement and for many years afterwards, most Indigenous people had no contact with settlers and lived in accordance with their own laws. As Governor John Hutt of Western Australia put it in 1841, ‘it is only in proportion as they find themselves completely in our power, that they yield to our persuasion, instruction or influence’.³³ But where Indigenous people lived among settlers, colonial lawyers confronted a problem: whose law applied?

The first question that was settled was the applicability of English law to violence directed by settlers against Aborigines. Between 1788 and 1822, fourteen colonists were tried for crimes of violence against Aborigines in New South Wales. At least six were convicted, the earliest being five white men who murdered two Aboriginal boys at the Hawkesbury River in 1799; one settler was hanged.³⁴

It was nearly forty years before the applicable law was fully argued in the New South Wales Supreme Court. In 1827 a military officer, Lieutenant Nathaniel Lowe, was charged with the murder of an Aboriginal prisoner known to the colonists as Jackey Jackey. Counsel for Lowe challenged the jurisdiction of the Supreme Court over crimes committed by or against Aborigines, on the grounds that they fitted none of the categories of subject peoples recognized in English law—they were neither alien friends, nor

enemies, nor British subjects—and their ignorance of English law excluded them from being tried in colonial courts.³⁵

The two judges who decided the case, Forbes CJ and Stephen J, found that such questions about the applicability of English law were precluded by the Act of Parliament under which the Court was constituted. As Forbes CJ put it, ‘If the Act of Parliament has recognised a sovereignty over this country and recognised the application of English law here, we must look to the British law as established here *de facto*; and the court is of that opinion.’³⁶ As a commissioned officer, Lowe was within the Court’s jurisdiction, his victim had to be considered a British subject, and the Court’s founding statute gave it jurisdiction in New South Wales. Lowe’s trial proceeded, but, like most colonists put on trial for the murder of Aborigines, he was acquitted.

The legal principle endorsed by the Supreme Court had little practical effect. Few colonists were put on trial for offences of violence against Aborigines, notwithstanding widespread clashes, and fewer still were convicted. The execution of seven settlers for the murder of Aborigines in the Myall Creek massacre in 1838 was a rare exception.³⁷

In the early decades of the colony of New South Wales, settlers and colonial authorities more often responded to violent resistance by Aborigines with violence of their own. Lisa Ford has noted:

Mostly, the mere allegation that settlers killed Aborigines in self-defense or to protect property prevented state inquiry into the matter. So much is clear from the numerous and unembarrassed reports of Aboriginal deaths in the pages of the early *Sydney Gazette*, none of which resulted in arrest, prosecution, or investigation.³⁸

Sometimes extra-judicial violence against Aborigines took place under declarations of outlawry or martial law. In 1801 Governor Philip Gidley King declared Aboriginal resistance leader Pemulwuy an outlaw and offered a reward for his capture dead or alive. A settler shot and killed Pemulwuy the following year.³⁹ In 1816 Governor Lachlan Macquarie proclaimed ten Aboriginal men to be outlaws, in response to violent resistance to settler occupation west of Sydney.⁴⁰ A number of Aboriginal men were proclaimed outlaws in Western Australia in 1832–34.⁴¹ Martial law was declared in parts of New South Wales (1824) and Van Diemen’s Land (1828).⁴²

Authorities in New South Wales and Britain expressed changing opinions on the question of whether the Indigenous people of Australia were British subjects. Macquarie's outlawry proclamation of 1816 implied that 'Friendly Natives' were subjects, while hostile ones were not. The secretary of state for the colonies responded to the proclamation of martial law in western New South Wales in 1824 with instructions to the governor on how to deal with 'hostile incursions for the purpose of Plunder' by Aborigines: 'you will understand it to be your duty, when such disturbances cannot be prevented or allayed by less vigorous measures, to oppose force by force, and to repel such Aggressions in the same manner, as if they proceeded from subjects of any accredited State'.⁴³

But in 1837 a new secretary of state, Lord Glenelg, reversed this opinion. The previous decade had seen expansion in the area of pastoral occupation, an increased degree of effective control by colonial authorities, and growing humanitarian concern about protection of Indigenous people from violence. Glenelg told Governor Richard Bourke:

Your Commission as Governor of NS Wales asserts HM's Sovereignty over every part of the Continent of New Holland which is not embraced in the Colonies of Western or Southern Australia. Hence I conceive it follows that all the natives inhabiting those Territories must be considered as Subjects of the Queen, and as within HM's Allegiance. To regard them as Aliens with whom a War can exist, and against whom HM's Troops may exercise belligerent right, is to deny that protection to which they derive the highest possible claim from the Sovereignty which has been assumed over the whole of their Ancient Possessions.⁴⁴

Governor George Gipps reaffirmed official policy in a notice in the *New South Wales Government Gazette* in 1839:

As human beings partaking of our common nature—as the Aboriginal possessors of the soil from which the wealth of the country has been principally derived—and as subjects of the Queen, whose authority extends over every part of New Holland—the Natives of the Colony have an equal right with the people of European origin to the protection and assistance of the Law of England.

To allow either to injure or oppress the other, or to permit the stronger to regard the weaker party as aliens with whom a war can exist, and against whom they may exercise belligerent rights, is not less inconsistent with the spirit of that Law, than it is at variance with the dictates of justice and humanity.⁴⁵

In the proclamation in which South Australia's first governor announced the establishment of the colony in 1836, he urged the colonists to regard Aboriginal inhabitants as British subjects protected by the law:

It is also, at this time, especially my duty to apprise the Colonists of my resolution to take every lawful means for extending the same Protection to the Native population as to the rest of His Majesty's subjects and of my firm determination to punish with exemplary severity all acts of violence or injustice which may in any manner be practised or attempted against the Natives who are to be considered as much under the safeguard of the law as the Colonists themselves, and equally entitled to the Privileges of British Subjects.⁴⁶

As Gipps's notice implied, the consequences of not applying English law to violent attacks by settlers on Aborigines would be harsh. Released from English law, settlers would operate beyond the effective reach of any law in their relations with Aborigines. The conclusion of counsel's argument in *R v Lowe* was that settlers such as the defendant could rightfully punish crimes by Aborigines for themselves, without recourse to the courts. If (as Lowe apparently believed) Jackey Jackey had killed a settler, Lowe could kill him as punishment under the law of nations, or so the argument ran.⁴⁷

The sole judge of the Supreme Court of South Australia, Charles Cooper, advised Governor George Gawler in 1840 that English law did not apply to Aboriginal people whose country had not yet been occupied by settlers, who had not submitted to colonial authority, and had no contact with settlers. Cooper gave this advice after Aborigines killed some twenty-five European survivors of the wreck of the brig *Maria* on the South Australian coast. The result was that Gawler sent a military expedition to the site of the wreck, and two Aboriginal men suspected of the killings were hanged at the place where their putative victims were buried.⁴⁸ Cooper's opinion was referred to the colonial secretary in London. The English law officers advised that, on the contrary, all Aborigines in the territory of South Australia were within the jurisdiction of the colonial courts.⁴⁹

By 1840, when Cooper gave his advice, the courts of the other Australian colonies were already trying Aboriginal people who attacked settlers, although they seem rarely, if ever, to have articulated the principles on which their jurisdiction relied. Colonial officials had initially doubted the courts' authority in such cases. When two Aboriginal men known to the settlers as Musquito and Bulldog were taken into custody in 1805, after settlers were killed in Aboriginal raids on farms near Sydney, Judge-Advocate Richard Atkins (the colony's senior judicial officer under the governor) wrote an opinion advising Governor King what should be done with them. Atkins ruled out putting them on trial, owing to the inadmissibility of evidence from Aboriginal witnesses and the inability of

Aboriginal defendants to plead to criminal charges when they had no understanding of the proceedings. The alternative he endorsed was extra-legal. If the reprisals taken already did not lead the Aborigines to change their conduct, he wrote, 'self-defence will justify the most coercive measures being exercised against them'.⁵⁰ He continued:

The object of this letter is to impress the Idea that the Natives of this Country (generally speaking) are at present incapable of being brought before a Criminal Court, either as Criminals or as Evidences; that it would be a mocking of Judicial Proceedings, and a Solecism in Law; and that the only mode at present, when they deserve it, is to pursue and inflict such punishment as they may merit.⁵¹

Musquito and Bulldog were transported to the penal settlement on Norfolk Island. Punishment of Aborigines without trial continued; a later example was the exile of Duall to Norfolk Island in 1816.⁵²

Punishment on the governor's orders was only part of the settler response to Aboriginal violence. Killings of Aboriginal people by settlers recurred across the continent and through the long period of frontier contact, extending into the twentieth century in northern Australia. The numbers cannot be calculated with any confidence, but the pattern was pervasive and long-lasting, and the number of Aborigines killed by settlers far exceeded the number of settlers killed by Aborigines.⁵³

Aboriginal people who lived or worked with settlers seem to have been the first to face trial in colonial courts. Their proximity and familiarity with colonial society provided an implicit justification for the exercise of jurisdiction over them. The first Aborigine to be executed after trial in a New South Wales court was a man named Mow-watty, who was convicted of the rape of a European girl on a farm near Parramatta in 1816. He had lived or worked with settlers since infancy (having been adopted, in a grim coincidence, by the colony's hangman) and had spent a year in England.⁵⁴

The first trials of Aborigines for murder took place in New South Wales in 1822, when two Aboriginal men were acquitted of the murder of a European stockman.⁵⁵ A sharp increase in the number of Aborigines tried in New South Wales courts occurred in 1835, when twenty-one were prosecuted. The reasons for the sudden increase are unclear, but it coincided with an expansion of territory occupied by pastoralists, and a challenge to government control of land sales in the shape of Batman's purported purchase of land from the Kulin people of Port Phillip.⁵⁶

The first trials of Aboriginal prisoners in Western Australia took place in 1837. Five Indigenous Noongar men were convicted of theft and sentenced to imprisonment or transportation.⁵⁷ In the Port Phillip District (which separated from New South Wales to become the colony of Victoria in 1851), no Europeans were punished for killing Aborigines down to separation, but six Aborigines were executed for murdering Europeans.⁵⁸ Four Aborigines were hanged for murder in Van Diemen's Land in 1824–26.⁵⁹

D. CRIMES BETWEEN INDIGENOUS PEOPLE

The cases over which colonial courts were slowest to claim jurisdiction were crimes between Indigenous people, in which colonists were neither perpetrators nor victims. In 1829, two years after Lieutenant Lowe's trial for the murder of his Aboriginal prisoner, and long after the first Indigenous people were tried for crimes against settlers, the Supreme Court of New South Wales considered whether it had jurisdiction in the alleged murder of one Aboriginal man by another. In *R v Ballard or Barrett*, the Aboriginal defendant was charged with the murder of another Aboriginal man in Sydney, in or near the Domain.⁶⁰ The killing occurred in a clash between two tribes or clans, such clashes (often dictated by Aboriginal law) being common in Sydney.

The two judges who decided the case, Forbes CJ and Dowling J, confirmed the principle that English law applied to conflict between Aborigines and settlers. Where no settlers were involved, however, they saw several reasons for declining to involve the court. Central to their thinking was the idea of consent. As Dowling J put it:

Until the Aboriginal natives of this country shall consent, either actually or by implication, to the interposition of our laws in the administration of justice for acts committed by themselves upon themselves, I know of no reason, human or divine, which ought to justify us in interfering with their institutions, even if such an interference were practicable.⁶¹

Although the killing took place close to the centre of Sydney, the Attorney-General referred to the 'savage state' of both Ballard and his victim, implying that they lived according to Aboriginal, not European, customs. That Aborigines did not know or understand colonial law was another reason. Rather, Forbes CJ said, 'the savages of this part of the globe have a mode of dressing wrongs committed amongst themselves, which is

perfectly agreeable to their own natures and dispositions, and is productive, amongst themselves, of as much good, as any novel or strange institution which might be imparted to them'.⁶² Nor was it practical to apply colonial law to defendants who knew nothing of English language and customs.

Neither judge made any reference to authority or precedent, although Forbes CJ relied on past practice in both New South Wales and British North America. Both judges concluded that English law did not apply to Ballard's case. He was discharged from custody.

The renunciation of jurisdiction in *Ballard* did not last long. In 1836 two Aboriginal men, known as Jack Congo Murrell and George Bummery, were brought to trial in the Supreme Court of New South Wales, charged with the murder of two other Aboriginal men. Once again, the killings took place within the area occupied by the settlers—not quite as close to home as the Sydney Domain, but on the road between the towns of Richmond and Windsor. The tribe or clan of the victims had themselves asked that the two men be 'tried by the English'.⁶³

Forbes CJ and Dowling J revisited the question they had considered seven years earlier, joined by a new judge, Burton J, who delivered the Court's unanimous decision. In both style and substance, it was different from the judgments in *Ballard*. Burton J cited Britain's formal claims to possession of New South Wales, the legislation establishing its institutions of government, and authorities concerning international and domestic law on the establishment of colonies. Murrell's alleged offence had been committed 'within this Colony, a place where by the Common Law and by the Stat 9 Geo 4 c 83 the law of England is the law of the land'.⁶⁴

Burton J had less regard than his colleagues both for Indigenous laws and for the difficulties of applying English law to disputes in which colonists were not involved. In his published opinion, he delivered a measured explanation for the failure of colonial law to recognize Indigenous laws:

although it be granted that the aboriginal natives of New Holland are entitled to be regarded by Civilized nations as a free and independent people, and are entitled to the possession of those rights which as such are valuable to them, yet the various tribes had not attained at the first settlement of the English people amongst them to such a position in point of numbers and civilization, and to such a form of Government and laws, as to be entitled to be recognized as so many sovereign states governed by laws of their own.⁶⁵

His private notes were hostile: 'their practices', he wrote of Aboriginal people, 'are only such as are consistent with a state of the grossest darkness

& irrational superstition and although in some cases being a show of justice—are founded entirely upon principles particularly in their mode of vindication for personal wrongs upon [sic] the wildest most indiscriminatory notions of revenge’.⁶⁶ Alluding to the principle that the laws of a conquered or ceded colony remained in force until altered by the colonial power, he continued:

It cannot be said of such that these practices are ‘the actual [?] laws of the Country’ & that they remain until conquest or cession and a change of laws by the King. They are to be regarded only in the light of the lewd practices entitled not to so much respect as the Brehon laws of the Wild Irish.⁶⁷

The Court dismissed the challenge to its jurisdiction made by counsel for Murrell. He was found not guilty, however, and in the light of his acquittal, the charges against his co-accused, Bummery, were dropped.

Governor Sir George Gipps reported to London in 1841:

the language now held by this Government is that the Aborigines are Her Majesty’s Subjects; and that, whilst they are entitled in every respect to the benefit and protection of English Law, they are amenable also to the penalties which are imposed on infractions of the Law, whether the offence be committed against one of themselves or against White Men. The practice of the Government also is as far as possible in conformity with this language; and no Law, save English law, or to speak more correctly, the Law of the Colony founded on English Law, is recognized as being of any force in it.⁶⁸

Murrell has had a much larger part in subsequent legal and historical thinking than other early Australian decisions on the legal status of Indigenous people. Unlike the other cases, *Murrell* was included in the retrospective reports of early Supreme Court decisions published in 1896, and the Court continues to apply it.⁶⁹

Murrell owes its long afterlife to more than just its congruence with colonial claims to territorial control and integrity. In its references to authority and precedent, Burton J’s judgment also sought integration within the system of imperial law. Its method of reasoning was as acceptable to later lawyers as its conclusion. Yet it did not end debate about the application of colonial law to offences in which only Aborigines were involved. In 1840, four years after *Murrell*, Dowling CJ could still say: ‘As between the aborigines themselves, the Courts have never interfered, for obvious reasons.’⁷⁰ The argument from practicality was put by Governor Hutt of Western Australia in 1841:

I conceive that the aborigines are not in a position to be treated in all points as British subjects; that we have not the means to supervise and control their dealings with one another in the bush and in the wild districts, the same as within the boundaries of our town sites and farming locations; and that to attempt to make them at all times and under all circumstances in their habits and customs amenable to our laws, would be frequently next to impossible, and might have the effect of a teasing and tiresome persecution, estranging them from us, and rendering them only more tenacious of their own rude and barbarous observances.⁷¹

In the same year, the question was considered again, by the resident judge of the Supreme Court of New South Wales in the Port Phillip District, John Walpole Willis. Bonjon, an Indigenous Watha wurrung man, was charged with the murder of an Indigenous man from another clan. Like the deaths in both *Ballard* and *Murrell*, Bonjon's alleged crime took place within the area of colonial settlement: in Bonjon's case, in a shepherd's hut on a pastoral station near the town of Geelong. More information survives about Bonjon than about Ballard or Murrell. He had worked for the Commissioner of Crown Lands (in return for rations rather than money) but spoke very little English.⁷² Despite legislation that barred Aborigines from possessing firearms without the permission of a magistrate, Bonjon had a gun.⁷³

Willis J discussed the question of the Court's jurisdiction over Aboriginal people at much greater length than his colleagues had in the earlier cases. He reviewed British colonial policy towards Aborigines, the history of New South Wales, and the law of colonization, paying particular attention to North America. 'I am at present strongly led to infer', he said, 'that the Aborigines must be considered and dealt with, until some further provision be made, as distinct, though dependent tribes governed among themselves by their own rude laws and customs.'⁷⁴ Yet his conclusions were provisional at best. He decided that the question of jurisdiction required more consideration, and that the trial could only proceed with that reservation. The trial was adjourned, and the prosecution eventually dropped the charges.

The other judges of the Supreme Court, and Governor Gipps, stated their disagreement with Willis J's argument in favour of Aboriginal autonomy. As Gipps's colonial secretary put it, speaking on his behalf:

even if the Aborigines be looked upon as a conquered people, and it be even further admitted that a conquered People are entitled to preserve their own Laws until a different Law be proclaimed by the Conqueror, still no argument in favour of a separate Code of Laws for the Aborigines of New South Wales can be drawn therefrom, first, because the Aborigines never have been in possession of any Code of Laws intelligible to a Civilized People, and secondly, because their Conquerors (if the Sovereigns of Great Britain are so to be considered) have declared that British Law shall prevail throughout the whole Territory of New South Wales.⁷⁵

The geographical expansion of control by the colonial state supported such claims across a widening area of the country. It became judicial orthodoxy that superior courts had jurisdiction over Indigenous people even when no settlers were involved, despite occasional continuing doubts and challenges.⁷⁶

E. A PLURALITY OF LAWS?

Early court decisions concerning jurisdiction over Indigenous people have attracted the attention of historians and lawyers for several reasons. In demonstrating which cases colonial courts would or would not hear, they are markers of the boundaries of colonial law. They contain some of the most detailed early discussion of the legal foundations of the Australian colonies. And the early decisions renouncing jurisdiction over Indigenous people seem to suggest an alternative legal framework for the colonies, one in which Indigenous laws operated alongside colonial law.

R v Ballard was little known until a law report was published in 1998 as part of a project that gathered newspaper reports and archival records of early decisions of the superior courts of New South Wales.⁷⁷ Bruce Kercher, editor of the report series that brought the decision to wider attention, saw the case as ‘based on a recognition of a plurality of laws on the Australian continent and of the obligation of English law both to recognise and protect those other laws’.⁷⁸ More recently, Lisa Ford has posited that, in this period, ‘jurisdictional practice in New South Wales reveals a lost plural understanding of British sovereignty in New South Wales’.⁷⁹ The theme of limited colonial sovereignty has been taken up elsewhere.⁸⁰ According to such readings of *Ballard* and other court decisions of the period, judges treated English law, or even British sovereignty over New South Wales, as existing alongside Indigenous laws or sovereignty, which the judges

recognized, in a negative way, by renouncing control over offences committed by Aborigines.

Mark Finnane, on the other hand, has drawn on a longer view of the history of crimes committed between Indigenous people (so-called *inter se* offences) to introduce a note of scepticism about the extent to which colonial courts recognized a plurality of laws or sovereignties. ‘Loose talk of legal pluralism in the early nineteenth century’, he writes, ‘overlooks a crucial condition always placed on recognition of other law cultures by the sovereign power—namely the condition of repugnancy, the qualification that these laws would be tolerated up to the point where they conflicted with morality and justice, or with core English legal conceptions.’⁸¹ ‘The colonial era arguments rejecting British jurisdiction over *inter se* offences’, Finnane says, ‘were less recipes for a positive recognition than a negative indifference.’⁸²

The early decisions concerning crimes by Aboriginal people may represent a passing acknowledgement of the practical limits of settler control, rather than a substantive recognition of Indigenous laws or sovereignty. Even after colonial courts formally claimed jurisdiction over *inter se* offences, Indigenous laws continued to operate outside the reach of colonial courts. ‘The reality of Indigenous life in settler domains was a continuing exercise of Aboriginal jurisdiction,’ write Douglas and Finnane, ‘one that was negotiable to the degree that settler law rendered a satisfactory resolution.’⁸³ In the words of Noel Pearson: ‘It is fictitious to assume that Aboriginal law is extinguished where the common law is unable to recognise that law.’⁸⁴

Court decisions are only a partial view of the law of colonization and its effects. The cases on which recent historical debate has focused are predominantly ones involving serious crime, often murder. While these cases were particularly revealing, because of the questions of principle they raised, they represent only a small portion of the overall work of the courts, and an even smaller part of the broad scope of interactions between settlers, Indigenous people, and the colonial system of law and government. For example, the early cases contain only a few incidental references to the question of Indigenous land ownership, although it was often discussed in the press, in government reports, and in other contemporary forums. It is a paradox that the best-known later debate about common law recognition of

Indigenous laws, that surrounding native title, concerns Indigenous land ownership, a topic about which early Australian judges were largely silent.

Beyond superior court decisions about Indigenous and settler crime lies the wider legal system, including the lower courts, policing, and the civil law. Histories of these fields have as yet drawn fewer links with foundational questions about settler law than have studies of the higher courts. An exception is the work of Douglas and Finnane on northern Australia. Finnane comments: ‘such regional histories render the jurisdictional uniformity announced in *Murrell* into little more than an aspiration, its comprehensive reach qualified by other forces of government and the persistence of indigenous cultures’.⁸⁵

F. LATER DEVELOPMENTS

In the 1920s and 1930s, in the course of reviews of government policies concerning Indigenous people, settler lawyers and administrators proposed the creation of so-called ‘native courts’ to hear offences under Indigenous customary law in Western Australia and the Northern Territory. Native courts in this form were not established, but the practice of taking customary law into account in sentencing was formalized, in restricted cases, in these jurisdictions.⁸⁶ Later government enquiries proposed wider and more diverse forms of legislative recognition of Indigenous laws, but with limited effect.⁸⁷

When challenges to jurisdiction over Indigenous people were heard again in Australian courts, from the 1970s onwards, they were more diverse than the early cases concerning criminal jurisdiction. The arguments of the sometimes self-represented litigants were often complex and confusing, but they commonly took the form of challenges to jurisdiction in criminal cases, sometimes coupled with arguments for the recognition of Indigenous criminal laws,⁸⁸ and challenges to the sovereignty of the Crown in Australia, sometimes coupled with claims to Aboriginal sovereignty and to ownership of land.⁸⁹ All were unsuccessful. Such challenges were increasingly met with the principle, derived from the concept of acts of state, that British sovereignty over the Australian colonies was non-justiciable, a matter outside the power of the courts to decide.

In reconsidering Indigenous rights to land, the High Court in *Mabo* found principles within the common law that preserved Indigenous laws of land ownership, in the form of native title. In contrast with earlier legislative grants of land rights, native title was framed, not as a grant of land by the settler legal system, but as a recognition of Indigenous laws.⁹⁰ This aspect of native title was a striking reversal of a century and a half of exclusion of Indigenous laws from Australian courts. Statutory Indigenous land rights, and exclusive and non-exclusive forms of native title, now cover more than 30 per cent of the Australian continent, but difficulties of proof and other shortcomings limit the availability and effect of native title, and critics question the High Court's insistence that it is derived from Indigenous laws.⁹¹

Native title remains the most significant recognition of Indigenous laws by the modern descendants of the colonial courts. The courts' willingness to give effect (albeit restricted) to Indigenous laws concerning land contrasts with their rejection of recognition in other contexts. There are historical reasons for this divergence. Native title, for all the controversy that surrounded its early years, was narrower, and in that sense easier to grant, than recognition of other Indigenous laws. Connections to land are central to much Indigenous life and culture. And, crucially, common law precedent from other countries supported recognition of native title.

The majority judges' acceptance in *Mabo* that Australia was inhabited before European colonization, and that its inhabitants owned their lands, underpinned the Court's recognition of native title. Deane and Gaudron JJ even went so far as specifically to contradict the Privy Council's statement in *Cooper v Stuart* that Australia was 'practically unoccupied' in 1788.⁹² The effect of these reconsiderations of earlier assumptions was confined to title to land, however. The Court confirmed the application of English common law to New South Wales as a colony of settlement.⁹³ *Mabo* found recognition of Indigenous land ownership within settler law, not as an alternative to it.

To the extent that the reasoning in *Mabo* confirms the classification of the Australian colonies as colonies of settlement, as if they were uninhabited before colonization, it leaves untouched what legal historian Robin Sharwood called 'the incongruity between legal characterisation and

historical reality’.⁹⁴ The problem was identified, if not fully resolved, by Brennan J:

It is one thing for our contemporary law to accept that the laws of England, so far as applicable, became the laws of New South Wales and of the other Australian colonies. It is another thing for our contemporary law to accept that, when the common law of England became the common law of the several colonies, the theory which was advanced to support the introduction of the common law of England accords with our present knowledge and appreciation of the facts.⁹⁵

Mabo has so far marked the furthest extent of the courts’ reconsideration of the law of settlement. The High Court challenged the factual assumptions of earlier decisions and found accommodation for Indigenous land ownership within the common law, but left the legal framework of colonization otherwise intact. Changing thinking about the implications of prior Indigenous occupation of Australia now has its strongest legal influence elsewhere, in wider projects of recognition, reconciliation, and treaty-making. There, the law of settlement is part of a historical background rather than, as it was in the 1830s, an open question for the courts.

¹ John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (Angus and Robertson 1901) viii.

² *ibid* 70, referring to *Constitution Act 1889* (WA), s 70, which appropriated an annual sum of £5,000, or 1 per cent of gross revenue, for Aboriginal welfare.

³ See *Mabo v Queensland (No 2)* (1992) 175 CLR 1, 38–40, 97–98, 109, 180–82.

⁴ Andrew Fitzmaurice, *Sovereignty, Property and Empire, 1500–2000* (CUP 2014) 303.

⁵ Commonwealth, *Parliamentary Debates*, House of Representatives, 13 February 2013, 1123 (Tony Abbott).

⁶ Noel Pearson, ‘A Rightful Place: Race, Recognition and a More Complete Commonwealth’ (2014) 55 *Quarterly Essay* 1, 40.

⁷ R T E Latham, ‘The Law and the Commonwealth’ in W K Hancock (ed), *Survey of British Commonwealth Affairs*, vol 1 (OUP 1937) 515.

⁸ Heather Douglas and Mark Finnane, *Indigenous Crime and Settler Law: White Sovereignty After Empire* (Palgrave Macmillan 2012) 35.

⁹ Irene Watson, *Aboriginal Peoples, Colonialism and International Law: Raw Law* (Routledge 2015) 21.

¹⁰ Shino Konishi and Maria Nugent, ‘Newcomers, c 1600–1800’ in Alison Bashford and Stuart Macintyre (eds), *The Cambridge History of Australia*, vol 1 (CUP 2013) 51–54.

¹¹ Instructions for Arthur Phillip, 25 April 1787, *Historical Records of Australia*, ser 1, vol 1 (1914) 13.

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⁸⁰ See Libby Connors, ‘“Within an Hour’s Ride” of the Capital: The Problem of Sovereignty in 1859’ (2015) 17 *Journal of Australian Colonial History* 83.

⁸¹ Mark Finnane, ‘The Tides of Customary Law’ [2006] ANZLH E-Journal, Keynote Speech, 9.

⁸² *ibid* 2–3.

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⁸⁴ Noel Pearson, ‘The Concept of Native Title at Common Law’ in Galarrwuy Yunupingu (ed), *Our Land is Our Life: Land Rights—Past, Present and Future* (University of Queensland Press 1997) 155.

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⁹² *Mabo (No 2)* (n 3), 109.

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CHAPTER 3

FEDERATION

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FEDERATION has been described as ‘the greatest political achievement in Australian history’.¹ The achievement transcended intercolonial rivalries, disparate fiscal policies and other inequalities and distinctions between the Australian colonies, and personal and political antagonisms. The embodiment of federation, the Australian Constitution, a ‘political instrument’,² combines constitutional monarchy; separate legislative, executive, and judicial powers as in the United States; responsible parliamentary government modelled on the Westminster system; and democracy. Federation required national sentiment and a national vision, and a willingness to accept compromise to further that national vision, tempered by widespread acceptance of continued dependence on Britain.³

Federation is well documented and much studied. Participants have given first-hand accounts⁴ and preserved proper records⁵ and the documents are now accessible in a great and comprehensive collection.⁶ Proceedings and debates have been officially recorded.⁷ Biographies have been written of many of the participants.⁸ Comprehensive secondary sources are available; federation has been an enduring subject for Australian historians⁹ and the centenary of federation reinvigorated federation studies.¹⁰

The Commonwealth of Australia, its federal system of government, and its Constitution finally emerged from a ‘movement towards federation’,¹¹ which had waxed and waned for over sixty years but had visibly quickened in the last decade of the nineteenth century.¹² Since the new federation was a union of several independent British colonies, which were to remain under the British Crown and within the British Empire, the Constitution

was necessarily enacted by the British Parliament as the *Commonwealth of Australia Constitution Act* 1900 (Imp). At the invitation of Joseph Chamberlain (then, British Secretary of State for the Colonies), a delegation of Australians—participants in the federal movement¹³—watched the passage of the legislation in the British House of Representatives. On 9 July 1900 Queen Victoria assented to the Act authorizing her to declare by proclamation that the people of several Australian colonies should be united in a Federal Commonwealth under the name of the Commonwealth of Australia.¹⁴ The Act came into force and the Commonwealth of Australia came into being on 1 January 1901 at an event which was celebrated on a day of public holiday,¹⁵ at ‘a brilliant ceremony in the Centennial Park, Sydney’.¹⁶ The word ‘Australia’, coined in 1814, it is said, by Matthew Flinders,¹⁷ was originally ‘a geographic expression only’¹⁸ and the appropriation of the expression ‘the Commonwealth’ has been attributed to Sir Henry Parkes.¹⁹

With one substantial change (explained later), what the British Parliament enacted was a draft Bill that had been prepared in Australia after Federal Conventions²⁰ set up for the purpose in 1891 and 1897–98. The draft had been approved by the people of the colonies in referenda held between 1898 and 1900.²¹ To Alfred Deakin, a founding father closely associated with the ‘movement towards federation’, the final achievement—the compact of the Constitution—seemed to have ‘been secured by a series of miracles’.²² Paradoxically some factors which highlighted the need for a federal union, such as rivalrous tariffs and taxes and diverse policies (between free trading New South Wales and protectionist Victoria), delayed progress as notions of equal trading between the colonies and uniform duties and tariffs were championed and debated. The need for a central government to deal with issues of common concern such as external affairs, posts and telegraph, defence and immigration, was less contentious and anticipated in any event by early initiatives for a federal union and by regular co-operation between the colonies to achieve joint action in respect of such issues.

The voluntary transfer of powers to a central government by diverse and independent colonies, in a new and large country within the British Empire, threw up inevitable questions and tensions. How were loyalties to be managed in an Australian polity under the British Crown and within the

British Empire? Could responsible government, made familiar by the Westminster system, be combined successfully with a federal system of government with some American features—a separation of powers and an upper house representing equally the individual members/States of a federal union? What of the British conception of the complete supremacy of Parliament developed under the common law? How were the interests of the smaller States to be balanced against those of New South Wales and Victoria which contained larger numbers of voters? To what extent should democracy be instituted? How would the common law be accommodated in a federal system of government embodied in a written and rigid Constitution?

Within the framework of drafting a federal Constitution at the Conventions, these and other questions were debated. Notwithstanding well-documented cross-currents and tensions at the Conventions, the inauguration of the Commonwealth of Australia on 1 January 1901 reflected not only the concerted official efforts by delegates at the Conventions, but also popular support about which more will be said.

Contemporary models of federal governments—in the United States, Germany, the Federal Republic of Switzerland, and the Dominion of Canada—provided Australian colonists with an opportunity to consider which particular federal balance, between a central union and its members/States, best suited Australian circumstances. Many of the delegates to the Constitutional Conventions were accomplished colonial politicians well versed in colonial systems of responsible government based on the Westminster system in which, as Walter Bagehot remarked, Cabinet was ‘the buckle’ tying together the legislature and the executive.²³ The development of separate colonial constitutions (with bicameral Parliaments in New South Wales, Victoria, South Australia, and Van Diemen’s Land (later Tasmania)) had been authorized by the *Australian Constitutions Act* 1850 (Imp) under which, subject to final approval in Britain, the Australian colonies were permitted to draft their own self-governing constitutions. That conformed to a template developed for British colonies during the time of the Industrial Revolution and represented a realistic appreciation by the middle of the nineteenth century that much social and political change had occurred in Australia since the establishment in 1787 of a ‘criminal jurisdiction on the eastern coast of New South Wales and the parts adjacent’.²⁴ Contemporary colonial debates over the composition of

colonial upper houses,²⁵ namely whether they should be elected or nominated, presaged a growing and independent enthusiasm for democracy and a rejection of Imperial autocracy expressed in nominated bodies with limited legislative competency.²⁶ Sophisticated observers appreciated that a nominated upper house would not fit with a democratically elected lower house.²⁷ That rapidly developing enthusiasm reflected rapid increases in population, the coming to maturity of the native born, and claims for a wider franchise both locally and in Britain.

The Constitution instituted a somewhat novel system of federal government with its combination of a system of responsible government, in which a relevant Minister must retain the confidence of the lower house, with an American-style upper house in which each member/State of the federation is equally represented. The framers of the Constitution also took from America express separation of legislative, executive, and judicial powers, specific powers for the High Court to resolve federal/State disputes,²⁸ and the specification of legislative powers for the central federal government,²⁹ leaving a considerable residue of legislative power with the States.³⁰ That division of powers deliberately differed from Canada. The framers borrowed from Germany provision for aged pensions,³¹ then an emerging political issue in Britain, and copied the Swiss referenda procedures for amending the Constitution. Finally, a democratic cast was given to the Constitution which provided for direct election by single vote of electors for both houses of Parliament.³²

That concatenation of features reflects many strands in political thought at the time, local social and economic developments and the circumstance that Australia's birth as a nation was comparatively placid.³³ There was no crucible of war, or revolution, or civil conflict sufficient to rupture relations between the Australian colonies and the mother country, and indeed Britain promoted the degree of self-determination reflected in the Constitution, not least to devolve 'responsibility for expenditures, particularly for defence'.³⁴ Britain, in the nineteenth century, did not want a revolution as in France to achieve democracy. Nor would Britain have encouraged or welcomed in Australia anything replicating the American War of Independence from which America emerged as a democratic republic. Accordingly Australia's movement towards federation was not marked by deep philosophical

differences between leading figures such as the differences between Jefferson and Hamilton, or debates over republican models of federation which characterized American federalism.³⁵ Some would see Britain's acquiescence in the achievement, in the Australian colonies, of much of the Chartist programme by the mid-nineteenth century as practically extinguishing any fledgling enthusiasm for a republican system of government.³⁶ That programme had six points for parliamentary reform, the most central of which was 'universal manhood suffrage'.

A. THE IDEA OF FEDERATION

The idea that Australia might become a federation of its separate and independent colonies was nearly as old as the development of separate settlements.³⁷ New South Wales had been founded as a penal colony in 1788 and Van Diemen's Land followed in 1804. Queensland was first settled in 1824 and Western Australia was founded in 1829. Melbourne was first settled in 1835 and after considerable popular agitation Victoria separated from New South Wales and became a separate colony in 1850. Soon after, transportation of convicts would cease in all parts of Australia except Western Australia where the practice continued until 1868. South Australia was founded in 1836, and Queensland separated from New South Wales in 1859.

The entire movement towards federation over some sixty years falls readily into four phases: 1847–1857; late 1850s–1880; 1880–1890; 1890–1900.³⁸ The third Earl Grey (British Secretary of State for the Colonies from 1846 to 1852) adopted the first plan for federation in Australia in 1847 which was premature and received apparently with hostility.³⁹ Relevantly that plan envisaged a General Assembly with certain powers in respect of matters of common interest—customs and excise, postal business, roads and railway, lighthouses, weights and measures. It was also to institute a Supreme Court to act as a court of appeal from colonial courts and was to have legislative powers in respect any other subject which will be referred to it by the Parliaments of the colonies. Defence remained an imperial responsibility.⁴⁰ This proposal was fleshed out in greater detail by the Privy Council in 1849.⁴¹ This plan for federation predated the separation of

Victoria from New South Wales, the radicalizing effect of the discovery of gold—and the doubling of the population which that caused—emerging defence issues in the 1880s, the need for economic recalibration required on the tailing off of the gold boom and the collapse of a land boom in the 1890s, and a rapidly growing sense of national identity. It was these factors which finally drew together colonies of different sizes, background, and power, with distinctly different degrees of enthusiasm for a federal union. Further, towards the end of the nineteenth century various contemporary studies of government, taking into account especially the American experience, had become available. After Lord Grey there were local, albeit cautious, supporters of the idea of a federal union, for legislative purposes. For example, the Select Committee Report, 1857 by Gavan Duffy, raised the very questions with which more immediate participants in federation would grapple—were there to be two houses of parliament; was there to be a federal executive; should federal government be empowered to raise its own revenue; and how were federal laws to be enforced?⁴²

In the second phase, from the late 1850s until 1880, there was some talk of federation and little action. However, by 1859 there were five self-governing colonies with systems of responsible government and democratically elected lower houses. The discovery of gold mid-century led to a doubling of population with attendant social and economic developments. Gold had an equalizing effect which meant that certain British institutions could never be transplanted fully to Australia.⁴³

The third phase beginning in the 1880s involved something of a reaction to protectionist policies provoking bitterness at the borders and a dread of Imperial powers other than Britain moving into the Pacific, namely Germany in New Guinea and France in the New Hebrides and New Caledonia.⁴⁴ A Federal Council was created in 1885 by an Act of the Imperial Parliament, with each colony to provide two representatives. The Council could make laws in certain limited areas of common interest to the colonies, but it had no executive powers and no ability to raise its own revenue. If the Council's reliance on the colonies to enforce its legislation rendered it somewhat ineffectual, its authority was only further undermined when New South Wales, whose Premier Sir Henry Parkes had initially suggested its creation, declined to take part.⁴⁵

The fourth and critical phase of the movement towards Federation began on another initiative of Parkes.⁴⁶ A federation conference was arranged in Melbourne in February 1890 for the purpose of testing Australian opinion on federation. At the opening banquet James Service, a federalist and ex-Premier of Victoria, proposed ‘A United Australasia’ and raised what many considered the most formidable obstacle or ‘lion’ in the way of federal union:

Probably the first question, and the most difficult, which the conference will have to decide, is that referring to a common tariff, or the question of a common fiscal policy. Now I have no hesitation whatever in saying that this to me is the lion in the way.⁴⁷

Sir Samuel Griffith, arguing that matters such as fiscal policy should be considered only as means, not ends, and that ‘federation without fiscal union would be better than no federation at all’,⁴⁸ urged the delegates ‘not to lose sight of the one great end in view—the establishment of a nation’.⁴⁹

A principal resolution of the Conference drafted partly by Parkes and settled by the Victorian delegates including Alfred Deakin⁵⁰ set the scene and tone for the major Conventions which followed:

That, in the opinion of this Conference, the best interests and the present and future prosperity of the Australasian Colonies will be promoted by an early union under the Crown, and, while fully recognizing the valuable services of the members of the Convention of 1883 in founding the Federal Council, it declares its opinion that the seven years which have since elapsed have developed the national life of Australasia in population, in wealth, in the discovery of resources, and in self-governing capacity, to an extent which justifies the higher act, at all times contemplated, of the union of these Colonies, under one legislative and executive Government on principles just to the several Colonies.⁵¹

Before turning to the detail of the Conventions, it is worth saying something more about the longer and wider historical context in which the movement towards federation first took shape and then finally succeeded.

B. HISTORICAL CONTEXT

The British explorer and mariner, James Cook, arrived in New South Wales in 1770 just six years before the American Declaration of Independence. That Declaration was written largely by Thomas Jefferson who acknowledged the intellectual underpinnings in 1825 thus:

as to the general principles of liberty and the rights of man, in nature and in society, the doctrines of Locke, in his 'Essay concerning the true original extent and end of civil government' and of Sidney and his 'Discourses on government', may be considered as those generally approved by our fellow citizens of this, and the United States.

In 1788 Sydney was founded as a British penal settlement, some five years after Britain recognized America's independence and a year prior to the French Revolution. Britain's Industrial Revolution was underway, James Watt having patented his steam engine in 1782. Edmund Burke published his *Reflections on the French Revolution* in 1790 expressing his support for government by oligarchy, at the apex of which was the monarch, and a decided preference for gradual political change. Thomas Paine responded the following year with his *Rights of Man* which advocated republicanism and a system of social welfare, and reiterated a slogan long associated with a democratic suffrage that there should be 'no taxation without representation'.

The first half of the nineteenth century in Britain which followed was not only characterized by the full efflorescence of the Industrial Revolution but also by rising sentiment for greater political representation embodied in the Chartist Petitions of 1839, 1842, and 1848.

The international events of the following watershed year of 1848 are well known. Republics were proclaimed in Paris, Neuchâtel, Rome, and Venice. The new federal Constitution of the Republic of Switzerland came into being and in London the third Chartist Petition for greater enfranchisement was a miserable failure. Gold was discovered in California. In 1851, the first Australian goldfield opened. The Crimean War of 1854–56 happened to coincide with vigorous campaigns in the Australian colonies for greater suffrage. In 1859 Charles Darwin's *Origin of the Species* was published.

In 1867 the Imperial Parliament passed the *British North America Act 1867* (Imp), which constituted the legal authority for the inauguration of the Canadian federation. Under this model, the powers of the Provincial legislatures were specified while the federal Parliament was assigned residual powers (the opposite of the federal system ultimately adopted in Australia) as well as being granted the power to disallow Provincial laws.⁵²

The three British Reform Acts of 1832, 1867, and 1884 were an important backdrop to colonial enthusiasm for democracy in Australia which outpaced cognate developments in the mother country. In the latter third of the nineteenth century Britain took its first steps towards legalizing

trade unions and Queen Victoria celebrated Jubilees of her reign in 1887 and 1897.

In 1885 Dicey published his *Introduction to the Study of the Law of the Constitution*, and in 1888 Bryce published *The American Commonwealth*,⁵³ in which he pondered the tensions which might arise in a federation.⁵⁴ These social and political developments and reflections on government are all part of the spirit of the age inhabited by the delegates to the Conventions.

The times were right for the establishment of a modern democratic federation. The history of the preceding century afforded the framers of the Australian Constitution more confidence in parliamentary government than their American counterparts had enjoyed.⁵⁵ As noted, they were to create a nation with the blessing of the mother country, not after violent separation from it. Less wary of tyrannical rule, they would see little need to entrench individual rights at the expense of parliamentary sovereignty.⁵⁶

At the same time, if drawing the colonies together into one great nation was an objective of the framers of the Constitution, just as important was furthering the interests of the individual colonies and relinquishing only as much control over their own affairs as necessary to achieve their political goals. Social inclusion and complete democracy were not immediate considerations. Thus, while the Constitution which was eventually drafted prohibited plural voting in federal elections,⁵⁷ the franchise at the time of federation was intended to follow the system already in place in each of the colonies' lower Houses.⁵⁸ Suffrage for women had been granted only in South Australia and Western Australia, while for Indigenous people in Queensland and Western Australia the right to vote was dependent upon property qualifications. Persons of 'the aboriginal native race in Australia',⁵⁹ as they were described at the time, were excluded from voting altogether in the Northern Territory section of South Australia. The framers of the Constitution were part of a society in which many people firmly believed that Indigenous Australians would soon die out, and were 'in any case unworthy of citizenship'.⁶⁰ It is therefore not surprising that, 'in constructing a white community through writing a constitution, the Aboriginal peoples upon whose land the nation was to be built featured scarcely at all'.⁶¹

C. CONVENTION OF 1891

The first Constitutional Convention was held in Sydney in March and April of 1891. The six Australian colonies each sent seven delegates, while New Zealand, which never seriously considered federation but felt attendance would be worthwhile if only as an information-gathering exercise, sent three.⁶² Delegates were appointed by, and from, the colonial Parliaments, which ensured that, while encompassing a broad range of talents and capacities,⁶³ the Convention was the exclusive domain of the political elite of the day.⁶⁴ The delegates would have considered their task a complex but nonetheless clearly defined political exercise: to create a model for a central government born not, as we have seen, from revolution or civil unrest, but from a comparatively straightforward desire for co-operation in areas of common interest such as trade, posts and telegraph, and defence. With these considerations as the initial impetus, it is easy to see why it would take almost another decade for broad support for federation to build among the general population, and for Griffith's 'one great end'—nationhood—to be achieved. At the Melbourne Conference, Thomas Playford had referred to the difficulties of achieving federation without popular support:

We find that this desire for federation has sprung from the top. It has commenced in the higher and not the lower branches of society. ... The great mass of the people ... do not appear to be greatly moved. There is no war impending; they are not much troubled by the officers of the custom house; and the result is that they do not take much interest in the subject of federation. The members of the Conference have met, but there has been no great wave of public opinion to carry them on to success, and without this success will never be achieved.⁶⁵

This issue would become more apparent after the close of the first Convention; in the meantime the delegates were focused on the immediate challenge of creating a draft Constitution which might command the agreement of all the colonies.

Sir Henry Parkes provided a framework for the first Convention and the draft Constitution it was to produce in a series of resolutions debated and accepted (with some amendments) by the delegates.⁶⁶ It was agreed that the federal government would be granted only those powers the colonies wished to surrender;⁶⁷ that free trade between the colonies would be guaranteed;⁶⁸ that the federal government would have exclusive powers to impose customs duties;⁶⁹ and that a national defence force would be

created.⁷⁰ The Constitution would also establish a federal Parliament, judiciary, and executive.⁷¹ The Parliament would comprise two houses—a Senate in which each colony/State would be represented equally regardless of size, and a House of Representatives elected on a popular basis, which would have the sole power of imposing taxation and appropriating revenue.⁷²

When moving his resolutions Parkes encouraged delegates as far as possible to ‘lose sight’ of local interests and approach their task ‘in a broad, federal spirit’.⁷³ The challenge of reconciling ‘government by a majority of the people with government by a majority of the states’⁷⁴ was highlighted early in the Convention by Griffith, who pointed out that if federation were to guarantee equal power to all States regardless of size, the two Houses of Parliament should themselves be equal.⁷⁵ Whilst equality of the chambers was something the Convention was said to have accepted as ‘fundamental’,⁷⁶ it was Griffith who showed that this would raise implications which might have eluded some delegates.⁷⁷ One such implication was that the Senate must have the power to veto or amend all bills originating in the House of Representatives, including money bills.⁷⁸ This would be especially important to the smaller colonies/States as a means of protecting their interests against those of Victoria and New South Wales, which otherwise were bound to dominate the House of Representatives.⁷⁹ Federation would hold little attraction for the less populous colonies without such a safeguard. However, as Griffith further noted, equal powers for both Houses of Parliament might prove inconsistent with the British system of responsible government already established in the colonies and favoured by many delegates.⁸⁰ How could responsible government, in which Ministers must retain the confidence of the popularly elected lower house, coexist with a federal system in which bills could be vetoed or amended by an upper house representing not a majority of the population but the States? This question was even more important at the time of the first Convention, when it was assumed that senators would be chosen by the State Parliaments rather than by democratic election.⁸¹ John Winthrop Hackett of Western Australia put it succinctly when he observed that ‘either responsible government will kill federation or federation ... will kill responsible government’.⁸² Another delegate, John Macrossan of

Queensland, suggested that this was less an issue than might be assumed, since senators would be likely to vote along party lines rather than out of loyalty to their individual States.⁸³ La Nauze, writing in 1972, described Macrossan's words as 'prophetic',⁸⁴ but he could scarcely have imagined how prophetic they would prove to be just three years later.⁸⁵

The respective powers of the two houses in relation to money bills became the 'central debate'⁸⁶ in a discussion of Parkes' resolutions which took up eleven sitting days and was to fill more than half the printed record of the Convention.⁸⁷ Ultimately, the Convention settled on a compromise, based on the system used in South Australia, in which the Senate could reject, but not amend, money bills.⁸⁸ The Senate could, however, return money bills to the House of Representatives requesting 'the omission or amendment of any items or provisions therein'.⁸⁹ However, there was no provision for circumstances in which the House of Representatives might return a bill to the Senate without the requests being implemented, leaving open the possibility that a bill could pass back and forth between the two Houses indefinitely.⁹⁰ As to the detail of responsible government, the draft Constitution of 1891 stated only that Ministers 'may' sit in Parliament.⁹¹ Such considerations would not be definitively addressed until the second Constitutional Conference in 1897–98.

D. GRIFFITH'S DRAFT AND THE CONTRIBUTION OF INGLIS CLARK

As Chairman of the Convention's Constitutional Committee, it was Griffith who took responsibility for creating the first draft Constitution, with assistance from Andrew Inglis Clark, Charles Kingston, and Edmund Barton.⁹² Both Inglis Clark and Kingston had made their own attempts prior to the Convention, but it was Inglis Clark's draft, which was more consistent with decisions subsequently made in the Committee, that provided the starting point for Griffith.⁹³ Inglis Clark, then Tasmanian Attorney-General, was a keen student and admirer of the Constitution and federal model of the United States⁹⁴—so much so that unlike many delegates he was prepared to forego responsible government in favour of an American-style system in which the executive would not be answerable to Parliament.⁹⁵ His draft was heavily influenced by the United States

Constitution,⁹⁶ but he also adopted aspects of the *British North America Act 1867* (Imp) which ushered in the Constitution of Canada.⁹⁷ Under the influence of the American model of federation, Inglis Clark appeared ready to go further than many of his peers when it came to the level of independence which a new Australian Commonwealth should have from Great Britain.⁹⁸ This was obvious in his vision for the role of a federal Supreme Court. Under the draft of Inglis Clark, an Australian High Court would be created as a final appellate court for both State and federal matters, with federal Parliament given power to legislate for the removal of all avenues of appeal to the Judicial Committee of the Privy Council in Britain.⁹⁹ The delegates to the Convention were not prepared to take so bold a step, and Griffith accordingly amended the provisions drafted by Inglis Clark so that leave might still be granted by the Privy Council to appeal against a judgment of the High Court ‘in any case in which the public interests of the Commonwealth, or of any State, or any other part of the Queen’s dominions, are concerned’.¹⁰⁰ This was nonetheless a significant limitation on the availability of appeals to the Privy Council. It would be firmly opposed by the Colonial Office in London, and when a different but no less contentious provision emerged from the second Convention of 1897–98 it would prove a significant obstacle in the passing of the Constitution Bill in the British Parliament.¹⁰¹

While Griffith was rightly viewed by his contemporaries as the ‘dominating and responsible draftsman’,¹⁰² Inglis Clark’s influence on the content and structure of the Constitution should not be underestimated. Of the ninety-six clauses in his draft, eighty-eight were to remain in some form in the final Bill passed by the British Parliament.¹⁰³ However, at the time of the first Convention, with the task of drafting a Constitution still ahead of the delegates, perhaps his greatest contribution was ‘to show how the thing could be done, and to save much time’.¹⁰⁴

The draft Constitution produced by the Convention of 1891 was to heavily influence the work of the Convention of 1897–98 and form the basis of the final Australian Constitution.¹⁰⁵ It did not, however, command broad political or public support, and despite the optimism of the delegates at the close of the 1891 Convention¹⁰⁶ it was to take another decade for federation to be achieved.

E. BETWEEN THE CONVENTIONS: POLITICS AND POPULAR ACCEPTANCE

Any hopes delegates to the 1891 Convention may have held that their efforts would create a clear path to federation would soon be dashed.¹⁰⁷ The draft Bill was considered and made some progress in the Parliaments of South Australia, Tasmania, and especially Victoria, but eventually stalled. Understandably, all the other colonies were waiting for New South Wales, as it was rightly surmised that little could be accomplished if the most populous colony would not support the Bill.¹⁰⁸ However, at least for the time being, local politics in New South Wales would take precedence over federal considerations. The recently formed Labor Party was far from enthusiastic about federation, believing that it would ‘do nothing to meet those social and industrial problems so urgently pressing for a solution’ in New South Wales.¹⁰⁹ The draft Bill was ‘too rigid to suit the progressive spirit of Australian democracy’ and should not proceed without a popular mandate.¹¹⁰ George Reid, a local rival of Parkes,¹¹¹ set out to undermine the draft by criticizing its lack of clarity on responsible government and objecting to the disproportionate power that the smaller States would wield in the Senate.¹¹² After Parkes lost his parliamentary majority and resigned as Premier of New South Wales in October 1891, it was Barton—now Attorney-General—who took up the challenge of promoting the draft in an ‘unsympathetic’ Parliament.¹¹³ But local politics would soon get the better of this committed federalist, forcing him to resign from Cabinet, and the Bill would progress no further.¹¹⁴

Another major element in the loss of momentum, by no means limited to New South Wales, was a severe economic downturn occurring across most colonies, exacerbated by a long drought.¹¹⁵ Banks collapsed, wool and land prices plummeted, and unemployment soared. Economic recovery became the priority of the colonial legislatures;¹¹⁶ supporters of federation would have to bide their time, or find another path. Indeed, it was becoming clear that federation could not be achieved by parliamentary efforts alone—momentum would need to come from the wider population.¹¹⁷ Ultimately, the same economic crises that had kept the colonial Parliaments from continuing their federal efforts served to draw popular attention to the potential benefits of federation. From 1892, there was a growing

recognition that ‘the prosperity of each colony was bound up in that of the others; that disaster to one meant loss to all; and that strength lay in co-operation’.¹¹⁸ People began to see the ‘folly’ of intercolonial trade barriers, and ‘[f]ederation began to appeal to the pocket as well as to the heart’.¹¹⁹ These economic circumstances identified federation as a desirable common goal to the people of the disparate colonies.

The awakening of the popular imagination was reflected in the growth of organizations such as the Australian Natives’ Association (ANA) and the creation of Federal Leagues which became especially prominent and influential in Victoria and New South Wales. Still smarting from the failure of the 1891 Bill, federalist politicians also threw themselves into this popular cause, none more so than Barton.¹²⁰ A turning point was reached at an Australasian Federal League conference in Corowa in 1893, where an idea emerged that would silence any criticism of the federal movement as undemocratic and driven mainly by the political classes. An ANA representative from Bendigo, Dr John Quick, moved a resolution proposing that each colony pass legislation to allow for the election of delegates to a second Convention, to be given the task of drafting a new Bill for a federal Constitution.¹²¹ The Bill would then be presented to the people for the purposes of referenda, and, if accepted by majorities in a sufficient number of colonies, would be sent to the Imperial Parliament in London for enactment. The resolution was adopted, and the proposal soon gained widespread support. By 1895 it had received the backing of a majority of colonial premiers, including George Reid of New South Wales who had so forcefully argued against the 1891 draft.¹²² In March 1897, popular elections for the new Constitutional Convention were held in all Australian colonies except Western Australia, which insisted on delegates being selected by Parliament, and Queensland where the enabling legislation had not yet been passed.¹²³ (New Zealand took no serious part in the federation movement after the close of the 1891 Convention.)¹²⁴ Ten delegates from each participating colony were duly elected. All but one were current or former politicians,¹²⁵ and seventeen had been delegates in Sydney in 1891.¹²⁶ However, unlike the delegates of the earlier Convention, all had been chosen by the voting public, and the Constitution they were asked to frame would be accepted or rejected by popular vote.¹²⁷

F. CONVENTION OF 1897–98 AND FINAL STEPS TOWARDS FEDERATION

The Constitutional Convention of 1897–98 was held in three sittings in Adelaide, Sydney, and Melbourne. While a number of delegates were content to use the draft Constitution of 1891 as a starting point in Adelaide, it was soon agreed that the more democratic nature of the new Convention required a fresh start under a new set of guiding resolutions.¹²⁸ Ultimately, however, the new resolutions closely resembled those put forward by Parkes six years earlier,¹²⁹ and the draft Constitution that emerged after many long debates, detours, and dead ends largely followed its predecessor,¹³⁰ albeit with a democratic cast. Despite their absence at the second Convention, the work of Inglis Clark and Griffith would endure, their contributions recognizable ‘in almost every clause’ of the new draft Bill.¹³¹

There were some notable differences from the 1891 draft. The question of responsible government was answered definitively by a provision that members of the executive would be required (and not simply permitted) to hold a seat in Parliament.¹³² A system of double dissolution followed if necessary by a joint sitting was introduced to resolve deadlocks between the House of Representatives and the Senate.¹³³ Importantly, and in keeping with the more democratic nature of the second Convention, senators would not be selected by the State legislatures, but would be ‘directly chosen by the people of the State’.¹³⁴

After the final sessions in Melbourne, the Bill was presented to voters in each colony in various referenda in 1898. New South Wales again was a source of difficulty, not immediately accepting the Bill, which meant that several amendments had to be made before it was finally approved by all colonies in 1899, except Western Australia.¹³⁵ After hesitating over questions of tariffs, Western Australia finally approved the Bill by referendum in September 1900.

The Bill of 1898 did not restrict appeals to the Privy Council to the extent provided in the 1891 draft, but it nevertheless retained the federal Parliament’s power to prevent appeals from decisions of the State Supreme Courts to the Privy Council.¹³⁶ The High Court was also to be the final court for constitutional matters.¹³⁷ As noted earlier, these provisions would

prove unacceptable to the Colonial Office in London. Before the final Bill was presented to the British Parliament for enactment, Colonial Secretary Chamberlain made it clear that it would not be passed without amendments to these provisions.¹³⁸ Forced to choose between compromise and delay, the Australian delegates chose compromise,¹³⁹ with the result that appeals to the Privy Council from State Supreme Courts would be retained. Appeals from the High Court would also be permitted except in matters regarding the limits *inter se* of the constitutional powers of the Commonwealth and the States, or the limits *inter se* of the constitutional powers of the various States. The final hurdle on the path to federation had been cleared.

G. CONCLUSION

If it is right to describe federation as involving ‘a series of miracles’¹⁴⁰ and as Australia’s ‘greatest political achievement’,¹⁴¹ it could also be seen as inevitable, part of a natural progression towards representative democracy as a result of widespread political and social change in the nineteenth century. While the federation movement reflected the *zeitgeist*, and in particular New World enthusiasms, it was, nonetheless, noticeably subdued on the question of female emancipation and deeply silent on the democratic participation of Indigenous Australians.¹⁴² The Constitution, in its original form, reflected this. Changes have been made.¹⁴³ It has yet to be determined whether further changes are forthcoming, and, if so, what their form and content will be. Notwithstanding this, the general observation may be made that its framers, and the federation movement, left us a Constitution which has endured as the bedrock of a stable, resilient, and democratic society.

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¹ John Hirst, ‘Federation’ in Graeme Davison, John Hirst, and Stuart Macintyre (eds), *Oxford Companion to Australian History* (OUP 2001) 245. This echoes Sir Owen Dixon’s description of the establishment of Australia’s federal constitution as ‘the greatest event in our political and legal development’ in ‘The Law and the Constitution’ in Severin Woinarski (ed), *Jesting Pilate* (Law Book Co. 1965) 51.

² *Melbourne Corporation v Commonwealth* (1947) 74 CLR 1, 82 (Dixon J).

³ See John Hirst, *The Sentimental Nation* (OUP 2000) [ch 2](#).

⁴ Alfred Deakin, *The Federal Story* (Robertson & Mullens 1944); Bernard Ringrose Wise, *The Making of the Australian Commonwealth 1889-1900* (Longman 1913). See also John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (Angus & Robertson 1901).

⁵ Samuel Griffith, Successive Stages of the Constitution, now to be found in John M Williams, *The Australian Constitution: A Documentary History* (Melbourne UP 2005).

⁶ Williams, *The Australian Constitution* (n 5).

⁷ Official Record of the Debates of the Australasian Federal Convention (1891–98).

⁸ See, eg, John A La Nauze, *Alfred Deakin: A Biography* (Melbourne UP 1965); Allan William Martin, *Henry Parkes: A Biography* (Melbourne UP 1980); Roger B Joyce, *Samuel Walker Griffith* (University of Queensland Press 1984); Geoffrey Bolton, *Edmund Barton* (Allen & Unwin 2000).

⁹ See, eg, Ernest Scott, *A Short History of Australia* (6th edn, OUP 1943); John A La Nauze, *The Making of the Australian Constitution* (Melbourne UP 1972); Manning Clark, *A History of Australia: Volumes V & VI* (Melbourne UP 1995).

¹⁰ See, eg, Helen Irving (ed), *The Centenary Companion to Australian Federation* (CUP 1999); Hirst, *The Sentimental Nation* (n 3).

¹¹ *Cole v Whitfield* (1988) 165 CLR 360, 385.

¹² Deakin (n 4) 103–09; 158–66.

¹³ See R R Garran, *Prosper the Commonwealth* (Angus & Robertson 1958) 87.

¹⁴ *Commonwealth Constitution*, s 3.

¹⁵ Peter Botsman, ‘The Federation Follies’ (2000) 72(3) *Australian Quarterly* 7, 9.

¹⁶ Garran (n 13) 142–43.

¹⁷ Quick and Garran (n 4) 33.

¹⁸ Garran (n 13) 87.

¹⁹ Deakin (n 4) 46.

²⁰ See Official Record of the Debates of the Australasian Federal Convention (1891–98); Williams, *The Australian Constitution* (n 5).

²¹ Western Australia adhered to the federation at the last minute in September 1900.

²² Deakin (n 4) 166.

²³ Walter Bagehot, *The English Constitution* (7th edn, Kegan Paul, Trench, Trübner & Co 1894) 14.

²⁴ 27 Geo 3 c 2.

²⁵ See, eg, Charles Parkinson, *Sir William Stawell and the Victorian Constitution* (Australian Scholarly Publishing 2004) 17–18.

²⁶ Cephas Daniel Allin, *The Early Federation Movement of Australia* (British Whig 1907) 3.

²⁷ Parkinson (n 25) 25–26.

²⁸ *Commonwealth Constitution*, Chapter III.

²⁹ *ibid* s 51.

³⁰ Nicholas Aroney, ‘The Idea of a Federal Commonwealth’ (Paper presented at the Samuel Griffith Society Conference, Sydney 2008) 3, subsequently published in *Upholding the Australian Constitution* (Proceedings of the Samuel Griffith Society, Volume 20, 2008).

³¹ Official Report of the National Australasian Convention Debates (Sydney, 22 September 1897).

³² *Commonwealth Constitution*, ss 7, 24; 8, 30.

³³ See, eg, Scott (n 9) 304–05; Helen Irving, *To Constitute a Nation: A Cultural History of Australia’s Constitution* (CUP 1999) 86.

- ³⁴ Bradley Selway and John M Williams, ‘The High Court and Australian Federalism’ (2005) 35(3) *Publius* 467, 469.
- ³⁵ See generally Stanley Elkins and Eric McKittrick, *The Age of Federalism* (OUP 1993).
- ³⁶ As to which, in respect of Victoria, see David Goodman, *Gold Seeking: Victoria and California in the 1850s* (Allen & Unwin 1994) ch 2.
- ³⁷ Garran (n 13) 87.
- ³⁸ See La Nauze, *The Making of the Australian Constitution* (n 9) ch 1.
- ³⁹ Quick and Garran (n 4) 82.
- ⁴⁰ Scott (n 9) 298.
- ⁴¹ Williams, *The Australian Constitution* (n 5) 7–9.
- ⁴² *ibid* 10–11.
- ⁴³ Parkinson (n 25) 25–26. See also Foster, Colonial Secretary for Victoria, reported in the *Argus*, 4 January 1854: ‘[The] social condition of this colony renders a close assimilation to certain British institutions impossible and ... an attempt to imitate them is likely, not only to fail, but to introduce the evils without the advantages experienced from them in England.’
- ⁴⁴ Deakin (n 4) 9.
- ⁴⁵ Scott (n 9) 300–01; La Nauze, *The Making of the Australian Constitution* (n 9) 2–3.
- ⁴⁶ Deakin (n 4) 15, and La Nauze, *The Making of the Australian Constitution* (n 9) 8, suggest that Parkes was spurred to action by a proposed expansion, in numbers and therefore in influence, of the Federal Council. Having already declined to join the Council New South Wales could either lead or be led on federal matters.
- ⁴⁷ Quoted in La Nauze, *The Making of the Australian Constitution* (n 9) 11.
- ⁴⁸ Official Record of the Proceedings and Debates of the Australasian Federation Conference (Melbourne, 10 February 1890).
- ⁴⁹ *ibid*.
- ⁵⁰ Deakin (n 4) 28; La Nauze, *The Making of the Australian Constitution* (n 9) 14–15.
- ⁵¹ Official Record of the Proceedings and Debates of the Australasian Federation Conference (Melbourne, 6 February 1890).
- ⁵² See La Nauze, *The Making of the Australian Constitution* (n 9) 27. See also Peter Heerey, *Excursions in the Law* (Desert Pea Press 2014) 13.
- ⁵³ Dedicated to Dicey.
- ⁵⁴ For a discussion of Bryce’s influence on the Australian Constitution, see Justice Stephen Gageler, ‘James Bryce and the Australian Constitution’ (2015) 43 *Federal Law Review* 177.
- ⁵⁵ *A-G (Cth) ex rel McKinlay v Commonwealth* (1975) 135 CLR 1, 23–24.
- ⁵⁶ See Justice Patrick Keane, ‘The People and the Constitution’ (Speech delivered as the 22nd Lucinda Lecture, Monash University, 11 August 2016).
- ⁵⁷ *Commonwealth Constitution*, ss 8, 30.
- ⁵⁸ See *Rowe v Electoral Commissioner* (2010) 243 CLR 1, 114 [353].
- ⁵⁹ Quick and Garran (n 4) 622.
- ⁶⁰ Hirst, *The Sentimental Nation* (n 3) 20.
- ⁶¹ Irving, *To Constitute a Nation* (n 33) 113.
- ⁶² La Nauze, *The Making of the Australian Constitution* (n 9) 21.
- ⁶³ See Deakin (n 4) 31–38; La Nauze, *The Making of the Australian Constitution* (n 9) 29.
- ⁶⁴ Scott (n 9) 302.

⁶⁵ Official Record of the Proceedings and Debates of the Australasian Federation Conference (Melbourne, 10 February 1890).

⁶⁶ Official Report of the National Australasian Convention Debates (Sydney, 2 March to 9 April 1891). See also Williams, *The Australian Constitution* (n 5) 34–36.

⁶⁷ Ultimately enacted as *Commonwealth Constitution*, s 51.

⁶⁸ *Commonwealth Constitution*, s 92.

⁶⁹ *ibid* s 86.

⁷⁰ *ibid* s 69.

⁷¹ *ibid* Chapters I–III.

⁷² *ibid* s 53.

⁷³ Official Report of the National Australasian Convention Debates (Sydney, 4 March 1891).

⁷⁴ Patrick Parkinson, *Tradition and Change in Australian Law* (5th edn, Thomson Reuters 2013) 159.

⁷⁵ Official Report of the National Australasian Convention Debates (Sydney, 4 March 1891).

⁷⁶ Deakin (n 4) 45.

⁷⁷ La Nauze, *The Making of the Australian Constitution* (n 9) 39.

⁷⁸ Official Report of the National Australasian Convention Debates (Sydney, 4 March 1891). See also La Nauze, *The Making of the Australian Constitution* (n 9) 39; Quick and Garran (n 4) 126–27.

⁷⁹ See Quick and Garran (n 4) 127.

⁸⁰ Official Report of the National Australasian Convention Debates, Sydney (4 March 1891). See also Deakin (n 4) 45–46.

⁸¹ La Nauze, *The Making of the Australian Constitution* (n 9) 71.

⁸² Official Report of the National Australasian Convention Debates (Sydney, 12 March 1891). See further Deakin (n 4) 36; Quick and Garran (n 4) 127; La Nauze, *The Making of the Australian Constitution* (n 9) 41.

⁸³ Official Report of the National Australasian Convention Debates (Sydney, 17 March 1891); La Nauze, *The Making of the Australian Constitution* (n 9) 44; Deakin (n 4) 35.

⁸⁴ La Nauze, *The Making of the Australian Constitution* (n 9) 44.

⁸⁵ In 1975, the Liberal-Country Party Opposition which controlled the Senate made it clear that it would defer voting on the Labor Government's money bills until the Prime Minister called an election for the House of Representatives. The Prime Minister refused. Unable to ensure supply, the Prime Minister was controversially dismissed by the Governor-General under s 64 of the Constitution. See further Hugh V Emy, 'Dismissal' in Graeme Davison, John Hirst, and Stuart Macintyre (eds), *Oxford Companion to Australian History* (OUP 2001) 191.

⁸⁶ La Nauze (n 9) 43.

⁸⁷ Quick and Garran (n 4) 124.

⁸⁸ Deakin (n 4) 47; La Nauze, *The Making of the Australian Constitution* (n 9) 53, 71.

⁸⁹ Ultimately enacted in *Commonwealth Constitution*, s 53.

⁹⁰ La Nauze, *The Making of the Australian Constitution* (n 9) 53.

⁹¹ Deakin (n 4) 47; La Nauze, *The Making of the Australian Constitution* (n 9) 54, 70.

⁹² Scott (n 9) 302; Deakin (n 4) 47; La Nauze, *The Making of the Australian Constitution* (n 9) 45–46.

⁹³ La Nauze, *The Making of the Australian Constitution* (n 9) 49.

⁹⁴ Deakin (n 4) 30; Williams, *The Australian Constitution* (n 5) 63.

⁹⁵ Irving, *To Constitute a Nation* (n 33) 71; La Nauze, *The Making of the Australian Constitution* (n 9) 28.

⁹⁶ Heerey (n 52) 12.

⁹⁷ *ibid.*

⁹⁸ See, eg, Irving, *To Constitute a Nation* (n 33) 71.

⁹⁹ Deakin (n 4) 31; La Nauze, *The Making of the Australian Constitution* (n 9) 56. See also Irving, *To Constitute a Nation* (n 33) 51, who describes Inglis Clark's draft provisions on the scope of appeals to the Privy Council as a 'miniature declaration of independence'.

¹⁰⁰ Draft Bill to Constitute the Commonwealth of Australia, Chapter III, s 6. See also La Nauze, *The Making of the Australian Constitution* (n 9) 56.

¹⁰¹ See Gageler (n 54) 194–95; La Nauze, *The Making of the Australian Constitution* (n 9) 219.

¹⁰² Deakin (n 4) 31. See also Deakin (n 4) 47; La Nauze, *The Making of the Australian Constitution* (n 9) 77–78.

¹⁰³ Williams, *The Australian Constitution* (n 5) 64, citing Francis Mervyn Neasey, 'Andrew Inglis Clark Senior and Australian Federation' (1969) 15(2) *Australian Journal of Politics and History* 1. See generally John Williams, 'Andrew Inglis Clark: Our Constitution and His Influence' in *'The Truest Patriotism': Andrew Inglis Clark and the Building of an Australian Nation* (proceedings of a conference held at Parliament House, Canberra, Friday 8 November 2013), published in *Papers on Parliament* no 61 (Department of the Senate, May 2014) 81.

¹⁰⁴ La Nauze, *The Making of the Australian Constitution* (n 9) 75.

¹⁰⁵ Deakin (n 4) 48; Scott (n 9) 302.

¹⁰⁶ Deakin (n 4) 50.

¹⁰⁷ Quick and Garran (n 4) 143.

¹⁰⁸ Deakin (n 4) 51; Quick and Garran (n 4) 148; Scott (n 9) 303.

¹⁰⁹ Quick and Garran (n 4) 150. See also Hirst, *The Sentimental Nation* (n 3) 109.

¹¹⁰ Quick and Garran (n 4) 150.

¹¹¹ Reid considered that Parkes had betrayed the free trade cause of New South Wales by working towards federation with the more protectionist colonies, particularly Victoria.

¹¹² Hirst, *The Sentimental Nation* (n 3) 107.

¹¹³ Quick and Garran (n 4) 148.

¹¹⁴ Williams, *The Australian Constitution* (n 5) 462; Quick and Garran (n 4) 150.

¹¹⁵ See Hirst, *The Sentimental Nation* (n 3) 111.

¹¹⁶ Williams, *The Australian Constitution* (n 5) 462.

¹¹⁷ Deakin (n 4) 55; Williams, *The Australian Constitution* (n 5) 463.

¹¹⁸ Quick and Garran (n 4) 150.

¹¹⁹ *ibid.*

¹²⁰ Williams, *The Australian Constitution* (n 5) 462; Quick and Garran (n 4) 151–52.

¹²¹ Quick and Garran (n 4) 153.

¹²² Williams, *The Australian Constitution* (n 5) 465.

¹²³ La Nauze, *The Making of the Australian Constitution* (n 9) 91. It should be noted that the elections were not 'democratic' in the modern Australian sense, as at this time women's suffrage had only been achieved in South Australia and Western Australia, while the franchise for Aboriginal Australians was subject to property qualifications in Queensland and Western Australia, and was denied altogether in what is now the Northern Territory section of South Australia: see *Rowe v Electoral Commissioner* (2010) 243 CLR 1, 114 [353].

- ¹²⁴ Deakin (n 4) 51.
- ¹²⁵ Hirst, *The Sentimental Nation* (n 3) 142.
- ¹²⁶ La Nauze, *The Making of the Australian Constitution* (n 9) 94.
- ¹²⁷ *ibid* 115.
- ¹²⁸ Deakin (n 4) 75.
- ¹²⁹ Quick and Garran (n 4) 167, Williams, *The Australian Constitution* (n 5) 478–79.
- ¹³⁰ La Nauze, *The Making of the Australian Constitution* (n 9) 139.
- ¹³¹ *ibid* 136.
- ¹³² Now *Commonwealth Constitution*, s 64.
- ¹³³ *ibid* s 57.
- ¹³⁴ *ibid* s 7.
- ¹³⁵ La Nauze, *The Making of the Australian Constitution* (n 9) 247.
- ¹³⁶ See, eg, Murray Gleeson, ‘The Privy Council—An Australian Perspective’ (Speech delivered at the Anglo-Australasian Lawyers Society, the Commercial Bar Association, and the Chancery Bar Association, London, 18 June 2008) 3–5.
- ¹³⁷ *ibid*.
- ¹³⁸ Scott (n 9) 316.
- ¹³⁹ *ibid* 316–17.
- ¹⁴⁰ Deakin (n 4) 166.
- ¹⁴¹ Hirst, ‘Federation’ (n 1) 243.
- ¹⁴² In 1902 Australia became the first nation in the world where women could vote and stand for federal election as well as men. This did not include Indigenous Australians who were not so entitled until 1967.
- ¹⁴³ There have been eight successful referenda under s 128 of the Constitution.

CHAPTER 4

INDEPENDENCE

ANNE TWOMEY

A. INTRODUCTION

WHEN a community achieves independence as a nation, it is usually marked by a major event, such as a revolution, a declaration or a formal ceremony handing over power. A colonial flag is lowered, a bright new flag is raised, and an independent nation is born. Most countries know when they achieved independence down to the minute. They celebrate their 'Independence Day' annually.

In Australia, however, there was no such definitive act creating an independent nation. There is no 'Independence Day' to celebrate, as no one knows exactly when the balance tipped from being a dependency of the Crown or a self-governing Dominion, to an independent sovereign nation. Independence was administered in small doses—sometimes sought, sometimes imposed, and often neglected. Did the balance tip upon the accumulation of sufficient measures of power to act independently, both domestically and internationally, or did it only tip when sufficient of those powers were actually exercised? How much is sufficient? If Australia has not exercised every measure of independence, because it has left its Constitution in a British Act of Parliament and retains a foreign shared Queen, does this mean that it is not yet independent? There are no legal answers to these questions. These are matters of judgment which remain contestable.

B. THE MEANING OF ‘INDEPENDENCE’

Independence is closely connected to the notion of sovereignty—the identification of the source of power and control over a territory and its people. To be a sovereign independent nation, legal and political power over a territory and its peoples must be held and exercised from within that territory.¹ Hence the ultimate source of legislative, executive, and judicial power must be internal to the nation, rather than lying in the hands of a colonial master or foreign power. This includes the capacity of the government of the territory to enter into international relations and control its own foreign policy.

Such distinctions can never, however, be absolute. Globalization and the increasing power of regional blocs and international bodies, mean that countries that have long been regarded as sovereign independent nations remain subject to a degree of external interference and control, whether it be through regional or international courts or treaty obligations. The critical mark of independence, however, is that such countries voluntarily submit themselves to these constraints and may choose to withdraw from them. The question is therefore not whether external constraints on power exist, but rather whether the territory concerned has the power to accept them or reject and withdraw from them. Independence may exist even when a country chooses not to exercise it or chooses to permit the imposition of checks upon the power of its own institutions.

C. INDEPENDENCE AND THE CONSTITUTIONS OF THE AUSTRALIAN COLONIES

In countries, such as Australia, where there is a fundamental constitutional document which creates the institutions of government and grants and limits their power, it is often claimed that sovereignty lies in the hands of those who make or control the amendment of the Constitution. Before federation, the Australian colonies were granted legislative, executive, and judicial power, but this was done by Imperial enactments² or instruments such as letters patent and royal instructions.³ In 1850 the colonies of New South Wales, Victoria, South Australia, and Tasmania were granted the power to enact and amend their own Constitutions,⁴ including the creation

of bicameral legislatures and a system of responsible government. These Constitutions could be enacted locally, but had to be reserved for the Queen's assent. Any colonial Constitution would remain subject to legislative, executive, and judicial constraints imposed by the United Kingdom.

On the legislative front, laws enacted in the colonies had to be sent to the United Kingdom and could be disallowed by the Sovereign on the advice of his or her British ministers within a fixed period. Certain bills had to be reserved for the Sovereign's assent, given upon the advice of British ministers. Laws of the Australian colonies that were repugnant to British statutes that applied expressly or by necessary intendment to the colonies, were void.⁵ Colonial laws that were inconsistent with British treaty obligations had to be reserved for royal assent and were routinely refused assent.⁶

On the executive front, the Governor of a colony remained a British officer, who was appointed by and represented the Sovereign and was subject to instruction by the Sovereign. While Governors were generally required to act upon the advice of their local responsible ministers, when Imperial matters were involved they could act independently, as long as they justified their actions to the Secretary of State for the Colonies,⁷ and they could also be required to act upon instruction from Britain.

The greatest level of independence was granted in relation to the exercise of judicial power, but appeals could still be brought to the Judicial Committee of the Privy Council⁸ as the highest court of the colonies, and its jurisprudence was binding upon all colonial courts.

When the New South Wales Legislative Council sought to enact its own Constitution in 1853, it chafed against the restrictions on its legislative powers insofar as they concerned domestic matters and sought to remove the constraints of disallowance and reservation in relation to laws on matters that did not affect Imperial interests.⁹ As this would have meant that the New South Wales Constitution was inconsistent with some British laws that applied directly to the colonies by paramount force, the only way this could be achieved was either by revolution or by submitting the Constitution Bill to the British Government and seeking the enactment of British legislation to override the application of prior British laws on disallowance and the reservation of bills.

The latter course was adopted, with the Bill being sent to the United Kingdom for approval.¹⁰ The British Attorney-General, Sir Frederick Rogers, complained that the bid for domestic legislative control amounted to 'little less than a legislative Declaration of Independence on the part of the Australian colonies'.¹¹ Rather than rejecting it altogether or directly amending the Bill, the British government took the intermediate approach of cutting out the clauses that would have removed British power over disallowance and reservation, so that those powers continued to apply under existing laws, but without adding any words or provisions to the Bill. The Westminster Parliament then enacted a law authorizing Queen Victoria to give assent to the New South Wales Constitution Bill in this altered form, as set out in a schedule. The consequence was that the Westminster Parliament did not itself enact the New South Wales Constitution, but it did authorize assent to it in a form which was different from that in which it had been passed by the New South Wales Legislative Council. This meant that the New South Wales Constitution had not been enacted in its final form by any legislature, but that it still had the force of law. The attempt by New South Wales to achieve a measure of local independence had failed, but it was not a sufficient grievance to give rise to a revolution.

The framers of the New South Wales Constitution Bill of 1853 had also intended that their Constitution would be fully entrenched. Certain provisions could be amended by special majorities, and bills affecting the constitution of the Houses had to be reserved for the signification of the Queen's pleasure and laid before the Westminster Parliament for thirty days before assent could be given. This was also thwarted by the British government, which inserted in its enabling legislation a provision that gave the New South Wales legislature the power to amend the *Constitution Act* by ordinary legislation, including the amendment or repeal of entrenching provisions requiring special majorities.¹² This enhanced local independence, although any amendments by the New South Wales legislature to its Constitution remained subject to disallowance, reservation, and the doctrine of repugnancy that was later confirmed and applied by the *Colonial Laws Validity Act 1865* (Imp).

D. INDEPENDENCE AND THE COMMONWEALTH CONSTITUTION

The Commonwealth Constitution, while drafted and approved by referenda in Australia, was enacted by the Westminster Parliament as section 9 of a British Act, the *Commonwealth of Australia Constitution Act 1900*.

There are two provisions in the Commonwealth Constitution which are indicative of the desire of its framers to achieve a large measure of independence for the new federation. The first is section 128, which sets out the method for amending the Constitution, vesting it in the Commonwealth Parliament and the Australian people through a referendum. It provides for the alteration of the Constitution, but does not on its face extend to the amendment of the British Act, the *Commonwealth of Australia Constitution Act 1900* (Imp), in which it is contained.

The second is section 51(xxxviii) which ensured that there was no lacuna in the legislative power that could be exercised in Australia. It confers upon the Commonwealth Parliament the power to make laws with respect to the exercise within the Commonwealth, at the request or with the concurrence of the Parliaments of all the States directly concerned, of any power which at the establishment of the Constitution could only have been exercised by the Westminster Parliament. The intention was to remove any need to resort to British legislation with respect to any Australian matter, be it federal or State, even if this included overriding British laws that had previously applied by paramount force to the colonies in accordance with the doctrine of repugnancy, as clarified and reinforced by the *Colonial Laws Validity Act 1865* (Imp).

1. Constitutional Amendment

The fact that the new Commonwealth was to be a federation meant that some degree of entrenchment of the Commonwealth Constitution was required in order to protect the distribution of powers between the Commonwealth and the States from unilateral Commonwealth legislative change. The obvious comparison was with Canada. There, the *British North America Act 1867* (Imp) provided for amendment by the Westminster Parliament, so that the Canadians had to go cap-in-hand to the British government to change their Constitution and were occasionally surprised when it was amended by British legislation without their knowledge.¹³

The framers of the Commonwealth Constitution strongly rejected such an approach and it was never given serious consideration.¹⁴ Sir Samuel Griffith stated at the 1891 Constitutional Convention:

I certainly agree with those who have said that after the establishment of a federal constitution in Australia there should be no necessity to refer to the British Parliament to do anything for Australia, either in changing a constitution or in anything else.¹⁵

Andrew Inglis Clark noted in 1897 that the leaders of the 1891 Constitutional Convention had been quite deliberate in rejecting the Canadian approach to constitutional amendment. Instead they were ‘making themselves, as far as possible, an independent nation with the same Crown as before’.¹⁶ Clark described the proposed Constitution as one that sets up ‘legislative independence’. He pointed out, by way of example, that by referring in the Constitution to the appointment of the Governor-General (rather than leaving it to the control of the letters patent), the framers of the draft Constitution intended to permit the future amendment of that section, without any involvement of the Westminster Parliament, to provide for an elected Governor-General. The intention was to put control of the Governor-General, his role and powers, within the jurisdiction of the Australian Parliament and the people through constitutional amendment.

Clark claimed that he, Sir Samuel Griffith and Charles Kingston knew what they were doing and acted with their eyes wide open. They were seeking ‘absolute legislative independence for Australia’. When an opponent argued that this was a ‘march towards republicanism’, Clark responded that if it was republicanism, ‘then Sir Samuel Griffith was a good republican, and he was as good a one as he’.¹⁷ Clark sought to extend this legislative independence to the States, to ensure that they too did not need to rely on the Westminster Parliament to enact legislation for them in the future. His proposal, however, failed and legislative independence of this kind was not achieved until almost ninety years later in 1986.¹⁸

Robert Garran, secretary to the drafting committee of the 1897–98 Constitutional Convention, was particularly cognizant of the connection between the power to amend the Constitution and sovereignty.¹⁹ He regarded the amending power as the location of sovereignty, explaining in 1897:

The importance of the amending power in a Federation is obvious when we remember that amendment of the Federal Constitution is the highest expression of the will of the sovereign people of the Nation and the sovereign peoples of the States. All other authorities—state governments and federal government alike—are beneath the fundamental law of the Constitution; the amending power alone is above that fundamental law—is in fact, in the last resort, the real legislative sovereign of the Federation ...

Of course the Constitution of the Commonwealth, being an Imperial statute, will technically speaking be (like the Canadian Constitution) amendable by the British Parliament. We may, however, rest assured that, once passed, it will never again be meddled with by the British Parliament except at the urgent request of the Commonwealth and the States. But we shall not be content (as Canada was) with a Constitution which we cannot amend for ourselves; we wish to provide for its amendment, in some way or other, at the hands of the Australian people. We want our Constitution to be our own to do what we like with; and though of course the British Parliament cannot formally abdicate its power of amendment, that power can then be virtually neglected, as one which hardly any conceivable circumstances would be likely to bring into use.²⁰

Even if the Constitution could be amended locally without British involvement, it did not mean that the British could not or would not intervene through the disallowance of laws, including constitutional amendments, or the refusal of assent to reserved bills.²¹ Moreover, if certain British laws still applied by paramount force to Australia on the basis that it remained a ‘colony’ affected by the application of the *Colonial Laws Validity Act 1865* (Imp), then Australian legislative and constitutional independence would remain significantly constrained. This is where the framers made a further bid for legislative independence through the inclusion of section 51(xxxviii) of the Constitution.

2. Section 51(xxxviii)

Section 51(xxxviii) was intended to be the Trojan horse of the Constitution. By conferring collectively on the Commonwealth and State Parliaments, through co-operative legislation, the power to legislate to do anything that the United Kingdom Parliament could have done in 1901, it was intended to allow Australian Parliaments to free themselves of British laws that applied by paramount force. Just as the Westminster Parliament could repeal or amend a British law that bound the Australian colonies, so too could the new Parliament of the Commonwealth of Australia, at the request or with the concurrence of affected States, repeal or amend such a law.

This would potentially liberate the States, as they would otherwise remain subject to the repugnancy doctrine in the *Colonial Laws Validity Act* and continue to be bound by British laws concerning the disallowance of

State laws and the reservation of State bills, as well as laws concerning other matters, such as merchant shipping. As for the status of Commonwealth laws, the intention of those involved in the drafting of the Constitution, such as Richard O'Connor, was that the Commonwealth would not be a 'colony' for the purposes of the *Colonial Laws Validity Act*, and that it would therefore not be bound by Imperial laws of paramount force, such as the *Merchant Shipping Act 1894* (Imp).²²

The British government, however, was determined to ensure that the *Colonial Laws Validity Act* continued to apply to both the Commonwealth and the States. It was concerned that proposed section 51(xxxviii), along with a definition of 'colony' in covering clause 6 which seemed to distinguish a 'colony' from the Commonwealth, would support an argument that Commonwealth laws were not subject to the doctrine of repugnancy. British Crown Law officers noted that a large number of Imperial statutes applied to the Australian colonies and that great inconvenience would arise if 'the supremacy of the Imperial Parliament were not preserved', even though the power of disallowance remained. They recommended the insertion of a provision in the covering clauses of the *Commonwealth of Australia Constitution Act* declaring that the *Colonial Laws Validity Act* applied to Commonwealth laws.²³ The British government, accepting this advice, inserted in covering clause 5 a statement that the 'laws of the Commonwealth shall be Colonial Laws within the meaning of the Colonial Laws Validity Act, 1865'.²⁴

The Australian representatives in London took the tactical decision that it would be best to declare that it had always been intended that Commonwealth laws would be subject to the *Colonial Laws Validity Act*²⁵ and that such an amendment was therefore unnecessary. This would allow the future removal of the doctrine of repugnancy without any need to amend the covering clauses. The British responded by pointing out that Richard O'Connor had stated in the Convention Debates that the *Colonial Laws Validity Act* would not apply to laws of the Commonwealth and that cl 51(xxxviii) indicated an intention for the Commonwealth to be empowered to pass legislation that was inconsistent with Imperial legislation applying to the Commonwealth. The British government asserted that it would fail in its duty if it left any room for doubt as to the paramount authority of Imperial legislation over the legislation of the Commonwealth.²⁶

The Australian representatives then raised pressure on the British by suggesting that now the issue had been raised by the British, perhaps the great self-governing communities of Canada and Australia should not be subject to Imperial laws applying by paramount force.²⁷ Rather than enter into such a contentious debate at this stage, the British decided to put it off and enter a compromise²⁸—the British dropped their express clause concerning the application of the *Colonial Laws Validity Act*, in exchange for the deletion of the definition of ‘Colony’ from covering clause 6²⁹ and agreement that the Commonwealth remained subject to Imperial laws of paramount force.³⁰ The Australian representatives were pleased to have avoided the inclusion of this provision in the covering clauses to the Constitution, even though the effect was to neuter section 51(xxxviii)³¹ and undermine Australia’s assertion of legislative independence.

E. POST-FEDERATION INDEPENDENCE

Federation did not itself transform Australia into an independent sovereign nation, despite loose references to the term ‘nation’ at the time.³² Clark saw these references to nationhood as ‘prospective’ in nature, foreseeing the future development of Australia. However, he could not accept that Australia had become a nation as it remained ‘subject to the paramount legislative and executive and judicial authority’ of Great Britain.³³

Clark despaired that a distinctively Australian nation would never contribute to world history if it remained an appendage of the British Empire. He considered that it must be clear to everyone that ‘the power of the British Crown to disallow Australian legislation, cannot continue after the population and power of the Commonwealth [have] increased to an extent’ that it can defend itself from foreign enemies.³⁴ He concluded that once that stage has been reached Australian sentiment would resist the power of the Crown to disallow Commonwealth legislation or constitutional amendments that had received the ratification of the people in referenda.³⁵ While he accepted that the ‘prudent disuse of the royal veto ... may prolong the connection of the Commonwealth with the Empire’, he considered that ‘the time will inevitably come when Australian sentiment will demand its

abolition, and that event will necessarily proclaim the advent of Australian sovereignty'.³⁶

After federation, the Commonwealth and the States were still bound by British laws of paramount force, could still have their own laws disallowed by the Sovereign on the advice of British ministers, and still had to reserve certain bills for the signification of the Sovereign's pleasure.³⁷ The Privy Council remained the highest court, although certain appeals could not reach the Privy Council without a certificate by the High Court.³⁸ The Governor-General and Governors were still Imperial officers appointed by the Sovereign on the advice of British ministers. Moreover, from an international point of view, Australia had no power to enter into most treaties, it could not declare war or peace, it did not have its own diplomatic representatives, and it was not treated as having international personality.³⁹ As Clark had declared, Australia was not an independent sovereign nation.

1. Imperial Conferences

The First World War had a profound effect upon the claims for increased independence by the self-governing colonies that were now known as 'Dominions'. Some, such as Canada, the Irish Free State, and South Africa lobbied hard for increased independence. Others, such as Australia and New Zealand, sought to maintain the ties of Empire for reasons of defence in a more dangerous world.

Change began with the Imperial Conference of 1923 which gave the Dominions power to enter into bilateral treaties that did not affect other parts of the Empire. It moved more rapidly with the 1926 Imperial Conference at which the Balfour Declaration recognized the self-governing Dominions as equal in status with the United Kingdom but united by a common allegiance to the Crown.⁴⁰ This gave the Dominions equal status in relation to external affairs, including full power to enter into multilateral treaties and appoint diplomatic representatives.

The 1926 Imperial Conference also terminated the role of the Governor-General as an Imperial officer and provided that in relation to disallowance and reservation, it would no longer be appropriate for the Sovereign to act upon the advice of his British ministers against the wishes of the government of the relevant Dominion.⁴¹ There was ambiguity, however,

about whose advice the King acted upon, if any at all. In the midst of controversy about the appointment of Sir Isaac Isaacs as Australian Governor-General upon the advice of the Australian Prime Minister, against the wishes of the King,⁴² the 1930 Imperial Conference confirmed that the Sovereign acts upon the advice of his or her responsible Dominion Ministers in relation to the appointment of the Governor-General,⁴³ and in the exercise of any of his or her other powers as Sovereign of the Dominion, such as disallowance and reservation. The effect was to make the Crown divisible, creating a separate Crown for Australia and each of the other Dominions, under which the King acted upon the advice of ministers responsible to the Parliament of the relevant Dominion, rather than the Westminster Parliament.⁴⁴

Without changing a word of the Commonwealth Constitution, the British controls exerted through the power of disallowance or the refusal of assent to reserved bills, were stripped away, simply by the change of convention concerning who advised the Sovereign in relation to the exercise of these powers.⁴⁵ This step in legislative and executive independence was achieved by an agreed change of convention by 1930 at the latest. It only applied, however, at the Commonwealth level. Incongruous as it may seem, the Sovereign continued to be advised in relation to disallowance, reservation, and the appointment of the Governor at the State level by British ministers.⁴⁶

2. Statute of Westminster 1931

In addition to changing conventions, legislation was needed to make some of the changes necessary to support the new ‘equal’ status of the Dominions. This was achieved by the enactment of the *Statute of Westminster 1931* (Imp). Section 2 of the *Statute* released the Commonwealth (but not the Australian States) from the application of the *Colonial Laws Validity Act*. This meant that the Commonwealth Parliament’s laws would not be held invalid if they were inconsistent with British laws that applied by paramount force (except for the *Commonwealth of Australia Constitution Act* and the *Statute of Westminster* itself) and that the Commonwealth Parliament could amend or repeal British laws to the extent that they formed part of its own law. Section 9, however, limited the Commonwealth’s power so that it did not expand into the area of making

laws on any matter within the authority of the States, not being within the authority of the Commonwealth.

Section 3 of the *Statute* gave the Commonwealth Parliament power to make laws that have extraterritorial effect. Section 4 gave legislative effect to a convention established by the Imperial Conference in 1926 that the Westminster Parliament would not legislate for a Dominion as part of the Dominion's law, without its request and consent. In the case of Australia, this meant the request and consent of the Commonwealth Parliament and government.⁴⁷

The *Statute of Westminster* therefore removed the constraints on Commonwealth legislative power that the framers of the Commonwealth Constitution had sought, but failed, to avoid. Moreover, it gave potential life back to section 51(xxxviii) of the Constitution. This was because the *Statute* did not liberate the States in the same way as the Commonwealth. The States remained subject to British laws of paramount force, such as the *Merchant Shipping Act*.⁴⁸ One potential way to avoid this problem would be to use co-operative State and Commonwealth legislation under section 51(xxxviii) to permit the Commonwealth to amend or repeal British laws to the extent that they applied as part of State law. While section 9 of the *Statute* did not expand the Commonwealth's power in relation to State matters, section 51(xxxviii) of the Constitution gave the Commonwealth Parliament a head of power to act in a way in which only the United Kingdom could have acted in 1901, being to amend or repeal British laws that applied to the States by paramount force.

There was, however, a qualification on the application of the *Statute*. According to section 10, the substantive provisions of the *Statute*, being sections 2–6, did not apply to Australia as part of its law until adopted by the Commonwealth Parliament. This was a reflection of Australia's reluctance to achieve independence at that time. The *Statute* applied immediately to Canada, South Africa, Newfoundland, and the Irish Free State, which were all keener on obtaining independence than Australia and New Zealand. In Australia, desultory efforts to adopt the *Statute* were made and lapsed. It was not until the depths of the Second World War, when the validity of certain defence statutes came into doubt due to their extraterritorial effect or repugnancy to British laws, and the difficulty in reserving bills for the King's assent became greater, that the *Statute* was adopted, with retrospective effect back to the beginning of the war.⁴⁹ Even

then, the parliamentary debate was met with cries of ‘un-British’ and fears that it would imperil Australia’s security.⁵⁰

3. Giving Effect to Independence

Australia was slow to give effect to the independence granted to it by the Imperial Conferences of 1923–30 and the *Statute of Westminster*. Even though it had the power to negotiate and enter into treaties on its own behalf, it chose not to do so for some time and continued to rely on British diplomats, rather than appointing its own.⁵¹ It did not declare war on its own behalf until 1941 and did not adopt the *Statute of Westminster* until 1942. Australia did not adopt separate citizenship until 1948, with Australians before that date simply being ‘subjects’ of the Queen or King.⁵² The existence of a separate Australian Crown was first recognized in legislation in 1953 and reinforced in 1973.⁵³ It was not until 1984 that voting was confined to Australian citizens,⁵⁴ although the grandfathering provisions mean that some non-citizen ‘British subjects’ can still vote as a consequence of having been on the electoral roll continuously since the relevant date. All of these various developments have been identified by High Court Justices at different times as indicators of the development of aspects of independent nationhood, including a separate Crown and a changed status for citizens.⁵⁵

What legal constraints continued to apply on Australian independence post-1931? Australia had full internal control, through section 128 of the Constitution, of the amendment of its own Constitution, and once it adopted the *Statute of Westminster*, it was no longer confined by the application of British laws of paramount force, other than the *Statute of Westminster* and the *Commonwealth of Australia Constitution Act*. The Westminster Parliament would no longer legislate in a way that applied as part of Commonwealth law, without the request and consent of the Commonwealth Parliament and government. This left the ultimate legislative power in Australian hands. While the Privy Council remained the final court of appeal in some matters, this was largely capable of termination by Commonwealth legislation, as occurred at the federal level in 1968 and 1975.⁵⁶

There were, however, two main gaps in Australia's independence. First, Australia arguably did not have full control over its foundational constitutional documents. The Constitution was still section 9 of a British Act, the *Commonwealth of Australia Constitution Act 1900* (Imp), which continued to apply to Australia by paramount force. There was significant doubt as to whether there was any Australian power to amend its covering clauses and preamble, given that the amendment mechanism in s 128 of the Constitution only applied to 'this Constitution', rather than the Act in which it was contained.⁵⁷ Equally, the *Statute of Westminster* entrenched itself and also applied by paramount force. As it preserved in section 8 the entrenchment of the *Commonwealth of Australia Constitution Act* and protected in section 9 the federal division of power from being affected by changes otherwise made by the *Statute*, it is arguable that even though the *Statute* might have been able to be amended from within countries that were unitary states, it was not capable of amendment from within a federation, such as Australia.⁵⁸

The second gap arose from the status of the Australian States. They remained colonial dependencies of the British Crown, with the Sovereign's powers in relation to a State being exercised in her capacity as Queen of the United Kingdom (not Queen of Australia), upon the advice of British ministers.⁵⁹ Was it possible for Australia to be regarded as a truly independent nation when the constituent parts of the federation remained colonial dependencies?

4. The Australia Acts 1986

Residual colonial links between Australia and the United Kingdom were terminated on 3 March 1986 when the *Australia Acts 1986* (UK) and (Cth) came into force. These two Acts dealt with both gaps in Australia's independence. Section 15 granted Australia full control over its constitutional documents, being the *Statute of Westminster*, the *Commonwealth of Australia Constitution Act*, and the *Australia Acts*, by providing an Australian procedure for their repeal or amendment. This procedure, which largely mirrors section 51(xxxviii) of the Constitution, permits the Commonwealth Parliament to repeal or amend the *Statute of Westminster* or the *Australia Acts*, at the request or with the concurrence of the Parliaments of all the States.⁶⁰

State independence was addressed by a number of provisions, including sections 2 and 3 which removed the application of the *Colonial Laws Validity Act 1865*, allowing State Parliaments to legislate contrary to British laws of paramount force and to enact laws with extraterritorial operation. This brought the States in line with the Commonwealth's position post-*Statute of Westminster*. However, two limits were imposed on the expanded legislative power granted to the States by sections 2 and 3. First, section 5 made these expanded legislative powers subject to the Commonwealth Constitution, including any constitutional implications, and prevented them from being used to amend, repeal, or breach the *Commonwealth of Australia Constitution Act*, the *Statute of Westminster*, or the *Australia Acts*. Secondly, because the State power to entrench certain types of laws⁶¹ was dependent upon section 5 of the *Colonial Laws Validity Act*, a power to entrench was included in section 6 of the *Australia Acts*.

The *Australia Acts* also went further than the *Statute of Westminster*, with sections 8 and 9 terminating the power to disallow State laws and the requirement to reserve State bills for the Queen's assent. Section 10 also terminated the role of the British government in advising the Queen on State matters and section 11 terminated appeals from State courts to the Privy Council. Critically, from a federalism perspective, section 7 of the *Australia Acts* requires the Queen to act upon the advice of the relevant State Premier in relation to State matters, raising the question of whether this has created separate State Crowns or one federal Crown under which the Queen acts upon the advice of different sets of ministers.⁶² Section 7 also affects Australia's independence to the extent that it prevents a State from unilaterally terminating its constitutional relationship with the Sovereign by entrenching it in the *Australia Acts*.

Finally, the *Australia Acts* sealed up a voluntary gap in Australian independence, being the power of the Westminster Parliament to legislate for Australia at its request and consent. Section 1 of the *Australia Acts* provides that no future act of the United Kingdom Parliament shall extend to the Commonwealth, a State, or a Territory as part of its law. Section 10, as a consequence, repealed sections 4, 9(2), 9(3), and 10(2) of the *Statute of Westminster* in so far as they applied as part of Australian law.

The *Australia Acts* are two Acts, identical in their substantive provisions, one of which was enacted by the Commonwealth Parliament pursuant to requests enacted by the Parliaments of all the States under section

51(xxxviii) of the Commonwealth Constitution. The other Act was enacted by the Westminster Parliament, pursuant to the request and consent of the Commonwealth Parliament under section 4 of the *Statute of Westminster*.

The reasons for enacting two Acts were both legal and political. First, there was doubt as to whether section 51(xxxviii) provided sufficient constitutional support for all the provisions of the *Australia Act 1986* (Cth).⁶³ In particular, there was doubt amongst the States about the legal effectiveness of provisions affecting State Constitutions, amending the *Statute of Westminster* and providing for a future amending power in section 15. The British, too, considered that section 51(xxxviii) was ineffective to change the status of the Queen as Queen of the United Kingdom (with respect to the Australian States) and break off the British side of links, such as Privy Council appeals. Only British legislation could achieve this. The British regarded the Commonwealth version of the *Australia Acts* as ‘superfluous’ from a legal point of view,⁶⁴ but playing an obvious political role.

From a political point of view, the Commonwealth legislation was necessary to satisfy nationalistic impulses and as an autochthonous element of the package. In 1981, the Commonwealth Attorney-General, Senator Durack, argued that the Commonwealth and the States should subscribe ‘to an assertion of our power to provide the constitutional foundation in Australia rather than depending upon an Act of Parliament of the United Kingdom’.⁶⁵ There was division within the Commonwealth bureaucracy, however, about whether this was possible. The Attorney-General’s Department was concerned that section 51(xxxviii) may provide an insufficient constitutional basis for such legislation and preferred the additional support of British legislation, while the Department of the Prime Minister and Cabinet wanted residual ties to be cut by Commonwealth legislation only, as a demonstration of Australia’s existing independence.⁶⁶ The compromise was to enact both Australian and British legislation, which together would be legally unassailable in validly achieving the relevant changes, but from a political point of view would allow people to attribute the source of power for these changes to whichever Act they preferred.

The High Court has tended to adopt a nationalistic position, preferring to rely on the *Australia Act 1986* (Cth), rather than its British companion Act,⁶⁷ albeit without ever examining the legal issues concerning the

effectiveness of all the provisions of the Commonwealth version of the *Australia Acts*. The Court has asserted that ‘constitutional norms, whatever may be their historical origins, are now to be traced to Australian sources’ and that the *Australia Act* is to be traced back to its Australian source.⁶⁸ The High Court has complemented this approach by giving recognition to a principle of popular sovereignty,⁶⁹ although its consequences remain to be fully explored. Independence, therefore, may also be recognized and facilitated by way of constitutional interpretation, even if all the formalities of cutting ties have not been completed.

5. Remnants of the Colonial Relationship

While the *Australia Acts* cleaned the remnants of the colonial relationship out of State Constitutions by removing disallowance and the requirement to reserve bills for the signification of the Sovereign’s pleasure, and in sections 13 and 14 even amended certain entrenched provisions in the Queensland and Western Australian Constitutions, no efforts were made to clean the equivalent colonial detritus out of the Commonwealth Constitution. This was because the Commonwealth government took the view that the Constitution should only be amended by the referendum procedure under section 128 of the Constitution.⁷⁰ Hence, a number of incongruous colonial provisions remain in the Commonwealth Constitution. These include:

- reference in section 2 to the assignment of powers by the Queen to the Governor-General;
- reference in section 58 to the Governor-General reserving bills for the Queen’s pleasure;
- reference in section 59 to the Queen’s power to disallow a law within one year of it receiving the Governor-General’s assent;
- reference in section 61 to executive power being vested in the Queen and exercisable by the Governor-General as the Queen’s representative;
- reference in section 68 to the command in chief of the naval and military forces being vested in the Governor-General as the Queen’s representative; and

- reference in section 74 to appeals to the Queen in Council (ie the Judicial Committee of the Privy Council) from certain decisions of the High Court where the High Court provides a certificate, and to the reservation for the Queen's pleasure of any bill for the limitation of appeals to the Queen in Council.

In practice, these provisions do not affect Australia's independence because when the Queen exercises her powers with respect to the Commonwealth of Australia, be it in relation to reservation or disallowance, she does so upon the advice of her Commonwealth ministers.⁷¹ While theoretically, appeals may still be available from the High Court to the Privy Council, this can only happen if the High Court gives a certificate and the High Court has made clear that it will not do so.⁷²

6. The Crown and the Queen

The more problematic colonial link remaining in the Constitution, however, is that between Australia and 'the Queen'. Covering clause 2 identifies her as the heir and successor to Queen Victoria in the 'sovereignty of the United Kingdom' and the preamble to the *Commonwealth of Australia Constitution Act* identifies the Crown as that of 'the United Kingdom of Great Britain and Ireland'. The High Court, however, has reinterpreted this as meaning the Crown and Queen of Australia.⁷³ On this basis, the Queen can only act upon Australian advice in relation to the exercise of her Australian powers.

Nonetheless, a question remains over true independence if the Head of State of Australia is determined by reference to the fact that he or she is Head of State of another nation. If this were outside of Australian control, then it might be argued that this diminishes Australia's claim to independence. The issue was highlighted by changes to the rules of succession to the British throne.⁷⁴ The different Realms, being countries of which Queen Elizabeth II is Head of State, were asked to agree to the changes and implement them within their Realm.⁷⁵

The Canadian government took the controversial view that whoever is the Sovereign of the United Kingdom is automatically Head of State of Canada⁷⁶ and that British law, not Canadian law, governs succession to the Crown of Canada.⁷⁷ Hence, Canada made no change to its own laws and merely gave legislative approval to the enactment by the Westminster

Parliament of changes to the law of succession to the British Crown.⁷⁸ If this approach is correct,⁷⁹ Canada is reliant on United Kingdom law to provide its Head of State and if the United Kingdom became a republic, Canada would have no Head of State and no one would be capable of appointing the Governor-General. It is therefore arguable that this approach to the issue of succession undermines Canada's independence.

In Australia, in contrast, it was accepted that the law of succession to the Crown, being both common law and statute, had been inherited and received as part of Australian law. These laws now apply with respect to the Crown of Australia and any changes to the law of succession touching upon the Crown of Australia could only be made by Australian law.⁸⁰ Section 51(xxxviii) was therefore employed to change the rules of succession to the Australian Crown, as only the Westminster Parliament could have enacted laws about succession to the Crown at the time of federation. Each State enacted request legislation⁸¹ and the Commonwealth then enacted a law to amend the law of succession with respect to Australia,⁸² making it consistent with the British laws. While the same person continues to bear each separate Crown, the law concerning who wears the Crown of Australia is controlled by Australia. If the United Kingdom changed its rules of succession⁸³ or became a republic, Australian law would continue to control who is and becomes the Queen or King of Australia.

F. DATING INDEPENDENCE

If one is trying to ascertain a date upon which Australia obtained independence, then it is at least arguable that by 11 December 1931, the date the *Statute of Westminster* came into effect, Australia had its own separate Crown, full power to act in international affairs, the capacity to act independently of the United Kingdom, and the power to terminate residual links with it.⁸⁴ If independence is therefore assessed by one's power or capacity to exercise it, rather than the actual assertion of independence, then independence was achieved by that date.

If independence is assessed by reference to the actual exercise of independence, such as the appointment of diplomatic representatives, the assertion of an independent foreign policy, the declaration of war and peace,

the establishment of separate citizenship, the development of an Australian honours system, and the use of an Australian Great Seal for the sealing of significant Australian documents, then Australia became independent by a series of actions taken from the 1940s to the 1970s.

If, however, independence is assessed by the actual breaking off of residual links of dependence, rather than merely having the capacity to do so, then the relevant date is arguably 3 March 1986, when the *Australia Acts 1986* came into effect,⁸⁵ or perhaps even a date yet to occur in the future, when Australia breaks its links with the Crown and becomes a republic.⁸⁶

G. AUTOCHTHONY—CREATING AN AUTHENTIC AUSTRALIAN CONSTITUTION

The two main remaining links with Australia's colonial past are the constitutional monarchy and the location of the Commonwealth Constitution in a British Act of Parliament. Both have been to some extent 'Australianized'. For example, the Queen, when she exercises powers under Australian Constitutions or laws, acts upon the advice of her Australian State or Commonwealth ministers, as the case may be. However, she is not Australian and does not fulfil the normal role of a Head of State of representing that nation to the world and to itself. As a British-born woman, who speaks with a British accent, lives in Britain, and has only occasionally visited Australia, she does not have the capacity to genuinely fulfil all the requirements of a Head of State. Hence, she has a Governor-General as her 'representative'.

While there has been a confected debate in Australia about whether the Governor-General is the 'Head of State' of Australia,⁸⁷ the constitutional position, under section 2 of the Constitution, is that he or she holds office as the representative of the Queen. Executive power, under section 61, is vested in the Queen and only made 'exercisable' by the Governor-General. It is the Queen, not the Governor-General, who is a constituent part of the Parliament under section 1 of the Constitution. Even when a role, such as commander in chief of the naval and military forces, is conferred on the Governor-General by section 68 of the Constitution, it is conferred upon him or her 'as the Queen's representative', rather than in his or her own

right. The office of Governor-General is therefore subordinate to that of the Queen.

The person who holds the highest symbolic executive office in Australia is the Queen—a person who is not Australian—and the method for filling this office remains a hereditary one, necessarily conferring the office on persons who are not Australian and do not live in Australia. The hereditary nature of the office and its key role in a rigid class structure are also antithetical to the Australian ethos of egalitarianism and a fair go for all. For these reasons many Australians would regard a republic as a necessary last step towards complete independence.

The other lingering colonial link is the location of the Constitution as section 9 of a British Act of Parliament. The power to amend or repeal the *Commonwealth of Australia Constitution Act 1900* now lies in Australian hands, through section 15 of the *Australia Acts 1986*. If the Westminster Parliament were to repeal the *Commonwealth of Australia Constitution Act*, this would have no effect upon the continuing application of that Act as part of Australian law, due to the operation of section 1 of the *Australia Acts*. However, this is another example of Australia having the *power* to exercise its independence, but choosing not to do so, just as it chose not to enter into treaties on its own behalf and not to adopt the *Statute of Westminster* for many years after it could do so. Australia's history is remarkable for its lack of interest in seizing and exercising the independence granted to it, despite the early independence ambitions of the framers of the colonial and Commonwealth Constitutions of Australia.

Even at the time of the 1999 republic referendum, the proposed constitutional changes did not include the re-enactment of the Constitution as an act of the sovereignty of the Australian people. While the States offered their support in achieving the repeal of the covering clauses through the use of section 15(1) of the *Australia Acts*, the Commonwealth government rejected this offer,⁸⁸ preferring to leave the Constitution of an Australian republic in section 9 of a British Act of Parliament and dealing with the incongruity simply by not reprinting the preamble and the covering clauses in any new copy of the Constitution. Efforts by the States to repeal the covering clauses and the preamble were eventually abandoned due to lack of Commonwealth interest, except by Victoria which persisted with legislation on the subject.⁸⁹

When the republic issue arises again, serious consideration will need to be given to the re-enactment of the Constitution as an act of sovereignty by the Australian people. This would match the rhetoric of the High Court concerning the ‘political sovereignty’ of the people⁹⁰ with reality, providing a firmer footing for constitutional interpretation. It would also be an indisputable marker of complete Australian independence.

¹ *Island of Palmas Arbitration* (1928) 2 RIAA 829, 838.

² See, eg, *New South Wales Act 1823* (Imp) 4 Geo 4 c 96; *Australian Courts Act 1828* (Imp) 9 Geo 4 c 83; *Australian Constitutions Act (No 1) 1842* (Imp) (5 & 6 Vic c 76).

³ See, eg, Letters Patent, 16 July 1825 to Governor Darling, providing for the establishment of an Executive Council for New South Wales.

⁴ *Australian Constitutions Act (No 2) 1850* (Imp) (13 & 14 Vic c 59).

⁵ Sir Kenneth Roberts-Wray, *Commonwealth and Colonial Law* (Stevens & Sons 1966) 400; Charles Clark, *A Summary of Colonial Law* (Sweet & Maxwell 1834) 5.

⁶ Anne Twomey, ‘Federal Parliament’s Changing Role in Treaty Making and External Affairs’ in Geoffrey Lindell and Robert Bennett (eds), *Parliament—The Vision in Hindsight* (Federation Press 2001) 37, 40–41.

⁷ See, eg, Royal Instructions to Governor Darling, NSW, 17 July 1825, cl 2.

⁸ Hereafter described as the ‘Privy Council’.

⁹ The claim for local legislative independence was made in a ‘Remonstrance’ issued by the NSW Legislative Council in May 1851. See further Anne Twomey, *The Constitution of New South Wales* (Federation Press 2004) 7–11.

¹⁰ South Australia and Tasmania, in contrast, enacted Constitutions consistent with British legislation. The Queen assented to them in their original form, as passed by the colonial legislature, and there was no need for any British legislation. Victoria, however, took the same route as New South Wales, seeking domestic legislative independence.

¹¹ Letter from Sir Frederick Rogers to Richard William Church, quoted in A C V Melbourne, *Early Constitutional Development in Australia* (UQP 1963) 419.

¹² *Constitution Statute 1855* (Imp) (18 & 19 Vic c 54), s 4. See further Anne Twomey, *The Constitution of New South Wales* (Federation Press 2004) 269–70.

¹³ Note that many Canadian academics, politicians, and commentators were unaware as late as 1936 that s 2 of the *British North America Act 1867* (Imp) had been repealed by the *Statute Law Revision Act 1893* (Imp) 52 & 53 Vic c 63, s 30. See, eg, Frederick C Cronkite, ‘Canada and the Abdication’ (1938) 4(2) *Canadian Journal of Economics and Political Science* 177, 185; and Canada, *Parliamentary Debates*, House of Commons, 19 January 1937, 76 (Mr Lapointe, Minister for Justice).

¹⁴ John M Williams, ‘The Constitutional Amendment Process: Poetry for the Ages’ in Peter Gerangelos (ed), *Constitutional Advancement in a Frozen Continent* (Federation Press 2009) 1, 7–8.

¹⁵ Official Report of the National Australasian Convention Debates (Sydney, 18 March 1891) 490.

¹⁶ ‘Federation—Draft Commonwealth Bill’ *The Mercury* (Hobart, 18 August 1897) 4.

¹⁷ *ibid* 4.

¹⁸ Frank M Neasey, ‘Inglis Clark and Federation after 1891’ in Richard Ely (ed), *A Living Force: Andrew Inglis Clark and the Ideal of Commonwealth* (University of Tasmania 2001) 252, 257.

¹⁹ See also the observation by Andrew Thynne that the people are the great sovereign power in Australia: Official Report of the National Australasian Convention Debates (Sydney, 6 March 1891) 107.

²⁰ Robert Garran, *The Coming Commonwealth* (Angus & Robertson 1897) 182–83.

²¹ This was noted by Baker in Richard Baker, *A Manual of Reference to Authorities for the Use of Members of the National Australasian Convention* (W K Thomas & Co 1891) 142–43.

²² Official Record of the Debates of the Australasian Federal Convention (9 September 1897) 252 (Richard Edward O’Connor).

²³ Richard Webster and Robert Finlay, ‘Law Officers’ Report’ (21 December 1899) extracted in John M Williams, *The Australian Constitution—A Documentary History* (Melbourne UP 2005) 1176, 1179.

²⁴ UK, *Parliamentary Debates*, HC Deb 14 May 1900, cols 59–60 (J Chamberlain).

²⁵ Memorandum by Edmund Barton, Alfred Deakin, James Dickson, Charles Kingston, and Philip Fysh (23 March 1900) extracted in Williams, *The Australian Constitution* (n 23) 1180, 1182.

²⁶ UK, Colonial Office, ‘Memorandum of the Objections of Her Majesty’s Government to some Provisions of the Draft Commonwealth Bill’, 29 March 1900, extracted in Williams, *The Australian Constitution* (n 23) 1189, 1190.

²⁷ Memorandum by Edmund Barton, Alfred Deakin, Charles Kingston and Philip Fysh (8 May 1900) extracted in Williams, *The Australian Constitution* (n 23) 1206.

²⁸ John A La Nauze, *The Making of the Australian Constitution* (Melbourne UP 1972) 258.

²⁹ UK, *Parliamentary Debates*, HC Deb 21 May 1900, cols 757–58 (J Chamberlain).

³⁰ This was later accepted by the High Court in *Union Steamship of New Zealand v Commonwealth* (1925) 36 CLR 130, 141 (Knox CJ) and *Commonwealth v Kreglinger & Fernau Ltd and Bardley* (1926) 37 CLR 393.

³¹ John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (Angus & Robertson 1901) 650–51.

³² For more recent references to federation bringing forth a ‘nation’, see *China Ocean Shipping Co v South Australia* (1979) 145 CLR 172, 236 (Murphy J); *Davis v Commonwealth* (1988) 166 CLR 79, 110 (Brennan J); *Street v Queensland Bar Association* (1989) 168 CLR 461, 485 (Mason CJ); and *Breavington v Godleman* (1988) 169 CLR 41, 121–22 (Deane J).

³³ Andrew Inglis Clark, ‘The Future of the Australian Commonwealth: A Province or a Nation?’ in Richard Ely (ed), *A Living Force: Andrew Inglis Clark and the Ideal of Commonwealth* (University of Tasmania 2001) 240.

³⁴ *ibid* 240, 244.

³⁵ *ibid* 240, 245.

³⁶ *ibid*.

³⁷ This was a real constraint. For example, the *Mining Companies Foreign (Amendment) Bill 1907* (Tas) was not given royal assent. Although assent was never refused to a Commonwealth bill, this was simply because the Commonwealth actively avoided such embarrassment by amending legislation to make it acceptable to the British or withdrawing a reserved bill when it became apparent that assent would not be given. See *Customs Tariff (British Preference) Bill 1906* (Cth) which British parliamentary papers record as having failed to receive assent, but the Commonwealth regarded as being ‘withdrawn’ from the request for royal assent, for face-saving reasons.

³⁸ Appeals from the High Court upon questions as to the limits *inter se* of the constitutional powers of the Commonwealth and the States could not occur unless the High Court certified the question as

one which ought to be determined by Her Majesty in Council: *Commonwealth Constitution*, s 74.

³⁹ See further Anne Twomey, 'Sue v Hill—The Evolution of Australian Independence' in Adrienne Stone and George Williams (eds), *The High Court at the Crossroads* (Federation Press 2000) 77, 80–86.

⁴⁰ *Imperial Conference 1926—Summary of Proceedings* (Cmd 2768) 14.

⁴¹ *ibid* 16–17.

⁴² John Waugh, 'An Australian in the Palace of the King-Emperor: James Scullin, George V and the Appointment of the First Australian-Born Governor-General' (2011) 39 *Federal Law Review* 235.

⁴³ *Imperial Conference 1930—Summary of Proceedings* (Cmd 3717) 27.

⁴⁴ See further Anne Twomey, *The Chameleon Crown—The Queen and Her Australian Governors* (Federation Press 2006) 263–71.

⁴⁵ Leslie Zines, *Constitutional Change in the Commonwealth* (CUP 1991) 6.

⁴⁶ UK, *Parliamentary Debates*, HC Deb 16 December 1930, col 1037; UK, Secretary of State for Dominion Affairs, 'The Constitutional Position of New South Wales' (Cabinet Paper July 1931: UK National Archives DO 35/11156/47).

⁴⁷ *Statute of Westminster 1931* (Imp), s 9(3).

⁴⁸ *Bisticic v Rokov* (1976) 135 CLR 552; *Ukley v Ukley* [1977] VR 121; *China Ocean Shipping Co* (n 32); *Kirmani v Captain Cook Cruises Pty Ltd [No 1]* (1985) 159 CLR 351.

⁴⁹ *Statute of Westminster Adoption Act 1942* (Cth), s 3 (providing that ss 2–6 of the *Statute of Westminster* have effect from 3 September 1939).

⁵⁰ Commonwealth, *Parliamentary Debates*, House of Representatives 7 October 1942, vol 172, 1424 and 1455.

⁵¹ Australia did not commence to appoint its own diplomatic representatives until 1940, even though it had the power to do so from 1920: Twomey, 'Sue v Hill—The Evolution of Australian Independence' (n 39) 77, 86–87.

⁵² Gleeson CJ, Gummow and Hayne JJ have observed that 'by 1948 the Imperial Crown, indivisible in nature, with an undivided allegiance, was no longer apparent, whether in this country or the UK': *Shaw v Minister for Immigration and Multicultural Affairs* (2003) 218 CLR 28, 42 [28].

⁵³ *Royal Style and Titles Act 1953* (Cth); and *Royal Style and Titles Act 1973* (Cth).

⁵⁴ *Australian Citizenship Amendment Act 1984* (Cth).

⁵⁵ See, eg, *Nolan v Minister for Immigration and Ethnic Affairs* (1988) 165 CLR 178, 186 (Mason CJ, Wilson, Brennan, Deane, Dawson and Toohey JJ); *Sykes v Cleary* (1992) 176 CLR 77, 118 (Deane J); *Re Patterson; Ex parte Taylor* (2001) 207 CLR 391, 411 [48] (Gaudron J), 467 [229] (Gummow and Hayne JJ); *Shaw* (n 52) 42 [28] (Gleeson CJ, Gummow and Hayne JJ); *Hwang v Commonwealth* (2005) 222 ALR 83, 86 [9] (McHugh J).

⁵⁶ *Privy Council (Limitation of Appeals) Act 1968* (Cth); and *Privy Council (Appeals from the High Court) Act 1975* (Cth). Appeals from State Courts were not terminated until the enactment of the *Australia Acts 1986*. Section 74 of the Commonwealth Constitution still leaves technically open one method of appeal to the Privy Council.

⁵⁷ Those doubting that s 128 could be used to amend the covering clauses include: Quick and Garran (n 31) 989; Sir William Harrison Moore, *The Constitution of the Commonwealth of Australia* (2nd edn, Charles F Maxwell 1910), 603; Donald Kerr, *The Law of the Australian Constitution* (Law Book Co 1925) 6; *Report of the Royal Commission on the Constitution* (Cth Gov Printer, 1929) 288; Harold S Nicholas, *The Australian Constitution* (2nd edn, Law Book Co 1952) 388; William A Wynes, *Legislative, Executive and Judicial Powers in Australia* (4th edn, Law Book Co 1970) 505–06; Geoffrey Sawer, 'The British Connection' (1973) 47 *Australian Law Journal* 113, 114; James Thomson, 'Altering the Constitution: Some Aspects of Section 128' (1983) 13 *Federal Law Review*

323, 333–34; Colin Howard, *Australian Federal Constitutional Law* (3rd edn, Law Book Co 1985) 3; Gregory Craven, *Secession: The Ultimate States Right* (Melbourne UP 1986) 160–61, 165–67; Mark Moshinsky, ‘Re-enacting the Constitution in an Australian Act’ (1989) 18 *Federal Law Review* 134, at 143–45; Stephen Gageler and Mark Leeming, ‘An Australian Republic: Is a Referendum Enough?’ (1996) 7 *Public Law Review* 143, 148–49. Those arguing that s 128 might be used in this way include Enid Campbell, ‘An Australian-made Constitution for the Commonwealth of Australia’ in *Report of Standing Committee D to the Executive Committee of the Australian Constitutional Convention* (1974, Appendix H, 100); George Winterton, *Monarchy to Republic*, (OUP 1986) 124–25; and Constitutional Commission, *Final Report of the Constitutional Commission*, (AGPS, Canberra, 1988) vol 1, 120–23.

⁵⁸ See the full argument in: Anne Twomey, *The Australia Acts 1986—Australia’s Statutes of Independence* (Federation Press 2010) 42–43, 390–94, 407. cf George Winterton, ‘The Acquisition of Independence’ in Robert French, Geoffrey Lindell, and Cheryl Saunders (eds), *Reflections on the Australian Constitution* (Federation Press 2003) 31, 43.

⁵⁹ See further Twomey, *The Chameleon Crown* (n 44) 118.

⁶⁰ By amending s 8 of the *Statute of Westminster*, power can also be obtained to amend the *Commonwealth of Australia Constitution Act 1900*, at least in relation to the preamble and covering clauses. It is unlikely that the Constitution itself could be amended by this method, as this would breach s 128 of the Constitution, which provides the exclusive method of doing so. Certainly the *Australia Act 1986* (Cth) could not alter s 128, as its head of power in s 51(xxxviii) is ‘subject to this Constitution’. It is unlikely that s 15 of the *Australia Act 1986* (UK) was intended to permit the amendment of the Constitution other than by way of a referendum under s 128.

⁶¹ Laws with respect to the constitution, powers or procedure of the Parliament of a State.

⁶² See further Twomey, *The Australia Acts 1986* (n 58) 456–79.

⁶³ The problems with the application of s 51(xxxviii) are explored in full in Twomey, *The Australia Acts 1986* (n 58) 386–412.

⁶⁴ Letter from Mr Cullimore, UK High Commission, Canberra, to Mr Chick, FCO, 20 April 1983.

⁶⁵ Transcript of meeting of the Standing Committee of Attorneys-General (10 April 1981) 10.

⁶⁶ Twomey, *The Australia Acts 1986* (n 58) 98–100.

⁶⁷ *Sue v Hill* (1999) 199 CLR 462, 491 [61] (Gleeson CJ, Gummow and Hayne JJ); *Durham Holdings v New South Wales* (2001) 205 CLR 399, 408–09 [9] (Gaudron, McHugh, Gummow and Hayne JJ).

⁶⁸ *Attorney-General (WA) v Marquet* (2003) 217 CLR 545, 570–71 [66]–[67] (Gleeson CJ, Gummow, Hayne and Heydon JJ).

⁶⁹ *Leeth v Commonwealth* (1992) 174 CLR 455, 484, 486 (Deane and Toohey JJ); *Australian Capital Television Pty Ltd v Commonwealth* (1992) 177 CLR 106, 138 (Mason CJ); *Capital Duplicators Pty Ltd v Australian Capital Territory* (1992) 177 CLR 248, 274 (Brennan, Deane and Toohey JJ); *Theophanous v Herald & Weekly Times* (1994) 182 CLR 104, 171 (Deane J); *Kruger v Commonwealth* (1997) 190 CLR 1, 41–42 (Brennan CJ); *Re Wakim; ex parte McNally* (1999) 198 CLR 511, 549 [35] (McHugh J); *Unions NSW v New South Wales* (2013) 252 CLR 530, 548 [17] (French CJ, Hayne, Crennan, Kiefel and Bell JJ); 571 [104], 578 [135] (Keane J); *Tajjour v New South Wales* (2014) 254 CLR 508 593 [197] (Keane J); *McCloy v New South Wales* (2015) 257 CLR 178, 207 [45] (French CJ, Kiefel, Bell and Keane JJ).

⁷⁰ Transcript of meeting of the Standing Committee of Attorneys-General (10 April 1981) 12.

⁷¹ Although this is not formalized, in contrast to s 7 of the *Australia Acts 1986* which does formalize the source of advice to the Queen in relation to the States, it is a long-standing convention that has operated since at least 1930.

⁷² *Kirmani v Captain Cook Cruises Pty Ltd* (1985) 159 CLR 461, 465 (Gibbs CJ, Mason, Wilson, Brennan, Deane and Dawson JJ).

⁷³ *Pochi v Minister for Immigration & Ethnic Affairs* (1982) 151 CLR 101, 109 (Gibbs CJ); *Nolan* (n 55) 184, 186 (Mason CJ, Wilson, Brennan, Deane, Dawson and Toohey JJ); *Sue v Hill* (n 67) 489–90 [57] (Gleeson CJ, Gummow and Hayne JJ), 526–27 [169] (Gaudron J); *Re Patterson* (n 55) 411 [48] (Gaudron J); *Shaw* (n 52) 48 [51]–[52] (McHugh J), 62 [97] (Kirby J), 84–85 [177] (Callinan J); *Singh v Commonwealth* (2004) 222 CLR 322, 342 [35], 344 [39]–[41], 351 [57]–[58], 377–78 [133] (McHugh J), 417 [263] (Kirby J).

⁷⁴ *Succession to the Crown Act 2013* (UK).

⁷⁵ The changes were agreed by the Realms in Perth in 2011. The British Act did not come into effect until all Realms either made relevant changes to their own legislation or declared that such changes were legally unnecessary. The changes came into effect across all Realms on 26 March 2015.

⁷⁶ Peter Hogg, ‘Succession to the Throne’ (2014) 33 *National Journal of Constitutional Law* 83, 90; Rob Nicholson, ‘Changing the Line of Succession to the Crown’ (Summer 2013) 36(2) *Canadian Parliamentary Review* 8; Ian Holloway, ‘The Law of Succession and the Canadian Crown’ in D Michael Jackson and Philippe Lagassé (eds), *Canada and the Crown—Essays on Constitutional Monarchy* (McGill-Queen’s UP 2013) 107, 113.

⁷⁷ Minister of Canadian Heritage, ‘Backgrounder—Introduction of Line of Succession Legislation’ (31 January 2013) <<http://www.prnewswire.com/news-releases/harper-government-introduces-legislation-to-give-canadian-assent-to-changes-to-the-laws-governing-the-royal-line-of-succession-189206791.html>> accessed 30 September 2017. See also the comments of the Canadian Minister of Justice and Attorney-General: Rob Nicholson, ‘Changing the Line of Succession to the Crown’ (Summer, 2013) 36(2) *Canadian Parliamentary Review* 8.

⁷⁸ *Succession to the Throne Act 2013* (Canada).

⁷⁹ Its validity has been challenged, but upheld, by the Superior Court of Quebec in *Motard v Attorney General (Canada)* [2016] QCCS 588 (CanLII), but the matter is under appeal.

⁸⁰ Leslie Zines, *The High Court and the Constitution* (5th edn, Federation Press 2008) 436–37; Enid Campbell, ‘Changing the Rules of Succession to the Throne’ (1999) 1(4) *Constitutional Law and Policy Review* 67, 70.

⁸¹ *Succession to the Crown (Request) Act 2013* (NSW); *Succession to the Crown Act 2013* (Qld); *Succession to the Crown (Request) Act 2014* (SA); *Succession to the Crown (Request) Act 2013* (Tas); *Succession to the Crown (Request) Act 2013* (Vic); *Succession to the Crown Act 2015* (WA).

⁸² *Succession to the Crown Act 2015* (Cth).

⁸³ *Sue v Hill* (n 67) 502 [93] (Gleeson CJ, Gummow and Hayne JJ).

⁸⁴ Twomey, ‘*Sue v Hill*—The Evolution of Australian Independence’ (n 39) 77–108; Winterton, ‘*The Acquisition of Independence*’ (n 58) 31, 42–43; Geoffrey Lindell, ‘Further Reflections on the Date of the Acquisition of Australia’s Independence’ in Robert French, Geoffrey Lindell and Cheryl Saunders (eds), *Reflections on the Australian Constitution* (Federation Press, 2003) 51, 54–55.

⁸⁵ *Sue v Hill* (n 67) 490 [59] (Gleeson CJ, Gummow and Hayne JJ), 528 [173] (Gaudron J); *Shaw* (n 52) 48 [51] (McHugh J), 67 [109] (Kirby J), 85 [178] (Callinan J); *Singh v Commonwealth* (n 73) 377 [131] (McHugh J); *Pape v Commissioner of Taxation* (2009) 238 CLR 1, 84 [217] (Gummow, Crennan and Bell JJ).

⁸⁶ Note Winterton’s observation that while ‘Australia has long been independent, it will not constitutionally be free-standing while it depends upon the United Kingdom for its Head of State’: Winterton, ‘*The Acquisition of Independence*’ (n 58) 31, 50.

⁸⁷ ‘In a country of which the Queen is Sovereign, she is Head of State’: Sir William Dale, *The Modern Commonwealth*, (Butterworths 1983) 112. cf Sir David Smith, *Head of State—The*

Governor-General, the Monarchy, the Republic and the Dismissal (Macleay Press 2005) 85–116; David Flint, ‘The Head of State Debate Resolved’ (July/Aug 2008) 52 *Quadrant* 59; Glenn Patmore, ‘The Head of State Debate: A Response to Sir David Smith and Professor David Flint’ (2012) 58(2) *Australian Journal of Politics & History* 251.

⁸⁸ See further Anne Twomey, *The Constitution of New South Wales* (Federation Press 2004) 780–85.

⁸⁹ *Constitution (Requests) Act 1999* (Vic).

⁹⁰ *Leeth* (n 69) 484, 486 (Deane and Toohey JJ); *Australian Capital Television* (n 69) 138 (Mason CJ); *Nationwide News Pty Ltd v Wills* (1992) 177 CLR 1, 72 (Deane and Toohey JJ); *Capital Duplicators Pty Ltd* (n 69) 274 (Brennan, Deane and Toohey JJ); *Theophanous* (n 69) 171 (Deane J); *McGinty v Western Australia* (1996) 186 CLR 140, 199 (Toohey J); *Kruger* (n 69) 41–42 (Brennan CJ); *Re Wakim* (n 69) 549 [35] (McHugh J); *Marquet* (n 68) 612–13 [203] (Kirby J); *Unions NSW* (n 69) 571 [104], 578 [135], 581 [146], 583–84 [158] (Keane J); *Tajjour* (n 69) 593 [196]–[197] (Keane J); *McCloy* (n 69) 207 [45] (French CJ, Kiefel, Bell and Keane JJ), 257 [215]–[217] (Nettle J).

CHAPTER 5

EVOLUTION

SUSAN KENNY*

A. INTRODUCTION

To speak of ‘evolution’ today is to evoke, at least obliquely, the evolutionary theory proposed by Charles Darwin in mid-nineteenth century Victorian England and subsequently re-crafted by others. In discussing change in the Australian Constitution this evocation is fitting. By the end of the nineteenth century, educated contemporaries perceived Darwinian ideas to permeate intellectual endeavour, including law, history, politics, and social theory. Darwin’s ideas about biological evolution were appropriated in England and elsewhere to inform the Liberal conception of social progress. In the mid-1870s, Alfred Deakin, who was to be influential in drafting the Constitution, explained to fellow students that the Social Darwinism of Herbert Spencer had taken over from the traditional subjects such as classics and mathematics. Deakin told his audience that the ‘world was entering a new epoch in history: everyone should start anew from Spencer’s theories’.¹ In keeping with the prevailing thought, the late nineteenth century framers of the Constitution were alive to the fact that the Constitution and the system it protected would evolve and allowed for such evolution in the Constitution they drafted.

The meaning of constitutional evolution and its perceived proper limits are likely to differ from one constitutional system to another. Much will depend on constitutional design and culture. Some systems with written constitutions, such as Thailand, do not appear to have an evolutionary tradition. In others, such as the United States, constitutional change frequently occurs outside the formal amendment process although

commentators sometimes struggle to legitimize its occurrence. In the United States, an anxiety about the extent to which the Supreme Court effects constitutional change outside Article 5 by means of constitutional interpretation finds expression in originalist theory. The two key ideas of originalism—that the original meaning of the text is fixed when a provision is framed and ratified and that constitutional actors, especially courts, are constrained by that original meaning—are adapted to this end.

A deficiency in extreme originalism is, however, that it cannot convincingly explain the processes of constitutional change that in fact happen. In the United States and Canada, other theories, including moderate originalism and living constitutionalism, have been developed to explain these phenomena. Recognizing the deficiency of extreme originalism, contemporary originalist scholars have identified an area of constitutional indeterminacy in which courts may properly resolve a constitutional issue by reference to a diversity of factors, so long as they start with the fixed original meaning.² Moderate originalist theory recognizes that restrained constitutional evolution may legitimately occur within this indeterminate area. Although differing about how to treat the text, moderate originalists and living constitutionalists acknowledge that their constitutional system evolves outside the formal amendment process. There is further debate as to whether the formal process occupies the same or a different space.³ Leaving aside their differences, these contemporary theorists seek to take account of the practical operation of the whole of their constitutional system, including the interaction of the principal constitutional institutions and practices. In this context, constitutional change in the United States has been said to be ‘as much the product of the political branches ... and changing social and cultural practices as it is the product of federal judicial decisions’.⁴

Moderate originalism, living constitutionalism, and other contemporary theories born in the United States are directed to the processes of constitutional change there and, to a greater or lesser extent, reflect the fact that, in the United States constitutional system, the courts regularly adjudicate cases arising under constitutional civil or political rights provisions.⁵ This is not a feature of the Australian constitutional system. Whilst there has been a debate of sorts about originalist versus progressive or dynamic constitutional interpretation, it has been slight in this country compared with the United States.⁶ Australian constitutional lawyers do not,

moreover, dispute the existence of what has been referred to as the Australian ‘evolutionary constitutional tradition’.⁷ As this chapter shows, constitutional evolution in Australia is an outcome of Australian constitutional history and, specifically, the interaction of a late nineteenth century text and a uniquely Australian constitutional culture.

B. AUSTRALIAN CONSTITUTIONAL EVOLUTION

This chapter is about Australian constitutional evolution. It concerns the meaning, the processes, and the possibilities of constitutional change in Australia. Constitutional evolution here means the transformation of the Australian constitutional system from its original form in 1901 into different forms until it reached the form we know today, by an aggregation of changes over time. These changes have mostly occurred in the constitutional space for which the written Constitution originally provided, with the result that, from 1901 until now, the Constitution has provided the framework for the Australian federation. The Constitution, as enacted by the British Parliament and as formally amended by popular referenda, has been critical to this evolutionary process; but the changes in the constitutional system, though consistent with the written text, have not been required by it.

The Constitution, though formally amended from time to time, has not been the subject of any radical amendment comparable to the ratification of the Fourteenth Amendment in the United States. Indeed, at an overarching level, the formal amendment procedure has generally favoured continuity over change. This may be because there has been no event in Australian history that has required Australians to re-imagine their Constitution to address the aftermath of revolution, civil war, or other major constitutionally disruptive event. Nonetheless, there have been significant developments in the constitutional system since the Constitution was ratified by the colonial voters in 1898–99. These developments allowed for adaptations to major intergenerational changes, whether in domestic government or international affairs. As the following account shows, the durability of the Constitution has been due to its capacity to accommodate these developments in the constitutional system by providing wide constitutionally tolerant spaces, as well as a formal amendment procedure.⁸

The meaning of constitutional evolution in Australia and the processes by which it has occurred reflect the age of the Constitution and the constitutional culture that witnessed its creation and later life. The design of the Constitution was the work of men of the late nineteenth century. The provisions for a federal constitution under which the colonies would join together as States in a federation were publicly debated at the National Australasian Convention in Sydney in 1891; and at the Federal Convention in Adelaide and Sydney in 1897 and in Melbourne in 1898. The Convention proceedings, which were published and widely discussed at the time, disclosed that the delegates drew on their British constitutional inheritance and experience of British colonial government, together with their knowledge of other written constitutions (including the Canadian, the Swiss, and the United States Constitutions), to create a unique constitution of their own.

By reference to the standards of the day, the Constitution had a sound popular foundation, consistent with the formal amendment procedure discussed below. The delegates to the Convention of 1897–98 were directly elected by the colonial populations eligible to vote in New South Wales, Victoria, South Australia, and Tasmania. They were chosen by the Parliament in Western Australia (with Queensland sending no delegates).⁹ The draft Constitution, as amended by the colonial Premiers, was twice put to the voters of the colonies. Although it was passed in the four voting colonies in 1898, the margin was deemed insufficient in New South Wales. After some changes, it was approved in 1899 by a majority of voters in five of the colonies and, in 1900, by a majority of voters in Western Australia.¹⁰ The *Commonwealth of Australia Constitution Act*, which set out the Australian Constitution, was passed by British Parliament in July 1900 and was proclaimed to come into effect on 1 January 1901.¹¹ The early authoritative commentators, Quick and Garran, recorded that the British Secretary of State for the Colonies, Joseph Chamberlain, announced in the British Parliament that the passage of the Bill ‘would be in the interests of Australia, and also of the Empire’ and that he anticipated ‘a future even more prosperous than the past, and an honourable and important position in the history of the Anglo-Saxon race’.¹² With the limited exception of section 74 touching the Imperial interest in Privy Council appeals, the British Parliament gave effect to the Bill as an expression of the will of the

people of the Australian colonies. The result was that the Constitution was both created by an Act of the British Parliament and understood as an expression of Australian popular sentiment. This bifurcated character had consequences for constitutional evolution, as the previous chapter illustrates.

1. Breadth, Brevity, and the Prospect of Future Completion

The original design of the Constitution created significant evolutionary possibilities for the constitutional system. The Constitution was and remains a short document compared with other current Constitutions such as those of the United States, Canada, or India. As indicated by its eight chapters and 128 sections, its primary focus was on institutional structures, powers, and procedures. Its main aim was to create the institutions of federal government (or to provide for their creation) and to maintain the former colonial communities albeit transformed into the new States. In doing this, it created an open framework for democratic government and civil society, with an allocation of powers and responsibilities particularly between the Parliament, the executive, the judicature, and the people.

The brevity of the text left ample constitutional space for development. Important provisions expressed no more than broad ideas or concepts. By section 1, the ‘legislative power of the Commonwealth’ was vested in the Federal Parliament consisting of the Sovereign and two Chambers; by section 61, the ‘executive power’ was vested in the Queen and was ‘exercisable by the Governor-General as the Queen’s representative’; and by section 71, the ‘judicial power’ was vested in the High Court and ‘in such other federal courts as the Parliament creates, and in such other courts as it invests with federal jurisdiction’. It would be for these three constitutional actors to give substance and definition to the powers reposed in them. When they did, they drew on the ‘tradition of English law’ to give content to the judicial power,¹³ and to identify diverse rules for the conduct of Parliament and the executive.

The provisions for the executive, in particular, left much to informed understanding. Reflecting their British inheritance, although neither referenced nor described, the framers assumed the doctrine of ministerial responsibility was implicit in Chapter II (The Executive Government). The lack of particulars permitted the doctrine’s practical operation to be worked

out over time in the conditions of Australian government. In consequence, although the text apparently confers extensive powers on the Governor-General as the Sovereign's representative, these powers are severely constrained by considerations referable to the Australian conception of responsible and representative government.¹⁴

Many important provisions were expressed briefly or generally. For example, whilst section 51 provided that Parliament was to have 'power to make laws for the peace, order and good government of the Commonwealth with respect to' particular subjects, these subjects were described in short and general terms, as for example, 'taxation' and 'postal, telegraphic, telephonic, and other like services'.¹⁵

Some legislative powers were conferred by reference to context-dependent ideas, such as 'external affairs'¹⁶ or included legal concepts or criteria, such as 'fisheries in Australian waters beyond territorial limits', 'copyrights, patents of inventions and designs, and trade marks', 'bankruptcy and insolvency', and 'bills of exchange and promissory notes'.¹⁷ Other provisions had similar characteristics: section 44 disqualified certain persons from standing for Parliament, including 'an undischarged bankrupt or insolvent'.

The context-dependent nature of provisions like these meant that, from the beginning, they were liable to apply differently as the contextual circumstances altered. They were in this way adapted for evolution. The apparent accretion of legislative power to the Commonwealth as a result of the *Tasmanian Dam* case¹⁸ in 1983 was less the result of any directional change in the High Court's interpretative method and more the outcome of the increase in number and variety of international instruments to which, by 1983, Australia was party—the decision to accede to them being that of the executive and to legislate to give them domestic effect being that of the Parliament.

Various provisions afforded the constitutional actors a good deal of latitude in designing constitutional arrangements; and some allowed the federal Parliament to develop or complete these arrangements over time. This was especially true of the provisions concerning the judicature. The Constitution required only the establishment of the High Court.¹⁹ The Court's entrenched original jurisdiction extended to just five very generally described matters, including matters 'between States', or in which 'the

Commonwealth ... is a party'.²⁰ The Parliament was left to complete the Court's original jurisdiction, by conferring (if it so chose) jurisdiction in four other broadly designated matters, including matters 'arising under this Constitution, or involving its interpretation' and 'arising under any laws made by the Parliament'.²¹ Apart from the High Court, the Parliament was given authority to determine whether the State courts could exercise all or part of federal jurisdiction; and whether to create other federal courts and, if so, to define the jurisdiction they could exercise.²²

Other provisions were indeterminate in the sense that they left it to Parliament or another constitutional actor to decide how to act. Contemporaries were alive to the future possibilities that were created in this way. Pursuant to section 96, for example, Parliament was able to 'grant financial assistance to any State on such terms and conditions as the Parliament thinks fit'. Regarding section 96, Deakin said, shortly after federation, '[a]s the power of the purse in Great Britain established by degrees the authority of the Commons, it will ultimately establish in Australia the authority of the Commonwealth'.²³ This, as explained below, was prescient, with the power of the purse ultimately establishing the hegemony of the Commonwealth over the States.

Textual indeterminacy has generally assisted Australian constitutional evolution. Indeed, the brevity, breadth, and context-dependent language attracted a form of judicial reasoning, itself of nineteenth century origin, which was also conducive to change in the application of the text over time. This reasoning depended on a distinction between connotation and denotation: it derived from the work of John Stuart Mill and has a solid history of judicial use.²⁴ The distinction between the essential characteristics of the concept (connotation) as conveyed in 1900 and the matters and things that fall within that concept at the time the law is made (denotation) has suited rationalizing change in the application of various provisions of the Constitution. *Cheatle v The Queen*²⁵ decided in 1993 is illustrative. The High Court explained the contemporary reach of the section 80 guarantee of 'trial ... by jury', by holding that an essential feature of the institution of the jury was that it was 'a body of persons representative of the wider community' and that the application of this criterion might 'vary with contemporary standards'. Accordingly, although the practice of excluding non-propertied people and women might have

been consistent with this essential feature in 1900, it was not by 1993. Whilst there are limits to the kinds of change that can be brought about by this form of reasoning, since a ‘connotation’ cannot be stretched indefinitely to answer every perceived updating need, reasoning in this way has enabled the courts, especially the High Court, to adapt the Constitution to meet the conditions of the day.

The evolutionary utility of indeterminate language has had limits. The extreme indeterminacy of section 92 may have stymied the progressive development of its underlying ideas in the eighty-plus years post-federation. Section 92 stipulated that ‘trade, commerce, and intercourse among the States ... shall be absolutely free’ without stating from what they were to be free. As the Court said in *Cole v Whitfield*,²⁶ ‘[t]he delimitation of the precise scope and effect of the guarantee was left as an unresolved task for the future’, notwithstanding that its ‘obscurity and foreseen difficulty of application’ was acknowledged at the time of the 1897–98 Convention debates. Until that case, the Court struggled to identify a workable standard for the trade and commerce limb of section 92, which expressed a relevant underlying idea and yielded broadly consistent outcomes.

Other features of the text may be thought conducive to an evolutionary tradition. The four express rights-protective provisions²⁷ also contained indeterminate standards, including, in the case of section 51(xxxi), the ‘acquisition of property’ on ‘just terms’ and, in the case of section 116, a prohibition on ‘the free exercise of religion’. Reference has already been made to section 80. Also with respect to these provisions (as well as section 92), some balancing was apparently implicit, but the text did not expressly disclose the interests to be weighed and the line between unjustifiable and justifiable action. These matters were left to the constitutional actors, especially the High Court, to determine, by reference to prevailing circumstances.

When viewed from the framers’ perspectives, the very slight provision in the text for civil or political rights may also be said to have left open the door to change in the constitutional system. This possibility conforms to the framers’ contemporary political and legal philosophy²⁸ that rights were properly protected through the medium of representative and responsible government and the courts. The Constitution left it to the Parliaments, federal and State, to make laws within their respective capacities of a rights-

protective kind, as future events required. Critics divide over the desirability of this aspect of the Australian evolutionary tradition.

Notably, the central values or commitments of the Commonwealth were not expressly stated in the Constitution. They were to be discerned instead from the express-rights provisions, by implication from the provisions for the constitutional institutions, the framers' assumptions about applicable principles or practices, and perhaps from the actions of the constitutional actors that entrenched values over time. The failure to fix these key tenets has also attracted criticism. It should be borne in mind, however, that the absence of entrenched statements meant that the constitutional system was not tied to outmoded ideas. As part of Australia's evolutionary tradition, the High Court has been able to step back in recent decades to consider the whole constitutional framework, from which it has discerned some key implied restraints or freedoms, some of which are mentioned later in this chapter.

It is more than likely that the framers recognized that the Constitution left a good deal of space for interpretation and construction. In the debates in Melbourne in 1898, Alfred Deakin said that the draft Constitution 'requires for its full interpretation a considerable amount of constitutional knowledge'.²⁹ He added:

Although the members of the Convention and others will have every opportunity of expounding it, in the light of their constitutional knowledge, to the public, the measure itself will not, except to a student of our form of government, convey a great deal of what it necessarily means.

The indeterminacy of many provisions of the written text left plenty of open constitutional space for the Commonwealth, via federal Parliament, the executive and the High Court, and the States to develop the constitutional system to satisfy another generation's expectations of government. Indeed, the framers assumed the High Court, established under section 71, would undertake constitutional review³⁰ and that its interpretation of the Constitution would be important for the constitutional system.

The conclusion seems inescapable that the late nineteenth-century framers of the written Constitution contemplated that, beyond the formal amendment procedure, the constitutional actors would bring about changes in the constitutional system. Furthermore, the Constitution left the State Parliaments concurrent power to legislate with respect to most of the federally specified matters, subject to the proviso that if a State law was

inconsistent with a federal law, the federal law would prevail.³¹ Also bearing in mind the amendment procedure in section 128, and section 51(xxxvii) and section 51(xxxviii) (discussed below), the complete design of the Constitution and the constitutional system was, it seems, never to be closed. It is improbable, of course, that the framers could have entirely foreseen how the machinery of change would operate or indeed the directions that Australian constitutional evolution would take. It is to these matters that the chapter now turns.

C. MACHINERY OF CONSTITUTIONAL EVOLUTION

The machinery of Australian constitutional evolution may be divided into: (1) that for which provision is expressly made in the text of the Constitution; and (2) that which has facilitated change in constitutional arrangements in the space left by the Constitution for the constitutional actors. Both types have been important, although in different ways. Perhaps counterintuitively, the mechanisms that are mostly known only to constitutional lawyers have achieved more significant transformations than the more widely known formal amendment procedure in section 128.

1. Procedures for Change

The machinery of the first type covers section 51(xxxvii), section 51(xxxviii), and section 128. The two former provisions have contributed to what a former Chief Justice of the High Court called ‘co-operative constitutional evolution’,³² whereby the Commonwealth and the States negotiated constitutional change to meet future needs. Practically speaking, they have been important in enabling Australia to attain nationhood and operate successfully as a nation State.

Section 51(xxxvii) authorized the Commonwealth to make laws with respect to matters referred to it by the States. From the beginning it had the potential to facilitate the adjustment of the federal distribution of legislative powers to meet unforeseen events, without the need formally to amend the Constitution. Over time, the States referred power under this provision on diverse topics, including meat and poultry inspection, family law, State banking, air navigation, the mutual recognition by the States and Territories of one another’s standards, corporations law, and counter-terrorism. The

listed subjects indicate the degree to which the reference power has enabled the constituent governments of the federation to meet the exigencies of the day on a co-operative basis. It is also probable that the need for intergovernmental consensus has also meant that ‘sufficient protective mechanisms’ are built in to the arrangements ‘to deter unilateral Commonwealth exploitation of the power’.³³

Section 51(xxxviii) authorized the Commonwealth to make laws with respect to:

the exercise within the Commonwealth, at the request or with the concurrence of the Parliaments of all the States directly concerned, of any power which can at the establishment of the Constitution be exercised only by the Parliament of the United Kingdom or by the Federal Council of Australasia.

As the previous chapter described, the provision allowed the federal and State Parliaments acting together to free themselves of British laws that would otherwise apply and also facilitated the making of laws for post-federation independence, most recently by providing the necessary support for the *Australia Act 1986* (Cth). Also in recent times, section 51(xxxviii) enabled the Commonwealth to give legislative effect to the Offshore Constitutional Settlement Co-operative arrangements between it and the States, to provide for the management of offshore resources, including fisheries and petroleum.³⁴

The formal amendment procedure is, however, far better known to most Australians than section 51(xxxvii) and section 51(xxxviii). In section 128, the framers made provision for constitutional amendment in Australia, in acknowledged contrast to the *British North America Act 1867* (UK) requiring amendment by the British Parliament. The section 128 procedure reflects the federal framework and, consistently with the Constitution’s popular foundation mentioned earlier, provides that the people should have ultimate authority to approve or reject an amendment.

Section 128 distributes the capacity to change the Constitution differentially among the federal Parliament, the people of the States, and the people of Australia. Under section 128, the Parliament is the only body that can initiate an amendment; and the approval of a majority of the electors in a majority of the States and a majority of all Australian electors is mandated. The vote is taken ‘in such manner as the Parliament prescribes’. Parliamentary initiation of a proposal to amend the Constitution is not straightforward. In the ordinary case, section 128 requires that a proposed

law to alter the Constitution must be passed by both Houses of Parliament, with absolute majorities. The proposal must be submitted to the electors 'not less than two nor more than six months' after its passage through both Houses. If approved at a referendum, the bill takes effect on receiving the Queen's assent from the Governor-General. Section 128 makes special provision for amendment proposals affecting the States.³⁵

There was general agreement at the 1891 Convention that the new Constitution should include a provision for its amendment in Australia, although there was at this stage no consensus about the part the people should play.³⁶ Various models were discussed when the delegates met in 1891, including the United States and the Swiss models.³⁷ The major concern was to protect the arrangements agreed by the federating colonies, and this weighed against ease of amendment. Former Victorian Premier, Duncan Gillies, remarked 'the states would naturally contend that as they had made a bargain ... no part ... ought to be lightly set aside, and that it ought to require the greatest consideration, not only of the majority of the people as represented in the conventions, but a majority of the state representatives as representatives'.³⁸ The clause first debated favoured a version of the United States procedure, whereby constitutional conventions were 'to be elected by the electors of the several states' to approve or reject a proposed bill for amendment earlier passed by an absolute majority of both Houses of Parliament.³⁹ Under this draft, an amendment required approval by the 'conventions of a majority of the states'.

Even in 1891, however, some unsuccessfully argued for a more direct role for the people and against the rigidity said to characterize the United States model. James Munro, Gillies' successor as Premier, said 'the same power ought to be given to the people as a whole as is given to the states separately';⁴⁰ and, with South Australian Premier Playford, argued that the referendum in the Swiss Constitution was a better procedure. Playford's view was that 'any alteration ... shall be effected only by an expression of the views of the majority of the states and also of a majority of the people'.⁴¹ Deakin agreed⁴² and, in response to Samuel Griffith's⁴³ doubts about the intellectual competence of the people,⁴⁴ argued that amendments proposals could be stated 'in short, succinct propositions ... which can be submitted with ease to the people ... and on which the people of the country can give their judgment with certainty and with knowledge'.⁴⁵ The upshot was that

the 1891 Convention agreed that the conventions should be retained but that the draft clause should be altered to require that the people of the States whose conventions approved an alteration must also be a majority of the people of the Commonwealth.⁴⁶

Between the 1891 and the 1897–98 Conventions, progressive ideas about the need for popular participation gained ground. In the draft presented to the delegates in 1897 the idea of a referendum replaced that of convention.

⁴⁷ The draft provided that if the amending bill passed ‘by an absolute majority of the States Assembly and of the House of Representatives’, it was to be submitted to the electors of the several States for their approval. By this stage, the direct participation of the people was all but agreed; and the debate focused instead on the means to safeguard the constitutional arrangements against ill-considered public opinion. The delegates disagreed as to whether amendment should be difficult, or extremely difficult, to achieve. The Premier of Tasmania, Edward Braddon, stated that in his view ‘[t]he idea underlying the clause is to provide that, while an amendment of the Constitution is not made absolutely impossible, the Constitution shall not be so easily capable of amendment that in any fluctuation of public opinion, any change of feeling on the part of the people in some crisis of a temporary character, it might be changed’.⁴⁸ Others considered that the popular voice should be more easily heard. Deakin, supported by Isaacs, unsuccessfully proposed the removal of the requirement for an absolute majority of the Houses of Parliament.⁴⁹ The provision for absolute majorities was retained, although the current requirement for the views of the majority of the people of the Commonwealth to be ascertained directly was substituted in the course of debate.⁵⁰

When the delegates re-assembled in 1898 after the colonial Parliaments had considered the draft Constitution, the debate about the amendment clause focused on the procedure to resolve an initiating deadlock between the two Houses of Parliament. The proposed solution, that a proposal be ‘submitted to the people’⁵¹ in the case of deadlock, was defeated by a vote of thirty-one to fourteen.⁵² The delegates’ differences arose out of a disagreement about whether direct popular participation was more or less important than protecting the agreed constitutional arrangements. In support of the defeated proposal, Isaacs spoke of ‘a gradual but a sure shifting of power from the Parliament to the people’, this being ‘a tendency which we

cannot resist'.⁵³ Whilst agreeing 'the referendum ought to be used only under extraordinary circumstances', Isaacs affirmed 'the right of the people to be consulted upon their own affairs'.⁵⁴ His views ultimately prevailed: when section 128 assumed its final form at the Premiers' Conference in 1899, the agreed solution was consistent with Isaacs' opinion about the people; and an informed contemporary was later to say that this alteration was the principal factor that led voters finally to approve the draft Constitution.⁵⁵

The formal amendment procedure was the outcome of the framers' concerns to accommodate the interests of the new federal government and the States;⁵⁶ to allow for direct popular participation; to fix on a means of resolving a deadlock between the Houses of Parliament; and, above all, to provide the appropriate balance between flexibility and durability. The possibility of amendment was always to be confined. It is therefore unsurprising that constitutional transformation has mostly occurred outside section 128 and its procedure has not achieved any 'direct and sweeping changes' of the kind Deakin thought it might allow,⁵⁷ although it has provided a means by which popular sentiment can sometimes be expressed. Of forty-four proposals put to referendum, only eight have been approved. Most recently, in November 1999, proposals to insert a preamble and to establish the Commonwealth as a republic failed at referendum, notwithstanding that polling had for some time previously indicated popular support for a republic.

Most successful referenda have had narrow operation. In 1906, a referendum resulted in the approval of a technical amendment to section 13;⁵⁸ and in 1910 a second referendum led to the alteration of section 105 to accommodate the transfer of State debts incurred after federation to the Commonwealth.⁵⁹ In 1928 a referendum approved section 105A, giving *ex post facto* support to the Federal-State Financial Agreement 1927, discussed below. The new provision also made provision for Commonwealth and State borrowing and authorized the Commonwealth and the States to enter into agreements on financial matters when they agreed to the transfer of the States' debts. In 1977 amendments were approved to alter section 15 with respect to casual vacancies in the Senate; to alter section 128 to allow voters in the Territories to participate in referenda; and to alter section 72 to provide for a retiring age of seventy for federal judges.

Two amendments stand out. A referendum in 1946 approved section 51(xxiiiA),⁶⁰ with the result that the federal Parliament was expressly authorized to make laws with respect to the provision of various forms of social welfare, providing a constitutional basis for significant social welfare legislation, such as for Medibank in 1975 (since 1984, Medicare).⁶¹

A referendum in 1967 represented overwhelming popular recognition of the need to improve the position of Indigenous people, although it resulted in only limited improvement in the laws affecting them and their relations with administrators. The popularly understood objective was expressed in the campaign slogan 'Vote yes for Aborigines'.⁶² The 1967 proposals were narrow, however; and the referendum resulted only in the deletion of section 127 (pursuant to which Aboriginal people were not included in reckoning the population of the Commonwealth or a State) and an alteration to section 51(xxvi) making it possible for Parliament to make laws with respect to 'the people of any race' including Aboriginal people (who, prior to the amendment, were excepted from the 'race' power). By themselves the amendments could not improve the position of Aboriginal people, because they did not in terms require legislative or other action for their benefit. Curiously in view of the amendment's history, a majority of the High Court subsequently divided on the issue whether the power, as amended, only authorized laws for the benefit of Indigenous people (or the people of any race), or could be used to disadvantage them.⁶³

2. What the Constitutional Actors Have Done

The transformation of the constitutional system from its original form to the form we know today is largely the product of the constitutional actors acting alone or in combination to fill out the constructional space left by the constitutional text. What follows is a necessarily selective account of the ways in which this has occurred. The contribution of the States and the British Parliament is implicit in this and the previous chapter.

Broadly speaking, Australian constitutional evolution discloses three themes: the development of Australian federalism, the achievement of independence without formal amendment, and the identification of a constitutional interpretative method appropriate for Australian conditions. The previous chapter explores the second of these themes, including the

contribution of the British Parliament and the waning significance of the Crown. This chapter focuses on the other two.

a) *British inheritance, United States example, and the beginning of an indigenous constitutional culture*

Working out the federal compact and an appropriate interpretative method were complementary processes in the immediate post-federation period. Influential factors included the British inheritance, the United States example, and an indigenous conception of democracy. The outcome was the beginning of an indigenous constitutional culture.

An indigenous conception of democracy is discernible in early federal laws of normative significance, including for nearly universal suffrage⁶⁴ and compulsory electoral enrolment.⁶⁵ Visitors to the country were struck by these arrangements. James Bryce (whose work the framers read) visited Australia in 1912 and later remarked that the country had ‘travelled farthest and fastest along the road which leads to the unlimited rule of the multitude’.⁶⁶ The result was that some foundational laws acquired a permanent constitutional significance. As Justice Gummow said, in a 1996 judgment,⁶⁷ ‘the now long-established universal adult suffrage’ was ‘a characteristic of popular election’ for Parliament, ‘which could not be abrogated by reversion to the system which operated in one or more colonies at the time of federation’. The provision for adult suffrage expressed a stage in the ‘evolution of representative government’.⁶⁸

British colonial inheritance was significant in institutional design and operation, including with respect to the courts. In contrast to the United States, the federal Parliament did not act under section 71 post federation to create a system of federal courts below the High Court. Rather, by section 39 of the *Judiciary Act 1903* (Cth), Parliament conferred nearly complete federal jurisdiction on State courts. The decision to do so expressed a confidence in the former British colonial institutions. It also meant that the former colonial courts assumed everyday responsibility for the interpretation and application of federal laws and ensured continuity with the former colonial legal system.

It must also be borne in mind that British Imperial judicial authority was preserved in section 74, permitting appeals to the Privy Council from the High Court (save for *inter se* questions where the certificate of the High

Court was needed);⁶⁹ and although section 73 granted jurisdiction to the High Court to hear appeals from the State Supreme Courts, an appeal from those courts could also be made to the Privy Council. Hence, when the High Court was constituted in 1903, it did not have complete authority to formulate constitutional doctrine or construe the Constitution; instead it was bound to follow the decisions of the Privy Council when the doctrine of precedent so required. As will be seen, this had consequences for constitutional interpretation.

A difficulty for the early justices of the High Court, as they recognized in *Baxter v Commonwealth (NSW)*⁷⁰ in 1907, was to develop interpretative principles appropriate for a Constitution contained in a British statute and potentially subject to review by the Privy Council in London. The result was that interpretative principles were derived from the British tradition and the United States federal example. Early decisions limited the availability of the Convention debates as interpretative aids. In argument in 1904 Chief Justice Griffith affirmed that the debates were ‘no higher than parliamentary debates, and are not to be referred to except for the purpose of seeing what was the subject-matter of discussion ... the evil to be remedied’.⁷¹ At the time, Griffith and Justices Barton and O’Connor were attracted to the United States Supreme Court as an exemplar of federal constitutional law. Griffith, with Barton and O’Connor in *Baxter*, wrote that it was ‘common knowledge’ at federation ‘that the Constitution of the United States was a subject entirely unfamiliar to English lawyers, while to Australian publicists it was almost as familiar as the British Constitution’; and that ‘the founders of the Australian Constitution were familiar with the part which the Supreme Court of the United States, constituted of Judges imbued with the spirit of American nationality, and knowing that the nation must work out its own destiny under the Constitution as framed ... had played in the development of the nation, and the harmonious working of its political institutions’.⁷² In contrast to their treatment of the Convention debates, in this context the majority judges emphasized the difference between the Constitution and ordinary statutes, affirming that ‘instruments which purport to call into existence a new State ... are not, and never have been, drawn on the same lines’ as ordinary statutes that ‘prescribe in every detail the powers ... to be exercised’.⁷³ The difficulty in identifying a consistent interpretative approach may have been due to differences between the two

systems to which the Court referred, or to a competition between Commonwealth and State interests that had yet to be resolved. Either way, interpretative principles and conceptions of federalism were intertwined in the Court's doctrinal development.

In 1902, Deakin, as the Commonwealth's first Attorney-General, said the High Court was to be 'one of the organs of Government which enable[d] the Constitution to grow and to be adapted to the changeful necessities and circumstances of generation after generation'.⁷⁴ Plainly enough, the early Justices agreed that the Court had a nation-building role under the Constitution. It might be thought that the natural tendency of this approach would favour broad interpretations of Commonwealth legislative powers, as indicated by Justice O'Connor in a much-cited 1908 judgment, where he adapted Chief Justice Marshall's famous statements in *McCulloch v Maryland*⁷⁵ to affirm, with regard to the scope of Commonwealth power, 'it must always be remembered that we are interpreting a Constitution broad and general in its terms, intended to apply to the varying conditions which the development of our community must involve'.⁷⁶ The majority of the early Court was, nonetheless, anxious to safeguard the constitutional arrangements made for the former colonies, now the States.

Drawing on nineteenth century decisions of the United States Supreme Court, the early Court discerned States-protective principles implicit in the text and constitutional 'spirit' of the Constitution, which found expression in the twin doctrines of reserved powers⁷⁷ and the immunity of instrumentalities.⁷⁸ The reserved powers doctrine was protective of a State's power in relation to its 'domestic' affairs; and, in applying the doctrine the Court construed the scope of federal legislative power so as to prevent its interference with a State's 'domestic affairs'. The related implied immunities doctrine gave effect to a notion of co-ordinate governments, each operating independently of the other in its own sphere. These doctrines were not to prove durable. The influence of British inheritance was to remain strong for most of the twentieth century, whilst that of the United States was to diminish.

b) Money and power: Commonwealth dominance and the High Court

Australia's and the other Dominions' experience of the First World War clearly contributed to the re-definition of their relationship with the United

Kingdom. When Australia joined the League of Nations in 1919, Prime Minister W M Hughes referred to it as a 'separate nation', notwithstanding, as indicated in the previous chapter, significant constitutional authority continued to rest in London.⁷⁹

The post-war period was a time of Commonwealth expansion, which accelerated during the Second World War and afterwards. Commonwealth control over taxation and public borrowing, specific-purpose grants to the States, and the expanding possibilities of intergovernmental agreements allowed the Commonwealth to assume practical control in areas not otherwise within its competence. After the First World War, the Commonwealth reached out to secure compliance with national economic policies, when Parliament legislated under section 96 to make specific-purpose grants to the States. In so doing, it began to re-construct the federation. In the mid-1920s, for example, the Parliament used section 96 to direct road-building, a topic well outside its named legislative powers, by authorizing grants to the States on condition they used the funds to construct roads as the Commonwealth directed. The High Court upheld the legislative scheme in 1926.⁸⁰

At this time, moreover, the potential grew for intergovernmental agreements, sometimes relying solely on executive decision-making, to bring about permanent change in the constitutional arrangements. The possibility was adumbrated in the 1927 Federal-State Financial Agreement. Under it, the Commonwealth acquired control of public borrowings and the newly-established Loan Council managed State and Commonwealth debt. Whilst the 1928 referendum later approved section 105A to support the Agreement and to authorize other financial arrangements, there are two points to be made. First, the 1927 Agreement established the essential framework for the control of public debt in Australia. As Professor Saunders has observed, when the Commonwealth became a net lender to the States, it was 'able to insist on State agreement with Commonwealth decisions under intergovernmental borrowing arrangements'.⁸¹ Secondly, the very making of the Agreement demonstrated what might be achieved through intergovernmental co-operation. This potential was realized over ensuing decades, with Commonwealth and States making a multitude of agreements, which alone or in combination, affected federal arrangements.

Commonwealth constitutional reconstruction, through legislative and executive action, continued during the Second World War, driven in large

part by the need to support the war effort. With the *Income Tax Act 1942* (Cth) and three other interlocked Acts, the Commonwealth successfully displaced the States' practical ability to raise income tax when the States declined to assist in raising funds for the war. The effect of these laws was to ensure that the Commonwealth received an amount of revenue equal to the existing State and Commonwealth income tax revenue.⁸² The scheme depended on various constitutional provisions, including section 109 providing that Commonwealth law would prevail where State law was inconsistent, and section 96. Provision was made for the payment of a grant to a State (under section 96) in any year in which 'the Treasurer is satisfied that a State has not imposed a tax on incomes'. The scheme, which gave the Commonwealth a practical monopoly on the power to levy income tax, twice survived challenge.⁸³ Its durability was assured when Chief Justice Dixon concluded in 1957, in disposing of the second challenge, that the 'whole plan of uniform taxation' had 'become very much a recognised part of the Australian fiscal system'.⁸⁴

As a consequence of this constitutional reconstruction, from 1949 until the mid-1960s, under Prime Minister Robert Menzies, the Commonwealth, through legislative and executive action stretched out to control social and economic policy throughout the country, utilizing the practical monopoly over income tax and the power to make specific-purpose grants to the States. In this way, the Commonwealth arrived at a style of federal government that has remained a permanent feature of the Australian system.

This process of nation-building was facilitated by a fundamental change in the High Court's doctrines regarding federalism and interpretative principles. In the *Engineers' Case*⁸⁵ in 1920, the Court famously jettisoned the doctrines of implied immunities and reserved powers. Chief Justice Knox and Justices Isaacs, Rich, and Starke agreed that the Constitution was to be 'read ... naturally in the light of the circumstances in which it was made, with knowledge of the combined fabric of the common law, and the statute law which preceded it'.⁸⁶ This interpretative method was more closely aligned to British common law principles of statutory interpretation and signalled a retreat from reference to non-British references that was to last for over sixty years. The subjects of power in section 51 of the Constitution were, so the Court said, to be interpreted according to their natural sense or ordinary meaning,⁸⁷ an approach promoting broad readings

of federal heads of legislative power, which became an enduring characteristic of the constitutional system.⁸⁸ The Court also ruled that constitutional interpretation by reference to implication was impermissible,⁸⁹ although this embargo was not to last.

One may speculate about the reasons for the Court's re-consideration of federal doctrine and interpretative method. Perhaps it was simply the result of a change in the constitution of the Court, with the new men preferring the approaches of the formerly dissenting Justices Isaacs and Higgins. This says little about the reasons for their preference, however. Fifty years after *Engineers*, Justice Windeyer (appointed to the Court in 1958) attributed the change to the 'new light' in which the Constitution was read, 'reflected from events that had, over twenty years, led to a growing realization that Australians were now one people and Australia one country and that national laws might meet national needs'.⁹⁰ This explanation is plausible since it is consistent with some contemporary political statements after the First World War, such as those of Prime Minister Hughes. It is consistent with the centralization of power occurring in the years after *Engineers*. It may be doubted, though, whether the Court in 1920 could have anticipated the consequences fifty years hence; and there were, in any event, other factors contributing to the sustained broad reading of federal legislative power.

One of those influences was the 'legalism' that influenced the Court for over fifty years after *Engineers*. Under the influence of Justice (later Chief Justice) Owen Dixon and Chief Justice Garfield Barwick, the Court favoured a literal interpretative approach unaffected by policy considerations. This also encouraged a broad reading of the federal legislative powers. By the time adherence to literalism had diminished towards the end of last century, broad readings of federal power were so entrenched that they could not sensibly be undone.

Another influence was the continuation of British judicial authority. In the sixty years after federation, the Privy Council decided some notable constitutional cases, although there was no 'history of significant overturning of constitutional decisions of the High Court' by the Privy Council.⁹¹ The alignment with British statutory principle and adherence to legalism lessened the likelihood of conflict with the Privy Council. It is likely that the Privy Council's continued role, which reinforced British

constitutional authority, also influenced the High Court's choice of interpretative method and possibly its construction of Australian federalism, which supported the Commonwealth's construction of a highly centralized version of federalism.

c) *A national judicature and the hegemony of the Commonwealth Constitution*

The transformation of the constitutional system to that which we know today centres on the building of an Australian court system and High Court's rulings establishing the hegemony of the Commonwealth Constitution over State institutions of government. An important sub-text is the reigning in of the federal executive's spending power by the Court's 2012⁹² and 2014⁹³ rulings that, ordinarily, executive spending must be authorized by valid legislation. What follows addresses the central developments.

The 'surge of national consciousness'⁹⁴ in the 1960s fuelled the movement for change in the constitutional arrangements for Australian courts. The Parliament largely ended appeals from the High Court to the Privy Council by legislation passed in 1968 and 1975;⁹⁵ and, in a 1978 judgment, the High Court determined it was no longer bound by Privy Council decisions.⁹⁶ With the passage of the *Australia Acts* in 1986, the right of appeal to the Privy Council from the State courts in matters governed by State law terminated. At that late point, the High Court became the ultimate authority for the Australian legal system; and the ramifications for the Australian constitutional system are still unfolding.

Freed of British authority, the Court has impressed a distinctively Australian understanding on constitutional construction, as illustrated in *Cole v Whitfield*,⁹⁷ remaking the constitutional standard for the free trade and commerce limb of section 92. At the same time, the Court has emphasized that a central British legacy, the common law, is 'the matrix in which the Constitution came into being and which informs its text'.⁹⁸ Change has been facilitated by the Court's approach to constitutional development. Although the Court adheres to prior constitutional decisions in the ordinary case, it is more readily persuaded to depart from them than in non-constitutional contexts: this is on the basis that only it can alter constitutional construction and perhaps on account of a perceived need for

constitutional fidelity.⁹⁹ The Court has also self-consciously adopted an altered analytical method. While the contemporary Court accepts that the text (including its language and structure) is pre-eminent, having regard to the increasing age of the Constitution, it has of necessity considered relevant history to identify meaning and purpose (as in *Cole*, which lifted the bar on referencing the Convention Debates, to identify a long-sought after section 92 standard appropriate to contemporary Australian circumstances). It has also sought to appraise doctrinal consonance with the values discernible in the Constitution and within constitutional common law.¹⁰⁰

Whilst *Engineers' Case* did not end reasoning by implication in the inter-war period, in the post-*Australia Acts* era, the Court travelled further with implications drawn from the Constitution's text and structure. The federal structure of the Constitution provoked another implied doctrine of intergovernmental immunities in 1947;¹⁰¹ and, after the Second World War, the federal institutional provisions, particularly in Chapter III (The Judicature), gave rise to an implied doctrine of separation of powers.¹⁰² As the following chapters discuss, in more recent times, the Court has elaborated on the consequences of the separation of powers, including for liberty of the person.¹⁰³ The implicational reasoning resulting in a guarantee of freedom of political communication not only limited the scope of federal action, but also extended the reach of the Constitution to the States, lessening the scope of choice within the implied constitutionally protected area. Whilst the original rulings in 1992¹⁰⁴ limited federal legislative power, the guarantee was extended in 1994 to the common law¹⁰⁵ and in 2015 was applied to invalidate State legislation designed to regulate political donations.¹⁰⁶

The emergence of implied constitutionally protected interests was partly a response to an altered international landscape, exemplified in the blossoming of human rights protections at the end of the cold war in Europe, including the United Kingdom, and in Canada. It was also consistent with Australia's broadening international perspective.¹⁰⁷ The emerging dominance of Commonwealth constitutional standards in relation to the States' courts was, however, the product of other transforming events within the federation.

These events began with the advent of a federal court system. Between 1904 and 1976, Parliament acted under section 71 to create only a few specialist federal courts with subject-specific jurisdiction.¹⁰⁸ The growth of national consciousness from the 1960s resulted in the creation of a new federal superior court in 1976,¹⁰⁹ which was transformed into a court of general federal jurisdiction in the 1980s and 1990s.¹¹⁰ A third-tier federal court was created in 1999,¹¹¹ completing the framework of a federal system.

The endeavour by the Commonwealth and States to integrate State and federal courts systems was partly a response to the fact that hitherto the day-to-day administration of federal laws had depended on State courts. Complementary Commonwealth and State cross-vesting legislation substantially integrated the systems between mid-1988 and mid-1999 when invalidated by the High Court.¹¹² By this point, the High Court had begun to open up another path to a different form of integration: in a 1996 judgment¹¹³ it ruled that it was to be implied from the ‘integrated nature’ of the Australian court system under the Constitution that minimum constitutional standards applied not only to federal courts but also to State Supreme Courts. The result was that a State legislature could not confer a function that undermined the independence of the State judiciary or public confidence in the State judicial system, or the integrity of the State courts as institutions.¹¹⁴ The Constitution, it was said, did not contemplate that State courts were less worthy of federal jurisdiction than federal courts.¹¹⁵ This analysis was later extended to include all State courts exercising federal jurisdiction.¹¹⁶

The identification of a workable standard for Australian courts, which also permits differences within a judicature that is ‘integrated, but not ... unitary’,¹¹⁷ remains elusive. The extended reach of the Constitution gives rise to significant issues for future consideration. The interests the Constitution is said to safeguard depend on institutional arrangements made by the States; and until now these arrangements have been seen as integral aspects of State government, over which the States have a margin of choice subject primarily to their own Constitutions. There is a question whether an expanded reach for the Commonwealth Constitution may, if travelling too far, impugn the authority of the State Constitutions it otherwise protects.¹¹⁸

There are many unexplored possibilities and the idea of an ‘integrated national judicial system’ is still unfolding.

D. CONCLUSION

The Australian evolutionary tradition is the outcome of its constitutional history and, specifically, the interaction of a late nineteenth century Constitution and Australian constitutional culture. The wide constructional spaces left by the nineteenth century framers permitted the episodic and incremental transformation of the constitutional system from its original form in 1901 into the form we know. All constitutional actors have been evolutionary agents in these spaces in response to transformative events, including the growth of a national identity leading to independence from British authority and the internationalization of human-rights consciousness. Whether or not the momentum to enter supra-national trade arrangements mentioned in future chapters will result in further transformations of the Australian constitutional order is for the future. The departure of British authority has had many diverse consequences for the constitutional system beyond formal independence. The distinctively Australian understanding of constitutional construction that has emerged in response to this altered constitutional landscape has introduced a fresh dynamic, leading, one may confidently predict, to further transformative change.

* Federal Court of Australia. I am indebted to Anna Saunders for her research assistance and to Louise Brown for reading this more than once.

¹ Nettie Palmer, *Henry Bournes Higgins: A Memoir* (George G Harrap & Co Ltd 1931) 74.

² See, eg, Lawrence Solum, ‘Originalism and Constitutional Construction’ (2013–14) 82 *Fordham Law Review* 453, 469–74, 535–36; Jack Balkin, ‘Framework Originalism and the Living Constitution’ (2009) 103 *Northwestern University Law Review* 549, 558–59.

³ See, eg, Ernest Young, ‘The Constitution Outside the Constitution’ (2007) 117 *Yale Law Journal* 408; David Strauss, ‘Common Law Constitutional Interpretation’ (1996) 63 *The University of Chicago Law Review* 877; Mitchell Berman, ‘Originalism is Bunk’ (2009) 84 *New York University Law Review* 1.

⁴ Balkin (n 2) 562.

⁵ See, eg, *ibid* 554, 569–75, 592–98; Anthony Mason, ‘The Role of a Constitutional Court in a Federation: A Comparison of the Australian and United States Experience’ (1986) 16 *Federal Law Review* 1, 5.

⁶ See, eg, Jeffrey Goldsworthy, 'Originalism in Constitutional Interpretation' (1997) 25 Federal Law Review 1; Jeffrey Goldsworthy, 'Interpreting the Constitution in its Second Century' (2000) 24 Melbourne University Law Review 677; Jeffrey Goldsworthy, 'Original Meanings and Contemporary Understandings in Constitutional Interpretation' in H P Lee and Peter Gerangelos (eds), *Constitutional Advancement in a Frozen Continent: Essays in Honour of George Winterton* (The Federation Press 2009) 245; Jeremy Kirk, 'Constitutional Interpretation and a Theory of Evolutionary Originalism' (1999) 27 Federal Law Review 323; Henry Burmester, 'The Convention Debates and the Interpretation of the Constitution' in Gregory Craven (ed), *The Convention Debates 1891–1898: Commentaries, Indices and Guide* (Legal Books Pty Ltd 1986) 25, 30. cf Greg Craven, 'Original Intent and the Australian Constitution—Coming Soon to a Court Near You?' (1990) 1 Public Law Review 166; Lael K Weis, 'What Comparativism Tells us About Originalism' (2013) 11 International Journal of Constitutional Law 842; Michael Kirby, 'Constitutional Interpretation and Original Intent: A Form of Ancestor Worship?' (2000) 24 Melbourne University Law Review 1.

⁷ Cheryl Saunders, 'Interpreting the Constitution' (2004) 15 Public Law Review 289, 291.

⁸ cf Wen-Chen Chang, Li-ann Thio, Kevin YL Tan, and Jiunn-rong Yeh, *Constitutionalism in Asia: Cases and Materials* (Hart Publishing 2014) [ch 4](#).

⁹ John Quick and Robert Randolph Garrahan, *The Annotated Constitution of the Australian Commonwealth* (Angus & Robertson (Sydney) 1901) 163–65.

¹⁰ [ibid](#) 221–52.

¹¹ [ibid](#) 242–50.

¹² [ibid](#) 242–43.

¹³ *R v Davison* (1954) 90 CLR 353, 368.

¹⁴ George Winterton, *Parliament, the Executive and the Governor-General* (Melbourne UP 1983) 124–27; *Sue v Hill* (1999) 199 CLR 462, 494 (Gleeson CJ, Gummow and Hayne JJ); *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520, 558 (Gummow J); *Australian Capital Television Pty Ltd v Commonwealth* (1992) 177 CLR 106, 137 (Mason CJ); Donald Markwell, 'The Office of the Governor-General' (2015) 38 Melbourne University Law Review 1098.

¹⁵ Section 51(ii), (v).

¹⁶ Section 51(xxix).

¹⁷ Section 51(x), (xvi), (xvii), (xviii).

¹⁸ *Commonwealth v Tasmania* (1983) 158 CLR 1.

¹⁹ Section 71.

²⁰ Section 75.

²¹ Section 76.

²² Sections 71, 77.

²³ George Winterton, H P Lee, Arthur Glass, and James Thomson, *Australian Federal Constitutional Law: Commentary and Materials* (2nd edn, Law Book Co 2007) 464, citing John A La Nauze (ed), *Federated Australia: Selections from Letters to the Morning Post 1900–1910* (Melbourne UP 1968) 97.

²⁴ *R v Commonwealth Court of Conciliation and Arbitration; Ex parte Association of Professional Engineers, Australia* (1959) 107 CLR 208, 267 (Windeyer J); *Bonser v La Macchia* (1969) 122 CLR 177, 193 (Barwick CJ), 230 (Windeyer J); *King v Jones* (1972) 128 CLR 221, 229 (Barwick CJ).

²⁵ (1993) 177 CLR 541, 560–61.

²⁶ (1988) 165 CLR 360, 391.

²⁷ Section 51(xxxi) (compensation for the Commonwealth acquisition of property); s 80 (trial by jury); s 116 (freedom of religion); and s 117 (freedom from discrimination on grounds of state

residence). Section 51(xxiiiA) may guarantee against civil conscription in relation to the provision of medical and dental services.

²⁸ cf A V Dicey, *Introduction to the Study of the Law of the Constitution* (first published 1885, 10th edn, MacMillan 1964); Nicholas Aroney, *The Constitution of a Federal Commonwealth: The Making and Meaning of the Australian Constitution* (CUP 2009) 92–96.

²⁹ Official Record of the Debates of the Australasian Federal Convention, Third Session, vol 1 (Melbourne, 20 January–17 March, 1898) , 1064.

³⁰ James A Thomson, ‘Constitutional Authority for Judicial Review: A Contribution from the Framers of the Constitution’ in Gregory Craven (ed), *The Convention Debates 1891–1898: Commentaries, Indices and Guide* (Legal Books Pty Ltd 1986) 173, 186.

³¹ Section 109.

³² Robert French, ‘The Referral of State Powers’ (2003) 31 *University of Western Australia Law Review* 19, 21.

³³ *ibid* 34.

³⁴ *Port MacDonnell Professional Fishermen’s Association Inc v South Australia* (1989) 168 CLR 340, applied in *Babington v Commonwealth* [2016] FCAFC 45.

³⁵ It also provides for deadlock between the two Houses of Parliament.

³⁶ John M Williams, ‘The Constitutional Amendment Process: Poetry for the Ages’ in Lee and Gerangelos (eds), *Constitutional Advancement in a Frozen Continent* (n 6) 7–8.

³⁷ *ibid* 3–7.

³⁸ Official Report of the National Australasian Convention Debates (Sydney, 2 March–9 April 1891) 884.

³⁹ *ibid*.

⁴⁰ *ibid* 886.

⁴¹ *ibid* 888.

⁴² *ibid* 886–87.

⁴³ Chief Justice of Queensland 1893–1903; Chief Justice of the High Court 1903–19.

⁴⁴ National Australasian Convention Debates (Sydney, 1891) (n 38) 894.

⁴⁵ *ibid* 895.

⁴⁶ *ibid* 897.

⁴⁷ Official Report of the National Australasian Convention Debates (Adelaide, March 22–May 5 1897) 1020.

⁴⁸ *ibid* 1021.

⁴⁹ *ibid* 1020–21.

⁵⁰ *ibid* 1027.

⁵¹ Official Record of the Debates of the Australasian Federal Convention (n 29) 716.

⁵² *ibid* 765.

⁵³ *ibid* 758.

⁵⁴ *ibid* 758, 759.

⁵⁵ Cheryl Saunders, ‘The Parliament as Partner: A Century of Constitutional Review’ (Research Paper No 3 2000–01) in *The Vision in Hindsight: Parliament and the Constitution* (Department of the Parliamentary Library 2000) 6.

⁵⁶ See further Aroney (n 28) 324–26.

⁵⁷ Commonwealth Parliamentary Debates, House of Representatives, 18 March 1902, 10967–68.

⁵⁸ Constitution Alteration (Senate Elections) 1906.

- ⁵⁹ Constitution Alteration (State Debts) 1909.
- ⁶⁰ The amendment proposal was initiated following *Attorney-General (Vic); Ex rel Dale v Commonwealth* (1945) 71 CLR 237.
- ⁶¹ Michael Crommelin and Gareth Evans, 'Explorations and Adventures with Commonwealth Powers' in Gareth Evans (ed), *Labor and the Constitution 1972–1975* (Heinemann 1977) 37–38; Danuta Mendelson, 'Devaluation of a Constitutional Guarantee: The History of Section (xxiiiA) of the Commonwealth Constitution' (1999) 23 Melbourne University Law Review 308.
- ⁶² John Summers, 'The Parliament and Indigenous People 1901–1967' in Geoffrey Lindell and Robert Bennett (eds), *Parliament: The Vision in Hindsight* (The Federation Press 2001) 208.
- ⁶³ *Kartinyeri v Commonwealth* (1998) 195 CLR 337, Gummow and Hayne JJ stating the power could be used to impose a disadvantage on Indigenous people (at 378–80). Gaudron and Kirby JJ disagreed (367–68; 411–13).
- ⁶⁴ *Commonwealth Franchise Act 1902* (Cth). Suffrage was granted to men and women who were British subjects over twenty-one years of age, subject to a six months' continuous residence requirement and the exclusion of Indigenous peoples and limited others.
- ⁶⁵ *Commonwealth Electoral Act 1911* (Cth), followed by compulsory voting: see *Compulsory Voting Act 1915* (Cth) (referenda); *Commonwealth Electoral Act 1924* (Cth) (all elections).
- ⁶⁶ James Bryce, *Modern Democracies*, vol II (The MacMillan Company 1921) 166; Elaine Thompson, 'Australian Parliamentary Democracy After a Century: What Gains, What Losses?' (Research Paper No 23 1999–2000) in *The Vision in Hindsight: Parliament and the Constitution* (Department of the Parliamentary Library 2000) 9.
- ⁶⁷ *McGinty v Western Australia* (1996) 186 CLR 140, 286–87.
- ⁶⁸ *ibid* 286.
- ⁶⁹ Namely, a question 'as to the limits inter se of the Constitutional powers of the Commonwealth and those of any State ... or ... of any two or more States'.
- ⁷⁰ 4 CLR 1087, 1104, 1111–12.
- ⁷¹ *Municipal Council of Sydney v Commonwealth* (1904) 1 CLR 208, 213–14; *Tasmania v Commonwealth* (1904) 1 CLR 329, 333.
- ⁷² *Baxter* (n 70) 1111–12, Isaacs and Higgins JJ dissenting.
- ⁷³ *ibid* 1105.
- ⁷⁴ Commonwealth Parliamentary Debates, House of Representatives, 18 March 1902, 10962.
- ⁷⁵ 17 US (4 Wheat) 316 (1819), 407, 415.
- ⁷⁶ *Jumbunna Coal Mine, NL v Victorian Coal Miners' Association* (1908) 6 CLR 309, 367–68. Statements like this have been repeated: see, eg, *Australian National Airways Pty Ltd v Commonwealth* (1945) 71 CLR 29, 81 (Dixon J).
- ⁷⁷ *Peterswald v Bartley* (1904) 1 CLR 497, 507; *R v Barger* (1908) 6 CLR 41, 69–77.
- ⁷⁸ *D'Emden v Pedder* (1904) 1 CLR 91; *Deakin v Webb* (1904) 1 CLR 585.
- ⁷⁹ See also Susan Kenny, 'Colonies to Dominion, Dominion to Nation' in Justin T Gleeson, James A Watson and Ruth C A Higgins (eds), *Historical Foundations of Australian Law*, vol 1 (The Federation Press 2013), 257–61.
- ⁸⁰ *Victoria v Commonwealth* (1926) 38 CLR 399.
- ⁸¹ See Cheryl Saunders, 'The Uniform Income Tax Cases' in H P Lee and George Winterton (eds), *Australian Constitutional Landmarks* (CUP 2003) 78; Kenneth Wiltshire (ed), *Administrative Federalism: Selected Documents in Australian Intergovernmental Relations* (University of Queensland Press 1977).
- ⁸² Saunders, 'The Uniform Income Tax Cases' (n 81) 66–68.

⁸³ *South Australia v Commonwealth* (1942) 65 CLR 373, which was followed in *Victoria v Commonwealth* (1957) 99 CLR 575, save in an immaterial respect.

⁸⁴ *Victoria v Commonwealth* (1957) 99 CLR 575, 601.

⁸⁵ *Amalgamated Society of Engineers v Adelaide Steamship Company Limited* ('Engineers' Case') (1920) 28 CLR 129.

⁸⁶ *ibid* 152.

⁸⁷ *ibid* 148–49.

⁸⁸ For example, *Fairfax v Federal Commissioner of Taxation* (1965) 114 CLR 1, 7 (Kitto J); *Murphyores Incorporated Pty Ltd v Commonwealth* (1976) 136 CLR 1, 19–22; *Commonwealth v Tasmania* (n 18); *New South Wales v Commonwealth* (2006) 229 CLR 1, 108 (fn 380), 114–15 (Gleeson CJ, Gummow, Hayne, Heydon and Crennan JJ), also 202–03 [473] (Kirby J).

⁸⁹ *Engineers' Case* (n 85) 151.

⁹⁰ *Victoria v Commonwealth* (1971) 122 CLR 353, 396.

⁹¹ Murray Gleeson, 'The Privy Council—An Australian Perspective' (Paper presented to The Anglo-Australasian Lawyers Society, The Commercial Bar Association, and The Chancery Bar Association, London, 18 June 2008) <<http://www.hcourt.gov.au>> accessed 1 July 2016.

⁹² *Williams v Commonwealth* (2012) 248 CLR 156.

⁹³ *Williams v Commonwealth (No 2)* (2014) 252 CLR 416.

⁹⁴ Geoffrey Serle, *From the Deserts the Prophets Come: The Creative Spirit in Australia 1788–1972* (Heinemann 1973) 176.

⁹⁵ *Privy Council (Limitation of Appeals) Act 1968* (Cth) abolished appeals in constitutional and federal matters and *Privy Council (Appeals from the High Court) Act 1975* (Cth).

⁹⁶ *Viro v The Queen* (1978) 141 CLR 88.

⁹⁷ (n 26) 401–02.

⁹⁸ *Theophanous v Herald & Weekly Times Ltd* (1994) 182 CLR 104, 141; William Gummow, 'The Constitution: Ultimate Foundation of Australian Law?' (2005) 79 *Australian Law Journal* 167.

⁹⁹ *Engineers' Case* (n 85); *Cole v Whitfield* (n 26); *Ha v New South Wales* (1997) 189 CLR 465; *Damjanovic & Sons Pty Ltd v Commonwealth* (1968) 117 CLR 390, 396 (Barwick CJ, McTiernan J agreeing); *Buck v Bavone* (1976) 135 CLR 110, 137 (Murphy J); *Stevens v Head* (1993) 176 CLR 433, 461–62 (Deane J).

¹⁰⁰ *McGinty* (n 67) 230 (McHugh J); *Fortescue Metals Group Ltd v Commonwealth* (2013) 250 CLR 548 [16] (French CJ); *Byrnes v Kendle* (2011) 243 CLR 253 [95] (Heydon and Crennan JJ).

¹⁰¹ *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31.

¹⁰² *R v Kirby; Ex parte Boilermakers' Society of Australia* (1956) 94 CLR 254.

¹⁰³ *Chu Kheng Lim v Minister for Immigration* (1992) 176 CLR 1, 27–34.

¹⁰⁴ *Australian Capital Television* (n 14) 138–39; *Nationwide News Pty Ltd v Wills* (1992) 177 CLR 1, 48–49.

¹⁰⁵ *Theophanous* (n 98); *Stephens v Western Australian Newspapers* (1994) 182 CLR 211.

¹⁰⁶ *McCloy v New South Wales* (2015) 257 CLR 178.

¹⁰⁷ cf Anthony Mason, 'The Role of a Constitutional Court in a Federation: A Comparison of the Australian and United States Experience' (1986) 16 *Federal Law Review* 1, 12–13; Michael McHugh 'The Constitutional Jurisprudence of the High Court: 1989–2004' (2008) 30(5) *Sydney Law Review* 5, 10; Michael McHugh, 'The Law-making Function of the Judicial Process' (1988) 62 *Australian Law Journal* 15 (Part I) and 116 (Part II).

¹⁰⁸ Susan Kenny, 'Federal Courts and Australian National Identity' (2015) 38(3) *Melbourne University Law Review* 996, 1003–13.

¹⁰⁹ *ibid* 1009–14.

¹¹⁰ *ibid* 1016.

¹¹¹ The Federal Magistrates Court was renamed the Federal Circuit Court in 2013.

¹¹² *Re Wakim; Ex parte McNally* (1999) 198 CLR 511.

¹¹³ *Kable v Director of Public Prosecutions* (1996) 189 CLR 51.

¹¹⁴ *ibid* 118–19 (McHugh J), 107 (Gaudron J).

¹¹⁵ *ibid* 99 (Toohey J), 103 (Gaudron J), 111, 116 (McHugh J), 137 (Gummow J).

¹¹⁶ *South Australia v Totani* (2010) 242 CLR 1.

¹¹⁷ *Forge v Australian Securities and Investment Commission* (2006) 228 CLR 45, 65.

¹¹⁸ *cf Kirk v Industrial Court (NSW)* (2010) 239 CLR 531.

CHAPTER 6

IDEAS

PATRICK EMERTON*

AUSTRALIA has a somewhat distinctive constitutional culture. It has a rigid, written Constitution of long standing and that is frequently litigated.¹ As a result, there is a flourishing constitutional jurisprudence. However, with a handful of exceptions, the Constitution, or ideas around constitutional values or ideals, play relatively little role in Australian public and political debate.² Indeed, both the Constitution itself and the jurisprudence to which it has given rise are often seen as arid, or at least technical, and not a site for the expression of inspiring or animating ideas. This chapter, however, will attempt to offer a counterpoint to this perception, by setting out some key political ideas that underpin the Australian Constitution, and showing how a technical document that has operated within, and to some extent strengthened, a legalistic constitutional jurisprudence, can nevertheless be understood to be a source of affirmative constitutional value to which that jurisprudence gives genuine (even if dry) expression.

One of the exceptions referred to in the text is the role of the Constitution in regulating electoral matters, such as the timing of elections or the eligibility requirements for members of Parliament, as was illustrated by discussions prior to the 2016 election concerning the rules governing the dissolution of both Houses of Parliament (s 57), and by discussions that followed that election about the implications of bankruptcy, financial interests involving the Commonwealth government, or dual citizenship, for the eligibility of particular individual members of Parliament (s 44). A second exception, noted by Goldsworthy, is the invocation of notions of ‘States’ rights’ to criticise Commonwealth action, or of ‘States’ responsibilities’ to justify Commonwealth inaction. A third consists in calls for constitutional *change*

so as to express certain values or correct certain political failings: recent examples include the ongoing call for Australia to become a republic (in the formal sense) rather than a constitutional monarchy; and for the Constitution to be amended to provide recognition to Australia's Indigenous peoples: see the discussion in Arcioni and Stone at 76–79.

A. A PROSAIC CONSTITUTION?

A former Chief Justice of the High Court, Sir Anthony Mason, has described the Constitution as 'a prosaic document expressed in lawyer's language';³ and comparing the Australian Constitution to those of Germany and the United States, Elisa Arcioni and Adrienne Stone have described it as 'altogether more prosaic'.⁴ They go on to describe Australia's constitutional jurisprudence in comparable terms:

The modest aspirations of the Australian Constitution are reinforced by the High Court's general preference for 'legalism,' that is for a style of legal reasoning that seeks the answers to legal questions in legal materials so far as possible and which avoids, so far as possible, reliance on extra-legal values or reference to consequences. Legalist approaches are conservative in their approach to legal precedent and tend to be literalist and formalist rather than purposive and creative in the interpretation of statutes.⁵

Jeffrey Goldsworthy (whom they cite) has similarly described the High Court's constitutional reasoning as 'legalistic';⁶ and the leading textbook of Australia's constitutional jurisprudence begins its chapter on 'The High Court: Methods, Techniques and Attitudes' in the following way:

Political and academic commentators, over the years, attacked the method of judicial interpretation adopted by the Court as being 'legalistic'. Some judges accepted this adjective as a correct description but have claimed for it a eulogistic quality.⁷

In criticizing the High Court's constitutional jurisprudence on originalist grounds, James Allan and Nicholas Aroney use a similar suite of adjectives:

The Australian High Court has been by no means unique in its ability, over time, to interpret the *Constitution* in a manner widely at variance with the intentions and expectations of its founders. However, the techniques by which the High Court of Australia has done this are perhaps unique, for they have rested upon a rather unlikely foundation: a certain kind of textual formalism, the professed motivating reason for which has been the idea that by following this method the judges will *avoid* imposing their own subjective and idiosyncratic views upon the authoritative text of the *Constitution*. The ironic result ... has been a most uncommon body of constitutional law, generated by a most uncommon court, using what appear to be the most orthodox techniques of common law reasoning, applied to the text of the *Constitution*.⁸

However, the ‘ironic result’ to which Allan and Aroney refer invites further consideration of the relationship between the ideas of the constitutional founders and the ideas that have subsequently been found in the Constitution that they drafted. This chapter does not dispute the textualist and the technical character of Australian constitutional jurisprudence; but it will argue that this jurisprudence gives effect to important political ideas that inhere in the Constitution, by way of the institutions it creates, and for that reason should not be seen as prosaic or *merely* legalistic.

The chapter will further argue that these are *affirmative* consequences of the Constitution. Arcioni and Stone attribute (what they describe as) ‘Australian constitutional modesty’ to:

the nature of the constitutional founding moment. ... [A]lthough it created a new federal nation, the Constitution sought to continue many aspects of the preexisting legal system rather than to mark the founding of a new constitutional order.

The modest aspirations of the framers explain the narrow domain of the Constitution and its rather uninspiring and prosaic text. ... The Constitution was not designed to shape Australian values in any fundamental sense. But, those values were to be found in the preexisting legal order.⁹

This chapter will suggest that the Constitution—especially as it has been read by the High Court—goes beyond continuity, and indeed does found a distinctive constitutional order.

Before undertaking these tasks, however, some remarks about the relationship between ideas and a constitution are in order.

B. THE ROLE OF IDEAS WITHIN A CONSTITUTIONAL ORDER

There is a lot that might be said about the importance of ideas in a constitution, and in its foundation. The little that this chapter will say is not meant to be exhaustive of the matter.

The Constitution is, in the most minimal sense, a written text. For that reason alone necessarily it has ideas as its *content*. It says certain things, and perhaps thereby conveys further things. Furthermore, the text is the product of deliberate human authorship—in the case of the Australian Constitution in two senses, as it was drafted by a group of eminent colonial politicians elected to the Australasian Federal Convention¹⁰ and then adopted by the people of the colonies by way of referenda—and therefore, in some sense, has ideas as its *cause*: its authors acted on the basis of beliefs and motivations. But both these evident truths require further analysis.

Thinking first about the causal role of ideas: ideas might *motivate* the constitution, but the constitution might also be the *result* of certain ideas which did not motivate its authors, but which nevertheless played a significant role in its drafting or in its adoption (or both). Ideas can *cause* without *motivating* in various ways: for instance, they may surround and give life to particular motivations without being self-consciously noticed at all by those whom they influence, or they may set a limit on the possibilities that authors take to be open to them. As Marx puts it, '[j]ust as our opinion of an individual is not based on what he thinks of himself, so we cannot judge [a social situation] by its own consciousness'.¹¹ In the case of the Australian Constitution, this chapter will argue that certain key ideas played all three of these causal roles: they motivated; they shaped and informed those motivations in apparently unrealized ways; and they set limits on conceivable possibilities.

Turning to the ideas conveyed by the constitutional text: the constitution might *encode* or *express* ideas; it might also *give rise to* ideas, which have their source in the text but are not fully bounded by it. The distinction between these two categories is not always clear: where abstract words and phrases are used (as they are in the Australian Constitution), what one reader takes to be encoded or expressed another might take to be merely hinted at or gestured towards. And, of course, ideas interact, and those interactions can produce unexpected consequences.

Matters are further complicated by the fact that a constitutional text may express or give rise to ideas which, or the significance of which, the authors simply failed to recognize or understand in their own time, and which therefore are discovered only subsequent to its authorship, by those who have to live under and subject to it. Or something like the reverse of that may occur: an author may set out to convey an idea by way of the text, but

fail to do so, perhaps because of some error of expression, or because the words that are written do not resonate with an audience in the way that the author hoped or intended. In the context of a legal instrument such as a constitution this can cause particular difficulties, as interpreters may find themselves obliged to choose between the text as a source of law and the intentions that evidently lay behind it, but which it may have failed to capture and express in the manner that its authors desired, and perhaps thought that it did.¹² And a further possibility, which can also complicate the understanding and application of a constitution, is that those who live under and subject to the constitution find certain ideas to be lacking from it, and hence needing to be inserted.¹³

Moreover, *ideas*—or, at least, the social and political ideas with which a constitution deals—arise within, and point to, a larger and non-ideal reality. Thus, ideas that contributed causally to the Constitution arose in a context that made them salient to or influential upon the authors. And the ideas that are found within the text generally point to things outside of it, and it is this broader context that helps give them their force and logic. This chapter will argue that at least some questions around constitutional ideas are better understood as questions about the reality upon which the Constitution purports to operate. If the Constitution empowers the High Court to make its own assessment of that reality, then it may well arrive at conclusions which would have surprised the text's authors.

All of these considerations make it easier to understand how the 'ironic result' noted by Allan and Aroney might come about, *without* it being the case that the interpreting court has simply substituted its own ideas for those that the authors of the Constitution intended.

C. NOT *RIGHTS* BUT *INSTITUTIONS*

One of the most striking feature of the Australian Constitution, at least for someone familiar with contemporary constitutions and constitutionalism, is its lack of a bill of rights. Goldsworthy points to this absence in the course of characterizing the Constitution as a 'basic law' but not a 'higher law', because it 'lacks the grand and inspirational declarations of national values or principles that are found in a "higher law" '.¹⁴

The Constitution does contain some provisions that can be read as rights-protecting. One of these is section 116, an anti-establishment and religious freedom provision. It states that:

The Commonwealth shall not make any law for establishing any religion, or for imposing any religious observance, or for prohibiting the free exercise of any religion, and no religious test shall be required as a qualification for any office or public trust under the Commonwealth.

This provision plays relatively little role in Australian public life, however. The following anecdote illustrates this; it also illustrates (by way of contrast) the tenor of Australian constitutional jurisprudence.

In 2006 the conservative government of Prime Minister John Howard introduced a scheme for Commonwealth (that is, national) funding of chaplaincy services in State (that is, sub-federally) administered schools. The scheme was administered on a purely executive basis, with no legislative support or authorization (other than appropriation of the funds expended). The funding was used to pay a non-governmental religious organization, with whom the Commonwealth government entered into contracts for the provision of services.¹⁵ A parent who objected to this religious intrusion into the public education system mounted a legal challenge to the constitutionality of this scheme. A principal ground of challenge was that it contravened section 116.

The challenge on this ground failed. The High Court unanimously took the view that chaplains paid under the programme did not hold any office under the Commonwealth, because they had no contractual or other relationship with the Commonwealth: they dealt purely with the Commonwealth-funded religious organization and the State school principal.¹⁶ The challenge nevertheless succeeded on a quite different ground, namely, that the Commonwealth lacked the power to enter into the contracts with and make the payments to the service provider. This conclusion depended upon the interpretation of the words conferring executive power upon the Commonwealth government:

The executive power of the Commonwealth ... extends to the execution and maintenance of this Constitution, and of the laws of the Commonwealth.¹⁷

These words were held not to encompass a governmental power to contract and spend, in the absence of a statutory conferral of power, in relation to matters that were not the distinctive province of the national government

but rather were matters in respect of which ‘the States have the legal and practical capacity to provide for a scheme’.¹⁸

The contrast between the apparent point of political principle in the case—namely, state support for religious activities—and the legal basis for the striking down of the scheme—namely, the reading of a federal limitation into an abstractly worded conferral of power upon the national government—is marked. But that does not mean that the Court’s reasoning missed the real point. Rather, the contrast draws attention to what it is that the Constitution does, as much as what it does not do. It does not declare a set of rights that express a conception of human dignity and underpin (in that fashion) a liberal political order. But it does nevertheless establish a particular sort of political and institutional order, and one with clear liberal elements, but also evident republican ones.

D. THE FOUNDERS’ POLITICAL IDEALS

The founders of the Australian Constitution envisaged it as establishing a ‘liberal franchise’ that would ensure a ‘liberal’ political order.¹⁹ This vision was expressed in various ways. For instance, on the final day of the Australasian Federal Convention, which settled the text of the draft Constitution, Alfred Deakin (who went on to be the second Prime Minister of Australia) said that:

Speaking of the political provisions of the Bill, it appears to me that they may be fairly said, not only to mark a great advance on the [draft] Constitution of 1891, but to be vastly more liberal than any of the [colonial] Constitutions under which we at present live. Not one of the Constitutions under which we live provides a more liberal franchise, or applies it to both Chambers under the restriction of one man one vote. No Federal Constitution in the world provides the safeguard of a double dissolution and a joint sitting. Although the Norwegian Constitution approaches the Constitution we have framed in character, there is no Federal Constitution in the world so liberal. ... Every existing Constitution in Australia is less liberal from a political point of view in its framework and machinery than the Federal Constitution. Liberal electors will note, therefore, that whatever powers they sacrifice they are transferring to a more liberal Government, over which they have a readier control. As to the new powers with which the Federal Government is endowed ... liberal electors will note that not only in the future will they be endowed with powers which they have not at present, but that those powers will be exercised under a more liberal Government than they now enjoy.²⁰

The final sentence is illuminating: one key respect in which the Constitution is said to be *liberal* is its grant of power to a democratic Parliament, that is to say, in its provision for the exercise by the people (via their

representatives) of political power. This conception of a government as *active* was emphasized by other delegates to the Convention, who also saw this to be intimately bound up with the issue of deadlocks (to which Deakin alludes with his reference to ‘the safeguard of a double dissolution and a joint sitting’). Thus, Henry Higgins (who went on to become a justice of the High Court), arguing for the need for a fundamentally majoritarian procedure for resolving deadlocks between the two Houses of Parliament, complained that:

Questions continually arise, and the force of the electors is for the time being concentrated with the intention of having a measure carried. To that end members are returned to the houses of assembly who are earnestly desirous of having the measure passed into law. It is sent to the other house, and the other house says ‘No.’ In the meantime some other question arises which is more urgent, and the first measure is put aside for the time being. It is settled for the time being by the party which has said ‘No’ having its way. I do not think that that is fair. It is a device ... by which ... the reactionary party has for years past obstructed efficient legislation in Australia.²¹

George Reid (Premier of New South Wales and another future Prime Minister), debating the same point (and unsuccessfully arguing for the resolution of deadlocks by way of referendum), said:

My honorable friend says dead-locks are the price we pay for constitutional liberty. Is there any reason why we should go on paying that price? ... [W]hen the great patriots who wield the parliamentary power have not sufficient wisdom to agree on a measure of legislation ... are the people whose agents they are ... to remain dumb and powerless? ... The people say—‘We sent you into these two Houses of Parliament to legislate. When we find you, instead of carrying on legislation, quarrelling and making legislation impossible, you ... are failing in your mission, and if you cannot agree after many painful struggles between yourselves, we, your principals, we who put you there to do our work, ask you to refer your difficulty to us and allow the principals to settle what the agents cannot accomplish.’ Beneath this argument against the referendum there is the old conservative dislike of the people's will.²²

This conception of the (then future) Commonwealth government as a popular one, that would give effect to ‘the people’s will’, also informed predictions about the form that parliamentary politics would take, underpinned by contrasts drawn with the political history of the United States. In the course of debate over the deadlock procedures, John Cockburn (a former Premier of South Australia) stated that:

I fear to see the senate prevented from acting as it should act, as the bulwark of democracy. As to the parties in the commonwealth being divided into conservative and liberal parties, from any thought and reading I have given to the matter it is the most arrant nonsense possible. America never has been, and is not at the present day, divided into parties of liberals and conservatives. ... Before the parties in America had become confused ... the party of state rights was acknowledged to be the party of true democracy.²³

But Deakin refuted this prediction:

[T]he existence of responsible government in this federal constitution, and in these colonies, alters the political position wholly from the position in the United States of America. Party government, as it exists in America, does not and will not exist here. Party government as it exists in Great Britain and in these colonies, will exist here. It will be on the lines of liberal and conservative parties; it cannot be on the lines of republicans and democrats. An executive responsible to the people—responsible to the parliament and to the popular chamber—will necessarily express and be governed by those currents of popular feeling which in America are almost powerless to affect the course of events. There the people only speak every four years; they only speak as a whole at the election of a president, and then they speak only through the party machine. In these colonies they will speak freely and often on the well known lines of division between liberal and conservative.²⁴

Joseph Carruthers (who would go on to be Premier of New South Wales) shared Deakin's view:

[T]he moment this commonwealth is established, it will be found not that lines of geographical demarcation divide us—they cannot divide us when we are one in heart, language, and feeling—but that we shall be divided by those matters of politics which now divide us in our various local concerns. We shall have conservatives and democrats, free traders and protectionists; there will be all those matters of politics which naturally divide the people of one race, speaking one language, and possessing the same amount of reasoning power. What I fear is that there may, possibly, be from time to time a refusal on the part of parliament to give effect to the will and wishes of a large majority of the people. When that occurs ... the result will be a national calamity unless the constitution provides some elastic machinery to meet such an emergency, possibly by letting evolution take effect, rather than force a revolution by having too rigid a constitution.²⁵

These remarks reveal that the drafters of the Australian Constitution saw its *popular, democratic* character as fundamental. They conceived of this in active terms: the people would want their parliament, and the government responsible to it, to *do things*, and hence it would be wrong to allow conservative elements to block that (for instance, via parliamentary deadlocks). And they connected this to responsible government, which Edmund Barton (who went on to be the first Prime Minister of Australia) described as 'the natural outcome of true democratic feeling ... which, conservative as some of us may be considered in some places, it is our duty to conserve'.²⁶ But on its own this does not explain their rejection of a bill of rights.

E. THE FOUNDERS' CONCEPTION OF THE POLITY

Much has been written about the reason for the absence from the Australian Constitution of a bill of rights, as well as about the merits or otherwise of

this absence.²⁷ Hilary Charlesworth attributes it to a desire to maintain the legislative power of the States, including to enact racist laws.²⁸ Goldsworthy attributes it at least in part to broader trends in political theory:

With respect to rights, the framers were influenced more by the British than the American constitutional tradition. Australian federation resulted ... from calm, pragmatic reform by colonial politicians encouraged and assisted by the Imperial government. Utilitarianism had replaced natural rights as the main currency of British political thought, and Australia has been described as a paradigmatically utilitarian society.²⁹

However, when the Federal Convention debated whether or not to include an equivalent of the United States' Fourteenth Amendment in the (draft) Constitution, Isaac Isaacs (who would go on to be Commonwealth Attorney-General, a judge of the High Court, and the first Governor-General appointed on the direct advice of the Australian Prime Minister) did not offer reasons of abstract political theory. As Charlesworth has observed, he expressed quite concrete concern about possible implications for racial equality:

It would protect Chinamen ... [T]o put it in plain language, our factory legislation [restricting the employment of Asian workers] must be void. ... I would ask them how they can expect to get for this Constitution the support of the workers of this colony or of any other colony, if they are told that all our factory legislation is to be null and void, and that no such legislation is to be possible in the future?³⁰

He also referred to differences in Australian and American political history:

[W]hen one recollects how the 14th amendment came into the American Constitution, one is a little surprised to think that it is necessary to put such a clause in this Bill [for a constitution]. It was put in the American Constitution immediately after the Civil War, because the Southern States refused to concede to persons of African descent the rights of citizenship. The object of the amendment was purely to insure to the black population that they should not be deprived of the suffrage and various rights of citizenship in the Southern States. ...

[I]t only became necessary to pass that 14th amendment in the United States in order to provide in the Constitution for the change that was wrought by the Civil War. The rights of citizenship for the blacks and the abolition of slavery had been won by hard fighting, and this Article 14 had to be rammed down the throats of the Southern States ...

For 70 or 80 years, as long as the whites only were concerned, nobody found the necessity of such a clause, but, when the blacks were concerned, the Southern States refused to allow them to vote. They do that at the present time to a large extent contrary to the law, and this provision was made to secure to the blacks the rights of citizenship.³¹

Richard O'Connor (another future High Court judge) agreed:

I agree with Mr Isaacs, that the 14th amendment of the United States Constitution was directed entirely to the question of the citizenship of negroes who were freed men, and it was necessary to implant something of that kind in the American Constitution ... But how can that condition of things, or that necessity which arose then, have any bearing on our position?³²

Clearly Isaacs and O'Connor saw the situation in Australia as being fundamentally different from the United States, but in what way?

While the drafters of the Australian Constitution envisaged political debates occurring—hence their concern with the resolution of deadlocks³³—they seem to have rejected rights protection on the grounds that there was no *fundamental* cleavage in the community that would make something like the Fourteenth Amendment necessary.³⁴ In relation to economic interests, this thought appears to be reinforced by some remarks of Barton at the closure of the Federal Convention, that ‘the want of foundation of accusations against this [draft Constitution] Bill on account of its alleged illiberal character’ is evidenced by such ‘very important further powers’ as ‘the power to legislate with reference to invalid and old-age pensions ... [and] for the appointment of courts of conciliation and arbitration in industrial disputes which extend beyond the limits of one state’.³⁵ Barton appears to take it for granted that a popularly elected Parliament will use these powers; he certainly does not evince any concern that a popular majority might be able to control the Parliament so as to *prevent* the use of these powers to realize the social goals at which they manifestly are aimed. That is, it seems to be assumed that *political democracy*, plus a vesting of the political organs with appropriate powers, will secure *economic democracy*.³⁶ (It is true that the Constitution also contains a provision that operates to prevent the Commonwealth government from acquiring property other than on just terms,³⁷ which might be seen as a counterpoint to the progressive powers mentioned by Barton; but against a background assumption of economic democracy including widespread ownership of houses, farms, businesses and the like, this provision, too, can be seen as expressing ideas of economic democracy in a context of a fundamental unity, or at least (actual, not merely possible) reconciliation of fundamental interests.³⁸)

This assumption of deep unities of interest, upon which the democratic provisions of the Constitution seem to have been assumed to rest, is clearly connected to an assumption voiced in the remarks of Isaacs and Carruthers

quoted above, and implicit in the contrast drawn with the United States, about the importance of racial unity. The topic of race, and of the exclusion or even expulsion from Australia of non-white people (other than Indigenous people, who seem to have figured little in the founders' conception of the polity), was a central political issue at the time of federation. People of colour were seen as a threat to both economic and political democracy, it apparently being taken for granted that they could not be equal participants in civic life, and that they would be employed at lower wages that would undercut wages for white workers. Thus, and as one illustration of the point, the historian Manning Clark writes that:

In [Queensland] where the demand for labour exceeded the supply, it was impossible to employ Europeans on the cane fields except for wages that would have made the 'white' sugar unsaleable. So the sugar planters began to import from the islands in the Pacific labour to clear, plant, and cut by hand. ...

By 1892 a majority in the Queensland Parliament had come to the conclusion that the use of black labour was injurious to the best interest of the colony if it were to be regarded as a home for the British race. The Premier of Queensland [who went on to be the first Chief Justice of the High Court], Samuel Griffith, summarized the arguments against black labour in this way:

1. It tended to encourage the creation of large landed estates owned ... by absentees and worked by gang labour, and so discouraged actual settlement by small farmers working for themselves.
2. It led to field labour in tropical agriculture being looked down upon as degrading and unworthy of the white races.
3. The permanent existence of a large servile population not admitted to the franchise was not compatible with the continuance of free political institutions.³⁹

Thus, rather than a bill of rights to protect (among others) racial minorities, the founders opted for a strongly democratic and popular framework which (in their minds) was predicated on the absence of such minorities within the polity.⁴⁰ But how are these ideas reflected in the Constitution itself?

Aristotle, *Politics*, Bk 3.8. Thus, Aristotle conceived of distinctive *economic* interests being key to understanding political life, and assumed a (relative) unity of interests among the poor (and the rich), such that the difference between democracy and oligarchy is then a matter of which interests—those of the (many) poor or the (few) rich—are allowed to govern. For a fuller discussion, see Moses I Finley, *Politics in the Ancient World* (CUP 1983) 1–11.

F. DEMOCRATIC IDEALS IN THE CONSTITUTIONAL TEXT

The Australian Constitution is part of the Imperial (ie British) *Commonwealth of Australia Constitution Act* 1900 (63 & 64 Vic c 12) ('*Constitution Act*'). The Act has nine relatively short sections (the so-called 'covering clauses'), the last of which reads 'The Constitution of the Commonwealth shall be as follows ...'. It is uncontroversial, in the Australian legal tradition (and the British legal tradition from which it derives), that the interpretation of a statutory instrument, even such an elevated statute as the Constitution, begins with the text. As far as the ideas of a 'liberal' political order are concerned, they find their textual expression in several parts of the Constitution. The preambular text begins 'Whereas the people of [the various Australian colonies], humbly relying on the blessing of Almighty God, have agreed to unite in one indissoluble Federal Commonwealth'—an allusion to the adoption of the draft Constitution by referenda in each of the colonies;⁴¹ sections 7 and 24 mandate that the members of each house of Parliament 'shall be ... directly chosen by the people'; and section 64 states that 'no Minister of State shall hold office for a longer period than three months unless he [sic] is or becomes a senator or a member of the House of Representatives,' thereby mandating one element of responsible government. There are also textual provisions which make the Constitution itself a thing of the people: section 128 provides that the Constitution may be amended only by a law that is approved by the electors at a referendum; and covering clause 5 makes the Constitution and all laws made under it binding not only on officials but on the 'people of every State and of every part of the Commonwealth'.

This text, even taken as a whole, is less than a full statement of the vision of the founders expressed in the remarks quoted in the previous two sections. But it is not nothing, either. It mandates popular election and underpins responsible government. The High Court has found this to be a matter of constitutional importance. These sections of the Constitution are also silent on the matter of race.⁴² This is important too.

Hirst identifies a different democratic incentive in relation to the franchise. Section 41 of the Constitution protected the right to vote at Commonwealth elections of those individuals already enjoying a State franchise; and because women were already enfranchised in South Australia, a uniform Commonwealth franchise (which could be, and was, introduced by the

Commonwealth Parliament following the first federal election) would have to include all women, since ‘it could hardly leave South Australian women with the vote and exclude the rest’: *The Sentimental Nation* (n 10) 161.

G. THE HIGH COURT, POLITICAL DEMOCRACY, AND LEGALISTIC METHOD

It has always been accepted, in the Australian constitutional system, that the High Court has authority to give effect to the Constitution, including by striking down legislation that violates constitutional requirements. As Fullagar J put it, in what is perhaps the most revered of the High Court’s constitutional decisions, ‘in our system the principle of *Marbury v Madison*⁴³ is accepted as axiomatic’.⁴⁴

Exercising this constitutional responsibility, in a well-known series of decisions beginning in 1992,⁴⁵ the High Court has held that those constitutional provisions that mandate popular election and underpin responsible government give rise to a freedom of communication on political matters which—because both legislation and the judicially declared common law is subject to the Constitution⁴⁶—cannot be infringed or burdened by those laws.⁴⁷ These decisions have been heavily criticized on the grounds that they amount to de facto rights-based review. For instance, Goldsworthy has said of these decisions that ‘the High Court ... *purported* to discover an implied freedom of political communication in a Constitution whose founders chose not to include a bill of rights’.⁴⁸ However, such criticism misconstrues the reasoning in these decisions. They do not introduce into the Australian constitutional order an idea—of judicial review to defend basic rights or freedoms—that is (for the reasons we have seen) not part of that order. Rather, these cases exemplify the intersection of the Court’s approach to interpretation and application of those provisions of the Constitution that establish institutions, with those *constitutional* provisions that express the founders’ political ideals. The Court is identifying the nature and content of the constitutional mandate that a certain institutional event (the people’s direct choice of parliamentarians) take place, and is giving effect to that as it is obliged to do.

This is made evident in the Court's fullest statement of its derivation of the implication, which also considers the implications of the Constitution for the common law of defamation:

Communications concerning political or government matters between the electors and the elected representatives, between the electors and the candidates for election and between the electors themselves were central to the system of representative government, as it was understood at federation. ... While the system of representative government for which the Constitution provides does not expressly mention freedom of communication, ... the elections for which the Constitution provides were intended to be free elections ...

That being so, ss 7 and 24 and the related sections of the Constitution necessarily protect that freedom of communication between the people concerning political or government matters which enables the people to exercise a free and informed choice as electors. ...

In 1901, when the Constitution of the Commonwealth took effect ... the English common law defined the scope of the torts of libel and slander. At that time, the balance that was struck by the common law between freedom of communication about government and political matters and the protection of personal reputation was thought to be consistent with the freedom that was essential and incidental to the holding of the elections and referenda for which the Constitution provided. Since 1901, the common law—now the common law of Australia—has had to be developed in response to changing conditions. The expansion of the franchise, the increase in literacy, the growth of modern political structures operating at both federal and State levels and the modern development in mass communications, especially the electronic media, now demand the striking of a different balance from that which was struck in 1901. ...

That requires an examination of changing circumstances and the need to strike a balance in those circumstances between absolute freedom of discussion of government and politics and the reasonable protection of the persons who may be involved, directly or incidentally, in the activities of government or politics.⁴⁹

No doubt this reasoning as to what the constitutional mandate requires—both in general, and in the context of the particular decision—is controversial, but this is a general feature of legal reasoning, particularly at the appellate court level. It is important to note what the proper subject-matter of the controversy is. What is at issue are questions about social and institutional causation: the extent to which political communication is a causally necessary incident of a genuine choice, by the people, of their members of Parliament; and the extent to which competing formulations of the law of defamation causally contribute to, or undermine, this choice. The controversy is not about values, or the normative weight to be given to some individual right (to vote, to engage in political communication, to be free from ungrounded slurs upon reputation, etc). Similarly, the 'balance' to which the Court refers is not a balancing of values. Rather, it is best understood as a balance between *means* that causally bear upon the constitutionally mandated *end* of the people's direct choice. This idea is expressed particularly clearly in a recent judgment of Gordon J: in

upholding the validity of laws limiting certain electoral donations, Her Honour reiterated that the effect of the laws was to ensure ‘that *each* individual has an *equal* share, or at least a more equal share than they would otherwise have, in political power’.⁵⁰ This is a *causal* claim about the distribution of political power, not an *evaluative* claim about the merits of any such distribution: the constitutional significance of political equality is sourced in the text itself, and in particular in the mandated direct choice, by the people, of the members of Parliament.⁵¹

Arcioni and Stone argue that in these decisions, the High Court, by ‘articulating the values underlying freedom of political communication ... is thus defining rather than reflecting Australia’s true constitutional character’.⁵² There is a sense in which this is true, but caution is needed. Institutions—including political and constitutional institutions—have characters and purposes that are implicit within them, but the demands that these impose, in particular on choices of and between means to those ends, are not always evident. If it were otherwise, then institutional and political leadership would be easy, or at least would pose merely technical challenges. But experience makes it plain that this is not the case; to lead an institution is therefore in some ways to shape it, but to lead an institution *well* is to shape it in ways that conform to and better realize its character, rather than distort or undermine it.⁵³ This is what the High Court is attempting when, in the quoted passage, it identifies salient changes in social and political life, and the new demands that these place upon the constitutionally mandated democratic order, and on this basis declares the common law of defamation to differ from past understandings of it. It might seem odd to characterize the High Court as providing *leadership* in this way, but that is the role that the Constitution gives it, in calling upon it to enforce the institutional arrangements for which the Constitution provides.⁵⁴ Done well, even when it produces results that are surprising, and that were not and probably could not have been foreseen by the founders, it does not mean a departure from their ideas as those have been encoded into the text. It may even mean a truer realization of them.⁵⁵

This is the significance of the Court’s ‘legalism’. Common law courts have a long tradition of analysing institutional arrangements, and articulating and enforcing their requirements using distinctive legal categories that are responsive to, but not merely restatements of, the ‘real

world’ concerns of those who participate in those institutions. The High Court’s jurisprudence of constitutional institutions can be seen as fitting within this adjudicative tradition. This is how a constitutional statement about who is to choose parliamentarians is able to give rise to freedom of political communication; or how a sparse phrase such as ‘the executive power of the Commonwealth’ can come to bear the meaning that the Court in *Williams* found it to have. And this is what Dixon J seems to be getting at in saying that:

In the many years of debate over [the restraints on power arising from federalist considerations], it has often been said that political rather than legal considerations provide the ground of which the restraint is the consequence. The Constitution is a political instrument. It deals with government and governmental powers. The statement is, therefore, easy to make though it has a specious plausibility. But it is really meaningless. It is not a question whether the considerations are political, for nearly every consideration arising from the Constitution can be so described, but whether they are compelling.⁵⁶

‘Compelling’ here must mean *legally* compelling, in light of the best understanding of what the text of the Constitution requires in light of the facts as the Court finds them, legal tradition and the decided cases.

To treat the constitutional mandate as a given, and to ‘balance’ other considerations against that given, is to engage in a causal analysis of means, not a weighing of ends.

H. OTHER EXAMPLES

This chapter has focused on some core features of the political order created by the Australian Constitution, and has tried to show how the way in which the constitutional text, as interpreted and applied by the High Court, can be seen as giving effect to key animating ideas. Other contentious areas of constitutional jurisprudence could be analysed in the same fashion. For instance, the cases affirming a constitutional requirement of the institutional integrity of State courts⁵⁷ have been subject to criticism on originalist grounds, because they frame those requirements in ways that depart from the ideas held by the founders of the Constitution.⁵⁸ However, once we recognize that changing circumstances may make certain features of an institution, or requirements that underpin it, salient in a way that they previously were not, then we can see how it might be that requirements become evident which previously were not.

The same thing may be said about Allan and Aroney's 'ironic result'. John Hirst entitled his history of federation *The Sentimental Nation* because 'without national feeling there would have been no federation'.⁵⁹ We have seen that the founders' ideas included a popularly responsive national government with important and 'liberal' powers. And as Dixon J noted:

The position of the federal government is necessarily stronger than that of the States. The Commonwealth is a government to which enumerated powers have been affirmatively granted. The grant carries all that is proper for its full effectuation. Then supremacy is given to the legislative powers of the Commonwealth.⁶⁰

Although the founders may not have envisaged the consequences of these ideas for the federal balance of power, they are the ones who put them into the Constitution.

I. NEW IDEAS?

As was noted earlier, sometimes ideas are felt to be lacking from a constitution. In Australia, the lack of a bill of rights is frequently remarked upon. However, that situation is unlikely to change soon, if at all.⁶¹ The sorts of problems that a bill of rights might help resolve nevertheless arise, however. The constitutional ideas discussed in this chapter are probably not apt to deal with any more than a small number of those problems. However, they may be able to deal with some. In *Roach v Electoral Commissioner* the High Court struck down legislation extending the grounds on which prisoners might be disenfranchised, on the ground that it was incompatible with the constitutional mandate of direct choice by the people.⁶² In a subsequent case, Gageler J identified as relevant to the outcome in *Roach* that many of those who were prisoners were Indigenous, meaning that 'the tendency of the disenfranchisement ... [was] to freeze out of the political process discrete minority interests'.⁶³

It seems likely that the significance of the constitutional mandate, giving effect to the democratic ideas of the founders, will continue to increase. Unshackled from their racist conceptions, which we can see are not inherent (and, indeed, are antithetical) to the notion of a people choosing its government, it may prove to be a powerful legal tool for responding to laws and policies that seek to wrongly subordinate some among the people to

others;⁶⁴ this may even extend to aspects of economic democracy, in circumstances in which the relative unity of interests seemingly envisaged by the founders may have turned out not to obtain.⁶⁵ Within the Australian constitutional context, it also seems to this author to provide the best prospect for taking a constitutional value and making it a part of the wider political culture. The pre-eminence of the people—*all* of the people—continues to be a compelling political as well as legal idea.

* I would like to thank the editors for very helpful comments on earlier drafts, and also Lisa Burton Crawford, Tria Gkouvas, Jeffrey Goldsworthy, and Jayani Nadarajalingam for insightful and invaluable discussion of the themes of this chapter.

¹ Section 71 of the Constitution declares that there shall be a ‘Federal Supreme Court, to be called the High Court of Australia’. The Court was established in October 1903, following passage of the *Judiciary Act 1903* (Cth). The Court delivered its first judgment on 11 November 1903, which concerned (among other matters) the interpretation of s 73 of the *Constitution*.

² Elisa Arcioni and Adrienne Stone, ‘The Small Brown Bird: Values and Aspirations in the Australian Constitution’ (2016) 14 *International Journal of Constitutional Law* 60, 60, 64–65; Jeffrey Goldsworthy, ‘Constitutional Cultures, Democracy, and Unwritten Principles’ [2012] *University of Illinois Law Review* 683, 685. This feature of Australia’s constitutional culture might be seen as a particular instance of the ‘strange gap’ identified by historian John Hirst, between ‘[s]ociety itself in Australia [which] is very democratic’ and the fact that ‘Australians have little regard for their democratic government’ and ‘do not think of their political record when they think of what sort of people they are’: ‘The Distinctiveness of Australian Democracy’ (2002) in *Sense and Nonsense in Australian History* (Black Inc Agenda 2006) 293.

³ The Honourable Sir Anthony Mason, ‘The Australian Constitution in Retrospect and Prospect’ in Robert French, Geoffrey Lindell, and Cheryl Saunders (eds), *Reflections on the Australian Constitution* (The Federation Press 2003) 8, cited with approval in Goldsworthy, ‘Constitutional Cultures’ (n 2) 685.

⁴ Arcioni and Stone (n 2) 63. They subsequently refer to the Constitution’s ‘rather uninspiring and prosaic text’: at 75.

⁵ *ibid* 76; and see also their reference to ‘a determinedly formalist approach to interpretation’: at 72.

⁶ ‘Australia: Devotion to Legalism’ in Jeffrey Goldsworthy (ed), *Interpreting Constitutions: A Comparative Study* (OUP 2006) 138.

⁷ James Stellios, *Zines’s The High Court and the Constitution* (Federation Press 2006) 638. Footnote omitted.

⁸ ‘An Uncommon Court: How the High Court of Australia Has Undermined Australian Federalism’ (2008) 30 *Sydney Law Review* 245, 246. Emphasis original; footnote omitted.

⁹ Arcioni and Stone (n 2) 75.

¹⁰ The Western Australian delegation was elected by the Parliament of that colony rather than the people, and one delegate was neither a current nor a former politician: John Hirst, *The Sentimental Nation* (OUP 2000) 142.

¹¹ ‘Preface’, *Contribution to the Critique of Political Economy* (1859) in Lewis S Feuer (ed), *Karl Marx and Friedrich Engels: Basic Writings on Politics and Philosophy* (1984) 85.

¹² One way of understanding Balkin’s notion of ‘framework originalism’ is as an attempt to ameliorate these potential complications, by identifying as one key idea conveyed by the authors of a constitutional text that those who have to live under and subject to the constitution are to understand it as speaking to, and authorizing them to act upon, concerns that are salient to them: see Jack M Balkin, *Living Originalism* (Harvard UP 2011). See also [n 64](#) below.

¹³ This is an important element of the Australian debate around constitutional recognition of Indigenous peoples mentioned in [n 2](#) above.

¹⁴ Goldsworthy, ‘Constitutional Cultures’ ([n 2](#)) 685, thereby suggesting a contrast with Balkin’s claim (in *Living Originalism* ([n 12](#))) that the success of the United States Constitution depends on it being both those things, as well as ‘the people’s law’: at 685–86.

¹⁵ *Williams v Commonwealth* (2012) 248 CLR 156, 180–82 [5]–[6], [10]–[14].

¹⁶ *ibid* 222–23 [107]–[110] (Gummow and Bell JJ). Concurrence was expressed by four of the other judges: 182 [9] (French CJ), 240 [168] (Hayne J), 341 [476] (Crennan J), 374 [597] (Kiefel J). Heydon J also expressed the same view: 285–86, 333–35 [305]–[307], [442]–[448]. The idea that Commonwealth funding of a religious educational organization might amount to *establishment* was rejected in an earlier case, in which six of seven judges had held that s 116 only forbids legislation that aims at establishing a national or state church: *Attorney-General (Vic); Ex Rel Black v Commonwealth* (1981) 146 CLR 559. Important to the majority reasoning in that earlier case was that, whereas the First Amendment to the United States Constitution forbids laws ‘*respecting* an establishment of religion’, s 116 forbids laws ‘*for* establishing any religion’ (emphasis added). Thus, laws which aided or advanced religion, but did not have the purpose of making it an official religion, were held not to fall foul of the s 116 prohibition, because not *for* establishing a religion.

¹⁷ Section 61.

¹⁸ *Williams* ([n 15](#)) 235 [146] (Gummow and Bell JJ). Broadly similar observations were made by French CJ at 193, 205–06, 216–17 [38], [61], [83], and by Crennan J at 348, 353, 355 [503]–[504], [522], [534].

¹⁹ Hirst says of the delegates to the Federal Convention that ‘[o]verall more liberals and radicals than conservatives were elected’: *The Sentimental Nation* ([n 10](#)) 146.

²⁰ Official Report of the National Australasian Convention Debates, Third Session (Melbourne, 17 March 1898) 2502.

²¹ Official Report of the National Australasian Convention Debates, Second Session (Sydney, 20 September 1897) 895–96.

²² Official Report of the National Australasian Convention Debates, Third Session (Melbourne, 10 March 1898) 2205. Reid was a proponent of free trade who campaigned for low tariffs (reducing the cost of goods) and high direct taxes on land and income (imposing the revenue burden on those best able to meet it). Following the defeat of his tax proposal by the Legislative Council (an unelected Upper House whose members did not support taxes that would fall primarily upon wealth), he successfully campaigned for re-election and had the measures passed: see the discussion in [Hirst, *The Sentimental Nation*](#) ([n 10](#)) 131–34.

²³ Official Report of the National Australasian Convention Debates, Second Session (Sydney, 21 September 1897) 951.

²⁴ *ibid* 973. These remarks were made prior to the ratification in 1913 of the Seventeenth Amendment to the United States Constitution, providing for election of Senators by popular vote rather than state legislatures. The Australia Senate has been popularly elected (albeit upon a State franchise and with equal representation of each State) from the outset: s 7.

²⁵ Official Report of the National Australasian Convention Debates, Second Session (Sydney, 20 September 1897) 857.

²⁶ Official Report of the National Australasian Convention Debates, Second Session (Sydney, 14 September, 1897) 530. Josiah Symon (a future Commonwealth Attorney-General) said of responsible government that:

‘It is true that the United States have not got it ... [T]hey never had the opportunity of having it, and if I may venture on a statement that I hope will not seem too bold, I believe that the United States would have had it if it had been as well known and understood as now. ... The statesmen who framed the Federal Constitution of the United States were only acquainted with what really, as it then existed, was a kind of personal government of the King of Great Britain, and as the result of that the President of the United States was fashioned in the likeness of the king. If they had waited 100 years more they would have fashioned him more in the likeness of ... the Premiers of these colonies.’

Official Report of the National Australasian Convention Debates, First Session (Adelaide, 25 March 1897) 134.

²⁷ See the discussion in Chapter 37 ‘Rights Protection in Australia’.

²⁸ *Writing in Rights: Australia and the Protection of Human Rights* (UNSW Press 2002) 21–25.

²⁹ Goldsworthy, ‘Devotion to Legalism’ (n 6) 109.

³⁰ Official Report of the National Australasian Convention Debates, Third Session (Melbourne, 8 March 1898) 687.

³¹ *ibid* 668–69. At the time of the Federal Convention, the Reconstruction period had come to an end and ‘Jim Crow’ laws had been or were being established in many states of the United States, reinforced by the decision in *Plessy v Ferguson* 163 US 537 (1896) upholding the constitutionality of ‘separate but equal’ public facilities.

³² Official Report of the National Australasian Convention Debates, Third Session (Melbourne, 8 March 1898) 672.

³³ Deakin emphasized the political significance of deadlocks in a system of responsible government, because rather than being able to stand aloof, the government ‘must be a party taking the side of the chamber in which it has a majority, its own fortunes ... staked on the issue’: Official Report of the National Australasian Convention Debates, Second Session (Sydney, 15 September 1897) 587–88.

³⁴ They do not appear to have contemplated the possible role of something like the Fourteenth Amendment in securing guarantees of status and citizenship for Indigenous people. Goldsworthy has written that ‘Aboriginal Australians possess no special status, or rights, under the Constitution’: ‘Devotion to Legalism’ (n 6) 107. However, given that the premise discussed in the text, upon which the Constitution appears to rest, has clearly failed to hold good in respect of Indigenous people, it would be fair to say that the Constitution has failed to secure even ordinary status and rights for Indigenous people. This topic will be taken up again below.

³⁵ Official Report of the National Australasian Convention Debates, Third Session (Melbourne, 17 March 1898) 2468. Deakin had campaigned for federation on (among other things) the basis that the improvement of wages and conditions would have to be on a nationwide basis, so as to avoid higher wages in one colony producing the flight of capital to another: *The Age* (17 March 1894), cited in Hirst, *The Sentimental Nation*, (n 10) 115.

³⁶ Such a thought has a long heritage: in his *Politics*, Aristotle states that:

[D]emocracy is said to be the government of the many ... [but] the real difference between democracy and oligarchy is poverty and wealth. Wherever men rule by reason of their wealth, whether they be few or many, that is an oligarchy, and where the poor rule, that is a democracy. But as a fact the rich are few and the poor many.

³⁷ Section 51(xxxi).

³⁸ For a theoretical discussion of this sort of approach to economic democracy, framed in an American context but seemingly applicable to the founders' conception of the Australian polity, see John Rawls's account of *property-owning democracy* in *Justice as Fairness: A Restatement* (Erin Kelly ed, Belknap Press 2001) 135–140, 178. George Reid's tax policy can also be usefully understood within the framework of property-owning democracy (see above [n 22](#)).

³⁹ *A Short History of Australia* (revised and updated) (Mentor 1969) 167. Hirst, discussing the same issue, says that 'black labour in Queensland was [in the 1890s] the touchstone of the White Australia policy. Deakin and Barton had attempted to win Labor support for federation by arguing that only a united Australia would bring Queensland to heel': *The Sentimental Nation* ([n 10](#)) 205. Clark argues that Queenslanders in the south of that colony favoured federation because they believed that a national government would both end non-white labour in the sugar industry and protect that industry against foreign competition, at 168. Hirst, however, paints a more complex picture, at 205–11.

⁴⁰ Andre M Fleche, *The Revolution of 1861: The American Civil War in the Age of Nationalist Conflict* (University of North Carolina Press 2012) [ch 6](#), explains that intellectual defenders of the Confederacy argued that race-based slavery was necessary to ensure republican equality among the (white) citizenry, because by separating labour relations from the domain of relations between citizens it eliminated the destabilizing threat of industrial strife. The founders of the Australian Constitution seem instead to have thought that economic democracy was possible among (white) citizens, *provided that* they were united by a sense of racial solidarity.

⁴¹ Western Australia is not mentioned in the preamble, because the successful referendum in that colony happened too late to be included in the preamble to the *Constitution Act*. However, s 3 enabled Western Australia to be included in the federation on the condition of such a referendum taking place, which it did.

⁴² Section 25 provides that, if a State should restrict its franchise on racial grounds, the people of that race are not to be counted for the purpose of allocating seats in the House of Representatives to that State. This provision has been subject to recent criticism on grounds that it expressly contemplates race-based disenfranchisement: see, eg, Joint Select Committee on Constitutional Recognition of Aboriginal and Torres Strait Islander Peoples, *Final Report* (2015) 19–22. However, it should be noted that it resembles s 2 of the Fourteenth Amendment, and—unlike the prior 'three-fifths' clause in the United States Constitution—creates an incentive *against* racial exclusion from the State franchise.

⁴³ (1803) 1 Cr 137 (2 Law Ed 118).

⁴⁴ *Australian Communist Party v Commonwealth* (1951) 83 CLR 1, 262; and see the discussion in Jeffrey Goldsworthy, 'Implications in Language, Law and the Constitution' in Geoffrey Lindell (ed), *Future Directions in Australian Constitutional Law* (1994) 150, 172–73. As far as judicial review of legislation is concerned, the textual basis for holding such legislation to constitutional standards is, in the case of Commonwealth legislation, ss 51 and 52, which state that the Parliament may make laws 'subject to this Constitution', and in the case of State legislation ss 106 and 108, which preserve State constitutions and State laws 'subject to this Constitution'.

⁴⁵ *Australian Capital Television v Commonwealth* (1992) 177 CLR 106; see also *Nationwide News Pty Ltd v Wills* (1992) 177 CLR 1. For a fuller discussion of this jurisprudence, see Chapter 39 'Expression'.

⁴⁶ On the point that the common law of Australia must conform to the Constitution, see *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520, 566. In the context of private rights protected by the common law, this can be related to covering clause 5, which precludes any person asserting private rights that would conflict with constitutional requirements: such a suggestion is found in *Lange* 564.

⁴⁷ See Chapter 39 ‘Expression’.

⁴⁸ Jeffrey Goldsworthy, ‘Questioning the Migration of Constitutional Ideas: Rights, Constitutionalism and the Limits of Convergence’ in Sujit Choudhry, *The Migration of Constitutional Ideas* (CUP 2006) 117(emphasis added); see also ‘Devotion to Legalism’ (n 6) 145. Allan and Aroney similarly use scare quotes to refer to the High Courts ‘“discovery”’ of an implied freedom of political communication: (n 8) 255 n 56.

⁴⁹ *Lange* (n 46) 565–66.

⁵⁰ *McCloy v New South Wales* (2015) 257 CLR 178, 285, 290 [324], [344], and see also the near-identical language at 294 [365].

⁵¹ The joint judgment of French CJ, Kiefel, Bell and Keane JJ, which expressly adopts proportionality reasoning involving a balancing of values ((2015) 257 CLR 178, 193–95 [2]), might seem not to fit with the analysis offered in the text. However, their Honours state (at 219 [87]–[88]) that:

The purpose of and benefit sought to be achieved by legislative provisions assume relevance in the third stage of the test for proportionality. ... Fundamentally ... it must proceed upon an acceptance of the importance of the freedom and the reason for its existence. This stands in contrast to the basic rule of balancing as applied to human rights, which has been subject to criticism for failing to explain the reasons underlying the creation of the right in order to put the reasons for its protection, or which justify its limitation, in perspective.

⁵² (n 2) 74. Stone has argued powerfully that the constitutional mandate identified in *Lange* (n 46) cannot be adequately developed and applied without departing from the ‘interpretive conservatism seen in the High Court’s approach in *Lange*’ and adopting ‘[m]ore value-laden reasoning’: ‘The Limits of Constitutional Text and Structure: Standards of Review and the Freedom of Political Communication’ (1999) 23 Melbourne University Law Review 668, 707–08, and see more generally 671, 696–708; ‘The Limits of Constitutional Text and Structure Revisited’ (2005) University of New South Wales Law Journal 842; ‘Australia’s Constitutional Rights and the Problem of Interpretive Disagreement’ (2005) 27 Sydney Law Review 29, 43.

⁵³ This understanding of institutions and leadership is articulated in Philip Selznick, *TVA and the Grass Roots: A Study in the Sociology of Formal Organizations* (University of California Press 1949); *Leadership in Administration: a Sociological Interpretation* (Harper & Row, 1957); see also the discussion and defence in Martin Krygier, *Philip Selznick: Ideals in the World* (Stanford UP 2012).

⁵⁴ Goldsworthy is therefore wrong to claim that, because the history of democracy in (among other places) Britain, New Zealand, and Australia prior to 1992 shows that constitutional protection of political speech is not causally necessary to ensure democratic governments endure, the Court’s derivation of the implication is not warranted: ‘Implications’ (n 44) 180; Jeffrey Goldsworthy, ‘Constitutional Implications Revisited’ (2011) 30 University of Queensland Law Journal 9, 27–28 and more generally 19–31. The Court is not identifying *its own enforcement role* as being a causally necessary condition of Australian democracy enduring; rather, it is carrying out its constitutional enforcement function to ensure that those causally necessary conditions that it *has* identified are protected.

⁵⁵ It follows from the account in the text that, while Allan and Aroney may be correct to describe the High Court as adopting a type of ‘textual formalism’, they are wrong to characterize its method as

literalism: (n 8) 251–52. It also follows that their contrast of two conceptions of the function of a written constitution—as either ‘locking things in’ or as ‘set[ting] out a relatively amorphous, indeterminate list of guidelines and values, a list that will need updating, changing and altering as society ‘advances’ and grows’ (at 247–50)—is too simplistic, and hence that their criticism of the High Court’s political communication jurisprudence as ‘leaving the decisions almost completely to the open-ended discretion of the point-of-application judges’ (at 254–55) is unwarranted. To ‘lock in’ certain institutions is to make particular values and purpose salient, but not in the ‘amorphous’ fashion that they describe. It is also worth noting that this is a different conception from Balkin’s ‘framework originalism’: the methodology is a conserving (but forward-looking, not reactionary) rather than progressive one.

⁵⁶ *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31, 82.

⁵⁷ Grounded in Chapter III of the Constitution; see, eg, *Kable v Director of Public Prosecutions (NSW)* (1996) 189 CLR 51; *Kirk v Industrial Court of New South Wales* (2010) 239 CLR 531; and the discussion in Chapter 28 ‘The Separation of Judicial Power’.

⁵⁸ See, eg, Oscar I Roos, ‘Accepted Doctrine at the Time of Federation and *Kirk v Industrial Court of New South Wales*’ (2013) 35 Sydney Law Review 781; Jeffrey Goldsworthy, ‘*Kable, Kirk* and Judicial Statesmanship’ (2014) 40 Monash University Law Review 75.

⁵⁹ John Hirst, *Australian History in 7 Questions* (Black Inc 2014) 92.

⁶⁰ *Melbourne Corporation* (n 56) 82–83.

⁶¹ See the discussion in Ch 37 of this volume.

⁶² (2007) 233 CLR 162, discussed in more detail in Ch 40 of this volume.

⁶³ *Murphy v Electoral Commissioner* [2016] HCA 36, [107].

⁶⁴ This thought is suggested by Gleeson CJ’s analysis of the wrong of hate speech in *Coleman v Power* (2004) 220 CLR 1, 32; and Keane J’s Lucinda Lecture ‘The People and the Constitution’ (2016) 42 Monash University Law Review 529, especially at 539–40.

⁶⁵ *Aid/Watch Incorporated v Commissioner of Taxation* (2010) 241 CLR 539, in which the High Court made it clear that in the Australian law of trusts it is no bar to establishing a charitable trust that the purpose of the trust is political advocacy, provides a modest example of the capacity of the Constitution to shape the law of property.

PART II

CONSTITUTIONAL DOMAIN

CHAPTER 7

RULE OF LAW

KENNETH HAYNE*

THE Constitution of the Commonwealth is the basic law of the nation. The Constitution, and all laws made by the federal Parliament are ‘binding on the courts, judges and people of every State and every part of the Commonwealth, notwithstanding anything in the law of any State’.¹

The Constitution deals with government and governmental powers. It is, therefore, a political instrument.² ‘The foundation of the Constitution is the conception of a central government and a number of State governments separately organised’³ and it distributes powers of governing the country among those integers of the federation.

This chapter examines how, and to what extent, the Constitution, and the system of law and governance for which it provides, restrain the exercise of power. How, and to what extent, is effect given to a notion of ‘the rule of law’?

A. QUESTIONS OF DEFINITION

‘The rule of law’ is often used in ways which mask more than they reveal about the sense in which the phrase is being used. No single definition or description of the notion of ‘the rule of law’ is now seen as commanding general acceptance. But neither the difficulties that attend the use of the phrase, nor the absence of a generally accepted definition of the concept should occasion surprise. The phrase, ‘the rule of law’, tries to encapsulate, in four words, notions that are descriptive, even prescriptive, of basic features of a society’s system of law and governance. And the phrase is

often used more for its rhetorical effect than with close attention to its meaning or application.

It is convenient to begin by reference to two sources of ideas about the rule of law which remain important to an understanding of that notion in Australian legal thought: the writings of the English scholar, A V Dicey,⁴ and of the Australian judge, Sir Owen Dixon.⁵

In describing that body of rules and conventions which directly and indirectly affects the distribution or exercise of sovereign power in the state,⁶ Dicey saw⁷ parliamentary sovereignty and the rule of law as guiding principles which pervade the law of the constitution of England. For Dicey, the ‘supremacy or the rule of law’ included ‘under one expression at least three distinct though kindred conceptions’:⁸ the absence of arbitrary power (‘no man is punishable or can be lawfully made to suffer in body or goods except for a distinct breach of law established in the ordinary legal manner before the ordinary Courts of the land’⁹), universal subjection to the law (‘every man, whatever be his rank or condition, is subject to the ordinary law of the realm and amenable to the jurisdiction of the ordinary tribunals’¹⁰) and certain general rights (such as rights of personal liberty and freedom of assembly) being the product of judicial decision in particular cases, not constitutional text.¹¹ Dicey said¹² of the last of these that it was ‘a third and a different sense in which “the rule of law” or the *predominance of the legal spirit* may be described as a special attribute of English institutions’.

In 1951, Dixon described¹³ the Constitution of the Commonwealth as ‘an instrument framed in accordance with many traditional conceptions, to some of which it gives effect ... others of which are simply assumed’. Among these traditional conceptions, he said,¹⁴ ‘I think that it may fairly be said that the rule of law forms an assumption’. Some years earlier, Dixon had said¹⁵ to the American Bar Association that the Anglo-American conception of the rule of law had entered ‘into our habits of thought about the relations of the individual to the State’ but that ‘[i]t is a conception that belongs *only* to the common law, by which it has been preserved and transmitted’. And he described¹⁶ the rule of law as ‘a conception without which the theory of a rigid Constitution could never have grown’, a theory which he saw¹⁷ as ‘indispensable to federalism as we know it’.

It may be assumed that Dixon's understanding of the rule of law was informed by Dicey's work. But Dixon's understanding of the idea was also informed by his understanding and experience of the workings of a written federal constitution and the role played by the judicature in constitutional law. When seeking to describe the place of the rule of law in Australia, it is important to recognize that Dicey, and other, later, English writers, have framed their understanding of the rule of law in a context in which both the relationship between judicial and legislative branches of government and the breadth of power attributed to the legislature is necessarily and radically different from the equivalent relationship and power under a written federal constitution.

Absence of arbitrary power and universal subjection to the law remain at the centre of the rule of law as understood and applied in Australia. The same ideas are captured by Lord Bingham's restatement¹⁸ of the core principle of the rule of law: that 'all persons and authorities, whether public or private, should be bound by and entitled to the benefit of laws publicly made, taking effect (generally) in the future and publicly administered in the courts'. The extent to which ideas akin to Dicey's 'predominance of the legal spirit' play a part in Australian constitutional discourse will require some closer consideration.

At least much of what Dixon described as the assumption about rule of law underpinning the framing of the Australian Constitution is sufficiently captured by Dicey's conceptions of absence of arbitrary power and universal subjection to the law. It is captured by those conceptions to the extent to which the absence of arbitrary power and universal subjection to the law are understood as achieved by three conditions being met. Those conditions are: first, that there is a system of general rules from which there can be identified the rights, duties, powers, and immunities of those entities that the legal system recognizes as right- and duty-bearing entities; second, that those general rules, and only those rules, must be applied and enforced; and third, that disputes about the content or the application of the rules must be determined fairly.¹⁹ These are the ideas that Dixon rightly observed²⁰ to have long since entered 'into our habits of thought about the relations of the individual to the State' in Australia. Whether, as he suggested, they are ideas unique to the common law, need not be examined.

As the connections which Dixon drew between the rule of law, the common law, and federalism show, the rule of law may engage not only

ideas about legal and governmental organization that can be described as ‘constitutionalism’, but also fundamental considerations about judicial method. And, as will later be explained, questions of judicial method are closely connected with what Dicey called the ‘predominance of the legal spirit’.

For the purposes of this chapter, it will generally be sufficient to explain the content and application of the rule of law in Australia by reference either to Dicey’s conceptions of the absence of arbitrary power and universal subjection to the law or to the conditions identified as necessary to achieve the result that there is both an absence of arbitrary power and universal subjection to the law. More precise definition or description of the rule of law, if possible, is neither necessary nor desirable. It is as well to explain why that is so.

Attempting more precise definition would raise fundamental questions in the theory of law.²¹ If a positivist view is taken, the rule of law may say nothing about the content of the general rules by which the rights, duties, powers, and immunities of legal persons are identified. If a natural law view is taken, the rule of law requires that the general rules be not immoral. The writings of Ronald Dworkin would direct attention to how legal disputes are decided. And attempting more precise definition of the rule of law would present other questions. For example, is the rule of law a principle by which some legal controversies may, even must, be decided by courts, or is it a statement of goals and aspirations? Can the rule of law be understood as having universal content, regardless of whether the judicial system adopts the methods of the common law? What would that content be?

Because this chapter seeks to describe the place of the rule of law in Australian constitutional law, definitional debates of the kind described would be distracting. Resolution of the debates would erect a framework within which what has been said and done would have to be fitted. But when seeking to describe the place the rule of law has in Australian constitutional law and practice, the observer must remain alive to the possibility that ideas embodied in a notion of rule of law have been given a particular part to play that may not accord with a theory of general application. Not only that, definitional debates would divert attention from the task of description to questions such as whether the Constitution of the Commonwealth gives *sufficient* effect to each of the elements that the selected theory identifies as an element necessary to the rule of law. Hence

it is unproductive to ask whether, or to what extent, the several prescriptive principles²² which Lord Bingham treated as following from his statement of the core of the rule of law are defining characteristics of the rule of law in Australia.

Inquiries of the kind described are unproductive, even apt to distract, because the Constitution must be the starting point for any examination of the rule of law in Australia. The Constitution provides the essential framework of government within which the rule of law takes its place in Australia.

B. THE CONSTITUTION AS THE STARTING POINT

Four features of the Constitution are of present relevance.

First, the Constitution establishes a federal system of government: a system of government in which independent governments exist in the one geographical area but exercise powers in different fields of action.²³ The central government and the six State governments are separately organized. The central legislature (the Parliament of the Commonwealth) is given enumerated legislative powers and the laws validly made by that Parliament are paramount.²⁴ But only some of the enumerated legislative powers of the Commonwealth Parliament are exclusive²⁵ and the State Parliaments may legislate with respect to any other matter, whether falling within the enumerated and non-exclusive legislative powers of the Commonwealth Parliament or not. Whether a particular law made by a State Parliament has valid operation depends upon whether section 109 of the Constitution (the inconsistency provision giving a law of the Commonwealth paramountcy) is engaged.

Second, the Constitution establishes a system of representative government. Chapter I (sections 1–60) provides for a federal Parliament which is bicameral and for the members of each house to be ‘directly chosen by the people’.²⁶ The legislative power of the Commonwealth is vested²⁷ in the Parliament.

Third, the Constitution establishes a system of responsible government. Chapter II (sections 61–70), dealing with the executive government of the Commonwealth, requires²⁸ that, after the first general election for the

Parliament of the Commonwealth, ‘no Minister of State shall hold office for a longer period than three months unless he is or becomes a senator or member of the House of Representatives’. The executive power of the Commonwealth is vested²⁹ in the Sovereign (and is exercisable by the Governor-General as the sovereign’s representative).

Fourth, in Chapter III (sections 71–80), the Constitution makes separate provisions about the judicial power of the Commonwealth. Section 71 establishes ‘a Federal Supreme Court, to be called the High Court of Australia’, in which the judicial power of the Commonwealth is vested, and provides for the Parliament to create other federal courts. Section 71 also provides for the Parliament to invest courts, other than federal courts it creates, with federal jurisdiction.

These four features of the Constitution bear upon the application of the rule of law in Australia in the following ways.

The rigid federal structure created by the Constitution, in which independent governments exist in the one geographical area, but exercise powers in different fields of action, can operate only if there is a mechanism for resolving questions about the ambit of the powers of each government.

Further, when considering the powers of the central government created by the Constitution, its separate treatment of legislative power, executive power, and judicial power directs attention to the relationships between these three branches of that government. Put generally, the Constitution reveals that the executive branch is to be politically accountable to the Parliament; the Houses of the Parliament are to be politically accountable to the people; the federal judicature is to be independent of the political branches of government and, to that end, the judges are given constitutional protection³⁰ from removal from office (save on an address of both Houses of the Parliament on the ground of proved misbehaviour or incapacity) and constitutional protection³¹ from diminution of remuneration.

Questions about the ambit of the powers of the separate governments of the federation and about the ambit of the powers of the separate branches of the central government may affect not only the governments of the States and the Commonwealth, but also those who are or may be subject to the disputed exercise of power. The binding resolution of all such questions of power is exclusively³² the task of the judicature and ultimately³³ the task of the High Court.

C. THE ROLE OF THE JUDICATURE

The Constitution provides³⁴ that the High Court has original jurisdiction in matters in which the Commonwealth, or a person suing or being sued on behalf of the Commonwealth, is a party; in matters between the States; and, in matters in which certain kinds of order or remedy³⁵ are sought against ‘an officer of the Commonwealth’. The High Court is thus given a constitutionally entrenched jurisdiction to deal with claims against the Commonwealth and with claims between the States. And ever since its establishment in 1903, the High Court has also had original jurisdiction³⁶ in any matter arising under the Constitution, or involving its interpretation.

Matters in which the Commonwealth (or a person suing or being sued on behalf of the Commonwealth) is a party, matters between the States, and matters in which a remedy identified in section 75(v) is sought against an officer of the Commonwealth, together, will encompass many of the cases in which there is a question about the constitutional validity of legislation. By committing these matters to the exercise of the judicial power of the Commonwealth, the Constitution has ensured that the rigidity of the Constitution can be maintained, and its division of powers between ‘independent governments [which] exist in the one geographical area but exercise powers in different fields of action’,³⁷ effected.

The High Court is now the final appellate court for Australia. With such exceptions and subject to such regulations as the Parliament prescribes, the High Court has appellate jurisdiction³⁸ in appeals from *all* judgments, decrees, orders, and sentences of any other federal court, of any court exercising federal jurisdiction, or of the Supreme Court of any State. Because the High Court has appellate jurisdiction in appeals from all judgments, decrees, orders, and sentences of the Supreme Courts of the States, it has a general appellate jurisdiction which extends beyond matters which, at their inception, had some federal element.

The High Court’s decisions in all matters, whether constitutional or non-constitutional, bind all courts: federal, State, and Territorial. And because that is so, it is now clear³⁹ that, unlike the United States, there is only one common law of Australia as opposed to a common law of individual States of the Commonwealth.

The High Court exercises the judicial power of the Commonwealth. The identification of the ambit of the judicial power of the Commonwealth has occasioned controversy and no little difficulty. In part, that is because the separation of powers for which the Constitution provides is understood⁴⁰ as ‘giving effect to a doctrine which was not a product of abstract reasoning alone, and was not based upon precise definitions of the terms employed’. Further, the separation of powers between the three branches of the federal government is not understood as mutually exclusive in all respects. Rather, ‘what belongs to the judicial power or is incidental or ancillary to it’ is determined by ascertaining whether ‘it has a sufficient relation to the principal or judicial function or purpose to which it may be thought to be accessory’.⁴¹

Important as these elaborations of doctrine are, the central point, for present purposes, is that the concept of the judicial power of the Commonwealth has been understood and applied in a manner that gives effect to the Diceyan conceptions of absence of arbitrary power and universal subjection to the law. In particular, a defining characteristic at the heart of the notion of the judicial power of the Commonwealth is that it is directed to the resolution of controversies about rights, duties, powers, and immunities by reference to pre-existing rules of general application. That is, ‘the judicial power is concerned with the ascertainment, declaration and enforcement of the rights and liabilities of the parties *as they exist, or are deemed to exist, at the moment the proceedings are instituted* ... A Court of law has no power to give effect to any but rights recognised by law. ... The judicial function ... first ascertains whether the alleged right or duty exists in law, and, if it binds it, then proceeds if necessary to enforce the law’⁴².

Hence, not only questions about the ambit of the powers of the separate integers of the federation and of the powers of branches of government but also all questions presented in any legal proceeding which may yield a judgment, decree, order, or sentence which may be the subject of an appeal to the High Court are to be resolved on the footing that the legal system provides general rules from which there can be identified the rights, duties, powers, and immunities of right- and duty-bearing entities; that those general rules, and only those rules, are to be applied and enforced; and that disputes about the content or the application of the rules are to be

determined fairly by applying recognized judicial methods. The determination of such disputes is exclusively the task of the judicature.⁴³

How, then, are the general rules from which there can be identified the rights, duties, powers, and immunities of right- and duty-bearing entities formed and ascertained in a manner that is consistent with Dicey's 'distinct though kindred conceptions', of absence of arbitrary power and the fair and consistent application of pre-existing generally applicable rules?

It is convenient to approach that question by reference to three propositions which are accepted principles of Australian law.

D. DETERMINING GENERALLY APPLICABLE RULES

The first proposition has already been identified. The doctrine of precedent binds courts to apply the common law of Australia: those principles of judge-made law which are established by the decisions of superior courts (and thus, ultimately, by decisions of the High Court). And, those principles of judge-made law must necessarily be consistent with the Constitution.

Second, but again, subject to the Constitution, laws enacted by the legislatures are a source of law superior to judge-made law and must always be applied. Third, it is a well-established principle of statutory construction, often now described⁴⁴ as part of a more general 'principle of legality', that 'the legislature does not intend to make any alteration in the law beyond what it explicitly declares ... either in express terms or by implication'.⁴⁵

A little more should be said immediately about the two propositions concerning statute law. Both can be seen as expressing an aspect of the relationship between the judicature and the political branches of government in the identification of the general rules which fix the rights, duties, powers, and immunities of right- and duty-bearing entities and the determination of the content of those rules.

The principle about the supremacy of statute law is qualified. The supremacy of statute law is subject to the Constitution. And, if a statute is constitutionally invalid, its provisions afford no authority for what otherwise would be wrongful conduct.⁴⁶

As has already been observed, under the Australian Constitution, it is the courts which decide whether a statute is valid. It is the courts which decide the boundaries of the legislative powers of the Parliament of the

Commonwealth; it is the courts which decide whether a law of a State is inconsistent with a law of the Commonwealth, with the consequence⁴⁷ that 'the latter shall prevail, and the former shall, to the extent of the inconsistency, be invalid'. Those, and other questions touching the validity of statutes, are determined by reference to the working out of constitutional doctrine in the decisions of the courts, most especially the decisions of the High Court. And it is the courts which decide the construction and application of statutes in particular cases.

One corollary of the (qualified) supremacy of statute law has hitherto⁴⁸ been seen to be that courts cannot decline to enforce the provisions of a statute (if those provisions are not held to be invalid) on the basis that their meaning is too difficult to discern. In particular, Australia has not developed any doctrine that a statute may be held 'void for vagueness'. And unlike the Constitution of the United States, where the due process clause is seen to support such a doctrine, there is no Australian constitutional provision on which such a doctrine could be founded.

The courts decide the construction and application of statutes according to accepted principles of statutory construction. One of those principles is that statutes are construed on the basis that they 'would overthrow fundamental principles, infringe rights, or depart from the general system of law' only if that intention is expressed 'with irresistible clearness'.⁴⁹ And like all rules and principles of statutory construction, this principle can be seen both as one particular pre-existing general rule which will be applied in determining the outcome of particular cases and as a rule which identifies an important aspect of the relationship between the judicature and other branches of government. It is a principle which is both an application, and an expression of part of the content, of a notion of rule of law. But the principle is a rule of construction which is not absolute. It is not a principle which limits the kinds of legislation which can be enacted. The principle assumes⁵⁰ that the legislature may enact a statute which 'would overthrow fundamental principles, infringe rights, or depart from the general system of law'. It asks whether the legislature has expressed sufficiently clearly its intention to effect a change of the kind described. And that is a question often open to debate.

The principles that have been identified are important to an understanding of the rule of law in Australia but require elaboration in at

least three respects. First, what changes can be made to that body of generally applicable rules which the rule of law identifies as fixing the rights, duties, powers, and immunities of legal persons? Second, given that the boundaries of constitutional power are fixed by judicial decision, and the principles about supremacy of statute law and construction of statutes depend ultimately upon judicial decision, how is effect given to judicial decisions? Third, is there any principle which would prevent the legislative overthrow of some fundamental principles, infringement of some rights, or departures from some aspects of the general system of law?

Elaboration and examination of these issues will direct attention to a number of other important points. It will point not only to respects in which there may be pressures upon the rule of law but also to some developments in understanding the way in which the rule of law operates in Australia. More fundamentally, however, it will invite consideration of what role is, or should be, played by the political branches of government (the executive and legislative branches) in maintaining the rule of law.

E. CHANGING THE BODY OF GENERALLY APPLICABLE RULES

Particular elements of the body of generally applicable rules that is a necessary condition for the rule of law may change. Change may occur through some development in judge-made law or the enactment of some statute. Development of judge-made law may entail that cases are determined according to principles which differ from those which were thought to apply at the time the facts and circumstances in issue occurred. Enactment of legislation, whether amending an existing statute or creating a new field of legislative regulation, will not only alter the body of generally applicable rules but also may present questions about the application of the changed law to facts and circumstances that occurred before the statute was enacted.

Changing the law (whether judge-made or statutory) that is to be applied to facts and circumstances that occurred before the law was changed may appear to be inconsistent with the notion that the rights, duties, powers, and immunities of legal persons are to be determined according to identifiable rules of general application. How is that tension to be resolved?

It is useful to deal first with the relationship between the rule of law and the development of judge-made law and then with the relationship between

the rule of law and alterations in statute law.

Judge-made law is not static. It is developed⁵¹ by inductive and deductive reasoning. Accepted principles may be extended to apply to new cases. New conclusions may be reached by reference to those principles which are seen as fundamental. Instances not previously foreseen may be included in an existing category. Importantly, the content of the principles of judge-made law may require modification on account of changes in statute law. In particular, if the reason or foundation for a rule of judge-made law depends upon rules or principles which are themselves changed or discarded by statute, the common law rule will likely have to be modified or discarded lest the law as a whole become incoherent.

The rule of law, as understood and applied in Australia, must accommodate these shifts in that part of the body of generally stated rules from which rights, duties, powers, and immunities are to be identified which comprises judge-made law. It must accommodate those shifts because the body of judge-made law is not and cannot be forever static.

While the declaratory theory of the common law held sway, changes in the body of judge-made law could be dismissed as presenting no challenge to notions of rule of law on the basis that judges did not make law, they did no more than identify and declare the content of a pre-existing body of rules. But that theory, whatever may have been its abstract appeal,⁵² has long since been recognized not to describe the working of the common law system.

Again, the appearance of tension, between on the one hand, common law methods of adjudication (and consequential development of judge-made law), and on the other, the rule of law, would be less if the Australian common law had adopted a principle or practice that permitted prospective overruling of decisions with the consequence that the High Court's statement of a new or different principle of judge-made law had application only with respect to future cases. But the High Court has held⁵³ that prospective overruling is inconsistent with judicial power because it would amount to the creation of rights and obligations for the future, as distinct from the adjudication of existing rights and obligations.

Resolution of the tension between alteration in the content of judge-made law and the rule of law, therefore, must be found elsewhere than in either a declaratory theory of law or in adoption of prospective overruling. Rather, the tension is to be resolved by reference to two other propositions. The first

has already been mentioned. It is that the body of generally applicable rules which the rule of law requires cannot be immutable. The possibility of change is an inherent characteristic of that body of rules. Second, changes to judge-made law occur by application of, and in accordance with, recognized principles of judicial method. And contrary to some ‘realist’ analyses of judicial method, the common law of Australia is not developed or applied at the unconstrained will of the individual judge. Always the judge is seeking to act (and to provide reasons for acting) by reference to standards and principles that are external to the judge.⁵⁴

The enactment of any statute will alter the content of the law. Whether that alteration applies to facts and circumstances that occurred before enactment depends upon the true construction of the Act.

Often the statute, and especially an amending statute, will deal expressly with that issue and, as a general rule, effect must be given to the transitional provisions that the statute makes. If the statute makes no express provision, generally applicable statutory interpretation acts⁵⁵ will apply (subject to the Act in issue not showing the contrary intention). And those interpretation acts ordinarily provide⁵⁶ that the repeal or amendment of an Act does not affect the previous operation of that Act; does not affect any right, privilege, obligation, or liability acquired, accrued, or incurred under the affected Act; and, does not affect steps taken under that Act, including any penalty, forfeiture, or punishment incurred in respect of an offence committed against the affected Act. But these are presumptive, not absolute rules. Hence, issues may arise about whether a statute has what is often described as ‘retrospective’ effect.

Use of the word ‘retrospective’ is, however, apt to mislead,⁵⁷ at least to the extent to which it suggests that there is a single kind of issue, capable of resolution by applying a single principle.

That there is no single and universal rule may be illustrated by considering the intersection between new statutory provisions and past, present, or pending legal proceedings. In general, the presumption that a statute changing the law does not apply to facts or events that have already occurred in such a way as to confer or impose or otherwise affect rights or liabilities which the law had defined by reference to the past events is not a presumption which extends to laws ‘appointing or regulating the manner in which [those rights or liabilities] are to be enforced or their enjoyment is to

be secured by judicial remedy'.⁵⁸ That is, changes made in practice or procedure are applied to proceedings to enforce rights or liabilities, or vindicate a privilege or immunity, even if the right, liability, privilege, or immunity was complete before the changes were made.⁵⁹ But legislation may intersect with past, pending, or completed litigation in many ways other than by altering the procedures to be followed in the litigation. If the litigation is, or was, in federal jurisdiction, it will often be necessary to ask whether there has been some usurpation of, or impermissible interference with, the exercise of the judicial power of the Commonwealth.

It has been said⁶⁰ that 'Chapter III of the Constitution contains no prohibition, express or implied, that rights in issue in legal proceedings shall not be the subject of legislative declaration or action'. Yet, it is also accepted⁶¹ that the legislature cannot direct the courts as to the manner or outcome of the exercise of their jurisdiction. As with many other questions about what is, or is not, an exercise of judicial power, applying this latter principle is difficult.⁶² In cases which are still pending in the judicial system, a balance must be struck between the recognition that the Parliament may change the law in a way that affects pending proceedings in the courts, and the recognition that the Parliament cannot direct the courts as to the conclusions they should reach in the exercise of their jurisdiction.⁶³ The validity of legislation affecting completed litigation may be affected by, even turn on, the nature of the relief that was awarded. It may be that different considerations apply in relation to injunctions remaining subject to the continuing supervision of the courts and other forms of relief. And the validity of laws that affect litigation not yet commenced may be affected by questions other than those about judicial power: most importantly the constitutional prohibition on the acquisition of property otherwise than 'on just terms'.⁶⁴

For the purposes of this chapter it is not necessary to examine the detail of any of the principles that bear upon the intersection between legislation and future, pending, or completed litigation. What is presently important is that, together, those principles form part of that generally stated body of rules which is essential to the rule of law. That is, the rule of law in Australia is understood and applied by reference to a body of generally stated rules which include these and other principles which determine

whether and to what extent changes in the law (judge-made and statutory) apply to facts and circumstances occurring before the law changed.

The existence of this body of principles may be reason enough to conclude that any tension between the rule of law and altering the law that is to be applied to facts and circumstances that occurred before the law was changed is more apparent than real. But even if that is not right, the matters which have been discussed about the effect of changing the law show that, in Australia, the rule of law is not understood as precluding the application of every form of ‘retrospective’ change in the law. Particularly, whether and when statutory changes affect the rights, duties, powers, and immunities of legal persons in respect of facts and circumstances that occurred before the law was changed are questions which are themselves to be determined by reference to a pre-existing body of generally stated rules. And they are questions to be determined by the courts according to law, not according to judicial or executive discretion.

F. GIVING EFFECT TO JUDICIAL DECISIONS

The work which the High Court does in matters arising under the Constitution, or involving its interpretation, often relates to legislation giving effect to policies which are the subject of intense public and partisan political debate. The Court’s decision about the validity of such a law will often have large consequences for many more than the immediate parties to the litigation in which the decision is made. Yet rarely has the Court had to resort to the issue of compulsive process to require a party to the relevant litigation to give effect to the Court’s decision. So, for example, the Court’s decision in 1951 in relation to legislation dissolving the Communist Party of Australia⁶⁵ struck down legislation giving effect to policies seen as centrally important by the government of the day. But the decision that the law was beyond the legislative power of the Commonwealth, and invalid, was given effect without demur. The political branches of government directed attention to seeking (unsuccessfully) constitutional amendment by referendum in accordance with section 128 of the Constitution.

No doubt, the possible issue of the Court’s compulsive processes provides an important reason to accept and implement the Court’s decisions. The course of proceedings in *Tait v The Queen*⁶⁶ provides a vivid

illustration of the importance of that possibility to the maintenance of the authority of the High Court and the courts more generally.

Robert Peter Tait had been sentenced to death for murder. His appeals against conviction had failed. Shortly before the date set for execution, application was made to the trial court for an order that the execution not be carried out because Tait was then insane. The trial court refused the application and Tait sought to appeal to the High Court. The date for execution remained fixed. The High Court adjourned its consideration of the applications for special leave to appeal ‘without giving any consideration to or expressing any opinion as to the grounds upon which they are to be based, *but entirely so that the authority of this Court may be maintained and we may have another opportunity of considering it*’⁶⁷. The Court ordered that those responsible for executing the sentence (the Chief Secretary of the State, the Sheriff, and his deputies) be restrained from doing so pending the disposal of the application to the Court for special leave and any appeal in consequence of those applications.

More recently, however, the executive’s compliance with decisions of the High Court has come into sharper focus in two areas of executive power: spending and implementation of migration policy.

G. COMPLIANCE WITH JUDICIAL DECISIONS—SPENDING CASES

The ambit of the power of the executive of the Commonwealth to spend public money remained unresolved for many years, not least because those who received such payments had little reason to seek to challenge the power to make the payments. The issue was not squarely raised in litigation in the High Court until 1975, in *Victoria v The Commonwealth (AAP Case)*,⁶⁸ but the decision in that case yielded no principle commanding the assent of a majority of the Court. Uncertainty about the ambit of the Commonwealth’s power to spend remained until the decisions in three cases⁶⁹ brought by individuals who challenged the Commonwealth’s making of payments intended to provide a benefit to a class of which the plaintiff was a member.

For the purposes of this chapter, it is necessary to make only two points about these more recent cases about the Commonwealth’s power to spend. In the first of them, *Pape v Federal Commissioner of Taxation*, a taxpayer

sought a declaration that a statute requiring the Commissioner of Taxation to pay certain taxpayers a 'tax bonus' (intended as a fiscal stimulus in response to the then global financial crisis) was invalid. The Commissioner (and the Attorney-General for the Commonwealth, intervening) submitted that the plaintiff had standing to claim a declaration that payment of a tax bonus *to him* was beyond power but that he had 'no special interest which would allow him to challenge the validity of the Act in its application to other persons'.⁷⁰ The Commonwealth parties identified no fact or circumstance differentiating the plaintiff from others intended to receive a tax bonus and did not make clear whether the submission about standing was directed only to the form of order that should be made, or was intended to permit some later argument that the decision in the case decided only the validity of a payment to the plaintiff without deciding any more general proposition. The Court did not need to pursue the point beyond noting⁷¹ the utility of granting a declaration, if the impugned Act had been held to be invalid. In that way, 'the resolution pursuant to Ch III of the Constitution of the plaintiff's particular controversy [would acquire] a permanent, larger, and general dimension. The declaration *would vindicate the rule of law under the Constitution*'.⁷²

The two other recent spending cases that have been mentioned were both brought by Ronald Williams, the father of children enrolled at a State primary school, who claimed that the Commonwealth's payments to an organization providing chaplaincy services at the school were not lawfully made. The payments in issue in the first of the two cases were made under an agreement made between the Commonwealth executive and the provider of services. Mr Williams succeeded in his first case. The Court held⁷³ that the making of neither the agreement nor the payments was supported by the executive power of the Commonwealth.

The Commonwealth sought to remedy matters by enacting provisions intended to authorize both the making of the agreements and payments which had been held to be invalidly made and, as well, many other agreements or arrangements for the outlay of public moneys and the payments made or to be made under those agreements or arrangements. Mr Williams challenged the validity of these provisions and again he succeeded.⁷⁴ But it would seem that the Commonwealth thereafter neither sought nor received repayment of amounts paid under the invalid

provisions. And the Commonwealth continued its National School Chaplaincy Program without interruption. Instead of making payments directly to providers of chaplaincy services, the Commonwealth made tied grants of money to the States pursuant to section 96 of the Constitution. Success in litigation about the ambit of one source of governmental power may lead only to government pursuing the same ends by other means dependent upon other sources of power.

H. COMPLIANCE WITH JUDICIAL DECISIONS—MIGRATION CASES

Since the year 2000, there has been much litigation about Commonwealth statutory provisions requiring the detention of persons entering Australia without permission to enter or remain in the country, and about steps taken by the executive to deal with claims made by persons arriving in Australian waters without permission to enter or remain that they are refugees under the Refugees Convention. It is neither necessary nor possible, in this chapter, to trace that litigation in any detail. Three points about the litigation are of present relevance.

First, all of the litigation has proceeded from a premise that the executive government has no power to detain any person except under and in accordance with some positive authority conferred by the law. Second, the course of the decisions and legislative response provides repeated demonstration of the (qualified) supremacy of statute law. Third, one of the more recent cases in the stream of litigation provides a useful illustration of the importance of the compulsive processes of the courts to the maintenance of the rule of law.

The common law of Australia ‘knows neither *lettre de cachet* nor other executive warrant authorising arbitrary arrest or detention’.⁷⁵ Hence, ‘any officer of the Commonwealth Executive who purports to authorise or enforce the detention in custody of [any person, including an alien within the country, whether lawfully or unlawfully] without judicial mandate will be acting lawfully *only to the extent that his or her conduct is justified by valid statutory provision*’.⁷⁶ And the writ of habeas corpus will go to procure that person’s release if the detention is held to be unlawful.

The references to ‘judicial mandate’ and to the validity of statute law are important because the High Court has held that the adjudgment and

punishment of criminal guilt under a law of the Commonwealth is an exclusively judicial function.⁷⁷ Subject only to limited exceptions, then, a Commonwealth statute cannot validly provide power for the executive to confine a person involuntarily in custody. The most important of those exceptions is the arrest, and detention in custody, pursuant to executive warrant of a person accused of crime to ensure that he or she is available to be dealt with by the courts. But that power is itself subject to judicial supervision and control⁷⁸ by exercise of the power to admit to bail. Beyond that, and leaving aside the position of enemy aliens in times of war, involuntary detention can validly be provided in only limited cases (including mental illness, infectious disease, breach by military personnel of military discipline, and the traditional power of the Parliaments to punish for contempt).

It is well established⁷⁹ that the federal Parliament's power to make laws with respect to naturalization and aliens⁸⁰ permits the making of a law giving statutory power to detain involuntarily for the purposes of determining whether an alien should be permitted to remain in Australia or for the purposes of giving effect to a decision to remove an alien from Australia. But as the High Court has made clear, the statutory power to detain persons who have no permission to enter and remain in Australia is limited by the purposes for which the detention is effected: to determine (if permission is required) whether to permit the detainee to apply for a visa; to receive, investigate, and determine an application for a visa; or, to remove the person from Australia.⁸¹ And those purposes must be pursued and carried into effect as soon as reasonably practicable.⁸² The permissible duration of detention is thus not at large but is bounded by the requirement to pursue the applicable purpose of detention as soon as reasonably practicable. If it is not, the detention will become unlawful. And the lawfulness of detention is decided by the courts.

Consideration of the course of the High Court's decisions in migration matters between 2000 and 2015 will reveal that, when the Court decided a point of general application contrary to the submissions made by the executive, amending legislation was often enacted soon after the Court's decision to provide for the result for which the executive had contended. That is, the course of events provides several, and sometimes striking, examples of the supremacy of statute law as a source of the general rules

from which the rights, duties, powers, and immunities of persons (in these cases aliens seeking permission to enter and remain in Australia) are ascertained.

The third point to be made by reference to migration cases is about the importance of the courts' compulsive processes to the maintenance of the rule of law.

Apart from cases in which persons have sought injunction restraining their removal from Australia, there have been few migration cases in which the High Court has issued compulsive process directed to the executive. In the great majority of cases, effect has been given to the Court's decision without the need to compel performance. One case where compulsive process did issue repays further examination.

A person who had arrived in Australia by sea was permitted to make, and made, a valid application for a visa issued to refugees (those persons to whom Australia owes protection obligations under the Refugees Convention). The plaintiff was found to be a refugee but the Minister did not decide the plaintiff's application. Various regulatory and other steps were taken which were thought to permit the Minister not to make a decision to grant or refuse the application, notwithstanding the relevant statute⁸³ obliging the Minister to make a decision. The plaintiff brought proceedings in the High Court challenging the validity of some of the steps that were thought to permit the Minister not to make a decision. The parties to the litigation treated its outcome as entitling the plaintiff to an order that a writ of mandamus issue commanding the Minister to consider and determine the plaintiff's application for a visa according to law and an order to that effect was made.

The Minister decided to refuse to grant the visa that was sought and filed a certificate stating that he had 'done what was commanded of [him] by the Writ of Mandamus'. The plaintiff denied that the Minister had done as he had been commanded and sought a peremptory mandamus commanding the Minister to grant the visa that the plaintiff sought. The High Court granted⁸⁴ the relief the plaintiff sought and he obtained the visa that he had sought. The case stands as an example of how '[t]he reservation to [the High] Court by the Constitution of the jurisdiction in all matters in which the named constitutional writs or an injunction are sought against an officer of the Commonwealth is a means of assuring to all people affected that officers of the Commonwealth obey the law and neither exceed nor neglect any

jurisdiction which the law confers on them'.⁸⁵ It, like the other cases that have been mentioned, stands as an example of the wider propositions of absence of arbitrary power and universal subjection to the law about which Dicey wrote.

I. THE RULE OF LAW AND THE POLITICAL BRANCHES OF GOVERNMENT

This chapter has focused upon the role of the judiciary in maintaining the rule of law. Do the political branches of government play a role? Should they?

The political branches determine what statutes will be enacted and in what form. It is those branches of government that exercise day-to-day control over the public enforcement of law. And by their control over the public purse, the political branches will determine, directly or indirectly, whether private parties can afford to seek enforcement of the law or can afford to defend effectively proceedings instituted against them by public authorities. In at least these ways, the actions of the political branches bear directly upon the rule of law.

The last of these matters concerns access to justice. Important as these issues are, they are beyond the scope of this chapter. Something more should be said, however, about the two other issues: the form in which statutes are enacted and discretionary enforcement of the law.

The existence of a body of generally applicable rules is essential to the rule of law. If the rules are not expressed clearly or their content cannot be known, the utility of that general body of rules is greatly diminished. Hence, the political branches must, and in Australia do, provide for ready public access to current forms of statute law. But knowing that there is an Act or regulation which deals with a subject is of little use to those who seek to order their affairs in accordance with that law if the content or application of those rules is uncertain. Hence, adopting statutory drafting techniques⁸⁶ which seek to have an Act apply as far as the legislative power of the Parliament would permit, without attempting any other description, let alone definition, of the boundaries of operation of the Act, leaves those who may be bound by its operation without definite guidance about its application.

Likewise, statutes which use expressions of indefinite content (like ‘in the national interest’) to limit the exercise of executive power, especially coercive power, not only give the repository of power little (if any) useful guidance about the limits of the power but also present serious difficulties to those who seek to challenge or decide the lawfulness of particular exercises of that power.

Hitherto, there has been no successful challenge to a law of the Commonwealth founded on considerations of the kinds described. But the High Court has more than once adverted to principles which bear upon issues of those kinds. There are at least two distinct but related strands of inquiry. First, is the impugned law expressed with such width or uncertainty that it lacks sufficient connection to a constitutional head of legislative power?⁸⁷ Second, is the impugned provision ‘of so little content as not to constitute an exercise of legislative power or to be a “law” as a rule of conduct or a declaration as to power, right or duty’?⁸⁸

If the use of drafting devices of the kinds described becomes more common, it may be that attention will again be given to the questions of principle which they may raise. Whether or not that is so, as more and more statutes are framed in broader, less precise terms and wider, more generally expressed discretions are given to administrators, the more important it will become to identify what principles mark the boundaries to what is a ‘law’. Especially would that be so if an impugned provision changed the law and was to be applied to facts or circumstances occurring before its enactment.

Statutory provisions dependent upon the exercise of administrative discretion detract from the certainty that is implicitly required by the rule of law’s reference to a system of general rules from which there can be identified the rights, duties, powers, and immunities of those entities that the legal system recognizes as right- and duty-bearing entities. Of course the legal system cannot work without flexibility. Hence, to take a commonplace example, police, Directors of Public Prosecutions, and other public officials must often decide whether to prosecute an alleged offender and, if charges are to be laid, must decide what offences will be charged. Consistent with the adversarial and accusatorial system of criminal justice followed in Australia, these decisions are treated⁸⁹ as the province of prosecuting authorities and ordinarily not subject to review by the courts. Yet it is equally plain that it is a ‘general constitutional principle’,⁹⁰

applicable to both State and Commonwealth governments, that there is no power of executive dispensation of statute law.

The political branches of government can act in ways that promote or diminish the rule of law. As has been seen there are some bounds beyond which the political branches cannot go and those bounds may not yet be fully marked. The rule of law is promoted by ensuring, as far as possible, that laws are clear, accessible, stable, and prospective rather than retrospective. The rule of law is promoted by ensuring that those laws, and only those laws, can be invoked and are applied fairly and impartially. The rule of law is diminished to the extent to which laws are not clear and accessible and laws are not stable and prospective rather than retrospective. The rule of law is diminished if the law is not enforced fairly and impartially. The rule of law is diminished to the extent to which individuals cannot have access to justice. In all these respects, it is the political branches which must choose whether to promote or diminish the rule of law.

There remains for consideration Dicey's reference to the 'predominance of the legal spirit'.

J. THE 'LEGAL SPIRIT'

To a degree, Dicey's notion of 'the legal spirit' can be seen as reflected in the principles of statutory construction that have been discussed earlier in this chapter. But it is useful to say something more about the subject in order to direct attention to whether this notion can be seen as moving to a more prominent place in the rule of law in Australia.

As has been explained, constitutional boundaries are set, and the construction and application of statutes in particular cases determined, by judicial decision. Often, issues about constitutional power and about the construction and application of statutes are not only contested but their proper resolution is contestable. They are issues that cannot be, and are not, resolved mechanically. Yet, they are issues that must be resolved according to standards and principles that are external to the judge,⁹¹ not by reference to considerations subjective or personal to the judge. And the judge must state, for all to see, his or her reasons for the answer which the judge gives to the issue. Where, in a process of that kind, is there room for the 'legal

spirit’ to play a part? More particularly, in cases of statutory construction, when, if at all, may a judge examine the wisdom or necessity for the provisions which it is alleged apply and must be construed?

Hitherto, neither the wisdom of, nor necessity for, statutory provisions has been seen as bearing upon their constitutional validity. But perhaps considerations of this kind may hereafter be said to bear upon questions of validity, at least in those cases where validity is to be determined within a proportionality framework of analysis. In *McCloy v New South Wales*⁹² a majority of the Court held that whether a law infringes the implied freedom of political communication requires application of a series of propositions of which one was said to require ‘proportionality testing’ by reference to criteria of suitability, necessity, and adequacy of balance. It is the last of these to which it is necessary to direct attention. The criterion was said to require ‘a value judgment, consistently with the limits of the judicial function, describing the balance between the importance of the purpose served by the restrictive measure and the extent of the restriction it imposes on the freedom’.⁹³

Whether, or to what extent, these are questions of the same kind as the Supreme Court of the United Kingdom has described as asking ‘whether, balancing the severity of the measure’s effect on the rights of the persons to whom it applies against the importance of the objective, the former outweighs the latter’⁹⁴ will depend upon further decisions of the High Court. And likewise, the exact significance of the caveat entered by the majority in *McCloy*, that the value judgment is to be made ‘consistently with the limits of the judicial function’, is a matter to be worked out in further decisions. It is enough to say that it may now be that Dicey’s notion of the ‘predominance of the legal spirit’ will have a larger part to play in the rule of law in Australia than the limited reflection it has been given in principles of statutory construction.

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¹ *Constitution*, covering clause 5.

² *Melbourne Corporation v The Commonwealth* (1947) 74 CLR 31, 82.

³ *ibid.*

⁴ Vinerian Professor of English Law in the University of Oxford 1882–1909.

⁵ A Justice of the High Court of Australia 1929–52 and Chief Justice of Australia 1952–64.

- ⁶ A V Dicey, *Introduction to the Study of the Law of the Constitution* (6th edn, 1902) 22.
- ⁷ *ibid* 33–34.
- ⁸ *ibid* 183.
- ⁹ *ibid* 183–84.
- ¹⁰ *ibid* 189.
- ¹¹ *ibid* 191.
- ¹² *ibid* 191 (emphasis added).
- ¹³ *Australian Communist Party v The Commonwealth* (1951) 83 CLR 1, 193.
- ¹⁴ *ibid*.
- ¹⁵ Owen Dixon, ‘Two Constitutions Compared’ in Severin Woinarski (ed), *Jesting Pilate and Other Papers and Addresses* (The Law Book Company 1965) 100, 101 (emphasis added).
- ¹⁶ *ibid*.
- ¹⁷ *ibid*; *R v Kirby; Ex parte Boilermakers’ Society of Australia* (1956) 94 CLR 254.
- ¹⁸ Tom Bingham, *The Rule of Law* (Penguin Books 2010) 8.
- ¹⁹ cf Cheryl Saunders and Katherine Le Roy, ‘Perspectives on the Rule of Law’ in Saunders and Le Roy (eds) *The Rule of Law* (Federation Press 2003) 1, 5.
- ²⁰ Dixon (n 15) 101.
- ²¹ Paul Craig, ‘Formal and Substantive Conceptions of the Rule of Law: an Analytical Framework’ (1997) Public Law 467.
- ²² Lord Bingham identified eight principles. (1) The law must be accessible. (2) Ordinarily, disputes should be resolved by the application of law, not discretion. (3) There should be equality before the law. (4) Public power must be exercised in good faith, fairly, for the purpose for which the power was conferred and not unreasonably. (5) The law must afford adequate protection of human rights. (6) Means must be provided for resolving civil disputes without prohibitive cost and inordinate delay. (7) Adjudicative procedures provided by the state must be fair. (8) A state should comply with its obligations in international law as in national law. See, Bingham, *The Rule of Law*, (2010) at.
- ²³ *Boilermakers’ Case* (n 17), 266–67.
- ²⁴ Section 109 of the Constitution provides that ‘When a law of a State is inconsistent with a law of the Commonwealth, the latter shall prevail, and the former shall, to the extent of the inconsistency, be invalid.’
- ²⁵ Section 52.
- ²⁶ Sections 7 and 24.
- ²⁷ Section 1.
- ²⁸ Section 64.
- ²⁹ Section 61.
- ³⁰ Section 72(ii).
- ³¹ Section 72(iii).
- ³² *Australian Communist Party* (n 13), 262–63 (Fullagar J). See also *In re Judiciary and Navigation Acts* (1921) 29 CLR 257; *Boilermakers’ Case* (n 17).
- ³³ *Plaintiff S157/2002 v The Commonwealth* (2003) 211 CLR 476, 513–14 [103]–[104].
- ³⁴ Section 75(iii), (iv), and (v).
- ³⁵ A Writ of Mandamus or prohibition or an injunction.
- ³⁶ *Judiciary Act* 1903 (Cth), s 30(a); *Constitution*, s 76(i).
- ³⁷ *Boilermakers’ Case* (n 17) 266–67.

- ³⁸ Section 73.
- ³⁹ *Lipohar v The Queen* (1999) 200 CLR 485, 505–07 [43]–[48].
- ⁴⁰ *R v Davison* (1954) 90 CLR 353, 381 (Kitto J).
- ⁴¹ *Boilermakers' Case* (n 17) 278.
- ⁴² *Waterside Workers' Federation of Australia v J W Alexander Ltd* (1918) 25 CLR 434, 463–64 (Isaacs and Rich JJ) (emphasis added).
- ⁴³ *Australian Communist Party* (n 13), 262–63 (Fullagar J). See also *In re Judiciary and Navigation Acts* (1921) 29 CLR 257; [1921] HCA 20; *Boilermakers' Case* (n 17).
- ⁴⁴ See, eg, *Electrolux Home Products Pty Ltd v Australian Workers' Union* (2004) 221 CLR 309, 329 [21] (Gleeson CJ).
- ⁴⁵ *Potter v Minahan* (1908) 7 CLR 277, 304 (O'Connor J), quoting J Anwyl Theobald, *Maxwell on Statutes* (4th edn, Sweet & Maxwell 1905) 121.
- ⁴⁶ See, eg, *James v The Commonwealth* (1939) 62 CLR 339 holding that an invalid law gave no authority for what was otherwise a trespass to goods.
- ⁴⁷ *Constitution*, s 109.
- ⁴⁸ The decision to the contrary, by the Court of Appeal of the Supreme Court of Victoria, in *DPP v Walters* [2015] VSCA 303 cites no authority and states no argument from accepted principles which justifies the result reached in that case.
- ⁴⁹ *Potter* (n 45), 304 (O'Connor J), quoting *Maxwell on Statutes* (n 45) 121.
- ⁵⁰ See *R v Home Secretary; Ex parte Pierson* [1998] AC 539, 587–90 (Lord Steyn discussing Dicey's reference to 'a spirit of legality').
- ⁵¹ *PGA v The Queen* (2012) 245 CLR 355, 372–73 [29]; referring to Dixon, 'Concerning Judicial Method' in Woinarski (n 15) 158.
- ⁵² *Skelton v Collins* (1966) 115 CLR 94, 134.
- ⁵³ *Ha v New South Wales* (1997) 189 CLR 465.
- ⁵⁴ cf Dixon, 'Concerning Judicial Method' (n 51) 157.
- ⁵⁵ See, eg, *Acts Interpretation Act* 1901 (Cth).
- ⁵⁶ See, eg, *Acts Interpretation Act* 1901 (Cth), s 7.
- ⁵⁷ *Chang v Laidley Shire Council* (2007) 234 CLR 1, 32–33 [111]. See also *Coleman v Shell Company of Australia* (1943) 45 SR (NSW) 27, 30–31; *Maxwell v Murphy* (1957) 96 CLR 261.
- ⁵⁸ *Maxwell* (n 57), 267.
- ⁵⁹ The difficulties in distinguishing between matters of procedure and substance need not be examined. See *ibid*; *John Pfeiffer Pty Ltd v Rogerson* (2000) 203 CLR 503, 542–44 [97]–[100].
- ⁶⁰ *R v Humby; Ex parte Rooney* (1973) 129 CLR 231, 250.
- ⁶¹ *Chu Kheng Lim v Minister for Immigration* (1992) 176 CLR 1, 36–37.
- ⁶² See, eg, *Australian Education Union v General Manager of Fair Work Australia* (2012) 246 CLR 117.
- ⁶³ *ibid*, 153 [87].
- ⁶⁴ Section 51(xxxi).
- ⁶⁵ *Australian Communist Party* (n 13).
- ⁶⁶ (1962) 108 CLR 620.
- ⁶⁷ *ibid*, 624 (Dixon CJ) (emphasis added).
- ⁶⁸ (1975) 134 CLR 338.
- ⁶⁹ *Pape v Federal Commissioner of Taxation* (2009) 238 CLR 1; *Williams v The Commonwealth* (2012) 248 CLR 156; *Williams v The Commonwealth [No 2]* (2014) 252 CLR 416.

- ⁷⁰ *Pape* (n 69), 99 [272].
- ⁷¹ *ibid*, 69 [158], see also 99 [272].
- ⁷² *ibid* (emphasis added).
- ⁷³ *Williams v The Commonwealth* (n 69).
- ⁷⁴ *Williams v The Commonwealth [No 2]* (n 69).
- ⁷⁵ *Lim* (n 61), 19.
- ⁷⁶ *ibid* (emphasis added).
- ⁷⁷ *Waterside Workers' Federation of Australia* (n 42), 444; *Lim* (n 61), 27.
- ⁷⁸ *Lim* (n 61), 28.
- ⁷⁹ *ibid* 30–32;.
- ⁸⁰ Section 51(xix).
- ⁸¹ *Plaintiff S4/2014 v Minister for Immigration and Border Protection* (2014) 253 CLR 219, 231 [26].
- ⁸² *ibid* 232 [28]–[29].
- ⁸³ *Migration Act 1958* (Cth), s 65.
- ⁸⁴ *Plaintiff S297/2013 v Minister for Immigration and Border Protection [No 2]* (2015) 255 CLR 231.
- ⁸⁵ *S157* (n 33) 513–14 [104].
- ⁸⁶ As, eg, by providing that, without prejudice to the operation it would otherwise have, an Act has effect as if confined by, or extended to, matters the subject of one or more specified heads of legislative power. Section 6 of what was the *Trade Practices Act 1974* (Cth), as it stood in 2010, is a notable, and not isolated, example of this style of drafting.
- ⁸⁷ *Victorian Stevedoring and General Contracting Co Pty Ltd and Meakes v Dignan* (1931) 46 CLR 73, 101.
- ⁸⁸ *Plaintiff M61/2010E v The Commonwealth* (2010) 243 CLR 319, 346–47 [56]; cf *S157* (n 33), 513 [102]; *The Commonwealth v Grunseit* (1943) 67 CLR 58, 82.
- ⁸⁹ *Barton v The Queen* (1980) 147 CLR 75; *Maxwell v The Queen* (1996) 84 CLR 501.
- ⁹⁰ *Cam & Sons Pty Ltd v Ramsay* (1960) 104 CLR 247, 258, 272–73; *Port of Portland v Victoria* (2010) 242 CLR 348, 359–60 [13].
- ⁹¹ Dixon, ‘Concerning Judicial Method’ (n 51) 157.
- ⁹² (2015) 257 CLR 178.
- ⁹³ *McCloy* (n 92) 195 [2].
- ⁹⁴ *Bank Mellat v Her Majesty's Treasury (No 2)* [2014] AC 700, 790 [74]; [2013] UKSC 39.

CHAPTER 8

COMMON LAW

WILLIAM GUMMOW

A. WHAT IS ‘THE COMMON LAW’?

WRITING in 1975, Sir Frank Kitto described the common law ‘in its substance one of the great achievements of the human mind’ and, as complemented by the doctrines and remedies of equity, ensuring ‘the enduring influence of English jurisprudence as a whole in the history of civilisation’.¹

Across those jurisdictions which comprise ‘the common law world’, of which Australia is a component, the term ‘common law’ is used in several senses. Essentially it identifies a body of legal doctrine and a judicial system by which the content of that doctrine is determined from time to time by the courts not by the legislature or the executive.

Further analysis of the term ‘common law’ should commence with its origin and development in England. In *PGA v The Queen*² the High Court distinguished in that development five senses of ‘the common law’. The *first* is that body of non-statutory law which was common throughout the mediaeval and Tudor realm and, unlike local, customary, or personal laws, was applicable to all persons; this characteristic was seen by Deane and Toohey JJ in *Leeth v Commonwealth*³ as supporting in the contemporary Australian legal system the inherent equality of all persons under the law and before the courts.

The *second* use of ‘the common law’ in England was in an institutional sense, to identify the body of non-statutory law applied by the three royal courts of King’s Bench, Common Pleas, and Exchequer. The *third* use differentiated that body of law and its administration by jury trial of issues

of fact from the doctrines and remedies of equity, ecclesiastical law, and admiralty law applied in other courts before the reforms of the second half of the nineteenth century.

The *fourth* and *fifth* uses of ‘the common law’ focus more upon legal method and doctrine and are significant for the judicial interpretation of the Australian Constitution. *Fourthly*, ‘the common law’ is never wholly static, being derived from decisions and rulings over time in particular disputes, rather than from authoritative texts used in civil law systems. *Fifthly*, ‘the common law’ is synonymous with ‘judge-made law’, the judges being the source of the decisions and rulings just referred to.

In this distinctive position of the English judges may be seen the origin both of the separation of the judicial power from that of the executive and the legislature, and the attribution to the judicial branch of the authority to construe first statute law and, thereafter, written and rigid constitutions, in the United States⁴ and subsequently in Australia.⁵

The latter judicial function was contrary to what in England became the ‘unadorned Diceyan precept of parliamentary sovereignty’.⁶

B. ‘COMMON LAW CONSTITUTIONALISM’?

In influential extra-judicial writings⁷ Sir Owen Dixon saw ‘the common law’ as ‘an’ (not ‘the’) ultimate foundation of the English constitutional system, in the sense that ‘the plenitude of [the] authority [of the Parliament over the law] was measured by the doctrine of the common law’,⁸ that is to say, by the judicial branch.

In *Australian Communist Party v Commonwealth*⁹ Dixon J, somewhat cryptically, referred to ‘traditional assumptions’ as to functions of government in accordance with which the Constitution was framed. It may be taken that his view of the common law was one which he identified by the general form of words.

Early in the history of the High Court, Isaacs J said that in interpreting the Constitution, the Court was to take judicial notice of ‘every fundamental constitutional doctrine existing and fully recognised at the time the Constitution was passed’.¹⁰ More recently, in *Port of Portland Pty Ltd v Victoria*¹¹ the reasons of the whole Court adopted the classification by

Dixon CJ in *Cam and Sons Pty Ltd v Ramsay*¹² of the absence of a power of executive dispensation of statute law as a ‘general constitutional principle’, transcending its origins in seventeenth century statute law in England and Scotland.

However, some caution is necessary here. It appears that in the United Kingdom there is some support for a theory of ‘common law constitutionalism’ whereby the Parliament at Westminster in its exercise of legislative power is constrained by limitations found in the common law.¹³ There may be signs that such reasoning can be transposed to restraints upon the powers conferred upon Australian legislatures, rather than as an interpretive technique in statutory construction.¹⁴ But in the path of any such endeavour stands the statement by the whole Court in *Lange v Australian Broadcasting Corporation*¹⁵ that the common law of Australia must conform with the Constitution and its development cannot run counter to the Constitution.

The caution required in unduly romanticizing ‘the common law’ is further discussed in [section of F](#) this chapter.

C. THE COMMON LAW AND SOVEREIGNTY

Common law doctrines, including the supremacy of the Parliament at Westminster, were insufficiently comprehensive to supply an adequate foundation for the Constitution. First, because the federal structure comprises distinct bodies politic, the Commonwealth and the States, the term ‘the Crown’ could not be sufficient to identify those elements.¹⁶ Secondly, the engagement of the popular will in the adoption of the Constitution was explicitly acknowledged in the text of the Imperial Act.

While the Constitution was appended by section 8 of a statute enacted by the Parliament of what was then the United Kingdom of Great Britain and Ireland, the statute recited that ‘the people’ of the Australian colonies (at that stage excluding Western Australia, for whose joinder special provision was made) ‘have agreed to unite in one indissoluble Federal Commonwealth under the Crown’ of that United Kingdom. Hence the statement by Harrison Moore that the Commonwealth of Australia, ‘being a union of the people and not of their governments is no mere confederacy’.¹⁷ Further, section 128 of the Constitution provided the mechanism for its

alteration. An essential component of this was approval by (i) a majority of 'electors' voting in a majority of States (the 'federal element') and (ii) an overall majority of all the 'electors' voting (the purely 'popular element'). Moreover, the Imperial connection has weakened. In particular, the power of the Parliament at Westminster was terminated by section 1 of the *Australia Act* (1986) (Cth) ('the *Australia Act*').

No doubt the common law in force in the Australian colonies had recognized Westminster statutes as a fundamental source of legal authority, and the expression of popular will which triggered the creation of the Commonwealth (in contrast to the genesis of the United States Constitution) was given effect within that common law system. That, as noted above in [section B](#), made it appropriate for Sir Owen Dixon to identify the common law as 'an' (not 'the') ultimate constitutional foundation.¹⁸ But at least by 1986 statute had shifted the grundnorm which had given to the common law that particular significance in the Australian constitutional structure.

Before the termination by section 1 of the *Australia Act* of the power of the Parliament at Westminster, Murphy J had said that the 'existing authority' for the Constitution was its 'continuing acceptance by the Australian people'.¹⁹ After 1986, Deane J emphasized the original adoption of the Constitution by reference and its subsequent maintenance by popular acquiescence.²⁰

In *Rowe v Electoral Commissioner*²¹ French CJ observed that while, having regard to the narrower view of the franchise which subsisted in 1901, the term 'the people' in the Constitution then was not limited to those who were qualified to vote, the subsequent adoption of universal adult citizen franchise, and its irreversibility, 'leaves little relevant room for distinguishing between "the people" and those entitled to become electors'.

Today the preferable view is that in Australia the ultimate sovereignty rests in the authority which may amend the Constitution. This is found in section 128 of the Constitution and is a composite of the Parliament which must initiate a referendum, the 'federal will' represented by the majority of electors in the majority of States, and the 'popular will', being the overall majority of all electors in States and Territories.²² Further, with respect to the 'federal will' special provision in the final paragraph of section 128 requires approval of a majority in the State concerned to amendments

affecting ‘in any manner’ the provisions of the Constitution in relation to that State.

However, to acknowledge that the part of the common law which accepted the supremacy of the Westminster Parliament in the Australian constitutional structure no longer supplies an ultimate constitutional foundation, is not to deny the interaction in important respects between the text of the Constitution and the common law of Australia. The starting point must be consideration of the arrival of the common law in the Australian colonies.

D. THE RECEPTION OF THE COMMON LAW IN AUSTRALIA

With the expansion of British Imperial power came the migration of English law to be applied by the courts established in the various colonies.²³ This process excluded so much of the English judge-made law and statute law as was judicially determined to be inapplicable to the circumstances of the Australian colonies.²⁴

Thus, in 1831 by majority the Full Court of the Supreme Court of New South Wales considered inapplicable in the colony the disqualification of attainted felons thereafter from giving testimony.²⁵ The majority had in mind that if the common law rule applied, the status of much of what was then the population of the colony would make it very difficult to secure vital testimony at many trials. On the other hand, in 1838 Burton J ruled that as an application of the common law principles of equality before the law, the murder of an Indigenous person by a white was a felony.²⁶ The tangled history of the classification of Indigenous persons as British subjects within the Queen’s peace is considered in [chapter 2](#), ‘Settlement’.

The adaption of English land law caused difficulty at several levels in the Australian colonial structures of government.

*Attorney-General (NSW) v Brown*²⁷ concerned a grant of land in New South Wales made in 1840 by the Crown to the lessor of the defendant lessee. The grant contained a reservation to the Crown of all mines of gold, silver, and coal. The issue before the Supreme Court was whether the lessee had wrongfully intruded into the possession of the Crown of that coal by digging it out and carrying it away. The defendant submitted that, without legislative authority, the Crown had no beneficial ownership or right to

grant property rights in the ‘waste (ie unalienated) lands’ of the colony, and that the land was allodial (ie susceptible of full ownership by a subject). These submissions were rejected by Stephen CJ, Dickinson and Therry JJ on the ground that the English feudal law of tenure applied in the colony to vest in the Crown the property in all waste lands, including the power to make reservations from Crown grants. By this decision, it was thereafter understood that:

[T]he feudal theory was sustained, with its concomitant doctrines of tenure and estates, against a background of gum trees and sturdy pioneers, in a land with no history of manorial castles and knights in shining armour.²⁸

Further, with the English law came the complexities of old system conveyancing, to be alleviated in the second half of the nineteenth century by the adoption of the Torrens system not of registration of a pre-existing old system title, but of ‘title by registration’.²⁹

But in addition to the ‘sturdy pioneers’ there were Indigenous inhabitants. In *Cooper v Stuart*,³⁰ in the course of deciding that the rule against perpetuities did not apply to Crown grants in New South Wales, the Privy Council classified the colony as one settled by the colonists who brought English law with them, rather than as a colony taken from ‘settled inhabitants’ with ‘settled law’. This was the prevailing legal understanding at the time the Constitution was framed.

That understanding was displaced only in 1992, by the decision in *Mabo v Queensland [No 2]*.³¹ This decided not that the common law had changed over time but that the previously prevailing understanding had been erroneous. The result, if not resolving a controversy arising in a technical sense under Chapter III of the Constitution, was a shift in the foundation of the Australian legal system.

The condition that the common law of Australia did recognize ‘native title’ required reconsideration of the link between the assertion of sovereignty and the feudal doctrines of tenures and estates. The present understanding is explained with reference to ‘radical title’ by French CJ in *Cadia Holdings Pty Ltd v New South Wales*:

Prior to [*Mabo [No 2]*] there was ‘formidable support’ for the proposition that, in a British colony acquired by settlement, the beneficial ownership of the land of the colony vested in the Crown at the time of acquisition. In *Mabo [No 2]*, Brennan J, with whom Mason CJ and McHugh J agreed, referred to the distinction drawn by Sir Kenneth Roberts-Wray, Sir John Salmond and Professor O’Connell between acquisition of a ‘country’ by the acquisition of sovereignty over it and acquisition of property rights in relation to the land itself. In relation to colonies already inhabited, the acquisition of sovereignty by settlement gave rise to a radical title, ‘a postulate of the doctrine of tenure and a concomitant of sovereignty’. In explaining the concept of radical title, Brennan J said:

As a sovereign enjoys supreme legal authority in and over a territory, the sovereign has power to prescribe what parcels of land and what interests in those parcels should be enjoyed by others and what parcels of land should be kept as the sovereign's beneficial demesne.³²

The common law was received at different dates in the various Australian colonies by Imperial statutes and instruments and their boundaries were re-arranged from time to time.³³ However, the common law was not thereby fractured so as to constitute six distinct bodies of law.³⁴ This cohesion later was to mark off the Australian federal structure from that of the United States. In a celebrated passage in *Black and White Taxicab and Transfer Co v Brown and Yellow Taxicab Transfer Co*³⁵ Holmes J denied that the common law was ‘a transcendental body of law outside of any particular State’. Although his view then was in dissent, Holmes was to prevail in 1938 by the adoption of his remarks by Brandeis J when delivering the opinion of the Court in *Erie Railroad Co v Tompkins*.³⁶

Shortly thereafter, in an address to members of the American Bar Association delivered while Minister to Washington, Sir Owen Dixon contrasted the position in Australia. There, the legal system was ‘regarded as a unit’, with the High Court (unlike the United States Supreme Court) ‘as a general appellate tribunal’ to administer the common law as an entire system.³⁷

However, what Dixon did not emphasize to his American audience was that at the time of his speech the final authority expounding the common law for the British Commonwealth and Empire was the Judicial Committee of the Privy Council, which, moreover, took appeals in common law matters not only from the High Court but directly from State Supreme Courts. Justice Hayne has observed that for most of Dixon’s life in the law, Australian lawyers, perhaps without thought, would have assumed ‘that there was a single Imperial common law’.³⁸ Indeed, in the very year, 1943, in which he spoke in the United States, Dixon’s colleagues in the High Court held that, while not technically bound by the House of Lords, in a

case involving only principles of English law which were part of the law in Australia the High Court regarded that law as finally declared by the House of Lords.³⁹

But twenty years later, Dixon CJ led the High Court to disavow the binding authority of the House of Lords ‘at the expense of our own opinions and cases decided here’.⁴⁰ Then, in 1967, the Privy Council⁴¹ accepted (in a case respecting awards of exemplary damages in tort) that the common law in Australia might differ from that declared by the House of Lords. Finally, with the coming into force in 1986 of the *Australian Acts* all appeals to the Judicial Committee were terminated.

E. THE COMMON LAW OF AUSTRALIA

The end result of this process over just forty years appears from the statements by McHugh J, in 1996, ‘that there is a common law of Australia as opposed to a common law of individual States is clear’, and ‘the High Court of Australia has the constitutional duty of supervising the nation’s legal system and, subject to any relevant statutory or constitutional limitations, of maintaining a unified system of common law’.⁴² It also should be noted that as amended in 1988,⁴³ section 80 of the *Judiciary Act 1903* (Cth) directs the application in federal jurisdiction of the ‘common law in Australia’.

By the end of the twentieth century the proposition that there is but a single common law of Australia had been accepted as fundamental. This is apparent from the reasons of the whole Court in *Lange v Australian Broadcasting Corporation*⁴⁴ and the reasons in *Lipohar v The Queen*⁴⁵ of Gaudron, Gummow and Hayne JJ and of Kirby J.

The common law of Australia includes the choice of law rules. The common law choice of law rules (unless themselves varied or excluded in the forum by statute) select which of the competing State or Territory laws is the *lex causae*;⁴⁶ the common law choice of law rules apply either directly in the court of the forum, or where federal jurisdiction is exercised, as ‘picked up’ by operation of section 80 of the *Judiciary Act 1903* (Cth).⁴⁷

A further significant aspect of the development of the common law of Australia is its illustration of the temporal character of the common law.

This calls for further consideration.

F. THE TEMPORAL ASPECT OF THE COMMON LAW

A starting point is the capacity of the common law for modification of precedent from one age to the next.⁴⁸ The point was developed by Sir John Salmond, writing in 1900, as follows:

the tooth of time will eat away an ancient precedent, and gradually deprive it of all authority and validity. The law becomes animated by a different spirit and assumes a different course, and the older decisions become obsolete and inoperative.⁴⁹

A related but distinct point is made in astringent terms by Lord Sumption in *Jetivia SA v Bilta (UK) Limited (in liquidation)*.⁵⁰ It is that as judges examine each case in its own factual and legal context the leading cases from past times ‘become encrusted with an incoherent mass of inconsistent authority’ and there is ‘an unfortunate tendency of the common law to fragmentation’.

Both these statements have some force for the application of the common law case method in the interpretation of the Constitution. The course of decision before *Cole v Whitfield*,⁵¹ memorably analysed in Professor Zines’s work,⁵² in which the High Court wrestled with section 92 of the Constitution provides a striking example.

The temporal aspect of the common law may also be observed in the invocation of ‘deeply rooted’ common law ‘rights’. The joint reasons in *Union Steamship Co of Australia Pty Ltd v King*⁵³ raised but left open the question whether the exercise of State legislative power ‘is subject to some constraints by reference to rights deeply rooted in our democratic system of government and the common law’.

Such invocations of the common law present what may be a misleading category of indeterminate reference across the time scale of the common law.

First, it would be unwise to translate into constitutional discourse undue romanticism about the common law; over a long period much legislative activity, initially in England and then in Australia, has been directed to the variation or abrogation of distasteful aspects of common law doctrine. Secondly, invocation of ‘community values’ may not assist here; what at

any one time is shared by many persons may be an irrational prejudice. Thirdly, as Professor Zines pointed out in 1994,⁵⁴ the limitation of legislative and governmental power by reference to the common law resembles notions of ‘higher law’ or ‘natural law’, which depend very much on personal values.

In any event, as Finn J emphasized in *Buck v Comcare*,⁵⁵ the present is an age of statutes and ‘it is statute which, more often than not, provides the rights necessary to secure the basic amenities of life in modern society’. What may be spoken of as significant common law ‘rights’ are the product of seventeenth century statute law representing the outcome of struggles between the House of Commons and the executive.⁵⁶ For example, as Windeyer J pointed out in *Spratt v Hermes*,⁵⁷ there was no common law rule that the judges of the then royal courts at Westminster held their offices during good behaviour rather than at pleasure; this required the Act of Settlement 1700,⁵⁸ which, however, did not apply in inferior courts or in the colonies.

Finally, the High Court has emphasized that many aspects of criminal procedure, now encompassed by the phrase ‘right to a fair trial’ and seen as based in ‘the common law’, are the product of extensive statutory reforms made in England in the nineteenth century.⁵⁹ For example, counsel was not allowed on charges of felony until as late as the *Trials for Felony Act 1836* (UK),⁶⁰ the accused only became the competent witness as a result of statutes commencing in 1872 and culminating in the *Criminal Evidence Act 1898* (UK),⁶¹ and it was not until 1935⁶² that ‘what now are axiomatic principles about the burden and standard of proof were fully established’.⁶³

G. LEGISLATIVE ADOPTION OF THE COMMON LAW

The fluidity in common law method and its temporal dimension may present difficulty for federal legislative provisions which in their terms adopt ‘the common law’.

A familiar example of this legislative technique is the adoption by section 80 of the *Judiciary Act 1903* (Cth) of ‘the common law in Australia’ for the exercise of federal jurisdiction.⁶⁴ The temporal difficulty this may involve has been avoided by reading ‘the common law’ as referring to the condition

of the common law as it stands at the time it is ‘picked up’ by section 80 for application in resolving the particular controversy in issue.

However, the Parliament attempted to go further in enacting section 12 of the *Native Title Act 1993* (Cth) (‘the *NTA*’). The section provided that, subject to that statute and after 30 June 1993, ‘the common law of Australia in respect of native title ... has the force of a law of the Commonwealth’. This would attract the operation of section 109 of the Constitution to overcome State laws which were inconsistent with that common law. However, in the *Native Title Act Case*,⁶⁵ section 12 was held to be invalid. This conclusion was reached upon alternative grounds. First, if ‘the common law of Australia in respect of native title’ was understood to identify that body of law created and defined by the courts, then the content of section 12 would be supplied by the courts, in effect conferring legislative power upon the judicial branch. Secondly, if ‘the common law’ identified that body of law which the courts might subsequently to 30 June 1993 declare to be different, then these changes made by judicial decisions would have the effect of statute law which had been amended without a law made by the Parliament.

Subsection 223(1) of the *NTA* in paragraphs (a) and (b) spells out certain rights and interests, then in paragraph (c) requires that those rights and interests ‘are recognised by the common law of Australia’. There has been no difficulty with the validity of para (c). In *Western Australia v Ward* Gleeson CJ, Gaudron, Gummow and Hayne JJ said:

Paragraphs (a) and (b) of s 223(1) indicate that it is from the *traditional* laws and customs that native title rights and interests derive, not the common law. The common law is not the source of the relevant rights and interests; the role accorded to the common law by the statutory definition is that stated in par (c) of s 223(1). This is the ‘recognition’ of rights and interests.⁶⁶

More recently, with respect to the use of the term ‘charitable institution’ in the GST legislation, the High Court contrasted the giving to the common law ‘the force of the law of the Commonwealth’ in section 12 of the *NTA*, and said:

A law of the Commonwealth may exclude or confirm the operation of the common law of Australia upon a subject, or, as in the present case, employ as an integer for its operation a term with a content given by the common law as established from time to time.⁶⁷

H. THE CROWN AND THE EXECUTIVE POWER

What might be called the common law of the British constitution never developed a legal conception of the state as a juristic person distinct from the monarch of the United Kingdom. The term 'the Crown' was pressed into service as an abstraction sufficient for the purpose. Further, the Crown was said to be 'indivisible' throughout the various political units of the British Empire; a proposition which, stated as a legal principle, as Latham CJ later put it, 'tends to dissolve into verbally impressive mysticism'.⁶⁸

Blackstone described the prerogative as part of the common law of England, but, given the preferences, immunities, and exceptions thereby enjoyed by the executive government but denied to citizens, as being out of the ordinary course of the common law.⁶⁹ Those doctrines concerning 'the royal prerogative' have been a source of some difficulty in their adaption to the structure of Australian government.

In *Cadia Holdings Pty Ltd v New South Wales* French CJ explained:

No distribution of prerogative powers and rights between the Commonwealth and the States is spelt out in the Constitution. Indeed the word 'distribution' may mislead. Prerogative powers and rights enjoyed by the Crown in the colonies before Federation may be seen as informing, or forming part of, the content of the executive powers of the Commonwealth and the States according to their proper functions.⁷⁰

His Honour added:

In some cases, the location of particular prerogative powers and rights in, or as an incident of, the executive power of the Commonwealth or of the States is straightforward. As Professor Zines has observed, there is no difficulty in determining the repository of the prerogative power relating to a subject matter within the exclusive legislative competence of the Commonwealth or a State:

'Clearly only the Commonwealth can declare war, or enter into treaties. Similarly where a prerogative power, or a particular exercise of it, is concerned with a subject that is not within Commonwealth legislative power, it is exercisable only by the Governor of a State, such as the incorporation by royal charter of a school or the dissolution of State Parliament'.

A prerogative power or right concerned with a subject within the area of concurrent legislative power of the Commonwealth and the States may become an element of concurrent power or rights in both polities. This was the case with the Crown's priority in respect of debts, held in *Federal Commissioner of Taxation v Official Liquidator of E O Farley Ltd* to be enjoyed concurrently by the Commonwealth and the States.⁷¹

These prerogatives were described by French CJ as informing or forming part of the executive power. With respect to the Commonwealth, the better view is that the source of its executive power is found not in any anterior

common law but in the text of section 61 of the Constitution; thereby there is 'carried into the executive authority of the Commonwealth'⁷² those prerogative powers accorded to the Crown by the common law which are appropriate to the Commonwealth rather than the States.⁷³

I. THE COMMON LAW OF INTERPRETATION AND THE CONSTITUTION

The common law includes the principles developed by the courts for the interpretation of written instruments. To these principles, as applied by the High Court to the Constitution, attention is next given.

The application of statute law by the English common law courts in time produced the legislative guidance of the *Interpretation Act 1850* (UK)⁷⁴ and the *Interpretation Act 1889* (UK), and the Australian colonial legislatures followed suit. These statutes were designed primarily to shorten the text of statutes by means of definitions of terms frequently used, subject however, to any contrary intention.⁷⁵

At a higher level, the courts developed 'rules' of statutory construction and interpretation. These began, perhaps, with the 'mischief rule' associated with *Heydon's Case*⁷⁶ which was decided in 1584. However, by the latter part of the nineteenth century the prevailing current of legal positivism favoured 'the Golden Rule' which required that in statutes and all written instruments the 'ordinary sense' of words be adhered to, absent some absurdity or repugnancy or inconsistency with the rest of the instrument.⁷⁷ Was this 'rule' to be applied to the reading of the Constitution, although this was an instrument of a particular kind, establishing and maintaining for the present and future a federal system of government?

The answer given by the majority in the *Engineers' Case*⁷⁸ was in the affirmative. There was nothing in the text of section 51(xxxv), dealing with prevention and settlement of industrial disputes extending beyond the limits of one State, and no express condition or restriction upon those words found elsewhere in the text of the Constitution to warrant an 'implied prohibition' saving a dispute between a union of employees and a State as employer from the reach of section 51(xxxv).

Several points concerning the legacy of the *Engineers' Case* should be made. First, the 'Golden Rule' of the common law no longer applies as a

general guide to statutory interpretation. Rather, in Australia at least since *CIC Insurance Ltd v Bankstown Football Club*⁷⁹ there is no requirement to identify ambiguity before regard may be had to the ‘context’, which includes such things as the existing state of the law and what appears as the mischief the statute was designed to remedy. Secondly, while the doctrine of ‘implied prohibitions’ as a constitutional doctrine has never been revived, later consideration of the federal structure and its implications supported the *Melbourne Corporation*⁸⁰ doctrine, and in recent years further implications have been discerned from ‘the text and structure’ of the Constitution in such decisions as *Lange v Australian Broadcasting Corporation*,⁸¹ *Kable v DPP (NSW)*,⁸² *Kirk v Industrial Court (NSW)*,⁸³ *Roach v Electoral Commissioner*,⁸⁴ and *Rowe v Electoral Commissioner*.⁸⁵ These authorities bear out the statement made by Dixon J in 1945, that ‘in dealing with an instrument of government’ the Court (contrary to the Golden Rule) should not ‘be fearful about making implications’.⁸⁶

J. COMMON LAW TERMS IN THE TEXT OF THE CONSTITUTION

In *Singh v Commonwealth*⁸⁷ Gleeson CJ emphasized that the Constitution contains many terms that have a legal meaning and ‘are naturally understood and applied by courts with reference to the legal meaning’, and also that there are many examples of reliance by the High Court upon ‘the historical context in which the Constitution was written as an aid to its interpretation’. Further, as was emphasized in the *Work Choices Case*,⁸⁸ the general approach to the construction of terms used in the heads of legislative power in section 51 is to read them ‘with all the generality which the words used admit’.

Turning to section 51, (xiii) speaks of ‘Banking’, (xviii) of ‘Copyrights, patents of inventions and trademarks’, (xix) of ‘aliens’, (xx) of three species of ‘corporations’, (xxi) of ‘Marriage’, and (xxxi) of ‘the acquisition of property’. And section 80 speaks of ‘trial by jury’.

The question then arises whether those terms had a settled meaning in 1901, and, even if so, whether the Constitution adopts that meaning. In general, the answers given in the course of decisions by the High Court tend against adoption of settled common law meanings.

In *Singh v Commonwealth* Gummow, Hayne and Heydon JJ stated:

[T]o identify the meaning conveyed, at the time of federation, by the words used in the Constitution is more than a matter of historical interest. It is an essential step in the task of construction. That is not to say, however, that seeking an understanding of the meaning of a constitutional expression like ‘aliens’, when used at the time of federation, permits or requires searching for the subjective intention of the framers. It does not. Metaphorical references to ‘the founders’ intention’ are as apt to mislead in the constitutional context as are references to the intentions of the legislature when construing a statute or references to the intentions of the parties to a contract when considering its construction. Rather, the question is one of construing the relevant constitutional provisions. That task of construction cannot be undertaken without knowing what particular constitutional expressions meant, and how words were used, at the time of federation. But the task does not end with the results of that inquiry. Always, the Constitution is to be construed bearing steadily in mind that it is an instrument of government intended to endure.

Numerous cases decided by this Court reveal that constitutional expressions may have a different operation 50 or 100 years after federation from the operation they would have had in 1901. *Sue v Hill*, and its consideration of whether Great Britain is now to be regarded as a foreign power, and *Grain Pool of Western Australia v Commonwealth*, with its discussion of whether legislation concerning the grant of plant variety rights was a law with respect to copyrights, patents of invention and designs and trademarks, are but two recent examples.⁸⁹

A striking example of some but not all of the content of a common law term appearing in the Constitution being held by the High Court to inform its construction is provided by *Cheatle v The Queen*.⁹⁰ Section 80 requires that ‘the trial on indictment of any offence against any law of the Commonwealth shall be by jury’. It was held that ‘unanimity’ was an essential feature of trial by jury as understood at federation and remained so but that what was then the exclusion of women and persons without property qualifications were not essential features.

The point is made in *Zines’s The High Court And The Constitution*:

Sometimes the Court recognises that a particular term did not have a fixed and stable meaning in 1900,⁹¹ but was a concept the nature of which was then changing or evolving. Because of that, there might have been at that time a dispute about its proper meaning. Growth and development might be regarded, therefore, as a feature of the concept.⁹²

An example is what in *Grain Pool of Western Australia v Commonwealth*⁹³ was identified the ‘dynamism’ which even in 1900 was essential to any understanding of the species of intellectual property identified in section 51(xviii), in particular to an understanding of what future subject matter might be a patentable invention.

It may be that the term ‘property’, as the subject of acquisition on just terms under section 51(xxix) also falls in the same category. The judgments in *Yanner v Eaton*⁹⁴ indicate the width of the ‘term’ property in various

common law contexts. Further, the courts of equity throughout the nineteenth century developed their remedies, particularly the remedy of injunction, to protect interests which were ‘definable, identifiable by third parties, and [had] some degree of permanence or stability’, and so ‘admitted into the category of property’, and the courts have since continued to do so.⁹⁵ Hence the protection as ‘property’ of goodwill,⁹⁶ trade secrets, and confidential information.⁹⁷ It must be a moot point whether the oft repeated statement by Dixon J in *Bank of New South Wales v Commonwealth*⁹⁸ that section 51(xxxi) extended beyond ‘some specified estate or interest ... recognised at law or in equity’ and to ‘innominate and anomalous interests’, went further than the general law and, if so, how far.

One instance where the Constitution employed a common law term but when beyond its meaning in 1900 is supplied by ‘corporations’ in section 51(xx). As Gageler J has explained in *Communications Union v Queensland Rail*,⁹⁹ while at common law the only artificial persons are corporations, corporations are either aggregate or sole, and corporations are the only artificial persons known to the common law who can sue or be sued, nineteenth century statutes, both in the United Kingdom and the Australian colonies had created entities with capacity through designated office bearers to contract, hold property, and to sue and be sued, but had done so expressly without incorporating them. Hence his Honour’s conclusion:

The term ‘corporation’ is and was in 1900, readily capable of encompassing all artificial legal persons; that is to say, all entities, not being merely natural persons, invested by law with capacity for legal relations.¹⁰⁰

If the legislature does invest its entity with that capacity then it does not divest it of its constitutional character of a corporation by a statement that what has been created is not a body corporate; this was the critical point in *Communications Union v Queensland Rail*.¹⁰¹

Section 51 also uses terms which in 1900 had a common law meaning which differed from that in legal systems. One such is ‘aliens’ (s 51(xix)), another is ‘marriage’ (s 51(xxi)).

In their commentary on the terms ‘aliens’ when used in section 51(xix), Quick and Garran noted:

The rule of the common law is that every person born out of the British Dominions is an alien, and that every person born within British Dominions is a British subject. This is known as the *jus soli* or the territorial test of nationality, which is contrasted with the *jus sanguinis* or parentage test of nationality.¹⁰²

By the turn of the twentieth century the leading principle in Europe was the *jus sanguinis*, whereby the nationality of a child followed that of the parents.¹⁰³ In *Singh v Commonwealth*¹⁰⁴ the High Court upheld the validity of section 20(2) of the *Australian Citizenship Act 1948* (Cth). This provided that persons born in Australia were Australian citizens by virtue of that birth only if, in addition, a parent were an Australian citizen, permanent resident, or had been ordinarily resident throughout a ten-year period. Thus the common law did not control the scope of the aliens power.

So too with the marriage power. The common law regarded ‘marriage’ as the voluntary union for life of one man and one woman, to the exclusion of all others.¹⁰⁵ This excluded, for example, polygamous unions and certainly would exclude same sex marriage. However, in *Commonwealth v Australian Capital Territory*, the High Court in joint reasons, after referring to the ‘long and tangled’ development of canon law, common law, and statute, held:

Because the status, the rights and obligations which attach to the status and the social institution reflected in the status are not, and never have been, immutable, there is no warrant for reading the legislative power given by s 51(xxi) as tied to the state of the law with respect to marriage at federation.¹⁰⁶

Their Honours concluded:

Once it is accepted that ‘marriage’ can include polygamous marriages, it becomes evident that the juristic concept of ‘marriage’ cannot be confined to a union having the characteristics described in *Hyde v Hyde* and other nineteenth century cases. Rather, ‘marriage’ is to be understood in s 51(xxi) of the Constitution as referring to a consensual union formed between natural persons in accordance with legally prescribed requirements which is not only a union the law recognises as intended to endure and be terminable only in accordance with law but also a union to which the law accords a status affecting and defining mutual rights and obligations.¹⁰⁷

K. CONCLUSION

The fundamental importance of what has become the common law of Australia for Australian constitutional law lies in its character as an antecedent body of principle and legal method by which the judges develop

both ‘unwritten law’ but also give authoritative interpretations of statute law. Against that background, and perhaps even without either the special position given to the judicial power of the Commonwealth by Chapter III of the Constitution, or the experience before 1900 of the United States Supreme Court in dealing with the Constitution of that country, it was to be expected that the High Court would evolve its interpretation of the Constitution by methods resembling those giving the common law its temporal dimension. That adaptation of common law method is none the less apparent where the High Court has not tied its interpretation of common law terms appearing in the text of the Constitution to a meaning, static or in flux, given by pre-federation judicial decisions.

¹ Sir Frank Kitto, ‘Foreword’ in Roderick Meagher, William Gummow and John Lehane, *Equity Doctrines and Remedies* (1st edn, Butterworths 1975) vii. Sir Frank Kitto served as a Justice of the High Court of Australia 1950–70.

² (2012) 245 CLR 355, 370–71 [19]–[25].

³ (1992) 174 CLR 455, 485.

⁴ Notably in *Marbury v Madison* 5 US 137, 177 (1803).

⁵ *A-G (WA) v Marquet* (2003) 217 CLR 545, 570 [66] (Gleeson CJ, Gummow, Hayne and Heydon JJ).

⁶ *ibid.*

⁷ Sir Owen Dixon, ‘The Law and the Constitution’ (1935) 51 *Law Quarterly Review* 590; Sir Owen Dixon, ‘Sources of Legal Authority’ (1943) 17 *Australian Law Journal* 138; Sir Owen Dixon, ‘The Common Law as an Ultimate Constitutional Foundation’ (1957) 31 *Australian Law Journal* 240. See also *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520, 562–66.

⁸ Dixon, ‘The Common Law as an Ultimate Constitutional Foundation’ (n 7) 243.

⁹ (1951) 83 CLR 1, 193.

¹⁰ *Commonwealth v Kreglinger and Fernau Ltd* (1926) 37 CLR 393, 411–12.

¹¹ (2010) 242 CLR 348, 359–60 [13].

¹² (1960) 104 CLR 247, 258.

¹³ Trevor Allan, *The Sovereignty of Law: Freedom, Constitution and Common Law* (OUP 2013), citing Jeffery Goldsworthy, ‘The Constitution and its Common Law Background’ (2014) 25 *Public Law Review* 265, 266–68.

¹⁴ *North Australian Aboriginal Justice Agency Ltd v Northern Territory of Australia* (2016) 90 ALJR 38, 46–47 [11] (French CJ, Kiefel and Bell JJ). cf at 61 [81] (Gageler J).

¹⁵ *Lange* (n 7) 566.

¹⁶ *Bank of New South Wales v Commonwealth* (1948) 76 CLR 1, 363 (Dixon J).

¹⁷ Harrison Moore, *The Constitution of the Commonwealth of Australia* (2nd edn, Sweet & Maxwell 1910) 67.

¹⁸ Dixon, ‘The Common Law as an Ultimate Constitutional Foundation’ (n 7). See also K M Hayne, ‘Sir Owen Dixon’ in Justin T Gleeson and others (eds), *Historical Foundations of Australian*

Law, vol 1 (Federation Press 2013) 394–95.

¹⁹ *Bistrivic v Rokov* (1976) 135 CLR 552, 566–67.

²⁰ *Theophanous v Herald & Weekly Times Ltd* (1994) 182 CLR 104, 171. For criticism of this view, see Anne Twomey, *The Australia Acts 1986: Australia's Statutes of Independence* (Federation Press 2010) 423–32.

²¹ (2010) 243 CLR 1, 19 [21]–[22].

²² *McGinty v Western Australia* (1996) 186 CLR 140, 237 (McHugh J), 274–75 (Gummow J).

²³ The subject is comprehensively treated in Bruce McPherson, *The Reception of English Law Abroad* (Supreme Court of Queensland Library 2007). See also John McLaren, 'Chasing the Chimera: the Rule of Law in the British Empire and the Comparative Turn in Legal History' (2015) 33 *Law in Context* 21.

²⁴ *Delohery v Permanent Trustee Co of NSW* (1904) 1 CLR 283.

²⁵ *R v Farrell* (1831) 1 Legge 5, 17–20 (Stephen and Dowling JJ; Forbes CJ dissenting). See also Charles H Currey, *Sir Francis Forbes* (Angus and Robertson 1968) 462–64.

²⁶ *R v Kilmeister* (No 2) [1838] NSWSC 100.

²⁷ (1847) 1 Legge 312.

²⁸ Basil Helmore, *The Law of Real Property in New South Wales* (Law Book Co 1961) 15.

²⁹ *Breskvar v Wall* (1971) 126 CLR 376, 381 (Barwick CJ).

³⁰ (1889) 14 App Cas 286, 291.

³¹ (1992) 175 CLR 1.

³² (2010) 242 CLR 195, 209 [28] (citations omitted).

³³ Malcolm McLelland, 'Colonial and State Boundaries in Australia' (1971) 45 *Australian Law Journal* 671.

³⁴ *PGA v The Queen* (n 2) 371 [25].

³⁵ 276 US 518, 533–34 (1928).

³⁶ 304 US 64, 79 (1938).

³⁷ Dixon, 'Sources of Legal Authority' (n 7) 140.

³⁸ Hayne (n 18) 398.

³⁹ *Piro v W Foster & Co Ltd* (1943) 68 CLR 313, 320, 325, 326–27, 335–36, 340–41.

⁴⁰ *Parker v The Queen* (1963) 111 CLR 610, 632.

⁴¹ *Australian Consolidated Press v Uren* (1967) 117 CLR 221.

⁴² *Kable v Director of Public Prosecutions (NSW)* (1996) 189 CLR 51, 113–14. Earlier statements to like effect had been made in *Mabo [No 2]* (n 31) 15; *Environment Protection Authority v Caltex Refining Co Pty Ltd* (1993) 178 CLR 477, 556.

⁴³ *Law and Justice Amendment Act 1988* (Cth), s 41, replacing 'common law of England'. See also *Adams v Eta Foods Ltd* (1987) 19 FCR 93, 95.

⁴⁴ *Lange* (n 7) 565.

⁴⁵ (1999) 200 CLR 485, 505–06 [43]–[45], 552 [167].

⁴⁶ *John Pfeiffer Pty Ltd v Rogerson* (2000) 203 CLR 503, 517–19 [13]–[18].

⁴⁷ *Blunden v Commonwealth* (2003) 218 CLR 330, 339 [18]. In *Pfeiffer* the *lex loci delecti* was New South Wales statute law and the *lex fori* was the common law. At [63] it is emphasized that in its terms the 'full faith and credit' requirement of s 118 of the Constitution does not state any rule as to the choice to be made if there is 'some relevant intersection between legislation enacted by different States'. Hence, the Court focused upon the adaptation of the common law choice of law rules to the

Australian federal system. cf Stephen Gageler, 'Private Intra-national Law: Choice or Conflict, Common Law or Constitution' (2003) 23 Australian Bar Review 184.

⁴⁸ *Thompson v Australian Capital Television Pty Ltd* (1996) 186 CLR 574, 584–85, 591, 614–15; *PGA v The Queen* (n 2) 371 [23]–[24].

⁴⁹ Sir John Salmond, 'The Theory of Judicial Precedents' (1900) 16 Law Quarterly Review 376, 383.

⁵⁰ [2015] UKSC 23 [60]–[61].

⁵¹ (1988) 165 CLR 360.

⁵² See James Stellios, *Zines's The High Court and the Constitution* (6th edn, Federation Press 2015)chs 6, 7, 8.

⁵³ (1988) 155 CLR 1, 10.

⁵⁴ Leslie Zines, 'A Judicially Created Bill of Rights' (1994) 16 Sydney Law Review 166, 183.

⁵⁵ (1996) 66 FCR 359, 364–65.

⁵⁶ Including *Habeas Corpus Act 1679* (31 Ch 2 c 2); Bill of Rights 1688 (1 Wm & Mary Sess 2 c 2).

⁵⁷ (1965) 114 CLR 226, 271. See also *North Australian Aboriginal Legal Aid Service v Bradley* (2004) 218 CLR 146, 165 [36].

⁵⁸ *Act of Settlement 1700* (12 & 13 Will 3 c 2).

⁵⁹ *Nicholas v The Queen* (1998) 193 CLR 173, 232 [143]; *X7 v Australian Crime Commission* (2013) 248 CLR 92, 135 [100].

⁶⁰ *Felony Act 1836* (6 & 7 Will 4 c 114), s 1. See William Cornish and others, *The Oxford History of the Laws of England*, vol xiii (OUP 2010) 71–80.

⁶¹ *Maxwell v Director of Public Prosecutions* [1935] AC 309, 316–17.

⁶² *Woolmington v Director of Public Prosecutions* [1935] AC 462, 481.

⁶³ *X7* (n 59) 135 [100] (Hayne and Bell JJ).

⁶⁴ James Stellios, *The Federal Judicature: Chapter III of the Constitution Commentary and Cases* (LexisNexis 2010)paras 9.31–9.32.

⁶⁵ *Western Australia v Commonwealth* ('Native Title Case') (1995) 183 CLR 373, 484–88.

⁶⁶ (2002) 213 CLR 1, 66–67 [20].

⁶⁷ *Aid/Watch Inc v Federal Commissioner of Taxation* (2010) 241 CLR 539, 548–49 [20] (French CJ, Gummow, Hayne, Crennan and Bell JJ).

⁶⁸ *Minister for Works (WA) v Gulson* (1944) 69 CLR 338, 350.

⁶⁹ See *Cadia Holdings Pty Ltd* (n 32) 223 [75] (Gummow, Hayne, Heydon and Crennan JJ).

⁷⁰ *ibid* 210 [30]. With respect to s 61 of the *Commonwealth Constitution*, see *Pape v Federal Commissioner of Taxation* (2009) 238 CLR 1, 60–64 [126]–[133] (French CJ), 83–92 [214]–[245] (Gummow, Crennan and Bell JJ).

⁷¹ *Cadia Holdings Pty Ltd* (n 32) 210 [31] (citations omitted).

⁷² The phrase used by Dixon J in *Federal Commissioner of Taxation v Official Liquidator of E O Farley Ltd* (1940) 63 CLR 278, 304.

⁷³ See *Pape* (n 70) 60–64 [126]–[133] (French CJ), 83–92 [214]–[245] (Gummow, Crennan and Bell JJ); *Cadia Holdings Pty Ltd* (n 32) 226 [86] (Gummow, Hayne, Heydon and Crennan JJ); *Williams v Commonwealth* (2013) 248 CLR 156, 185 [24] (French CJ), 227–28 [123] (Gummow and Bell JJ).

⁷⁴ *Interpretation Act 1850* (12 & 14 Vict c 21).

- ⁷⁵ Perry Herzfeld, Thomas Prince, and Stephen Tully, *Interpretation and Use of Legal Sources—the Laws of Australia* (Thomson Reuters 2013) paras 25.1.1100–25.1.1380.
- ⁷⁶ (1584) 3 Co Rep 7a, 76 ER 637.
- ⁷⁷ *Grey v Pearson* (1857) 6 HL Cas 61, 106; 10 ER 1216, 1234 (Lord Wensleydale).
- ⁷⁸ *The Amalgamated Society of Engineers v The Adelaide Steamship Company Ltd* ('Engineers' Case') (1920) 28 CLR 129, 148–50.
- ⁷⁹ (1997) 187 CLR 384, 408 (Brennan CJ, Dawson, Toohey and Gummow JJ).
- ⁸⁰ *City of Melbourne v Commonwealth* (1947) 74 CLR 31.
- ⁸¹ *Lange* (n 7) 565.
- ⁸² *Kable* (n 42).
- ⁸³ (2010) 239 CLR 531.
- ⁸⁴ (2007) 233 CLR 162.
- ⁸⁵ *Rowe* (n 21).
- ⁸⁶ *Australian National Airways Pty Ltd v Commonwealth* (1945) 71 CLR 29, 85.
- ⁸⁷ (2004) 222 CLR 322, 331–32 [10], 333–34 [14].
- ⁸⁸ *New South Wales v Commonwealth* ('Work Choices Case') (2006) 229 CLR 1, 103–04 [142] (Gleeson CJ, Gummow, Hayne, Heydon and Crennan JJ).
- ⁸⁹ *Singh* (n 87) 385 [159]–[160] (citations omitted).
- ⁹⁰ (1993) 177 CLR 1.
- ⁹¹ In the case of an amendment to the Constitution, the date is that on which the amendment came into effect: *Wong v Commonwealth* (2009) 236 CLR 573, 591 [52], 627 [192].
- ⁹² *Stellios, Zines's The High Court and the Constitution* (n 52) 20.
- ⁹³ (2000) 202 CLR 479, 496.
- ⁹⁴ (1999) 201 CLR 351, 365–67 [17]–[20] (Gleeson CJ, Gaudron, Kirby, Hayne JJ), 388–89 [85]–[86] (Gummow J).
- ⁹⁵ *National Provincial Bank Ltd v Ainsworth* [1965] AC 1175, 1247–48 (Lord Wilberforce), adopted by Mason J in *Re Toohey; Ex parte Meneling Station Pty Ltd* (1982) 158 CLR 327, 342.
- ⁹⁶ *Federal Commissioner of Taxation v Murry* (1998) 193 CLR 605.
- ⁹⁷ cf *Moorgate Tobacco Co Ltd v Philip Morris Ltd [No 2]* (1984) 156 CLR 414, 437–38 (Deane J).
- ⁹⁸ *Bank of New South Wales* (n 16) 349.
- ⁹⁹ (2015) 89 ALJR 434, 445–49 [52]–[67].
- ¹⁰⁰ *ibid* 448 [65].
- ¹⁰¹ *ibid* 448 [62], 448–49 [67].
- ¹⁰² John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (Angus and Robertson 1901) 599.
- ¹⁰³ *Singh* (n 87) 391–92 [178]–[179].
- ¹⁰⁴ *Singh* (n 87).
- ¹⁰⁵ *Hyde v Hyde* (1866) 1 P&D 130, 133.
- ¹⁰⁶ (2013) 250 CLR 441, 457–58 [18]–[19].
- ¹⁰⁷ *ibid* 461 [33] (citations omitted).

CHAPTER 9

UNWRITTEN RULES

GABRIELLE APPLEBY*

A. INTRODUCTION

AUSTRALIA'S constitutional system is often contrasted with that of the United Kingdom because, despite its strong colonial connections and large Westminster inheritance, it adopted a federal system, and, largely necessitated by that adoption, a written, entrenched constitutional document. In drafting this document, Australia looked to the United States Constitution. At federation Australia undoubtedly took significant steps towards codification of its constitutional rules and away from the 'unwrittenness' of the English constitutional system. But even in the United States it is accepted that the Constitution has a substantive 'unwritten' element outside of the constitutional text. To develop a comprehensive understanding of the Australian constitutional system through which government power is arranged, defined, and limited undoubtedly requires an investigation into sources outside of the codified constitutional text.

Unwritten constitutional rules are most usually associated with the constitutional conventions that govern the exercise of executive power, which is cursorily, nebulously, and at times somewhat misleadingly defined and vested in Chapter II of the Constitution. Reflecting Australia's strong colonial roots in the British parliamentary system, constitutional conventions—particularly surrounding the institution of responsible government—are undeniably fundamental to understanding how government and democracy is practised in Australia. While there may be some debate as to the exact source, existence, or application of particular constitutional conventions, these extra-textual 'unwritten' sources of

constitutional law are an accepted and uncontested part of the Australian constitutional system.

Judges have also referred to the ‘rights and freedoms’ of the common law as enjoying some sort of constitutional status. While there might be some dispute that they are properly described as ‘constitutional’, such common law protections are taking an increasingly important role in the High Court’s public law cases. While undoubtedly more ‘legal’ in nature than conventions, they ultimately remain subject to political—that is to say parliamentary—override.

More contested parts of Australia’s ‘unwritten’ Constitution are the unwritten implications drawn by the judges from the constitutional document. Such norms are of a fundamentally different character to both conventions and common law protections, forming part of Australia’s legal constitutional order as distinct from its political one. Perhaps reflecting this contestation, and in contrast to developments seen in Canada, the Australian legal and political culture has been reluctant to admit more foundational unwritten constitutional principles to influence the interpretation of the codified Constitution, including through the drawing of constitutional implications. Rather, the Australian High Court has limited itself to drawing implications it claims are rooted in the ‘text and structure’ of the constitutional text itself.

This chapter commences by defining the concept of ‘unwrittenness’ with respect to constitutional rules and relating that to the norms of the Australian constitutional system. The chapter then describes the three identified types of such rules—convention, common law protections, and judicially drawn implications from the constitutional text. It analyses the existence, scope, enforceability, and acceptance of these unwritten norms within Australia’s blend of political and legal constitutionalism.

B. DEFINING THE ‘UNWRITTEN’ AUSTRALIAN CONSTITUTION

The term ‘unwritten’ constitutional rules is something of a misnomer. Almost all the norms it refers to are generally recorded or reduced to writing in some form—whether that be in the text of judicial opinion, statute, government guidelines or handbooks, or the writings of constitutional commentators.¹ Even in the wholly ‘unwritten’ constitutional

system of the United Kingdom there are attempts to identify those judgments, statutes, and recorded practices that make up the ‘constitution’. As largely written but disaggregated and predominantly unentrenched, some have preferred the term ‘uncodified’ to describe the British constitutional arrangements.

Nonetheless, the term ‘unwritten’ conveys something useful. Scholars across the world have recognized that a great deal of constitutional practice exists in norms that lie outside the express language of the formally entrenched constitutional document.² But what is the scope of these ‘unwritten’ constitutional rules? Do they include all those rules and norms outside of the entrenched constitutional text? Ought they be more narrowly defined by reference to their ‘unwrittenness’ in some other sense?

Even in the United States, the birthplace of the ‘written’ constitution, and its intentional attempt to break from the political constitutionalism of the United Kingdom, there is an increased acceptance that many of the fundamental and now defining constitutional norms exist outside of the constitutional text. Writing in 1902, constitutional historian Francis N Thorpe observed that the ‘unwritten constitution is a term but dimly understood in America’.³ Today, it is accepted that the American Constitution, as David Strauss argues, inhabits an ‘intermediate position’ between the written and the unwritten.⁴ In particular, conventions and practices have developed to both restrain and empower the American presidency, particularly around the appointment of executive and judicial officers and the funding of federal government and the conduct of foreign relations and war making.⁵

Gaps and silences in the constitutional document are also ‘filled’ by the judges. Implied rights and rules that are considered fundamental to the United States constitutional settlement—racial segregation, the application of the bill of rights to the states, the rule of ‘one person, one vote’—are found, not in the constitutional text, but in judicial extrapolation from text and principle.⁶ Akhil Reed Amar has also argued that the rules by which the judges go about interpreting the text of the American Constitution form a fundamental part of its ‘unwritten’ nature.⁷ These types of unwritten rules, however, differ fundamentally in nature from those seen in the United Kingdom and the conventions and practices that can be identified around the United States presidency. These rules are implied and extracted from—

however loosely—the Constitution itself. As such, they have the same enforceable constitutional ‘status’ in the courts as the written constitutional document itself. Accordingly, unwritten rules have been the subject of far greater controversy, contest, and disagreement in the United States legal-political community than have the constitutional conventions and unwritten rules of the United Kingdom.

In light of the acknowledgement even in the United States that the meaning of a Constitution depends on much that occurs outside of the Constitution and even the courts, there is an increased scholarly recognition of the importance of studying the ‘working’⁸ or ‘complete’⁹ constitutional system. Mark Tushnet has argued that concepts such as ‘constitutional orders’ or ‘regimes’ are more useful than simply constitutions.¹⁰ But what does this more complete conception of a constitutional order look like? What is included within it? Tushnet defines a constitutional order as ‘a reasonably stable set of institutions through which a nation’s fundamental decisions are made over a sustained period, and the principles that guide those decisions’.¹¹

An initial definition of the Australian ‘constitutional order’ might be those constitutional rules that structure, define, and limit the exercise of government power. A search for those rules will undoubtedly commence with the codified constitutional document but they will include other sources. Some of these are better seen as codified, written norms, albeit existing outside of the constitutional text. In Australia such norms would include statutory provisions that structure, define, and limit government power such as those found in the *Statute of Westminster Adoption Act 1942* (Cth), the *Australia Acts 1986*, the various electoral statutes, and the statutory rights instruments found in all Australian jurisdictions. And then they will include a variety of ‘unwritten’ norms. Three broad types of such norms can be identified. First are the classic ‘unwritten’ norms of constitutional conventions. The second are the ‘unwritten’ norms of the common law—such as the principle of legality—that shape the exercise of legislative, executive, and judicial power. And finally are those ‘unwritten’ norms that arise from judicially implied constitutional principles. These three types of ‘unwritten’ rules have fundamentally different characters. The first, conventions, are fundamentally political in character. The second, common law rules, are legal in nature, but subject to legislative override and thus operate consistently with the tenets of the supremacy of

Parliament. The third, implied constitutional principles, are fundamentally legal in character and challenge parliamentary supremacy.

Unlike the United States, where the constitutional text has been such a focal point, it has long been accepted orthodoxy in Australia, with our Westminster pedigree, that the Constitution of Australia can be properly understood through an understanding of both the written and unwritten constitutional norms, and their intersection. For example, on its face, the *text* of the Australian Constitution appears to contemplate a form of absolute constitutional monarchy: section 61 vests the whole of the executive power in the Queen to be exercised by the unelected, royally appointed Governor-General, and while section 62 mandates the establishment of the Executive Council to *advise* the Governor-General, the binding nature of such ‘advice’ is not explained. Whereas the clear political expectation in Australia is that the Governor-General will exercise executive power on the advice of the Prime Minister. Similarly, the text of the Constitution says nothing about the structure or processes of State courts. Yet it is now uncontroversial that there is an implied constitutional limitation that protects the integrity of State courts in such a way as to limit the State Parliaments’ legislative capacities over their structure, processes, and powers.¹² This implication is drawn from the structural protections of the separation of powers and the integrated nature of the State and federal hierarchy.

In contrast to politically grounded constitutional conventions and the common law rules that constrain but can be overridden by the political branch, constitutional ‘implications’ form a more debatable dimension of Australia’s unwritten constitution. This is for two reasons. As a matter of definition, on some level, implications of this kind are not distinct or separate from the capital ‘C’ constitutional document. They are simply interpretations of, or logical emanations from, express constitutional provisions.¹³ This is particularly true for implications closely grounded in the ‘text and structure’ of the written Constitution, as opposed to those more loosely grounded in constitutional history, or the assumptions of the Constitution’s drafters. If constitutional implications are characterized as separate from the written text and part of Australia’s ‘unwritten’ constitution, then this might be thought to extend to all judge-made interpretation and glossing of the constitutional text. Indeed, adopting such an extended definition in the United States, David Strauss argues that much

of United States constitutional law is in fact ‘unwritten’, and that ‘most of the great revolutions in America constitutionalism have taken place without any authorizing or triggering constitutional amendment’.¹⁴ All judicial interpretation of the constitutional text, Adrian Vermeule, has explained should be considered ‘unwritten’ in the sense that such rules of judge-made law have no single authoritative formulation.¹⁵

Such an expansive view of unwrittenness is not taken in this chapter. Nonetheless, the chapter accepts that constitutional implications are different from more direct judicial interpretations of (or logical emanations from) the constitutional text. They are not immediately identifiable as within the scope of a written constitutional instrument. Rather than turning on the interpretation of the words of the written text, instead, our ability to identify them is *largely dependent* on attention to constitutional decision-making by courts. Further, as a matter of legal and political acceptance, the nature of implied constitutional principle as legal rather than political has raised greater contest and unease around their legitimacy within the Australian constitutional order. As such, they are in more senses ‘unwritten’ and will be included within the concept in this chapter.

An acceptance of an element—and a significant one at that—of the constitution as unwritten raises fundamental questions of determining with any sort of helpful precision, the scope and content of these unwritten rules so as to be applicable to specific cases, and to so as to hold the government to account by reference to them—whether in the courts or politically. It is to these questions that this chapter now turns.

C. THE POLITICAL CONSTITUTION AND CONSTITUTIONAL CONVENTIONS

Constitutional conventions have been long recognized and accepted as performing a fundamental role in Westminster parliamentary systems, facilitating democratic accountability.¹⁶ In Australia, before federation, colonial power was controlled by the constitutional statutes enacted by the United Kingdom Parliament and eventually in some colonies by the colonial Parliaments themselves.¹⁷ But control of the exercise of government power—and particularly with respect to the realization of the long-fought for practice of ‘responsible government’—was supplemented with a suite of ‘unwritten’ political norms, the constitutional ‘conventions’

that had a long heritage in the unwritten political constitution of the United Kingdom.

In Australia, the framers of the federal Constitution—like the drafters of the colonial Constitutions before them—anticipated that executive power would largely be exercised and arranged in accordance with the conventions of responsible government, but chose not to codify them in any significant way in the text. In 1931, Isaacs J referred to responsible government as the ‘working thesis of the unwritten constitution of the Empire’, and ‘part of the fabric on which the written words of the Constitution are superimposed’.¹⁸ Responsible government does not rest exclusively on convention: it is also supported by explicit constitutional provisions, including, for example, the requirement for appropriation to precede executive expenditure contained in sections 81 and 83 of the Constitution.¹⁹ It is also now supported by constitutional implications, that is, by other unwritten rules.²⁰

But to look at the terse text of Chapter II of the Constitution is to be largely unenlightened as to how the executive power is to be exercised in a democratically accountable way. Under the Australian Constitution, section 61 vests the executive power in the Queen, to be exercised by the Governor-General. Some textual provisions allude to the conventions that were intended to operate behind it. Section 62 establishes a Federal Executive Council to ‘advise the Governor-General’ although is not explicit about when the Governor-General *must* act on the advice of the Council. Section 64 provides some textual basis for ministerial responsibility, requiring Ministers to sit in Parliament within three months of their appointment. This implies, without reaching the realm of the explicit, some accountability between those officers and the Parliament. The framers’ uncontested acceptance of the fundamental role of convention in governing the exercise of executive power reflects the prevailing legal-political views at this time, anchored in a trust of government and the ability of the elected Parliament to supervise and bring it to account.

This part of the chapter commences with an explanation of the nature of conventions, and how they have been defined, recognized, and enforced, before turning to the different types of conventions and the disagreement that has arisen with respect to their scope and application. It considers the role of conventions in Australia’s 1975 constitutional crisis and concludes with a short explanation of the perceived failures of conventions in

maintaining democratic accountability and the need to ‘supplement’ them with statutory accountability schemes.

1. Defining, Recognizing, and Enforcing Conventions

A V Dicey made an early distinction between laws and conventions,²¹ defining conventions negatively by reference to their lack of legal status, as ‘not enforced or recognised by the courts’.²² Geoffrey Marshall defined conventions more positively, as ‘rules that define major non-legal rights, powers and obligations of office-holders in the three branches of government, or the relations between governments or organs of government’.²³ Geoffrey Sawer referred to a domestic constitutional convention as ‘a practice which has the effect of reducing the ambit of a legal power or transferring its effective exercise to a person or institution other than the one designated by the legal power’.²⁴ K C Wheare distinguished conventions from mere usage by reference to the sense of obligation that attaches to them.²⁵

How do practices and usage acquire the status of constitutional convention? Sir Ivor Jennings described a three-stage process for the recognition of a constitutional convention:

We have to ask ourselves three questions: first, what are the precedents; secondly, did the actors in the precedents believe that they were bound by a rule; and thirdly, is there a reason for the rule? A single precedent with a good reason may be enough to establish the rule. A whole string of precedents without such a reason will be of no avail, unless it is perfectly certain that the persons concerned regarded them as bound by it.²⁶

This test has been adopted as authoritative by the Canadian Supreme Court,²⁷ which, unusually, has discussed and defined conventions, albeit in the exercise of its advisory jurisdiction, and without going so far as to ‘enforce’ them.²⁸ The test has also been accepted in the United Kingdom by the Upper Tribunal (Administrative Appeals Chamber).²⁹ The Australian courts have maintained the more traditional position, demonstrating a reluctance to adjudicate and even offer opinion on the definition of conventions, although, as is explained below, the courts have not ignored convention altogether and some juridification has occurred. Alternative methods for conventional creation have been postulated that rely less on precedent than Jennings. Marshall argued that convention might be

established via precedent, by agreement among the people concerned, or based on some acknowledged principle of government that provides a reason or justification for it.³⁰

Unsurprisingly, the existence, or continuation, of convention can be the subject of differing opinion. For example, it has been asserted by a number of Australian governments that a convention has formed that parliamentary committees cannot compel ministerial advisers to appear before them. The convention has been questioned by successive parliaments, seriously undermining the argument it ever developed to the strength of convention. In 2002, the Senate Select Committee on a Certain Maritime Incident questioned the basis of any such convention, reporting that ‘It is no longer the case that advisers’ accountabilities are adequately rendered via ministers’ accountability to parliament because it can no longer be assumed that advisers act at the express direction of ministers and/or with their knowledge and consent. Increasingly, advisers are wielding executive power in their own right.’³¹ Not all committees have accepted government invocation of this convention. For instance, in 2013, the South Australian Legislative Council committee requested three staff of South Australian Premier Jay Weatherill to give evidence in its investigation of the handling of sexual abuse claims in schools. Weatherill wrote to the Committee invoking the ‘longstanding convention’ that ‘the staff of Members of parliament are not compelled to attend parliamentary inquiries’.³² The Committee maintained its request and the staff attended.

Drawn from historical practice, conventions weaken, shift, and emerge with changes in that practice. It is argued that the general unwrittenness and the non-justiciable nature of constitutional conventions allows them to evolve, ‘to ensure that the legal framework of the constitution will be operated in accordance with the prevailing constitutional values or principles of the period’.³³ Sir Robert Garran warned in 1897 against constitutionalizing too many of the conventions of responsible government. He said:

We must not, however, attempt to fix the present system of responsible government as a thing to be clung to for all time; we must allow scope for its development—for its being moulded to fit the political ideas of each successive generation. Responsible government as we know it, is a new thing, and a changing thing, it depends largely upon unwritten rules which are constantly varying, growing, developing, and the precise direction of whose development it is impossible to forecast. To try to crystallize this fluid system into a hard and fast code of written law would spoil its chief merit.³⁴

Garran's warning was well heeded, with many conventions evolving with Australia's changing constitutional status and practice. For instance, the Governor-General is now appointed by the Queen on the advice of the Australian Prime Minister, rather than the British office.

Conventions are generally accepted as not justiciable.³⁵ Indeed, conventions can be considered as either descriptive or normative: Marshall drew a distinction between conventions as the positive morality of the Constitution—those rules that are obeyed by participants in the political process as a matter of fact; and conventions as the critical morality of the Constitution—those rules that *ought to be* obeyed by participants in the political process.³⁶ For Dicey, compliance with constitutional conventions rests on their capacity to retain political and moral normative force.³⁷

In Canada, the Supreme Court has recognized the political nature of conventions: no 'parental role is played by the courts with respect to conventions',³⁸ but nonetheless indicated that courts might recognize them. As was explained above, some recognition and elucidation has occurred in Canada and now the United Kingdom. Although in the 2017 United Kingdom Supreme Court decision in *R (Miller) v Secretary of State for Exiting the European Union*,³⁹ in considering the status of the Sewel Convention governing political relations between the United Kingdom Parliament and the devolved legislatures, the Court again reinforced that judges 'are neither the parents nor the guardians of political conventions; they are merely observers'. The Court explained this meant that while 'they can recognise the operation of a political convention in the context of deciding a legal question ... they cannot give legal rulings on its operation or scope, because those matters are determined in the political world'.⁴⁰

The High Court of Australia has recognized conventions in various ways in its judgments, and there has been some debate in Australia as to whether the Court might, at a future date, transform some of the conventions giving effect to responsible government into legal rules, particularly following the Court's drawing of enforceable legal implications from those provisions of the Constitution establishing representative and responsible government.⁴¹ Conventions governing collective ministerial responsibility have been used in the Court's reasoning to set the scope of Parliament's powers to require government Ministers to produce documents,⁴² and to determine the extent to which the prerogative powers are subject to judicial review.⁴³

Conventions around collective responsibility have also informed statutory regimes, such as the exemptions to freedom of information regimes.⁴⁴

Further, in the last decade, the High Court has demonstrated a willingness to find constitutionally enforceable dimensions to the doctrine of responsible government. This has been most prominent in the Court's decision in *Williams v Commonwealth*,⁴⁵ where the Court relied on implications drawn from the federal structure of the Commonwealth Parliament and the role of the Senate, as well as the doctrine of responsible government, to identify implied limits on the exercise of the federal executive spending power without explicit statutory authorization.⁴⁶ This has been described by Gabrielle Appleby and Joanna Howe elsewhere as the Court accepting a role in “‘prodding’ Parliament to meet its supervisory obligations’ under responsible government.”⁴⁷

To date in Australia, however, further juridification of the conventions of responsible government—or even elucidation—has not occurred. The lack of legal enforceability of conventions is likely connected to the definitional and application contests that continue to plague them: there is no authoritative arbiter to provide an answer to the question of whether a constitutional convention has been breached. Attempts in Australia in the 1980s to codify some of the conventions were unsuccessful.⁴⁸ Nicholas Barry and Narelle Miragliotta claim this was for four reasons: the ‘logistical and practical hurdles’ in definition; the view that conventions are only marginally less certain than textual constitutional rules; the lack of political will to define and therefore limit their discretion under conventions; and finally a political commitment to a constitutional order in which some rules are unwritten, politically defined, and legally unenforceable.⁴⁹

2. Types, Scope, and Application of Conventions

At a highly generalized level, the different types of conventions are relatively easily identifiable; but beyond that, their scope and application is often vague, contested, and the subject of debate at both a legal and political level. As Geoffrey Marshall said, ‘Conventions can in most cases be stated only in general terms, their applicability in some circumstances being clear, but in other circumstances uncertain and debateable’.⁵⁰ Generally, conventions govern the exercise of the Governor-General’s powers around

the formation of government, dissolution of Parliament, resignation and dismissal of governments, and prorogation of Parliament; the doctrines of collective and individual ministerial responsibility; and the caretaker period of government. There is one notable convention ‘missing’ in the Australian Westminster system: a convention that the Speaker be independent from party politics. While such a convention is strongly adhered to in the United Kingdom, it has no firm roots in Australian politics. The Australian speaker does not resign from their political party and might even continue to attend party room meetings.⁵¹

This chapter considers in depth those conventions that operate within the structures of the separate governmental polities in the Australian federation, with a specific focus on the conventions that operate within the executive branch and govern the relationship between the executive and legislative branches. However, it is necessary to note at the outset that this list of conventions is not comprehensive. First, there is an increasing recognition that there must be conventions that govern the exercise of the powers in the judicial branch,⁵² and the relationship between the executive government and the judicial government to maintain public confidence in the independence of the judicial branch, (although these conventions are not generally dealt with in this chapter, the question of whether the Attorney-General has or ever had an obligation to protect the independence of the judiciary from political attacks is canvassed below).

Second, there are those conventions that historically governed the relationship between the Australian governments and the United Kingdom, although these are now mostly codified in the *Statute of Westminster 1931* (UK) (adopted in Australia in the *Statute of Westminster Adoption Act 1942* (Cth)) and the *Australia Acts 1986*.⁵³ Some conventions still govern this relationship, the most important being the convention that the Queen acts on the advice of her Australian ministers when appointing her Australian representatives (the Governor-General and the Governors), and if the monarch’s powers retained in sections 58, 59, and 60 of the Constitution were ever to be exercised.

Finally, today, the conventions and practices of responsible government that govern the exercise of executive power within each government of the federation have also been supplemented by the institutions and practices that have arisen between the executive governments of the federation.⁵⁴

Established in 1992, the Council of Australian Governments (COAG) has emerged as the key institution facilitating intergovernmental decision-making. The lack of transparency and democratic accountability of intergovernmental executive institutions such as COAG has been criticized, leading to calls to formalize the status and processes of intergovernmental institutions either within the constitutional text or statutory text, and address the concerns raised by their current—informal and unwritten—operation.⁵⁵ Despite these concerns, and the importance of co-operative arrangements and institutions in understanding how government is practised in Australia today, they remain outside the formal constitutional text and even the concept of unwritten constitutional rules, rather, they exist in the realm of practice and usage.

a) Exercise of the Governor-General's powers

Section 61 of the Constitution explicitly vests executive power in the Queen, exercisable by the unelected Governor-General, who is appointed by the Queen under section 2. But unwritten constitutional convention requires, in the predominance of cases, the Governor-General to follow the advice of his or her Ministers, who must hold a seat in Parliament pursuant to section 64, in the exercise of those powers. By convention the Governor-General does retain some 'reserve powers' that he or she may exercise autonomously, although their breadth is strongly contested and their exercise often controversial. These powers include the power to appoint a Prime Minister when it is unclear which party holds the confidence of the lower House; to dismiss a Prime Minister who has lost the confidence of that House but refuses to resign; and to dissolve, or refuse to dissolve, the Parliament, including for a double dissolution election under section 57, in the event of the advice of the Prime Minister being unreasonable. These powers are engaged to ensure adherence to basic tenets of representative and responsible government. More controversially, the reserve power to dismiss a Prime Minister may also be engaged when the Government's supply is blocked by the Senate, the question of whether the government was responsible to the Senate in the same way as it is to the House having been left unresolved by the framers. It was this unresolved question that led to the constitutional crisis of 1975, considered below.

The reserve power to dismiss a government might be engaged where the government is acting illegally or unconstitutionally, although how such a determination might be made and the role of the courts in it has been the subject of differing views. In 1987, the Advisory Committee on Executive Government of the Constitutional Commission stated its view that before the powers could be engaged in such an instance, the Governor-General should wait for a determination of the court that the conduct was unlawful, illegal, or in breach of the Constitution, or, if the matter is not justiciable, only where the Governor-General believes there is no alternative to prevent the government engaging in such conduct.⁵⁶

Australia has seen only one such dismissal purportedly on these grounds. During the Great Depression, controversial New South Wales Labor Premier Jack Lang implemented an economic programme that included a large government spending platform and the postponement or repudiation of the State's debts to its British creditors. The plan flew in the face of the federal Labor government's own economic strategy, and the Commonwealth government stepped in to meet the State's debts, but then sought to reclaim the money from the State. When the United Australia Party took government at the federal level, they introduced legislation forcing Lang's State government to repay the debts. After a number of defeats in the High Court, Lang issued a circular directing State public servants to act in contravention of the Commonwealth's legislation. Increasingly alarmed by Lang's behaviour, the Governor, Sir Philip Game, stepped in and dismissed him.⁵⁷ Dismissals are always controversial: they involve the ultimate exercise of government power by an unelected official over an elected one. Game's dismissal of Lang has been criticized as premature, with critics arguing that he ought to have waited for a judicial determination on the issue.

Convention requires the Governor-General to appoint as Prime Minister the leader of the party that holds the confidence of the House of Representatives and the Governor-General must appoint Ministers on the advice of the Prime Minister. If no party holds a clear majority in the House, a number of constitutional conventions govern how the Governor-General will select the Prime Minister.⁵⁸ With a recent rise in the frequency with which hung Parliaments are returned in Australian jurisdictions—including, in 2010, a hung Parliament at the federal level for the first time since 1940—the precise scope of the Governor-General's powers in this

instance has been the subject of some controversy. It appears generally accepted that the Governor-General will not be bound to act on the advice of the outgoing Prime Minister, but such advice will be afforded considerable weight. The Governor-General should appoint as Prime Minister the person that he or she thinks will enjoy the confidence of the lower House.

On the death of the Prime Minister, the Governor-General should follow the advice of the next most senior Minister in Cabinet rank as to whom to appoint Prime Minister. Where the governing party changes leadership, similar questions have arisen because the person holding the formal appointment of Prime Minister no longer commands the confidence of the party who has a majority in the House.⁵⁹ For instance, in June 2013, Prime Minister Julia Gillard lost the leadership of the Labor Party. The Labor Party had formed a minority government with the support of the Greens and a number of Independents following the return of a hung Parliament in 2010. Gillard advised the Governor-General to appoint Kevin Rudd, the new leader of the Party, and advised that she would resign from the time of that appointment. There were real questions as to whether the Greens and Independents would support a Rudd-led Labor government. Governor-General Quentin Bryce sought advice from the acting Solicitor-General, Robert Orr. She ultimately appointed Rudd, but made it a condition of the appointment that he would announce his appointment to the House of Representatives at the first opportunity. Orr had advised Bryce that she did not have to place such a condition on Rudd's appointment, and probably could not require Rudd to comply with it, although it was open to her to seek the assurance.⁶⁰

b) Collective and individual ministerial responsibility

Ministers will be collectively responsible to the lower House. Individual ministers must publicly support the collective decisions of Cabinet—even if they disagree with them—and resign if that House passes a vote of no confidence in the government of which they are a member. There was disagreement in the 1987 Advisory Committee on Executive Government of the Constitutional Commission, as to whether, following a vote of no confidence, the Governor-General must follow the advice of the outgoing Prime Minister as to whether to appoint another Prime Minister or dissolve

the House; or whether that decision was for the Governor-General alone, albeit with weight given to the views of the outgoing Prime Minister.⁶¹ It was agreed that if the House, in its motion, names the person in whom it has confidence, the Governor-General must appoint that person.

Collective responsibility gives rise to conventions around the secrecy and solidarity of Cabinet decisions.⁶² While only having the status of conventions, they have informed the development of common law and statutory legal norms, and can be seen, for example, in exemptions to freedom of information regimes,⁶³ the limits on the upper House's power to demand the production of documents,⁶⁴ and the justiciability of the prerogative powers.⁶⁵ Strict adherence to the practices of collective ministerial responsibility have been challenged in some State/Territory jurisdictions with the appointment of non-government Ministers.

One possible exception to the practices of collective ministerial responsibility is the tradition, that might arguably be described as convention, that the Attorney-General is individually responsible for taking certain decisions in the public interest—such as the decision to prosecute. There is a widely held view in the United Kingdom, expressed in what is known as the 'Shawcross statement', that the Attorney-General must come to these decisions independently from the Cabinet, although he may consult with members of Cabinet.⁶⁶ The extent to which such a position was, or remains, the practice in Australia is contested. In 1994, then Shadow Attorney-General Daryl Williams declared that any convention that the office acted independently of the political executive in Australia was 'erroneous or at least eroded'.⁶⁷ He also doubted that there was any unwritten constitutional duty rooted in convention that the Attorney-General defend the courts from political attacks.⁶⁸ Certainly, there are a number of examples of the Attorney-General failing to fulfil such a role.

Section 64 requires that Ministers must sit, within three months of their appointment, in Parliament. By convention, Ministers are *individually* responsible to Parliament, including answering to Parliament for the administration of his or her department. According to a strong form of individual accountability, Ministers must answer questions on issues within their department, and, on a strict version of the convention, resign where major errors of administration are revealed.

However, recent departmental scandals in Australia have *not* led to ministerial resignations, with some arguing therefore that the responsibility of Ministers to Parliament has been eroded. For some, such ‘erosion’ is inevitable and indeed, it reflects the appropriate evolution of conventions to contemporary government and political circumstances: with the increased size and complexity of government departments, the fragmentation of ministerial responsibility with the advent of junior Ministers and parliamentary secretaries for departments, the increased reliance by Ministers on political advisers, the centralization of power within the Prime Minister’s portfolio, the increased inter-connectedness of departments for programmes with other departments and governments, and the contracting out of government services, it has become increasingly less likely that the convention of ministerial resignation for departmental failures will be adhered to, unless the failure is personally on the part of the Minister, or known of by the Minister. Others, however, have questioned whether individual ministerial responsibility ever really existed in its strong form in Australia.⁶⁹ A 1998 *Guide on Key Elements of Ministerial Responsibility* introduced by the Howard coalition government provided what is generally taken to be an accurate statement that accords with the modern practice of both major political parties:

[The convention] does not mean that ministers bear individual liability for all actions of their departments. Where they neither knew, nor should have known about matters of departmental administration which come under scrutiny it is not unreasonable to expect that the secretary or some other senior officer will take responsibility.⁷⁰

Based on the accepted accuracy of this statement, it can be concluded that to the extent it exists today, individual ministerial responsibility is largely practised as a form of explanatory responsibility.

c) Caretaker conventions

‘Caretaker conventions’ govern how and what decisions can be made by the incumbent government during the period after the House of the Representatives has been dissolved preceding an election, but before the election result is known and a new government sworn in. There are restrictions on the making of major policy decisions, significant appointments, and entering major contracts or commitments. There are also restrictions on, and processes around, the running of government

advertising during this period. There are several justifications that underpin the caretaker conventions. Most fundamentally for responsible government, once the House of Representatives has been dissolved and until the election result is known, the government is effectively governing without parliamentary oversight. The caretaker conventions are thus said to ensure no major decisions are made without accountability. The caretaker conventions also reduce the policies and funding commitments an incumbent government can lock an incoming government into, giving the incoming government greater freedom to pursue its electoral mandate. Further, the conventions are intended to reduce the politicization of the public service, by taking away the ability of an incumbent government to employ public servants inappropriately in partisan activities during the election campaign. Finally, the conventions are intended to reduce any other 'advantage' an incumbent government might have because of the resources at its disposal.

Of all the conventions, caretaker conventions might be thought to be the most uncontested, with bipartisan support and informal codification in the form of guidelines developed by the public service.⁷¹ This codification, short of legislative enactment, has not transformed the nature of the norms from conventions. However, despite their unusual transcribed form, most election periods are marred by allegations of breaches of the conventions that amount to differing degrees of seriousness, and demonstrating significantly different interpretations of the conventions and the often widely framed rules in the guidelines.⁷² Anne Tiernan and Jennifer Menzies have argued that the uncharacteristic 'writtenness' of the caretaker conventions in public service generated guidelines and policy documents detracts from the advantages of the fundamental nature of conventions. It moves the custodial responsibility from the politicians to the public service, reducing the political morality of the norms, and it locks in the detail of the norms so as to undermine their capacity to evolve with changing political circumstances.⁷³

3. Accepted Yet Contested: The Role of Convention in Australia's Constitutional System after 1975

The dismissal of the Whitlam government by Governor-General John Kerr on 11 November 1975, after it was unable to immediately guarantee the

passage of its annual appropriation legislation through the Senate, remains the single most important event in understanding the role of conventions in Australia's constitutional system both before and after that date. Nonetheless, despite intense disagreement in the political and legal communities following the events, there has been continued acceptance of the status of conventions within Australia's constitution, including the existence of the Governor-General's reserve powers. Indeed, in the 1999 referendum on whether Australia ought to become a republic and establish a President in the stead of the Governor-General, it was proposed that the powers would be retained by explicit reference in the constitutional text, albeit the wording of this deliberately preserved the disagreement as to the scope and application of the conventions:

The President shall act on the advice of the Executive Council, the Prime Minister or another Minister of State; but the President may exercise a power that was a reserve power of the Governor-General in accordance with the constitutional conventions relating to the exercise of that power.⁷⁴

The events of 1975 raised myriad questions about the existence and application of a number of conventions in Australia's constitutional system.⁷⁵ First, the events leading up to the final crisis of 1975 raised the question of whether there was a convention around the appointment of casual vacancies to the Senate under section 15 of the Constitution. The actions of Queensland Premier Joh Bjelke-Petersen in refusing to appoint the individual recommended by the Labor Party to replace a deceased Labor Senator cut across what had arguably been a convention since 1951 that State Parliaments would appoint a replacement Senator pursuant to their power in section 15 of the Constitution from the same party as the Senator being replaced. The shift in political power that this move caused was a catalyst to the 1975 crisis, however, its longer-term ramifications were largely resolved by formal constitutional amendment to the text of section 15.

Second, the Senate's actions in refusing to pass Whitlam's supply Bills raised a question as to whether there was a convention in Australia that the Senate does not block the government's supply bills, despite its equivalent powers over such Bills under section 53 of the Constitution. This reveals an inherent tension between the framers adoption of the traditional conventions of responsible government while also adopting non-traditional Westminster institutional arrangements, such as an elected Senate. This tension remains,

to this day, unresolved, although subsequent Senates have exercised restraint in flexing such powers.

Third, and relatedly, the Constitution is silent as to how to resolve a supply deadlock, which raised the question of whether, by convention, the government must resign if unable to secure supply through the Senate, and if it does not, whether the Governor-General has a reserve power to dismiss the government, as Kerr did. The difficulty in determining whether such a convention existed was the seeming inconsistency of requiring the government to account to both the House of Representatives and the Senate, where it does not necessarily hold a majority. This thus raises a concern over potential abuse of the power; although, in practice, it has not risen again. A further question was raised: if such a power exists, does the Governor-General have an obligation to warn the Prime Minister—that is, accord the Prime Minister procedural fairness—before its exercise?

Fourth, the dismissal raised a question of whether Kerr acted in breach of perhaps the most fundamental convention of responsible government by appointing Malcolm Fraser as Prime Minister without the confidence of the House of Representatives, and not dismissing him following the subsequent passage of a vote of no confidence in him by the House.

Finally, the events also raised the question of whether it was appropriate for Kerr to seek advice from the Chief Justice Sir Garfield Barwick (and, as was later revealed, Justice Sir Anthony Mason⁷⁶) on the extent and applicability of the reserve powers, or whether he should have restricted his sources of advice to the Law Officers, or, at the least, not sought advice from the judiciary. Since that date it has generally become accepted that the judiciary is *not* an appropriate source of advice for the Governor-General in these circumstances.⁷⁷ While the creation of a new constitutional convention is unusual in Australia, recently Anne Twomey has argued for the development of a constitutional convention that the Governor-General (and other vice regal officers) should have access to the Solicitor-General for legal advice regarding the existence and extent of the reserve powers.⁷⁸ This would resolve the debate that occurred after 1975 as to whether the Governor-General might legitimately seek advice from members of the judiciary. Further, Twomey argues for the need to address the continued debate over this question *before* the next constitutional crisis arises. I have argued elsewhere that the question of who ought to advise a vice regal officeholder on constitutional issues could also be answered by the

appointment of a specialized counsel position. Such a solution would maintain the Solicitor-General's position as senior legal adviser to the Attorney-General should any conflict of interest arise.⁷⁹

4. Perceived Failures of Conventions and the Rise of Statutory Accountability Regimes

Responsible government, with its heavy reliance on convention to facilitate political accountability of the government, has largely fallen out of favour as constitutional best practice.⁸⁰ There have been concerns, for example in relation to individual ministerial accountability, that it is the 'flexibility' of conventions that have led to them being ignored or eroded in practice. While some blame the failures of adherence to conventions on partisan politics, others have pointed to the expansion in the size and complexity of the modern administrative state to argue that conventions are no longer capable of bringing the different players in government to account; they must be supplemented. American Law Professor Bruce Ackerman argues for the Westminster model of responsible government to be replaced with a model of 'constrained parliamentarianism', in which the political constraints that operate within a traditional parliamentary system are supplemented by additional checking institutions, with a new constitutional status of an 'integrity branch'.⁸¹ In Australia, former Chief Justice of the New South Wales Supreme Court James Spigelman identifies the purpose of an 'integrity branch' as 'concerned to ensure that each governmental institution exercises the powers conferred on it in the manner in which it is expected and/or required to do so and for the purposes for which those powers were conferred, and for no other purpose'.⁸² In some more recent constitutions, these types of institutions have been included in the constitutional text. For instance the South African Constitution establishes a number of bodies to 'strengthen constitutional democracy': the public protector, the South African Human Rights Commission, the Commission for the Promotion and Protection of the Rights of Cultural, Religious and Linguistic Communities, the Commission for Gender Equality, the Auditor-General, the Electoral Commission, and the Independent Authority to Regulate Broadcasting.⁸³

In Australia too, despite the pedigree of responsible government in Australia, by the second half of the twentieth century there was a general

sense of dissatisfaction with the ability of political mechanisms, including the operation of convention, to achieve accountability in an environment of increasingly complex government administration and a political system defined by a two-party system of strict party discipline. In the 1970s and 1980s, a series of reviews recommended that public law be expanded to include a suite of new accountability mechanisms, and Australia's 'new administrative law' was introduced.⁸⁴ This included at the federal level, reforms to simplify and streamline the procedure for judicial review of administrative action,⁸⁵ a new system of merits review of administrative action in the form of the Administrative Appeals Tribunal,⁸⁶ an Ombudsman to investigate individual complaints as well as undertake systemic review,⁸⁷ and a new regime of freedom of information.⁸⁸ More recently, whistleblower protection and independent anti-corruption commissions have also been introduced. Other statutory norms enhance the democratic accountability of the exercise of executive power, including, for example, framework statutes governing the exercise of delegated legislative power.⁸⁹

These reforms have seen the evolution of the Australian constitutional order where the unwritten conventions of responsible government are seen as insufficient in modern government or failing in modern politics to achieve accountability, and thus necessarily supplemented by codified, less politically dependent, norms and structures. These rules—although not 'unwritten'—also now represent an important part of our constitutional system outside of the constitutional document.

D. MAINTAINING POLITICAL CONSTITUTIONALISM: COMMON LAW UNWRITTEN CONSTITUTIONAL RULES

In *Union Steamship Co of Australia Pty Ltd v King*, the Australian High Court left open the question of whether there were rights 'deeply rooted in our democratic system of government and the common law' that could override inconsistent legislative action.⁹⁰ Such a radical position remains highly unorthodox in Australian constitutional law.⁹¹ There is an acceptance that rights protection—a function to which most modern liberal democratic constitutions are directed—is achieved in Australia largely by reference to

the common law, and increasingly by legislative enactment. The Australian framers were content to follow Britain's tradition of political constitutionalism rather than the legal constitutionalism of the United States, reflecting an underlying trust in government, and assumption that rights were adequately protected by the inherited common law and democratic process.

The common law generally works to protect rights in the course of a criminal trial or a civil cause of action, in the context of litigation, including the privilege against self-incrimination and legal professional privilege, the right to access legal counsel when accused of a serious crime,⁹² and the right to be accorded procedural fairness by the state.

In Australia, under the so-called 'principle of legality',⁹³ the government must point to explicit or necessarily implied statutory authorization to exercise its powers in a way that interferes with 'fundamental' common law rights. Geoffrey Marshall submitted that a related, if not identical, norm, that 'Parliament does not use its unlimited sovereign power of legislation in an oppressive or tyrannical way', could have its source in convention.⁹⁴ Today, the 'principle of legality', is receiving a surge in judicial popularity. It has been referred to as achieving the status of a 'quasi-constitutional common law bill of rights'.⁹⁵ French CJ stated in *Momcilovic v The Queen* that: 'The rights and freedoms of the common law should not be thought to be unduly fragile. They have properly been described as "constitutional rights, even if ... not formally entrenched against legislative repeal."' ⁹⁶ In *Coco v The Queen*, the Court explained the justification for the principle of legality: 'The courts should not impute to the legislature an intention to interfere with fundamental rights. Such an intention must be clearly manifested by unmistakable and unambiguous language.'⁹⁷ The principle of legality joins other common law presumptions of statutory construction—including that statutes are presumed not to violate the rules of international law⁹⁸ and the narrow construction of privative clauses that attempt to remove constitutionally guaranteed recourse to the courts for review of the exercise of statutory powers⁹⁹—to protect individual rights against exercises of government power.¹⁰⁰ It also resembles the statutory instructions given to courts under the model of human rights protection adopted in many Commonwealth statutory bills of rights. However, drawn from the common law, the principle of legality suffers from considerable

lack of clarity around the breadth of the ‘fundamental’ common law rights that fall within its protection, and there is also a lack of clarity as to whether the application of the principle requires the court to engage in a balancing or proportionality exercise to determine whether a statutory provision impermissibly cuts across fundamental rights.¹⁰¹

Other celebrated common law protections of individual rights in Australia include the protections afforded to native title rights through the common law in *Mabo v Queensland [No 2]*,¹⁰² although these protections have now been overtaken by statutory protections in the *Native Title Act 1993* (Cth). In *Marion’s Case*,¹⁰³ the Court restricted the authority of parental decision-making over their children, requiring further authorization for decisions about sterilization, by reference to the ‘fundamental right to personal inviolability existing in the common law’.¹⁰⁴ The Australian courts have not yet determined whether the common law offers protection to the right to privacy through a tortious action.¹⁰⁵ In *ABC v Lenah Game Meats*, Callinan J raised the question of whether the development of the law to recognize a new tort of privacy should be undertaken by the courts or the legislature.¹⁰⁶

E. THE LEGAL CONSTITUTION AND CONSTITUTIONAL IMPLICATIONS

Constitutional implications play a significant part in constitutional law in Australia across a range of important areas, in ways that again reflect the centrality of ‘unwritten’ constitutional norms to Australian constitutional practice. It is not the purpose of this chapter to explain the precise content of each of these implications. This is done in detail elsewhere in the handbook.¹⁰⁷

Many of the Court’s implied doctrines are now well accepted and increasingly settled principles of Australian constitutional law. While many of them may have raised controversy when they were initially drawn—amidst allegations, for instance, that they lacked foundation in the text of the written Constitution or they created constitutional tests without sufficiently objective criteria—there have been very few attempts to reopen cases in which such implications have been drawn, to the lament of some of the judges on the bench.¹⁰⁸ Such unwritten implied principles include those

rules derived from Chapter III of the Constitution: the rule in *Boilermakers* that protects the separation of federal judicial power from non-judicial power;¹⁰⁹ the principle in *Kable* that extends Chapter III to protect the institutional integrity of State courts.¹¹⁰ Increasingly these implications have drawn upon accepted extra-constitutional, common law understandings of judicial process and common law fair trial rights to inform their scope and content. Implied constitutional doctrines that have now become an uncontested part of Australia's unwritten constitution also include the constitutional protection of federalism achieved through the protection of States as bodies politic under the *Melbourne Corporation* principle¹¹¹ and the Commonwealth under the *Cigamatic* doctrine;¹¹² and the implied guarantees that protect representative government, including the implied freedom of political communication¹¹³ and universal access to the franchise.¹¹⁴

Despite the settled and accepted nature of these implications, in both the Court's federalist and implied guarantee doctrines, resistance is apparent to interpreting the text of the Constitution as embodying underlying abstract, general principles. The Australian Court has in this respect now diverged markedly from the approach to implied restrictions taken by the Canadian Supreme Court, which in the 1998 *Secession Reference* case held that there were 'unwritten legal principles', foundational and extra-textual, 'so important, so fundamental, to a nation's history and identity that a consensus of reasonable citizens would demand that they be honoured by those who exercise state power?'¹¹⁵ These norms are 'not merely descriptive, but ... also invested with a powerful normative force, and are binding upon both courts and governments'.¹¹⁶ Australian judges, in contrast, have been unwilling and wary to invoke 'fundamental norms' not attached to the text and structure of the constitutional document to overturn legislative and executive action.

In the domain of federalism, the Court has consistently suggested that it is impermissible to restrict or 'read down' the scope of section 51 powers to give effect to any form of implied notion of 'federal balance'. In the context of the rights that are often incidentally protected by the implications supported by the implied guarantees derived from representative government in so far as it manifests in sections 7 and 24 of the Constitution, the Court has been even more emphatic in rejecting the suggestion that the

Constitution supports a wider range of implications, such as free-standing freedom of association guarantees.¹¹⁷ Repeatedly the High Court has stated that only those connected directly to the political process enshrined in the ‘text and structure’ of the Constitution will be accepted.¹¹⁸

This cautious approach reflects a major point of distinction between the identification of constitutional implications as part of Australia’s ‘unwritten’ constitutional rules as opposed to constitutional conventions. Unlike constitutional conventions, which form part of Australia’s tradition of political constitutionalism and maintain the possibility of parliamentary override, ‘unwritten’ constitutional implications create judicially enforceable norms against the Parliament and executive. They introduce ‘unwrittenness’ into the legal constitutional order as distinct from its political one. In this sense, these ‘unwritten’ norms differ fundamentally from the ‘unwritten constitution’ of the United Kingdom. Their contestation reflects enduring questions of democratic legitimacy in judicial review, and explains the caution identifiable in the Court’s approach.

F. CONCLUSION

Australia, like the United States, occupies an ‘intermediate position’ between a written and unwritten Constitution. Australia’s complete, working, constitutional order is comprised of the codified constitutional text together with other written norms and a myriad of ‘unwritten’ rules: constitutional conventions, norms of the common law, and constitutional implications drawn by the judiciary from the constitutional text. Each of these three types of unwritten constitutional norms are fundamentally distinct. This distinction turns on their enforceability against the Parliament and the executive. Conventions, with their roots in British practice and the political constitution, are unwritten constitutional norms that guide the exercise of governmental power but are unenforceable against the courts. They are fundamental, and overlooking them risks fundamental misunderstandings of Australia’s constitutional practice. But, they are also seen as increasingly deficient in achieving democratic accountability, with each Australian jurisdiction adopting new forms of written norms to strengthen and supplement them. Common law norms, and particularly the principle of legality, are enjoying somewhat of a constitutional resurgence.

At a time when there remains some caution with respect to judicial enforcement of rights against the political branches, these norms have allowed the High Court to engage in an informal ‘dialogue’ with these branches with respect to fundamental forms. In contrast to both convention and common law norms, unwritten, implied constitutional rules are associated with legal constitutionalism: they rigidly channel government action and can be deployed by the judicial branch against the political branches. Each type of unwritten norm, in the words of Brian Galligan and Scott Brenton, has a ‘different institutional character’.¹¹⁹ This is not to place conventions or common law norms as having a lesser *status* than those constitutional norms finally enforced in the courts. Acknowledging their different character, however, reinforces and further explains the fusion of the political and legal constitutionalism within Australia’s constitutional order, written and unwritten.

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¹ See also Akhil Reed Amar, *America’s Unwritten Constitution: The Precedents and Principles We Live By* (Basic Books 2012) 38.

² cf Rosalind Dixon and Eric Posner, ‘The Limits of Constitutional Convergence’ (2011) 11 *Chicago Journal of International Law* 399; Ralf Michaels, ‘The Functional Method of Comparative Law’ in Mathias Reimann and Reinhard Zimmermann (eds), *The Oxford Handbook of Comparative Law* (OUP 2006) 339.

³ Francis N Thorpe, ‘What is a Constitutional History of the United States?’ (1902) 19 *Annals of the American Academy of Political and Social Science* 259, 260.

⁴ David Strauss, ‘Not Unwritten, After All?’ (2013) 126 *Harvard Law Review* 1532.

⁵ See further, Harold H Bruff, ‘The President and Congress: Separation of Powers in the United States of America’ (2014) 35 *Adelaide Law Review* 205. See also Keith E Whittington, ‘The Status of Unwritten Constitutional Conventions in the United States’ (2013) 5 *University of Illinois Law Review* 1847.

⁶ See, eg, Amar (n 1).

⁷ *ibid* 38. And note Oran Doyle, ‘Conventional Constitutional Law’ (2015) 38 *Dublin University Law Journal* 311.

⁸ Karl Llewellyn, ‘The Constitution as Institution’ (1934) 34 *Columbia Law Review* 1, 6.

⁹ Matthew S R Palmer, ‘Using Constitutional Realism to Identify the Complete Constitution: Lessons from an Unwritten Constitution’ (2006) 54 *The American Journal of Comparative Law* 587.

¹⁰ Mark Tushnet, *A New Constitutional Order* (Princeton UP 2003) 1.

¹¹ *ibid*.

¹² Known as the ‘Kable doctrine’: *Kable v Director of Public Prosecutions (NSW)* (1996) 189 CLR 51.

¹³ I am indebted to Patrick Emerton for raising this point.

¹⁴ See, eg, David Strauss, ‘Common Law Constitutional Interpretation’ (1996) 63 *University of Chicago Law Review* 887, 884. For the story of the ‘evolution’ of the Australian constitutional system through judicial interpretation, see Chapter 5 ‘Evolution’.

¹⁵ Adrian Vermeule, ‘Conventions in Court’ (2015) 38 *Dublin University Law Journal* 283.

¹⁶ For a more complete discussion of conventions in Commonwealth countries, see further Geoffrey Marshall, *Constitutional Conventions: The Rules and Forms of Political Accountability* (OUP 1987); Brian Galligan and Scott Brenton (eds), *Constitutional Conventions in Westminster Systems: Controversies, Changes and Challenges* (CUP 2015); in the specifically Australian context, see also Ian Killey, *Constitutional Conventions in Australia: An Introduction to the Unwritten Rules of Australia’s Constitutions* (Australian Scholarly Publishing 2009).

¹⁷ In Tasmania, South Australia, and Western Australia, the colonial Parliaments passed their own constitution acts pursuant to authority given by the Imperial Parliament in earlier constitutional documents: *Constitution Act 1856* (SA); *Constitution Act 1856* (Tas); *Constitution Act 1889* (WA). In contrast, in New South Wales, Victoria, and Queensland, the constitutional documents of this era were passed by the Imperial Parliament: *Constitution Act 1855* (Imp) (NSW); *Constitution Act 1856* (Imp) (Vic); *Constitution Act 1867* (Imp) (Qld).

¹⁸ *Commonwealth v Kreglinger & Fernau Ltd* (1926) 37 CLR 393, 413 (Isaacs J). See, also, *Victorian Stevedoring & General Contracting Co Pty Ltd v Dignan* (1931) 46 CLR 73, 114.

¹⁹ See Chapter 24 ‘Parliaments’.

²⁰ Such as the constitutional implication drawn in *Williams v Commonwealth* (2012) 248 CLR 156 that requires, with some exceptions, the Commonwealth executive to have statutory authority before entering into contracts or spending money.

²¹ A V Dicey, *An Introduction to the Constitution* (1st edn, 1885); although John Stuart Mill wrote of ‘unwritten maxims of the constitution’ *Representative Government* (1861).

²² A V Dicey, *An Introduction to the Constitution* (8th edn, Macmillan 1915, Liberty Fund reprint 1982) 277.

²³ Marshall (n 16) 210.

²⁴ Geoffrey Sawer, *Federation under Strain: Australia 1972-1975* (Melbourne UP 1977) 179.

²⁵ K C Wheare, *Modern Constitutions* (OUP 1951) 27.

²⁶ Ivor Jennings, *The Law and the Constitution* (5th edn, University of London Press 1959) 136.

²⁷ *Reference re Amendment of Constitution of Canada* [1981] 1 SCR 753, 888.

²⁸ Nicholas Aroney, ‘Law and Convention’ in Galligan and Brenton (n 16) 24, 38.

²⁹ *Evans v Information Commissioner* [2012] UKUT 313.

³⁰ Marshall (n 16) 8–9.

³¹ Senate Select Committee on a Certain Maritime Incident, Parliament of Australia, *Majority Report* (2002), xxxvii.

³² Extracted in Sheradyn Holderhead and Lauren Noval, ‘Former SA education official believes she was made a scapegoat over sex abuse in schools scandal’ *The Advertiser* (Australia, 4 October 2013) <<http://www.adelaidenow.com.au/news/south-australia/former-sa-educationofficial-believes-she-was-made-a-scapegoat8217-over-sex-abuse-in-schools-scandal/story-fni6uolm-1226732833097>> accessed 9 October 2017.

³³ *Reference re Amendment of Constitution of Canada* [1981] 1 SCR 753, 880.

³⁴ Sir Robert Garran, *The Coming Commonwealth* (1897) 149.

³⁵ Joseph Jaconelli, 'Do Constitutional Conventions Bind?' (2005) 64 Cambridge Law Journal 149, 153.

³⁶ Marshall (n 16) 210.

³⁷ Dicey (n 21) 277.

³⁸ *Reference re Amendment of Constitution of Canada* (n 33) 775.

³⁹ [2017] UKSC 5.

⁴⁰ *ibid* [146] see also [151] (Lord Neuberger, Lady Hale, Lord Mance, Lord Kerr, Lord Clarke, Lord Wilson, Lord Sumption, Lord Hodge, in the majority).

⁴¹ See, eg, George Winterton, *Parliament, the Executive and the Governor-General* (Melbourne UP 1983) 125–39; Geoffrey Lindell, *Responsible Government and the Australian Constitution—Conventions Transformed into Law?* (Federation Press 2004) 3; Leslie Zines, *The High Court and the Constitution* (5th edn, Federation Press 2008) 340.

⁴² *Egan v Willis* (1998) 195 CLR 424; *Egan v Chadwick* (1999) 46 NSWLR 563, 574 (Spigelman CJ).

⁴³ *R v Toohey; Ex parte Northern Land Council* (1981) 151 CLR 170; *FAI Insurance Ltd v Winneke* (1982) 151 CLR 342; *Greiner v Independent Commission Against Corruption* (1992) 28 NSWLR 125.

⁴⁴ See, eg, *Freedom of Information Act 1982* (Cth), s 34.

⁴⁵ *Williams v Commonwealth* (n 20).

⁴⁶ The principle established in *Williams* might also be able to be characterized as a new, previously unrealized interpretation of the scope of 'executive power' under section 61 of the Constitution.

⁴⁷ Gabrielle Appleby and Joanna Howe, 'Scrutinising Parliament's Scrutiny of Delegated Legislative Power' (2015) 15 Oxford University Commonwealth Law Journal 3, 9.

⁴⁸ As recommended by the Australian Constitutional Convention, *Official Record of Debates* (Brisbane 1985) vol 1, 415–17; and Advisory Committee on Executive Government, Constitutional Commission, *Report of the Advisory Committee on Executive Government* (1987). Although the most controversial conventions could not be agreed upon within this Committee. See further discussion in the report at 37–43.

⁴⁹ Nicholas Barry and Narelle Miragliotta, 'Australia' in Galligan and Brenton (n 16) 204, 214–15.

⁵⁰ Marshall (n 16) 210.

⁵¹ See Ryan Goss 'A Truly Independent Speaker Could Renew Australia's Parliamentary Democracy' *The Conversation* (21 July 2015) <<https://theconversation.com/a-truly-independent-speaker-could-renew-australias-parliamentary-democracy-44915>> accessed 9 October 2017.

⁵² See, eg, discussion in Oran Doyle 'Conventional Constitutional Law' (2015) 38(2) Dublin University Law Journal 311.

⁵³ See further Anne Twomey, *The Australia Acts 1986: Australia's Statutes of Independence* (Federation Press 2010).

⁵⁴ See Chapter 33 'Co-operative Federalism'.

⁵⁵ See, eg, Paul Kildea and Andrew Lynch, 'Entrenching "Cooperative Federalism": Is it Time to Formalise COAG's Place in the Australian Federation?' (2011) 39 Federal Law Review 109.

⁵⁶ Advisory Committee on Executive Government, Constitutional Commission, *Report of the Advisory Committee on Executive Government* (1987) 42.

⁵⁷ See further Anne Twomey, 'The Dismissal of the Lang Government' in George Winterton (ed), *State Constitutional Landmarks* (Federation Press 2006) 129.

⁵⁸ See further Anne Twomey 'Appointing the Premier in a Hung Parliament—The Tasmanian Governor's Choice' (2010) 25 Australasian Parliamentary Review 53.

⁵⁹ See further Anne Twomey, 'Advice to the Governor-General on the Appointment of Kevin Rudd as Prime Minister' (2014) 24 Public Law Review 289.

⁶⁰ See the critique of this position in *ibid*.

⁶¹ Advisory Committee on Executive Government, Constitutional Commission, *Report of the Advisory Committee on Executive Government* (1987) 41.

⁶² See Patrick Weller, 'Cabinet Government' in Galligan and Brenton (n 16) 72.

⁶³ See, eg, *Freedom of Information Act 1982* (Cth), s 34.

⁶⁴ *Egan v Willis*; *Egan v Chadwick* (n 42) 574 (Spigelman CJ).

⁶⁵ *R v Toohey* (n 43); *FAI Insurance Ltd* (n 43); *Greiner* (n 43).

⁶⁶ HC Deb 29 January 1951, vol 483, col 682.

⁶⁷ Daryl Williams, 'Who Speaks for the Courts?' (1994) AIJA 183, 192.

⁶⁸ *ibid*; Daryl Williams, 'The Role of the Attorney-General' (2002) 13 Public Law Review 252. Australia has never had an office of Lord Chancellor, and it was generally considered that the role of defending the judiciary's independence in the Australian constitutional arrangements fell on the Attorney-General.

⁶⁹ David Hamer, *Can Responsible Government Survive in Australia?* (Department of the Senate 2004) 140–47.

⁷⁰ Prime Minister, *A Guide on Key Elements of Ministerial Responsibility* (1998) 13. Note while this guide has been withdrawn, it nonetheless continues to provide an accurate statement of current practice.

⁷¹ See further Department of Premier and Cabinet, *Guidance on Caretaker Conventions* (1 June 2013) <<http://www.dpmc.gov.au/pmc/publication/guidance-caretaker-conventions>> accessed 9 October 2017, [1.3]. See also Anne Tiernan and Jennifer Menzies, *Caretaker Conventions in Australasia: Minding the Shop for Government* (ANU E-Press 2007); M Simms, 'Westminster Norms and Caretaker Conventions: Australian and New Zealand Transition Debates' in Paul t'Hart and John Uhr (eds), *How Power Changes Hands: Transition and Succession in Government* (Palgrave Macmillan 2011) 94–108; Jennifer Menzies and Anne Tiernan, 'Caretaker Conventions' in Galligan and Brenton (n 16) 91.

⁷² See, eg, the examples in Tiernan and Menzies, *Caretaker Conventions in Australasia: Minding the Shop for Government* (n 71); and Jennifer Menzies and Anne Tiernan, 'Caretaker Conventions', in Galligan and Brenton (n 16) 91.

⁷³ Menzies and Tiernan, 'Caretaker Conventions' (n 72) 110.

⁷⁴ *Constitutional Alteration (Establishment of Republic) 1999* (Cth), s 3, proposed new s 59 of the Constitution.

⁷⁵ For a recent treatment, see Nicholas Barry and Narelle Miragliotta, 'Australia' in Galligan and Brenton (n 16) 204.

⁷⁶ See Jenny Hocking, *The Dismissal Dossier: Everything You Were Never Meant to Know About November 1975* (Melbourne UP 2015).

⁷⁷ Advisory Committee on Executive Government, Constitutional Commission, *Report of the Advisory Committee on Executive Government* (1987) 45.

⁷⁸ Anne Twomey, 'Advice to Vice-Regal Officers by Crown Law Officers and Others' (2015) 26 Public Law Review 193, 211. Whether the Governor-General can directly seek the advice of the Solicitor-General without the prior permission of the Attorney-General under the current arrangements remains an unresolved issue, and recently arose as a point of controversy in 2016 during a wider dispute over a direction issued by the Attorney-General restricting access to the Solicitor-General. See further Gabrielle Appleby, 'Restoring the Independence of the Solicitor-

General' *Inside Story* (15 November 2016) <<http://insidestory.org.au/restoring-the-independence-of-the-solicitor-general>> accessed 9 October 2017.

⁷⁹ Gabrielle Appleby, *The Solicitor-General: Negotiating Law, Politics and the Public Interest* (Hart Publishing 2016) 171.

⁸⁰ Stephen Gaudbaum, 'Separation of Powers and the Growth of Judicial Review in Established Democracies (or Why has the Model of Legislative Supremacy Mostly Been Withdrawn from Sale)' (2014) 62 *The American Journal of Comparative Law* 613, 613.

⁸¹ Bruce Ackerman 'A New Separation of Powers' (2000) 113 *Harvard Law Review* 633, 692–3. See also James Spigelman, 'The Integrity Branch of Government' (2004) 78 *Australian Law Journal* 724.

⁸² James Spigelman, 'The Integrity Branch of Government' (Paper presented at the National Lecture Series for the Australian Institute of Administrative Law, Sydney, 29 April 2004).

⁸³ *South African Constitution*, Chapter 9.

⁸⁴ Administrative Review Committee Report (J R Kerr, Chairman) (Parliamentary Paper No 144 of 1971); 'Final report of the Committee on Administrative Discretions' (Sir Henry Bland, Chairman) (Parliamentary Paper No 317 of 1973).

⁸⁵ *Administrative Decisions (Judicial Review) Act 1977* (Cth).

⁸⁶ *Administrative Appeals Tribunal Act 1975* (Cth).

⁸⁷ *Ombudsman Act 1977* (Cth).

⁸⁸ *Freedom of Information Act 1982* (Cth).

⁸⁹ See, eg, *Legislative Instruments Act 2003* (Cth).

⁹⁰ (1988) 155 CLR 1, 10.

⁹¹ Most recently refuted in relation to the powers of State Parliaments in *Durham Holdings Pty Ltd v New South Wales* (2001) 205 CLR 399.

⁹² *Dietrich v The Queen* (1992) 177 CLR 292.

⁹³ See Chapter 44 'Legality'.

⁹⁴ Marshall (n 16) 9.

⁹⁵ Dan Meagher, 'The Principle of Legality as Clear Statement Rule: Significance and Problems' (2014) 36 *Sydney Law Review* 414, 414. See also James Spigelman, *Statutory Interpretation and Human Rights*, vol 3 (University of Queensland Press 2008).

⁹⁶ *Momcilovic v The Queen* (2011) 245 CLR 1 [45], referring to Trevor Allan, 'The Common Law as Constitution: Fundamental Rights and First Principles' in Cheryl Saunders (ed), *Courts of Final Jurisdiction: The Mason Court in Australia* (Federation Press 1996) 146, 148.

⁹⁷ *Coco v The Queen* (1994) 179 CLR 427, 437.

⁹⁸ See, eg, *Jumbunna Coal Mine NL v Victorian Coal Miners' Assoc* (1908) 6 CLR 309, 363 (Isaacs J); *Chu Kheng Lim v Minister for Immigration, Local Government and Ethnic Affairs* (1992) 176 CLR 1, 38 (Brennan, Deane and Dawson JJ); *Minister for Immigration and Ethnic Affairs v Teoh* (1995) 183 CLR 273, 287 (Mason CJ and Deane J).

⁹⁹ Previously governed by the 'Hickman principles' by reference to *R v Hickman*; *Ex parte Fox and Clinton* (1945) 70 CLR 598, but recourse to these principles is no longer necessary since the High Court has accepted that there is a constitutional protection of access to judicial review at both the Commonwealth and State levels: *Plaintiff S157/2002* (2003) 211 CLR 476; *Kirk v Industrial Court of New South Wales* (2010) 239 CLR 531.

¹⁰⁰ See further Dennis C Pearce and Robert S Geddes, *Statutory Interpretation in Australia* (8th edn, LexisNexis 2014).

¹⁰¹ See, eg, Brendan Lim, 'The Normativity of the Principle of Legality' (2013) 37 Melbourne University Law Review 372; Dan Meagher, 'The Principle of Legality as Clear Statement Rule: Significance and Problems' (2014) 36 Sydney Law Review 414; Dan Meagher, 'The Common Law Principle of Legality in the Age of Rights' (2011) 35 Melbourne University Law Review 450.

¹⁰² (1992) 175 CLR 1.

¹⁰³ *Secretary, Department of Health and Community Services v JWB and SMB* (1992) 175 CLR 218.

¹⁰⁴ *ibid* 253 (Mason CJ, Dawson, Toohey and Gaudron JJ).

¹⁰⁵ See, eg, *ABC v Lenah Game Meats* (1998) 201 CLR 199 [132] (Gummow and Hayne JJ, with whom Gaudron J agreed).

¹⁰⁶ *ibid* [335].

¹⁰⁷ See Chapter 35 'The Federal Principle'; Chapter 37 'Rights Protection in Australia'; Chapter 38 'Due Process'; Chapter 39 'Expression'; and Chapter 40 'Political Participation'.

¹⁰⁸ See, eg, *Coleman v Power* (2004) 220 CLR 1, 114 (Callinan J); *Monis v The Queen* (2013) 249 CLR 92 [237] (Heydon J).

¹⁰⁹ *R v Kirby; Ex parte Boilermakers' Society of Australia* (1956) 94 CLR 254 ('Boilermakers' Case').

¹¹⁰ *Kable* (n 12).

¹¹¹ *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31.

¹¹² *Commonwealth v Cigamatic Pty Ltd* (1962) 108 CLR 372.

¹¹³ *Australian Capital Television v Commonwealth* (1992) 177 CLR 106; *Nationwide News v Wills* (1997) 177 CLR 1; *Lange v Australian Broadcasting Authority* (1997) 189 CLR 520.

¹¹⁴ *Roach v Electoral Commissioner* (2007) 233 CLR 162; *Rowe v Electoral Commissioner* (2010) 243 CLR 1.

¹¹⁵ Beverley McLachlin, 'Unwritten Constitutional Principles: What is Going on?' (Paper delivered at the 2005 Lord Cooke Lecture, Wellington, New Zealand, 1 December 2005) 4.

¹¹⁶ *Reference re: Secession of Quebec* [1998] 2 SCR 217 [50].

¹¹⁷ *Tajjour v New South Wales* [2014] HCA 35.

¹¹⁸ For an examination on the possible reasons for this suspicion of such constitutional norms, see further Rosalind Dixon and Gabrielle Appleby, 'Constitutional Implications in Australia: A Tale of Acceptance and Resistance' in Rosalind Dixon and Adrienne Stone, *The Invisible Constitution* (CUP forthcoming).

¹¹⁹ Brian Galligan and Scott Brenton, 'Constitutional Conventions', in Galligan and Brenton (n 16) 8, 11.

CHAPTER 10

INTERNATIONAL LAW

STEPHEN DONAGHUE

A. INTRODUCTION

AT the time of the drafting of the Australian Constitution, international law primarily concerned dealings between states in a limited number of areas (such as warfare and diplomatic immunity), and was not concerned with the relations of a state with its own citizens. International law primarily comprised a body of customary law, supplemented by a relatively small number of treaties. Further, to the extent that international law was found in treaties, it was generally accepted that the responsibility for making treaties that would be binding on Australia would remain with the Imperial Crown.¹

Given that combination of circumstances, it is not surprising that the Australian Constitution says little about international law. The sole reference to international law is found in section 75(i) of the Constitution, which confers original jurisdiction on the High Court in matters arising under any treaty. Otherwise, the Constitution is silent with respect to international law, making no reference to the power to enter into treaties or the effect of treaties in domestic law, and no express reference to the power to implement treaties.

While the Constitution's near silence on those topics is not surprising, Australia's emergence as a nation following the First World War² meant that constitutional law had to 'follow the facts'.³ Thus, by 1942, it was 'well accepted that Australia had the requisite legal personality to allow it to make treaties in its own right'.⁴ That meant that 'the Crown prerogatives related to foreign affairs and to defence, which were previously exercised exclusively by the sovereign on the advice of British ministers came to be

exercisable by the Governor-General on the advice of Commonwealth ministers'.⁵

The legal basis for the Commonwealth executive having power to enter into treaties on Australia's behalf came to be seen as being section 61 of the Constitution, despite the fact that the proposition that section 61 conferred such a power would undoubtedly have been rejected by the framers of the Constitution (who deleted two of the three references to treaties from the 1897 draft of the Constitution for the express purpose of preventing any perception that Australia claimed that power).⁶ Nevertheless, while it is now clear that section 61 does *not* include all of the powers that are historically prerogatives of the British Crown,⁷ it is equally clear that it *does* include the common law prerogative to make treaties. Further, there is no suggestion that legislative support is needed before executive power of that kind can be exercised.⁸ As Crennan J said in *Williams v Commonwealth (No 1)*:⁹

[T]here are circumstances in which executive power can be exercised lawfully without statutory authority. Such circumstances include the exercise of prerogative powers accorded to the Crown at common law (now reposed in the Commonwealth Executive alone, such as the power to enter a treaty or wage war).

That view was confirmed in *Plaintiff M68 v Minister for Immigration and Border Protection*,¹⁰ where the High Court held that section 61 of the Constitution empowered the Commonwealth executive to enter into a memorandum of understanding with Nauru pursuant to which Nauru agreed to accept asylum seekers transferred from Australia.¹¹ That conclusion was significant, because the memorandum of understanding operated to satisfy a precondition to the conferral of further statutory executive powers on the Commonwealth executive. The existence and source of the power to enter treaties can therefore be regarded as settled.

The dramatic expansion in the subjects and sources of international law that followed the end of the Second World War resulted in new questions concerning the power of the Commonwealth Parliament to implement those obligations in domestic law. Australia has now acceded to over 2,000 treaties, concerning topics including human rights, refugees, trade and investment, environment, health, armed conflict, international criminal law, law of the sea, extradition, and enforcement of judicial and arbitral decisions.¹² In the field of human rights, for example, Australia has ratified major multilateral treaties including the Refugees Convention,¹³ the

International Covenant on Civil and Political Rights (ICCPR),¹⁴ and the Convention against Torture and other Cruel, Inhuman or Degrading Treatment or Punishment (CAT),¹⁵ each of which imposes obligations to respect the interests of vulnerable minorities or individuals under Australia's jurisdiction. It has also entered into many Free Trade Agreements (FTAs) that include promises in favour of the investors of other nations.¹⁶ Modern FTAs now deal with matters such as intellectual property, medicine and health care, food labelling, and immigration rights for nationals of other countries, thereby creating international obligations with respect to matters that have historically been of purely domestic concern.¹⁷ Further, many such agreements contain 'Investor State Dispute Settlement' clauses pursuant to which states agree to submit themselves to arbitration at the suit of the investor of the other state if there is a dispute over the protections conferred by the FTA.¹⁸ Ratification of treaties containing such clauses exposes Australia to enforceable obligations on the international plane, irrespective of whether or not the relevant treaty has been implemented in domestic law.

Given the wide range of international obligations to which Australia is now subject, any assessment of the role that international law plays in the Australian constitutional system must commence with recognition of the fact that there is no single way of describing the relationship between international law and domestic law in Australia. It is always necessary 'to look at the precise form in which international law is being invoked and the precise domestic question, constitutional or otherwise, that arises'.¹⁹ Different issues arise, for example, in assessing the effect of international treaty obligations as opposed to customary international law.²⁰ Different issues again arise in relation to various kinds of 'soft' international law, such as Memoranda of Understanding (MoU), which are frequently utilized by states partly because they do not create binding international obligations, and partly because of the potential for speed and confidentiality that they offer. MoUs have, for example, been the preferred source for arrangements between Australia and Papua New Guinea and Nauru to facilitate the offshore processing of irregular boat arrivals.²¹

This chapter focuses on issues associated with international *treaty* obligations within the Australian constitutional context. It makes no attempt to classify the role of international law in the Australian constitutional

system under all-embracing theories of monism or dualism, or by reference to the doctrines of incorporation or transformation that have emerged from those theories.²² The theoretical debate has been put to one side in part because ‘it has been misleading to a considerable degree because conducted at too high a level of generality’,²³ and in part because the debate:

is largely without practical consequences, for the main practical questions which arise—how do states ... apply the rules of international law, and how is a conflict between a rule of international law and a national rule of law to be resolved? — are answered not by reference to doctrine but by looking at what the rules of various national laws and of international law prescribe.²⁴

This chapter focuses on what those rules of national law reveal. [Section B](#) examines the established principle of the common law of England that the provisions of a treaty do not form part of domestic law unless incorporated into domestic law by statute, before discussing the drafting history of the Constitution that suggests that the common law position was very nearly altered by the Constitution, and the ramifications of that history for the interpretation of section 75(i) of the Constitution. [Section C](#) examines the power of the Commonwealth Parliament to enact legislation to implement Australia’s treaty obligations. [Section D](#) briefly addresses the relevance of international law to the interpretation of the Constitution itself. Finally, [Section E](#) examines the role that international law plays in the interpretation of legislation that wholly or partly incorporates international obligations into domestic law, and the effect of such obligations on administrative action taken pursuant to such statutes.

B. THE EFFECT OF TREATY OBLIGATIONS IN DOMESTIC LAW

Subject to limited exceptions,²⁵ international treaties do not form part of Australian domestic law. As Mason CJ and Deane J put it in *Minister for Immigration and Ethnic Affairs v Teoh*, ‘the provisions of an international treaty to which Australia is a party do not form part of Australian law unless those provisions have been validly incorporated into our municipal law by statute’.²⁶

There are many statements to similar effect, which have been made over a period spanning more than a century.²⁷ The Australian cases do not examine the foundation for this rule, beyond occasionally noting that while

it is for the executive to make treaties, it is Parliament's role to make or alter the law.²⁸ For the most part, the cases simply assume that the effect of entry into a treaty by Australia is the same as the position in the United Kingdom,²⁹ perhaps because the common law on this point was settled well before the Australian Constitution came into effect in 1901.

The case often cited as giving the first clear formulation of the common law rule is the 1879 judgment in *The Parlement Belge*.³⁰ The rule was restated in 1892 in *Walker v Baird*,³¹ but the clearest formulation is found in the judgment of the Privy Council in *Attorney-General for Canada v Attorney-General for Ontario*, where Lord Atkin stated that:³²

Within the British Empire there is a well-established rule that the making of a treaty is an executive act, while the performance of its obligations, if they entail alteration of the existing domestic law, requires legislative action. Unlike some other countries, the stipulations of a treaty duly ratified do not within the Empire, by virtue of the treaty alone, have the force of law. If the national executive, the government of the day, decided to incur the obligations of a treaty which involve alteration of law they have to run the risk of obtaining the assent of Parliament to the necessary statute or statutes.

In *Williams (No 2)*, the High Court emphasized the error in assuming that legal doctrines that developed in England are necessarily applicable in the Australian constitutional context, pointing out that the Constitution may modify or displace such doctrines.³³ Nevertheless, although it was clearly possible for the Constitution to alter the English common law rule concerning the effect of treaties in domestic law, in practice Australian courts never really considered the possibility that this may have occurred.

As it happens, the drafting history of the Constitution reveals that it very nearly did fundamentally alter the English common law rule, for it seems that it was only as a result of a misunderstanding that the framers removed language from what was then covering clause 7 (now covering clause 5) of the early drafts of the Constitution that would likely have been held to have provided for the direct application of certain treaties in domestic law, thereby adopting the United States model concerning the relationship between treaties and domestic law. In the 1891 draft, covering clause 7 read as follows:³⁴

The Constitution established by this Act, and all laws made by the Parliament of the Commonwealth in pursuance of the powers conferred by the Constitution, *and all Treaties made by the Commonwealth*, shall, according to their tenor, be binding on the Courts, Judges, and people of every State, and of every part of the Commonwealth, anything in the laws of any State to the contrary notwithstanding; and the Laws and Treaties of the Commonwealth shall be in force on board of all British ships whose last port of clearance or whose port of destination is in the Commonwealth.

The above clause was plainly modelled upon article VI(2) of the United States Constitution. In 1884, the United States Supreme Court had held that, by reason of article VI(2), some treaties were ‘self-executing’, meaning that they applied directly as part of domestic law.³⁵ It seems likely that, had covering clause 7 survived in its original form, a similar result would have prevailed in Australia.³⁶ The Convention Debates are, however, less than clear about whether this was intended, for while clause 7 was debated at both the Sydney Convention in 1891 and the Adelaide Convention of 1897, in both cases the debate focused exclusively upon the last section of the clause, relating to the law in force upon British ships.³⁷

In the 1891 draft of the Constitution, the power to legislate with respect to ‘external affairs’ now found in section 51(xxix) appeared in section 52(xxvi) as a power relating to ‘External Affairs and Treaties’. The New South Wales Legislative Council debated the draft in 1897, and it suggested amending section 52(xxvi) and covering clause 7.³⁸ The Legislative Council’s concern did not relate to whether treaties should be directly applicable in domestic law. Instead, it was concerned that Australia should not be seen to be making a claim to the power to enter into treaties on its own behalf. It was the prevention of this interpretation of the provisions that was the announced purpose of the amendments introduced by Mr Barton at the Sydney Convention in 1897, the effect of which were to strike out the words ‘and Treaties’ from section 52(xxvi) (which at that Convention became section 52(xxix)) and to remove the reference to treaties from covering clause 7.³⁹ That history is suggestive of a level of confusion on the part of the framers, for ‘[i]n both clauses the word “treaties” was deleted for the same reason, although clause 7 and clause 52(xxvi) deal both with different subject matters’.⁴⁰ While it is clear that at the time of Federation the Commonwealth did not have or want the power to make treaties on its own behalf,⁴¹ that is not a coherent reason for removing a provision that makes any duly made treaty domestically applicable. Mr Glynn, having questioned the wisdom of striking out the reference to treaties in covering

clause 7, requested that an opportunity be provided to reconsider the matter.⁴² This appears never to have been provided. As a consequence, a profound change was made to the Constitution without any consideration being given to the major effect of that change.

The only statement in the Convention Debates that suggests some understanding of the likely effect of covering clause 7 was made by Mr Reid. He stated that the provision would be more in place in the United States Constitution, where treaties are dealt with by the President and the Senate, than in the constitution of a colony within the Empire. Mr Reid pointed out that the treaties made by Her Majesty are not binding as laws on the people of the United Kingdom, and that there is no penalty for disobeying them.⁴³ However, while this passage displays an awareness of the difference between the United States and British systems in relation to the effect of international law in domestic law, it does not appear to recognize the possibility that the Constitution could change the prevailing system.

The only provision in the Constitution in which the word ‘treaties’ remains is section 75(i), which confers original jurisdiction on the High Court ‘in all matters arising under any treaty’. This phrase is borrowed from article III(2) of the United States Constitution, and it makes sense in the context of a system under which treaties can operate directly in domestic law. It is, however, very difficult to give section 75(i) meaning in the context of the traditional British common law rule.⁴⁴

At the Melbourne Convention in 1898, Mr Glynn suggested that section 75(i) of the Constitution Bill should be struck out.⁴⁵ As was noted above, Mr Glynn had questioned the wisdom of deleting the reference to treaties from covering clause 7, and it may be that he appreciated that covering clause 7 and section 75(i) were part of a cohesive scheme. Ironically, however, while the attempt to retain the reference to treaties in clause 7 was met with the argument that the term must be deleted for the sake of consistency with clause 52(xxvi), with regard to section 75(i) it was replied that ‘[i]t cannot do any harm to leave this provision in the clause’ as ‘[s]ome day hereafter it may be within the scope of the Commonwealth to deal with matters of this kind’.⁴⁶ This logic is difficult to follow. As Cowen and Zines observed, ‘[i]t is fairly clear that the Founding Fathers were not very sure of what they were doing here.’⁴⁷ The reference to the possible future scope of

the Commonwealth to deal with ‘matters of this kind’ suggests that the framers may once again have been thinking about the treaty-making power, and that they considered that if the Commonwealth were to acquire a treaty-making power it would be necessary for the High Court to hear matters ‘arising under’ such treaties. If that reasoning is sound, it is difficult to see why it did not similarly prevent the amendment to covering clause 7.

The most detailed judicial examination of section 75(i) occurred in *Bluett v Fadden*, a case relating to the seizure of shares under the *Trading with the Enemy Act 1939–1952* (Cth). There, McLelland J considered that the words ‘a matter arising under a treaty’ had three possible meanings. They were that a matter could so arise if the right sought to be *enforced* owed its existence to the treaty, if the decision in the case depends upon the *interpretation* of a treaty, or if either of the preceding circumstances existed. McLelland J reasoned that in Australia:⁴⁸

a treaty does not itself have legislative effect and cannot be the subject of judicial cognisance until it has received legal sanction and has been carried into operation by appropriate legislative action. It is the legislation which creates the rights which are justiciable and I am of the opinion that, having regard to this fact, the rights can only be said to arise under the legislation and cannot be said to arise under the treaty. Section 75 must, I think, be taken to refer to cases where the decision of the case depends upon the interpretation of the treaty. In such cases, the matter in question arises under the treaty.

One difficulty with McLelland J’s view that a matter ‘arises under’ a treaty because it involves the interpretation of a treaty is that it ignores the textual distinction drawn in section 76(i) between matters arising under the Constitution, and those that involve its interpretation. The High Court has placed reliance on that distinction in interpreting section 76(ii).⁴⁹ Applying the same reasoning as is applied in determining whether a matter arises under a law of the Commonwealth for the purposes of section 76(ii), a matter should arise under a treaty only where the right or duty in question owes its existence to the treaty or depends upon it for its enforcement. However, that will rarely if ever occur if the British common law rule applies, leaving little if any work for section 75(i).

Given this difficulty, it is not surprising that the High Court has never based its jurisdiction on section 75(i), although it has been relied upon by plaintiffs on several occasions. In *Re East; Ex parte Nguyen*,⁵⁰ the Court recognized that ‘[d]iffering views have been expressed, by judges and commentators, as to the operation, if any, of the words “arising under any

treaty” in s 75(i) of the Constitution’.⁵¹ The Court considered *Bluett v Fadden*, and pointed out that McLelland J’s focus on the interpretation of a treaty meant that if ‘the terms of the treaty have by legislation been made part of the law of the land’ it would follow that even if ‘the law did not confer original jurisdiction upon this Court in matters arising under that law, within the meaning of s 76(ii) of the Constitution, this Court would have original jurisdiction by force of s 75(i) itself’.⁵² The Court ultimately found it unnecessary to decide the correctness of *Bluett v Fadden*, because it emphasized that ‘in order to attract jurisdiction under s 75(i), it would be necessary for the applicant to identify a justiciable controversy arising under a treaty’ because only then would there be a ‘matter’.⁵³ The applicant failed at that stage, because there was no ‘immediate right, duty or liability to be established by the determination of the Court’.⁵⁴ In other cases the issue has likewise not been reached. Thus, in *Ruhani v Director of Police*,⁵⁵ the plaintiff relied upon multiple heads of jurisdiction including section 75(i), but the issue was not decided because the Court found that it had jurisdiction by reason of section 76(ii). Similarly, in *Plaintiff M61 v Commonwealth*,⁵⁶ section 75(i) was raised, but the Court did not rely on that head of jurisdiction as it plainly had original jurisdiction by reason of section 75(iii) and section 75(v).

The difficulty with identifying circumstances where a ‘matter’ could ever arise under a treaty has led leading commentators to suggest that it may be necessary to give the phrase ‘arising under’ a different operation with respect to section 75(i) than it has in the more familiar context of section 76(ii), because of the different role that treaties play in the domestic legal system when compared with statutes.⁵⁷ That same view appears implicit in former Commonwealth Solicitor-General Justin Gleeson’s suggestion that section 75(i) ‘should not be read too literally’, and that it ‘speaks to those cases where a treaty has been incorporated into domestic law, thereby creating domestic rights and obligations’ which may need to be resolved through the interpretation of a treaty.⁵⁸

Ultimately, the difficulty with construing section 75(i) arises from the assumption that the provision does not mean what it says. It is always taken as a starting point that treaties do not have any direct effect in domestic law, and from that premise commentators and the courts have striven to find circumstances where a ‘matter’ could ever arise under a treaty. That

approach is at odds with that ordinarily taken where the Constitution appears to be inconsistent with a common law rule, as ordinarily the common law rule should yield or adapt.⁵⁹ While plainly section 75(i) is a conferral of jurisdiction rather than a provision that modifies the substantive law, with the result that there is no direct inconsistency between section 75(i) and the common law rule, section 75(i) implies that it is possible for a 'matter' to arise under a treaty. In order for that to be possible, consistently with the established meaning of the term 'matter', section 75(i) could have been held to support an implication that at least some treaties have direct effect in domestic law without any need for implementing legislation. Such an implication would have been consistent with the role that section 75(i) would undoubtedly have played in the original draft of the Constitution that contained that provision. Further, such an implication would derive further support from section 76(ii), because in any case where legislation has been enacted to incorporate a treaty into domestic law, the proper analysis is that any matter that thereafter arises under the incorporating legislation would attract jurisdiction under section 76(ii). For that reason, if implementing legislation is required in order to give effect to treaties in domestic law, section 75(i) is otiose.

Nevertheless, while such an argument may once have been available, there is now no prospect of any revision of the settled Australian position concerning the effect of unincorporated treaty obligations in domestic law. Certainly, there is no sign in the authorities of any inclination on the part of the High Court to revisit the position. Further, the practical effect of the common law rule is to prevent the executive from altering domestic law without parliamentary involvement, because whatever international obligations the executive decides to accept, it requires the action of Parliament to implement those obligations domestically. The trend in recent High Court authority is towards extending the control of Parliament over the executive, rather than enhancing the power of the executive. In those circumstances, it is most unlikely that the High Court will develop the law in a way that would allow the executive to alter domestic law without parliamentary involvement.

Accordingly, notwithstanding section 75(i) of the Constitution, the scope for treaty obligations to have any direct effect in Australian law is very limited. Nevertheless, there remains considerable scope for international treaty obligations to influence Australian law in less direct ways.

C. DOMESTIC IMPLEMENTATION OF TREATY OBLIGATIONS

1. Treaty Obligations and Commonwealth Legislative Power

As a matter of international law, ordinarily⁶⁰ a lack of constitutional power to implement international obligations is no answer to a charge of breach of those obligations.⁶¹ Accordingly, if the Commonwealth executive has ratified a treaty and it is necessary to alter domestic law in order for Australia to comply with its obligations under that treaty, a question arises as to whether the Commonwealth has power to alter domestic law in that way, even when it would not otherwise have legislative power over the subject matter of the treaty. The answer to that question turns on the scope of the legislative power with respect to ‘external affairs’ under section 51(xxix) of the Constitution.

The extent to which section 51(xxix) empowered the Commonwealth Parliament to enact laws on topics that are not otherwise within the legislative competence of the Commonwealth, and that would therefore, absent any international obligations, have fallen within the exclusive domain of the States, caused acute differences of opinion on the High Court. The difference largely concerned the potential impact that a wide reading of the external affairs power could have on the ‘federal balance’. The debate first arose in *R v Burgess; Ex parte Henry*,⁶² and it was inconclusively revisited in *Koowarta*.⁶³ It was, however, resolved in the *Tasmanian Dam Case*,⁶⁴ where by a narrow majority the High Court held that section 51(xxix) of the Constitution extends to, but is not limited to, empowering the Commonwealth Parliament to implement international obligations⁶⁵ imposed by a bona fide international agreement or by customary international law.

That power is subject to three main limitations.⁶⁶ First, like any other grant of power in section 51 of the Constitution, the power is ‘subject to this Constitution’. Accordingly, in legislating to implement a treaty, Parliament cannot make laws that are otherwise contrary to the Constitution. For example, it cannot contravene the express prohibitions in sections 92 and 116 of the Constitution, or the implied freedom of political communication, implied limitations deriving from Chapter III,⁶⁷ or the implied limitation to

protect the existence of the States and their capacity to function as governments that was recognized in the *Melbourne Corporation Case*.⁶⁸

Second, treaty obligations must not be equated to legislative heads of power. It is not the case that ‘once Australia enters into a treaty Parliament may legislate with respect to the subject matter of the treaty as if that subject matter were a new and independent head of Commonwealth legislative power’.⁶⁹ Instead, as the High Court explained in the *Industrial Relations Act Case*:⁷⁰

When a treaty is relied on under s 51(xxix) to support a law, it is not sufficient that the law prescribes one of a variety of means that might be thought appropriate and adapted to the achievement of an ideal. The law must prescribe a regime that the treaty has itself defined with sufficient specificity to direct the general course to be taken by the signatory states. For this reason, section 51(xxix) does not support the domestic implementation of treaties that are expressed in vague or aspirational terms, because in such a case the range of choices as to the steps that must be taken to comply with the treaty is so wide that it breaks the nexus between the treaty obligation and the steps taken in purported implementation of that obligation.⁷¹

Third, a law under section 51(xxix) that is enacted in order to implement treaty obligations must be tested via a two-step process. The first step is to interpret the treaty, in accordance with applicable principles of international law, so as to identify the scope of the obligations that the treaty imposes.⁷² Once the relevant international obligations have been identified, the second step is to determine whether the legislation in question is in conformity with the treaty obligations.⁷³ To satisfy this second step: ⁷⁴

the law must be reasonably capable of being considered appropriate and adapted to implementing the treaty. Thus, it is for the legislature to choose the means by which it carries into or gives effect to the treaty provided that the means chosen are reasonably capable of being considered appropriate and adapted to that end.

The above test leaves it open to Parliament to implement treaty obligations in a way that does not exactly correspond with those obligations. Once implementing legislation has been enacted, it is that legislation, and not the underlying treaty, that must be interpreted in order to ascertain the rights, duties, and liabilities that it creates.⁷⁵ That is particularly important where Parliament implements only a subset of its obligations under a particular

treaty in domestic law. It is well settled that Parliament can legislate in such a way.⁷⁶ In such a case, any deficiency in implementing the obligations will result in the invalidity of the implementing legislation only if ‘the deficiency is so substantial as to deny the law the character of a measure implementing the Convention or it is a deficiency which, when coupled with other provisions of the law, make it substantially inconsistent with the Convention’.⁷⁷

D. CONSTITUTIONAL INTERPRETATION

The High Court has firmly rejected the use of international law as an aid in the interpretation of the Constitution (presumably including section 61).⁷⁸ While such a use of international law was championed by Kirby J, McHugh J described Kirby J’s approach as ‘heretical’⁷⁹ and as having been ‘decisively rejected’,⁸⁰ while Heydon J suggested that the permissibility of using international law to assist in constitutional interpretation has been ‘denied by 21 justices of this court who have considered the matter, and affirmed by only one’.⁸¹

In essence, Kirby J contended that in the event of ambiguity the Constitution should be presumed to be consistent with international law.⁸² In *Kartinyeri*, for example, Kirby J held that the grant of legislative power in section 51(xxvi) to enact laws with respect to the people of any race did not authorize the enactment of laws detrimental to, or discriminatory against, the people of that race, stating:⁸³

There is no doubt that, if the constitutional provision is clear and if a law is clearly within power, no rule of international law, and no treaty (including one to which Australia is a party) may override the Constitution or any law validly made under it. But that is not the question here ... Where there is ambiguity, there is a strong presumption that the Constitution, adopted and accepted by the people of Australia for their government, is not intended to violate fundamental human rights and human dignity ... In the contemporary context it is appropriate to measure the prohibition by having regard to international law as it expresses universal and basic rights.

It may be doubted whether Kirby J’s attempt to limit the role of international law in constitutional interpretation to cases of ambiguity is a substantial limitation, because ‘constitutional words almost always offer choices to the court because they tend to be pitched at a high level of

generality’,⁸⁴ and because ‘the ambiguity of language is compounded the bigger is the idea and the more enduringly it is expressed’.⁸⁵

However, a more fundamental objection to the proposition that the Constitution should be interpreted consistently with international law is that such a proposition cannot be reconciled with the High Court’s clear acceptance that the legislative powers conferred by section 51 of the Constitution empower the Parliament to enact legislation that is contrary to international law.⁸⁶ In *Horta*, for example, the Court unanimously decided that the legislation giving effect to a treaty made with the Republic of Indonesia was valid, notwithstanding that it breached certain international obligations contained both in multilateral treaties and at customary international law.⁸⁷ In *Kartinyeri*, Gummow and Hayne JJ summarized *Horta* as establishing that ‘no provision of the Constitution confines the legislative power with respect to “External affairs” to the enactment of laws which are consistent with, or which relate to treaties or matters which are consistent with, the requirements of international law’.⁸⁸

That position was affirmed in *AMS*, where Gleeson CJ, McHugh, and Gummow JJ said that ‘[a]s to the Constitution, its provisions are not to be construed as subject to an implication said to be derived from international law.’⁸⁹ The same approach is evident in more recent judgments. In *Magaming v R*,⁹⁰ for example, the Court rejected an argument advanced by the Australian Human Rights Commission to the effect that Chapter III of the Constitution prohibited minimum mandatory sentences, that argument having been based on international human rights instruments preventing cruel, inhuman, or degrading treatment, or arbitrary detention. Similarly, in *Tajjour v New South Wales*,⁹¹ the Court rejected the argument that there was a free-standing implied freedom of political association under the Constitution based on the ICCPR’s right of citizens to take part in public affairs.

Underlying the High Court’s rejection of the use of international law in constitutional interpretation is a concern that to attempt to construe the Constitution in accordance with rules of international law that have developed since the Constitution was adopted would be, in effect, to amend the Constitution, and to do so by reference to a body of international rules of widely variable status and content (some of which may not reflect fundamental, or even generally accepted, values).⁹² As Walker put it, ‘the

mere fact that the executive has chosen to enter into certain contractual arrangements with another nation does not seem of itself to require any strong principle that the Constitution should be interpreted in conformity with such arrangements'.⁹³

While the strong proposition that constitutional ambiguity must be resolved consistently with international law has been rejected, that does not deny that, in particular circumstances, international law may be of assistance in elucidating the meaning of constitutional language or principles. International law has been used in that way from time to time. For example, in *Robtelmes v Brennan*⁹⁴ the High Court 'gave meaning to the aliens power (s 51(xix)) against the background of international law principles of sovereignty in place at the time'.⁹⁵ Similarly, in *Thomas v Mowbray*⁹⁶ the scope of the defence power was informed in part by international law developments in the concept of terrorism. That use of international law has utility because constitutional interpretation involves ascertaining the meaning of terms that are not precisely defined, in circumstances where 'it would be reasonable to think that the emerging rules of public international law at 1901 provided a backdrop to many heads of power and a tool to assist in understanding their reach'.⁹⁷

In the same vein, certain functions or powers inhere within section 61 of the Constitution by virtue of 'Australia's status as an independent, sovereign nation State'.⁹⁸ To that extent, the nature and extent of the power conferred by section 61 of the Constitution may be informed by international law, because international law defines the extent to which it is accepted that nation states are capable of undertaking certain roles or functions. As French J observed in *Ruddock v Vadarlis*, 'the scope of the Executive power conferred by s 61 of the Constitution is to be measured by reference to Australia's status as a sovereign nation and by reference to the terms of the Constitution itself'.⁹⁹ His Honour (with whom Beaumont J relevantly agreed) held that the non-statutory executive power of the Commonwealth included the power to prevent the entry of non-citizens to Australia,¹⁰⁰ partly on the basis of the long-recognized principle of international law that 'the supreme power of every state has a right to make laws for the exclusion or expulsion of a foreigner'.¹⁰¹ In that way, international law informed the content of the non-statutory executive power

of the Commonwealth.¹⁰² In *CPCF*, Keane J adopted that reasoning.¹⁰³ There are, however, limits to reasoning of this kind, because of the need to distinguish between sovereign power at international law, on the one hand, and prerogative power, on the other. The fact that a state has a power at international law does not answer the question of who, as a matter of domestic law, can exercise that power.¹⁰⁴ That point was made in dissent in *CPCF* by Hayne and Bell JJ, and by Kiefel J in a separate judgment, each of whom considered that while international law recognized that the power to exclude non-citizens was an incident of sovereignty, that did not assist in ascertaining the scope of non-statutory executive power because international law said nothing as to the distribution of powers between the arms of government within each sovereign nation.¹⁰⁵ That point has evident force.

E. THE EFFECT OF TREATIES ON LEGISLATIVE INTERPRETATION AND EXECUTIVE POWER

Once it is accepted that the Commonwealth Parliament can legislate contrary to international law, it follows that the courts must give effect to legislation that is contrary to Australia's international obligations provided that the intention to legislate in that way is sufficiently clear. Nevertheless, it is well settled that, so far as the text permits, legislation should be interpreted consistently with Australia's international obligations.¹⁰⁶ An early statement of the applicable approach was made by Dixon J in *Polites*, who observed that 'unless a contrary intention appears, general words occurring in a statute are to be read subject to the established rules of international law and not as intended to apply to persons or subjects which, according to those rules, a national law of the kind in question ought not to include'.¹⁰⁷ That approach was re-affirmed in *Teoh*, where Mason CJ and Deane J said:¹⁰⁸

Where a statute or subordinate legislation is ambiguous, the courts should favour that construction which accords with Australia's obligations under a treaty or international convention to which Australia is a party, at least in those cases in which the legislation is enacted after, or in contemplation of, the relevant international instrument.

While the formulation of the rule in *Teoh* limits the use of international law to cases of ambiguity, that is not a significant limitation in practice, because Mason CJ and Deane J explained that in this context ‘there are strong reasons for rejecting a narrow conception of ambiguity’, and that ‘[i]f the language of the legislation is susceptible of a construction which is consistent with the terms of the international instrument and the obligations which it imposes on Australia, then that construction should prevail.’¹⁰⁹

The principle of interpretation summarized above is no more than a canon of construction, and Mason CJ and Deane J denied that its effect is to ‘import the terms of the treaty or convention into our municipal law as a source of individual rights and obligations’.¹¹⁰ But that claim may be doubted, for in recent years the significance of this canon of construction has been powerfully illustrated in the context of refugee litigation under the *Migration Act 1958* (Cth).

In a line of judgments commencing in 2010, the High Court identified implied limitations in various parts of the *Migration Act* on the express footing that those implications were necessary to ensure that Australia complies with its obligations under the Refugees Convention. It adopted that approach notwithstanding its earlier acceptance that ‘[t]he Convention has not been enacted as part of the law of Australia’ and that ‘[s]ection 36 of the Act is the only section (apart from the interpretation section, s 5) which refers in terms to the Convention. That does not mean that thereby the whole of it is enacted into Australian law.’¹¹¹

The first case in that line is *M61*,¹¹² where the High Court based its reasoning in part on the proposition that:¹¹³

[R]ead as a whole, the *Migration Act* contains an elaborated and interconnected set of statutory provisions directed to the purpose of responding to the international obligations which Australia has undertaken in the Refugees Convention and the Refugees Protocol. In some respects ... the provisions of the *Migration Act* may, at times, have gone beyond what would be required to respond to those obligations. It is not necessary to explore those issues here ... [T]he text and structure of the Act proceed on the footing that the Act provides power to respond to Australia’s international obligations by granting a protection visa in an appropriate case and by not returning that person, directly or indirectly, to a country where he or she has a well-founded fear of persecution for a Convention reason.

That passage has been cited in many subsequent cases, and it became the foundation for numerous implied restrictions in the *Migration Act* which were found to be necessary to ensure that administrative decisions could not

be taken under that Act that were inconsistent with Australia's obligations under the Refugees Convention.

The most dramatic illustration is provided by the judgment of the High Court in the *Malaysia Declaration Case*,¹¹⁴ which concerned the validity of domestic steps taken to give effect to an agreement reached between Australia and Malaysia pursuant to which Australia was to transfer to Malaysia up to 800 asylum seekers who had irregularly arrived by sea in Australia. In order to give effect to that agreement in domestic law, the Commonwealth Minister made a declaration under the then section 198A of the *Migration Act* to the effect that Malaysia was a country that provided protection while refugee claims were assessed, that it met relevant human rights standards in doing so.

In the *Malaysia Declaration Case* the High Court held, by majority, that this declaration was invalid. Gummow, Hayne, Crennan and Bell JJ held that a declaration could validly be made under section 198A only with respect to a country that was under a domestic or international legal obligation to provide protections to asylum seekers of the kind that Australia undertook to provide when it became a party to the Refugees Convention. Section 198A was construed in that way in part in reliance on the passage quoted above from *M61* concerning the purpose of the Act being to respond to Australia's obligations under the Refugees Convention.¹¹⁵ The result was that, notwithstanding the fact that the Act does not incorporate the Refugees Convention, it was nevertheless construed in such a way that it did not authorize a major policy initiative of the then Commonwealth executive because of the absence of a legal guarantee that persons transferred to Malaysia would thereafter be treated in Malaysia in a manner that complied with Australia's obligations under that Convention.

In the same case, the High Court also found that the general power to remove unlawful non-citizens from Australia under section 198 of the *Migration Act* did not empower the Commonwealth to remove non-citizens from Australia if that removal would be contrary to Australia's (unincorporated) non-refoulement obligations under the Refugee Convention.¹¹⁶ Gummow, Hayne, Crennan and Bell JJ concluded that:¹¹⁷

[T]o read s 198(2) of the Act as providing a power to remove from Australia to *any* country that is willing to receive the person concerned any offshore entry person who claims to be a person to whom Australia owes protection obligations, but whose claims have not been assessed, would deny the legislative intention evident from the Act as a whole: that its provisions are intended to facilitate Australia's compliance with the obligations undertaken in the Refugees Convention and the Refugees Protocol.

This implied restriction on the removal power under section 198 was subsequently held by a Full Court of the Federal Court to extend to prevent removal from Australia contrary to Australia's non-refoulement obligations under the ICCPR and the Convention Against Torture.¹¹⁸

The above cases demonstrate that, even in circumstances where treaty obligations have *not* been incorporated into domestic law, those obligations may nevertheless have profound implications for the interpretation of domestic legislation, and therefore for the rights and duties of governments and individuals. In particular, the rule of construction that Parliament does not intend to legislate contrary to Australia's international obligations may result in the implication of restrictions that have little textual foundation, if those restrictions are necessary to *ensure* compliance with international law (it being insufficient to interpret legislation merely so as to permit the Executive to *choose* to act in a way that is consistent with international law).

The practical implication of the courts adopting a strong presumption that legislation is intended to be consistent with international law is that, if Parliament does not wish its legislation to be read down by reference to international law, it needs to be very explicit. In recent years that has led to the enactment of provisions in Commonwealth legislation that expressly contemplate the making of decisions that are contrary to international law. For example, section 197C of the *Migration Act*, which was enacted to reverse the implied limitation on the removal power that was identified in the *Malaysia Declaration Case*, provides that 'For the purposes of section 198, it is irrelevant whether Australia has non-refoulement obligations in respect of an unlawful non-citizen', and that the duty to remove arises 'irrespective of whether there has been an assessment, according to law, of Australia's non-refoulement obligations in respect of the non-citizen'.

Even more explicitly, in amendments to the *Maritime Powers Act 2013* (Cth) that were enacted late in 2014, prior to the High Court handing down its judgment in *CPCF* (which concerned the legality of the Commonwealth's actions in turning back a boat carrying asylum seekers),

Parliament inserted a new section 75A(1), which provides in part that the exercise of certain powers under the *Maritime Powers Act* is not invalid because of failure to consider Australia's international obligations, defective consideration of Australia's international obligations, or because the exercise of the power is inconsistent with Australia's international obligations. That provision was plainly intended to prevent international law from having a limiting effect on statutory power to turn back boats approaching Australia, in anticipation of the risk that the High Court might have accepted an argument that had been advanced in *CPCF* (on the basis of the *Malaysia Declaration Case*) that international obligations limited the powers conferred by that Act despite the absence of legislation incorporating those obligations into domestic law.¹¹⁹

Interestingly, despite the strong role which has been given to the principle of construction that legislation should be construed to be consistent with international law, the courts have resisted the direct invocation of international law to restrict administrative decision-making. For example, in *CPCF*, Gageler J referred to the principle of statutory construction discussed above before stating:¹²⁰

Application of that principle to a statute conferring power on an executive officer to take action outside Australia requires the language of that statute to be read so far as possible as *empowering* the officer to act in conformity with applicable international law norms, as understood within the international community. *The principles gives rise to no presumption that the statute is to be read as legislatively constraining the officer to act in conformity with international law norms as those norms might be ascertained, interpreted and then enforced by a domestic court.*

Not only is the executive not ordinarily required 'to act in conformity with international law norms', but as the law presently stands such norms often need not even be *considered*. That follows because 'in the absence of express provision, unenacted international obligations are not mandatory relevant considerations attracting judicial review for jurisdictional error'.¹²¹ Indeed, even if an administrative decision-maker chooses to have regard to Australia's international obligations when making a particular decision, and then errs in his or her understanding of those obligations, that error ordinarily will not affect the validity of the resultant decision.¹²²

The position is similar with respect to the non-statutory executive power conferred on the Commonwealth executive by section 61 of the Constitution. As Keane J put it in *CPCF*, '[p]owers exercisable by the

Executive government under the common law are not limited by international law obligations *not* incorporated into domestic law.’¹²³

Finally, while the High Court held in *Teoh*¹²⁴ that ratification of a treaty gave rise to a legitimate expectation that Australia would not act contrary to its treaty obligations without affording an affected person an opportunity to be heard, the High Court has since indicated that ‘the phrase “legitimate expectation” when used in the field of public law either adds nothing or poses more questions than it answers and is thus an unfortunate expression which should be disregarded’.¹²⁵

Given the above, a failure to *comply* with an international obligation will not affect the validity of executive action unless legislation conditions the taking of such action on compliance with that obligation, while a failure to *consider* an international obligation will affect the validity of an administrative decision only if, properly construed, the legislation pursuant to which that decision is made makes that international obligation a mandatory relevant consideration.¹²⁶ Otherwise, even in cases where legislation specifically mentions some international obligations, the question of compliance with those obligations is ‘to be addressed by the Australian Government from time to time as the exigencies of the occasion might require’.¹²⁷

F. CONCLUSION

International law has no direct role in the Australian legal system. While section 75(i) of the Constitution could have been interpreted as requiring Australian law to depart from the British common law rule that the ratification of a treaty has no direct effect in domestic law unless the treaty is incorporated by legislation, section 75(i) has never been treated as having that effect. The High Court has, instead, repeatedly endorsed the British common law rule, notwithstanding the fact that the result is to render otiose the one reference to international law in the Australian Constitution.

Notwithstanding the fate of section 75(i), and the complete silence of the Constitution in relation to the power to enter or to implement treaties, the Commonwealth plainly possesses both of those powers. The High Court has interpreted the executive power conferred by section 61 as authorizing the Commonwealth executive to enter into treaties on Australia’s behalf, and

the legislative power conferred by section 51(xxix) with respect to ‘external affairs’ as including the power to implement in domestic law such international agreements as the executive chooses to enter. As a result, the interpretation of the Constitution has kept pace with the rapid development of international law since the Constitution was drafted, despite the fact that the High Court insists that the Constitution itself should not be interpreted to attempt to achieve consistency with international law.

Further, while the common law rule that treaties do not form part of domestic law has been repeatedly endorsed, in practice the interpretive presumption that legislation is to be construed if possible so as to be compatible with Australia’s international obligations has resulted in numerous cases in which unincorporated treaty obligations have played a central role in High Court litigation. The result is that no strict dichotomy can be drawn between legislation that incorporates international obligations and legislation that does not.

For the above reasons, any attempt to state the role of international law in the Australian constitutional system in simple or categorical terms is doomed to failure. Experience suggests that the way in which international law can be deployed continues to evolve, and that there is presently no single way to describe the role that international law now plays in domestic law in Australia. While direct attempts to invoke international law in domestic law are likely to continue to fail, the significance of international law as an indirect limit on executive power continues to grow. The limits of that growth remain to be seen.

¹ John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (LexisNexis Butterworths, first published 1901, 2002 edn) 768–70. See also Attorney-General’s Department, *Opinions of Attorneys-General of the Commonwealth of Australia: Volume 1: 1901–14*, 134, Opinion No 107 (Opinion of Alfred Deakin, 1902).

² See James Stellios, *Zines’s The High Court and the Constitution* (6th edn, Federation Press 2015) 417; *New South Wales v Commonwealth* (1975) 135 CLR 337, 373 (Barwick CJ), 497–98 (Jacobs J) (*‘Seas and Submerged Lands Act Case’*).

³ In *Sue v Hill* (1999) 199 CLR 462, 487, four justices approved the observation of Windeyer J in *Bonser v La Macchia* (1969) 122 CLR 177, 223–24 that the law had followed the facts, and that Australia had become ‘by international recognition ... competent to exercise rights that by the law of nations are appurtenant to, or attributes of, sovereignty’. See also *XYZ v Commonwealth* (2006) 227 CLR 532, [12] (Gleeson CJ).

⁴ Anne Twomey, 'International Law and the Executive' in Brian Opeskin and Donald Rothwell (eds), *International Law and Australian Federalism* (1st edn, Melbourne UP 1996) 69, 74; see also Leslie Zines, 'The Growth of Australian Nationhood and its Effect on the Powers of the Constitution' in Leslie Zines and Geoffrey Sawer (Eds), *Commentaries on the Australian Constitution* (Butterworths 1997) ch 1. As early as 1929, the Royal Commission on the Australian Constitution had recognized the right of the Commonwealth executive to exercise the treaty-making power.

⁵ Stellios (n 2) 417–18.

⁶ See the text accompanying n 40 below; Geoffrey Lindell, *Cowen and Zines's Federal Jurisdiction in Australia* (4th edn, Federation Press 2016) 52.

⁷ *Williams v Commonwealth (No 2)* (2014) 252 CLR 416, [79]; *CPCF v Minister for Immigration and Border Protection* (2015) 255 CLR 514, [42] (French CJ); Leslie Zines, 'The Inherent Executive Power of the Commonwealth' (2005) 16 Public Law Review 279, 279–80.

⁸ Stellios (n 2) 418; Justin Gleeson SC, 'The Australian Constitution and International Law' (2015) 40 Australian Bar Review 149, 156.

⁹ (2012) 248 CLR 156, [484] (Crennan J). See also [83] (French CJ) and, less relevantly, [139] and [143] (Gummow and Bell JJ); *CPCF* (n 7) [484] (Keane J).

¹⁰ (2016) 257 CLR 42.

¹¹ *ibid* (see the answer to Question 2(a)). In particular, see [45] (French CJ, Kiefel and Nettle JJ), [68] (Bell J), [178] (Gageler J), [201] (Keane J), [365], and [370] (Gordon J, dissenting).

¹² Gleeson (n 8) 150–51.

¹³ Convention Relating to the Status of Refugees [1954] ATS 5, as amended by the Protocol relating to the Status of Refugees done at New York on 31 January 1967.

¹⁴ International Covenant on Civil and Political Rights [1980] ATS 23.

¹⁵ Convention against Torture and other Cruel, Inhuman or Degrading Treatment or Punishment [1989] ATS 21.

¹⁶ As at 22 January 2016, Australia had ten FTAs in place, covering 67 per cent of its total trade. In addition, it was party to bilateral agreements with India and Indonesia; and plurilateral agreements with the Trans-Pacific Partnership Agreement (TPP), the Gulf Cooperation Council (GCC), the Pacific Trade and Economic Agreement (PACER Plus), and the Regional Comprehensive Economic Partnership Agreement (RCEP): see Department of Foreign Affairs and Trade, 'About Free Trade Agreements' <<http://www.dfat.gov.au/trade/agreements/Pages/about-ftas.aspx>> accessed 22 January 2016.

¹⁷ See Senate Foreign Affairs, Defence and Trade References Committee, *Blind Agreement: Reforming Australia's Treaty Making Process* (June 2015) [2.27]–[2.31].

¹⁸ See Robert French, 'Investor-state dispute settlement—A Cut Above the Courts?' (Speech delivered to Supreme and Federal Courts Judges' Conference, 9 July 2014, Darwin).

¹⁹ Gleeson (n 8) 150.

²⁰ The common law may have recognized customary international law as part of the law of England: *Triquet v Bath* (1764) 3 Burr 1478, 1481, 97 ER 936, 938 (Lord Mansfield); *Trendtex Trading Corporation v Central Bank of Nigeria* [1977] 1 QB 529, 553–54; but cf *Jones* [2007] 1 AC 136 [11] (Lord Bingham, preferring the view that international law is a 'source' of the common law), [59] (Lord Hoffman), [100] (Lord Mance). In Australia, the position is not settled, but there is significant support for the view that customary international law is not automatically part of Australian law, but is a source that may be used to develop the common law: *Chow Hung Ching v R* (1948) 77 CLR 449, 477 (Dixon J); *Mabo v Queensland (No 2)* (1992) 175 CLR 1, 42, 55 (Brennan J, Mason CJ and McHugh J concurring); *Western Australia v Commonwealth* (1995) 183 CLR 373, 486.

²¹ The use of such ‘arrangements’ being expressly contemplated in the *Migration Act 1958* (Cth), ss 198AB, 198AHA.

²² For a discussion of these doctrines see Kristen Walker, ‘Treaties and the Internationalisation of Australian Law’ in Cheryl Saunders (ed), *Courts of Final Jurisdiction: The Mason Court in Australia* (Federation Press 1996) 204.

²³ James Crawford, ‘General International Law and the Common Law: A Decade of Developments’ (1982) 76 *American Society of International Law Proceedings* 232, 232.

²⁴ Robert Jennings and Arthur Watts, *Oppenheim’s International Law* (9th edn, OUP 2008) 54.

²⁵ See Mark Leeming, ‘Federal Treaty Jurisdiction’ (1999) 10 *Public Law Review* 173, 175, arguing that there are three areas where treaties can apply without incorporating legislation, being treaties: (i) terminating a state of war; (ii) recognizing a foreign government; (iii) determining international boundaries.

²⁶ (1995) 183 CLR 273, 286–87.

²⁷ See *Brown v Lizards* (1905) 2 CLR 836, 860 (Griffith CJ); *R v Burgess; ex parte Henry* (1936) 55 CLR 608, 644 (Latham CJ); *Chow Hung Ching* (1948) 77 CLR 449, 478 (Dixon J); *Koowarta v Bjelke-Petersen* (1982) 153 CLR 168, 193 (Gibbs CJ), 212 (Stephen J), 224 (Mason J); *Mabo v Queensland (No 2)* (n 20) 55 (Brennan J, Mason CJ and McHugh J concurring), 79 (Deane and Gaudron JJ); *Victoria v Commonwealth* (1996) 187 CLR 416, 480 (‘*Industrial Relations Act Case*’); *Tajjour v New South Wales* (2014) 88 ALJR 860, 879 (French CJ), 886 (Hayne J), 891 (Gageler J), 908 (Keane J); *CPCF* (n 7) [21] (French CJ), [490] (Keane J).

²⁸ See, eg, *Teoh* (n 26) 287; *Simsek v Macphee* (1982) 148 CLR 636, 642.

²⁹ See, eg, Walker, ‘Treaties and the Internationalisation of Australian Law’ (n 22) 204, 205; Ivan Shearer, ‘The Relationship Between International Law and Domestic Law’ in Brian Opeskin and Donald Rothwell, *International Law and Australian Federalism* (1st edn, Melbourne UP 1996) 34, 47.

³⁰ (1879) 4 PD 129.

³¹ [1892] AC 491.

³² [1937] AC 326, 347.

³³ *Williams No 2* (n 7) [79], [81]–[83].

³⁴ Official Report of the National Australasian Convention Debates: (Sydney, 1891, 944 (emphasis added).

³⁵ *Head Money Cases*, 112 US 580 (1884).

³⁶ Günther Doeker, *The Treaty-Making Power in the Commonwealth of Australia* (Martinus Nijhoff 1966) 32.

³⁷ Official Report of the National Australasian Convention Debates, (Sydney, 1891) (n 34) 558–60; Official Report of the National Australasian Convention Debates (Adelaide 1897) 626–28, 1222.

³⁸ NSW, Parliamentary Debates (1897) vol 89.

³⁹ Official Record of the Debates of the Australasian Federal Convention (Sydney, 1897) 240.

⁴⁰ James McLeod Hendry, *Treaties and Federal Constitutions* (Public Affairs Press 1955) 33.

⁴¹ Patrick Brazil and Bevan Mitchell, *Opinions of Attorneys-General of the Commonwealth of Australia*, vol 1 (AGPS 1988) 2, 134. For a discussion of the prevailing view of the Commonwealth’s external competence at the time of Federation, see A H F Lefroy, ‘The Commonwealth of Australia Bill’ (1899) 15 *Law Quarterly Review* 281, 291; W Jethro Brown, ‘The Australian Commonwealth Bill’ (1900) 16 *Law Quarterly Review* 24, 26; see generally, John A La Nauze, *The Making of the Australian Constitution* (Melbourne UP 1972).

⁴² Official Record of the Debates of the Australasian Federal Convention (Melbourne, 1898) 30.

⁴³ Official Record of the Debates of the Australasian Federal Convention, *ibid* (Sydney, 1897) (n 39) 240.

⁴⁴ Australia, *Royal Commission on the Constitution* (Reden, Chair) Report (1929) 102 (quoting evidence of Mr Owen Dixon KC); Lindell (n 6) 52; Quick and Garran (n 1) 769.

⁴⁵ Official Record of the Debates of the Australasian Federal Convention (Melbourne, 1898) (n 42) 320.

⁴⁶ *ibid* (Mr Symon).

⁴⁷ Lindell (n 6) 52.

⁴⁸ [1956] SR (NSW) 254, 261.

⁴⁹ See *R v Commonwealth Court of Conciliation and Arbitration; ex parte Barrett* (1945) 70 CLR 141, 152–53. This point was made in *R v Donyadideh* (1993) 115 ACTR 1, where Miles CJ declined to follow *Bluett v Fadden*.

⁵⁰ (1998) 196 CLR 354.

⁵¹ *ibid* [16].

⁵² *ibid* [17].

⁵³ *ibid* [18].

⁵⁴ *ibid* [18], [34].

⁵⁵ (2005) 222 CLR 489. Only Kirby J addressed the point, at [210].

⁵⁶ (2010) 243 CLR 319 [51].

⁵⁷ Lindell (n 6) 56.

⁵⁸ Gleeson (n 8) 162. Gleeson supports this argument by reference to Quick and Garran (n 1) 768–70, who discuss several cases where courts were required by domestic law to interpret an incorporated treaty, and in this delegated or derivative sense to engage in an exercise of international law: *Ex parte Marks* (1894) 15 NSWLR 179; *Ex parte Rouanet* (1894) 15 NSWLR 269.

⁵⁹ See, eg, *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520.

⁶⁰ This qualification being necessary because of the occasional use of ‘federal clauses’ in which States may limit their obligations to take action that requires the co-operation of different parts of a federal system.

⁶¹ Vienna Convention on the Law of Treaties 1969, art 27.

⁶² (n 27).

⁶³ *Koowarta v Bjelke-Petersen* (1982) 153 CLR 168, being a case that lacked a *ratio* because Stephen J’s reasoning differed from that of the other three members of the majority.

⁶⁴ *Commonwealth v Tasmania* (1983) 158 CLR 1, 129–30 (Mason J), 171–72 (Murphy J), 220–21 (Brennan J), 258–59 (Deane J) (‘*Tasmanian Dam Case*’).

⁶⁵ The ratio of the *Tasmanian Dam Case* was confined to the implementation of international obligations because Brennan J (who was one member of the four Justice majority) would have required examination of whether a subject was a matter of ‘international concern’ in considering whether s 51(xxix) supported legislation that went beyond the implementation of obligations. In the *Industrial Relations Act Case*, the High Court upheld a law under s 51(xxix) that was *not* limited to implementing obligations under the relevant treaty (being a law giving effect to recommendations of the ILO). Further, in *M68* (n 10) [404], Gordon J referred to s 51(xxix) as a power to implement ‘international agreements’, the relevant agreement in that case being a MOU.

⁶⁶ *Stellios* (n 2) 421–27.

⁶⁷ *M68* (n 10) [408] (Gordon J, in dissent, holding that a provision that would otherwise have been supported by s 51(xxix) was invalid by reason of Chapter III).

⁶⁸ *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31. If, eg, Australia breaches its obligations under a FTA as a result of action taken by a State, an international arbitral body may make orders requiring Australia to take remedial action. That would give rise to a number of constitutional questions, including could the Parliament enact a law requiring the State to amend its own legislation to give effect to the mandatory orders of the international tribunal? Alternatively, could the Commonwealth enact legislation requiring the State to indemnify it in respect of an ISDS award: see Gleeson (n 8) 161.

⁶⁹ *Tasmanian Dam Case* (n 64) 131 (Mason J).

⁷⁰ *Industrial Relations Act Case* (n 27) 486.

⁷¹ *Stellios* (n 2) 435–36.

⁷² *Queensland v The Commonwealth* (1989) 167 CLR 232, 240 (Mason CJ, Brennan, Deane, Toohey, Gaudron and McHugh JJ); Peter Hanks, Frances Gordon and Graeme Hill, *Constitutional Law in Australia* (3rd edn, LexisNexis Butterworths 2012) 483.

⁷³ See, eg, *R v Burgess* (n 27), where the relevant regulation was held invalid on this ground.

⁷⁴ *Industrial Relations Act Case* (n 27) 487.

⁷⁵ See, eg, *Minister for Immigration and Citizenship v MZYYL* (2012) 207 FCR 211, [18]–[20].

⁷⁶ *Industrial Relations Act Case* (n 27) 488; *Tasmanian Dam Case* (n 64) 172, 233–34, 268; *Chu Kheng Lim v Minister for Immigration* (1992) 176 CLR 1, 75 (McHugh J).

⁷⁷ *Industrial Relations Act Case* (n 27) 489.

⁷⁸ See, eg, Devika Hovell and George Williams, ‘A Tale of Two Systems: The Use of International Law in Constitutional Interpretation in Australia and South Africa’ (2005) 29 Melbourne University Law Review 95, 96; Kristen Walker, ‘International Law as a Tool of Constitution Interpretation’ (2002) 28 Monash Law Review 85, 85; Luke Beck, ‘What is Kirby’s Interpretive Principle Really About?’ (2013) 87 Australian Law Journal 200; Hilary Charlesworth, Madelaine Chiam, Devika Hovell, and George Williams, ‘Deep Anxieties: Australia and the International Order’ (2003) 25 Sydney Law Review 423, 463; Brent Michael, ‘International Law in Constitutional Interpretation: A Theoretical Perspective’ (2012) 23 Public Law Review 197, 215.

⁷⁹ *Al-Kateb v Godwin* (2004) 219 CLR 562 [62].

⁸⁰ *ibid* [63].

⁸¹ *Roach v Electoral Commissioner* (2007) 233 CLR 162 [181].

⁸² See, eg, *Newcrest Mining (WA) v Commonwealth* (1997) 190 CLR 513, 657–58; *Thomas v Mowbray* (2007) 233 CLR 307, 441.

⁸³ *Kartinyeri v Commonwealth* (1998) 195 CLR 337, 418 (Kirby J). See also at 411; *Al Kateb* (n 79) [174]–[175].

⁸⁴ Robert French, ‘Home Grown Laws in a Global Neighbourhood: Australia, the United States and the Rest’ (2011) 85 Australian Law Journal 147, 158.

⁸⁵ Stephen Gageler, ‘Beyond the Text: A Vision of the Structure and Function of the Constitution’ (Sir Maurice Byers Memorial Lecture delivered at the New South Wales Bar Association, Sydney, 7 April 2009).

⁸⁶ *Horta v Commonwealth* (1994) 181 CLR 183, 195. See also *Polites v Commonwealth* (1945) 70 CLR 60, 69 (Latham CJ), 74 (Rich J), 75–76 (Starke J), 78 (Dixon J), 79 (McTiernan J), 81 (Williams J); *Koowarta v Bjelke-Peterson* (1982) 153 CLR 168, 204; *AMS v AIF* (1999) 199 CLR 160; *Kartinyeri* (n 83) [95]–[101]; *CPCF* (n 7) [462]; *Al-Kateb* (n 79) [65]–[67] (McHugh J).

⁸⁷ *Horta* (n 86) 195.

⁸⁸ *Kartinyeri* (n 83) 385.

⁸⁹ *AMS v AIF* (1999) 199 CLR 160, [50] (Gleeson CJ, McHugh and Gummow JJ).

- ⁹⁰ (2013) 252 CLR 381.
- ⁹¹ (2014) 254 CLR 508.
- ⁹² *Al-Kateb* (n 79) [63], [68]–[69]. See also Michael (n 78) 213.
- ⁹³ Walker, ‘International Law as a Tool of Constitution Interpretation’ (n 78) 98–99.
- ⁹⁴ (1906) 4 CLR 395, 402–404 (Griffith CJ), 407–415 (Barton J), 417, 419, 422 (O’Connor J).
- ⁹⁵ Gleeson (n 8) 171.
- ⁹⁶ (2007) 233 CLR 307.
- ⁹⁷ Gleeson (n 8) 172.
- ⁹⁸ *Ruddock v Vadarlis* (2001) 110 FCR 491, 540 (French J).
- ⁹⁹ *ibid* 542 (French J).
- ¹⁰⁰ *ibid* 543 (French J).
- ¹⁰¹ *ibid* 541 (French J).
- ¹⁰² This position is consistent with *dicta* of Barwick CJ in *Victoria v Commonwealth and Hayden* (1975) 134 CLR 338, 362; see also *Davis v Commonwealth* (1988) 166 CLR 79, 94; *Pape v Federal Commissioner of Taxation* (2009) 238 CLR 1, 49 (French CJ).
- ¹⁰³ *CPCF* (n 7) [478]–[492] (Keane J), cf [42], where French CJ left the point open.
- ¹⁰⁴ This is not a new point: see, eg, HC Deb, 10 May 1816, 446–470 (470), cited in Sir William Holdsworth, *A History of English Law*, vol X (Sweet and Maxwell 1938) 396–97.
- ¹⁰⁵ *CPCF* (n 7) [143], [150] (Hayne and Bell JJ), [264]–[265] (Kiefel J). See also Stellios (n 2) 401; *Ruddock v Vadarlis* (n 98) 499 (Black CJ).
- ¹⁰⁶ In addition to the cases cited below see *Lim* (n 76) 38 (Brennan, Deane, and Dawson JJ); *Dietrich v R* (1992) 117 CLR 292, 306, 349, 360; *Kartinyeri* (n 83) 384 (Gummow and Hayne JJ); *Re Minister for Immigration and Multicultural Affairs; Ex parte Lam* (2003) 214 CLR 1, [100] (McHugh and Gummow JJ); *CPCF* (n 7) [8] (French CJ), [462] (Keane J).
- ¹⁰⁷ *Polites* (n 86) 77 (Dixon J).
- ¹⁰⁸ *Teoh* (n 26) 287.
- ¹⁰⁹ *ibid* 287.
- ¹¹⁰ *ibid* 287–88.
- ¹¹¹ *QAAH v Minister for Immigration and Multicultural Affairs* (2006) 231 CLR 1, [34] (Gummow A-CJ, Callinan, Heydon and Crennan JJ). See also *Minister for Immigration and Multicultural Affairs v Khawar* (2002) 210 CLR 1 [45].
- ¹¹² (n 56).
- ¹¹³ *ibid* [27]. See also [34].
- ¹¹⁴ *Plaintiff M70/2011 v Minister for Immigration & Citizenship* (2011) 244 CLR 144.
- ¹¹⁵ *ibid* [90].
- ¹¹⁶ *ibid* [44] and [54] (French CJ), [94]–[95] (Gummow, Hayne, Crennan and Bell JJ), [233] (Kiefel J).
- ¹¹⁷ *ibid* [198]. Kiefel J made similar observations at [233].
- ¹¹⁸ *Minister for Immigration & Citizenship v SZQRB* (2013) 210 FCR 505, [200] (point 21), [231] (Lander and Gordon JJ, with whom Flick J relevantly agreed).
- ¹¹⁹ When judgment was delivered, that argument was rejected by some members of the Court, and not decided by others: *CPCF* (n 7) [5] and [8]–[11] (French CJ), [384]–[385], [391] (Gageler J), [490] (Keane J), cf [112] and [126], [161] (Hayne and Bell JJ, dissenting, who left the question open), [220] (Crennan J, likewise leaving the question open).
- ¹²⁰ *CPCF* (n 7) [385] (emphasis added).

¹²¹ *Lam* (n 106) 214 CLR 1 [101] (McHugh and Gummow JJ); *Snedden v Minister for Justice* (2014) 230 FCR 82, 108 [147] (FFC).

¹²² *Snedden* (n 121) 109 [154]–[155] (FFC); *AB v Minister for Immigration and Citizenship* (2007) 96 ALD 53 [22], [27] (FC); *Sales v Minister for Immigration and Citizenship* (2007) 99 ALD 523 (FC).

¹²³ *CPCF* (n 7) [490] (Keane J). See also *Ruddock v Vadarlis* (n 98) [203] (French J); *Seas and Submerged Lands Case* (n 2) 493–94.

¹²⁴ *Teoh* (n 26) 291–92, 301–02, 305.

¹²⁵ *Plaintiff S10/2011 v Minister for Immigration and Citizenship* (2012) 246 CLR 636 [65] (Gummow, Hayne, Crennan, and Bell JJ), referring with approval to the criticism of *Teoh* in *Lam* (n 106) [61]–[63], [81]–[83], [116]–[121], [140]–[148]. The rejection of ‘legitimate expectations’ as a useful tool was confirmed in *Minister for Immigration and Border Protection v WZARH* (2015) 256 CLR 326, [28]–[30] (Kiefel, Bell and Keane JJ).

¹²⁶ Legislation sometimes adopts that approach. For example, s 13A of the *Seas and Submerged Lands Act 1973* (Cth) provides that the Governor-General may declare the limits of Australia’s contiguous zone, provided that is consistent with any applicable international agreement (including the United Nations Convention on the Law of the Sea): see *CPCF* (n 7) [24] (French CJ), [387] (Gageler J).

¹²⁷ *CPCF* (n 7) [387] (Gageler J).

CHAPTER 11

COMPARATIVE CONSTITUTIONAL LAW

STEPHEN GAGELER AND WILL BATEMAN

THERE is much curiosity, and more than a little controversy, about the topic of comparative constitutional law. Most is within the academy; some is within the judiciary. What qualifies as comparative constitutional law is controversial; the legitimacy and methodology of comparative constitutional analysis even more so. Temperatures rise when there is a belief that comparative constitutional analysis is inappropriately deployed or inappropriately ignored; temperatures spike when there is a suspicion that it is deployed opportunistically. This contribution is not intended to fan the flames.

Founded on the understanding that '[c]omparative experience is legally irrelevant unless it can connect to arguments already available within the domestic legal system',¹ the burden of this contribution is limited to pointing out the orthodoxy in Australia of 'consulting foreign law' as an 'ordinary part' of the interpretation and application of 'constitutional provisions with a common genetic or genealogical root'.² Australian constitutional experience has demonstrated for more than a century how comparative constitutional analysis can illuminate the resolution of constitutional issues arising within a domestic legal system, provided that the particular comparative analysis that is undertaken is closely calibrated to the domestic constitutional tradition.

A. THE DOMAIN OF COMPARATIVE CONSTITUTIONAL LAW

Much of the contemporary interest and concomitant controversy about the topic of comparative constitutional law has been generated by analyses and critiques of the migration or borrowing of exogenous constitutional values through the appropriation and adaptation by courts within one constitutional system of ideas and techniques observed to have been employed by courts within one or more other constitutional systems. An impressive array of analytical frameworks has been assembled, each directed towards capturing a spectrum of judicial practice. Voluminous and intense debate has concentrated on related issues of legitimacy and methodology.

There are reasons to pause before importing the full thrust of that comparative constitutional law debate into the Australian context. Those reasons stem from the peculiar character of the Australian Constitution, when compared with other written constitutions which might be selected as comparators.

The omission of a list of civil and political rights from the text of the Australian Constitution removes the contextual foundation for much of the controversy about the migration or borrowing of exogenous values. Concern about the conformity of comparative constitutional law with the notion that constitutional norms are ‘expressions of a particular nation’s self-understanding’,³ which lies at the heart of much of the debate elsewhere, has for that reason relatively limited scope to be triggered within the Australian context.⁴

The further and more general reason to pause before importing the full thrust of the comparative constitutional law debate into the Australian context is that comparative constitutional analysis so much contributed to the design of the Australian Constitution, that appropriating and adapting to its interpretation and application ideas and techniques employed by courts within constitutional systems which inspired it, or which were similarly inspired, can hardly be described as engaging in an exogenous process. Now to import scepticism about comparativism (as distinct from finding reason to be sceptical or critical of the appropriateness and utility of particular comparisons) would be deeply ironic.

In deference to the classificatory customs of the discipline, the significance of comparative constitutional analysis to the Australian

Constitution can be explained in terms of inspiration, exposition, and development.

1. Inspiration

No constitution is cut from whole cloth. Written constitutions are invariably pastiches: partly old, partly new, partly borrowed from other written constitutions and adjusted to fit local conditions. Designing a written constitution invariably involves an element of transplanting institutional forms and constraints over space and time: that is to say, an element of comparativism. The designing of the Australian Constitution, principally the work of a relatively small group of able and well-informed popularly elected colonial delegates to two Conventions held during the last decade of the nineteenth century, was no exception. Comparativism predominated.

The importance of comparative analysis to the framing of the Australian Constitution was highlighted in the commentary of a close observer of the federation process, and prototypical scholar of comparative constitutional law, James Bryce.⁵ When allowance is made for a modicum of late-Victorian hyperbole, Bryce's contemporaneous description can be treated for present purposes as a fair summation of the nature and quality of the process that was undertaken:⁶

Like America in 1787, Australia was fortunate in having a group of able statesman, most of whom were also lawyers, and so doubly qualified for the task of preparing a constitution. Their learning, their acuteness, and their mastery of constitutional principles can best be appreciated by any one of who will peruse the interesting debates in the two Conventions. They used the experience of the mother country and of their predecessors in the work of the federation-making, but they did so in no slavish spirit, choosing from the doctrines of England and from the rules of America, Switzerland, and Canada those which seemed best fitted to the special conditions of their country. And like the founders of the American and Canadian Unions, they were not only guided by a clear practical sense, but were animated by a spirit of reasonable compromise, a spirit which promises well for the conduct of government under the instrument which they have framed.

In the same commentary, Bryce went on to compare the structure of the Australian Constitution with its American and Canadian predecessors and to engage in a comparative assessment of the '[m]odern and [d]emocratic [c]haracter' of the Constitution.⁷ As to the former, he noted by way of summary that 'the Australian scheme of Federal Government stands intermediate between that of the United States and that of Canada'.⁸ As to

the latter, he opined that ‘this Constitution is at least abreast of European and American theory, and ahead of European or American practice’.⁹

The framers of the Australian Constitution were not isolationists. Nor were they dull followers of imported ideas. Their creation—fairly described by Bryce as the product of ‘constructive statesmanship’¹⁰—was not inspired by a single constitutional model and does not give voice to a single philosophy of politics, government, or society. It was not drafted in ignorance of the structure and operation of other constitutional systems, and aspects of its design gave concrete expression to approaches to constitutionalism which were not wholly endogenous.

Inspiration came in a set of two related pairs: federalism was paired with written and entrenched constitutionalism; and responsible government was paired with the separation of powers. Each comprised understandings drawn from constitutional experience in America, Britain, Europe, and the Australian colonies, and each was extensively modified to fit the circumstances of the envisaged Australian federation. The distinctive ‘attachment to interests rather than ideas in Australian politics’,¹¹ meant that the attention of the framers focused more on practice than on theory, resulting in close attention being given by the framers to what was known about the actual operation of those domestic and foreign constitutional institutions which were seen to be comparators.

The domestic comparators were not insignificant. Written constitutions were a feature of the political organization of each Australian colony which was to become a State within the new federation, but none was entrenched and none purported to establish an enduring and comprehensive structure of government. There had been proto-federal experimentations in the colonial phase,¹² but none provided workable material for inspiration. Responsible government was extant in the colonies. Indeed, it had been hard-won and was not about to be relinquished by those who now had it. But it was relatively new and was still evolving.

To bridge the gap between the experience of colonial responsible government and the aspiration to a form of national federal government, comparators from North America, Europe, and Britain were appraised. Models of written federal constitutions from the United States, Switzerland, and Canada were pored over during the Conventions and compared with the more familiar British and colonial templates. Spirited debate ensured that

no single voice attained the status of the framers' mouthpiece. The exhortation of Sir Josiah Symon in 1897 could nevertheless fairly be said to capture their attitude to the use of comparative constitutional law:¹³

I do not pretend that this convention is bound by precedents. We all represent what are really sovereign states—sovereign states in essence, if not in form—and we can strike out, if we please, an entirely new line ... But it is instructive to have examples of other federations, and to fairly follow them, if we fulfil the federal theory, unless, of course, it can be shown that experience condemns them.

From those comparative examples were framed the Australian Constitution's basic system of government. At the highest level, a prominent fusion of concepts and institutions occurred in the conferral of legislative, executive, and judicial powers, in imitation of North American styles of constitutional thought, on institutions derived from the British tradition of a parliamentary monarchy. The triadic separation of powers came in that way to be fused with responsible government to create a novel and enduring hybrid: an 'indissoluble Federal Commonwealth under the Crown'.¹⁴

The 'Parliament' of that new national polity, in which was to be invested its 'legislative power', was to consist of the monarch and of two Houses. Each of those Houses was to be comprised of representatives 'directly chosen by the people'. One—the House of Representatives—was to be so chosen by 'the people of the Commonwealth' in the tradition of the British House of Commons.¹⁵ The other—the Senate—was to be so chosen by 'the people of [each] State' according to the template of the United States institution from which it derived its name.¹⁶ But while the Australian Senate was to derive its core identity from its American namesake, it was to be given quite limited powers,¹⁷ very much akin to those possessed by upper houses in the British parliamentary constitutional tradition.¹⁸

Formally vested in the Governor-General, as representative of the monarch,¹⁹ the 'executive power' of the polity was to be reposed in practice in elected representatives of the people who collectively maintained the confidence of the Parliament in accordance with the British and colonial parliamentary tradition. That was achieved through the conferral of a formal capacity, amounting obviously to a practical imperative, for the Governor-General to appoint Ministers to administer such departments of State and to be members of a Federal Executive Council to advise the Governor-

General, in combination with a requirement that after the first general election no Minister was to hold office for a longer period than three months unless a senator or a member of the House of Representatives.²⁰ The single constitutional reference to ‘executive power’²¹ derived from article II of the United States Constitution. The repeated constitutional references to the ‘Executive Government’ and to the ‘Government’²² reflected a colonial approach to responsible government which marked a subtle but significant divergence from the British constitutional order.²³

As has been very well explained by others,²⁴ the ‘Judicature’ of the new polity was similarly the product of constitutional comparativism. ‘[J]udicial power’ was to be vested in a ‘Federal Supreme Court, to be called the High Court of Australia’ and in other ‘federal courts’ which were to be created by the Parliament.²⁵ That federal structure, essentially copied from article III of the United States Constitution, was then supplemented in Chapter III of the Australian Constitution by the conferral of a broad constitutionally entrenched general appellate jurisdiction on the High Court²⁶ and by the grant of permission to the Parliament to take up the ‘autochthonous expedient’²⁷ of ‘investing any court of a State with federal jurisdiction’.²⁸ The monarch was to have no formal role in the operation of the federal judicature: orders made in the exercise of judicial power were not to be her orders.²⁹ There was nevertheless to be kept alive ‘any right which the Queen may be pleased to exercise by virtue of Her Royal prerogative to grant special leave of appeal from the High Court to Her Majesty in Council’, subject to the sole but significant exception that an appeal was not to be brought from a decision of the High Court ‘as to the limits inter se of the Constitutional powers of the Commonwealth and those of any State or States’ unless the High Court chose to certify that the question was one which ought to be determined by Her Majesty in Council.³⁰ The Judicial Committee of the Privy Council, to which such an avenue of appeal was to lie, had a generation earlier laid down the policy, which was to be maintained for almost a century afterwards, that it was ‘of the utmost importance that in all parts of the empire where English law prevails, the interpretation of that law by the Courts should be as nearly as possible the same’.³¹

The structure of the judicature established by Chapter III holds the key to understanding why comparative constitutional analysis was from the beginning profoundly uncontroversial in the judicial exposition and development of the Australian Constitution. There was never the slightest doubt that it was to fall within the exclusive role of the judiciary to expound the meaning of the constitutional text and, as a necessary incident of performing that exclusive role, to reconsider its own prior exposition where persuaded that reconsideration was warranted. There was equally never the slightest doubt that the judicial exposition and development of constitutional law was to occur as part of the administration of the general law and according to the accepted methodology of the general law. The High Court, standing at the apex of the Australian system of courts, subject to appeals to the Privy Council for so long and to the extent that avenue of appeal was to remain, was never to be a specialist constitutional court and constitutional law was never to form anything other than a part—albeit a critically important part—of the general law.

The general law, which constitutional law was thenceforth to include, had a number of components. It included the common law which had already been imported from England with local adaptations, Imperial statutes applicable in the Australian colonies which were in many instances applicable also in other colonies, and local statutes the texts of many of which were drawn from statutes earlier enacted in England or elsewhere. The methodology by which each of the components of the general law had always been administered by colonial courts, and by which it could confidently be expected to continue to be administered by courts of the judicature established by Chapter III of the Australian Constitution, was the methodology of the common law: a methodology attuned to engaging with judicial precedent in a ‘distinctive, institutionalised form’ of analogical reasoning.³²

Common law methodology accommodates the appraisal of precedents as comparators. Legal controversies are resolved by invoking such assistance as might be able to be derived from a consideration of earlier applications of comparable law to comparable fact-patterns. Precedent might be binding. But non-binding precedent might also be persuasive. And even if not persuasive, the experience of the common law has long been that non-binding precedent might at the very least be helpful in generating and testing legal ideas: by exposing potential lines of reasoning and by showing

the real-life benefits or pitfalls of choosing one line of reasoning over another.

Predicating the integrated Australian judicature on the inherited common law tradition therefore allowed for the employment of comparative legal analysis as an ordinary part of the intellectual framework within which constitutional adjudication was to occur. To look in the absence of binding precedent to the judicial precedent of another constitutional system, for such guidance or inspiration as it might on examination provide, might be doing comparative law. First and foremost, it is doing constitutional law according to the methodology of the common law. Done well, it necessitates taking a wide survey and subjecting what is found to an exacting scrutiny. Done badly, it has the potential to lead to lazy and derivative decision-making³³ carrying with it the potential for the unwitting importation of ideas and techniques ill-adapted to fit local conditions: of its nature, non-binding precedent can never be a substitute for reason. But the risk that it might be done badly has never been thought to be a reason why it should not be done at all.

2. Exposition

The importance, the unquestioned acceptance, and even the banality, of comparative constitutional analysis in the exposition of the Australian Constitution can all be seen in the structure and content of Quick and Garran's highly influential commentary published very soon after the proclamation of the Australian Constitution in 1901.³⁴ After an historical introduction of some 250 pages, the commentary sets out over some 700 pages detailed annotations to the constitutional text. Each annotation commences with quotations, to the extent applicable, from equivalent or near-equivalent provisions of the Constitutions of each of the United States, Canada, Switzerland, and Germany. There follows an historical note referring to the relevant parts of the Convention debates. There then follows an exposition of the constitutional terminology containing extensive citation to and quotation of foreign precedents and texts. In all, some 900 cases are cited. More than half are decisions of American courts, some 400 of decisions of the United States Supreme Court. About thirty are decisions of the Judicial Committee of the Privy Council on appeal from courts of

various parts of the British Empire. Most of the rest are decisions of courts of the United Kingdom and of Canada.

In a report made in his capacity as Secretary of the Commonwealth Attorney-General's Department, a couple of years after that publication and just months before the establishment of the High Court in 1903, Garran put that mass of foreign precedent in appropriate perspective when he presciently explained:³⁵

The Federal relation involves a most intricate apportionment of constitutional powers and duties between the Commonwealth and State Governments; and in the administration of the Federal Departments, no less than in the drafting of legislative measures, questions of the utmost nicety and importance, of a kind which have never before had to be dealt with in the separate colonies, will continually arise ... A vast mass of American and Canadian authorities bear upon these questions, but the Constitution of the Commonwealth is so different, in principle and details, from the Constitution of the United States, or of the Dominion of Canada, that a code of interpretation for the Constitution must inevitably arise.

The High Court, for its part, from the beginning had foreign precedents cited to it in argument and made use of those precedents in its own reasoning. The first judges of the High Court plainly saw no need to explain, much less to offer an apology, for that practice. They did, however, find early occasion to berate the Privy Council for seeming to ignore it.³⁶ Speaking in 1907 for himself and for the first two other members of the High Court, Griffith CJ pointedly explained that:

[t]he framers of a Constitution at the end of the nineteenth century may be supposed to have known that there have been in this world many forms of Government, that the various incidents and attributes of those several forms had been the subject of intelligent discussion for more than 2,000 years, and that some doctrines were generally accepted as applicable to them respectively.³⁷

After referring to pertinent aspects of Australian colonial history, Griffith CJ continued:³⁸

But in regarding the birth of a new State we are not obliged to limit our view to the cradle. In fashioning the Constitution of a Federated Commonwealth the framers might assuredly be expected to consider the constitution and history of other federations, old and new. According to the recognized canons of construction they must be taken to have been familiar with them, and the application of this doctrine is not excluded or weakened by its notorious historical truth as to the members of the Convention. Now, at the end of the nineteenth century there were in actual operation three great federal systems of Government—the two great English-speaking federations of the United States of America and Canada, and the Swiss Confederation. We may assume that the relative advantages and disadvantages of these several systems were weighed by the framers of the Constitution. If it is suggested that the Constitution is to be construed merely by the aid of a dictionary, as by an astral intelligence, and as a mere decree of the Imperial Parliament without reference to history, we answer that that argument, if relevant, is negatived by the preamble to the Act itself, which has been already quoted. That is to say, the Imperial legislature expressly declares that the Constitution has been framed and agreed to by the people of the Colonies mentioned, who ... had practically unlimited powers of self-government through their legislatures. How, then, can the facts known by all to have been present to the minds of the parties to the agreement be left out of consideration?

Thus, in so far as it seemed necessary at that early stage to explain the deployment of comparative analysis for the enlightenment of those thought ignorant of, or insufficiently attentive to, the origins and structure of the Australian Constitution, the explanation came to this: consideration of the judicial precedents emanating from comparable constitutional systems is warranted on orthodox principles of construction because the existence of those comparable constitutional systems formed part of the context in which the Australian Constitution was brought into existence and against the background of which its meaning is to be understood. Recognition of the large and enduring nature of the issues at stake and of the inherently dynamic nature of constitutional interpretation (itself well-enough illustrated by the course of United States and Canadian case law in the nineteenth century) meant that no rigid temporal distinction was then or thereafter to be drawn in point of principle between judicial precedents which emanated from comparable constitutional systems in and before the nineteenth century and judicial precedents which were to emanate from those same comparable constitutional systems after the Australian Constitution came into existence.

In some prominent instances, such precedents would be examined to resolve difficulties caused by the fusion in the Australian Constitution of American and British models of government. Such a difficulty arose in relation to the practice of delegating legislative power to the executive government, which was well established in British-derived constitutional systems and conformable with principles of responsible government. The

thorny issue was how that practice could be explained in light of the textual separation of legislative, executive, and judicial power in the Australian Constitution. Justice Dixon grasped the nettle in *Victorian Stevedoring and General Contracting Co Pty Ltd v Dignan* with a frank recognition that the separation of powers in the Australian Constitution's three chapters, which 'both in substance and in arrangement, closely follow the American model upon which they were framed', could be productive of difficult 'practical and political consequences' if inflexibly applied.³⁹ Quotation and discussion of authoritative and dissenting statements of the United States Supreme Court and the writings of American legal scholars from the nineteenth and early twentieth centuries exposed the problem as one of accommodating high constitution theory with the practical imperatives of governing and explained how doctrine which provided 'latitude of application' ameliorated that problem in America.⁴⁰ The solution to the same problem arising in Australia would not be American, but rooted in British constitutional practice:

It may be acknowledged that the manner in which the Constitution accomplished the separation of powers does logically or theoretically make the Parliament the exclusive repository of the legislative power of the Commonwealth. The existence in Parliament of power to authorize subordinate legislation may be ascribed to a conception of that legislative power which depends less upon juristic analysis and perhaps more upon the history and usages of British legislation and the theories of English law. In English law much weight has been given to the dependence of subordinate legislation for its efficacy, not only on the enactment, but upon the continuing operation of the statute by which it is so authorized. The statute is conceived to be the source of obligation and the expression of the continuing will of the Legislature.⁴¹

'Minor consequences' of that conception were seen by Dixon J in the outcome of two twentieth-century English precedents concerning the relationship between primary and delegated legislation.⁴² 'Major consequences' were seen in the 'emphasis laid' by the Privy Council in two nineteenth century cases on appeal from New South Wales and Ontario on 'the retention by the Legislature of the whole of its power of control and of its capacity to take the matter back into its own hands'.⁴³ Those consequences compelled the conclusion that the modern practice of responsible parliamentary government, observed through the prism of the judicial treatment of the law of three different constitutional systems and expressed by the Australian Constitution, 'does not forbid the statutory authorization of the Executive to make a law'.⁴⁴

Without anyone ever raising a question about the legitimacy of the methodology, it would later unfold that the High Court would routinely make reference to judicial precedents emanating from constitutional systems (or even quasi-constitutional systems) where those systems themselves only came into existence after the Australian Constitution had come into existence but where those systems were nevertheless seen to have features sufficiently in common with, or analogous to, features of the Australian Constitution to make that comparison at least potentially useful. Perhaps as a carry-over of attitudes borne of the position which the Privy Council occupied within the Australian judicial hierarchy, or perhaps in recognition of the ordinarily high quality of its reasoning, decisions of the Privy Council came often to be treated as presumptively persuasive irrespective of the constitutional system from which they emanated and despite the issues considered in them being only very broadly analogous to those raised by the Australian Constitution.⁴⁵ Occasionally, that attitude would lead to difficulties. Privy Council decisions on the distinction drawn within the Canadian constitutional context between ‘direct’ and ‘indirect’ taxes, for example, having been found at one stage to illuminate consideration of the meaning of ‘excise’ within the Australian Constitution,⁴⁶ led to later Australian judicial analysis becoming ‘clouded’⁴⁷ by a perceived need to adjust prior analysis in light of the Canadian distinction.⁴⁸

Naturally enough, attention has tended to focus on precedents emanating from systems with which Australians have been more familiar. Typically, but not exclusively, they have been other common law systems. The ordinary incidents of the adversarial process, which provides the procedural context for the application of common law methodology to adjudication, has meant that those who have sought to make use of precedents from less familiar systems have in practice borne the onus of demonstrating the utility of doing so. Occasional attempts by counsel to gain support for arguments by reference to precedents from unfamiliar systems have failed to gain traction where the assistance to be gained from those precedents has been unable to be explained at the outset. But no judicial precedent emanating from any other constitutional system appears ever to have been ruled out on ideological or methodological grounds as presumptively incapable of providing assistance.

As Garran predicted before the establishment of the High Court, precedents emanating from other constitutional systems have tended in practice to assume less prominence as Australian precedent on any given subject matter of constitutional law has come into existence and has grown. Conversely, comparative analysis has tended in practice to resurge in importance when novel constitutional issues have been thrown up for consideration and when well-worn but problematic aspects of established constitutional doctrine have been opened up to reappraisal. That brings us to development.

3. Development

It is a constitutional cliché to point out that *Amalgamated Society of Engineers v Adelaide Steamship Co Ltd (Engineers' Case)*⁴⁹ was a turning-point in Australian constitutional law. As a very broad generalization, it is not inaccurate to observe that the High Court tended before that case to emphasize those features of the Australian Constitution which derived their inspiration from the constitutional understanding and practices of the post-bellum United States, and that the High Court tended after that case to emphasize those features of the Australian Constitution which derived their inspiration from the institutions and practices of British parliamentary democracy. Correspondingly, and again as a very broad generalization, it is not inaccurate to observe that the High Court tended to give greater attention to American precedent before that case than after it.

Generalizations are, of course, just that. The truth is that, after the *Engineers' Case*, American precedent continued to be highly influential, although often much more subtly deployed. In the first half of the twentieth century immediately following on from the *Engineers' Case*, American precedent greatly influenced: the development of judicial tests for determining the 'inconsistency' of State laws with Commonwealth laws (drawing inspiration from the American doctrine of 'pre-emption');⁵⁰ the general approach to the construction of grants of Commonwealth legislative power;⁵¹ and the renewed implication of State immunities from Commonwealth legislation based on the federal nature of the Australian Constitution.⁵² American precedent also had some, more muted, influence on the construction of two particular grants of Commonwealth legislative power. One was the interstate trade and commerce power,⁵³ in respect of

which the High Court was to adopt the approach mapped out in early American decisions on the commerce clause of the United States Constitution,⁵⁴ but drew back from importing the full effect of the New Deal re-interpretation of that clause.⁵⁵ The other was the acquisitions power,⁵⁶ in respect of which the High Court's interpretation drew on similarities with, while recognizing divergences from, the takings clause of the United States Constitution.⁵⁷

In the second half of the twentieth century, American precedent would prove again to be highly influential in the reconceptualization of the constitutional guarantee of freedom of interstate trade and commerce (drawing inspiration from the American understanding of the 'negative' operation of the 'commerce clause')⁵⁸ and in the implication of the constitutional guarantee of freedom of political communication (drawing inspiration from one of a number of streams of First Amendment jurisprudence).⁵⁹ On the other hand, sufficient differences of constitutional language, structure, and history were found to exist for ambitious interpretations based on American precedents to be rejected in respect of the Australian Constitution's guarantees of trial by jury⁶⁰ and non-establishment of religion⁶¹ and in respect of its requirements for the Senate and the House of Representatives to be comprised of representatives directly chosen by the people.⁶²

In some areas where American precedent initially proved highly influential, subsequent development of Australian constitutional doctrine has continued by drawing inspiration from elsewhere. While a number of illustrations of that general observation could be given, it is sufficient to refer to the development of the doctrine which has come to be associated with *Kable v Director of Public Prosecutions (NSW)*.⁶³

Historically, *Kable* can only be understood in the context of *Wilson v Minister for Aboriginal and Torres Strait Islander Affairs*,⁶⁴ decided in the same month in 1996. *Wilson* and *Kable* together can only be understood against the background of the decision of the Supreme Court of the United States five years earlier in *Mistretta v United States*.⁶⁵

Mistretta concerned the validity of the establishment of the United States Sentencing Commission: an agency established by federal statute, expressly reposed in the 'judicial branch', and staffed with federal judges, given the

chief tasks of setting presumptively binding sentence ranges for federal offences and overseeing the federal parole system. The Supreme Court, deciding in favour of validity, recognized the existence of ‘a “twilight area” in which the activities of the separate Branches merge’,⁶⁶ and sought to identify open-textured tests of validity based on functional compatibility with article III of the United States Constitution, expressing its ‘vigilance against two dangers: first, that the Judicial Branch neither be assigned nor allowed “tasks that are more properly accomplished by [other] branches,”... and, second, that no provision of law “impermissibly threatens the institutional integrity of the Judicial Branch”.’⁶⁷ The Supreme Court opined:⁶⁸

That the Constitution does not absolutely prohibit a federal judge from assuming extrajudicial duties does not mean that every extrajudicial service would be compatible with, or appropriate to, continuing service on the bench; nor does it mean that Congress may require a federal judge to assume extrajudicial duties as long as the judge is assigned those duties in an individual, not judicial, capacity. The ultimate inquiry remains whether a particular extrajudicial assignment undermines the integrity of the Judicial Branch.

The Supreme Court went on to state:⁶⁹

The legitimacy of the Judicial Branch ultimately depends on its reputation for impartiality and nonpartisanship. That reputation may not be borrowed by the political Branches to cloak their work in the neutral colors of judicial action.

Wilson concerned the validity of the appointment of a judge of the Federal Court of Australia in her personal capacity to prepare a report to a Commonwealth Minister. *Kable* concerned the validity of a State law that provided for the Supreme Court of that State to make an order extending the imprisonment of an identified individual. The questions of constitutional law raised in *Wilson* had a firm grounding in existing constitutional doctrine,⁷⁰ while those raised in *Kable* were entirely novel.

In *Wilson*, the High Court held that the principles expounded in *Mistretta* were ‘equally relevant to the interpretation of Ch III of the Constitution of this country’,⁷¹ and held that the challenged appointment was prohibited because it placed ‘the judge firmly in the echelons of administration, liable to removal by the Minister before the report is made and shorn of the usual judicial protections, in a position equivalent to that of a ministerial adviser’⁷² and required the judge to make decisions which were ‘political in character.’⁷³ That holding represented a development of Australian

constitutional law, affected by developments in American constitutional law, but remaining within the rubric of Chapter III of the Australian Constitution.

The development wrought in *Kable* was momentous and, like *Wilson*, was significantly influenced by *Mistretta*. *Kable* turned on the proposition that Chapter III of the *Australian Constitution* prohibits a State Parliament from conferring a power on a State court in State jurisdiction which undermines the institutional integrity of that court as an actual or potential repository of such federal jurisdiction as might be vested in it by the national Parliament. With the adoption of that proposition, the efficacy of the Australian Constitution's 'autochthonous expedient' of 'investing any court of a State with federal jurisdiction' came to be protected by the operation of a doctrine which all of the inaugurating members of the High Court at some level linked to *Mistretta*.⁷⁴ Thereafter the *Mistretta* metaphor, deprecating the cloaking of political work in the colours of judicial neutrality, entered the Australian constitutional phrase-book.⁷⁵ Subsequent decisions came to build on the American-inspired Australian foundations of the *Kable* doctrine by drawing on Canadian and European case law focusing on 'essential characteristics' of a 'court'.⁷⁶

B. CONCLUSION

In a world market for legal ideas, Australia has always been a small open economy. In its exposition and development, no less than in its inspiration, Australian constitutional law has benefited from the consideration of foreign precedent. Constitutional ideas which have found expression in foreign judicial pronouncements have been appropriated and adapted when found to shed light on domestic constitutional issues, and discarded when not. That approach to the evaluation and utilization of foreign constitutional precedent has been nothing more than an aspect of the application of common law methodology to constitutional interpretation.

The challenge to the continued application of that traditional Australian common law methodology will increasingly become one of management and discernment. The benefit of comparativism is the benefit to analogical reasoning of having more information. The burden of comparativism is the burden of critically evaluating more information, carrying with it risks of

cognitive overload and cognitive loafing. That burden can only increase as the volume of foreign precedents multiplies, as information technology makes foreign precedents more accessible, as constitutional discourse world-wide becomes increasingly ‘generic’,⁷⁷ and as constitutional adjudication and scholarship becomes increasingly ‘cosmopolitan’.⁷⁸ Between rejection without sufficient assessment and acceptance without sufficient discernment, there is a balance to be struck.

¹ Mark Tushnet, ‘The Possibilities of Comparative Constitutional Law’ (1999) 108 Yale Law Journal 1225, 1307.

² Vicki C Jackson, ‘Comparative Constitutional Law: Methodologies’ in Michel Rosenfeld and András Sajó (eds), *The Oxford Handbook of Comparative Constitutional Law* (OUP 2012) 68.

³ Mark Tushnet, ‘Some Reflections on Method in Comparative Constitutional Law’ in Sujit Choudhry (ed), *The Migration of Constitutional Ideas* (CUP 2006) 68.

⁴ But see, Adrienne Stone, ‘Comparativism in Constitutional Interpretation’ [2009] NZ Law Review 45; Cheryl Saunders, ‘The Use and Misuse of Comparative Constitutional Law’ (2006) 13 Indiana Journal of Global Legal Studies 37.

⁵ See generally, Stephen Gageler, ‘James Bryce and the *Australian Constitution*’ (2015) 43 Federal Law Review 177.

⁶ James Bryce, *Studies in History and Jurisprudence*, vol 1 (Clarendon Press 1901) 482.

⁷ *ibid* 535.

⁸ *ibid* 530.

⁹ *ibid* 536.

¹⁰ *ibid* 476.

¹¹ Hugh Collins, ‘Political Ideology in Australia: The Distinctiveness of a Benthamite Society’ (1985) 114 *Daedalus* 147, 155, citing James Bryce, *Modern Democracies*, vol II (Macmillan 1921) 275.

¹² Edward Jenks, *A History of the Australasian Colonies: From Their Foundation to the Year 1893* (CUP 1895) 294–98.

¹³ Official Record of the Debates of the Australasian Federal Convention (Sydney, 10 September 1897) 294 (Sir Josiah Symon).

¹⁴ *Commonwealth Constitution*, Preamble.

¹⁵ *Commonwealth Constitution*, s 24.

¹⁶ *Commonwealth Constitution*, s 7.

¹⁷ Compare ss 53–56 of the *Commonwealth Constitution* with art I, ss 7–8 and art II, s 2 of the United States Constitution.

¹⁸ John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (LexisNexis Butterworths 2002) 667.

¹⁹ *Commonwealth Constitution*, s 61.

²⁰ *Commonwealth Constitution*, s 64.

²¹ *Commonwealth Constitution*, s 61.

- ²² *Commonwealth Constitution*, ss 4, 51(xxxix), 52(ii), 67, 70, 81, 84, 86, and 125.
- ²³ Paul Finn, *Law and Government in Colonial Australia* (OUP 1987) 4.
- ²⁴ James Stellios, *The Federal Judicature: Chapter III of the Constitution* (LexisNexis Butterworths 2010) 51–105; William G Buss, ‘Andrew Inglis Clark’s Draft Constitution, Chapter III of the *Australian Constitution*, and the Assist from Article III of the *Constitution of the United States*’ (2009) 33 *Melbourne University Law Review* 718.
- ²⁵ *Commonwealth Constitution*, s 71.
- ²⁶ *Commonwealth Constitution*, s 73.
- ²⁷ *R v Kirby; Ex parte Boilermakers’ Society of Australia* (1956) 94 CLR 254, 268.
- ²⁸ *Commonwealth Constitution*, s 77(iii).
- ²⁹ *Re Refugee Tribunal; Ex parte Aala* (2000) 204 CLR 82, 92, 103.
- ³⁰ *Commonwealth Constitution*, s 74.
- ³¹ *Trimble v Hill* (1879) 5 App Cas 342, 345.
- ³² Gerald J Postema, ‘*A Similibus ad Similia*: Analogical Thinking in Law’ in Douglas E Edlin (ed), *Common Law Theory* (CUP 2007).
- ³³ Sir Anthony Mason, ‘The Use and Abuse of Precedent’ (1988) 4 *Australian Bar Review* 93, 108.
- ³⁴ Quick and Garran (n 18).
- ³⁵ See Patrick Brazil and Bevan Mitchell (eds), *Opinions of Attorneys-General of the Commonwealth of Australia*, vol 1 (Australian Government Publishing Service 1981)v (foreword by Peter Durack, Attorney-General of the Commonwealth of Australia).
- ³⁶ *Baxter v Commissioners of Taxation (NSW)* (1907) 4 CLR 1087, reaffirming *D’Emden v Pedder* (1904) 1 CLR 91 after *Webb v Outtrim* [1907] AC 81.
- ³⁷ *Baxter* (n 36), 1106.
- ³⁸ *ibid* 1109.
- ³⁹ (1931) 46 CLR 73, 89, 91.
- ⁴⁰ *ibid* 92–94, discussing *Wayman v Southard* 23 US (10 Wheat) 1 (1825); *Mutual Film Corporation v Industrial Commission of Ohio* 236 US 230 (1915); *Hampton and Co v United States* 276 US 394 (1928); Holmes J in dissent in *Springer v Government of the Philippine Islands* 277 US 189 (1928); Westel Willoughby, *The Constitutional Law of the United States* (2nd edn, Baker, Voorhis and Company 1910), Ernst Freund, *Administrative Powers over Persons and Property* (University of Chicago Press 1928); and James Hart, *The Ordinance Making Powers of the President of the United States* (The Johns Hopkins Press 1925). Such use may be an example of comparative law ‘clarifying the nature of the problem or any aspect of it’: Cheryl Saunders, ‘Judicial Engagement with Comparative Law’ in Rosalind Dixon and Tom Ginsburg (eds), *Comparative Constitutional Law* (Edward Elgar 2011) 583.
- ⁴¹ *Victorian Stevedoring* (n 39) 101–02.
- ⁴² *ibid* 102, citing *Willingale v Norris* [1909] 1 KB 57 and *Watson v Winch* [1916] 1 KB 688.
- ⁴³ *ibid*, citing *Hodge v The Queen* (1883) 9 App Cas 117 and *Powell v Apollo Candle Company* (1885) 10 App Cas 282.
- ⁴⁴ *Victorian Stevedoring* (n 39).
- ⁴⁵ For example, *R v Humby; Ex parte Rooney* (1973) 129 CLR 231 and *Polyukhovich v Commonwealth* (1991) 172 CLR 501, both considering *Liyanage v The Queen* [1967] 1 AC 259 and *Kariapper v Wijesinha* [1968] AC 717.
- ⁴⁶ *Matthews v Chicory Marketing Board (Vic)* (1938) 60 CLR 263, 300–03.
- ⁴⁷ *Dennis Hotels Pty Ltd v Victoria* (1960) 104 CLR 529, 553.

⁴⁸ *Parton v Milk Board (Vic)* (1949) 80 CLR 229, 261, referring to *Atlantic Smoke Shops Pty Ltd v Conlon* [1943] AC 550.

⁴⁹ (1920) 28 CLR 129.

⁵⁰ cf *Stock Motor Ploughs Ltd v Forsyth* (1932) 48 CLR 128, 136 and *Victoria v Commonwealth* (1937) 58 CLR 618, 630 with *McCulloch v Maryland* 17 US (4 Wheat) 316, 436 (1819) and *Davis v Elmira Savings Bank* 61 US 275, 283 (1896).

⁵¹ cf *Australian National Airways Pty Ltd v Commonwealth* (1945) 71 CLR 29, 81 with *McCulloch v Maryland* 17 US (4 Wheat) 316, 407–08 (1819).

⁵² cf *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31 with *New York v United States* 326 US 572 (1946).

⁵³ *Commonwealth Constitution*, s 51(i).

⁵⁴ *Australian National Airways Pty Ltd v Commonwealth* (1945) 71 CLR 29, 57, 76, 82, referring to *Gibbons v Ogden* 22 US 1 (1824).

⁵⁵ *Field Peas Marketing Board (Tas) v Clements and Marshall Pty Ltd* (1948) 76 CLR 414, 426–29.

⁵⁶ *Commonwealth Constitution*, s 51(xxxi).

⁵⁷ *Andrews v Howell* (1941) 65 CLR 255, 268, 281–83; *Johnston Fear & Kingham & Offset Printing Co Pty Ltd v Commonwealth* (1943) 67 CLR 315, 322, 326, 328; *Minister of State for the Army v Dalziel* (1944) 68 CLR 261, 289, 291, 294.

⁵⁸ *Cole v Whitfield* (1988) 165 CLR 360, 405–06; *Castlemaine Tooheys Ltd v South Australia* (1990) 169 CLR 436, 468–72.

⁵⁹ *Australian Capital Television Pty Ltd v Commonwealth* (1992) 177 CLR 106, 143–44; *Theophanous v Herald & Weekly Times Ltd* (1994) 182 CLR 104, 133–36; *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520, 563–64, 567; *Levy v Victoria* (1997) 189 CLR 579, 594–95, 623, 638–42.

⁶⁰ *Brown v The Queen* (1986) 160 CLR 171, 194–95, 203–04, 209–14.

⁶¹ *Attorney-General (Vic); Ex rel Black v Commonwealth* (1981) 146 CLR 559, 598–603, 613–16.

⁶² *Attorney-General (Cth); Ex rel McKinlay v Commonwealth* (1975) 135 CLR 1, 46–47, 62–63; *McGinty v Western Australia* (1996) 186 CLR 140, 187–88, 227–29, 263–68.

⁶³ (1996) 189 CLR 51.

⁶⁴ (1996) 189 CLR 1.

⁶⁵ 488 US 361 (1989).

⁶⁶ *ibid* 386.

⁶⁷ *ibid* 383, quoting *Commodity Futures Trading Comm'n v Schor* 478 US 833, 851 (1986).

⁶⁸ 488 US 361, 404 (1989).

⁶⁹ *ibid* 407.

⁷⁰ cf *Hilton v Wells* (1985) 157 CLR 57; *Grollo v Palmer* (1995) 184 CLR 348.

⁷¹ (1996) 189 CLR 1, 9.

⁷² *ibid* 18–19.

⁷³ *ibid* 19.

⁷⁴ For example, *Kable* (n 63) 107–08, 116, 133.

⁷⁵ *Fardon v Attorney-General (Qld)* (2004) 223 CLR 575, 615 [91].

⁷⁶ *North Australian Aboriginal Legal Aid Service Inc v Bradley* (2004) 218 CLR 146, 152 [3], 172 [65]; *South Australia v Totani* (2010) 242 CLR 1, 37 [47]; *Wainohu v New South Wales* (2011) 243 CLR 181, 208 [44].

⁷⁷ Mark Tushnet, 'Comparative Constitutional Law' in Mathias Reimann and Reinhard Zimmerman (eds), *The Oxford Handbook of Comparative Law* (OUP 2006) 1249.

⁷⁸ Jeffrey Goldsworthy, 'Questioning the Migration of Constitutional Ideas: Rights, Constitutionalism and the Limits of Convergence' in Sujit Choudhry (ed), *The Migration of Constitutional Ideas* (CUP 2006) 115.

CHAPTER 12

STATE CONSTITUTIONS

GERARD CARNEY

A. INTRODUCTION

THE Constitutions of the six Australian States are less well known than the Australian Constitution, although their history is longer and their existence is fundamental to the Australian constitutional order. Their most significant feature is that they exist as legal instruments separate from the Australian Constitution.¹ Pre-existing the Australian Constitution as the constitutions of the colonial forebears of the States, they were retained ‘as is’ upon federation, except in so far as they were qualified by the Australian Constitution in order to create the federal system. No change was imposed, however, on the substance or structure of the new State Constitutions. This reflects the basic approach to Australian federation, which was to impose only such change on the former colonies as was required to create a central national authority. Nonetheless, federation transformed the pre-existing colonial Constitutions of six British self-governing colonies into the Constitutions of the new States of the Commonwealth of Australia. Nearly a century later in 1986 the States finally achieved complete formal independence from the United Kingdom by the *Australia Acts*.

While this transformation of the status of the polities is clear, the nature of the transformation of their respective Constitutions continues to arouse debate today. This uncertainty arises from two significant features of their Constitutions: each is an enactment of their own Parliament; and none is entirely entrenched. This local flexibility, combined with the paucity of direct federal control, has led to interesting differences between the State Constitutions. It has provided opportunities for constitutional initiative and experimentation. At the same time, this capacity for flexible amendment has

diminished the status of State Constitutions as superior law. At times they have been regarded as little different from any other State enactment. Yet as locally enacted statutes, the State Constitutions have more local legitimacy and ownership than the Commonwealth Constitution which remains located in a British Imperial Act.

The focus of this chapter is to explore the peculiar role and status of the State Constitutions: how they provide for the constitutional system of each State; the extent to which they operate as superior law; and the relationship they have with the Commonwealth Constitution.

B. HISTORICAL ORIGINS

The history of the Australian colonies before federation follows a pattern of initial settlement, coincident or not with the creation of the colony, then a grant of full self-government.

The origins of the current Australian constitutional order can be traced to 1786 with the annexation by Great Britain of the eastern half of the continent to 135 longitude to form the colony of New South Wales. The western half, known as New Holland, remained unclaimed. In 1825, New South Wales expanded west to 129 longitude, again leaving unclaimed the remainder of the continent. At this time, however, the island of Van Diemen's Land (later renamed Tasmania) became a separate colony from New South Wales. Then in 1829, the remaining western part of the continent was finally annexed by the United Kingdom to form the colony of Western Australia—the only colony never to have been part of New South Wales. During the ensuing three decades, three new colonies were gradually carved from the territory of New South Wales: South Australia in 1836; Victoria in 1850; and Queensland in 1859.

Only three colonies were created following a period of local settlement: Tasmania, Victoria, and Queensland. Those of New South Wales, Western Australia, and South Australia were created colonies commensurate with their first settlements in Sydney, Perth, and Adelaide. Until granted self-government, each of the colonies was ruled by a colonial Governor appointed by the British Crown as its representative. In time, a Legislative Council was appointed to advise the Governor. Eventually this Council was elected on a very limited franchise.

With United Kingdom parliamentary approval, self-government was granted to each of the colonies at different times, depending on their capacity to govern and to support themselves. This occurred after each colonial Legislative Council drafted a constitution statute for approval by the Imperial authorities. Self-government was successively granted to New South Wales² and Victoria³ in 1855, to South Australia⁴ and Tasmania⁵ in 1856, and to Queensland⁶ in 1859—the only colony to be granted self-government coincident with its separation from New South Wales. Western Australia⁷ finally achieved self-government in 1889, sixty years after it became a colony. The Constitutions of these colonies were in similar terms, each a local statute,⁸ subject to alteration both by United Kingdom law and local enactment.

Up to federation, the Australian colonies embraced constitutional reform, at times in advance of developments in the United Kingdom. Along with the gradual evolution of political parties, democratic reforms achieved in all States included the adoption of the secret ballot by 1857, payment of members of Parliament by 1900, adult manhood suffrage for Assemblies by 1905, and women's suffrage by 1906.⁹ Their final achievement was to agree to federate on the terms settled in the Commonwealth Constitution, and to obtain imperial approval for this. They thought this was achieved with minimal impact on their respective State Constitutions. Formally this appeared so from the Commonwealth Constitution. Section 106 ensured the continuance of their Constitutions, while section 107 ensured the continuance of their legislative power. No structural changes were made to the institutions of State government. The only major change was the granting of certain exclusive powers to the Commonwealth, and the sharing of a wider range of powers with the Commonwealth. Few restrictions on State power were imposed, other than those required to establish, in particular, free interstate trade and movement.

As a result of this history, each State Constitution remains an ordinary statute of its own Parliament, enacted initially by its colonial forebear. Except for certain entrenched provisions, each is capable of being expressly and impliedly amended by later State legislation.¹⁰ Accordingly, all States except Western Australia have re-enacted their Constitution: New South Wales in 1902;¹¹ South Australia¹² and Tasmania¹³ in 1934; Victoria in 1975;¹⁴ and Queensland in 1867¹⁵ and substantially again in 2001.¹⁶

In a symbolic gesture to highlight the special status of the Queensland Constitution, compared with all other Queensland statutes, Queensland dispensed with 'Act' in the title to its Constitution, which is simply the *Constitution of Queensland 2001*. Yet reference is still required to some constitutional provisions that are entrenched by referendum in the *Constitution Act 1867* (Qld). Unprepared to hold a referendum so soon after the unsuccessful federal referendum on the republic in 1999, the Queensland government decided not to interfere with the entrenched provisions in the 1867 Act but merely to refer to them in the new 2001 Constitution. Western Australia also has two Acts that together constitute its formal Constitution.¹⁷ Indeed, all States have additional legislation which may be regarded as part of their Constitution, in so far as this legislation establishes their constitutional system. This flexibility has hampered due recognition of State Constitutions as quasi-superior law. Most significantly, they lack the legal gravitas which flows from a constitution which is fully entrenched and therefore may provide the legal basis to challenge deeply unpopular or unjust government action or decisions. A State Constitution provides little if anything by way of protection for its people. Naturally, this contributes to public antipathy and disinterest in their existence.

C. CONTENT OF STATE CONSTITUTIONS

The colonial Constitution Acts were drafted to establish a Westminster system of government, loosely modelled on that in the United Kingdom. This exercise was confined, however, to establishing the formal institutions of government, a bicameral legislature and an Executive Council, while defining to some degree the legal relationship between each new colonial government and that of the United Kingdom. This latter aspect included for instance the requirement to reserve certain bills, passed by the legislature, for royal assent by the Queen.¹⁸ There was little attempt to codify the unwritten Westminster conventions, such as the requirement that the ministry be composed of members of Parliament. Their existence and observance were presumed to follow the adoption of the formal institutions.

Initially, there was limited variation in the format of these Constitution Acts. The most significant difference was an elected Legislative Council in South Australia, Tasmania, and Victoria, compared with a nominated upper

House in New South Wales, Queensland, and Western Australia. Over a century and a half later, further variation has evolved, given the relative ease with which they are able to be amended as local statutes. Nonetheless, the essential components of their constitutional structure remain intact: a bicameral Parliament (except in Queensland); a Governor as the Queen's representative; an executive; and a judiciary.

As noted earlier, one of the most significant omissions from the State Constitutions is the lack of human rights protection. The singular exception is section 46 of the *Constitution Act 1934* (Tas):

- (1) Freedom of conscience and the free profession and practice of religion are, subject to public order and morality, guaranteed to every citizen.
- (2) No person shall be subject to any disability, or be required to take any oath on account of his religion or religious belief and no religious test shall be imposed in respect of the appointment to or holding of any public office.

Yet even this provision is not entrenched, nor as discussed below, is it probably capable of being made binding. The only other State so far to have general human rights legislation is Victoria where a statutory charter of rights was enacted by which Victorian legislation is interpreted and declared to be inconsistent but not invalid.¹⁹

The only other basis for human rights protection, derived from a State Constitution, is to recognize a binding constitutional requirement implied from entrenched provisions, in a manner analogous to the 'freedom of political communication' derived from the Commonwealth Constitution.²⁰

In *Stephens v Western Australian Newspapers Ltd*²¹ the High Court accepted that an implied freedom of political communication could be derived from section 73(2)(c) of the *Constitution Act 1889* (WA), an entrenched provision that prevents any law from providing that the members of either House could be 'other than members chosen directly by the people' unless that law is passed by an absolute majority in both Houses and approved by referendum. The Court relied on the fact that section 73(2) was effectively entrenched in order to recognize a State constitutional freedom of superior force. While this State constitutional freedom is overshadowed by the comparable Commonwealth freedom, *Stephens* provides a useful precedent for deriving constitutional freedoms from State Constitutions.²² There might be scope for similar implications from other State Constitutions.²³

1. Preamble

Only the Constitutions of Queensland, Tasmania, Victoria, and Western Australia begin with a preamble to describe the imperial source of their enactment. The Queensland and Western Australian preambles also recognize their respective Indigenous peoples as their first inhabitants. As discussed below, similar recognition is given by a specific section in the Constitutions of New South Wales, South Australia, and Victoria.

2. The Legislature

The Parliament or Legislature continues to be defined in most State Constitutions in its archaic form²⁴ as composed of the Queen²⁵ acting with the advice and consent of the Legislative Council and the Legislative Assembly (or only the latter in Queensland²⁶). Only the South Australian Constitution omits reference to the Crown in defining its Parliament as merely composed of two Houses. Yet in all States the enactment of legislation is dependent on royal assent being given by the Governor to the bill as passed by both Houses (or the single House in Queensland). By convention, the Governor acts on the advice of the executive to give assent, which advice follows as a matter of course once the Bill has passed both Houses.

The attainment of an unqualified universal adult franchise for elections for all State Houses was only achieved in the 1970s by which time the last disqualifications of Australia's Indigenous peoples were finally repealed in Queensland and Western Australia, and the franchise for the upper House elections was brought into line with that of the lower Houses.²⁷ Located in separate election legislation rather than in the formal Constitutions, this franchise is not entrenched as such. In contrast, detailed provisions in all Constitutions typically prescribe the qualifications and disqualifications of members of Parliament, the operations and term of each House, and except in Queensland, mechanisms for resolving deadlocks between the Houses. An outline of these latter two features follows.

3. Parliamentary Terms

Each State Constitution currently prescribes a four-year parliamentary term for the lower House. This also determines the life of a government ministry.

Queensland was the last State to increase its term from three to four years in 2016 after a successful referendum. The parliamentary term is referendum entrenched in New South Wales,²⁸ Queensland,²⁹ and Victoria.³⁰ The expiration of the four-year term is legally fixed on a certain date in all States except Tasmania and Western Australia. This prevents the incumbent government from manipulating the date of the general election for their own political advantage. The Governor is, however, empowered to issue writs for an election earlier where the government loses the confidence of the lower House, or where the lower House fails to pass an appropriation bill for the ordinary annual services of the government.³¹ In New South Wales³² and Queensland,³³ the Governor also retains the reserve power of calling an early election under established constitutional conventions, or may decide to appoint a viable alternative ministry instead of calling an early election.

In all States except Tasmania,³⁴ the election for the upper House coincides with the general election of the lower House.³⁵ In New South Wales³⁶ and South Australia,³⁷ the members of the upper House are elected for a period twice as long as those in the lower House, with half retiring every four years.

4. Bicameralism: Resolution of Deadlocks

Bicameralism is the most distinctive feature of five State legislatures. This is unusual at the sub-national level. Although all the States of the United States of America, except Nebraska, have elected bicameral legislatures, there are unicameral legislatures in the Canadian, German, and South African provinces.³⁸

During the twentieth century, the State upper Houses gradually evolved into elected chambers of review. No longer were they the bastions of a privileged conservative class. Between 1950 and 1978, all five upper Houses adopted the same wide franchise for direct elections as the lower Houses.³⁹ Following this process of democratization, appreciation of their dual functions of legislative review and executive scrutiny has increased, especially in view of government majorities in the lower House. The importance of this dual role of an upper House was recognized by the High Court of Australia in *Egan v Willis*⁴⁰ in affirming the power of the New South Wales Legislative Council to demand the production of State papers.

The Court viewed the role of upper Houses as an indispensable component of the system of responsible government, despite government ministries only needing majority support in the lower House.

Except for financial bills, each upper House possesses the same powers as the lower House to initiate bills and to amend bills from the other House. Each also has the power to veto lower House bills including the annual budget—except in New South Wales and Victoria where appropriation bills for the ordinary annual services of the government can only be delayed a month. This is the only effective mechanism for the resolution of disagreements between the Houses found in the State Constitutions, in the sense that it does so within a reasonable period.⁴¹ Victoria adopted this mechanism in 2003 after nine instances of a blockage of supply between 1865 and 1952. Fewer blockages in South Australia⁴² and Tasmania⁴³ have not stimulated similar amendment in those States. The position in New South Wales and Victoria follows that adopted by the United Kingdom Parliament in 1911, albeit in relation to elected upper Houses. Nonetheless, in each case the will of the lower House is accorded primacy to ensure the stability of the government.

As for deadlocks over non-financial bills, only the Constitutions of New South Wales, South Australia, and Victoria have adopted a mechanism to try to resolve these. Each prescribes a complex and cumbersome procedure more likely to encourage compromise than to ensure that the will of the lower House prevails. The Victorian procedure is most likely to deliver the latter, ending as it does in a joint sitting of both Houses where the ministry support in the lower House is likely to secure an overall majority at a joint sitting. This may offer more hope of passage than the New South Wales procedure which terminates in a referendum of the people. The South Australian approach seems less likely to resolve the issue at all, dependent as it is on a double dissolution election or an increase in the size of the Legislative Council.

5. Parliamentary Control of Finance

To various degrees the State Constitutions incorporate the three critical principles of parliamentary control of finance: imposition of taxation must be authorized by Act of Parliament;⁴⁴ all Crown revenue forms part of the Consolidated Revenue Fund;⁴⁵ and only Parliament can authorize

appropriation from that fund.⁴⁶ While the first of these principles is enshrined in article IV of the *Bill of Rights 1689*,⁴⁷ the other two principles derive from the common law.⁴⁸ As each principle is legally enforceable, they support the accountability of the Ministry to Parliament.

This contrasts with the other financial machinery provisions commonly found in most State Constitutions, which are usually not legally enforceable since they concern the internal deliberations of the Houses.⁴⁹ Central is the requirement that money bills (ie appropriation and taxation bills) originate in the lower House, being the House most representative of the people.⁵⁰ Also common is the need for the Governor to recommend to that House the passage of such bills⁵¹—a requirement to deter members from introducing money bills without the support of the Ministry. Each upper House is precluded from amending these bills, having the option either to recommend amendments to the lower House,⁵² or to reject the bill altogether. While only the Victorian Constitution expressly refers⁵³ to these limitations on the power of the Legislative Council, it is accepted that those limitations also apply to the other State upper Houses.

These machinery provisions may be excluded from judicial review since they concern the internal deliberations of each House of Parliament, which courts are normally vigilant to avoid reviewing for fear of infringing parliamentary privilege. Under this privilege, each House has exclusive authority to review its own deliberations and procedures.⁵⁴ However, certain State Constitutions either expressly deny judicial review of these financial rules, or go the other way by purporting to invalidate non-compliance. For instance, the Western Australian Constitution declares that non-compliance with any of these rules is not justiciable;⁵⁵ whereas the New South Wales Constitution declares that any provisions tacked onto an appropriation bill are invalid.⁵⁶ In this latter instance, while the direction is observed in practice, there is doubt whether this can be binding on a later Parliament since it amounts in effect to a form of entrenchment by ‘manner and form’.⁵⁷ This difficult area is addressed below.

6. The Executive

The basic structure of the executive branch, composed of ministers appointed by the Governor who acts on the advice either of the Premier or

an Executive Council, is only referred to in the Constitutions of New South Wales, Queensland, and Victoria.⁵⁸ Little reference to the executive branch occurs in the Constitutions of South Australia, Tasmania, and Western Australia. The Queensland Constitution provides the most comprehensive set of provisions in Chapter 3 which deals with the Governor (Part 2), the Cabinet and Ministers (Part 3), and the Executive Council (Part 4).

The office of Governor is provided for in the Constitutions of New South Wales, Queensland, Victoria, and Western Australia⁵⁹ and by Letters Patent for the other States. The Governor represents the Queen who is the formal head of the executive in each State. In 1978, both Queensland⁶⁰ and Western Australia⁶¹ amended their Constitutions to referendum entrench the office of Governor to prevent a transformation to a republic without the approval of the people in each State.

The office of Governor now has a firmer legal basis in section 7(1) of the *Australia Acts 1986*: 'Her Majesty's representative in each State shall be the Governor'. The *Australia Acts* also changed the appointment procedure. State Governors are now appointed by the Queen on the advice of her State Premier.⁶² Previously, all formal advice was tendered to the Queen by the United Kingdom government after reviewing the advice of the State Premier. On rare occasions, the United Kingdom government disapproved of the Premier's advice, usually over the appointment or reappointment of a State Governor who was considered inappropriate.⁶³ Since 1986, the United Kingdom government has no role to play in this regard. The *Australia Acts* also declare that 'all powers and functions of Her Majesty in respect of a State are exercisable only by the Governor of the State'⁶⁴—except for the powers of appointment and dismissal of the Governor which remain with the Queen,⁶⁵ and except when the Queen is personally present within the State.⁶⁶

Serving a customary term of five years, each State Governor performs both a ceremonial and a constitutional role, essentially similar to that performed by the Governor-General at the Commonwealth level. By Westminster convention, each Governor is required to exercise the powers of the office on the advice of the Premier or other designated Minister. Only in exceptional circumstances does the Governor act without that advice, for instance, in commissioning a Premier whom the Governor believes has the support of the lower House to form a Ministry. The Queen is informed by

the Governor of significant events in a State but does not interfere. Nor has the Governor-General any authority to interfere in State affairs. The only connection between the office of Governor-General and that of a State Governor is the appointment of the senior State Governor as administrator of the Commonwealth during the absence of the Governor-General.

Each State has an Executive Council to formally approve the decisions of Cabinet. Only the Constitutions of New South Wales,⁶⁷ Queensland,⁶⁸ and Victoria⁶⁹ expressly provide for this institution, while provision is made in the other States by the Letters Patent issued by the monarch relating to the office of Governor.⁷⁰ The Governor is empowered to appoint and remove its members, who by convention are the Ministers of State. The Governor presides at all meetings of the Executive Council, the quorum for which is only two members.

On the whole, the State Constitutions, like their colonial counterparts, fail to refer to the most significant principles of responsible government, in particular, that the Ministry is composed of members of either House who possess the confidence of the Assembly, the chief of whom is the Premier. Only in New South Wales,⁷¹ Queensland,⁷² and Victoria⁷³ is the office of Premier actually provided for. Only the South Australian,⁷⁴ Tasmanian,⁷⁵ and Victorian⁷⁶ Constitutions require Ministers to be members of Parliament. The New South Wales Constitution⁷⁷ merely requires them to be members of the Executive Council. Only the Queensland Constitution prescribes a Cabinet⁷⁸ which 'is collectively responsible to the Parliament'.⁷⁹ The Queensland,⁸⁰ South Australian,⁸¹ Tasmanian,⁸² and Western Australia⁸³ Constitutions specify the maximum number of Ministers.

As for the fundamental principle and convention that the Governor acts only on the advice of the Premier or Ministry, little if anything is found in any of the Constitutions. The New South Wales Constitution merely infers the existence of such a convention.⁸⁴ Only the Victorian Constitution requires the Governor to act on the advice of the Executive Council or the Premier.⁸⁵ Controversially, the Queensland Constitution expressly dispenses with this fundamental convention for the appointment and dismissal of Ministers.⁸⁶ Exceptional circumstances, which warrant the Governor acting without or against the advice of the Premier, involve the Governor

exercising ‘reserve power’. This undefined power is generally acknowledged to be confined to the appointment of the Premier after a general election, the dissolution of the lower House when no Ministry can be formed with the confidence of that House, or the dismissal of a Ministry for legally established illegality.⁸⁷

7. The Judiciary

Until the end of the twentieth century, most State Constitutions barely referred to the judicial branch. This occurred as their respective Supreme Courts were usually established before the grant of self-government necessitated the drafting of a Constitution. Except for Tasmania, the State Constitutions merely conferred security of tenure along the lines of the English judiciary, whereby judges were appointed by the Governor, by convention on the advice of the Premier, and could only be removed by the Governor on an address from both Houses for proved misbehaviour or incapacity.⁸⁸

In addition to providing security of judicial tenure, the New South Wales, Queensland, and Victorian Constitutions were expanded in recent times to address other related matters. Part 9, inserted in 1992 at the end of the New South Wales Constitution, also covers suspension of judges, remuneration, and abolition of a judicial office. Chapter 4 of the *Constitution of Queensland 2001* requires there to be a Supreme Court of Queensland with unlimited jurisdiction.⁸⁹ Similarly, [Part III](#) of the Victorian Constitution provides for the existence of the Supreme Court of Victoria with unlimited jurisdiction,⁹⁰ to be comprised of the Court of Appeal and the Trial Division.⁹¹ Extensive provision is also made for the terms of their appointment, particularly in relation to their pensions.⁹²

Only in New South Wales and Victoria is any attempt made to entrench these provisions. Amendment or repeal of Part 9 of the New South Wales Constitution requires referendum approval.⁹³ In Victoria, any bill to change [Part III](#) needs an absolute majority in both Houses.⁹⁴ Whether these requirements are legally binding is doubtful, given the highly uncertain capacity of State Parliaments to entrench their legislation. This complex issue is outlined further below.

Whether binding or not, it is well settled by the High Court of Australia that none of the State Constitutions incorporates a binding principle of separation of State judicial and non-judicial power.⁹⁵ None contains the equivalent to Chapter III of the Commonwealth Constitution which has been interpreted to prescribe that federal judicial power can only be exercised by federal courts and State courts vested with federal judicial power. This means that there is no legal impediment arising from State Constitutions to prevent State Parliaments, as well as State governments and their instrumentalities, from exercising judicial power, nor the reverse, to prevent State courts from exercising non-judicial power. However, into this void, Chapter III of the Commonwealth Constitution has been extended by the High Court to provide some protection to State courts. This significant extension is possible because Chapter III permits the vesting of federal judicial power in State courts and establishes the High Court as the final court of appeal in matters of State as well as federal law. Hence Chapter III's protective cloak of institutional integrity for all repositories of federal judicial power also invalidates any State legislation which tends to undermine the integrity of its State courts.⁹⁶ Whether a State judge is exercising State or federal jurisdiction, any State interference in the independence of that judge or the court of which the judge is a member may impact on the exercise of federal judicial power. Hence the indivisibility of judicial integrity across jurisdictions necessitates this extension of Chapter III as a federal restriction on State power. Further, the very existence of State Supreme Courts as well as their independence and essential characteristics as courts of judicial review are now guaranteed by the Commonwealth Constitution.⁹⁷

In relation to proving a ground of removal of a State judge, certain States (New South Wales, Queensland, and Victoria) have in recent times delegated the fact-finding role this entails to an official inquiry. In each case, the Houses are unable to address the Governor for removal unless such an inquiry concludes that a sufficient basis exists for a House to find proved misbehaviour or incapacity. Appropriately, the final view is left with each House to decide if the case warrants the judge's removal. While complaints against New South Wales State judges are handled by a Judicial Commission under the *Judicial Officers Act* 1986 (NSW), the Constitutions of Queensland and Victoria prescribe an ad hoc form of inquiry.

The Queensland Constitution⁹⁸ requires a tribunal to be established by Act of Parliament, composed of three members appointed by resolution of the Legislative Assembly, who are former judges of a State or federal superior court, other than the court whose member is under investigation. Since the formal initiative to establish such a tribunal rests with the Parliament, there is considerable risk of adverse publicity beforehand. Only if this tribunal finds on the balance of probabilities that the judge either has misbehaved in a way that justifies removal from office, or is incapable of performing the duties of the office, is the Legislative Assembly entitled to accept that the ground has been proved. The ultimate decision remains with the Assembly whether to address the Governor for removal. In such a case, the Governor would act on the advice of the government to remove the judge.

The Victorian Constitution was amended in 2005 to insert Part IIIA to prescribe a more detailed procedure which leaves the initiative with the Attorney-General to establish an investigating committee if ‘satisfied there are reasonable grounds for carrying out an investigation’.⁹⁹ The committee comprises three members selected by the Attorney-General from an existing panel of seven former Supreme or Federal Court judges (other than of the Supreme Court of Victoria). Their selection is made on the recommendation of the most senior member of the panel. After conducting an investigation with powers equivalent to that of a royal commission, the committee must report to the Attorney-General as to ‘whether facts exist that could amount to proved misbehaviour or incapacity such as to warrant the removal [of the judge] from office’.¹⁰⁰ Again the Attorney-General has the initiative as to whether to table this report before each House.¹⁰¹ Neither House can resolve for a judge’s removal unless that is the conclusion of the investigating committee.¹⁰²

D. STATUS OF STATE CONSTITUTIONS

Until federation in 1901 the legal source of authority for the Australian colonies was the United Kingdom Parliament and Crown, by whose authority the colonies were first established and then allowed to evolve into self-governing representative democracies broadly in the image of their Imperial parent. Each of their Constitutions, by which self-government was

achieved, was the product of a joint enterprise initiated in each colony among the members of a Legislative Council, composed of a majority of elected representatives, who were authorized by Imperial legislation to enact a Constitution. Although none was enacted with referendum approval of the local residents, there was some level of public consultation both directly through exposure of the Constitution Bill for public comment, and indirectly through their elected representatives on the Legislative Council.¹⁰³

This history is in stark contrast with the referendum approval sought for the final draft of the Commonwealth Constitution without which federation would not have occurred. Yet this approval to federate is also an affirmation of the continued existence of the former colonies as States of the new federal polity, as well as of their Constitutions. Section 106 of the Commonwealth Constitution expressly provides, ‘subject to this Constitution’:

The Constitution of each State of the Commonwealth shall, subject to this Constitution, continue as at the establishment of the Commonwealth, or as at the admission or establishment of the State, as the case may be, until altered in accordance with the Constitution of the State.

Complementing section 106 is section 107 which preserves the powers of the State Parliaments while making them subject to the Commonwealth Constitution:

Every power of the Parliament of a Colony which has become or becomes a State, shall, unless it is by this Constitution exclusively vested in the Parliament of the Commonwealth or withdrawn from the Parliament of the State, continue as at the establishment of the Commonwealth, or as at the admission or establishment of the State, as the case may be.

What exactly constitutes ‘the Constitution of each State’ in section 106 is not easy to define. Obviously one begins with the relevant *Constitution Act*, a local enactment. Given the mostly unentrenched nature of these enactments, other statutes are capable of being characterized within the expression. Nor has the High Court provided a comprehensive interpretation. Isaacs and Rich JJ observed in *McCawley v the King* that ‘the Constitution of a colony ... may be looked for wherever any provision is made for the Constitution of any of its great organs of legislation, judicature, or executive power’.¹⁰⁴ Similarly, Evatt J posed the possibility that this expression covered ‘only those provisions or terms, wherever found, which really define and describe the framework and scheme of its

government’.¹⁰⁵ There is more recent support for a broad view that incorporates all relevant statutes, as well as the royal prerogatives, the common law, and even constitutional conventions.¹⁰⁶

The precise impact of section 106 on the status of State Constitutions also remains unclear. An extreme early suggestion was that it fully incorporated the State Constitutions into the Commonwealth Constitution, as if they become chapters of the latter.¹⁰⁷ A less extreme view is that section 106 is the *source* of each State Constitution, since the States owe their existence, as such, to the Commonwealth Constitution. This position was suggested by Barwick CJ in the *Seas and Submerged Lands Act Case*:

On the passage of the Imperial Act, those colonies ceased to be such and became States forming part of the new Commonwealth. As States, they owe their existence to the Constitution which, by ss 106 and 107, *provides their constitutions and powers* referentially to the constitutions and powers which the former colonies enjoyed, including the power of alteration of those constitutions.¹⁰⁸ (emphasis added)

This view was also adopted by Brennan CJ in *McGinty v Western Australia* who accorded a dual operation to section 106:

Its first operation is to prescribe what the new elements of the Federal polity—the States—shall be. When the people of the Australian colonies were united in the Commonwealth of Australia by the proclamation made pursuant to Covering Cl 3 and those Colonies became Original States of the Commonwealth by operation of Covering Cl 6, the Colonies—the old constitutional entities—acquired a new constitutional status. They became States, as the text of ss 107 and 108 shows, deriving their existence as States from the Commonwealth Constitution. Secondly, *s 106 conferred on the respective States substantially the Constitutions of the antecedent Colonies*. The same Constitutions as had been conferred on the Colonies prior to 1 January 1901 were continued as the Constitutions of the respective States thereafter, subject to such modifications as were effected by the *Commonwealth of Australia Constitution Act 1900 (Imp)* and the Commonwealth Constitution.¹⁰⁹

Whether it is necessary to interpret section 106 in this way—as the source of the State Constitutions—is debatable. It may be sufficient simply to say that section 106 transforms the former colonial Constitutions into those of the newly created States as part of the transformation of the former British self-governing colonies into States of the Commonwealth of Australia. To suggest that their Constitutions exist now *only* by virtue of the Commonwealth Constitution ignores over a century of constitutional evolution including the colonies’ role in initiating and endorsing federation itself. At least one can say that section 106 does ‘transmogrify colonial Constitutions into State Constitutions’.¹¹⁰ The better view, it is submitted, is that section 106 confirms the continued operation of the Constitutions of the

former colonies, and maintains the capacity of the new States to alter their Constitutions as before. This approach accommodates the separate evolution of the legitimacy of State Constitutions from the sovereignty of the people of each colony.

Significantly, section 106 not only affirms the capacity of the State Parliaments to alter their own State Constitution, but the corollary of this position has been implied, that the Commonwealth cannot alter or impair State Constitutions.¹¹¹ How far section 106 operates as a restriction on Commonwealth power remains unclear but it does provide a foundation for the protection, by way of implied restrictions on Commonwealth power, of the federal system.¹¹²

Since the Commonwealth Constitution effectively postdates the States' colonial Constitutions, it is not surprising that it prescribes nothing specifically for their constitutional systems. It does, however, refer to features of their systems then in place, for instance, their bicameral Parliaments,¹¹³ a State Governor,¹¹⁴ and a Supreme Court.¹¹⁵ Apart from extending Chapter III of the Commonwealth Constitution to protect the State judicial system, as noted above, the High Court has resisted implying from these provisions any federal restraint on State power to alter their constitutional systems.

Soon after federation the view was expressed that 'the whole scheme of federal government is opposed to the existence of any supervisory authority over the States'.¹¹⁶ This supports the view that the States are generally uninhibited by the Commonwealth Constitution as far as their constitutional system is concerned:

[The Commonwealth] Constitution has nothing whatever to say about the form of government in the States and Territories of Australia. ... If a State wishes to have a system of one party government, to abolish one or both of its legislative chambers or to deny significant sections of its population the right to vote, nothing in the Constitution implies that it cannot do it. ... Nor, despite references in the Constitution to the Houses of Parliament of the States, does the Constitution guarantee the continued existence of the State Houses of Parliament.¹¹⁷

The High Court seems to have implicitly accepted this view in relation to the power of the States to change to a unicameral parliamentary system in 1917¹¹⁸ and then again in 1960 when the High Court in *Clayton v Heffron*¹¹⁹ specifically rejected the argument that section 15 of the Commonwealth Constitution, which empowered a joint sitting of the

Houses of a State Parliament to fill a casual Senate vacancy, required bicameral State Parliaments. Similarly in *McGinty*¹²⁰ a majority of the High Court found that the Commonwealth Constitution prescribed no restraint on State electoral systems, in particular, no requirement of one vote one value in State electorates for the Western Australia Parliament.

Yet there is some judicial support for the Commonwealth Constitution mandating representative government at the State level. For instance, Kirby J in *Attorney-General (WA) v Marquet* has warned: ‘a [State] tyranny or autocracy could not exist as a constituent polity of the integrated federal nation to which the [Cth] Constitution gave birth’.¹²¹

Nonetheless a more likely extension of Commonwealth constitutional protection arises when an exercise of State power may impact on a federally protected freedom. In such a case, the freedom may be extended to the State as a restriction on State power in relation to purely State affairs. This occurred in relation to the implied freedom of political communication which was originally derived as a restriction on Commonwealth power in order to ensure an informed choice at federal elections. That freedom was later extended as a restriction on State power in relation to political communication about its own political affairs, because of the intermingling of federal and State political issues.¹²² The same phenomenon occurred, as noted earlier, in relation to the extension of Chapter III protection to State courts which exercise both State and federal jurisdiction. It was eventually recognized, as a matter of logic, that any State undermining of the institutional integrity of their courts in the exercise of State jurisdiction equally threatens their integrity when exercising federal jurisdiction.¹²³

The capacity of the Commonwealth to directly affect the State Constitutions is also relevant in relation to Australia’s transformation from a monarchical to a republican system. This complicated issue is discussed further below.

1. Australia Acts 1986

The final chapter in the formal constitutional relationship between the Australian States and the United Kingdom was late in coming. This was due mostly to the absence of any public need to address the issue, although there were technical legal issues at times which prevented the States from enacting legislation inconsistent with certain United Kingdom laws. The

two *Australia Acts 1986*, one enacted by the Commonwealth Parliament and the other by the United Kingdom Parliament, terminated the remaining constitutional links between the two nations, including those between the six Australian States and the United Kingdom. Initiated by State legislation requesting their enactment, once again the direct involvement of the people of each State was bypassed, being both legally unnecessary and technically too complicated for public debate.

Both Acts essentially renounce United Kingdom legislative¹²⁴ and executive authority¹²⁵ in relation to the Australian States and abolish all appeals from Australian courts to the Judicial Committee of the Privy Council.¹²⁶ This means that the States are no longer subject to paramount United Kingdom law or subject to any authority of the United Kingdom government. As noted earlier, the only surviving constitutional link is the Queen as Queen of Australia who remains the titular head of each State executive.

The *Australia Acts* also terminated the application of the *Colonial Laws Validity Act 1865* (Imp) to the States, thereby abolishing the doctrine of repugnancy.¹²⁷ This means that the State Parliaments are no longer bound by former Imperial paramount laws, with the exception of the key constitutional statutes of the *Commonwealth of Australia Constitution Act 1900* (Imp), the *Statute of Westminster 1931* (Imp) and the *Australia Act* itself.¹²⁸

Apart from the termination of these imperial restrictions on the States, the *Australia Acts* are an important source of authority for the States in several respects. First, section 2(1) declares that each State Parliament has ‘full power to make laws for the peace, order and good government of that State that have extraterritorial operation’. Section 2(2) further declares that the State Parliaments have ‘all legislative powers that the Parliament of the United Kingdom might have exercised before the commencement of this Act for the peace, order and good government of that State [other than in relation to any capacity to engage in foreign relations]’. While an affirmation of the plenary nature of State legislative power, section 2 has not been interpreted to remove the restriction on extraterritorial competence, discussed below. Secondly, section 6 maintains the capacity of State Parliaments to entrench their legislation by ‘manner and form’ requirements. This capacity enables State Parliaments to create new binding

restrictions on itself, as well as ensuring the binding force of those restrictions enacted pursuant to section 5 of the *Colonial Laws Validity Act 1865* (Imp) before its repeal by the *Australia Acts*. This complex issue of entrenchment is also considered below.

E. STATE LEGISLATIVE POWER

The pivotal provision in all State Constitutions is that which describes the legislative power of the State Parliament. The colonial formula remains unchanged in all States. The power is described in the Constitutions of New South Wales,¹²⁹ Queensland,¹³⁰ South Australia,¹³¹ and Tasmania¹³² as the power to make laws for the ‘peace, welfare and good government’ of the State. The Western Australian Constitution adopts a variation to the same effect: a power to make laws for the ‘peace, order and good government’ of the colony.¹³³ Only Victoria has the more streamlined version: a power to make laws ‘in and for Victoria in all cases whatsoever’.¹³⁴ The High Court has accepted that all these expressions amount to the same conferral of legislative power—one which is ‘plenary’ in the sense that those words do not constitute any substantive limitation on the scope of the power.¹³⁵ This view has been maintained since colonial times despite the occasional obiter dicta suggesting that there may be some inherent restriction on State legislative power.¹³⁶

Included in this ‘plenary’ power is the power to repeal and amend the provisions of the State Constitution either expressly or impliedly. Despite a legal challenge, soon after federation, to prevent implied repeal of the Queensland Constitution, the Judicial Committee of the Privy Council in *McCawley v The King*¹³⁷ rejected this view. State Constitutions are to be treated like any other Act, even, such as a *Dog Act*. The Privy Council accorded legal superiority to the Parliament, not to the Constitution, in this renowned quote:

The legislature of Queensland is the master of its own Household, except in so far as its powers have in special cases been restricted.¹³⁸

The restrictions contemplated in that passage have Imperial origins or are found in the Commonwealth Constitution. The former relate to the doctrine of repugnancy to Imperial paramount law, entrenchment by manner and

form, and extraterritorial competence. While the first of these, as previously noted, has been substantially repealed, the other two restrictions remain operative.

1. Entrenchment

One of the most perplexing areas of State constitutional law is the limited capacity of State Parliaments to entrench legislation, in particular, their own *Constitution Act*. Entrenchment involves the prescription of a special procedure to make it more difficult than usual for the repeal or amendment of certain legislation. This may range from a mild form of entrenchment, such as the approval of an absolute majority of members in a House, through to more onerous requirements, such as a two-thirds majority of members in both Houses and/or a referendum of the people.

Although the State Parliaments are vested with wide legislative power sufficient to prescribe these special requirements, it does not follow that they are binding. Australian courts seek a higher legal principle to determine whether an entrenchment mechanism is legally binding. The mere fact that a restrictive procedure is prescribed by a State Constitution has never been sufficient to make that binding. This reflects both its lack of status as superior law, as well as the principle of parliamentary sovereignty. The only superior law in operation at the colonial or State level was Imperial law.

Hence, the only clearly established legal basis for binding entrenchment procedures originally derived from British Imperial law, the proviso to section 5 of the *Colonial Laws Validity Act 1865* (Imp). This proviso was interpreted both as an empowerment of colonial/State Parliaments to entrench their legislation by ‘manner and form’ requirements, and as an Imperial restriction on their power. Yet its scope in both respects is quite limited. It fails to reconcile adequately the competing imperatives, on the one hand of protecting fundamental constitutional values by appropriate entrenchment, and on the other, of ensuring that each Parliament has the requisite flexibility to address the issues of the time.¹³⁹

This did not change when the *Colonial Laws Validity Act 1865* (Imp) was repealed by the *Australia Acts 1986* because the proviso was continued by section 6 in substantially identical terms. The States accepted the status quo

in the absence of any consensus to change the position.¹⁴⁰ Section 6 of the *Australia Acts* provides:

a law made after the commencement of this Act by the Parliament of a State respecting the constitution, powers or procedure of the Parliament of the State shall be of no force or effect unless it is made in such manner and form as may from time to time be required by a law made by that Parliament, whether made before or after the commencement of this Act.

Section 6, as did its predecessor, confines binding entrenchment within a very narrow band; defined not by reference to what is purportedly entrenched but by reference to the nature of the law purporting to change that which is entrenched. The *amending* law must be one ‘respecting the constitution, powers or procedure of the [State] Parliament’.

Few laws satisfy this narrow characterization. For instance, a bill of human rights purportedly entrenched by referendum is unlikely to be protected from statutory amendment, since any law inconsistent with one of those entrenched rights is not one ‘respecting the constitution, powers or procedure of the parliament’. Rather it will be viewed as a law affecting a human right, such as freedom of speech or a right to equality. The only provisions capable of effective entrenchment must relate to the institution of State Parliament itself, such as its composition, unicameral or bicameral, parliamentary terms, standing orders, and electoral system.¹⁴¹ No similar protection is afforded to the other two branches, the executive or the judiciary.

There is no rational principle to support this narrow band of entrenchment. It is an accident of history, originally enshrined in the proviso to section 5 of the *Colonial Laws Validity Act 1865* (UK) and slavishly followed in section 6 of the *Australia Acts*. It would have been preferable either to abolish this limited capacity to entrench State legislation altogether, or to expand and reform it to enable any provision of a State Constitution to be entrenched.

The opportunity might also have been taken when enacting the *Australia Acts* to adopt a correlative principle—that any legislation imposing an entrenchment procedure must follow the same procedure when enacted. Presently, entrenchment can occur by a bare majority of Parliament.¹⁴² Not only does this restricted capacity to entrench fail to protect essential constitutional features, it allows Parliament to entrench legislation without the need to follow the very procedure it proposes to prescribe.

Consequently, a constitutional quagmire is possible where a bare parliamentary majority can tie up future Parliaments. By adopting a correlative principle, this would have encouraged the ratification of State Constitutions by referendum, thereby enhancing their legitimacy and according them a status similar to the Commonwealth Constitution which is entirely referendum entrenched.

The classic tale of this contemptuous disregard for the peoples' view comes from Queensland. It involves the most dramatic alteration in any of the constitutional systems of Australia—the abolishing of the Legislative Council of the Queensland Parliament. The approval of the people of Queensland was never given, first, to an unelected Legislative Council in 1859, secondly, to the abolishment of that Council in 1922, and thirdly, to the entrenchment of Queensland's unicameral system in 1934, to prevent the reintroduction of an upper House without referendum approval. There is supreme irony in these developments, given that the only occasion on which electoral approval was actually sought was in a 1917 referendum for a Bill to abolish the Legislative Council, which was rejected by 179,105 to 116,196 votes.¹⁴³ A further twist to this tale is that New South Wales, fearing what occurred in Queensland, entrenched by referendum its bicameral system, also without first seeking electoral approval. An instance of undesirable copying of bad practice.

On no occasion has a State first sought electoral approval before entrenching legislation by a referendum requirement. Although this has recently raised judicial concern in obiter dicta,¹⁴⁴ it seems too late now for the High Court to imply this requirement from section 6 of the *Australia Acts*.

2. Single and Double Entrenchment

A consequence of the treatment of *Constitution Acts* as a local statute is the distinction drawn between single and double entrenchment. Effective entrenchment only occurs where the manner and form provision, which prescribes the more onerous procedure of amendment and repeal, is itself protected—usually by the same procedure it prescribes. Where this occurs, the protected provisions are referred to as 'doubly entrenched'. If the statute has not done this, the manner and form provision can simply be repealed or amended by ordinary legislation. This is referred to as single entrenchment.

Whether it is essential to remove the manner and form provision before tackling the ‘protected’ provision is unclear.¹⁴⁵ The prudent course is to do so.

3. Use of Entrenchment

While no State Constitution is entirely entrenched, all State Constitutions purport to entrench certain provisions. However, not all are effectively entrenched by section 6 of the *Australia Acts*. The most ambitious attempt is found in the *Constitution Act 1975* (Vic) where it was hoped that their extensive¹⁴⁶ manner and form requirements would be politically respected even if not legally entrenched.¹⁴⁷ This is a legitimate approach in so far as it prescribes special procedures to highlight the significance of proposed legislative changes. It does, however, complicate the situation where the Parliament proceeds to disregard, intentionally or unintentionally, the manner and form requirements.¹⁴⁸ Certainty is needed here to ensure that any binding requirements are identified to determine the validity of any legislative change. Simply ignoring legally effective manner and form provisions is likely to render any amendment or repeal invalid.

All State Constitutions except that of Tasmania purport to doubly entrench by referendum certain provisions in relation to the composition of the Parliament.¹⁴⁹ The Queensland and Western Australia Constitutions specifically extend this protection to the office of Governor.¹⁵⁰ The New South Wales and Victorian Constitutions purport to protect the judiciary.¹⁵¹ This latter attempt is of dubious effect, since any repeal or amendment of the provisions relating to the judicial branch is unlikely to satisfy the characterization test under section 6 of the *Australia Acts* as a law respecting the constitution, powers or procedure *of the parliament*. On the other hand, the protection afforded the Parliament and the office of Governor is likely to satisfy that test; the latter on the basis that the Governor is acknowledged as a component of the Queensland and Western Australian Parliaments.¹⁵²

4. Other Potential Entrenchment Grounds

Since the opportunity to reform entrenchment at the State level was missed with the enactment of the *Australia Acts*, at least three other possible grounds for effective entrenchment have been proposed to fill this gap. As each ground avoids the restrictive characterization required by section 6, they have the potential to entrench any type of law. Yet all these grounds have doubtful foundations.

The first ground has the broadest potential since, unlike the other two alternative grounds, it is not confined to the State Constitution. It proposes that a State Parliament can reconstitute itself for certain purposes by a manner and form procedure whereby only the reconstituted legislature can amend or repeal the ‘entrenched’ legislation. The strongest Australian authority for this ground are comments in obiter dicta by Dixon J and Rich J in *Trethowan*,¹⁵³ both of whom accepted that the United Kingdom Parliament and hence the Australian State Parliaments have the capacity to adopt a binding referendum procedure by reconstituting themselves to include the electorate as an additional component of Parliament. Another form of reconstitution might be a special majority requirement for the passage of bills. A practical problem with this ground is that all State Constitutions (except Tasmania) prevent any alteration in the composition of their Parliaments unless a manner and form is complied with. In Queensland, this requires a referendum.¹⁵⁴

Apart from these practical restraints, this ground lacks judicial recognition and interest in Australia. However, comments from the United Kingdom House of Lords in 2005 in the *Fox Hunting Case*¹⁵⁵ have aroused more interest in this possible ground in the United Kingdom. For instance, Lord Steyn observed in obiter:

But apart from the traditional method of law making, Parliament acting as ordinarily constituted may functionally redistribute legislative power in different ways. For example, Parliament could for specific purposes provide for a two-thirds majority in the House of Commons and the House of Lords. This would involve a redefinition of Parliament for a specific purpose. Such redefinition could not be disregarded.¹⁵⁶

Another potential ground derives from a much earlier decision of the Judicial Committee of the Privy Council in *Bribery Commissioner v Ranasinghe*,¹⁵⁷ which is often quoted for this principle:

a Legislature has no power to ignore the conditions of law-making that are imposed by the instrument which itself regulates its power to make laws.¹⁵⁸

This principle was applied to the Ceylon Parliament in holding the *Bribery Amendment Act 1958* (Ceylon) invalid for non-compliance with the manner and form in section 29(4) of the Ceylon Constitution which required any amendment to be approved by a two-thirds majority of the House of Representatives, duly certified by the Speaker's certificate. This principle seems to be confined to enforcing only those manner and form provisions found in the formal Constitution. Despite limited recognition¹⁵⁹ in Australia before the *Australia Acts* in 1986, it appears this principle is no longer tenable given the recognition by section 2(2) the *Australia Acts* of the plenary legislative power of State Parliaments, subject to the limited capacity to entrench State legislation under section 6.¹⁶⁰

The third potential ground derives from a particular interpretation of the last limb of section 106 of the Commonwealth Constitution which provides for the continued operation of each State Constitution, 'until altered in accordance with the Constitution of the State'. This was interpreted by the Full Court of Western Australia in *State of Western Australia v Wilsmore*¹⁶¹ to require compliance with any manner and form requirements prescribed by a State Constitution. As such, it has the same scope as the *Ranasinghe* principle. Despite having the best foundation of the three potential grounds, it too has aroused little support, with Kirby J rejecting this interpretation of section 106 in *Marquet*.¹⁶² The better view is that section 106 in this respect merely recognizes the capacity of State Parliaments to continue to amend their own State Constitutions, thereby avoiding any implication that they remain frozen in time as at federation. Consequently, section 106 has no impact by way of restricting their legislative capacity to amend the State Constitutions.

If none of these three alternative grounds for binding entrenchment is accepted by the High Court, this means that the superior status of the State Constitutions is dependent on the *Australia Acts 1986*. Yet this should not be viewed as undermining the Commonwealth Constitution which in section 106 protects the State Constitutions as essential components of the federal system. The status of State Constitutions derives from both the Commonwealth Constitution and the *Australia Acts*. They derive different aspects of their status from each: from the former, their federal status; from

the latter, their domestic status. The inability to derive their entire status from the Commonwealth Constitution may disappoint some but it reflects the historical evolution of the States and their unique relationship with the Commonwealth.¹⁶³

Whichever ground of entrenchment is available, the actual requirements of manner and form must not purport to abdicate legislative power. State Parliaments are incapable of depriving themselves of the power of enacting legislation either directly or in practice. Manner and form requirements which, in practice, are incapable of fulfilment are most likely invalid. For instance, referendums requiring 90 per cent approval are of this kind. Nor can a State Parliament subject the enactment of future law to the consent of anybody outside itself. The single exception to this is a referendum requirement which incorporates the electorate directly into the legislative process. But to subject the exercise of legislative power to the approval, for instance, of any member or agency of the executive would be invalid. So too, any attempt to restrict future legislative change of commercial agreements to the approval of any parties thereto have failed on this ground.¹⁶⁴

5. Extraterritorial Competence

The States possess the legislative competence to enact laws extending beyond their territory, provided there exists a sufficient connection between the activity regulated and the interests of the State. Such a connection is most obvious off-shore in relation to fishing and the enforcement of the criminal law along each State's extensive coastline. Extraterritorial competence across State land boundaries¹⁶⁵ into other States or territories is more complicated. Despite High Court encouragement¹⁶⁶ for finding a sufficient connection, even if only tenuous, a more conservative view seems warranted to avoid inter-State jurisdictional conflicts, especially where individuals are subjected to multiple liabilities. This is one of the few areas of potential legal conflict between the State polities.

Shortly after the grant of self-government to the Australian colonies, doubts arose over their extraterritorial capacity. The United Kingdom Colonial Office denied that capacity presumably to avoid jurisdictional conflicts within the Empire. The Judicial Committee of the Privy Council declared this authoritatively in 1891 in *McLeod v Attorney-General for New*

*South Wales*¹⁶⁷ in confining a New South Wales statutory offence of bigamy to the territory of the State. Soon after that high water mark of colonial incompetence, the Privy Council in *Croft v Dunphy*¹⁶⁸ accepted a limited extraterritorial capacity provided there was a sufficient connection with the interests of the enacting colony or State. This could be established where the liability was imposed on persons who were resident or domiciled in that State or had some other connection there whether by way of a business or legal transaction.

Dixon J in *Broken Hill South Ltd v Commissioner of Taxation (NSW)*¹⁶⁹ elaborated on the nature of a sufficient connection, which can be reformulated to exist in one of three ways:

- i. where the law imposes liability on any person who has a *relationship* with the State, by reference to some act, matter or thing occurring *outside* the State;
- ii. where the law imposes liability on *any* person who is *concerned* with any act, circumstance, occurrence or thing *within* the State; or
- iii. where the law imposes liability on *any* person who is *concerned* with any act, circumstance, occurrence or thing *outside* the State which is connected with the State.¹⁷⁰

State extraterritorial legislation has been upheld on the basis of each of these categories. Accordingly, within (i) a State can tax its residents' income wherever derived outside the State;¹⁷¹ within (ii) a State can impose a liability on the inter-State owner of an inter-State vehicle which uses its roads;¹⁷² and within (iii) a State can enforce fishing offences committed by anyone in its adjacent waters.¹⁷³

Since all States have extensive coastlines, their extraterritorial competence offshore is of particular significance. While the above principles apply equally across land and sea boundaries, a new offshore regime was negotiated in the 1970s after a majority of the High Court found that each State's territory ended at the low water mark and so did not include the adjoining three nautical mile territorial sea.¹⁷⁴ Despite the submissions of all States to the contrary, the Court held that the United Kingdom had never conferred sovereignty to the States beyond their low water mark. This facilitated Commonwealth assumption by legislation pursuant to its external affairs power section 51(xxix) of both ownership and control of the territorial sea, as well as control over the continental shelf.¹⁷⁵ A change of federal government soon after that High Court

decision led to a negotiated settlement in 1979 whereby the Commonwealth enacted legislation to confer on the States a general legislative power over their respective three nautical mile territorial sea,¹⁷⁶ as well as ownership of the seabed thereof.¹⁷⁷ This facilitates State control of all activities within the immediate vicinity of their respective coastlines without the need to establish the legal test of a sufficient connection.

The enactment of section 2(1) of the *Australia Acts 1986* aroused debate as to whether the restriction on the States' extraterritorial competence had been removed:

It is hereby declared and enacted that the legislative powers of the Parliament of each State include full power to make laws for the peace, order and good government of that State that have extra-territorial operation.

Despite the breadth of the language, the better view, supported by comments from the High Court in *Union Steamship Co of Australia*¹⁷⁸ and in *Mobil Oil Australia Pty Ltd*,¹⁷⁹ is that this provision made no substantive change to the pre-existing limited extraterritorial capacity of the States. For the first time, the possibility is briefly noted in the former decision that the States' restricted extraterritorial capacity may derive from an implication from the Commonwealth Constitution, seemingly to avoid inter-State disputes within the federation.¹⁸⁰ Apart from this potential federal implication, section 2(1) literally confirms this restriction by referring to the 'full power to make laws ... *for ... that State*'.¹⁸¹

F. STATE CONSTITUTIONS AS MODELS OF REFORM

Despite the opportunity for the constitutional systems of the States to evolve in different ways, there remains considerable homogeneity between them. As noted earlier, the most significant change so far is the abolition of the Queensland Legislative Council in 1922, resulting in the only unicameral State legislature. Other differences arose as the States expanded their respective franchise at different times, especially to women and their Indigenous people. The relative autonomy of the States in relation to their own constitutional systems facilitates experimentation by one or more States, often leading to all following suit when successful. Similar innovations are usually not possible at the Commonwealth level unless

referendum approved. Two areas where the States have been able to accord constitutional recognition, more easily than the Commonwealth,¹⁸² are in relation to Indigenous recognition and local government.

1. Indigenous Recognition

A profound example of the agility of State Constitutions is their amendment to provide some form of Indigenous recognition in every State. Victoria¹⁸³ was the first to do so in 2004, followed by Queensland¹⁸⁴ and New South Wales¹⁸⁵ in 2010, South Australia¹⁸⁶ in 2013, Western Australia¹⁸⁷ in 2015, and Tasmania¹⁸⁸ in 2016. Varying levels of community consultation within each State preceded recognition, although, unlike any equivalent proposal to amend the Commonwealth Constitution, none required or involved a referendum.

Following Victoria's pioneering effort, each State learnt from each other's precedents. Western Australia and Tasmania followed Queensland by amending their preambles to recognize the Aboriginal people as the 'First People' of each State. Queensland also included its Torres Strait Islander peoples as 'the First Australians' of its territory. The other States inserted provisions within the Constitution itself—partly because they do not have a preamble. The level of recognition varies from acknowledging the Indigenous peoples as the first inhabitants of the land, as custodians, their past and continuing contribution to the State, to their dispossession and consequences thereof. Western Australia and Tasmania did not follow the other States who have inserted a non-justiciability clause. A Tasmanian parliamentary committee recommended against such a clause as redundant, given the lack of any legal consequences from mere recognition, and as potentially undermining the sincere motives of the legislators.¹⁸⁹

2. Local Government

As the third level of government in Australia, local government exists entirely by virtue of State law. Although local councils were established by the colonial governments in the nineteenth century, formal constitutional recognition as a third tier of government in the State Constitutions only occurred during the latter part of the twentieth century. Victoria was the first

to do so in 1979, followed by the other States.¹⁹⁰ Victoria provides the model provision:

Local government is a distinct and essential tier of government consisting of democratically elected Councils having the functions and powers that the Parliament considers are necessary to ensure the peace, order and good government of each municipal district.¹⁹¹

While the Queensland Constitution purports to entrench its system by referendum, this is unlikely to be binding. It does require though, as does the Victorian Constitution,¹⁹² parliamentary approval for any dissolution by the executive of a particular local government.¹⁹³

The Commonwealth Constitution makes no reference to local government. In 1988, an unsuccessful referendum was held to amend the Constitution to insert a new provision, section 119A, to require each State to provide for the establishment and continuance of local government bodies in accordance with State law.¹⁹⁴ This proposed amendment was intended to recognize the importance of local government in Australia by entrenching its continued existence. This enhanced status did not involve any substantive change to the relationship between local government bodies and their respective State, although it removed the ever present threat of being abolished by a State. In 2013, another referendum was proposed to amend section 96 of the Commonwealth Constitution to allow Commonwealth financial grants direct to local governments. Amid considerable opposition from the States, this proposal was dropped when an early federal election was held on 4 August.

Commonwealth constitutional recognition of local government remains controversial. It has lacked bipartisan support because it is perceived by some as threatening the role of the States. It would formally complicate the federal relationship. Nonetheless a political relationship already exists between the Commonwealth and local governments without formal constitutional recognition. And the existence of this third tier of government is recognized by the inclusion in the Council of Australian Governments (COAG) of the president of the Australian Local Government Association. Direct federal funding of local government, however, poses a more serious threat to State control of local government.

G. THE FUTURE

The two most significant changes to the State Constitutions on the horizon are the possible transformation to an Australian republic and the grant of statehood to the Northern Territory as the seventh State. The least likely event is for a State to secede.

1. The Republic

As noted earlier, the sole remaining constitutional link with the United Kingdom is HM Queen Elizabeth II and her heirs and successors, as Australia's Head of State and as the head of the executive within each of the States. In her State capacity, the Queen is represented by the Governor, who, as noted earlier, is appointed by her on the advice of the State Premier. The institution of the monarchy is homogenous in Australia at the Commonwealth and State level. This was reinforced by the *Australia Acts* in 1986 in explicitly establishing the State Premier's power to advise the monarch, thus establishing the same direct line of communication as has been enjoyed by the Prime Minister since the Balfour Declaration in 1926.

Having always prized this Imperial connection since colonial times, the States managed to preserve this link through federation, even to enhance it in 1986, despite freeing themselves from any remaining restrictions to achieve effective constitutional independence from the United Kingdom. Their constitutional agility in these respects, as well as their direct links with the monarch, enhance their status as States. Indeed, as explained above, by virtue of the *Australia Acts*, the States have actually improved their position since federation

The republic movement, however, threatens this achievement. The most bizarre aspect of the constitutional referendum proposal in 1999 was that it only sought to transform the Commonwealth into a republic, not the States. The expectation was that if the federal referendum succeeded, the people and the Parliaments of each State would voluntarily follow suit. This was a big gamble since the referendum under section 128 of the Commonwealth Constitution could pass with a national majority, as well as a majority in only a majority of States. There was a real prospect that even if the Commonwealth Constitution was successfully amended, one or two States might refuse to amend their Constitutions to conform to a republican

model.¹⁹⁵ If this happened, Australia would suffer a form of constitutional schizophrenia with a republican Commonwealth and the States either republican or remaining a constitutional monarchy.

Whether the Commonwealth could resolve such an impasse by enacting legislation to impose a uniform republican system on all the States involves significant legal and political obstacles.¹⁹⁶ Central to that debate is whether the consent of a majority in each State is required for that State's own constitutional system to be altered. Despite the absence of an express provision to that effect in the Commonwealth Constitution, there might be a basis for implying such a requirement from those provisions which require a majority in each State for certain changes, in particular under section 123 for any change in the boundaries of that State, and under section 128 for any alteration of that State's proportional representation in either Commonwealth House.

No other issue poses such a challenge to the legitimacy of State Constitutions as does the transformation to an Australian republic. Yet it is a step which may not occur for several generations, not for a lack of majority support for a republic at both the Commonwealth and State level, but because there is likely to be division within that majority over the precise constitutional arrangements to achieve that transformation. One principle should be observed, however: that a majority of the people of *every* State needs to approve this change to their Constitution.

2. New States

The inclusion of new States in the federation is expressly contemplated by section 121 of the Commonwealth Constitution. Significantly, no amendment to the Constitution is required, nor is there any general requirement for the consent of the existing States. Only the approval of the Commonwealth Parliament is required. At federation, this was thought sufficient since the views of the original States would have been conveyed through the Senate. Given that this is no longer so, the existing States are effectively denied any formal role in the future expansion of the federation.

The exception to this state of affairs arises, however, if the new State includes part of the territory of an existing State. Then under section 124 of the Commonwealth Constitution the consent of that State's Parliament is required. This leaves the States uninvolved where the new State is admitted

from outside the Commonwealth, or is converted from a Commonwealth territory. So far, the only contemplated expansion of the federation is the conversion of the Northern Territory into a State. The Commonwealth has deferred to the wishes of the Territory as to when this is to occur. The first and only referendum in the Northern Territory on whether to become a State failed in 1998. This outcome has been explained on the basis that the benefits of remaining a federal territory outweighed the attainment of State status.¹⁹⁷ Since federation, there have been proposals for the subdivision of the larger States, especially of New South Wales, Queensland, and Western Australia. None has attracted official support despite regional approval.¹⁹⁸

The terms upon which the Commonwealth Parliament admits or establishes a new State under section 121 are widely defined as ‘such terms and conditions, including the extent of representation in either House of the Parliament, as it thinks fit’.

There has been, in the case of the movement toward statehood for the Northern Territory, an attempt to draft a new State Constitution.¹⁹⁹ This could take effect either as a Commonwealth law enacted pursuant to section 121, or as a local law, the enactment of which is authorized by a Commonwealth law. The latter option resembles the approach adopted by the Imperial authorities in the 1850s, which authorized the colonial legislatures to enact their own Constitution Act. Referendum approval of a local Constitution Act would enhance its legitimacy.

Such a new State Constitution provides an opportunity for considerable innovation, for example, a non-monarchical system without formal assent for the enactment of legislation. This has already occurred in the Australian Capital Territory.²⁰⁰ There seem to be few restraints from the Commonwealth Constitution on this process of constitution-making. Essential components include a State Parliament and State courts. Section 121 expressly contemplates that the representation of any new State in the Commonwealth Parliament may be on terms different from those constitutionally prescribed for the original States. Similarly, the relationship between the Commonwealth and the new State may also differ from that constitutionally prescribed in the case of the original States.

3. Secession

An obvious measure of strength of any federation is the lack of any attempt on the part of its constituent members to leave or secede from the federation. Australia rates fairly high on this measure with only one serious attempt in its history. This occurred in fairly extreme circumstances in 1933 during the Great Depression, and in a regular fashion with a petition from Australia's most isolated State, Western Australia, to the United Kingdom Parliament. The rejection of the petition, which had been referendum approved by 66 per cent of the Western Australia electorate, on the ground that the United Kingdom needed the consent of the Commonwealth Parliament to so amend the Commonwealth Constitution, led to no revolution or unilateral action on the part of Western Australia.

Any attempt to enlist United Kingdom support to secede is now no longer possible, even theoretically, since the formal renunciation of United Kingdom authority over Australia by the *Australia Acts 1986*. Given the absence of any provision for secession in the Commonwealth Constitution, there is significant academic support for the view that there exists no constitutional basis for secession by any Australian State, unilateral or otherwise.²⁰¹ The only possible means is by an amendment to the Commonwealth Constitution pursuant to section 128, which needs to be approved by a majority of the Australian electorate in a majority of the States, including the State that wishes to secede. Even that view depends on accepting that section 128 allows amendment of the United Kingdom covering clauses of the Constitution, in particular, clauses 3 and 4 of the *Constitution of Australia Constitution Act 1900* (Imp) which actually effected federation. A powerful tonic to the permanency of federation is also found in the preamble to the Imperial Act: 'Whereas the peoples [of the colonies] humbly relying on the blessing of Almighty God, have agreed to unite in one indissoluble Federal Commonwealth'.

H. CONCLUSION

The Australian State Constitutions are probably unique in the sub-national sphere, in so far as they voluntarily facilitated the national Constitution, and in doing so, tried to ensure their progeny would treat them in future with kid gloves. By section 106 of the Commonwealth Constitution, their

Constitutions were maintained with no interference to their constitutional institutions. By section 107 their legislative powers were also maintained—qualified by the granting of a few exclusive powers to the Commonwealth, the conferral of Commonwealth paramountcy in relation to concurrent powers, and a few restrictions mostly concerned with the promotion of free interstate trade and movement. Since federation, further restrictions have been implied from the Commonwealth Constitution by the High Court of Australia, which operate as restrictions on State power, as well as on Commonwealth power, in order to give them effect at all levels of government.

Despite being recognized by section 106 of the Australian Constitution as essential components of the Australian constitutional system, the State Constitutions generally lack legal recognition as superior law within their own jurisdictions. The apparently limited State capacity to entrench legislation means that only those parts of the Constitution concerned with the Parliament can assume special legal significance. This has advantages and disadvantages. On the one hand there is flexibility to update State Constitutions and to innovate, such as by according indigenous recognition. On the other hand, State Constitutions lack the capacity to protect individual rights through entrenched guarantees. It is therefore not surprising that the State Constitutions arouse minimal passion among State constituencies. They perform their constitutional role with little fuss and engagement, leaving many contentious State issues to be debated and resolved within the confines of the political process rather than through the courts.

¹ Unlike in Canada and India, although a common feature of many federal systems: Cheryl Saunders, 'The Constitutional Credentials of State Constitutions' (Melbourne Legal Studies Research Paper No 621) 7.

² *Constitution Act 1855* (NSW).

³ *Constitution Act 1855* (Vic).

⁴ *Constitution Act 1855* (SA).

⁵ *Constitution Act 1855* (Tas).

⁶ *Letters Patent* (Imp) of 9 July 1859.

⁷ *Constitution Act 1889* (WA).

⁸ Although the New South Wales and Victorian Constitutions were changed by the Westminster Parliament before being included in a schedule to an Imperial Act and receiving royal assent: see

Anne Twomey, *The Constitution of New South Wales* (The Federation Press 2004) 21ff.

⁹ Gerard Carney, *The Constitutional Systems of the Australian States and Territories* (CUP 2006) 47.

¹⁰ *McCawley v The King* [1920] AC 691 (PC).

¹¹ *Constitution Act 1902* (NSW).

¹² *Constitution Act 1934* (SA).

¹³ *Constitution Act 1934* (Tas).

¹⁴ *Constitution Act 1975* (Vic).

¹⁵ *Constitution Act 1867* (Qld).

¹⁶ *Constitution of Queensland 2001*.

¹⁷ *Constitution Act 1889* (WA) and the *Constitution Acts Amendment Act 1899* (WA).

¹⁸ *Australian Constitutions Act (No 1) 1842* (Imp), s 31; all reservation of bills repealed by *Australia Acts 1986*, s 9(1).

¹⁹ *Charter of Human Rights and Responsibilities Act 2006* (Vic).

²⁰ See Chapter 39 'Expression'.

²¹ (1994) 182 CLR 211, 233–34 (Mason CJ, Toohey and Gaudron JJ), 236 (Brennan J).

²² cf *Muldowney v South Australia* (1996) 186 CLR 352 where the Solicitor-General for South Australia conceded a similar implied freedom could be derived from ss 11 and 27 of the *Constitution Act 1934* (SA); but the Court made no finding on this basis.

²³ Carney, *Constitutional Systems of the Australian States* (n 9) 132–33.

²⁴ *Constitution Act 1902* (NSW), s 3; *Constitution Act 1975* (Vic), s 15; *Constitution Act 1889* (WA), s 2(2).

²⁵ *Constitution Act 1934* (Tas), s 10 cites only the 'Governor'.

²⁶ *Constitution Act 1867* (Qld), s 2A(1).

²⁷ See Peter Hanks, Frances Gordon, and Graeme Hill, *Constitutional Law in Australia* (3rd edn, LexisNexis Butterworths 2012) 78.

²⁸ *Constitution Act 1902* (NSW), s 7B.

²⁹ *Constitution of Queensland 2001*, s 19B.

³⁰ *Constitution Act 1975* (Vic), s 18(1B).

³¹ In Victoria, a deadlock between the Houses over a bill can also result in an early election: *Constitution Act 1975* (Vic), s 68E(2).

³² *Constitution Act 1902* (NSW), s 24B.

³³ *Constitution of Queensland 2001*, s 19E.

³⁴ *Constitution Act 1934* (Tas), s 19(1) requires two or three members (of a total of fifteen members) in every alternate year to be elected.

³⁵ *Constitution Act 1975* (Vic), s 28; *Constitution Acts Amendment Act 1899* (WA), s 8.

³⁶ *Constitution Act 1902* (NSW), s 22B.

³⁷ *Constitution Act 1934* (SA), s 14.

³⁸ John Waugh, 'Deadlocks in State Parliaments' in George Winterton (ed), *State Constitutional Landmarks* (Federation Press 2006) 185.

³⁹ *ibid* 186.

⁴⁰ (1998) 195 CLR 424. See also Gerard Carney, 'Egan v Willis and Egan v Chadwick: The Triumph of Responsible Government' in George Winterton (ed), *State Constitutional Landmarks* (Federation Press 2006) 298ff.

⁴¹ *Constitution Act 1902* (NSW), s 5A; *Constitution Act 1975* (Vic), s 65.

⁴² In 1911–12.

⁴³ In 1924 and 1948.

⁴⁴ Only recognized in *Constitution of Queensland 2001*, s 65, but recognized by case law eg, *Stevenson v R* (1865) 2 WW A'B L 143 where a resolution of the Victorian Legislative Assembly was insufficient to authorize a customs duty.

⁴⁵ *Constitution Act 1902* (NSW), s 39; *Constitution of Queensland 2001*, s 64; *Constitution Act 1975* (Vic), s 89; *Constitution Acts Amendment Act 1899* (WA), s 64.

⁴⁶ *Constitution Act 1902* (NSW), s 45; *Constitution of Queensland 2001*, s 66; *Constitution Act 1975* (Vic), s 92; *Constitution Act 1889* (WA), s 72.

⁴⁷ Still in force: see *Imperial Acts Application Act 1969* (NSW), s 6 and Sch 2 Pt 1; *Imperial Acts Application Act 1984* (Qld), s 3 Sch 1; *Imperial Acts Application Act 1980* (Vic), s 3 Schedule. See also *Stevenson v R* (1865) 2 WW A'B L 143; *Attorney-General v Wilts United Dairies Ltd* (1920) 37 TLR 884; *Commonwealth v Colonial Combing Spinning and Weaving Co Ltd* (1922) 31 CLR 421.

⁴⁸ See *Alcock v Fergie* (1867) 4 WW & A'B (L) 285; *Auckland Harbour Board v R* [1924] AC 318; *New South Wales v Bardolph* (1934) 52 CLR 455; *Commonwealth v Burns* [1971] VR 825, 827; *Pape v Federal Commissioner of Taxation* (2009) 238 CLR 1.

⁴⁹ See *Powell v Apollo Candle Co* (1885) 10 App Cas 282, 290–91; *Osborne v Commonwealth* (1911) 12 CLR 321, 336 (Griffith CJ).

⁵⁰ *Constitution Act 1902* (NSW), s 5; *Constitution Act 1934* (SA), s 61; *Constitution Act 1934* (Tas), s 37; *Constitution Act 1975* (Vic), s 62; *Constitution Acts Amendment Act 1899* (WA), s 46(1).

⁵¹ *Constitution Act 1902* (NSW), s 46; *Constitution of Queensland 2001*, s 68; *Constitution Act 1934* (SA), s 59; *Constitution Act 1934* (Tas), s 38; *Constitution Act 1975* (Vic), s 63; *Constitution Acts Amendment Act 1899* (WA), s 46(8).

⁵² *Constitution Act 1934* (SA), s 62; *Constitution Act 1934* (Tas), s 42; *Constitution Act 1975* (Vic), s 64(2); *Constitution Acts Amendment Act 1899* (WA), s 46(2). To avoid potential abuse by the lower House, tacking on of non-money provisions is not permitted.

⁵³ *Constitution Act 1975* (Vic), s 62(2).

⁵⁴ See, eg, Enid Campbell, *Parliamentary Privilege* (The Federation Press 2003) 112ff.

⁵⁵ *Constitution Acts Amendment Act 1899* (WA), s 46(9).

⁵⁶ *Constitution Act 1902* (NSW), s 5A(3).

⁵⁷ See Hanks, *Constitutional Law* (n 27) 3.32, 129.

⁵⁸ *Constitution Act 1902* (NSW), ss 35B–35C; *Constitution of Queensland 2001*, ss 48–49; *Constitution Act 1975* (Vic), ss 87A–87B.

⁵⁹ *Constitution Act 1902* (NSW), s 9A; *Constitution of Queensland 2001*, s 29; *Constitution Act 1975* (Vic), s 6; *Constitution Act 1889* (WA), s 50.

⁶⁰ *Constitution Act 1867* (Qld), ss 11A–11B. These provisions continue alongside the *Constitution of Queensland 2001*.

⁶¹ *Constitution Act 1889* (WA), s 50(2).

⁶² *Australia Acts 1986*, s 7(5).

⁶³ See Twomey, *Constitution of NSW* (n 8) 131–45.

⁶⁴ *Australia Acts 1986*, s 7(2).

⁶⁵ *ibid* s 7(3).

⁶⁶ *ibid* s 7(4).

⁶⁷ *Constitution Act 1902* (NSW), ss 35B–35C.

⁶⁸ *Constitution of Queensland 2001*, ss 48–49.

- ⁶⁹ *Constitution Act 1975* (Vic), ss 87A–87B.
- ⁷⁰ See, eg, Letters Patent (SA) of 14 February 1986, cl III.
- ⁷¹ *Constitution Act 1902* (NSW), s 35E(1).
- ⁷² *Constitution of Queensland 2001*, s 42(1).
- ⁷³ *Constitution Act 1975* (Vic), s 87E(b).
- ⁷⁴ *Constitution Act 1934* (SA), s 66(1) requires Ministers to become a member of either House within three months of their appointment.
- ⁷⁵ *Constitution Act 1934* (Tas), s 8B(1) must be a member at the time of their appointment.
- ⁷⁶ *Constitution Act 1975* (Vic), s 51 requires Ministers to become a member of either House within three months of their appointment.
- ⁷⁷ *Constitution Act 1902* (NSW), s 35E.
- ⁷⁸ *Constitution Act 1934* (SA), s 42(1).
- ⁷⁹ *ibid* s 42(2).
- ⁸⁰ *ibid* s 43(4) (max nineteen).
- ⁸¹ *Constitution Act 1934* (SA), s 65(1) (max fifteen).
- ⁸² *Constitution Act 1934* (Tas), s 8A.
- ⁸³ *Constitution Act 1889* (WA), s 43 (max seventeen).
- ⁸⁴ *Constitution Act 1902* (NSW), s 35A.
- ⁸⁵ *Constitution Act 1975* (Vic), s 87E on the advice of the Executive Council or that of the Premier.
- ⁸⁶ *Constitution of Queensland 2001*, s 34.
- ⁸⁷ See, eg, Carney, *Constitutional Systems of the Australian States* (n 9) 282–94.
- ⁸⁸ *Constitution Act 1902* (NSW), s 53; *Constitution of Queensland 2001*, ss 56–63; *Constitution Act 1934* (SA), ss 74–75; *Constitution Act 1889* (WA), ss 54–55.
- ⁸⁹ *Constitution of Queensland 2001*, ss 57–58. Section 57 also requires a District Court of Queensland.
- ⁹⁰ *Constitution Act 1975* (Vic), ss 75–85.
- ⁹¹ *ibid* s 75A.
- ⁹² *ibid* ss 83–83AI.
- ⁹³ *Constitution Act 1902* (NSW), s 7B.
- ⁹⁴ *Constitution Act 1975* (Vic), s 18(2AA).
- ⁹⁵ *Kable v Director of Public Prosecutions (NSW)* (1996) 189 CLR 51.
- ⁹⁶ *ibid*.
- ⁹⁷ *Kirk v Industrial Relations Commission of NSW* (2010) 239 CLR 531.
- ⁹⁸ *Constitution of Queensland 2001*, s 61.
- ⁹⁹ *Constitution Act 1975* (Vic), s 87AAD(1).
- ¹⁰⁰ *ibid* s 87AAH(2).
- ¹⁰¹ *ibid* s 87AAH(3).
- ¹⁰² *ibid* s 87AAB(2).
- ¹⁰³ In New South Wales, public consultation led to abandonment of hereditary titles: Twomey, *Constitution of NSW* (n 8) 15.
- ¹⁰⁴ (1918) 26 CLR 9, 52.
- ¹⁰⁵ *Stuart-Robertson v Lloyd* (1932) 47 CLR 482, 491.
- ¹⁰⁶ See, eg, Spigelman CJ in *Egan v Chadwick* (1999) 46 NSWLR 563, 565–68.

¹⁰⁷ John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (Angus & Robertson 1901) 930.

¹⁰⁸ *New South Wales v Commonwealth* (1975) 135 CLR 337, 372 ('*Seas and Submerged Lands Act Case*').

¹⁰⁹ (1996) 186 CLR 140, 171–73 (emphasis added). Toohey J expressed a similar view at 208.

¹¹⁰ P H Lane, *Lane's Commentary on the Australian Constitution* (Law Book Company 1986) 565.

¹¹¹ See *Australian Railways Union v Victorian Railway Commissioners* (1930) 44 CLR 319, 391–92 (Dixon J).

¹¹² See Leslie Zines, *The High Court and the Constitution* (5th edn, The Federation Press 2008) 472.

¹¹³ References occur in the *Commonwealth Constitution* to the State Parliaments in ss 9, 15, 29, and 123, and as a bicameral legislature in ss 10, 25, 30, 31, and 41.

¹¹⁴ *Commonwealth Constitution*, ss 7, 12, 15, 21, and 126.

¹¹⁵ *ibid* Chapter III, especially s 73.

¹¹⁶ W Harrison Moore, *The Constitution of the Commonwealth of Australia* (2nd edn, Charles F Maxwell 1910) 349.

¹¹⁷ *Theophanous v Herald & Weekly Times Ltd* (1994) 182 CLR 104, 201 (McHugh J).

¹¹⁸ *Taylor v Attorney-General of Queensland* (1917) 23 CLR 457.

¹¹⁹ See *Clayton v Heffron* (1960) 105 CLR 214, 248 (Dixon CJ, McTiernan, Taylor and Windeyer JJ).

¹²⁰ (n 109).

¹²¹ (2003) 217 CLR 545, 600 [166].

¹²² *Stephens* (n 21) 182 CLR 211; *Unions NSW v NSW* (2013) 252 CLR 530, 550, 582.

¹²³ *Kable* (n 95).

¹²⁴ *Australia Acts 1986*, s 1.

¹²⁵ *ibid* s 10.

¹²⁶ *ibid* s 11.

¹²⁷ *ibid* s 3.

¹²⁸ *ibid* s 5.

¹²⁹ *Constitution Act 1902* (NSW), s 5.

¹³⁰ *Constitution of Queensland 2001*, s 8; *Constitution Act 1867* (Qld), s 2.

¹³¹ *Constitution Act 1934* (SA), s 5 with *Australian Constitutions Act 1850* (Imp), s 14.

¹³² *Australian Constitutions Act 1850* (Imp), s 14.

¹³³ *Constitution Act 1889* (WA), s 2.

¹³⁴ *Constitution Act 1975* (Vic), s 16.

¹³⁵ See *Union Steamship Co of Australia v King* (1988) 166 CLR 1, 9.

¹³⁶ See, eg, *Building Construction Employees and Builders' Labourers Federation of New South Wales v Minister for Industrial Relations* (1986) 7 NSWLR 372.

¹³⁷ (1928) AC 691.

¹³⁸ *ibid* 714.

¹³⁹ See Cheryl Saunders, *The Constitution of Australia—A Contextual Analysis* (Hart Publishing 2011) 52–53.

¹⁴⁰ Anne Twomey, *The Australia Acts 1986 Australia's Statutes of Independence* (The Federation Press 2010) 235–49.

- ¹⁴¹ See *Marquet* (n 121).
- ¹⁴² *Attorney-General (NSW) v Trethowan* (1932) 47 CLR 97; [1932] AC 526.
- ¹⁴³ Gerard Carney, 'Constitutional Milestones after 1867 to 2009' in Michael White and Aladin Rahemtula (eds), *Queensland's Constitution: Past, Present and Future* (Supreme Court of Queensland Library 2010) 104–06.
- ¹⁴⁴ See Gummow J in *McGinty* (n 109) 297; Kirby J in *Marquet* (n 121) [194].
- ¹⁴⁵ Carney, *Constitutional Systems of the Australian States* (n 9) 192.
- ¹⁴⁶ See *Constitution (Parliamentary Reform) Act 2003* (Vic) Division 4.
- ¹⁴⁷ See the 39th Report of the Legal and Constitutional Committee for the Victorian Parliament, *A Report Upon the Constitution Act 1975* (March 1990).
- ¹⁴⁸ See John Waugh, 'The Victorian Government and the Jurisdiction of the Supreme Court' (1996) 19 University of New South Wales Law Journal 409.
- ¹⁴⁹ *Constitution Act 1902* (NSW), ss 7A and 7B; *Constitution 1867* (Qld), s 53(1); *Constitution Act 1975* (Vic), s 18(1B); *Constitution 1934* (SA), ss 10A(2), 88; *Constitution 1889* (WA), s 73(2).
- ¹⁵⁰ *Constitution 1867* (Qld), s 53(1); *Constitution 1889* (WA), s 73(2).
- ¹⁵¹ *Constitution Act 1902* (NSW), s 7B; *Constitution Act 1975* (Vic), s 18(2AA).
- ¹⁵² *Constitution 1867* (Qld), s 2A; *Constitution 1889* (WA), s 50.
- ¹⁵³ (n 142).
- ¹⁵⁴ *Constitution 1867* (Qld), s 53.
- ¹⁵⁵ *Jackson v Her Majesty's Attorney-General* [2005] 3 WLR 733.
- ¹⁵⁶ *ibid* at 761. See also Baroness Hale at 783.
- ¹⁵⁷ [1965] AC 172.
- ¹⁵⁸ *ibid*, 197.
- ¹⁵⁹ See, eg, Gibbs J in *Victoria v The Commonwealth and Connor* (1975) 134 CLR 81, 163 ('PMA Case'); Hoare J in *Commonwealth Aluminium Corporation Limited v Attorney-General of Queensland* [1967] Qd R 231, 247; Matheson J and Zelling J in *West Lakes Limited v The State of South Australia* (1980) 25 SASR 389, 413, 421.
- ¹⁶⁰ See Gummow J in *McGinty* (n 109) 297; approved in obiter by Gleeson CJ, Gummow, Hayne and Heydon JJ in (n 121) [80].
- ¹⁶¹ [1981] WAR 179.
- ¹⁶² (n 121) [190].
- ¹⁶³ cf Saunders, *The Constitution of Australia* (n 139) 56.
- ¹⁶⁴ See, eg, *Commonwealth Aluminium Corporation Limited* (n 159) Qd R 231; *West Lakes Limited* (n 159).
- ¹⁶⁵ See Gerard Carney, 'A Legal and Historical Overview of the Land Borders of the Australian States' (2016) 90 Australian Law Journal 579.
- ¹⁶⁶ *Pearce v Florenca* (1976) 135 CLR 507, 518 (Gibbs J). Approved in *Union Steamship Company of Australia* (n 135) 14; *Port MacDonnell Professional Fishermen's Assn Ltd v South Australia* (1989) 168 CLR 340, 372; *Mobil Oil Aust Pty Ltd v Victoria* (2002) 211 CLR 1 [9], [123].
- ¹⁶⁷ [1891] AC 455.
- ¹⁶⁸ [1933] AC 156.
- ¹⁶⁹ (1937) 56 CLR 337, 375.
- ¹⁷⁰ Carney, *Constitutions of the Australian States* (n 9) 228.
- ¹⁷¹ *Broken Hill* (n 169) 356 (Latham CJ).
- ¹⁷² See *Ex parte Iskra* [1963] SR (NSW) 538; *O'Sullivan v Djneko* (1964) 110 CLR 498.

- ¹⁷³ See Pearce (n 166).
- ¹⁷⁴ *Seas and Submerged Lands Act Case* (n 108).
- ¹⁷⁵ *Seas and Submerged Lands Act 1973* (Cth).
- ¹⁷⁶ *Coastal Waters (State Powers) Act 1980* (Cth).
- ¹⁷⁷ *Coastal Waters (State Title) Act 1980* (Cth).
- ¹⁷⁸ (n 135) 13–14.
- ¹⁷⁹ (n 166) [9], [48].
- ¹⁸⁰ *Union Steamship Co of Australia* (n 135) 13–14.
- ¹⁸¹ See Carney, *Constitutional Systems of the Australian States* (n 9) 220–22 (emphasis added).
- ¹⁸² For a cross-section of views on the difficulties that attend current proposals to amend the Commonwealth Constitution, see Damien Freeman and Shireen Morris (eds), *The Forgotten People: Liberal and Conservative Approaches to Recognising Indigenous Peoples*, (Melbourne UP 2016).
- ¹⁸³ *Constitution Act 1975* (Vic), s 1A.
- ¹⁸⁴ Preamble to the *Constitution of Queensland 2001*.
- ¹⁸⁵ *Constitution Act 1902* (NSW), s 2.
- ¹⁸⁶ *Constitution Act 1934* (SA), s 2.
- ¹⁸⁷ Preamble to *Constitution Act 1889* (WA).
- ¹⁸⁸ Preamble to the *Constitution Act 1934* (Tas).
- ¹⁸⁹ Report of the House of Assembly Standing Committee on Community Development, *Inquiry into the Constitutional Recognition of Aboriginal people as Tasmania's First People*, (No 35 2015) cls 2.18–2.19.
- ¹⁹⁰ *Constitution Act 1902* (NSW), Pt 8, s 51; *Constitution of Queensland 2001*, Ch 7, ss 70–80; *Constitution Act 1934* (SA), Pt 2A, s 64A; *Constitution Act 1934* (Tas), Pt IVA, ss 45A–45C; *Constitution Act 1975* (Vic), Pt IIA, ss 74A–74B; *Constitution Act 1889* (WA), ss 52–53.
- ¹⁹¹ *Constitution Act 1975* (Vic), s 74A(1).
- ¹⁹² *ibid*.
- ¹⁹³ *Constitution of Queensland 2001*, ss 72–76.
- ¹⁹⁴ Only 33.16 per cent voted in favour.
- ¹⁹⁵ Such a referendum is clearly required under the Constitutions of Queensland and Western Australia, and probably also in the other States except for Tasmania: see Carney, *Constitutional Systems of the Australian States* (n 9) 332–34.
- ¹⁹⁶ See Sarah Murray (ed), *Constitution Perspectives on an Australian Republic: Essays in Honour of Professor George Winterton* (Federation Press 2010).
- ¹⁹⁷ For the background, see Peter Loveday and Peter McNab (eds), *Australia's Seventh State* (The Law Society of the Northern Territory, and the North Australia Research Unit, the Australian National University 1988).
- ¹⁹⁸ See *Final Report of the Constitutional Commission*, vol 1 (AGPS 1988) 7.6; Anna Rienstra and George Williams, 'Redrawing the Federation: Creating New States from Australia's Existing States' (2015) 37 Sydney Law Review 357.
- ¹⁹⁹ See Alistair Heatley and Peter McNab, 'The Northern Territory Statehood Referendum 1998' (1999) 10 Public Law Review 3.
- ²⁰⁰ *ACT Self-Government Act 1988* (Cth).
- ²⁰¹ See Gregory Craven, *Secession: the Ultimate States Rights* (Melbourne UP 1986).

PART III

THEMES

CHAPTER 13

LEGITIMACY

BRENDAN LIM*

ON the last day of the Australasian Federal Conventions in 1898, Edmund Barton moved for copies of the newly adopted draft Constitution Bill to be supplied to the electors in each colony. It was the beginning of the end of the federation decade. Indeed, it was the beginning of the end of ‘sixty years of spasmodic official effort and fluctuating public interest to bring the Commonwealth into being’.¹ Already behind Barton and his fellow delegates was the enormously creative effort to translate the ‘federal idea’² into a workable schematic for a national government. Still ahead of them lay the not insubstantial hurdles of winning the approval of electors in the colonies and securing the passage of the Bill through the Imperial Parliament. At this pivotal, if somewhat formal moment in the Constitution’s long gestation, Barton set his sights on the legitimacy of the new arrangements. He had foreshadowed his purpose at the end of the previous day:

I shall have a few words to say in recommendation of the Bill, and I shall invite other honourable members to follow my example so that there may be a separate copy of the report of the proceedings of tomorrow, not occupying too great a space, which may be read and studied, as I hope it will be, by many of the electors of the colony.³

This was certainly not as ambitious an undertaking as, say, the Federalist Papers. But it would, for Barton as for ‘Publius’ writing in New York one hundred years earlier, serve to counter vocal objections from the anti-Billites, whom Barton perceived to be uninformed or wilful in their tendency to mislead. He called on the Convention to give ‘an authoritative statement of the [Constitution’s] main provisions’ to ‘go forth to the public, with the correction of the erroneous views circulated concerning it’.⁴ He

wanted ‘to insure that the provisions of the Bill [were] understood by the electors, who [would] have to deal with the question of its adoption’.⁵ Barton also wanted to impress upon those same electors the ‘justice’ of the proposed Constitution. Responding to criticism of the Convention’s ‘tendency to reverse [its] decisions’ (and perhaps of some of his own personal changes of position), Barton claimed that ‘[t]he very readiness of the Convention to realize that its proceedings may at times have led it to overstep the mark in one direction or another’ was the ‘surest guarantee’ of an anxiety to draft a just Constitution.⁶ ‘To be just,’ Barton continued, the Constitution ‘cannot be marked by evidence of over-zeal or over-demand upon the part of any section of the community’.⁷

There was, to be sure, a certain political expediency to Barton’s concern with the justice of the Constitution, and its public understanding and acceptance. There were, after all, referenda to be won. And Barton was less the political philosopher than the political pragmatist, whose ‘great skill lay in his capacity to broker workable compromises’.⁸ Nevertheless, in rising to meet the challenge of the moment, Barton presaged two enduring demands of constitutional legitimacy: the Constitution should be understood and accepted to be binding—that is, sociologically legitimate. And it should be a just Constitution, not favouring ‘any section of the community’ with ‘over-zeal’ or ‘over-demand’—that is, morally legitimate.

If Barton could ask us today how constitutional legitimacy is faring, ‘could be better, could be worse’, is probably the most honest answer that we could give. It is an answer with which Barton, the political pragmatist, would probably be pleased. I do not in this chapter set myself the task of assessing how much better or how much worse. I approach the problem somewhat more obliquely, by charting the uneven progression since federation of popular sovereignty as a legitimating force in Australian constitutionalism. The story to be told is one around the margins of constitutional law, where questions of legality end and questions of legitimacy begin. It is a story about how the sociological and moral facts which lie outside the constitution, but which shape our understanding of its legitimacy, can come to be incorporated within the constitution, and to shape our understanding of its law. The story begins with the particular conception of popular sovereignty that the Constitution introduced into the regime. This was a political rather than a juridical conception; a fact

determining legitimacy rather than legality. But, as I will explain, the boundary between legitimacy and legality is a porous one. In a wide variety of ways, conceptions of legitimacy influence standards of legality and I will trace the course of that influence through the twentieth century before returning to Barton's themes.

A. POPULAR SOVEREIGNTY

The eventual passage of the Constitution through both local referenda and the Imperial Parliament highlights a curious feature of constitutional legitimacy in Australia. By the 1850s, when the colonies first obtained governments that were responsible to local representative legislatures rather than bureaucratic superiors in London, it was virtually certain, as La Nauze records, 'that no scheme of federal government would ever be imposed by Britain upon the Australian colonies; if they wanted one, they would have to work it out for themselves and the imperial Parliament would be concerned only to give it legal sanction'.⁹ The third Earl Grey's earlier designs to impose a federal form of government were 'coldly viewed' in Australia, at least 'partly because they were his' designs.¹⁰ An autochthonous federalism emerged, therefore, from a most 'un-British'¹¹ path: a Convention of elected delegates, in which the draft Constitution was wrought by 'exhaustive debates, heated controversies, and careful compromises';¹² and the subsequent referenda, in which the electors themselves approved the Constitution's terms.

It is important not to overstate the democratic credentials of the process. Queensland did not participate in the 1897–98 sessions of the Convention. The Western Australian delegates were elected by its legislature, rather than directly, and that colony did not conduct a referendum until after the Constitution had been enacted at Westminster. Participation in the referenda throughout the colonies was around 60 per cent of eligible electors.¹³ And, most significantly, those referenda were conducted on a franchise that was to say the least 'far from ideal by today's standards',¹⁴ excluding most women, many Indigenous Australians and other racial minorities, especially in Queensland and Western Australia, and in Tasmania imposing a property qualification. And yet, for all these undoubted defects, there had been an

authentic ‘popular movement’¹⁵ for federation and ‘the mechanism [for achieving it] ... required participation [and] opened up a field in which public debate, petitions, letters to the press, and scrutiny of official processes were not only accepted, [but] central’.¹⁶

The process of constitution-making immediately introduced a conception of popular sovereignty. The leading authorities in 1900 unambiguously announced the new Constitution to be both an ‘expression of the free will of the people’,¹⁷ and ‘based upon the will of the people’.¹⁸ The preamble to the Constitution itself commences with a recitation of ‘the people ... hav[ing] agreed to unite in one indissoluble Federal Commonwealth under the Crown’ and so gestures towards this fundamental constitutional tenet. Section 128 does similarly, by providing an exclusive mode of constitutional alteration requiring popular approval in a referendum. This may be contrasted with the *British North America Act 1867*, enacted not all that long before the Australian Constitution, which contained no general provision for its own amendment.¹⁹

It may be acknowledged that there are semantic difficulties with the expression ‘popular sovereignty’. They arise at least in part from the variety of senses in which the word ‘sovereignty’ can be used and misused.²⁰ For example, references to ‘sovereignty’ might carry with them the outdated Austinian idea that, in any legal system, there must of necessity be a single and legally unlimited sovereign. ‘Popular sovereignty’ is therefore sometimes criticized on the ground that the populace is obviously not sovereign in the Austinian sense.²¹ Such criticism really attacks a straw man, because ‘popular sovereignty’ is rarely invoked in this simplistic sense. Properly understood, popular sovereignty encompasses those notions of authority and justification which bespeak the sociological acceptance of a constitution as binding, and which also comprise part of the political theory according to which the moral bindingness of a constitution may be evaluated. ‘Popular sovereignty’ is not some kind of literal description of the powers of a population; it is descriptive, rather, of the powers (or disabilities) of legal institutions. To invoke popular sovereignty is not to assert the direct or immediate capacity of the people to govern themselves, but rather to assert a source of fundamental limitations (whether they be legal or political limitations) on the powers of those institutions that *do* have the direct and immediate capacity to govern.

It is also important to bear in mind that the limitations appurtenant to popular sovereignty (whether they be legal or political limitations) might be of at least two kinds. They might be of a kind affecting the relationship between the government and the governed. But they might otherwise be of a kind affecting the relationship between the national and the subnational spheres of government, and this second kind of limitation is of particular relevance in the Australian context. Popular sovereignty, as expressed in the origins of the Australian Constitution, did not arise out of any ‘expectations of extensive limitations upon legislative power for the purpose of protecting the rights of individuals’.²² On the contrary, it arose from the desire, as expressed in the opening resolutions affirmed at the Adelaide session of the Federal Convention, ‘to enlarge the powers of self-government of the people of Australasia’;²³ that is, not to surrender any powers of self-government, but to transfer them ‘to a higher and more beneficial plane’.²⁴

It would be a mistake to think that ‘popular sovereignty’, as understood in the British colonies of the late nineteenth century, was in any way alien to the constitutional tradition. Not long had passed since the popular movements in the colonies towards successful demands for responsible government.²⁵ Of course, by the 1890s, British constitutionalism was synonymous with Dicey’s doctrine of *parliamentary* sovereignty. And although *popular* sovereignty was more readily associated with American constitutionalism, the theory of popular sovereignty had in fact ‘first emerged in England in the mid-seventeenth century as an antidote to the Stuart theory of the divine right of kings’.²⁶ As Dicey himself explained, the doctrine of parliamentary sovereignty implemented an underlying principle of popular sovereignty by allowing, perhaps compelling, ‘the will of the electorate ... to prevail’.²⁷ Accordingly, the Australian conception of popular sovereignty as articulated in 1900 was, for want of a better vocabulary to express the distinction, ‘political’ rather than ‘legal’. The Constitution undoubtedly took its *legal* form only from being ‘clothed’ by an Act of the Imperial Parliament.²⁸ Notions of popular sovereignty were, if anything, *political* claims or, in Harrison Moore’s language, ‘historical sources’ rather than legal sources.²⁹ There was produced what Paul Finn later called ‘the fissure which was to divorce the legal and political identities of the Australian people’.³⁰

The ‘fissure’ to which Finn referred is the Australian instantiation of a more general feature of constitutionalism: the distinction between ‘legitimacy’ and ‘legality’. Legitimacy begins where legality ends. Despite a common etymological root, and despite sometimes serving as synonyms for one another in ordinary usage, the constitutional lawyer’s conception of ‘legitimacy’ connotes something different from his or her conception of ‘legality’. Although both concepts involve notions of justification, authority, rectitude, and righteousness, they measure those notions according to different kinds of standard. Legality connotes conformity with legal norms. Legitimacy connotes conformity with standards that are extra-legal (though perhaps in addition to, rather than exclusive of, legal criteria). That is why it is possible meaningfully to question the ‘legitimacy’, in the extra-legal sense, of a rule, practice, or decision, even if that rule, practice, or decision conforms to applicable legal norms. It is also why, at that ultimate point of every legal system where the hierarchy of legal norms is exhausted, *only* questions of legitimacy can meaningfully be asked, as it becomes nonsensical to inquire about legality when there are no longer any legal standards to apply.

Every legal system reaches that ultimate point of exhaustion because ‘[l]egal facts are never *ultimate* facts’, in the sense that, ‘whenever a law or legal system exists, it always does so in virtue of some other facts’.³¹ When, for example, officers of the Adelaide City Council sought to stop the street-preaching brothers, Caleb and Samuel Corneloup, from ‘preaching, canvassing, haranguing or distributing printed material’ in a pedestrian mall, their authority to do so existed in virtue of other facts—specifically, among other things, the fact that the brothers did not have a council-issued permit. The requirement to have such a council-issued permit before preaching, canvassing, haranguing, or distributing printed material on the street also existed in virtue of other facts—specifically, ‘By-law No. 4 – Roads’. The humble by-law, too, existed only in virtue of other facts—specifically, its regular promulgation by the Council pursuant to provisions of the *Local Government Act 1999* (SA). That State statute existed only in virtue of other facts, and so the chain of validity—or legality—continued, such that the Corneloup brothers were able to prosecute their case, about the want of a local council permit, in the High Court of Australia, invoking standards of legality derived from the Constitution itself.³²

Now, the Constitution itself, we could go on, also exists only in virtue of other facts, and this is where things start to get murky. Does the chain of legal authority continue further? The Constitution, one might say, exists in virtue of the fact that it is contained in clause 9 of the *Commonwealth of Australia Constitution Act 1900* (Imp) 63 & 64 Vict c 12, and perhaps there is still more to be said about the legal derivation of that British statute. However far we may see fit to take the legal derivation (and I have arguably already gone one step too far), we cannot continue *ad infinitum*. Even ultimate legal standards exist only in virtue of other facts, that is, extra-legal facts.

Legal philosophers disagree about the character of the ‘other facts’ in virtue of which ultimate legal standards exist. The positivists maintain that only *social* facts can play a law-determining role, social facts being facts about the actual behaviour and attitudes of legislators, judges, other legal officials, and perhaps subjects of the law. The natural lawyers, or anti-positivists, claim a necessary role for *value* facts, such facts being propositions of a normative, evaluative, or moral character.³³ To complicate matters, some positivists (who call themselves ‘soft’ or ‘inclusive’ legal positivists) admit the possibility that, in a given legal system, the relevant law-determining social facts might happen to incorporate by reference normative, evaluative, or moral propositions.³⁴

It does not much matter for my present purposes whether the positivists or the anti-positivists are correct about the *law*-determining character of these different kinds of facts. This chapter is not about *legality*, but *legitimacy*. And both kinds of facts, whatever their *law*-determining character, can be seen to have a *legitimacy*-determining character, albeit in distinctive senses. The distinction between social facts and value facts tracks a distinction between two senses of constitutional legitimacy: sociological legitimacy and moral legitimacy.³⁵ The sociological legitimacy of a constitution has been described as ‘the relevant public regard[ing] it as justified, appropriate, or otherwise deserving of support for reasons beyond fear of sanctions or mere hope for personal reward’.³⁶ It can also have a weaker meaning of ‘public acquiescence in assertions of legal authority’.³⁷ The moral legitimacy of a constitution, on the other hand, depends not on public support or acquiescence per se, but on the constitution’s intrinsic ‘moral justifiability or respect-worthiness’.³⁸ There are differing views as to

where we should look for this morality. Consent-based accounts look to see whether a constitution enjoys unanimous consent or, sometimes, only ‘hypothetical consent’ in the Rawlsian sense of what reasonable persons would consent to under reasonable conditions (because unanimous consent is almost certainly *never* realized). Others look to see whether, irrespective of consent, a constitution complies with ideal standards of justice. For some, ideal standards set the bar too high. Even if we could articulate ideal standards of justice, they would almost certainly *never* be realized in practice. And yet there is still moral value in the greater co-ordination that can be achieved with a constitution than without one. On that basis, moral legitimacy might be sufficiently found in a constitution complying with minimal standards of reasonable justice, even if less than ideal, combined with the absence of any realistic possibility of replacing that constitution with a more just one.³⁹

Although analytically distinct, these sociological and moral conceptions of legitimacy have a close relationship in constitutional law. Moral legitimacy is one reason why a person might, in fact, regard a constitution as binding and, conversely, moral illegitimacy might be a reason why a constitution fails to attract the kind of widespread acceptance to which sociological legitimacy accrues. Equally, widespread acceptance of a constitution, approaching something like unanimous consent, might, if we can take seriously the moral agency of the members of that community, serve as a reason to accept the moral legitimacy of that constitution for that community. Distinguishing sociological from moral legitimacy might improve the clarity with which we make different kinds of claims about legitimacy, but it is well to remember that, in constitutional debate and discourse, ‘none of these ... notions of legitimacy seems quite right in isolation’.⁴⁰ Claims about constitutional legitimacy typically invoke both social facts and value facts.

One important reason for this typical feature of legitimacy claims, at least in the Australian constitutional tradition, is that constitutional government is assuredly a form of *self-government*. Questions of constitutional legitimacy are therefore intimately bound up with conceptions of popular authority and justification—in our system, the conception of popular sovereignty, or the will of the people, which the Constitution expresses and on which the Constitution is based. Constitutional legitimacy embraces an element or requirement of ‘democratic’ legitimacy and the quality of democratic

legitimacy is both moral and sociological or, more precisely, ‘presupposes some degree of ... [both] moral legitimacy and sociological legitimacy’.⁴¹ A conception of popular sovereignty is, at once, a moral claim and, where it exists, a sociological phenomenon.

B. LEGITIMACY AND LEGALITY

I turn now to the generative relationship between legitimacy and legality, and illustrate that relationship by reference to developments in Australian constitutional thought during the twentieth century.

At the limit of the legal system, where questions of legality end and questions of legitimacy begin, lawyers might understandably experience a kind of professional indifference. After all, to venture across that limit in search of the ‘other facts’ in virtue of which the ultimate legal standards exist would be to trespass into other fields—history, sociology, and moral and political philosophy. Thus, Salmond held in his oft-cited work that ‘historians of the constitution know its origin, but lawyers must accept it as self-existent. It is the law because it is the law, and for no other reason that it is possible for the law itself to take notice of’.⁴² Zines described the same indifference when he responded to arguments that the Constitution’s legality could no longer be explained by its Imperial source:

[T]here [is] no necessity to provide any norm higher than the Constitution and other accompanying instruments, such as the *Australia Act*. It would be sufficient to conclude that the Constitution *was* law because it was enacted by the British Parliament. It is *now* law because it is accepted by the Australian people as their framework of government. In other words it is our fundamental law and needs no further legal justification.⁴³

There is doubtless value in sequestering the day-to-day administration of the legal system from questions of legitimacy that sit uneasily at the limit of constitutional law. Not every case about the want of a local council permit should depend, as the Corneloup brothers’ case did, on the determination of contested constitutional questions. Still less should the determination of those constitutional questions depend on some purported search for sources of constitutional legitimacy. One reason for having a constitution is precisely to pre-empt repeated debates of that kind. That the legitimacy of the Constitution is generally taken for granted is, when one thinks about it, a rather happy circumstance. When practical questions of constitutional

legitimacy have arisen elsewhere, they have done so in circumstances of violent instability.⁴⁴

The limit of the legal system, contingent as it is upon facts, be they social facts or value facts, does not and cannot remain fixed or immovable. As Geoffrey Sawer once observed, ‘the boundary between law and non-law is fluid; customs, moral rules and political principles become incorporated into the law in a wide variety of ways, by both judges and legislators’.⁴⁵ It is not a coincidence that Sawer rendered this observation when reflecting on the tumultuous Whitlam era, which ended with the vice-regal dismissal of the government, one of those rare periods in Australian history when real questions of constitutional legitimacy *did* emerge and *did* exercise the minds of the legal and political elite and ordinary Australians alike.⁴⁶ Sawer’s ‘fluid’ boundary between law and non-law—Winterton called it an ‘indistinct’ boundary,⁴⁷ and I prefer the metaphor of a ‘porous’ boundary—means that constitutional lawyers cannot really justify any strong indifference to the social and value facts of constitutional legitimacy, even though at a given moment in time those facts are seen to lie outside the realm of legality. Those facts are liable, in Sawer’s words, to ‘become incorporated into the law’ and could do so at any time and in a wide variety of ways. The porous boundary between legitimacy and legality is a significant feature of constitutional law and constitutional lawyering. As Randy Barnett succinctly put it, when lamenting the lack of attention paid to questions of legitimacy in the United States, ‘we may need to know *why* [the Constitution is legitimate] before we can settle on how to interpret what it says’.⁴⁸

The incorporation into the law of extra-legal facts has been a feature of constitutional reasoning from the beginning. An early illustration is to be found in *D’Emden v Pedder*,⁴⁹ in which the High Court held a Commonwealth officer to be immune from State stamp duty by reason of an implied immunity of instrumentalities discerned in the federal structure. The High Court fashioned that doctrine with careful reference to the decision of the United States Supreme Court in *McCulloch v Maryland*.⁵⁰ Griffith CJ, for the Court, acknowledged that American decisions were examined ‘not as an infallible guide, but as a most welcome aid and assistance’.⁵¹ His Honour continued to articulate ‘another consideration’ favouring the American cases:

We cannot disregard the fact that the Constitution of the Commonwealth was framed by a Convention of Representatives from the several colonies. ... [W]e are entitled to assume—what, after all, is a fact of public notoriety—that some, if not all, of the framers of that Constitution were familiar, not only with the *Constitution of the United States*, but with that of the Canadian Dominion and those of the British colonies. When, therefore, under these circumstances, we find embodied in the Constitution provisions undistinguishable in substance, though varied in form, from provisions of the *Constitution of the United States* which had long since been judicially interpreted by the Supreme Court of that Republic, it is not an unreasonable inference that its framers intended that like provisions should receive like interpretation.⁵²

The fact that the Constitution was drafted by a ‘Representative’ Convention before it was enacted as an Imperial statute (and the fact that some of the representatives knew of the American decisions) said nothing, of course, about the *legality* of the Constitution. They were at most *legitimacy*-determining facts. Griffith CJ nonetheless invoked those facts to justify the Court’s reference to, and reliance upon, the authorial intentions of the representatives at the Convention. Equally significantly, the American passages which the Court quoted invoked explicit notions of popular sovereignty: federal powers being ‘given by the people’ with the consequence that ‘the people of a single State cannot confer a sovereignty which will extend over’ those federal powers; and the federal legislature being the only legislature in which ‘all [are] represented’ and therefore the only legislature which ‘can be trusted by the people with the power of controlling measures which concern all’.⁵³ Suddenly, the historical or political facts of popular sovereignty, and the representative origins of the draft Constitution, seemingly relevant to constitutional *legitimacy* rather than *legality*, were incorporated into the law and given concrete constitutional consequences.

The approach in *D’Emden v Pedder* was characteristic of the early years of federation, in which the High Court systematically sought to demarcate separate spheres within which each of the federal and State polities would be sovereign. The Griffith Court’s vision was one of co-ordinate federalism,⁵⁴ and it was based in part on extra-constitutional conceptions of popular sovereignty in the senses described in *D’Emden v Pedder*. In 1920, this vision was, as every student of the Australian Constitution knows, swept aside by the *Engineers Case*.⁵⁵ The Court, then dominated by judges of a new generation, reasoned that it should interpret the Constitution ‘according to its own terms, finding the intention from the words of the compact, and upholding it throughout precisely as framed’.⁵⁶ ‘Settled rules

of construction', it was said, required the Court to 'exclude consideration of everything excepting the state of the law as it was when the [*Constitution*] was passed and the light to be got by reading it as a whole'.⁵⁷

The rhetorical disavowal of recourse to extra-legal or political facts, as reflecting a 'vague, individual conception of the spirit of the compact',⁵⁸ was not matched by the actual reasoning of the Court. Ironically, even 'self-contradictor[ily]',⁵⁹ the new interpretive approach was grounded simply in different facts. Where the Griffith Court had seen a necessity to prevent each of the dual sovereigns in the federation from trenching on each other's sphere of responsibility, the Court in 1920 said:

the extravagant use of the granted powers ... is a matter to be guarded against by the constituencies and not by the Courts. When the people of Australia, to use the words of the Constitution itself, 'united in a Federal Commonwealth', they took power to control by ordinary constitutional means any attempt on the part of the national Parliament to misuse its powers.⁶⁰

Thus, the political sovereignty of the people, by 1920, was seen to be manifested not in a co-ordinate federalism but in the doctrine of responsible government. Richard Latham argued that the 'real ground' of the decision was 'that the Constitution had been intended to create a nation, and that it had succeeded'.⁶¹ A more ample view of the national conception of the sovereign people emerged in 1920 as 'a consequence of developments that had occurred outside the law courts', especially the firmly established 'nationhood' of the Commonwealth and the 'growing realization that Australians were now one people and Australia one country'.⁶²

Despite incorporating its own selection of extra-legal facts to justify this 'new light'⁶³ in which the Constitution was to be read, the resulting 'legalism' deprecated, or at least counselled caution about, the use of such extra-legal sources. And this approach to constitutional law held sway in Australia for most of the twentieth century. That is not to say that the centralizing tenor of the *Engineers' Case* continued wholly unabated. There are judicially enforceable limits on the exercise of federal power affecting the constitutional functions of State governments, even in spite of the so-called 'political' character of those limits: 'It is not a question whether the considerations are political for nearly every consideration arising from the Constitution can be so described, but whether they are compelling.'⁶⁴ Even so, the 'fissure' between legitimacy and legality was sought steadfastly to be maintained. In particular, any role that 'popular sovereignty' might have

played in the early attempts to expound the new Constitution was firmly excluded from the legal domain.

Sir Owen Dixon, who was appointed to the Court in 1929, became the leading exponent of this approach:

[The Constitution] is not a supreme law purporting to obtain its force from the direct expression of a people's inherent authority to constitute a government. It is a statute of the British Parliament enacted in the exercise of its legal sovereignty over the law everywhere in the King's Dominions.⁶⁵

For Dixon, any other notions of legitimacy simply belonged to a different realm and need not trouble the lawyers.

Of course, Dixon understood well that it would be 'a mistake to regard ... as no more than philosophic theories' those 'fundamental conceptions, which a legal system embodies or expresses',⁶⁶ and he recognized the possibility that theories of legitimacy might become embodied within a legal system:

An enquiry into the source whence the law derives its authority in a community, if prosecuted too far, becomes merely metaphysical. But if a theoretical answer be adopted by a system of law as part of its principles, it will not remain a mere speculative explanation of juristic facts. It will possess the capacity of producing rules of law.⁶⁷

This is Dixon's own description of the porous boundary between legality and legitimacy. For Dixon, the ultimate authority of the law is rooted in 'juristic facts', which he regarded as those of 'the common law as a jurisprudence antecedently existing into which our system came and in which it operates'.⁶⁸ One might speculate about the explanations for those facts, or prosecute further inquiries into their justifications, but would do so *externally* to the legal system: the task would be 'metaphysical' and could produce only 'theoretical answer[s]'. But if any of those answers were to 'be adopted'—by crossing the porous boundary between legitimacy and legality—then there could be practical consequences, potentially far-reaching, if the adopted principles 'enter into combinations with other conceptions and contribute to the construction of new systems of law and of government'.⁶⁹

Dixon applied this insight specifically to conceptions of 'popular sovereignty', which have been legal conceptions in America, political conceptions in Britain, and which, in Australia, inhabit the porous region between legality and legitimacy. He was speaking at the height of the constitutional struggle for the New Deal in the United States and in a brief

window of time when, because of ‘an idiosyncratic departure from the constitutional norm’, the non-delegation doctrine was being deployed as an objection to the federal establishment of a welfare state.⁷⁰ Dixon said:

The doctrine that the supreme law of the United States derives its authority from the people ... has supplied a principle of American constitutional law. The several organs of government established by law appear to those who examine them in the light of this principle as agencies to whom the people have entrusted powers residing in the people. Accordingly, the agent’s authority cannot be delegated ... [The non-delegation doctrine] is in part a consequence of the incorporation into the American legal system of an abstract theory of the source whence the law derives its authority.

In the legal system of the British possessions no speculative or artificial explanation of its basis has hitherto found a place. Without enquiring why it should be so, English lawyers have accepted the traditional principle on which that system rests. It was the accepted doctrine of our system that the King in Parliament had absolute authority over the law.⁷¹

Although Dixon identified no *legal* function in Australia for any principle of popular sovereignty, his writing disclosed an acute awareness that there *are* extra-legal facts, in virtue of which even the ultimate ‘juristic facts’ exist, and among which he might have included something like popular sovereignty (he called them, variously, metaphysical, theoretical, speculative, and artificial). The only thing that kept those extra-legal facts from producing rules of law was that ‘[w]ithout enquiring why it should be so, English lawyers [had] accepted the traditional principle on which [the] system rests’. It was only a matter of time, however, before the lawyers *did* enquire ‘why it should be so’.

Lionel Murphy entered the Senate in 1962, in the middle of the cold war and on the left wing of a divided Labor Party that was halfway through two decades in opposition. Murphy rejected any notion that the political sovereignty of the Australian people conferred constitutional priority on the elected government or the House of Representatives. In his maiden speech, he declared the Senate to be ‘the foremost debating chamber in the Commonwealth of Australia’ and remarked upon its ‘international reputation for its supervision and control of delegated legislation’.⁷² For Senator Murphy, the legitimating force of popular sovereignty had legal consequences for the constitutional relationship between the institutions of government.

His view found concrete expression in his opposition to the government’s use of delegated legislation to circumvent the bicameralism requirement for primary legislation. Recorded in the *Sydney Morning Herald* on 19 June

1967, Murphy drew attention to the fiction of parliamentary control of the executive:

The House of Representatives has ceased doing the things that it should be doing—reviewing legislation. And in our system when one branch of government fails to do its job, the gap is filled elsewhere. In our case it is the Senate.

The lower chamber ... is failing to be a legislative House. The actualities of democracy are being transformed into an illusion.⁷³

The next day, having engineered the recall of the Senate from its recess,⁷⁴ Murphy moved the disallowance of regulations, the substance of which the Senate had already twice rejected in legislative form:

The Senate is asserting its powers against the Government ... The Government does not make the laws in this community. Parliament makes the laws. The Executive Government has set out to subvert the clearly expressed will of the Parliament.⁷⁵

He explained his position in the language of popular sovereignty:

We are here to assert the power of the Senate. In doing that, we are upholding the will of the Parliament ... What we are doing here has, without doubt, the support of public opinion, and the Government of this country will learn that, if it is not prepared to accept public opinion when it is clearly expressed, methods will be found, as they have been found on this occasion, to force the Government to bow to public opinion.⁷⁶

Murphy was articulating a vision of the constitutional system in which the popular institutions had a duty to ‘accept public opinion when it is clearly expressed’ and in which, should one institution fail to do so, ‘the gap [would be] filled elsewhere’ by another institution stepping in to correct the failure.

Murphy’s senatorial speeches could easily enough be dismissed as political argument, not probative of any translation of popular sovereignty from its political conception to a legal conception. That would be consistent with the legal position at the time. Dixon had only retired from the Court in 1964 and his successor, Sir Garfield Barwick, similarly maintained that problems concerning ‘the legal construction of the Constitution of Australia, ... an Act of the Imperial Parliament, ... [were] not to be solved by resort to ... vague and imprecise expressions of political philosophy’.⁷⁷ But Murphy was a reformer, and the basic idea contained in his political speeches—the idea of institutional capacity and obligation to speak in the name of the people when other institutions failed to do so—remained at the

heart of Murphy's constitutional thinking, even (perhaps especially) when Prime Minister Whitlam appointed him to the High Court in 1975.

Justice Murphy's articulation of a legal principle of popular sovereignty was marred by the fanciful result which he claimed followed from it. Relatively unobjectionably by today's standards, Murphy claimed that the 'original authority for our Constitution was the United Kingdom Parliament, but the existing authority is its continuing acceptance by the Australian people'.⁷⁸ But he went on to conclude that 'Australia's independence and freedom from United Kingdom legislative authority should be taken as dating from 1901'.⁷⁹ This was, of course, both legally and historically false and Murphy apparently thought that he was justified on the ground that 'Australians in the future would not be interested in the finer points of constitutional history ... and that there was a need for an independence date about which scholars might have reservations but which ordinary Australians would accept'.⁸⁰ As Zines observed, '[t]his sort of approach did much ... to harm Justice Murphy's reputation and to make him, perhaps, less influential than he otherwise might have been'.⁸¹

Still, Murphy's record stands as a striking illustration of how legitimacy-determining facts might cross the porous boundary between legitimacy and legality and be given legal consequences.⁸² Throughout the 1970s and 1980s, Murphy articulated a range of constitutional rights, which he said were implicit in the Constitution. This 'veritable constellation'⁸³ included: freedom from slavery or serfdom,⁸⁴ freedom of movement and communication,⁸⁵ freedom from sex discrimination,⁸⁶ a right to due process,⁸⁷ and freedom from cruel and unusual punishment.⁸⁸ Always sparsely reasoned, the judgments invoked considerations as amorphous as: 'the nature of our Constitution [which] is a Constitution for a free society';⁸⁹ the 'concept of the Commonwealth' and 'democratic society';⁹⁰ and 'silent constitutional principles ... so rooted in the traditions and conscience of our people as to be ranked as fundamental'.⁹¹ These vague ideas could not justify to a professional legal audience the asserted implications. But it is possible to see in Justice Murphy's approach the theory of popular sovereignty which he had first articulated as a Senator: when one branch of government fails to do its job, the gap is filled elsewhere, and methods will be found to force acceptance of public opinion.

In particular, in a system such as that which Murphy envisioned, one which adopts an internal principle of popular sovereignty, at least two things plausibly follow: the integrity of the individual against the government may assume importance; and the Court itself can assert its own, perhaps competing, claim to speak for the people, especially when the legislative process is perceived to have failed for structural reasons. Murphy's implied Bill of Rights was a practical extension of his constitutional theory of popular sovereignty.

Murphy was alone in the extent and strength of his views on this topic. But he was not entirely isolated. In 1984, Deane J moulded to a conception of the sovereignty of the Australian people a construction of section 109 of the Constitution (which gives supremacy to Commonwealth laws in the case of inconsistency with State law). The Commonwealth had argued that, because section 109 was 'designed to ensure the supremacy of valid Commonwealth laws', it should not be interpreted 'in a way which would detract from the parliamentary sovereignty of the Commonwealth'.⁹² Deane J said of that submission that it 'fail[ed] adequately to acknowledge that the Australian federation was and is a union of people' and that the Constitution concerned the 'governance and protection of the people from whom the artificial entities called Commonwealth and States derive their authority'. Section 109, Deane J said, served the 'important function of protecting the individual from the injustice of being subjected to the requirements of valid and inconsistent laws'.⁹³ Like Murphy J, his Honour discerned practical legal consequences in a conception of the ultimate authority of the people in a way that was outside the contemplation of the orthodox view as explained by Dixon.

Lionel Murphy died in October 1986. In March of the same year, simultaneous Australian and British legislation finally 'terminated the residual constitutional links between Australia and the United Kingdom'.⁹⁴ Australian independence had been a gradual process.⁹⁵ The final cutting of the ties in 1986 prompted Geoffrey Lindell to ask, in a seminal article, whether the new arrangements 'affect the explanation which should be given for the legally binding and fundamental character of the Australian Constitution'.⁹⁶ His short answer was 'No': Lindell reasoned that the binding and fundamental character of the Constitution could be explained in 1986 'by reference to the fact that *nothing has happened to change the pre-*

existing inability of the Parliaments of the Commonwealth and the States to legislate inconsistently with the Constitution whatever changes may have occurred in relation to the ability of those Parliaments to enact legislation which is inconsistent with *other* British Acts of Parliament'.⁹⁷

Lindell perceived that his answer, although 'constitutionally and legally sound', depended on 'Australia's colonial past' and so might not satisfy popular understandings or 'conform[] to the present social and political reality'.⁹⁸ He identified what he described as 'an additional, although not necessarily alternative' reason for the Constitution's legally binding and fundamental character: 'the will and authority of the people' as discerned from 'the agreement of the people to federate, supported by the role given to them in approving proposals for constitutional alteration under s 128 ... as well as their acquiescence in the continued operation of the Constitution as a fundamental law'.⁹⁹ What is not entirely clear is whether Lindell proffered this additional 'explanation' as a legal fact or as an extra-legal fact. That is, did Lindell believe that the 'will and authority of the people' should now be regarded as a legal norm superior to the Constitution or only a fact that explained the Constitution's legitimacy in a sociological or moral sense? One thing is clear: Lindell thought that it was 'unrealistic to assume that either the fact of independence or the different explanation which should now be adopted to explain the fundamental character of the Constitution should have the effect of changing basic principles of interpretation or constitutional doctrines'.¹⁰⁰ This tends to mark his conception of popular sovereignty as political rather than legal in character, explaining the legitimacy, but not the legality, of the Constitution. In other words, by 1986, there was no longer any legal norm superior to the Constitution (whereas, in 1900, British parliamentary sovereignty supplied such a norm), and the legitimacy of the Constitution was referable, perhaps more directly than it was in 1900, to a political conception of popular sovereignty.

In the early 1990s, in a period of significant creativity in the High Court, that political conception of popular sovereignty became incorporated into the law in ways Lindell did not intend and which had virtually no precedent save for the suspect judgments of Murphy J.

*Leeth v Commonwealth*¹⁰¹ was a challenge to a federal sentencing law, which provided for the fixing of non-parole periods by, in effect, applying

various State and Territory sentencing laws so that the sentencing principles applicable to individuals convicted of the same federal offence might vary from State to State. The argument for invalidity was based on the allegedly irrational discrimination between federal offenders. The argument failed on a narrow basis. Mason CJ, Dawson and McHugh JJ held that '[t]here is no general requirement ... that Commonwealth laws should have a uniform operation throughout the Commonwealth'¹⁰² and that any principle of sentencing parity could not be 'expressed in absolute terms'.¹⁰³ Conversely, Deane and Toohey JJ would have invalidated the law on the basis of a 'doctrine of legal equality ... as an underlying principle of the Constitution as a whole'.¹⁰⁴ Their Honours sourced this doctrine in the common law but, significantly, asserted that it was a 'fundamental constitutional doctrine existing and fully recognized at the time the Constitution was passed'.¹⁰⁵ The constitutional character engrafted upon the asserted principle was derived from a number of considerations, several of which depended on the legitimating force of popular sovereignty. Echoing Deane J's earlier reading of section 109 in a way that focused less on the politics that constitute the federation and more on the union of people in the federation, their Honours gave similar treatment to the non-discrimination provisions of the Constitution:

it would be somewhat surprising if the Constitution, which is concerned with matters of substance, embodied a general principle which protected the States and their instrumentalities from being singled out by Commonwealth laws for discriminatory treatment but provided no similar protection of the people who constitute the Commonwealth and the States.¹⁰⁶

Their Honours later said:

the conceptual basis of the Constitution ... was the free agreement of 'the people'—all the people—of the federating Colonies to unite in the Commonwealth under the Constitution. Implicit in that free agreement was the notion of the inherent equality of the people as parties to the compact.¹⁰⁷

Gaudron J would also have invalidated the law, but on a narrower basis, and found it unnecessary to decide whether there was any more general implication of equality.¹⁰⁸ Brennan J completed the majority upholding the law, but appeared to accept that there might be a constitutional non-discrimination guarantee flowing from a conception of popular sovereignty:

It would be offensive to the constitutional unity of the Australian people ‘in one indissoluble Federal Commonwealth’ recited in the first preamble to the *Commonwealth of Australia Constitution Act 1900*, to expose offenders against the same law of the Commonwealth to different maximum penalties dependent on the locality of the court by which the offender is convicted and sentenced.¹⁰⁹

Determinative for Brennan J was that the discrimination between federal offenders was not only rational, but necessary: the impugned law dealt not with *maximum* penalties but with release on parole and, federal offenders being incarcerated in the same prisons as State offenders, it was ‘necessary to maintain the same or substantially the same regime for fixing the minimum terms of Commonwealth prisoners and State prisoners serving their sentences in the same prison’.¹¹⁰

Just three months later, the High Court struck down two statutes as contrary to a newly implied freedom of communication about government and political matters.¹¹¹ The particular feature of the decisions with which I am concerned is their incorporation of a principle of popular sovereignty. I do not mean to suggest that this principle was necessarily determinative or controlling in the cases. There were many influential factors. Whatever the reasons were, the Court needed to overcome the longstanding view that the Parliament was the proper forum for the resolution of rights claims. The incorporation of popular sovereignty provided an intellectual apparatus for that task. Mason CJ said:

The very concept of representative government and representative democracy signifies government by the people through their representatives. Translated into constitutional terms, it denotes that the sovereign power which resides in the people is exercised on their behalf by their representatives ... Despite its initial character as a statute of the Imperial Parliament, the Constitution brought into existence a system of representative government for Australia in which the elected representatives exercise sovereign power on behalf of the Australian people ... [T]he *Australia Act 1986* (UK) marked the end of the legal sovereignty of the Imperial Parliament and recognized that ultimate sovereignty resided in the Australian people.¹¹²

His Honour cited Lindell, expressly to overcome what he described as the ‘obstacle’ presented by Dixon’s view ‘that the Constitution owes its legal force to its character as a statute of the Imperial Parliament ... [and] was not a supreme law proceeding from the people’s inherent authority to constitute a government’.¹¹³

Deane and Toohey JJ articulated a similar view:

In implementing the doctrine of representative government, the Constitution reserves to the people of the Commonwealth the ultimate power of governmental control ... the central thesis of the doctrine is that the powers of government belong to, and are derived from, the governed, that is to say, the people of the Commonwealth.¹¹⁴

Gaudron J, similarly, appeared to place weight upon the proposition that ‘s 128 recognizes that the Constitution and, hence, the federal arrangements depend on the will of the people’¹¹⁵ and later, in 1995, McHugh J added his endorsement:

Governments are the agents of the people. Since the enactment of the *Australia Act 1986* (UK), the powers of government in this country are derived from the people who are the ultimate sovereign.¹¹⁶

This led Winterton to suggest in 1998 that, although the principle of popular sovereignty had not ‘technically’ attracted a majority, ‘there [was] no reason to doubt that the views of Mason CJ, Deane, Toohey and McHugh JJ would be endorsed by most, if not all, of the current justices’.¹¹⁷

The novelty of the Court’s reasoning did not lie in the recognition of new facts about popular sovereignty. Most of those facts were, as we have seen, well-understood even in 1900. And on one view even the sociological changes in 1986 were of marginal relevance: because the referendum mechanism had allowed the people and its Parliament control over the Constitution since 1901, it was ‘difficult to view the formal abdication of British legislative power over Australia as particularly significant from a Commonwealth constitutional perspective’.¹¹⁸ The novelty lay, rather, in the *incorporation* of those facts—facts which were *legitimacy*-determining rather than *law*-determining facts—for the purpose of determining *legal* claims. That the Court had reached beyond the realm of legality and into the realm of legitimacy was pinpointed by Dawson J in dissent:

No doubt it may be said as an abstract proposition of political theory that the Constitution ultimately depends for its continuing validity upon the acceptance of the people, but the same may be said of any form of government which is not arbitrary. The legal foundation of the Australian Constitution is an exercise of sovereign power by the Imperial Parliament.¹¹⁹

Recourse to the extra-legal notion of popular sovereignty did not only serve the purpose of elaborating constitutional content for the requirements of representative government, or of grounding implied constitutional rights. At a more fundamental level, translating popular sovereignty from a principle of *legitimacy* to a principle of *legality* served the purpose of prying open a conceptual distance between law-making authority and the Parliament. If

ultimate legal authority were seen to lie with the people, and if the Court could discipline legislative impairment of that ultimate authority, then the Court might also claim its own power to speak for the sovereign people when legislative processes were perceived to have failed. The incorporation of a conception of popular sovereignty served to break Parliament's theoretical monopoly over law-making and generate new spaces in which the Court might operate. Popular sovereignty was '[r]ecast ... as "the community"' so that '[s]tandards and values [were] being ascribed to the community and in turn [were] being reflected back into the law itself' in 'diverse' areas of law.¹²⁰

In a story that, for reasons of space, must be told elsewhere,¹²¹ the fullest reaches of the popular sovereignty principle did not last long in the doctrine of the Court. The implied freedom of political communication was quickly consolidated,¹²² but on a textual footing which rooted out the 'logically impermissible' approach of attributing 'meaning or content derived from sources extrinsic to the Constitution and then ... invalidat[ing] a law for inconsistency with the meaning or content so attributed'.¹²³ Similarly, any constitutional doctrine of equality that might have been discerned in *Leeth* was decisively rejected in 1997.¹²⁴ In the last two decades, popular sovereignty has not featured prominently or at all in constitutional decision-making.¹²⁵ It has been emphasized that if, in the future, '[b]road statements' about popular sovereignty 'are to be given legal rather than popular or political meaning, [they] must be understood in the light of the federal considerations contained in s 128',¹²⁶ which demonstrate that individuals 'do not have an equal share in the sovereignty of Australia'.¹²⁷ It also remains to be seen what might be made of the occasional claims that the only popular agreement at federation 'was really an agreement that the Constitution ... should be submitted to the Imperial Parliament for enactment'¹²⁸ or that it was an agreement 'to be governed by a constitution enacted by a British statute'.¹²⁹ French CJ, speaking extra-curially, has described '[t]he question of popular sovereignty' as 'one which is still open'.¹³⁰ 'Popular sovereignty' appears thus to have been returned to its place on the other side of the boundary between legality and legitimacy, but that boundary remains, as ever, a porous one.

It is only natural that notions of popular sovereignty have found, and might in the future find, most ready expression in the articulation of the democratic principles of the Constitution. Translating the legitimating force of popular sovereignty into other parts of constitutional law is likely to face greater obstacles. And yet, might traces of popular sovereignty not be seen in more recent references to ‘public confidence’ in the independence and impartiality of the courts, which, while not functioning as a legal test for validity or invalidity, nonetheless appears to inform evaluative judgments about laws that might impair that public confidence?¹³¹ This recalls Deakin’s words on the second reading of the Bill for the *Judiciary Act 1903* (Cth), that ‘[t]he High Court, in its sphere, and the Parliament, in its sphere, are both expressions of the union of the Australian people.’¹³² The Court is not, of course, a popular institution in the same sense that the Parliament is, and whether there is merit to the ‘idea that judges should *have* a relationship with the sovereign people’¹³³ has not yet been worked through.¹³⁴

C. CONCLUSION

The foregoing overview of just one slice of Australian constitutional thought as it developed in the twentieth century has been directed to demonstrating that, although there is a categorical distinction between constitutional legitimacy and constitutional law, considerations that bear on legitimacy can come to have a profound, if controversial, effect on the exposition of the law.

What I have not yet grappled with are the questions raised by Barton’s demands in 1898: Is the Constitution understood and accepted as binding? Is it a just constitution? To confront those questions might well prove embarrassing. If Barton hoped that the Constitution and its companion texts would be ‘read and studied’ he would be deeply disappointed. The Constitution is not widely understood and, for most Australians, it is ‘accepted’ only in the trivial sense that it is not actively opposed. Nor is the Constitution just in the sense that Barton proposed. Barton’s criterion of constitutional justice, recall, was that the Constitution ‘cannot be marked by evidence of over-zeal or over-demand upon the part of any section of the community’.¹³⁵ And yet, despite some important if delayed improvements,

the First Peoples remain substantially excluded from the constitutional settlement.¹³⁶

Do we conclude that the Constitution is illegitimate? I would like to think not. Harrison Moore observed that ‘the emphasis of “the people”, both in the preamble and in sec iii, indicates the democratic origin of the Commonwealth and foreshadows the nature of its Constitution’.¹³⁷ The legitimating force of popular sovereignty thus reaches both backwards, to the origins of the Constitution, and forwards, to the possibilities of what the Constitution might become. It is difficult to see how an honest answer to the question of constitutional legitimacy could ever be anything other than, ‘could be better, could be worse’. A people’s inability to imagine for the future a greater constitutional legitimacy than they enjoy in the present would be the greatest betrayal of any sovereignty reposed in them. Without doubt, the possibilities of wider constitutional understanding, and greater constitutional justice, are wholly within our control as a people. Without doubt, those possibilities will be realized progressively by successive generations working within, rather than outside of, the Constitution. As history shows, the legitimating facts will, in varying degrees at varying times, exert influence on the development of our constitutional law. The facts themselves, though: they are ours to make.

* My thanks to Cheryl Saunders and Zsafia Korosy for several insightful comments and suggestions.

¹ Leslie Finlay Crisp, *Australian National Government* (5th edn, Longman Cheshire 1983) 1.

² John A La Nauze, *The Making of the Australian Constitution* (Melbourne UP 1972) 1.

³ Official Record of the Debates of the Australasian Federal Convention (Melbourne, 16 March 1898) 2464.

⁴ Official Record of the Debates of the Australasian Federal Convention (Melbourne, 17 March 1898) 2466.

⁵ *ibid.*

⁶ *ibid.*

⁷ *ibid.*

⁸ Geoffrey Bolton, ‘Sir Edmund Barton’ in Michelle Grattan (ed), *Australian Prime Ministers* (first published 2000, New Holland 2010) 22, 28.

⁹ La Nauze (n 2) 4.

¹⁰ *ibid.* 1.

¹¹ John Hirst, ‘History and the Republic’ (1996) 40(9) *Quadrant* 38, 42.

¹² John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (first published 1901, LexisNexis Butterworths 2002) vii.

¹³ Geoffrey Lindell, 'Why is Australia's Constitution Binding?—The Reasons in 1900 and Now, and the Effect of Independence' (1986) 16 *Federal Law Review* 29, 30.

¹⁴ Helen Irving, 'The People and their Conventions' in Michael Coper and George Williams (eds), *Power, Parliament and the People* (Federation Press 1997) 113, 122.

¹⁵ W Harrison Moore, *The Constitution of the Commonwealth of Australia* (2nd edn, Maxwell 1910) 44.

¹⁶ Irving (n 14) 122.

¹⁷ W Harrison Moore, *The Constitution of the Commonwealth of Australia* (John Murray 1902) 61.

¹⁸ Quick and Garran (n 12) 160.

¹⁹ See *Reference Re Amendment to the Canadian Constitution* [1982] 2 SCR 793. The theoretical identification of sovereignty with the power of amendment was alluded to in, eg, Robert Garran, *The Coming Commonwealth* (Angus & Robertson 1897) 182.

²⁰ See the discussion in Simon Evans, 'Why is the Constitution Binding? Authority, Obligation and the Role of the People' (2004) 25 *Adelaide Law Review* 103, 125–29. See also H L A Hart, *The Concept of Law* (3rd edn, OUP 2012) 221, 223; *Joosse v Australian Securities and Investments Commission* (1998) 73 ALJR 232 [16] (Hayne J).

²¹ See Leslie Zines, *The High Court and the Constitution* (5th edn, Federation Press 2008) 557, who did not, himself, see any 'logical or legal reason why we need to have a "sovereign" at all, or to think or talk in those terms', but described the 'considerable fictional element' in any notion of 'popular sovereignty' if taken literally or in the Austinian sense.

²² *Roach v Electoral Commissioner* (2007) 233 CLR 162, 172 [1] (Gleeson CJ).

²³ Official Record of the Debates of the Australasian Federal Convention (Adelaide, 23 March 1897) 17.

²⁴ Stephen Gageler, 'Beyond the Text: A Vision of the Structure and Function of the Constitution' (2009) 32 *Australian Bar Review* 138, 145–46.

²⁵ See Mark McKenna, *The Captive Republic: A History of Republicanism in Australia 1788–1996* (CUP 1996).

²⁶ Alison L LaCroix, *The Ideological Origins of American Federalism* (Harvard UP 2010) 96.

²⁷ A V Dicey, *Introduction to the Study of the Law of the Constitution* (first published 1885, Macmillan 1959) 73.

²⁸ Quick and Garran (n 12) 285.

²⁹ Moore (n 15) 67.

³⁰ Paul Finn, 'A Sovereign People, a Public Trust' in Paul D Finn (ed), *Essays on Law and Government: Principles and Values* (Law Book 1995) 1, 3.

³¹ Scott J Shapiro, *Legality* (Harvard UP 2011) 26.

³² *Attorney-General (SA) v Corporation of the City of Adelaide* (2013) 249 CLR 1.

³³ Mark Greenberg, 'How Facts Make Law' (2004) 10 *Legal Theory* 157, 157–58, 167 n 22.

³⁴ Jules Coleman, 'Negative and Positive Positivism' (1982) 11 *Journal of Legal Studies* 139, 156; Wilfrid J Waluchow, *Inclusive Legal Positivism* (OUP 1994).

³⁵ Richard H Fallon Jr, 'Legitimacy and the Constitution' (2005) 118 *Harvard Law Review* 1787, 1795–801. Fallon also describes a third concept of 'legal legitimacy', which is similar to the sense in which I have so far used 'legality'.

³⁶ *ibid* 1795.

³⁷ *ibid* 1796.

- ³⁸ *ibid.*
- ³⁹ *ibid* 1797–98 and the sources there cited. See also Randy E Barnett, ‘Constitutional Legitimacy’ (2003) 103 Columbia Law Review 111; Evans (n 20) 129–34.
- ⁴⁰ David A Strauss, ‘Legitimacy and Obedience’ (2005) 118 Harvard Law Review 1854, 1856.
- ⁴¹ Jack M Balkin, *Living Originalism* (Harvard UP 2011) 66.
- ⁴² P J Fitzgerald (ed), *Salmond on Jurisprudence* (12th edn, Sweet & Maxwell 1966) 111.
- ⁴³ Leslie Zines, ‘The Sovereignty of the People’ in Michael Coper and George Williams (eds), *Power, Parliament and the People* (Federation Press 1997) 91, 93.
- ⁴⁴ See, eg, *State v Dosso* [1958] 2 PSCR 180 (Pakistan); *Madzimbamuto v Larnder-Burke* [1969] 1 AC 645 (Southern Rhodesia); *Mitchell v Director of Public Prosecutions* [1986] LRC (Const) 35 (Grenada); *Mokotso v HM King Moshoeshoe II* [1989] LRC (Const) 24 (Lesotho); *Fiji v Prasad* [2001] 2 LRC 743 (Fiji).
- ⁴⁵ Geoffrey Sawer, *Federation under Strain: Australia 1972–1975* (Melbourne UP 1977) 174.
- ⁴⁶ See further Brendan Lim, *Australia’s Constitution after Whitlam* (CUP 2017).
- ⁴⁷ George Winterton, ‘Extra-Constitutional Notions in Australian Constitutional Law’ (1986) 16 Federal Law Review 223, 223.
- ⁴⁸ Barnett (n 39) 111.
- ⁴⁹ (1904) 1 CLR 91.
- ⁵⁰ 17 US (4 Wheat) 316 (1819).
- ⁵¹ (1904) 1 CLR 91, 112.
- ⁵² *ibid* 112–13.
- ⁵³ *ibid* 115.
- ⁵⁴ Zines, *The High Court and the Constitution* (n 21) 1–9.
- ⁵⁵ *Amalgamated Society of Engineers v Adelaide Steamship Co Ltd* (1920) 28 CLR 129.
- ⁵⁶ *ibid* 142.
- ⁵⁷ *ibid* 149.
- ⁵⁸ *ibid* 145.
- ⁵⁹ Richard T E Latham, ‘The Law and the Commonwealth’ in William K Hancock, *Survey of British Commonwealth Affairs: Problems of Nationality 1918–1936, Vol 1* (OUP 1937) 510, 563.
- ⁶⁰ (1920) 28 CLR 129, 151.
- ⁶¹ Latham (n 59) 564.
- ⁶² *Victoria v Commonwealth* (1971) 122 CLR 353, 395–96 (Windeyer J). For a critique of this dictum, see Jeffrey Goldsworthy, ‘Justice Windeyer on the *Engineers’ Case*’ (2009) 37 Federal Law Review 363; for a rejoinder, see Brendan Lim, ‘An Australian Reads *Living Originalism*’ (2012) 34 Sydney Law Review 809, 821–23.
- ⁶³ *Victoria v Commonwealth* (n 62) 396.
- ⁶⁴ *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31, 82 (Dixon J).
- ⁶⁵ Owen Dixon, ‘The Law and the Constitution’ (1935) 51 Law Quarterly Review 590, 597.
- ⁶⁶ *ibid* 590.
- ⁶⁷ Owen Dixon, ‘The Statute of Westminster 1931’ (1936) 10 Australian Law Journal (Supp) 96, 96.
- ⁶⁸ Owen Dixon, ‘The Common Law as an Ultimate Constitutional Foundation’ (1957) 31 Australian Law Journal 240, 240. See also William Gummow, ‘The Constitution—Ultimate Foundation of Australian Law?’ (2005) 79 Australian Law Journal 167.
- ⁶⁹ Dixon, ‘The Law and the Constitution’ (n 65) 591.

⁷⁰ Keith E Whittington and Jason Iuliano, ‘The Myth of the Nondelegation Doctrine’ (2016) 165 *University of Pennsylvania Law Review* 379, 392. See also *Panama Refining Co v Ryan*, 293 US 388 (1935); *ALA Schechter Poultry Corp v United States*, 295 US 495 (1935).

⁷¹ Dixon, ‘The Statute of Westminster’ (n 67) 96.

⁷² Commonwealth, *Parliamentary Debates*, Senate, 29 August 1962, 514–15.

⁷³ Brian Johns, ‘Labor Leader Who Found the Smooth Path’ *The Sydney Morning Herald* (Sydney, 19 June 1967) 2.

⁷⁴ Commonwealth, *Parliamentary Debates*, Senate, 19 May 1967, 1895.

⁷⁵ Commonwealth, *Parliamentary Debates*, Senate, 20 June 1967, 1910.

⁷⁶ *ibid* 1911.

⁷⁷ *Attorney-General (Cth); Ex rel McKinlay v Commonwealth* (1975) 135 CLR 1, 17.

⁷⁸ *Bisticic v Rokov* (1976) 135 CLR 552, 566.

⁷⁹ *ibid* 567.

⁸⁰ William J Hudson and Martin P Sharp, *Australian Independence: Colony to Reluctant Kingdom* (Melbourne UP 1988) 35.

⁸¹ Leslie Zines, ‘Lionel Murphy and the Concept of the Australian Nation’ in Michael Coper and George Williams (eds), *Justice Lionel Murphy: Influential or Merely Prescient?* (Federation Press 1997) 1, 3.

⁸² See generally Winterton, ‘Extra-Constitutional Notions in Australian Constitutional Law’ (n 47).

⁸³ Michael Coper, *Encounters with the Australian Constitution* (CCH Australia 1988) 324.

⁸⁴ *R v Director-General of Social Welfare (Vic); Ex parte Henry* (1975) 133 CLR 369, 388. See also *McGraw-Hinds (Aust) Pty Ltd v Smith* (1978) 144 CLR 633, 670; *General Practitioners Society v Commonwealth* (1980) 145 CLR 532, 565.

⁸⁵ *Buck v Bavone* (1976) 135 CLR 110, 137; *Ansett Transport Industries (Operations) Pty Ltd v Commonwealth* (1977) 139 CLR 54, 88; *McGraw-Hinds (Aust) Pty Ltd* (n 84) 670; *Uebergang v Australian Wheatboard* (1980) 145 CLR 266, 311–12; *Koowarta v Bjelke-Petersen* (1982) 153 CLR 168, 240; *Miller v TCN Channel Nine Pty Ltd* (1986) 161 CLR 556, 581–85.

⁸⁶ *Ansett Transport Industries (Operations) Pty Ltd v Wardley* (1980) 142 CLR 237, 267.

⁸⁷ *Taylor v Taylor* (1979) 143 CLR 1, 20.

⁸⁸ *Sillery v The Queen* (1981) 180 CLR 353, 362.

⁸⁹ *Ex parte Henry* (n 84) 388.

⁹⁰ *Ansett Transport Industries (Operations) Pty Ltd* (n 85) 87.

⁹¹ *Victoria v Australian Building Construction Employees’ and Builders Labourers’ Federation* (1982) 152 CLR 25, 109, 111.

⁹² *University of Wollongong v Metwally* (1984) 158 CLR 447, 476. See also at 450 (G Griffith QC in argument).

⁹³ *ibid* 476–77.

⁹⁴ Anne Twomey, *The Australia Acts 1986: Australia’s Statutes of Independence* (Federation Press 2010) 1.

⁹⁵ See Chapter 4 ‘Independence’.

⁹⁶ Lindell (n 13) 37.

⁹⁷ *ibid* (emphasis in original).

⁹⁸ *ibid*.

⁹⁹ *ibid*.

¹⁰⁰ *ibid* 44.

- ¹⁰¹ (1992) 174 CLR 455.
- ¹⁰² *ibid* 467.
- ¹⁰³ *ibid* 470.
- ¹⁰⁴ *ibid* 487.
- ¹⁰⁵ *ibid* 485, quoting *Commonwealth v Kreglinger & Fernau Ltd* (1926) 37 CLR 393, 411–12 (Isaacs J).
- ¹⁰⁶ *ibid* 484.
- ¹⁰⁷ *ibid* 486.
- ¹⁰⁸ *ibid* 501.
- ¹⁰⁹ *ibid* 475.
- ¹¹⁰ *ibid*.
- ¹¹¹ *Nationwide News Pty Ltd v Wills* (1992) 177 CLR 1; *Australian Capital Television Pty Ltd v Commonwealth* (1992) 177 CLR 106. See also Chapter 37 ‘Rights Protection’; Chapter 39 ‘Expression’.
- ¹¹² *Australian Capital Television Pty Ltd* (n 111) 137–38 (Mason CJ).
- ¹¹³ *ibid* 138, citing Dixon, ‘The Law and the Constitution’ (n 65) and Lindell (n 13).
- ¹¹⁴ *Nationwide News Pty Ltd s* (n 111) 70–72 (Deane and Toohey JJ).
- ¹¹⁵ *ibid* 216.
- ¹¹⁶ *Ridgeway v The Queen* (1995) 184 CLR 19, 91, citing *Australian Capital Television Pty Ltd* (n 111) 138 (Mason CJ). See also *McGinty v Western Australia* (1996) 186 CLR 140, 237 (McHugh J).
- ¹¹⁷ George Winterton, ‘Popular Sovereignty and Constitutional Continuity’ (1998) 26 Federal Law Review 1, 4.
- ¹¹⁸ *ibid* 9–10.
- ¹¹⁹ *Australian Capital Television Pty Ltd* (n 111) 181.
- ¹²⁰ Finn (n 30) 6, citing *Mabo v Queensland (No 2)* (1992) 175 CLR 1; *Dietrich v The Queen* (1992) 177 CLR 292; *R v L* (1991) 174 CLR 379; *Secretary, Department of Health and Community Services v JWB* (1992) 175 CLR 218.
- ¹²¹ See further Lim, *Australia’s Constitution after Whitlam* (n 46).
- ¹²² See especially *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520; *Coleman v Power* (2004) 220 CLR 1.
- ¹²³ *McGinty* (n 116) 169 (Brennan CJ). See also at 183–84 (Dawson J), 284–86, 291 (Gummow J).
- ¹²⁴ *Kruger v Commonwealth* (1997) 190 CLR 1.
- ¹²⁵ cf *McCloy v New South Wales* (2015) 257 CLR 178, 207 [45] (French CJ, Kiefel, Bell and Keane JJ).
- ¹²⁶ *McGinty* (n 116) 275 (Gummow J).
- ¹²⁷ *ibid* 236–39 (McHugh J).
- ¹²⁸ Sir John Latham, ‘Interpretation of the Constitution’ in Rae Else-Mitchell (ed), *Essays on the Australian Constitution* (Law Book 1952) 1, 5.
- ¹²⁹ *McGinty* (n 116) 230 (McHugh J).
- ¹³⁰ Robert French, ‘If They Could See Us Now—What Would the Founders Say?’ (John Curtin Prime Ministerial Library 2013 Anniversary Lecture, Perth, 18 July 2013) <<http://www.hcourt.gov.au/assets/publications/speeches/current-justices/frenchcj/frenchcj18july13.pdf>> 16 accessed 7 October 2017.
- ¹³¹ See, eg, *Grollo v Palmer* (1995) 184 CLR 348, 377 (McHugh J); *Kable v Director of Public Prosecutions (NSW)* (1996) 189 CLR 51, 124 (McHugh J); *North Australian Aboriginal Legal Aid*

Service v Bradley (2004) 218 CLR 146, 163–64 [30]–[32], 172 [65] (McHugh, Gummow, Kirby, Hayne, Callinan and Heydon JJ); *Fardon v Attorney-General (Qld)* (2004) 223 CLR 575, 593 [23] (Gleeson CJ), 617–18 [102] (Gummow J), 629–30 [144] (Kirby J); *Momcilovic v The Queen* (2011) 245 CLR 1, 226 [598] (Crennan and Kiefel JJ); *Wainohu v New South Wales* (2011) 243 CLR 181, 219 [68] (French CJ and Kiefel J); *North Australian Aboriginal Justice Agency Ltd v Northern Territory* (2015) 256 CLR 569, 595 [40] (French CJ, Kiefel and Bell JJ). See also Murray Gleeson, *The Rule of Law and the Constitution* (ABC 2000) 107–08.

¹³² Commonwealth, *Parliamentary Debates*, House of Representatives, 18 March 1902, 10964 (Alfred Deakin).

¹³³ Anthony R Blackshield, ‘The Implied Freedom of Communication’ in Geoffrey Lindell (ed), *Future Directions in Australian Constitutional Law* (Federation Press 1994) 232, 267.

¹³⁴ cf Or Bassok and Yoav Dotan, ‘Solving the Countermajoritarian Difficulty?’ (2013) 11 *International Journal of Constitutional Law* 13.

¹³⁵ Official Record of the Debates of the Australasian Federal Convention (Melbourne, 17 March 1898) 2466.

¹³⁶ See Chapter 1 ‘First Peoples’.

¹³⁷ Moore (n 15) 67.

CHAPTER 14

CITIZENSHIP

ELISA ARCIONI

A. INTRODUCTION

THERE is an uneasy relationship between the Australian Constitution and membership of the Australian polity. Unlike some constitutions, the Australian Constitution contains no mention of ‘citizenship’.¹ Instead, formal membership of the Australian community is determined by reference to the constitutional categories of ‘subjects of the Queen’ and ‘people of the Commonwealth’ and through the legislative definition of citizenship under federal law. These peculiar features of the Australian context reflect what is generally assumed to be the modest role of the Constitution in determining national identity and the fact that Australia was not an independent nation at the time of the Constitution’s drafting. Developments in legislation, constitutional jurisprudence, and mooted constitutional amendments all point towards a greater role for the Constitution in determining Australian ‘citizenship’ in the future.

B. BRITISH ‘SUBJECTS’ TO AUSTRALIAN ‘CITIZENS’

At the time of drafting the Australian Constitution, the nationality status of persons in the Australian colonies was ‘subject of the Queen’. Australians shared that status with all other legal members of Britain and the British Empire.² That status was retained through federation as an indicator of constitutional membership, rather than the Constitution including an Australian definition of membership.

The status of ‘subject’ appears in only two sections of the Constitution. The first is section 34, which sets the interim qualifications for members of the federal Parliament.³ The requirement of subject status appeared in every version throughout the drafting of the Constitution and was not debated. The requirement of subject status was in keeping with colonial requirements with respect to the colonial legislatures.⁴ The Parliament was given the power to change the qualification requirements,⁵ but maintained the qualification of ‘subject’ until its replacement with statutory ‘citizenship’ in 1984.⁶

The second section in which ‘subject’ is found is section 117. The path to the final form of section 117 was a long one.⁷ In the 1891 draft Constitution, there was a section which read:

A State shall not make or enforce any law abridging any privilege or immunity of citizens of other States of the Commonwealth, nor shall a State deny to any person, within its jurisdiction, the equal protection of the laws.⁸

This section was inspired by a combination of article IV, section 2 of the United States Constitution, and part of the Fourteenth Amendment to that Constitution.⁹ It was not debated in the 1891 National Australasian Convention or at the 1897 sessions of the Australasian Federal Convention in Adelaide and Sydney. However, at the Melbourne session in 1898 the delegates made up for any previous lack of attention to issues of citizenship or legal status. After lengthy debate, the provision as set out above was struck out.¹⁰ A new proposal was made to give the Commonwealth legislative power over ‘citizenship’, followed by a provision defining Commonwealth citizenship; then a revised version of the 1891 clause was proposed. All were discussed and rejected.

Finally, Josiah Symon from South Australia introduced yet another version of the earlier proposals, close to the final form of section 117. This was agreed to, leaving reference to ‘subjects of the Queen’, but no mention of citizenship. The final form reads: ‘A subject of the Queen, resident in any State, shall not be subject in any other State to any disability or discrimination which would not be equally applicable to him if he were a subject of the Queen resident in such other State.’

During the debates regarding what became section 117 the drafters assumed that subject of the Queen was the relevant indicator of

membership, rejecting all proposals that would refer to ‘citizenship’.¹¹ The delegates assumed, correctly, that ‘subject’ was the primary legal status for members of the Commonwealth at the time.¹² A specifically Australian indicator of membership was neither appropriate nor necessary.

After federation, Australia and other self-governing components of the British Empire became ‘Dominions’, described in the Imperial Conference of 1926 as:

autonomous Communities within the British Empire, equal in status, in no way subordinate one to another in any aspect of their domestic or external affairs, though united by a common allegiance to the Crown, and freely associated as members of the British Commonwealth of Nations.¹³

By 1986 Australia became a constitutionally independent nation.¹⁴ Along the way a series of legal and political changes occurred, which together affected the constitutional concept of membership. The monarch changed from the Queen of the United Kingdom to the Queen of Australia. Australians became subjects of the Australian Queen and membership was determined by allegiance to that Queen. Thus, ‘the people’ in the Australian Constitution are now a national people, rather than a sub-category of subjects within the British Empire.

Membership under legislation became dependent on legislated ‘citizenship’ rather than the constitutional status of ‘subject’.¹⁵ There had been moves in Australia for an Australian nationality to be defined in law from the mid-1940s.¹⁶ Other Dominions were pursuing similar changes and a meeting of members of the British Commonwealth agreed in 1947 that there be a system of nationality across the Commonwealth. That system was to include each country defining for itself who were its citizens, with those citizens also having the status of British subject across the Commonwealth of nations.¹⁷

The federal Parliament enacted the *Nationality and Citizenship Act 1948* (Cth), which came into effect on 26 January 1949.¹⁸ From that time, Australians had two statuses—all Australian citizens were also British subjects. The general rule was that persons born within Australia were Australian citizens.¹⁹ Citizenship could also be acquired by registration or naturalization.²⁰ Any person who was an Australian citizen under the Act was ‘by virtue of that citizenship ... a British subject’.²¹ That remained the case until legislation in 1969, which made a semantic, but symbolically

significant, change to the legislation: a citizen would thereafter have ‘the status of a British subject’ rather than *being* a British subject.²² With the commencement of the *Australian Citizenship Amendment Act 1984* (Cth) on 1 May 1987, almost every mention of ‘subject’ status was deleted from federal legislation.²³

The story of the rise of legislated ‘citizenship’ status and the demise of constitutional ‘subject’ status is an example of the modest role of the Constitution in determining identity in Australia.²⁴ Some constitutions embody basic values or commitments which unite (and to some extent define) the people living under them.²⁵ By contrast, Australia’s constitutional culture is one where appeals are rarely made to the Constitution in discussions of Australian identity and values.²⁶ The way in which the High Court (the ultimate arbiter of the interpretation of the Constitution in Australia) defers to the Parliament in determining Australian citizenship, is an example of this modest role of the Constitution.

C. THE MODEST CONSTITUTION—DEFERENCE TO THE PARLIAMENT

Rather than the Constitution explicitly defining citizenship, legislative power is given to the federal Parliament with respect to naturalization and aliens.²⁷ It is this power which the Parliament has used to create the Australian citizenship noted above. The legislative status of citizenship is logically connected to the constitutional status of membership—subject—and the constitutional status of exclusion—alien—by reliance on the common concept of allegiance. Allegiance is at the core of membership by being an indicator of inclusion, and its absence is an indicator of exclusion. The Court, in equating citizenship with allegiance, defers to the Parliament’s determination of membership, leaving the Constitution to recede into the background regarding national identity.

Allegiance is central to the category of subject of the Queen. This can be seen in the historical origin of that concept, its legal meaning at federation, and its ongoing meaning in High Court case law.²⁸ The relevant medieval history was of personal allegiance, or allegiance to the person in whom power was vested—the person of the monarch.²⁹ The notion of such personal allegiance was discarded by the nineteenth century, when there

was a clear statement by the courts in England that allegiance was owed to the monarch in his or her *political* capacity, as a figurehead representing the sovereign, rather than to the natural person who wore the Crown.³⁰ Nevertheless, allegiance remained at the core of subject status. That allegiance is now a legally ascribed allegiance to the sovereign, not a subjective feeling of attachment to the monarch, whether in a personal or political capacity. The change can be seen in the transformation of the monarch from the Crown of the United Kingdom to the Crown of Australia noted above, and then a legislated change of emphasis in the focus of allegiance to Australia as the relevant sovereign.³¹

Beyond the importance of allegiance, the Court has not given a clear definition of ‘subject’ in its reasoning regarding the one substantive reference to that status in the Constitution in section 117. In each case, the Court has *assumed* the relevant parties were subjects and proceeded to address the application of the section upon presumed subjects.³²

At least for a few decades after federation, there were subjects of the Queen who could be excluded from the Commonwealth because they were categorized as ‘immigrants’.³³ Whether or not a person was an immigrant depended on a test of substantive connection to the Australian community, rather than allegiance to a monarch. The relevance of the ‘immigrant’ category waned with the rise of the dominance of the ‘alien’ category in the 1980s.³⁴ The impact of both the immigrant and alien categories over time reflects an ‘exclusive’ approach to membership of the Australian constitutional community.³⁵ That is, constitutional membership has been determined more by the interpretation of categories of exclusion than by positive statements regarding inclusion.

Allegiance is central to the now-dominant category of constitutional exclusion—alien. The categories of alien and subject historically existed as a dichotomy—a person was either a subject or an alien.³⁶ A subject had allegiance to the sovereign—today allegiance is understood to be owed to Australia. Anyone who is not a subject is therefore an alien. The Court has on several occasions been asked to address the meaning of ‘alien’ in section 51(xix) and in that context has illuminated the concept of ‘allegiance’ which is central to both ‘subject’ and ‘alien’ status. The Court has deferred to indications of allegiance seen in *citizenship* legislation to determine the outcome of those cases. The current state of the law therefore places

statutory citizenship at the heart of constitutional membership and lack thereof as central to exclusion.

Legislation is implicated in a number of ways. One is through the Court's accepting that legislative incursions into common law principles regarding nationality have constitutional consequences. The case which demonstrates most clearly the legislative manipulability of status is *Singh*.³⁷ Prior to this case, the citizenship legislation had been changed so that people born in Australia after the legislation came into effect were no longer automatically citizens. Singh satisfied neither requirement in the legislation regarding the status of her parents nor length of time in Australia. Both her parents were Indian citizens and not Australian citizens and at the time of the case she was six years old. Singh argued she was not an alien because birth in Australia meant she was a constitutional national who could not be deported. The majority concluded she was an alien.

Historically, the British common law favoured the principle of *jus soli*, meaning that birth in the realm made a person a subject and therefore not an alien.³⁸ Central to the reasoning of the majority in *Singh* was that that principle had been affected by legislation, with consequential effects on the constitutional meaning of 'alien'.³⁹

Legislation is also the key to identifying when an alien has taken up allegiance to Australia and thus moved from the alien category to constitutional inclusion through the process of naturalization. Naturalization is the first limb of the legislative power in section 51(xix), being the power to make laws with respect to 'naturalization and aliens'. However, the Court has gone beyond simply confirming that the Parliament has the power to naturalize, to indicate that the *only* way for an alien to take up allegiance to Australia is through a formal process under naturalization legislation. This was seen in the case of *Pochi v MacPhee*.⁴⁰ Luigi Pochi was born in Italy in 1939 and came to Australia in 1959 'with the intention of making Australia his permanent home'.⁴¹ Following imprisonment for a drug offence, Pochi was to be deported. Pochi challenged that order, arguing both that the legislation was not supported by the aliens power and that he did not fall within its operation. The facts were complicated by Pochi's having applied for Australian citizenship. His application had been accepted but he had not been notified of that acceptance, and had not completed an oath or affirmation which was required before the issuing of a citizenship

certificate.⁴² He had therefore completed all but the final formal step in the legislated process for becoming a citizen. Without that step, he had not formally indicated allegiance and therefore remained an alien.

The Court has held that a formal process for taking up the relevant allegiance was necessary for British subjects who arrived in Australia when the Queen was still the Queen of the United Kingdom, but stayed after the change to the Queen of Australia.⁴³ Lacking statutory Australian citizenship such persons could be treated as aliens.⁴⁴ The significance of legislated citizenship can also be seen when members of the Court relied simply on the status of ‘non-citizen’, a statutory status, in order to uphold a person’s treatment under legislation as a constitutional alien.⁴⁵

The Court has also emphasized formal steps under law in order to determine foreign allegiance under section 44(i) of the Constitution. That section sets out the bases for disqualification from being chosen as a member of federal Parliament, stating:

Any person who is under any acknowledgment of allegiance, obedience or adherence to a foreign power, or is a subject or a citizen or entitled to the rights or privileges of a subject or a citizen of a foreign power: ... shall be incapable of being chosen or of sitting as a senator or a member of the House of Representatives.⁴⁶

While the text does not use the term ‘dual national’, that category of persons is affected by section 44(i). In order to be eligible to be elected as a member of federal Parliament at federation, a person had to be a subject—that was established by section 34, discussed above. Section 34 established a constitutional requirement of subject status, later overtaken by legislation which now requires Australian citizenship as a qualification. If we focus on the position at federation, the only persons who were caught by the disqualification in section 44(i) were those who were subjects and also had a foreign allegiance. If we consider the position today, section 44(i) applies to dual citizens.

As at 2000, it was estimated that between four and five million Australians were dual nationals, or entitled to take out dual nationality.⁴⁷ The current Australian law allows for dual nationality. Prior to 2002, dual nationality was available to some but not all Australian citizens. Australian citizens by birth or descent automatically lost their Australian citizenship upon acquisition of the citizenship of another country through a ‘voluntary and formal act’; that is, if an Australian citizen was naturalized as a foreign

citizen. The loss of citizenship did not apply to Australian-born citizens born with a foreign citizenship.

In *Sykes v Cleary (No 2)*,⁴⁸ the key case regarding section 44(i), the Court relied upon citizenship legislation to determine the relevant allegiance. The Court agreed that, under the common law, foreign citizenship which confers allegiance is usually determined by the operation of the relevant foreign law. In this case, the foreign law of Switzerland and Greece meant that Delacretaz and Kardamitsis (both naturalized Australian citizens) had a foreign allegiance. However, no member of the Court accepted that foreign law would be determinative in all cases. Instead, where foreign law conferred foreign allegiance, the Justices focused on whether the person in question had taken all ‘reasonable steps’ to renounce their foreign allegiance.⁴⁹

The dominant approach by members of the Court was to emphasize formal legal steps as determinative of the answer to that question. The most significant factor for most of the members of the Court was that neither of the candidates had made a formal demand or application, available under the foreign law affecting each of them, to effectuate their desire to renounce their foreign nationality.⁵⁰ At the heart of the reasoning of six of the seven Justices with respect to ‘allegiance’ was the operation of Australian and/or foreign citizenship legislation. The Court has not yet had to consider a case of a dual national to determine whether Australian citizenship would mean such a person could not be treated as an alien;⁵¹ that is to say, whether allegiance to Australia would override or prevail over a person’s foreign allegiance in order that they not be categorized as an alien.

There is one further example which indicates the ability of the Parliament to affect constitutional membership through legislation—the case of *Re Minister for Immigration and Multicultural and Indigenous Affairs; Ex parte Ame*.⁵² Amos Ame was divested of his Australian citizenship through delegated legislation. The Court upheld the validity of the relevant regulation. Ame was transformed from a citizen into an alien because his allegiance to Australia was removed by statute.⁵³ That led to his having the status of alien—a constitutional status. The Court noted that the power under section 51(xix), with respect to ‘naturalization and aliens’, extended to the legislation challenged in this case.⁵⁴

The Court has accepted that legislation in the fields of citizenship and naturalization determines allegiance, which in turn determines constitutional membership or exclusion. While the rules regarding allegiance were derived historically from the common law, the Court has accepted that the common law has been overtaken by legislation and that allegiance can therefore be determined by legislation. Allegiance is thus a malleable concept and the Parliament can change how it is signified through changes in legislation. Legislated citizenship acts as the indicator of allegiance to Australia. Aliens can only take up allegiance to Australia through the legislated process of naturalization. There is also the potential for legislation to work in the opposite direction—removing a person's citizenship and therefore a person's allegiance to Australia, thus transforming the person into an alien. Citizenship legislation has come to define, in practice, who is a constitutional member and who is excluded.

The story told so far is one of dominance of the Parliament and the modest involvement of the Constitution with respect to citizenship in Australia. However, that story is complicated by taking a broader perspective on Australian constitutional jurisprudence and considering the current challenges to the hitherto-modest role of the Constitution.

D. CHALLENGES TO THE MODEST CONSTITUTION?

Despite the Court failing to provide substantive content to the constitutional categories of membership and exclusion beyond that ascribed by Parliament, the Court has left open the capacity of the Constitution to play a more significant role. The Court has noted that the Parliament cannot treat someone as an alien who is not 'truly' an alien.⁵⁵ While to date those statements have not been fully developed, recent legislative changes to citizenship deprivation provide the impetus for such development and a broader view of constitutional jurisprudence (beyond nationality status) provides the basis for the direction of that development. Mooted constitutional amendments may also deepen the Constitution's role in determining membership of the Australian community.

In 2015, the Parliament amended the Australian citizenship legislation in order to 'broaden the powers relating to the cessation of Australian citizenship for those persons engaging in terrorism and who are a serious

threat to Australia and Australia's interests'.⁵⁶ Prior to the amendments, citizens could be stripped of their citizenship following conviction for specific offences. The 2015 amendments introduced deprivation on the basis of specified 'terrorist-related' conduct, included deprivation of citizenship following a person fighting for or assisting a terrorist organization, and added 'terrorist-related' offences to the list of convictions which may lead to citizenship deprivation.⁵⁷ The changes extend the bases of citizenship deprivation only for dual nationals, thereby avoiding the prospect of statelessness.⁵⁸

The amendments explicitly rely on the concept of allegiance, with their legislated 'purpose' being to recognize that 'citizens may, through certain conduct incompatible with the shared values of the Australian community, demonstrate that they have severed that bond and repudiated their allegiance to Australia'.⁵⁹ The listed offences or conduct are therefore evidence of such repudiation which warrants deprivation of citizenship, regardless of how a person's Australian citizenship was acquired. That is, citizens are subject to these new bases of loss of citizenship whether they are Australian citizens by birth or naturalization.

As Irving and Thwaites have noted, the legislation 'relies on a substantive, multidimensional notion of disallegiance'.⁶⁰ The introduction of substantive content to the concept of allegiance under legislation leaves it open to the Court to consider the constitutional validity of the Parliament's judgment regarding allegiance. If the new grounds of revocation were challenged, the Court may consider whether the legislation is within the naturalization and aliens power by determining whether the listed offences and conduct do demonstrate disallegiant conduct such as to make a person truly a constitutional 'alien'.

The Court may take a more critical approach to the legislation than in the past, drawing upon broader jurisprudential material than only that related to nationality status. Some hints of a specifically constitutional citizenship can be seen in the reasoning of McHugh J, who served on the Court from 1989 to 2005. Justice McHugh used the phrase 'constitutional citizenship' as a synonym for 'people of the Commonwealth', and to indicate that the latter has a protected position under the Constitution.⁶¹ Although the Court has not yet taken up this general connection between 'the people' and 'citizenship', the Court has developed the concept of 'the people' to provide

some guidance regarding membership that may lead to just such a connection.

E. MEMBERSHIP BEYOND NATIONALITY—‘THE PEOPLE’

Taking a broader view of membership under the Constitution, beyond nationality status, one can see that membership is dependent on a series of categories of persons revolving around the broad category of ‘the people of the Commonwealth’. As Zines has stated:

‘The people’, as a concept, has been prominent for the past 100 years in all attempts to define or describe our political and social structure. The Constitution introduced this term as a legal concept in several of its provisions, though not always with the same meaning.⁶²

The sub-categories include categories of persons dependant on geography (people of the States and Territories⁶³) as well as the indicators of nationality noted above (subjects and aliens).⁶⁴ At the core of the concept of ‘the people’ is the democratic or political role of ‘the people’ under the Constitution.⁶⁵ That is, ‘the people’ represented by the ‘electors’. The judicial development of the meaning of ‘the people’, particularly in their political capacity, points towards the possibility of a more substantive role for the Constitution to play regarding citizenship as membership and provides a rich source of *constitutional* rules for membership.

The primary textual indicators of ‘the people’ are to ‘the people’ acting as electors. The reference to the peoples of the colonies in the preamble to the *Constitution Act* is a reference to the electors in those colonies voting to adopt the draft Constitution Bill.⁶⁶ The reference to the ‘people of the Commonwealth’ in section 24 is to ‘the people’ choosing members of the House of Representatives. That choice, and the choice of ‘the people’ of the States in choosing senators in section 7, occurs through elections.⁶⁷ Thus, ‘the people’ is conceptually linked to the category of ‘electors’, a category referred to directly in section 128 which establishes the method of changing the Constitution through referenda.

As French CJ has stated, the two groups—‘the people’ and ‘the electors’—seem to have converged.⁶⁸ They are not the same, but more of ‘the people’ now fall within the category of ‘electors’ than in the past. The electors are a subset of ‘the people’. That subset has to be sufficiently

inclusive such that, when the electors exercise their choices of members of Parliament under sections 7 and 24, the choices can be understood as being of ‘the people’. The convergence between the two groups—‘the people’ and ‘the electors’, the representative relationship between them, and the consequential limits on disenfranchisement developed in case law are all tools which can be used to develop a constitutional concept of membership.

The Court has given the concept of ‘the people’ serious jurisprudential work to do through a series of cases relating to federal elections. In 1997, a unanimous Court recognized a constitutional freedom of political communication as necessary to ensure ‘the people’ exercise an informed vote in elections.⁶⁹ That freedom limits federal and State legislative power and the common law. Thus, ‘the people’ is no mere slogan. While the Court has granted the Parliament significant leeway in relation to the details of electoral regulation,⁷⁰ the Court has been strict in ensuring that, regardless of the *method* of voting adopted by the Parliament, the franchise must be broad enough such that the electors can be said to represent ‘the people’. It is this relationship that may lead to constitutional rules of membership.

The representative relationship between the people and the electors was developed over a series of cases,⁷¹ reaching its culmination when the franchise itself was at issue. In both *Roach v Electoral Commissioner*⁷² and *Rowe v Electoral Commissioner*⁷³ the Court invalidated legislation which limited the federal franchise. In *Roach*, a law disenfranchising all prisoners was struck down as being arbitrary but the Court revived the earlier law disenfranchising prisoners serving a sentence of three years or more. In *Rowe*, a law reducing the time in which eligible electors could enrol to vote was struck down because of its practical effect of disenfranchisement without sufficient justification. In each of the cases, the majority assumed a universal adult franchise as the constitutional baseline required by the phrase ‘chosen by the people’ in sections 7 and 24. Any legislation limiting the franchise would be tested against that baseline to determine whether there was sufficient justification for the restriction.⁷⁴

The reasoning in the franchise cases provides a series of jurisprudential tools to determine constitutional membership, although they do not lead to a simple statement of inclusion. The statements of the members of the Court in both cases imply that a franchise of all adult citizens is necessary to achieve a direct choice by ‘the people’ in accordance with sections 7 and

24.⁷⁵ This baseline was determined by considering the legislative broadening of the franchise over time. The method of analysis of the Court led to a ratchet effect, whereby the franchise cannot be reduced beyond a certain limit. In taking this approach, there must be a minimum content to the citizenship rules in order to not insert restrictions on citizenship which have the same effect as disenfranchisement through the electoral laws. That is, if citizenship were restricted on bases which would be invalid on the reasoning of the franchise cases,⁷⁶ and the franchise laws required citizenship in order to be eligible to vote, then the outcome would be the same as if the electoral law directly imposed that disqualification. Considered in this way, restrictions on discrimination with respect to citizenship rules must also be imposed in order to be consistent with the requirement of choice by ‘the people’ in sections 7 and 24 of the Constitution.

However, there are two additional points regarding the baseline which complicate the picture. First, the Court recognized legitimate restrictions on membership of the political ‘people’, suggesting a normative element of membership (at least as amongst the electors). In determining that disenfranchisement on the basis of conviction of three years imprisonment was valid in *Roach*, the Court recognized that a person could be excluded from the electors due to behaviour which demonstrated rejection of community standards. That is, if a person were sufficiently ‘bad’, they could be excluded for the duration of their imprisonment. That exclusion was framed in terms of removal from the privileged ‘elector’ category, rather than removal from the constitutional ‘people’ per se. It would take a further step in the development of the concept of ‘the people’ for the Court to recognize a normative foundation for ultimate membership.

Second, the reliance on legislated citizenship as the relevant baseline may be misplaced or may be sufficient but not determinative of the boundaries of constitutional membership. Justice Heydon, in dissent in *Rowe*, questioned why sections 7 and 24 should ‘speak only to citizens’ when other sections of the Constitution have wider effect, suggesting that some non-citizen groups are ‘in a sense part of “the Australian people”’.⁷⁷ Membership may be broader than only legislated citizenship.

Another approach available to the Court is to follow the lead taken in *Roach* and *Rowe* with respect to how restrictions on membership may be identified. That is, begin from an assumption of inclusion and then assess

the legitimacy of restrictions on membership. In both cases the majority demonstrated concerns for arbitrary exclusion, a need for a substantial reason for exclusion, and adopted proportionality analysis by requiring a legitimate purpose for exclusion as well as a reasonably appropriate and adapted means of exclusion before exclusion would be valid. In *Roach*, mere imprisonment was not sufficient—the majority confirmed a minimum three-year sentence as a valid means of disenfranchisement because it reflected a normative rejection of community standards and was sufficiently serious to justify a person’s temporary exclusion from amongst the federal electors. In *Rowe*, the restriction by only a few days on the time in which to enrol before an election was too great an intrusion on the franchise, given the lack of proof regarding any serious risk of electoral fraud caused by the limited period in which the Australian Electoral Commission had to prepare and check the electoral rolls. Some of the concerns relating to arbitrary exclusion and the need for proportionality could be translated across to limit the way in which the Parliament determines ascription of allegiance and therefore constitutional status.⁷⁸

The developing law regarding ‘the people’ points towards a stronger role for the Constitution to play in determining membership of the constitutional community in Australia. The concept of ‘the people’ has been used to invalidate legislation, which means the Court is willing to give content to that phrase and, in doing so, restrict the capacity of the Parliament to define membership. However, the reasoning in the cases to date requires further development before a clear picture of constitutional membership will emerge. At present, we see baselines of inclusion and tools to determine legitimate restrictions on membership. But it is not only lines of potential judicial development that may give the Constitution a stronger role in this field. There are also mooted constitutional amendments to consider.

F. MOOTED AMENDMENTS

The Australian Constitution contains no direct rhetorical appeal to the formation of the Australian nation, as it was written prior to Australia’s legal and political independence. There is no reference to significant events or motivations leading to the drafting of the Constitution in order to define a new polity. Instead, the Constitution is usually characterized as a prosaic

agreement between former colonies to agree on structures of government and thereby federate. There has been no substantial re-writing of the text to reflect formal independence, recognition of the Indigenous Peoples of Australia, or the changing demographic composition of the population. Some of that may change.

Section 128 of the Constitution sets out the mechanism for making textual amendments. The federal Parliament must pass a bill proposing a specific change and then ‘the people’, through the electors, must agree to the change. There are two mooted constitutional amendments which may lead to a richer constitutional basis of citizenship. The first is the possibility of an explicit inclusion of ‘citizenship’ in the constitutional text, to reverse the ‘citizenship’ silence produced by the original drafters’ reliance on the pre-existing legal status of ‘subject of the Queen’. Such a change was proposed in 1999 at the failed republican referendum. One of the constitutional amendments attached to the republican proposal was the replacement of the constitutional status of ‘subject of the Queen’ with ‘Australian citizen’.⁷⁹ ‘Australian citizen’ would have been defined, in a new section 127 of the Constitution, as ‘a person who is an Australian citizen according to the laws made by the Parliament’.⁸⁰ Such a change would clarify the relationship between statutory and constitutional citizenship, deferring entirely to the Parliament in determining membership. A more complex but nuanced textual amendment may include reference to ‘citizenship’, but with some substantive content beyond simple statutory definition.

A second area of potential constitutional reform is in relation to the ‘recognition’ of Indigenous Australians.⁸¹ The precise timing or form of such recognition is uncertain. However, it may involve alterations to the constitutional text to remove references to ‘race’; prevent detrimental treatment on the basis of racial identity; explicitly recognize the unique status, history, and cultures of the Indigenous Peoples of Australia and provide for a voice for Indigenous Australians in the federal Parliament. The legal effect of such changes is uncertain, given the lack of clarity regarding how the Court would interpret such amendments and to what extent (and how) the Court would take into account the intention of the electors in making any textual change.⁸² Nevertheless, explicit recognition of Indigenous Peoples in the Australian Constitution could signal a potential

shift in the public perception of the role of the Constitution in articulating an Australian constitutional identity and prompt jurisprudential developments in this field.

G. CONCLUSION

The Australian Constitution contains no mention of Australian ‘citizenship’. The High Court to date has not engaged in sustained, explicit, examination regarding the indicia of a constitutional ‘citizen’. This is unsurprising given Australia lacked independence at the time of the Constitution’s drafting and having regard to what is generally assumed to be the modest role of the Constitution regarding identity. However, neither explanation can be maintained now and into the future. Australia is now, for most purposes, an independent nation state. The modest role of the Constitution is being challenged through controversial legislative changes to citizenship and also by jurisprudential developments in the Court, creating richer resources for a constitutional concept of membership. The people and the Parliament together may either explicitly define citizenship through a constitutional amendment or signal a shift in the role of the Constitution through amendments recognizing the Indigenous Peoples of Australia. A combined series of developments by the people, the Parliament, and the Court should lead to a more explicit and modern constitutional concept of citizenship in Australia.

¹ The only reference to ‘citizenship’ is to *foreign* citizenship as a basis for disqualification from being elected a member of Parliament: s 44(i).

² John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (LexisNexis Butterworths 1901) 957(emphasis added).

³ While s 34 refers only to the qualifications for members of the House of Representatives, s 16 of the Constitution requires that the qualifications of senators be the same.

⁴ For example, in New South Wales, subject status was either explicitly required, or indirectly required by virtue of members having to be eligible electors which in turn required subject status: Anne Twomey, *The Constitution of New South Wales* (Federation Press 2004) 399–400.

⁵ See s 51(xxvi).

⁶ *Statute Law (Miscellaneous Amendments) Act 1981* (Cth), s 34, this provision commenced operation on 26 January 1984.

⁷ See the outline of its development in John A La Nauze, *The Making of the Australian Constitution* (Melbourne UP 1972) 68, 229–32.

⁸ Ch V, cl 17 – see in John M Williams, *The Australian Constitution: A Documentary History* (Melbourne UP 2005) 456.

⁹ Article IV, s 2 reads: ‘The Citizens of each State shall be entitled to all Privileges and Immunities of Citizens in the several States’ and the relevant part of the Fourteenth Amendment reads: ‘No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.’

¹⁰ Official Record of the Debates of the Australasian Federal Convention (Melbourne, 8 February 1898) 664-91.

¹¹ Official Record of the Debates of the Australasian Federal Convention (Melbourne, 8 February 1898) 664-91; Kim Rubenstein, ‘Citizenship and the Constitutional Convention Debates: A Mere Legal Inference’ (1997) 25(2) Federal Law Review 295.

¹² Official Record of the Debates of the Australasian Federal Convention (Melbourne, 8 February 1898) 665; (2 March 1898) 1752-53, 1764-68; (3 March 1898) 672, 1785.

¹³ Imperial Conference 1926, ‘Inter-Imperial Relations Committee Report, Proceedings and Memoranda’ at 2.

¹⁴ See Chapter 4 ‘Independence’.

¹⁵ See the exception in the *Commonwealth Electoral Act 1918* (Cth), s 93(1)(b)(ii) which still refers to British subjects in a closed class, who retain their federal vote. For discussion of this history: Alastair Davidson, *From Subject to Citizen: Australian Citizenship in the Twentieth Century* (CUP 1997) and for the parallel changes in the United Kingdom: Rieko Karatani, *Defining British Citizenship: Empire, Commonwealth and Modern Britain* (Frank Cass 2003).

¹⁶ David Dutton, *Citizenship in Australia: A Guide to Commonwealth Government Records* (National Archives of Australia 1999) 14.

¹⁷ See report of the British Commonwealth Conference of Nationality and Citizenship (26 February 1947) quoted in Dutton (n 16) 14.

¹⁸ For detailed overviews of this Act: Michael Pryles, *Australian Citizenship Law* (The Law Book Company Limited 1981) ch 3; Kim Rubenstein, *Australian Citizenship Law in Context* (2nd edn, Lawbook Co 2016) ch 4.

¹⁹ With some exceptions, similar to the common law exceptions regarding *jus soli* and subject status noted above: *Nationality and Citizenship Act 1948* (Cth), s 10(2).

²⁰ *Nationality and Citizenship Act 1948* (Cth), Pt III Divisions 2 and 3.

²¹ *Nationality and Citizenship Act 1948* (Cth), s 7(1).

²² *Citizenship Act 1969* (Cth).

²³ Prior to which, Commonwealth legislation continued to refer to British subject status rather than citizenship, in order to determine legal rights and responsibilities. It was at about the same time as the passage of the *Australian Citizenship Amendment Act 1984* (Cth) that legislation was passed to remove British subject status from other Commonwealth law: see *Statute Law (Miscellaneous Provisions) Act 1985 (No 1)* (Cth); *Statute Law (Miscellaneous Provisions) Act 1985 (No 2)* (Cth), which each removed the status of ‘British subject’ from Commonwealth legislation: also *Public Service Reform Act 1984* (Cth). But note the *Commonwealth Electoral Act 1918* (Cth), s 93(1)(b)(ii) which still refers to British subjects in a closed class, who retain their federal vote. There have also been legislative changes in the UK with the creation of the category of British ‘citizenship’: *British Nationality Act 1981* (UK) and subsequent developments.

²⁴ Elisa Arcioni and Adrienne Stone, ‘The Small Brown Bird: Values and Aspirations in the Australian Constitution’ (2016) 14(1) International Journal of Constitutional Law 60.

²⁵ *ibid* 61-62.

²⁶ *ibid* 63–65.

²⁷ Section 51(xix).

²⁸ Quick and Garran (n 2) 955.

²⁹ See *Calvin's Case* (1608) 7 Co Rep, 77 ER 377, 2 How St Trials 559 for the classic articulation of this position, and the consequences of it when a Scottish monarch became sovereign of the United Kingdom.

³⁰ *Isaacson v Durant* (1886) 17 QBD 54.

³¹ See the change in the oath or affirmation of allegiance between the first federal naturalization legislation: *Naturalization Act 1903* (Cth), s 7 (to Her majesty Queen Victoria, Her heirs and successors), subsequent legislation referring to the 'Queen of Australia': *Australian Citizenship Act 1973* (Cth), s 19, consistent with the legislation regarding the change in title of the Queen of the same year: *Royal Style and Titles Act 1973* (Cth) and now reference only to a 'pledge of commitment', being a pledge of 'loyalty to Australia and its people': *Australian Citizenship Amendment Act 1993* (Cth), s 8 (still in place: *Australian Citizenship Act 2007* (Cth). sch 1).

³² *Street v Queensland Bar Association* (1989) 168 CLR 461, 493 (Mason CJ), 505 (Brennan J); *Goryl v Greyhound Australia Pty Ltd* (1994) 179 CLR 463, 471 (Mason CJ), 475 (Deane and Gaudron JJ), 481 (Dawson and Toohey JJ).

³³ *R v MacFarlane; Ex parte O'Flanagan and O'Kelly* (1923) 32 CLR 518; *Donohoe v Wong Sau* (1925) 36 CLR 404.

³⁴ *Migration Amendment Act 1983* (Cth), which came into effect on 2 April 1984. The change is signalled by the amendment to the long title of the primary Act (the *Migration Act 1958* (Cth)), which was changed by s 3 of the amending Act as follows: 'The title of the Principal Act is amended by omitting "Immigration, Deportation and Emigration" and substituting "the entry into, and presence in, Australia of aliens, and the departure or deportation from Australia of aliens and certain other persons".' This is of note, given that the word 'alien' does not then appear in the substantive provisions of the primary Act. Instead, the Act operates on the category of 'non-citizens'. By implication, aliens are understood legislatively to be non-citizens.

³⁵ Kim Rubenstein, 'Citizenship, Sovereignty and Migration: Australia's Exclusive Approach to Membership of the Community' (2002) 13(2) *Public Law Review* 102; Karen Schultz, 'Future Citizens or Intergenerational Aliens? Limits of Australian Constitutional Citizenship' (2012) 21(1) *Griffith Law Review* 36. For a more theoretical discussion of exclusion and the Constitution: Margaret Davies, 'Exclusion and the Constitution' (2000) 25(2) *Australian Journal of Legal Philosophy* 298; Sandra S Berns, 'Law, Citizenship and the Politics of Identity: Sketching the Limits of Citizenship' (1998) 7 *Griffith Law Review* 1 regarding the constructing of Australian identity through law and other methods, focusing on the exclusionary characteristics of the defining elements in the decades shortly after federation. For another example of the common characterization of aliens as 'outsiders': Belinda Wells, 'Aliens: The Outsiders in the Constitution' (1996–97) 19 *University of Queensland Law Journal* 45. See Mary Crock, 'Defining Strangers: Human Rights, Immigrants and the Foundations for a Just Society' (2007) 31 *Melbourne University Law Review* 1053 regarding the extension of these ideas of exclusion, and their effects, into the human rights arena.

³⁶ However, note the early history from Roman to Norman times in England, where these categories had limited relevance to most of the population: Ann Dummett and Andrew Nicol, *Subjects, Citizens, Aliens and Others: Nationality and Immigration Law* (Weidenfeld and Nicolson 1990) chs 1, 2.

³⁷ I do not assess the accuracy of the statements regarding the changes to subject status contained in the majority reasoning, except to note that, while the common law had been affected by legislation prior to federation, as noted above, the law regarding subject status by birth remained common law until after federation. See also McHugh J's judgment for an alternative reading of the historical

record regarding subject status and the relevance of the place of birth. Justice McHugh, in dissent, concluded that the rule he saw in the British history and later developments was that birth in the realm meant a person could *not* be an alien. The distinction between McHugh J's reasoning and that of the majority highlights the possibility of different interpretations of the same legal materials: see McHugh J's summary in *Singh v Commonwealth* (2004) 222 CLR 322, 342–43. For further discussion of this case: Peter Prince, 'We are Australian—The Constitution and Deportation of Australian-born Children' (Department of the Parliamentary Library, Canberra, Research Paper No 3 2003-04); Sydney Tilmouth, 'Citizenship as a Constitutional Concept: *Singh v Commonwealth of Australia* and *Rasul v Bush, President of the United States*' (2005) 26 (May) Australian Bar Review 193; Michelle Foster, 'Membership in the Australian Community: *Singh v The Commonwealth* and its Consequences for Australian Citizenship Law' (2006) 34 Federal Law Review 161.

³⁸ See the discussion of this principle in David A Wishart, 'Allegiance and Citizenship as Concepts in Constitutional Law' (1986) 15 Melbourne University Law Review 662.

³⁹ *Singh* (n 37) 341 (Gleeson CJ), 384 and see at 391, 395, 400 (Gummow, Hayne and Heydon JJ), 415, referring to British, international law and 'the United States model' at 415–16 (Kirby J).

⁴⁰ (1982) 151 CLR 101. For further discussion of this case: Sangeetha Pillai, 'Non-Immigrants, Non-Aliens and People of the Commonwealth: Australian Constitutional Citizenship Revisited' (2014) 39(2) Monash University Law Review 568, 589; Crock and Berg (op cit) 56.

⁴¹ *Pochi v MacPhee* (1982) 151 CLR 101, 104 (Gibbs CJ).

⁴² *Australian Citizenship Act 1948* (Cth) s 15 as in force at that time.

⁴³ The date at which the change in the monarch occurred is complicated by the multiple pieces of legislation that changed the official style and title of the Australian monarch, and the date at which the change in the monarch applied at both federal and State levels.

⁴⁴ *Nolan v Minister of State for Immigration and Ethnic Affairs* (1988) 165 CLR 178, 186 (Mason CJ, Wilson, Brennan, Deane, Dawson and Toohey JJ).

⁴⁵ *Chu Keng Lim v Minister for Immigration, Local Government and Ethnic Affairs* (1992) 176 CLR 1, 10, 25–26, 45, 64. See Mary Crock and Laurie Berg, *Immigration, Refugees and Forced Migration* (The Federation Press 2011) 66–67.

⁴⁶ Section 45 makes vacant the place of a person subject to the disqualifications in s 44.

⁴⁷ Adrienne Millbank, 'Dual Citizenship in Australia' (Department of the Parliamentary Library, 28 November 2000) 5–6. The 2016 Commonwealth census revealed that almost one half of the Australian population had been born overseas or had at least one overseas-born parent: Australian Bureau of Statistics, 'Census reveals a fast changing, culturally diverse nation' (Media Release, 27 June 2017) 1 <<http://www.abs.gov.au/ausstats/abs@.nsf/lookup/Media%20Release3>> accessed 28 September 2017. Given the approach of *jus sanguinis* and *jus soli* which affect acquisition of citizenship around the world, these results mean that a large proportion of the Australian population may be foreign nationals or eligible to take up foreign nationality.

⁴⁸ (1992) 176 CLR 77.

⁴⁹ *ibid* 108 (Mason CJ, Toohey and McHugh JJ), 113 (Brennan J), 128 (Deane J), 131 (Dawson J), 139 (Gaudron J).

⁵⁰ *ibid*, 108 (Mason CJ, Toohey and McHugh JJ), 113–14 (Brennan J), 132 (Dawson J).

⁵¹ By contrast, Australian citizenship can and has been revoked with respect to dual nationals, see for example in the case of *Re Minister for Immigration and Multicultural and Indigenous Affairs; Ex parte Ame* (2005) 222 CLR 439. For the current bases of revocation: *Australian Citizenship Act 2007* (Cth), ss 34–36 and see discussion in Pillai, 'The Rights and Responsibilities of Australian Citizenship' (2014) 37(3) Melbourne University Law Review 736, 754–58.

⁵² (n 51). For further discussion of this case: Peter Prince, 'Mate! Citizens, Aliens and "Real Australians" – the High Court and the case of Amos Ame' (Parliamentary Library 2005)

<<http://www.aph.gov.au/binaries/library/pubs/rb/2005-06/06rb04.pdf>> accessed 28 September 2017.

⁵³ *Papua New Guinea Independence (Australian Citizenship) Regulations 1975* (Cth), reg 4, made under *Papua New Guinea Independence Act 1975* (Cth), s 6. The focus of the reasoning in that case was the validity of the Australian law at issue, but factually and politically it interacted with PNG legislation and policy: *Constitution of the Independent State of Papua New Guinea 1975* (PNG), s 64 regarding dual citizenship.

⁵⁴ *Ame* (n 51) 458–59 (Gleeson CJ, McHugh, Gummow, Hayne, Callinan and Heydon JJ).

⁵⁵ See, eg, *Pochi* (n 41) 85 (Gibbs CJ); *Re Patterson; Ex Parte Taylor* (2001) 207 CLR 391, 400 (Gleeson CJ), 410 (Gaudron J).

⁵⁶ Revised Explanatory Memorandum at 1. See *Australian Citizenship Amendment (Allegiance to Australia) Act 2015* (Cth).

⁵⁷ Sections 33AA, 35, 35A respectively.

⁵⁸ cf *British Nationality Act 1981* (UK) c 61, s 40(4A) inserted by the *Immigration Act 2014* (UK), c 22, s 66(1).

⁵⁹ Section 4.

⁶⁰ Helen Irving and Rayner Thwaites, ‘Australian Citizenship Amendment (Allegiance to Australia) Bill 2015 (Cth)’ (2015) 26 *Public Law Review* 143, 145.

⁶¹ *Singh* (n 37) 378–80; *Hwang v Commonwealth* (2005) 222 ALR 83, 87–89, discussed in: Elisa Arcioni, ‘That Vague but Powerful Abstraction: The Concept of ‘the People’ in the Australian Constitution’ Paper delivered at the 2009 constitutional conference <<http://www.gtcentre.unsw.edu.au/events/2009-constitutional-law-conference>> and available at SSRN <https://papers.ssrn.com/sol3/papers.cfm?abstract_id=2393761> 6; Helen Irving, ‘Still Call Australia Home: The Constitution and the Citizen’s Right of Abode’ (2008) 30 *Sydney Law Review* 133. But cf *Koroitamana v Commonwealth* (2006) 227 CLR 31, 42, 46 (Gummow, Hayne and Crennan JJ).

⁶² Leslie Zines, ‘The Sovereignty of the People’ in Michael Coper and George Williams (eds), *Power, Parliament and the People* (The Federation Press 1997) 91, 91.

⁶³ Elisa Arcioni ‘Identity at the Edge of the Constitutional Community’ in Fiona Jenkins, Mark Nolan, Kim Rubenstein (eds), *Allegiance and Identity in a Globalised World* (CUP 2014) 31–51.

⁶⁴ See also Elisa Arcioni ‘Excluding Indigenous Australians from “The People”: A Reconsideration of Sections 25 and 127 of the Constitution’ (2012) 40(3) *Federal Law Review* 287–315; Elisa Arcioni ‘Section 53 of the Constitution: An Overlooked Reference to the Constitutional People’ (2013) 87(11) *Australian Law Journal* 784–92.

⁶⁵ Elisa Arcioni ‘The Core of the Australian Constitutional People—“The People” as “The Electors”’ (2016) 39(1) *University of New South Wales Law Journal* 421–49; cf Elisa Arcioni ‘Tracing the Ethno-cultural or Racial Identity of the Australian Constitutional People’ (2016) 15(2) *Oxford University Commonwealth Law Journal* 173–95.

⁶⁶ For discussion of that history: Williams (n 8) and see Elisa Arcioni ‘Historical Facts and Constitutional Adjudication: The Case of the Australian Constitutional Preamble’ (2015) 30 *Giornale di Storia Costituzionale* [Journal of Constitutional History] 107–24.

⁶⁷ See ss 8, 30.

⁶⁸ *Rowe v Electoral Commissioner* (2010) 243 CLR 1, 19.

⁶⁹ *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520.

⁷⁰ See *Mulholland v Australian Electoral Commission* (2004) 220 CLR 181; *Day v Australian Electoral Officer for the State of South Australia* [2016] HCA 20.

⁷¹ *Attorney-General of the Commonwealth; ex rel McKinlay* (1975) 135 CLR 1; *McGinty v Western Australia* (1996) 186 CLR 140; *Langer v The Commonwealth* (1996) 186 CLR 302;

Mulholland (n 70).

⁷² (2007) 233 CLR 162.

⁷³ *Rowe* (n 68).

⁷⁴ For discussion of how the reasoning in those cases, like the reasoning in the allegiance cases, relied on legislative indications of constitutional membership, see: Elisa Arcioni, 'Democracy and the Constitution: The People Deciding the Identity of "the People"' in Glenn Patmore and Kim Rubenstein (eds), *Law and Democracy: Contemporary Questions* (ANU Press 2014) 11.

⁷⁵ *Roach* (n 72) 174–75, 176–77 (Gleeson CJ), 199 (Gummow, Kirby and Crennan JJ); *Rowe* (n 68) 18–20 (French CJ), 48, 57 (Gummow and Bell JJ), 112 (Crennan J); cf 93 (Heydon J, in dissent).

⁷⁶ For example, religion: *Roach* (n 72) 174–75 (Gleeson CJ).

⁷⁷ *Rowe* (n 68) 93. See also *Re Minister for Immigration and Multicultural Affairs; ex parte Te* (2002) 212 CLR 162, 172 (Gleeson CJ).

⁷⁸ See Audrey Macklin, 'Citizenship Revocation, the Privilege to Have Rights and the Production of the Alien' (2014) 40 *Queen's Law Journal* 1, 30–33 for a discussion of these same arguments in the Canadian context, by reference to *Sauve v Canada (Chief Electoral Officer)* [2002] 3 SCR 519, a case in turn referred to in Gleeson CJ's judgment in *Roach*: (n 72) 177–78.

⁷⁹ *Constitution Alteration (Establishment of Republic) Bill 1999* (Cth), sch 2, ss 38, 39 regarding changes to s 117.

⁸⁰ *Constitution Alteration (Establishment of Republic) Bill 1999* (Cth), sch 2, s 41.

⁸¹ See generally: Megan Davis and George Williams, *Everything you Need to Know About the Referendum to Recognise Indigenous Australians* (NewSouth 2015).

⁸² For discussion of the interplay of amendment and interpretation: Michael Coper, 'Judicial Review and the Politics of Constitutional Amendment' in Rosalind Dixon and George Williams (eds), *The High Court, the Constitution and Australian Politics* (CUP 2015) 38; Michael Coper, 'The People and the Judges: Constitutional Referendums and Judicial Interpretation' in Geoffrey Lindell (ed), *Future Directions in Australian Constitutional Law: Essays in Honour of Professor Leslie Zines* (The Federation Press 1994) 73; Anne Twomey, 'Constitutional Alteration and the High Court: The Jurisprudence of Justice Callinan' (2008) 27 *University of Queensland Law Journal* 47.

CHAPTER 15

CONSTITUTIONALISM

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A. INTRODUCTION TO CONSTITUTIONALISM, LEGAL AND POLITICAL

THE principle of constitutionalism requires that government power be limited and its exercise controlled. Most modern legal system aspire to this ideal, but it can be achieved in different ways and to different degrees. A society's constitution consists of norms that establish and empower the highest organs of government—legislative, executive, and judicial—and establish mechanisms to control or limit their powers. But constitutions may be 'written' (codified in a special law or laws) or 'unwritten' (comprised partly of customary or common law); ¹ if written, they may be 'flexible' (amendable by ordinary law) or 'rigid' (amendable only by a special, more difficult procedure); and their contents may also differ.

Likewise, there are many different ways by which government power can be limited and controlled. Kenneth Culp Davis famously distinguished between three methods of regulating power: confining, structuring, and checking.² *Confining* power means keeping it within defined boundaries; *structuring* it means regulating the procedures by which it may be exercised; and *checking* it means ensuring that it can be reviewed by some external agency. A constitution can use any or all of these methods to control the exercise of governmental powers.

Another distinction often drawn is between 'legal' and 'political' constitutionalism. *Legal* constitutionalism involves imposing legal limits on governmental powers, including guarantees of rights, and empowering the judiciary to enforce them. In Davis's terminology, this involves legally

confining powers and judicially checking them. *Political* constitutionalism, by contrast, uses political mechanisms to control government: structuring political decision-making through bicameralism, the separation of powers, and federalism; enabling the various branches of government to ‘check and balance’ one another; and ensuring the accountability of those branches to the electorate. Under a primarily political constitution, governmental institutions may in important respects be ‘self-limiting’.

This chapter explains how constitutionalism developed and currently operates in Australia. It first explains the historical developments whereby Australia combined elements of the British and American models of constitutionalism, which employ legal and political constitutionalism in very different ways. The chapter then describes three main stages in the development of Australian constitutionalism. The first was the establishment in the nineteenth century of colonial Constitutions, which employed a predominantly political form of constitutionalism and, upon federation in 1900, became the Constitutions of the six Australian States. The second was the establishment of the Commonwealth Constitution in 1900, which necessarily blended elements of political and legal constitutionalism. The third consists of more recent innovations by the High Court that have expanded the role of legal constitutionalism. Each development has built on its predecessor, resulting in a distinctive combination of political and legal constitutionalism.

B. THE BRITISH AND AMERICAN MODELS

Traditionally, British constitutionalism was primarily political in nature, especially in the nineteenth century when Australia’s constitutional system was established under British Imperial rule.

The doctrine that Parliament has legally unlimited or ‘sovereign’ legislative power had long been, and still is, regarded as the most fundamental element of the British constitution. Parliament can make or unmake any law whatsoever, and courts cannot declare its Acts invalid for violating either moral rights or fundamental constitutional or common law principles.³ These rights and principles are protected from legislative infringement only by custom, the good sense and probity of those elected to

high office, and the democratic process. Though increasingly contested, this remains the orthodox view.

This is partly because the British constitution was and still is largely uncodified and 'unwritten'. The composition, powers, and procedures of the highest organs of government are established not by a written Constitution, but by customary laws, common law rules and principles, ordinary statute law, and non-legal norms called 'constitutional conventions'. These include the conventions underpinning 'responsible government', which make government Ministers responsible to Parliament, due to its control over public finance, for their exercise of executive power. Parliament is generally regarded as having legislative power to alter or override any of these laws and conventions, except that it probably cannot abolish itself or restrict its own sovereign power.⁴ The British constitution is therefore described as 'flexible', in that it can be altered by ordinary legislation, whereas written constitutions such as that of the United States are 'rigid', as they can be amended only by a special, more demanding procedure.

It is difficult for unwritten constitutions to bind government organs effectively. Customary norms and conventions are often vague and imprecise; statute and common law can readily be altered by ordinary legislation; and effective means for enforcement are frequently elusive. The founders of the American Constitution aimed to avoid these problems. Repudiating the doctrine of legislative sovereignty, they invented the idea of imposing legal limits, including inviolable rights, on governmental power by a written constitution that is difficult to amend and enforceable by an independent judiciary.

The American Constitution relies on both legal and political constitutionalism. It relies on legal constitutionalism by empowering the judiciary to enforce it, if necessary by declaring invalid legislation that violates constitutional limits. But the Constitution's founders did not rely mainly on judicial enforcement, partly because they regarded the judiciary as the least powerful branch of government, but also because that would have left unsolved the problem of effectively controlling the judiciary itself. The founders therefore relied more on empowering each branch of government to 'check and balance' the others. Although they adopted a system of separation of powers, by vesting legislative, executive, and judicial powers in different branches, the separation was not absolute: each branch was empowered to interfere to some extent with the activities of the

others. For example, the President was given power to veto legislation passed by Congress and to nominate and appoint federal judges; Congress was given power to impeach the President and federal judges; and so on. Above all, the founders relied on the power of 'the sovereign people' to hold their elected representatives to account.

The Australian constitutional system is an amalgamation of principles and institutions adapted from Britain and the United States, together with a few autochthonous provisions.⁵ From Britain it inherited parliamentary and responsible government, and from the United States it copied federalism. As for protecting rights Australia followed, with only a few exceptions, Britain rather than the United States.

C. THE ESTABLISHMENT OF COLONIAL CONSTITUTIONS IN THE NINETEENTH CENTURY

The colony of New South Wales was established in 1788, and five more colonies were established in Australia by 1859. Constitutional developments in these colonies generally followed a similar path, although at different times.⁶ Eventually, all acquired legislatures with the same basic structure as the British Parliament (bicameral, with an elected lower House). The conventions of responsible government were also adopted in each colony, requiring governors to exercise their powers on the advice of local Ministers who were members of, and held responsible to, the colonial legislature. As in Britain, these conventions were customs rather than laws, ultimately enforceable through legislative control over taxation and expenditure.

The colonial legislatures were given power to make laws for the 'peace order and good government' of their respective colonies. This power was as 'absolute' and supreme as the sovereign law-making power of the Imperial Parliament itself, except that a colonial legislature could not enact laws inconsistent with British statutes specifically applying to the colony.⁷ This included the power to alter their colony's Constitution in the future, as the Privy Council confirmed in 1920, in a judgment that includes the following homily on the superiority of flexible constitutions to rigid ones:

The difference ... may be traced mainly to the spirit and genius of the nation in which a particular Constitution has its birth. Some communities, and notably Great Britain, have not in the framing of Constitutions felt it necessary, or thought it useful, to shackle the complete independence of their successors. They have shrunk from the assumption that a degree of wisdom and foresight has been conceded to their generation which will be, or may be, wanting to their successors, in spite of the fact that those successors will possess more experience of the circumstances and necessities amid which their lives are lived.⁸

Consequently, the policy of the Imperial Legislature was not ‘to shackle or control in the manner suggested the legislative powers of the nascent Australian Legislatures’, but instead, to give them power ‘completely, and unequivocally, in the belief, fully justified by the event, that these young communities would successfully work out their own constitutional salvation’.⁹ These views of senior British judges educated in the late nineteenth century lucidly express the British attitude of trust in elected legislatures that prevailed in that era.

The Privy Council also held it to logically follow that, in general, a State Constitution is not legally binding on the State Legislature: because a State Constitution has no higher status than an ordinary statute, the Legislature can largely ignore it, because any statute inconsistent with it will to that extent amend it by implication. Thus, a State Constitution can be altered as easily as a *Dog Act*, by implication as well as express provision.¹⁰ State Legislatures can make parts of their Constitutions more rigid, by requiring that special procedures be followed to amend them, but their power to do so is limited. Therefore, the subjection of State Legislatures to the constraints of legal constitutionalism within State Constitutions can be expanded only to a limited extent.¹¹

In summary, the colonies acquired the main attributes of nineteenth century British constitutionalism: bicameralism, an elected Lower House, parliamentary supremacy in law-making including supremacy over the constitution itself, and responsible government. This heavy emphasis on political constitutionalism was supplemented by judicial review of administrative decision-making, but this was limited and did not extend to the highest levels of executive government.¹²

When the six colonies were joined in a new federal Commonwealth in 1900, they became States whose existing constitutions and legislative powers were expressly preserved by the new national Constitution, subject only to a handful of powers being expressly limited or given exclusively to

the national Parliament.¹³ State constitutions remain largely flexible rather than rigid. The High Court has recently reaffirmed the orthodox understanding that State Parliaments possess plenary legislative powers subject only to external limits imposed by the national Constitution.¹⁴ The Court pointedly expressed no opinion as to whether State Parliaments are ‘subject to some restraints by reference to rights deeply rooted in our democratic system of government and the common law’.¹⁵ Given judicial developments concerning representative democracy at the Commonwealth level,¹⁶ it is possible that the Court will develop restraints of the former kind. But the lack of plausible historical evidence of common law restraints makes them unlikely to be found.¹⁷

D. THE ESTABLISHMENT OF THE COMMONWEALTH CONSTITUTION IN 1900

These historical developments help explain the fundamental features of the Australian Constitution, and its unique combination of legal and political constitutionalism. Although the founders were heavily influenced by the British model of political constitutionalism, prominent aspects of legal constitutionalism had to be included in order to protect the colonies’ interests. They would never have agreed to dissolve themselves in order to establish a new, unitary nation, but were prepared to join a federation designed to mollify their ‘strong colonial jealousies’.¹⁸ The colonies required primacy in drafting and approving the federal Constitution; in particular, their respective voters would have to endorse it in referenda.¹⁹ The Constitution had to be written, in order to state as clearly as possible the terms on which the colonies agreed to federate. It also had to be rigid, to prevent those terms being changed without their assent: hence the requirement in section 128 of a referendum for any amendment. Finally, the national Constitution had to be superior to all other laws, binding on all government actors, and judicially enforceable. The following sections explore these aspects in more detail.

1. Chapter III of the Australian Constitution

It was necessary to establish an independent federal judiciary, headed by the High Court of Australia, to enforce the federal compact and resolve disputes about its operation. This explains the inclusion of Chapter III of the Constitution, modelled on Article III of the American Constitution. In the *Boilermakers' Case*²⁰ 'the institution of federalism' was said to require an independent judiciary, 'for upon the judicature rested the ultimate responsibility for the maintenance and enforcement of the boundaries within which governmental power might be exercised and upon that the whole system was constructed'.²¹ For this reason the High Court was described by prominent founders as 'the keystone of the federal arch',²² and later by its judges as the 'guardian of the Constitution'.²³

Chapter III protects the remuneration and tenure of High Court and other federal judges, to ensure that they act without fear or favour.²⁴ Chapter III also gives the High Court certain original²⁵ and appellate²⁶ jurisdiction which, being constitutionally entrenched, can only be removed by constitutional amendment.²⁷ Specifically, section 75(v) gives the Court original jurisdiction to hear 'all matters in which Mandamus or prohibition or injunction is sought against an officer of the Commonwealth',²⁸ the jurisdiction that the American Supreme Court had found itself to lack in *Marbury v Madison*.²⁹ This guarantees that actions of the executive government and its officers are subject to judicial review, at least for exceeding the limits of their lawful authority, although Parliament retains considerable discretion in determining what those limits are.³⁰

Chapter III does *not* expressly authorize the High Court to review the conformity of State and Commonwealth legislation with the Constitution, and to invalidate it if it does not. Yet it has never been doubted that the Court has the power to do so. This was confirmed by the High Court in *Australian Communist Party v Commonwealth*.³¹ There, Fullagar J stated that it is 'accepted as axiomatic' that the High Court has authority to review Commonwealth legislation, and declare it invalid should it be found to be contrary to the Constitution.³² Parliament could not foreclose that inquiry, as it had attempted to do in the Preamble to the *Communist Party Dissolution Act 1950* (Cth), which asserted that the Act was within the legislative power of the Commonwealth. Because the Constitution was the

source of Parliament's power to enact laws, Parliament could not conclusively determine that a law was within power: 'a stream cannot rise higher than its source'.³³

Fullagar J claimed that this lacuna in the Constitution was due to the founders taking for granted the American principle of judicial review established in *Marbury v Madison*.³⁴ But the better view is that judicial review was taken for granted due to pre-existing colonial practice.³⁵ As previously explained,³⁶ colonial Parliaments could not enact laws that were repugnant to the superior statutes of the Imperial Parliament, and the courts could invalidate such legislation.³⁷ The Constitution was established by such a superior statute, whose legal authority derived, at least initially, from that of the British Parliament.³⁸ For these reasons, the founders simply assumed that the High Court would have authority to ensure that all local legislation conformed to the Constitution, without any need to say so in Chapter III. Even though this authority is not expressly conferred by the constitutional text, it is implied.

2. Political Constitutionalism

In many respects the Australian Constitution implements the British model of political constitutionalism. Even with respect to federalism, the founders did not rely solely on the High Court to prevent the new national polity from exceeding its limited powers. The Upper House of the new national Parliament—the Senate—in which all the original States were guaranteed equal representation, was designed to protect their interests, both collectively against Commonwealth encroachment, and against the predominance of the most populous States (a mechanism borrowed from the federal model of the United States).

The High Court itself has sometimes acknowledged that the political process may ultimately be more important than judicial review in maintaining a genuine federal system. In its most influential decision, the *Engineers' Case*,³⁹ a majority of the Court repudiated two doctrines, previously found to be 'necessarily implied' by the Constitution, that limited Commonwealth powers in order to protect State interests. It criticized these doctrines for being 'based on distrust, lest powers, if once conceded to the least degree, might be abused to the point of destruction.

But possible abuse of powers is no reason in British law for limiting the natural force of the language creating them'.⁴⁰

[T]he extravagant use of the granted powers in the actual working of the Constitution is a matter to be guarded against by the constituencies and not by the Courts ... If it be conceivable that the representatives of the people of Australia as a whole would ever proceed to use their national powers to injure the people of Australia considered sectionally, it is certainly within the power of the people themselves to resent and reverse what may be done. No protection of this Court in such a case is necessary or proper.⁴¹

This view was reiterated by the Court in the *Second Uniform Tax Case*,⁴² which upheld the validity of a Commonwealth legislative scheme whose practical effect was, by design, to force the States to abandon the collection of income taxation. Latham CJ said:

[T]he scheme which the Commonwealth has applied to income tax of imposing rates so high as practically to exclude State taxation could be applied to other taxes so as to make the States almost completely dependent, financially and therefore generally, upon the Commonwealth. ... [I]f the Commonwealth Parliament were prepared to pass such legislation, all State powers would be controlled by the Commonwealth—a result which would mean the end of the political independence of the States. Such a result cannot be prevented by any legal decision. The determination of the propriety of any such policy must rest with the Commonwealth Parliament and ultimately with the people. The remedy for alleged abuse of power or for the use of power to promote what are thought to be improper objects is to be found in the political arena and not in the Courts.⁴³

This is a remarkable admission of the impotence of legal constitutionalism, and the need for political constitutionalism, to prevent some kinds of abuse of constitutional power. It demonstrates the High Court's 'tendency to leave the final determination of the 'federal balance' to the political and not the legal process'⁴⁴—a tendency that has sometimes been criticized.⁴⁵

The provisions governing the Commonwealth's executive power may provide the starkest example of the Constitution's reliance on political controls. That power is conferred by section 61 on the Governor-General, as the Queen's representative, and is described by brief, abstract, and obscure words. It was intended to be exercised according to the conventions of responsible government, requiring the Governor-General to act on Ministerial advice,⁴⁶ but the founders felt no need to spell out these conventions in the constitutional text. Consequently, it would appear to any uninformed reader that the executive government is conducted by an unelected autocrat—the Governor-General, representing the monarch—who personally controls the armed forces and can hire and fire ministerial

advisers at will.⁴⁷ Section 64 does stipulate that the Ministers of State, who are said to hold office ‘during the pleasure of the Governor-General’, must be members of Parliament. But no mention is made of the Governor-General’s normal obligation to act only in accordance with their advice; indeed, there is no mention at all of the office of Prime Minister, or of Cabinet. On the other hand, the jurisdiction of the High Court to review executive action is entrenched.⁴⁸

The founders also gave Parliament wide discretion to determine fundamental aspects of the democratic process itself. These include the method by which senators are elected,⁴⁹ and, with respect to both Houses: (a) the number of their members;⁵⁰ (b) the division of States into electorates;⁵¹ (c) other matters ‘related to elections’, including compulsory versus optional voting;⁵² and (d) the qualifications of electors.⁵³ Parliament is not required to deal with these matters; they were initially left subject to existing State legislation, which Parliament was authorized to replace. Moreover, in doing so it is subject to very few substantive constitutional limits, the most important being that members of both Houses must be ‘directly chosen by the people’.⁵⁴

It has often been concluded that the founders deliberately entrusted to Parliament the evolution of Australian democracy in accordance with changing social mores.⁵⁵ A prominent example is the right of women to vote. It is well documented that, because the founders could not reach agreement about that issue, they left it to Parliament to decide (which it did in 1902, by giving them that right).

3. Legal Constitutionalism

The political branches of government are subject to relatively few legal constraints other than the limited nature of their powers inherent in federalism, and those imposed by Chapter III. The Constitution enumerates the legislative powers of the federal Parliament, but not those of the States. The scope of State legislative power is determined by the Constitution of the relevant State, subject to the national Constitution. In this respect, the founders preferred the American federal model as opposed to that of Canada, as it was feared that enumerating the legislative powers of the States would limit them⁵⁶—a preference that time has proven to be

misguided. The federal Parliament can only make laws with respect to stipulated matters, but the primary provisions that confer that power use the usual British formula denoting that the power is plenary in nature ('peace, order and good government'),⁵⁷ albeit subject to the Constitution.

The limits that *are* imposed by the Constitution are relatively thin. They were generally designed to assuage the concerns of the former colonies, by ensuring the proper functioning of the federal system, such as by protecting freedom of inter-State trade and movement, and preventing discrimination against particular States by the Commonwealth and against residents of one State when in another State.⁵⁸ Most importantly, legislative powers were not limited by a bill of rights of the kind found in the American Constitution.

4. The Protection of Rights

The six State Constitutions contain almost no guarantees of individual rights, while the national Constitution has only a handful of provisions that can be regarded as designed to protect rights.⁵⁹ Most of these were in fact included not to protect rights for their own sake, but to protect interests related to federalism, as shown partly by most of them binding only the Commonwealth and not the States.⁶⁰ The High Court's interpretation of many of these provisions has often been criticized for being pedantically narrow, although that criticism is disputed.⁶¹

The prosaic nature of the Constitution reflects the fact that Australian federation resulted not from violent struggle against a feared and hated Imperial government, but from calm, pragmatic reforms supported and assisted by Britain.⁶² It also reflects the climate of political opinion in the late nineteenth century, which was very different to that which had prevailed at the time of the American Revolution. The objections of Bentham and his disciples had almost totally eclipsed the idea of natural rights in English political thought. In Australia, often described as a paradigmatically utilitarian society,⁶³ a harsh environment was still being pioneered, and government was relied on to underwrite enterprise, provide necessary infrastructure, and enact social regulation.⁶⁴ Progressive social thought optimistically assumed the forward march of history, guided by enlightened, scientific thinking. After a century of increasing

democratization, parliamentary democracy was widely believed to be the key to a more just and prosperous future.

In keeping with the British tradition, the founders believed that rights guarantees were undesirable and unnecessary: undesirable, as they might prevent the enactment of quite reasonable or even necessary laws;⁶⁵ unnecessary, as the risk of abuse of power could be adequately guarded against by responsible and representative government, and the common law.⁶⁶ Thus, in 1902, William Harrison Moore wrote that the ‘great underlying principle’ of the Constitution was ‘that the rights of individuals are sufficiently secured by ensuring, as far as possible, to each a share, and an equal share, in political power’.⁶⁷ Yet, the founders also defended existing laws discriminating against people of other races and creeds, and rejected the inclusion of an ‘equal protection’ clause for that reason.⁶⁸

For most of the twentieth century this scepticism about constitutional rights continued to be widely accepted.⁶⁹ But since the 1980s, calls for a national bill of rights—either constitutional or statutory—have become more frequent and passionate. Traditional faith in political rather than legal constraints on government has steeply declined, with opinion shifting in favour of American-style legal constitutionalism. Legal rules enforced by independent courts, especially ones protecting rights, now strike many as a more reliable constraint on public power than the conventions of responsible government.⁷⁰

Canada, New Zealand, and Britain have now all adopted either statutory or constitutional bills of rights. Many of these are ‘dialogue models’ that seek to improve the quality of inter-institutional exchange without substantively limiting legislative power. For example, they may empower courts to declare that a statute is incompatible with human rights, leaving its validity intact but requiring Parliament to decide whether or not to amend it. Consequently, these models are said to combine the best features of the American model of judicial review of legislation and the older British model of parliamentary supremacy.

This model has now been adopted in the Australian Capital Territory⁷¹ and the State of Victoria,⁷² but not at the federal level. There are good reasons to suspect that it would be unconstitutional for that Parliament to do so.⁷³ The federal Parliament has instead implemented another model of rights protection, in the form of the *Human Rights (Parliamentary Scrutiny)*

Act 2011 (Cth).⁷⁴ This is also ostensibly designed to improve the legislative process, by encouraging the federal Parliament to legislate compatibly with the rights recognized by the international treaties to which Australia is a party. However, this model is entirely self-policing: it does not give the courts any new or additional powers. The Act is therefore unique, differing from both the American model of strong constitutional rights protection and the dialogue model. It is an example of purely political constitutionalism. It is certainly imperfect, but by not involving the courts it avoids the constitutional and democratic difficulties posed (to differing extents) by the other models.

On the other hand, the shift of public opinion in favour of stronger protection of rights has undoubtedly contributed to recent judicial innovations that will now be discussed.

E. JUDICIAL INNOVATIONS

In the late 1980s the High Court took a new, more creative approach to the interpretation of the Commonwealth Constitution.⁷⁵ This led to increased judicial protection of political rights, judicial independence and the integrity of the judicial process, and judicial authority to review executive action. All three developments have changed the nature of Australian constitutionalism.

1. The Legal Protection of Political Rights

In 1992, the High Court purported to discover in the Constitution an implied freedom of political communication.⁷⁶ Some judges held that this was implied by two specific provisions requiring that members of Parliament be ‘directly chosen by the people’; others that it was implicit in the principles of representative and responsible government, which underlie numerous constitutional provisions. The latter view signified an important and controversial change in constitutional methodology, treating the Constitution not (as in the past) as a definitive statement of the justiciable principles of constitutional law, but as an illustration of broader, underlying principles that have their own constitutional force.⁷⁷

This development led some to hope that the Court would go much further, and find other rights implicit in the principles of representative democracy or popular sovereignty. One judge suggested that the High Court could gradually develop an implied bill of rights.⁷⁸ A new era of bold judicial creativity was widely predicted, expanding the legal protection of human rights without formal constitutional amendment.⁷⁹ But traditionalists criticized the discovery of an implied freedom of political communication—which, after all, had escaped the notice of Australian lawyers and judges for the previous ninety years—and feared what it might foreshadow.⁸⁰ The Court was argued to have departed from orthodox methods of constitutional interpretation and, in effect, unlawfully amended the Constitution.⁸¹

In time, this wave of judicial creativity subsided, and the Court retreated to (ostensibly) more orthodox methods of constitutional interpretation. Thus in *Lange v Australian Broadcasting Authority*, the Court unanimously confirmed that the freedom of political communication was implied by the specific sections and structure of the Constitution, rather than the concept of representative democracy treated as a free-standing principle.⁸² In narrowing the basis of the freedom, the Court also narrowed its scope: it was said to protect such communication only insofar as necessitated by the text or structure of the Constitution.⁸³

The Constitution itself does not confer a right to vote, but the High Court has found that the constitutional requirement that members of Parliament be ‘directly chosen by the people’ constrains Parliament’s ability to reverse the ‘universal adult-citizen’ suffrage conferred by statute.⁸⁴ However, the Court has refrained from recognizing other implied rights or freedoms. It has found that there is no implied freedom of general speech⁸⁵ or association,⁸⁶ or from retrospective laws,⁸⁷ and no guarantee of substantive equality before the law,⁸⁸ or equal voting power.⁸⁹

The freedom of political communication and the right to vote do represent new, constitutional limits on legislative power, which could be regarded as a movement towards a more legal form of constitutionalism. But both developments are said to enhance the democratic process, and therefore could also be argued to strengthen political constitutionalism. The legislative power of the Commonwealth remains otherwise largely unconstrained by substantive rights or freedoms.

2. The Expansion of Chapter III

The founders clearly intended Chapter III to create an independent and impartial federal judiciary,⁹⁰ but may not have intended it to yield as many other constraints on governmental power as the High Court has inferred from it.⁹¹ It is now established that Chapter III precludes the federal Parliament from conferring judicial power on a non-Chapter III court, or vesting non-judicial power in a Chapter III court.⁹² In recent decades, it has been found to impose other substantive legal limitations on the powers of both State and federal parliaments.

a) Chapter III as a source of rights

Chapter III does not expressly confer any rights,⁹³ but has been found to impliedly protect a range of procedural and substantive interests from legislative interference. This follows from the High Court's interpretation of the 'judicial power of the Commonwealth' (which may only be vested in a Chapter III court). Parliament cannot usurp the judicial power of the Commonwealth by 'direct[ing] the courts as to the ... outcome of the exercise of their jurisdiction'.⁹⁴ Certain functions are said to be inherently—and therefore, exclusively—judicial. For example, the power to punitively detain is said to be inherently judicial,⁹⁵ so it can never be exercised by legislative or executive decree. Further, the concept of judicial power has a procedural dimension: Parliament cannot require a Chapter III court to proceed in a manner that is 'inconsistent with the essential requirements of a court or with the nature of judicial power'.⁹⁶ These requirements are likely to include some degree of procedural fairness.⁹⁷ This demonstrates how the distribution of power can constrain it.

Much of the Chapter III case law may have been driven by a desire to protect individual rights. However, the High Court has acknowledged the limits of Chapter III. For example, while the power to punitively detain is exclusively judicial, non-punitive forms of detention can lawfully be authorized by the executive or legislative branch.⁹⁸ Although Parliament cannot usurp or destroy the judicial power of the Commonwealth, it can regulate its exercise.⁹⁹ Thus it seems that Chapter III cannot evolve into an 'implied bill of rights'.

b) *The Kable doctrine*

Chapter III was included in the Constitution as a necessary concession to the needs of federal government. State Constitutions do not include any equivalent, and Chapter III does not appear to limit the States' legislative powers with respect to their own courts. Although Chapter III permits the federal Parliament to vest federal jurisdiction in State courts, it was long assumed that it could not alter their Constitutions or procedures but rather had 'to take State courts as it found them'.¹⁰⁰

The High Court repudiated that assumption in *Kable*, by holding that a State Parliament could not confer upon a State court invested with federal jurisdiction any power that is incompatible with the court's exercise of that jurisdiction.¹⁰¹ The Court's reasoning has been widely criticized,¹⁰² and the doctrine laid down in the case has since been significantly refined. Today, it is said that State legislation will be contrary to Chapter III if it diminishes the 'institutional integrity' of a State court,¹⁰³ by depriving it of its 'essential characteristics'.¹⁰⁴

Thus the *Kable* doctrine is no longer a structural implication that protects the exercise of federal jurisdiction, but an implication of the very words of Chapter III: 'court', 'court of a State' and 'Supreme Court of any State'. These are said to be 'constitutional expressions', which entrench the essential and defining characteristics of those institutions. Although this may seem to set a very high threshold for invalidity, the doctrine is not applied so strictly. State laws that only affected the functions of a court in particular, limited ways—which could not plausibly be said to have deprived it of its status as a 'court'—have lately been found to contravene the *Kable* doctrine.¹⁰⁵

The reformulation and expansion of the *Kable* doctrine appears to be based on a more orthodox methodology of constitutional interpretation: that is, giving effect to the words of the Constitution, as opposed to purported implications. Yet it is an unavoidably creative task to determine what the 'essential' features of a court are, and what in each case they require.¹⁰⁶ Many of the characteristics that have been identified thus far—including open justice, procedural fairness, and the rule of law—are uncertain or contested concepts.¹⁰⁷ Finally, this methodology has no clear boundaries. Many other words in the Constitution could be described as 'constitutional expressions', whose 'essential characteristics' are also protected from

legislative interference.¹⁰⁸ But despite these concerns, the *Kable* doctrine is now well established, and unlikely to be overturned.

c) The expansion of judicial review of executive action

The preceding sections have focused on limits to legislative power, but limits to executive power are equally important to constitutionalism. As previously noted, section 75(v) of the Constitution gives the High Court original jurisdiction to hear applications for certain remedies against ‘officers of the Commonwealth’.¹⁰⁹ In *S157*, the High Court said that this created an ‘entrenched minimum provision of judicial review’,¹¹⁰ which the federal Parliament cannot destroy or diminish, for example, by enacting a ‘privative’ or ‘ouster’ clause that immunizes executive action from judicial review. This should not be characterized as a judicial expansion of Chapter III: it is consistent with the natural meaning of section 75(v) of the Constitution, and the apparent purpose of its inclusion in the Constitution.¹¹¹

Section 75(v) alludes to,¹¹² but does not express or define, the substantive principles of judicial review. Therefore, while the Constitution guarantees the High Court’s jurisdiction to hear applications for certain remedies, it says nothing about the kinds of errors for which those remedies will lie. Those principles are determined by the courts,¹¹³ and historically, were limited. It was widely believed that a more robust jurisprudence would hamper the operation of the political Constitution. Thus it was accepted that judicial review of administrative action would be ‘sporadic and peripheral’.¹¹⁴

But in recent decades, the substantive principles of judicial review have dramatically expanded. The number of decisions deemed non-justiciable have diminished;¹¹⁵ standing to challenge government action has expanded;¹¹⁶ the principles of procedural fairness now apply to almost all governmental powers;¹¹⁷ principles said to implicitly limit statutory discretions have proliferated;¹¹⁸ and many technicalities that attenuated the availability of remedies have been relaxed or abandoned.¹¹⁹ These developments have sometimes been spurred or aided by legislation, but are primarily judicial innovations.

Given there is no equivalent to section 75(v) in State Constitutions, it was long assumed that there was no guarantee of judicial review at the State level. The courts would creatively ‘read down’ privative clauses in State legislation, by presuming that State Parliaments did not intend to prevent access to the courts, but it was accepted that they had power to do so.¹²⁰ But in *Kirk v Industrial Relations Court of NSW* (*‘Kirk’*), the High Court held otherwise.¹²¹ This decision was reached by the method of reasoning described above:¹²² the authority to review the decisions of inferior courts and administrative tribunals was said to be an essential characteristic of State Supreme Courts, and therefore entrenched by Chapter III of the Constitution. This was said to be established doctrine at the time of federation (*‘the doctrinal basis’*). It was also found to be necessary to preserve the integrated judiciary established by Chapter III, because if the supervisory jurisdiction of State Supreme Courts were diminished, so too would be the appellate jurisdiction of the High Court (*‘the functional basis’*).

The decision in *Kirk* has been widely applauded, for enhancing the rule of law and harmonizing the principles of public law that apply at the State and Commonwealth levels. Many commentators appear to accept the functional basis of the decision.¹²³ However, its doctrinal basis is seriously flawed.¹²⁴ For this reason, the decision has been described an act of ‘judicial statesmanship’.¹²⁵ a deliberate modification of the law, albeit with the best of intentions. Either way, *Kirk* has also become accepted doctrine, and is unlikely to be overturned.

3. Common Law Rights and the ‘Principle of Legality’

Throughout the common law world, there has been increasing discussion of the constitutional significance of the common law, and particularly of common law rights. Some theorists advocate a theory called ‘common law constitutionalism’, which maintains that the common law is the ultimate foundation of constitutionalism, and inherently limits legislative and other governmental power.¹²⁶

This theory seeks to deny, or at least diminish, apparent differences between various constitutional regimes. It is a vision of constitutional unity, or at least homogeneity,¹²⁷ in which all constitutions in common law

countries are fundamentally identical, despite what is provided in their constitutional texts, the history and reality of their legal practices, and what their legal officials may believe. It is also a deeply *legal* vision of constitutionalism: it denies the existence of clear boundaries between legal and political questions, and that governmental power can be adequately constrained by political mechanisms.

This theory is subject to many objections, both historical and philosophical.¹²⁸ It lies at the fringe of Australian legal discourse—understandably so, because it is so fundamentally inconsistent with the established rules and principles of Australian constitutionalism that it cannot be accepted as a plausible interpretation of it.

While the High Court has not recognized that legislative power is limited by the common law,¹²⁹ it does recognize an (albeit vague) category of common law rights and principles that it presumes Parliament does not intend to violate.¹³⁰ That presumption is called the ‘principle of legality’, and it plays an increasingly important role in the interpretation of statutes. Although these rights are described as ‘fundamental’, Parliament has acknowledged power to override them, provided it does so unambiguously by express words or necessary implication.¹³¹ Thus, the principle of legality ‘is of no avail’ against an unambiguous expression of legislative intention.¹³² This reflects the fact that courts may only interpret, and not rewrite, validly enacted legislation—one important manifestation of the separation of powers. It also reflects the Constitution’s status as Australia’s highest law. The common law must conform to the Constitution, and not the other way around.¹³³

F. CONCLUSION

Constitutionalism is a broad and nebulous project, which can be pursued in many different ways. Australia’s constitutional system was primarily modelled on that of the United Kingdom, and therefore seeks to control the exercise of governmental power more through political than legal mechanisms. The federal Constitution includes important legal limitations that are enforceable by an independent judiciary, but they were primarily designed to maintain the federal system: they typically do not pertain to substantive matters of justice or human rights.

Arguably, the most important function of the High Court is to interpret the Constitution. Its interpretation of Chapter III has expanded the legal limits to State and federal legislative power. The courts, like their international counterparts, have also expanded the substantive principles of judicial review. Australian constitutionalism today is distinctly more legal than the founders of the Constitution probably intended. It also appears to be more uniform, in that important differences between the scope of State and Commonwealth legislative powers have been softened by the expansion of Chapter III, which now imposes significant constraints on State power.

Nonetheless, the basic model created by the founders remains intact: Australian constitutionalism is still primarily political in nature. That is not least because the Constitution has not been frequently or significantly amended. Australian Parliaments are free to legislate as they think fit, subject *only* to limits imposed by the Constitution, which by international standards are comparatively thin. While the High Court must interpret the Constitution and ensure that it has been complied with, the Court must not change the Constitution, or otherwise decide what is conducive to ‘peace, order and good government’. As Dixon J stated in *Burton v Honan*, ‘the justice and wisdom of [a law of the Commonwealth] are matters entirely for the Legislature and not for the Judiciary’.¹³⁴

Beyond Australia, greater developments are afoot in the field of constitutionalism. There has been a proliferation of constitutional and statutory bills of rights, enforced by national or supra-national courts. The very premises of political constitutionalism have been challenged by common law constitutionalists, who insist that the principles of the rule of law developed by the courts are necessarily superior to legislation. These developments are yet to take root in Australian constitutional practice. And there are good reasons to suspect that they cannot, unless the Constitution, and the concept of constitutionalism that it embodies, are overhauled. Thus, while judicial innovation has enhanced the legal aspects of Australian constitutionalism, there seem to be limits to how far the High Court can continue in that direction.

¹ John Gardner, ‘Can There Be a Written Constitution?’ in Leslie Green and Brian Leiter (eds), *Oxford Studies in Philosophy of Law* vol 1 (Oxford Scholarship Online 2011).

² *Discretionary Justice: A Preliminary Inquiry* (Louisiana State UP 1969).

- ³ See Jeffrey Goldsworthy, *The Sovereignty of Parliament, History and Philosophy* (OUP 1999).
- ⁴ See Jeffrey Goldsworthy, *Parliamentary Sovereignty, Contemporary Debates* (CUP 2010)chs 5 and 7.
- ⁵ For example John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (rev edn LexisNexis Butterworths 2015) 128.
- ⁶ See Gerard Carney, *The Constitutional Systems of the Australian States and Territories* (CUP 2006)ch 2.
- ⁷ *Reg v Burah* [1878] UKPC 1, [1878] 3 App Cas 889; *Hodge v The Queen* [1883] UKPC 59, [1883] 9 App Cas 117; *Powell v Apollo Candle Co* (1885) 10 App Cas 282; *Riel v The Queen* [1885] UKPC 37, [1885] 10 App Cas 675. See also Colonial Laws Validity Act 1865.
- ⁸ *McCawley v R* [1920] UKPCHCA 1, [1920] AC 691, 703.
- ⁹ *ibid* 706.
- ¹⁰ *ibid* 704, 709.
- ¹¹ See Cheryl Saunders, *The Constitution of Australia, A Contextual Analysis* (Hart Publishing 2011) 50–58.
- ¹² See further [section E.2.c](#).
- ¹³ *Commonwealth Constitution*, ss 106, 107.
- ¹⁴ *Union Steamship Co v King* (1988) 166 CLR 8, 9–10; *Kable v Director of Public Prosecutions for NSW* (1995) 189 CLR 51, 70–76 (Dawson J); *Durham Holdings Pty Ltd v NSW* (2001) 205 CLR 399, 407–410; *Duncan v New South Wales* (2015) 89 ALJR 462, [36]–[40]; *Australia Acts 1986* (Cth), ss 2, 3.
- ¹⁵ *Union Steamship Co* (n 15) 10 (though see *Kable* (n 14) 71–76 (Dawson J).
- ¹⁶ See [section E](#), especially [E.1](#).
- ¹⁷ See Goldsworthy, *Parliamentary Sovereignty: Contemporary Debates* (n 4) ch 2.
- ¹⁸ Helen Irving, *To Constitute a Nation* (CUP 1999) 71. For anecdotal evidence of these ‘jealousies’, see Mark Twain, *Following the Equator* (Sovereign Classic 2014) 90.
- ¹⁹ Irving (n 18) 197; Official Record of the Proceedings and Debates of the Australasian Conventions Debates (Sydney, 4 March 1891) 24 (Sir Henry Parkes).
- ²⁰ *R v Kirby; Ex parte Boilermakers’ Society of Australia* (1956) 94 CLR 254.
- ²¹ *ibid* 277.
- ²² Official Report of the National Australasian Convention Debates (Adelaide, 22 March —5 May 1897) 169 (Isaacs); Alfred Deakin, *Commonwealth Parliamentary Debates* vol 8, 10967 (1902), quoted in Stephen Gageler, ‘Foundations of Australian Federalism and the Role of Judicial Review’ (1987) 17 Federal Law Review 162, 162.
- ²³ *Victoria v Commonwealth* (1975) 134 CLR 81, 118 (Barwick CJ), 182 (Mason J) (‘PMA Case’). See also Murray Gleeson, ‘Legal Oil and Political Vinegar’ (1999) 10 Public Law Review 108, 111; Michael Kirby, ‘Kitto and the High Court of Australia—Change and Continuity’ (The Sir Frank Kitto Lecture, University of New England Union, Armidale, 22 May 1998).
- ²⁴ *Commonwealth Constitution*, s 72.
- ²⁵ *Commonwealth Constitution*, s 75. Note also s 76, which allows additional original jurisdiction to be conferred by Parliament.
- ²⁶ *Commonwealth Constitution*, s 73.
- ²⁷ *Plaintiff S157/2002 v Commonwealth* (2003) 211 CLR 476, 482–83 [5] (Gleeson CJ), 505 [73] (Gaudron, McHugh, Gummow, Kirby and Hayne JJ) (with regards to s 75(v)).
- ²⁸ *Commonwealth Constitution*, s 75(v).

²⁹ 5 US 137 (1803). See further Lisa Burton, ‘Why These Three? The Significance of the Selection of Remedies in s 75(v) of the *Australian Constitution*’ (2014) 42 Federal Law Review 253.

³⁰ See further [section E.2.c](#).

³¹ (1951) 83 CLR 1.

³² *ibid* 262.

³³ *ibid* 258.

³⁴ *ibid* 262; 5 US 137 (1803).

³⁵ Ronald Sackville, ‘The Changing Character of Judicial Review in Australia: The Legacy of *Marbury v Madison*?’ (2014) Public Law Review 245.

³⁶ [Section C](#).

³⁷ See *Colonial Laws Validity Act 1865*, s 2.

³⁸ This may no longer be the case. See Geoffrey Lindell, ‘Why is Australia’s Constitution Binding? —The Reasons in 1900 and Now, and the Effect of Independence’ (1986) 16 Federal Law Review 29.

³⁹ *Amalgamated Society of Engineers v Adelaide Steamship Co Ltd* (1920) 28 CLR 129.

⁴⁰ *ibid* 151.

⁴¹ *ibid* 151–52.

⁴² *Victoria v Commonwealth* (1957) 99 CLR 575.

⁴³ *ibid* 429.

⁴⁴ Gageler, ‘Foundations of Australian Federalism and the Role of Judicial Review’ (n 22) 163.

⁴⁵ For example James Allan and Nicholas Aroney, ‘An Uncommon Court: How the High Court of Australia Has Undermined Australian Federalism’ (2008) 30 Sydney Law Review 245.

⁴⁶ [Section B](#).

⁴⁷ *Commonwealth Constitution*, ss 62, 64, 67, 68.

⁴⁸ See further [section D.1](#).

⁴⁹ *Commonwealth Constitution*, s 9.

⁵⁰ *ibid* ss 7, 27.

⁵¹ *ibid* ss 7 and 29.

⁵² *ibid* ss 10, 31.

⁵³ *ibid* ss 8, 30.

⁵⁴ *ibid* ss 7, 24.

⁵⁵ For example *Attorney-General (Cth); ex rel McKinlay v Commonwealth* (1975) 135 CLR 1, 46 (Gibbs J); *McGinty v Western Australia* (1996) 186 CLR 140, 280–84 (Gummow J); *Rowe v Electoral Commissioner* (2010) 243 CLR 1, [196]–[205] (Hayne J).

⁵⁶ Irving (n 18) 64, 71.

⁵⁷ See [section C](#).

⁵⁸ See, eg, *Commonwealth Constitution*, ss 51(ii), 92, 99, 117.

⁵⁹ For example ss 41 (voting rights), 51(xxxi) (‘just terms’ for the acquisition of property), 80 (jury trial), 116 (religious freedom), and 117 (equal treatment of non-State residents). Section 51(xxiiiA), inserted by amendment in 1946, prohibits Commonwealth laws with respect to medical or dental services from authorizing any form of civil conscription. See further and potentially ss 92 (freedom of movement between states) and 100 (right of state residents to use water from rivers). Sections 7 and 24 have recently been interpreted so as to protect voting rights, but that is almost certainly the result of modern conceptions rather than original design.

⁶⁰ Sections 41, 51 (xxxi), 80, 116, and 117 arguably protect aspects of federalism: see Keven Booker and Arthur Glass, 'The Express Rights Provisions: Form and Substance (or Opportunities Taken and Not Taken?)' in H P Lee and Peter Gerangelos (eds), *Constitutional Advancement in a Frozen Continent* (Federation Press 2009) 155. Note ss 41, 51 (xxxi), 51 (xxiiiA), 116, and 100 apply only to the Commonwealth.

⁶¹ This criticism has been made in relation to ss 41, 80, 116, and 117, but is disputed: Booker and Glass (n 60).

⁶² Enid Campbell, 'Civil Rights and the Australian Constitutional Tradition' in Carl Beck (ed), *Law and Justice: Essays in Honour of Robert S. Rankin* (Duke UP 1970) 295, 296–98.

⁶³ For example Hugh Collins, 'Political Ideology in Australia: The Distinctiveness of a Benthamite Society' (1985, Winter) *Daedalus* 147.

⁶⁴ Paul Finn, *Law and Government in Colonial Australia* (OUP 1987) 3; Campbell (n 62) 295, 303; Gageler (n 22) 171, 173.

⁶⁵ For example Official Record of the Debates of the Australasian Federal Convention (Melbourne, 2 March 1898) 1770–71 (Barton).

⁶⁶ Leslie Zines, *Constitutional Change in the Commonwealth* (CUP 1988) 34–37; Nicholas Aroney, 'A Seductive Plausibility: Freedom of Speech in the Constitution' (1994) 18 *University of Queensland Law Journal* 249, esp 261–62; Gageler (n 22) 170–72.

⁶⁷ W Harrison Moore, *The Constitution of the Commonwealth of Australia* (John Murray 1902) 329.

⁶⁸ Official Record of the Debates of the Australasian Federal Convention (Melbourne, 27 January 1898) 240; Official Record of the Debates of the Australasian Federal Convention (Melbourne, 8 February 1898) 664–70. See further and generally George Williams, 'Race and the Australian Constitution' (2013) 28 *Australasian Parliamentary Review* 4; Irving (n 18) esp 162; Hilary Charlesworth, *A Constitutional Bill of Rights: North American Experience and Australian Prospect* (unpublished SJD thesis, Harvard University 1985) 100, 109, 122–32; John La Nauze, *The Making of the Australian Constitution* (Melbourne UP 1972) 231–32.

⁶⁹ See Jeffrey Goldsworthy, 'Introduction' Tom Campbell, Jeffrey Goldsworthy, and Adrienne Stone, eds, *Protecting Rights Without a Bill of Rights, Institutional Performance and Reform in Australia* (Ashgate 2006) 1–3.

⁷⁰ These trends are described and discussed in Jeffrey Goldsworthy, 'Losing Faith in Democracy' (2015) May *Quadrant* 9.

⁷¹ *Human Rights Act 2004* (ACT).

⁷² *Charter of Human Rights and Responsibilities Act 2006* (Vic).

⁷³ See generally Will Bateman and James Stellios, 'Chapter III of the *Constitution*, Federal Jurisdiction and Dialogue Charters of Human Rights' (2012) 36 *Melbourne University Law Review* 1.

⁷⁴ See further George Williams and Lisa Burton, 'Australia's Exclusive Parliamentary Rights Model of Rights Protection' (2013) 34 *Statute Law Review* 58.

⁷⁵ H P Lee, 'The Implied Freedom of Political Communication' in H P Lee and George Winterton (eds), *Australian Constitutional Landmarks* (CUP 2010) 391.

⁷⁶ *Australian Capital Television v Commonwealth* (1992) 177 CLR 106; *Nationwide News Pty Ltd v Wills* (1992) 177 CLR 1.

⁷⁷ See further Lawrence Claus, 'Implication and the Concept of a Constitution' (1995) 69 *Australian Law Journal* 887.

⁷⁸ John Toohey 'Government of Laws, and Not of Men?' (1993) *Public Law Review* 158, 170. See also *Leeth v Commonwealth* (1991) 174 CLR 455 (Deane and Toohey JJ).

⁷⁹ J J Doyle, ‘Constitutional Law: “At the Eye of the Storm”’ (1993) 23 *University of Western Australia Law Review* 15; Michael Kirby ‘Courts and Policy: The Exciting Australian Scene’ (1993) 19 *Commonwealth Law Bulletin* 1794.

⁸⁰ See, eg, Jeffrey Goldsworthy, ‘Implications in Language, Law and the Constitution’ in Geoffrey Lindell (ed), *Future Directions in Australian Constitutional Law* (Federation Press 1994) 150; Jeffrey Goldsworthy, ‘The High Court, Implied Rights and Constitutional Change’ (March 1995) 39 *Quadrant* 46.

⁸¹ See, eg, the disagreements between members of the Court in *McGinty* (n 55) 200, 216 (Toohey J), 222 (Gaudron J); 232, 235 (McHugh J), 280–81, 284, 289 (Gummow J); *Theophanous v Herald and Weekly Times Ltd* (1994) 182 CLR 104, 194 (Dawson J), 202 (McHugh J).

⁸² (1997) 189 CLR 520.

⁸³ For a recent statement of its scope, see *McCloy v New South Wales* (2015) 257 CLR 178, 228–29 [119] (Gageler J).

⁸⁴ *Rowe* (n 55) 19 [22] (French CJ). See also *Roach v Electoral Commissioner* (2007) 233 CLR 16 ;

⁸⁵ See, eg, *Brown v Classification Review Board* (‘*Rabelais Case*’) [1998] FCA 319, (1998) 154 ALR 67 (‘*Rabelais Case*’). See further Dan Meagher, ‘What Is “Communication”? The Rationale and Scope of the Implied Freedom of Political Communication’ (2004) 28 *Melbourne University Law Review* 438; Adrienne Stone, ‘Rights, Personal Rights and Freedoms’ (2001) 25 *Melbourne University Law Review* 374, 378–89.

⁸⁶ *Mulholland v Australian Electoral Commission* (2004) 220 CLR 181; *Wainohu v State of New South Wales* (2011) 243 CLR 181 [112] (Gummow, Hayne, Crennan and Bell JJ, French CJ and Kiefel J agreeing), [186] (Heydon J); *Tajjour v New South Wales* (2014) 88 ALJR 860, eg, [46] (French CJ), 886 [95] (Crennan, Kiefel and Bell JJ). Note, freedom of association may be indirectly protected to some extent by the implied freedom of political communication.

⁸⁷ *Polyukhovich v Commonwealth* (1991) 172 CLR 501 (provided that such laws do not contravene Ch III).

⁸⁸ *Leeth* (n 78); *Kruger v Commonwealth* [1997] HCA 27, (1996) 190 CLR 1 (again, provided that such laws do not contravene Ch III).

⁸⁹ *McKinlay* (n 55); *McGinty* (n 55). cf the references to equality of participation in *McCloy* (n 83) [45], [271].

⁹⁰ See section D.1.

⁹¹ John M Finnis, ‘Separation of Powers in the Australian Constitution—Some Preliminary Considerations’ (1968) 3 *Adelaide Law Review* 159.

⁹² *New South Wales v Commonwealth* (1915) 20 CLR 54 (‘*Wheat Case*’); *Boilermakers’ Case* (n 20).

⁹³ Except perhaps s 80, but see the discussion in section E.1 above.

⁹⁴ *Nicholas v The Queen* (1998) 193 CLR 173, 221 (McHugh J). See also (1998) 193 CLR 173, 232–33 (Gummow J), 254 (Kirby J), 277 (Hayne J); *Chu Kheng Lim v Minister for Immigration* (1992) 176 CLR 1, 36–47, 53; *Deputy Commissioner of Taxation v Richard Walter Pty Ltd* (1994) 183 CLR 168, 205 and cases cited therein (Deane and Gaudron); *Federal Commissioner of Taxation v Futuris* (2008) 237 CLR 146 [65] (in reference to ‘ultimate fact[s]’).

⁹⁵ *Lim* (n 94) 27 (Brennan, Deane and Dawson JJ); *Re Woolley* (2004) 225 CLR 1, 23 [53] (McHugh J).

⁹⁶ *Polyukhovich* (n 87) 607 (Deane J). See also (1991) 172 CLR 501, 689 (Toohey J), 703 (Gaudron J); *Dietrich v The Queen* (1992) 177 CLR 292, 326 (Dean J); *Lim* (n 94) 26–27 (Brennan, Deane and Dawson JJ); *Leeth* (n 78) 486–87 (Deane and Toohey JJ).

⁹⁷ *Plaintiff S10/2011 v Minister for Immigration and Citizenship* (2012) 246 CLR 636, [117] (Heydon J). See further [section E.2 b\)](#) and [c\)](#).

⁹⁸ *Thomas v Mowbray* (2007) 233 CLR 307, 330 [18] (Gleeson CJ). This is amply demonstrated by the series of cases which upheld the constitutional validity of legislation that provided for the extra-judicial detention of asylum seekers, eg, *Lim* ([n 94](#)).

⁹⁹ *Nicholas* ([n 94](#)), esp 189 (Brennan CJ); *Deputy Commissioner of Taxation v Richard Walter Pty Ltd* (1994) 183 CLR 168, 205 and cases cited therein (Deane and Gaudron JJ).

¹⁰⁰ *Federated Sawmill, Timberyard & General Woodworkers' Employees' Association (Adelaide Branch) v Alexander* (1912) 15 CLR 308, 313 (Griffith CJ).

¹⁰¹ (1996) 189 CLR 51.

¹⁰² See the summary of criticisms in Jeffrey Goldsworthy, 'Kable, Kirk and Judicial Statesmanship' (2014) 40 Monash University Law Review 75, 77–83.

¹⁰³ *Fardon v Attorney-General (Qld)* (2004) 223 CLR 575, [15] (Gleeson CJ), [101] (Gummow J), [195]–[198] (Hayne J); *Forge v Australian Securities and Investments Commission* (2006) 228 CLR 45, [40] (Gleeson CJ), [244] (Heydon J); *Gypsy Jokers Motorcycle Club Inc v Commissioner of Police* (2008) 234 CLR 532, [159] (Crennan J).

¹⁰⁴ *Baker v The Queen* (2004) 223 CLR 513, [79]–[82] (Kirby J); *Forge v Australian Securities and Investments Commission* (2006) 228 CLR 45 [63] (Gummow, Hayne and Crennan JJ); *Kirk v Industrial Court of New South Wales* (2010) 239 CLR 531 [96].

¹⁰⁵ *International Finance Trust Co Ltd v New South Wales Crime Commission* (2009) 240 CLR 319, esp. 48 [70] (French CJ); *South Australia v Totani* (2010) 242 CLR 1; *Wainohu* ([n 86](#)). See also Goldsworthy, 'Kable, Kirk and Judicial Statesmanship' ([n 102](#)) 87–89.

¹⁰⁶ James Spigelman, 'The Centrality of Jurisdictional Error' (2010) 21(2) Public Law Review 77, 80. See the discussion of *Kirk v Industrial Court of New South Wales* in [section E.2.c\)](#).

¹⁰⁷ Anne Twomey, 'The Defining Characteristics of Constitutional Expressions and the Nationalisation of the State Court System' (2013) 11 The Judicial Review 233, 239.

¹⁰⁸ *ibid* 242–44.

¹⁰⁹ Note, federal judges are also 'officers of the Commonwealth', and so s 75(v) extends beyond judicial review of *executive* action.

¹¹⁰ *S157* ([n 27](#)) 511 [103]. See also *Bodruddaza v Minister for Immigration and Multicultural Affairs* (2007) 288 CLR 651.

¹¹¹ See James Stellios, 'Exploring the Purposes of s 75(v) of the *Constitution*' (2011) 34 University of New South Wales Law Journal 70.

¹¹² By listing certain remedies which were established at common law, and available on certain grounds.

¹¹³ This is not to express a particular opinion as to the so-called *ultra vires* debate.

¹¹⁴ Stanley A De Smith, *Judicial Review of Administrative Action* (3rd edn, Stevens 1973) 3.

¹¹⁵ See Mark Aronson and Matthew Groves, *Judicial Review of Administrative Action* (5th edn, Lawbook 2013) [3.60].

¹¹⁶ *ibid* ch 11.

¹¹⁷ *ibid* ch 7, esp. 398.

¹¹⁸ *ibid* chs 5 and 6.

¹¹⁹ *ibid* 775, 787–94, 795–96, 805–06.

¹²⁰ *ibid* ch 17.

¹²¹ Note, this was strictly as obiter.

¹²² See [section E.2.b\)](#).

¹²³ James Stellios, *Zines's The High Court and the Constitution* (6th edn, Federation Press 2015) 297–98; Stephen Gageler, 'The Constitutional Dimension' in Matthew Groves (ed), *Modern Administrative Law in Australia: Concepts and Contexts* (CUP 2014); *Condon v Pompano Pty Ltd* (2013) 87 ALJR 458, [177]–[194]; cf Nye Perram, 'Project Blue Sky: Invalidity and the Evolution of Consequences for Unlawful Administrative Action' [2012] Federal Judicial Scholarship 35. See also Oscar Roos, 'An Alternative (Partial) Justification for the Holding in *Kirk*' (2015) 26 Public Law Review 111.

¹²⁴ Oscar Roos, 'Accepted Doctrine at the Time of Federation and *Kirk v Industrial Court of New South Wales*' (2013) 35 Sydney Law Review 781; Nicholas Gouliaditis, 'Privative Clauses: Epic Fail Critique and Comment' (2010) 34(3) Melbourne University Law Review 870.

¹²⁵ See Goldsworthy, '*Kable, Kirk* and Judicial Statesmanship' (n 102).

¹²⁶ See, eg, Trevor Allan, *The Sovereignty of Law: Freedom, Constitution and Common Law* (OUP 2013); David Dyzenhaus, *The Constitution of Law: Legality in a Time of Emergency* (CUP 2006).

¹²⁷ Goldsworthy, *Parliamentary Sovereignty: Contemporary Debates* (n 4) ch 4.

¹²⁸ *ibid* ch 2.

¹²⁹ See (n 14), (n 15).

¹³⁰ D Pearce and R Geddes, *Statutory Interpretation in Australia* (6th edn, LexisNexis Butterworths 2006) 165; James Spigelman, *Statutory Interpretation and Human Rights* (University of Queensland Press 2008) 23.

¹³¹ Dan Meagher, 'The Common Law Principle of Legality' (2013) 38 Alternative Law Journal 209.

¹³² *Momcilovic v The Queen* (2011) 245 CLR 1, 47 [45].

¹³³ *Lange v Australian Broadcasting Authority* (1997) 189 CLR 520; Jeffrey Goldsworthy, 'The Constitution and its Common Law Background' (2014) 25 Public Law Review 265. See further Lisa Burton Crawford, *The Rule of Law and the Australian Constitution* (Federation Press 2017).

¹³⁴ (1952) 86 CLR 169, 179.

CHAPTER 16

REPUBLICANISM

JOHN M WILLIAMS

A. INTRODUCTION

ON Thursday 29 October 1795 John Boston, a free settler and self-proclaimed radical, was informed that his fine sow had been shot in a close belonging to Captain Foveaux of the New South Wales Corps.¹ During the ensuing civil trial involving the demise of the hapless swine, Lieutenant McKellar informed the Court that the pig was shot, not merely because of its destruction of property, but because:

Fences or fastenings were no security against the levelling practices of this animal—practices, which I conclude are carefully and industriously inculcated in every part of the household of its Master.²

John Boston's 'levelling practices' were well established before he arrived in the convict colony in Sydney. As a radical republican, he had been involved in the fermentation of the cause in Birmingham in 1791. Consistent with his reputation on the voyage to Australia he reputedly drank toasts to the damnation of the King, his family, and other monarchs.

The story of the demise of Boston's pig does not expose a constitutional fissure between colonial Australia and the Mother Country. The incident may have been lost in the sweep of early colonial history if it was not for the leading historian of Australian republicanism, Mark McKenna and his laconic pronouncement. According to McKenna, this 'was the shooting of Australia's first republican martyr—John Boston's pig'.³

While whimsical in itself, this introductory tale is significant in that it highlights one of the most obvious streams of Australian republicanism. That is, a radical, anti-monarchical, element that has permeated some parts of the historical, political, and constitutional narrative. It is not, however, the only or indeed the most substantial part of the narrative. To concentrate on it is to exclude a wealth of other perspectives. This chapter will discuss and evaluate the various approaches to republicanism in Australia. As will become obvious, the question is much broader than the technical constitutional matters surrounding the severing of the monarchical ties to the United Kingdom and in its place the identification of an indigenous alternative. The relative powers of the new Head of State, their appointment, and possible removal are but one chapter in a much richer compendium. At the very least Australian republicanism encompasses what may be characterized as the 'sentimental republic', the legal or constitutional aspects of the republic, as well as what may loosely be termed the theorized republic. Even within these broad categorizations there are strong cross currents and debates that make for a complex, rich, and changing account.

This chapter is divided into four main parts. The first will briefly outline Australia's current monarchical constitution. It will highlight the textual ties to the monarchy and those aspects that confirm Australia's status as something less than constitutionally independent. While the text itself manifests a role and function of these connections, they also speak to significant assumptions that inform the drafting of the Australian Constitution in the 1890s.

The second part deals with three faces of Australian republicanism. It explores a number of manifestations of Australian independence that have shaped the narrative that has simultaneously advanced and retarded the republican debate. What will be evident is that the mainstay of Australian republicanism is neither legal nor technical. It is an aspect of republicanism that is more often to be found in the sentimental and theoretical than in the constitutional arrangements to be put in place to announce the establishment of the Republic of Australia. Not surprising, however, is that legal or constitutional issues are interspersed with events of the 1930s and 1975 that continue to reverberate throughout the republican debate. These incidents, outlined later in the chapter, have dominated the contemporary legal literature on the republic and provide an axis along which the debate is often considered.

The last part will explore the technical steps and alterations that have emerged with the republican debate in the late 1990s. It will highlight key influences on this debate and in particular the quest for a 'minimalist' republic. In the final section, the chapter will briefly investigate the future direction of Australian republicanism.

B. AUSTRALIA'S MONARCHICAL CONSTITUTION

Drafted over a decade in the 1890s, the Australian Constitution was formally the product of a series of constitutional Conventions with representation from the various colonies. The process was notable for a number of features that placed it at the forefront of constitutional making both then and now. The delegates to the drafting Conventions were largely elected by the voters of the colonies, or appointed by the colonial Parliaments in the case of the 1890 Conference and 1891 Convention and the Crown colony of Western Australia.⁴ The press were admitted to the Conventions thus ensuring a lively reportage of the procedures and the deliberations of the delegates.⁵ The electorate, and in the case of South Australia and Western Australia this included women who had by 1895 and 1899 respectively won the franchise,⁶ voted at referenda on the draft Bill before it was dispatched to Whitehall and the Imperial Parliament for consideration and passage.⁷

The decade long deliberations necessitated the formation of well-organized associations or leagues that paralleled the formal Conventions. Often these associations kept alive the federation movement at times when the political process was distracted or uninterested.⁸ The federation movement was also an opportunity for individuals to join the various groups that advocated for and against various models that were proposed to establish the federal compact. Significantly, and not unrelated to the timing of federation, was the emergence of an Australian nationalism. The construction of the Constitution paralleled the growth of a national sentiment and can be chronicled at the time in Australian art, culture, and even sport.⁹ Many individuals started to think like 'native born' Australians where 'home' was Terra Australis and not unreflexively the United Kingdom. The 'coming Commonwealth', to borrow the title of Robert Garran's federation primer, required as a minimum precondition Australians to conceive of themselves as having a common national identity and purpose. As Garran noted on the eve of the 1897 Adelaide Convention:

But though the Constitution is much, it must not be supposed that it is everything. It is, in itself, merely the means to an end; merely the dead mechanical framework of national unity. The life and soul of the union must be breathed into it by the people themselves. When a Constitution has been framed and adopted, the work of Australian union will have been begun, not finished. The nation will be a nation, not of clauses and sub-clauses, but of men and women; and the destiny of Australia will rest with the Australian people rather than with the Australian Constitution.¹⁰

Critically intertwined with the federal movement were those who conceived of Australia's future as independent of the Empire. Undoubtedly, those who harboured republican sentiments were fewer in number than those whose ambition ran no further than greater political autonomy and the practical benefits of union. It was the case that for an overwhelming majority of colonial Australians the Commonwealth was unquestionably 'one indissoluble Federal Commonwealth under the Crown of the United Kingdom of Great Britain and Ireland'.¹¹ Others took a different view.

A notable voice who proposed that there was an additional republican step to be taken during the federation debate was the Queensland Chief Justice Sir Charles Lilley. The former Premier turned jurist made public his views about the future of Australia in a newspaper interview in January 1892. 'I am a democrat', he told the *Pall Mall Gazette*, 'and Australia is a democratic country'. 'The longer you live in it', he continued:

the more you will see that Australians are democrats, and like the aboriginal democrats, they will not submit to monarchical rule. They are, in principle and feeling, Republicans. The rule of the people, and the will of the people is the guiding principle of Australian life. They are free, old people and any attempt to govern them along Imperialistic and monarchical lines will be a failure.¹²

It is the origins, rather than the tone, of these predictions that underscore their importance. Unlike the usual calls for a republican future from radical associations, newspapers, or ratbags, the chambers of the Chief Justice of Queensland was an unlikely source.¹³ While Lilley linked federation with republicanism, he was not a delegate to the drafting Conventions and thus was on the constitutional perimeter. Yet, it is a notable intervention.

For some delegates to the drafting Conventions the spectre of creeping republicanism only highlighted the need for careful negotiations and clear language and intent. What the new union should be called, for instance, prompted some consternation. In his draft Constitution of 1891, Charles Cameron Kingston, the future Premier of South Australia, opted for 'The Union' as the name of the federation of the colonies.¹⁴ Andrew Inglis Clark, the Attorney-General of Tasmania, in his draft provided for the 'Federal Dominion of Australasia'.¹⁵ However, it was the embrace of the term 'Commonwealth' that caused a degree of concern amongst some. At core, it was the

perception that this was an inadvertent embrace of the republican sentiment. The origin of the suggestion appears to have been Sir Henry Parkes at the 1891 Sydney Convention. According to Alfred Deakin, the proposal 'was received however with scanty favour by the Committee because of the flavour of Republicanism and the suggestion of Separation that it was considered to convey'.¹⁶ During a lengthy debate, the delegates considered the implications of the term. In one exchange its Cromwellian overtones caused Sir John Downer, the conservative from South Australia, to pause:

SIR JOHN DOWNER: Commonwealth is a very nice word indeed, but it is very important to recollect, as the hon. member, Sir Henry Parkes, pointed out at a somewhat early stage of the proceedings, that we have to consider, not only the technical meaning of the law, but also the popular understanding of the law, and the popular understanding of the word 'commonwealth' is certainly connected with republican times.

MR. DEAKIN: No!

SIR JOHN DOWNER: It is, in my opinion, connected with republican times, and it is certainly disconnected with that loyalty which we all, I am sure, not only profess, but very honestly feel towards the Crown.

MR. DEAKIN: The most glorious period of England's history!

MR. CLARK: Hear, hear!

DR. COCKBURN: Was it under the Crown?

MR. DEAKIN: There was then no Crown!

SIR JOHN DOWNER: It may have been the most glorious period; but as my hon. friend, Mr. Baker, says, it certainly was not the union under the Crown, which we are all of us most desirous of bringing about at the present time.¹⁷

The distress of some delegates appeared to be soothed by recourse to a dictionary definition of 'Commonwealth'. Mr James Walker, the New South Wales delegate, went further and invoked no greater standard than William Shakespeare's *Henry V* as a reliable confirmation for the term and its now benign currency:

Hear him debate of commonwealth affairs, You would say it hath been all in all his study.¹⁸

In addition to these endorsements, many delegates may have made the connection with the much-admired work by James Bryce, the *American Commonwealth*. As Edmund Barton's journalist brother, G B Barton, informed Bryce 'I fancy the Convention adopted the title "Commonwealth" from your pages'.¹⁹

Notwithstanding the overwhelming protestations of loyalty to the monarch—the delegates gave three cheers for the Queen when a telegram was received from her in 1897—there were some who held republican sympathies. For Inglis Clark republicanism was associated with democratic governance and had an American lustre.²⁰ Others like George Dibbs appeared to enjoy trailing his republican tendencies as a means of riling his political opponents such as Sir Henry Parkes. He warned delegates of the dangers of connecting the new Commonwealth too closely to the old Empire. This was especially the case if Australia was to find itself involved in an Imperial war. As one 'possessing a slight tinge of republican notions', he informed the Convention, he believed in the future of Australia as an independent nation as was 'prophesied' by the poets fifty years before.²¹

Without doubt, the most obvious elements of the republican cause, the severing of ties with the United Kingdom, was not within the compass of possibility for the framers of the Australian Constitution. When issues of limiting appeals from the proposed High Court to the Privy Council in London were raised, the inevitable retort by those arguing for its retention was that this was an attempt to 'cut the painter' between Australia and the Crown.²² However, it was the case that many of the framers were eager students of comparative federal systems and were cognizant of republican constitutions as they related to federalism. The example most closely examined was that of the United States of America. Inglis Clark's American obsession prompted him to advance the structure, and often the wording, of that Constitution.²³ For Inglis Clark, and indeed other framers, the republican understanding of the checks and balances associated with federalism was one of its chief attractions. Thus, for example, it was possible for Patrick Glynn from South Australia, in the context of a debate about the melding of responsible government with federalism, to say that delegates were in reality constructing a 'crowned republic'.²⁴

As will be evident from the above discussion it was evident to all, even those delegates with republican inclinations, that the Australian nation would remain firmly within the Imperial coterie. The emerging nation, and the Constitution, bear the hallmarks of a colonial document. This is not to suggest that the framers, and indeed the public, did not envisage greater independence with the coming federation. However, the underlying assumptions that informed the drafting of the Constitution, as Cheryl Saunders has cogently argued, are evident from the text and structure.²⁵ The document rests on three significant assumptions. The first of these assumptions was that the country and its Constitution would not be fully independent of the United Kingdom. Secondly, the system of government would be informed by the strictures of a constitutional monarchy. Finally, the Queen's representative would deal only with the Commonwealth sphere of government. This latter point is dictated by the federal nature of the Constitution that predominately deals with Commonwealth matters. The federal context remains an ongoing consideration when any proposed move to a republic is discussed.

These underlying assumptions are redolent in the text of the Constitution and often form the basis for the technical discussion about the amendments that will be required for the move to a republican Australia. That the Australian Constitution was the Act of the Imperial Parliament only served to emphasize colonial status and the ongoing authority of Britain.²⁶ The theoretical foundations of the binding authority of the Constitution have changed since 1901; however, in many critical areas the text identifies the dependency upon which the Constitution was founded. A number of examples serve to highlight the basal assumptions.

The Preamble, for example, to the Imperial Act states that the Commonwealth was to be a union ‘under the Crown’. For the constitutional authors and scholars, John Quick and Robert Garran, this was:

a concrete and unequivocal acknowledgement of a principle which pervades the whole scheme of government, harmony with the British Constitution and loyalty to the Queen as a visible central authority uniting the British Empire with its multitudinous peoples and its complex divisions of power.²⁷

The most obvious monarchical elements of the Australian Constitution are associated with the Queen and her Representative in the Commonwealth. The powers of the Governor-General and their relationship to the monarch are outlined in section 2 of the Constitution that states that:

A Governor-General appointed by the Queen shall be Her Majesty’s representative in the Commonwealth, and shall have and may exercise in the Commonwealth during the Queen’s pleasure, but subject to this Constitution, such powers and functions of the Queen as Her Majesty may be pleased to assign to him.

Other consequential sections are linked with the office of the Governor-General such as salary and its terms (sections 3 and 4). Subject to the Constitution, the British government, through the *Letters Patent*, could exercise a degree of control over the actions of the Australian government at federation.

The most explicit examples of the status of the new Commonwealth in regard to the Imperial Crown are those sections limiting the legislative authority of the Australian Parliament. The Imperial oversight provisions are found in sections 59 and 60 of the Constitution. They state that:

59. The Queen may disallow any law within one year from the Governor-General’s assent, and such disallowance on being made known by the Governor-General by speech or message to each of the Houses of the Parliament, or by Proclamation, shall annul the law from the day when the disallowance is so made known.

60. A proposed law reserved for the Queen’s pleasure shall not have any force unless and until within two years from the day on which it was presented to the Governor-General for the Queen’s assent the Governor-General makes known, by speech or message to each of the Houses of the Parliament, or by Proclamation, that it has received the Queen’s assent.

In explaining the existence of this limitation on parliamentary and executive power, Quick and Garran walked a fine line. They simultaneously acknowledged the obvious wisdom of any representative of the Queen in Australia, who until 1930, would be recruited from the ranks of the British establishment, and the need for the Imperial government to exercise the power of disallowance or veto when a matter was subsequently found to be contrary to ‘Imperial and international relations’.²⁸

Other sections of the Constitution also serve to highlight a colonial predisposition. The role of the ‘commander and chief of the naval and military forces of the Commonwealth’ are vested in the Governor-General as the Queen’s representative. Commenting on the situation Quick and Garran noted that ‘[t]his is one of the oldest and most honoured prerogatives of the Crown, but it is now exercised in a constitutional manner’.²⁹ Section 71, dealing with the much debated issue of the finality of the High Court’s decisions, was concluded by allowing appeals in certain cases to the Queen’s Council provided the Court issued a certificate.³⁰

A final section that highlights the colonial status of Australia also serves to identify the evolving nature of independent legislative power. Section 51(xxxviii) of the Constitution states that:

The exercise within the Commonwealth, at the request or with the concurrence of the Parliaments of all the States directly concerned, of any power which can at the establishment of this Constitution be exercised only by the Parliament of the United Kingdom or by the Federal Council of Australasia.

The actual scope of (and need for) this section in 1900 was unclear to Quick and Garran who described it as a ‘drag-net’ that presumably caught a limited number of instances.³¹ What is clear is that at federation there was a view that there remained some legislative authority that was not within the capacity of the Commonwealth and States.³² The section remained largely dormant for the greater part of the century following federation. As the High Court noted in *Port Macdonnell Professional Fishermen’s Association Inc v South Australia* the section was subject to some interpretative ‘inhibitions’ given the ‘status of the Commonwealth itself within the British Empire’.³³ However, by at least 1989 (if not before), the section proved to be one of the foundations for greater independence of Australia. The development of the nation, and the ‘silent operation of constitutional principles’ that accompanied it, meant that section was given a broad interpretation fulfilling ‘a national purpose of a fundamental kind’.³⁴ The *Australia Act 1986* (Cth) relied upon the section for its operation and force.³⁵

At federation, the colonial status of the Australian Constitution was confirmed. Notwithstanding the muted republican beliefs of some of the delegates, the overwhelming loyalty to Empire meant 1901 was not to be Australia's republican moment.

C. THREE FACES OF AUSTRALIAN REPUBLICANISM

1. The Sentimental Republic

The history of Australian republicanism has furnished many descriptors, phrases, and juxtapositions. In one of the earliest calls for freedom and independence, John Dunmore Lang predicted 'the coming event' in 1850.³⁶ He was not alone amongst Australia's early public figures in attempting to rally others to what for many must have seemed a quixotic cause.³⁷ However, throughout Australian history, many have highlighted the stark choice that Australians faced when confronting the choice of governmental structures. It was 'Australia or the monarchy'³⁸ or the 'Crown or Country'.³⁹ Others analysed the history of Australia as the story of the 'Captive Republic'.⁴⁰

The modern republican debate has also highlighted that Australian political history is not entirely monarchical and parliamentary, but rather there remains what Tom Keneally has called 'the *other* Australian sentiment'.⁴¹ That Australians have long aspired to be more than just 'A New Britannia in Another World!'⁴² is well expressed by Marie E J Pitt in her poem *Ave, Australia*:

Fling out her flag to the world and the wrong in it!
Thunder her name to the dawn that shall be!
Ave, Australia! Name with a song in it –
Name of the free!⁴³

For Henry Lawson the issue was put into verse in his 1887 anthem to the cause, *A Song of the Republic*:

Sons of the South, awake! arise!
Sons of the South, and do.
Banish from under your bonny skies
Those old-world errors and wrongs and lies.
Making a hell in a Paradise
That belongs to your sons and you.

Lawson highlighted the choice that confronted Australians in the pre-Federation period. It was between 'The Old Dead Tree and the Young Tree Green'.⁴⁴

The language and discourse of Australian republicanism is evident in many facets of Australian culture including literature and art. In terms of political culture, Australian republicanism has strong democratic and egalitarian elements.⁴⁵ As W K Hancock noted in 1930, Australian democracy is a fusion of egalitarianism, ideals of justice, and appeals to the state as an instrument of self-realization.⁴⁶

Evidence of this egalitarianism may be spotted as early as the 1850s in the goldfield series of S T Gill with its underlying proletarian humour.⁴⁷ The most prominent historical link with Australian republicanism was that associated with radical nationalism. As C S Blackton notes:

A shrewd on-the-spot observer in the period of the eighties [1880s] would have agreed that if Australia's future was to be shaped by Australian nationalists, it would most likely turn out to be an egalitarian republic with few ties to the British Empire. The most virile force in nationalism had been radical republicanism, egalitarian and often anti-British to a degree which prophesied a future declaration of independence.⁴⁸

However, as Russel Ward⁴⁹ and Humphrey McQueen⁵⁰ have observed, such nationalism was often linked to extreme racism. Thus from the pen of Henry Lawson could come the radical *A Song of the Republic* and *Faces in the Street* as well as the easy racism of *For Australia* and *The Vanguard*. The pages of the radical journal the *Bulletin* advocated a white man's republic. However, it was not alone in holding views on race and protectionism. Indeed, by the standards of the time, apart from its often ill-defined republican tendencies, the *Bulletin* deviated little from the norm.⁵¹ Moreover, Australian nationalism of the time was generally blind to the role and contribution of women.⁵²

For republicans of the ilk of Geoffrey Dutton and Donald Horne, the imagined republic of the post-Second World War Australia was essentially a matter of establishing the new national identity. Dutton, who like Horne, became the standard bearer of the modern republicans of the 1960s framed the debate as a question between the monarchy and the future direction of Australia. In the preface to his 1966 collection *Australia and the Monarchy*,

Dutton recounted what he believed was the great Australian indifference that surrounded the national discussion. 'It is a remarkable possibility' he wrote:

that foreigners may give more thought to Australia's relation to the Monarchy than most Australians do. Over the years many Australians must have found themselves laboriously attempting to explain to foreigners the fact that we are independent but also subjects of the British Queen. Every year it gets more difficult, as the Commonwealth totters to pieces, while Australians become, if anything more and more indifferent to the whole issue. This is the most difficult thing of all to explain to foreigners.⁵³

For his part, Horne was less concerned with the perceptions of visiting foreigners and more consumed by the dead hand of the monarchy and its supporters on Australian identity. In typical pungent prose he declared that:

The Australian monarchists matter because they occupy the extreme position in Britishry. They are the leftovers of what, for most of our history, has been one of most effective public ideologies among Australians who have been connected with decisions and trends—the ideology of Britishry and of 'The Empire'. These were the official beliefs of the nation.⁵⁴

Not even the rising indifference to the Crown and waning authority of the ideological mindset of 'The Empire', could displace the hefty constitutional ballast provided by the amendment mechanism. Writing in the same publication, Zelman Cowen outlined the prospects for change:

The electorate has shown little enthusiasm for constitutional alterations of any sort, and measures which touch the emotions as any proposal to establish a republic would, are not very likely, certainly at the present time, to surmount the formidable hurdles set up by the amendment clause of the Commonwealth Constitution.⁵⁵

The judgment of Cowen in the 1960s has held true for more than fifty years.

The voluminous literature that accompanies Australian republicanism since the 1980s has generally highlighted the path to the Republic of Australia with titles such as 'a Republican manifesto'⁵⁶ or 'monarchy to republic'.⁵⁷ Indeed, there appears to be no shortage of scholars and authors willing to provide blueprints, calls to arms, laments, and rebukes.⁵⁸

The notion that the Republic of Australia resides in the sentimental, and at times emotional, appeal to independence or justice is not remarkable. The success of the federation movement relied as much on Australians thinking of themselves as Australians as at the end on the hard-edged political pragmatism. For Malcolm Turnbull, the then head of the Australian Republican Movement, and future Prime Minister, the republic was the great unfinished business in the constitutional landscape. Writing in 1993 he said:

Yet so long as our Constitution provides that whoever sits on the throne of Great Britain is to be our Head of State, our progress to independence is incomplete. It is a sentence without a full stop. It is like a fence with all the palings painted but one. It is an unfinished work.

The cause of the Australian republic is more than just a patriotic ideal. It is not simply the legitimate national aspiration which demands that every office under our Constitution should be filled by Australian citizens who owe their first allegiance to this country and no other.⁵⁹

The history of the republican movement has often emerged as a minor voice in a larger call for change. The push for self-government of the colonies produced an opportunity for republicans to raise the spectre of independence. Modern Australian republicans have generally eschewed the radicalism of their forebears who linked the republic to sweeping social change. With notable exceptions the republican aspirations have fixated upon the relationship between the Australian people and the constitutional origins of the Head of State. By the 1990s it was a sentimental appeal to an Australian identity, rather than fundamental constitutional renewal associated with republican thought, that had come to dominate the debate. As the then Prime Minister Paul Keating outlined when announcing that Australia would consider the question of the republic in 1995. He said:

In proposing that our Head of State should be an Australian we are proposing nothing more than the obvious. Our Head of State should embody and represent Australia's values and traditions, Australia's experience and aspirations. We need not apologise for the nationalism in these sentiments, but in truth they contain as much commonsense as patriotism.⁶⁰

The sentimental republic has fundamentally acted as a reason for change. The radicalism and fury associated with earlier republicanism has drifted into a form of benign nationalism that encompasses a desire for symbolic independence from the Old World. As will be discussed this motivation is largely focused on the Head of State at the expense of other questions relating to constitutional renewal within a republican structure.

2. The Constitutional Republic

The events of 1975 and the dismissal of the Whitlam government by the Governor-General Sir John Kerr looms large in any account of post-war Australian republicanism. The election of the Whitlam Labor government in December 1972, after twenty-three years of unbroken conservative rule, signalled a dramatic change in tone and direction in Australian politics. Notwithstanding a workable majority in the House of Representatives, the

government did not command a majority in the Senate. The passage of legislation, including financial measures, was subject to the political judgment of the government's opponents in the upper House. Faced with the legislative impasse Whitlam called a double dissolution election in May 1974 and the government was returned, however, without a majority in the Senate. The Coalition changed leaders in March 1975 with Malcolm Fraser replacing Billy Snedden. Fraser was uncompromising in his belief that the administrative mismanagement of the Whitlam government had to be brought to an end. In late 1975 a political standoff in the Senate over the passage of Supply was dramatically resolved by the intervention of the Governor-General who exercised the reserve powers of the Crown to dismiss the Whitlam government and commission the caretaker Fraser government. While Fraser resoundingly won the subsequent December 1975 election, the events that precipitated it would indelibly mark both the Whitlam and Fraser governments and Australia's constitutional machinery.

The events of 1975 can only be compared with the dismissal of the Lang government in New South Wales by the Governor Sir Philip Game in 1932.⁶¹ In the case of the Lang government the Governor intervened to dismiss the administration because of a perceived illegality by the Premier Jack Lang, who sought to resist the Commonwealth government's economic response to the Great Depression.

Post 1975 the necessary link between constitutional reform, and a move to a republic, was made more explicit. However, what is common between the events of 1932 and 1975 is that most attention focused upon gubernatorial power, and how the Governor and Governor-General chose to exercise it, rather than the Australian monarchical constitutions within which it was encased.⁶² As Whitlam famously retorted on the steps of Parliament House, after a proclamation dissolving the Parliament was read by the official Secretary to the Governor-General: 'Well may we say "God save the Queen" because nothing will save the Governor-General'.

In the aftermath of the Whitlam dismissal attention started to shift inevitably to the constitutional questions associated with the republic. While the popular movement, often inspired by Gough Whitlam himself, focused upon the way vice-regal power had been exercised within the current constitutional arrangement another theme emerged as lawyers and political scientists considered the means to effect change towards the republic. This in part was the result of the nature of the crisis itself. As Paul Kelly and Troy Bramston have argued when reconsidering the events surrounding the dismissal:

Kerr was at home in the 1975 crisis. It became a lawyer's picnic with opinions dashed off morning, noon and night. This was a crisis where lawyers thrived—Whitlam, Kerr, Barwick and Bob Ellicott were lawyers with a fixed view.⁶³

In addition to these an opinion was sought by the Liberal Party from three eminent constitutional lawyers—Keith Aickin, Murray Gleeson, and Pat Lane.⁶⁴

As noted, Kerr was a distinguished lawyer in his own right. Twelve months before the 1975 crisis, in August 1974, he stepped in for an absent Prime Minister Whitlam to deliver a conference paper at the Australian National University on the topic of 'Australian Law and Lawyers: Instruments or Enemies of Social and Economic Change?' In the context of the theme of the conference, Kerr declared himself to be 'a strong supporter of moves to reform or renew the law, across its wide spectrum'.⁶⁵

The events of 1975 were a catalyst for an array of commentaries on the probity or otherwise of the Governor-General's actions. This included accounts by the key protagonists.⁶⁶ In addition to these accounts of the events leading up to the dismissal others started to explore the constitutional questions regarding the move to a republic. The republic increasingly became the focus of constitutional questioning.

The first major post-1975 work in this category was the 1983 publication *Australia's Constitution: Time for Change?* The authors, John McMillan, Gareth Evans, and Haddon Storey, attempted to 'stimulate a serious national debate on the desirability and possibility of changing the Australian Constitution' to coincide with the Bicentennial in 1988.⁶⁷ The work canvassed a range of possible amendments including the question of a possible republic. The authors noted the centrality of the dismissal to the role of the monarchy.

For many but by no means all republicans the case rests heavily on the actions of the Governor-General in 1975. It is argued that to whatever extent the monarchy may be a dignified, apolitical and stabilising element in the Constitution, this is not so in Australia. We do not have a monarchy, but a 'Governor-Generalship', whose powers are defined not by convention and tradition but are created by the Australian Constitution. In short, it is said the Governor-General acted as the Queen would never would. ... The monarchy, it is said, is no longer a symbol that unites the Australian people, but divides them; it is no longer a symbol above politics; but the focus of political controversy; and it is no longer a stabilising influence, but an institution that is exploited for parochial purposes.⁶⁸

The work outlined the various constitutional changes that would be necessary for Australia to become a republic. The events of 1975 became the catalyst for a renewed republican movement and the impetuous for greater exploration of the constitution issues including the role of the Australian States and the mechanism for change.⁶⁹ As has been noted the move to a republic gathered greater political and popular support in the years after 1975.

Despite the growth in support, the 1999 referendum remains the only attempt to change the constitution to establish the Republic of Australia. Given that the amending mechanism contained in section 128 is, for all practical purposes, controlled by the government of the day there is a need for political leadership.⁷⁰ As then Prime Minister Paul Keating reflected:

The Republic didn't ... exist ... it had some sentiment but no momentum ... The political leader is utterly central to such a change. First, without the political leader ... it can't be proposed, and second it would not happen.⁷¹

The re-election of the Labor government in March 1993 was the condition precedent for any debate about constitutional change in Australia. Within weeks of the election, the Keating government established the Republican Advisory Committee to provide it with an options paper that would describe 'the minimum constitutional changes necessary to achieve a viable Federal Republic of Australia, maintaining the effect of our current conventions and principles of government'.⁷² The Committee was chaired by Malcolm Turnbull and included Nick Greiner, John Hirst, Mark Kostakidis, Lois O'Donoghue, Susan Ryan, George Winterton, Glyn Davis, and Namoi Dougall.

The shaping of the 'minimalist' republic had much to do with the work of George Winterton. The publication of *Monarchy to Republic: Australian Republican Government* in 1986 proved to be an influential text in this regard.⁷³ Winterton would become a leading, and arguably the most influential, republican constitutional lawyer of the period. The work provided a methodical account of the Crown in Australian constitutionalism, the types of republican governments in other jurisdictions, the place of the States with an Australian republican constitution, the office of the President, and the amendment procedure.

In time for the Bicentennial in 1988, Winterton published another article outlining the basic features of an Australian republic.⁷⁴ In it he posed the question 'What constitutional changes would be necessary to convert the Australian monarchy/governor-generalate into a republic?' The answer was self-evidently dependent upon how far Australia wanted to progress beyond the deletion of 'references therein to the Queen'.⁷⁵ Winterton outlined the various responses depending on the degree of reformist ambition. However, in what is largely a short survey of the constitutional questions that might arise, he noted in cautionary tones that while larger constitutional renovations may 'well accompany Australia's transition to republicanism, it is not a *necessary* concomitant thereof'.⁷⁶

Running parallel to the deliberations of the Advisory Committee were additional publications by Winterton. With the release of the edited collection *We, the People* in 1994, Winterton published his amended Constitution to bring about the Republic of Australia. In essence Winterton had produced his version of the 'minimalist' model. In the same year, Winterton returned to the question of what changes should Australia consider.⁷⁷ At this time, he confirmed his view that the introduction of new elements (such as an American-style Presidency) into the Australian political and constructional culture could be potentially disastrous. 'The current system', Winterton argued, 'is certainly not perfect and could well do with reform (much of it requiring parliamentary backbone rather than constitutional change), but its abandonment in favour of an alien governmental system is both unwarranted and dangerous'.⁷⁸

Winterton's minimalist model proceeded on the basis that the republicanization of the Australian Constitution should be achieved with little disruption of the current system.⁷⁹ The model called for the removal of outmoded provisions such as sections 58, 60, and 74. In addition, Winterton highlighted further consequential changes such as replacing references to the 'Queen' or 'Governor-General' with 'President'. Under Winterton's model the President would be elected by an absolute majority of the Parliament (sitting separately). The President would hold office for five years and could only be removed on the grounds of 'proved misbehaviour or incapacity'.⁸⁰ The powers of the President would be codified through the creation of a new legislative power within section 51.⁸¹ These laws would themselves be protected by a new manner and form provision requiring 'two-thirds absolute majority of the members of each House of the Parliament'.

The model, observed Sarah Murray, had a number of advantages from a legal perspective. First, it implicitly acknowledged the difficulty in making 'sweeping constitutional change'.⁸² Secondly, Winterton was 'keen to avoid the election of the President whose position was politicized or whose mandate was superior to that of Prime Minister and governing political party'.⁸³ Lastly, the powers of the President, which were inevitably informed by the 1975 constitutional crisis, were codified by the Commonwealth Parliament.

Keating's republican aspirations were scuppered with the election of the Howard government in 1996. Prime Minister John Howard, whilst an avowed monarchist, kept an election promise to continue with the republican debate by proposing a constitutional convention to consider the questions.⁸⁴ The Convention, which was held in Old Parliament House in Canberra between 2 and 13 February 1998 consisted of 152 delegates. Half were

appointed with the other half elected by the people.⁸⁵ The membership ensured that the ensuing debate was not just between monarchists and republicans. Rather much of the disagreement was between republicans as to the nature of the presidency and their selection.⁸⁶ As Michael Kirby, himself a leading monarchist, observed ‘the republicans were probably outflanked by the strategy of the Prime Minister, Mr Howard whose unwavering support for the present constitutional arrangements was never in doubt’.⁸⁷

The Convention reviewed the merits of a number of models relating to the appointment of the Head of State. These ranged from direct election, appointment by the Prime Minister to a ratification of a two-thirds majority of the Parliament.⁸⁸ Ultimately, the government settled upon a minimalist model. The proposed President would be nominated by the Prime Minister and seconded by the Leader of the Opposition. This, it was believed, would ensure a bipartisan Head of State would be chosen. To be appointed the nominee would need to be approved by two-thirds of a joint sitting of the House of Representatives and the Senate.⁸⁹

The removal of the President proved to be controversial, notwithstanding its approximation of the security of tenure of the current Governor-General. Under the model the Prime Minister could remove the President immediately with a written instrument. The Prime Minister was required to seek the approval of the House of Representatives within thirty days of the removal. However, a failure of the House to approve the action did result in the reinstatement of the President.⁹⁰

The focus of other amendments was the replacement of the Governor-General with the office of the President, the removal of redundant provisions such as sections 59 and 60, and other consequential changes.⁹¹ Critically the model explicitly left unaltered the States’ link to the Crown.⁹² If a State had not altered its law by the time the Commonwealth became a republic then they would continue to be monarchical sub-polities within a republican Commonwealth. For many States their own constitutional arrangements would require a further referendum.

Following a suggestion of the Convention the Parliament also proposed the inclusion of a Preamble into the Constitution.⁹³ The Australian people voted at a referendum on 6 November 1999 (see Table 16.1).⁹⁴ Both proposed amendments failed. Kirby suggested that the failure could be put down to a number of ‘errors’ on the part of republicans. These included: the partisan nature of the reform, the perceived haste, the ‘elites’ nature of the campaign, and the actual model.⁹⁵ The division between leading republicans as to the nature of the model (a direct election or indirect appointment) was undoubtedly a significant factor. Most discussion of the failure of the 1999 referendum concentrated on the division, as well as the campaign and the history of unsuccessful constitutional amendments.⁹⁶

Table 16.1 Summary of Results—Republic Question

National Summary											
State	Result	Enrolment	Yes	%	No	%	Formal	%	Informal	%	Total
NSW	No	4 146 653	1 817 380	46.43	2 096 562	53.57	3 913 942	99.12	34 772	0.88	3 948 71
Vic.	No	3 164 843	1 489 536	49.84	1 499 138	50.16	2 988 674	99.07	28 063	0.93	3 016 73
Qld	No	2 228 377	784 060	37.44	1 309 992	62.56	2 094 052	99.31	14 642	0.69	2 108 69
WA	No	1 176 311	458 306	41.48	646 520	58.52	1 104 826	99.15	9 500	0.85	1 114 32
SA	No	1 027 392	425 869	43.57	551 575	56.43	977 444	99.09	8 950	0.91	986 394
Tas.	No	327 729	126 271	40.37	186 513	59.63	312 784	99.09	2 857	0.91	315 641
ACT	Yes	212 586	127 211	63.27	73 850	36.73	201 061	99.23	1 553	0.77	202 614
NT	No	108 149	44 391	48.77	46 637	51.23	91 028	99.07	852	0.93	91 880
National Total	No	12 392 040	5 273 024	45.13	6 410 787	54.87	11 683 811	99.14	101 189	0.86	11 785 0

D. THE THEORIZED REPUBLIC

In popular discourse, Australian republicanism is primarily associated with the end of the reign of the House of Windsor over Australia’s constitutional arrangements and the associated independence. The latter point is more often expressed in the form of the country’s destiny and perceived greater cultural maturation. Often overlooked, or merely noted in passing in this narrative, is that republicanism is itself an ancient theory of liberty, government, and constitutional design. Yet it is this aspect of republicanism that has much to offer deliberations regarding the future of a republican government in Australia. Paradoxically many Australian institutions are infused with republican features without expressing their underlying theoretical knowledge. This last section of the chapter will

briefly outline the key aspects of the theorized republic, its influence on governmental design, its revival in constitutional theory, and possible impact on the Australian debate.

Republicanism has a venerable history.⁹⁷ Its origins may be traced to republican Rome and the writings of Cicero. The modern manifestation of republicanism is linked to the northern Italian republics (1494–1530) and is closely associated with the work of Niccolò Machiavelli. The tradition can be mapped through the Dutch republics of the late sixteenth century,⁹⁸ the English civil war, and the French and American revolutions.⁹⁹ Contemporary republican literature has devoted significant effort to describing its content while contrasting it with the more prominent theory of liberalism.

At the heart of republican theory is the protection and promotion of liberty. Isaiah Berlin's classic work, *Two Concepts of Liberty*, is an important mainstay in any contemporary discussion of the notion of liberty.¹⁰⁰ Berlin draws a distinction between 'negative' and 'positive' liberty, the first of which he approves, the second he criticizes. The former conception of liberty proceeds on a view that an individual is negatively free to the 'degree to which no man or body of men interferes with my activity'.¹⁰¹ The locus of freedom for the individual is determined by the maximization of non-interference: 'The wider the area of non-interference the wider my freedom.'¹⁰²

Critics of Berlin have argued that his division of liberty into two categories is unhelpful and creates further confusion.¹⁰³ Others have argued that the 'forced-to-be-free' representation of positive liberty is a caricature of its deeper features.¹⁰⁴ Notwithstanding these criticisms of Berlin's work, the classic liberal doctrine of negative liberty has come to dominate the area. It is an approach which Berlin himself acknowledged is 'comparatively modern'.¹⁰⁵

Berlin's conclusions about liberty have had significant ramifications for republican theory. Quentin Skinner argues, for instance, that a preference for 'negative' liberty 'depends on ignoring another whole tradition of social thought, the Renaissance republican tradition'.¹⁰⁶ Similarly, Philip Pettit suggests that Berlin has advanced a scenario of hero/anti-hero between the two categories.¹⁰⁷ Within the 'positive' liberty camp, Berlin places continental romantics, religious groupings, and political radicals.¹⁰⁸ For Pettit the positive/negative divide is a metaphoric device that ignores a third or 'middle' way in the conception of liberty. That third conception of liberty is one of liberty as non-domination. The positive construction of liberty requires the precondition of the absence of mastery of another.¹⁰⁹

The idea of liberty as non-domination is evident in the work of English republicans, influenced by the work of Machiavelli. They did not see liberty as placing political power in the hands of the people, but rather securing the rich or the virtuous from encroachment by tyrants, be the tyrant an individual or the people themselves.¹¹⁰ Algernon Sidney and James Harrington being but two advocates of this robust notion of liberty.¹¹¹ The 'commonwealthman' tradition that was inspired by the works of Harrington continued the theme of liberty as being obtained through the avoidance of arbitrary interference. Notwithstanding that writers such as Richard Price and Joseph Priestley stressed the importance of an expanded democracy,¹¹² they continued to see democracy as an *additional* means of restraint upon arbitrary interference.

The republican tradition approaches the protection of liberty through a number of avenues. All have ramifications for political systems and their design. Historically republican writers place great importance on an active citizenry. The means by which a self-governing republic can sustain the 'free state', and thus individual freedom, is by the citizens cultivating a measure of 'civic virtue'. Described by Cicero as *virtus*, (and by Italian theorists as *virtù*), it has been translated by English republicans to mean 'civic virtue' or 'public-spiritedness'.¹¹³ According to Pocock, *virtus* came to mean:

first, the power by which an individual or group acted effectively in a civic context; next, the essential property which made a personality or element what it was; third, the moral goodness which made a man, in city or cosmos what he ought to be.¹¹⁴

For republican theorists, then, the problem of corruption of the ruler and the ruled is an issue to be solved by first, the intensification of notions of civic virtue and second by institutional design. The latter task is predicated on the view that the maximization of personal liberty may be achieved through the creation of institutions that inhibit the likelihood of tyranny.

The anti-monarchical motif that is evident in republican scholarship is predicated on the belief that arbitrary or absolute rulers threaten the liberty or freedom of the ruled.¹¹⁵ The answer to the dilemma of the corruptibility of the ruler and the ruled has prompted republican authors to look to the coercive powers of the law.¹¹⁶ As Machiavelli notes, '[i]t is said that hunger and poverty make men industrious, and that laws make them good.'¹¹⁷

Whilst the rule of law has a deep republican source, it is an ideological well from which many theoretical positions have sought to draw. For instance A V Dicey, the influential English liberal, could boast that the rule of law was a political institution of England since the Norman conquest.¹¹⁸ He pointed to the characteristics of the rule of law as a restraint on arbitrary will, its universal application—‘no man is above the law’¹¹⁹ and its protection of individual rights.

Another constraint on the law is that it must not be concentrated in the hands of one person or group and thus endanger the liberty that it is established to promote. The institutional design that has emerged to prevent this outcome has found its eighteenth century explanation as the ‘separation of powers’. The history of the concepts can be traced to Polybius and the notion of the ‘mixed constitution’.¹²⁰ It is however, Montesquieu’s analysis of the doctrine in *The Spirit of the Laws* that has become the popular understanding of the doctrine.

A further institutional arrangement that republicans have endorsed is federalism. The reason for its embrace is well expressed by Martin Redish:

The theoretical and pragmatic functions designed to be served by a federal system are not difficult to discern. The decentralization of political power makes perfect sense in a system premised on the fear of, and the desire to avoid, tyranny. Placing all sovereign authority in one governmental unit is an invitation to dictatorial rule. Federalism tends to avoid tyranny in two ways. First, by dividing sovereign power between two levels of government, a federal system reduces the likelihood that the superior governmental level will be able to control all aspects of its citizen’s lives. Second, if the inferior governmental level attempts to impose tyrannical rule, its citizens have available the safety valve of interstate mobility.¹²¹

In the Australian context federalism was the logical means by which the disparate colonies could be unified without relinquishing total autonomy.¹²² While many of the framers of the Australian Constitution were not alive to the theoretical footings that supported the various governmental alternatives they considered, such as the separation of powers or federalism, those institutions had been the subject of extensive theoretical discussion for centuries.

Thus inasmuch as federalism provides another means by which power may be checked and dispersed, it is a key element in republican statecraft. It seeks, like the rule of law, the separation of powers and other checks and balances, to promote liberty through the dispersal of power.

The republican belief in deliberation is inextricably linked to the concept of the active citizen and institutional design. As Cass Sunstein notes, ‘[t]he requirement of deliberation is designed to ensure that political outcomes will be supported by reference to a consensus (or at least broad agreement) among political equals.’¹²³ A key factor in the deliberative process is that alternatives or subverted views and opinions will be heard and in this sense it encompasses a most powerful normative endorsement.

The historical account of republican theory and institutional design is not far removed from modern republican debates. The so-called ‘republican revival’ that has taken place in the United States in the last twenty years has prompted a debate as to the relative merits of republican theory.¹²⁴ Proponents of republicanism point to the value of its deliberative character in the areas of contemporary public policy and jurisprudence.¹²⁵ Its detractors suggest that it understates the Lockean liberalism that has traditionally been seen as the mainstay of American constitutional theory¹²⁶ or that it has ‘ominous implications’ for freedom.¹²⁷ Others doubted its applicability.¹²⁸

The republican ‘revival’ was received in Australia with some interest, but was largely dismissed in terms of shaping the interpretation of the Australian Constitution. ‘It is difficult’, concluded George Williams, ‘to conceive of republicanism except as an extra-constitutional notion because it does not yet form part of the Australian constitutional tradition’.¹²⁹

Notwithstanding that most, if not all, methods of interpretation are external to the document¹³⁰ the concept of a constitution that promotes liberty, in the republican sense, and provides institutional integrity, is common within Australian constitutional literature. It is to be found especially amongst those who argue for a republican model that goes beyond the minimalist approach of 1999. Even for those who address the Head of State issue there is more that could be done. As Saunders argues, the minimalist mindset puts to one side the ‘potential to improve the quality of Australian governance at both levels of government by strengthening the institution of Parliament and sharpening executive accountability under a genuinely republican Constitution’.¹³¹ Others have argued that a move towards a republic should also address the place of Aboriginal and Torres Strait Islanders in the social compact. That is, the republic and reconciliation should be synonymous.¹³²

In short, the theorized republic provides much greater scope for renewal of the institutions of the state that are designed to create and support an active citizenry, the protection of liberty, and the promotion of deliberation in policy development.¹³³ An Australian Constitution informed by these elements was attractive to at least some of the framers of the new Commonwealth.¹³⁴

E. CONCLUSION

This chapter has argued that Australia republicanism should be understood as more than the events surrounding the failed 1999 referendum. There are numerous lenses through which the republican landscape can be observed, including the sentimental, constitutional, and theoretical republic. The interaction between the three have changed over time and make for a rich and subtle account of Australian republicanism.

The republic of Australia has often been thought to be inevitable. Cultural maturation combined with the strained logic of a shared Head of State residing in another country who was not ‘one of us’ was thought to dictate the conclusion. The countervailing force to that narrative appears to be the inertia of Australia’s political leaders and the constitutional weariness of the Australian people. Proponents of the republic continue to raise the argument for change while others reflect upon the technical issues and lessons learnt from the previous attempts.¹³⁵ The state of Australian politics, and the seeming inability of its leaders to contemplate the urgent policy challenges, prompts consideration of institutional renewal. The republican form of government, especially the enriched notions of deliberation and engagement, provides a compelling template for the future Republic of Australia.

¹ T George Parsons, ‘Was John Boston’s Pig a Political Martyr? The Reaction to Popular Radicalism in Early New South Wales’ (1985) 71 *Journal of the Royal Australian Historical Society* 163.

² *ibid* 171.

³ Mark McKenna, *The Captive Republic: A History of Republicanism in Australia 1788-1996* (CUP 1996) 14.

⁴ See John La Nauze, *The Making of the Australian Constitution* (Melbourne UP 1972).

⁵ *The Processing of the Federation Conference, 1890*, (Government Printer 1890) vi; Official Report of the National Australasian Convention Debates (Sydney, 1891) 12–19 and Official Report of the National Australasian Convention Debates (Adelaide, 1897) 8.

⁶ *Constitution (Female Suffrage) Act 1895* (SA). John Bannon, ‘South Australia’ in Helen Irving (ed), *The Centenary Companion to Australian Federation* (CUP 1999) 149–51.

⁷ La Nauze, *The Making of the Australian Constitution* (n 4) ch 16.

⁸ *ibid* 90.

⁹ David Headon, ‘Sport’ in Helen Irving (ed), *The Centenary Companion to Australian Federation* (CUP 1999) 425–26. See also John Hirst, *The Sentimental Nation: The Making of the Australian Commonwealth* (OUP 2000).

¹⁰ Robert Garran, *The Coming Commonwealth: An Australian Handbook of Federal Government* (Angus and Robertson 1897) 185.

¹¹ *The Commonwealth of Australia Constitution Act 1900*, preamble.

¹² Reprinted in *Sydney Morning Herald*, 28 January 1892, 7.

¹³ For an account of the life of this controversial politician and jurist see John Michael Bennett, *Sir Charles Lilley* (Federation Press 2014).

¹⁴ John M Williams, *The Australian Constitution: A Documentary History* (Melbourne UP 2005) 18.

¹⁵ *ibid* 80.

¹⁶ Alfred Deakin, *The Federal Story* (Melbourne UP 1963) 48. See also John A La Nauze, ‘The Name of the Commonwealth of Australia’ (1971) 15 *Historical Studies* 59.

¹⁷ Official Record of the Proceedings and Debates of the National Australasian Convention (1891) 551–52.

¹⁸ Official Report of the National Australasian Convention Debates (Adelaide, 1897) 618.

¹⁹ G B Barton to Bryce, 18 June 1891, Bryce Papers, Bodleian Library Oxford cited in La Nauze, ‘The Name of the Commonwealth of Australia’ (n 16) 71.

²⁰ John M Williams ‘“With Eyes Open”: Andrew Inglis Clark and Our Republican Tradition’ (1995) 23 *Federal Law Review* 149.

²¹ Official Record of the Proceedings and Debates of the National Australasian Convention (1891) 185.

²² Official Report of the National Australasian Convention Debates (Adelaide, 1897) 974–75.

²³ Williams ‘With Eyes Open’ (n 20) 171–78.

²⁴ Official Report of the National Australasian Convention Debates (Adelaide, 1897) 73.

²⁵ Cheryl Saunders, ‘Beyond Minimalism’ in Sarah Murray (ed), *Constitutional Perspectives on an Australian Republic: Essays in Honour of Professor George Winterton* (The Federation Press 2010) 55.

²⁶ Geoffrey Lindell, ‘Why is Australia’s Constitution Binding? The Reasons in 1900 and Now, and the Effect of Independence’ (1986) 16 *Federal Law Review* 29, 30–31. See also Simon Evans, ‘Why is the Constitution Binding? Authority, Obligations and the Role of the People’ (2004) 25 *Adelaide Law Review* 103.

²⁷ John Quick and Robert Randolph Garran, *The Annotated Constitution of Australia* (Angus & Robertson, 1901) 294.

²⁸ *ibid* 692–93.

²⁹ *ibid* 713.

³⁰ Geoffrey Sawyer, ‘Future of Appeals to the Judicial Committee of the Privy Council’ (1970) 2 *Otago Law Review* 138, 139–40 and Helen Irving, ‘Its First and Highest Function: The Framers’ Vision of the High Court as Interpreter of the Constitution’ in Peter Cane (ed), *Centenary Essays for the High Court of Australia* (LexisNexis Butterworths 2004) 17.

³¹ Quick and Garran (n 27) 650.

³² That doubt may have itself emerged from the text of the section that purposed to be limited to legislative power exercised ‘within the Commonwealth’.

³³ (1989) 168 CLR 340, 378.

³⁴ *ibid*.

³⁵ Saunders (n 25) 60. See also Anne Twomey, *The Chameleon Crown—The Queen and her Australian Governor* (Federation Press 2006) ch 22.

- ³⁶ Lang's 1850 lectures were later published in John Dunmore Lang, *The Coming Event, or, Freedom and Independence for the Seven United Provinces of Australia* (Sampson Low 1870).
- ³⁷ David Headon and Elizabeth Perkins (eds), *Our First Republicans: John Dunmore Lang, Charles Harpur, Daniel Henry Deniehy: Selected Writings, 1840–1860* (Federation Press 1998).
- ³⁸ Geoffrey Dutton (ed), *Australia and the Monarchy* (Sun Books 1966).
- ³⁹ David Headon, James Warden, and Bill Gammage (ed), *Crown or Country: The Traditions of Australian Republicanism* (Allen & Unwin 1994).
- ⁴⁰ McKenna (n 3) 14.
- ⁴¹ Thomas Keneally, *Our Republic* (W. Heinemann Australia 1993) 156.
- ⁴² W C Wentworth, 'Australasia' (1823).
- ⁴³ 'Ave, Australia' in *Selected Poems of Marie E J Pitt* (Lothian 1944) 1. For an account of the life of Marie Pitt see Colleen Burke, *Doherty's Corner: The Life and Work of Poet Marie E J Pitt* (Angus & Robertson 1985).
- ⁴⁴ Henry Lawson, 'A Song of the Republic'. For an account of the life of Lawson see Manning Clark, *Henry Lawson: The Man and the Legend* (Sun Books 1985).
- ⁴⁵ For an account of Australia's egalitarian ethos and the paradoxical existence of sexism and racism see Elaine Thompson, *Fair Enough: Egalitarianism in Australia* (New South Wales UP 1994).
- ⁴⁶ W K Hancock, *Australia* (Jacaranda 1966) 57.
- ⁴⁷ Robert Hughes, *The Art of Australia* (Penguin Books 1970) 47.
- ⁴⁸ Charles S Blackton, 'Australian Nationality and Nationalism 1850-1900' (1961) 9 *Historical Studies* 351.
- ⁴⁹ Russel Ward, *The Australian Legend* (2nd edn, OUP 1993).
- ⁵⁰ H Humphrey McQueen, *A New Britannia* (3rd edn, Penguin 1986).
- ⁵¹ *Pacific Island Labourers Act 1901* (Cth); *Immigration Restriction Act 1901* (Cth).
- ⁵² Miriam Dixson, *The Real Matilda* (Penguin 1976) 30.
- ⁵³ Dutton (n 38) 7.
- ⁵⁴ Donald Horne, 'Republican Australia' in Dutton (n 38) 88.
- ⁵⁵ Zelman Cowen, 'The Constitution and the Monarchy' in Dutton (n 38) 61.
- ⁵⁶ John Hirst, *A Republican Manifesto* (OUP 1994).
- ⁵⁷ George Winterton, *Monarchy to Republic: Australian Republican Government* (OUP 1986).
- ⁵⁸ For example, Alan Atkinson, *Muddle-Headed Republic* (OUP 1993); David Flint, *The Cane Toad Republic* (Wakefield Press 1999); Donald Horne et al, *The Coming Republic* (Sun 1992); Wayne Hudson and David Carter (eds), *The Republicanism Debate* (New South Wales UP 1993); Tom Keneally, *Our Republic* (William Heinemann Australia 1993); Glen Patmore, *Choosing the Republic* (New South Wales UP 2009); M A Stephenson and Clive Turner, *Republic or Monarch?* (Queensland UP 1994).
- ⁵⁹ Malcolm Turnbull, *The Reluctant Republic* (William Heinemann Australia 1993) 3.
- ⁶⁰ Commonwealth Parliament, Hansard, 7 June 1995, 1435.
- ⁶¹ Bede Nairn, *The 'Big Fella': Jack Lang and the Australian Labor Party 1891–1949* (Melbourne UP 1986) ch 11; John Manning Ward, 'The Dismissal' in Heather Radi and Peter Spearritt (eds), *Jack Lang* (Hale & Iremonger & Labour History 1977) ch 10.
- ⁶² A notable exception being Anne Twomey, 'The Dismissal of the Lang Government' in George Winterton (ed), *State Constitutional Landmarks* (The Federation Press 2006) 129.
- ⁶³ Paul Kelly and Troy Bramston, *The Dismissal: In the Queen's Name* (Viking 2015) 75.
- ⁶⁴ *ibid* 52.
- ⁶⁵ Sir John Kerr, 'Australian Law and Lawyers: Instruments or Enemies of Social and Economic Change?' in David Hambly and John Goldring (eds), *Australian Lawyers and Social Change* (LBC 1976) 5.
- ⁶⁶ Sol Encel, Donald Horne, and Elaine Thompson (eds), *Change the Rules!* (Penguin Books 1977); John Kerr, *Matters for Judgment: An Autobiography* (Macmillan Company of Australia 1978); Gough Whitlam, *The Truth of the Matter* (Penguin 1979); Garfield Barwick, *Sir John Did his Duty* (Serendip Publications 1983).
- ⁶⁷ John McMillan, Gareth Evans, and Haddon Storey, *Australia's Constitution: Time for Change?* (Law Foundation of New South Wales 1983) ix.
- ⁶⁸ *ibid* 182–83.
- ⁶⁹ See for example George Winterton, 'The States and the Republic: A Constitutional Accord?' (1995) 6 *Public Law Review* 107; Sir Anthony Mason, 'Constitutional Issues Relating to the Republic as they Affect the States' (1998) 21 *University of New South Wales Law Journal* 750; James A Thomson, 'States in an Australian Republic: Constitutional Conundrums' (2001) 3 *University of Notre Dame Australia Law Review* 95; Stephen Gageler and Mark Leeming, 'An Australian Republic: Is a Referendum Enough?' (1996) 7 *Public Law Review* 143; Geoffrey Lindell and Dennis Rose, 'A Response to Gageler and Leeming: "An Australian Republic: Is a Referendum Enough?"' (1996) 7 *Public Law Review* 155; Stephen Gageler, 'Amending the Commonwealth Constitution through Section 128—A Journey through its Scope and Limitations' in Sarah Murray (ed), *Constitutional Perspectives on an Australian Republic: Essays in Honour of Professor George Winterton* (The Federation Press 2010) 6.
- ⁷⁰ Section 128 does envisage the Senate proposing a bill to alter the Constitution that the House of Representatives rejects twice within three months. In such circumstances the 'Governor-General may submit' it to the electors in the States for consideration. In reality, the Governor-General would presumably act on the advice of the Prime Minister.
- ⁷¹ Patmore (n 58) 37.
- ⁷² Republican Advisory Committee, *An Australian Republic: The Options. Volume 1—The Report* (1993) iv.
- ⁷³ George Winterton's *Monarchy to Republic: Australian Republican Government* (OUP 1986, reprinted 1994).
- ⁷⁴ George Winterton, 'An Australian Republic' (1988) 16 *Melbourne University Law Review* 467.
- ⁷⁵ *ibid* 468.
- ⁷⁶ *ibid* (emphasis in original).
- ⁷⁷ George Winterton, 'The Constitutional Implications of a Republic' in Stephenson and Turner, *Republic or Monarch?* (n 58) 18.
- ⁷⁸ *ibid* 18.
- ⁷⁹ George Winterton, 'A Constitution for an Australian Republic' in George Winterton, *We, the People* (Allen & Unwin 1994) 1.
- ⁸⁰ *ibid* 20. Section 60(4).
- ⁸¹ *ibid* 15. Section 51(xl).

- ⁸² Sarah Murray, 'The Minimalist Winterton Model' in Sarah Murray (ed), *Constitutional Perspectives on an Australian Republic: Essays in Honour of Professor George Winterton* (The Federation Press 2010) 47.
- ⁸³ *ibid* 47–48.
- ⁸⁴ Patmore (n 58) 39.
- ⁸⁵ Constitutional Convention, Canberra (2 to 13 February 1998).
- ⁸⁶ See generally Steve Vizard, *Two Weeks in Lilliput: Bear Baiting and Backbiting at the Constitutional Convention* (Penguin 1998).
- ⁸⁷ Michael Kirby, 'The Australian Referendum on a Republic—Ten Lessons' (Menzies Memorial Lecture, 4 July 2000, Great Hall King's College London) <http://www.hcourt.gov.au/assets/publications/speeches/former-justices/kirbyj/kirbyj_ten.htm> accessed 27 September 2017.
- ⁸⁸ See Senate Report, Legal and Constitution Reference Committee, *The Road to a Republic* (August 2004).
- ⁸⁹ Constitution Alteration (Establishment of Republic) Bill 1999, cl 60.
- ⁹⁰ *ibid* cl 2.
- ⁹¹ Constitution Alteration (Establishment of Republic) Bill 1999.
- ⁹² *ibid* sch 2, cl 5.
- ⁹³ Constitution Alteration (Preamble) Bill 1999.
- ⁹⁴ See <http://www.aec.gov.au/Elections/referendums/1999_Referendum_Reports_Statistics/Vote_type_republic.htm> accessed 27 September 2017.
- ⁹⁵ Kirby <http://www.hcourt.gov.au/assets/publications/speeches/former-justices/kirbyj/kirbyj_ten.htm> (n 87).
- ⁹⁶ Brenton Holmes, *Tracking the Push for an Australian Republic* (Parliamentary Library 2013) 5–10.
- ⁹⁷ John Greville Agard Pocock, *The Machiavellian Moment* (Princeton UP 1975); Quentin Skinner, *The Foundations of Modern Political Thought* (CUP 1978); Adrian Oldfield, *Citizenship and Community: Civic Republicanism and the Modern World* (Routledge 1990); Gisela Bock, Quentin Skinner, and Maurizio Viroli (eds), *Machiavelli and Republicanism* (CUP 1990); Philip Pettit, *Republicanism: A Theory of Freedom and Government* (Clarendon Press 1997).
- ⁹⁸ Martin van Gelderen, 'The Machiavellian moment and the Dutch Revolt: The Rise of Neostoicism and Dutch Republicanism' in Bock, Skinner, and Viroli (n 97) 205.
- ⁹⁹ Pettit (n 97) 5. See also Philip Pettit, *On the People's Terms: A Republican Theory and Model of Democracy* (CUP 2012).
- ¹⁰⁰ Isaiah Berlin, 'Two Concepts of Liberty' in *Four Essays on Liberty* (Four Essays on Liberty 1979) 118–72.
- ¹⁰¹ *ibid* 122.
- ¹⁰² *ibid* 123.
- ¹⁰³ Gerald MacCallum, 'Negative and Positive Freedom' in Peter Laslett, Walter Runciman, and Quentin Skinner (eds), *Philosophy, Politics and Society* 4th Series (Blackwell 1972) 174.
- ¹⁰⁴ Charles Taylor, 'What's Wrong with Negative Liberty' in Alan Ryan (ed), *The Idea of Freedom* (OUP 1979) 175, 176–77.
- ¹⁰⁵ Berlin (n 100) 129.
- ¹⁰⁶ Quentin Skinner, 'The Republican Ideal of Political Liberty' in Bock, Skinner, and Viroli (n 97) 300.
- ¹⁰⁷ Pettit, *Republicanism: A Theory of Freedom and Government* (n 97) 18.
- ¹⁰⁸ *ibid*.
- ¹⁰⁹ *ibid* 21.
- ¹¹⁰ Zera S Fink, *The Classical Republicans* (Northwestern UP 1962) 19.
- ¹¹¹ Algernon Sidney, *Discourses Concerning Government*, (T West (ed), Liberty Classics 1990) I: 5, 17; James Harrington, *The Commonwealth of Oceana and A System of Politics* (J G A Pocock (ed), CUP 1992) 229.
- ¹¹² Richard Price, *Political Writings* (D O Thomas (ed), CUP 1991) 25.
- ¹¹³ Skinner (n 106) 303.
- ¹¹⁴ Pocock (n 97) 37.
- ¹¹⁵ Philip Pettit, 'Republican Themes' (1992) 6 *Legislative Studies* 29.
- ¹¹⁶ Skinner (n 106) 305.
- ¹¹⁷ Niccolò Machiavelli, *The Discourses* (Routledge and Paul 1975) Book I iii 217.
- ¹¹⁸ A V Dicey, *Introduction to the Study of the Law of the Constitution* (Macmillan 1924) 179.
- ¹¹⁹ *ibid* 189.
- ¹²⁰ Kurt Von Fritz, *The Theory of the Mixed Constitution in Antiquity* (Columbia UP 1954).
- ¹²¹ Martin H Redish, *The Constitution as Political Structure* (OUP 1995) 25.
- ¹²² As Leslie Zines noted: 'Those who framed the Australian Constitution were not given to over much theorising about the nature of federalism'. Lesley Zines, 'A Legal Perspective' in Brian Galligan (ed), *Australian Federalism* (Longman Cheshire 1989) 16. Vile also endorses the 'pragmatic' nature of American political thought suggesting that it is 'perhaps its most outstanding characteristic'. M J C Vile, *The Structure of American Federalism* (OUP 1961) 19.
- ¹²³ Cass Sunstein, 'Beyond the Republican Revival' (1988) 97 *Yale Law Journal* 1539, 1550.
- ¹²⁴ For an account of the 'revival' see Richard H Fallon, 'What is Republicanism, and Is it Worth Reviving?' (1989) 102 *Harvard Law Review* 1672. As well as Sunstein other prominent scholars associated with the revival include: Bruce A Ackerman, 'The Storrs Lectures: Discovering the Constitution' (1984) 93 *Yale Law Journal* 1013; Frank I Michelman, 'Supreme Court, 1985 Term-Foreword: Traces of Self-Government' (1986) 100 *Harvard Law Review* 4; Suzanna Sherry, 'Civic Virtue and the Feminine Voice in Constitutional Adjudication' (1986) 72 *Vanderbilt Law Review* 543; Mark Tushnet, *Red, White, and Blue: A Critical Analysis of Constitutional Law* (Harvard UP 1988) and Frank I Michelman, 'Law's Republic' (1988) 97 *Yale Law Journal* 1493.
- ¹²⁵ See Cass Sunstein, 'Interest Groups in American Public Law' (1985) 38 *Stanford Law Review* 29; Matthew J Parlow 'Civic Republicanism, Public Choice Theory, and Neighborhood Councils: A New Model for Civic Engagement' (2008) 79 *University of Colorado Law Review* 137.
- ¹²⁶ Richard A Epstein, 'Modern Republicanism—Or the Flight from Substance' (1988) 97 *Yale Law Journal* 1633, 1635.
- ¹²⁷ Martin Redish and Gary Lippman, 'Freedom of Expression and the Civic Republican Revival in Constitutional Theory: The Ominous Implications' (1991) 79 *California Law Review* 267.
- ¹²⁸ See for instance, Don Herzog, 'Some Questions for Republicans. (1986) 14(3) *Political Theory* 473; H N Hirsch, 'The Threnody of Liberalism' (1986) 14(3) *Political Theory* 423; Alan Patten, 'The Republican Critique of Liberalism' (1996) 25 *British Journal of Political Science* 26; Jeffrey C Isaac, 'Republicanism vs. Liberalism? A Reconsideration' (1988) 9(2) *History of Political Thought* 349, 377.

¹²⁹ George Williams, 'A Republican Tradition for Australia?' (1995) 23 *Federal Law Review* 133, 143. cf John Braithwaite and Philip Pettit, *Not Just Deserts: A Republican Theory of Criminal Justice* (OUP 1990); John Braithwaite, 'On Speaking Softly and Carrying Big Sticks: Neglected Dimensions of a Republication Separation of Powers' (1997) 47 *University of Toronto Law Journal* 305. John M Williams, 'The Australian Constitution and the Challenge of Theory' in Charles Samford and Tom Round (eds), *Beyond the Republic: Meeting the Global Challenge of Constitutionalism* (Federation Press 2001) 119.

¹³⁰ Keith Mason, 'What Is Wrong with Top-down Legal Reasoning?' (2004) *Bar News: Journal of the NSW Bar Association* 10.

¹³¹ Saunders (n 25) 80.

¹³² Frank Brennan, 'The Status of Aboriginal and Torres Strait Islanders in an Australian Republic' in Margaret A Stephenson and Clive Turner, *Republic or Monarch?* (Queensland UP 1994) 257 and Mark McKenna, *This Country: A Reconciled Republic?* (UNSW Press 2004).

¹³³ A number of conservative republicans reject the idea that the republicanization of the Head of State should be the means for wider constitutional renewal. See Greg Craven, 'A Gripping Discussion on the Road to Nowhere?' in Sarah Murray (ed), *Constitutional Perspectives on the Australian Republic* (Federation Press 2010) 176; Greg Craven, *Conversations with the Constitution* (UNSW Press 2004) ch 2.

¹³⁴ Williams (n 20).

¹³⁵ George Winterton, 'Six Republican Models for Australia' (2001) 12 *Public Law Review* 241 and Anne Twomey, 'An Alternative Republic Proposal' (2015) 89(9) *Australian Law Journal* 616.

CHAPTER 17

UNITY

WILLIAM GUMMOW

A. INTRODUCTION

DURING the 1880s the population of the Australian colonies increased by some 40 per cent and this growth was more by natural increase than by immigration. By the end of that decade about three quarters of the people in Australia had been born there.¹

It is with this demographic in mind that one reads the speech delivered by Alfred Deakin in Bendigo on 15 March 1898 to The Australian Natives Association. This was a few days after the final session of the Federal Convention in Melbourne.² Deakin emphasized that one half of the representatives at the Convention were Australian born, as was the whole of the drafting committee, and recognized ‘that the united Australia yet to be can only come to be with the consent of and by the efforts of the Australian born’. At the 1891 Convention only sixteen or seventeen of the forty-six delegates had been Australian born.³

Of the draft Constitution Deakin said:

A federal constitution is the last and final product of political intellect and constructive ingenuity; it represents the highest development of the possibilities of self-government among peoples scattered over a large area. To frame such a constitution is a great task for any body of men. Yet I venture to submit that among all the federal constitutions of the world you will look in vain for one as broad as its popular base, as liberal in its working principles, as generous in its aims, as this measure.

Deakin concluded his speech with a verse by the poet William Gay,⁴ the last lines of which were:

O let us rise, – united, – penitent, –
And be one people, – mighty, serving God.

This cast of mind may be compared with that of the Founding Fathers of the Constitution of the United States a century before. There, such provision as those for the selection of the President by the Electoral College and of Senators by State legislatures were indications of caution respecting the exercise of the popular will as the manifestation of national unity. The comparison has been further explained by Justice Gageler:

The framers of the United States' Constitution had invoked 'the People' in a remote and abstracted sense as providing the higher law justification for the establishment of a constitutional system by which the people in their ordinary political dealings were to be governed. The use of the term by the framers of the Australian Constitution was much more concrete and immediate. It was not 'the People' in some transcendent sense or the people acting only in rare moments of constitution-making or constitutional revision to which they appealed when considering the legitimacy of political institutions or government action, but the people expressing their will from time to time through the ordinary political process. The idea stemmed from, and is arguably inherent in, the notion of responsible government itself. Far from being something to be feared and contained, ordinary politics was seen as the primary means by which people exerted real, tangible and ongoing control over government.⁵

It is the emphasis by Deakin upon the expression (albeit then by a limited franchise) of popular will for national unity through the medium of a federal system of government which provides the theme of this chapter.

Other Founding Fathers had been less sanguine than Deakin. In 1910 Sir Edmund Barton wrote:

I believe the uninitiated mind experiences some difficulty at first in grasping the existence of two separate spheres of citizenship in a federation; that of the citizen's own State, and that of the united community in which his own State is merged with others.⁶

How has the concern with national unity been manifested in the text of the Constitution, and in its explication by more than a century of decisions made in exercise of the judicial power of the Commonwealth? For example, by 1920, the year in which the *Engineers' Case*⁷ was decided, the *zeitgeist* which Barton J had noted in 1910, had changed. Windeyer J, who had grown up in the intervening period, later wrote that by 1920 the Constitution was 'read in a new light' with events such as the First World War leading to 'a growing realisation that Australians were now one people and Australia one country, and that national laws might meet national needs'.⁸

However, in *Street v Queensland Bar Association*⁹ Mason CJ observed that while '[t]he very object of federation was to bring into existence one nation and one people' there are 'comparatively few provisions which

[were] designed to enhance national unity and a real sense of national identity’.

On the one hand, as Deane and Toohey JJ emphasized in *Leeth v Commonwealth*,¹⁰ in addition to the command in section 117 that ‘[a] subject of the Queen, resident in any State, shall not be subject in any other State to any disability or discrimination which would not be equally applicable to him if he were a subject of the Queen resident in such other State’, there are a number of specific provisions which reflect a precept of underlying or inherent theoretical equality of all persons under the law and before the courts. Their Honours said:

Among those specific provisions are: the guarantee against discrimination between persons in different parts of the country in relation to customs and excise duties (Constitution, ss 86, 88, 90), other Commonwealth taxes (s 51(ii)) and bounties (ss 51(iii), 86, 90); the guarantee that the Commonwealth shall not, by any law or regulation of trade, commerce or revenue, give preference to one State or any part thereof over another State or part thereof (s 99); the guarantee of freedom of interstate trade, commerce and intercourse (s 92); the guarantee of direct suffrage and equality of voting rights among those qualified to vote (ss 24, 25); the guarantee that no religious test shall be required as a qualification for any office or public trust under the Commonwealth (s 116).¹¹

On the other hand, Deane and Toohey JJ recognized that:

[A] legislative power to make special laws with respect to a particular class of persons, such as aliens (Constitution, s 51(xix)) or persons of a particular race (s 51(xxvi)), necessarily authorizes discriminatory treatment of members of that class to the extent which is reasonably capable of being seen as appropriate and adapted to the circumstance of that membership. Again, the nature of a Commonwealth legislative power may be such as to authorize laws which discriminate between persons in different geographical areas: defence (s 51(vi)) quarantine (s 51(ix)) and medical services such as immunization (s 51(xxiiiA)) may provide examples.¹²

The actual decision in *Leeth*, from which Deane and Toohey JJ dissented, was that a federal law may validly operate such that the minimum term of imprisonment imposed on a federal offender may vary significantly according to the State in which the trial is held, and that this was so because there is no implication drawn from the Constitution that federal laws must not be discriminatory and must operate uniformly through Australia.

In reaching that conclusion, Mason CJ, Dawson and McHugh JJ treated sections 51(ii), 92, and 99 as ‘specific provisions’ which are ‘confined in their operation’.¹³ That view of section 51(ii)—providing that Commonwealth laws with respect to taxation not ‘discriminate between States as parts of States’—and section 99—requiring that a Commonwealth law or regulation of trade, commerce, or revenue not ‘give preference to

any one State of any part thereof over another state or any part thereof’—was affirmed by the unanimous decision in *Fortescue Metals Group Ltd v Commonwealth*.¹⁴ The *Minerals Resource Rent Tax Act 2012* (Cth) applied a formula for calculating the federal tax which exacted greater revenue from those whose mining operations were conducted in a State with a lower mining royalty rate than from those in a State with a higher royalty rate. But there was thereby no discrimination or preference within the meaning of section 51(ii) and section 99.

In *Fortescue* French CJ emphasized that section 51(ii) and section 99 operated at a level appropriate to their ‘federal purposes’ in both protecting ‘the economic union which came into existence upon creation of the Commonwealth’ and ‘the formal equality in the Federation of the States *inter se* and their people’.¹⁵ This illustrates the proposition, which will be tested in what follows in this chapter, that while, as Sir Maurice Byers put it, ‘[i]n a real sense nationalism permeates the Constitution’¹⁶ so also does the division of responsibilities between the components of the federation.

The economic union effected by the Constitution is the subject of [chapter 34](#) ‘The Passage Towards Economic Union in Australia’s Federation’. The focus of this chapter is upon the ‘one people’, of which Deakin spoke. In particular the focus is upon (i) the absolute freedom of intercourse among the States of which section 92 commands; (ii) the absence of disability or discrimination required by section 117; (iii) the operation of section 109 not only to adjust relations between Commonwealth and State legislatures but to meet the entitlement of ‘the ordinary citizens ... to know which of two inconsistent laws he is required to observe’;¹⁷ (iv) the uniform quality of justice throughout the Commonwealth to which these ‘ordinary citizens’ would be entitled to expect; (v) the relationship between ‘the people’, the franchise, and citizenship; and (vi) what on occasion has been identified as the implied ‘nationhood’ legislative power of the Parliament, or ‘nationhood’ as an attribute of the executive power of the Commonwealth.

B. FREEDOM OF INTERCOURSE AMONG THE STATES

In *R v Smithers; Ex parte Benson*¹⁸ the High Court (Griffith CJ, Barton, Isaacs, Higgins JJ) quashed the conviction of Benson under the *Influx of Criminals Prevention Act 1903* (NSW) for, not being a resident of New

South Wales, having ‘come into’ that State within three years after completing a sentence of imprisonment in Victoria (for having insufficient means of support). Griffith CJ and Barton J decided the case on the footing that the mere fact of federation, assured to every free citizen (it may be noted that John Benson was a British subject born in Victoria) the right of access from one State to another, even where a State sought to exclude those it regarded as undesirables.¹⁹ Both Isaacs J and Higgins J relied upon section 92. No member of the Court relied upon section 117. Higgins J emphasized that it was impossible to give any adequate meaning in section 92 to ‘intercourse’ added to ‘trade’ and ‘commerce’ without resorting to its Latin origin (*intercurrere*), which was not limited to intercourse of trade.²⁰ The reading of section 92 rejected the submission by the respondent²¹ that the phrase ‘trade, commerce, intercourse’ was to be *ejusdem generis*; nor did it explain the curiosity of limiting the commencement of the right of intercourse for non-commercial purposes to the time of the imposition of uniform duties of customs upon which section 92 is expressed to turn. Hence, perhaps, the reliance by Griffith CJ and Barton J upon more general considerations of national unity.

The later development of the ‘individual rights’ construction of section 92 readily accommodated the approach taken by Isaacs J and Higgins J in *Smithers. Gratwick v Johnson*²² concerned the travel in 1944 by Miss Dulcie Johnson by rail from Perth to Sydney to visit her fiancé, but without a travel permit required by paragraph 3 of an Order made under the National Security (Land Transport) Regulations. The Court of Petty Sessions in Perth dismissed the complaint on the ground that paragraph 3 was incompatible with section 92 and invalid. The High Court agreed in its decision of 30 May 1945. Dixon J said that by operation of section 92, ‘[t]he people of Australia are thus free to pass to and fro among the States without burden, hindrance or restriction’.²³

Barwick KC was second counsel for Miss Johnson. He later told this writer that at the time he had regarded winning the case as a good foundation for reliance upon section 92 to defeat the looming nationalization proposals of the Chifley government.

In 1988 what might be called the Barwick legacy in interpretation of section 92 ended with *Cole v Whitfield*.²⁴ But the Court emphasized the dissection of section 92 so that a law may be invalid because it burdens or

restricts intercourse among the States even though it is not discriminatory or protectionist; these characterizations are not an essential feature of an impermissible burden on interstate intercourse, which is ‘a distinct and independent concept’ and had not been ‘added [to s 92] as some kind of afterthought to “trade” and “commerce”’.²⁵ Their Honours went on to repeat the words of Dixon J in *Gratwick* which are set out above.²⁶

But who comprise that class Dixon J identified in *Gratwick* as ‘the people of Australia’? The preposition is ‘of’ not ‘in’. This may exclude the visiting tourist, but is broad enough to include resident non-citizens.

In *Cole v Whitfield* the Court did contemplate some valid restrictions on interstate movement; it may be legitimate to authorize the arrest of a fugitive offender from one State ‘at the moment of his departure into another State’.²⁷

The relationship between the two limbs of section 92 and the scope of the freedom of interstate movement remains indeterminate, but some guidance is found in *AMS v AIF*,²⁸ and *APLA Ltd v Legal Services Commissioner (NSW)*.²⁹

AMS concerned custody disputes. An order is made, otherwise within the jurisdiction conferred by statute, which has the practical operation of hindering or restricting the interstate movement of the custodial parent by obliging the parent not to change the principal place of residence of the child. The question then is whether section 92 puts beyond the relevant statutory power the making of orders whose practical effect is to impose an impediment upon the freedom of interstate intercourse of the custodial parent which is greater than reasonably required to achieve the object of the statute in question.³⁰ The parent is not restrained from departing the home State but cannot do so to change the principal place of residence of the child. The object of the statute is to secure and protect the welfare of the child. Much will depend upon the circumstances of the particular case. But *AMS* indicates that such orders may be within the scope of the empowering statute.

It is settled, at least since *Re F; Ex parte F*,³¹ and *Grain Pool of WA Ltd v Commonwealth*,³² that the one law may possess more than one constitutional character. The one law may attract section 92 both (i) as a law discriminating against interstate trade and commerce in a protectionist sense and (ii) as a law impeding freedom to pass among the States. The better

view is that in such instances validity is to be assessed exclusively by reference to (i), lest the anti-protectionist purpose of section 92 be undermined.³³

APLA concerned a New South Wales law which prohibited the publication by barristers and solicitors of certain advertisements of their services. The High Court (Gleeson CJ, Gummow, Hayne, Callinan, Heydon JJ) held that to the extent that the legal profession conducted trading or commercial activities, the law did not discriminate in a protectionist sense, and that, to the extent that the law extended to interstate communications which were not in trade or commerce (eg, advertising the provision of pro bono services) but which were intercourse for the operation of section 92, any impediment to interstate intercourse was, within the test applied in *AMS*, not greater than that reasonably required to achieve the object of the law. The object of the law could not be fully achieved if legal practitioners were permitted to direct from outside New South Wales to persons in that State advertisements with which the law was concerned. It should also be noted that there was no real dispute in *APLA* that the ‘intercourse’ referred to in section 92 includes communication by means of the Internet and other electronic methods.³⁴

Something should be added respecting the special position of the Australian Capital Territory as containing the seat of the government of the Commonwealth provided by section 125 of the Constitution. There is implicit in the Constitution an absence of State legislative power to forbid, restrain, or impede access to the Territory as the centre of national government.³⁵

C. SECTION 117

Clause 17, Chapter V of the draft of 1891 had provided:

A State shall not make or enforce any law abridging any privilege or immunity of citizens of other State of the Commonwealth, nor shall a State deny to any person, within its jurisdiction, the equal protection of the laws.

The affinity to article IV, section 2 and section 1 of the Fourteenth Amendment of the United States Constitution will be apparent. The former speaks of entitlement to ‘privileges and immunities’, the latter to ‘the equal protection of the laws’, and both are addressed to ‘citizens’.

In its final form, what stands as section 117 of the Constitution uses none of these terms. Rather, the addressees are not citizens but subjects of the Queen, who are resident in any State, and they are shielded from certain disabilities or discrimination. Moreover, the reasoning in decisions such as *Leeth v Commonwealth*,³⁶ to which reference has been made above, has been said to stand in the way of any implication proscribing federal laws which deny ‘the equal protection of the laws’ referred to in the Fourteenth Amendment.³⁷

Section 117 reads:

A subject of the Queen, resident in any State, shall not be subject in any other State to any disabilities or discrimination which would not be equally applicable to him if he were a subject of the Queen resident in such other State.

The phrase ‘a subject of the Queen’ is now to be read as identifying the Queen in right of Australia, and an Australian citizen.³⁸ This reading accommodates the evident purpose of section 117 in present conditions, where Australian law no longer provides for any status of ‘British subject’.³⁹ The protection of section 117 is not applicable to aliens resident in a State or to corporations and other artificial legal persons.

In *Street v Queensland Bar Association*⁴⁰ Brennan J remarked that (a) the protection or immunity provided by section 117 extends to the exercise of executive or judicial as well as legislative power, so that, for example, it would offend section 117 to impose a more severe sentence on an offender by reason of out-of-State residence,⁴¹ and (b) section 117 ‘cuts across the exercise of all government power’ conferring an immunity directly on individuals, not by a limitation upon the existence of the power itself. But is the ‘governmental power’ confined to that of a State? The tenor of the reasons of Mason CJ in *Street* suggests that the governmental power the exercise of which enlivens the protection of section 117 may be either that of a State or of the Commonwealth.⁴² But there appears to be no decision on that issue.

Restrictions upon admission of out-of-State legal practitioners have provided a fertile source of disputes concerning the operation of section 117. Since the amendment of section 55B of the *Judiciary Act 1903* (Cth) made in 1976⁴³ it has been very clear that any person entitled to practise as a barrister or solicitor, or as both, in any federal court has, in relation to the

exercise of federal jurisdiction by a court of a State, a 'right of audience' in that court. The provision does not refer to the recovery of fees by such a practitioner, but it did not need to do so because such entitlement 'essentially comes from the contract between the client and the practitioner'.⁴⁴

But what of the conduct of general legal practice by an out-of-State lawyer? The operation of section 117 upon 'dingo fences' erected first by South Australia and then by Queensland, attracted the attention of the High Court first in 1973 and then in 1989, with markedly different outcomes.

In *Henry v Boehm*⁴⁵ the High Court (Stephen J dissenting) upheld a South Australian admission requirement which on its face obliged the plaintiff, a Victorian resident practitioner, to have given up that residence and become a resident of South Australia for at least three months before making his application there. Barwick CJ considered that the plaintiff was not required by the South Australian law to give up his Victorian residency, although he resided *pro tem* in South Australia, and so suffered no disability or discrimination by reason of his Victorian residency.⁴⁶ Gibbs J emphasized that the discrimination spoken of as section 117 'must be based on residence alone'; a South Australian resident who was absent to study overseas would likewise fail to qualify for admission.⁴⁷ On the other hand, Stephen J looked to the situations of the particular out-of-State resident and comparison between the difficulty in his compliance with the admission requirement with that of a South Australian resident.⁴⁸ To express his Honour's conclusion in the terms of subsequent decisions concerning the constitutional concept of 'discrimination',⁴⁹ the South Australian law treated as equally applicable to all applicants a criterion (local residence for three months before application) which operated unequally; it did so by treating the 'unlike' as 'like', where such treatment was not appropriate and adapted to a proper objective.⁵⁰

*Street v Queensland Bar Association*⁵¹ unanimously overruled the majority decision in *Henry v Boehm*. The Queensland admission requirements for barristers (a) required an out-of-State barrister to be a Queensland resident and to cease to practise elsewhere, and, after amendment, (b) required the applicant to intend to practise 'principally' in Queensland and made eligibility for confirmation of conditional admission conditional upon such practise for one year. In both forms the requirements

were inapplicable to Mr Street, who was a barrister resident in New South Wales and did not intend to practise exclusively or principally in Queensland.

Gaudron J observed in *Street* the ‘framework of anti-discrimination legislation has, to a considerable extent, shaped our understanding of what is involved in discrimination’.

Because most anti-discrimination legislation tends to proceed by reference to an unexpressed declaration that a particular characteristic is irrelevant it is largely unnecessary to note that discrimination is confined to different treatment that is not appropriate to a relevant difference. It is often equally unnecessary to note that, if there is a relevant difference, a failure to accord different treatment appropriate to that difference also constitutes discrimination.⁵²

McHugh J succinctly expressed the operation of section 117 as follows:

What s 117 requires is a comparison between the actual position of the interstate resident and his hypothetical position as a resident in the legislating State. If a law operates so that an interstate resident would be worse off by reason of his residence than he would be if he were a resident in the State in question, s 117 will prevent the law operating to his detriment.⁵³

Gaudron J wrote to similar effect, noting that the focus of section 117 is entirely on the individual not a class or group, the comparison being between the actual person invoking section 117 and the position that person would enjoy if resident of the other State.⁵⁴

But the discrimination may be appropriate and adapted to a proper objective, being a necessary consequence of the position of the States in the federal system. McHugh J in *Street* explained the position as follows:

Matters which are the concern only of a State and its people and are not within the scope of section 117 would seem to include the franchise, the qualifications and conditions for holding public office in the State, and conduct which threatens the safety of the State or its people. No doubt there are other subject-matters which are also outside the reach of s 117. But since all exceptions to the terms of that section arise by necessary implication from the assumptions and structure of the Constitution, they must be confined to the extent of the need for them. The question is not whether a particular subject-matter serves the object of s 117; it is whether, by necessary implication, the matter is so exclusively the concern of the State and its people that an interstate resident is not entitled to equality of treatment in respect of it.⁵⁵

D. INCONSISTENCY

The Constitution was framed during the currency of doctrines which were associated with the writings of Jeremy Bentham and John Austin and have been identified as legal positivism. In that setting it is perhaps not surprising that Griffith CJ and Barton J regarded 'inconsistency' between legal commands as arising where it was impossible to obey both commands, and that there would be no inconsistency where concurrent obedience to Commonwealth and State laws was possible.⁵⁶ However, Austin had recognized that a federal system of government, such as, when he wrote, that in the United States, presented a particular problem; this was the issue of commands by more than one sovereign authority.⁵⁷

In Australia, the position of the federal government came to be seen as necessarily stronger than that of the States and this broadened the interpretation of section 109 to 'protect', as Dixon J put it, 'legal rights which were the immediate product of federal statute'.⁵⁸ Hence the statement by Mason J in his dissenting judgment in *University of Wollongong v Metwally*⁵⁹ that the nature and effect of section 109, no more and no less, is to establish the supremacy of Commonwealth law. Where a conflict with State law is removed by subsequent retrospective Commonwealth legislation, section 109 has no role to play, there being no longer a problem to be solved by insistence on the supremacy of Commonwealth law. Mason J added:

[Section 109] is not a source of individual rights and immunities except in so far as individual rights and immunities are necessarily affected because the section renders inoperative a State law which is inconsistent with a Commonwealth law. Nor is the section a source of protection to the individual against the unfairness and injustice of a retrospective law. That is a matter which lies quite outside the focus of the provision. In these circumstances to distil from s 109 an unexpressed fetter upon Commonwealth legislative power is to twist the section from its true meaning and stand it upon its head.⁶⁰

Nevertheless, that was not the view of the majority in *Metwally*, particularly Gibbs CJ and Deane J. The effect of their Honours' remarks is to limit the federal legislative power to enact retrospective legislation providing that it never was intended that a particular federal law was to exclude or limit the operation of State laws of a particular description. Gibbs CJ observed that section 109 not only adjusted relations between federal and State legislatures but was 'of great importance to the ordinary citizen, who is

entitled to know which of two inconsistent laws he is required to observe'.⁶¹ Deane J emphasized that, (i) 'the Australian federation was and is a union of people', (ii) the Constitution is 'ultimately concerned with the governance and protection of the people', (iii) section 109 protects the individual from the 'injustice of being subjected to requirements of valid and inconsistent [federal and State laws] on the same subject'.⁶² He concluded:

[W]hile the Commonwealth can retrospectively legislate for itself it cannot retrospectively impose *as State law* the provisions of a law which the Constitution has said was invalid because of contemporaneous inconsistency which has subsequently been removed. That is something which, if it is to be done, must be done retrospectively by the relevant State.⁶³

Murphy J spoke in similar terms.⁶⁴ Brennan J emphasized that while a federal law may be given a retrospective operation, it cannot retrospectively endow a State law with the force and effect of which it had been deprived by section 109.⁶⁵

The general observations of the majority in *Metwally* respecting the interest of the individual in relief against compliance with concurrent but inconsistent laws and the operation of section 109 to that end have been repeated in subsequent cases, but to a different end to that in *Metwally*. Rather than supporting a restraint upon the operation of an otherwise valid federal law, as in *Metwally*, the emphasis has been upon strengthening the position of the federal law in question at the expense of concurrent State law.

In *Croome v Tasmania*⁶⁶ the question was whether the plaintiff had a sufficient interest to support an action for a declaration that provisions of the *Criminal Code* (Tas) were inconsistent with a federal law providing that sexual conduct involving only consenting adults acting in private was not under State law to be subject to any arbitrary interference with privacy within the meaning of article 17 of the International Covenant on Civil and Political Rights. The Court rejected the submission by Tasmania that the action in the High Court was premature because the plaintiffs had not been prosecuted. The plaintiffs were 'entitled to know' whether, because the federal law prevailed, they were not required to observe the State law.

The expanding area of Commonwealth criminal law has given rise to particular difficulties where State law renders criminal conduct deliberately excluded from conduct proscribed by the federal law. In *Dickson v The*

Queen,⁶⁷ no room was left for the State law to attach more stringent criteria to the crime of conspiracy to steal property in the possession of the Commonwealth. If allowed to operate, the State law would impose upon the citizen obligations greater than those provided by federal law.

In *Momcilovic v The Queen*⁶⁸ the majority held that differences between penalties for federal and State drug trafficking laws did not attract the operation of section 109. Hayne J dissented, emphasizing:

[D]ifferent consequences of contravention are prescribed in an area of law where the Court has repeatedly stressed the importance of s 109 ‘not only for the adjustment of the relations between the legislatures of the Commonwealth and States, but also for the citizen upon whom concurrent and cumulative duties and liabilities may be imposed by laws made by those bodies’. To apply one law rather than the other, where the outcome of applying one differs from the outcome of applying the other, does not give *concurrent* operation to both.⁶⁹

And: “where the punishments to be exacted are to be fixed according to different provisions of differing content, it is a legal nonsense (a perfect solecism) to say that two laws directed to the same subject matter which each create a crime (with identical elements but different modes of trial and punishment) can coexist. A choice must be made between them in any case in which it is alleged that a person has done what each prohibits”.⁷⁰

By contrast, the majority fixed upon a federal provision which ‘rolled back’ the federal law by requiring that an offender punished under the State law not be punished for the federal offence. Gummow J, one of the majority, said:

That these outcomes are the consequence of decisions taken, or not taken, by the federal and State prosecution authorities has obvious significance for the citizen and for the place of s 109 in adjusting the relationship between the citizen on the one hand and the exercise of concurrent powers of federal and State legislatures on the other. However, this state of affairs is to be accepted as a product of the accommodations required by the federal system.⁷¹

E. UNIFORM QUALITY OF JUSTICE

There is both a doctrinal and an institutional dimension. In a doctrinal sense, this is assumed by section 73 of the Constitution. Since the final demise of Privy Council appeals by section 11 of the *Australia Act 1975* (Cth), section 73 operates to place the High Court at the apex of the judicial structure.

With respect to exercise of the judicial power of the Commonwealth by the High Court and other courts created by the Parliament, section 72 of the Constitution protects the tenure of the judges thereof, and, moreover, decisions of the High Court over a century have insulated the exercise of their judicial power from dilution or intrusion by a range of legislative executive measures. These matters are considered further in [chapter 28](#) ‘The Separation of Judicial Power’.

But what of the institutional position of State and Territory courts administering justice whether in the exercise of federal jurisdiction or jurisdiction under State or common law? The path to the answer was marked by Gaudron J when she said:

To put the matter plainly, there is nothing anywhere in the Constitution to suggest that it permits different grades or qualities of justice, depending upon whether judicial power is exercised by State courts or federal courts created by the Parliament.⁷²

The corollary, as expressed by the joint reasons in *New South Wales v Kable*,⁷³ is that a State law will be invalid if it requires a court of a State to act institutionally as a court but to perform a task that is inconsistent and incompatible with the institutional integrity of that court required by Chapter III of the Constitution. This limitation applies also to the laws of a Territory with respect to its courts.⁷⁴ A tendency to undermine public confidence in a court is indicative (albeit not the touchstone) of a law which impairs its institutional integrity.⁷⁵

F. ‘THE PEOPLE’ THE FRANCHISE AND CITIZENSHIP

The ‘one people’ to whom Deakin referred in his speech at Bendigo on 15 March 1898 were to be united ‘in the one indissoluble Federal Commonwealth’ under (a) the Imperial Crown and (b) the Constitution. The preamble to the *Commonwealth of Australia Constitution Act 1900* (Imp) was to so provide. The ‘one people’ were British subjects, but not all British subjects from any part of the Empire were to be free to join the ‘one people’ of Australia. From the outset, the *Immigration Restriction Act 1901* (Cth), based upon the immigration power in section 51(xxvii), provided to the contrary.

In 1908, O’Connor J said in *Potter v Minahan*:

Speaking generally, every person born within the British Dominions is a British subject and owed allegiance to the British Empire and obedience to its laws. Correlatively he is ... entitled ... to entry and residence in any part of the King's Dominions except insofar as that right has been modified or abolished by positive law. But the British Empire is subdivided into many communities, some of them endowed by Imperial Statute with wide powers of self-government, including the power to make laws which ... will operate to exclude from their territories British subjects of other communities of the Empire.⁷⁶

The concept of citizenship does not appear in the text of the Constitution, but section 51(xix) provides for laws with respect to 'Naturalisation and aliens'. What has been done is to treat this as a power to provide for citizenship. The subject is fully considered in [chapter 14](#) 'Citizenship'.

What is now styled the *Australian Citizenship Act 1948* (Cth) established 'Australian citizenship' but it then still was allied with the status of British subject: it was not until 1984 that the distinction between Australian citizens and non-citizens became pivotal to the operation of the migration and citizenship legislation.⁷⁷

Further, the 'one people' of whom Deakin had spoken were not co-extensive with those persons who were to elect the first Parliament of the Commonwealth. The qualification of electors for both the Senate and the House of Representatives was, in each State, to be that of electors of the more numerous House of that State (sections 8, 30). These sections were to be read with section 41. The establishment by the Parliament of the federal franchise (which occurred with the *Commonwealth Franchise Act 1902* (Cth) ('the 1902 Act')), was not to disenfranchise those persons enfranchised under State law at the establishment of the Constitution or who acquired that right under State law before the 1902 Act. Their federal franchise was protected by section 41 of the Constitution.⁷⁸ In this way section 41 continued to protect the federal franchise enjoyed before the 1902 Act in South Australia and Western Australia by reason of the electoral laws of those States. Aborigines had had limited voting rights in some States.⁷⁹

The 1902 Act enfranchised all persons not under twenty-one years of age who were enrolled, were British subjects, and who had lived in Australia for six months continuously (section 3), but excluded (section 4) all 'coloured races', except New Zealanders and those protected by section 41 of the Constitution.

The protracted legislative history of the removal of racial disqualification was traced by Murphy J in his dissenting judgment in *Re Pearson; Ex parte*

Sipka.⁸⁰ Murphy J, in 1983, saw section 41 as a continuing constitutional guarantee extending beyond what the majority saw as a class of electors closed upon the coming into force of the 1902 Act. But the course of judicial decision since *Pearson* has led to a somewhat similar outcome by another route.

First, the constitutional phrases ‘representative government’ (as a description of Chapter I, sections 1–60) and ‘chosen by the people’ (sections 7, 24) at least since *McGinty v Western Australia*⁸¹ was decided in 1996 are understood as requiring an irreversible universal franchise, albeit not requiring ‘one vote one value’ beyond relative equality in the number of electors in electoral divisions.⁸² Secondly, legislation restricting the exercise of the franchise by certain disqualified persons (as in *Roach v Electoral Commissioner*)⁸³ or by closing the electoral roll very shortly after the issue of writs for an election (as in *Rowe v Electoral Commissioner*)⁸⁴ fell foul of the constitutional imperative ‘chosen by the people’; while the Constitution allows for legislative judgment in such matters as compulsory and preferential voting and registration of political parties, there must be a ‘substantial reason’ for excluding any adult citizen from exercise of the franchise.⁸⁵

Given these developments, statements of principle, respecting the system of representative government provided by the Constitution, which are made in the joint reasons of five Justices in *Unions NSW v New South Wales*⁸⁶ take the reader back to the aspirations expressed by Deakin in 1896. They do so by identifying the political sovereignty of and residing in the people of the Commonwealth and exercised by their representatives, and, one should add, by the referendum procedures of section 128 of the Constitution.

G. NATIONHOOD

In *Pape v Federal Commissioner of Taxation* Gummow, Crennan and Bell JJ, from their vantage point in 2009, observed that:

[I]t is as well to recall that references to ‘nationhood’ and the like in the decisions of this Court may be traced to its earliest years. In *Commissioners of Taxation (NSW) v Baxter*, Griffith CJ, Barton and O’Connor JJ said:

The object of the advocates of Australian federation, then, was not the establishment of a sort of municipal union, governed by a joint committee, like the union of parishes for the administration of the Poor Laws, say in the Isle of Wight, but the foundation of an Australian Commonwealth embracing the whole continent with Tasmania, having a national character, and exercising the most ample powers of self-government consistent with allegiance to the British Crown.

It has also long been recognised that in ascertaining the boundaries of the authority of the Executive Government of the Commonwealth in any given situation there will be a need to deal, as Isaacs J put it, with ‘new positions which the Nation in its progress from time to time assumes.’⁸⁷

Nevertheless, it is only in comparatively recent times that there has been a general acceptance that the content of the executive power of the Commonwealth to which section 61 of the Constitution refers is more than what may be identified as those prerogative powers of the Crown in right of the United Kingdom which are appropriate to the Australian federal executive government;⁸⁸ greater emphasis is now given to the role of section 61 for the status of Australia as an independent, modern, and federal polity.

In 1975, Barwick CJ wrote:

Whilst the new Commonwealth was upon its creation the Australian colony within the Empire, the grant of the power with respect to external affairs was a clear recognition, not merely that, by uniting, the people of Australia were moving towards nationhood, but that it was the Commonwealth which would in due course become the nation state, internationally recognized as such and independent. ... Section 61, in enabling the Governor-General as in truth a Viceroy to exercise the executive power of the Commonwealth, underlines the prospect of independent nationhood which the enactment of the Constitution provided.⁸⁹

In what now follows the focus is not upon the international aspect of the nationhood to which Barwick CJ referred, but upon its domestic significance for the exercise of the executive and legislative power of the Commonwealth to foster national unity. This will require the attention to significant shifts over the last seventy years in the approach of the High Court to these matters. There will be disclosed, as Isaacs J foretold, development in the scope of the executive power. This, in combination with the legislative power conferred by section 51(xxxix) with respect to matters incidental to the execution of the executive power of the Commonwealth,

renders it unnecessary both to infer an unstated 'nationhood' legislative power or to infer an appropriation and spending power sourced in sections 81 and 83 of the Constitution for 'nationhood' as one of 'the purposes of the Commonwealth.'

In 1945, in the *Pharmaceutical Benefits Case*⁹⁰ Starke J read section 81 as including as a 'purpose of the Commonwealth', 'matter arising from the existence of the Commonwealth and its states as a Federal Government' and Dixon J spoke of 'whatever is mandated to the existence of the Commonwealth as a state and to the exercise of the functions of a national government'. However, it has since been settled by *Pape v Federal Commissioner of Taxation*⁹¹ that no substantive spending power is conferred by the appropriation provisions in sections 81 and 83 and that the power to spend moneys must be found elsewhere in the Constitution and in statutes made under it.

Further, since *Thomas v Mowbray*⁹² it is clear that the defence power in section 51(vi) is not limited to defence of the body politic and its citizens or inhabitants against external aggression, in particular, by the waging of war by nation states, as occurred in 1914 and 1939. This has made it unnecessary to base anti-terrorist legislation such as that considered in *Thomas v Mowbray* on what in the *Communist Party Case*⁹³ Fullagar J had seen as a combination of the executive power, located in section 61 and section 51(xxxix).

The significance for present purposes of the *Communist Party Case* lies in the antipathy expressed there by Dixon J to any such expansive reading of the executive power, in conjunction with section 51(xxxix), to produce 'a power to legislate with respect to designs to obstruct the course of government or to subvert the Constitution'; history, 'and not only ancient history, shows that in countries where democratic institutions have been unconstitutionally superseded, it has been done not seldom by those holding the executive power'.⁹⁴ Rather, Dixon J preferred the view adopted in the United States. This he saw as supporting the legislative power of the Congress to deal with subversive activities as a matter of deduction not only from what was inherent in the establishment and character of the body politic set up by the Constitution but also, and more particularly, from the power of the Congress under article I, section 8, clause 18, to make laws 'necessary and proper' for carrying into execution the powers the

Constitution vests in the Congress ‘and in the Government as in any Department or officer thereof’.⁹⁵ Dixon J described the authority to deal with subversive activities as an implied power of the Congress and said that the considerations giving rise to it ‘exist in the Commonwealth Constitution’.⁹⁶

There are several difficulties with this reasoning. First, long before Dixon J wrote in the *Communist Party Case*, the affinity between the ‘necessary and proper’ clause and section 51(xxxix) had been noted by Quick and Garran.⁹⁷ The expression ‘incidental to the execution’ of any power vested by the Constitution ‘in the Government of the Commonwealth’ reflected the terms of clause 18 of article 1, section 8, and was understood by Quick and Garran as identifying the executive power of the Commonwealth. Secondly, beyond the ‘necessary and proper’ clause in article 1, section 8, Professor Tribe sees ‘inherent legislative powers’, outside the conduct of foreign affairs, as limited to such ‘peripheral’ matters as the power to authorize construction of national movements and protection of national symbols by such measures as the *Flag Protection Act of 1989*.⁹⁸

Nevertheless, in *Davis v Commonwealth*⁹⁹ Mason CJ, Deane and Gaudron JJ cited the views of Dixon J in the *Communist Party Case* in support of their tentative conclusion that, without recourse to section 51(xxxix), the *Australian Bicentennial Authority Act 1980* (Cth) might be supported by a legislative power ‘deduced from the nature and status of the Commonwealth as a national polity’. However, in *Davis* Wilson and Dawson JJ¹⁰⁰ were ‘unable to conceive of an implication of the kind described [by Dixon J] that would not be sufficiently and accurately described in the terms of s 61 supported by s 51(xxxix)’, and went on to discountenance the notion that the Commonwealth Parliament has power to legislate with respect to anything that it ‘regards as of national interest and concern’. Toohey J said he was in general agreement with the view of Wilson and Dawson JJ.¹⁰¹

Concepts of ‘nationhood’ and ‘national unity’ are vague notions to apply in sourcing a head of federal legislative power outside the specific distribution of concurrent and exclusive power made by section 51 and section 52 of the Constitution.

In the period before *Davis*, in *Victoria v Commonwealth* (‘the *APP Case*’)¹⁰² Barwick CJ¹⁰³ observed that the extent of powers inherent in the

fact of nationhood had not been fully explored, and Gibbs J¹⁰⁴ said that it seemed to be correct that, beyond section 51 and section 52, the Parliament had power to legislate with respect to matters ‘incidental to the existence of the Commonwealth as a state and to the exercise of its powers as a national government’.

But in the *AAP Case*, Mason J¹⁰⁵ was more circumspect, inferring ‘from the presence of ss 51(xxxix) and 61 a capacity to engage in enterprises and activities peculiarly adapted to the government of a nation and which cannot otherwise be carried on for the benefit of the nation’. It is that approach which does not rely on any implied ‘nationhood’ legislative power beyond section 51(xxxix) in conjunction with section 61 which was followed by the majority in *Pape v Federal Commissioner of Taxation*¹⁰⁶ in upholding the validity of the \$250 ‘tax bonus’ legislation passed after the Global Financial Crisis. This approach bypassed the submission in *Pape* by the Commonwealth that, relying upon what Dixon J had said in the *Communist Party Case*,¹⁰⁷ there is Commonwealth legislative power ‘derived simply from nationhood’.¹⁰⁸ The minority in *Pape* (Hayne, Kiefel and Heydon JJ) rejected the availability of any ‘nationhood’ power to support the payment of the ‘tax bonus’. Heydon J considered the ‘nationhood power’ was open to the objection that it permitted ‘the central government ... to characterise or define its way into legislative power on its own initiative’;¹⁰⁹ moreover, the Parliament had extensive express powers to legislate with respect to the national economy and section 51(xxxix) and section 61 supported legislation with respect to sedition.¹¹⁰

The upshot is that there remain questions as to the scope of section 61 respecting matters of ‘nationhood’ and ‘national unity’. An example of section 61 dealing with such matters without legislative backing is the Proclamation by the Governor-General on 19 April 1984 of ‘Advance Australia Fair’ as the National Anthem. Another is the Letters Patent of 14 February 1975 establishing the Order of Australia. An early example of legislation supported by section 61 and section 51(xxxix) would be the *Coronation Celebration Act 1902* (Cth). More recent examples are the *Royal Style and Titles Act 1973* (Cth) and various provisions in the *Governor-General Act 1974* (Cth) including the provision for the Office of Official Secretary to the Governor-General.

Prudently, and perhaps necessarily, the *Succession to the Crown Act 2015* (Cth), which changes the law of succession to the Crown ‘in all its capacities’ (section 5), and the law respecting royal marriages, recites the request under section 51(xxxviii) of the Constitution of the Parliaments of all the States.

Unlike *Pape, Williams v Commonwealth [No 1]*¹¹¹ did not involve a national disaster or natural or other emergency in which only the Commonwealth had the means to provide a prompt response. In *Williams* the High Court answered ‘yes’ to the question whether funding agreements, bypassing the States, for the School Chaplain Programme were beyond the executive power of the Commonwealth.

Other than the appropriation of moneys there was in *Williams* no legislative backing for the agreements. The High Court noted that without legislation the Executive cannot enforce its will by the creation of new offences, nor has the Executive power to dispense with compliance with the statute law of the Commonwealth.¹¹² These considerations may curtail further reliance by the Executive upon section 61 without supporting legislation.

¹ Winston McMinn, *A Constitutional History of Australia* (OUP 1979) 102.

² The text of the speech is reproduced as the appendix to Alfred Deakin, *And Be One People* (Melbourne UP 1995) 175–78.

³ Leslie Finlay, *Federation Fathers* (Melbourne UP 1990) 382–83.

⁴ Gay (1865–97) had corresponded with Deakin in the last years of his life: National Centre of Biography, *Australian Dictionary of Biography*, vol 8 (Melbourne UP 1981).

⁵ Stephen Gageler, ‘Foundation of Australian Federalism and the Role of Judicial Power’ (1987) 17 *Federal Law Review* 162, 173.

⁶ *Australian Boot Trade Employees Federation v Whybrow & Co* (1910) 10 CLR 266, 297.

⁷ *The Amalgamated Society of Engineers v The Adelaide Steamship Company Ltd* (1920) 28 CLR 129 (‘Engineers’ Case’).

⁸ *Victoria v Commonwealth* (1971) 122 CLR 353, 396.

⁹ (1989) 168 CLR 461, 485.

¹⁰ (1992) 174 CLR 455, 487–88.

¹¹ *ibid* 487.

¹² *ibid* 489.

¹³ *ibid* 467.

¹⁴ (2013) 250 CLR 548, 561–63 [3]–[5], 603–07 [110]–[125], 623 [175]–[176], 625 [183], 635–36 [223]–[227].

- ¹⁵ *ibid* 561 [3]–[5].
- ¹⁶ Gareth Evans (ed), *Labor and the Constitution 1972–1975* (Heinemann 1977) 67.
- ¹⁷ *University of Wollongong v Metwally* (1984) 158 CLR 447, 458 (Gibbs CJ). Deane J at 477 spoke of s 109 protecting the individual from the injustice of subjection to valid but inconsistent State and federal laws.
- ¹⁸ (1912) 16 CLR 99.
- ¹⁹ *ibid* 109, 109–10 respectively. Murphy J expressed a similar view of s 92 in *Buck v Bavone* (1976) 135 CLR 100, 137.
- ²⁰ *Smithers* (n 18) 117–18.
- ²¹ *ibid* 103.
- ²² (1945) 70 CLR 1.
- ²³ *ibid* 17.
- ²⁴ (1988) 165 CLR 360.
- ²⁵ *ibid* 387–88.
- ²⁶ *ibid* 393.
- ²⁷ *ibid*.
- ²⁸ (1999) 199 CLR 160.
- ²⁹ (2005) 224 CLR 322.
- ³⁰ *AMS* (n 28) 178–79 [43]–[45], 232–33 [221], 249–50 [278].
- ³¹ (1986) 161 CLR 376.
- ³² (2000) 202 CLR 479, 492 [16].
- ³³ *APLA* (n 29) 353–54 [39], 390 [164], 458 [408]–[409]; James Stellios, *Zines's The High Court and the Constitution* (6th edn, Federation Press 2015) 195.
- ³⁴ *APLA* (n 29) 392 [170].
- ³⁵ *Pioneer Express Pty Ltd v Hotchkiss* (1958) 101 CLR 536, 549–50 (Dixon CJ); *Higgins v Commonwealth* (1998) 79 FCR 528, 534–36.
- ³⁶ *Leeth* (n 10).
- ³⁷ *Baker v The Queen* (2004) 223 CLR 513, 533 [45] (McHugh, Gummow, Hayne and Heydon JJ).
- ³⁸ *Street* (n 9) 525, 572.
- ³⁹ *Shaw v Minister for Immigration and Multicultural Affairs* (2003) 218 CLR 28, 43 [30].
- ⁴⁰ *Street* (n 9) 504.
- ⁴¹ A State court has no inherent power to order an out-of-State plaintiff to provide security for costs and a Rule of Court to that effect is ineffective: *Australian Building Construction Employees' and Builders' Labourers Federation v Commonwealth Trading Bank* [1976] 2 NSWLR 371.
- ⁴² *Street* (n 9) 486.
- ⁴³ By the *Judiciary Amendment Act 1976* (Cth), s 12.
- ⁴⁴ *Cannon Street Pty Ltd v Karedis* (2006) 226 FLR 273, 280 [29].
- ⁴⁵ (1973) 128 CLR 482.
- ⁴⁶ *ibid* 489–490. Menzies J at 493 spoke to similar effect.
- ⁴⁷ *ibid* 498.
- ⁴⁸ *ibid* 502–03.
- ⁴⁹ *Fortescue* (n 14) 578 [35], 600–01 [102]–[103], 629–30 [202].
- ⁵⁰ *Austin v Commonwealth* (2003) 215 CLR 185, 247 [118].
- ⁵¹ *Street* (n 9) .

- ⁵² *ibid* 571.
- ⁵³ *ibid* 582.
- ⁵⁴ *ibid* 566.
- ⁵⁵ *ibid* 584.
- ⁵⁶ *Whybrow & Co* (n 6) 286, 289.
- ⁵⁷ John Austin, *The Province of Jurisprudence Determined* (John Murray 1832) 261–64.
- ⁵⁸ *Commonwealth v Cigamatic Pty Ltd* (1962) 108 CLR 372, 378.
- ⁵⁹ *Metwally* (n 17) 462–63.
- ⁶⁰ *ibid* 463.
- ⁶¹ *ibid* 458.
- ⁶² *ibid* 476–77.
- ⁶³ *ibid* 479.
- ⁶⁴ *ibid* 469.
- ⁶⁵ *ibid* 475.
- ⁶⁶ (1997) 191 CLR 119.
- ⁶⁷ (2010) 241 CLR 491, 504 [22].
- ⁶⁸ (2011) 245 CLR 1.
- ⁶⁹ *ibid* 143 [347] (citations omitted).
- ⁷⁰ *ibid* 146 [357].
- ⁷¹ *ibid* 114–15 [256].
- ⁷² *Kable v DPP (NSW)* (1996) 189 CLR 51, 103.
- ⁷³ (2013) 252 CLR 118, 127–28 [15]–[17].
- ⁷⁴ *North Australian Aboriginal Legal Service Inc v Bradley* (2004) 218 CLR 146; *A-G (NT) v Emmerson* (2014) 253 CLR 393.
- ⁷⁵ *North Australian Aboriginal Justice Agency Ltd v Northern Territory of Australia* (2016) 90 ALJR 38, 54–55 [40], 68 [124].
- ⁷⁶ (1908) 7 CLR 277, 305.
- ⁷⁷ *Re Patterson; Ex parte Taylor* (2001) 207 CLR 391, 398–99 [2]–[4].
- ⁷⁸ *Re Pearson; Ex parte Sipka* (1983) 152 CLR 254.
- ⁷⁹ *ibid* 269.
- ⁸⁰ *ibid* 269–71.
- ⁸¹ (1996) 186 CLR 140, 166–67, 201, 221–22, 287.
- ⁸² *Stellios* (n 33) 606–07.
- ⁸³ (2007) 233 CLR 162.
- ⁸⁴ (2010) 243 CLR 1.
- ⁸⁵ *Roach* (n 83) 174–75 [7]–[8], 198–99 [81]–[85].
- ⁸⁶ (2013) 252 CLR 530, 548 [17]. See also at 578 [135] (Keane J).
- ⁸⁷ (2009) 238 CLR 1, 84–85 [218] (citations omitted).
- ⁸⁸ See *Re Ditfort; Ex parte Deputy Commissioner of Taxation* (1988) 19 FCR 347, 369; Nicholas Condylis, ‘Debating the Nature and Ambit of the Commonwealth’s Non-Statutory Executive Power’ (2015) 39 Melbourne University Law Review 1, 7–12.
- ⁸⁹ *Seas and Submerged Lands Case* (1975) 135 CLR 337, 373.

⁹⁰ *A-G (Vic) v Commonwealth* (1945) 71 CLR 237, 266 (Starke J), 269 (Dixon J) ('*Pharmaceutical Benefits Case*').

⁹¹ *Pape* (n 87).

⁹² (2007) 233 CLR 307.

⁹³ *Australian Communist Party v Commonwealth* (1951) 83 CLR 1, 259 ('*Communist Party Case*').

⁹⁴ *ibid* 187.

⁹⁵ *ibid* 188.

⁹⁶ *ibid*.

⁹⁷ John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (Angus and Robertson 1901) 651–53, 655.

⁹⁸ Laurence Tribe, *American Constitutional Law*, vol 1 (3rd edn, Foundation Press 2000) 806–07.

⁹⁹ (1988) 166 CLR 79, 95.

¹⁰⁰ *ibid* 102.

¹⁰¹ *ibid* 117.

¹⁰² (1975) 134 CLR 338.

¹⁰³ *ibid* 362.

¹⁰⁴ *ibid* 375.

¹⁰⁵ *ibid* 397.

¹⁰⁶ *Pape* (n 87) 60–61 [128] (French CJ), 87–88 [228] (Gummow, Crennan and Bell JJ).

¹⁰⁷ *Communist Party Case* (n 93) 187–89.

¹⁰⁸ *Pape* (n 87) 10.

¹⁰⁹ *ibid* 176 [508].

¹¹⁰ *ibid* 176–77 [509].

¹¹¹ (2012) 248 CLR 156.

¹¹² *ibid*.

CHAPTER 18

AUSTRALIA IN THE INTERNATIONAL ORDER

HILARY CHARLESWORTH*

THE major subject of the international legal order is the nation state. Statehood is a closely monitored category, requiring both conformity with a set of requirements (a permanent population; a defined territory; government; and capacity to enter into relations with other states) as well as recognition by other states.¹ As Anne Twomey's [chapter 4](#) 'Independence' explains, the precise point at which Australia achieved this status is unclear. The Australian colonies had begun to enter into postal treaties with other states in the 1870s, but the Imperial government held firmly onto power to negotiate non-commercial, political treaties on the basis of the need for Imperial unity.² This led to tension with some Colonial politicians, notably Alfred Deakin, who complained that the Imperial government did not take the interests of the colonies seriously enough, particularly with respect to New Guinea and the New Hebrides.³

Federation and the adoption of the Australian Constitution in 1901 were significant steps on the path to independent statehood. The British government, however, continued to retain power over critical aspects of Australia's foreign policy, for example the capacity to enter into treaties. Stephen Donaghue's [chapter 10](#) 'International Law' describes the rather muddled debates during the drafting of the Constitution over references to treaties, caused by the drafters' diffidence about taking over treaty-making powers from Britain. By the end of the First World War, Australia, as other Imperial Dominions, began to assert a role in foreign policy. A contemporary observer noted that:

[T]hough the Dominions had had no opportunity of deciding whether or not they should be involved in the war, it was reasonable and just that their views should be considered when the time came for making peace. Their sacrifices in men and money had been so heavy that it would have been most unfair to deny them representation of some type at the Peace negotiations.⁴

Australia signed the Treaty of Versailles as a member of the British Empire and became a party to the Covenant of the League of Nations in 1919, with that document specifically allowing for membership of ‘fully self-governing’ Dominions and colonies.⁵ There were vigorous objections to the membership of the four British Dominions (Canada, Australia, New Zealand, and South Africa) and India from other countries which saw this as a crude attempt to increase British influence in the League.⁶ Indeed this was one reason for the United States’ refusal to ratify the Treaty of Versailles and to become a member of the League.⁷ Australia finally gained independent treaty capacity through the Imperial Conferences of 1923 and 1926.⁸ The British Parliament gave up its power to legislate in a way that bound the Australian Parliament with the adoption of the Statute of Westminster in 1931, thus confirming Australia’s status as a sovereign state at international law.

Over the last century Australia’s engagement with the international legal order has fluctuated. It was strikingly slow initially to exploit its power to negotiate treaties,⁹ but by the time of the Second World War, it was keen to assert (in Dr H V Evatt’s words) its ‘full status in every aspect of its external relationships’.¹⁰ In the following decades, Australia played a cautious role internationally, but launched a more profound engagement in the 1970s. Today, Australia is deeply involved in the international legal order, participating in myriad international and regional institutions and treaty regimes. Elsewhere in this volume, Stephen Donoghue analyses this relationship from the perspective of the Australian legal system, pointing out that international law has had a significant, if indirect, influence on the development of Australian law. This chapter focuses by contrast on the perspective of the international legal order, meaning international legal institutions and systems of regulation, and how Australia has engaged with it.

Two images recur in discussions of Australia’s role internationally, particularly in governmental rhetoric. One is the both descriptive and normative claim that Australia has performed, or should perform, as a ‘good

international citizen'.¹¹ This usually means that Australia has put aside narrow ideas of national interest in international affairs and become involved in 'problems without passports' that affect the global community, such as poverty alleviation, environmental degradation, and nuclear arms control.¹² The other image is the rather pugilistic one of 'punching above its weight', depicting Australia's valiant role engaged in the international community, contributing more than might be expected as a 'middle' power, somewhere on the spectrum between 'great' or 'super' powers and 'fragile' or 'failing' states.¹³ These images capture some aspects of Australia's relationship to the international legal order, but they also obscure others. Australia is generally prepared to contribute to and accept international legal standards in a wide range of contexts. However, in some areas, it has been reluctant to give them domestic heft, failing to implement international regimes fully in Australian law, particularly if they concern human rights or the rights of refugees. For some commentators, indeed, the undifferentiated category of 'international law' has become a symbol of peril, a source of extravagant and chaotic norms that diminish Australian sovereignty.¹⁴

This chapter offers an account of Australia's engagement with the international legal order, through different aspects of the relationship: designing international institutions, litigating in the World Court, and implementing international standards. These are only fragments of the full picture, but they illustrate both Australia's embrace of and distancing from the international legal order.

A. AUSTRALIA AND INTERNATIONAL INSTITUTION-BUILDING

As is typical of middle powers,¹⁵ Australia has been enthusiastic about the formation of international institutions. It participated actively in the drafting of the Covenant of the League of Nations, intervening successfully to resist the recognition of racial equality of members of the League. Japan had proposed amending the draft preamble to endorse 'the principle of equality of Nations and the just treatment of their nationals'. Although the Japanese delegation emphasized that this wording would not restrict the immigration policies of League members, Australia was alarmed.¹⁶ Prime Minister Billy Hughes worried that such a clause would mean that:

Our White Australia Policy would be a pricked bladder. Our control of immigration laws would be so much waste paper. When I first heard of it I could not believe that the [Covenant-drafting] committee would dream of even toying with such a proposal.¹⁷

A majority of nations present at Versailles supported the Japanese proposal, but the Chairman of the Conference, United States President Woodrow Wilson, ruled that the decision should be unanimous and the amendment thus failed. The Australian position unsurprisingly caused significant tension in its relations with Japan.¹⁸

Australia's second major impact on the drafting of the Covenant concerned the terms of the mandate system—the structure for the governance of territories held by the defeated powers in the First World War, Germany and Turkey. Australia was angling for the broadest control possible over the German colonies in the Pacific for which it would be granted a mandate, after an initial bid for annexation of the territories failed.¹⁹ Article 22 of the Covenant of the League of Nations, which established the mandate system, applied to territories ‘inhabited by peoples not yet able to stand by themselves under the strenuous conditions of the modern world’ and specified three classes of mandates, categorized according to the assumed sophistication of the inhabitants of the territory. Thus Class A mandates (granted, for example, over parts of the Ottoman Empire—Palestine, Mesopotamia, and parts of Syria) allowed simply for advice and assistance to the population ‘until such time as they can stand alone’. Class B mandates applied in the case of populations as found, for example, in Togoland, the Cameroons, and German East Africa, and contemplated actual administration of government by the mandatory power, subject to various conditions such as the guarantee of freedom of conscience and religion.

Australia was particularly active in the drafting of the terms of Class C mandates, which would apply to smaller, remote, or sparsely populated territories, such as New Guinea. Despite Japan's concerns that an Australian administration would extend the White Australia Policy to New Guinea,²⁰ Billy Hughes, aided by the drafting skills of J G Latham,²¹ finally persuaded the Conference that such territories should be governed directly ‘as an integral portion’ of the mandatory power. Apart from New Guinea, Australia also administered Nauru under a Class C mandate for the British Empire as formal mandate holder. The mandates were all to be guided by

the principle that ‘the well-being and development of [the] ... peoples [living in these territories] form a sacred trust of civilisation’.²²

Australia encountered regular criticism over its administration of its mandates in the League’s Permanent Mandates Commission. With respect to New Guinea, Australia’s main focus was to prevent Japan using the islands as a launching point to attack Australia and it displayed little interest in the welfare of the inhabitants of the territory.²³ During Australia’s administration of Nauru under both the League and the United Nations, much of the territory was mined for phosphate, depleting the land irreparably, and leading in the 1990s to litigation in the International Court of Justice (ICJ), described below.

With the founding of the United Nations, the mandate system was renamed as a system of trusts, under the supervision of the UN Trusteeship Council. Australia’s responsibilities with respect to New Guinea and Nauru continued until their independence in 1975 and 1968 respectively, and consistently attracted international criticism for their inattention to the social, economic, and political development of the territories’ populations.²⁴

Australia played a modest role in the League of Nations, serving once on the Council in 1934–36, with former Prime Minister Stanley Melbourne Bruce as Australia’s delegate. As in the drafting process of the Covenant, Australia’s concerns appeared more defensive than creative. Its constant objections to the level of its contributions to the budget of the League gained Australia a reputation for parsimony.²⁵ It also made regular complaints that the League took on too many ‘domestic questions which were not truly international in character’, such as immigration and customs tariffs.²⁶ Participation in the League, however, transformed Australia’s international outlook from that centred on the British Empire to a more global one, providing a valuable ‘school for international citizenship’ for the young federation.²⁷

By 1945, Australia was prepared to play a broader role in the design of the League’s successor institution, the United Nations. Led by Australia’s Minister for External Affairs, Dr H V Evatt, Australia was an influential participant at the San Francisco conference in 1945 which drafted the UN Charter. Evatt saw this as a chance to compensate for the failures of the League, and championed the interests of smaller states against those of the Great Powers. He ensured that article 2(4) of the Charter, the crucial

prohibition on the use of force in international relations, recognized the territorial integrity and independence of individual states.²⁸ Another significant legacy of Evatt's advocacy is the UN's capacity to deal with economic and social problems. The Dumbarton Oaks draft, prepared by the Great Powers in 1944 and discussed at San Francisco, had focused on political responses to threats to peace above all and, while the draft proposed the establishment of an Economic and Social Council, it was relegated to subsidiary status. Evatt dismissed the Dumbarton Oaks proposal as 'anaemic' and argued at San Francisco for greater attention to international economic and social co-operation, particularly full employment, as the basis for peace.²⁹ Although the Great Powers were distinctly cool towards his crusade, Evatt managed to negotiate principal organ status for the Economic and Social Council (ECOSOC).³⁰ His advocacy resulted in the insertion of a pledge in the Charter that UN member states would take action to achieve, in co-operation with the UN, 'higher standards of living, full employment, and conditions of economic and social progress and development' and 'solutions of international economic, social, health, and related problems'.³¹

Evatt also spearheaded a campaign by smaller states to restrict the clout of the Great Powers who were to be permanent members of the Security Council. The Great Powers' draft presented at San Francisco had allocated the power to vote against non-procedural decisions of the Security Council to the permanent members, with a negative vote operating as a veto. The veto would apply to decisions taken under both Chapter VI (peaceful settlement of disputes) and Chapter VII (maintenance of international peace and security) of the Charter. Australia was willing to tolerate a veto with respect to the latter category of decisions, involving serious measures such as the imposition of sanctions or the use of force, on the basis that such decisions would be rare, but not with respect to the broader category of peaceful dispute resolution which would be the bread and butter of Security Council work.³² Despite Evatt's energetic fight against the Great Power proposal, it ended up being retained in the Charter because of the Great Powers' threat to abandon the Conference if the veto power was confined to Chapter VII decisions.³³

Evatt was more successful in shoring up the powers of the UN General Assembly so that it could act when Security Council action was obstructed

by the veto. The Dumbarton Oaks proposals had assigned the General Assembly a role of discussion and recommendation, confined to the maintenance of international peace and security. Evatt insisted that the Assembly, with its universal membership, was ‘the most democratic Organ of the United Nations’.³⁴ It was thus appropriate for it to consider any matters falling within the scope of the UN Charter and make recommendations on them. The Great Powers resisted this expansion, but Evatt was able finally to craft an acceptable provision, now contained in article 10 of the Charter.³⁵ It authorizes the General Assembly to ‘discuss any questions or any matters within the scope of the ... Charter or relating to the powers and functions of any organs [established in the] Charter’, unless the Security Council is simultaneously dealing with the matter as part of an international dispute.³⁶

Australia’s great sensitivity with respect to its immigration policies influenced some of its positions in San Francisco. The Australian delegation strongly supported the inclusion in the Charter of an explicit statement that the UN was not authorized ‘to intervene in matters which are essentially within the domestic jurisdiction of any state’.³⁷ The delegation thus hoped to protect Australia’s White Australia Policy from international scrutiny, and the possibility that the policies might be considered a threat to peace.³⁸

Since 1945, Australia’s engagement with multilateral politics within the UN has ebbed and flowed. The election of a conservative government in 1949 led to a distancing from the organization, and an emphasis on the preservation of domestic matters from UN scrutiny. This approach extended to Australia voting against General Assembly resolutions during the 1950s condemning the practice of apartheid in South Africa on the basis that this was an issue of domestic jurisdiction.³⁹ The enlargement of UN membership as a result of decolonization also reduced the status of the organization in Australian eyes. Prime Minister Menzies indeed suggested that Australia needed to be protected from the UN and that he would not have ‘the citizens of Australia dictated to by the burghers of the Chad and Upper Volta’.⁴⁰ As discussed below, the Whitlam government, elected in 1972, offered a distinct change in attitude towards the international order, and this was largely continued by the Fraser Coalition government (1975–83). Later Australian governments have oscillated in their engagement with

the international legal order but have had to confront its increasing reach and complexity.⁴¹

Australia has been elected as a non-permanent member of the Security Council on five occasions (1946–47, 1956–57, 1973–74, 1985–86, and 2013–14).⁴² Australia has displayed particular interest in improving the governance of the UN and streamlining its operations.⁴³ It has consistently supported UN peacekeeping, being engaged from the very start of this activity in 1947 when the UN Security Council established a Consular Commission to monitor the ceasefire between Indonesian and Dutch forces.⁴⁴ Australia made significant contributions to the UN Transitional Authority in Cambodia (1992–23) and the UN Transitional Administration in East Timor (2000–02). Its diplomats have been critical to the conclusion of multilateral instruments in many areas, including the law of the sea, Antarctica, international humanitarian law, and arms control.⁴⁵

Australia's internationalist and multilateral orientation has been strained on occasion by its alliance with the United States. One example is Australia's participation in the invasion of Iraq in 2003 as a member of a 'Coalition of the Willing', led by the United States. Prime Minister Howard acknowledged the United States alliance as 'unapologetically a factor' in this decision.⁴⁶ The Coalition bypassed the collective security system established under Chapter VII of the UN Charter. Although members of the Coalition issued legal justifications for their actions,⁴⁷ without explicit approval by the UN Security Council the invasion was widely regarded as illegal as a violation of the prohibition on the use of force in international affairs under article 2(4) of the UN Charter.⁴⁸ Shortly after the invasion, Australia's Foreign Minister, Alexander Downer, condemned multilateralism in the context of security as 'a synonym for an ineffective and unfocussed policy involving internationalism of the lowest common denominator'.⁴⁹ And Prime Minister Howard later described Australia's participation in the invasion of Iraq as a triumph of substantive values over empty formalism,⁵⁰ implying the insignificance of the UN in such contexts.

On other occasions, Australia has participated in international institutions, even in the face of considerable pressure from the United States not to do so. It seems more ready to resist its ally's urgings when legal institutions are involved. The Australian government was a major player in

negotiations during the 1990s to establish a permanent International Criminal Court, finally achieved in 1998 with the adoption of the Rome Statute.⁵¹ The Court allows individuals to be held accountable for egregious human rights violations, such as genocide, war crimes, and crimes against humanity, if the relevant national legal systems are unable or unwilling to prosecute such behaviour. The United States' opposition to the Court rested on a fear that it would be used to target members of the American military. The United States brought pressure to bear on Australia not to become a party to the Rome Statute establishing the Court, but Australia eventually did so, despite considerable dissension within the Coalition government on the issue.⁵² Australia's acceptance of the Court's jurisdiction is, however, limited. Although the Rome Statute prohibits reservations, Australia appended a declaration to its ratification to the effect that no Australian could be tried by the Court without the approval of the Australian government.⁵³ Prime Minister Howard explained this as a mechanism to preserve Australian sovereignty.⁵⁴

After Australia's ratification of the Rome Statute, the United States launched a diplomatic campaign to persuade Australia to enter into an agreement under article 98 of the Rome Statute. Article 98 prevents the Court from requesting surrender of a person or any assistance from a party to the Statute if that would require the requested state to breach any international legal obligations. The United States has negotiated a series of bilateral immunity agreements with over ninety states parties precluding the latter from co-operating with the Court in relation to United States nationals, thus triggering the protection of article 98. Despite intense pressure, and some wavering by the Coalition government,⁵⁵ Australia has not yet acceded to the American request.

B. AUSTRALIA AND THE WORLD COURT

The Covenant of the League of Nations directed the Council of the League to draw up plans for the establishment of a Permanent Court of International Justice (PCIJ).⁵⁶ The original draft of the Court's statute provided for compulsory jurisdiction over disputes between states. Australia strongly resisted this proposal, in part because of 'the bugbear of League

interference in the White Australia Policy'.⁵⁷ In the end a system of optional adherence to the Court's statute was devised⁵⁸ and Australia accepted the Court's jurisdiction in 1929, along with Great Britain and the other Dominions. The instrument of acceptance excluded a number of categories of dispute, including disputes with other members of the British Commonwealth and disputes falling within domestic jurisdiction.⁵⁹

Australia accepted the jurisdiction of the PCIJ's successor, the ICJ, in 1954. It attached a series of reservations to its acceptance. Two were identical to those referred to above in the context of the PCIJ; another related to disputes occurring in times of hostilities; and, in anticipation that Japan might bring a case against it over a dispute about pearl fishing off the Western Australian coast, Australia restricted disputes about the continental shelf from the ICJ's jurisdiction.⁶⁰ In 1975, Prime Minister Gough Whitlam realized his longstanding ambition for Australia to accept the Court's jurisdiction without a substantive reservation.⁶¹ This position changed in 2002, when Australia again amended its acceptance to preclude the ICJ hearing a variety of disputes, most notably those relating to the delimitation or exploitation of maritime zones,⁶² in order to fend off litigation with East Timor over the distribution of resources in the Timor Gap.

Australia has been a remarkably regular litigant before the ICJ, bringing two cases as applicant, and defending three cases as respondent. The first Australian appearance as a party in the ICJ was in the *Nuclear Test* cases, brought by the Whitlam government against France in 1973, on the basis that France's conduct of atmospheric nuclear testing in the Pacific Ocean breached international law. New Zealand filed a similar case against France at the same time. France challenged the Court's jurisdiction and refused to participate. Australia and New Zealand first successfully sought interim measures from the ICJ on the basis that the next round of French testing was to take place two months after the proceedings were instituted. The French continued their testing programme, but made statements to the effect that France intended to replace its atmospheric tests with underground ones, once the current round of atmospheric tests had been concluded. Over the strong objection of Australia's ad hoc judge, Sir Garfield Barwick, the Court held that the case had become moot. It found that the statements by French officials constituted a binding, if unilateral, commitment to end the atmospheric tests.

In 1989, Nauru launched a case against Australia over the latter's failure to fulfil its obligations as international administrator, first as a mandate holder under the League of Nations and then as a trustee under the UN. Nauru argued that Australia should compensate Nauru for the damage caused during Australia's administration, particularly the devastation of its phosphate lands. Australia challenged the admissibility of the case on the basis, first, that Nauru had waived any claims to land rehabilitation when the phosphate industry was transferred to Nauruans in 1967; second, that the termination of the UN trusteeship on Nauru's independence in 1968 had effectively discharged any Australian responsibility; and third, that, as the mandate and trusteeship had been held jointly with New Zealand and the United Kingdom, the case implicated these countries' liability without their consent. The Court rejected all these challenges, and decided that it had jurisdiction to proceed with the case. At this stage, Australia negotiated an agreement with Nauru to settle the action, and obtained financial contributions from both New Zealand and the United Kingdom towards the settlement.⁶³

Australia was again respondent to an action in the ICJ in the East Timor case launched in 1991. Portugal instituted the action on the basis that Australia had negotiated with Indonesia to determine maritime boundaries in the Timor Sea, thus ignoring Portugal's interest as the UN-recognized Administering Authority of Timor. Portugal also argued that Australia's actions violated the rights of the Timorese people to self-determination and to permanent sovereignty over its wealth and natural resources. Indonesia had not accepted the optional jurisdiction of the Court and so could not be pursued by Portugal in that forum. Australia entered preliminary objections to Portugal's case to the effect that Indonesia was the proper respondent, and that the resolution of the dispute required determination of the legality of Indonesia's sovereignty over East Timor. The challenge to admissibility was heard at the same time as arguments on the merits of the case. While the Court recognized the right of the Timorese people to self-determination as an *erga omnes* norm, it endorsed Australia's position that Indonesia was an indispensable party to the dispute. Thus the Court could not proceed to determine the issues in the case without Indonesia's acceptance of its jurisdiction.

In 2010, Australia instituted a second case in the ICJ, challenging Japan's whaling programme in the Southern Ocean. This litigation had been

foreshadowed in the Labor Party's platform ahead of the 2007 election of the Rudd government. Japan had long insisted that its activities constituted scientific research, a category of whaling contemplated under article VIII of the International Convention on the Regulation of Whaling of 1946. Australia's argument was that the nature and scale of the Japanese whaling programme meant that it could not be considered a form of scientific research. New Zealand intervened in the case to support Australia's position. The Court decided that, while Japan's whaling programme included activities that constituted scientific research, the programme was not designed or carried out in a way that could reasonably achieve the stated scientific objectives. For this reason, Japan's whaling permits could not be said to be 'for purposes of scientific research' within article VIII.⁶⁴ The Court ordered Japan to revoke existing permits it had issued authorizing whaling and to refrain from granting any new permits under the Antarctic programme.⁶⁵

In the wake of the Court's decision issued in 2014, Japan suspended its whaling programme in Antarctic waters. The following year, however, Japan altered the terms of its acceptance of ICJ jurisdiction to exclude 'any dispute arising out of, concerning, or relating to research on, or conservation, management or exploitation of, living resources of the sea'.⁶⁶ Japan has since launched a modified scheme of whaling in the Southern Ocean causing friction with Australia and the international community. Prime Minister Malcolm Turnbull has nevertheless downplayed the prospect of further international litigation on this matter, declaring that diplomatic solutions are preferable.⁶⁷

The fifth case in which Australia has been involved at the ICJ is the *Seizure and Detention of Certain Documents and Data* case. Timor-Leste sought provisional measures against Australia to force Australia to return documents relating to an international arbitration on maritime delimitation that had been taken from the Canberra office of Timor's lawyer in 2013. Timor argued that Australia had violated its right to communicate with its lawyers confidentially on matters related to resolution of a dispute between the two countries. Australia resisted the Timorese application and urged the Court to accept its undertakings that the documents would not be made available to people involved in the arbitration. It, however, reserved the right to use the seized material for 'national security purposes'. The ICJ

granted the request for provisional measures, requiring Australia to ensure that the seized material not be used to the disadvantage of Timor until the Court proceedings were concluded; that the documents and data be kept under seal; and that Australia refrain from interfering in communications between Timor-Leste and its legal advisers in any matters involving maritime delimitation. The Court set a date for the hearing of the merits of the case, but Australia and Timor-Leste sought an adjournment. The case was removed from the Court's list in 2015 at Timor's request once Australia returned the seized material, still under seal.⁶⁸

Australia, then, has had considerable exposure to the ICJ. It has been suggested that middle powers tend to show more interest in the World Court than powerful states, because the former rely less on might and more on law in international dispute resolution.⁶⁹ Australia's experience as a respondent in three cases brought by or on behalf of its small neighbours, Nauru and Timor, suggests that its comparative regional power can equally be restrained by resort to the Court. While Australia considers itself a model international law-abiding state,⁷⁰ the Phosphate Lands and Seizure cases, although not proceeding to decisions on the merits, indicate that Australia's self-image may not be widely shared, at least in the region.

Two Australians have been elected as members of the ICJ. Sir Percy Spender was elected to the ICJ in 1958 and served nine years on the Court, the last three as President. His controversial use of the President's casting vote to deny Ethiopia and Liberia standing to challenge South Africa's administration of South West Africa (now Namibia) in 1966,⁷¹ stymied Australia's later nomination of Sir Kenneth Bailey for election to the Court.⁷² In 2015 Professor James Crawford was elected for a nine-year term. As no Australian judge was a member of the Court at the relevant times, Australia has appointed ad hoc judges in four of the five cases in which it was involved.⁷³

C. IMPLEMENTING INTERNATIONAL LAW: THE CASE OF HUMAN RIGHTS

Australia has implemented many provisions of international law without controversy. Treaties concerning taxation, postal, and aviation arrangements for example have significant domestic implications but attract little domestic attention. In the area of trade and investment law, Australian

governments have entered into both bilateral and multilateral treaties that regulate many areas of local activity. The protection of human rights has become an area of acute contention in the implementation of international law in Australia, contrasting with the active role that Australia has played at the international level in the design of the international human rights system. As Australia's Minister for External Affairs, Dr H V Evatt ensured the inclusion in the UN Charter of the primary purpose of 'promoting and encouraging respect for human rights and for fundamental freedoms for all'.⁷⁴ Evatt was similarly a strong supporter of the Universal Declaration of Human Rights, adopted by the General Assembly of the United Nations on 10 December 1948 while Evatt was President of the General Assembly. The early Australian interest in the design of international human rights standards was, however, deferential to Australian domestic policy. Like Billy Hughes at Versailles, Dr Evatt was particularly chary of any international statements on the right to racial equality, concerned that this might affect Australia's restrictive immigration policies.⁷⁵

Australia initiated a four-year campaign for an International Court of Human Rights at the 1946 Paris Peace Conference and continued it later in the UN Commission on Human Rights. Australia argued that international judicial pronouncements were more likely to encourage state compliance with human rights than political action. The proposal foundered on the resistance of the permanent members of the Security Council to what was perceived as a violation of state sovereignty.⁷⁶ Australia also was closely involved in the drafting of later treaties that translate the commitments of the Universal Declaration into binding obligations for states that accept them, including two general treaties (the International Covenant on Civil and Political Rights (ICCPR) and the International Covenant on Economic, Social and Cultural Rights (ICESCR), both adopted in 1966) and a range of specific treaties covering particular rights or particular categories of people (eg, the Convention on the Rights of Persons with Disabilities of 2006).⁷⁷

International instruments dealing with the human rights of Indigenous Peoples have been treated warily by Australia. It has not ratified the relevant International Labour Organization (ILO) conventions, and participated in the twenty-year negotiation process for the UN Declaration on the Rights of Indigenous Peoples,⁷⁸ often to advocate a restricted definition of the right to self-determination in order to preclude the

possibility of secession. The UN General Assembly finally adopted the Declaration in 2007, with Australia taking the unusually strong step of voting against it, together with Canada, New Zealand, and the United States. The four countries objected to the scope of the right to self-determination in the Declaration as well as its requirement of the consent of Indigenous Peoples to certain decisions affecting them, and its elaboration of rights relating to land, territory, and resources.⁷⁹ The Rudd Labor government withdrew Australia's negative vote in 2009.

Australia ratified some human rights treaties in the post-Second World War period, such as the Convention on Genocide, however, by the late 1950s until the early 1970s its interest in the international human rights system waned.⁸⁰ For example, it signed, but did not ratify, the International Convention on the Elimination of All Forms of Racial Discrimination (ICERD) of 1966, and did not sign either the ICCPR or the ICESCR. This inactivity was explained as the product of the Australian federal system in which the Australian States rather than the Commonwealth had legislative power over many issues dealt with in human rights treaties.⁸¹ Despite this concern, the Labor government led by Gough Whitlam, elected in 1972, moved to accept a number of international human rights treaties, enacting the *Racial Discrimination Act* that approved ratification of, and implemented, ICERD in 1975. It also signed the two Covenants but did not move to ratify them on the cautious basis that they were not yet in force internationally. The Fraser Coalition government ratified the Covenants in 1976 (ICESCR) and 1980 (ICCPR).⁸² Australia has now accepted seven of the nine 'core' international human rights treaties adopted by the United Nations.⁸³

Whitlam's bold approach to the international human rights system was vindicated by the High Court's 1982 decision in *Koowarta* which upheld the validity of the *Commonwealth Racial Discrimination Act 1975* in the face of a challenge by Queensland. The *Koowarta* decision affirmed that the constitutionality of federal human rights legislation depends largely on the Commonwealth's power to legislate with respect to 'external affairs'.⁸⁴ In 1983 the High Court reinforced the power of the Commonwealth to override State legislation to ensure that Australia complied with its international obligations in the *Tasmanian Dam* case.⁸⁵ In this sense,

national protection of human rights in Australia is closely connected to the scope of the international legal system.

Australia has participated in the UN systems for human rights monitoring, but there have been periods of acute tension. Australia's periodic reports to human rights treaty bodies have prompted a consistent catalogue of concerns in the treaty bodies' Concluding Observations. These include the disadvantaged situation of Australia's Indigenous Peoples, the treatment of asylum-seekers, the reach of counter-terrorism legislation, excessive use of force by the police, the rights of prisoners, and high rates of homelessness.⁸⁶ The reporting mechanism has not, however, proved a strong form of regulation of Australia's human rights performance. On one occasion, indeed, it led to a rupture in Australia's relationship with the international human rights system. In 2000, the Concluding Observations of the Committee on the Elimination of Racial Discrimination on Australia's report praised many legislative and policy measures designed to reduce the incidence of racial discrimination in Australia, but also expressed concern about a range of forms of discrimination against Aboriginal and Torres Strait Islander People.⁸⁷ The Commonwealth government rejected the Committee's views, calling them 'an unbalanced and wide-ranging attack that intrudes unreasonably into Australia's domestic affairs'. The Attorney-General, Minister for Foreign Affairs, and Minister for Immigration issued a joint statement:

We are seriously disappointed about the Committee's comments on race relations in Australia. The Committee has apparently failed to grapple with the unique and complex history of race relations in Australia. It has paid scant regard to the Government's input and has relied almost exclusively on information provided by non-government organisations. This is a serious indictment of the Committee's work. It is unacceptable that Australia, which is a model member of the UN, is being criticised in this way for its human rights record.⁸⁸

As a result of this incident, the government reduced its engagement with the human rights treaty bodies. While there has since been some rapprochement between Australia and the UN treaty bodies, the latter's Concluding Observations have had little effect on Australian policy and law.

Unlike the system of periodic reports, which applies to all treaty parties, States have an option to accept the possibility of the treaty bodies considering complaints from individuals alleging that the State has breached the terms of the treaty, if all local remedies have been exhausted. Australia has agreed to such mechanisms in relation to some of the human

rights treaties to which it is a party: the ICCPR,⁸⁹ ICERD,⁹⁰ CEDAW,⁹¹ and the CRPD.⁹² This has led to a number of international decisions on Australia's record of human rights protection. The first was that of the UN Human Rights Committee in 1992 declaring Tasmanian laws that criminalized male homosexuality to be inconsistent with human rights.⁹³ The Commonwealth government then legislated to override the relevant provision of the *Criminal Code Act 1924* (Tas).⁹⁴ *Toonen* is, so far, the high water mark of Australia's engagement with the views of the UN treaty bodies. As at March 2017, the treaty bodies have heard 113 cases concerning Australia, seventy of which have been upheld by the relevant Committee.⁹⁵ Australia's violations of human rights have been found to include the mistreatment of children in immigration detention, inhumane treatment of prisoners, the denial of the right to family life, and undue trial delay. The standard Australian response to the views of the human rights treaty bodies is to note first that Committees are not courts and that their views are non-binding, and to then simply reject the relevant Committee's views on the application of the law. Sometimes Australia explicitly invokes its sovereignty as a reason to reject Committee findings. This antagonistic approach is at odds with Australia's formal recognition of the competence of the treaty bodies to consider communications through its acceptance of the relevant mechanisms. It is noteworthy that Australia does not publish or publicize adverse views of the human rights treaty bodies.

While Australian governments have generally been willing to accept international human rights obligations by becoming party to treaties, they have been less interested in legislation to implement these obligations into Australian law. For example, while the Commonwealth government has enacted laws dealing specifically with race, sex, and disability discrimination, based on the relevant international instruments, it has not implemented broader catalogues of rights, such as those contained in the ICESCR, the ICCPR, and the CROC.

There have been attempts over the past four decades to adopt an Australian bill of rights based on international standards. All have failed because of intense political opposition, based either on preservation of State legislative powers and/or on a faith in Parliament's capacity to protect human rights.⁹⁶ International human rights law has had a direct impact at State and Territory level through the adoption of the ACT's *Human Rights*

Act 2004 and the *Victorian Charter of Human Rights and Responsibilities 2006*. These legislative bills of rights largely implement the rights contained in the ICCPR, although the *ACT Human Rights Act* has been amended to include some rights protected by the ICESCR.⁹⁷

Successive Australian governments have argued that international human rights principles are protected adequately under existing State and Commonwealth laws or implied that Commonwealth legislative power is limited in this field. From an international legal perspective, a State's internal organization cannot justify breaches in international law. This principle is codified in the Vienna Convention on the Law of Treaties.⁹⁸ Nevertheless, Australia has regularly invoked its federal structure as an impediment to its interactions with the international legal order. This practice was launched when Australia became a member of the ILO in 1919, but considered itself unable to ratify many ILO conventions as they covered matters within the jurisdiction of the Australian States. An agreement between the States and the Commonwealth provided that all States must agree to ratification before the Commonwealth formally committed to the relevant convention.⁹⁹ Australia was, however, prepared to ratify conventions that were clearly within the competence of the Commonwealth government, including treaties dealing with seamen and the inspection of emigrants.

A modern manifestation of Australia's deference to its federal structure is Australia's 'federal clause' attached to the ICCPR. Australia included this 'declaration' along with a set of specific reservations at the time of ratification in 1980. The declaration states:

Australia has a federal constitutional system in which legislative, executive and judicial powers are shared or distributed between the Commonwealth and the constituent States. The implementation of the treaty throughout Australia will be effected by the Commonwealth, State and Territory authorities having regard to their respective constitutional powers and arrangements concerning their exercise.

The status of the declaration is unclear at international law, unlike a reservation, which modifies a party's obligations under a treaty.¹⁰⁰ In any event, since the Australian High Court's decisions in *Koowarta* and *Tasmanian Dams*, the declaration has lost any salience as the Commonwealth's power to enter into treaties that impinge on the powers of the Australian States is now undoubted.

Perhaps the most explicit Australian rejection of the international human rights system can be found in the area of refugee protection. In the wake of High Court decisions that international obligations under the Convention Relating to the Status of Refugees,¹⁰¹ even if unincorporated in Australian law, could nevertheless shape the interpretation of the *Migration Act 1958*, the Commonwealth government legislated to allow decision-making that violates international law.¹⁰² Thus the Minister's exercise of discretion in respect of asylum-seekers may be inconsistent with Australia's obligations under the Convention. For example, amendments to the *Migration Act* stipulate that Australia's *non-refoulement* obligations are irrelevant to decisions made under section 198, which provides for the removal of unlawful non-citizens in Australia.¹⁰³

Despite Australia's history of support for the international human rights system, the implementation of international human rights standards in Australia forms a bedraggled patchwork. It is coloured by a form of exceptionalism, suggesting that human rights standards are relevant for other countries, but not for the 'gold-plated' version of democracy enjoyed in Australia.¹⁰⁴

D. CONCLUSION

Australia's constitutional fabric has been affected by the country's international legal life, with its enthusiasms, its cautions, and its selectivity. And features of the Australian Constitution, such as federalism and the paucity of references to human rights, in turn have shaped Australia's ventures beyond its borders. Since federation the possibility of international regulation of migration policies has been a particularly sensitive issue for Australia.

Australia's interest in the international legal system has tended to vary according to the political party in power. Generally speaking, Labor governments have taken a cosmopolitan attitude and Liberal-National Coalition governments a sceptical one towards international institutions and laws. Conservative governments have been more attracted to bilateralism. They often invoke the language of sovereignty and national interest to keep the international arena at bay.¹⁰⁵ But there are also significant exceptions to this, for example the Coalition government's support for the ICC, described

above. In 2015 the Turnbull government announced campaigns for election to the UN Human Rights Council for the 2018–20 term and to the UN Security Council for the 2029–30 term. Coalition governments have also contemplated far-reaching incursions into Australian life, particularly in the area of bilateral and multilateral trade agreements, such as the Trans-Pacific Partnership.¹⁰⁶ This prompted the Chief Justice of the High Court, Robert French, to warn against the ousting of the jurisdiction of Australian courts in foreign investment disputes and to emphasize concerns of national sovereignty.¹⁰⁷

With respect to recourse to international courts, Labor governments initiated the two cases brought by Australia to the ICJ—the *Nuclear Test* and *Whaling* cases—while Coalition governments have typically expressed a preference for diplomacy to resolve international disputes. Again, there are notable exceptions to this, including litigation against Japan to protect southern bluefin tuna stocks in the UN Law of the Sea Tribunal¹⁰⁸ and participation in the World Trade Organization’s dispute settlement system during the life of the Howard Coalition government.¹⁰⁹

Australia’s relationship with the international legal order overall is marked by a deep strand of ambivalence. It has played both the part of a good international citizen as well as that of an international exceptionalist. In some fields, Australia has engaged creatively in international institution-building, even if with a wary eye to protect certain Australian interests. In other areas, particularly human rights, the relationship is distinctly uneasy, with Australia appearing to believe that international standards should regulate others and that it is somehow above scrutiny.

* I thank Cate Read and Anna Saunders for their invaluable research assistance.

¹ James R Crawford, *The Creation of States in International Law* (2nd edn, OUP 2007) [ch 2](#).

² Melissa Conley Tyler, Emily Crawford, and Shirley V Scott, ‘Australia’s International Personality: Historical, Legal and Policy Perspectives’ in Donald R Rothwell and Emily Crawford (eds), *International Law in Australia* (3rd edn, Lawbook Co 2017) 1.

³ [ibid](#) 3–4.

⁴ A D Ellis, *Australia and the League of Nations* (Macmillan 1922) 10.

⁵ Treaty of Peace between the Allied and Associated Powers and Germany (opened for signature 28 June 1919, entered into force 10 January 1920) [1920] ATS 1, pt I (‘The Covenant of the League of Nations’) art 1 (hereafter *Covenant of the League of Nations*).

⁶ Ellis ([n 4](#)) 14.

- ⁷ *ibid.*
- ⁸ Conley Tyler et al (n 2) 5–7.
- ⁹ *ibid* 7.
- ¹⁰ Dr H V Evatt, Minister for External Affairs, in the House of Representatives, quoted in Conley Tyler et al (n 2) 8.
- ¹¹ Alison Pert, *Australia as a Good International Citizen* (The Federation Press 2014).
- ¹² Gareth Evans, ‘Good International Citizenship: Values and Interests in Foreign Policymaking’ (Address to Sydney Law School, 27 August 2015).
- ¹³ See, eg, Fergus Hanson, Interview with Kim Beazley, Australian Ambassador to the United States (Australian Naval Institute, 27 June 2016). Conley Tyler et al (n 2) note that, in 2014, Foreign Minister Julie Bishop shifted from middle power language to describe Australia as a ‘top 20 nation’: at 9.
- ¹⁴ See Hilary Charlesworth, Madelaine Chiam, Devika Hovell, and George Williams, ‘Deep Anxieties: Australia and the International Legal Order’ (2003) 25 Sydney Law Review 423, 424–25, 434.
- ¹⁵ Conley Tyler et al (n 2) 10–11.
- ¹⁶ J C Rookwood Proud, *World Peace, The League and Australia* (Robertson & Mullens 1936) 10.
- ¹⁷ W M Hughes, *Policies and Potentates* (Angus and Robertson 1950), quoted in J G Starke, ‘Australia and Human Rights’ in K W Ryan (ed), *International Law in Australia* (2nd edn, Law Book Co 1984) 140. The White Australia Policy was implemented in the *Immigration Restriction Act 1901* and restricted ‘non-white’ immigration to Australia.
- ¹⁸ Rookwood Proud (n 16) 10.
- ¹⁹ *ibid* 36.
- ²⁰ *ibid* 10, 37.
- ²¹ James Cotton, ‘Australia in the League of Nations: Role, Debates, Presence’ in James Cotton and David Lee (eds), *Australia and the United Nations* (Department of Foreign Affairs and Trade 2012) 2.
- ²² Covenant of the League of Nations (n 5), art 22.
- ²³ Matthew Jordan, ‘Decolonisation’ in James Cotton and David Lee (eds), *Australia and the United Nations* (Department of Foreign Affairs and Trade 2012) 105.
- ²⁴ *ibid*. See Antony Anghie, ‘“The Heart of My Home”: Colonialism, Environmental Damage, and the Nauru Case’ (1993) 34 Harvard International Law Journal 445.
- ²⁵ Rookwood Proud (n 16) 14.
- ²⁶ *ibid* 45.
- ²⁷ Cotton, ‘Australia in the League of Nations’ (n 21) 1.
- ²⁸ Timothy L H McCormack, ‘H.V. Evatt at San Francisco: A Lasting Contribution to International Law’ (1990–91) 13 Australian Yearbook of International Law 89, 93–94.
- ²⁹ *ibid* 96. See also John Murphy, *Evatt: A Life* (New South Publishing 2016) 221–22.
- ³⁰ Charter of the United Nations (adopted 26 June 1945, entered into force 24 October 1945) 1 UNTS 16, ch X.
- ³¹ *ibid* arts 55, 56.
- ³² McCormack (n 28) 103–04; Murphy (n 29) 222, 227–28, 234–35.
- ³³ McCormack (n 28) 103–04.
- ³⁴ H V Evatt, *The United Nations* (OUP 1948) 19, quoted in McCormack (n 28) 100; Murphy (n 29) 235–36.

- ³⁵ McCormack (n 28) 100.
- ³⁶ UN Charter (n 30) art 12.
- ³⁷ *ibid* art 2(7).
- ³⁸ Annemarie Devereux, *Australia and the Birth of the International Bill of Human Rights 1946–1966* (The Federation Press 2005) 206–08; Murphy (n 29) 233–34.
- ³⁹ Alison Pert and Hitoshi Nasu, ‘Australia and International Organisations’ in Donald R Rothwell and Emily Crawford (eds), *International Law in Australia* (3rd edn, Lawbook Co 2017) 101–02.
- ⁴⁰ These are words recorded by Mick Shann, Australia’s acting representative to the UN 1950–51, quoted in Jordan (n 23) 113.
- ⁴¹ See Pert and Nasu, ‘Australia and International Organisations’ (n 39) for a survey of approaches 103–15.
- ⁴² For accounts of the first four terms see David Lee, ‘Australia and the Security Council’ in James Cotton and David Lee (eds), *Australia and the United Nations* (Department of Foreign Affairs and Trade 2012) 66. On the 2013–14 term, see John Langmore and Jeremy Farrall, ‘Can Elected Members Make a Difference in the UN Security Council? Australia’s Experience in 2013–2014’ (2016) 22 *Global Governance* 59–77.
- ⁴³ Roderic Pitty, ‘Australia and UN Reform’ in James Cotton and David Lee (eds), *Australia and the United Nations* (Department of Foreign Affairs and Trade 2012) 379.
- ⁴⁴ Moreen Dee, ‘Australia and UN Peacekeeping: Steady and Unwavering Support’ in James Cotton and David Lee (eds), *Australia and the United Nations* (Department of Foreign Affairs and Trade 2012) 228.
- ⁴⁵ See Richard Rowe, ‘International Law and Diplomacy: The Art of the Possible’ (2014) 15 *Melbourne Journal of International Law* 318, 320–21.
- ⁴⁶ HR Deb 18 March 2003, 12508.
- ⁴⁷ See, eg, Bill Campbell, Attorney General’s Department and Chris Moraitis, Department of Foreign Affairs and Trade, Memorandum of Advice on the Use of Force Against Iraq, 12 March 2003 (Australia); Advice from Lord Goldsmith, Attorney-General to Tony Blair, Prime Minister, 7 March 2003, and HL Deb 17 March 2003, vol 646, pt 65, cols WA2–3 (Lord Goldsmith) (UK); Authorization for Use of Military Force Against Iraq Resolution of 2002, Pub L 107–243, 116 Stat 1498 (2002) (US).
- ⁴⁸ See also Interview with Kofi Annan, UN Secretary General (BBC World Service, New York, 16 September 2004).
- ⁴⁹ Quoted in Hilary Charlesworth, Madelaine Chiam, Devika Hovell, and George Williams, *No Country is an Island: Australia and International Law* (UNSW Press 2006) 16.
- ⁵⁰ ‘I’ll Act Without UN Approval: Howard’ *The Age* (16 September 2005).
- ⁵¹ See Rowe (n 45) 323–27.
- ⁵² See Charlesworth et al, *No Country is an Island* (n 49) for a detailed account of the lengthy process.
- ⁵³ See Charlesworth et al, *No Country is an Island* (n 49) 80.
- ⁵⁴ *ibid* 79.
- ⁵⁵ See Andrew Byrnes, ‘Australia and International Criminal Law’ in Donald R Rothwell and Emily Crawford (eds), *International Law in Australia* (3rd edn, Lawbook Co 2017) 221.
- ⁵⁶ Covenant of the League of Nations (n 5) art 14.
- ⁵⁷ Rookwood Proud (n 16) 29.
- ⁵⁸ Statute of the Permanent Court of International Justice (opened for signature 13 December 1920, entered into force 16 December 1920) 6 LNTS 390 (amended by the Protocol of 14 September

1929) art 36.

⁵⁹ The instrument ('Terms of Signature of Great Britain and Dominions to Optional Clause of the Permanent Court of International Justice') is contained in Appendix 2 in Rookwood Proud (n 16) 67–68.

⁶⁰ Henry Burmester, 'Australia and the International Court of Justice' (1996) 17 *Australian Yearbook of International Law* 19, 31.

⁶¹ The one reservation entered by Australia was a procedural one, with respect to 'any dispute in regard to which the parties have agreed or shall agree to have recourse to some other method of peaceful settlement'.

⁶² Australian Declaration under Paragraph 2 of Article 36 of the Statute of the International Court of Justice (22 March 2002) <<http://www.icj-cij.org/jurisdiction/?p1=5&p2=1&p3=3&code=AU>> accessed 30 May 2017.

⁶³ Agreement between Australia and the Republic of Nauru for the Settlement of the Case in the International Court of Justice concerning Certain Phosphate Lands in Nauru (entered into force 20 August 1993) 1770 UNTS 379.

⁶⁴ Whaling in the Antarctic (*Australia v Japan: New Zealand Intervening*) (Judgment) [2014] ICJ Rep 226 [227].

⁶⁵ *ibid* [245].

⁶⁶ Japanese Declaration under Paragraph 2 of Article 36 of the Statute of the International Court of Justice (6 October 2015) <<http://www.icj-cij.org/jurisdiction/?p1=5&p2=1&p3=3&code=JP>> accessed 30 May 2017.

⁶⁷ Stephanie Anderson, 'Turnbull uses Japan Speech to Voice "Disappointment" over Whaling Program' *ABC News* (18 December 2015) <<http://www.abc.net.au/news/2015-12-18/australia-disappointed-that-japan-has-resumed-whaling-turnbull/7041052>> accessed 30 May 2017.

⁶⁸ International Court of Justice, 'Questions relating to the Seizure and Detention of Certain Documents and Data' (Timor-Leste v Australia) (Press Release, No 2015/15, 12 June 2015).

⁶⁹ See, eg, Geoffrey Palmer, 'The ICJ in the Asia Pacific Region' in Margaret Brewster and Ivan Shearer (eds), *Colloquium to Celebrate the 50th Anniversary of the International Court of Justice* (International Law Association 1996) 55.

⁷⁰ See, eg, Burmester, 'Australia and the ICJ' (n 60) 21: 'Australia's general commitment to acting in accordance with international law means that the possibility of [ICJ] action is usually not of major concern'. See also 32–33.

⁷¹ South West Africa (*Ethiopia v South Africa; Liberia v South Africa*) (Second Phase) [1966] ICJ Rep 6.

⁷² James Crawford, '“Dreamers of the Day”: Australia and the International Court of Justice' (2013) 14 *Melbourne Journal of International Law* 520, 537; Burmester, 'Australia and the ICJ' (n 60) 28–29.

⁷³ Sir Garfield Barwick (both Nuclear Test cases), Ian Callinan (Questions relating to the Seizure and Detention of Certain Documents and Data), Hilary Charlesworth (Whaling in the Antarctic), Sir Ninian Stephen (East Timor).

⁷⁴ UN Charter (n 30) art 1(3).

⁷⁵ Devereux (n 38) 180–88.

⁷⁶ See *ibid*.

⁷⁷ Devereux, *Australia and the Birth* (n 38); Colin Milner, 'Human Rights and International Law' in James Cotton and David Lee (eds), *Australia and the United Nations* (Department of Foreign Affairs and Trade 2012) 341, 344–49.

⁷⁸ UNGA Res 61/295 (1 September 2007) UN Doc A/RES/61/295.

⁷⁹ Megan Davis, 'To Bind or Not to Bind: The United Nations *Declaration on the Rights of Indigenous Peoples* Five Years On' (2012) 19 Australian International Law Journal 17, 20–23.

⁸⁰ Devereux (n 38) offers a detailed account of this period.

⁸¹ Dominique FJJ De Stoop, 'Australia's Approach to International Treaties on Human Rights' [1970–73] Australian Yearbook of International Law 27, 29–30.

⁸² For an overview of the actions of subsequent Australian governments in the field of human rights, see also Milner (n 77) 353–71.

⁸³ International Covenant on Civil and Political Rights (opened for signature 16 December 1966, entered into force 23 March 1976) 999 UNTS 171 (ICCPR) (ratified by Australia 13 August 1980); International Covenant on Economic, Social and Cultural Rights (opened for signature 16 December 1966, entered into force 3 January 1976) 993 UNTS 3 (ICESCR) (ratified by Australia 10 December 1975); International Convention on the Elimination of All Forms of Racial Discrimination (opened for signature 7 March 1966, entered into force 4 January 1969) 660 UNTS 195 (CERD) (ratified by Australia 30 September 1975); Convention on the Elimination of All Forms of Discrimination Against Women (opened for signature 18 December 1979, entered into force 3 September 1981) 1249 UNTS 13 (CEDAW) (ratified by Australia 28 July 1983); Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (opened for signature 10 December 1984, entered into force 26 June 1987) 1465 UNTS 85 (CAT) (ratified by Australia 8 August 1989); Convention on the Rights of the Child (opened for signature 20 November 1989, entered into force 2 September 1990) 1577 UNTS 3 (CROC) (ratified by Australia 17 December 1990); Convention on the Rights of Persons with Disabilities (opened for signature 13 December 2006, entered into force 3 May 2008) 2515 UNTS 3 (CRPD) (ratified by Australia 17 July 2008). It has not signed the International Convention on the Rights of All Migrant Workers and Members of their Families (opened for signature 18 December 1990, entered into force 1 July 2003) 2220 UNTS 3, or the International Convention for the Protection of All Persons from Enforced Disappearance (opened for signature 20 December 2006, entered into force 23 December 2010) 2176 UNTS 3.

⁸⁴ *Commonwealth Constitution*, s 51(xxix); *Koowarta v Bjelke-Petersen* (1982) 153 CLR 168.

⁸⁵ *Commonwealth v Tasmania* (1983) 158 CLR 1.

⁸⁶ See, eg, Human Rights Committee, 'Consideration of Reports Submitted by States Parties under Article 40 of the Covenant: Concluding Observations of the Human Rights Committee (Australia)' (7 May 2009) UN Doc CCPR/C/AUS/CO/5; Committee on the Elimination of Racial Discrimination, 'Consideration of Reports Submitted by States Parties under Article 9 of the Convention: Concluding Observations of the Committee on the Elimination of Racial Discrimination' (13 September 2010) UN Doc CERD/C/AUS/CO/15-17; Committee on the Elimination of Discrimination against Women, 'Concluding Observations of the Committee on the Elimination of Discrimination against Women' (30 July 2010) UN Doc CEDAW/C/AUS/CO/7; Human Rights Committee, 'Report of the Special Rapporteur for Follow-Up on Concluding Observations of the Human Rights Committee' (27 April 2012) UN Doc CCPR/C/104/2; Committee Against Torture, 'Concluding Observations on the Combined Fourth and Fifth Periodic Reports of Australia' (23 December 2014) UN Doc CAT/C/AUS/CO/4-5.

⁸⁷ Committee on the Elimination of Racial Discrimination, 'Consideration of Reports Submitted by States Parties under Article 9 of the Convention' (19 April 2000) UN Doc CERD/C/304/Add 101.

⁸⁸ Daryl Williams (Attorney-General), 'CERD Report Unbalanced' (Press Release, 26 March 2000). See also Alexander Downer (Minister for Foreign Affairs), quoted in 'X. International Organisations: United Nations—Reform—Human Rights Treaty Bodies' in Tim Bolotnikoff (ed), *Australian Practice in International Law 2000* (2000) 21 Australian Yearbook of International Law 274.

⁸⁹ Optional Protocol to the International Covenant on Civil and Political Rights (opened for signature 16 December 1966, entered into force 23 March 1976) 999 UNTS 171 (Australia acceded 25 September 1991).

⁹⁰ Australia made a declaration under art 14 of ICERD on 28 January 1993: see Steve McIntosh, 'IX. Individuals: Human Rights—Government Policy' in *Australian Practice in International Law 1993* (1994) 15 Australian Yearbook of International Law 528, 583.

⁹¹ Optional Protocol to the Convention on the Elimination of All Forms of Discrimination against Women (opened for signature 6 October 1999, entered into force 22 December 2000) 2131 UNTS 83 (Australia acceded 4 December 2008).

⁹² Optional Protocol to the Convention on the Rights of People with Disabilities (opened for signature 13 December 2006, entered into force 3 May 2008) UN Doc A/Res/61/106 (Australia acceded 21 August 2009).

⁹³ Human Rights Committee, 'Decision: Communication No 488/1992' (31 March 1994) UN Doc CCPR/C/50/D/488/1992 (hereafter *Toonen v Australia*).

⁹⁴ Relevant provisions of the *Tasmanian Act* were ss 122(a) and (c), which were overridden by *Human Rights (Sexual Conduct) Act 1994* (Cth). Tasmania subsequently amended its laws to comply with those of the Commonwealth (Criminal Code Amendment Act 1997 (No 12 of 1997) (Tas)).

⁹⁵ Forty-six of the claims were held inadmissible. See Office of the United Nations High Commissioner for Human Rights, *Jurisprudence Database* <<http://juris.ohchr.org/>> accessed 31 May 2017.

⁹⁶ These are discussed in Hilary Charlesworth and Gillian Triggs, 'Australia and the International Protection of Human Rights' in Donald R Rothwell and Emily Crawford (eds), *International Law in Australia* (3rd edn, Lawbook Co 2017).

⁹⁷ See *Human Rights Act 2004* (ACT), pt 3A.

⁹⁸ Vienna Convention on the Law of Treaties (opened for signature 23 May 1969, entered into force 27 January 1980) 1155 UNTS 331, arts 27, 46 (VCLT).

⁹⁹ Rookwood Proud (n 16) 43.

¹⁰⁰ VCLT (n 98) arts 2(1)(d), 21; see also arts 19–20, 22–23.

¹⁰¹ Convention Relating to the Status of Refugees (opened for signature 28 July 1951, entered into force 22 April 1954) 189 UNTS 137 (ratified by Australia 22 January 1954).

¹⁰² See Stephen Donaghue's contribution to this volume, Chapter 10 'International Law'.

¹⁰³ *Migration Act 1958* (Cth), s 197C. Another example is s 36(2) of the *Migration Act*, which sets out criteria for a protection visa.

¹⁰⁴ A phrase used by John Howard, Prime Minister: 'UN's Committee Process "Out of Whack": Howard' 7.30 Report (30 August 2000) <<http://www.abc.net.au/7.30/stories/s169672.htm>> accessed 31 May 2017.

¹⁰⁵ See *The Howard Government and International Law* (2008) 27 Aust YBIL (Special Issue).

¹⁰⁶ Henry Burmester, Natalie Klein and Kate Miles, 'Australia and International Dispute Settlement' in Donald R Rothwell and Emily Crawford (eds), *International Law in Australia* (3rd ed, Lawbook Co 2017) 561, 577–80.

¹⁰⁷ See, eg, Robert French, 'ISDS—Litigating the Judiciary' (Chartered Institute of Arbitrators Centenary Conference, Hong Kong, 21 March 2015) <<http://www.hcourt.gov.au/assets/publications/speeches/current-justices/frenchcj/frenchcj21mar15.pdf>> accessed 31 May 2017.

¹⁰⁸ Southern Bluefin Tuna Cases (*New Zealand v Japan*; *Australia v Japan*) (*Provisional Measures*) (1999) 38 ILM 1624; (*Australia v Japan*; *New Zealand v Japan*) (*Jurisdiction and Admissibility*) (2000) 39 ILM 1359.

¹⁰⁹ See Andrew D Mitchell, Elizabeth Sheargold and Tania Voon, ‘Australia and International Trade Law’ in Donald R Rothwell and Emily Crawford (eds), *International Law in Australia* (3rd ed, Lawbook Co 2017) 317, 322–34.

PART IV

PRACTICE AND PROCESS

CHAPTER 19

AUTHORITY OF THE HIGH COURT OF AUSTRALIA

KRISTEN WALKER*

A. INTRODUCTION

IN 1788—the year Captain Cook sailed into Botany Bay and some 112 years before Australia’s Constitution was enacted—Alexander Hamilton described the judiciary as ‘the least dangerous’ branch of government, having ‘neither force nor will, but merely judgment’.¹ Hamilton’s words are apt to describe the High Court of Australia. The High Court has no police force or other officers capable of enforcing its decisions—for this it relies upon the executive. It has no mechanism for raising funds—for this it relies on the legislature. Yet its authority over matters legal is undisputed. The tenure and remuneration of its judges are constitutionally guaranteed and their salaries and those of other Court staff are paid pursuant to Parliamentary appropriations.² The Court’s judgments are obeyed and enforced, even where the other branches disagree with them—although its non-constitutional decisions may be subject to legislative reversal.

In this regard, the High Court’s history differs from the United States Supreme Court, which has had controversies concerning enforcement of and obedience to its judgments. In the 1930s, after the Supreme Court struck down various New Deal measures, President Roosevelt threatened to stack the Court by appointing up to six additional justices.³ The Court backed down.⁴ In 1957, following the United States Supreme Court’s decision concerning desegregation of schools (*Brown v Board of Education*), federal troops were sent to Arkansas, to enforce the decision

and protect the nine students seeking to attend Little Rock's Central High School.⁵ Virginia Governor Thomas Stanley vowed to use 'every legal means' to 'continue segregated schools'. And until the passing of the *Civil Rights Act* in 1964, some states actively defied the Supreme Court's decision in *Brown*. Alabama and other southern states passed laws permitting, or even requiring, school boards to close schools to avoid having black children sit in classrooms with white ones.⁶ A more recent example can be found in 2015, following the United States Supreme Court's decision recognizing a constitutional right for same sex couples to marry (*Obergefell v Hodges*⁷). The Alabama Chief Justice issued an order directing probate judges in Alabama not to issue marriage licences to same sex couples and a country clerk in Kentucky was jailed for her refusal.⁸

It is difficult to imagine reactions of this kind to decisions of the Australian High Court. Even the Court's most controversial decisions, such as the *Communist Party Case*,⁹ the *Tasmanian Dam Case*,¹⁰ and *Mabo*¹¹ and *Wik*,¹² have not sparked civil or governmental disobedience. The Court's authority is such that its decisions are accepted and acted upon, even when they are criticized¹³ (although, as noted above, some are subject to legislative reversal). One might speculate as to why this is so; no doubt cultural and historical differences play some part, as do constitutional differences between the two countries. Australia has no Bill of Rights, so the High Court is perhaps less often involved in politically charged decisions (but that is not to say it is never involved in such decisions). The appointment process for the High Court is different from that of the United States Supreme Court—High Court appointments are by the executive alone, with no legislative involvement, which has tended to result in the less politicized appointments (again, with some exceptions). Further, the High Court has generally adopted a legalistic technique that disguises its power and legitimates its more controversial decisions.¹⁴ With the exception of Mason CJ,¹⁵ a succession of Chief Justices from Latham CJ to Gleeson CJ have used the rhetoric of 'strict and complete legalism' to explain the proper approach to judicial decision-making¹⁶ (although it may be doubted that they always adhered to their own rhetoric). But whatever the reasons, the High Court's authority has remained respected and observed throughout its history, even when it has handed down politically unpopular decisions.¹⁷

In this chapter I consider both the foundations for, and the content of, the High Court's authority. I focus principally on the current authority of the High Court, but with reference to some aspects of its history. [Section B](#) of this chapter explains the Court's constitutional status as Australia's apex court, performing the role of both constitutional court and ultimate appellate court for both federal and State matters. [Section C](#) outlines the institutional features of the Court that underpin its authority, in particular its composition and independence. [Section D](#) examines the Court's authority to enforce constitutional limits through judicial review of legislative action. [Section E](#) considers the Court's authority to review executive action and the constitutional foundation for that role.

B. THE HIGH COURT'S STATUS AS THE APEX COURT

The High Court is the apex court in the Australian judicial system, for both constitutional and non-constitutional matters.¹⁸ The role of the High Court, and its exercise of ultimate constitutional authority, is exemplified in its decision in the *Communist Party Case*. During the cold war, the federal Parliament enacted legislation that dissolved the Australian Communist Party and empowered the executive to dissolve other unincorporated associations. The federal Parliament had no power to make laws on the subject of unincorporated associations, but it did have power to make laws with respect to naval and military defence under section 51(vi). Australia was not at war. But the preamble to the legislation recited various reasons why Parliament thought the law was necessary for defence.

The High Court emphatically asserted its place as the final arbiter of constitutional meaning, holding that it was for the Court, and not the Parliament, to decide whether the law was supported by the defence power. Dixon J rejected any argument that 'would have the effect of making the conclusion of the legislature final and so the measure of the operation of its own power'.¹⁹ McTiernan J said that the preamble was 'in no way decisive of the question whether the Act is valid or invalid, for that is a judicial question which only the judicature has the power to decide finally and conclusively'.²⁰ And Kitto J said that under Australia's federal system, where the central legislature has only limited powers, the courts have the power, and duty, to determine whether laws which that legislature thinks

necessary for the security of the country are within the scope of its powers.²¹

That is, the Court held that Parliament could not be permitted to be the judge of the extent of its own power. That would be inconsistent with the division of powers in the Constitution, by which judicial power (including the ultimate power to decide the meaning of the Constitution) was assigned to the Court. And it would be inconsistent with the rule of law. Whether a law was within power was for the Court to decide.²²

It may also be noted that the High Court has asserted its role as the apex court in relation to the common law. The Court has held that Australia has but a single common law—and not, as in the United States, a common law for each State. This was affirmed early in the Court’s history by Griffith CJ in *R v Kidman*, and reaffirmed more recently in *Lipohar v The Queen*²³ and *John Pfeiffer Pty Ltd v Rogerson*.²⁴ The High Court thus has ultimate authority over the content and development of the common law of Australia.

The Court has been relatively active in developing a distinctly Australian common law, particularly after the abolition of appeals to the Privy Council. *Mabo*, for example, developed the Australian common law to recognize that Indigenous native title rights had survived the occupation of Australia. The Court has also developed the Australian common law of negligence, contract, equity, and public law in ways that depart from the English common law.²⁵

However, the Court has not welcomed attempts by intermediate courts of appeal to themselves develop the common law, at least where the High Court has previously spoken on the issue, even where there is no binding precedent. In *Farah Constructions Pty Ltd v Say-Dee Pty Ltd*, in relation to the New South Wales Court of Appeal’s development of the law of unjust enrichment, the Court stated that, leaving aside technical questions of *stare decisis*, this was ‘not a step which an intermediate court of appeal should take in the face of long-established authority and seriously considered dicta of a majority of this Court’.²⁶ The Court’s extended assertion of its authority, through the elevation of its dicta to the status of binding precedent, caused some controversy.²⁷

Under the Australian constitutional system it remains possible for the legislature to reverse a decision of the High Court in relation to the common

law (unless the development of the common law was dictated by the Constitution, as in *Lange v Australian Broadcasting Commission*,²⁸ where the common law of defamation was developed so as to be consistent with the constitutional implied freedom of political communication²⁹). From time to time, High Court decisions on the common law or statutory questions are subject to reversal. But this should not be seen as undermining the Court's authority. Rather, it is a recognition of the respective roles of the judicial and legislative branches—it is entirely permissible for the legislative branch to alter the common law by statute (or to amend a statute following a judicial decision as to its meaning).

Unlike some nations, Australia has no specialist constitutional court that is separate from the ordinary judicial system. The High Court is both the constitutional court and the ultimate appellate court. Further, unlike the United States Supreme Court, the High Court's appellate jurisdiction extends to all matters: federal and State, common law and statute law. Unlike other apex courts, it also has an extensive original jurisdiction, including in constitutional matters. Indeed, the High Court has been described as the 'guardian of the Constitution'.³⁰

The High Court's jurisdiction (both appellate and original) is substantially, but not entirely, entrenched in the Constitution.³¹ In developments over the Court's history, it has been given the ability to control its own docket through the requirement for special leave to appeal (removing the previous appeal as of right) and through powers of removal and remitter.

1. Original Jurisdiction

Under section 75 of the Constitution the High Court has original jurisdiction in relation to matters arising under a treaty, matters affecting representatives of other countries, matters in which the Commonwealth is a party (section 75(iii)), matters between States or between a State and a resident of another State (section 75(iv)), and matters in which mandamus, prohibition, or an injunction is sought against an officer of the Commonwealth (section 75(v)).³² Of these, section 75(iii) and section 75(v), and to a lesser extent section 75(iv), have been the most significant in terms of the High Court's authority to decide significant public law cases, including constitutional cases. The treaty jurisdiction and the foreign state

jurisdiction have been rarely used and are widely regarded as without significance for the work of the Court.

In addition, section 76 of the Constitution permits the Parliament to confer original jurisdiction on the High Court in matters arising under or involving the interpretation of the Constitution (section 76(i)) and matters arising under a law made by the Commonwealth Parliament (section 76(ii)).³³ The Parliament has conferred jurisdiction over constitutional matters on the High Court by section 30 of the *Judiciary Act*.

It is, to say the least, curious that the High Court's original jurisdiction over constitutional matters is not entrenched, but is subject to conferral (and thus removal³⁴) by Parliament. The Convention Debates do not reveal a reason for this. Section 75(iii) would likely provide an independent basis for jurisdiction in relation to matters involving the validity of Commonwealth legislation; and section 75(iv) may provide a basis for jurisdiction for some matters involving State legislation. But were the Commonwealth Parliament to repeal section 30 of the *Judiciary Act* there would undoubtedly be constitutional cases that could not be heard in the High Court's original jurisdiction. Of course, such cases could be heard in a lower court and then subject to removal (discussed further below) or appeal.

As a matter of practice, many constitutional cases commence in the High Court's original jurisdiction rather than making their way to the High Court through the appeal process. This has the advantage of enabling a relatively swift resolution of constitutional issues by the Court—indeed, the Court is capable of moving very swiftly if required, as *Rowe v Electoral Commissioner*³⁵ demonstrates. In 2010, some weeks before a federal election was to be held, two plaintiffs sought to challenge the validity of their exclusion from the electoral roll. The case was instituted, heard, and decided within a two-week period to ensure that the Court's decision could be given effect at the forthcoming election. Further, constitutional issues are likely to end up in the High Court in any event, so there is an efficiency involved for all parties in simply commencing proceedings in the Court's original jurisdiction.

However, there are disadvantages. The High Court no longer decides questions of fact;³⁶ thus for a matter commenced in the High Court to remain there, the parties must agree upon the facts necessary for the Court's decision, or the respondent must demur. This can result in some deficiencies

in the factual record available to the Court. (And the High Court of Australia does not receive extensive amicus submissions or Brandeis briefs,³⁷ unlike the United States Supreme Court). In addition, the High Court does not have the benefit of the reasoning of either trial judge or an intermediate appellate court.

2. Appellate Jurisdiction

Originally, the High Court was not the apex court in all matters: section 74 of the Constitution provided for appeals from the Court to the Privy Council, although for certain constitutional matters an appeal was permitted only if the High Court certified that the question was one that ought to be so determined. Appeals were also originally possible from the State Supreme Courts to the Privy Council. While appeals to the Privy Council remained, the High Court was bound by decisions of the Privy Council (but not of the House of Lords). Appeals to the Privy Council from the High Court were abolished by legislation in 1968 and 1975;³⁸ and from State courts in 1986.³⁹ Thus by 1986, the High Court was the final court of appeal in all cases.⁴⁰

Under section 73 of the Constitution the Court has appellate jurisdiction from all judgments of a single justice of the High Court⁴¹ (except those where the single justice sat as the Court of Disputed Returns⁴²) from any federal court or court exercising federal jurisdiction, and from the Supreme Court of any State, subject to such exceptions and regulations as the Commonwealth Parliament provides. The principle exception is the requirement for special leave to appeal, discussed further below.

The High Court's jurisdiction under section 73 to 'hear and determine appeals' is to 'consider and determine whether the judgment of the court appealed from was correct on the materials before that court'.⁴³ This enables the Court to re-determine matters of both fact and law. However, the Court must apply the law as it was at the time of the original judgment; and it has no power to receive fresh evidence,⁴⁴ although the Parliament has capacity to confer such a power upon the Court, at least in relation to appeals from courts exercising federal jurisdiction.⁴⁵

3. Control of its Own Docket: Special Leave, Remittal, and Removal

The principle regulation of the High Court's appellate jurisdiction is the requirement that a person who wishes to appeal to the High Court must obtain special leave. Until 1984 an appeal lay to the High Court as of right from the State Supreme Courts in most civil matters; leave was required in relation to interlocutory decisions; and special leave was required for criminal matters. However, in 1984 leave as of right from lower courts was abolished and replaced with a requirement for special leave in all cases: *Judiciary Act*, section 35.

The special leave requirement was introduced in part to deal with the increased workload of the Court and in order to give the Court control over its own docket and enable it to select cases of public importance suitable for it to determine. Section 35A of the *Judiciary Act* directs the Court as to the factors relevant to a decision to grant special leave: whether the case raises a question of law of general public importance; whether the High Court, as the final appellate court, is required to resolve differences of opinion between different lower courts; or whether the administration of justice, either generally or in the particular case, requires consideration of the matter by the High Court.

The constitutional validity of the special leave requirement was challenged in *Smith Kline & French Laboratories (Aust) Ltd v Commonwealth*⁴⁶ in relation to federal courts, and in *Carson v John Fairfax & Sons*⁴⁷ in relation to State courts. The challenge was based on an argument that the special leave requirement was not an exception to or regulation of the Court's appellate jurisdiction, as permitted by section 73. The Court held, unanimously, that the special leave requirement was valid as a regulation of the Court's appellate jurisdiction. In *Smith Kline French* the Court described the special leave requirement in the following terms:

It is a long-established procedure which enables an appellate court to control in some measure or filter the volume of work requiring its attention. Ordinarily, it results in a decision which is not accompanied by reasons, or particularly by detailed reasons. It involves the exercise of a very wide discretion and that discretion includes a consideration of the question whether the question at issue in the case is of such public importance as to warrant the grant of special leave to appeal: s 35A of the *Judiciary Act*. To that extent at least, the Court, in exercising its jurisdiction to grant or refuse special leave to appeal, gives greater emphasis to its public role in the evolution of the law than to the private rights or interests of the parties to the litigation.

In addition the Court has statutory powers to remit a matter commenced in the High Court to a lower court (with some exceptions),⁴⁸ and to remove a matter or part of a matter commenced in a lower court to the High Court,⁴⁹ again allowing it to control its own docket.

4. Advisory Opinions

The High Court's jurisdiction, as specified in the Constitution, is in relation to 'matters', a term that, like 'cases and controversies' in article III of the United States Constitution, has played a significant role in the development of, and limits on, what the Court may decide.⁵⁰ In particular, the High Court held, early in its history, that it has no power to give advisory opinions.⁵¹

At the Adelaide Convention there had been an attempt to include a specific provision to allow for advisory opinions, but that was rejected.⁵² However, in the early years of federation section 88 of the *Judiciary Act 1903* (Cth) had conferred on the Court jurisdiction to determine 'any question of law as to the validity of any Act or enactment of the Parliament' referred by the Governor-General to the Court. That provision was declared invalid in 1921 in *In re Judiciary and Navigation Acts* on the basis that it involved no 'matter', because there was no 'immediate right, duty or liability to be established by the determination of the Court'. The Court held that it was beyond the power of the Parliament to confer on the High Court the power to 'make a declaration of law divorced from any attempt to administer that law'.⁵³

However, the prohibition on advisory opinions has been moderated to some extent by various aspects of the Court's practice.⁵⁴ First, the Court may provide a declaratory judgment, which declares the rights and duties between parties, without providing further, concrete relief. In some circumstances, a declaratory judgment resembles in substance an advisory opinion, although the Court has emphasized that there must be a real dispute between two parties and that it will not answer hypothetical questions by declaration.⁵⁵

Second, Attorneys-General at both State and Commonwealth level have considerable scope to seek a declaration that legislation is unconstitutional, even though there may be no controversy involving the application of legislation to particular individuals or to a concrete factual situation.⁵⁶ In

the *Pharmaceutical Benefits Case*,⁵⁷ for example, the Victorian Attorney-General was able to seek a declaration that the *Pharmaceutical Benefits Act 1944* (Cth) was invalid before the Act had come into force, on the basis that it would operate within Victoria and affect the rights and obligations of Victorians. In addition, the State itself has an ability to challenge the validity of Commonwealth legislation, without the participation of the Attorney-General as a party. As Jacobs J noted in *Commonwealth v Queensland*, the Court's decisions in cases of this kind closely resemble advisory opinions.⁵⁸

Third, questions of criminal law referred to an appellate court after the acquittal of an accused can be validly decided by the Court, even though they do not affect the rights and duties of the accused. In *Mellifont v A-G (Qld)* the Court overruled earlier cases that suggested that such a question constituted an advisory opinion and could thus not be appealed to the High Court. Rather, a majority of the Court held that such a case was not 'divorced from the ordinary administration of the law' and did concern a matter within the meaning of Chapter III.⁵⁹

Thus the High Court has to some extent limited its own authority by denying its ability to render advisory opinions. This can result in inconveniences—in particular, the validity of a law (or a proposed law) cannot be known until after it has been enacted and subjected to challenge. Although a State may challenge a law swiftly, even before a law comes into force, it may transpire that no such challenge is brought until the law is, perhaps years later, applied to a particular individual. Advisory opinions provide a useful mechanism in other jurisdictions to swiftly resolve issues of constitutional validity; as Professor Zines has said, there seem to be 'no good reasons based on principle, policy or textual provisions' for the approach adopted in *In re Judiciary and Navigation Acts*.⁶⁰ Yet the decision has stood for nearly a century and seems in no danger of being overruled.

C. INSTITUTIONAL FEATURES OF THE COURT

The High Court's authority comes, at least in part, from its institutional independence from the other two branches of government. This independence is in large measure secured expressly by Chapter III of the Constitution, although there are aspects of the Court's composition and

structure that are not dealt with in the Constitution, but are dealt with in the *High Court of Australia Act 1903* (Cth).

1. Establishment of the Court

The High Court finds its genesis in section 72 of the Constitution, which provides that the judicial power of the Commonwealth is vested in the High Court.⁶¹ However, it was necessary for the Parliament to pass legislation to establish the Court and regulate its procedures. This was not done immediately, and was opposed by some early members of Parliament, including Sir John Quick and H B Higgins (who, somewhat ironically, was later appointed to the High Court).⁶²

Attorney-General Alfred Deakin championed the Court and eventually secured the passage of the *Judiciary Act 1903*, by which the Court was established. In a famous second reading speech, Deakin described the High Court as the ‘keystone of the federal arch’ and recognized the Court’s authority to modernize the Constitution over time:⁶³

The federation is constituted by distribution of powers, and it is this court which decides the orbit and boundary of every power ... The statute stands and will stand on the statute-book just as in the hour in which it was assented to. But the nation lives, grows and expands. Its circumstances change, its needs alter, and its problems present themselves with new faces. [The High Court] enables the Constitution to grow and be adapted to the changeful necessities and circumstances of generation after generation that the High Court operates.

The original High Court had three justices; that increased to five in 1906 and to seven in 1912.

2. Appointment of Justices

Pursuant to section 72 of the Constitution Justices of the High Court are appointed by the Governor in Council—in practice, on the recommendation of the Cabinet. There is no Parliamentary involvement in the appointment process. Perhaps counter-intuitively, this has resulted in a less politicized appointments process than that seen in the United States, where Senate confirmation hearings bring political scrutiny to bear upon Supreme Court nominees.

The Constitution includes no qualifications for appointment—however, the *Judiciary Act*, from the beginning, provided that the qualifications for

appointment were service as a justice of a Supreme Court of a State or practice as a barrister and solicitor for not less than five years.⁶⁴

Other than legal qualifications, several non-legal factors have (at least in more recent times) played a role in High Court appointments: geography, political leanings, and gender.⁶⁵ Each has some effect on the perceived authority of the Court. Notably, consideration of race has been absent from the discourse around High Court appointments, reflecting, no doubt, the pool of persons from which High Court judges are drawn: judges of lower courts, themselves drawn mostly from the ranks of barristers, the overwhelming majority of whom are white (and male).

a) Geography/federalism

Although the Constitution does not require any particular distribution of High Court seats amongst the States, and although the eastern States have generally been over-represented on the Court, there is no doubt that geography plays a role in High Court appointments. As at 2017 there are two justices from each of New South Wales, Queensland, and Victoria, and one from Western Australia. Neither South Australia nor Tasmania, nor any of the territories, has ever been represented on the High Court.

Federalism as an aspect of High Court appointments is reflected not in the Constitution, but (weakly) in section 6 of the *High Court of Australia Act 1979* (Cth), which requires the Commonwealth Attorney-General to consult with the Attorneys-General of the States prior to any appointment to the High Court.

One might speculate that the geographical diversity of the Court plays some role in its authority, particularly in relation to a State such as Western Australia, with its historical flirtation with secession.⁶⁶ Decisions rendered by a geographically diverse bench may gain greater legitimacy, particularly in the West and Queensland, than decisions rendered by a body composed largely by judges from New South Wales and Victoria.⁶⁷ Certainly there has been express acknowledgement, on occasion, that geography plays a role in High Court appointments.⁶⁸

b) Political leanings

From its earliest times members of the High Court have been appointed from the ranks of Parliament (and hence from the ranks of political parties). All the first three appointees had legislative experience: Griffiths CJ had been a member of a colonial Parliament (Queensland, where he had been Premier and Attorney-General), and Barton and O'Connor JJ had been members of the Commonwealth Parliament (and Barton had been Prime Minister). Many of the early appointments had also participated in the Constitutional Conventions of the 1890s. Of the first thirty appointments, from 1903 to 1975, seventeen had had some degree of party-political activity, and thirteen had sat in a Parliament.⁶⁹ Barwick CJ, a Liberal Attorney-General, was appointed to the Court in 1964; and Murphy J, a Labour Attorney-General, was appointed in 1975.

Over time the appointment of High Court justices from the ranks of political parties has waned, and since 1975 no justice has had a background of parliamentary activity. It now seems unlikely that a sitting or former member of Parliament would be appointed to the Court. That does not mean, however, that a candidate's political leanings are unimportant—particularly in relation to judicial method. In recent times there have been appointments that have been seen or portrayed as attempts by the government of the day to appoint a judge with a corresponding political bent. Kirby J,⁷⁰ widely regarded as one of the more left-leaning judges on the Court,⁷¹ was appointed in 1995 by the ALP. Callinan J was appointed in 1998, after the then Deputy Prime Minister Tim Fischer stated that he would like to seek to appoint a 'capital-C conservative' to the Court.⁷² Heydon J was appointed in 2003, after a speech about the evils of judicial activism to a conservative organization only a few months earlier that was described as a 'job application'.⁷³ Interestingly, all these judges had markedly higher rates of dissent than their colleagues,⁷⁴ leaving them as outliers and, to a large extent, ineffective to achieve any real influence on the Court or its decisions.

While political leanings (whether real or perceived) have played a role in at least some judicial appointments, the High Court as an institution remains largely perceived as party-politically neutral. Unlike the United States Supreme Court, it is not possible to correlate the various judges' judgments with the political party that appointed them. At any one time

there have been only one or two judges on the Court perceived as overtly political, which has meant that as a whole the Court has not experienced the injuries to its legitimacy seen in relation to the United States Supreme Court following cases such as *Bush v Gore*.⁷⁵ Further, as much as governments might want to influence the Court's decisions through the appointment process, it is not clear that this is achievable in practice, given that judges can (and have) changed or departed from their perceived political values after appointment.⁷⁶

c) Gender

A further factor that has achieved some visibility in the appointment process since the late 1980s is gender. The High Court was entirely male in composition until 1987, when Gaudron J was appointed. This was somewhat later than the appointment of women judges to the highest courts in the United States and Canada.⁷⁷ Gaudron J served until 2003, and was replaced by Heydon J, thus returning the bench to its all-male composition. However, in 2005 Crennan J was appointed to the Court thus restoring one female member to the bench. Shortly thereafter, in 2007, Kiefel J was appointed, so that for the first time there were two women on the Court. In 2009, Bell J⁷⁸ was appointed, bringing the number of sitting female judges to three—almost gender parity (strict gender parity is, of course, impossible with a bench of seven). When Crennan J retired in 2015 she was replaced by a male judge, Nettle J; but only months later Hayne J was replaced by a female judge—Gordon J (whose husband, coincidentally, is Hayne J). Most recently, in 2017, Kiefel J was appointed as the first female Chief Justice of the High Court.

Female appointments to the Court have, at least until recently, been characterized by an unfortunate degree of commentary on whether the appointee was selected on the basis of merit—the implication being that women judges are appointed because of their gender, not because they are the ‘best person for the job’. That commentary stemmed largely from conservative commentators,⁷⁹ even though most of the female High Court judges were appointed by conservative governments that eschewed any suggestion that gender had played a role.⁸⁰ That discourse was less apparent with the appointment of Gordon J and Kiefel CJ. Discussion of Gordon J's gender was muted, although there was some attention to the fact that she

replaced her spouse on the Court. Attorney-General Brandis remarked that it would be ‘outrageous for a person who was otherwise well-qualified for an appointment, as Justice Gordon is, to be disqualified on account of who they were married to’.⁸¹

Consideration of the Court’s judgments does not suggest that gender has played any strong role in the outcome of cases. There are few cases where the Court has split along gender lines.⁸² However, the legitimacy and authority of the Court has undoubtedly been enhanced by the appointment of women to the bench—and it would be unthinkable for the Court to return to its all-male composition in the future.

3. Tenure and Remuneration

Another feature adding to the authority of the High Court is the institutional independence of the Court from the other branches of government effected by the constitutional provisions for tenure and remuneration.

As discussed above, High Court justices are appointed by the executive. However, once appointed they serve until they reach the age of seventy or retire.⁸³ A justice of the High Court may only be removed by the Governor-General in Council on address from both houses of the legislature on the grounds of ‘proved misbehaviour or incapacity’ (section 72(ii) of the Constitution). In addition, although judicial remuneration is set by Parliament, section 72 prevents that remuneration from being diminished during the term of office. These two mechanisms greatly limit the ability of the executive and legislative branches to control or retaliate against judges who make unpopular decisions.

There has been but one consideration of removal of a High Court justice in Australia’s history, in relation to Murphy J.⁸⁴ In 1985 Murphy J had been convicted of two charges of attempting to pervert the course of justice. The conviction was overturned on appeal and in April 1986 Murphy J was acquitted.⁸⁵ However, in May 1986, the Parliament passed legislation to establish a Parliamentary Commission of Inquiry, constituted by three retired judges, to examine whether any of Murphy J’s conduct was such as to amount to proved misbehaviour within the meaning of section 72 of the Constitution. But in July 1986 Murphy J announced that he was dying of cancer and the legislation was repealed. Murphy J died in October 1986.⁸⁶

4. Conclusion on Institutional Features

The Court's all but unblemished record of judicial good behaviour, combined with its constitutionally protected independence from the other branches of government, provides the foundation for the Court's authority. In addition the Constitution's strong separation of judicial power, which further ensures the integrity and independence of all federal and state courts, supports the High Court's authority in legal matters.⁸⁷ In the remainder of this chapter I consider a further question: authority to do what?

D. THE HIGH COURT'S AUTHORITY OVER THE LEGISLATIVE BRANCH

As noted above in relation to its position as the apex court, the High Court exercises a supervisory role in relation to the legislative branch through its power to determine the validity of legislation passed by the Parliament. The Court also sits as the Court of Disputed Returns for the Commonwealth Parliament and thus determines issues concerning the eligibility of persons to sit in Parliament. However, there are matters involving the Legislature over which the High Court has declined to assert its authority, notably in relation to the operation of sections 53–54 of the Constitution (concerning parliamentary processes for certain money bills) and in relation to the powers and privileges of Parliament.

1. Validity of Legislation

Perhaps the most significant aspect of the High Court's authority is its power to declare legislation—whether State, territory, or federal—invalid. While its common law, statutory, and administrative law decisions can be reversed by the Parliament, its constitutional cannot. On constitutional questions it is the final authority.

While in the United States the question whether the Supreme Court had the power to declare a statute invalid and void was originally controversial, the framers of the Australian Constitution—who were aware of *Marbury v Madison*, and discussed it at the Constitutional Conventions⁸⁸—envisaged from the outset that the High Court would have such a power. Such a power was consistent with the then existing power of colonial courts to declare

colonial legislation invalid where it was repugnant to Imperial legislation.⁸⁹ Notwithstanding this, the Constitution contains no express provision conferring such a power on the High Court.

As Gageler J observed in *Kable (No 2)*,⁹⁰ in Australia there has simply never been any doubt that a court may determine the constitutional validity or invalidity of a statute. The principle derived from *Marbury v Madison* is axiomatic,⁹¹ and consistently with that principle there has never been any doubt that a purported law that a court determines to be invalid is no law at all and is therefore of no legal force.⁹² Despite occasional rumblings from the legislative and executive branches, judicial supremacy in constitutional matters is firmly established in Australia.

The Court's authority to strike down legislation has been exercised on many occasions over the course of its history, too numerous to mention. Declaring legislation unconstitutional is not associated with any particular political predilections or judicial technique: the Court has struck down legislation in periods where it was regarded as relatively conservative in its judicial method and in periods identified as 'activist'. And as already observed, although the Court's decisions on validity have been criticized, they are generally obeyed.

2. Court of Disputed Returns

The jurisdiction to determine the validity of elections is considered to be a unique jurisdiction because 'it concerns what, according to British ideas, are normally the rights and privileges of the Assembly itself, always jealously maintained and guarded in complete independence of the Crown'.⁹³ As a consequence of this view, perhaps, section 47 of the Constitution leaves the power to determine election disputes and qualifications with the relevant House until the Parliament provides otherwise. But it was clearly contemplated that this power need not be exercised by the legislature, if Parliament so decided. The Convention Debates reveal that it was at one stage contemplated that the power in relation to disputed elections be conferred upon the High Court directly by the Constitution.⁹⁴ Ultimately, the view that disputed returns should be left for the Parliament to determine prevailed, but the framers clearly considered that the conferral of the power on the federal courts was a

possibility.⁹⁵ That conferral occurred early in federation, under section 193 of the *Electoral Act 1902* (Cth).⁹⁶

The validity of the conferral of the disputed returns jurisdiction on the High Court was challenged and upheld in *Sue v Hill*.⁹⁷ In relation to the nature of the jurisdiction, Gleeson CJ, Gummow and Hayne JJ observed that in dealing with the validity of an election or a return the Court ‘is not applying the amalgam of centuries of practice and piecemeal statutory provision which constituted the Common Law of Parliament’. Rather, the Court is applying particular legislative provisions or s 44 of the Constitution itself.⁹⁸ They observed that ‘[t]here is nothing in the nature of the resolution of disputed elections which places such controversies necessarily outside the exercise of the judicial power of the Commonwealth’.⁹⁹

3. Authority over Money Bills?

Sections 53 and 54 of the Constitution regulate the way in which certain ‘proposed laws’ are to be dealt with by the two Houses of Parliament. In particular, section 53 provides that proposed laws appropriating revenues or imposing taxation shall not originate in the Senate and that the Senate may not amend proposed laws imposing taxation or appropriating revenues for the ordinary annual services of government, or amend any law so as to increase any proposed charge on the people. Section 54 provides that a proposed law that appropriates revenue for the ordinary annual services of government shall deal only with such appropriation.

In contrast, section 55 deals with ‘laws’ rather than ‘proposed laws’, and provides that laws imposing taxation shall deal only with the subject of taxation; and shall deal with one subject of taxation only (except for laws dealing with customs and excise).

The ‘traditional view’ is that sections 53 and 54 are not enforceable through the Courts: ‘[w]hatever obligations are imposed by these sections are directed to the Houses of Parliament whose conduct of their internal affairs is not subject to review by a Court of law’.¹⁰⁰ That view was endorsed by various judges in *Northern Suburbs Cemetery Reserve Trust v Commonwealth*¹⁰¹ and in the *Native Title Act Case*.¹⁰² In reaching that view the Court has expressly contrasted sections 53 and 54 with section 55, which is justiciable and enforceable. This approach reflects the traditional

reluctance of the courts to interfere with the intra-mural workings of Parliament.¹⁰³

However, the Court's indications that certain sections of the Constitution, which appear to lay down clear rules for the passage of legislation, are not judicially enforceable is somewhat incongruous and may be out of step with modern approaches to the relationship between the judiciary and the Legislature. In *Combet v Commonwealth*¹⁰⁴ the plurality appeared to leave open the question whether sections 53 and 54 might be justiciable; and 'as a matter of logic, there is no inherent obstacle' to enforcement of these sections.¹⁰⁵ Further, section 57, which also deals with 'proposed laws' that have been passed by a joint sitting of the two Houses (rather than by each House) is enforceable by the Court,¹⁰⁶ thus raising questions of consistency of approach and opening the possibility that sections 53 and 54 might be treated in the same way.

4. Powers and Privileges of Parliament

Historically, in the great disputes between the courts and the Parliament, the United Kingdom House of Commons claimed that 'no Court has jurisdiction to discuss the legality of anything which its vote has ordered'.¹⁰⁷ The courts rejected that claim and by 1840—well before federation—it was settled that the existence of the powers, privileges, and immunities of the Parliament is a matter for the courts, but it is the members of each House that are the sole judges whether their privileges have been violated.¹⁰⁸

This approach to parliamentary privilege was followed by the High Court in one of its more notorious cases, *R v Richards; Ex parte Fitzpatrick and Browne*.¹⁰⁹ In that case the House of Representatives had ordered two journalists gaoled for three months for contempt of Parliament, without allowing their counsel to make submissions on their behalf. The High Court declined to interfere with the warrant issued by the House, saying that '[i]t is for the courts to judge of the existence in either House of Parliament of a privilege, but, given an undoubted privilege, it is for the House to judge of the occasion and of the manner of its exercise'. That approach was endorsed more recently in *Egan v Willis*.¹¹⁰

Thus the Court has asserted some degree of authority over the internal workings of the Parliaments (State and federal), but not complete authority, still according to the Parliament a measure of control over its internal processes.

E. THE HIGH COURT'S AUTHORITY OVER THE EXECUTIVE BRANCH

In addition to acting as a check on the Commonwealth, State, and Territory Legislatures, the High Court also has a constitutionally entrenched role as a check on federal executive action. Section 75(v), which confers on the Court original jurisdiction in matters where mandamus, prohibition, or an injunction is sought against an officer of the Commonwealth, ensures that the Court is always able to ensure that federal executive action remains lawful. Over the Court's history section 75(v) has proved very significant in the relationship between the three branches of government.

The significance of section 75(v) is dealt with in greater detail in [chapter 29](#) 'The Constitutionalization of Administrative Law'. For present purposes it is sufficient to observe that the High Court has utilized section 75(v) on many occasions to restrain federal executive action.

However, although the process of judicial review is constitutionalized, the outcomes of the Court's exercise of this supervisory jurisdiction are not. Thus, as with common law decisions, and as already noted, it is possible for the Parliament to override or reverse High Court decisions made under section 75(v) (subject, however, to some overarching constitutional constraints, including that the stream shall not rise above its source).

In addition, Parliament frequently enacts privative clauses designed to remove or limit judicial review of executive decisions. However, a privative clause cannot remove the power of the High Court or the State Supreme Courts to review executive decisions on the basis of jurisdictional error.¹¹¹

F. CONCLUSION

The High Court has ultimate authority over almost all legal questions in Australia, including, importantly, the validity and legality of the actions of the other branches of government. Judicial supremacy in constitutional matters was established early and has never been seriously challenged. In

large measure this stems from the institutional protections of the Court's independence, but also from a political culture where respect for the rule of law remains important—even when the Court renders decisions unpopular with politicians and their constituents.

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¹ Publius (now known to be Alexander Hamilton), *The Federalist No 78*.

² Although there was an early dispute about funding for the Court, discussed in Stephen Gageler, 'When the High Court Went on Strike' (2017) 40 Melbourne University Law Review 1.

³ Judicial Procedures Reform Bill 1937 (US). And see Justin Crowe, 'The Constitutional Politics of the Judiciary' in the *Oxford Handbook of the United States Constitution* (OUP 2015) 210; and Leonard Baker, *Back to Back: The Duel Between FDR and the Supreme Court* (Macmillan 1967).

⁴ Crowe, 'The Constitutional Politics of the Judiciary' (n 3) 210.

⁵ David A Strauss, 'Little Rock and the Legacy of Brown' (2008) 52 St Louis University Law Journal 1065, 1076ff.

⁶ Nikole Hannah-Jones, 'Segregation Now' Pro Publica, 16 April 2014 (retrieved 3 January 2016).

⁷ 135 S Ct 2584 (2015).

⁸ Colleen Jenkins, 'Alabama Chief Justice orders halt to same-sex marriage licences' *Reuters* (6 January 2016, retrieved 7 January 2016); 'Kentucky clerk Kim Davis jailed for denying same-sex marriage licences on religious grounds' *ABC News* (4 September 2015, retrieved 3 January 2016).

⁹ *Australian Communist Party v The Commonwealth* (1950) 83 CLR 1. The ultimate question there in issue—the dissolution of the Communist party in Australia—was ultimately put to the people at a referendum and rejected.

¹⁰ *Tasmania v Commonwealth* (1983) 158 CLR 1.

¹¹ *Mabo v Queensland (No 2)* (1988) 166 CLR 186.

¹² *Wik Peoples v Queensland* (1996) 187 CLR 1.

¹³ Such criticisms have been robust, and at times intemperate and inappropriate: see the collection in Michael Kirby, 'Attacks on Judges—A Universal Phenomenon' (1998) 72 Australian Law Journal 599. Eg, in the aftermath of *Mabo* a Member of Parliament described the High Court as a 'bunch of pissants': John Gardiner-Garden, 'The Mabo Debate—A Chronology' (Parliamentary Research Service Background Paper Number 23, 1993) 20.

¹⁴ Brian Galligan, *The Politics of the High Court* (University of Queensland Press 1987) 242. See Chapter 20 'Judicial Reasoning'; Chapter 23 'Techniques of Adjudication'.

¹⁵ Anthony Mason, 'The Role of a Constitutional Court in a Federation: A Comparison of the Australian and the United States Experience' (1986) 16 Federal Law Review 1, 5.

¹⁶ See discussion in James Stellios, *Zines's the High Court and the Constitution* (6th edn, The Federation Press 2015) 638–49. See Chapter 20 'Judicial Reasoning'.

¹⁷ One of the Court's most unpopular decisions (at least in some quarters), *Mabo*, concerning Aboriginal native title, was the subject of vociferous and intemperate public and political criticism: see Jack Waterford, 'The Role of the Chief Justice: A Media View' in Cheryl Saunders (ed), *Courts of Final Jurisdiction* (Federation Press 1996) 28, 33. However, although *Mabo* concerned the common

law and thus was subject to legislative control, it was the subject of legislation designed not to reverse it but to recognize and protect native title (*Native Title Act 1993* (Cth), s 3).

¹⁸ *Lipohar v The Queen* (1999) 200 CLR 485, 505 [45].

¹⁹ (n 9) 192.

²⁰ *ibid* 205. To like effect see 263 (Fullagar J).

²¹ *ibid* 271.

²² Murray Gleeson, 'Courts and the Rule of Law' Speech delivered at Melbourne University (7 November, 2001) <http://www.hcourt.gov.au/assets/publications/speeches/former-justices/gleeson/cj_ruleoflaw.htm> accessed 23 October 2017.

²³ (n 18).

²⁴ (2000) 203 CLR 503.

²⁵ See discussion in Gerard Brennan, 'Common Law' in Tony Blackshield, Michael Coper, and George Williams (eds), *The Oxford Companion to the High Court of Australia* (OUP 2001) 117–18.

²⁶ (2007) 230 CLR 89, 150 [134].

²⁷ See, eg, Keith Mason, 'President Mason's Farewell Speech' (2008) 82 Australian Law Journal 768, 769; Matthew Harding and Ian Malkin 'The High Court of Australia's Obiter Dicta and Decision-Making in Lower Courts' (2012) 34 Sydney Law Review 239.

²⁸ (1997) 189 CLR 520.

²⁹ See Chapter 39 'Expression'.

³⁰ *Victoria v Commonwealth* (1975) 134 CLR 81, 118 (Barwick CJ) ('PMA Case'); *Kruger v Commonwealth* (1997) 190 CLR 1, 175 (Gummow J); *Thomas v Mowbray* (2007) 233 CLR 307, 387 [229] (Kirby J); cf *Baxter v Commissioner of Taxation* (NSW) (1907) 4 CLR 1087, 1166 (Higgins J).

³¹ In its first reported case the Court held that its jurisdiction in appellate matters comes from the Constitution itself, not from legislation: *Dalgarno v Hannah* (1903) 1 CLR 1.

³² See Chapter 27 'The Judicature'; Chapter 36 'Federal Jurisdiction'.

³³ Section 76 also permits the Commonwealth to confer original jurisdiction on the High Court in maritime and admiralty matters and matters relating to the same subject matter claimed under the laws of different States. These have not been significant aspects of the High Court's original jurisdiction.

³⁴ 'What Parliament may enact it may repeal': *Kartinyeri v Commonwealth (Hindmarsh Island Bridge Case)* (1998) 195 CLR 337, 356 [14] (Brennan CJ and McHugh J), 372 [57] (Gummow and Hayne JJ). (But query whether Parliament could now repeal legislation that conferred upon women the right to vote: see Chapter 40 'Political Participation').

³⁵ (2010) 243 CLR 1.

³⁶ Historically matters involving disputed questions of fact arising in the High Court were determined by a single justice at trial. However, as McHugh J observed in *Re Minister for Immigration and Multicultural Affairs; Ex parte Durairajasingham* (2000) 168 ALR 407, 410 [10], '[w]ith the setting up of the Federal Court, the days when Justices of this Court would sit alone to hear actions against the Commonwealth or between interstate residents or to hear cases concerning matters such as income tax, intellectual property and customs prosecutions were thought to have ended.'

³⁷ But see the discussion of the use of 'social facts' by the High Court in Kylie Burns, 'The Australian High Court and Social Facts: A Content Analysis Study' (2012) 40 Federal Law Review 317; and on constitutional facts see James Stellios, *Zines's The High Court and the Constitution* (The Federation Press 2015) 682–94. See also John Dyson Heydon, *Cross on Evidence*, (6th edn, LexisNexis Butterworths 2000) 122[3010]. And for judicial discussion see *Woods v Multi-sport*

Holdings Pty Ltd (2002) 208 CLR 460, 477 [62]–[70] (McHugh J), cf 510 [162]–[169] (Callinan J); and *Thomas* (n 30) 233 CLR 307, 481 [523]–[533] (Callinan J) and 512 [613]–[639] (Heydon J).

³⁸ *Privy Council (Limitation of Appeals) Act 1968* (Cth); *Privy Council (Appeals from the High Court) Act 1975* (Cth).

³⁹ *Australia Act 1986* (Cth). See Chapter 3 ‘Federation’.

⁴⁰ Once appeals to the Privy Council were abolished the High Court held that it was no longer bound by Privy Council decisions: *Viro v The Queen* (1978) 141 CLR 88.

⁴¹ In its earlier days, when there was no Federal Court, single justices of the High Court held trials. That now rarely occurs, although occasionally a single judge may determine a matter: see, eg, *Kuek v The Honourable Justice Gray* [2012] HCATrans 273. In that case leave to appeal from Hayne J’s decision was refused: [2013] HCASL 133.

⁴² *Commonwealth Electoral Act 1918* (Cth), s 368, is regarded as a permissible exception to the High Court’s appellate jurisdiction under s 73: *Sue v Hill* (1999) 199 CLR 462, 521 [151] (Gaudron J), 485 [41] (Gleeson CJ, Gummow and Hayne JJ agreeing).

⁴³ *Gipp v R* (1998) 194 CLR 106, 125 [56]; *Davies and Cody v The King* (1937) 57 CLR 170, 172.

⁴⁴ *Ronald v Harper* (1910) 11 CLR 63; *Mickelberg v The Queen* (1989) 167 CLR 259; *Eastman v The Queen* (2000) 203 CLR 1.

⁴⁵ *Eastman* (n 44) 11 [14].

⁴⁶ (1991) 173 CLR 194.

⁴⁷ (1993) 178 CLR 44.

⁴⁸ *Judiciary Act*, s 44. Exceptions are found, for example, in s 476B of the *Migration Act 1958* (Cth).

⁴⁹ *Judiciary Act*, s 40.

⁵⁰ See Chapter 22 ‘Justiciability’; Chapter 27 ‘The Judicature’.

⁵¹ This followed the approach adopted in the United States; but may be contrasted with the Canadian Supreme Court, which has a significant advisory opinion role.

⁵² Official Record of the Debates of the Australasian Federal Convention (Adelaide, 1897) 962–67, discussed in Leslie Zines, ‘Advisory Opinions and Declaratory Judgments at the Suit of Governments’ (2010) *Bond Law Review* 1.

⁵³ *In re Judiciary and Navigation Acts* (1921) 29 CLR 257.

⁵⁴ See discussion in Zines, ‘Advisory Opinions and Declaratory Judgments at the Suit of Governments’ (n 52) 2–5; and see Kristen Walker, ‘Advisory Opinions’ in Tony Blackshield, Michael Coper, and George Williams, *The Oxford Companion to the High Court of Australia* (OUP 2001) 14.

⁵⁵ See, eg, *Ainsworth v Criminal Justice Commission* (1992) 175 CLR 564.

⁵⁶ See, eg, *A-G (Vic) v Commonwealth (Marriage Act Case)* (1962) 107 CLR 592.

⁵⁷ *Ex rel Dale v Commonwealth* (1945) 71 CLR 237.

⁵⁸ (1975) 134 CLR 298.

⁵⁹ (1991) 173 CLR 289, 301 [25].

⁶⁰ Zines, ‘Advisory Opinions and Declaratory Judgments at the Suit of Governments’ (n 52) 68.

⁶¹ Section 72 also vests the judicial power of the Commonwealth in such other federal courts as the Parliament may create and in such other courts as the Parliament invests with federal jurisdiction. Federal courts were not created by Parliament until the 1970s and later (the Family Court of Australia was created in 1975; the Federal Court of Australia was created in 1976; and the federal Circuit Court (formerly the Federal magistrates Court) was created in 1999). The reference in s 72 of the Constitution to the vesting of Commonwealth judicial power in ‘other courts’ refers to the ‘autochthonous expedient’ of enabling the Commonwealth Parliament to vest Commonwealth

judicial power in State courts, a power it has exercised by the enactment of ss 39 and 39A of the *Judiciary Act 1903* (Cth). Further discussion of these aspects of Commonwealth judicial power is beyond the scope of this chapter. See Chapter 27 ‘The Judicature’; Chapter 36 ‘Federal Jurisdiction’.

⁶² Crispin Hull, *The High Court of Australia: Celebrating the Centenary* (Lawbook Co 2003).

⁶³ Commonwealth of Australia, Hansard, 18 March 1902, 10966–67.

⁶⁴ The formal qualifications are now found in s 7 of the *High Court of Australia Act 1979* (Cth) and have expanded to include service as a justice of a Supreme Court of a Territory.

⁶⁵ Other factors, such as religion, class, and (historically) military background may also play a role in appointments (see discussion in Tony Blackshield, Michael Coper, and George Williams, *The Oxford Companion to the High Court of Australia* (OUP 2011) 48–52). However, a consideration of those matters is beyond the scope of this chapter.

⁶⁶ Thomas Musgrave, ‘The Western Australian Secession Movement’ (2003) 3 *Macquarie Law Journal* 95.

⁶⁷ Over its history, there have been twenty-six justices from New South Wales (with twenty-four of these graduates of Sydney Law School), thirteen from Victoria, eight from Queensland, and three from Western Australia.

⁶⁸ See, eg, Kcasey McLoughlin, ‘The Politics of Gender Diversity on the High Court of Australia’ (2015) 40 *Alternative Law Journal* 166, 169, quoting remarks by Attorney-General Phillip Ruddock after the appointment of Kiefel J to the Court. Kiefel J is a Queenslander, replacing Callinan J, also a Queenslander.

⁶⁹ Blackshield, Coper, and Williams, *The Oxford Companion to the High Court of Australia* (n 65) 48. H V Evatt had been an MP, was appointed to the Court, then later resigned to become an MP again.

⁷⁰ Kirby J was also the first openly gay judge on the High Court, although he did not come out until after his appointment.

⁷¹ This was no doubt due to his championing of international human rights as relevant to the judicial task, as exemplified in *Al Kateb*. However, contrast Roy Williams, ‘Flaws serve to make Michael Kirby, the man’, *The Australian* 29 December 2012:

There is a prevalent myth that Kirby was, and is, a ‘left-wing radical’ and/or a ‘judicial activist’ insufficiently respectful of elected governments. But the opposite is closer to the truth. At heart Kirby is a conformist and a conservative.

⁷² Nikki Savva, ‘Fischer seeks a more conservative court’ *The Age* (Melbourne, 5 March 1997) 1. And see Rosalind Dixon and George Williams, *The High Court, The Constitution and Australian Politics* (CUP 2015) 304. Callinan J had a commitment to originalism in constitutional interpretation, a technique generally associated with conservative judges. In fact, the appointment that most immediately followed those remarks was that of Hayne J, not Callinan J: David Bennett, ‘What “Capital-C”?’ (2008) 27 *University of Queensland Law Journal* 23, 24.

⁷³ ‘The dicing of Heydon’s job application’ *Justinian* (February 2004). The speech was delivered to a *Quadrant* magazine dinner on 30 October 2003; Heydon J was appointed in February 2004.

⁷⁴ See, eg, Andrew Lynch and George Williams, ‘The High Court on Constitutional Law: The 2011 Statistics’ (2012) 35 *University of New South Wales Law Journal* 846, 856.

⁷⁵ 531 US 98 (2000). As to the effect of the case on the legitimacy of the Court, see, eg, Bruce Ackerman (ed), *Bush v Gore: The Question of Legitimacy* (Yale UP 2002).

⁷⁶ See, eg, Anika Gauja, ‘High Court Review 2007–08: A Changing Bench, But Business as Usual?’ (2009) 44 *Australian Journal of Political Science* 697, 699; Haig Patapan, ‘Judging Democracy: The New Politics of the High Court of Australia’ (2002) 26(1) *Melbourne University*

Law Review 224; Kristen Walker, 'Mason, Anthony Frank' in Tony Blackshield, Michael Coper, and George Williams, *The Oxford Companion to the High Court of Australia* (OUP 2001) 459–60.

⁷⁷ In the US O'Connor J was appointed in 1981 and in Canada Wilson J was appointed in 1982.

⁷⁸ Bell J was the first openly gay or lesbian judge to be appointed to the Court, a factor that attracted little comment at the time of her appointment: Heather Roberts, 'Women Judges, "Maiden Speeches" and the High Court of Australia' in Beverley Baines, Daphne Barak-Erez, and Tsvi Kahana (eds), *Feminist Constitutionalism: Global Perspectives* (CUP 2012) 127.

⁷⁹ See discussion in McLoughlin (n 68) 168–69.

⁸⁰ Crennan and Kiefel JJ were appointed by the Howard government; and Gordon J was appointed by the Abbott government.

⁸¹ Quoted in McLoughlin (n 68) 170.

⁸² The most prominent example is *Monis v The Queen* (2013) 249 CLR 92, where a six-member bench split 3:3 along gender lines.

⁸³ Originally justices were appointed for life, but this was altered by constitutional amendment in 1977.

⁸⁴ In more recent times, in 2002, false allegations of impropriety were made against Kirby J by conservative Senator Heffernan, with a view to initiating the removal process. These allegations were swiftly shown to be based on fabricated documents and no action was taken against Kirby J. See discussion in Haig Patapan, 'High Court Review 2002: The Least Dangerous Branch' (2003) 38 Australian Journal of Political Science 299, 299–301.

⁸⁵ Notably, Murphy J had also appealed his conviction to the High Court, on which he sat, on constitutional grounds; that appeal failed: *R v Murphy* (1985) 158 CLR 596.

⁸⁶ See Jenny Hocking, *Lionel Murphy—A Political Biography* (CUP 1997).

⁸⁷ See Chapter 28 'The Separation of Judicial Power'.

⁸⁸ Robert French, 'Constitutional Review of Executive Decisions—Australia's US Legacy' 2010 University of Western Australia Law Review 35.

⁸⁹ *Singh v Commonwealth* (2004) 222 CLR 322 [7] (Gleeson CJ); and see Alfred Deakin's second reading speech for the Judiciary Bill: Australia, House of Representatives, Parliamentary Debates (Hansard), 18 March 1902, 10969.

⁹⁰ (2013) 298 ALR 144.

⁹¹ *Communist Party Case* (n 9) 262 (Fullagar J).

⁹² For that reason, the High Court has declined to prospectively overrule its earlier decisions. 'The notion that a law may be invalid only prospectively from the time of the making of a judicial order has been firmly rejected on the basis that "it would be a perversion of judicial power to maintain in force that which is acknowledged not to be the law"': *Kable (No 2)* (n 90), 156 [51], quoting *Ha v New South Wales* (1997) 189 CLR 465, 504.

⁹³ *Strickland v Grima* [1930] AC 285, 296. And see Erskine May, *The Law, Privileges, Proceedings and Usage of Parliament* (May's *Parliamentary Practice*) (21st edn, Butterworths 1989) 36; John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (LexisNexis 1976 reprint) 496.

⁹⁴ Official Record of the Debates of the Australasian Federal Convention (Adelaide, 1897) 680–82, 1150.

⁹⁵ See, eg, ibid 682. Harrison Moore, a participant in the Conventions and a leading constitutional law scholar in the early days of the federation, clearly considered the conferral of the jurisdiction on the High Court permissible: *The Constitution of the Commonwealth of Australia* (Legal Books 1997 reprint) 136–37.

⁹⁶ And now see *Commonwealth Electoral Act 1918* (Cth), s 354.

- ⁹⁷ (n 42).
- ⁹⁸ *Sue v Hill* (n 42) 482 [34].
- ⁹⁹ *ibid* 483–84 [37].
- ¹⁰⁰ *Osborne v Commonwealth* (1911) 12 CLR 321, 336 (Griffith CJ).
- ¹⁰¹ (1993) 176 CLR 555, 578.
- ¹⁰² (1995) 183 CLR 373, 482.
- ¹⁰³ *Osborne* (n 100), 336 (Griffith CJ); *Western Australia v Commonwealth* (1995) 183 CLR 373, 482 (Mason CJ, Brennan, Deane, Toohey, Gaudron and McHugh JJ).
- ¹⁰⁴ (2005) 224 CLR 494, 575 [155].
- ¹⁰⁵ Peter Gerangelos, Nicholas Aroney, Simon Evans, Patrick Emerton, Sarah Murray, and Adrienne Stone, *Winterton's Australian Federal Constitutional Law* (3rd edn, Thomson Reuters 2013) 673.
- ¹⁰⁶ *PMA Case* (n 30).
- ¹⁰⁷ *R v Richards; Ex parte Fitzpatrick and Browne* (1955) 92 CLR 157, 162.
- ¹⁰⁸ *Egan v Willis* (1998) 195 CLR 424, 459, [65]–[66].
- ¹⁰⁹ (1955) 92 CLR 157.
- ¹¹⁰ (n 108).
- ¹¹¹ *Plaintiff S157 v Minister for Immigration and Multicultural Affairs* (2003) 211 CLR 476; *Kirk v Industrial Relations Court* (2010) 239 CLR 531.

CHAPTER 20

JUDICIAL REASONING

ADRIENNE STONE

A. INTRODUCTION

CONSTITUTIONAL reasoning refers to the explanation of, and justification given for, the application of constitutional principles to specific circumstances. In common law systems, constitutional reasoning is most commonly understood as *judicial reasoning* and in Australia its focus is usually the *Constitution of the Commonwealth* (the text enacted by the Parliament at Westminster as section 9 of the *Commonwealth of Australia Constitution Act* 1900 (UK) and adopted by the people of the Australian colonies voting at referendum). However, not all constitutional reasoning takes this form. First, as is evident from other contributions to this Handbook, some principles of Australian constitutional law find their foundation in other legal sources including the common law,¹ principles of statutory interpretation,² or established practices and understandings.³ Second, constitutional reasoning is not the sole province of courts. Other constitutional actors—in legislatures and the executive—will also face questions as to the meaning of the Constitution and, where no authoritative judicial interpretation is available, make independent judgments about constitutional meaning.

This chapter,⁴ however, will focus on the narrower conception of constitutional reasoning as judicial reasoning. This focus is justified partly by central tenets of Australian constitutionalism itself. Unlike the position in the United States (which is so often an important constitutional model for Australia), the courts' power to interpret and enforce the Constitution has never been the subject of serious controversy.⁵ Moreover, as the High Court

made clear in *Australian Communist Party v Commonwealth*,⁶ as a matter of constitutional law, the courts are the final arbiters of constitutional meaning.

Judicial constitutional reasoning, this chapter will show, can be characterized by reference to several accepted ‘methods’ (sometimes described as ‘modalities’) of interpretation that are routinely deployed in constitutional argument. These methods have been described a number of ways⁷ but in this chapter I will refer to them as ‘Text’, ‘History’, ‘Precedent’, and ‘Structure’. The use of these methods is buttressed by a less common but still widely accepted role for considering explicitly non-legal and practical concerns.

Despite the confidence with which these methods can be identified, the interplay between them and their application in particular cases remains highly complex and contested. In its final section, the chapter will turn to consider circumstances in which there is, or has been, considerable disagreement (within the High Court or amongst scholars of the Constitution) about constitutional interpretation.

B. ACCEPTED METHODS IN AUSTRALIAN CONSTITUTIONAL INTERPRETATION

1. Text: The Primacy of the Text and Australian Legalism

Commentaries on Australian constitutional interpretation typically begin with a discussion of the *Engineers’ Case*,⁸ perhaps the foundational case of Australian constitutional law. In a ‘Cartesian turn’⁹ the Court repudiated two doctrines developed over the previous twenty years: the doctrine of ‘intergovernmental immunities’, pursuant to which neither level of government within the federation could be made subject to laws enacted by the other, and ‘reserved state powers’, according to which Commonwealth legislative power did not extend into areas impliedly ‘reserved’ to the States.

The overturning of these principles depended, in turn, on more fundamental ideas. First and foremost, the joint reasons in *Engineers’* emphasized the primacy of the Constitution’s text:

It is ... the manifest duty of this Court to turn its earnest attention to the provisions of the Constitution itself. That instrument is the political compact of the whole of the people of Australia, enacted into binding law by the Imperial Parliament, and it is the chief and special duty of this Court faithfully to expound and give effect to it according to its own terms, finding the intention from the words of the compact, and upholding it throughout precisely as framed.¹⁰

In this respect, the *Engineers'* approach, with its emphasis on constitutional text, remains at the core of Australian constitutionalism doctrine. As a matter of substance, it has led to an expansive interpretation of Commonwealth legislative power. Consistently with the *Engineers'* approach the High Court has developed principles of 'characterization' that favour broad interpretations of Commonwealth power;¹¹ that (subject to exceptions) focus on the legal and practical operation of the law rather than its purpose; and disregard the justice or wisdom of the law.¹²

Looking beyond its doctrinal consequences, the method to which it commits the Court remains central. As the High Court was to reaffirm in the *Work Choices* case, some eighty-six years later: ¹³

What was discarded in the *Engineers' Case* was an approach to constitutional construction that started in a view of the place to be accorded to the States formed *independently of the text* of the Constitution.

The role of text in Australian constitutional reasoning needs to be placed in the context of a broader set of ideas about judicial method, usually described as Australian 'legalism'. This theory of adjudication is famously associated with Owen Dixon CJ and traced to his statement (on his swearing in as Chief Justice) 'there is no other safe guide to judicial decisions in great conflicts than a strict and complete legalism'.¹⁴ At the core of Dixon's judicial method is the idea that the law constrains judicial reasoning; that law provides an 'external standard of legal correctness'¹⁵ that governs judicial decision-making.

Though Dixon himself may have been uncomfortable with *Engineers'*,¹⁶ or at least its more extreme interpretations, nonetheless the textual method to which *Engineers'* commits the Court aligns with the central commitment of legalism. The doctrines of intergovernmental immunities and reserved State powers were rejected precisely because they did not provide an external standard of correctness rather, and depended on 'no more definite standard than the personal opinion of Judge who declares it'.¹⁷

2. Text: Purpose and Context

Having identified ‘legalism’ as central to judicial reasoning in Australian constitutional law, some care needs to be taken in its elaboration. The method can easily be caricatured as depending on a mechanical understanding of judicial method and a naïve faith in the determinacy of legal materials. However, in the hands of sophisticated expositors the method is subtle. Two qualifications are in order. First, legalism is plural: there are many legal sources and the relationship between them is complex. Second, most scholars and jurists, including those oriented to other judicial methods,¹⁸ accept that Dixon did not suggest that legal reasoning was *wholly* a matter of judicial divination of pre-existing principle nor that ‘true’ or ‘correct’ legal answers were always available. Rather, Dixonian legalism is better understood as reflecting the view that judges usually can (and therefore usually should) make their decisions by reference to legal materials and sources.¹⁹

In line with these qualifications, neither textualism nor legalism should be taken to countenance acontextual linguistic analysis. On the contrary, the special character of the Constitution is one factor counselling some flexibility of meaning, an idea captured by O’Connor J’s frequently cited statement:

It must always be remembered that we are interpreting a Constitution, broad and general in its terms, intended to apply to the varying conditions which the development of our community must involve.²⁰

For these reasons, Australian textualism is flexible enough to encompass at least some changes in meaning. It is well accepted, for instance, that a word or phrase within the Constitution may come to have applications that were not contemplated at the time of the Constitution’s framing. As it is usually explained the ‘connotation’ (or essential meaning) of words and phrases remain though those things in the world to which they apply (their denotation) may change. Thus, although at the time of the framing of the Constitution and for decades thereafter the United Kingdom would not have been considered a ‘foreign power’ for the purposes of section 44 of the Constitution, the High Court recognized in 1999 that circumstances had changed (with the result that Australians holding United Kingdom citizenship were not eligible to serve in the Parliament).²¹

Moreover, text is to be read in its context, which includes the Constitution's overall purpose and its history. It is well accepted that as Barwick CJ was later to write '[the Constitution] is to be read generously and not pedantically, but as a whole'.²² This method has allowed the High Court to take into account conceptions of the Constitution's overall purpose. So, for instance, in *Street v Queensland Bar Association*,²³ the Court transformed the interpretation of the prohibition on discrimination on grounds of State residence by reference to an overall constitutional purpose of securing equal treatment of the people and promoting national unity.

3. History

The commitment to reading text in its context introduces another mode of constitutional reasoning: reference to the context of the Constitution's framing, in other words to its 'history'. Indeed, as is evident in *Street*, where the purpose of the Constitution was also determined by reference to the history of the Constitution and its framing,²⁴ purposive constitutional interpretation is often blended with historical interpretation.²⁵ Historical reasoning has a long lineage in Australian constitutional law²⁶ but, an important turning point arose in *Cole v Whitfield*²⁷ in 1988 when the High Court consulted the records of the Australasian Conventions, at which the Constitution was drafted, as evidence of constitutional meaning. In that case, the High Court relied upon an extensive historical analysis including statements of the framers during the drafting process, the debate on section 92 at the Conventions, and the successive resolutions proposed to conclude 'the purpose of the section is clear enough: to create a free trade area throughout the Commonwealth and to deny the Commonwealth and the States alike a power to prevent the free movement of people, goods and communications across State boundaries'.²⁸

Consistently with this general practice, the Court will take historical understandings into account in determining the meaning of an institution or practice referred to in the Constitution. So for instance, the requirement in section 80 that certain trials for offences under Commonwealth law be 'by jury' is interpreted by reference to the common law and statute law at the time of the framing.²⁹ The historical practices of courts are also relevant in deciding whether or not a power is a 'judicial' power, a concept that is in

turn crucial in determining the application of separation of powers principles under Chapter III of the Constitution.³⁰

Although the relevance of history to constitutional interpretation is widely accepted, there have been Australian echoes of the American debate over ‘originalism’ in constitutional interpretation.³¹ Nominally at least, the High Court has disavowed ‘originalism’ as an ‘over-arching theory’ of constitutional interpretation.³² Thus it is generally accepted that the Constitution’s meaning changes over time and that its ‘original meaning’ may not govern the present.³³

Nonetheless, one view of Australian constitutionalism, influentially expounded by Jeffrey Goldsworthy, is that Australian legalism is best understood as a form of ‘moderate originalism’. On this view, orthodox methods of reading the text in its context and by reference to history are a means of determining the ‘original meaning’ of the Constitution.³⁴ This form of originalism accepts that the meaning of the Constitution may, within certain limits, change over time and that the Constitution’s meaning may be vague, ambiguous, or otherwise unclear giving rise to a leeway for judicial discretion in interpretation.³⁵

4. Precedent

Much judicial reasoning about the Constitution proceeds as an analysis of the meaning and authority of past cases. The case law is replete with legal concepts—either drawn from the text or developed in the case law—that can only be properly understood by reference to their elaborations in precedent. Concepts like ‘tax’, ‘excise’, ‘trade’, ‘trading and financial corporation’, and ‘marriage’³⁶ have their distinct constitutional meanings accessible only on a detailed reading of the case law.³⁷ For the most part, constitutional reasoning is resolved with a first principles consideration of reference to the text of the Constitution or its history, or implications to be drawn from ‘text and structure’. Rather, doctrines decided in previous cases provide the starting point and traditional ‘common law’ methods like analogy and distinction are utilized.

One potential complication arises in relation to the use of foreign law in constitutional reasoning. However, even here precedential reasoning is accepted as a matter of principle. Despite the occasional echo of American

debates, however, the use of foreign law is not *of itself* controversial though, of course, particular controversies arise.³⁸ Apart from anything else, the Australian constitution was influenced by other federal constitutions, notably the Constitutions of the United States, Canada, and Switzerland and, as shown in [chapter 11](#), ‘Comparative Constitutional Law’, consideration of foreign law was both expected by the framers and consistent with the general practices of common law reasoning.

In short, precedential reasoning is undoubtedly the most prevalent method of constitutional reasoning in Australian constitutional law. In a detailed analysis of forty key cases in Australian constitutional law, undertaken as part of a global study of constitutional reasoning, this method was the only one found to be present in all forty cases.³⁹ Indeed, precedential reasoning is so central to constitutional reasoning in a common law system like Australia that there is little overt discussion of its weight unless the High Court overrules (or declines an argument for overruling) previous cases, as it is clearly entitled to do.⁴⁰

5. Structural Implications

A fourth important method of judicial reasoning in Australian constitutional law is ‘implication’, a method of drawing inferences from the ‘text and structure’ of the Constitution.⁴¹ There are three important ‘implications’: the implication protecting the ‘essential functions’ of the States, which gives rise to principles protecting the States from some federal laws;⁴² the implication from representative and responsible government, which gives rise to a right of freedom of political communication (a limited kind of free speech right)⁴³ and, perhaps, to rights of freedom of movement and association;⁴⁴ and the implication of a separation of judicial power which gives rise to a range of more specific rules including a rule that the Parliament cannot enact a bill of attainder,⁴⁵ that the Parliament cannot order detention (at least of a punitive nature) without the intervention of a court,⁴⁶ and that courts must act consistently with judicial process.⁴⁷

Structural implications thus give rise to doctrines that are, in a sense, *unexpressed* and for that reason there is a superficial tension with textualism that might seem to follow directly from *Engineers*. The pre-*Engineers*’ approach to constitutional interpretation was rejected precisely

because its central ideas ('reserved state powers' and 'immunity of instrumentalities') were taken to have insufficient textual grounding.⁴⁸

However, it has never been thought that the approach adopted in *Engineers* precludes this process of 'implication'.⁴⁹ As Jeffrey Goldsworthy has elaborated in some detail, it is a feature of language generally that statements are taken to carry meanings that are not expressed such as logical implications, implications drawn from deficient expressions, deliberate implications and implicit assumptions.⁵⁰

For this reason, the High Court has recognized that implication is an inescapable part of constitutional interpretation and, far from being prohibited, implications are central to Australian constitutional law. Structural implications are drawn by reasoning from specific provisions (for instance those provisions preserving the colonies as States after federation) to a more general principle (namely a prohibition on interference with 'essential State functions')⁵¹ to a more specific set of rules (such as those that govern federal regulation of State employees).⁵² These arguments do not concentrate on the text of any single legal provision but look to the institutions and 'structures' established by the Constitution (the federal division of powers, the judiciary, the Parliament and the voting system) to identify and give effect to fundamental underlying principles.

6. Non-legal Constitutional Reasoning

Finally, and consistently with a qualified form of legalism, it must be acknowledged that the High Court's reasoning is occasionally explicitly non-legal. Considerations of convenience, practicality, and common sense are often advanced alongside the legal methods just described.⁵³ Thus in the *Second Uniform Tax Case*,⁵⁴ the conclusion of the Second World War was taken to be relevant to the extent of the power to make laws with respect to defence and in determining the extent of the Commonwealth power to regulate aviation as a form of 'interstate trade', the particular features of airline travel—its speed, the dangers posed, its necessity in modern life, and the great distances of Australia—were thought relevant to the analysis.⁵⁵ Because of the '*sui generis*' status of airline travel the Court extended Commonwealth powers further in this field than in relation to other forms of travel.⁵⁶

But even in this respect, the High Court's devotion to legalism has made it notably cautious. In *Airlines of New South Wales* the Court warned:

The Court is entrusted with the preservation of constitutional distinctions, and it fails in its task and exceeds its authority if it discards them, however out of touch with practical conceptions or with modern conditions they may appear to be.⁵⁷

This warning was put into effect in *Re Wakim*.⁵⁸ The laws challenged in that case involved a co-operative scheme enacted by all Australian governments (federal, State, and Territory) in order to solve the administrative inconvenience posed by the parallel system of State and federal courts. That governments had agreed that the scheme was a convenient solution to a common problem was not enough, however, to save the law from challenge. The 'convenience' of government could not be used in a manner that overcame substantive limitations to the capacity of the Parliament to authorize the conferral of State jurisdiction on federal courts. McHugh J acknowledged that this course might lead to greater convenience but denied that it lay within the authority of the courts to 'give effect to what judges think is in the public interest'.⁵⁹

Thus, as *Re Wakim* shows, extra-legal considerations can be raised negatively, to deny their relevance to judicial determination and therefore their impact on the outcome of the case. *Al-Kateb v Godwin*⁶⁰ provides another illustration. In that case, in confirming the validity of the law authorizing the continuing detention of a stateless asylum seeker, McHugh J expressly repudiated the relevance of the 'justice or wisdom of the course taken by Parliament' and whether it was 'contrary to basic human rights'.⁶¹

C. SELECTED CONTROVERSIES

The methods just described are widely agreed upon in Australian constitutional law. However, agreement as a matter of principle on the permissibility of these methods exists alongside much disagreement and controversy about particular applications. In addition, there are some methods of judicial reasoning that of themselves attract controversy and disagreement.

1. Textualism and Implications

Disagreement about the application of agreed upon methods is especially prevalent with respect to implications.

In the realm of federalism, there is a strong line of argument that seeks to revitalize a conception of the federal balance. In part, this line of argument involves criticism of *Engineers'* itself.⁶² However, others have sought to argue that a narrower interpretation of Commonwealth federal powers (and correspondingly broader State powers) is consistent with *Engineers'*. The two modern cases that best exemplify this debate are *Tasmania v Commonwealth* (1983) and *Work Choices* (2007).⁶³ In each case the dissenters, though they do not seek to overrule *Engineers'*, argue that the federal character of the Constitution nonetheless requires limitations on Commonwealth power. In Callinan J's words:

Sight should never be lost of the verity that the *Constitution* is a constitution for a federation and that it provides for a federal balance[.]⁶⁴

The argument in short is that the High Court has *not* recognized a limitation which ought to be inferred from the Constitution as a whole and, on some versions of the argument,⁶⁵ from the history of the framing and the intention of the drafters.

In the context of the freedom of political communication, the complaint runs in the opposite direction. That is, while majority judgments in freedom of political communication cases appeal to the legitimacy (and prior use) of the method of constitutional implication,⁶⁶ other judges (with considerable scholarly support) have criticized the doctrine as beyond the scope of a legitimate interpretation. In the view of its critics, the freedom of political communication has insufficient textual foundation, especially given the intention of the framers' to protect 'rights' by other means.⁶⁷ Moreover, though the implication is now well confirmed, these doubts—inspired by originalist and textualist concerns—may affect its on-going development.⁶⁸ Without a strong textual or historical basis for the doctrine, it has proved difficult to identify an agreed conception of freedom of political communication leading to sharp disagreements about the scope and application of the doctrine in particular cases.⁶⁹

Finally, in the context of the separation of judicial power, disagreement has been especially sharp surrounding the '*Kable*' doctrine that establishes

that State Parliaments must maintain the independence and integrity of State courts.⁷⁰ This application of aspects of the ‘separation of powers’ doctrines derived from Chapter III to State courts is, at first sight, a surprising conclusion since Chapter III is principally concerned with the structure and powers of *federal* courts. The foundation of the doctrine lies in the investing of federal jurisdiction in State courts (permitted by section 77(iii) of the Constitution). Because they are repositories of federal jurisdiction, the argument runs, State courts must be appropriate vehicles for its exercise, and this proposition in turns gives rise to the requirement that they retain their integrity, independence, and impartiality. Or, as it was more recently put in *Kirk v Industrial Relations Commission of New South Wales*,⁷¹ State Courts must retain a body that answers the description of a ‘Supreme Court’ including its essential characteristics.

The reasoning has been widely and influentially criticized as implausible and even fanciful given the weakness of its textual and historical foundations.⁷² Its most persuasive justification lies in a rather larger vision of the Australian judiciary as a unified institution. Gaudron J’s view that ‘[T]here is nothing anywhere in the *Constitution* to suggest that it permits of different grades or qualities of justice, depending on whether judicial power is exercised by State courts or federal courts’⁷³ is often cited in this context. As Jeffrey Goldsworthy has aptly remarked, however, ‘there is nothing in the *Constitution* that expressly forbids it’ and the Constitution’s silence may well be—and Goldsworthy would say should be regarded as—compatible with the view that such differentiation is permitted. A related justification is sometimes found in the federal appeal structure created by section 73 of the Constitution. Whether these justifications are entirely persuasive remains a matter for debate but, whatever the justification for *Kable*, it is difficult to square with the idea of *necessary* implication from text and structure.

3. Foreign Law and Proportionality

A similar dynamic of disagreement about the particular applications of agreed methods arises in the context of precedential reasoning. For instance despite the general agreement of the relevance of foreign law to constitutional reasoning, particular instances remain hotly disputed. In some cases, the dispute is in fact founded on a prior disagreement about

interpretation.⁷⁴ In *Roach v Australian Electoral Commission*,⁷⁵ in which the High Court considered a challenge to a 2006 amendment to a Commonwealth law that extended the class of disenfranchised prisoners from any person serving a sentence of three years or longer to any person serving ‘a sentence of imprisonment’, members of the Court took quite different approaches to the relevance of foreign authorities (from the United Kingdom and the European Court of Human Rights). Although Gleeson CJ took account of these judgments in concluding that the law was invalid,⁷⁶ other members of the Court declined to do so. Heydon J’s dissent provided an emphatic rejection, stating that the comparative materials cited ‘can have nothing whatever to do with the construction of the Australian Constitution’.⁷⁷

Though focused on foreign law, his Honour’s position is best understood as arising from his commitment (in this context at least) to an originalist method of interpretation, which would exclude foreign law postdating the framing. But as we have seen, originalism is not accepted as an ‘overarching’ theory of constitutional interpretation and, in any event, even a thorough going originalist approach to interpretation would leave open many undecided questions to which foreign law is potentially relevant. The accepted approach in such circumstances is to consider what insight can be provided by foreign law but, as the precedent is of persuasive value only, members of the Court have frequently reiterated the need to treat such precedent critically and with careful attention to the particularities of the Australian context.⁷⁸

Disagreement along similar lines is evident in the High Court’s most recent encounter with foreign law in *McCloy v New South Wales* which saw the High Court adopt (by majority) ‘structured proportionality analysis’ in the context of the freedom of political communication.⁷⁹ The spread of proportionality from its German roots throughout Europe and the common law world including parts of Africa, Asia, and Latin America is well known.⁸⁰ But proportionality is intimately associated with constitutional rights. Indeed, as influentially exposited by German legal theorist Robert Alexy, proportionality is a means of ensuring the optimization of rights claims (that is their maximum recognition consistently with the legal and factual circumstances).⁸¹ The idea that constitutional rights should be *optimized* reflects their status in German constitutional law as fundamental

human rights. In the Australian context, the question arises whether proportionality can be adapted to a different context given the limited place of constitutional rights and its legalist judicial culture. As Gordon J recalled in *McCloy*, a warning bell was sounded by Gleeson CJ in *Roach*:⁸²

There is a danger that uncritical translation of the concept of proportionality from [other] legal context[s] ... to the Australian context could lead to the application in this country of a constitutionally inappropriate standard of judicial review of legislative action. Human rights instruments which declare in general terms a right, such as a right to vote, and then permit legislation in derogation of that right, but only in the case of a legitimate objective pursued by means that are no more than necessary to accomplish that objective, and give a court the power to decide whether a certain derogation is permissible, confer a wider power of judicial review than that ordinarily applied under our Constitution. *They create a relationship between legislative and judicial power significantly different from that reflected in the Australian Constitution.*

In line with these comments, Gordon J in *Murphy v Electoral Commissioner* questioned whether the proportionality test is unnecessarily rigid and thus might reset the boundaries between judicial and non-judicial power:⁸³

There are questions about whether such a rigid inquiry (which alone may result in the invalidity of legislation) is appropriate at all in the Australian constitutional context, where the judicial branch of government cannot exercise legislative or executive power.

Thus the question of dispute between the majority in *McCloy* and Gordon J in dissent is whether proportionality analysis is consistent with fundamental tenets of Australian constitutionalism. Which approach ultimately prevails remains to be seen, but it is, however, notable that the majority's reasoning seeks a reconciliation between proportionality analysis and Australian legalism. Thus, although the proportionality test expounded in *McCloy* closely resembles the Canadian Supreme Court's *Oakes* test,⁸⁴ the final 'balancing' stage appears to be reformulated to take account of a conception of the judicial role consistent with Australian legalism. As formulated in *McCloy*, this step of proportionality analysis requires the court to consider whether a challenged law is 'adequate in its balance' which is further explained as:

a criterion requiring a value judgment, *consistently with the limits of the judicial function*, describing the balance between the importance of the purpose served by the restrictive measure and the extent of the restriction it imposes on the freedom.⁸⁵

D. CONCLUSION

As this chapter has shown, judicial reasoning in Australian constitutional law is undeniably eclectic. There is considerable agreement on certain ‘core’ methods of reasoning but no clear guidance on the relative weight of these methods. The High Court has deliberately declined to adopt an overarching theory of constitutional reasoning.

This degree of indeterminacy in judicial reasoning does not, however, make the practice irrational or entirely unpredictable. Nor does it reduce it to a mere matter of politics. The agreed methods of judicial reasoning law do guide constitutional law, even if they underdetermine the results in particular cases. An appreciation of these methods makes it possible to distinguish among more and less plausible interpretations of the Constitution. Constitutional arguments would be strongest where they have clear appeal to one or more of these methods and do not raise tensions with any other. Truly uncontroversial cases are unlikely, of course, to be the subject of judicial reasoning since they are not likely to be contested in court. More typically, a convincing interpretation will depend upon the accumulated weight of one or more of these methods of reasoning resolving doubts that might arise from others. Brief illustrations will suffice to make the point.

One of the most dramatic developments in Australian constitutional law in recent decades was the complete re-orientation of the requirement of freedom of interstate trade undertaken by the High Court in *Cole v Whitfield*. In that case, the High Court effectively overruled almost ninety years of interpretation of the section. In doing so, it advanced an interpretation that was strongly grounded in constitutional history. Of course, in overturning so many previous cases, the Court had to disregard the considerable weight of precedent. But, as is well known, the case law on section 92 was highly complex, characterized by competing interpretations that defied rationalization. In these circumstances practical and prudential concerns militated against respect for that precedent.

Cole v Whitfield is a comparatively rare instance in which the combined weight of history and considerations of prudence justified departure from long established precedent. More typically, doubts as to the textual or historical basis of doctrine is offset by precedent. Indeed, most of the disagreements discussed in this chapter have to some degree settled over time, and with the accretion of precedent. Thus, whilst the rejection of federal balance a reasoning in *Engineers'* may seem to be unassailable given *Engineers'* centrality to a large body of constitutional law, it will continue to be qualified by time. On the other side of the coin, despite doubts about the freedom of political communication, the doctrine seems to have a secure place in Australian constitutional law, following its reaffirmation in *Lange v Australian Broadcasting Corporation* and subsequent cases. Equally, the *Kable* doctrine is now well established and it is likely therefore that the most recent disagreement about proportionality will eventually be settled in a similar manner.

¹ Chapter 8 'Common Law'.

² Chapter 44 'Legality'.

³ Chapter 9 'Unwritten Rules'.

⁴ This chapter draws upon Adrienne Stone, 'Australia's Constitutional Rights and the Problem of Interpretive Disagreement' (2005) 27 Sydney Law Review 29 and Cheryl Saunders and Adrienne Stone, 'The High Court of Australia' in Andras Jakab et al, *Comparative Constitutional Reasoning* (CUP 2017).

⁵ On the controversy surrounding the establishment of judicial review in the United States, see Alexander Bickel, *The Least Dangerous Branch* (Bobbs-Merrill 1962) [ch 1](#).

⁶ *Australian Communist Party v Commonwealth* (1951) 83 CLR 1.

⁷ Both Nicholas Aroney and Susan Kenny have adopted the taxonomy provided by Phillip Bobbit in *Constitutional Fate: Theory of the Constitution* (OUP 1984) namely the 'historical', 'textual', 'structural', 'doctrine', and 'prudential-ethical' 'modalities'. Nicholas Aroney, 'Explanatory Power and the Modalities of Constitutional Reasoning' (2013) 36 University of New South Wales Law Journal 863; Susan Kenny, 'The High Court on Constitutional Law: The 2002 Term' (2003) 26 University of New South Wales Law Journal 210. The concepts on which I rely correspond closely to these 'modalities' but I have used different terminology to make it clear that I do not intend also to rely upon Bobbit's thesis that the legitimacy of constitutional reasoning depends on the use of these arguments. For similar typology, see Bradley M Selway, 'Methodologies of Constitutional Interpretation in the High Court of Australia' (2003) 14 Public Law Review 234.

⁸ *Amalgamated Society of Engineers v Adelaide Steamship Company Ltd* (1920) 28 CLR 129 (*Engineers' Case*).

⁹ See Tony Blackshield, '*Engineers Case*' in Tony Blackshield, Michael Coper, and George Williams (eds), *The Oxford Companion to the High Court of Australia* (OUP 2001) 236.

¹⁰ *Engineers' Case* ([n 8](#)) 142.

¹¹ *R v Public Vehicles Licensing Appeal Tribunal (Tas); Ex parte Australian National Airways Pty Ltd* (1964) 113 CLR 207, 225–26: the Constitution is to be construed ‘with all the generality that the words used permit’.

¹² See generally, Peter Hanks, Frances Gordon, and Graeme Hill, *Constitutional Law in Australia* (4th edn, forthcoming) 1.45.

¹³ *New South Wales v Commonwealth* (2006) 229 CLR 1, 119 (*Work Choices*) (emphasis added).

¹⁴ On the connection between textualism and legalism, see *Eastman v R* (2000) 203 CLR 1 [149].

¹⁵ Sir Owen Dixon, ‘Concerning Judicial Method’ in Severin Woinarski (ed), *Jesting Pilate and Other Papers and Addresses* (2nd edn, Buffalo, N.Y. 1997) 152, 155.

¹⁶ Nicholas Aroney, ‘Constitutional Choices in the Work Choices case, or What Exactly is Wrong with the Reserved Powers Doctrine?’ (2008) 32 Melbourne University Law Review 1, 22.

¹⁷ *Engineers’ Case* (n 8) 142.

¹⁸ Michael Coper, ‘Concern about Judicial Method’ (2006) 30 Melbourne University Law Review 554.

¹⁹ Among a large scholarship debating the merits of Dixonian legalism, see Sir Daryl Dawson and Mark Nicholls, ‘Sir Owen Dixon and Judicial Method’ (1986) 15 Melbourne University Law Review 543; Kenneth Hayne, ‘Concerning Legal Method’—Fifty Years On’ (2008) 32 Monash University Law Review 223.

²⁰ *Jumbunna Coal Mine NL v Victorian Coal Miners’ Association* (1908) 6 CLR 309, 367–68. For further authority supporting these principles see James Stellios, *Zines’ The High Court and the Constitution* (2015), 14–15.

²¹ *Sue v Hill* (1999) 199 CLR 462. For another well-known instance of this form of reasoning concerning the meaning of ‘jury’ in s 80, see *Cheatle v The Queen* (1993) 177 CLR 541.

²² *Attorney-General (Cth); Ex rel McKinley v Commonwealth* (1975) 135 CLR 1, 17.

²³ *Street v Queensland Bar Association* (1989) 168 CLR 460.

²⁴ Indeed, one Justice relied *only* on the purpose of the text without reference to its historically understood purposes: *Street* (n 23) 570–71 (Gaudron J).

²⁵ *Engineers’ Case* (n 8) 152.

²⁶ On the use of historical materials in the period before *Cole v Whitfield*, see James A Thomson, ‘Constitutional Interpretation: History and the High Court’ (1982) 5 University of New South Wales Law Journal 309, 310, n 23, noting the Court’s reference to certain drafts of the Constitution and historical accounts of the period of the framing with a purpose to identifying ‘general historical facts’.

²⁷ (1988) 165 CLR 360.

²⁸ *Cole v Whitfield* (1988) 165 CLR 360, 391. For a more recent example of reference to the debates of the Constitutional Conventions see *Re Day (No 2)* [2017] HCA 14.

²⁹ *Cheatle v R* (1993) 177 CLR 541, (the Court), considering ‘trial by jury’ in s 80. For further examples see *Grain Pool of WA v The Commonwealth* (2000) 202 CLR 479 [49]–[58], [78] (Gleeson CJ, Gaudron, McHugh, Gummow, Hayne and Callinan JJ), considering ‘patents of invention’ in s 51(xviii).

³⁰ Thus the powers of courts to make decisions regarding bail and apprehended violence orders were considered relevant to determining the validity of preventative detention orders considered in *Thomas v Mowbray* (2007) 233 CLR 307, 328 [16]. For further discussion and sources see [Hanks, Gordon, and Hill, *Constitutional Law in Australia* \(n 12\)](#) [922].

³¹ See Jeffrey Goldsworthy, ‘Originalism in Constitutional Interpretation’ (1997) 25 Federal Law Review 1, 14.

³² *Commonwealth v Australian Capital Territory* (2013) 250 CLR 441, 455.

³³ See for instance, *New South Wales v Commonwealth* (2006) 229 CLR 1 (*Work Choices Case*), 97 [120] (Gleeson CJ, Gummow, Hayne, Heydon and Crennan JJ); Cheryl Saunders, 'Interpreting the Constitution' (2004) Public Law Review 289, 291. For an account of one Justice's (Heydon J) thorough-going originalist views, see Lael K Weis, 'What Comparativism Tells us about Originalism' (2013) 11 International Journal of Constitutional Law 842–69.

³⁴ On Goldsworthy's view, original meaning is the Constitution's 'utterance' meaning of the text which is neither its literal 'sentence meaning' nor the actually intended meaning of the text ('speaker's meaning'); rather it is 'the full meaning of an utterance, implied as well as expressed [which] depends on what the speaker's meaning appear to be, given the evidence that is readily available to his or her intended audience, including the sentence meaning of the utterance and other clues such as its context'. Jeffrey Goldsworthy, 'The Case for Originalism,' in Grant Huscroft and Bradley W Miller (eds) *The Challenge of Originalism* (CUP 2011) 48.

³⁵ Graeme Hill, '“Originalist” v “Progressive” Interpretations of the Constitution—Does it Matter?' (2000) 11 Public Law Review 159.

³⁶ See, respectively, *Constitution*, ss 51(ii), 90, 92, 51(i), 51(xx), and 51(xxi).

³⁷ See *Australian Tape Manufacturers v Commonwealth* (1993) 176 CLR 480 ('tax'); *Ha v New South Wales* (1997) 189 CLR 465 ('excise').

³⁸ But see (n 79), (n 85) and accompanying text.

³⁹ Saunders and Stone (n 4) 52.

⁴⁰ As in *Victoria v Commonwealth* (1957) 99 CLR 575 (*Second Uniform Tax Case*), 610–11, in which Dixon CJ followed an earlier case that he considered to be wrong.

⁴¹ Jeremy Kirk, 'Constitutional Implications (1): Nature Legitimacy, Classification, Examples' (2000) 24 Melbourne University Law Review 645.

⁴² *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31.

⁴³ *Lange v Australian Broadcasting Commission* (1997) 189 CLR 520.

⁴⁴ These 'freedoms' have received only limited judicial recognition. *Kruger v Commonwealth* (1997) 190 CLR 1, 91 (Toohey J), 116 (Gaudron J), 142 (McHugh J); *R v Smithers; Ex parte Benson* (1912) 16 CLR 99, 109–10; *Higgins v Commonwealth* (1998) 79 FCR 528, 535. On the constitutional right of freedom of association see *Australian Capital Television v Commonwealth* (1992) 177 CLR 106, 232 (McHugh J); *Kruger v Commonwealth* (1997) 190 CLR 1, 91 (Toohey J), 142 (Gaudron J); *Mulholland v Australian Electoral Commission* (2004) 220 CLR 181, 225–26 [113]–[116] (McHugh J), 234 [148] (Gummow and Hayne JJ with whom Heydon J agreed), 277–78 [284]–[286] (Kirby J), cf 297 [334]–[335] (Callinan J).

⁴⁵ *Polyukhovich v Commonwealth* (1991) 172 CLR 501, 536.

⁴⁶ *Chu Kheng Lim v Minister for Immigration* (1992) 176 CLR 1, 27–28. Those limitations do not, however, preclude the Parliament authorizing indefinite administrative detention: *Al-Kateb v Goodwin* (2004) 219 CLR 562. Moreover, conditions of immigration detention are not relevant to the validity of that detention: *Behrooz v Secretary of the Department of Immigration and Multicultural and Indigenous Affairs* (2004) 219 CLR 486.

⁴⁷ Fiona Wheeler, 'The Doctrine of Separation of Powers and Constitutionally Entrenched Due Process in Australia' (1997) Monash University Law Review 248–84.

⁴⁸ *Engineers' Case* (n 8).

⁴⁹ Sir Owen Dixon emphatically rejected the idea. *West v Commissioner of Taxation* (NSW) 56 CLR 657, 681–82: 'Such a method of construction would defeat the intention of any instrument, but of all instruments a written Constitution seems the last to which it could be applied.'

⁵⁰ Jeffrey Goldsworthy, 'Implications in Language, Law and the Constitution' in Geoffrey Lindell (ed), *Future Directions in Australian Constitutional Law* (1994) 150, 154–55.

⁵¹ *Melbourne Corporation* (n 42).

⁵² *Re Australian Education Union; Ex parte Victoria* (1995) 184 CLR 188.

⁵³ *Abebe v Commonwealth* (1999) 197 CLR 510, 532; *Re The Governor, Goulbourn Correctional Centre; Ex parte Eastman* (1999) 200 CLR 322, 332; *Airservices Australia v Canadian Airlines International Ltd* (1999) 202 CLR 133, 177–78, 237–39.

⁵⁴ *Victoria v Commonwealth* (1957) 99 CLR 575.

⁵⁵ *Airlines of New South Wales Pty Ltd v New South Wales* (No 2) (1965) 113 CLR 54.

⁵⁶ *ibid* 115.

⁵⁷ *ibid* 116.

⁵⁸ *Re Wakim* (1999) 198 CLR 511.

⁵⁹ *ibid* 549.

⁶⁰ *Al-Kateb v Godwin* (2004) 219 CLR 562.

⁶¹ *ibid* 595.

⁶² For critical views of the *Engineers'* Case see, the sources collected by Nicholas Aroney in 'Constitutional Choices in the Work Choices case, or What Exactly is Wrong with the Reserved Powers Doctrine?' (n 16) 21.

⁶³ *Tasmania v Commonwealth* (1983) 153 CLR 1 (*Tasmanian Dams Case*) and *Work Choices* (n 13).

⁶⁴ *Work Choices* (n 13) 320.

⁶⁵ James Allan and Nicholas Aroney, 'An Uncommon Court: How the High Court of Australia Has Undermined Australian Federalism' (2008) 30 *Sydney Law Review* 245.

⁶⁶ *Australian Capital Television v Commonwealth* (1992) 177 CLR 106, 133 (Mason CJ) (*Australian Capital Television*); *Nationwide News v Wills* (1992) 177 CLR 1, 41 (Brennan CJ), 69–70 (Toohey J), 209–10 (Gaudron J).

⁶⁷ *Australian Capital Television* (n 66) 186 (Dawson J). See also, Jeffrey Goldsworthy, 'Constitutional Implications and Freedom of Political Speech: A Reply to Stephen Donaghue' (1997) 32 *Monash University Law Review* 362.

⁶⁸ As argued in Stone (n 4).

⁶⁹ *ibid*.

⁷⁰ *Kable v Director of Public Prosecutions (NSW)* (1996) 189 CLR 51.

⁷¹ (2010) 239 CLR 531.

⁷² Among the academics who have criticised the reasoning are George Winterton, Geoffrey Lindell, Anne Twomey, George Williams, Dan Meagher, and Tony Blackshield. These views are collected by Jeffrey Goldsworthy in 'Kable, Kirk and Judicial Statesmanship' (2014) 40(1) *Monash University Law Review* 75.

⁷³ *Kable* (n 70) 103.

⁷⁴ This analysis draws upon Adrienne Stone, 'Comparativism in Constitutional Interpretation' [2009] *New Zealand Law Review* 45.

⁷⁵ *Roach v Australian Electoral Commission* (2007) 233 CLR 162.

⁷⁶ *ibid* 178.

⁷⁷ *ibid* 225.

⁷⁸ This method is aptly described by Vicki Jackson as one of engagement, Vicki C Jackson, 'Transnational Challenges to Constitutional Law: Convergence, Resistance, Engagement' (2007) 35

Federal Law Review 161.

⁷⁹ *McCloy v New South Wales* (2015) 257 CLR 178.

⁸⁰ Among a large literature see Iddo Porat and Moshe Cohen-Eliya, *Proportionality and Constitutional Culture* (CUP 2013); Aharon Barak, *Proportionality: Constitutional Rights and their Limitations* (CUP 2012).

⁸¹ Robert Alexy, *A Theory of Rights* (Julian Rivers trans, OUP 2002).

⁸² *Roach* (n 75) 178 (emphasis added).

⁸³ *Murphy v Electoral Commissioner* [2016] HCA 36 [299].

⁸⁴ *R v Oakes* [1986] 1 SCR 103, 138–40. As is well-known this form of the proportionality test involves three inquiries: (1) whether the challenged law is actually serving the end it purports to serve (the rational connection element); (2) the availability of alternative, less drastic means by which that same end could be achieved (the minimal impairment or narrow tailoring element); and (3) whether the end pursued by that law is worth the restriction or costs imposed (the balancing element).

⁸⁵ *McCloy* (n 79) 195.

CHAPTER 21

STANDARDS OF REVIEW IN CONSTITUTIONAL REVIEW OF LEGISLATION

SUSAN KIEFEL

EVERY Australian court of competent jurisdiction has the power to declare a law of the Commonwealth or of a State void by reason of transgressing the Constitution. The High Court, which is the ultimate court of appeal in Australia, is the authoritative and final interpreter of the Constitution.¹

The High Court's jurisdiction to review legislation for constitutional validity is not expressly stated in the Constitution, but may be discerned from the structure of the Constitution; the demarcation of legislative, executive, and judicial powers for which the Constitution provides; the provision the Constitution makes, in Chapter III, for the exercise of the judicial power of the Commonwealth; and the jurisdiction the Constitution gives to courts. Another foundation for the Court's jurisdiction to constitutionally review legislation is the common law.²

The methods of review vary according to both the nature of the constitutional head of power under which legislation is said to have been enacted, as well as whether the challenge to the validity of the legislation is based upon its restrictive effect upon a constitutionally protected freedom. These freedoms are not individual rights or freedoms, such as are found in other Constitutions, but instead effect a restriction or limitation on the legislative power of the Commonwealth.³ Consequently the methods of review in Australia do not have the same focus as in other countries. Nevertheless, the High Court has developed a considerable body of jurisprudence about the process by which legislation is to be reviewed.

Proceedings challenging the constitutional validity of legislation may be brought in a number of ways. They may be brought in the original jurisdiction of the High Court.⁴ Where a question of validity arises in the course of proceedings in other courts, that question may be removed to the High Court.⁵ A review of legislation may be sought by a party having sufficient interest with respect to it and therefore standing.⁶

A. APPROACHES TO CONSTRUCTION

The process of review commences with the interpretation of the Constitution and the statute in question. Considerable importance is attached to this aspect of the review.

A passage from the judgment of O'Connor J in *Jumbunna Coal Mine NL v Victorian Coal Miners' Association* is often quoted to explain the approach to be taken in construing provisions of the Constitution:

[I]t must always be remembered that we are interpreting a Constitution broad and general in its terms, intended to apply to the varying conditions which the development of our community must involve.

For that reason, where the question is whether the Constitution has used an expression in the wider or in the narrower sense, the Court should, in my opinion, always lean to the broader interpretation unless there is something in the context or in the rest of the Constitution to indicate that the narrower interpretation will best carry out its object and purpose.⁷

The Constitution confers upon the Commonwealth Parliament legislative powers enumerated in sections 51 and 52. Thus, when the Commonwealth Parliament passes legislation, it must do so in reliance on one of the enumerated 'heads of power' contained in section 51 or 52.

The extent of the grants of power in sections 51 and 52 of the Constitution is not to be ascertained primarily by reference to what would have come within them at the time when the Constitution was adopted.⁸ Although linguistic considerations of that time are not irrelevant to questions of constitutional interpretation, those questions are not to be determined solely by reference to such considerations.⁹ The powers conferred by the Constitution are considered to be flexible and capable of applying as such to changing circumstances.¹⁰ This approach has been

applied to changes, over time, to the understanding of many topics including banking,¹¹ trading corporations,¹² and aliens.¹³

In the *Marriage Equality Act Case*,¹⁴ the question whether the marriage power in section 51(xxi) was broad enough to cover same sex unions was considered. The Court construed the word ‘marriage’ as a topic of juristic classification rather than as referable to the legal status of marriage at the time of federation.¹⁵ The Constitution was regarded as giving the Parliament legislative power with respect to a ‘status, reflective of a social institution, to which legal consequences attach and from which legal consequences follow’.¹⁶ The status of marriage and the rights and obligations which attach to it have never been immutable, the Court said.¹⁷ ‘Marriage’, in constitutional terms, is to be understood to refer to a consensual union between natural persons to which the law accords a status affecting and defining mutual rights and obligations.¹⁸

A review of a statute for constitutional validity also requires that its provisions be construed in order to discern their operation and purpose. The process of construing a provision in a statute involves an examination of the language used in the context of the statute as a whole and by reference to what appears to be the general purpose and policy of the provision and of the statute.¹⁹

B. THE NATURE OF LEGISLATIVE POWERS

In order to understand the means by which the validity of legislation said to have been enacted under one of the constitutional heads of power is tested, it is first necessary to understand the nature and extent of the powers to legislate for which the Constitution provides and the terms in which the powers are given.

Sections 51 and 52 of the Constitution provide broad powers to the Commonwealth Parliament to enact legislation. Section 51 provides that the Parliament has powers to make laws ‘with respect to’ enumerated matters and matters incidental to the execution of any power vested in the Parliament.

The heads of power listed in sections 51 and 52 are generally regarded as being either a power with respect to a subject matter or one which is

defined by a purpose. Very few of the legislative powers provided by the Constitution are truly purposive powers.²⁰ One is the defence power.²¹ The external affairs power,²² at least so far as concerns the implementation of international treaties and conventions, is also regarded as having ‘a purposive aspect’.²³ The majority of powers, however, are ‘subject matter powers’.

Of these latter powers, Dixon J in *Stenhouse v Coleman* observed that:

In most of the paragraphs of s 51 the subject of the power is described either by reference to a class of legal, commercial, economic or social transaction or activity (as trade and commerce, banking, marriage), or by specifying some class of public service (as postal installations, lighthouses), or undertaking or operation (as railway construction with the consent of the State), or by naming a recognized category of legislation (as taxation, bankruptcy).²⁴

In such cases, purpose is disregarded. By contrast, a law ‘with respect to the ... defence of the Commonwealth’ would appear to treat defence, or war, as the purpose to which legislation must be addressed.

The power to make laws ‘with respect to’ a specific subject is regarded as as wide a legislative power as can be created: ‘[t]he power conferred upon a Parliament by such words in an Imperial statute is plenary—as wide as that of the Imperial Parliament itself ... But the power is plenary only with respect to the specified subject’.²⁵ The purpose of the enumeration of powers in sections 51 and 52 is not to define or delimit the description of the laws that the Parliament may make upon any of the subjects assigned to it; but rather to name a subject for the purpose of assigning it to that power. The Constitution marks the outlines of the Commonwealth’s powers, rather than providing a precise and detailed enumeration of them.²⁶ The basic question for the Court is whether the law relates to the subject matter or purpose of the head of power in a way that allows it to be described as a law ‘with respect to’ that head of power.

C. THE TEST FOR LEGISLATION ENACTED UNDER SUBJECT MATTER POWERS

In order for legislation purported to be enacted pursuant to a subject matter power to be constitutionally valid, the legislation in question must be sufficiently connected to the subject of a head of power. In *Grannall v Marrickville Margarine Pty Ltd*, it was pointed out that the words ‘with

respect to' 'ought never be neglected in considering the extent of a legislative power conferred by s 51 or s 52'.²⁷ What those words require is a relevance to or connection with the subject assigned to the Commonwealth Parliament. The ultimate question is the sufficiency of the connection.²⁸

The first step in determining the sufficiency of connection between a law and a head of power is to ascertain the scope of the power. This step involves constitutional interpretation. Consistently with the approach referred to above, the constitutional text is to be construed 'with all the generality which the words used admit'.²⁹

The second step is to characterize the impugned law. The question is whether the law can be characterized so as to bring it within a constitutional head of power with respect to a subject.

The characterization of a law also involves construing the statute in question.³⁰ The determination of a law's character is undertaken by identifying the rights, powers, liabilities, duties, and privileges which it creates. Then the practical, as well as the legal, operation of the law must be examined, in order to determine whether there is a sufficient connection between the law and the head of power.³¹ This latter question is one of degree and involves an enquiry as to what the law is really doing.³²

It is not enough to satisfy the test of sufficient connection that a law simply refers or applies to a subject matter. In the *Bank Nationalisation Case*, an example given was income tax laws which apply to clergymen and hotelkeepers because they are members of the public; but no one would describe an income tax law as being a law 'with respect to' clergymen or hotelkeepers.³³ In the context of the corporations powers in section 51(xx), in *Re Dingjan; Ex parte Wagner* it was observed that it is difficult to see how a law can have any connection with a corporation unless, in the law's legal or practical operation, the law has significance for the corporation.³⁴ That means that it must have some significance for the activities, functions, relationships, or business of the corporation. In that case, it was held that a provision which gave an industrial court power to review a contract to which a 'constitutional corporation' (defined in the relevant legislation as a corporation to which section 51(xx) applied) was a party was not a law with respect to corporations, and was therefore invalid. The jurisdiction conferred on the industrial court was not dependent on the contract having any effect on, or significance for, the corporation.³⁵

It is constitutionally permissible for a law to have several characters, each as valid as the other. Once it is recognized that a law may possess several distinct characters, it follows that even though only some elements of a law fall within one or more of the grants of power in section 51 or elsewhere in the Constitution, this will not be fatal to the law's validity. However, the other elements, which are outside power, cannot be of such significance that the law can no longer be fairly described as one with respect to one or more of those grants of power.³⁶ A law upon a subject matter within Commonwealth power does not cease to be valid because it touches or affects a topic outside Commonwealth power or because it can be characterized as a law upon a topic outside power. It is not necessary to characterize a law on one topic to the exclusion of all others.³⁷ It suffices for constitutional validity if any one or more of those characters is within a head of Commonwealth power.

Complex laws can create difficulties in the process of characterization. It may be difficult to match them with the general descriptions of the grants of power in section 51. Different parts of the description may fall into different parts of section 51 or not at all. In determining validity it is not necessary to single out one paramount character. It is enough that 'the law "fairly answers the description of a law 'with respect to' one given subject-matter appearing in s 51" regardless of whether it is, at the same time, more obviously or equally a law with respect to some other subject-matter'.³⁸

A qualification to this proposition was stated in the *Work Choices Case*.³⁹ The proposition does not apply where the second subject matter can be characterized as not only outside power, but as the subject of a positive prohibition or restriction. That positive prohibition or restriction may be of general application or, rather, merely confine the ambit of the particular head of power within which it is found. If the former, then the other heads of power are to be construed as subject to that prohibition or restriction.⁴⁰

Where the Commonwealth has legislative power with respect to an activity, it may prohibit that activity entirely. The law will be one with respect to the subject matter of the prohibition. Where the prohibition is conditioned, a law will continue to be valid, as one referable to that subject matter, even where the condition concerns a topic which is not. And a law which qualifies a statutory power to relax a prohibition is still a law with

respect to the subject of the prohibition even if the qualification gives it the additional character of a law on some other topic.⁴¹

Once it appears that a federal law has an actual and immediate operation within a field assigned to the Commonwealth as a subject of legislative power, that suffices for validity.⁴² If a connection exists between a law and a section 51 head of power, the law will be ‘with respect to’ that head of power unless the connection is ‘so insubstantial, tenuous or distant’ that it cannot sensibly be described as a law with respect to that head of power.⁴³ When it is determined that the necessary relationship exists, everything which is incidental to the topic of the law is included.

In *Cunliffe v The Commonwealth*,⁴⁴ the *Migration Act 1958* (Cth) required persons who wished to provide certain services relating to immigration to be registered. The Act was challenged on the basis that it was not a law with respect to ‘aliens’, a head of power contained in section 51(xix) of the Constitution. The law did not operate directly on aliens but rather on persons providing immigration advice to aliens. The law was held to be valid. It was characterized as a restriction or regulation on sources of advice available to aliens. As such, the law operated selectively on aliens and in respect of activities peculiarly significant to aliens, and therefore it had the necessary connection with section 51(xix).⁴⁵

In *Gazzo v Comptroller of Stamps (Vict)*,⁴⁶ a law which provided that property transfers made pursuant to maintenance agreements were exempt from any duty or charge under a law of a State or Territory was held not to have a sufficiently close connection to the marriage power in section 51(xxi). However, in the later case of *Fisher v Fisher* it was said that the basis for this decision was unsound. The Court in *Fisher* observed that, in the exercise of the section 51(xxi) power, Parliament may regulate the relationship of marriage and attach to it such consequences as Parliament may consider appropriate. Parliament can therefore make provision for the alteration of the interests of the parties to a marriage in their property by reference to considerations arising out of the relationship.⁴⁷ This observation may be taken to confirm as correct a broader approach to characterization.

The motive or intention of those making the law is irrelevant to the question of its characterization.⁴⁸ And if a sufficient connection exists, the justice and wisdom of the law and whether it is necessary or desirable are

matters for the legislature.⁴⁹ In *Australian National Airways Pty Ltd* it was said:

Now, it cannot be too clearly understood that this Court is not in the smallest degree concerned to consider whether such a project is politically, economically, or socially desirable or undesirable. It is concerned only with the questions whether it is within the constitutional powers of the Commonwealth Parliament to pass an Act, or for the regulation-making authority to make a regulation, of the type which has been called in question, and if so whether the Act or the regulation is, in whole or part, a valid exercise of power. The solution of the questions turns upon the proper construction of the Constitution. Under the Australian Federal system, the Commonwealth Parliament can make laws only upon subjects on which it is specially invested with power to make laws by the Constitution. Upon all other subjects, laws can validly be made, if they can validly be made at all, not by the Commonwealth but by the States. Hence, our task is purely legal. It is to examine those provisions of the Constitution which confer legislative power upon the Commonwealth Parliament and to see whether the legislation which has been challenged is wholly, or if not wholly to some extent, within one or more of the powers which the framers of the Constitution thought fit to confer upon it.⁵⁰

The task of the courts in considering the validity of legislation enacted pursuant to subject matter powers is to consider whether legislation answers the description of a subject matter and in doing so to disregard the purpose or object of the legislation.⁵¹ However, the purpose of the legislation may assume relevance where the legislation is enacted by reference to an incidental power.

When a law does not operate directly upon a subject matter of a power, the answer to the question whether there is a sufficient connection to the power may depend upon it being seen as incidental to that subject. In *Grannall v Marrickville Margarine Pty Ltd*, Dixon CJ, McTiernan, Webb and Kitto JJ said that every legislative power carries with it the authority to legislate in relation to acts, matters, or things the control of which is found necessary to effectuate its main purpose.⁵² This carries with it power to make laws governing or affecting many matters that are incidental or ancillary to the subject matter.⁵³ It is necessary that there be a reasonable connection between the legislative provision and the subject matter before it can be seen as incidental to it.⁵⁴ This is largely a question of degree.

D. THE TEST FOR LEGISLATION ENACTED UNDER PURPOSEIVE POWERS

Just as a law enacted pursuant to a subject matter power must be characterized in order to determine its validity, so too must a law enacted

pursuant to a purposive head of power be characterized. The requirement that a law be 'with respect to' a head of power remains. But here characterization is determined by reference to the law's underlying purpose or object. That is because the legislative head of power itself 'involves the notion of purpose or object'.⁵⁵ Purpose in this sense is not the motive of the legislature, but an intention imputed to it which is ascertained by a process of interpretation.

The statute must be construed. As previously mentioned, the defence power in section 51(vi) and the external affairs power in section 51(xxix) (to the extent that it concerns the implementation of international treaties) are purposive powers. Whether the statute is directed to the purpose of defence or to external affairs is determined by reference to its terms, the facts to which it applies, and the circumstances in which it is intended to operate.⁵⁶ But because power is conferred by reference to aims or objectives and not by reference to subject matter, the object or purpose of the statute in question must be ascertained in order to determine whether it is directed to the pursuit of the purpose of the relevant constitutional head of power.

The purpose of defence inheres in the defence power itself. A different approach to the question of purpose is taken with respect to statutes implementing international treaties or conventions under the power given with respect to external affairs. The purpose of the statute is considered, not to see whether it answers a requirement of purpose to be found in the head of power itself, but to see whether the statute operates on a subject which is an aspect of external affairs.⁵⁷ Here purpose 'is a test for determining whether the law in question is reasonably capable of being considered as giving effect to the treaty'.⁵⁸

The question whether a statute is directed to the purpose of a head of power is determined by using a type of 'ends and means' proportionality test.⁵⁹ Such a test is not applied to subject matter legislation. It has been said on many occasions that proportionality testing is inappropriate to statutes enacted under non-purposive powers.⁶⁰ (It should be noted that differing views have been expressed regarding the use of proportionality to test whether a law falls within the incidental aspect of a non-purposive power.)⁶¹ The subject matter of a law either answers the description or it does not, whereas with respect to purposive powers, the disproportion may

suggest it is not a law for that purpose. With respect to a non-purposive power, the question is what the law operates *upon* not what it operates *for*.⁶²

To be valid, a law said to be enacted under a purposive head of power must be ‘capable of being reasonably considered to be appropriate and adapted’,⁶³ or ‘appropriate and adapted’,⁶⁴ to achieving its object in order to impress it with the character of a law with respect to defence or external affairs. Regardless of whichever formulation is adopted, the question is not whether a law is appropriate and adapted in fact, which is regarded as a matter for the legislature.⁶⁵

The phrase ‘capable of being reasonably considered to be appropriate and adapted’ has been equated with a test of ‘reasonable proportionality’.⁶⁶ It is not a particularly stringent test.⁶⁷ Its terms imply a more limited role for the Court in determining whether legislation comes within a purposive head of power than is the case when undertaking proportionality testing of legislation with respect to the constitutionally guaranteed freedoms, which will be discussed later. Different proportionality tests are applied because the questions being addressed are different. In *Marcus Clarke & Co Ltd v The Commonwealth*, McTiernan J said that the defence power authorizes the Parliament to take such measures ‘as are proportionate to the end for which the Constitution created the defence power.’⁶⁸ That ‘end’, or purpose, is the protection of Australia against invasion and the dangers of war.

In *Polyukhovich v The Commonwealth*, amendments to the *War Crimes Act 1945* (Cth), to permit the prosecution in Australia of Australian residents who were alleged to have committed war crimes during the Second World War, were considered by some members of the Court to be incapable of being supported by the defence power.⁶⁹ Although their deterrent effect might be considered to be ‘appropriate and adapted’ to serve defence purposes, they operated retrospectively and discriminately and therefore could not be said to be proportionate to the defence interest to be served in times of peace.⁷⁰ The defence power has also been invoked in other contexts. Laws substantially serving the purpose of maintaining or enforcing discipline in the armed services may be valid.⁷¹ The conferral of jurisdiction on courts martial or military tribunals for offences committed by members of the armed services, even where a comparable criminal

offence exists, is appropriate and adapted to the purpose of defence for that very reason.⁷²

In the external affairs context, in the *Industrial Relations Act Case*, a provision of industrial legislation dealing with the circumstances in which employment may be terminated was held invalid because it went beyond the requirements of the international Convention it was said to implement.⁷³ It was therefore not a law with respect to the external affairs power. On the other hand, provisions concerning parental leave were considered to be appropriate and adapted to fulfilling one element of Australia's obligation under the relevant Convention and was for that reason valid.⁷⁴ In *R v Wei Tang*, offences relating to slavery were held to be supported by the external affairs power as they were reasonably capable of being considered appropriate and adapted to give effect to Australia's obligations under the Convention against the slave trade and slavery.⁷⁵

Purpose is often the key to whether a law falls within the incidental power or not, irrespective of whether the main power is classified as a subject matter or purposive power.⁷⁶ In order to establish the relevant connection, it may be necessary to look to the purpose of the law that is said to be enacted incidentally to the main power.⁷⁷

E. THE TESTS FOR CONSTITUTIONALLY GUARANTEED FREEDOMS

It was explained at the outset that the Australian Constitution does not contain declarations of individual rights and freedoms which would deny or restrict the legislative power of the federal Parliament. It does, however, contain some express 'freedoms' which it guarantees, and a freedom has also been found to be implied by the Constitution.

One of the express freedoms is contained in section 92 of the Constitution, which guarantees that freedom of trade and commerce as between the States 'shall be absolutely free'. Further, an implied freedom of communication concerning matters of politics and government was held to be necessary to protect the system of representative and responsible government for which the Constitution provides.⁷⁸ These freedoms are not to be understood as individual rights but as operating more generally, as a restriction on legislative power.⁷⁹

The freedoms protected by the Constitution are not absolute. It is acknowledged that their scope may be reduced in order to accommodate other, constitutionally valid, legislative objectives. The questions of how much accommodation should be afforded, and therefore what the limits of legislative power are, are determined by proportionality testing. The tests employed are not to be equated with the so-called test of ‘reasonable proportionality’ used with respect to purposive heads of power. That test is not regarded as appropriate to determine the very different question which arises with respect to legislation which effects a restriction on a freedom, namely: what are the limits of the legislative power?⁸⁰ Here, proportionality testing is used to determine whether the restriction which the law imposes on the freedom is justified.

Proportionality testing is not the only requirement for validity with respect to a law which restricts the freedom of political communication. There is also a necessary anterior question of whether the purpose of the law and the means it employs to achieve that purpose are legitimate in the sense that they are compatible with the maintenance of the system of representative government.⁸¹ This has been referred to as ‘compatibility testing’.⁸² This question requires the identification of the object or end which the law pursues.⁸³ This is a prerequisite for validity. If this test is not met, that is the end of the review. If the law is incompatible, there is no occasion for testing it for proportionality.⁸⁴

The tests for proportionality have been more fully expressed in cases involving the implied freedom of political communication. In *McCloy v New South Wales*, the three traditional stages of proportionality testing—suitability, reasonable necessity, and adequacy in balance—were accepted by a majority of the Court as useful analytical tools for determining the limits of legislative power. These criteria are discussed in more detail below. It was pointed out in *McCloy* that the use of these criteria did not involve a general acceptance of the applicability to the Australian constitutional context of similar criteria as applied by courts in other jurisdictions, in different constitutional contexts.⁸⁵ In this regard it will be recalled that the Australian Constitution contains no declarations of individual rights and freedoms. The implied freedom of political communication is not such a right and is viewed more generally as a limitation on legislative power.

1. The Test for Legislation Restricting Freedom of Interstate Trade

Legislation is usually considered to restrict the freedom of interstate trade, which is protected by section 92, where it is protective of intrastate trade. Because the freedom is not absolute, the question for the Court is how to test for the limit to which legislation may restrict the freedom without being invalid. The test which has been utilized enquires into the 'reasonable necessity' of the law. It involves proportionality reasoning, or at least an aspect of it.

In *North Eastern Dairy Co Ltd v Dairy Industry Authority of NSW*, it was held that a regulation affecting interstate trade in milk had not been shown to be the only practical and reasonable method of regulation in order to ensure the high quality of milk and to protect public health.⁸⁶ It had not been shown that the regulation was necessary for those purposes and therefore it could not be a reasonable regulation of interstate trade. In *Cole v Whitfield*, legislation which restricted the size of crayfish that might be sold in Tasmania, and which therefore limited the sale of crayfish that had been sourced in other States, was held to be valid.⁸⁷ The restrictions were gauged against the statutory objective of protecting Tasmanian crayfish as a resource. Pursuit of such objective did not give Tasmanian crayfish a competitive advantage over imported crayfish and even if it did the restrictions were a necessary means of effecting the statutory objective.⁸⁸

In *Betfair Pty Ltd v Western Australia*, it was argued that prohibitions on a form of betting were necessary to ensure the integrity of the racing industry.⁸⁹ The Court considered that there were other methods available which were effective, but did not impose a discriminatory burden on interstate trade. Because the prohibitions could not be said to be necessary for the protection of the racing industry in Western Australia, these prohibitions were not proportionate to the propounded legislative object.⁹⁰

A more general 'ends' and 'means' approach was adopted in *Castlemaine Tooheys Ltd v South Australia*.⁹¹ The statutory objectives of the protection of the environment and the need to conserve energy resources were not considered to provide a justification for the differential treatment of products affected by the legislation.⁹² The approach adopted was to enquire whether the means adopted by the law were disproportionate to the objectives to be achieved. The Court found that they were and, as such, the

law could not be considered as appropriate to the achievement of its objectives.⁹³

2. The Tests for Legislation Restricting the Implied Freedom of Political Communication

Some reference had been made to a requirement of proportionality in the cases which first recognized the implied freedom of political communication,⁹⁴ but the approaches differed. No agreement was reached about how a law restricting the freedom was to be tested for validity until the unanimous decision of the High Court in *Lange v Australian Broadcasting Commission*, where the following test ('the *Lange* test') was stated:

When a law of a State or federal Parliament or a Territory legislature is alleged to infringe the requirement of freedom of communication ... , two questions must be answered before the validity of the law can be determined. First, does the law effectively burden freedom of communication about government or political matters either in its terms, operation or effect? Second, if the law effectively burdens that freedom, is the law reasonably appropriate and adapted to serve a legitimate end the fulfilment of which is compatible with the maintenance of the constitutionally prescribed system of representative and responsible government ... If the first question is answered 'yes' and the second is answered 'no', the law is invalid.⁹⁵

The second limb of the *Lange* test was modified by a later case,⁹⁶ so that it reads 'is the law reasonably appropriate and adapted to serve a legitimate end *in a manner* which is compatible with the maintenance of the constitutionally prescribed system of representative and responsible government'. This makes it clear that the second limb is to be read in a way that requires that both the end and the manner of its achievement be compatible with the system of representative and responsible government.⁹⁷

As to the first limb, a law burdens the freedom if it restricts or limits the freedom.⁹⁸ For example, restrictions on the ability of persons to make political donations have the effect of restricting political communication because political parties will not have the same resources for that purpose as they would otherwise have.⁹⁹ The identification of the extent of the burden is not relevant to this inquiry. It assumes importance in connection with the question of the law's proportionality under the second limb of the *Lange* test. The question at this point is simply whether the freedom is in fact burdened.¹⁰⁰

If the law restricts the freedom in some way, the next question is whether its purpose is legitimate and compatible with the system of representative government, as discussed above.

In *McCloy*, the legislation restricted donations to political parties. It was there said that the purpose of assuring equal opportunity to participate in the exercise of political sovereignty could not be regarded as antithetical to representative democracy.¹⁰¹

It was acknowledged in *Lange* that different expressions of what was comprised in the second limb of the test had been stated.¹⁰² They included reference to proportionality and the phrase ‘reasonably appropriate and adapted’. It was said that there was no need to distinguish between these two concepts as there was little difference between them. After *Lange*, the two expressions continued to be used interchangeably, but no single method of testing for a conclusion of proportionality emerged. In *Lange* an approach analogous to that of ‘reasonable necessity’ employed in section 92 cases was approved.¹⁰³ This test reflects the second stage of the test for proportionality.

The three traditional criteria for testing the proportionality of a law—suitability, reasonable necessity, and adequacy in its balance—were accepted by a majority of the Court in *McCloy* as analytical tools for ascertaining the rationality and reasonableness of a legislative restriction on the freedom.¹⁰⁴ Proportionality, however, was not regarded as the only criterion by which legislation that restricts the freedom could be tested.¹⁰⁵ The possibility of other analytical tools was left open.

The first stage, ‘suitability’, has been said to require that there be a rational connection between the legislative provision in question and the purpose sought to be achieved.¹⁰⁶ In *Unions NSW*, a provision which prohibited the acceptance of a political donation unless it was from a person who was enrolled as an elector was held invalid, because it could not be discerned how the provision furthered the anti-corruption purposes of the statute.¹⁰⁷

In *McCloy* it was further explained that although the word ‘suitability’ and other words which are also used to describe this test, such as ‘appropriateness’ or ‘fit’, might be thought to imply something of a value judgment about whether the legislature should have approached the matter in a different way, that is not part of this test.¹⁰⁸ The point is that if a

legislative measure cannot contribute to the realization of the statute's legitimate purpose, its use cannot be said to be reasonable. The enquiry whether there exists a rational connection between the provision in question and the statute's purpose is one which logic requires.

The second stage of the test for proportionality, 'reasonable necessity', asks whether there are available other, equally effective, means of achieving the same legislative object which have a less restrictive effect on the freedom. If so, the use of more restrictive means is not reasonable and cannot be justified.¹⁰⁹ It has been said that the alternative means must be 'obvious and compelling'.¹¹⁰ This might suggest a difference in approach to that of the Supreme Court of Canada, which has treated the question of reasonable necessity as one to be determined by evidence.¹¹¹ This possibility has not been raised in Australian cases.

It was said in *McCloy* that it is important to recognize that the question of necessity does not deny that it is the role of the legislature to select the means by which a legitimate statutory purpose may be achieved.¹¹² However, it is the role of the court to ensure that the freedom is not burdened when it need not be. Citing Professor Aharon Barak,¹¹³ it was said that '[o]nce within the domain of selections which fulfil the legislative purpose with the least harm to the freedom, the decision to select the preferred means is the legislature's'.

At the first two stages of the test for proportionality, neither the importance of the legislative purpose nor the extent of the effect on the freedom are examined. Although *Lange* identified the extent of the effect on the freedom as relevant it did not say what, if anything, was to be balanced against that effect in determining whether the law went too far. *Lange* did not expressly identify the importance of the legislative purpose as a relevant factor in that assessment.¹¹⁴ However, the majority in *McCloy* said that a consideration of the effect of the law on the freedom and whether such effect is undue or impermissibly burdensome logically must bring into account the law's purpose.¹¹⁵ This is because that purpose may be the most important factor in justifying the effect that the measure has on the freedom.¹¹⁶ To leave it out would deny the legislature the opportunity to justify the restriction.

It is not without importance that the majority in *McCloy* viewed the process of review to be undertaken as involving the question whether the

burden imposed by the law on the freedom was justified. The question whether this puts an onus of proof on the government was not discussed.

The purpose of a legislative provision assumes direct relevance in the third stage of the test for proportionality. This stage, 'adequacy in balance' or strict proportionality, requires a balance between the benefits gained by the law's policy and the adverse effects on the freedom and therefore upon representative government. Balancing is considered to be necessary because it is rare that the exercise of the freedom will be prohibited altogether; only aspects of it will usually be restricted. Therefore it is necessary, in order to determine whether the restriction is reasonable, to consider the importance of the purpose and the benefit sought to be achieved by the law. The greater the restriction on the freedom, the more important the public interest purpose of the legislation must be for the law to be held to be proportionate.¹¹⁷

It was accepted in *McCloy* that this balancing exercise will necessarily involve a value judgment, but that this does not mean that the courts are to substitute their own assessment for that of the legislature.¹¹⁸ This accords with views expressed by the Supreme Court of the United Kingdom.¹¹⁹ And it accords with views often expressed by the High Court about the role of courts under the Constitution. It is the constitutional duty of the courts to determine the limit of legislative interferences with the constitutionally guaranteed freedom of political communication.

The third stage of the proportionality test was satisfied and the legislative provisions which were challenged in *McCloy* were upheld as valid. The majority reasoned that the provisions did not affect the ability of persons to communicate with others about matters of politics or government, or to seek access to or to influence politicians in ways other than those involving payments of substantial amounts of money. The reduction of funds available for election campaigns would result in there being some restriction on communication by political parties and candidates to the public. However, this was to be balanced against the public interest in the removal of the perception and risk of corruption, which thereby supports and enhances equality of access to government and the system of government that the freedom protects. The restriction on the freedom was more than balanced by the benefits sought to be achieved.¹²⁰

a) *A stricter standard?*

An aspect of *McCloy* which favoured validity of the impugned provision was that the effect of the burden on the freedom was not direct.¹²¹ A two-standard approach, which takes account of whether an effect on the freedom is direct or indirect and incidental is evident from a number of cases.¹²² The essence of this approach is that a stricter standard of review is to be applied if the evident purpose of the legislation is to restrict communications on matters of politics or government than if the legislation has some other, legitimate, purpose and political communication is only incidentally restricted.

In cases which were decided before *Lange*, there had been some discussion as to whether a higher, stricter, standard of review should be applied to laws which directly prohibited or controlled political communication.¹²³ It was said that such laws might require a ‘compelling justification’,¹²⁴ one congruent with ‘close scrutiny’.¹²⁵ It would be more difficult to justify laws having these effects than laws which only incidentally burdened the freedom. Laws of this latter kind would only be required to be reasonably appropriate and adapted to their purpose.¹²⁶

A requirement of ‘compelling justification’ may suggest a higher level of ‘scrutiny’ on the part of the courts. However, it should not be thought that this implies acceptance of the different kinds, or levels, of scrutiny which are applied in United States constitutional jurisprudence. It has been observed that no decision of the High Court has imported this method of review into Australian constitutional jurisprudence.¹²⁷

No reference was made in *McCloy* to the two standards of review in discussing the balancing exercise to be undertaken. Nonetheless, it may logically be considered relevant to require that the heavier the burden on the freedom, the greater will be the need to justify it.

b) *Deference?*

The question of what is in the public interest is a matter which the courts leave to Parliament, but the question whether legislation which restricts a constitutionally guaranteed freedom is rational and reasonable is regarded in Australia as the sole province of the courts. In constitutional cases

statements may be found about the ‘respect’ which is afforded to legislative judgment. In *The Communist Party Case*, for example, it was said that:

[I]n our system the principle of *Marbury v Madison* is accepted as axiomatic, modified in varying degree in various cases (but never excluded) by the respect which the judicial organ must accord to opinions of the legislative and executive organs.¹²⁸

But it is not said that the courts should defer to the authority of the legislature to pronounce on the reasonableness, in a constitutional sense, of a legislative measure.

There have been some statements in cases involving the constitutional freedoms that the legislature should be allowed a ‘margin of appreciation’ in the decisions it makes.¹²⁹ The term ‘deference’ occasionally has been used, but it is not always clear in what sense, for example, whether it means no more than an acceptance of legislative will within the bounds of legislative competence.¹³⁰ In *Australian Capital Television v Commonwealth*, Mason CJ said:

In weighing the respective interests involved and in assessing the necessity for the restriction imposed, the Court will give weight to the legislative judgment on these issues. But, in the ultimate analysis, it is for the Court to determine whether the constitutional guarantee has been infringed in a given case.¹³¹

In *McCloy* it was said that the extended meaning which is given to the term ‘margin of appreciation’, in the context of courts of the European Union, would not appear to be useful in the context of an Australian court determining the limits to legislative power affecting the freedom of political communication.¹³² It is not a matter of deference that the courts respect the role of the legislature to determine which policies and social benefits ought to be pursued, but merely a matter of recognizing the boundaries between the respective legislative and judicial functions. The majority said:

It follows from an acceptance that it is the constitutional duty of courts to limit legislative interference with the freedom to what is constitutionally and rationally justified, that the courts must answer questions as to the extent of those limits for themselves.¹³³

F. THE ‘ELECTION CASES’

It remains to mention the method of review employed in a series of three cases involving legislation affecting voting in federal elections.

In the first of the cases, *Roach v Electoral Commissioner*,¹³⁴ the impugned legislation disqualified certain persons serving terms of imprisonment from voting. In *Rowe v Electoral Commissioner*¹³⁵ and in *Murphy v Electoral Commissioner*¹³⁶ the legislative provisions in question had the effect that a person would not be able to vote unless they enrolled to vote or transferred their enrolment within a specified period of time.

The differences of opinion in the two last-mentioned cases, about whether the statutes in question effected a disqualification from voting, may be put to one side. The majority in each of *Roach* and *Rowe* held that any law which operates to effect a legislative disqualification, disenfranchisement, or exclusion from voting could only be valid if it was for a substantial reason. A reason would answer that description if it was reasonably appropriate and adapted to an end consistent with the maintenance of the constitutionally prescribed system of representative government. That is to say the justification spoken of in *Lange* was necessary for such legislation to be valid.

Murphy was decided after the decision in *McCloy*. Attention was directed by some members of the Court in *Murphy* to whether the tests for proportionality stated in *McCloy* were useful or appropriate in this different context. There was not clear support for their use.¹³⁷

G. THE EDUCATIVE ROLE OF THE COURT

The High Court's role in reviewing legislation for constitutional validity has never been doubted. However, the Court's role is not simply to declare legislation valid or invalid. The explanations which are given by the Court about the standards which are to be applied on a review, and any tests which are considered necessary to determine the limits of legislative power, recognize that the Court has an educative role. This role has a number of facets.

Most obviously, the explanations enable lower courts throughout Australia to apply the necessary standards and tests consistently when reviewing legislation and they allow legal practitioners to advise their clients as to their rights and obligations in relation to legislation. It may further be discerned from the body of jurisprudence which the Court has developed in cases concerning the constitutional validity of legislation that

it is conscious of the role of the legislature. The explanations given by the Court of the standards and tests to be applied in determining constitutional validity enable those who prepare legislation and give advice about it, as well as the legislature itself, to understand what is necessary for validity and to draft legislation which conforms with the Constitution.

There are wider public interests also served by the explanations provided by the High Court. In addition to the knowledge which is imparted to those teaching law, the public at large is informed and assisted in being able to form expectations as to the kinds of law which the Commonwealth Parliament is constitutionally able to make. In providing the explanations the Court identifies the role it has with respect to the review of legislation and the explanations give legitimacy to decisions of the Court which invalidate or uphold laws enacted by the legislature.

All of these aspects reinforce the importance of the High Court's role in forming coherent and logical standards of review to be applied in determining the constitutional validity of legislation and serve to enhance the rule of law in Australia.

¹ John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (rev edn, LexisNexis 2015) 957.

² *Australian Communist Party v The Commonwealth* (1951) 83 CLR 1, 262–63 ('*Communist Party Case*'), referring to *Marbury v Madison* 5 US 137 (1803).

³ See (n 79).

⁴ *Constitution*, s 76(i); *Judiciary Act 1903* (Cth), s 30.

⁵ *Judiciary Act 1903* (Cth), s 40.

⁶ See *Kuczborski v Queensland* (2014) 254 CLR 51, 65–66 [17]–[19], 87–88 [99], 100–101 [151], 106–110 [175]–[188]; *Pape v Federal Commissioner of Taxation* (2009) 238 CLR 1, 34–36 [45]–[52], 68–69 [150]–[159], 99 [274].

⁷ *Jumbunna Coal Mine NL v Victorian Coal Miners' Association* (1908) 6 CLR 309, 367–68.

⁸ *Victoria v The Commonwealth* (1996) 187 CLR 416, 483 ('*Industrial Relations Act Case*'); *Grain Pool of Western Australia v The Commonwealth* (2000) 202 CLR 479, 495–96 [23].

⁹ *SGH Limited v Federal Commissioner of Taxation* (2002) 210 CLR 51, 75 [41], [44].

¹⁰ *Australian National Airways Pty Ltd v The Commonwealth* (1945) 71 CLR 29, 81.

¹¹ *Bank of New South Wales v The Commonwealth* ('*Bank Nationalisation Case*') (1948) 76 CLR 1, 332–33 (Dixon J) ('*Bank Nationalisation Case*').

¹² *Communications, Electrical, Electronic, Energy, Information, Postal, Plumbing and Allied Services Union of Australia v Queensland Rail* (2015) 318 ALR 1, 6 [21]–[22].

¹³ *Nolan v Minister for Immigration and Ethnic Affairs* (1988) 165 CLR 178, 186; *Shaw v Minister for Immigration and Multicultural Affairs* (2003) 218 CLR 28, 42 [27].

- ¹⁴ *Commonwealth v Australian Capital Territory* ('Marriage Equality Act Case') (2013) 250 CLR 441 ('Marriage Equality Act Case').
- ¹⁵ *ibid* 455 [14].
- ¹⁶ *ibid* 456 [15].
- ¹⁷ *ibid* 456 [16].
- ¹⁸ *ibid* 461 [33].
- ¹⁹ *Project Blue Sky Inc v Australian Broadcasting Authority* (1998) 194 CLR 355, 381 [69].
- ²⁰ *Cunliffe v The Commonwealth* (1994) 182 CLR 272, 296; *Re Pacific Coal Pty Ltd; Ex parte Construction, Forestry, Mining and Energy Union* (2000) 203 CLR 346, 412 [204].
- ²¹ *Constitution*, s 51(vi). See *Richardson v Forestry Commission* (1988) 164 CLR 261, 308.
- ²² *Constitution*, s 51(xxix).
- ²³ *Industrial Relations Act Case* (n 8) 487. See also *The Commonwealth v Tasmania* (1983) 158 CLR 1, 260 ('Tasmanian Dam Case'); *Richardson* (n 21) 308; *Cunliffe* (n 20) 322. But see *Richardson* (n 21) 326; *Leask v The Commonwealth* (1996) 187 CLR 579, 604–06.
- ²⁴ *Stenhouse v Coleman* (1944) 69 CLR 457, 471.
- ²⁵ *Bank Nationalisation Case* (n 11) 186.
- ²⁶ *ibid* 333.
- ²⁷ *Grannall v Marrickville Margarine Pty Ltd* (1955) 93 CLR 55, 77.
- ²⁸ *Cunliffe* (n 20) 294–95, 351; *Leask* (n 23) 591, 605, 608–09, 616–17, 624, 633; *Re Maritime Union of Australia; Ex parte CSL Pacific Shipping Inc* (2003) 214 CLR 397, 413 [35].
- ²⁹ *Grain Pool of Western Australia* (n 8) 492 [16]; *New South Wales v Commonwealth* (2006) 229 CLR 1, 103 [142] ('Work Choices Case').
- ³⁰ *Plaintiff S156/2013 v Minister for Immigration and Border Protection* (2014) 254 CLR 28, 42 [23].
- ³¹ *Grain Pool of Western Australia* (n 8) 492 [16]; *Work Choices Case* (n 29) 103 [142].
- ³² *Herald and Weekly Times Ltd v The Commonwealth* (1966) 115 CLR 418, 436.
- ³³ *Bank Nationalisation Case* (n 11) 186.
- ³⁴ *Re Dingjan; Ex parte Wagner* (1995) 183 CLR 323, 369.
- ³⁵ *ibid* 371.
- ³⁶ *Actors and Announcers Equity Association v Fontana Films Pty Ltd* (1982) 150 CLR 169, 192.
- ³⁷ *The Tasmanian Dam Case* (n 23) 151.
- ³⁸ *Re F; Ex parte F* (1986) 161 CLR 376, 387–88. See also *Actors and Announcers* (n 36) 194; *Grain Pool of Western Australia* (n 8) 492 [16].
- ³⁹ (n 29) 127 [219].
- ⁴⁰ *ibid* 127 [219]–[220]. An example of such a positive prohibition or restriction can be found in the phrase in s 51(xiii) 'other than State banking'. This was held in *Bourke v State Bank of New South Wales* (1990) 170 CLR 276 to apply as a general restriction upon federal legislative power, rather than a restriction only upon the ambit of s 51(xiii).
- ⁴¹ *Herald and Weekly Times Ltd* (n 32) 433–34.
- ⁴² *Melbourne Corporation v The Commonwealth* (1947) 74 CLR 31, 79; *Plaintiff S156* (n 30) 43 [25].
- ⁴³ *Melbourne Corporation* (n 42) 79; *Re Dingjan* (n 34) 369; *Re Maritime Union of Australia* (n 28) 413 [35].
- ⁴⁴ (n 20).
- ⁴⁵ *ibid* 316.

- ⁴⁶ (1981) 149 CLR 227.
- ⁴⁷ (1986) 161 CLR 438, 452–53.
- ⁴⁸ *Stenhouse* (n 24) 471; *Bank Nationalisation Case* (n 11) 186; *Fairfax v Federal Commissioner of Taxation* (1965) 114 CLR 1, 6–7, 14, 17.
- ⁴⁹ *Grain Pool of Western Australia* (n 8) 492 [16]; *Leask* (n 23) 602; *Work Choice Case* (n 29) 104 [142].
- ⁵⁰ *Australian National Airways* (n 10) 70.
- ⁵¹ *Stenhouse* (n 24) 471; *Cunliffe* (n 20) 317; *Grain Pool of Western Australia* (n 8) 492 [16].
- ⁵² (n 27) 77.
- ⁵³ In addition to the incidental power that is to be *implied* as an aspect of each of the substantive heads of power in s 51, s 51(xxxix) provides an *express* grant of power to make laws with respect to matters incidental to the execution of any power vested in the Commonwealth Parliament.
- ⁵⁴ *Burton v Honan* (1952) 86 CLR 169, 179.
- ⁵⁵ *Stenhouse* (n 24) 471.
- ⁵⁶ *ibid*; *Polyukhovich v The Commonwealth (The War Crimes Act Case)* (1991) 172 CLR 501, 592.
- ⁵⁷ *Richardson* (n 21) 326.
- ⁵⁸ *Industrial Relations Act Case* (n 8) 487.
- ⁵⁹ *Thomas v Mowbray* (2007) 233 CLR 307, 359 [135].
- ⁶⁰ *Cunliffe* (n 20) 323 (Brennan J), 351–52 (Dawson J); *Leask* (n 23), 605–606 (Dawson J), 624 (Gummow J); *Theophanous v The Commonwealth* (2006) 225 CLR 101, 128 [70].
- ⁶¹ See, eg, *Nationwide News Pty Ltd v Willis* (1992) 177 CLR 1, 27–29 (Mason CJ), 86–88 (Dawson J); *Cunliffe* (n 20) 296–97 (Mason CJ); *Leask* (n 23) 616 (Gaudron J), 616–17 (McHugh J); *Industrial Relations Act Case* (n 8) 548–49; *Re Pacific Coal* (n 20) 367 [56]; *McCloy v New South Wales* (2015) 275 CLR 178, 194 [3].
- ⁶² *Richardson* (n 21) 326; *Nationwide News* (n 61) 89; *Industrial Relations Act Case* (n 8) 572.
- ⁶³ *The Tasmanian Dam Case* (n 23) 259; *Richardson* (n 21) 311–12; *Industrial Relations Act Case* (n 8) 487; *R v Wei Tang* (2008) 237 CLR 1, 21 [34].
- ⁶⁴ See *R v Burgess; Ex parte Henry* (1936) 55 CLR 608, 659–60; *Airlines of NSW Pty Ltd v New South Wales (No 2)* (1965) 113 CLR 54, 86.
- ⁶⁵ *Richardson* (n 21) 311–12.
- ⁶⁶ *The Tasmanian Dam Case* (n 23) 260 (Deane J). See also *South Australia v Tanner* (1989) 166 CLR 161, 165; *Attorney-General (SA) v Adelaide City Corporation* (2013) 249 CLR 1, 38–40 [57]–[60].
- ⁶⁷ This test has been described as a ‘high threshold proportionality test’: *Adelaide City Corporation* (n 66) 38–39 [57]. See also *Tajjour v New South Wales* (2014) 254 CLR 508, 549 [35].
- ⁶⁸ *Marcus Clarke & Co Ltd v The Commonwealth* (1952) 87 CLR 177, 226.
- ⁶⁹ *Polyukhovich* (n 56) 592–93 (Brennan J), 684 (Toohey J), 696–97 (Gaudron J).
- ⁷⁰ However, a majority of the Court held the law to be valid as a law with respect to external affairs.
- ⁷¹ *Re Tracey; Ex parte Ryan* (1989) 166 CLR 518, 568–70; *Re Nolan; Ex parte Young* (1991) 172 CLR 460, 484.
- ⁷² *Re Tyler; Ex parte Foley* (1994) 181 CLR 18, 30–31.
- ⁷³ *Industrial Relations Act Case* (n 8) 517–18.
- ⁷⁴ *ibid* 524.
- ⁷⁵ *Wei Tang* (n 63) 20–21 [33]–[34].

- ⁷⁶ *Bank Nationalisation Case* (n 11) 354.
- ⁷⁷ *Victoria v The Commonwealth* (‘Second Uniform Tax Case’) (1957) 99 CLR 575, 614 (‘Second Uniform Tax Case’).
- ⁷⁸ *Australian Capital Television Pty Ltd v The Commonwealth* (1992) 177 CLR 106; *Nationwide News* (n 61); *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520.
- ⁷⁹ *Australian Capital Television* (n 78) 150; *Unions NSW v New South Wales* (2013) 252 CLR 530, 554 [36]; *McCloy* (n 61) 202 [30].
- ⁸⁰ *Coleman v Power* (2004) 220 CLR 1, 48 [87], 78 [196].
- ⁸¹ *Lange* (n 78) 567; *ibid* 50–51 [92]–[96].
- ⁸² *McCloy* (n 61) 193 [2].
- ⁸³ *Adelaide City Corporation* (n 66) 61–62 [131], 62 [134], 64 [140]–[141], 90 [221]–[222]; *Monis v The Queen* (2013) 249 CLR 92, 161 [175], 162 [178], 164 [185], 174 [220]–[221], 193–94 [278]–[282], 214–15 [347]–[351]; *McCloy* (n 61) 203 [31], 203 [33], 207–28 [46]–[47].
- ⁸⁴ *Wotton v Queensland* (2012) 246 CLR 1, 31 [81].
- ⁸⁵ (n 61) 195–96 [2]–[4].
- ⁸⁶ *North Eastern Dairy Co Ltd v Dairy Industry Authority of NSW* (1975) 134 CLR 559.
- ⁸⁷ *Cole v Whitfield* (1988) 165 CLR 360.
- ⁸⁸ *ibid* 409.
- ⁸⁹ *Betfair Pty Ltd v Western Australia* (2008) 234 CLR 418.
- ⁹⁰ *ibid* 479 [110].
- ⁹¹ (1990) 169 CLR 436.
- ⁹² *ibid* 477.
- ⁹³ *ibid* 473–74.
- ⁹⁴ *Nationwide News* (n 61) 77; *Australian Capital Television* (n 78) 143–44, 169, 234–35.
- ⁹⁵ *Lange* (n 78) 567–68.
- ⁹⁶ *Coleman* (n 80) 50–51 [92]–[96], 78 [196], 82 [211].
- ⁹⁷ *ibid* 50 [93].
- ⁹⁸ *Monis* (n 83) 142 [108].
- ⁹⁹ *Unions NSW* (n 79) 553–55 [35]–[43].
- ¹⁰⁰ *ibid* 555 [40].
- ¹⁰¹ *McCloy* (n 61) 207 [45].
- ¹⁰² *Lange* (n 78) 562.
- ¹⁰³ *ibid* 568 by reference to *Australian Capital Television* (n 78).
- ¹⁰⁴ *McCloy* (n 61) 213 [68].
- ¹⁰⁵ *ibid* 215 [74].
- ¹⁰⁶ *ibid* 193 [2], 209 [54]. See also *Unions NSW* (n 79) 558–59 [55]–[56].
- ¹⁰⁷ (n 79).
- ¹⁰⁸ *McCloy* (n 61) 217 [80].
- ¹⁰⁹ *Unions NSW* (n 79) 556 [44].
- ¹¹⁰ *Monis* (n 83) 214 [347]; *McCloy* (n 61) 196 [5].
- ¹¹¹ *Carter v Canada (Attorney-General)* [2015] 1 SCR 331, 381–88 [102]–[121]. In this case, the Supreme Court of Canada had to consider whether the absolute prohibition on physician-assisted dying (with its heavy impact on the constitutionally enshrined right to life, liberty, and security of the person) was the least drastic means of achieving the legislative objective. The Court focused on

reviewing the evidence from scientists, medical practitioners, and others familiar with end-of-life decision-making in order to reach its finding that there were other alternatives available.

- ¹¹² *McCloy* (n 61) 217 [82].
- ¹¹³ Aharon Barak, *Proportionality: Constitutional Rights and their Limitations* (CUP 2012) 409.
- ¹¹⁴ *McCloy* (n 61) 217 [83].
- ¹¹⁵ *ibid* 218 [86].
- ¹¹⁶ *ibid* 218 [84].
- ¹¹⁷ *ibid* 219 [87].
- ¹¹⁸ *ibid* 219 [89].
- ¹¹⁹ *Bank Mellat v HM Treasury (No 2)* [2013] UKSC 39, [2014] AC 700 [71]; *R (Lord Carlile of Berriew) v Secretary of State for the Home Department* [2014] UKSC 60, [2015] AC 945 [20].
- ¹²⁰ *McCloy* (n 61) 220 [93].
- ¹²¹ *ibid*.
- ¹²² *Nationwide News* (n 61) 76–77; *Australian Capital Television* (n 78) 143–44, 169, 234–35; *Cunliffe* (n 20) 299–300, 339; *Levy v Victoria* (1997) 189 CLR 579, 618–19; *Mulholland v Australian Electoral Commission* (2004) 220 CLR 181, 200 [40]; *Coleman* (n 80) 31 [30]–[31], 123 [326]; *Hogan v Hinch* (2011) 243 CLR 506, 555–56 [95]–[96]; *Wotton* (n 84) 16 [30], 30 [78]; *Monis* (n 83) 130 [64], 212 [342]; *City of Adelaide* (n 66) 88–89 [217].
- ¹²³ *Nationwide News* (n 61) 76–77; *Australian Capital Television* (n 78) 169, 234–35; *Cunliffe* (n 20) 339.
- ¹²⁴ *Australian Capital Television* (n 78) 143; *Cunliffe* (n 20) 299.
- ¹²⁵ *Mulholland* (n 122) 200 [40].
- ¹²⁶ *Levy* (n 122) 619; *Coleman* (n 80) 31 [30]–[31], 122–23 [326]; *Hogan* (n 122) 555–56 [95]–[96]; *Wotton* (n 84) 16 [30]; *Monis* (n 83) 130 [64], 212 [342]; *City of Adelaide* (n 66) 88–89 [217].
- ¹²⁷ *McCloy* (n 61) 215 [72]; see also *Tajjour* (n 69) 550–51 [37].
- ¹²⁸ *The Communist Party Case* (n 2) 262–63, referring to *Marbury v Madison* (n 2).
- ¹²⁹ *Australian Capital Television* (n 78) 159; *Theophanous v Herald & Weekly Times Ltd* (1994) 182 CLR 104, 156; *Cunliffe* (n 20) 325.
- ¹³⁰ See *Cunliffe* (n 20) 339–40.
- ¹³¹ *Australian Capital Television* (n 78) 144.
- ¹³² *McCloy* (n 61) 220 [92].
- ¹³³ *ibid* 220 [91].
- ¹³⁴ *Roach v Electoral Commissioner* (2007) 233 CLR 162.
- ¹³⁵ *Rowe v Electoral Commissioner* (2010) 243 CLR 1.
- ¹³⁶ *Murphy v Electoral Commissioner* (2016) 90 ALJR 1027.
- ¹³⁷ *ibid* 1043–44 [61]–[65] (Kiefel J), 1064 [211] (Keane J); but see 1050 [98]–[102] (Gageler J), 1072 [251]–[253] (Nettle J), 1079–80 [293]–[305] (Gordon J).

CHAPTER 22

JUSTICIABILITY

JEREMY KIRK^{*}

THE primary function of courts is to resolve legal disputes. Constitutional law questions, of their nature, tend to overlap with political, social, moral and economic issues. Disputes in these areas may raise issues which courts are not well suited to resolve. Further, there may be a concern about whether a case presents a real controversy for determination which is in dispute between the parties before the court, which is appropriately raised by those parties, and/or which is capable of being quelled in whole or part by judicial remedy.

Such issues fall within the notion of ‘justiciability’. There are different ways of understanding that notion, but it can sufficiently be understood here as referring to issues considered appropriate and capable of being subject to judicial resolution and relief. Such issues are linked in the Australian constitutional context to the interwoven requirements that there be a ‘matter’ before the court capable of determination by exercise of the ‘judicial power of the Commonwealth’.

For a constitutional claim to be justiciable within Australia the following requirements must be met:¹

1. The issue falls within the jurisdiction of a court, with respect to particular subject matters and/or persons.
2. The issue is capable of being resolved by a court, including in the sense that there are legal standards capable of being applied to resolve the issue, and that it is not allocated for resolution to some other branch of government.
3. The case raises a non-abstract issue for determination by reference to particular facts in a dispute between parties.
4. The case is brought by a party with standing to make the claim.
5. The claim is capable of determination by the grant of judicial relief.

The first requirement, relating to jurisdiction, is court-specific. That topic is addressed elsewhere in this volume. The other four requirements are examined below, in turn, with a particular focus on the capability issue. Before doing so, it is appropriate to outline relevant features of the Australian constitutional context in which these issues arise.

A. THE AUSTRALIAN CONSTITUTIONAL CONTEXT

The High Court has accepted from its inception that the judicial power of the Commonwealth extends to holding legislation or executive action invalid to the extent of inconsistency with the Constitution. The ‘principle of *Marbury v Madison* is accepted as axiomatic, modified in varying degree in various cases (but never excluded) by the respect which the judicial organ must accord to opinions of the legislative and executive organs’.² This acceptance has come to be regarded as an aspect of the rule of law.³

The High Court has not stated in clear terms that courts with jurisdiction to determine a constitutional question have a *duty* to exercise that jurisdiction in a properly constituted matter—although some members of the Court have said as much,⁴ and the whole Court or pluralities have come close to doing so.⁵ That there is such a duty cannot be doubted, in my view. In *SI57* five members of the Court stated that:⁶

The reservation to this Court by the Constitution of the jurisdiction in all matters in which the named constitutional writs or an injunction are sought against an officer of the Commonwealth is a means of assuring to all people affected that officers of the Commonwealth obey the law and neither exceed nor neglect any jurisdiction which the law confers on them.

In *Kirk v Industrial Relations Commission (NSW)* the Court held that it was a defining and irremovable characteristic of State Supreme Courts that they have a supervisory jurisdiction relating to jurisdictional error,⁷ which would extend to unconstitutional State government action.

Such constitutional assurances would be of limited worth if they did not carry with them a requirement that the courts exercise such jurisdiction when asked to do so in a properly constituted action.

In the context of the debate about acceptance of the doctrine of forums non conveniens in Australia, Brennan J made a broader point that courts generally have a duty to exercise jurisdiction in a properly brought matter,

subject only to rare and ‘narrowly confined’ exceptions;⁸ a plaintiff seeking to enforce a right vested in him or her by Australian law does not ‘approach the court as a supplicant, seeking the favourable exercise of a discretion to enforce that right’.⁹ That the High Court came to accept that an Australian court could decline to exercise jurisdiction where it was a clearly inappropriate forum, and another forum was available, does not undermine the point.¹⁰ The same may be said of the High Court’s statutory ability under section 44 of the *Judiciary Act 1903* (Cth) to remit a matter brought in its original jurisdiction to another court. To decline jurisdiction or to transfer a matter in favour of another court serves the overall interests of the administration of justice. It is not an exercise of general discretion to decline to hear a matter because it is, say, difficult, controversial, or ‘political’.

Grants of equitable and public law relief by a court are generally taken to be discretionary.¹¹ Thus, for example, delay in bringing proceedings may be a ground for refusing relief. The discretionary grounds for refusing relief are not closed. Thus this could be one possible legal basis founding some discretionary doctrine of declining to answer ‘political questions’. But the availability of such a basis does not establish that such a doctrine should be accepted. Any such argument runs counter to the notion of the rule of law, by which governments are subject to law, along with the general duty of courts to exercise jurisdiction in a properly constituted suit.

Any argument that resolution of constitutional questions involves the courts in determination of ‘political questions’ or consideration of political propositions does not, by itself, take the issue very far.¹² The Constitution ‘is a political instrument’ which ‘deals with government and governmental powers’.¹³ As such, it is inevitable that ‘nearly every consideration’ arising from it could be described as ‘political’.¹⁴ That may be because the legislation under review is the subject of political choices, deals with issues of social or economic regulation, limits or expands the powers available to the other branches of government, and/or is the subject of intense political controversy.

Further, it is also inevitable that courts must make choices in construing and applying the Constitution, as for any legal document or doctrine. That cannot be a basis for declining to exercise judicial power. However, as will be developed below, issues of degree arise here, and Australian judges have

sometimes stated constitutional criteria or tests in such a way as to reduce the necessity for choices which are very open and, thus, potentially subject to significant disagreement and controversy.

That issues are the subject of public and political controversy could not be a ground of per se exclusion. The need for a neutral umpire to resolve such disputes was a compelling reason behind the recognition of the constitutionally entrenched separation of judicial powers.¹⁵ That is not to say that courts are not cognizant of public controversy. In some cases the High Court has felt it desirable to re-affirm that it only determines legal questions. The *Tasmanian Dam Case*, for example, concerned the validity of a federal law enacted following heated public debate. Although the Court split four to three in upholding the validity of the federal statute, all members of the Court subscribed to a joint introductory statement which said that the questions determined ‘are strictly legal questions’, and ‘[t]he Court is in no way concerned with the question whether it is desirable or undesirable ... that the construction of the dam should proceed’.¹⁶

As that statement illustrates, although a constitutional controversy may be characterized as ‘political’ in a range of ways, it is regarded as essential that disputes as presented to the courts are capable of resolution by legal criteria, not by other types of norms. Examples are given below. This requirement is tied to certain fundamental, overlapping aspects of the Australian constitutional context: that constitutional questions brought to the courts fall to be determined by ‘the judicial power of the Commonwealth’, in a ‘matter’.

Chapter III of the Constitution provides, in section 71, that the ‘judicial power of the Commonwealth’ is vested in the High Court, and in such other federal or other courts as the Parliament invests with federal jurisdiction. As developed elsewhere in this volume, this has been taken to require that federal courts may only exercise judicial power.¹⁷ The High Court has regularly stated that no comprehensive statement can be given as to what is and is not judicial power. Nevertheless, at the heart of the notion is ‘the power which every sovereign authority must of necessity have to decide controversies between its subjects, or between itself and its subjects, whether the rights relate to life, liberty or property’.¹⁸ This has been recognized to involve the authoritative resolution of a controversy about legal rights.¹⁹

Sections 75 and 76 of the Constitution give the High Court jurisdiction to decide particular types of ‘matters’.²⁰ Section 75 confers upon the High Court original jurisdiction to decide matters enumerated therein, and section 76 permits Parliament to make laws investing the Court with additional original jurisdiction. These sections are taken to outline what may constitute federal jurisdiction.

The High Court stated in the seminal case of *In re Judiciary and Navigation Acts* that ‘matter’ means ‘the subject matter for determination in a legal proceeding’, and that ‘there can be no matter ... unless there is some immediate right, duty or liability to be established by the determination of the Court’.²¹ It has been said that ‘[t]he term “matter” in Ch III of the Australian Constitution was selected with the intention of ensuring that the content of federal jurisdiction in Australia was at least as wide as that given by the term “case or controversy” ’.²² In *Re McBain* it was said by Gaudron and Gummow JJ that the task of identifying the ‘matter’ should be approached as a ‘tripartite inquiry’:²³

first, the identification of the subject-matter for determination ...; secondly, the identification of the right, duty or liability to be established ...; thirdly, the identification of the controversy between the parties ... for the quelling of which the judicial power of the Commonwealth is invoked.

The notions of ‘matter’, judicial power and federal jurisdiction overlap.²⁴ The dual requirements for there to be a ‘matter’ capable of resolution by the ‘judicial power of the Commonwealth’ are relevant to each of the topics considered below. If there is no ‘matter’, and/or the matter is not capable of determination by the judicial power of the Commonwealth, then courts will have no jurisdiction to determine the question.

B. THE CAPABILITY OF ISSUES FOR JUDICIAL DETERMINATION

1. The ‘Political Questions’ Doctrine in the United States

The judgment invariably cited in discussions of a ‘political questions’ doctrine is that of the United States Supreme Court in *Baker v Carr*, delivered by Brennan J.²⁵ The Court there held, after an analysis of earlier cases, that the non-justiciability of political questions is ‘primarily a function of the separation of powers’,²⁶ and identified six factors which

could signal that a case raises a political question not appropriate for judicial resolution:²⁷

[1] a textually demonstrable constitutional commitment of the issue to a coordinate political department; or [2] a lack of judicially discoverable and manageable standards for resolving it; or [3] the impossibility of deciding without an initial policy determination of a kind clearly for non-judicial discretion; or [4] the impossibility of a court's undertaking independent resolution without expressing lack of the respect due coordinate branches of government; or [5] an unusual need for unquestioning adherence to a political decision already made; or [6] the potentiality of embarrassment from multifarious pronouncements by various departments on one question.

The doctrine was not applied to preclude review in *Baker* itself. Rather, the notion was articulated in reasoning which overturned a lower court decision that an electoral apportionment issue was non-justiciable.

The doctrine has only been applied by a majority of the Supreme Court to foreclose judicial review in two cases since *Baker*.²⁸ In *Gilligan v Morgan*, the claimant sought orders involving continuing judicial surveillance over operations of the National Guard.²⁹ The Court rejected the claim, considering that it would intrude on areas of responsibility allocated by the Constitution to the political branches, and raised issues beyond the courts' competence. In *Nixon v United States* the Court declined to review an impeachment of a judicial officer, finding that the sole power to 'try' impeachments was in the Senate.³⁰

The Supreme Court revisited the issue in *Zivotofsky v Clinton*, overturning the decision of the court below that a particular statutory right relating to an issue of international relations was a non-justiciable political question.³¹ Roberts CJ stated that '[i]n general, the Judiciary has a responsibility to decide cases properly before it, even those it "would gladly avoid" '; the political question doctrine presented only a 'narrow exception' to that rule.³²

Thus despite the breadth of the initial statement of the political questions doctrine in the United States, it has proved to have a very limited role to play in subsequent decisions of the Supreme Court.

All of the six factors identified by Brennan J raise issues of degree and judgment. Of the six, the first three are of greatest significance. Both *Gilligan* and *Nixon* were decided on the first two *Baker* factors.³³ The third factor overlaps with the second.

In her concurrence in *Zivotofsky*, Sotomayor J stated that in her view 'the *Baker* factors reflect three distinct justifications for withholding judgment

on the merits of a dispute’.³⁴ First, ‘[w]hen a case would require a court to decide an issue whose resolution is textually committed to a coordinate political department, as envisioned by *Baker*’s first factor, abstention is warranted because the court lacks authority to resolve that issue’. Secondly, ‘[t]he second and third *Baker* factors reflect circumstances in which a dispute calls for decision making beyond courts’ competence’. Thirdly, ‘[t]he final three *Baker* factors address circumstances in which prudence may counsel against a court’s resolution of an issue presented’.

The exact legal foundation of the doctrine is somewhat ambiguous. In *Baker* itself there were elements of reasoning suggesting both jurisdictional and discretionary elements.³⁵ In *Zivotofsky*, Roberts CJ said that where the doctrine applies ‘a court lacks the authority to decide the dispute before it’, suggesting it is a more rigid jurisdictional restraint.³⁶

2. ‘Political Questions’ and ‘Justiciability’ in Australia

As outlined above, all constitutional disputes may be labelled as ‘political’ in one sense, but to do so adds little to analysis; Australian courts have accepted the *Marbury v Madison* principle of judicial review as foundational; and there is, in general terms, a duty for courts to exercise their jurisdiction to resolve legal disputes properly brought before them.

In this context, there is much to be said for the view that ‘whenever a question as to the limits of Commonwealth power arises it is justiciable’,³⁷ assuming, that is, that the other requirements of justiciability are met (such as there being a concrete dispute raised by a party with standing). That leaves limited scope for any ‘political questions’ doctrine to have significant operation in Australia. It has not been adopted in Australia in the manner in which it was stated in *Baker*. Insofar as it is a discretionary doctrine, it would not be consistent with the Australian constitutional approach. Even so, the considerations raised in *Baker*, and particularly the first three, do echo in Australian constitutional law.

The language of ‘political question’ or ‘political issue’ has sometimes been employed to characterize, and thus reject, arguments seen as not founded upon any legal proposition. For instance, in *Re Citizen Limbo* Brennan J rejected a challenge to certain government action based upon international law claims and a constitutional argument lacking any intelligible foundation. He stated that ‘it is necessary always to ensure that

lofty aspirations are not mistaken for the rules of law which courts are capable and fitted to enforce',³⁸ and that the Court 'cannot assume a function of determining the truth of political issues unless those issues are critical to the existence of some power'.³⁹ It may be that the courts' discernment of the absence of any legal ground has been informed by issues of suitability for judicial resolution. But such usages do not bespeak a distinct doctrine of the American kind.

However, the High Court has long held that certain standards are too indeterminate to be characterized as resolvable by judicial power, and statutory attempts to grant such powers to federal courts will be invalid. In *Precision Data Holdings Ltd v Wills*, for example, the High Court stated:⁴⁰

if the ultimate decision may be determined not merely by the application of legal principles to ascertained facts but by considerations of policy also, then the determination does not proceed from an exercise of judicial power. That is not to suggest that considerations of policy do not play a role, sometimes a decisive role, in the shaping of legal principles.

This requirement can be seen to found the recognition that matters are only justiciable insofar as legal standards govern the dispute. That said, the scope of what sorts of 'policy' considerations the courts may consider and apply has expanded over time.⁴¹ The requirement bears some similarity to the second and third *Baker* factors, but it is expressed as a non-discretionary constitutional requirement relating to judicial power, albeit one for which there is no clear boundary line.⁴²

Much the same requirement can be expressed in terms of the 'matter' prerequisite. There will be no 'matter' if 'determination of the controversy would require adjudication of obligations and undertakings which depend entirely on political sanctions and understandings'.⁴³

The label 'non-justiciable' has, from time to time, been applied to conclusions that some claim or argument should be rejected or cannot be resolved by exercise of judicial power.⁴⁴ But use of the term as a conclusory label is distinct from development and application of some specific 'political questions' type of doctrine.

The High Court employed the term 'justiciability' in a case in 1911 in a way which still resonates.⁴⁵ South Australia had brought a claim against Victoria in the original jurisdiction of the High Court relating to the boundary between the two States. The formal definition of the boundary was the 141st degree of East longitude. The boundary had been marked out

by agreement in 1847–48. In fact, the true line was some 2 miles to the east of this delineation. South Australia claimed that land back.

Section 75 of the Constitution provides that '[i]n all matters ... (iv) between States ... the High Court shall have original jurisdiction'. Victoria argued, amongst other things, that South Australia's argument was 'political' not 'legal', and that the High Court could not determine such a question. The Court rejected South Australia's claim, but considered that it was justiciable. Griffith CJ stated:⁴⁶

the jurisdiction of the High Court, if any, is judicial and not political. So far, therefore, as a controversy requires for its settlement the application of political as distinguished from judicial considerations, I think that it is not justiciable under the Constitution.

O'Connor J made a point which is fundamental for any constitutional court: there is a difference between determination of an issue having political consequences and it being determined on political grounds.⁴⁷ South Australia's claim, being ultimately founded on statute and letters patent, was a legal claim.

The claim was dismissed by a majority of the Court on the basis that it was implicit in the legal statement of the boundary in the letters patent that there would be a practical demarcation, which would then be treated as binding. That resolution of what was, no doubt, a question of high political controversy can itself be seen as an early example of judges articulating or determining a legal criterion in way that limits the engagement of courts in such issues.

The decision in *South Australia v Victoria* was an instance of disputes between governments. Concerns that touch upon the 'political questions' types of factors have also arisen in constitutional contexts which include (without seeking to be exhaustive) parliamentary privileges and procedures, exercise of certain prerogative powers, and enforcement of intergovernmental agreements. More generally, those factors have had a role to play in how constitutional tests or criteria are articulated by the High Court.

3. Parliamentary Privileges and Procedures

In *Thomas v Mowbray*, Gummow and Crennan JJ referred to the term 'non-justiciability' being used to identify 'the absence of the constitutional competence of this Court to restrain or otherwise intervene in some of the

activities entrusted to the Parliament by Ch I and the Executive by Ch II'.⁴⁸ Such language is evocative of the first *Baker* factor. That type of consideration has arisen where the courts have treated certain matters of parliamentary privilege or procedure as in the province of Parliament to determine.

Section 47 of the Constitution provides that:

Until the Parliament otherwise provides, any question respecting the qualification of a senator or of a member of the House of Representatives, or respecting a vacancy in either House of the Parliament, and any question of a disputed election to either House, shall be determined by the House in which the question arises.

In 1907 a federal election was held, but the election of one of three senators chosen for South Australia was held to be void. The South Australia Parliament treated that as creating a casual vacancy under section 15 of the Constitution, and it chose a person to fill the vacancy. This choice was certified by the State Governor and communicated to the Governor-General. The challenge to the choice was rejected by the High Court, which recognized there were constitutional duties at issue, but said these were 'duties of imperfect obligation',⁴⁹ and that the Court would no more issue mandamus to the Governor to do an act which he could only do on the advice of the State's Executive Council than it would compel the State Houses to meet and choose a senator.⁵⁰ The Court suggested that any remedy 'is to be sought from the direct intervention of the Sovereign and not by recourse to a Court of law'.⁵¹ That justification is not persuasive now, if ever it was. But it might be seen as referring to the issue falling for political resolution. Moreover, the decision can be seen as linked to the privilege of the federal Houses of Parliament to determine questions about their own membership pursuant to section 47 of the Constitution,⁵² until the Parliament otherwise provides for this to be determined by a court.⁵³ So understood, the decision reflects an acknowledgement of a constitutional commitment of the issue to another branch of government, implying a correlative limit on the jurisdiction of the courts.

Section 49 of the Constitution provides:

The powers, privileges, and immunities of the Senate and of the House of Representatives, and of the members and the committees of each House, shall be such as are declared by the Parliament, and until declared shall be those of the Commons House of Parliament of the United Kingdom, and of its members and committees, at the establishment of the Commonwealth.

In *R v Richards; Ex parte Fitzpatrick & Browne* the High Court unanimously refused a writ of habeas corpus for two men who had been jailed for ninety days on order of the House of Representatives for contempt of Parliament. The contempt related to a newspaper article which had been critical of a member of the House. The Court held that the established British position applied, namely ‘it is for the courts to judge of the existence in either House of Parliament of a privilege, but, given an undoubted privilege, it is for the House to judge of the occasion and of the manner of its exercise’.⁵⁴

In *Egan v Willis*, dealing with the New South Wales State upper House, the High Court held that the House had such powers, privileges, and immunities as are reasonably necessary for the proper exercise of its functions.⁵⁵ The *R v Richards* statement of principle was re-affirmed,⁵⁶ but members of the Court nevertheless contemplated that there might be legal limits on what steps a House might take in response to a failure by a member of the executive to produce documents required by the House.⁵⁷ Subsequently, the New South Wales Court of Appeal considered itself entitled to rule upon whether or not requiring production of privileged documents was reasonably necessary.⁵⁸

Determination of reasonable necessity can be regarded as policing the boundaries—or the existence, in the sense of the availability—of the privilege. It may not be a large step to proceed from this, and the contemplation of limits on punishment, to recognition of enforceable conditions or limitations on the exercise of power, such as provision of procedural fairness, so that the power is not legally available if the condition is not met. Such a recognition may answer some of the apparent injustice of the *R v Richards* case, whilst continuing to acknowledge the allocation of constitutional responsibility for determination of breach of privilege to the Houses of Parliament.

In similar vein, section 72 of the Constitution provides that justices of the High Court and of other federal courts ‘shall not be removed except by the Governor-General in Council, on an address from both Houses of the Parliament in the same session, praying for such removal on the ground of proved misbehaviour or incapacity’. Whilst decision-making responsibility is allocated to the Parliament and executive, arguments have been made by

a range of observers that some enforceable legal standards, including procedural fairness, may condition the power of removal.⁵⁹

These points illustrate that the Constitution does allocate responsibility for certain decision-making on what might be seen as legal rights to branches of government other than the courts. That does not mean that the courts have no role to play in policing the availability and exercise of those powers.

Sections 53–57 of the Constitution deal with certain parliamentary powers and processes.⁶⁰ Judicial decisions on these sections manifest some respect for allowing the Parliament to regulate its own processes, whilst also providing for the judicial upholding of conditions or restrictions on parliamentary exercises of power.

Section 53 addresses the extent of the Senate's powers in relation to the initiation and amendment of money bills, but is addressed to 'proposed laws'. Section 54 provides that a 'proposed law' which appropriates moneys for the ordinary annual services of government shall deal only with such appropriation. Section 55 provides, in contrast, that 'laws' imposing taxation 'shall deal only with the imposition of taxation and any provision dealing with any other matter shall be of no effect', and that such laws shall deal with 'one subject of taxation only'. The High Court has suggested that section 55 is justiciable but that sections 53 and 54 are not,⁶¹ the distinction being due to the textual use of 'laws' as opposed to 'proposed law(s)', and treating sections 53 and 54 as procedural provisions directed to internal organization of and between the two Houses.

Section 57 establishes a joint sitting procedure for resolving deadlocks relating to a 'proposed law' passed by the House of Representatives but which has been twice rejected or fails to pass in the Senate, with an interval of three months in between, and where there has been a subsequent double dissolution election. In *Cormack v Cope* the High Court declined to grant relief in relation to a proposed joint sitting after a double dissolution, though the reasons of the various judges ranged from the issue being seen as one only for the Houses, through to a discretionary withholding of relief until any putative laws were enacted by the joint sitting (a prematurity concern).⁶²

Subsequently, in *Victoria v Commonwealth* ('PMA Case'), one of the Acts passed at that joint sitting was held by a majority to be invalid on the

basis that there had not been a sufficient failure to pass the bill on the first occasion relied upon, such that a necessary condition in section 57 was not satisfied. Four members of the Court held the issue to be justiciable.⁶³ As Gibbs J put it, '[w]here an attempt has been made to enact laws by a means which the Constitution permits to be used only subject to certain conditions, and those conditions have not been satisfied, this Court is bound to declare the invalidity of the resulting product'.⁶⁴ McTiernan and Jacobs JJ dissented. McTiernan J expressly invoked *Baker v Carr* and described the issue as a 'political question',⁶⁵ essentially on the basis that '[t]he Parliament is master in its own household'.⁶⁶ Jacobs J expressed some doubt as to justiciability,⁶⁷ but decided the case on the substantive issue.

A third case was then determined about other Acts passed at the joint sitting.⁶⁸ Those laws were upheld by majority. In this case Jacobs J's doubts as to justiciability were strengthened, and Murphy J essentially agreed with the position taken in the *PMA Case* by McTiernan J.⁶⁹

There is room to argue about the merits of the competing views on section 57. What the majority view illustrates is that courts will not lightly accept that requirements of the Constitution are not capable of being enforced in the courts, in the absence of some relatively clear textual and/or historical allocation of responsibility elsewhere.

4. Exercise of Certain Prerogative Powers

The executive power of the Commonwealth provided for in section 61 of the Constitution has been taken to include prerogative powers of the Crown appropriate to the powers of the Commonwealth.⁷⁰ There is little room for doubt that the exercise of such powers may be capable of judicial review.⁷¹ For a range of such powers, however, it is sometimes argued or held that the issues raised are non-justiciable.⁷² Such arguments have arisen, for example, with respect to the exercise of the prerogative of mercy,⁷³ or decisions by the executive to enter into or implement an international treaty.⁷⁴

The reach of administrative law judicial review of such powers is beyond the scope of this chapter. Given that such powers find their source in section 61 of the Constitution, as regards the Commonwealth, this issue does have a constitutional dimension. For current purposes it suffices to say that there is

good reason to argue that in general any limits on judicial review here should not be, and will not be, regarded as a preclusion of judicial review per se. A generic preclusion would likely be seen as inconsistent with what the plurality in *S157* called the ‘entrenched minimum provision of judicial review’ assured to all people affected by a federal exercise of power.⁷⁵

Rather, the nature of the subject matter and of the decision-maker may be such that the scope for judicial review is very limited because there are few legal limitations recognized as conditioning exercise of the power (and so long as the exercise is within the scope of the power). Where ‘the matter of which the [decision-maker] is required to be satisfied is a matter of opinion or policy or taste it may be very difficult to show that it has erred in [some relevant legal way], or that its decision could not reasonably have been reached’, and in such instances the decision-maker ‘will be left with a very wide discretion which cannot be effectively reviewed by the courts’.⁷⁶ There is a difference between effective review and no review. Much this type of argument has been made by other commentators.⁷⁷

An illustration of the point is the decision of the New South Wales Court of Appeal in *Stewart v Ronalds*, in which it was held that a Premier and Lieutenant-Governor owed no duty of procedural fairness to a Minister prior to the withdrawal of the Minister’s commission. The argument had been put, in part, in terms of justiciability, but Allsop P declined to adopt that label, rather simply concluding that no duty of procedural fairness was owed in the circumstances.⁷⁸ Similarly, in *Attorney-General (NT) v Emmerson*, six members of the High Court stated that ‘[c]ertain discretions exercised by a prosecutor in the initiation and conduct of criminal proceedings are not readily subject to review’;⁷⁹ they did not state that such discretions are not capable of judicial review.⁸⁰

5. Intergovernmental Agreements

The case of *South Australia v Commonwealth* concerned an attempt by South Australia to obtain orders enforcing an agreement with the Commonwealth for development of certain railway lines.⁸¹ The Commonwealth had, for an extended period, declined to provide funds or to play its part on the basis that it was not required for it to do so until further agreements had been reached between the two parties (and it had declined

to enter such further agreements). The case was dismissed by the High Court. The case can readily be understood in conventional contract law terms, as members of the Court concluded that there was no express or implied obligation on the Commonwealth within the agreement to have commenced and undertaken the actions identified by South Australia,⁸² and that it relevantly could be seen as an agreement to enter further specific agreements.⁸³

Some members of the Court went further, suggesting that the promises in question were ‘political in character’ and ‘therefore not enforceable by processes of law’; they were duties of ‘imperfect obligation’.⁸⁴ Thus in *Re Ditfort Gummow J* identified this case as one which involved a non-justiciable issue because the obligations depended on political sanctions.⁸⁵ The ‘non-justiciable’ label is apt for the conclusion, but it does not provide the reasoning. This aspect of the decision can also be explained in conventional contract terms as manifesting a relevant lack of intention to create legal relations, albeit it is a finding made with an awareness of the constitutional and political context in which the issue arises.⁸⁶ The same may be said of other such cases.⁸⁷ There is not some special category of intergovernmental agreements which are non-justiciable simply because of the identity of the parties. A commonplace intergovernmental contract for the sale of property, for example, would undoubtedly be enforceable.

6. Articulation of Constitutional Criteria

There have been two judgments of High Court justices in which the ‘political questions’ notion of *Baker* has expressly been applied (as opposed to referred to) as part of the reasoning. The first was that of McTiernan J in the *PMA Case*. The other was the judgment of Brennan J in *Gerhardy v Brown*,⁸⁸ in which the Court was required to determine whether an Act passed by a State Parliament was a ‘special measure’ within the meaning of the Commonwealth’s *Racial Discrimination Act 1975*. Brennan J stated that the necessity for enactment of a special measure for some racial group was a ‘political assessment’:⁸⁹

It is not the function of a municipal court to decide, and there are no legal criteria available to decide, whether the political assessment is correct. The

court can go no further than determining whether the political branch acted reasonably in making its assessment.

Although *Gerhardy* was not a constitutional case, it is an example of the *Baker*-type factors influencing the level of generality of, and content of, the statement of some legal criterion. The issue arises where judges consider that to recognize or articulate a legal criterion at a particular level of specificity, or in a particular way, will be to require the making of subjective, highly contestable, and/or controversial judgments, or assessments otherwise beyond the institutional competence of the courts (overlapping with the second, third, fifth, and sixth *Baker* factors). Such considerations tend to incline courts towards stating the criterion at a higher level of generality, or with content which avoids or reduces the need to make such judgments. This is an important theme of Australian constitutional law (and law generally), even if not often expressed in these terms. It sometimes finds expression in statements made as to the nature of the judicial function.

There are numerous examples. The 1911 case of *South Australia v Victoria*, discussed above, is one illustration. Another example arose in *Western Australia v Commonwealth*, which concerned, amongst other things, the Commonwealth's constitutional power in section 51(xxvi) to make laws with respect to '[t]he people of any race for whom it is deemed necessary to make special laws'. The High Court cited the relevant passage from Brennan J's judgment in *Gerhardy* in holding that the judgment of necessity 'is for the Parliament, not for the Court'.⁹⁰

In the foundational *Engineers' Case*, in 1920, the majority rejected the then prevailing approach to constitutional implications restricting federal power in part because the notion of 'necessity' which was perceived to have required that approach was 'itself referable to no more definite standard than the personal opinion of the Judge who declares it',⁹¹ and 'the judicial branch of the Government [is] inappropriate to determine political necessities'.⁹²

In *Tasmanian Dam*, in 1983, Mason J rejected the argument that notions of 'international concern' conditioned the Commonwealth's power to give effect to international treaties because whether an issue was of international concern, whether it would yield benefits to Australia, and whether non-observance by Australia would be likely to lead to adverse international

consequences, 'are not questions on which the Court can readily arrive at an informed opinion'.⁹³

A common issue in Australian constitutional law has been whether a law is for a purpose incidental to the achievement of some end within power. Australian law has employed language drawn from *McCulloch v Maryland*⁹⁴ that such laws must be reasonably appropriate and adapted to achieving the end. The qualifier of reasonableness allows room for legislative judgment (and a similar criterion has been applied in other contexts). In *Burton v Honan*, in 1952, Dixon J warned that such matters of incidental power 'are largely questions of degree', which may 'bring forth arguments in relation to justice, fairness, morality and propriety, but those are not matters for the judiciary to decide upon'.⁹⁵ Thus the courts attempt to navigate by legal, not normative, markers in this area.

The issue is acute when it comes to consideration of legitimate infringement of express or implied constitutional guarantees. In the context of section 92's guarantee of freedom of interstate trade and commerce, five members of the High Court in *Castlemaine Tooheys v South Australia* stated that '[t]he question whether a particular legislative enactment is a necessary or even a desirable solution to a particular problem is in large measure a political question best left for resolution to the political process', but went on to state that 'if the means which the law adopts are disproportionate to the object to be achieved, the law has not been considered to be appropriate to the achievement of the object' and would be invalid.⁹⁶ A somewhat more interventionist approach was taken in *Betfair Pty Ltd v Western Australia*⁹⁷ where the Court utilized a proportionality analysis of sorts through the application of a criterion of 'reasonable necessity'.

The same theme has emerged in the context of the implied freedom of political communication. In *Lange v Australian Broadcasting Corporation*, a two-step analysis was propounded to first ask whether the law in question effectively burdened the freedom, and if so, whether it was reasonably appropriate and adapted or proportionate to serve a legitimate end.⁹⁸ This test has also evolved, and in *McCloy v New South Wales* a majority of the High Court accepted that it incorporated a proportionality test, involving assessment of suitability, necessity, and balance.⁹⁹ It was recognized that balancing 'necessarily involves a value judgment', although this fact 'does not entitle the courts to substitute their own assessment for that of the

legislative decision-maker’;¹⁰⁰ the balancing must be consistent with the ‘limits of the judicial function’.¹⁰¹

Such tests necessarily intrude into contestable and potentially controversial issues of judgment. However, courts are caught between important competing imperatives here: on the one hand seeking to avoid constitutional guarantees preventing socially useful legislation directed to achieving legitimate ends (which do not directly contradict the purpose of the guarantee), and also seeking to avoid making (and being seen to make) ‘political’ judgments; on the other hand, giving real effect to the constitutional guarantee by not too readily allowing infringement.¹⁰² Different views can be taken as to how to delineate the judicial role, but no easy answers are available.

7. Summary in Relation to Matters Appropriate for Judicial Resolution

It can be seen, thus, that although there is no freestanding ‘political question’ doctrine in Australia, the *Baker* considerations (especially the first three) manifest themselves in a number of ways in Australian constitutional law.

C. REVIEW OF A CONCRETE DISPUTE BY REFERENCE TO PARTICULAR FACTS

Turning then to the next identified requirement of justiciability, the High Court in *In re Judiciary Act* held invalid amendments to the *Judiciary Act* which granted the High Court jurisdiction to determine ‘any question of law as to the validity of any Act’ on reference from the Governor-General. The majority said ‘there can be no matter within the meaning of [s 76 of the Constitution] unless there is some immediate right, duty or liability to be established by the determination of the Court’;¹⁰³ the Parliament ‘cannot authorize this Court to make a declaration of the law divorced from any attempt to administer that law’;¹⁰⁴ and it cannot ‘confer power or jurisdiction upon the High Court to determine abstract questions of law without the right or duty of any body or person being involved’.¹⁰⁵

The High Court has since regularly reiterated that the ‘matter’ requirement, together with the linked requirement that federal courts may exercise (only) the judicial power of the Commonwealth, denies the Court any jurisdiction (whether original or appellate) to determine abstract or hypothetical questions or issue advisory opinions.¹⁰⁶

Practical justifications that have been advanced for this approach include that an advisory or hypothetical decision will not necessarily resolve a dispute to finality, where that is the object of the judicial process, and where not doing so may be inefficient and costly;¹⁰⁷ that it assists argument and decision to have parties with ‘such a personal stake in the outcome of the controversy as to assure that concrete adverseness which sharpens the presentation of issues upon which the court so largely depends for illumination’;¹⁰⁸ and advisory opinions would not necessitate a contradictor, diminishing the capacity of the court to give an unprejudiced ruling.¹⁰⁹

The High Court’s approach has been criticized by a number of academic commentators, being labelled, for instance, ‘restrictive’¹¹⁰ and ‘narrow’.¹¹¹ Yet experience teaches that particular fact situations do throw light on competing imperatives. They may reveal new complexities not previously foreseen. The common law method of determining legal issues on a case-by-case basis is premised on these facts. It is not uncommon for courts to hear and determine arguments that some general proposition stated in an earlier case should be regarded as having some qualification in light of the facts now before the court. Determination of legal questions abstracted from real facts and controversies, raised by parties to whom the resolution matters, increases the likelihood of oversight and error.

Furthermore, the High Court has shown some flexibility on the doctrine, mitigating its restrictive effects. It has not prevented the answering of separate questions in the course of litigation, so long as they advance resolution of a dispute.¹¹² Nor has it prevented the determination of claims where the only relief sought is a declaration of invalidity, for example in litigation brought by the States against the Commonwealth. That being said, it might well be argued that some of the arguments brought and determined in the multifaceted *Work Choices Case* for example—in particular the challenge to provisions relying on, in effect, incidental aspects of the

territories power¹¹³—might have better been illuminated by reference to particular facts.

In *Mellifont v Attorney-General (Qld)* the High Court held that it could hear appeals from intermediate appellate decisions pursuant to a statutory provision for the referral of questions of law by the Attorney-General to the appellate court in a criminal trial in circumstances where the accused had been acquitted or discharged. In such circumstances there may be no active defendant, nor a legal right or duty which remains in practical dispute. On the other hand, the dispute does arise out of a concrete fact situation; it is not ‘divorced from the ordinary administration of the law’.¹¹⁴ The majority appears to have been influenced by practical considerations: given principles of double jeopardy, without such statutory procedures there would be limited opportunity for the correction of legal error by trial judges; and were the High Court to deny its own appellate jurisdiction in this regard, then it would reduce its ability to provide authoritative decisions on questions of criminal law.¹¹⁵ Similar pragmatic concerns informed the decision to permit appeals from separate questions.¹¹⁶

In *Attorney-General (Cth) v Alinta Ltd* a commercial dispute had given rise to a constitutional question in the Federal Court.¹¹⁷ The Full Court upheld the challenge. The Attorney-General of the Commonwealth had intervened in that Court, and sought special leave to appeal to the High Court. Between special leave being granted and the hearing of the appeal the underlying dispute resolved and the commercial parties withdrew. The Attorney arranged for new counsel to appeal as amici in the role of contradictor. The Court held that it could still determine the appeal despite it having become moot in practical terms, noting that the Attorney, by intervening below, had become a party to the litigation.¹¹⁸ This decision, again, appears to have been based significantly on pragmatic considerations, relevantly about the desirability of resolving authoritatively the important constitutional question raised.¹¹⁹

There are still limits, however. For example, in *Bass v Permanent Trustee* the High Court declined to answer preliminary questions stated below (and overturned the answers of the lower court) on the basis that ‘the answers given by the Full Court and the declaration it made were not based on facts, found or agreed, they were purely hypothetical’.¹²⁰ *Re McBain* concerned an application brought in the High Court’s original jurisdiction by the

Catholic Bishops Conference seeking to quash a Federal Court decision to which it had not been a party. A four to three majority of the Court held that this gave rise to no justiciable matter. As Hayne J put it, '[r]educd to its essentials, the application to this Court is by a third party ... for orders that rights, duties and obligations declared to exist as between two other parties ... are not as they were determined to be' by the Federal Court.¹²¹

D. THE CLAIM IS MADE BY A PARTY WITH STANDING TO RAISE IT

A 'justiciable controversy does not arise unless the person who seeks to challenge the validity of the law has a sufficient interest to do so',¹²² that is, the claimant has standing to seek the relief sought. Establishing standing is thus a necessary element of justiciability, which for matters within federal jurisdiction can be seen as ultimately founded on the 'matter' requirement.

Members of the High Court have said on a number of occasions that questions of standing are 'subsumed' within the requirement for a 'matter'.¹²³ The language of 'subsumed' is perhaps something of a distraction. First, it might be taken to suggest that it adds nothing distinct to the general notion of 'matter', which it does. Secondly, it might be taken to imply that the general law test of standing is constitutionalized, which it is not.

At general law in Australia, in the absence of some particular statutory test applying, an applicant seeking public law relief must establish 'a special interest in the subject matter of the action' (or 'a sufficient interest'¹²⁴), where the 'rule is flexible and the nature and subject matter of the litigation will dictate what amounts to a special interest'.¹²⁵ The Australian approach to standing is more liberal than that taken in the United States.¹²⁶ No doubt the question of whether a claimant has a sufficient distinct interest to have standing does overlap with whether or not there is some real controversy relating to an immediate right or duty.¹²⁷ Nevertheless, the standing issue is a distinct requirement which must be satisfied to establish that there is a properly constituted suit before the court.

Further, it is possible for a suit to be properly constituted even if the general law test of standing is not satisfied if there is some applicable statute which founds a legal claim for some judicial relief. So much was

confirmed by the High Court's decision in *Truth About Motorways*.¹²⁸ The Court there held that the federal Parliament could confer standing on any person to institute proceedings seeking injunctive relief in respect of a breach of misleading conduct laws, even though the claimant may not have been injured by a breach of the laws and otherwise had no special or distinctive interest in the litigation. The availability of relief for breach of a statutory norm meant 'there is an immediate liability to be established against the respondent',¹²⁹ even if it was a liability which anybody could seek to litigate.

E. THE CLAIM IS CAPABLE OF RESOLUTION BY JUDICIAL RELIEF

A 'legally enforceable remedy is as essential to the existence of a "matter" as the right, duty or liability which gives rise to the remedy'.¹³⁰ If 'relief is not available that will relate to the wrong which the applicant for relief alleges, there is no immediate right, duty or liability which will be established by the court's determination'.¹³¹ The requirement can be linked to the judicial statements about the necessity for an argument to be founded on legal principles rather than other types of norms. It ties to the nature of judicial power, which serves to quell legal controversies by granting (or, if not persuaded, declining to grant) legal remedies. It interlinks with the standing requirement, because '[t]he "interest" of a plaintiff in the subject matter of an action must be such as to warrant the grant of the relief claimed'.¹³²

Australian constitutional law has shown itself to be inflexible on one issue of significance relating to relief, that is, in declining to adopt any notion of prospective overruling. That notion has been said to be inconsistent with the nature of judicial power, which is said to involve the 'adjudication of existing rights and obligations as distinct from the creation of rights and obligations'.¹³³ This view stands in contrast to the more flexible approach taken in some comparable nations, informed by considerations of practicality, inconvenience, and necessity.¹³⁴ Further, the inflexibility on this point may be contrasted with the way in which the High Court has treated the line between what is and is not taken to be an exercise of judicial power—and thus what powers may or may not be exercised by

federal courts and federal administrators—as a rather malleable one.¹³⁵ That being said, variants of prospective overruling do take the courts closer towards exercising legislative power. Further, the inconvenience of the rejection of prospective overruling has been somewhat ameliorated by the High Court’s relative readiness to uphold remedial legislation enacted to deal with at least some effects of constitutional rulings.¹³⁶

F. CONCLUSION

For a constitutional claim to be justiciable in Australia, in general, it must raise an argument based on legal principle and not allocated for resolution to some non-judicial body; it must set a non-abstract issue for determination by reference to particular facts in a dispute between parties; the case must involve a party with standing to make the claim; and the claim must be capable of determination by the grant of judicial relief. These various aspects of justiciability overlap to some degree. All can be seen to be founded to a significant extent on the interlinked requirements that federal cases involve a ‘matter’ capable of resolution by exercise of the judicial power of the Commonwealth. The Australian approach is a relatively flexible one in relation to these aspects of justiciability. That is not to say that the requirements are restrictions without content or substance.

There is no freestanding ‘political questions’ doctrine in Australia. Nonetheless, the *Baker* considerations (especially the first three) manifest themselves in a number of ways in Australian constitutional law. The High Court has accepted that matters of parliamentary privilege, and some issues of parliamentary procedure, are committed by the Constitution to determination outside the judicial process—although that is not to say that even such issues are beyond all judicial review. The availability of judicially manageable standards (the second and third *Baker* factors) is a general requirement of judicial power. An echo of that requirement, and a recognition that accountability may lie primarily in the political arena, can be found in resolution of some intergovernmental disputes. With respect to executive powers, whilst it is likely that few if any powers are immune from judicial review, in some instances the nature of the topic and of the decision-maker may well mean that few legal standards are taken to apply, such that there is little potential for effective judicial review. More

generally, the imperatives of avoiding decisions which are highly subjective, value-laden and controversial is a regular consideration, expressly or impliedly, in the courts' articulation of constitutional criteria. These points illustrate that Australian constitutional law addresses this capability aspect of justiciability in a range of ways, and with some subtlety.

* Barrister, Sydney. My thanks are due to Surya Palaniappan for her research assistance, and to the editors for their comments. Opinions and errors are my own.

¹ See, eg, *Abebe v Commonwealth* (1999) 197 CLR 510, 527–28 [31]–[32] (Gleeson CJ and McHugh J).

² *Australian Communist Party v Commonwealth* (1951) 83 CLR 1, 262–63 (Fullagar J, citation omitted).

³ *ibid* 193 (Dixon J); *Plaintiff S157/2002 v Commonwealth* (2003) 211 CLR 476, 492 [31], 513 [103]–[104].

⁴ *Victoria v Commonwealth* (1975) 134 CLR 81, 118 (Barwick CJ); *Victoria v Commonwealth* (1975) 134 CLR 338, 364 (Barwick CJ); *Combet v Commonwealth* (2005) 224 CLR 494, 616 [297] (Kirby J). See discussion by Geoffrey Lindell, 'The Justiciability of Political Questions: Recent Developments', in H P Lee and George Winterton (eds), *Australian Constitutional Perspectives* (Law Book 1992) 218–29.

⁵ *R v Richards; Ex parte Fitzpatrick and Browne* (1954) 92 CLR 157, 165; *Egan v Willis* (1998) 195 CLR 424, 446 [26]; *Attorney-General (WA) v Marquet* (2003) 217 CLR 545, 570 [66].

⁶ (n 3) 513–14 [104]; see also *Deputy Commissioner of Taxation v Richard Walter Pty Ltd* (1995) 183 CLR 168, 204–05; *Bodruddaza v Minister for Immigration and Multicultural Affairs* (2007) 228 CLR 651, 665–66 [37], 668–69 [46].

⁷ (2010) 239 CLR 531, 579–81 [95]–[100], 585 [113].

⁸ For example, *Oceanic Sun Line Special Shipping Company Inc v Fay* (1988) 165 CLR 197, 232–39.

⁹ *ibid* 239.

¹⁰ *Voth v Manildra Flour Mills Pty Ltd* (1990) 171 CLR 538.

¹¹ For example, *Re Refugee Review Tribunal; Ex parte Aala* (2000) 204 CLR 82.

¹² As to various meanings of 'political', see Jeremy Kirk, 'Rights, Review and Reasons for Restraint' (2001) 23 Sydney Law Review 19, 28–30.

¹³ *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31, 82 (Dixon J); *NSW v Commonwealth* (2006) 229 CLR 1, 121 [196] ('Work Choices Case').

¹⁴ *Melbourne Corporation* (n 13) 82.

¹⁵ *The Queen v Kirby; Ex parte Boilermakers' Society of Australia* (1956) 94 CLR 254, 267–68, 275–77; *Wilson v Minister for Immigration* (1996) 189 CLR 1, 11–13.

¹⁶ (1983) 158 CLR 1, 58.

¹⁷ *Boilermakers Case* (n 15).

¹⁸ *Huddart, Parker & Co Pty Ltd v Moorehead* (1909) 8 CLR 330, 357.

¹⁹ For example, James Stellios, *Zines's The High Court and the Constitution* (6th edn, Federation Press 2015) 221.

²⁰ The term also relevantly appears in sections 73, 74, 77, and 78 of the Constitution.

²¹ (1921) 29 CLR 257, 265; see also *Crouch v Commissioner for Railways (Qld)* (1985) 159 CLR 22, 37; *Abebe v Commonwealth* (n 1) 524 [25]; *CGU Insurance v Blakely* (2016) 327 ALR 564, 572 [27], 585–87 [85]–[91].

²² *Re Ditfort* (1988) 19 FCR 347, 368 (Gummow J, citations omitted).

²³ *Re McBain; Ex parte Catholic Bishops Conference* (2002) 209 CLR 372, 405–06 [62]; see also *Abebe* (n 1) 570 [165]; *CGU Insurance Ltd* (n 21) 585 [84].

²⁴ *Re McBain* (n 23) 404–05 [60]–[61].

²⁵ 369 US 186 (1962), 210.

²⁶ *ibid* 210.

²⁷ *ibid* 217 (numbering inserted).

²⁸ See Rachel Barkow, 'More Supreme Than Court? The Fall of the Political Question Doctrine and the Rise of Judicial Supremacy' (2002) 102 Columbia Law Review 237, 267–68.

²⁹ 413 US 1 (1973).

³⁰ 506 US 224 (1993), 226–27.

³¹ 132 SCt 1421 (2012), 1425.

³² *ibid* 1427.

³³ *Gilligan* (n 29) 7–81; *Nixon* (n 30) 228, 235–36.

³⁴ *Zivotofsky* (n 31) 1433–34, also 1437 (Breyer J); note also discussion by Powell J in *Goldwater v Carter* 444 US 996 (1979), 998–99.

³⁵ Note discussion in Lindell (n 4) 193–194.

³⁶ (n 31) 1427.

³⁷ *Habib v Commonwealth* (2010) 183 FCR 62, 73 [28], also 74–75 [31] (Perram J).

³⁸ (1989) 92 ALR 81, 82.

³⁹ *ibid* 85.

⁴⁰ (1992) 173 CLR 167, 189 (references omitted).

⁴¹ *Thomas v Mowbray* (2007) 233 CLR 307, 350 [88].

⁴² Note *Thomas v Mowbray*, *ibid*, 351 [91], quoting Prof Zines. The 5:2 split on the point in *Thomas v Mowbray* illustrates the uncertainty of the boundary.

⁴³ *Thomas v Mowbray*, *ibid*, 354 [106] (Gummow and Crennan JJ); see also *Thorpe v Commonwealth (No 3)* (1997) 144 ALR 677, 692 (Kirby J).

⁴⁴ Note *Brodie v Singleton Shire Council* (2001) 206 CLR 512, 555 [92] (McHugh and Gummow JJ).

⁴⁵ *South Australia v Victoria* (1911) 12 CLR 667.

⁴⁶ *ibid* 674–75, see also 707–09 (O'Connor J), 715 (Isaacs J), 742 (Higgins J).

⁴⁷ *ibid* 707.

⁴⁸ (n 41) 354 [105].

⁴⁹ *The King v Governor of South Australia* (1907) 4 CLR 1497, 1511.

⁵⁰ *ibid* 1512.

⁵¹ *ibid* 1511.

⁵² See *ibid* 1513; note also *Re Wood* (1988) 167 CLR 145, 159.

⁵³ Which it did soon after this case: note *Re Wood*, *ibid* 159.

- ⁵⁴ (n 5) 162.
- ⁵⁵ *ibid* 453 [48], 467 [81], 513 [189].
- ⁵⁶ *ibid* 446 [27].
- ⁵⁷ *ibid* 455 [54], 479 [109], 505 [159], 514 [193]–[194].
- ⁵⁸ *Egan v Chadwick* (1999) 46 NSWLR 563, 574, 576.
- ⁵⁹ See Lindell (n 4) 233–39.
- ⁶⁰ For a fuller account of cases on parliamentary processes, see Cheryl Saunders, ‘The Concept of Non-Justiciability in Australian Constitutional Law’, in D J Galligan (ed), *Essays in Legal Theory* (Melbourne UP 1984) 40–46.
- ⁶¹ *Osborne v Commonwealth* (1911) 12 CLR 321, 336, 351–52, 355–56; *Northern Suburbs Cemetery Reserve Trust v Commonwealth* (1993) 176 CLR 555, 578; *Western Australia v Commonwealth* (1995) 183 CLR 373, 482; *Permanent Trustee Australia Ltd v Commissioner of State Revenue (Vic)* (2004) 220 CLR 388, 407–10 [38]–[44].
- ⁶² (1974) 131 CLR 432.
- ⁶³ (n 4) 118–19 (Barwick CJ), 164 (Gibbs J), 180 (Stephen J), 181–82 (Mason J).
- ⁶⁴ *ibid* 164.
- ⁶⁵ *ibid* 135.
- ⁶⁶ *ibid* 138.
- ⁶⁷ *ibid* 196.
- ⁶⁸ *Western Australia v Commonwealth* (1975) 134 CLR 201.
- ⁶⁹ *ibid* 275–76 (Jacobs J), 293–94 (Murphy J).
- ⁷⁰ For example, *Cadia Holdings Pty Ltd v NSW* (2010) 242 CLR 195, 226 [86].
- ⁷¹ For example, *Jarratt v Commissioner of Police (NSW)* (2005) 224 CLR 44, 65 [69].
- ⁷² For example, discussion in *R v Toohey; Ex parte Northern Land Council* (1981) 151 CLR 170, 219–20 (Mason J).
- ⁷³ *Horwitz v Connor* (1908) 6 CLR 38, 40; *Von Einem v Griffin* (1998) 72 SASR 110.
- ⁷⁴ *Minister for Arts Heritage and Environment v Peko-Wallsend Ltd* (1987) 15 FCR 274, 278–79, 280, 307; *Petrotimor Companhia de Petroleos SARL v Commonwealth* (2003) 126 FCR 354, 373–74 [64]–[68], 379–80 [83]–[86], 429–49 [236]–[307]; note also *Horta v Commonwealth* (1994) 181 CLR 183, 195–96.
- ⁷⁵ (n 3) 513–14 [103]–[104].
- ⁷⁶ *Buck v Bavone* (1976) 135 CLR 110, 118–19 (Gibbs J).
- ⁷⁷ For example, Chris Finn, ‘The Justiciability of Administrative Decisions: A Redundant Concept?’ (2002) 30 Federal Law Review 239.
- ⁷⁸ (2009) 76 NSWLR 99, 112–13 [42]–[47].
- ⁷⁹ (2014) 253 CLR 393, 432 [63].
- ⁸⁰ *cf R v Toohey* (n 73) 218 (Mason J).
- ⁸¹ (1962) 108 CLR 130.
- ⁸² *ibid* 144–45 (Dixon CJ, Kitto J agreeing at 149), 151 (Menzies J).
- ⁸³ *ibid* 149–50 (Taylor J), 157 (Owen J).
- ⁸⁴ *ibid* 154 (Windeyer J), see also 141 (Dixon CJ), 148–49 (McTiernan J).
- ⁸⁵ (n 22) 370.
- ⁸⁶ See *Ermogenous v Greek Orthodox Community of SA Inc* (2002) 209 CLR 95, 105 [24]–[25].

⁸⁷ For example, *John Cooke & Co Pty Ltd v Commonwealth* (1923) 31 CLR 394, 416–17; *PJ Magennis Pty Ltd v Commonwealth* (1949) 80 CLR 382, 409.

⁸⁸ (1985) 159 CLR 70.

⁸⁹ *ibid* 138 (citation omitted).

⁹⁰ (n 61) 460.

⁹¹ *Amalgamated Society of Engineers v Adelaide Steamship Co Ltd* (1920) 28 CLR 129, 142.

⁹² *ibid* 151.

⁹³ (n 16) 125.

⁹⁴ 4 Wheat 316 (1819), 421.

⁹⁵ (1952) 86 CLR 169, 179; see further, eg, *Attorney-General (Vic) v Commonwealth* (1945) 71 CLR 237, 255–56.

⁹⁶ (1990) 169 CLR 436, 473.

⁹⁷ (2008) 234 CLR 418, 473–77 [85]–[103].

⁹⁸ (1997) 189 CLR 520, 561–62, 567–68.

⁹⁹ (2015) 257 CLR 178, 195 [3].

¹⁰⁰ *Ibid* 219 [89].

¹⁰¹ *Ibid* 195 [3].

¹⁰² Jeremy Kirk, ‘Constitutional Guarantees, Characterisation and the Concept of Proportionality’ (1997) 21 Melbourne University Law Review 1, 9–11, 19–21, 63–64.

¹⁰³ (n 21) 265.

¹⁰⁴ *ibid* 266.

¹⁰⁵ *ibid* 267.

¹⁰⁶ For example, *North Ganalanja Aboriginal Corp v Queensland* (1996) 185 CLR 595, 612, 642; *Bass v Permanent Trustee Co Ltd* (1999) 198 CLR 334, 355–59 [45]–[56]; *Re McBain*, n 24, 389 [5], 404–7 [59]–[68], 458 [242].

¹⁰⁷ *Bass* (n 106) 355–57 [47]–[49].

¹⁰⁸ *Adams v The Queen* (2008) 234 CLR 143, 150 [17] (Heydon J).

¹⁰⁹ *Mellifont v Attorney-General* (1991) 173 CLR 289, 318–19.

¹¹⁰ Will Bateman, ‘Federal Jurisdiction in State Courts: An elaboration and critique’ (2012) 23 Public Law Review 246, 250–51.

¹¹¹ Christos Mantziaris and Leighton McDonald, ‘Federal Judicial Review Jurisdiction after *Griffith University v Tang*’ (2006) 17 Public Law Review 22, 33–35.

¹¹² *Mellifont* (n 109) 303–04.

¹¹³ (n 13) 157–59 [338]–[344].

¹¹⁴ (n 109) 305.

¹¹⁵ (n 109) 305.

¹¹⁶ *O’Toole v Charles David Pty Ltd* (1991) 171 CLR 232, 284.

¹¹⁷ (2008) 233 CLR 542.

¹¹⁸ *Ibid* 567–68 [65].

¹¹⁹ *Ibid* 556 [24], 580 [104], 591–92 [149].

¹²⁰ (n 106) 357 [49].

¹²¹ (n 23) 460 [246].

¹²² *Croome v Tasmania* (1997) 191 CLR 119, 126.

¹²³ For example, *ibid*, 132–33; *Bateman's Bay Local Aboriginal Land Council v Aboriginal Community Benefit Fund Pty Ltd* (1998) 194 CLR 247, 262 [37]; *Pape v Commissioner of Taxation* (2009) 238 CLR 1, 35 [50]–[51], 68 [152], 99 [273].

¹²⁴ *Kuczborski v Queensland* (2014) 254 CLR 51, 106 [175].

¹²⁵ *SDAEA v Minister for Industrial Affairs* (1995) 183 CLR 552, 558.

¹²⁶ *North Australian Aboriginal Justice Agency Ltd v Northern Territory* (2015) 256 CLR 569, [150]; also *Australian Conservation Foundation v Commonwealth* (1980) 146 CLR 493, 550–51; *Truth About Motorways Pty Ltd v Macquarie Infrastructure Investment Management Ltd* (2000) 200 CLR 591, 603 [21], 610 [42], 632–7 [108]–[119].

¹²⁷ For example, *Kuczborski* (n 124) 87 [98], 109 [184]–[186].

¹²⁸ (n 126).

¹²⁹ *ibid* 637 [123].

¹³⁰ *Abebe v Commonwealth* (n 1) 527 [31] (Gleeson CJ and McHugh J).

¹³¹ *Re McBain* (n 23) 459 [244] (Hayne J).

¹³² *Australian Conservation Foundation* (n 126), 511 (Aickin J).

¹³³ *Ha v New South Wales* (1997) 189 CLR 465, 503–04.

¹³⁴ For example, in Canada: *Re Manitoba Language Rights* [1985] 1 SCR 721, 747–69.

¹³⁵ For example, *Alinta* (n 117) in relation to administrative bodies exercising determinative powers; *Thomas v Mowbray* (n 41) in relation to courts exercising powers creating new obligations.

¹³⁶ For example, *Residual Assco Group Ltd v Spalvins* (2000) 202 CLR 629; *Haskins v Commonwealth* (2011) 244 CLR 22; cf *Antill Ranger & Co Pty Ltd v Commissioner for Motor Transport* (1955) 93 CLR 83.

CHAPTER 23

TECHNIQUES OF ADJUDICATION

PETER HANKS AND OLAF CIOLEK

A. JUDICIAL STYLES OF ANALYSIS AND ADJUDICATION

THE most fertile source of constitutional law in Australia is found in the High Court's judgments. From its establishment in 1903, the assumption has been that this Court is the interpreter of the Commonwealth Constitution and the arbiter of the constitutional validity of State and Commonwealth legislation and executive action.¹

The High Court's constitutional role was indicated by colonial history (where local courts and the Privy Council ruled on the validity of colonial legislation²) and by the United States model, where the Supreme Court had first asserted that it could determine the validity of legislative action in *Marbury v Madison*.³ The drafters of the Constitution were well aware that the judges would play a central and creative role.⁴

Of course, the High Court's constitutional role has a substantial political dimension: if the Constitution defines the distribution of political power within Australia, by establishing spheres of activity for the central and regional governments and asserting a balance between public and private interests, then the process of interpreting that distribution and applying it in particular cases must have political significance.

The point, that the High Court's role is political, was conceded by Dixon J in the *State Banking Case*,⁵ but his Honour resisted the claim that the Court decided constitutional issues according to political considerations. Dixon J referred to a statement that 'political rather than legal

considerations' provided the ground for restraining the Commonwealth from destroying or detracting from the States' independence, and said:

The Constitution is a political instrument. It deals with government and governmental powers. The statement is, therefore, easy to make though it has a specious plausibility. But it is really meaningless. It is not a question whether the considerations are political, for nearly every consideration arising from the Constitution can be so described, but whether they are compelling.⁶

His Honour's reference to 'compelling' considerations was not very illuminating: the recognition of a particular consideration as 'compelling' is the critical question in constitutional adjudication.⁷

Sir Owen Dixon's claim was further developed on the occasion of his Honour's assuming the office of Chief Justice of the High Court in 1952. Sir Owen referred to 'close adherence to legal reasoning [as] the only way to maintain the confidence of all parties in Federal conflicts', and insisted that there was 'no other safe guide to judicial decisions in great conflicts than a strict and complete legalism'.⁸

Professor Leslie Zines expressed a more complex view of the techniques used by the High Court:

it seems that many judges who emphasised the importance of legalism did not regard that method of approach as denying resort to broad social and political values they perceived in the Constitution. On many occasions they considered the practical consequences of a law in determining validity and, at any rate sometimes, concerned themselves with what they regarded as the purpose of the particular constitutional provision.⁹

The purpose-oriented approach is illustrated by the landmark decision in *Cole v Whitfield*,¹⁰ where the seven members of the Court agreed that the purpose of the guarantee of the 'absolute freedom' of interstate trade in section 92 of the Constitution was 'to create a free trade area throughout the Commonwealth'.¹¹

Again, in *Street v Queensland Bar Association*,¹² all members of the High Court relied on the purpose of section 117 of the Constitution (described by Mason CJ as the enhancement of 'national unity and a national sense of identity'¹³) in support of the Court's assertive reading and application of that section.

Similarly, in two cases decided on the same day, *Nationwide News Pty Ltd v Wills*,¹⁴ and *Australian Capital Television Pty Ltd v The Commonwealth*,¹⁵ a majority of the High Court relied on the Constitution's

establishment of representative government to construct an implied guarantee of freedom of communication on political matters.¹⁶

The tensions implicit in such an approach are illustrated by the judgments of Gibbs CJ and Mason J in *Hematite Petroleum Pty Ltd v State of Victoria*,¹⁷ where the Court divided on the purpose of the exclusive grant to the Commonwealth of authority over ‘excise duties’ in section 90 of the Constitution: Gibbs CJ described the section’s purpose as ‘to give the Commonwealth a real control of its tariff policy’;¹⁸ but Mason J described its purpose in much wider terms—‘to give the [Commonwealth] Parliament a real control over the taxation of commodities’.¹⁹ Those different views of the section’s purpose were then developed by each Justice to support opposing views on the validity of the State legislation under consideration.

It is clear that the function of assigning a meaning to the text of the Commonwealth Constitution and using that meaning to resolve disputes about the legitimacy of governmental action cannot be value-free. That point was argued strongly by Stephen Gageler, now a High Court Justice but then a junior member of the Bar: ‘Legalism’, he wrote, ‘is incapable of fulfilling its own agenda’, because ‘a neutrally based *a priori* approach to constitutional line drawing is in its own terms impossible’, and because the High Court’s ‘choice between any number of reasonable alternative positions assumes an air of arbitrariness’.²⁰

The words used in section 92,²¹ for example, have no inevitable, single, or natural meaning: they will take their meaning from a wide variety of contexts—history, economics, political theory, and the dictionary. The choice between competing meanings will be made by the interpreters—by the Justices of the High Court—and their sensitivity to history or to contemporary economic ideas will profoundly influence the meaning which they attribute to the words of the section.

The meaning attributed to section 92 has shifted several times since 1901—from the anti-protectionist reading given in *Fox v Robbins*,²² through the laissez-faire reading endorsed in *Bank of New South Wales v The Commonwealth*,²³ to the return to an anti-protectionist reading in *Cole v Whitfield*.²⁴

Judicial resort to political and economic considerations to support particular readings has been overt. The following are a few examples from 1975 to 2012.

- (a) In 1975, Barwick CJ referred to '[t]he protection of the individual' as central to section 92.²⁵
- (b) In the same year (and in the same case), Mason J referred to the 'predominant public character' of the section and declared that its meaning was not 'to be ascertained by reference to the doctrines of political economy which prevailed in 1900'.²⁶
- (c) In 1980, Gibbs and Wilson JJ claimed that the section required the Court 'to preserve a balance between competing interests, a balance which favours freedom for the individual citizen in the absence of compelling considerations to the contrary'.²⁷
- (d) In 1988, all members of the Court described the section's purpose as 'to create a free trade area throughout the Commonwealth'.²⁸
- (e) In 2008, Gleeson CJ, Gummow, Kirby, Hayne, Crennan and Kiefel JJ described the objective of section 92 (and other sections in Chapter IV of the Constitution) as '[t]he creation and fostering of national markets'.²⁹
- (f) In 2012, French CJ, Gummow, Hayne, Crennan and Bell JJ said that the relevant inquiry was 'not concerned to vindicate a right in individual traders to carry on their business as they wish' but was 'whether the individual trader, as a participant in interstate trade, is subject to a differential burden by reason of the operation of the law or measure in the common circumstances of the trade'.³⁰

One of the central tasks in constitutional adjudication is to interpret the heads of Commonwealth legislative power. In the *Engineers' Case*,³¹ the High Court shifted away from interpreting those heads of power against an assumption that certain subjects were 'reserved' to the States, and towards (speaking generally) interpreting each head of power broadly. The High Court has since acknowledged that this major change of approach was not the correction of error, but rather a consequence of developments outside the law courts (not least a sense of national identity that emerged during and after the First World War).³²

To take another example, sections 7 and 122 of the Commonwealth Constitution appear to express contradictory propositions. The former implies that the Senate is the political institution that represents the interests of the States, while the latter permits Commonwealth Territories to be represented in the Senate. How can that textual conflict be resolved without resort to some basic values or presuppositions about the character of the institutions of government created by the Constitution?

In the *First Territorial Senators Case*,³³ the High Court resorted to those values to determine the validity of Commonwealth legislation allowing representation of the Northern Territory and the Australian Capital Territory in the Senate. The four majority Justices saw democratic values as dominant (leading to their decision that the legislation was valid), while the minority

Justices preferred federal, States' rights, values which supported their view that the legislation should be held invalid.³⁴

The High Court's approach to constitutional adjudication, and to the 'interpretation' of the Constitution, has been developed within the constraints implicit in litigation: the Court has a defined, and constrained, jurisdiction; cases are brought to the Court for judgment through procedural mechanisms—which means that the pathways to judgment are similarly constrained; and the processes deployed by the Court to resolve cases need to be negotiated by the parties and their counsel.

In the balance of our chapter, we discuss:

- (a) the High Court's original jurisdiction in constitutional matters, the means by which that jurisdiction can be invoked, and the steps by which the High Court can delegate (or 'remit') all or part of a constitutional matter to a lower court;
- (b) the procedures and techniques by which the High Court may determine the factual context within which constitutional doctrine is applied to resolve disputes, including techniques for the ascertainment of 'constitutional facts';
- (c) the rules developed by the Court to control the commencement of constitutional litigation ('standing') and the participation of others in that litigation (as 'interveners' and '*amici curiae*'—friends of the court);
- (d) the High Court's appellate jurisdiction in constitutional matters—its foundations in section 73 of the Constitution and the 'special leave' filter applied by the Court;
- (e) forms and styles of advocacy before the High Court; and
- (f) the composition of the High Court's bench in constitutional matters.

B. THE HIGH COURT'S ORIGINAL JURISDICTION IN CONSTITUTIONAL LITIGATION

The primary source of the High Court's original jurisdiction is section 75 of the Constitution, which confers that jurisdiction in five categories of 'matters'. A 'matter' for this purpose is the subject matter for determination in a legal proceeding,³⁵ and most often assumes a controversy between two or more parties about 'some immediate right, duty or liability to be established by the determination of the Court'.³⁶

The five categories of 'matters' listed in section 75 of the Constitution are matters:

- (i) arising under any treaty;
- (ii) affecting consuls or other representatives of other countries;
- (iii) in which the Commonwealth, or a person suing or being sued on behalf of the Commonwealth, is a party;
- (iv) between States, or between residents of different States, or between a State and a resident of another State;
- (v) in which a writ of Mandamus or prohibition or an injunction is sought against an officer of the Commonwealth ...

Where there is a matter (that is, some subject matter for determination in a proceeding) answering the description of one of those five categories, the High Court can entertain a proceeding founded on a legally recognized cause of action—such as a claim for damages against the Commonwealth for trespass to land or to the person: a matter within section 75(iii); or a claim for damages for negligence by a resident of one State against a resident of another State: a matter within section 75(iv); or an application for mandamus or prohibition against an officer of the Commonwealth: a matter within section 75(v). (Resort to section 75(i) has been rare—no doubt reflecting the proposition that Australia’s entry into a treaty creates no rights under domestic law, until the Parliament enacts legislation giving effect to the treaty.³⁷ Nor has there been any resort to section 75(ii).)

Aspects of the High Court’s original jurisdiction in some of those matters have been rendered exclusive by section 38 of the *Judiciary Act 1903* (Cth), a provision authorized by section 77(ii) of the Constitution. The High Court’s original jurisdiction is exclusive of the jurisdiction of the several courts of the States in the following matters:

- (a) matters arising directly under any treaty;³⁸
- (b) suits between States, or between persons suing or being sued on behalf of different States, or between a State and a person suing or being sued on behalf of another State;³⁹
- (c) suits by the Commonwealth, or any person suing on behalf of the Commonwealth, against a State, or any person being sued on behalf of a State;⁴⁰
- (d) suits by a State, or any person suing on behalf of a State, against the Commonwealth or any person being sued on behalf of the Commonwealth;⁴¹
- (e) matters in which a writ of mandamus or prohibition is sought against an officer of the Commonwealth or a federal court.⁴²

Other aspects of the High Court’s original jurisdiction are vested, as federal jurisdiction, in State courts by section 39 of the *Judiciary Act 1903* (Cth).⁴³

Further aspects of the High Court’s original jurisdiction can be conferred by Commonwealth legislation, as authorised by section 76 of the

Constitution. Section 76 empowers the Parliament to make laws conferring original jurisdiction on the High Court in four categories of ‘matters’. Those four categories are matters:

- (i) arising under this Constitution, or involving its interpretation;
- (ii) arising under any laws made by the Parliament;
- (iii) of Admiralty and maritime jurisdiction;
- (iv) relating to the same subject-matter claimed under the laws of different States.

The most significant conferral of original jurisdiction on the High Court pursuant to section 76 is found in section 30(a) of the *Judiciary Act 1903* (Cth), which declares that the High Court shall have original jurisdiction:

in all matters arising under the Constitution or involving its interpretation ...

The two aspects of that jurisdiction have been explained as follows: a matter will arise under the Constitution where ‘the right, title, privilege or immunity is claimed under that instrument’,⁴⁴ or if the right or duty in question owes its existence to the Constitution, or depends on the Constitution for its enforcement;⁴⁵ and a matter will involve the Constitution’s interpretation if the matter ‘present[s] necessarily and directly and not incidentally an issue upon its interpretation’.⁴⁶ As to whether the reference to the issue of interpretation ‘not [being raised] incidentally’ depends on a distinction that cannot be maintained, see *Felton v Mulligan*.⁴⁷

The jurisdictional foundation for the initiation of constitutional litigation in the High Court may, of course, also be found in section 75(iii) (where Commonwealth action is impugned on the basis of an asserted breach of the Constitution) or section 75(v) (where one of the designated remedies is sought against an officer of the Commonwealth).

An additional conferral of original jurisdiction is found in section 30(c) of the *Judiciary Act 1903* (Cth), which declares that the High Court shall have original jurisdiction:

in trials of indictable offences against the laws of the Commonwealth.

Unlike the jurisdiction conferred by section 30(a) of the *Judiciary Act 1903* (Cth), the jurisdiction conferred by section 30(c) is rarely invoked.⁴⁸ As Lindell observes, ‘an indictable offence has not been tried in the High Court for many years and no doubt such a matter, if commenced in the High

Court, would ordinarily be remitted to another court under s 44 of the *Judiciary Act*.⁴⁹ The High Court's power of remittal is discussed further below.

A further source of the High Court's original jurisdiction in constitutional litigation is found in the Court's power, pursuant to section 40(1) of the *Judiciary Act 1903* (Cth), to remove '[a]ny cause or part of a cause arising under the Constitution or involving its interpretation' where that case is pending in another federal court or in a State or Territory court. The Court has a discretion, if 'sufficient cause' is shown, to order removal on the application of a party. However, if the application for removal is made by the Attorney-General of the Commonwealth, a State or a Territory, the removal order 'shall be made as of course'—that is, the Court has no discretion and must remove the cause or part of the cause.⁵⁰

In those cases where the High Court has a discretion (that is, where the application for removal is not made by an Attorney-General), the High Court will only order removal where 'the issues are important and require this Court's urgent decision';⁵¹ and where there is a 'firm foundation of fact in order to avoid the possibility of uncertainty in the application of any decision given by this Court'.⁵² It is, as David Jackson QC remarked in 1997,⁵³ relatively rare for removal to be ordered on the application of a party.

After removal of a cause or part of a cause, the High Court may, at any stage of the proceedings, remit the whole or part of that cause to the court from which it was removed, with such directions as the High Court thinks fit.⁵⁴ Such a remittal is unlikely to be made where the removal has been made on the application of one of the Attorneys-General.⁵⁵ However, the High Court retains the power to order remittal: it may be appropriate to do that if it appears that the issue that gave rise to the removal is not yet ripe for determination by the High Court.⁵⁶

C. THE COMMENCEMENT OF PROCEEDINGS AND PLEADINGS

A party who invokes the High Court's original jurisdiction in a constitutional matter will commonly do so by filing:

- (a) a writ and a statement of claim,⁵⁷ invoking the Court's jurisdiction under section 75(iii) of the Constitution or section 30(a) of the *Judiciary Act 1903* (Cth) by seeking a declaration that some action has violated the Constitution or seeking damages by reason of unconstitutional trespass to the person or property;
- (b) a writ and a statement of claim, invoking the Court's jurisdiction under section 75(v) of the Constitution by seeking an injunction against an officer of the Commonwealth to restrain some action said to violate the Constitution; or
- (c) an application for an order under section 75(v) of the Constitution, being an order that an officer of the Commonwealth (the defendant) show cause why a constitutional writ (mandamus or prohibition) should not issue against the officer of the Commonwealth.⁵⁸

Where a proceeding is commenced by writ and statement of claim, a directions hearing will be held, where the Court will decide whether the matter should be remitted to another court, whether any question of law should be referred to the Full Court, and any other directions for the progress of the matter.⁵⁹

Where a proceeding is commenced by an application for an order to show cause, that application is listed before a Justice of the Court, who may order that the application be dismissed (essentially because no basis is made out for granting the relief sought), that the application be referred for further hearing by the Full Court, or that the defendant show cause why specified relief not be granted on grounds specified in the order.⁶⁰

D. REMITTAL

One of the options available to the Court, in any matter commenced in its original jurisdiction, is to remit the matter or any part of the matter to a federal court or a State or Territory court that has jurisdiction with respect to the subject matter and the parties. Section 44 of the *Judiciary Act 1903* (Cth) provides that an order for remittal may be made on the application of a party or on the High Court's own motion.⁶¹ The High Court makes frequent use of section 44, remitting many constitutional matters commenced under section 75(iii) of the Constitution and section 30(a) of the *Judiciary Act 1903* (Cth) to State and Territory Supreme Courts or the Federal Court (which have a corresponding jurisdiction under section 39(2) and section 39B(1A)(b) of the *Judiciary Act 1903* (Cth)), and most matters commenced under section 75(v) of the Constitution to the Federal Court (which has a corresponding jurisdiction under section 39B(1) of the *Judiciary Act 1903* (Cth)).

There are some proceedings commenced in its original jurisdiction that the High Court will not remit—essentially because those proceedings raise an important point of constitutional principle that does not depend on contested facts.

However, where there are contested facts, the High Court will inevitably remit at least that part of the matter that involves fact-finding to a State or Territory Supreme Court or to the Federal Court. To take only one example, that was the course followed in the early stages of the litigation that resulted in the High Court's landmark judgment in *Mabo v State of Queensland (No 2)*.⁶² Gibbs CJ remitted to the Supreme Court of Queensland the hearing and determination of all issues of fact raised by the pleadings;⁶³ and the findings of fact made by a Supreme Court judge, Moynihan J, then formed the basis for the questions reserved for consideration of the Full Court of the High Court under section 18 of the *Judiciary Act 1903* (Cth).⁶⁴

Plainly, the removal and remittal powers of the High Court, conferred by sections 40, 42, and 44 of the *Judiciary Act 1903* (Cth), give the Court a substantial degree of control over the volume and quality of constitutional litigation in its original jurisdiction. Although the Court must adopt a passive role in the sense of waiting for parties to commence litigation that raises constitutional issues, the Court can limit the extent to which the parties actually use the High Court's original jurisdiction through its power of remittal, and can permit the removal of proceedings commenced elsewhere into the High Court's original jurisdiction.

E. CONSTITUTIONAL FACTS AND THE AVOIDANCE OF FACT-FINDING

Constitutional facts are unlike adjudicative facts. The latter arise between the parties and tend to be specific to the litigation.⁶⁵ They are the facts which are in issue or relevant to a fact in issue.⁶⁶ Constitutional facts are, broadly speaking, those which are relevant to the constitutional validity of an exercise of public power, or to the interpretation of a constitutional instrument.⁶⁷ Changes in the practice and workload of the High Court mean that, as a practical matter, the Court no longer conducts fact-finding hearings in the cases that come before it; instances in which a party will be permitted formally to adduce evidence will be rare.⁶⁸ However, various

practices and procedures permit the High Court to take cognizance of both adjudicative and constitutional facts in constitutional matters, without resort to the remittal procedure.

In appropriate cases and where the parties are able to agree to the facts that animate the legal controversy between them, and to the legal questions which arise, the ‘case stated’ and ‘special case’ procedures are available. The Court is thereby able to avoid, at least to an extent, the task of fact-finding.

Under the case stated procedure, a Justice may proceed to state a case consisting of questions of law and facts for the consideration of a Full Court.⁶⁹ Although the parties will generally join in proposing a draft of the case stated (and the stated facts and questions are based on the parties’ agreement), the responsibility for the content of the case stated lies with the Justice who states the case: the Justice may add to or amend the facts agreed between the parties and may re-formulate the questions. Under the special case procedure, the parties have control over the content of the special case.⁷⁰ The key difference between the two procedures lies in the use which the Court may make of the stated facts. In determining a special case, the Court may draw from the stated facts and documents identified in the special case any inference, whether of fact or law, which might have been drawn from those facts and documents if proved at trial.⁷¹ Such inferences are not permissible in relation to a stated case,⁷² for which a Justice of the Court is ultimately responsible.

Whereas historically, constitutional cases were principally brought before the Court by way of demurrer, removal, or case stated,⁷³ nowadays the special case is overwhelmingly the preferred procedural vehicle in constitutional litigation in the Court’s original jurisdiction.

Particular care must be taken in agreeing the facts for a case stated or special case in those constitutional cases where it may not be apparent from the Court’s existing jurisprudence what are the constitutional facts that are sufficient to ground, or even relevant to, a party’s constitutional argument on the agreed questions of law.⁷⁴

The demurrer is another procedural mechanism by which the Court may take cognizance of facts in constitutional cases.⁷⁵ The device is not restricted to such cases; however, it is in constitutional cases that it has most often been used.⁷⁶ Unlike the case stated or special case procedures, the

demurrer is a form of pleading, by which a party may respond to the pleading of an opposing party. For instance, a statement of claim will allege facts that are said to entitle the plaintiff to the relief sought, which, in a constitutional matter, will commonly be a declaration of the invalidity of legislation. The defendant may then choose, by way of defence, to demur to the whole, or part, of the statement of claim. The effect of the defendant's demurrer is 'to deny the legal sufficiency of the facts alleged in the pleading, that is, the sufficiency to entitle the plaintiff to a legal remedy'.⁷⁷ In deciding the controversy before it, the Court will take as admitted those alleged facts to which the opposing party has demurred. The Court is, however, limited in the use which it may make of the admitted facts: it is not permitted to take as admitted a fact that is an inference from the alleged facts.⁷⁸ The demurrer 'assumes that the pleadings exhaust the universe of relevant factual material'.⁷⁹

Gibbs J observed that '[t]he virtue of proceeding by demurrer is that in an appropriate case it enables a quick decision to be given on a question of law when that will dispose of the whole action'.⁸⁰ Nonetheless, the limitation on the use which the Court may make of the facts admitted by a demurring party has led to the demurrer being used with decreasing frequency in constitutional litigation. An additional disadvantage of the demurrer procedure in such litigation is that it will often leave questions of the constitutional validity of a measure to be determined in light of a limited factual matrix, making more difficult an assessment of the practical functioning of the measure.⁸¹

The case stated, special case, and demurrer procedures are certainly apt to permit constitutional, as well as adjudicative, facts to come before the Court.⁸² But those procedures are insufficient in many constitutional cases to permit the High Court to discharge its institutional duty of determining the validity of an exercise of legislative or executive power, which a litigant alleges to be unconstitutional.⁸³ That is so chiefly for two reasons.

First, the agreed or conceded facts, which those procedures put before the Court, necessarily depend on forensic decisions taken by the litigants. Questions regarding the validity of legislative or executive action are obviously important to the parties in the cases which raise them, but they are also of more general, and in many cases fundamental, importance.⁸⁴ As such, the Court is concerned that it not be constrained in its determination

of the constitutionality of a measure by the parties' choices in the conduct of the litigation. As Brennan CJ observed of the demurrer procedure in *Levy*:⁸⁵

constitutional facts are not to be regarded for the purposes of a demurrer as though they are facts in issue in civil litigation between parties. In the latter case, the facts expressly or impliedly alleged in the pleading demurred to must be taken as established for the purposes of the demurrer. But facts which are relevant to the existence of, or restriction on, power to enact an impugned law stand in a different category. The litigation of constitutional facts is not left in the hands of private litigants.

Secondly, the range of potentially relevant constitutional facts will often be broad, or of uncertain breadth. Constitutional facts relevant to the interpretation of a constitutional provision may encompass such things as the historical materials contemporaneous with its drafting and enactment. Other cases may raise, for example, consideration of broadly expressed constitutional principles such as the implied freedom of political communication or the *Melbourne Corporation* doctrine, such that in disposing of a matter the Court may be required to assess whether a measure is 'reasonably appropriate and adapted to serve a legitimate end', the fulfilment of which is compatible with the maintenance of the system of representative and responsible government prescribed by the Constitution',⁸⁶ or whether the measure 'curtails or interferes in a substantial manner with the exercise of [State] constitutional power'.⁸⁷ Constitutional facts will inevitably play some role in those analyses. And often it will not be clear in advance to the litigants precisely what constitutional facts the Court will take to be relevant to the case at hand.

Justices of the Court have recognized that the Court must, nevertheless, ascertain the constitutional facts in constitutional litigation 'as best it can',⁸⁸ and that 'it is difficult and undesirable to impose an *a priori* restraint on the performance of that duty'.⁸⁹ Accordingly, in addition to the various procedural mechanisms discussed previously, the Court may take cognizance of constitutional facts by resort to the doctrine of judicial notice. Moreover, as Heydon J held in *Thomas v Mowbray*, 'all relevant material may be brought to the Court's attention, independently of any of the general law rules as to admissibility in relation to facts in issue'.⁹⁰ And Gageler J has observed that, subject to the requirements of procedural fairness, 'the ultimate criterion governing the use of information from any source is that a

court is able to consider the material sufficiently probative' of the constitutional fact to be found.⁹¹

F. PARTIES

1. Standing

A litigant in a constitutional proceeding in the High Court must, generally speaking, have standing in respect of the subject matter of the litigation. The established requirements as to standing are said by the Court to ensure:⁹²

that the work of the courts remains focused upon the determination of rights, duties, liabilities and obligations as the most concrete and specific expression of the law in its practical operation, rather than the writing of essays of essentially academic interest.

As with the principles concerning the participation of interveners and *amici curiae* in High Court litigation (as to which, see below), the law of standing is built on a 'private law paradigm'.⁹³ Reflecting that paradigm was the English decision of *Boyce v Paddington Borough Council*, in which it was held that, where no private right was interfered with, a litigant could sue in respect of some public right if the litigant had suffered 'special damage peculiar to himself'.⁹⁴ In *Australian Conservation Foundation v The Commonwealth*, Gibbs J expressed dissatisfaction with that formulation and stated that it should 'be regarded as equivalent in meaning to "having a special interest in the subject matter of the action"'.⁹⁵ That articulation of principle has remained a touchstone for determining a litigant's standing, including in constitutional litigation. A litigant will not have a 'special' or 'sufficient' interest adequate to confer standing if she or he has no more interest than any other member of the public in the subject matter of the proceeding.⁹⁶ Nor will a litigant have such an interest:⁹⁷

unless he is likely to gain some advantage, other than the satisfaction of righting a wrong, upholding a principle or winning a contest, if his action succeeds or to suffer some disadvantage, other than a sense of grievance or a debt for costs, if his action fails. A belief, however strongly felt, that the law generally, or a particular law, should be observed, or that conduct of a particular kind should be prevented, does not suffice to give its possessor locus standi.

However, the Court has stated that ‘[t]he rule is flexible and the nature and subject matter of the litigation will dictate what amounts to a special interest’.⁹⁸

Moreover, the rule does not apply invariably. In the case of applications for remedies which may be sought in constitutional litigation other than declaratory or injunctive relief, a ‘special interest’ is not, or may not (at least in theory), be required.⁹⁹ And a State may challenge the validity of the exercise of Commonwealth legislative or executive power whether or not the State can otherwise establish that a State law or a direct State interest is affected.¹⁰⁰ Following the High Court’s decision in *Williams*, it appears that the intervention by a State or the Commonwealth in a proceeding in which the constitutional validity of a measure is put in issue is sufficient to confer standing on a private plaintiff whose standing might otherwise have been deficient, if the intervention is in support of that party.¹⁰¹

The law of standing has been held to have a constitutional dimension. In *Bateman’s Bay Local Aboriginal Land Council v Aboriginal Community Benefit Fund Pty Ltd*,¹⁰² the High Court held that, in federal jurisdiction, questions of standing are ‘subsumed within the constitutional requirement of a “matter”’.¹⁰³

The High Court has recognized that it has a broad discretion whether to try a question as to a party’s standing as a preliminary question. If a party’s claim to have standing is ‘merely colourable, and can easily be exploded’, the Court will likely determine the question of standing as a preliminary matter and, having decided it against the party, will dismiss the action.¹⁰⁴

Professor Simon Evans has argued that the law relating to standing in constitutional cases ‘is complex, draws invidious distinctions, and produces unnecessary uncertainty’ and that reform is necessary.¹⁰⁵ He observes that the law of standing creates lacunae of reviewability, particularly in light of changes in governance since the principles of standing in public law litigation first emerged. There will inevitably be purported exercises of constitutional power by the Commonwealth, the lawfulness of which no one person may have a ‘special interest’ in challenging. That is in tension with the fundamental commitment of Australian constitutionalism to the rule of law.¹⁰⁶

2. Interveners

As a general principle, under the adversary model of litigation, parties are entitled to carry on their litigation free from the interference of persons who are strangers to the litigation.¹⁰⁷ That general principle is qualified by the participation in some cases of interveners and *amici curiae*.

The interest of the Australian bodies politic in constitutional litigation is recognized by the statutory right given by section 78A of the *Judiciary Act 1903* (Cth) to the Attorneys-General of the Commonwealth, States, and the two internal self-governing Territories to intervene on behalf of the relevant polity in proceedings, whether in the High Court or any lower court, ‘that relate to a matter arising under the Constitution or involving its interpretation’. The Commonwealth and State Attorneys-General have been able to do that since 1976,¹⁰⁸ the Northern Territory Attorney-General since 1983,¹⁰⁹ and the Australian Capital Territory Attorney-General since 1988.¹¹⁰ The Attorneys-General may be alerted to the existence of a constitutional issue arising in proceedings before a court by the statutory requirement that they be given notice of any such matter. A court is not to proceed unless and until it is satisfied that such notice has been given and that a reasonable time has elapsed.¹¹¹ As a result, interveners in constitutional matters in the High Court are almost invariably the Attorneys-General. Such interventions are common. Depending on the nature of the proceeding and the political complexion of the government of the relevant polity, State Attorneys-General have on occasion intervened in constitutional cases in the High Court in support of opposing sides.¹¹²

Before the statutory right to intervene was conferred, a ‘very special practice’ existed whereby the Australian polities could apply for leave to intervene in constitutional matters, which the High Court could grant in its inherent jurisdiction to regulate its procedures.¹¹³ The Court required the intervening polity to identify some ‘direct’ interest, such as a particular right, power, or immunity, that stood to be affected by the outcome of proceeding.¹¹⁴ However, the intervening polity did not, by virtue of having intervened, have ‘a general licence to discuss every interesting question in the case but [was] limited to the submission of an argument *pro interesse suo*’.¹¹⁵

It is an unresolved question whether an Attorney-General intervening under section 78A has a right to make submissions on every aspect of the proceeding, or merely upon the constitutional matters enlivening the right to intervene.¹¹⁶

Non-government interests have occasionally been granted leave to intervene in constitutional cases before the High Court, albeit significantly less frequently than in national apex courts in comparable jurisdictions.¹¹⁷ The view that some particular right, power, or immunity must be at stake has been influential. Sir Anthony Mason has observed that, historically, Sir Owen Dixon's approach to intervention, as articulated in the *Australian Railways Union* case, has tended to obscure the law-making function of the High Court and has created the impression that the Court's adjudicative function was all that mattered.¹¹⁸

Although reasons are rarely given for granting or refusing leave to intervene, the decision in *Levy* provides some relatively recent guidance on the principles that the Court will apply in determining such an application.¹¹⁹ The prospective intervener must show that that person has some legal interest that stands to be affected by the Court's decision. The person will not be given leave if that legal interest is likely only to be affected indirectly or contingently, unless a substantial affectation of the person's interests is demonstrable or likely.¹²⁰ Even then, the Court retains a discretion as to whether leave is granted. In deciding whether to exercise the discretion, the Court will consider whether the person can show that the existing parties to the proceeding may not present fully the submissions on a particular issue, 'being submissions which the Court should have to assist it to reach a correct determination'. The Court may grant leave to intervene only as to particular issues or on such conditions, as to costs or otherwise, as will do justice as between the parties.¹²¹

An intervener is accorded the same procedural rights as a party to the litigation.¹²² Most importantly in constitutional matters, this entails the right to make submissions. It also means that interveners may adduce evidence and, in theory, call and cross-examine witnesses. In 'special circumstances', an intervener may be made the subject of an order for costs and, where a person intervenes by leave of the Court, that leave may be granted on the condition that the intervener enter into an undertaking as to costs.¹²³

3. *Amici Curiae*

The instances in which the Court has permitted an *amicus* to participate in constitutional litigation are rare. That is particularly so in comparison with, for example, the practice in the Supreme Courts of the United States or Canada.

The role of *amici* was once considered to be limited to providing the Court with impartial assistance on points of law. It is now accepted that the participation of *amici* may be partisan.¹²⁴ As with interveners, the Court's approach to *amicus* applications has been 'greatly influenced by the private law paradigm of adversary litigation'.¹²⁵

The Court's discretion to allow an *amicus* to be heard is exercised on a different basis from that which influences the discretion to allow intervention.¹²⁶ In *Levy*, Brennan CJ observed that '[t]he footing on which an *amicus curiae* is heard is that that person is willing to offer the Court a submission on law or relevant fact which will assist the Court in a way in which the Court would not otherwise have been assisted'.¹²⁷ In *Kruger v The Commonwealth*, speaking for the Court, Brennan CJ observed that the Court must be cautious in considering applications to be heard by persons who would be *amicus curiae*, 'lest the efficient operation of the Court be prejudiced'.¹²⁸ More recently, in *Wurridjal*, French CJ, speaking for a majority of the Court in refusing leave to the applicants who wished to participate as *amici*, elaborated on the principles in *Levy*, saying:¹²⁹

The Court may be assisted where a prospective *amicus curiae* can present arguments on aspects of a matter before the Court which are otherwise unlikely to receive full or adequate treatment by the parties because (a) it is not in the interests of the parties to present argument on those aspects or (b) one or other of the parties lacks the resources to present full argument to the Court on them.

In some cases it may be in the interests of the administration of justice that the Court have the benefit of a larger view of the matter before it than the parties are able or willing to offer.

In practice, the principles governing the granting of leave for an *amicus* to participate in proceedings before the Court have been applied somewhat unpredictably.¹³⁰

By contrast with interveners, *amici curiae* are not accorded the same procedural rights as parties to the litigation. Unlike interveners, they have

no entitlement to present an oral argument.¹³¹ The Court has mostly limited the participation of *amici* to the filing of written submissions.

The Court's rules and practice directions make no explicit provision for the manner in which a person might apply or qualify for leave to intervene or to appear as *amicus curiae*, nor for the procedural steps that the Court might take in determining such applications. There have been calls to reform the procedural rules and the Court's practice as to the participation of *amici*,¹³² with some commentators arguing that there ought to be a presumption in favour of granting *amicus* applications in constitutional cases.¹³³

G. THE HIGH COURT'S APPELLATE JURISDICTION IN CONSTITUTIONAL LITIGATION

Constitutional litigation more commonly comes before the High Court in its original, rather than appellate, jurisdiction. The principal reasons are:

- (a) the Commonwealth Parliament's conferral on the High Court of original jurisdiction 'in all matters arising under the Constitution or involving its interpretation';¹³⁴
- (b) the Court's power to remove constitutional causes into the Court on a party's application; and
- (c) the right of the Attorneys-General to invoke the removal power.¹³⁵

It is also likely that, in some cases, litigants take the view that a matter raising a constitutional issue of any substance is likely ultimately to be appealed to the High Court in any event, in which case costs might be saved by commencing in the Court's original jurisdiction, if the case is otherwise an appropriate vehicle. It may also be noted that, in an area which has proved to be fertile ground for constitutional litigation in recent years—namely, litigation under the *Migration Act 1958* (Cth)—the Parliament has largely deprived the Federal Court of Australia of original jurisdiction in respect of 'migration decisions',¹³⁶ leaving prospective applicants for constitutional writ or injunctive relief with the choice of commencing either in the Federal Circuit Court of Australia¹³⁷ or in the High Court.¹³⁸

The source of the High Court's appellate jurisdiction is section 73 of the Constitution. Subject to 'such exceptions and subject to such regulations as the Parliament prescribes', section 73 confers jurisdiction on the Court 'to

hear and determine appeals from all judgments, decrees, orders, and sentences’:

- (i) of any Justice or Justices exercising the original jurisdiction of the High Court;
- (ii) of any other federal court, or court exercising federal jurisdiction; or of the Supreme Court of any State, or of any other court of any State from which at the establishment of the Commonwealth an appeal lies to the Queen in Council;
- (iii) of the Inter-State Commission, but as to questions of law only ...

The jurisdiction of the High Court may be exercised by any one or more Justice sitting in open Court.¹³⁹ A single Justice therefore has jurisdiction to determine a constitutional matter.¹⁴⁰ In practice, almost all constitutional matters have their final hearing before a Full Court.¹⁴¹ As such, appeals within the High Court under section 73(i) are largely from interlocutory decisions, for which leave to appeal is necessary.¹⁴²

As to appeals under section 73(ii), which may be from the Federal Court, the Supreme Courts of the States, a court exercising jurisdiction under the *Family Law Act 1975* (Cth), or other courts exercising federal jurisdiction, special leave to appeal is required.¹⁴³ The Court’s power to grant special leave to appeal is discretionary. However, in considering whether to grant special leave, the Court is required to have regard to, among other things, whether the decision sought to be appealed raises a question that is of public importance. Appeals raising substantive questions of constitutional law are often good candidates for special leave.

The Court’s appellate jurisdiction under section 73(iii) lies fallow. The first Inter-State Commission, appointed in 1912, lapsed in 1920 as a consequence of the High Court’s decision in the *Wheat Case*.¹⁴⁴ In that case—itself an appeal under section 73(iii)—a split Court decided that the Commonwealth Parliament could not establish the Inter-State Commission as a Chapter III court. That decision closed off what would otherwise have been the most probable source of constitutional litigation to come to the High Court by way of section 73(iii) appeals: matters concerning section 92 of the Constitution.¹⁴⁵

In cases raising a question affecting the constitutional powers of the Commonwealth, a decision may only be given by a Full Court consisting of less than all the Justices if at least three Justices concur in the decision.¹⁴⁶

H. ADVOCACY

In keeping with the common law tradition, oral argument has historically played a central role in constitutional litigation before the High Court. It continues to do so today, albeit that written submissions have been incorporated in the Court's procedure and have grown steadily in importance.

The Court is not, as the idealized form of the adversary system would have it, a passive receptor of the arguments selected for presentation to it by the parties, interveners, and *amici curiae*.¹⁴⁷ Throughout its history the Court has, to varying degrees, engaged critically with the advocates appearing before it. Often that engagement involves the Bench, through its questions to counsel, seeking to identify and clarify the critical features of the case presented to it.¹⁴⁸ At other times, the Court has gone further and actively, and sometimes quite vigorously, suggested solutions to the legal problems before it,¹⁴⁹ causing lines of argument to be repositioned or abandoned in favour of an argument,¹⁵⁰ or even a case,¹⁵¹ that the Court has identified and proposed.

Other than in applications for special leave to appeal, the Court does not impose a formal time limit on oral argument. But it is unlikely that a scene such as occurred during argument in the *Engineers' Case* could today be repeated: Sir Edward Mitchell KC, appearing for the States, when asked about a point on a Tuesday afternoon, replied that he proposed to deal with it on Thursday afternoon.¹⁵² Great cases no longer tend to be 'legal marathons'.¹⁵³ For various reasons, the length of oral argument in constitutional and other cases has reduced over time. Those reasons include the Court's workload, the advent of written submissions and their increasing importance, as well as related changes in the way that cases are presented to the Court, such as a decline in the practice of counsel reading lengthy passages of cases to the Bench. Those appearing before the Court are now required in their written submissions to estimate, in hours, the time required for the presentation of oral argument.

Since the early 1950s the Court's rules have permitted parties to file a 'written case', which could incorporate written contentions directed at supplementing the party's oral argument.¹⁵⁴ Written submissions came gradually to be embraced by litigants to such an extent that, prior to the

introduction in the late 1990s of restrictions on their content and length, in major constitutional cases the Court was being ‘swamped with a sea of paper’.¹⁵⁵ Probably it is no coincidence that those restrictions emerged around the time that online legal research became common in legal practice.

In 1997, the filing of written submissions was made obligatory in all appeals. Particularly in light of the reduced duration of oral argument in final hearings, written submissions now play a highly important role in adjudication by the Court. They have taken on added significance in the Court’s appellate jurisdiction in light of recent changes to the rules and practice of the Court in applications for special leave. Applications for special leave may be determined by any two Justices without an oral hearing.¹⁵⁶ Following the recent changes, more applications, including successful applications, are determined on the papers.

On an appeal, the appellant, respondent, and any intervener or *amicus* are required to file written submissions of no more than twenty pages. Before the commencement of oral argument, the party, intervener, or *amicus* must give to the Court a written outline of up to three pages of the propositions that are intended to be advanced orally.¹⁵⁷ In the ordinary course, the Court will require the filing and handing up of equivalent materials on the hearing of a constitutional matter coming before a full bench of the Court in its original jurisdiction.

I. COMPOSITION OF THE BENCH

Ordinarily the Court will endeavour to sit all available Justices for the final hearing of a constitutional matter. That may result in an even number of Justices sitting when the retirement of a Justice is imminent. It has occasionally resulted in the Court dividing equally, as in *Monis v The Queen*.¹⁵⁸ That case raised the question whether a Commonwealth provision which criminalized the use of a postal service in a way that reasonable persons would regard as being menacing, harassing, or offensive, was inconsistent with the implied freedom of political communication. As the matter came before the Court on appeal, the decision of the Court of Criminal Appeal of the Supreme Court of New South Wales (given before the trial of charges under that Commonwealth provision), holding the provision not invalid, was affirmed. Curiously, had

the matter been in the Court's original jurisdiction, the opposite result would have obtained.¹⁵⁹

J. CONCLUSION

Counsel who work in the field of constitutional litigation in the High Court play a modest, but important, part in constructing Australia's constitutional law. They make decisions about the cases that will be commenced and pleaded, the forum in which those cases will be commenced, the points of resistance to be developed and pleaded on behalf of defendant parties, the steps to be taken as the cases work their way towards hearing and judgment, and the presentation of arguments for and against the cases.

For example, counsel will decide whether a case challenging government action is commenced in the High Court or another superior court, will plot the strategy (whether for the moving party—the plaintiff—or the resisting party—the defendant) that moves the case towards judgment, will calculate how the relevant facts are to be presented to the Court, and will develop the arguments in support of and opposition to the claim for relief. Counsel will know (or plan on the assumption that they know) whether a particular case is best commenced in the High Court or in a lower court and, if the case is commenced in the High Court, is likely to be remitted to a lower court. Where a case is commenced in a lower court, counsel will plan (assuming they are aware of the options available and of the constraints on the various steps that can be taken) whether application should be made, at some stage, to the High Court for removal under section 40 of the *Judiciary Act 1903* (Cth), and whether, once judgment has been entered by an appellate court, to launch an application for special leave to appeal to the High Court.

Each of those decisions will contribute to moulding the form in which, and the time when, constitutional issues are presented to the High Court for resolution. The decisions will be informed by counsel's knowledge of the available processes and the High Court's attitude to the attempted use of those processes. The form in which constitutional issues are presented to the High Court, and the timing of that presentation, will lay the foundation for the Court's exercise of constitutional interpretive and decision-making techniques.

¹ See *D'Emden v Pedder* (1904) 1 CLR 91, 117.

² See, eg, *Macleod v Attorney-General (NSW)* [1891] AC 455, 457. Although the Privy Council found that s 54 of the *Criminal Law Amendment Act 1883* (NSW) was valid, it did so by reading extra words into the section—so as to avoid attributing ‘to the Colonial Legislature an effort to enlarge their jurisdiction to such an extent as would be inconsistent with the powers committed to a colony’.

³ 1 Cranch 137 (1803).

⁴ Sir Isaac Isaacs, a delegate from Victoria (later a Justice and Chief Justice of the High Court, and later still Governor-General), observed at the 1898 Convention that, despite the ‘infinite trouble’ being taken in the drafting of the Commonwealth Constitution, ‘the makers of the Constitution’ would include the judges who interpreted it and applied it to the resolution of real problems: *Official Record of the Debates of the Australasian Federal Convention* (Melbourne, 1898) 283.

⁵ *Melbourne Corporation v The Commonwealth* (1947) 74 CLR 31 (‘*State Banking Case*’).

⁶ *ibid* 82.

⁷ See James Stellios, *Zines’s The High Court and the Constitution* (6th edn, Federation Press 2015) 644–45.

⁸ (1952) 85 CLR xi, xiv.

⁹ Leslie Zines, *The High Court and the Constitution* (5th edn, Federation Press 2008) 650.

¹⁰ (1988) 165 CLR 360.

¹¹ *ibid* 391.

¹² (1989) 168 CLR 461.

¹³ *ibid* 485.

¹⁴ (1992) 177 CLR 1.

¹⁵ (1992) 177 CLR 106.

¹⁶ In *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520, 567 (‘*Lange*’) the High Court said that the content of the implied freedom of political communication was to be drawn from the ‘text and structure’ of the Constitution. However, Professor Adrienne Stone has demonstrated convincingly that values must inevitably intrude: Adrienne Stone, ‘The Limits of Constitutional Text and Structure: Standards of Review and the Freedom of Political Communication’ (1999) 23 *Melbourne University Law Review* 668.

¹⁷ (1983) 151 CLR 599.

¹⁸ *ibid* 616.

¹⁹ *ibid* 632.

²⁰ Stephen Gageler, ‘Foundations of Australian Federalism and the Role of Judicial Review’ (1987) 17 *Federal Law Review* 162, 178.

²¹ ‘On the imposition of uniform duties of customs, trade, commerce, and intercourse among the States, whether by means of internal carriage or ocean navigation, shall be absolutely free.’

²² (1909) 8 CLR 115.

²³ (1948) 76 CLR 1.

²⁴ (1988) 165 CLR 360.

²⁵ *North Eastern Dairy Co Ltd v Dairy Industry Authority of New South Wales* (1975) 134 CLR 559, 582.

²⁶ *ibid* 615.

²⁷ *Uebergang v Australian Wheat Board* (1980) 145 CLR 266, 300 (‘*Uebergang*’).

²⁸ *Cole v Whitfield* (1988) 165 CLR 360, 391.

²⁹ *Betfair Pty Ltd v State of Western Australia* (2008) 234 CLR 418, 452 [12].

³⁰ *Betfair Pty Ltd v Racing New South Wales* (2012) 249 CLR 217, 267 [45], quoting the Full Court of the Federal Court in *Betfair Pty Ltd v Racing New South Wales* (2010) 189 FCR 356 at 388 [104].

³¹ *Amalgamated Society of Engineers v Adelaide Steamships Co Ltd* (1920) 28 CLR 129 (*'Engineers' Case*).

³² *New South Wales v The Commonwealth* (2006) 229 CLR 1, 119 [193] (*'Work Choices Case'*), referring to Windeyer J in *Victoria v The Commonwealth* (1971) 122 CLR 353, 396 (*'Payroll Tax Case'*).

³³ *Western Australia v The Commonwealth* (1975) 134 CLR 201 (*'First Territorial Senators Case'*).

³⁴ For a valuable analysis of this decision, see Stellios ([n 7](#)) 677–80.

³⁵ *Attorney-General (NSW) v Commonwealth Savings Bank* (1986) 160 CLR 315, 323 (*'Commonwealth Savings Bank'*).

³⁶ *In re Judiciary and Navigation Acts* (1921) 29 CLR 257, 265.

³⁷ *Victoria v The Commonwealth* (1996) 187 CLR 416, 480–81 (*'Industrial Relations Act Case'*). For different views on the scope of s 75(i), cf *Bluett v Fadden* (1956) 56 SR (NSW) 254 and *R v Donyaddeh* (1993) 115 ACTR 1; and see *Plaintiff M61/2010E v The Commonwealth* (2010) 243 CLR 319, 345 [51].

³⁸ cf s 75(i) of the Constitution, which also includes matters arising other than directly under any treaty.

³⁹ cf s 75(iv) of the Constitution, which also includes matters between residents of different States and between a State and a resident of another State.

⁴⁰ cf s 75(iii) of the Constitution, which includes all matters in which the Commonwealth, or a person suing on behalf of the Commonwealth, is a party.

⁴¹ cf s 75(iii) of the Constitution, which includes all matters in which the Commonwealth, or a person being sued on behalf of the Commonwealth, is a party.

⁴² cf s 75(v) of the Constitution, which also includes matters in which an injunction is sought against an officer of the Commonwealth. (The reference, in s 38(e), to 'an officer of ... a federal court' introduces a redundancy: any such officer would also be 'an officer of the Commonwealth': *R v Watson; Ex parte Armstrong* (1976) 136 CLR 248; *Re McBain; Ex parte Australian Catholic Bishops Conference* (2002) 209 CLR 372.)

⁴³ The method adopted by s 39 of the *Judiciary Act 1903* (Cth) is to divest State courts of their inherent (or State) jurisdiction over the matters not dealt with in s 38 (as authorized by s 77(ii) of the Constitution) and then to re-invest jurisdiction over those matters in State courts as federal jurisdiction (as authorized by s 77(iii) of the Constitution).

⁴⁴ *James v State of South Australia* (1927) 40 CLR 1, 40 (*'James'*).

⁴⁵ *R v Commonwealth Court of Conciliation and Arbitration; Ex parte Barrett* (1945) 70 CLR 141, 153–54. Latham CJ was considering whether a matter arose under a law made by the Parliament within s 76(ii); but the proposition can readily be applied to the question whether a matter arises under the Constitution.

⁴⁶ *James* ([n 44](#)) 40.

⁴⁷ (1971) 124 CLR 367, 374; and Geoffrey Lindell, *Cowen and Zines' Federal Jurisdiction in Australia* (4th edn, Federation Press 2016) 112.

⁴⁸ It appears that the last trial of an indictable offence in the High Court was in 1942: *R v Brewer* (1942) 66 CLR 535.

⁴⁹ Lindell ([n 47](#)) 39.

⁵⁰ The Court also has power, under s 40(2) of the *Judiciary Act 1903* (Cth), to remove a cause pending in a federal court or a Territory court and a cause pending in a State court that involves the exercise of federal jurisdiction; the removal can be made on the application of a party or of the Commonwealth Attorney-General; and, unless all parties consent to the removal, the Court is not to remove the cause unless the Court is satisfied that it is appropriate to make the order having regard to all the circumstances, including the interests of the parties and the public interest: *Judiciary Act 1903* (Cth), s 40(4).

⁵¹ *Bienstein v Bienstein* (2003) 195 ALR 225, 234 [45].

⁵² *North Ganalanja Aboriginal Corporation v State of Queensland* (1995) 69 ALJR 569.

⁵³ David Jackson, 'Practice in the High Court of Australia' (1997) 15 Australian Bar Review 187, 206.

⁵⁴ *Judiciary Act 1903* (Cth), s 42(1).

⁵⁵ *Commonwealth Savings Bank* (n 35) 329; *GE Crane & Sons Ltd v Commissioner of Stamp Duties; Ex parte Attorney-General (Qld)* (1997) 72 ALJR 75, 77.

⁵⁶ Jackson (n 53) 207.

⁵⁷ *High Court Rules 2004* (Cth), rr 20.01.4, 27.01, 27.03.

⁵⁸ *ibid* rr 20.01.1, 25.01–25.03.

⁵⁹ *ibid* r 27.06.

⁶⁰ *ibid* r 25.03.

⁶¹ *Judiciary Act 1903* (Cth), s 44(1), (2), (2A).

⁶² (1992) 175 CLR 1 ('*Mabo No 2*').

⁶³ *Mabo v State of Queensland* (1986) 64 ALR 1.

⁶⁴ *Mabo No 2* (n 62) 6.

⁶⁵ See *Breen v Sneddon* (1961) 106 CLR 406, 411.

⁶⁶ John Dyson Heydon, *Cross on Evidence* (10th edn, LexisNexis Butterworths 2015) 162. See also Kenneth C Davis, 'An Approach to Problems of Evidence in the Administrative Process' (1942) 55 Harvard Law Review 364.

⁶⁷ See John Dyson Heydon, 'Constitutional Facts' in *Upholding the Australian Constitution: Proceedings of the Twenty-second Conference of the Samuel Griffith Society* (2012) 85–86 <<http://samuelgriffith.org.au/docs/vol23/vol23.pdf>> accessed 20 April 2017.

⁶⁸ See, however, *Re Day* (2017) 91 ALJR 262, where a two-day trial was conducted before a single Justice for the purpose of the Court, sitting as the Court of Disputed Returns, determining whether to make a number of findings of fact relevant to questions concerning the qualification of a senator.

⁶⁹ *Judiciary Act 1903* (Cth), s 18.

⁷⁰ *High Court Rules 2004* (Cth), r 27.08, read with *Judiciary Act 1903* (Cth), s 18; *Bodruddaza v Minister for Immigration and Multicultural Affairs* (2007) 228 CLR 651, 660 [10].

⁷¹ *High Court Rules 2004* (Cth), r 27.08.5.

⁷² *R v Rigby* (1956) 100 CLR 146, 150–51. See also *Brisbane City Council v Valuer-General (Qld)* (1978) 140 CLR 41, 58; *Johanson v Dixon* (1979) 143 CLR 376, 382.

⁷³ Frank Jones, 'The Story Behind the Headlines: Constitutional Procedures' (1994) 12 Australian Bar Review 148, 154.

⁷⁴ See, eg, *Austin v The Commonwealth* (2003) 215 CLR 185, 249 [124]; cf 304 [289]–[293].

⁷⁵ *High Court Rules 2004* (Cth), r 27.07.

⁷⁶ Alan Robertson, 'Procedure' in Tony Blackshield, Michael Coper, and George Williams (eds), *The Oxford Companion to the High Court of Australia* (OUP 2001) 564.

⁷⁷ *South Australia v The Commonwealth* (1962) 108 CLR 130, 142–43; see also *Wurridjal v The Commonwealth* (2009) 237 CLR 309, 368 [119] (‘*Wurridjal*’).

⁷⁸ *Kathleen Investments (Australia) Ltd v Australian Atomic Energy Commission* (1977) 139 CLR 117, 135 (‘*Kathleen Investments*’); *Wurridjal* (n 77) 368 [120].

⁷⁹ *Bass v Permanent Trustee Co Ltd* (1999) 198 CLR 334, 357 [50]. However, as discussed further below, a demurrer will not exhaust the universe of relevant *constitutional* facts: see *Levy v State of Victoria* (1997) 189 CLR 579, 599.

⁸⁰ *Kathleen Investments* (n 78) 135.

⁸¹ See *Work Choices Case* (n 32) 252 [628]; *Wurridjal* (n 77) 415 [279].

⁸² *Uebergang* (n 27) 302; *Pape v Federal Commissioner of Taxation* (2009) 238 CLR 1, 88 [229].

⁸³ As to an early articulation of this duty, see *D’Emden* (n 1) 117. And as to the duty to determine the constitutional facts going to the validity of an impugned measure, see *Australian Communist Party v The Commonwealth* (1951) 83 CLR 1, 222. See also *Thomas* (n 82) 516 [625].

⁸⁴ See Heydon, *Evidence* (n 66) 200.

⁸⁵ (1997) 189 CLR 579, 598–599 (citations omitted). See also *Gerhardy v Brown* (1985) 159 CLR 70, 141–42; *Thomas* (n 82) 516 [625]–[626].

⁸⁶ *Lange* (n 16) 567.

⁸⁷ *State Banking Case* (n 5) 75; *Clarke v Commissioner of Taxation* (2009) 240 CLR 272, 298 [32], 309 [76].

⁸⁸ *Commonwealth Freighters Pty Ltd v Sneddon* (1959) 102 CLR 280, 292.

⁸⁹ *Gerhardy v Brown* (1985) 159 CLR 70, 142.

⁹⁰ (2007) 233 CLR 307, 517 [629]. For a critique of the unstructured way in which this practice has sometimes been permitted to occur, see *Stellios* (n 7) 693–94.

⁹¹ *Maloney v The Queen* (2013) 252 CLR 168, 299 [353].

⁹² *Kuczborski v State of Queensland* (2014) 254 CLR 51, 109 [184].

⁹³ Simon Evans, ‘Standing to Raise Constitutional Issues Reconsidered’ (2010) 22 *Bond Law Review* 38, 39, citing Simon Evans and Stephen Donaghue, ‘Standing to Raise Constitutional Issues in Australia’ in Gabriël Moens and Rodolphe Biffot (eds), *The Convergence of Legal Systems in the 21st Century: An Australian Approach* (Australian Institute of Foreign and Comparative Law 2002) 53, 97–98.

⁹⁴ [1903] 1 Ch 109, 114.

⁹⁵ (1980) 146 CLR 493, 527 (‘*ACF*’).

⁹⁶ *Onus v Alcoa of Australia Ltd* (1981) 149 CLR 27, 35–36; see also *Kuczborski* (n 92) 106–07 [175]–[178].

⁹⁷ *ACF* (n 95) 530, cited with approval in *Kuczborski* (n 92) 106–07 [177].

⁹⁸ *Shop Distributive and Allied Employees Association v Minister for Industrial Affairs (SA)* (1995) 183 CLR 552, 558.

⁹⁹ For example, it is clear than *habeas corpus* is available to a ‘stranger’: *Truth About Motorways Pty Ltd v Macquarie Infrastructure Investment Management Ltd* (2000) 200 CLR 591, 600 [2], 627 [94], 653 [162], 670 [211]. As to prohibition, certiorari, and mandamus, see the discussion in Mark Aronson et al (eds), *Judicial Review of Administrative Action and Government Liability* (6th edn, Lawbook Co 2017) [11.210]–[11.230].

¹⁰⁰ See *State of Victoria v The Commonwealth and Hayden* (1975) 134 CLR 338, 401–02 (‘*AAP Case*’): ‘The real interest of the States ... is that they are constituent elements in the federation and that the federation is one in which there is a division of powers and a consequential allocation of responsibilities between the Commonwealth and the States. As such they have an interest in the

observance of the Constitution and in ensuring that the Commonwealth keeps within the bounds assigned to it by the Constitution.’ cf *AAP Case*, 365, 383; *Williams v The Commonwealth* (2012) 248 CLR 156, 223–24 [111]–[112] (‘*Williams*’).

¹⁰¹ *Williams* (n 100) 223–24 [111]–[112]; *Bell Group NV (in liq) v State of Western Australia* (2016) 331 ALR 408, 412 [7].

¹⁰² (1998) 194 CLR 247.

¹⁰³ *ibid* 262 [37]; see also *Pape* (n 82) 35 [50], 68 [152]; *Plaintiff M68/2015 v Minister for Immigration and Border Protection* (2016) 257 CLR 42, 65 [22]. For a useful analysis of what the Court might mean by this formulation, see Evans, ‘Standing’ (n 93) 56–59, which analysis was adopted in part by French CJ in *Kuczborski* (n 92) 60–61 [5].

¹⁰⁴ *Robinson v Western Australian Museum* (1977) 138 CLR 283, 302–03. See also *ACF* (n 95) 504–05, 532–33, 546, 552; *Wilkie v The Commonwealth* [2017] HCA 40, [57].

¹⁰⁵ Evans, ‘Standing’ (n 93) 38.

¹⁰⁶ See also Patrick Keyzer, *Open Constitutional Courts* (Federation Press 2010).

¹⁰⁷ *United States Tobacco Co v Minister for Consumer Affairs* (1988) 20 FCR 520, 536 (Davies, Wilcox and Gummow JJ).

¹⁰⁸ *Judiciary Amendment Act 1976* (Cth).

¹⁰⁹ *Statute Law (Miscellaneous Provisions) Act (No 2) 1983*, sch 1.

¹¹⁰ *ACT Self-Government (Consequential Provisions) Regulations 1989* (Cth), sch 1.

¹¹¹ *Judiciary Act 1903* (Cth), s 78B.

¹¹² See, eg, *The Commonwealth v State of Tasmania* (1983) 158 CLR 1 (‘*Tasmanian Dam Case*’), where the Attorney-General of Queensland intervened in support of Tasmania, and the Attorneys-General of New South Wales and Victoria intervened in support of the Commonwealth.

¹¹³ *Australian Railways Union v Victorian Railways Commissioners* (1930) 44 CLR 319, 331.

¹¹⁴ *Australian Railways Union* (n 113) 331; *R v Anderson; Ex parte Ipec-Air Pty Ltd* (1965) 113 CLR 177, 182.

¹¹⁵ That is, ‘to the extent of the intervener’s interest’: *R v Commonwealth Court of Conciliation and Arbitration; Ex parte Ellis* (1954) 90 CLR 55, 68–69.

¹¹⁶ See Angel Aleksov, ‘Intervention in Constitutional Cases’ (2012) 86 Australian Law Journal 555, 557–58.

¹¹⁷ See George Williams, ‘The Amicus Curiae and Intervener in the High Court of Australia: a Comparative Analysis’ (2000) 28 Federal Law Journal 365.

¹¹⁸ Anthony Mason, ‘Interveners and Amici Curiae in the High Court: a Comment’ (1998) 20 Adelaide Law Review 173, 174.

¹¹⁹ (1997) 189 CLR 579.

¹²⁰ *ibid* 601–02.

¹²¹ *ibid* 603.

¹²² *United States Tobacco Co* (n 107).

¹²³ *O’Toole v Charles David Pty Ltd* (1990) 171 CLR 232, 311; *Judiciary Act 1903* (Cth), s 78A(4). See also Enid Campbell, ‘Intervention in Constitutional Cases’ (1998) 9 Public Law Review 255, 257.

¹²⁴ Susan Kenny, ‘Interveners and Amici Curiae in the High Court’ (1998) 20 Adelaide Law Review 159, 160–61.

¹²⁵ Anthony Mason, ‘Access to Constitutional Justice: Opening Address’ (2010) 22 Bond Law Review 1, 13.

¹²⁶ *Levy* (n 79) 604; see also *APLA Ltd v Legal Services Commissioner (NSW)* (2005) 224 CLR 322, 381 [126]. cf *Levy* (n 79) 650–51.

¹²⁷ *Levy* (n 79) 604 (citations omitted).

¹²⁸ (1996) 3 Leg Rep 14.

¹²⁹ (2009) 237 CLR 309, 312–13; cf 313–14.

¹³⁰ Kenny, ‘Interveners and Amici Curiae’ (n 124) 161–67.

¹³¹ Mason, ‘Interveners and Amici Curiae’ (n 118) 174.

¹³² See *Attorney-General (Cth) v Breckler* (1999) 197 CLR 83, 135–36 [105]–[106].

¹³³ Kristen Walker, ‘Amici Curiae and Access to Constitutional Justice: A Practical Perspective’ (2010) 22 Bond Law Review 111; Ernst Willheim, ‘Amici Curiae and Access to Constitutional Justice in the High Court of Australia’ (2010) 22 Bond Law Review 126.

¹³⁴ *Judiciary Act 1903* (Cth), s 30(a).

¹³⁵ *Judiciary Act 1903* (Cth), s 40(1).

¹³⁶ *Migration Act 1958* (Cth), s 476A.

¹³⁷ And potentially seeking then to have the matter transferred to the Federal Court under s 39 of the *Federal Circuit Court of Australia Act 1999* (Cth).

¹³⁸ Under s 484 of the *Migration Act 1958* (Cth), only the High Court, the Federal Court and the Federal Circuit Court have jurisdiction in relation to ‘migration decisions’.

¹³⁹ *Judiciary Act 1903* (Cth), s 15.

¹⁴⁰ *Rutledge v State of Victoria* (2013) 251 CLR 457 is a rare example of a constitutional matter heard and determined by a single Justice in recent times.

¹⁴¹ That is, any two or more Justices sitting together: *Judiciary Act 1903* (Cth), s 19. However, as discussed further below, ordinarily in constitutional cases the Court will sit all available Justices.

¹⁴² *Judiciary Act 1903* (Cth), s 34(2).

¹⁴³ *Federal Court of Australia Act 1976* (Cth), s 33(3); *Judiciary Act 1903* (Cth), s 35(2); *Family Law Act 1975* (Cth), s 95; *Judiciary Act 1903* (Cth), s 39(2)(c). Appeals from the Supreme Courts of the Territories (other than those in federal jurisdiction) are not appeals under s 73(ii) of the Constitution. Rather, that appellate jurisdiction is vested in the High Court by s 35AA of the *Judiciary Act 1903* (Cth), which is enacted under s 122 of the Constitution. No appeal lies to the High Court from the Federal Circuit Court of Australia: *Federal Circuit Court of Australia Act 1999* (Cth), s 20(1).

¹⁴⁴ *State of New South Wales v The Commonwealth* (1915) 20 CLR 54 (‘Wheat Case’).

¹⁴⁵ The second incarnation of the Inter-State Commission, established in 1983, was subsumed into the non-constitutional Industries Assistance Commission in 1989: *Industry Commission Act 1989* (Cth), s 48(2).

¹⁴⁶ *Judiciary Act 1903* (Cth), s 23(1). See also *Field Peas Marketing Board (Tas) v Clements & Marshall Pty Ltd* (1948) 76 CLR 414.

¹⁴⁷ Robert French, ‘Legal Change—The Role of Advocates’ (Sir Maurice Byers Lecture 2016) <<http://www.hcourt.gov.au/assets/publications/speeches/current-justices/frenchcj/frenchcj22june16.pdf>> accessed 21 April 2017.

¹⁴⁸ David Bennett, ‘Argument before the Court’ in Tony Blackshield, Michael Coper, and George Williams (eds), *The Oxford Companion to the High Court of Australia* (OUP 2001) 31.

¹⁴⁹ Stephen Gageler, ‘Role of Counsel’ in Tony Blackshield, Michael Coper, and George Williams (eds), *The Oxford Companion to the High Court of Australia* (OUP 2001) 167.

¹⁵⁰ For example, *Williams* (n 100).

¹⁵¹ For example, *Dickson v The Queen* (2010) 241 CLR 491.

¹⁵² Gerard Carney, ‘Reassessment of Robert Menzies’ Contribution in the Engineers Case’ (2015) 89 Australian Law Journal 331, 345.

¹⁵³ cf Robert Menzies, *The Measure of the Years* (Cassell 1970) 242–43.

¹⁵⁴ *High Court Rules 1952* (Cth), r 70.25.

¹⁵⁵ Jones ([n 73](#)) 157.

¹⁵⁶ *Judiciary Act 1903* (Cth), s 21(1); *High Court Rules 2004* (Cth), r 41.08.1.

¹⁵⁷ *High Court Rules 2004* (Cth), Pt 44.

¹⁵⁸ (2013) 249 CLR 92.

¹⁵⁹ *Judiciary Act 1903* (Cth), s 23(2). A later application to have removed to the High Court, under s 40 of the *Judiciary Act 1903* (Cth), Mr Monis’s appeal to the Court of Criminal Appeal against his conviction on the charges, was refused on 12 December 2014: [2014] HCATrans 280. Mr Monis died in the Lindt Café, Sydney, four days later—on 16 December 2014.

PART V

SEPARATION OF POWERS

CHAPTER 24

PARLIAMENTS

AMELIA SIMPSON*

A. INTRODUCTION

THE institution of Parliament lies at the heart of Australia's constitutional system—fittingly, in view of the latter's normative grounding in representative and responsible government.¹ No exploration of that broader system would be complete without an account of the Parliament's structure and workings. While there are actually seven established Parliaments within the Australian federation—one national and one in each of six States—this chapter will focus on the national institution, variously called the federal Parliament, the Australian Parliament, or the Commonwealth Parliament. Only this national Parliament is founded in, and extensively regulated by, the Australian Constitution. The State Parliaments, on the other hand, are creatures of their respective State Constitutions and rate only a passing mention within the national document.²

While there is much contestation around the relative importance of the various constitutional meta-principles that might be seen to underpin the federal Constitution, this chapter highlights three as having particular significance for the institution of Parliament. These three—federalism, representative government, and responsible government—have been particularly influential in determining the institutional trajectory of the Parliament and this chapter will use them to organize its discussion of key structural features. Two of the three—representative government and responsible government—are further taken as useful lenses through which to examine notable innovations, challenges and, constraints that contribute to an understanding of the institution. This analysis reveals that Parliament

itself has had a significant and ongoing influence upon the structures through which representative government gains expression, even while the High Court has intervened periodically to enforce perceived baseline requirements. In contrast, the Parliament has shown little motivation to protect its theoretical ascendancy over the executive in line with the principles of responsible government. Whether the High Court will be as willing to assert for itself an ongoing corrective role in this second context remains to be seen.

B. FEDERALISM

When, towards the end of the nineteenth century, the people of the Australian colonies turned their minds to some form of union, the structural model that quickly gained favour was that of federalism. Considerations of logistics, as much as localized colonial identity and pride, made the federal model appear more attainable than a unitary alternative. This preference for federalism quickly became a fixed assumption that manifested clearly in the structural arrangements that were negotiated and, eventually, adopted.³

The text of the Australian Constitution, especially when supplemented with an appreciation of its drafting history,⁴ confirms federalism to be one of its founding values. At least as concerns the institution of the Parliament, this manifests in two ways. First, the Constitution provides for an upper House—the Senate—with representation allocated along State lines and with the objective of safeguarding the States’ interests. Second, the Constitution grants limited, enumerated powers to the federal Parliament and provides a rule for resolution of inconsistencies between federal and State laws.⁵

The first section of the Constitution vests legislative power in a tripartite Parliament comprising the Queen, a Senate (upper House), and a House of Representatives (lower House). The latter is modelled along British lines and it is here that governments are formed. While there is very little about the design of the House of Representatives that reflects the federal design—excepting the section 24 ‘nexus requirement’ that fixes the ratio of House to Senate seats at two to one—federalism concerns are, in contrast, central to the Senate’s design. Section 7 provides: ‘The Senate shall be composed of Senators for each State, directly chosen by the people of the State’ and that

each ‘Original State’ must have an equal number of Senators. Other related federalist safeguards include six-year terms for Senators⁶ (twice the maximum lower House term) and the conferral on State Parliaments of responsibility for filling mid-term Senate vacancies.⁷

Especially interesting aspects of Australian parliamentary federalism, from a comparative perspective, are the relative powers of each House and the mechanism established for overcoming intractable disagreements. Each house enjoys equal powers in relation to the legislative process, with one important exception; the Senate cannot initiate bills to appropriate funds or impose taxes nor, generally, can it amend such bills.⁸ Anticipating the inevitable situation of a Senate simply refusing to pass a bill that it is forbidden to amend, the Constitution also makes intricate provision for resolving deadlock between the Houses. Once a disagreement has become protracted, the Governor-General may dissolve both Houses and issue writs for a general election. If, within a newly constituted Parliament, the Senate again blocks the same bills, the Governor-General can convene a joint sitting of both Houses at which an absolute majority may pass the bills.⁹

These provisions might suggest a potent and ongoing influence for the principle of federalism in the operation of the federal Parliament. However, history has moved in a different direction and the Senate’s power—while undeniably potent—has largely been captured and wielded by other forces. The Senate fell almost immediately into party political divisions that have dominated ever since—both in voter choice at elections and in voting within the chamber. The deep tensions and institutional maladaptation flowing from this one fateful development are discussed in more detail in [section C](#) below.¹⁰ It suffices here to say that the Senate’s modern role and influence arguably reflects, in contemporary terms, an Australian commitment to bicameralism ahead of any ongoing commitment to federalism.¹¹ For better or worse, institutional architecture that was designed to protect against central tyranny has morphed into a check on concentrated power more generally.

The High Court’s decisions in interpreting the Constitution are likewise suggestive of a diminished role for federalism as a constitutional value. The reasoning adopted in the *Engineers Case*,¹² widely touted as the High Court’s single most influential decision, became an enduring polemic against federalism as a value to guide constitutional interpretation. While

federal considerations have re-emerged as significant in some discrete contexts,¹³ they have more often played a supporting role to other values such as representative government or the separation of judicial power.

Moreover, when federal considerations have been counterposed to the interest in representative government the Court has favoured the latter. Most memorably, several States challenged the expansion of the Senate in 1973 to give representation to the Territories, arguing that the Senate's principal purpose—to protect the interests of the States—would be undermined by territory representatives. States twice took their grievance to the High Court and lost on each occasion, with a majority of judges accepting that the constitutional commitment to representative government should prevail.¹⁴

While federalism was, then, a pivotal value influencing the design of the federal Parliament, leaving a legacy of structural features that continue to shape Parliament's operation, it is of diminished significance as a contemporary constraint. It does not feature significantly in the behaviour of voters or members of Parliament, nor is it given primary importance in the High Court's interpretation of constitutional constraints upon the Parliament. Accordingly, the remainder of this chapter focuses on constitutional values that are of greater contemporary significance to the Parliament, being representative and responsible government.

C. REPRESENTATIVE GOVERNMENT

The Australian Constitution is deeply committed to a system of representative government. While hard to define exhaustively, the concept at its most basic refers to a system 'in which representatives of the people share, to a significant degree, in the making of political decisions'.¹⁵

In exploring the contours of representative government in Australia, the Constitution's text provides the logical starting point. Its provision is, however, intentionally incomplete. As one highly respected jurist observed:

The framers of the Constitution did not approach their task with a rigid view of what constituted representative democracy; and that is just as well for us. Democracy is always in a state of evolution, and adaptation to changing ideas and circumstances. The Constitution does not seek to entrench more than the bare minimum of conditions for democratic government; it is left to the Parliament to fill in the details, and to alter them from time to time in response to public opinion expressed through political pressure and conflict.¹⁶

The laws made by the federal Parliament have impacted significantly the shape of representative government. Some of the most interesting and important of its initiatives will be canvassed here. The High Court has, for the most part, deferred to the Parliament on these matters and has intervened only infrequently to insist on a vision of representative government different from that favoured by Parliament. The solitary, but explosive, intervention by a Governor-General in setting the parameters for Australian representative government will be discussed further below.

1. Features Mandated by the Constitution's Text

Chapter I of the Constitution, titled 'The Parliament', contains most of the provisions implicated in the establishment of representative government. While sections 7 and 24 have been mentioned already, an additional key feature of these provisions is their instance that persons elected to either chamber must be chosen directly 'by the people', rather than via an electoral college or other intermediary. Additionally, and in contrast to the Senate, House of Representatives seats must be allocated among the States 'in proportion to the respective numbers of their people'.¹⁷ The High Court has invoked these provisions—along with section 128, establishing an amendment mechanism culminating in popular referendum—when asserting the centrality of representative government within the Constitution.¹⁸

Many of the details concerning the contours of representative democracy are expressly left to Parliament to determine and it has, accordingly, made extensive provision within the *Commonwealth Electoral Act 1918* (Cth) ('*Electoral Act*'). This will be discussed in more detail below. Even so, much of the landscape of Australia's parliamentary system is prescribed directly by the Constitution. To the provisions mentioned above can be added the requirement, in section 24, that House of Representatives seats must be allocated among the States 'in proportion to the respective numbers of their people' and the section 29 prohibition on House seats extending across State boundaries.

The Constitution also bears directly upon the qualifications for electors and candidates for election to both Houses. Whilst not providing explicitly for universal suffrage¹⁹ it does provide that anyone eligible to vote in elections for the lower house is thereby also an enfranchised Senate voter

and that ‘in the choosing of senators each elector shall vote only once’.²⁰ Plural voting for the House is likewise proscribed.²¹ These were, at the time of federation, notable democratic credentials when compared with the property franchises, plural voting, and/or nomination-based membership that characterized the upper houses of the State Parliaments.

A similar egalitarian intent pervades the Constitution’s provision as to eligibility for election to the Parliament. The positive eligibility criteria determined by the Parliament for the lower House must also be applied to the Senate.²² Yet while those positive criteria are entrusted to Parliament, the Constitution superimposes some negative criteria. Existing membership of one House disqualifies a person from election to the other.²³ Disqualification also follows from foreign citizenship or allegiance, an unserved prison sentence of at least one year, undischarged bankruptcy, or holding government employment or a public pension.²⁴

2. Parliament’s Initiatives Impacting on Representative Government

Many of the most salient features of representative government in Australia have been incorporated by the federal Parliament, acting under its explicit power to legislate on electoral matters.²⁵ The chief instrument of this regulation has been the *Electoral Act*, which makes extensive and detailed provision.

The *Electoral Act* is home to the layer of more detailed rules fleshing out the limited constitutional provision as to members’ and electors’ qualifications. It provides that eligibility for election to the House of Representatives (and hence the Senate, by operation of section 16 of the Constitution) is limited to adult Australian citizens possessing an entitlement to vote.²⁶ The franchise has been expanded progressively since the early days of federation. While Australia has often been touted as an early adopter of a universal franchise, with women receiving the vote almost immediately upon federation,²⁷ this reputation overlooks the ongoing disenfranchisement of Indigenous Peoples for many decades thereafter.²⁸ Currently, Australia maintains an adult franchise that comes closer to true universality: the only adult citizens excluded are those ‘of unsound mind’, those convicted of treason, and those serving a prison sentence of three years or more.²⁹

Australia's federal Parliament has, on a number of other scores, been an innovator in the pursuit of ever more effective representative government. Bold experiments with electoral systems, in particular, have been keenly observed, if not always followed, by other liberal democracies. The concept of a secret ballot was first known internationally as the 'Australian ballot' in recognition of its origins.³⁰ The method of tallying votes at elections has also been the subject of significant innovation that has had some influence abroad.³¹ At the federal level, members of the House of Representatives are currently elected via a fully preferential voting system centred on single member electorates.³² Senators are elected via a system of proportional representation in which each State and Territory serves as a multi-member electorate. This initiative, instituted in 1948, has yielded a Senate in which minor parties and independents frequently hold the balance of power.³³

Yet the most perpetually distinctive of Parliament's electoral initiatives has perhaps been the institution of compulsory voting. This is a feature of all Australian parliamentary systems and has been in continuous operation at the federal level since 1924.³⁴ In Australia, at least, this has been widely (though by no means universally) assumed to enhance the representative credentials of Parliaments. Although there have been many arguments made for and against compulsory voting in the Australian context,³⁵ its defenders typically assert that it yields a higher quality of representative government than would a voluntary voting system.³⁶ The fact that compliance is close to 100 per cent even while penalties for failing to vote remain token and the informal vote is quite small³⁷ perhaps indicates that most Australians are at least content with, whether or not strongly committed to, compulsory voting.

Of potentially equal significance, although less widely known internationally, has been Parliament's establishment of the Australian Electoral Commission. The Commission, which for over thirty years has existed as an independent statutory authority, is charged with the conduct of elections and the performance of a range of associated functions. The Commission is widely seen to have succeeded in placing above party-political influence such sensitive decisions and functions as electoral redistributions, the management of the electoral roll, and the maximization of opportunities (as to timing, mode, language, etc) for casting votes. A less praiseworthy characteristic for which Australia's Parliament is, in some

circles, known is the especially robust ‘party discipline’ that dictates the course of voting within its chambers. This is not strictly an initiative of the Parliament but more a pattern of behaviour, adopted by individual parliamentarians with a potent collective impact. On that basis it will be set aside for fuller discussion in [section D](#).

Finally, one significant structural reform of the federal Parliament’s composition deserves mention here. Seats have been created in both chambers to represent the residents of the two most populous federal territories of Australia. Section 122 of the Constitution explicitly permits the Parliament to make such provision in respect of either or both houses ‘to the extent and on the terms which it thinks fit’. The Northern Territory and the Australian Capital Territory gained fully-fledged representation in the House of Representatives in the 1960s, after several decades of having been represented by members with curtailed voting privileges. Senate representation for these Territories was instituted by the Parliament in 1973 with the passage of legislation granting two Senate seats to each (provoking unsuccessful State-led legal challenges, described above).³⁸

The High Court’s deliberations around representative government have, though, gone well beyond the context of Territory representation. These other contexts will be considered next.

3. High Court Interventions to Defend Representative Government

For many decades the federal Parliament’s authority to mould, at the national level, the contours of representative government went unchallenged. However, beginning in the 1970s, a series of key High Court decisions has applied the Constitution to overrule Parliament’s preferred order of things. In this role, the High Court has arguably become bolder over time. A few of its most important interventions will be examined here, with the common link being the frustration of Parliament’s will in the name of representative democracy. The discussion will be limited to cases concerned with Parliament’s ability to regulate its own composition and structure, rather than the scope of its powers more broadly.

Several of the most significant cases in this category have involved, in essence, individual litigants inviting the Court to identify a constitutionally protected floor for the federal franchise. The earliest such cases centred on section 41 of the Constitution, which provides:

No adult person who has or acquires a right to vote at elections for the more numerous House of Parliament of a State shall, while the right continues, be prevented by any law of the Commonwealth from voting at elections for either House of the Parliament of the Commonwealth.

In both *King v Jones*³⁹ and *R v Pearson: Ex parte Sipka*⁴⁰ it was argued that this provision was protective in at least some respects of an individual's right to vote. The Court rejected resoundingly these invitations to overrule Parliament's rules on voter eligibility. In the latter case the majority held that section 41, far from being an ongoing guarantee of a broad franchise, was merely a transitional provision. Hence it was declared to protect only specific individuals eligible to vote at the time of federation, not abstract demographic categories going forward.⁴¹

The Constitution's requirement at sections 7 and 24 that parliamentarians be 'chosen by the people' has provided another, ultimately more fruitful, locus for assertions of minimum standards. Such an argument was first put to the High Court in 1975 in *Attorney-General (Cth); Ex rel McKinlay v Commonwealth*,⁴² where section 24 was considered as a possible basis for a 'one vote one value' stricture upon elections for the House of Representatives. Specifically, it was argued that electoral distributions should aim to ensure that each electorate contained near-to-equal number of voters, so that each vote would be of roughly equal potency within and across electoral districts. This proposition was decisively rejected in *McKinlay*,⁴³ though it has found greater support in subsequent obiter.⁴⁴

It was not until the 1990s that the potential of sections 7 and 24 to ground an 'irreducible minimum content'⁴⁵ for representative government was finally realized.⁴⁶ Initially in the context of identifying an implied freedom of political communication⁴⁷ the Court found that the Constitution enshrines a system of representative (and responsible) government.⁴⁸ Crucially, the inherent requirements of that system were found to constrain the Parliament's capacity to alter the matrix of rules within which the system operates. In identifying the textual-structural hook for representative government, the Court has always placed particular importance on the Constitution's references in sections 7 and 24 to parliamentarians being directly 'chosen by the people'.⁴⁹

It is perhaps surprising that, having grounded a flourishing protection for political communication in the Constitution's commitment to representative government, it was some time before the High Court applied this reasoning

to more direct aspects of electoral regulation. In the years following the emergence of the political communication principle, the Constitution's commitment to representative government was reiterated and discussed at length in a series of challenges to Parliament's electoral rules.⁵⁰ These cases considered, for example, legislative prohibition of advocacy of informal voting⁵¹ and the Electoral Commission's legislated mandate to accord privileges only to political parties attaining a minimum threshold membership.⁵² However, it was not until 2007 in *Roach v Electoral Commissioner*⁵³ that a majority of the Court felt justified in calling in Parliament's discretion to regulate elections as it wished.

In *Roach*, a majority of the High Court found that Parliament's amendment of the *Electoral Act* to deny the vote to anyone serving a prison sentence at the time of an election was invalid. Relying on the constitutional commitment to representative government, the majority judgments asserted the Court's responsibility to uphold the minimum standards inherent in that commitment. The provision challenged in *Roach*, excluding voters currently serving a prison sentence of any duration, was found to be an indefensible restriction of the franchise. Interestingly, the provision's previous incarnation, excluding prisoners serving sentences of three years or more, was considered in *Roach* to strike a better balance between the commitment to a broad franchise and the competing public interest in excluding persons whose fitness to exercise it might be compromised. Following the *Roach* decision that more limited provision revived and became once again the operative rule on prisoner exclusion.

The *Roach* decision was controversial. Critics lamented the High Court's decision to install itself as the diviner of such an amorphous and politically charged standard as contemporary representative government and its fundamental requirements.⁵⁴ That criticism intensified when, soon after, the Court again invalidated Parliament's handiwork in relation to voter eligibility.⁵⁵ In *Rowe v Electoral Commissioner*,⁵⁶ the Court considered the validity of amendments to the *Electoral Act* which prevented the addition of new names to the electoral roll, or the transfer of existing enrolments to reflect a change of address, once writs had been issued for an election. Previously, eligible voters were allowed seven days to seek these changes to the roll; the impugned amendments would have excluded close to 100,000 otherwise eligible people. By a slim majority the High Court held that those

restrictions on voter eligibility were not compatible with the constitutionally protected, irreducible minimum content of representative government as outlined in *Roach*. Whatever public interest might have been asserted for the restriction, it was not strong enough to outweigh the declared constitutional interest in an expansive franchise.

These cases, in which the High Court has clipped Parliament's constitutionally conferred discretion to dictate the everyday topography of the system of representative government, have been a lightning rod for criticism of the Court's approach to judicial review more generally. For Australian commentators concerned about supposed 'judicial activism', *Roach* and *Rowe* have become exemplars of High Court arrogance and imperialism.⁵⁷ Despite the attention given to these cases, they ought not to be allowed to overshadow the larger picture regarding the evolution of representative government in Australia; that is, that most of the contouring has been at the hand of the Parliament.

D. RESPONSIBLE GOVERNMENT

The system of 'responsible government', integral to the British constitutional tradition, is a fundamental feature of the institution of Parliament in Australia at both Commonwealth and State levels.⁵⁸ The term describes a set of principles about who should exercise executive power and the mechanisms rendering them accountable for their decisions and actions.⁵⁹ When viewed from a constitutional perspective, the central feature of responsible government is that the Ministers of government (ie, the executive branch) are appointed from among the ranks of parliamentarians and are in that way accountable to the Parliament for their performance. The two most important subsidiary features of responsible government are, first, that the Ministers of government are appointed by the lower, or 'people's', house and, second, that the Queen's representative—at the federal level the Governor-General—while notionally the head of the executive government must only exercise his or her powers on the advice of Ministers.

In theory, these conventions create a chain of accountability that extends from the executive government, through the Parliament and to constituents at its endpoint. Ministers in the executive government are said to be

individually and collectively responsible to the Parliament: individual Ministers must answer to the Parliament for their mistakes, and resign if Parliament so demands; the whole Ministry is collectively accountable and if it 'loses the confidence' of the Parliament it can be decommissioned and replaced.

Responsible government had been a fixture of colonial government for decades before the drafting of the federal Constitution began.⁶⁰ Undoubtedly, for most involved in drafting the Constitution, an Australian Parliament without responsible government at its heart would have been unthinkable. Yet the Constitution that emerged from this drafting process reveals the centrality of responsible government only to the trained eye.

1. The Constitution's Commitment to Responsible Government

For those familiar with the system of responsible government, its central struts are indeed evident in the Constitution's terms; in particular, section 64 requires that Ministers of government be members of either house of the Parliament and section 62 establishes a 'federal executive council' to advise the Governor-General on the exercise of executive power. Supporting those core requirements are an additional layer of express provisions which are even more subtle in their implication: section 6 requires that Parliament be summoned at least once annually; section 49 empowers each chamber of the Parliament to define the limits of its own 'privileges' to demand answers and documents from, among others, Ministers; section 81 requires that all money raised by the executive be deposited into a single 'Consolidated Revenue Fund'; and, section 83 gives Parliament control over the appropriation of those funds.

It is just as important, in tracking the contours of responsible government within the Constitution, to note the key institutions and practices which are neither mentioned nor alluded to therein. Most strikingly, there are no references to the office of Prime Minister, the institution of Cabinet, the power of the House of Representatives to select and dismiss governments, and the general obligation upon the Governor-General to act only on ministerial advice. Indeed, a newcomer to the Australian constitutional system would, on consulting the text, be justified in assuming that the Governor-General holds extensive practical influence over the workings of the Parliament. Chapter I of the Constitution gives the Governor-General a

discretion to schedule parliamentary sessions and to prorogue or dissolve the Parliament,⁶¹ as well as discretion to give or withhold assent to bills and to suggest amendments.⁶² The Governor-General may also elect to reserve any bill ‘for the Queen’s pleasure’—that is, to seek the Queen’s direct imprimatur in lieu of his or her own assent—potentially slowing the legislative process significantly.⁶³

Importantly, though, these express conferrals are qualified by enduring and potent conventions of responsible government. These conventions demand of the Governor-General that, other than in exceptional circumstances, he or she exercise any constitutionally conferred discretions solely at the behest and on the advice of the responsible ministers appointed from within the Parliament.⁶⁴ There has been just one—notorious and rather complicated—flouting of that convention by a Governor-General. In November of 1975, Governor-General Sir John Kerr dismissed Prime Minister Gough Whitlam without taking the conventional advice from the incumbent Ministers of government. Kerr then appointed a new Prime Minister lacking the confidence of the House, dissolved the Parliament, and issued election writs. The reasons Kerr gave for departing, so dramatically, from the conventions of responsible government centred on his perception that certain events—in short, the Senate’s tactical refusal to release funds for government expenditure—had brought the Commonwealth to the brink of catastrophe. In those circumstances, he and his defenders argued, a Governor-General is justified in exercising the so-called ‘reserve’ powers; that is, the powers conferred by the Constitution’s text unconditioned by the (temporarily suspended) conventions of responsible government.⁶⁵ Whether or not the events of 1975 presented an appropriate occasion for the exercise of those reserve powers has been, and continues to be, debated passionately. Constitutional amendments to codify key aspects of the conventions of responsible government have been proposed intermittently, but no Parliament has yet sponsored these proposals to referendum.

While those fractious events of 1975 dealt an acute injury to responsible government in the federal parliamentary context, other significant injuries to that principle have been slower to unfold. Some of the chronic problems that follow from practices willingly adopted by members of the Parliament will be discussed below. But structural features of Australian federalism, enshrined in the Constitution, have also placed perpetual strain on

responsible government. This latter impediment to robust responsible government was clearly within the contemplation of the Constitution's framers, flowing directly—indeed necessarily—from the ambitious compositing they undertook in devising a hybrid constitutional model. It reflects a tension going to the document's heart—a tension which cannot plausibly be excised, nor approached with any ambition beyond damage control.

The likelihood, now starkly apparent, that responsible government would rest uncomfortably within the federal architecture was variously overlooked, downplayed, or varnished with optimism by most of the Constitution's framers. Since those early years, the difficult coexistence between the Parliament's federalism-inspired features, on the one hand, and its investment in representative and responsible government, on the other, has been much discussed and analysed.⁶⁶ This tension, embedded deep within the structure of the Parliament, is arguably the Constitution's signature design flaw.

At its most basic, the problem is this: responsible government is predicated on the lower House of Parliament being the locus of power and the principal stage for executive accountability, yet, at the same time, a commitment to federalism has yielded a strong upper House in which the Constitution reposes powers potent enough to bring down a government. A government can, even while it retains the unwavering support of the lower house, as a practical matter be forced to an early election by a hostile Senate exercising its constitutional powers to turn off the flow of money to the executive or reject key pieces of legislation.⁶⁷ Whilst this scenario unfolded most dramatically in 1975 with the demise of the Whitlam Labor government, Senate hostility has pushed governments to an early election on other occasions too.

A strong Senate is, for better or worse, a conscious design feature of Australian federalism, intended to represent and defend the interests of the States within the federal Parliament. Soon after the Senate was established, however, it became typified by the same party discipline that had engulfed the lower House and electors quickly came to cast their Senate votes chiefly according to their party-political preference. More recent developments in the Senate—in particular, the adoption of a system of proportional representation and the consequent rise of minority party and independent Senators—have to some degree diluted, or at least altered, the chamber's

party-politicized operation. Yet the Senate's threat to the traditional conception of responsible government cannot be understood as a simple function of political parties and trends in their influence. A Senate fulfilling its intended role as defender of States' interests, and elected on that basis, could equally be expected to use actively its constitutional powers to block key legislation or the money supply—and would likely have a greater claim to legitimacy in that enterprise than have party-politically motivated Senates over the years.

Whilst this incongruence, when examined in the abstract, might seem to bode doom, the reality is that Australian constitutional government has muddled along adequately in its shadow. A deep structural fix has not been possible due to ongoing partisan disagreement about the causes of the 1975 crisis and how best to respond. The inability of the two major political parties to move beyond their well-established and contradictory polemics has left the issue in deadlock. To give the situation a more positive spin, though, Australia might be regarded as a living, and largely successful, experiment in the extent to which deeply enculturated commitments to democracy and the rule of law can surmount significant institutional design flaws.

2. Adopted Practices and their Impact on Responsible Government

In contrast to the immovable structural obstacle to robust responsible government just described, other sources of ongoing damage to the principle are well within the Parliament's control. Most significant among these is the unusually strong degree of political party cohesion and/or discipline that has characterized Australian politics for many decades.⁶⁸ 'Party cohesion' is a measure of how reliably the parliamentary members of a political party cast their votes the same way. 'Party discipline', on the other hand, describes the extent to which parliamentarians reliably vote in accordance with instructions coming from their party group. The Australian Parliament is widely regarded as unparalleled—at least among western liberal democratic legislative bodies—in the extent to which elected members of political parties exhibit cohesion and discipline.⁶⁹ Members of the Parliament who elect to cross the floor on any single vote know that they risk a punitive response from their party, either rapid expulsion or, in the longer run, withholding of the party's endorsement, assistance, and

resources at re-election time. Unsurprisingly, disagreement with the party line is rarely enacted on the floor of Parliament. This parliamentary meekness in the shadow of strong party discipline has been found, in some contexts, to cultivate a climate that is conducive to government corruption or financial mismanagement.⁷⁰

In the colonial era and in the very early post-federation years, before the solidification of the ‘two party system’ in Australian politics, party affiliations were comparatively loose and voting in parliamentary chambers often did not follow predictable party lines.⁷¹ Under those circumstances, the conventions of responsible government proved an effective means of ensuring individual and collective ministerial accountability. However, under the shadow of strict party discipline—and in a setting where minority governments remain a rarity—questions of ministerial competence are determined along party-political lines and so resignations are only ever at the behest of a Minister’s own party, rather than that of the Parliament as a whole. This has been confirmed in dramatic fashion in recent times. Since 2010 there have been three occasions on which an Australian Prime Minister has been ousted mid-term, having lost the confidence of parliamentary members of his or her own political party.⁷² In each instance, the key vote was taken outside the parliamentary chamber and the Prime Minister-elect was swiftly sworn in by the Governor-General with the change announced to the Parliament, as a *fait accompli*, only in the aftermath.

It might be asked why this extreme form of party discipline would have persisted if it so undermines the Parliament’s capacity to be faithful to the principle of responsible government. There are a few potential explanations. One is simply that the problem has clear collective action dimensions. Another is that current parliamentarians have become invested in the system—as beneficiaries of party patronage—even before their election. The passivity or ignorance of voters might be put forward as a further factor; if voters were resentful of this erosion of a key democratic principle they could switch their vote to a smaller, potentially less ‘disciplined’, party candidate or to an independent candidate. Yet this, too, presents as a collective action problem. In the fully preferential voting system that is utilized in House of Representatives elections, a vote will be deemed informal if it does not number every candidate, meaning a voter is unable to ensure that his or her (valid) vote will not ultimately be distributed to a

major party candidate.⁷³ Hence it is only if large numbers of voters turn away from the large parties that the influence of those parties can be drained. The scale of that challenge is evident in the composition of the current, forty-fourth, Parliament in which a mere five of 150 members of the House of Representatives are independent or small party-aligned.

Aside from party discipline, there are several other practices adopted by the federal Parliament which compromise the attainment of responsible government.⁷⁴ The extensive delegation of law-making power to members of the executive government and the, in practice, very limited superintendence of those delegations has long been a source of contention. Not only does the Parliament cede ever-increasing amounts of law-making power in this way, but it seems to do so in an unprincipled fashion—that is, without any explicit criteria for determining when rule-making by delegates might be appropriate.⁷⁵ It is perhaps ironic that the High Court, in giving general endorsement to this practice of extensive delegation over eighty years ago, relied on the theoretical capacity of Parliament to hold the executive to account as its reason for declining to impose constitutional limits.⁷⁶

Among other established practices criticized as corrosive of responsible government are the executive's use of intergovernmental agreements, and contracts with non-government entities, as vehicles for securing its policy priorities. Both practices have enabled government to engage in a *de facto* form of regulation without parliamentary imprimatur—other than perhaps in the most limited sense of Parliament's having approved at some stage a bare appropriation to support any spending.

The High Court has recently made some inroads, to be discussed below, into the perceived problem of law-making by contract. The problem of intergovernmental agreements as a means of obviating effective parliamentary scrutiny of government, on the other hand, continues to grow as intergovernmental initiatives bloom in new policy areas.

Not all of Parliament's practices, however, operate to the detriment of responsible government. Some of its initiatives have served to enhance the Parliament's capacity to monitor the activities of government and call it to account. The most commonly cited example of this is the system of Parliamentary committees—some of which are the creation of one house while others are 'joint'—through which members of different political

persuasions work together to achieve a range of objectives: including the scrutiny of bills, expenditure, treaty ratifications, and policies. The Committee system is widely celebrated as a success, not only in facilitating parliamentary scrutiny of government but also in creating opportunities for community input into policy.⁷⁷

3. The High Court's Preparedness to Defend Responsible Government

When the Constitution gives expression to the principle of responsible government, as a constraint upon the structure and operation of the Australian Parliament, it assumes compliance on the part of implicated actors. In line with the British parliamentary tradition, most of the Constitution's framers would have assumed that sanctions for infidelity to responsible government must be 'political'; that is, dispensed by other actors further down the chain of accountability rather than by the judiciary.⁷⁸ Nevertheless, the High Court has in recent years revealed a growing interest in enforcing conformity with the requirements of responsible government. Those nascent views will be considered here.

Three recent decisions, in particular, suggest that the Court is increasingly comfortable drawing on the Constitution's commitment to responsible government to aid in the construction of specific constitutional provisions. This is at least the case where the issue concerns delineation of functions between the executive and the Parliament. In *Pape v Federal Commissioner of Taxation*, the Court was unanimous in finding that section 81 of the Constitution, which permits the Parliament to appropriate funds from the Treasury, does not confer any follow-on power which might validate the distribution of those funds to non-government beneficiaries.⁷⁹ In reaching this view, the judgments acknowledged the origins of the section 81 appropriations provision as a codification of one key strut of responsible government; that is, as a provision designed to render the executive accountable to Parliament in matters of spending. Having established that purpose the judgments found—with varying degrees of explicitness—that the Commonwealth's preferred interpretation of section 81 would undermine the principle of responsible government.

Some of the judgments in the subsequent case of *Williams v Commonwealth*⁸⁰ draw on the principle of responsible government in

interpreting section 61 of the Constitution, by which the executive power of the Commonwealth is conferred. The case considered whether section 61 authorized Commonwealth spending via contract in the absence of parliamentary imprimatur. The fact that the Commonwealth's preferred reading would limit Parliament's role to one of simply appropriating the funds—and in practice without adequate information about the likely destinations of those funds—was acknowledged to be inconsistent with the spirit of the principle of responsible government.⁸¹ While other considerations, such as the federal nature of the Constitution, also influenced the result, it was the principle of responsible government that provided the clearest common ground among the several majority judgments.⁸²

In *Combet v Commonwealth*,⁸³ the Court was asked to consider the Parliament's powers of appropriation from a quite different angle. Specifically, it was asked to find that particular government expenditure had not been authorized by the Parliament and so was invalid. A majority found that the relevant government spending—on advertisements to defend controversial workplace relations reforms—could not be impugned because Parliament had effectively waived its right to oversee line items of expenditure in any meaningful way. Three judges, including two who dissented in the result, signalled a preference for construing section 83 as a more potent, less readily circumvented, constraint upon executive spending. Their reasoning turned on the centrality of parliamentary control over expenditure to the principle of responsible government.⁸⁴ While this case was, in the result, decided in favour of the Commonwealth—meaning that the executive's will prevailed over the notional interests of the Parliament—the extensive reference to responsible government in the judgments does at least attest to the Court's increasing comfort upon this terrain.⁸⁵

It has been suggested that, in these recent cases, the High Court has set its compass for a 'juridification' of the principle of responsible government.⁸⁶ Whether or not there has been a conscious agenda, the fact remains that the steps taken so far have been fledgling. In *Pape, Williams, Combet*, and scattered earlier cases going back many decades,⁸⁷ responsible government has been deployed merely as a background principle capable of guiding the interpretation of specific constitutional provisions. There has been no suggestion, in any of these settings, that responsible government

could ever be regarded as a transcending principle having the status of a generalized limitation upon legislative and/or executive power. In that sense, these cases make for an interesting contrast with the Court's utilization of the principle of representative government, particularly in its development of an implied freedom of political communication. There, the principle of representative government⁸⁸ has been, despite the Court's insistent rhetoric to the contrary, detached from specific provisions⁸⁹ and developed into a substantive limitation upon power—a much more potent status than a mere aid to construction.

The political communication doctrine deserves closer attention here in that it has been fashioned, at least in form, out of both representative government *and* responsible government. The earliest formulations of the doctrine centred on an amalgam concept—‘representative and responsible government’—and that nomenclature has survived to this day. The concept has, on different occasions, been referenced with a shorter or longer list of supporting constitutional provisions. The shorter version of the list focuses on textual manifestations of representative government.⁹⁰ The longer variants of the list have referenced, in addition, provisions reflecting the Constitution's commitment to responsible government. In the longest standing of the leading case in the area—*Lange v Australian Broadcasting Corporation*—a single unanimous judgment nominated sections 6, 49, 62, 64, 83, and 128 as constitutional provisions which ‘enforc[e] the responsibility of the Executive to the organs of representative government’.⁹¹ It is interesting that, in *Lange*, textual anchors for the concepts of representative government and responsible government were enumerated in two distinct lists, to emphasize the quite different nature and requirements of each concept. Since then, however, there has been a drift back to the undifferentiated amalgam concept in judicial discussions of the political communication doctrine.⁹²

To the extent that the principles of representative government and responsible government overlap, in their mutual demand that Parliament be accountable to the people, many of the decided cases on political communication can indeed be understood as protecting both. However, it is less clear whether the uppermost links of the responsible government ‘chain’—the principles governing relations between the Governor-General and the executive, and the executive and the Parliament—could ever be

meaningfully impacted by the protections available for political communication further downstream. One reason for scepticism here might be the Parliament's potent and well-established power to define and enforce its own privileges and immunities, including as to relations with Ministers, and the judiciary's historical reluctance to be drawn in.⁹³ Another might be the fact that the political communication doctrine has always been conceptualized as an immunity to be invoked defensively.⁹⁴

Yet even if the political communication doctrine is unlikely to be of direct relevance in disputes between the executive and Parliament, it could nevertheless provide a useful marker for the Court in navigating upstream to the Constitution's commitment to responsible government. In the same way that the majorities in *Roach* and *Rowe*, discussed earlier, moved beyond the political communication doctrine to tap directly into the Constitution's commitment to representative government, a Court so inclined could tease out of the principle of responsible government enforceable obligations and limitations going beyond those expressed in the text.

One set of scenarios in which such an appeal to responsible government might have purchase are disputes or complaints arising from the executive's domination of the Parliament. This dynamic—a flow-on effect of strong party discipline, discussed earlier—sometimes sees Parliament ceding ground in apparent contradiction of the principle of responsible government. Indeed, this was the background to the *Combet* case, in which one of the plaintiffs seeking to restore fidelity to an aspect of responsible government was a member of the parliamentary opposition, and the *Williams* case, in which the plaintiff was an affected member of the public. Where Parliament is, as a collective, unwilling to exercise its own powers to hold the executive accountable it may well fall to individual parliamentarians, or even constituents as downstream beneficiaries, to seek legal redress. In any case where the specific question for the Court cannot readily be framed by reference to individual constitutional provisions—for instance, to section 49 in its provision for Parliament's privileges—a higher-level principle of responsible government might prove helpful. The facts of *Victoria Stevedoring & General Contracting Co Pty Ltd v Dignan*,⁹⁵ in which the Court was asked to invalidate a sweeping delegation of legislative power to the executive—suggest one context in which no

single provision of the Constitution offers an adequate framework for resolving a dispute.

A quite different set of potential disputes may provide equally fertile ground for a direct appeal to the principle of responsible government. Although the Court has never been asked⁹⁶ to rule on the circumstances in which a Governor-General may legitimately exercise ‘reserve powers’—that is, the powers as explicitly stated, untempered by the conventions of responsible government—there is no barrier to this other than of the Court’s own making. Had it been a Liberal Party government poised to lose office in 1975, one could imagine then Chief Justice Barwick, a former Liberal Attorney-General, insisting that the Court could adjudicate these questions. If ever the High Court did venture down this path, and given the clear and potent expression of the Governor-General’s powers, it is unrealistic to think that construction of isolated provisions of the Constitution could account adequately for the conventions that have historically conditioned them.⁹⁷ Appeal to an overarching meta-principle of responsible government could, though, provide a means of reasoning to limits on the exercise of the reserve powers.

This returns attention to the self-imposed limits on the Court’s preparedness to intervene in matters deemed ‘political’. For many decades the High Court was reluctant to scrutinize relations within and between the executive and the Parliament and pronounce upon the constitutionality of related actions and events.⁹⁸ In particular, the default position on scrutiny of intra-parliamentary events and processes, prior to an enactment, was that these are best regarded as inherently political and hence non-justiciable.⁹⁹ That stance has not, however, been absolute. The 1970s saw a particular flurry of activity in this space, with the Court hearing disputes about the conduct of joint sittings of Parliament and changes to the composition of the House of Representatives.¹⁰⁰ More recent cases—including *Combet*—have seen the Court engage willingly with issues that might once have been deemed non-justiciable.¹⁰¹ With these developments, it is tempting to conclude that the High Court is now truly reconciled to its role as guardian of an entrenched, written Constitution in all of its dimensions.

Given this fairly flexible view of justiciability, is a window emerging for a transcendent principle of responsible government? Among the trends begging this question is the High Court’s now ritual incantation, in the

political communication setting, of a commitment to defend representative *and* responsible government. Looked at from another angle, however, the same developments might reveal a need to put that incantation under the microscope. If the High Court is not willing to evolve its stance on justiciability—to enable it better to protect the full spectrum of relationships captured by the principle of responsible government—one might then ask whether it is appropriate to persist with the notion that the political communication principle emerges from and protects ‘representative and responsible government’. If all but one of the links in the responsible government chain were considered out of bounds, the High Court’s capacity to intervene in the political branches’ activities to nourish and defend that principle will be greatly diminished.

Some clues as to the Court’s thinking here might be sought in *Combet*, *Pape*, and *Williams*. In particular, one might expect to find references in the judgments, or even in transcripts of argument, to the amalgam concept of ‘representative and responsible government’, as employed in the political communication context, if indeed that term were understood to encompass the entire chain of accountability normally associated with the concept of representative government. It is intriguing, then, that among all of those amassed pages there is not a single reference to the fact that responsible government underpins the freedom of political communication. It is tempting to conclude that responsible government is in fact not an equal partner in the doctrine of political communication and that, rather, only the last link in its chain of accountability is protected. If indeed the principle of responsible government in this context has no work to do, and merely replicates aspects of the representative government principle’s function, why, one might ask, would it have been included in the first place? Perhaps the inclusion of responsible government at the heart of the concept was intended to head off the possibility that the freedom of political communication would, at some later stage, be confined only to election periods.

In any case, where the Court goes from here in its efforts to ensure fidelity to the principle of responsible government is a space to watch. The possibilities are myriad and the stakes, many would say, are very high.

E. CONCLUSION

Few would contest that the Parliament is the centrepiece of the Australian Constitution. Yet, with the passage of time, its resemblance to the omnipotent institution at the centre of the classical liberal ideal has diminished steadily. While the Parliament has no control over some of the most obvious impediments to its power—particularly those following from the federal features of the Constitution and the High Court’s review powers—the institution itself must accept responsibility for the diminution it has suffered as a result of executive dominance. The High Court could, if willing, play a role in restoring the Parliament to its rightful place at the centre of government. While there have been some encouraging signs of late, it remains to be seen whether the Court would ever be willing to uphold the principle of responsible government as assertively as it has, at times, defended the principle of representative government. Despite its traditional reservations about entering into this territory, the High Court may, at least in terms of realpolitik and the evolving supervisory role of the institution, be best placed for the task.

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¹ *Nationwide News Pty Ltd v Wills* (1992) 177 CLR 1; *Australian Capital Television v Commonwealth* (1992) 177 CLR 106 (*ACTV*); Stephen Gageler, ‘Foundations of Australian Federalism and the Role of Judicial Review’ (1987) 17 *Federal Law Review* 162.

² *Australian Constitution*, s 107, which confirms the ongoing existence of State Parliaments and their retention of powers to the extent compatible with the new federal Parliament’s powers.

³ See Harry Evans and Rosemary Laing (eds), *Odgers’ Australian Senate Practice* (13th edn, AGPS 2012) ch 1; Hugh Emy, *The Politics of Australian Democracy* (2nd edn, Macmillan 1978) 192–93.

⁴ Official Record of the Debates of the Australasian Federal Convention (1891–98; reprint Legal Books, 1986); John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (1901; revised and reprinted LexisNexis 2015).

⁵ See Chapter 26, ‘Separation of Legislative and Executive Power’.

⁶ *Commonwealth Constitution*, s 6.

⁷ *ibid* s 15.

⁸ *ibid* s 53.

⁹ *ibid* s 57.

¹⁰ See also Chapter 25 ‘Executives’.

¹¹ On this distinction, see Chapter 37 ‘Rights Protection in Australia’.

¹² *Amalgamated Society of Engineers v Adelaide Steamship Co Ltd* (1920) 28 CLR 129 ('Engineers Case').

¹³ In particular, the doctrine of State Immunity traced to *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31. For a topical recent example, see *Williams v Commonwealth* (2012) 248 CLR 156, 178, 215–16 (French CJ), 218, 234 (Gummow and Bell JJ) ('School Chaplains Case').

¹⁴ *Western Australia v Commonwealth* (1975) 134 CLR 201 ('Territory Senators Case No I'); *Queensland v Commonwealth* (1977) 139 CLR 585 ('Territory Senators Case No II').

¹⁵ A H Birch, *Representative and Responsible Government: An Essay on the British Constitution* (Allen & Unwin 1964) 13.

¹⁶ Murray Gleeson, 'The Shape of Representative Democracy' (2001) 27 Monash University Law Review 7.

¹⁷ *Commonwealth Constitution*, 24.

¹⁸ See, eg, *ACTV* (n 1) 137–38; *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520, 560; *McCloy v New South Wales* (2015) 257 CLR 178.

¹⁹ Notably, the Constitution did not institute female suffrage directly. Rather, eligibility to vote was conditioned, '[u]ntil the Parliament otherwise provide[d]', on having such an entitlement in one's home State: *Commonwealth Constitution*, s 30.

²⁰ *Commonwealth Constitution*, s 8.

²¹ *ibid* s 30.

²² *ibid* s 16.

²³ *ibid* s 43 (as does membership of a State or Territory legislative chamber: *Electoral Act*, s 164).

²⁴ *Commonwealth Constitution*, s 44.

²⁵ *ibid* s 51(xxxvi).

²⁶ *Electoral Act*, s 163.

²⁷ *Commonwealth Franchise Act 1902* (Cth). However, it was another forty-one years before a female parliamentarian was elected.

²⁸ Indigenous Australians became eligible to vote in 1962; this vote was made compulsory in 1983.

²⁹ *Electoral Act*, ss 93(8), 93(8AA).

³⁰ Jill Lepore, 'Rock, Paper, Scissors: How we used to Vote' *New Yorker* (New York, 13 October 2008) <<http://www.newyorker.com/magazine/2008/10/13/rock-paper-scissors>> accessed 3 December 2015.

³¹ David Farrell and Ian McAllister, '1902 and the Origins of Preferential Electoral Systems in Australia' (2005) 51 *Australian Journal of Politics and History* 155.

³² *Electoral Act*, ss 57, 240.

³³ *ibid* s 273; Marian Sawer and Sarah Miskin (eds), *Representation and Institutional Change: 50 Years of Proportional Representation in the Senate*, Papers on Parliament No 34 (Parliament of Australia, 1999) <http://www.aph.gov.au/About_Parliament/Senate/Powers_practice_n_procedures/pops/pop34> accessed 10 November 2016.

³⁴ *Electoral Act*, s 245(1); Anne Twomey, 'Compulsory Voting in a Representative Democracy: Choice, Compulsion and the Maximisation of Participation in Australian Elections' (2013) 13 *Oxford University Commonwealth Law Journal* 283, 285–87.

³⁵ Twomey (n 34); Lisa Hill, 'Compulsory Voting in Australia: Residual Problems and Potential Solutions' (2002) 37 *Australian Journal of Political Science* 437; Peter Barry, 'How Compulsory Voting Subverts Democracy' (2013) 57 *Quadrant* 38.

- ³⁶ Twomey (n 34) 305–11.
- ³⁷ Between 3 per cent and 6 per cent since 1986: Australian Electoral Commission, *Electoral Pocketbook* (AEC 2014) 49–50.
- ³⁸ *Senate (Representation of the Territories) Act 1973* (Cth); see text accompanying n 14, above.
- ³⁹ (1972) 128 CLR 221.
- ⁴⁰ (1983) 152 CLR 254 (*‘Ex parte Sipka’*).
- ⁴¹ *ibid* 260–65, 278–80.
- ⁴² (1975) 135 CLR 1.
- ⁴³ *ibid* 20–21 (Barwick CJ), 36 (McTiernan and Jacobs JJ), 43–45 (Gibbs J), 57 (Stephen J), 61 (Mason J).
- ⁴⁴ *McGinty v Western Australia* (1996) 186 CLR 140, 166–67 (Brennan CJ), 201 (Toohey J), 221–22 (Gaudron J), 287 (Gummow J).
- ⁴⁵ *Mulholland v Australian Electoral Commission* (2004) 220 CLR 181, 189 (Gleeson CJ), 206 (McHugh J).
- ⁴⁶ *Wills* (n 1); *ACTV* (n 1).
- ⁴⁷ See Chapter 39 ‘Expression’.
- ⁴⁸ As will be explained below, the political communication doctrine has evolved around an amalgam concept of ‘representative and responsible government’. In substance, however, the doctrine has been concerned primarily, if not exclusively, with representative government.
- ⁴⁹ Additionally, the Court has relied on ss 6, 49, 62, 64, 83, and 128 to assert that the protection is not limited to election periods: *Lange* (n 18) 561.
- ⁵⁰ See Chapter 40 ‘Political Participation’.
- ⁵¹ *Langer v Commonwealth* (1996) 186 CLR 302; *Muldowney v South Australia* (1996) 186 CLR 352.
- ⁵² *Mulholland* (n 45).
- ⁵³ (2007) 233 CLR 162.
- ⁵⁴ James Allan, ‘The Three ‘Rs’ of Recent Australian Judicial Activism: *Roach*, *Rowe* and (No)’riginalism’ (2012) 36 Melbourne University Law Review 743, 750–70; Anne Twomey, ‘*Rowe v Electoral Commissioner*—Evolution or Creationism?’ (2012) 31 University of Queensland Law Journal 181, 183–86; Nicholas Aroney, ‘Towards the Best Explanation of the Constitution: Text, Structure, History and Principle in *Roach v Electoral Commissioner*’ (2011) 30 University of Queensland Law Journal 145, 154–56.
- ⁵⁵ Twomey ‘*Rowe v Electoral Commissioner*’ (n 54).
- ⁵⁶ (2010) 243 CLR 1.
- ⁵⁷ See, eg, Allan (n 54).
- ⁵⁸ See also Chapter 25 ‘Executives’.
- ⁵⁹ Simon Evans, ‘Continuity and Flexibility: Executive Power in Australia’ in Paul Craig and Adam Tomkins (eds), *The Executive and Public Law: Power and Accountability in Comparative Perspective* (OUP 2006) 89–90.
- ⁶⁰ Quick and Garran (n 4) 35–74.
- ⁶¹ *Commonwealth Constitution*, ss 5, 28, 57.
- ⁶² *ibid* s 58.
- ⁶³ *ibid* ss 58, 60.
- ⁶⁴ See Chapter 9 ‘Unwritten Rules’.

⁶⁵ John Kerr, *Matters for Judgment: An Autobiography of Sir John Kerr* (MacMillan 1978); Sir Garfield Barwick, *Sir John Did His Duty* (Serendip Publications 1983); Paul Kelly, *November 1975: The Inside Story of Australia's Greatest Political Crisis* (Allen & Unwin 1995); Geoffery Sawer, *Federation Under Strain: Australia 1972–1975* (Melbourne UP 1977).

⁶⁶ Elaine Thompson, 'The "Washminster" Mutation', in Patrick Weller and Dean Jaensch (eds), *Responsible Government in Australia* (Drummond 1980) 32; George Winterton, *Parliament, the Executive and the Governor-General a Constitutional Analysis* (Melbourne UP 1983) 5; Stephen Gageler, 'Foundations of Australian Federalism and the Role of Judicial Review' (1987) 17 *Federal Law Review* 162, 164–74.

⁶⁷ *Commonwealth Constitution*, ss 53, 57.

⁶⁸ Dean Jaensch, *Power Politics: Australia's Party System*, (3rd edn, Allen & Unwin 1994) 131–33.

⁶⁹ *ibid* 234–38; Christopher B Kam, *Party Discipline and Parliamentary Politics* (CUP 2009) 47–51; William B Heller and Carol Mershan, 'Introduction: Legislative Party Switching, Parties and Party Systems' in William B Heller and Carol Mershan (eds), *Political Parties and Legislative Party Switching* (Palgrave Macmillan 2009) 4, 11.

⁷⁰ Cheryl Saunders, 'Rethinking the Parliamentary System: Contributions from the Australian Debate' (1991) 29 *Alberta Law Review* 336, 337 fn 3, citing *Report of a Commission of Inquiry Pursuant to Orders in Council—Fitzgerald Report* (Queensland Government Printer 1989) 123.

⁷¹ Peter Loveday, 'The Federal Parties' in Peter Loveday, Alan W Martin and Robert S Parker (eds), *The Emergence of the Australian Party System* (Hale and Ironmonger 1977) 383; Jaensch, (n 68) 18–19.

⁷² Also discussed in Chapter 25 'Executives'.

⁷³ *Electoral Act*, s 240.

⁷⁴ See also Chapter 25 'Executives'.

⁷⁵ Saunders (n 70) 343.

⁷⁶ *Victorian Stevedoring & General Contracting Co Pty Ltd v Dignan* (1931) 46 CLR 73.

⁷⁷ Saunders (n 70); John Uhr, *Deliberative Democracy in Australia: the Changing Place of Parliament* (CUP 1998) 144–49.

⁷⁸ Geoffrey Lindell, 'Justiciability' in Tony Blackshield, Michael Coper, and George Williams (eds), *The Oxford Companion to the High Court of Australia* (OUP 2001) 391. See also *Re Ditfort; Ex parte Deputy Commissioner of Taxation (NSW)* (1988) 19 FCR 347, 368–9 (Gummow J).

⁷⁹ (2009) 238 CLR 1, 55, 73, 113, 210–11.

⁸⁰ (2012) 248 CLR 156.

⁸¹ *ibid* at 204–06 (French CJ), 232–35 (Gummow and Bell JJ), 259–61, 266 (Hayne J), 349–52 (Crennan J), 369–70 (Kiefel J).

⁸² *ibid*; see also James Stellios, *Zines's The High Court and the Constitution* (6th edn, The Federation Press 2015) 394.

⁸³ (2005) 224 CLR 494.

⁸⁴ *ibid* 522 (Gleeson CJ), 535–37 (McHugh J), 595–98 (Kirby J).

⁸⁵ *ibid* n 80.

⁸⁶ See, eg, Stellios (n 82) 390–97.

⁸⁷ *Dignan* (n 76) 114 (Evatt J); *Attorney-General (Vic); Ex rel Dale v Commonwealth* (1945) 71 CLR 237, 253 (Latham CJ); *R v Kirby; Ex parte Boilermakers' Society of Australia* (1956) 94 CLR 254, 275–76 ('Boilermakers'); *Brown v West* (1990) 169 CLR 195, 201–02 (Mason CJ, Brennan, Deane, Dawson and Toohey JJ); *Egan v Willis* (1998) 195 CLR 424.

⁸⁸ Strictly, an amalgam concept of ‘representative and responsible government’ though the decided cases have really been concerned with representative government.

⁸⁹ Adrienne Stone, ‘The Limits of Constitutional Text and Structure’ (1999) 23 Melbourne University Law Review 668; Adrienne Stone, ‘The Limits of Constitutional Text and Structure Revisited’ (2005) 28 University of New South Wales Law Journal 842.

⁹⁰ See, eg, *Monis v The Queen* (2013) 249 CLR 92, 192 (Crennan, Kiefel and Bell JJ), nominating only ss 7 and 24 as the textual basis of the implied freedom. In other recent cases the most frequently cited provisions are ss 7, 24, 64, and 128: *Unions NSW v New South Wales* (2013) 252 CLR 530, 573 (Keane J); *Tajjour v New South Wales* (2014) 8 ALJR 860, 901 (Keane J); *McCloy* (n 18) 869 (French CJ, Kiefel, Bell, and Keane JJ), 898 (Nettle J).

⁹¹ *Lange* (n 18) 559.

⁹² See, eg, *Hogan v Hinch* (2011) 243 CLR 506; *Unions NSW* (n 90); *Tajjour* (n 90); *McCloy* (n 18).

⁹³ *Commonwealth Constitution*, s 49; *Parliamentary Privileges Act 1987* (Cth); *R v Richards; ex parte Fitzpatrick and Browne* (1955) 92 CLR 157.

⁹⁴ *Lange* (n 18) 560; *Levy v Victoria* (1997) 189 CLR 579, 622, 625–26 (McHugh J); *Mulholland* (n 45) 223–24 (McHugh J), 246 (Gummow and Hayne JJ); *Unions NSW* (n 90) 552, 554 (French CJ, Hayne, Crennan, Kiefel, and Bell CJ).

⁹⁵ *Dignan* (n 76).

⁹⁶ Although at least two High Court justices were consulted privately: Jenny Hocking, *The Dismissal Dossier* (Melbourne UP 2015) ch 2.

⁹⁷ See Chapter 9 ‘Unwritten Rules’

⁹⁸ See generally Chapter 22 ‘Justiciability’ and specifically: *R v Governor of South Australia* (1907) 4 CLR 1497; *Osborne v Commonwealth* (1911) 12 CLR 321; *Crowe v Commonwealth* (1935) 54 CLR 69; *Boilermakers* (n 87); *Victoria v Commonwealth* (1975) 134 CLR 338 (‘AAP Case’); *Northern Suburbs General Cemetery Reserve Trust v Commonwealth* (1993) 176 CLR 555.

⁹⁹ *R v Richards; Ex parte Fitzpatrick and Browne* (1955) 92 CLR 157; Geoffrey Lindell, ‘Justiciability of Political Questions: Recent Developments’ in H P Lee and George Winterton (eds), *Australian Constitutional Perspectives* (Law Book Co 1992) 184–85.

¹⁰⁰ *Cormack v Cope* (1974) 131 CLR 432; *Western Australia v Commonwealth* (1975) 134 CLR 201 (‘PMA Case’); *McKinlay* (n 42); *A-G (NSW); Ex rel McKellar v Commonwealth* (1977) 139 CLR 527.

¹⁰¹ See, eg, *Egan* (n 87); *Combet* (n 83); *Thomas v Mowbray* (2007) 233 CLR 307.

CHAPTER 25

EXECUTIVES

TERENCE DAINTITH AND YEE-FUI NG

A. INTRODUCTION

1. Constitutions and Executives

Executives are an embarrassment for constitutionalists. The ostensibly tidy and symmetrical triumvirate of legislature, executive, and judiciary that we find in almost all modern constitutions conceals a radical difference in the nature both of the institutions so described and of the functions they are assumed to perform. The legislature and the hierarchy of courts are readily identifiable institutions, whose nature, membership, attributes, and functions the framers of the constitution have been able to define with reasonable precision. The same cannot be said of the executive. If we strictly apply the threefold division of institutions and functions demanded by traditional separation of powers thinking, every governmental function that is not assigned to the legislature or judiciary is to be discharged by ‘the executive’,¹ and that executive consists of all those parts of the governmental apparatus that are not the legislature or the judiciary. The range and variety of the functions of government that cannot be assimilated either to law-making or to adjudication, and of the bodies that perform them, has in recent centuries been such that constitution-makers commonly make only skeletal provision for executive organization.²

The commonest approach to executive organization is to identify a Head of State—who may be a President or a monarch—and to vest executive power in that person. While such a constitution may sometimes expressly distinguish powers exercisable as Head of State from those exercisable as

head of the executive,³ more commonly it does not, thereby adding further uncertainty as to the nature of executive power. Some constitutions, however, prefer a clear or partial separation of the functions of Head of State and head of the government,⁴ or assign President and government distinctive constitutional roles, while subjecting the government to a significant degree of Presidential supervision.⁵ Specific powers may be attributed to the head of government,⁶ but attempts at a comprehensive statement of organization are the exception rather than the rule.⁷ Often even basic issues like the existence of political (Ministers) and apolitical (civil servants) elements within the executive are treated obliquely, as in Germany⁸ and Finland,⁹ or ignored altogether, as in France.

2. The Australian Constitutional Inheritance

Australia broadly follows this minimalist model, but with a complication linked to its colonial past. The approach of members of the Australasian Constitutional Convention in 1897 in Adelaide¹⁰ to the task of making appropriate provision for the structure and powers of a federal executive was shaped by their desire to maintain the United Kingdom model of ‘responsible government’, as already practised in the Australian colonies.¹¹ This left them with two problems. The first, how to reconcile this principle with a federal system that implied a strong legislative second chamber to represent State interests, was not successfully addressed and continues, as other chapters in this volume show, to give trouble even today.¹² The second was that a constitution describing how the executive actually operated would need to include, as fixed constitutional rules, practices as to the selection, organization, and tenure of the executive that, both in the mother country and in the colonial constitutions, had been left as ‘understandings’ according to which the formal legal structure of powers would operate: understandings which, the political historian Sidney Low contemporaneously noted ‘themselves are not always understood’.¹³ The framers preferred, therefore, to proceed by drafting provisions on the executive that reflected, in fairly skeletal terms, the legal relationship between monarch and Ministers in the United Kingdom as adapted for colonial use. The result is that the Constitution provides a picture of executive organization and power that is incomplete and, even though

extremely brief, inexact in important respects by reason of inconsistencies between expected practice and the formal text.¹⁴

In dealing with the constitutional aspects of executive organization, our aim is to demonstrate the relationship between the explicit terms of the Constitution and the way the executive is actually organized, with particular reference to the key principle of responsible government. The conception of responsible government that may be described as conventional or traditional holds that the executive must be led by Ministers who command the support of a majority of the lower (or in the case of Queensland, unique) House of Parliament, and that those Ministers must answer to Parliament for all actions of the executive, both collectively, in relation to the actions of the government as a whole, and individually, for what is done by the departments they control.¹⁵ Developments in the organization or operation of Australian executives that appear inconsistent with these notions have often been viewed with alarm. We review such developments in the Commonwealth context—there is unfortunately no space to discuss the situation in the States—attempting to relate them both to these conventional notions and to the broader constitutional values of democracy, effectiveness, and legality that the Commonwealth executive might be expected to further and to respect.

B. THE CONSTITUTIONAL EXECUTIVE

1. The Queen

The stipulations of the Constitution regarding the executive are to be found in Chapter II, in ten sections (sections 61–70), that occupy barely a page of type. Its very first phrases tell us that we cannot rely on a literal reading of the Constitution for an understanding of executive government in Australia today. ‘The executive power of the Commonwealth,’ says section 61, ‘is vested in the Queen and is exercisable by the Governor-General as the Queen’s representative.’ This first phrase of section 61 did no more than define explicitly—in a way that the colonial constitutions did not—the legal source of executive authority. Its descriptive, rather than dispositive, character is signalled by the use of the term ‘is vested’ in section 61, implying the preservation, under the new Constitution, of an existing state

of affairs, in contrast to the wording of sections 1 and 71, which provide that the legislative and judicial powers ‘shall be vested’ in the federal Parliament and the High Court of Australia respectively.¹⁶ Australia’s steady progress towards independence, completed in all respects by the *Australia Acts 1986*,¹⁷ has shrivelled the active role played by the Queen in the government of Australia to one of appointment and dismissal of the Governor-General, in each case on the advice of the Prime Minister.¹⁸ Nonetheless, the reference to the Queen in section 61 has vital importance in relation to the extent of the executive power, in that it endows the Commonwealth executive with the prerogative powers that attach, under the common law, to the person of the Sovereign.¹⁹

2. The Governor-General

The formulation of section 61 makes the Head of State also the head of the executive branch. This should not lead us to the conclusion that all the functions performed by the Governor-General, as the person by whom the executive power is ‘exercisable’ under section 61, are executive functions, as sometimes seems to have been assumed in Australian constitutional writing.²⁰ Provision for the appointment of a Governor-General appears in Chapter I, on the Parliament, not Chapter II, and the Governor-General exercises functions under the legislative and judicial, as well as under the executive, chapters of the Constitution. The fact that all these functions are ordinarily exercised, either by express constitutional provision or by convention, on the advice of politically responsible members of the executive branch does not make them ‘executive’: they are better thought of as functions of the Head of State within a framework of responsible government. While discussions of the powers of the Governor-General tend to range across functions under all three chapters, we confine our attention here to the powers exercisable under the ‘executive’ chapter of the Constitution.

The Governor-General’s position as the effective constitutional head of the executive is implicit in the attribution to him or her in Chapter II of all the specific powers regarding executive organization and appointments. These are the powers to appoint and dismiss ‘Ministers of State’; to establish Ministerial departments (section 64); to appoint and remove all other officers of the executive government (section 67); to function as

Commander-in-Chief of Australia's armed forces (section 68); and to assume the powers of the former colonial Governors in respect of matters which, under this Constitution, pass to the executive government of the Commonwealth (section 70). Under the system of responsible government operative at the time the Constitution was framed, all of these powers, save in extraordinary circumstances (the so-called 'reserve powers'), fall to be exercised in accordance with advice from politically responsible Ministers.²¹

3. Executive Councils

This basic principle has been muddled by the importation from State Constitutions of a class of powers of the Governor-General exercisable 'in Council', defined as powers exercised by 'the Governor-General acting with the advice of the Federal Executive Council',²² thereby producing two types of gubernatorial powers, those for whose exercise the advice of the Council is needed and those apparently exercisable by the Governor-General alone. The distinction was designed to reflect the distinction between 'acts which have become, either by the general march of statute law or in any other way, nothing but ordinary executive acts', on the one hand, and 'acts exercised by the prerogative', on the other.²³ At the same time it was emphasized 'that the Crown exercises its prerogative only upon Ministerial advice'.²⁴

Section 62 provides for the creation of the Council, on a pattern familiar in the former colonies,²⁵ and for its members to be appointed, summoned, and dismissed by the Governor-General. Ministers of State are to be members of the Executive Council (section 64). Once appointed, members of the Council normally remain so for the rest of their life, but only those executive councillors who are members of the current Ministry are summoned to advise the Governor-General at meetings of the Council.²⁶ This includes all Ministers and Parliamentary Secretaries. The Council is not a deliberative body; it simply registers, and thereby gives legal effect to, decisions taken elsewhere, either by the Cabinet or by individual Ministers.²⁷ Legislation, for example, often provides that regulations under it are to be made by the Governor-General in Council. If legislation simply refers to the Governor-General, it is to be 'read as referring to the

Governor-General ... acting with the advice of the Executive Council’.²⁸ Very few of the Governor-General’s *constitutional* powers, however, require the advice of the Council—in relation to the executive, only the establishment of Departments of State (section 64), and the appointment of civil servants (section 67).

The Executive Council should not be dismissed as an anachronistic irrelevance in an age of Cabinet government. It adds to the political centralization achieved through Cabinet²⁹ an element of legal centralization, in that any decisions within a Ministerial portfolio that legislation reserves for decision by the Governor-General (which may include matters like appointments or land acquisition orders that would not necessarily pass through Cabinet) must be cleared by a Secretariat within the Prime Minister’s department in advance of submission to the Council, thus giving the Prime Minister an opportunity for review.³⁰

C. THE STRUCTURE OF THE EXECUTIVE

1. The Ministry as a Whole

The Governor-General performs the constitutional role of exercising executive powers and functions through the appointment of politically responsible Ministers. Section 64 provides for the Governor-General to appoint Ministers of State to administer departments, and that these Ministers, who hold office ‘during the pleasure of the Governor-General’, must become Members of Parliament within three months of assuming office. In practice this is achieved by appointing a Prime Minister who can command the support of the lower House, and who advises on the appointment of the rest of the Ministry. The exercise of the Governor-General’s constitutional power to appoint and dismiss Ministries, in cases where the principle of acting on ministerial advice might lead to neglect either of the requirement of lower house support for the Ministry or of other imperatives such as legality of executive conduct, or capacity to govern effectively,³¹ has engendered continuing and sometimes bitter controversy.³² Given that these contradictions are inherent in the very notion of responsible government, it is not surprising that attempts to identify a consensus as to the conventions that should regulate these issues

should have failed,³³ lending support to those who have warned that reducing conventions to writing offers no guarantee of certainty and may, if it renders them justiciable, lead to long periods of instability.³⁴

While the recurrence of difficulties in the exercise of section 64 powers certainly cannot be excluded, in practice the dominance of Australian legislatures by large political parties which subject their parliamentary membership to a stringent voting discipline means that in the absence of a hung Parliament, there should be no difficulty in determining who will be able to form a government that will have the confidence of the lower House. This will be the elected leader of the majority party. Each party's approach to the election and maintenance in office of its leader thus assumes constitutional significance. In the last few years, a tension has become apparent between arrangements that provide a close reflection of the principle that the Ministry has at all times the confidence of the House of Representatives,³⁵ and the furtherance of other values like political stability and democracy within political parties. Under the leadership election arrangements that operated, until 2013, by the federal parliamentary Labor³⁶ and Liberal Parties, the Governor-General appointed a new Prime Minister no fewer than four times between 2010 and 2015.³⁷ No fewer than three of these appointments resulted from a decision by a majority of the members of the parliamentary party in government that they no longer had confidence in their leader. Under the then rules, the procedures for reaching these decisions were highly informal and involved minimal notice, but might be argued to represent the state of confidence of the House—and hence to chime with the principle of responsible government—save insofar as the respective electorates included Senators as well as members of the House, so that it would be possible—though not likely—that only a minority of a party's members in the lower House would have supported the successful candidate.

While there has been no change in the Liberal and National Party arrangements, concern about fickle parliamentary sentiment led the Labor Caucus, in 2013, to adopt new election rules in which the parliamentary vote is given equal weight with the results of a ballot of all party members, coupled with the proviso that an election of the party leader will only be held after an election defeat, on the resignation or at the request of the leader, or on a petition signed by at least 75 per cent of the members of the

Caucus on the grounds that the current leader has brought the party into disrepute.³⁸ This element of the change was explained as being ‘about providing the Australian public with the certainty that the person that they vote for as Prime Minister serves that term as Prime Minister’.³⁹ While this may appear to add an attractive element of executive stability to the operation of the principle of responsibility, there must be doubt as to its capacity to keep a Labor Prime Minister in office in the face of a significant loss of confidence by the Caucus, since it remains open to Caucus to drop the 75 per cent requirement and the ‘disrepute’ criterion by a simple majority vote.⁴⁰

More problematic, so far as the ‘basic principle’ of maintaining the confidence of a parliamentary majority is concerned, is the introduction of the 50 per cent weighting for votes of the wider party membership, which could easily mean that the leader was the preferred candidate of less than half of the Caucus or of its members in the lower House. A situation of this type occurred in the United Kingdom in September 2015 with the election of a Labour Party leader, by an electorate of all Labour party members under a one-man, one-vote system introduced the previous year, who had the support of only a small fraction of members of the Parliamentary party.⁴¹ The subsequent absence of any kind of Labour Party split or revolt suggests that party discipline and electoral calculation may preserve the ‘confidence’ of a majority even in a leader they would never have chosen.

2. Ministerial Portfolios

The departments that Ministers are appointed to administer are themselves established, again under section 64, by the Governor-General in Council. After a general election or a change of Ministry the Governor-General will, on the advice of the Prime Minister, formally allocate executive responsibility through an Administrative Arrangements Order listing the matters handled by each department and allocating responsibility for legislation to Ministers. The effect is to create a number of Ministerial portfolios, normally consisting of a single department along with the non-departmental agencies for which it is responsible, though in some cases a portfolio may include more than one department. This is the mechanism for the practical exercise of the Governor-General’s executive power.

Section 64 may look unproblematic, but if we attempt to read it literally, in conjunction with section 61 and in the light of the notion of responsible government, difficulties emerge. The section does not contemplate any machinery other than ministerially administered departments through which the executive power of the Governor-General might be exercised. Since colonial times, however, Parliaments, including the Commonwealth Parliament, have routinely passed legislation conferring functions that are neither legislative nor judicial in character—and thus are *prima facie* executive—not on the Governor-General, nor on Ministers appointed under section 64, nor on officials within departments, but on statutory bodies with legal personality separate from that of the Commonwealth.⁴² How can this practice be squared with sections 61 and 64?⁴³

The general answer is that if the relevant Minister to whose portfolio the legislation is assigned by the Administrative Arrangements Order can exercise some real control over the performance of the body's statutory functions,⁴⁴ the fact that these functions are entrusted to a legally distinct body has not been seen as a significant departure from the regime of sections 61 and 64 and the principle of responsible government that they embody.⁴⁵

In two important classes of case, however, Parliament has largely or totally excluded ministerial control, and for very good reasons. The first type of case is where the role of the body is to provide oversight and a continuing function of review or inquiry in relation to particular aspects of executive activity. Among these the longest established and most indispensable is the Auditor-General, whose audits of departmental and agency spending, encompassing both regularity and quality of performance, are an essential support for parliamentary supervision of public finance.⁴⁶ Since 1997, the Auditor-General has been appointed by, and answerable only to, Parliament: the office is clearly not part of the executive—despite the fact that the current Administrative Arrangements Order places the Act within the Prime Ministerial portfolio. Other such oversight bodies—the Ombudsman,⁴⁷ and administrative tribunals, such as the Administrative Appeals Tribunal, providing for appeal on the merits from executive decisions (including decisions of independent regulators)⁴⁸—while appointed by the Governor-General, and hence presumptively part of the executive, are either free from explicit ministerial control or—in the case of

some tribunals—subject only to limited powers of ministerial direction. Since Ministers neither can nor should bear any substantive responsibility for the actions of such bodies, which some have seen as the kernel of a fourth, ‘integrity’, branch of government,⁴⁹ they are best viewed as falling outside the ambit of section 64 and as embodying an alternative support for responsible government.⁵⁰

The second type of exclusion of ministerial control arises out of the co-operative federalism arrangements that have been the means of pursuing coherent national policies across the borderlines of Commonwealth and State competences.⁵¹ Such arrangements may involve the exercise by State authorities of executive powers created by Commonwealth legislation.⁵² Here the only role that can be plausibly be ascribed to Commonwealth Ministers may not be executive, but legislative: advising on and promoting the possible amendment or repeal of the legislation. When the constitutionality of a legislative provision of this type was challenged on the ground that it entrusted to State officers ‘a function forming part of the executive power of the Commonwealth which by Chap. II must ... be exercised by the Governor-General and the Ministers and officers appointed in accordance with its provisions’, the High Court refused to be bothered by the difficulties of fitting such co-operative arrangements into the Constitution’s separation of powers structure, and held that the use by State officers of the relevant powers involved an ‘independent responsibility’, not the executive power of the Commonwealth.⁵³ The executive power exercisable by the Governor-General does not, apparently, occupy the whole of the governmental space that is neither legislative nor judicial. The Court has taken a similarly pragmatic view on another issue raised by the wording of section 64. In providing that Ministers ‘administer ... departments of State’, the section arguably requires that each Minister must be appointed to administer a department,⁵⁴ casting doubt on the position of Members of Parliament who from time to time since federation have been called on to serve as junior or assistant Ministers under various titles, most recently ‘Parliamentary Secretary’, with the job of assisting the Minister in charge of the department. This has led to concerns that junior Ministers could not be safely paid anything above their Member’s salary; otherwise, not falling within section 64, they would be ‘holding an office for profit under the Crown’ in contravention of section 44 of the Constitution and be

liable for disqualification from Parliament under section 45.⁵⁵ The Court resolved the problem in 2001, confirming that it was constitutionally permissible for multiple Ministers to be appointed to administer a department, including Assistant Ministers or Parliamentary Secretaries.⁵⁶ A majority held that the executive should be given the flexibility to organize its own administrative arrangements in the interests of good government, and there was no derogation from responsible government as both Ministers would remain answerable to Parliament. The *Ministers of State Act 1952* (Cth), as amended, currently provides for a maximum of twelve Parliamentary Secretaries and thirty other Ministers, all of whom are treated as ‘Ministers of State’, to whom section 44 does not apply.⁵⁷

3. Ministerial Advisers

Ministerial advisers have become major institutional actors within the executive, interposed between Ministers and public servants. These advisers have partisan and political roles, as distinct from the theoretically impartial public service. In the Commonwealth their employment is authorized by legislation.⁵⁸ Ministers have complete discretion on how to structure their ministerial offices; for instance, a Minister whose portfolio includes more than one department may choose to have advisers separately assigned to different departments, or alternatively have advisers advising the Minister on particular matters across the whole portfolio.

As the existence of ministerial advisers post-dates the Constitution, their position within the constitutional structure is uncertain. There have been complaints about ministerial advisers going beyond their assigned role of advising Ministers and improperly directing public servants, acting without the authority of their Minister, or engaging in political manoeuvring to the detriment of their Minister.⁵⁹ Ministerial advisers have also been used as scapegoats to enable Ministers to evade political responsibility to Parliament in incidents like the ‘Children Overboard’ affair,⁶⁰ where Ministers forbade their advisers from appearing before parliamentary committees, claiming that there was a constitutional convention that ministerial advisers do not appear.⁶¹

4. Ministers: Control and Delegation

The traditional conception of ministerial responsibility under which Ministers answer to Parliament for all actions of their department implies a strong hierarchical structure where control over all decisions can if necessary be exercised at the top and the relevant information can be readily transmitted up and down. The idea that responsibility implies ministerial resignation in the case of departmental errors, including those that Ministers did not authorize or of which they were not personally aware has never held sway in Australia.⁶² In such cases the Minister's responsibility is generally limited to explanation, justification, remedial action, or (sometimes) apology, with no requirement for resignation.⁶³ Guidance issued to Ministers of the Howard government in 1998 brought home the corollary of this limitation, stating that where Ministers:

neither knew, nor should have known about matters of departmental administration which come under scrutiny it is not unreasonable to expect that the secretary or some other senior officer will take the responsibility.⁶⁴

Though this guidance has been superseded,⁶⁵ this idea of a division of responsibility within departments between Ministers and senior public servants clearly prevails today in executive practice and indeed is reflected in legislation. There is a marked contrast here with the older notion, which received judicial endorsement in the *Carltona* case in 1943, that decision-making public servants acted as the 'alter ego' of their Minister, but the Ministers retained legal and political responsibility for those decisions.⁶⁶ Ministers, the court said, may have agents who are authorized to carry out certain tasks without having a formal delegation to do so. The agent's decision is deemed to be the Minister's decision.

The *Carltona* principle was a pragmatic recognition by the judiciary of the need for efficiency in the functioning of the State by means of comprehensive informal delegation of decision-making power. Howard's guidance, however, reflects a continuing move towards much more formal delegation and distribution of departmental powers and functions. Formal legislative delegation provisions can provide Ministers with the ability to delegate their powers,⁶⁷ or specify that a senior public servant is to exercise powers under statute.⁶⁸ It is now evident that the conception that public servants are merely the extension of the Minister no longer holds true in

practice. Their relationship has evolved into the ‘delegated agency bargain’, where the political principal and public servant agree on a framework set by the principal, where the public servant is given ‘a zone of discretion ... in exchange for direct responsibility for outcomes within that zone of discretion’.⁶⁹

Australia has participated in the worldwide trend, commenced in the 1980s, towards a ‘New Public Management’ (NPM), premised on a reconceptualization of the way governments should be managed, with an increased focus on reducing costs, managing programmes more efficiently, and making public service managers more accountable for results.⁷⁰ NPM in Australia has certainly produced important executive changes, which we discuss below,⁷¹ but Australia has not followed the United Kingdom example of systematic separation between service delivery functions and policy functions within departments, which has produced a large array of ‘executive agencies’ whose civil service heads work to performance targets framed in contractual language, but which remain subject to the policy direction of Ministers.⁷² In the Commonwealth, this NPM-driven division between policy and management functions has found legislative expression in the financial management and public service frameworks. In relation to the management of personnel, financial, and other resources, the most senior public servants, departmental secretaries, are now legally responsible ‘under the Agency Minister ... for managing the Department’ and ‘advis[ing] the Agency Minister in matters relating to the Department’.⁷³ Under the *Public Governance, Accountability and Performance Act 2013* (Cth) (*PGPA Act*), which provides a comprehensive regime for the management of public funds and other resources, the Secretary is under a duty to ‘govern’ the department so as to promote the proper use and management of public resources, the achievement of its purposes, and its financial sustainability.⁷⁴ In contrast to the *Public Service Act*, these are not duties ‘under the Minister’; instead, the Act regulates the obligations of the Secretary in relation to communications with the Minister.⁷⁵ This, the Finance Minister assured Parliament, ‘reflects notions of responsible government as a Minister must be able to know what is occurring in his or her portfolio given he or she will be held accountable in Parliament’.⁷⁶ These provisions mark the distance travelled in the last few decades from notion of the public servant as the mere alter ego of an omnipresent

Minister to a mode of governance in which the activity of portfolio Ministers is focused on policy direction, on securing a fair share of legislative and financial resources, and on public and Parliamentary representation.

5. Secretaries and the Senior Executive Service

Departmental secretaries sit at the apex of the public service employment hierarchy. Secretaries are appointed by the Governor-General in Council,⁷⁷ The Senior Executive Service, comprising deputy secretaries, associate secretaries, and assistant secretaries, forms the next level of seniority below departmental secretaries.⁷⁸

The 1950s and 1960s were seen to be the ‘heyday of the mandarin’.⁷⁹ In this period, the position of the departmental secretaries and senior officials was strong. Under the *Public Service Act 1922*, they had tenured positions that could not, with limited exceptions, be terminated unilaterally. However, changes in the governance and legislative framework of the public service have reduced the employment security of secretaries and senior officials. The *Public Service Reform Act 1984* removed the tenure of departmental secretaries and introduced limited term appointments for the newly created Senior Executive Service. By 1994, all Commonwealth secretaries were employed on fixed-term contracts of up to five years.⁸⁰ In addition, their appointments can be terminated at any time by the Governor-General acting on the advice of the Prime Minister.⁸¹ In 1996, the newly elected Howard government terminated the contracts of six departmental secretaries, one-third of the total, as soon as the government was sworn in.⁸² This exercise was repeated, less dramatically, by the incoming Abbott government in 2013.⁸³

In contrast to the United Kingdom, where civil service employment was a prerogative matter until 2010,⁸⁴ public service employment in Australia has long had a legislative basis. Section 67 of the Constitution provides for the appointment and dismissal of public servants by the Governor-General in Council until Parliament otherwise provides. Parliament has otherwise provided by the enactment of public service legislation soon after the inception of the Commonwealth in 1902.⁸⁵ Australian courts have held that the Australian public service legislation supplanted any operation of the

common law right to dismiss a Crown servant ‘at pleasure’ without any notice or reason.⁸⁶ The relationship between public servants and the executive is thus governed by the provisions of public service legislation. Invalid termination of employment could lead to damages for repudiation of the employment contract.⁸⁷ In addition, the Full Federal Court has held that Ministers have to comply with procedural fairness in terminating the employment of secretaries under public service legislation, including providing a reason for the termination.⁸⁸ However, this reason did not have to be shown to be well-founded. Although this is appropriate given the nature of judicial review as being about the procedure rather than the merits of a decision, it illustrates the tenuous nature of the employment of secretaries: the dictates of efficiency have triumphed over the ideal of public service permanence.

6. Agencies

The NPM movement also accelerated a long-standing process of moving functions from multi-purpose departments to agencies with more closely defined roles.⁸⁹ As a result, the public sector governance structure in the Commonwealth and States now encompasses a plethora of diverse entities, from commissions, boards, and authorities, to government-owned corporations. As of September 2015, there were 179 Commonwealth entities and companies with a diverse range of functions, from asbestos safety and eradication, to offshore petroleum safety, to Indigenous land acquisition and management.⁹⁰ Broadly speaking, these fall into the following categories:

- executive agencies (established under the prerogative or public service legislation);
- statutory authorities; and
- corporations formed under corporations legislation that are government-owned or controlled.

At the one end of this broad spectrum, there are administrative units within government departments with reporting responsibilities to the departmental secretary, such as the National Offshore Petroleum Titles Administrator, which is a part of the Commonwealth Industry Department but with

assigned statutory responsibilities.⁹¹ At the other end of the spectrum are corporate bodies with complete financial independence from the executive that are not subject to ministerial direction.

Despite the problems of fitting them into the structure of [Part II](#) of the Constitution,⁹² statutory authorities or government-owned corporations have long been used in Australia to remove areas of executive activity from departmental management or control.⁹³ Governments establish these structures to lessen ministerial responsibility for certain activities, to avoid rules relating to government employment, to create a more efficient operating regime, or to handle technical or regulatory activities involving long-term interests that should be insulated from short-term political manoeuvring, such as the operation of the Reserve Bank and the regulation of public utilities.⁹⁴

From the traditional perspective of ministerial accountability for all matters within their portfolio, statutory authorities and government-owned corporations involve a loss of power or control by Parliament, corresponding to the loss of comprehensive ministerial control through a departmental hierarchy. As we have seen, however, such comprehensive ministerial control may be more imaginary than real, and its loss may be amply compensated by freedom from inappropriate political pressure, reinforced reporting requirements, enhanced audit supervision, and better-focused activities under clear statutory mandates. The extent of the loss depends on the statutory regime. Statutory authorities can be subject to general ministerial direction and control, where the Minister has the power to give general directions relating to policy and practice, but cannot give a specific direction as to how the authority deals with a particular issue.⁹⁵ Alternatively the body can be subject to broad direction or control by the Minister.⁹⁶ A higher degree of ministerial control would mean that an aggrieved person can claim remedies through judicial review under sections 75(v) or 75(iii) of the Constitution.⁹⁷ A power of ministerial direction may be accompanied by a requirement to publish the direction in the Gazette or an annual report, or table it in Parliament,⁹⁸ which provides an avenue for parliamentary scrutiny.

From the point of view of accountability for finance, the use of resources, and performance more generally, the distinctions between different types of entities, from conventional departments to agencies and Commonwealth

corporations, have been significantly reduced by the *PGPA Act 2013*, merging the formerly separate accountability regimes for corporate and non-corporate bodies.⁹⁹ The Act makes distinct provision only for Commonwealth companies subject to the disciplines of the *Corporations Act 2001* (Cth).¹⁰⁰ Even these companies, however, are to be subject to audit by the Auditor-General, who is the auditor for all other Commonwealth entities.¹⁰¹

All entities are classed either as non-corporate Commonwealth entities—such as departments and non-statutory agencies that are legally part of the Commonwealth—and corporate entities, that by reason of their legislative foundation enjoy separate legal existence. Subject to minor differences reflecting legal status, the same accounting and reporting controls apply in relation to both types of body, as do many of the personal duties relating to management of resources imposed on those controlling the entity's operations and on their staff.¹⁰² The considerations that might have prompted resort to corporate status—such as the need for independence—are recognized by provision that government policies can override the governance duties of heads of corporate entities only if imposed by a formal order made by the Finance Minister.¹⁰³ Requirements for the presentation of all entities' budget statements and annual reports and financial statements within the documentation provided by each portfolio within the budget cycle means that Parliamentary capacity for scrutiny of agency activities should not differ significantly from that applicable in relation to departments.¹⁰⁴ Parliamentary committees may also conduct investigations of agencies outside the budget framework,¹⁰⁵ and Ministers can be asked questions in Parliament about the operation of statutory authorities and corporations within their portfolio. Furthermore, agencies are subject to broader public law accountability mechanisms, such as investigation by the Ombudsman and Freedom of Information legislation.

7. Contracting Out

Over the years, there has been an increasing incidence of contracting out or outsourcing of governmental functions, as well as the creation of public-private partnerships. Areas affected include public transportation and even coercive functions such as immigration detention centre management. The

key issue is whether public law accountability mechanisms should apply to private agents who provide contracted out services to government. Two main responses in public law can be envisaged. The first is to draw a bright line around functions appropriate only for public performance—such as those involving coercive acts—and to prohibit private actors from operating in this area.¹⁰⁶ No such attempt has been made, whether by constitutions or by legislation, in Australia.¹⁰⁷

The second response is to expand the ambit of ‘public law’ obligations so as to regulate the behaviour of private actors performing public tasks.¹⁰⁸ However, thus far, the ambit of judicial review in Australia has not extended to private bodies, which means that the public is deprived of the opportunity to challenge decisions made in the public sphere by private bodies. Corporate entities are not susceptible to judicial review as they have been held not to be ‘officers of the Commonwealth’ under section 75(v) of the Constitution.¹⁰⁹ There is still no High Court authority as to whether an independent contractor may be subject to constitutional judicial review where executive or statutory authority has been contracted out to it.¹¹⁰ In *NEAT Domestic Trading Pty Ltd v AWB Ltd*, a majority of the High Court held that decisions made by non-statutory corporations were not judicially reviewable under the *Administrative Decisions (Judicial Review) Act 1977* (Cth),¹¹¹ meaning that such review can be easily excluded by outsourcing functions to non-statutory corporations. The availability of common law review is also doubtful due to uncertainty over whether the more permissive British approach in *R v Panel on Take-overs & Mergers; Ex parte Datafin* applies in Australia.¹¹² We thus conclude that the prospects of judicial review for outsourced functions are grim.

Despite the paucity of judicial review as a result of ‘contracting out’, there are other accountability mechanisms that constrain private sector contractors. Private contractors have to meet service delivery standards and key performance indicators in their contract with government. However, aggrieved persons will not be able to directly enforce a contract with a government contractor to which they are not parties, meaning that the accountability of the contractor depends on the relevant government agency vigilantly monitoring service delivery and enforcing any breach of contract.¹¹³ Tort law may also be a useful accountability mechanism for outsourced functions, as Finn J in *S v Secretary, Department of Immigration*

and Multicultural and Indigenous Affairs held that the Commonwealth owed a non-delegable duty of care to immigration detainees, including for their psychiatric care, although the functions had been outsourced to a private corporation.¹¹⁴ The existence of such a duty had, however, been conceded by the Commonwealth.

There are additional public law mechanisms covering government contractors. Parliamentary committees may choose to scrutinize government contracting. The Commonwealth Ombudsman has jurisdiction to investigate private entities that provide goods and services to the public under a contract with a government department or agency,¹¹⁵ and the Auditor-General has since 2011 been empowered to conduct performance audits of government contractors, with broad powers to compel the production of documents from Commonwealth contractors and to enter the premises of these contractors.¹¹⁶

The enhanced external oversight has been accompanied by increased disclosure requirements. Ministers are required to disclose details of government contracts under a Senate Order,¹¹⁷ while the Auditor-General is required to audit and report to Parliament annually any inappropriate use of confidentiality clauses in a sample of government contracts.¹¹⁸ There is a public right to access information by government contractors relating to government services through Freedom of Information (FOI) legislation.¹¹⁹ Despite this, FOI requests can be circumvented if a government overzealously utilizes the ‘commercial in confidence’ exemption.¹²⁰

Outsourcing thus clearly—and deliberately—reduces traditional hierarchical control by Ministers, and this also brings a reduction of individual challenge and redress through judicial review. Accountability has shifted towards the new locus of contractual control. Deficiencies in contractual mechanisms have led to increased oversight through the Ombudsman and Auditor-General, bolstered by increased public access to information. This continual reconfiguration of accountability mechanisms is likely to persist in the shifting sands of the modern regulatory environment.

D. CONTROL AND CO-ORDINATION

1. Political: Prime Minister and Cabinet

Among structures for co-ordination within the executive, the most important is Cabinet. In the Commonwealth, Cabinet comprises senior Ministers while, in the States, all Ministers are part of Cabinet. Cabinet determines high-level strategies and policies, and agrees on legislation and financial expenditure. Certain issues may be considered by Cabinet committees; however, decisions reached in committee are generally brought before the full Cabinet for endorsement.¹²¹ Occasionally Cabinet will authorize a Cabinet committee to make the final decision on a matter for security or practical reasons.¹²² Cabinet committees are generally established over a subject area (such as national security) or a function of government (such as expenditure).¹²³

As already noted, while the Executive Council has purely formal functions, it may contribute to central control of governmental action.¹²⁴ Substantive decision-making power, however, lies in Cabinet. Despite this, all Australian Constitutions, except Queensland's,¹²⁵ are silent on the existence of Cabinet. The constitutional silence has led Bowen CJ to note that the federal Cabinet was a 'body which functions according to convention' and is 'not in any formal sense the Executive'.¹²⁶ Cabinet is yet another example of the divergence between rhetoric and reality in the constitutional executive.

The Cabinet Secretary, an elected politician, co-ordinates Cabinet business. Cabinet is administratively supported by a Cabinet Secretariat of public servants located within the Prime Minister's Department. All Cabinet submissions by line agencies are cleared through the central agencies (Prime Minister's Department, Treasury, and Finance Department).¹²⁷ Cabinet Secretariat co-ordinates input from the policy areas within the Prime Minister's Department and the other central agencies, who comment on each proposal to ensure consistency between the policies advanced by line agencies. This is a mechanism for central policy control by the Prime Minister to advance the 'whole of government' catch-cry. There are no legal powers underpinning the co-ordinative functions; rather these highly formalized processes are conducted in accordance with the Cabinet

Handbook, which seeks to codify the conventions surrounding Cabinet.¹²⁸ It is Ministers, however, who have the legal power to administer their departments by virtue of section 64 of the Constitution, the Administrative Arrangement Orders, and enabling legislation. Political scientists have identified an increasing ‘presidentialization’ of Australian Prime Ministers, who seek to centralize power and control their Ministers through the mechanisms of party discipline, the enlargement of their own Department, and centralized media management.¹²⁹ This process is underpinned not by law or by the Constitution, but by the Prime Minister’s capacity to make and unmake Ministers through the provision of advice to the Governor-General;¹³⁰ the limit—a very real one, as we have seen—is the need to retain the confidence of their parliamentary party.

Ministers’ discretion as to how they run their portfolios is further restricted—and substantially so—by central control over the money and the rule-making powers that they need.¹³¹ In each of these cases, explicit constitutional provisions represent only the tip of an iceberg of extensive and detailed controls.

2. Financial: Budgets, Appropriations, and Continuing Financial Control¹³²

At the Commonwealth level, the centralized character of the public finance and expenditure system is constitutionally expressed and guaranteed by the requirements that all revenues or moneys raised or received by the Commonwealth executive government should form one Consolidated Revenue Fund, to be appropriated for the purposes of the Commonwealth (section 81), and that no money shall be drawn from the Commonwealth Treasury except under appropriation made by law (section 83). While the term ‘Consolidated Revenue Fund’ may suggest the existence of a single government bank account into which all funds flow and from which all expenditure of departments and agencies is financed, the Fund has from the very beginning been essentially an accounting device, and today Commonwealth money may be held not only in the Commonwealth’s Official Public Account with the Reserve Bank of Australia but also in a wide range of bank accounts held by departments and agencies.¹³³ Use of these accounts is, however, still subject to the overriding principle ‘that

once moneys are received by the Commonwealth they are not expended except under the authority of Parliament'.¹³⁴ This principle is crucial to the central control of executive activity, since it implies that the funding that sustains both existing and new activities of departments and agencies must be the subject of annual approval, or at least review, by the central executive bodies responsible for the presentation of the budget to Parliament.

Legislative power over the purse is a traditional, and fundamental, guarantee of responsible government, ensuring that a Ministry that has lost the confidence of the relevant House (or Houses) of Parliament will not find it possible to continue to govern. It is of course also necessary that the duration of legislative appropriations should be limited, as English Parliaments learned to their cost when they granted monarchs lifetime supply,¹³⁵ but the principle of annual appropriation is only obliquely recognized by the Australian Constitution, which refers in its sections 53 and 54 to the appropriation of revenue 'for the ordinary annual services of the Government' for the purpose of allocating powers over spending legislation between the House of Representatives and the Senate.¹³⁶ The framers clearly assumed that, following British parliamentary practice, the great majority of government spending would be the subject of annual appropriation. While no limit was set by the Constitution on the ability of Parliament to make permanent appropriations,¹³⁷ it was assumed by commentators that such an approach would not be favoured, 'because it removes expenditure from the annual supervision and control of Parliament'.¹³⁸

Today spending covered by annual appropriations accounts for no more than 20–25 per cent of the total. The rest derives either from standing (sometimes called 'special') appropriations, accounting for up to 80 per cent,¹³⁹ which do not require annual approval, or by funds directly received by departments, for example as fees and charges.¹⁴⁰ Standing appropriations are created by substantive statutes for particular purposes, such as funding road-building or old age pensions and other social security payments, and may be open-ended in that the amount appropriated for a particular purpose is determined by the eligibility of citizens to the entitlements and other provisions in the relevant Act. While a 20 per cent annual appropriation, which covers day-to-day departmental expenses, is

doubtless sufficient to ensure that government cannot operate without the continuation of parliamentary supply, the massive resort to standing appropriations greatly reduces the coercive scope of Parliament's annual appropriation procedures.

For Parliament, the day-to-day importance of sections 81 and 83 lies in their support for securing the full accountability of the executive for policy and administration through scrutiny of its spending proposals and accounts. This depends less on the notional ability to cut off tranches of funding than on the adequacy of the information provided by government, through the annual budget process, in support of its spending plans and in their retrospective justification. In formal terms the key element of this process is approval by both Houses of the two annual Appropriation Bills, No 1, covering the 'ordinary annual services of government',¹⁴¹ and No 2, covering sums requiring appropriation that do not fall within this category, such as capital funds, grants to States, and 'administered' funds for new policies. These Bills, however, provide little detailed information, and from the accountability point of view the most important documents are the Budget Statements for each portfolio (Portfolio Budget Statements or PBSs), presented as part of the budget documentation and including detailed spending plans and performance targets. Such accountability is reinforced by the provision of departmental and agency annual reports and financial statements relating to performance of the previous year's PBS. The Appropriation Bills and the PBSs represent the outcome of a process of portfolio bidding and central allocation which has gone on within the executive over the previous few months, and which is a major determinant of what new departmental policies get funded. It is the PBSs that are examined in detailed inquiries by the Senate's eight standing legislation committees, in which Ministers and senior public servants will be questioned.¹⁴²

Since the end of the twentieth century successive Ministries have devoted much effort to improving the effectiveness of use of public funds by departments and agencies by giving them greater responsibility for their own budgets. The key change occurred in 1999–2000 with a switch from the cash budgeting that operated—with some modifications—since 1901 to a system of 'accrual output budgeting', which conceptualized the budget process as one in which departmental and agency appropriations represent payments by the government for services provided or contributions to

agency capital, with agencies enjoying broader discretion in the use of funds, and with performance evaluated by reference to agencies' success in delivering the outcomes with which the payments were associated. Switching from a cash to an accrual basis, reflecting the commitments that might be made in the course of a year rather than the cash actually paid out, also meant that departments and agencies could carry over unspent funds at year-end.¹⁴³

The change of approach had an immediate effect on parliamentary control. The outcomes that departments and agencies formulated for themselves were of diverse and often very high levels of generality. This impaired the search for effectiveness and efficiency, by making it very hard to form any useful view of success in achieving them and, when they were incorporated into the *Appropriation Act* schedules in place of the previous programme-based classification of funds, damaged the basic principle of regularity of expenditure: it became difficult if not impossible to determine whether a given employment of funds was or was not related to a specified outcome. The latter problem was exacerbated by the ruling of a majority of the High Court in *Combet v Commonwealth* that spending under appropriations for the ordinary running costs of departments and agencies in relation to existing policies (covered by *Appropriation Act No 1*) did not need to be related even to the outcomes that were specified in the Act.¹⁴⁴ The succeeding government stated, in response to a Senate Committee recommendation that any approved expenditure should be legally linked to and connected with a specific outcome or purpose, that this 'represents a statement of government policy';¹⁴⁵ but no relevant change has since been made in the drafting of the annual *Appropriation Bill No 1*,¹⁴⁶ so that the *Combet* ruling would still appear to apply.

Further review and reform of the new system undertaken during the Labor government's period of office from 2008 to 2013, coupled with greater familiarity with the system on the part of departments and agencies, have ameliorated some of the other initial difficulties.¹⁴⁷ Outcomes are being stated more consistently and precisely; visibility of spending under special (standing) appropriation has been improved by the inclusion of relevant tables in PBSs and on a whole-of-government basis. Further, the 1999–2000 policy of giving departments and agencies more flexibility in the management of funds has been cut back, notably by reversing the

practice of including provision for depreciation in capital appropriations, which enabled departments and agencies to accumulate substantial balances over time which they could apply as they wished.¹⁴⁸ The current approach is a mixture of accrual and cash budgeting, in which appropriations cover the commitments which are expected to generate cash expenditures in the current and also future years.¹⁴⁹ It remains to be seen whether this latest regime achieves the right balance between the improvement of performance through agency financial responsibility and discretion, and the controls necessary to ensure transparency and accountability in the service of responsible government.

3. Control of Regulatory Activity

While money, as a departmental resource, has been centrally controlled for more than a century, it is only recently that attention has been paid to another source of power, rule-making: whether through proposals for legislation, use of formal regulatory powers, or the promulgation of ‘soft law’ such as guidance and codes of conduct. In the last two decades all Australian governments, individually as well as collectively through the Council of Australian Governments,¹⁵⁰ have developed arrangements designed to ensure that rule-making is approached on rational lines and according to procedures that take affected interests fully into account. These reforms, developed within rather than imposed upon executive government, reflect a global movement towards so-called ‘good’ or ‘better’ regulation, associated in its earliest years with the move from public provision of public utility services to public regulation of private provision, but later expanded to a concern with the necessity for, and quality of, all regulation imposing significant costs on non-public actors.¹⁵¹

The control space these measures currently occupy was not previously wholly vacant in Australia: Parliaments have long-established mechanisms, of varying degrees of efficacy, for examining rule-making in the form of subordinate legislative instruments and drawing attention to unusual or irregular use of the delegated rule-making power;¹⁵² while there has been at least the possibility of review of any rules emanating from departments taking the form of regulations to be made by the Governor-General, which will need to pass through Executive Council by reason of provisions in

Interpretation Acts.¹⁵³ Both these types of mechanism, however, operate *ex post facto*, and standards of regulatory quality have been either absent (from intra-governmental consideration) or highly specialized (in the case of Parliamentary scrutiny committees).¹⁵⁴

The Commonwealth's 'Better regulation' programme seeks to fill these gaps by way of a suite of measures including:¹⁵⁵

- identification of the types of measures to which the programme applies, with the specification of very limited exceptions (notably, manifesto commitments);¹⁵⁶
- substantive and procedural requirements for relevant rule-making, notably the provision of a Regulatory Impact Statement that evidences objective assessment (by way of cost-benefit analysis where possible) of the need for regulation; consideration of a range of possible regulatory techniques; identification of affected interests and appropriate consultation with them;
- creation of a central unit, the Office of Best Practice Regulation within the Prime Minister's Department, to supervise compliance with the requirements and to provide advice and guidance to relevant agencies; and
- procedures for enforcing agency compliance with the process, such as publication of non-compliant Regulatory Impact Statements.¹⁵⁷

These programmes have attracted criticism principally from groups likely to favour increased regulation of economic and other private actors, in particular on the ground that cost-benefit analysis is likely to introduce a bias against valuable regulation because costs are more easily quantifiable than benefits.¹⁵⁸ A more pertinent concern for the purposes of this chapter, however, is the tension between the values of efficiency, effectiveness, and freedom from unnecessary intervention that the programmes embody and express, and the considerations that often drive departments, and in particular politically responsible Ministers, to propose new regulation. Notable among these is the need to be seen to be doing something decisive in response to media or Parliamentary pressure based on alleged regulatory failures, but Ministers may also see regulation, or its revision, as a means of rewarding elements of their local or political constituency. In either case,

considerations of objective necessity or appropriateness may get short shrift in internal discussion, and the ‘better regulation’ system may represent nothing more than a challenge to public servants to construct arguments and documentation within its parameters that lead unerringly to the course of action the Minister wanted in the first place. cursory analysis of the key documents (Regulatory Impact Statements or Assessments)¹⁵⁹ suggests while ‘better regulation’ may have had a generally positive, though not dramatic, effect, this tension between political responsiveness and regulatory effectiveness remains unresolved.

E. CONCLUSIONS

The constitutional significance of the arrangements and developments discussed in this chapter cannot be appropriately measured by reference either to the slenderness of the place they occupy in Australian constitutional documents, or to the rarity of their consideration by the High Court. This limited constitutional visibility reflects the necessity for flexibility in the management of that mass of governmental activities that cannot be slotted neatly into the ‘legislative’ and ‘judicial’ boxes.¹⁶⁰ The traditional panacea for this relative absence of formal constitutional structure and of judicial oversight has been the invocation of responsible government, and more particularly of the idea of ministerial responsibility, as the source of a dynamic and continuing control, better suited than constitutional stipulations and judicial enforcement to secure limited government without impairment of necessary executive flexibility. For many decades now, however, public actors and academic commentators have bewailed the inability of Parliaments to reconcile the effective performance of this role with the loyal support of a majority for the executive government of the day.¹⁶¹ There could be no clearer demonstration of the consequent supineness of the Commonwealth Parliament, at least, in its approach to this control function than its willingness to pass, virtually without debate and indeed with the active co-operation of the opposition, the legislation intended to reverse the first *Williams* decision.¹⁶²

If therefore our review of how executives are currently structured suggests that some recent developments may not fit well with traditional

modalities of ministerial accountability, this should not be taken, without more, as a ground for criticism. The important thing is to ascertain the existence and effectiveness of all applicable channels of accountability, with a view to determining how far they sustain responsible government in the broad sense: that is to say—to quote one of Australia’s constitutional founders—a system of which ‘[t]he effect is that the actual government of the State is conducted by officers who enjoy the confidence of the people.’¹⁶³ The component parts of the executive are today subject to a range of diverse but interlinked accountabilities that stand outside the traditional parliamentary and judicial channels but that may likewise be the means of controlling executive action or exposing it to public scrutiny. Examples touched on here include party structures, agency reporting and accounting obligations, centrally imposed budgetary and regulatory disciplines, direct legal obligations and constraints imposed on agency boards and departmental managers, along with the components of the so-called ‘integrity branch’ of government.¹⁶⁴ If we recognize this, we should be able to form a more comprehensive and balanced picture of the constitutional implications of a constantly changing executive structure. The picture will not always be satisfactory—accountability for contracted-out functions may provide an example—but it will at least not be distorted by an anachronistically narrow view of the means by which the people’s confidence in the executive may, today, be informed.

¹ As the High Court acknowledged in *Williams v Commonwealth (No 2)*: ‘the executive power is all that power of a polity that is not legislative or judicial power’ (2014) 252 CLR 416[78] (partially accepting a proposition put in argument by the Commonwealth).

² The same is true of executive powers, which are the subject of a separate chapter.

³ See, eg, *Constitution of the Republic of South Africa*, No 108 of 1996 (1996), ss 83, 84, 85.

⁴ Germany, Iran, Italy, and Japan take this position: see, respectively: Deutsche Bundestag, *Basic Law for the Federal Republic of Germany* [1949], (2010) chs V (the Federal President) and VI (the Federal Government); *Iranian Constitution* of 24 Oct 1979, under which executive power is vested in the President (ch IX), beneath the Supreme Ruler as Head of State (ch VIII); *Constitution of Italy* (1947): the president is head of State, art 87 and appoints the government but is not otherwise identified with the executive (a term not used in the Constitution: see art 92 on the ‘government of the Republic’); *Constitution of Japan* (1946): Emperor is the (ceremonial) Head of State (ch I), while the executive power is vested in the Cabinet (ch V).

⁵ *Constitution of Senegal* (7 January 2001, as amended), under which the President *determines* the policy of the nation (art 42) while the government *conducts and co-ordinates* it (art 53).

⁶ Germany, (n 4) art 65 (Chancellor); *Constitution of the Fifth French Republic* (4 October 1958), art 21 (Prime Minister). See also the Finnish Constitution, Ministry of Justice, *The Constitution of Finland* (11 June 1999, 731/1999), s 66 (Prime Minister).

⁷ For examples see South Africa, (n 3) chs 5, 10, and 11, and the (very lengthy) 1991 *Constitution of Colombia*, Titles V and VII.

⁸ Federal civil servants are referred to as being appointed by the President (art 60), but do not form part of the federal Government (ch 6), and their position in relation to it is not defined: (n 4).

⁹ Civil servants are not mentioned in ch 5 (The President of the Republic and the Government), but are stated (s 118) to be ‘responsible for the lawfulness of [their] official actions’: (n 6).

¹⁰ A previous Convention, held in 1891 in Sydney, produced a draft Bill that failed to gain acceptance in the colonies but provided a starting point for the 1897 discussions.

¹¹ Michael Crommelin, ‘The Executive’ in Gregory Craven (ed), *The Convention Debates 1891–1898: Commentaries, Indices and Guide* (Legal Books 1986) 136–45.

¹² See Chapter 24 ‘Parliaments’ and Part VI ‘Federalism’.

¹³ Sidney Low, *The Governance of England* (T Fisher Unwin 1904) 12. It is worth noting that nearly a century later, it still proved impossible to achieve consensus on rules or principles expressive of these understandings: see section C below.

¹⁴ State constitutions that have been the subject of recent revision may exhibit more detail (eg, *Constitution Act 1902* (NSW), ss 35–50G) or provide somewhat more precise reflection of actual practice (eg, *Constitution of Queensland 2001*, s 42, recognizing the existence of the Cabinet); but the general point still holds good.

¹⁵ See generally Robert S Parker, ‘The Meaning of Responsible Government’ (1976) 11 *Politics* 178; George Winterton, *Parliament, the Executive and the Governor-General: A Constitutional Analysis* (Melbourne UP 1983) 71–85; and for examples of the many judicial references to these ideas, *FAI Insurances v Winneke* (1982) 151 CLR 342, 349 (Gibbs CJ), 364–65 (Mason J); *Egan v Willis* (1998) 195 CLR 424.

¹⁶ See also Andrew Inglis Clark, *Studies in Australian Constitutional Law* (2nd edn, Charles F Maxwell 1905) 64–65.

¹⁷ See further Chapter 4 ‘Independence’ in this volume.

¹⁸ As to the Commonwealth see *Commonwealth Constitution*, s 2, and Winterton, *Parliament, the Executive and the Governor-General* (n 15) 17–20; as to the States see *Australia Act 1986*, s 7. The Queen may, however, still exercise certain functions ordinarily exercisable by a Governor-General when she is present in Australia: see the *Royal Powers Act 1953* (Cth), and the *Australia Act 1986*, s 7(4). The distancing of the Queen from Australian affairs is such that her United Kingdom subjects were in *Sue v Hill* (1999) 199 CLR 463 held to be ‘subjects of a foreign power’ and hence ineligible, under *Constitution*, s 44(i), for membership of the Australian Parliament.

¹⁹ See Chapter 26 ‘Separation of Legislative and Executive Power’.

²⁰ For example John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (Angus & Robertson 1901) 699–700.

²¹ For expressions of this understanding in the course of the Convention Debates, see Crommelin (n 11) 127–48.

²² Section 63.

²³ Official Report of the National Australasian Convention Debates (Adelaide, 19 April 1897) 910 (Edmund Barton).

²⁴ *ibid.*

²⁵ On the origins of the Executive Councils see A C V Melbourne, *Early Constitutional Development in Australia* (University of Queensland Press 1963) 105–11.

²⁶ Australian Government, Department of Prime Minister and Cabinet, *Federal Executive Council Handbook* (2015) para 2.1.4.

²⁷ On the mode of operation of the Commonwealth Executive Council, see *Federal Executive Council Handbook* (n 26).

²⁸ *Acts Interpretation Act 1901* (Cth), s 16A. See generally George Winterton, 'The Constitutional Position of State Governors' in H P Lee and George Winterton (eds), *Australian Constitutional Perspectives* (Law Book Company 1992) 274, 289; Grant Donaldson, 'Aspects of State Executive Powers' (2012-13) 36 *University of Western Australia Law Review* 145, 164-67.

²⁹ See section D.1 below.

³⁰ See the *Federal Executive Council Handbook* (n 26) para 1.2.3. Western Australia goes further: submissions are required to be countersigned by the Premier: Western Australia, Department of Premier and Cabinet, *Executive Council Guidelines* (2015) para 5.1.

³¹ Peter Bassett, 'The Governor and the Constitution' (1994) 53 *Australian Journal of Public Administration* 49, 52. The author was at the time of writing Official Secretary to the Governor of South Australia.

³² For a fuller treatment of these issues see Chapter 9 'Unwritten Rules'; and Republic Advisory Committee, *An Australian Republic: The Options*, vol 2, Appendix 6 (AGPS 1993).

³³ Australian Constitutional Convention Official Record of Debates (Brisbane, 29 July-1 August 1985), Resolutions: Item B1 Structure of Government (Conventions of the Constitution); Constitutional Commission, *Report of the Advisory Committee on Executive Government* (1987) 39-42.

³⁴ Bassett (n 31) 50; Anne Twomey, 'The Unrecognised Reserve Powers' (High Court Public Lecture, 14 November 2012) 5, <http://www.hcourt.gov.au/assets/publications/speeches/lecture-series/Twomey_lecture.pdf> accessed 31 December 2015 both citing *Adegbenro v Akintola* [1963] AC 40 (PC).

³⁵ This was described, by the Australian Constitutional Convention of 1985 (n 33), as 'the basic principle' governing the conventions of the Australian Constitution.

³⁶ The federal parliamentary Labor Party is commonly referred to as the Labor Caucus.

³⁷ Kevin Rudd (twice: 3 December 2007-24 June 2010; 27 June-18 September 2013); Julia Gillard (24 June 2010-27 June 2013); Tony Abbott (18 September 2013-15 September 2015); Malcolm Turnbull (15 September 2015-).

³⁸ Prime Minister Kevin Rudd, Press Conference 8 July 2013 <<http://australianpolitics.com/2013/07/08/rudd-announces-historic-reform-to-alp-leadership-election-party-members-to-have-50-say.html>> accessed 29 December 2015. The 75 per cent rule applies only when the Labor Party holds office; in opposition, it is reduced to 60 per cent.

³⁹ *ibid.*

⁴⁰ The 2013 procedure is recognized by the Party's National Constitution as confirmed at the 47th National Conference (2015) cl 27 <http://www.alp.org.au/national_platform> accessed 2 January 2016, but the Constitution leaves it to Caucus to decide whether to operate it.

⁴¹ Candidates could go forward if nominated by as few as 15 per cent of the PLP membership. The current Australian Labor Party arrangements impose the more stringent requirement of nomination by 30 per cent of Caucus: (n 40).

⁴² Paul Finn, *Law and Government in Colonial Australia* (OUP 1987) 58-61, 95-102, 128-32.

⁴³ See generally Paul Finn and Geoffrey Lindell, 'The Accountability of Statutory Authorities' Senate Standing Committee on Finance and Government Operations, Fifth Report, Statutory Authorities of the Commonwealth (1982) Appendix 1.

⁴⁴ We discuss mechanisms of control below, see section C.6.

⁴⁵ *Australian National Airways Pty Ltd v Commonwealth (No 1)* (1945) 71 CLR 29; *Australian Coastal Shipping Commission v O'Reilly* (1962) 107 CLR 46.

⁴⁶ See *Auditor-General Act 1997* (Cth).

⁴⁷ *Ombudsman Act 1976* (Cth).

⁴⁸ Peter Cane, *Administrative Tribunals and Adjudication* (Hart Publishing 2009).

⁴⁹ James Spigelman, 'The Integrity Branch of Government' (2004) 78 *Australian Law Journal* 724.

⁵⁰ John Goldring, 'Accountability of Commonwealth Statutory Authorities and "Responsible Government"' (1980) 11 *Federal Law Review* 353, 366–67.

⁵¹ See [Part VI](#) 'Federalism'.

⁵² Thus from 1967 to 2011 Commonwealth legislation entrusted the day-to-day regulation of petroleum activities in Commonwealth waters to State Ministers and their departments: *Offshore Petroleum and Greenhouse Gas Storage Act 2006* (Cth), replacing *Petroleum (Submerged Lands) Act 1967* (Cth).

⁵³ *Aston v Irvine* (1955) 92 CLR 353. For discussion see Finn and Lindell ([n 43](#)) esp at 185–90; Graeme Hill, 'Will the High Court "Wakim" Chapter II of the Constitution?' (2003) 31 *Federal Law Review* 445, 473–76.

⁵⁴ Quick and Garran ([n 20](#)) 711.

⁵⁵ Leslie F Crisp, *Australian National Government* (5th edn, Longman Cheshire 1983) 384–85.

⁵⁶ *Re Patterson; ex parte Taylor* (2001) 207 CLR 391, 403 [17] (Gleeson CJ), 415 [66], 457 [205], 460 [211] (Gummow and Hayne JJ), 498 [320] (Kirby J), 519 [380] (Callinan J).

⁵⁷ Section 65 of the Constitution provides that the number of Ministers may be determined by legislation.

⁵⁸ *Members of Parliament (Staff) Act 1984* (Cth), s 14.

⁵⁹ Yee-Fui Ng, *Ministerial Advisers in Australia: The Modern Legal Context* (Federation Press 2016) 44–52, 58–64.

⁶⁰ Senate Select Committee, *A Certain Maritime Incident* (2002) Commonwealth of Australia xxxiv.

⁶¹ Ng ([n 59](#)) 134–67.

⁶² David Hamer, *Can Responsible Government Survive in Australia?* (rev edn, Department of the Senate, 2004) 140–47.

⁶³ Diana Woodhouse, *Ministers and Parliament: Accountability in Theory and Practice* (Clarendon Press 1994) 38.

⁶⁴ Prime Minister, *A Guide on Key Elements of Ministerial Responsibility* (1998) 13.

⁶⁵ The current administration's *Statement of Ministerial Standards* (2015) focuses exclusively on the personal conduct of Ministers.

⁶⁶ *Carltona Ltd v Commissioners of Works* [1943] 2 All ER 560, 563; applied in Australia by *O'Reilly v State Bank of Victoria Commissioner* (1983) 153 CLR 1, 11–13 (Gibbs CJ), 30–33 (Wilson J).

⁶⁷ For example *Migration Act 1958* (Cth), s 496.

⁶⁸ For example *ibid*, s 189.

⁶⁹ Christopher Hood and Martin Lodge, *The Politics of Public Service Bargains: Reward, Competency, Loyalty—and Blame* (OUP 2006) 56.

⁷⁰ Vince Fitzgerald, 'Advice on Public Policy: The Changing Balance between the Public Service and Political Advisers' in Julian Disney and John R Nethercote (eds), *The House on Capital Hill: Parliament, Politics and Power in the National Capital* (Federation Press 1996) 119.

⁷¹ See [section C.6](#).

⁷² Terence Daintith and Alan Page, *The Executive in the Constitution: Structure, Autonomy, and Internal Control* (OUP 1999) 37–45.

⁷³ *Public Service Act 1999* (Cth), s 57(1).

⁷⁴ Sections 13(2), 15. This duty is to be carried out ‘consistently with government policy’: s 21.

⁷⁵ Section 19.

⁷⁶ Australia, Parliament, House of Representatives, *Public Finance, Governance and Accountability Bill 2013: Explanatory Memorandum*, para 153.

⁷⁷ *Public Service Act 1999* (Cth), s 58.

⁷⁸ Australian Public Service Commission, *State of the Service Report 2014–15* (2015) 13.

⁷⁹ Patrick Weller, *Australia’s Mandarins: The Frank and the Fearless?* (Allen & Unwin 2001) 22.

⁸⁰ *Public Service Reform Act 1984* (Cth), s 14; *Public Service Act 1999* (Cth), ss 58, 59(1).

⁸¹ *Public Service Act 1999* (Cth), s 59(1).

⁸² Weller (n 79) 33.

⁸³ Emma Griffiths, ‘New PM Tony Abbott Sacks Three Public Service Bosses as First Act’, *ABC News* (online) (19 September 2013) <www.abc.net.au/news/2013-09-18/abbott-sacks-three-public-service-bosses-as-first-act/4965690> accessed 9 May 2016.

⁸⁴ Daintith and Page (n 72) 62–63. See now the *Constitutional Reform and Governance Act 2010* (UK).

⁸⁵ *Barratt v Howard* (1999) 165 ALR 605, 609 [9]–[10].

⁸⁶ *Director-General of Education v Suttling* (1987) 162 CLR 427, 437–38.

⁸⁷ *Lucy v Commonwealth* (1923) 33 CLR 229.

⁸⁸ *Barratt v Howard* (2000) 96 FCR 428, 444, 450–52.

⁸⁹ An early source is the report of a taskforce of the 1976 Royal Commission on Australian Government Administration. Gerald E Caiden, Royal Commission on Australian Government Administration Task Force on Efficiency, *Towards a More Efficient Government Administration, First Report* (1975).

⁹⁰ A list of entities of different types, organized by portfolio, can be found at Australian Government, Department of Finance, *List of General Government Sector, Public Non-financial Corporation and Public Financial Corporation Entities under the Public Governance, Performance and Accountability Act 2013* (PGPA Act)—30 September 2015 <www.finance.gov.au/sites/default/files/list-ggs-pnfc-pfc-pgpa.pdf> accessed 28 January 2016.

⁹¹ *Offshore Petroleum and Greenhouse Gas Storage Act 2006*, ss 695AB–95R.

⁹² Above section C.2.

⁹³ Finn (n 42).

⁹⁴ Goldring (n 50) 357–60.

⁹⁵ For example *Australian Security Intelligence Organisation Act 1979* (Cth), s 8.

⁹⁶ For example *Home Care Service Act 1988* (NSW), s 4(4).

⁹⁷ Darrell Barnett, ‘Statutory Corporations and “The Crown”’ (2005) 28(1) *University of New South Wales Law Journal* 186, 194–99, 215–17.

⁹⁸ For example *Australian Crime Commission Act 2002* (Cth), s 18.

⁹⁹ Under the *Financial Management and Accountability Act 1997* (Cth) and the *Commonwealth Authorities and Companies Act 1997* (Cth).

¹⁰⁰ *PGPA Act*, ch 3.

¹⁰¹ Sections 97–99. For other entities see ss 41–44.

¹⁰² Sections 25–31.

¹⁰³ Section 22. No such orders have yet been made. For the position of heads of non-corporate entities, including Departmental Secretaries, see [section C.5](#) above.

¹⁰⁴ For more detail see below [section D.2](#).

¹⁰⁵ For example Senate Finance and Public Administration Committee, *Inquiry into the Administration of Health Practitioner Registration by the Australian Health Practitioner Regulation Agency* (2011).

¹⁰⁶ Catherine Donnelly, 'The Response of English Public Law to Private Actors in Public Governance' in Matthias Ruffert, *The Public-Private Law Divide: Potential for Transformation?* (British Institute of International and Comparative Law 2009) 169, 171.

¹⁰⁷ Compare *Italian Constitution* ([n 4](#)), art 43, and Preamble to the *French Constitution of 1946*, para 9, in each case making provision for the reservation to the public sector of certain economic activities.

¹⁰⁸ Donnelly ([n 106](#)).

¹⁰⁹ For example *Vietnam Veterans' Affairs Association of Australia (NSW Branch Inc) v Cohen* (1996) 70 FCR 419, 432.

¹¹⁰ See *Plaintiff M61/2010E v Commonwealth* (2010) 243 CLR 319, 345 [51].

¹¹¹ *NEAT Domestic Trading Pty Ltd v AWB Ltd* (2003) 216 CLR 277, 296–99 (McHugh, Hayne and Callinan JJ).

¹¹² The *Datafin* principle emphasizes the public nature of the power exercised, rather than whether its source was public or private, thus allowing judicial review over outsourced functions. *R v Panel on Take-overs & Mergers; Ex parte Datafin plc* [1987] 1 QB 815, 838 (Sir John Donaldson MR), 847–48 (Lloyd LJ), 852 (Nicholls LJ). There is no High Court majority directly applying the *Datafin* principle. See Emiliios Kyrou, 'Judicial Review of Decisions of Non-governmental Bodies Exercising Governmental Powers: Is *Datafin* Part of Australian Law?' (2012) 86 Australian Law Journal 20.

¹¹³ Nicholas Seddon, *Government Contracts: Federal, State and Local* (3rd edn, Federation Press 2004) 33–36, 39–42.

¹¹⁴ (2005) 143 FCR 217, 218, 271–72.

¹¹⁵ *Ombudsman Act 1976* (Cth), ss 3(4B), 3BA.

¹¹⁶ *Auditor-General Act 1997* (Cth), ss 18B, 32–33.

¹¹⁷ Senate Procedural Order of Continuing Effect, *Departmental and Agency Contracts* (2001).

¹¹⁸ See, eg, The Auditor-General, ANAO Report No 4 2015–16 Performance Audit, *Confidentiality in Government Contracts: Senate Order for Departmental and Entity Contracts (Calendar Year 2014 Compliance) Across Entities* (2015).

¹¹⁹ *Freedom of Information Act 1982* (Cth), s 6C.

¹²⁰ *ibid* ss 47, 47G.

¹²¹ Department of the Prime Minister and Cabinet, *Cabinet Handbook* (8th edn, 2015) cl 5.

¹²² *ibid*.

¹²³ *ibid* cl 4.

¹²⁴ See text at [section B.3](#) above.

¹²⁵ The Queensland Constitution requires there to be a Cabinet consisting of the Premier and the Ministers of the State. It also provides that the Cabinet is collectively responsible to Parliament. *Constitution of Queensland 2001* (Qld), s 42.

¹²⁶ *Minister for Arts Heritage and Environment v Peko-Wallsend* (1987) 15 FCR 274, 276, 279 (Bowen CJ).

¹²⁷ Department of the Prime Minister and Cabinet, *Cabinet Handbook* (8th edn, 2015) cls 76–84.

¹²⁸ *ibid*.

¹²⁹ Thomas Poguntke and Paul Webb, 'The Presidentialisation of Politics in Democratic Societies: A Framework of Analysis' in Poguntke and Webb (eds), *The Presidentialisation of Politics: A Comparative Study of Modern Democracies* (OUP 2005) 1–25.

¹³⁰ See [section C.1](#) above.

¹³¹ On coercion and money as the essential sources of governmental power, see Terence Daintith, 'Regulation by Contract: The New Prerogative' [1979] *Current Legal Problems* 41.

¹³² For further material on this complex area see generally Kathie Cooper, Warwick Funnell, and Janet Lee, *Public Sector Accounting and Accountability in Australia* (2nd edn, UNSW Press 2012); Charles Lawson, 'Re-invigorating the Accountability and Transparency of the Australian Government's Expenditure' (2008) 32 *Melbourne University Law Review* 879; Marc Robinson, 'Financial Control in Australian Government Budgeting' (2002) 22 *Public Budgeting and Finance* 80. All of these sources pre-date the latest comprehensive legislation in the field, the *PGPA Act 2013*.

¹³³ *PGPA Act*, ss 53, 107.

¹³⁴ *Northern Suburbs General Cemetery Reserve Trust* (1993) 176 CLR 555, 599 (McHugh J).

¹³⁵ The movement, in the seventeenth and eighteenth centuries, away from such grants and towards occasional and finally annual appropriations is traced in Josef Redlich, *The Procedure of the House of Commons: A Study of its History and Present Form*, vol 3 (Constable 1903) 159–70.

¹³⁶ See further Chapter 24 'Parliaments'. The definition of 'ordinary annual services of the Government' (where the Senate's powers in relation to appropriation bills are more limited) was settled in 1965 by a 'Compact' between the Houses: see for its content Australian Parliament, Bills Digests, Appropriation Bill (No 6) 2011–12.

¹³⁷ Some such appropriations are effected by the Constitution itself: see ss 3 (salary of the Governor-General); 48 (allowances to members of the federal Parliament); and 66 (salaries of the Queen's Ministers of State).

¹³⁸ Quick and Garra (n 20) 670.

¹³⁹ Senate Standing Committee for the Scrutiny of Bills, *Accountability and Standing Appropriations*, Fourteenth Report of 2005 (2005). The percentage has increased every decade since 1901: it was 10 per cent in 1910, 49 per cent in 1950, and 74 per cent in 1993. In 2012 the Department of Finance suggested that the figure was 75 per cent: Australian Government, Department of Finance and Deregulation, *Is Less More? Towards Better Commonwealth Performance* (Commonwealth Financial Review Discussion Paper 2012) 24. It appears from the same source that the United Kingdom and New Zealand get by with standing appropriations of no more than 29 per cent and 11 per cent of total spending.

¹⁴⁰ See generally Richard Webb and David Richardson, *The Commonwealth Budget: Process and Presentation* (Information and Research Services Research Paper No 6, 2003) section 4.2.

¹⁴¹ See (n 136).

¹⁴² Parliament of Australia, *Consideration of Estimates by the Senate's Legislation Committees*, Senate Brief No 5 (2014) <http://www.aph.gov.au/About_Parliament/Senate/Powers_practice_n_procedures/Senate_Briefs/Brief05> accessed 26 January 2016. Each Committee covers a group of ministerial portfolios, including both departments and related agencies.

¹⁴³ On the thinking behind accrual output budgeting see generally Robinson (n 132).

¹⁴⁴ *Combet v Commonwealth* (2005) 224 CLR 494 (Gummow, Hayne, Callinan and Heydon JJ).

¹⁴⁵ Australian Government, Senate Standing Committee on Finance and Public Administration, *Committee Report 'Transparency and Accountability of Commonwealth Public Funding and Expenditure'* (2007), Commonwealth Government Response 9.

¹⁴⁶ See for example *Appropriation Act (No 1) 2015–16* (Cth), ss 3 and 7, and compare with the provisions of *Appropriation Act (No 1) 2005–06* (Cth), discussed in *Combet* (n 144) [119]–[124]. The Department of Finance went so far as to suggest in 2012 that the Acts should be ‘simplified’ by omitting reference to outcomes altogether (Australian Government, Department of Finance and Deregulation (n 139) 22, 26), but this has not been followed up.

¹⁴⁷ See generally Andrew Murray, *Review of Operation Sunlight: Overhauling Budgetary Transparency* (2008), and the Government Response (n 145). And see above, at section C.6, for the convergence in accounting and reporting obligations of corporate and non-corporate Commonwealth entities effected by the *PGPA Act*.

¹⁴⁸ Murray (n 147) Recommendation 15.

¹⁴⁹ See Australian Government, Department of Finance and Deregulation (n 139) 23.

¹⁵⁰ See Part VI ‘Federalism’.

¹⁵¹ See OECD, *The OECD Report on Regulatory Reform: Synthesis* (OECD 1997); OECD, *Regulatory Impact Analysis: Best Practices in OECD Countries* (OECD 1997).

¹⁵² See generally Dennis C Pearce and Stephen Argument, *Delegated Legislation in Australia* (4th edn, Butterworths 2012) 59–92.

¹⁵³ See further above section B.3.

¹⁵⁴ ‘Better regulation’ arrangements may, however, be linked with established procedures for Parliamentary scrutiny, as under the *Subordinate Legislation Act 1989* (NSW), s 5 and sch 2, requiring most proposals for statutory rules to be accompanied by a Regulatory Impact Statement.

¹⁵⁵ *The Australian Government Guide to Regulation* <<http://cuttingredtape.gov.au/handbook/australian-government-guide-regulation>> accessed 9 May 2016.

¹⁵⁶ For examples see *ibid* 56–58.

¹⁵⁷ Regulatory impact statements are published on the website of the Office of Best Practice Regulation (<<http://ris.dpmc.gov.au>>), which will draw attention to any respects in which the RIS is non-compliant, but this does not prevent its presentation to Cabinet in support of the regulatory proposal. Earlier practice to the contrary was abandoned in the face of departmental pressure: *The Australian Government Annual Deregulation Report 2014* <http://cuttingredtape.gov.au/sites/default/files/files/ausgov_annual_dereg_report_2014.pdf> accessed 9 May 2016.

¹⁵⁸ An example would be the value to be placed on the preservation of bio-diversity.

¹⁵⁹ At the OBPR website <<http://ris.dpmc.gov.au>> accessed 9 May 2016.

¹⁶⁰ As the High Court acknowledged in one of its rare ventures into the area: *Re Patterson* (n 56) [14]–[15] (Gleeson CJ), [210]–[211] (Gummow and Hayne JJ).

¹⁶¹ Patrick Weller, *Cabinet Government in Australia, 1901–2006: Practice, Principles, Performance* (UNSW Press 2007) 192.

¹⁶² *Financial Framework Legislation Amendment Act (No 3) 2012*. *Williams v Commonwealth (No 2)* (n 1) demonstrated that the attempt had been less than totally successful. See further Chapter 26 ‘Separation of Legislative and Executive Power’.

¹⁶³ Sir Samuel Griffiths, *Notes on Australian Federalism: Its Nature and Probable Effects* (Queensland Government Printer 1896) 17 <<http://adc.library.usyd.edu.au/data-2/fed0017.pdf>> accessed 9 May 2016.

¹⁶⁴ For a general discussion of ‘multiple accountabilities’ see Colin Scott, ‘Accountability in the Regulatory State’ (2000) 27 *Journal of Law and Society* 38.

CHAPTER 26

SEPARATION OF LEGISLATIVE AND EXECUTIVE POWER

CHERYL SAUNDERS

A. INTRODUCTION

It has long since been settled that the Australian Constitution provides for a three-way separation of powers in the Commonwealth sphere of government.¹ Typically, this finding is explained by reference to the structure of the Constitution: in particular, the dedication of the first three chapters to the legislature, executive, and judiciary respectively, with each chapter introduced by a section dealing with the vesting of the relevant power in the appropriate institution.² Successive courts have acknowledged the evident similarity with the structure of the Constitution of the United States on which the framers of the Australian Constitution drew extensively in some respects, without basing their reasoning on what, patently, is a framework for a very different system of government, at least as far as the legislature and executive are concerned. Characterization of the Australian Constitution as embodying a justiciable separation of powers has been criticized, sometimes trenchantly, pointing to counterindications in the Constitution itself.³ It is firmly entrenched, nevertheless. Its significance continues to grow, as one of the key institutional pillars on which Australian constitutionalism depends.⁴

Overwhelmingly, the separation of judicial power has attracted most of the attention. This is the subject of another chapter in this volume, however, and will not be treated further here, other than to note that the extensive case law involves consideration of both the scope of judicial power and the

constitutional relationship between judicial power on the one hand and legislative and executive power on the other.⁵ By contrast, there has been less focus on the separation of legislative and executive power. No doubt this is because this aspect of the design of the Australian system of government drew originally on that of the United Kingdom, including the arrangements typically characterized as responsible government whereby Ministers are members of the legislature, which traditionally was not analysed in terms of separation of powers.⁶ Thus, at the point at which the tripartite nature of the principle was first confirmed, Dixon J drew attention to its ‘asymmetry’.⁷

The separation of legislative and executive power has substance, nevertheless. In any system of parliamentary government there are actions that can be taken by the executive alone and others that can be undertaken only by or with the authority of Parliament, requiring division between the two. Logically, in any event, there must be some parallels between questions about judicial power that have attracted attention under section 71 and others presented by the strikingly similar wording of sections 1 and 61. In practice, functional separation between the legislature and the executive also is enhanced in Australia by the role and composition of the Senate: a powerful second chamber of the Commonwealth Parliament, in which the original States are represented equally, and in which a governing party majority is rare. The immediate catalyst for this chapter, however, is that questions about the scope of legislative or executive power and the relationship between them have been recurrent issues in both courts and Parliaments for some time, with outcomes that demonstrate there are questions yet to be answered.⁸

This chapter examines these issues primarily through the lens of the separation of powers. To this end, it is divided into two parts. [Section B](#) examines the framework for the exercise of the legislative power of the Commonwealth from the standpoint of the separation of powers, with particular focus on three significant issues: the concept of legislative power; delegation of legislative power; and authority to appropriate and grant moneys to the States. [Section C](#) deals with the nature of the executive power of the Commonwealth, including the extent to which it can be exercised without legislative authorization.

The chapter is not directly concerned with the division of legislative and executive power for federal purposes, which is the subject of the next part of the Handbook. Nevertheless, to the extent that federal limitations on Commonwealth legislative and executive power are intertwined with their scope from the standpoint of the separation of powers, they are relevant to this chapter too. The interdependence of federalism and separation of powers is particularly evident in relation to the scope of federal executive power which, as I have argued elsewhere, may now be a compound concept.⁹ Even in relation to the legislative power, however, as will be seen, federal limitations may play a role in the judicial resolution of particular problems.

It is settled also that there is no three-way separation of powers under the Constitution of the Australian States. The structure of State Constitutions provides little encouragement for it and many parts of most State Constitutions are, at best, lightly entrenched. The primary focus of this chapter therefore is the separation of powers in the Commonwealth sphere. As the chapter on the separation of judicial power shows, however, the text and structure of the Commonwealth Constitution, informed by underlying principle, have had flow-on effects for the structure and operation of State court systems. Whether and if so on what basis Commonwealth doctrine might also have implications for the scope of State legislative or executive power is unclear, as matters presently stand.¹⁰ Broadly similar questions about the scope of legislative and executive power arise in both spheres, however. It is at least possible and perhaps even likely that the broad contours of both powers will prove to be similar in both spheres.¹¹ A final section of the chapter touches on this issue briefly.

B. LEGISLATIVE POWER

1. Framework

The legislative power ‘of the Commonwealth’ is conferred on the federal Parliament by section 1 of the Constitution. It is clear that the term ‘Commonwealth’ in this context refers to the central order of government alone.¹² The Parliament is defined as comprising the Queen, the Senate, and the House of Representatives. The Governor-General assents to legislation

in the name of the Queen (section 58) in a manner consistent with a legislative, rather than executive process.¹³

The legislative power of the Commonwealth is limited for the purposes of federalism to subjects specified in or derived from the terms of the Constitution. Almost all of these are comprehended by the forty ‘heads of power’ in section 51 of the Constitution, most of which are understood to be held by the Commonwealth concurrently with the States, subject to the supremacy of Commonwealth law under section 109. A shorter list of exclusive Commonwealth powers appears in section 52, but is augmented by provisions elsewhere in the Constitution that effectively make some other heads of power exclusive. A few other sections impose limits on the substance of the laws that may be made in the exercise of the legislative power of the Commonwealth. With only a few exceptions, however, of which the prohibition of establishment of a religion is one (section 116) these tend to relate to the establishment of an economic union rather than to the protection of rights. Another subset of powers to make laws in relation to appropriation and spending is a story in its own right, which is told in [section B.3](#) below.

As a term in an entrenched, written Constitution, the concept of power that is ‘legislative’ in character potentially falls to be construed in a way that is consistent with the Constitution as a whole. Unlike the companion concepts of executive and judicial power, however, the distinguishing characteristics of legislative power so far have attracted relatively little judicial attention. The requirement in the opening words of section 51 that the heads of legislative power be exercised ‘for the peace, order and good government of the Commonwealth’ has occasionally been claimed, unsuccessfully, to import substantive limits on their use but has never been conceived as going to the conception of legislative power itself.¹⁴

In what may yet prove to be straws in the wind, there has been some interest in the High Court in recent decades in the bounds of power that is legislative in character. This interest coincides with a period during which the Court paid particular attention to the insights into constitutional meaning that might be derived from consideration of the Constitution as a whole. In the most significant instance, in 2003, a plurality of five justices raised the possibility that a statute might ‘lack a hallmark of the exercise of legislative power’ in terms of ‘determination of the “content of a law as a rule of conduct or a declaration of a power, right or duty”’.¹⁵ The

observation was made, by way of obiter, in response to suggestions by counsel in argument in a case dealing with the legal effect of a privative clause. The suggestions that provoked the response were that ‘the Parliament might validly delegate to the Minister “the power to exercise a totally open-ended discretion as to what aliens can and what aliens cannot come to and stay in Australia”, subject only to the Court deciding any dispute as to the “constitutional fact” of alien status’, or that the Act might ‘be redrawn to say, in effect, “[h]ere are some non-binding guidelines which should be applied”, with the “guidelines” being the balance of the statute’.¹⁶ Justice Gummow revisited the possibility of giving substance to the idea of ‘legislative’ power eight years later in *Momcilovic*, this time in the context of the operation of section 109 of the Constitution, noting that the concept of a ‘law’ involved ‘something more than a text’, involving a ‘rule’.¹⁷ And Justice Hayne referred to the issue again, in 2013, in considering the possible consequences of construction of the governing statute as ‘permitting the Minister ... to grant any class of visa ... guided only by public interest considerations’.¹⁸

Notwithstanding these observations, there are difficulties in construing section 1 to constrain the actions that the Parliament might take, through enactment of a statute, by reference to the conception of power that is legislative in character. Such a construction might endanger the present understanding that legislation can override an exercise of executive power, subject to specific constitutional provisions to the contrary. It is difficult in any event to determine what a satisfactory touchstone for invalidity might be; in practice, a great deal of legislation is ‘non-law-bearing’, to use David Feldman’s helpful term.¹⁹ On the other hand, separation of powers offers an obvious frame of reference, should a particularly egregious use of the statutory form be raised before a court in the future, of which those canvassed in *S157* are possible examples. The cases in which the issue has been flagged so far also assist to identify those features of the Australian Constitution which already serve as constraints on the form and content of legislation and around which a more general doctrine might develop. These include, but are not necessarily limited to, the federal division of powers, the principle of paramountcy of Commonwealth ‘law’, and those elements of the rule of law that involve judicial supervision of the lawfulness of executive action.

2. Delegation

A familiar problem for any separation of legislative and executive power is the extent to which legislative power can be delegated to the executive branch. Australia is no exception; this is a principal context in which the constitutional separation of legislative and executive power has been raised before the courts. Despite the separation of powers, however, extensive delegation of law-making power to the executive has proved to be constitutionally permissible. The relatively weak doctrinal constraints on the practice are the product of tension between Westminster-style parliamentary government and a constitutionalized separation of powers, given some teeth by the limits on Commonwealth power that federalism indisputably offers. While these constraints may inhibit the scope of delegation in some degree, they have never yet caused an empowering provision to fail on constitutional grounds. Procedures for parliamentary scrutiny of legislative instruments that rely on the relative autonomy of the Senate have proved at least as effective in controlling the scope of the delegation of legislative power.

The foundation case, which dealt with a challenge to a very broad delegation of legislative power to the executive in the light of the constitutional framework for a separation of powers, is *Dignan*. *Dignan* was decided thirty years after the Constitution came into effect, during which the practice of delegating legislative power to the executive became established, even as understanding of the Constitution as based on a separation of powers evolved. Previous decisions had accepted the validity of delegation as a shared assumption of politics in the British constitutional tradition²⁰ or in conditions that tended to support validity in any event, when the point was argued at all.²¹ The delegation in *Dignan* was much more sweeping, however, conferring a power on the Governor-General to make regulations ‘with respect to the employment of transport workers’ on the waterfront, which could override other, existing legislation. This was a time, also, when consciousness of an emerging problem with the scope of executive law-making had been raised by publication of *The New Despotism* in England.²²

The validity of the delegation was upheld by a unanimous High Court of five Justices. All were influenced by earlier cases, in which a power to delegate had been accepted or assumed. Two Justices, however, turned their

attention to constitutional limits on the practice. In what has become a leading judgment, Dixon J affirmed the three-way separation of powers and explored its application to the delegation of legislative power in Australia by reference to United States experience. He suggested that the asymmetry implied by Australian acceptance of the practice might be rationalized on the basis that subordinate legislation lacked ‘the independent and unqualified authority’ of ‘true legislative power’.²³ He relied on federalism as a source of limits on the ‘width’ or ‘uncertainty’ of a delegation; it must be possible to characterize the enabling provision as one ‘with respect to’ a head of Commonwealth legislative power.²⁴ A second Justice, Evatt J, rejected a ‘rigid doctrine of a separation of powers’ but also identified federalism as a limit on the scope of permissible delegation.²⁵ In addition, he listed a series of factors that assist to identify whether a law is within power, including the constraints in the empowering legislation, the identity of the repository of the power, and the scope of the power conferred.²⁶

The need to be able to characterize a law by reference to a federal head of power is a weak constraint from the standpoint of separation of powers, with application only in extreme cases. Australian jurisprudence has not developed tests that require a degree of specificity in the empowering statute and so are better fit for purpose, of the kind that apply in the United States or under the German Basic Law.²⁷ No Australian law has been invalidated for an overbroad delegation of legislative power. The possibility of invoking limits on delegation has been raised by the High Court from time to time, however, and there are hooks in the existing case law on which a more robust doctrine could develop.²⁸ In the meantime, the suggestion by Dixon J in *Dignan* that subordinate legislation might lack the qualities of ‘true legislative power’ has borne some fruit in subsequent cases, in which the High Court has accepted that a regulation might be invalid if made for a purpose that was not authorized by the empowering statute.²⁹

It is sometimes suggested that delegation of legislative power in a parliamentary system is less problematic, at least where Ministers are the effective recipients, because Ministers are responsible to the Parliament.³⁰ This assumes, however, that a House in which the government has a majority has the commitment and the capacity to scrutinize delegated legislation. It also tends to assume that Ministers are the recipients of a

delegation rather than, for example, heads of department, where the chain of accountability to Parliament is less direct. It might equally be argued that an extensive power to delegate is more problematic in a parliamentary system in which the executive has suasion over the form of legislation enacted by the House that it controls, facilitating sweeping delegation. In Australia, the role of the Senate cuts across both these familiar arguments, giving the Parliament collectively a capacity to scrutinize subordinate legislation and inhibiting the enactment of enabling legislation that delegates legislative power inconsistently with the Senate's own guidelines.

The Senate has had the legal authority to disallow delegated legislation since 1904.³¹ The arrangements have become progressively more elaborate since, through legislative change and political practice.³² In 2017, the *Legislation Act 2003* (Cth) provides the applicable legal framework. That Act requires legislative instruments to be tabled in each House of the Parliament and specifies a procedure for disallowance by either House within prescribed time limits.³³ The legal procedures derive teeth, however, from the activities of the Senate Committees on Scrutiny of Bills and Regulations and Ordinances that, respectively, monitor proposed laws and legislative instruments by reference to criteria that include the scope of delegated legislative power.³⁴ The Scrutiny of Bills Committee can recommend amendment of bills that inappropriately delegate power; the Regulations and Ordinances Committee can recommend disallowance of the legislative instruments. Both procedures are used, in a Senate rarely controlled by the governing party. Notwithstanding the activities of the Senate, the volume of delegated legislation is prodigious.³⁵ The ultimate sanction of disallowance nevertheless is a significant factor in keeping the extent of delegation in check and providing a measure of support, from the tool-box of political constitutionalism, for the separation of legislative and executive power.³⁶

3. Appropriation and Spending

The constitutional provisions dealing with appropriation and spending also have attracted a body of case law that can be examined through the lens of the separation of powers. Here, as elsewhere, the degree of separation is modified by checks and balances drawn from the assumptions of

parliamentary government. Here as elsewhere also those assumptions in turn are moulded by the context of a bicameral Parliament with a powerful, directly elected second chamber and legislative powers that are limited for federal purposes.

Two sets of provisions are relevant for the purpose: those dealing with appropriation and associated matters and those dealing with spending in the form of the provision of revenue to the States. It is convenient to deal with them separately, although they are connected, in ways to be described. They are linked also with the question of the extent to which spending can be undertaken, without legislative support, in the exercise of the inherent executive power in section 61. This question is touched on in passing below, but is taken up in greater detail in the next part.

The key appropriation provisions are found in sections 81 and 83. Moneys raised by the Commonwealth must be credited to a Consolidated Revenue Fund, from which they can be disbursed only pursuant to an ‘appropriation made by law’ (section 83) and ‘for the purposes of the Commonwealth (section 81). These sections provide the means whereby the Parliament retains ultimate control over the moneys available for the government, complemented by the requirements for audit, for which transitional provision was made in section 97.³⁷ Consistently with parliamentary government, the executive retains the financial initiative, in the sense that the purpose of every appropriation must be ‘recommended’ to the Parliament by the Governor-General, under section 56. Typically, in the Westminster tradition, acceptance of the government’s budget is an issue of confidence, guaranteeing acceptance of the appropriation legislation by the House.³⁸ In Australia, however, the guarantee is weakened by the powers of the Senate in a significant modification to parliamentary government, Westminster-style.³⁹ While financial bills must originate in the House, they can be rejected by the Senate (section 53). The Senate may, in addition, amend any appropriation bill other than a bill appropriating funds for the ‘ordinary annual services of government’ which, under section 54, must deal ‘only with such appropriation’. The scope of ‘ordinary annual services’ is the subject of an agreement between the House and the Senate.⁴⁰ Compliance with the agreement is imperfect, but nevertheless leaves a significant body of appropriations over which the Senate and, therefore, the Parliament, has a degree of de facto, as well as de jure, control.

Section 83 requires the Parliament to appropriate moneys by a ‘law’ rather than, for example, a parliamentary resolution. The nature and effect of such a law have occasionally arisen before the High Court. Presumably it is correct, as the Court observed in *Brown v West*,⁴¹ that as a matter of interpretation an Appropriation Act could be interpreted to override earlier legislation. This is unlikely, however, given its form and the rule against tacking extraneous matter to an appropriation for ordinary annual services. The accepted view, from an early stage, has been that an *Appropriation Act* is ‘financial, not regulative’,⁴² in the sense that it deals only with relations between government and Parliament and does not create rights and duties; a ‘rara avis in the world of statutes’.⁴³

Even so, for some time, there was a question whether the appropriation provisions were the source of a Commonwealth power to spend and whether and how, if so, spending was constrained by the reference in section 81 to appropriation for the ‘purposes of the Commonwealth’.⁴⁴ The possibility seems to have been prompted, at least in part, by reflection on the interpretation of the quite different provision in article 1 section 8 of the Constitution of the United States.⁴⁵ At stake was the extent to which a Commonwealth power to spend, other than through the States, is limited for federal purposes. It is now clear, however, that the sections do not have this effect. In *Pape*, all members of the Court rejected section 81 as the source of the Commonwealth power to spend although a valid appropriation, by law, remains a necessary precondition for the disbursement of funds.⁴⁶ The power to spend funds lawfully appropriated derives instead from the executive power in section 61, and so must be justifiable in terms of the execution of the Constitution or of a Commonwealth law, or an exercise of inherent executive power. The bases on which the executive power authorizes spending will be taken up in the next section where it will be seen that, in at least some cases, supporting legislation is required.

The appropriation provisions remain critical to parliamentary control over public moneys. They are all the more important to the extent that significant new policies can be introduced without other supporting legislation. Parliamentary control over the purposes of annual appropriations is attenuated, however, by the structure of the Appropriation Bills after the Commonwealth’s move to accrual budgeting and by the High Court’s acceptance in *Combet* that appropriation at a level of considerable

generality nevertheless amounts to an appropriation for the ‘purposes of the Commonwealth’.⁴⁷ The Court divided in *Combet* over the interpretation of an *Appropriation Act* in which an appropriation of \$1.4 billion for a ‘departmental item’ was claimed by the defendant Commonwealth to cover a proposed advertising programme for the government’s workplace relations reform proposals. A majority of the Court interpreted the appropriation in a way that was not further constrained by the terms of the legislation and accepted that ‘departmental expenditure’ was a purpose that satisfied the Constitution and covered the advertising programme.⁴⁸ The practice accepted in *Combet* has stripped the requirement of purpose of effect as a legal constraint, although no doubt it remains true, as the Court continues to affirm, that an appropriation cannot be ‘in blank’.⁴⁹ Some compensation for the resulting shortfall in parliamentary control of finance is provided by the Senate estimates hearings, in which Senate committees scrutinize the government’s more detailed expenditure plans in the Budget statements, relying on sanctions that lie almost entirely in the political, rather than the legal, realm.

Unlike the Constitution of the United States, which was used as an exemplar in so many other ways, the Australian Constitution makes express provision for the distribution of revenue to the States and thus for the principal objective of the federal power to spend that has been inferred from federal Constitutions in North America.⁵⁰ Most of the Australian provisions are, or have proved to be, transitional.⁵¹ The one that has proved lasting is section 96, which authorizes the Parliament ‘to grant financial assistance to any State on such terms and conditions as the Parliament thinks fit.’

Section 96 is the constitutional medium for all Commonwealth fiscal transfers to or through the States. The High Court has held that the federal division of powers does not restrict the conditions attached to a grant, because State acceptance of financial assistance is voluntary, as a matter of law.⁵² The effects of this holding on fiscal federalism in Australia are examined in [chapter 32](#) ‘Money’ and need not be pursued further here. The relevant point for present purposes is that both the grant of financial assistance and the determination of the conditions to which it is subject involve an exercise of legislative power under section 96 and, by extension, under section 51(xxxvi), which confers power to legislate with respect to matters throughout the Constitution for which provision is made ‘until the

Parliament otherwise provides'. The non-coercive character of section 96 makes the legislation unusual and creates uncertainty, which is still unresolved, about the legal status of conditions once a grant has been accepted. The power is conferred on the legislature, rather than on the executive, nevertheless.

The significance of this aspect of section 96 has never been fully realized by the Parliament, although the constitutional formalities necessarily are observed. Section 96 grants are made in a variety of ways, but always by legislation and more often than not with a delegation of power to the executive to attach conditions to the grant. At least two generic forms are in use in 2017: the umbrella *Federal Financial Relations Act 2009* (Cth) and the inclusion of grants to the States in the budget legislation appropriating funds for purposes other than ordinary annual services, of which *Appropriation Act (No 2) 2016–2017* (Cth) is an example. Both authorize the relevant Minister to attach terms and conditions by a determination in writing.⁵³ The *Federal Financial Relations Act* accepts that a determination is a legislative instrument, but excludes the possibility of disallowance (section 16(5)). The *Appropriation Act* denies that the determination is a legislative instrument, so that none of the procedures that normally accompany delegated legislation apply to it (section 16(4)). The Senate has been surprisingly passive in accepting such practices, but change may be underway. The Senate Standing Committee for the Scrutiny of Bills has begun to take an interest in delegation of the power to attach conditions under section 96, insisting on its legislative character. The principal result, so far, has been some improvement in the information about conditions that is made available to the Parliament, but these are still early days.⁵⁴

C. EXECUTIVE POWER

1. Framework

The executive power 'of the Commonwealth' is described in section 61 as 'vested in the Queen and exercisable by the Governor-General as the Queen's representative'. In almost all circumstances the power is exercised in accordance with the principles of responsible government as practised in Australia and little, if anything, turns on the identity of these formal

repositories of the power for present purposes. The section concludes in what sometimes is described as the ‘third declaration’ by providing that the power ‘extends to the execution and maintenance of this Constitution, and of the laws of the Commonwealth’.

Unlike legislative and judicial power, there is nothing elsewhere in the Constitution that divides executive power for federal purposes. Section 61 thus is the section that determines both the meaning of executive power within the Commonwealth sphere of government and the scope of Commonwealth executive power for federal purposes; twin dimensions of the executive power that George Winterton once helpfully characterized, respectively, as depth and breadth.⁵⁵ Other sections of the Constitution confer particular powers on the executive: examples include the appointment of federal judges (section 71) and the ‘command in chief’ of the armed forces (section 68). In the absence of supporting legislation, there is no provision for the resolution of conflict between an exercise of the executive power of the Commonwealth and that of a State. The Parliament has a power to make laws with respect to ‘matters incidental to the execution of any power vested by this Constitution ... in the Government’ (section 51(xxxix)), which has played some part in judicial reasoning on the scope of executive power.

Some aspects of the executive power conferred by section 61 are straightforward. A very great deal of power is conferred on the executive by legislation and clearly falls within the prescription of the ‘execution and maintenance of the laws of the Commonwealth’. There may be argument at the margins about whether a particular power is ‘incidental’ to the execution and maintenance of a law of the Commonwealth, but the tools for its resolution are familiar.⁵⁶ Similarly, up to a point, what is involved in the ‘execution ... of the Constitution’ is obvious as well. It is much more difficult, however, to determine what can be done by the executive without authorization by legislation or by specific constitutional provision. Almost all of the case law is concerned with this issue, which is the subject of the rest of this section.

One cause of the difficulty is the wording of section 61 itself.⁵⁷ At first glance, it is somewhat curious that executive power ‘is’, rather than ‘shall be’ vested in the Queen and that it is declared as ‘extending’ to what might be expected to be its two most obvious components: the execution and maintenance of the Constitution and Commonwealth laws. The explanation

is historical. Quick and Garran observed that the vesting provision ‘stereotypes the theory of the British Constitution that the Crown is the source and fountain of Executive authority’.⁵⁸ The stereotype is not carried through to Commonwealth legislative or judicial authority and its retention for the purposes of the executive reflects, at least in some degree, the lack of Australian independence at the time the Constitution was made.⁵⁹ Lack of independence also explains the provision in section 2 for the Governor-General to exercise ‘such powers and functions of the Queen as Her Majesty may be pleased to assign to him’, which Quick and Garran describe as including, in 1901, ‘the treaty rights and obligations of the Crown’.⁶⁰

This historical context thus suggests that the term ‘executive power of the Commonwealth’ has some substantive content, which is informed by the link with the Queen and so presumably power of the kind associated with the prerogative in England. It cannot be co-extensive with the prerogative in England, however, and some such powers might be inferred in any event from the concept of ‘execution and maintenance’ of the Constitution. It therefore fell to the Court both to determine the meaning of the ‘executive power of the Commonwealth’ and to tease out the significance of that part of it that relates to the execution and maintenance of the Constitution. Isaacs J stated the problem, as he saw it in 1922: the final part of section 61 ‘marks the external boundaries of Commonwealth executive power so far as that is conferred by the Constitution, but ... leaves entirely untouched the definition of that power’.⁶¹ Over time, however, both the substance of the power and the approach to interpreting the section changed, as Australia became fully independent. Section 61 became accepted as the sole source of Commonwealth executive power, absorbing whatever might have been ‘assigned’ under section 2, leaving it a dead letter, in this regard.⁶² Equally significantly, in a subtle but important shift of emphasis from 1988,⁶³ section 61 itself became the starting point for examining the scope of executive power, rather than the scope of the prerogative ‘accorded to the Crown by the common law’.⁶⁴ The position at common law continued to inform the meaning of the section, but as an element in the broader constitutional context in which the section is found.

The position at common law in any event is another factor contributing to the difficulty of determining the scope of inherent executive power. Executive power is amorphous in any constitutional tradition, but

particularly so in a tradition in which an uncoded Constitution has evolved over time in response to historical pressures, as in the United Kingdom. Even in the United Kingdom itself, there are divergent views on critical aspects of the problem.⁶⁵ One source of the confusion stems from uncertainty about whether prerogative power is co-extensive with inherent executive power or only a particular aspect of it. A V Dicey took the former view, casting the concept of the prerogative widely as ‘the residue of discretionary power left at any moment in the hands of the Crown’, which thus included ‘Every act which the Executive government can lawfully do without the authority of an Act of Parliament’.⁶⁶ For William Blackstone, on the other hand, the prerogative comprised only the ‘rights and capacities which the King alone enjoys’⁶⁷ leaving inherent executive powers of other kinds to be defined and explained in other ways. On either view, the prerogative includes powers once unique to the monarch that have not subsequently been removed, but there is some disagreement about what these are⁶⁸ and the prerogative in this sense also included various priorities, immunities, and proprietary rights.⁶⁹ On either view also, it is necessary to consider the scope of inherent executive power that is not unique to the Crown. The possibilities vary widely, from claims that this ‘third source’⁷⁰ of executive power entitles the executive to ‘do anything a natural person can do, unless limited by legislation’,⁷¹ to much narrower formulations that require ‘clear legislative authority’ for executive action, in the name of the rule of law.⁷² The claims for broader scope typically are justified in one way or another by equating the Crown with a legal person.⁷³ All of these issues remain unresolved. Relevantly for present purposes, however, the observations of the Supreme Court in 2013 in the *New College* case suggest that the position in the United Kingdom with respect to ‘general administrative powers’ is broadly similar to that which now appears to have been reached in Australia, which is outlined in the sections that follow.⁷⁴

2. Aspects of Inherent Executive Power

The course of litigation over the lifetime of a Constitution inevitably influences the evolution of judicial doctrine. The scope of non-statutory or inherent executive power under section 61 of the Australian Constitution has been raised in a wide variety of contexts at different points of time in

Australian history. Three sets of cases have left a particular mark, however, which help to explain both the present scope of inherent executive power and the many questions that remain to be settled.

The first group of cases concerns the prerogative. It is settled that section 61 incorporates power that is at least informed by the content of the prerogative at common law insofar as it is attributable to the Commonwealth rather than the States.⁷⁵ While the earlier willingness of the High Court to equate this aspect of the section 61 power to the prerogative diminished over time, traces of it remain. One, arguably, is the retention of the principle of construction that a statute ‘will not be held to have abrogated a prerogative of the Crown unless it does so by express words or ... necessary implication’.⁷⁶ Even this, however, has been adapted to the Australian constitutional context by applying the principle to executive power of ‘significance ... to national sovereignty’ rather than to the prerogative as such.⁷⁷

Despite the attention it attracts, the contribution of power in the nature of the prerogative to the scope of inherent executive power under section 61 is relatively confined. References to the prerogative for this purpose tend to evoke the narrower Blackstonian view, although usage is by no means consistent. Under this rubric, section 61 incorporates powers in relation to war and peace and to ‘the establishment of relations ... with other countries’, including the making of treaties.⁷⁸ Most other functions that in the United Kingdom fall within the Blackstonian view of the prerogative, however, are conferred specifically on the executive by other sections of the Constitution,⁷⁹ included in section 61 on some other basis,⁸⁰ or understood in Australia to fall within legislative rather than executive power.⁸¹ Arguably, in any event, a concept of the prerogative is unnecessary even for the purposes of foreign affairs and defence, which might equally have been covered by the authority to execute and maintain the Constitution.⁸² Not surprisingly, in these circumstances, it remains unclear whether the inherent executive power of the Commonwealth in the nature of the prerogative derives from the opening proposition that executive power is vested in the Queen or from the execution and maintenance of the Constitution in the third declaration.

A second group of cases that throw light on the scope of inherent executive power explore the implications of the position of the

Commonwealth as the national order of government, albeit in a federated state. What sometimes loosely is described as the ‘nationhood’ dimension of inherent executive power almost always is attributed to the extension of the power to the execution and maintenance of the Constitution. The ideas that are still in play began to emerge early in the post federation period as the first High Court considered the nature of the new polity that the Constitution created.⁸³ Subsequent development took place in multiple contexts, creating a complicated jurisprudence. Thus, this aspect of the executive power has been invoked, with mixed success, to support executive action of particular kinds in relation to internal security,⁸⁴ border security,⁸⁵ fiscal emergency,⁸⁶ commemoration of national events,⁸⁷ intergovernmental arrangements,⁸⁸ and spending programmes.⁸⁹ In some cases, what is claimed as executive power is supported through legislation attributed to the incidental power in section 51(xxxix), raising additional questions about what is incidental to the execution of the executive power.

While emphases differ across the cases, the idea of this aspect of executive power is captured in the formulation of Mason J in the *AAP Case*: ‘there is to be deduced from the existence and character of the Commonwealth as a national government ... a capacity to engage in enterprises and activities peculiarly adapted to the government of a nation and which cannot otherwise be carried on for the benefit of the nation’.⁹⁰ In the same case, Jacobs J observed that ‘the idea of Australia as a nation within itself and in its relationship with the outside world’ lay within the phrase ‘maintenance of the Constitution’ in section 61.⁹¹ It draws its justification from the creation of ‘a new body politic’ with ‘capacities superior to that of a mere aggregation of the federating colonies’.⁹² On the other hand, while Australia was an ‘independent nation state’ it also had a ‘federal system of government’.⁹³ Recognition of an aspect of executive power derived from the idea of nationhood, as embedded in section 61, could not effect a ‘radical transformation’ of the constitutional structure, either alone or in combination with section 51(xxxix).⁹⁴ Views have differed, sometimes significantly, over which activities are ‘peculiarly adapted to the government of a nation’. In relation to this, as well as other aspects of Commonwealth executive power it is generally accepted,

nevertheless, that the position is clearest where Commonwealth action ‘involves no real competition’ with State legislative or executive power.⁹⁵

This approach to determining the scope of Commonwealth executive power was given effect in *Pape v Commissioner of Taxation*. *Pape* involved a challenge to Commonwealth action designed to stimulate the economy in the face of the global financial crisis by paying a ‘bonus’ to taxpayers as defined in the *Tax Bonus for Working Australians Act (No 2) 2009* (Cth). Section 61, in combination with section 51(xxxix), emerged as the most likely basis on which the validity of the Act might be upheld. In the event, a majority of the Court⁹⁶ accepted that a plan to take ‘short-term fiscal measures to meet adverse economic conditions affecting the nation as a whole’ was, in these circumstances, ‘peculiarly within the capacity and resources of the Commonwealth’ and rested on this aspect of the executive power.⁹⁷ The Commonwealth’s position was ‘peculiar’ vis-à-vis the States partly because a quick, but time-limited response was required and partly because only the Commonwealth had the necessary resources: an ironic by-product of the federal fiscal imbalance.⁹⁸

Executive power alone could not create the rights and liabilities that the scheme required. Reliance on section 51(xxxix) for the *Tax Bonus Act* presented at least two problems. The first concerned the limits on what can be done in the exercise of a power incidental to the execution of executive power, given the inability of the latter to make or change law. It was clear from previous case law, for example, that the creation of offences in exercise of the incidental power in support of executive power was limited strictly to whatever was needed to ‘protect the efficacy’ of its execution.⁹⁹ In *Pape* the legislation passed muster, as ‘incidental to the effectuation of the fiscal stimulus policy’ but this remains a live issue for future cases.¹⁰⁰ A second, more conceptual problem concerned the consequences of accepting that this aspect of the executive power might be combined with the incidental legislative power to support a scheme of this kind. It conjured up an old, still contentious debate about whether there is an implied legislative power sourced in the idea of a national polity that differs in scope from the combination of section 61 and section 51(xxxix).¹⁰¹ The issue was avoided by the majority in *Pape* by resting what it characterized as the unusual and time-limited nature of the stimulus programme squarely on the executive and incidental legislative power.¹⁰²

The final set of cases necessary to an understanding of inherent executive power under the Australian Constitution deal with executive action of a kind that is not, at least superficially, unique to government and to this extent encourages analogy to actions that might be taken by any legal person. These are the actions that, in other constitutional contexts, have variously been described in terms of a ‘third source’ of executive power, or ‘common law’ or ‘administrative’ powers, to the extent that they fall within executive power at all.¹⁰³ The question whether and, if so, to what extent inherent executive power to undertake actions of this kind is invested in the Commonwealth executive under section 61 has arisen primarily in relation to government contract and spending although clearly it can arise in other contexts as well.¹⁰⁴

All the dimensions of executive power under section 61 of the Constitution that have been canvassed already are constrained by considerations of both separation of powers and federalism. In the context of contract and spending, however, questions have been raised, in both courts and in the literature, about whether these constraints apply. Three views have emerged, although there are variations within each.

At one end of this spectrum of possibilities, neither constraint applies, for reasons that emphasize the character of the executive action involved and draw on a generous understanding of the position under the English common law. This view emphasizes that contract and spending are non-coercive, at least as a matter of law. They are said to involve an exercise of ‘capacities’ rather than power. Like any other legal person, the Commonwealth executive can exercise its capacities subject only to any applicable law. Considerations of separation of powers are not attracted because actions of this kind clearly fall within executive power. Federal constraints are viewed as irrelevant.¹⁰⁵

Towards the other end of the spectrum, both constraints are claimed to apply. This view draws attention to the reality that contracting and spending involve the use of public funds and the exercise of public authority. In the hands of the executive branch, both are powerful tools to shape public behaviour. They may have implications for major public assets or for the obligations faced by future generations.¹⁰⁶ The executive branch, moreover, is an entity that is responsible to a bicameral legislature, through which it is accountable to the people. The analogy with legal persons is implausible in

these circumstances and the scope of executive vis-à-vis legislative power falls to be determined by reference to constitutional text and context. And whether coercive or not, contracting and spending by the Commonwealth executive in areas beyond those covered by substantive legislative powers also have implications for the federalism for which the Constitution provides, in various ways. To the extent that they fall within the executive power, they attract the incidental legislative power in section 51(xxxix) and become a mechanism for circumventing the legislative distribution of powers or for avoiding the operation of section 96. Far from providing for an open-ended power to spend, the Constitution envisaged that the Commonwealth would have a surplus, which under section 94 was payable to the States. The inference that the executive power ‘of the Commonwealth’ can be distinguished from that of the States is reinforced by the absence of any constitutional mechanism to resolve cases of conflict between an unconstrained Commonwealth power to tax and spend and the corresponding powers of State governments.¹⁰⁷

The middle view would accept some federal constraints but deny the relevance of separation of powers by assuming that all government contracting and spending falls, in principle, within inherent executive power. Within this view, however the extent of the federal constraints varies widely, from a prescription that draws on the federal distribution of legislative power supplemented by a relatively restrained version of the nationhood power¹⁰⁸ to one that would accept a Commonwealth executive power to contract and spend on any matter that is ‘reasonably capable of being seen as of national benefit or concern’.¹⁰⁹

In fact, the scope of the inherent executive power to contract and spend remained surprisingly unsettled for more than a century after federation. The issue arose in a series of cases, none of which held that the power was unconstrained, even where the validity of executive action survived challenge. *Bardolph* is a case in point, in which a contract made ‘in the ordinary course of administering a recognized part of the government of the State’ was held to have been validly made without statutory authority, leaving to inference the position in relation to other types of contracts.¹¹⁰ Resolution of the scope of the Commonwealth power to spend was further complicated, for decades, by the assumption to which reference was made earlier in this chapter that the answer lay in the meaning of the requirement

for appropriation for the ‘purposes of the Commonwealth’ in section 81, rather than in the executive power in section 61.¹¹¹ The contemporary focus on section 61 owes much to the influential reasons of Mason J in the *AAP Case*. Even this case, however, left the position obscure. Six of the seven Justices were variously divided on the source of the relevant power, on the application of the preferred source in the instant case and on the validity of the challenged spending programme. The Commonwealth withstood the challenge with the assistance of a seventh Justice who rejected the standing of the plaintiff State.¹¹² The outcome enabled the Commonwealth formally to ignore the warning signs in some of the substantive judgments, including that of Mason J that federalism constraints, at least, applied in cases of this kind.¹¹³

Pape finally established that section 61, rather than section 81, was the source of executive power to contract and spend. The reasoning in *Pape*, moreover, suggested strongly that the spending power was limited by considerations of federalism. Issue finally was joined in *Williams*, in which a majority of the Court held that both separation of powers and federalism had a bearing on the scope of inherent executive power to contract and spend.¹¹⁴ Two other Justices, Hayne and Kiefel JJ, held the challenged action invalid on grounds of federalism alone, leaving the separation of powers argument open. A seventh Justice, Heydon J, dissented.

Williams offered a distinctive setting for the purpose. The Commonwealth had entered into contracts with religious organizations for the placement of chaplains in participating schools under the National School Chaplaincy Program (NSCP). There was no supporting legislation, apart from an appropriation for a generalized ‘outcome’ in successive *Appropriation Acts* for ordinary annual services.¹¹⁵ Administrative guidelines, frequently revised, provided a relatively detailed framework for the operation of the scheme.¹¹⁶ The programme operated in an area dominated by State legislation, administration, and policy and some of the States ran chaplaincy programmes themselves. The Commonwealth claimed links with several of its own heads of legislative power but these offered tenuous support at best and the connection was hard to assess in the absence of supporting legislation.¹¹⁷

The majority Justices held the contract invalid on the ground that it did not fall within inherent executive power and required authorization by valid

legislation. *Williams* thus stands for the proposition that not all public contracts and spending programmes can take effect in reliance on executive power alone. To this extent, it is an important marker in identifying what Crennan J described as the ‘equipoise’ between inherent executive power and the authority of the Parliament under the Commonwealth Constitution.¹¹⁸ Some of the factors on which the majority relied in their reasons in *Williams* are associated with federalism: the potential for unlimited executive power to undermine the federal division of legislative power; its potential to circumvent the operation of section 96; the hypothetical nature of an inquiry into whether valid legislation could support the NSCP; the absence of any mechanism to resolve conflicts between Commonwealth and State executive power; and the role of the Senate as a federal House in a bicameral legislature with limited authority over appropriation legislation. The relevance of the federal constitutional context was further reinforced when, in *Williams (No 2)*, the Court invalidated the new legislative framework for the Chaplains programme on the grounds of insufficient connection with a head of legislative power. Other features of the constitutional text and context contributed to the majority decision as well, however. These included the dynamics of representative and responsible government, generally and in relation to financial matters. Critically, they also led six members of the Court to repudiate the argument that the executive power to contract and spend was limited only by the general law on the basis of an analogy between the power of the executive and the capacities of any juristic person.¹¹⁹ The Commonwealth is a polity operating through organs between which the Constitution distributes power. Given the nature and role of government the analogy with other legal persons was implausible as the basis on which to determine what one of these organs might do.

Williams directs attention to what the Constitution provides. On this basis, contracting and spending can be seen to be authorized by section 61 in a range of different ways. Most obviously, executive action of this kind may be authorized by legislation or incidental to it. Some contracts and spending, in addition to other forms of executive action, also may be undertaken in the execution of powers in the nature of the prerogative or on the basis of nationhood reasoning, as in *Pape*. All majority Justices, in addition, foreshadowed that contracting and spending could be undertaken in the exercise of inherent executive power ‘in the ordinary course of

administering a recognised part of the Commonwealth government'.¹²⁰ This category draws on *Bardolph*, reinforced by what is involved in 'executing and maintaining' provisions dealing with the departments of state in section 64 and elsewhere and also, perhaps, the distinction drawn by the Constitution itself between 'ordinary annual' and other 'services' (section 53). None of the possible sources of authority for a contract, however, including this one, was available to support the validity of the NSCP.

In the immediate aftermath of the decision in the first *Williams* case, the Commonwealth Parliament enacted legislation that purported to provide legislative backing for the scheme invalidated in *Williams* and more than 400 other spending programmes. The legislation gave the arrangements to which it applied the status of delegated legislation and authorized other programmes to be approved by delegated legislation in the future.¹²¹ The open-ended, policy-oriented description of the programme was retained, making no concession to the move to legislative form. Any legislative form, however, requires support from a head or heads of Commonwealth legislative power. A challenge to the scheme in its new guise, in *Williams (No 2)*, succeeded on this ground. The unanimous Court also dismissed an attempt to reopen the earlier decision, in terms that were sufficiently carefully chosen to attract the support of all remaining Justices who had held the scheme invalid in its original form, notwithstanding differences in their reasoning. The holding was firm, nevertheless. Authority to spend must be found in the Constitution or valid statutes.¹²² Section 61 did not provide authority for the non-statutory spending challenged in the first *Williams* case.¹²³ And there is no necessary equation between the power to spend and contract in the United Kingdom and the corresponding powers of the Commonwealth executive in Australia which 'is not a polity organised and operating under a unitary system or under a flexible Constitution where the Parliament is supreme'.¹²⁴ In the circumstances, the Court forbore to engage with the wider questions raised by the plaintiff, along lines canvassed in the first part of this chapter, about whether the enabling legislation was too uncertain or otherwise lacked the necessary 'hallmark' of a valid exercise of legislative power.¹²⁵ These points may yet be taken in another case.

The willingness of the Parliament to enact general enabling legislation to support a wide assortment of spending programmes reflects the pragmatism

of politicians on both sides of federal politics. Even so, however, the change in legal status of spending programmes has been a catalyst for enhanced scrutiny by Parliament and, possibly, within the executive branch as well.¹²⁶ The Senate Standing Committee on Regulations and Ordinances reviews all new spending programmes authorized by the *Financial Framework (Supplementary Powers) Regulations 1997*, by reference to all its usual criteria, including the constitutional authority for the expenditure. This process now appears to be embedded in parliamentary practice, with substantive improvement both in the quality of government responses to Committee queries and in the scope of the spending initiatives themselves.¹²⁷ The decision of the government, in the wake of *Williams No 2*, to proceed with the NSCP through section 96 grants to the States, further encouraged the Senate Standing Committee for the Scrutiny of Bills to take an interest in these payments as well, leading to some improvement in the information made available to the Parliament in relation to section 96 grants.¹²⁸

3. Taking Stock

Quite apart from their substantive outcomes, the effect of the decisions in *Pape* and the two *Williams* cases was to focus attention on the significance of section 61, understood in constitutional context, as the source of Commonwealth executive power. These cases establish that it is always relevant to ask whether and on what basis executive action is constitutionally authorized, rather than to assume that the executive can act unless there is a reason why not. The framework of analysis for determining whether executive action is authorized also is now tolerably clear. As far as inherent executive power is concerned, the established options are those canvassed in this part of the chapter: power in the nature of the prerogative; power associated with ‘nationhood’; actions undertaken in the ordinary course of administering Commonwealth government. Each of these options is limited, in ways earlier described, but there is no reason to suppose they are unduly constrained. Critically, in any event, the executive power of the Commonwealth also derives from legislation, either directly or as a necessary incident of it. Legislation can be expected to be the usual source for most executive action and programmes of a significant kind.

While these cases have helped to sketch the contours of executive power, much remains to be decided, through litigation or osmosis. Potentially significant questions include the character and scope of power in the nature of the prerogative; the scope of the matters that fall within the category of 'nationhood' and the relationship of this category, if any, with prerogative power; the range of matters that may be undertaken in the ordinary course of administering the Commonwealth government, particularly in the light of the Commonwealth's extensive reliance on conditional grants and intergovernmental arrangements; the extent of Commonwealth power to make laws pursuant to the incidental power in section 51(xxxix). It may be that conceptual clarity in relation to at least some of these questions would be assisted by closer attention to how the various categories of executive power are accommodated by the text of section 61.

Any constitutional doctrine is somewhat unstable during formative phases as outstanding issues are considered and settled. In the case of executive power, the syndrome is evidenced by the attempt to reopen the issue of limitations on the power in *Williams No 2*, an attempt on the part of Gageler J in *M68*, so far in isolation, to reassert the influence of 'constitutional history and the tradition of the common law' in understanding the scope of executive power,¹²⁹ and an initial tendency on the part of Commonwealth Ministers to ascribe a very wide range of new spending programmes to a somewhat optimistic ambit of the nationhood power. Some further doctrinal twists and turns may be expected in the future. There is no particular reason to anticipate a reversal of direction, however. The focus on the text and context of section 61 is consistent both with the Court's interpretative approach to the rest of the Constitution and with the role played by separation of powers and federalism as constitutional building blocks. The affirmation of executive accountability for significant decisions through the public and deliberative processes of a representative Parliament fits with the reliance of Australian constitutionalism on the integrity of institutions rather than protection of rights. As time goes on, the absorption of the doctrine by executive and parliamentary practice assists to consolidate it further.

One final question, not pursued in detail in this chapter, concerns the source and scope of the executive power of the governments of the Australian States. The States operate under their own Constitutions, subject to that of the Commonwealth. Typically, State Constitutions are not

organized in a way that suggests an enforceable separation of powers. Nor are State Constitutions internally constrained by considerations of multi-level government. On the other hand, the scope of inherent executive power is a live issue in the State sphere as well. The Constitutions of the Australian States also are organized around the principles of representative and responsible government, within an overarching federal polity. The rejection in the *Williams* cases of the capacities of other legal persons as a guide to the scope of the inherent executive power of governments has application to the States as well as to the Commonwealth. These considerations suggest that the ‘equipoise’ between State executive and legislative power is unlikely to be far from that under the Commonwealth Constitution.¹³⁰

D. CONCLUSIONS

Some conclusions can be briefly stated. The separation of legislative and executive power is a live issue under the Australian Constitution. It affects the concept of legislative power, the extent to which legislative power can be delegated, the use of the procedure of appropriation and of Commonwealth grants to the States, and the sources and scope of executive power. It has been the subject of considerable litigation, but it also plays out through parliamentary processes, contributing to the distinctive blend of legal and political constraints that characterize Australian constitutionalism.

The prominence of these issues in the early decades of the twenty-first century may be attributable in part to the maturing of the Australian constitutional system after the last ties with the Privy Council were severed in 1986 and independence formally secured. As often is the case, however, unusual exercise of familiar powers also accounts in part for significant doctrinal development. Some of the actions that have triggered litigation are a response to phenomena that also exist elsewhere including globalization, the trend towards privatization, and the rise of populism. The challenge, in Australia as elsewhere, is to give institutions the flexibility to evolve in order to meet contemporary needs without undermining the core features on which constitutional government depends.

In this context, as in others, Australian constitutional arrangements have drawn on comparative experiences, which continue to offer insights as new

issues arise. In assessing the implications of comparative experience, however, the distinctive features of the Australian Constitution, as it has evolved, need to be borne in mind. The combination of federalism and responsible government under the Australian Constitution replicates neither federalism in the United States nor responsible government in the United Kingdom. Rather, more than one hundred years after the Constitution came into effect, representative and responsible government in the Commonwealth sphere has been infused by federalism, including both the distribution of powers between two spheres of government and the composition and functions of the Senate in the bicameral Commonwealth Parliament. One result, as the cases canvassed in this chapter show, is that both sets of principles combine for doctrinal analysis by courts of questions about the separation of legislative and executive power.

¹ *New South Wales v Commonwealth* (1915) 20 CLR 54; *Waterside Workers' Federation of Australia v JW Alexander Ltd* (1918) 25 CLR 434; *Victorian Stevedoring & General Contracting Co Pty Ltd v Dignan* (1931) 46 CLR 73.

² *Dignan* (n 1) 96; *A-G (Cth) v The Queen* (1957) 95 CLR 529.

³ For a critique that followed shortly after the strictness of the separation of judicial power became clear see John M Finnis, 'Separation of Powers in the Australian Constitution' (1967–70) 3 *Adelaide Law Review* 159, drawing attention, inter alia, to the vesting of the functions of 'adjudication and administration' in the Interstate Commission by s 101.

⁴ Cheryl Saunders, *The Constitution of Australia* (Hart Publishing 2011) 185–86.

⁵ See Chapter 28 'The Separation of Judicial Power'.

⁶ Although see now, for example, Nicholas Barber, 'The Separation of Powers and the British Constitution' (2012) Oxford Legal Studies Research Paper 13/2012 <https://papers.ssrn.com/sol3/papers.cfm?abstract_id=1995780> accessed 8 June 2017.

⁷ *Dignan* (n 1) 101.

⁸ These include, but are not limited to, *Combet v Commonwealth* (2005) 224 CLR 494; *Pape v Commissioner of Taxation* (2009) 238 CLR 1; *Williams v Commonwealth* (2012) 248 CLR 156; *Williams v Commonwealth* (2014) 252 CLR 416).

⁹ Cheryl Saunders, 'Executive Power in Federations' (2017) 17 *Jus Publicum* <http://juspublicum.com/uploads/jp17-t09_saunders.pdf> accessed 8 June 2017; cf *Plaintiff M68/2015 v Minister for Immigration and Border Protection* (2016) 257 CLR 42, 99–101 [137]–[146] (Gageler J).

¹⁰ In *McGinty v Western Australia* (1996) 186 CLR 140, the High Court refused arguments that standards for drawing Commonwealth electoral boundaries under the Australian Constitution applied to Western electoral boundaries under either the Commonwealth or Western Australian State Constitution.

¹¹ Selena Bateman, 'Constitutional Dimensions of State Executive Power: An Analysis of the Power to Contract and Spend' (2015) 26 *Public Law Review* 255.

¹² John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (rev edn, LexisNexis Butterworths 2015) 402 describe this ‘secondary’ usage as having been adopted ‘inartistically’.

¹³ Anne Twomey, ‘Royal Assent—the Business of Parliament or the Executive?’ (2016) (Sydney Law School Legal Studies Research Paper 16/12) <<http://ssrn.com/abstract=2730347>> accessed 8 June 2017.

¹⁴ Ian Killey, ‘“Peace, Order and Good Government”: A Limitation on Legislative Competence’ (1989) 17 Melbourne University Law Review 24.

¹⁵ *Plaintiff S157/2002 v Commonwealth* (2003) 211 CLR 476, 512 [102] (Gaudron, McHugh, Gummow, Kirby and Hayne JJ). The observation about the ‘content of a law’ was made by Latham CJ in *The Commonwealth v Grunseit* (1943) 67 CLR 58, 82, in the context of delegated legislation.

¹⁶ *S157* (n 15) 512 [101] (Gaudron, McHugh, Gummow, Kirby and Hayne JJ).

¹⁷ *Momcilovic v The Queen* (2011) 245 CLR 1, 106 [226]–[237].

¹⁸ *Plaintiff M79/2012 v Minister for Immigration and Citizenship* (2013) 252 CLR 336, 366 [85].

¹⁹ David Feldman ‘Legislation Which Bears No Law’ (2016) 37 Statute Law Review 212.

²⁰ *Baxter v Ah Way* (1909) 8 CLR 626.

²¹ Almost all were war-time cases. Another, *Roche v Kronheimer* (1921) 29 CLR 329 delegated power to implement the Versailles treaty, but subject to ‘an arrangement elaborately formulated in the Treaty’ that limited executive discretion: *Dignan* (n 1) 99 (Dixon J).

²² Lord Hewart, *The New Despotism* (Ernest Benn Limited 1929).

²³ *Dignan* (n 1) 102.

²⁴ *ibid* 101.

²⁵ *ibid* 122, 119–20.

²⁶ *ibid* 120–121.

²⁷ *Mistretta v United States* 488 US 361 (1989) 372–73; *Grundgesetz für die Bundesrepublik Deutschland* [Basic Law of the Federal Republic of Germany], art 80(1).

²⁸ *Giris Pty Ltd v Federal Commissioner of Taxation* (1969) 119 CLR 365.

²⁹ *R v Toohey; Ex parte Northern Land Council* (1981) 151 CLR 170.

³⁰ *Dignan* (n 1) 114 (Evatt J).

³¹ *Acts Interpretation Act 1904* (Cth), s 10.

³² Harry Evans and Rosemary Laing (ed), *Odgers’ Australian Senate Practice* (13th edn, Department of the Senate 2012) 325–46.

³³ *Legislation Act 2003* (Cth), ss 38, 42.

³⁴ Commonwealth, Senate, *Standing Order* 23.

³⁵ One recent analysis notes that 1828 disallowable instruments were scrutinized by the Committee on Regulations and Ordinances in 2015: Stephen Argument, ‘Australian Democracy and Executive Law-Making: Practice and Principle (Part 1) (2016) 66 Papers on Parliament <http://www.aph.gov.au/About_Parliament/Senate/Whats_On/Seminars_and_Lectures/~/~/~media/6E67F2038D0D4D1CA620CD99F364C7FF.ashx> accessed 8 June 2017.

³⁶ Marco Goldoni and Christopher McCorkindale, ‘The State of the Political Constitution: A Special Edition of the German Law Journal’ (*UK Constitutional Law Association Blog*, 20 December 2013) <<https://ukconstitutionallaw.org/2014/01/03/mccorkindale-and-goldoni-the-state-of-the-political-constitution-a-special-edition-of-the-german-law-journal/>> accessed 8 June 2017.

³⁷ See now *Auditor-General Act 1997* (Cth).

³⁸ Under the *Fixed-term Parliaments Act 2011* (UK) this is no longer the case in the United Kingdom.

³⁹ The degree of parliamentary control through appropriations during the budget process must also be assessed, however, in the light of the very high proportion of Commonwealth moneys that are appropriated through special or standing appropriations: *Pape* (n 8) 40 [64]–[65] (French CJ).

⁴⁰ Evans and Laing (n 32) 369–73.

⁴¹ *Brown v West* (1990) 169 CLR 195, 211.

⁴² *Commonwealth v Colonial Ammunition Co Ltd* (1924) 34 CLR 198, 224 (Isaacs and Rich JJ).

⁴³ *Victoria v The Commonwealth* (1975) 134 CLR 338, 393 (Mason J).

⁴⁴ See *A-G (Vic) v Commonwealth* (1945) 71 CLR 237; *AAP Case* (n 43); Cheryl Saunders, ‘The Development of the Commonwealth Spending Power’ (1978) 11 Melbourne University Law Review 369.

⁴⁵ The relevance of the comparison was examined and repudiated by Dixon J in the *Pharmaceutical Benefits Case* (n 44) 271.

⁴⁶ *Pape* (n 8) 55 [111] (French CJ), 73 [178] (Gummow, Crennan and Bell JJ), 113 [320] (Hayne and Kiefel JJ), 210 [601] (Heydon J).

⁴⁷ *Combet* (n 8) 552 [5] (Gleeson CJ), 538 [51] (McHugh J), 558 [103] (Gummow, Hayne, Callinan, and Heydon JJ), 595 [225] (Kirby J).

⁴⁸ *ibid* 567 [135] (Gummow, Hayne, Callinan and Heydon JJ). Gleeson CJ, McHugh J and Kirby J interpreted the appropriation more narrowly; the latter two were in dissent.

⁴⁹ *ibid*, citing *Pharmaceutical Benefits Case* (n 44) 253.

⁵⁰ Ronald L Watts, *The Spending Power In Federal Systems: A Comparative Study* (Institute of Intergovernmental Relations 1999) 1–13.

⁵¹ See ss 87, 89, 93, 94.

⁵² *Victoria v Commonwealth* (1957) 99 CLR 575.

⁵³ See *Federal Financial Relations Act 2009* (Cth), s 16, and *Appropriation Act (No 2) 2016–2017* (Cth), s 16.

⁵⁴ Senate Standing Committee for the Scrutiny of Bills, Parliament of Australia, *Fifth Report of 2016* (2009) 353.

⁵⁵ George Winterton, *Parliament, The Executive and the Governor-General* (Melbourne UP 1983) 38–49.

⁵⁶ See *Williams* (n 8) 184 [22] (French CJ).

⁵⁷ A useful history of the drafting of the section can be found in Michael Crommelin, ‘The Executive’ in Gregory Craven (ed), *The Convention Debates 1891–1898: Commentaries, Indices and Guide* (Legal Books 1986) 127.

⁵⁸ Quick and Garran (n 12) 841.

⁵⁹ Sensitivity about the impact of the Constitution on imperial interests was evident in the negotiations in London that preceded the enactment of the Constitution by the Westminster Parliament and was also in the minds of those who drafted the Constitution in Australia: *ibid* 237.

⁶⁰ *ibid* 433.

⁶¹ *Commonwealth v Colonial Combing, Spinning and Weaving Co Ltd* (1922) 31 CLR 421, 438.

⁶² *R v Burgess; ex parte Henry* (1936) 55 CLR 608, 643–44 (Latham CJ); *Barton v Commonwealth* (1974) 131 CLR 477, 498 (Mason J).

⁶³ *Re Ditfort* (1988) 19 FCR 347, 369 (Gummow J).

⁶⁴ *Barton* (n 62) 498 (Mason J).

⁶⁵ Sebastian Payne, ‘The Royal Prerogative’ in Maurice Sunkin and Sebastian Payne (eds), *The Nature of the Crown: A Legal and Political Analysis* (OUP 1999) 77.

⁶⁶ A V Dicey, *Introduction to the Study of the Law of the Constitution* (10th edn, Macmillan 1959) 425.

⁶⁷ William Blackstone, *Commentaries on the Laws of England* (Clarendon Press 1765) 232.

⁶⁸ John Howell, 'What the Crown May Do' (2010) 15 *Judicial Review* 36, 38, drawing attention to the significance of the views of Sir William Wade that a prerogative power must 'produce legal effects at common law'. See William Wade, *Constitutional Fundamentals* (Stevens & Sons 1989) 58–62.

⁶⁹ *Federal Commissioner of Taxation v Official Liquidator of EO Farley Ltd* (1940) 63 CLR 278, 321 (Evatt J).

⁷⁰ Bruce V Harris, 'The "Third Source" of Authority for Government Action Revisited' (2007) 123 *Law Quarterly Review* 225.

⁷¹ Select Committee on the Constitution, *The Pre-emption of Parliament* (HL 2012-13, 165-I) 17 [55].

⁷² Adam Tomkins, 'The Authority of *Entick v Carrington*' in Adam Tomkins and Paul Scott (eds), *Entick v Carrington: 250 Years of the Rule of Law*, (Hart Publishing 2015) 161.

⁷³ Howell (n 68) 36.

⁷⁴ *R (New London College Ltd) v Secretary of State for the Home Department* [2013] 1 WLR 2358, 2371–72 [28]: 'the Crown possesses some general administrative powers to carry on the ordinary business of government', including powers 'ancillary and incidental' to the operation of legislation.

⁷⁵ *Barton* (n 62) 498 (Mason J).

⁷⁶ *ibid* 488, 491, 501 (Mason J).

⁷⁷ *Ruddock v Vadarlis* (2001) 110 FCR 491, 540 [185] (French J), requiring 'clear words or inescapable implication'.

⁷⁸ *Burgess* (n 62) 644 (Latham CJ); *Barton* (n 62) 498 (Mason J). See also *Farey v Burvett* (1916) 21 CLR 433, 452 (Isaacs J).

⁷⁹ A sense of the range of the prerogative in the United Kingdom can be gleaned from Ministry of Justice, 'Review of the Executive Royal Prerogative Powers: Final Report' (2009) <<http://webarchive.nationalarchives.gov.uk/20110310111923/http://www.justice.gov.uk/publications/docs/royal-prerogative.pdf>> accessed 8 June 2017. Other sections of the Constitution that confer prerogative-type power on the Governor-General include powers to appoint and remove Ministers; to summon, prorogue, and dissolve Parliament; and to appoint judges: ss 64, 65, and 72 respectively.

⁸⁰ Emergency powers, eg, are an attribute of nationhood falling directly within the third declaration.

⁸¹ Power to issue passports has been covered by statute since 1916 and it is inconceivable that it would (now) be regarded as an aspect of prerogative-type power: Jane Doulman and David Lee, *Every Assistance and Protection* (Federation Press 2008)chs 1–3.

⁸² *Burgess* (n 62) 644 (Latham CJ).

⁸³ *Commissioners of Taxation (NSW) v Baxter* (1907) 4 CLR 1087, 1108 (Griffith CJ, Barton and O'Connor JJ).

⁸⁴ See *R v Sharkey* (1949) 79 CLR 121; *Burns v Ransley* (1949) 79 CLR 1; *Australian Communist Party v Commonwealth* (1951) 83 CLR 1.

⁸⁵ See *Ruddock* (n 77).

⁸⁶ See *Pape* (n 8).

⁸⁷ See *Davis v Commonwealth* (1988) 166 CLR 79.

⁸⁸ *R v Duncan; Ex parte Australian Iron & Steel Pty Ltd* (1983) 158 CLR 535.

- ⁸⁹ See *AAP Case* (n 43).
- ⁹⁰ *ibid* 397.
- ⁹¹ *ibid* 406.
- ⁹² *Pape* (n 8) 85 [222] (Gummow, Crennan and Bell JJ).
- ⁹³ *ibid* 84 [217] (Gummow, Crennan and Bell JJ).
- ⁹⁴ *ibid* 50 [96] (French CJ).
- ⁹⁵ *Davis* (n 87) 94 (Mason CJ, Deane and Gaudron JJ).
- ⁹⁶ *Pape* (n 8). French CJ, Gummow, Crennan and Bell JJ, with Hayne and Kiefel JJ and Heydon J in strong dissent.
- ⁹⁷ *ibid* 63 [133] French CJ, 91 [241] (Gummow, Crennan and Bell J).
- ⁹⁸ The point is mentioned in passing by Gummow, Crennan and Bell JJ, *ibid* 91 [242]. See also Chapter 32 ‘Money’.
- ⁹⁹ *Davis* (n 87) 113 (Brennan J).
- ¹⁰⁰ *Pape* (n 8) 92 [245] (Gummow, Crennan and Bell JJ).
- ¹⁰¹ See *Communist Party Case* (n 84) 187–88 (Dixon J); *Davis* (n 87) 93 (Mason CJ, Deane and Gaudron JJ), 103–04 (Wilson and Dawson JJ); *CPCF v Minister for Immigration and Border Protection* (2015) 255 CLR 514, 596 [260] (Kiefel J).
- ¹⁰² *Pape* (n 8) 63 [133] (French CJ).
- ¹⁰³ Adam Perry, ‘The Crown’s Administrative Powers’ (2015) 131 Law Quarterly Review 652.
- ¹⁰⁴ *Davis* (n 87) offers one example.
- ¹⁰⁵ An argument broadly along these lines was put to the Court by the Commonwealth in *Williams (No 2)* (n 8).
- ¹⁰⁶ These points are illustrated in Kenneth M Hayne, ‘Government Contracts and Public Law’ (2017) 41 Melbourne University Law Review 3–6(forthcoming).
- ¹⁰⁷ With some differences in emphasis, this position was accepted by the majority Justices in *Williams* (n 8) (French CJ, Gummow and Bell JJ, Crennan J).
- ¹⁰⁸ *AAP Case* (n 43) 397 (Mason J).
- ¹⁰⁹ This argument was put by the Commonwealth in *Williams (No 2)* (n 8) 466 [70].
- ¹¹⁰ *Bardolph v New South Wales* (1934) 52 CLR 455, 508 (Dixon J). The case concerned a State contract, so that federalism constraints did not arise.
- ¹¹¹ This was the principal frame of reference in the *Pharmaceutical Benefits Case* (n 44).
- ¹¹² The seventh Justice was Stephen J. A convenient summary of the position of all seven Justices appears in *Pape* (n 8) 113 [321] (Hayne and Kiefel JJ).
- ¹¹³ See the judgments of Barwick CJ, Gibbs J, Mason J, and arguably Jacobs J.
- ¹¹⁴ *Williams* (n 8) (French CJ, Gummow and Bell JJ, Crennan J).
- ¹¹⁵ Details are summarized in *Williams* (n 8) 262–63 [226]–[227] (Hayne J).
- ¹¹⁶ *ibid* 182 [11] (French CJ).
- ¹¹⁷ The heads of power relied upon: ss 51(xx) (the corporations power) and 51(xxiiiA) (benefits to students).
- ¹¹⁸ *Williams* (n 8) 346 [496] (Crennan J).
- ¹¹⁹ *ibid* 193 [38] (French CJ), 237–38 [154]–[155] (Gummow and Bell JJ), 257–59 [213]–[217] (Hayne J), 352 [518] (Crennan J), 368 [577] (Kiefel J).
- ¹²⁰ *ibid* 191 [34] (French CJ), 233 [139]–[143] (Gummow and Bell JJ), 354 [529]–[530] (Crennan J).

¹²¹ *Financial Framework Legislation Amendment Act (No 3) 2012* (Cth). See now *Financial Framework (Supplementary Powers) Act 1997* (Cth) and the supporting regulations.

¹²² *Williams (No 2)* (n 8) 455 [25] (French CJ, Hayne, Kiefel, Bell and Keane JJ).

¹²³ *ibid* 454 [24] (French CJ, Hayne, Kiefel, Bell and Keane JJ).

¹²⁴ *ibid* 469 [83] (French CJ, Hayne, Kiefel, Bell and Keane JJ).

¹²⁵ The argument is summarised at *ibid* 418–19; the Court’s response is at 457 [36].

¹²⁶ The latter follows from the procedures of the Federal Executive Council Secretariat, ‘Federal Executive Council Handbook’ (2017) 22 [5.4] <<https://www.pmc.gov.au/sites/default/files/publications/federal-executive-council-handbook-2017.pdf>> accessed 8 June 2017.

¹²⁷ Glenn Ryal and Jessica Strout, ‘Scrutiny Committees: A Vehicle for Safeguarding Federalism and the Constitutional Rights of Parliament’ (2017) 67 *Papers on Parliament* 119, 132–36 <http://www.aph.gov.au/About_Parliament/Senate/Powers_practice_n_procedures/Articles_addresses_and_other_publications_by_Senate_staff> accessed 8 June 2017.

¹²⁸ *ibid* 137–43.

¹²⁹ *M68* (n 9) 90–107 [115]–[116].

¹³⁰ Kathleen E Foley, ‘What is the Relevance of *Williams* and *Plaintiff M61* for the Exercise of State Executive Power?’ (2012) 36 *University of Western Australia Law Review* 234.

CHAPTER 27

THE JUDICATURE

NICHOLAS OWENS

AT the very beginning of *De Nugis Curialium*, Walter Map made the disarmingly frank admission that, while he was writing of and from a court, he had no idea what a court was.¹ A modern observer of the Australian judicature could no longer credibly maintain such an absolute position, but it nevertheless points to some important, and possibly timeless, truths. That is, more than 800 years later, it remains ‘neither possible nor profitable’² to provide a comprehensive definition of a court, even though a broad consensus has emerged concerning a few fundamental criteria that a court must exhibit and to which it must conform. Even the most cursory survey of legal history will show, however, that very few of the qualities and characteristics now regarded as being of the essence of an Australian court, and next to nothing about the manner in which those courts are organized and their jurisdiction distributed, could be said to have been necessary or inevitable.³

The following analysis of the Australian judicature as a whole, and the individual courts that comprise it, commences with two broad observations, which frame the discussion below.

The first is the apparently uncontroversial fact that the Commonwealth and each of the States has the power to create, and has in fact created, courts.⁴ The courts so created are regarded as being courts ‘of’ the Commonwealth, or courts ‘of’ the relevant State.⁵ That statement, simple as it may seem, reveals that, even before one comes to the complications to which federations may give rise, courts are perceived to have a particular connection to or relationship with a sovereign power. And, in large measure,

it is in the nature and incidents of that relationship that the defining characteristics of an Australian court are found.

The fact that courts are perceived as creatures of sovereigns also goes a long way to explaining why Australia's judicial system is organized the way it is. That is to say, while any sophisticated court system will be likely to distribute its workload amongst different courts, the impetus for the division of courts and jurisdictions within Australia's federal system went far beyond a mere practical recognition of an administrative need for a division of labour. The concurrent existence of Commonwealth and State courts, and of federal and State jurisdiction, is Australia's particular, and in some respects idiosyncratic, response to the fact that courts are perceived to be 'of' polities.

The second observation is connected to the first. Although the relationship between the Crown and its courts is of fundamental importance in understanding the role and nature of an Australian court, that relationship is only incompletely set out in any relevant Constitution. It might be observed, for example, as a negative proposition, that neither the Commonwealth nor the State Constitutions make the Crown an element in the judicature.⁶ Insofar as positive statements are concerned, the Commonwealth Constitution makes express provision concerning the content of federal jurisdiction,⁷ and there are often provisions dealing with particular aspects of judicial appointments and independence.⁸ But beyond that, the documents tend to be silent. The result is that any fully satisfying account of the place and role of courts in our constitutional scheme must be sought, not just in the written words of Constitutions, but in the pages of history.⁹

History in this context is instructive not just because the Australian judicial system is the product of many choices made over more than a thousand years, and that, as often as not, a better appreciation of that which has come about is obtained by understanding alternatives that were, for one reason or another, rejected. The attitude of modern Australian Constitutional jurisprudence to history in that sense might be described as flexible, or even ambivalent. Sometimes courts embark on substantial excursions into history in order to unpick very modern problems. At other times, courts caution that, while 'some assistance is derived'¹⁰ from history, it must not be

forgotten that the question is always the proper interpretation of the Constitution itself.¹¹

When the topic is as fundamental as the nature of the judicature, however, it cannot be overlooked that, in Australia, there is ‘an anterior law providing the sources of juristic authority for our institutions’.¹² History thus does not merely inform our constitutional arrangements in this context, it is incorporated in them. The fundamental nature of courts in the Australian judicial system can only be fully understood in the context of an appreciation of the evolution and development over time of common law courts generally.¹³

This chapter will thus commence with a survey of the development of the common law conception of a court. It will identify four characteristics that have emerged as central to the definition of a court (without being comprehensive); namely, (a) decisional independence and impartiality, (b) the provision of procedural fairness, (c) the dispensation of justice in open court, and (d) the provision of reasons for decisions. More fundamentally, the evolution of the modern conception of a court reveals an apparent paradox from which the modern institution derives its strength, purpose, and identity: a sovereign’s courts are independent of that sovereign.

Before turning to consider in more detail the present nature and consequences of the four defining characteristics identified above, the chapter will outline the structure of the Australian judicature as a whole. In doing so, it will seek to identify a range of issues that arise by reason of the federal system adopted in Australia.

Forces exerting a unifying influence on that system will be noted, including the placement of the High Court at the apex of the Australian judicature, and the actual and potential conferral of federal jurisdiction on State courts (with all that that entails). Just as significantly, however, a range of limitations operating to preserve the separate existence of federal and State courts will be observed, including the limited nature of the Commonwealth’s power to interfere with State courts, the inability of States to confer jurisdiction on federal courts, and other restrictions on what States may do in relation to their own courts. Indeed, it will be seen that the existence of federal jurisdiction even has consequences for State non-court tribunals. Yet other issues will be seen to arise in connection with courts established for Australia’s territories.

Fundamentally, these issues may all be seen as arising as part of the working out of the adjustment of the traditional common law concept of a court to a federal system where sovereignty is divided amongst different polities. In all cases, though, the resolution of the issue is guided by the need to preserve, and protect, the fundamental nature of the institutions in question as courts.

A. A (BRIEF) LOOK BACK AT HISTORY

1. The Evolution of Courts before the Constitution

The origin of courts as we know them is found in the increasingly frequent direct interventions of English kings in the resolution of disputes between their subjects in the centuries immediately before and after the Norman conquest. Previously, nearly all disputes had been determined by various communal assemblies,¹⁴ which combined, in an undifferentiated way, what would now be called judicial, legislative, and administrative functions.¹⁵ Those assemblies did not exercise power delegated to them by the king, but had their own customary authority in accordance with the ‘folcright’ of the people of the relevant community. Over time, however, it became more and more common for some disputes to be submitted directly to the king, or for the king to assert a right to determine them. The ultimate result, by a long and varied process of development, was that the communal assemblies were displaced by royal courts and, perhaps most significantly, the powerful theoretical understanding emerged that all judicial authority derived and could only derive from the Crown.¹⁶

Thus, that which we would now call judicial power took its current shape through its conception as but one of the various aspects or attributes of royal power. The long life of the community assemblies is now largely erased from memory. That long life demonstrated that judicial power did not inevitably have to take its current shape. But the prevailing idea has become so completely natural to us, as evidenced by the classical Australian definition of judicial power as a power ‘which every sovereign authority must of necessity have’,¹⁷ that alternative conceptions scarcely seem possible. The result in the English tradition, inherited by Australia, was that the Crown was conceived to be the ‘fountain of justice and conservator of

the peace of the kingdom' who 'alone [had] the right of erecting courts of judicatory', with the consequence that 'all jurisdictions of courts [were] either mediately or immediately derived from the crown'.¹⁸

But what were these 'courts'? At first, following the Norman invasion, there was simply the king's court: the Curia Regis.¹⁹ It was the body through which the central government of the kingdom was transacted (again, the distinction between legislative, judicial, and administrative power was not yet conceived) and, being closely associated with the physical person of the king, usually followed him around the kingdom.

Over time, however, the personal association between the monarch and his courts weakened, and ultimately was severed entirely. That process began when certain members of the Curia Regis would, from time to time, be sent away from the king to various places throughout the kingdom, to conduct eyres, assizes, and the like.²⁰ It gathered pace in the reign of Henry II, when some courtiers began to sit permanently at Westminster; a practice that, in time, gave rise to the courts of Exchequer, Common Pleas, and King's Bench.²¹ Nevertheless, despite these developments, in the twelfth century there 'were not ... separate jurisdictions or distinct courts: they were merely different manifestations of the king's authority, different ways of deploying the king's judicial resources'.²² At a practical level, however, the establishment of a permanent presence at Westminster, and the regular itinerant dispensation of justice throughout the kingdom at assizes and the like, meant that the 'judicial' parts of the Curia Regis' work came to be performed by a group of professional judges.²³ And, in time, these administrative arrangements for the discharge of the king's judicial work hardened into separate institutions with distinct jurisdictions.

Originally, the judges performing this work were merely 'servants of the king, appointed and paid by the king, and in theory removable at the pleasure of the king. On paper they were no more secure in office than a government minister. And in reality kings often expected subservience from their judges in matters affecting the Crown.'²⁴ More directly, because judges were merely discharging, for the king, a royal power, he retained the ability to decide cases personally. Indeed, in a significant sense, the king did not just have the ability to decide cases personally, but a personal *obligation* to ensure that his subjects received justice. There thus remained 'a reserve

of justice in the King',²⁵ which ultimately developed into the body of law known as equity.²⁶

The idea that 'the Judges are but the delegates of the King, and that the King may take what causes he shall please to determine, from the determination of the Judges, and may determine them himself'²⁷ eventually came to be controversial, and ultimately to be regarded as wrong. As Sir Edward Coke recorded himself as saying ('with the clear consent of all the Judges of England, and Barons of the Exchequer') to James I in answer to the proposition quoted in the previous sentence, 'the King in his own person cannot adjudge any case, either criminal, as treason, felon, etc. or betwixt party and party' and rather all cases must be 'adjudged in some Court of Justice, according to the law and custom of England'.²⁸

So, at least by the seventeenth century, although the power to adjudicate was, in ultimate theory, a power of the king, the king himself could not adjudicate.²⁹ Or, as Blackstone put it, in no meaningful sense did judicial power 'belong' to the Crown.³⁰

There had thus begun to emerge a curious, but fundamentally important, apparent contradiction: while courts were creatures 'of' a sovereign, and were the institutions through which a power that none other than the sovereign possessed was exercised, the sovereign was no part of the judicature, and could play no direct role in the exercise of the power.

Simply to observe that the king could not perform the work of a judge, though, did not resolve the extent to which the Crown was able to influence the judicial process.

The first, and most obvious, way that a monarch might attempt to achieve such influence is by seeking to control or direct judges in their judicial endeavours. (It should not be overlooked, of course, that in the turbulence of the seventeenth century, Parliament also frequently sought to influence the judiciary to its advantage.³¹)

There are many examples of royal attempts to interfere in the decisions of courts, and it has been said that 'fourteenth century courts routinely received direct instructions from the Crown by writs of privy seal requirement favour, and it seems that the judges generally complied'.³² Over time, though, a more independent spirit appears to have developed. So much is reflected in the occasion when Henry VII asked his judges to give a preliminary opinion in a treason case, with the request being refused on the

ground that 'it would come before the King's Bench judicially, and then they would do what by right they ought to do'.³³

Independence waxed and waned with the times. A similar attempt at royal influence was made in 1616, when James I summonsed all of his judges to appear before him in Council, and demanded of them whether they would grant a stay of litigation if he ordered them to do so. In this instance, though, the judges were compliant, with only Sir Edward Coke refusing, stating that 'when that case should be, he would do that which should be fit for a judge to do'.³⁴ Coke was dismissed only a few months later, and many more judges were dismissed by the Stuarts in the following decades.³⁵ Perhaps it was the quiescent nature of the remaining judges that explains the result in cases such as the *Ship Money Case*.³⁶

In time, judicial independence came to be seen as sufficiently important, that life tenure was conferred on judges. Although prior to the Civil War, and immediately following the Restoration, some judges had been appointed to their office during good behaviour (*quamdiu se bene gesserit*), from 1668 Charles II reverted to the more traditional grant of office at the monarch's pleasure (*durante bene placito*).³⁷ But even where a judge held a life tenure, it was not thought to be inconsistent with that grant to suspend the judge from sitting, provided that it was on full salary.³⁸ Similarly, some judges were forced to retire, their rights regarded as sufficiently preserved by the grant of a pension.³⁹

The *Act of Settlement*, passed after the Glorious Revolution, meant that, from 1701, all judges were required to be appointed during good behaviour. Even then, however, 'tenure during good behaviour ended with the demise of the Crown. Upon the king's death all judicial proceedings ceased, and all judicial authority returned to the new king'.⁴⁰ It was for this reason that Queen Anne was able to remove disfavoured judges upon her ascension to the throne in 1702.⁴¹ It was only in 1760 that judges were assured, by statute, of their offices regardless of any change in sovereign.⁴²

The second way in which the Crown attempted to influence the judicial process was by the creation of new courts. Particularly in the reigns of the Tudors and the Stuarts, a range of new courts (the more famous of which included the Star Chamber and the Court of Requests) were created for the purpose of discharging the 'reserve of justice' remaining in the Crown.⁴³

The principal attraction of these courts, from the Crown's point of view, of course, was that the common law, both as to procedure and substance, did not apply in them. The result, from a common law perspective, was that these 'conciliar tribunals were being used to enforce "illegal" royal proclamations and to liquidate those who opposed royal policies'.⁴⁴ The common law reached the position that the Crown could not establish any novel court of equity, with only the established Court of Chancery being able to exercise equitable jurisdiction.⁴⁵ The matter was finally resolved, consistently with the common law, by the Long Parliament in 1640.⁴⁶

Insofar as common law courts were concerned, it was never in dispute that the Crown could establish new courts; the catch was that it could not invest them with power to proceed inconsistently with the requirements of due process as traditionally understood by the common law.⁴⁷ So, for example, in the *Case of Commissions of Enquiry*, the fact that certain commissions would have exposed people to penalty without the opportunity to answer allegations made against them, meant that they were invalid.⁴⁸ Certain other aspects of the procedure adopted by courts also came to be regarded as fundamental, including, the requirement that proceedings were conducted in public, and that reasons for decisions were given.⁴⁹

Overall, it may be seen that, by the end of the eighteenth century, the concept of a court had assumed a relatively fixed and familiar form to modern eyes. So, to return to the original question: what is a court? It should be clear enough that the 'exercise of judicial power is a necessary but not a sufficient condition for the characterisation of a decision-making body as a court'.⁵⁰ That is to say, the course of history summarized above showed the gradual relocation of the exercise of judicial power from the Crown itself, to institutions separate from the Crown, to institutions separate from and independent of the Crown. Moreover, by that process of relocation, the very conception of judicial power evolved from a bare sovereign power to settle disputes, to a power required to be exercised in a particular way. The transformation was thus radical: judicial power went from being identified and associated with the Crown, to being all but entirely independent of, and in that sense even opposed to, the Crown. It follows that while there are a range of other indicia that may be suggestive one way or another of whether an institution is a court,⁵¹ by far the most clearly revealing, as well as the most important, are both the reality and

appearance of decisional independence and impartiality, and the adoption of a particular form of procedure, involving, critically, the application of procedural fairness, adherence to the principle of open justice, and the provision of reasons for its decisions.⁵²

2. The Road to a Federal Judicature

There were, of course, traditionally a range of different courts in England, with different jurisdictions. For present purposes, the historical organization of the judicial system in England is, however, largely uninformative. That is because, as a general proposition, each of those courts derived its authority from the same sovereign, and the differences between different jurisdictions simply reflected what might be described on a functional analysis as an administrative division of labour. Undoubtedly, substantive differences in jurisprudence developed and matured over time. A Court of Chancery or Equity would approach from the perspective of ‘conscience’ a legal problem that a common law court would consider in accordance with strict legal rules. Many of these distinctions later carried over to the division of administrative labour between courts in Australia, although they are decreasing over time. But of greater significance to understanding the constitutional structure of the Australian courts is to see how the United States addressed the position of courts within a federation where multiple polities existed within the one larger nation.

While the theoretical underpinnings and consequences of a federal judicial system did not arise directly in England, it is not to say that similar or related issues did not crop up from time to time. Before the Crown succeeded in establishing that it had the exclusive right to establish courts, and a range of magnates saw it as part of their responsibilities to create courts to resolve their tenants’ disputes, the clash of competing authorities to decide had to be resolved. But jurisdiction, in this sense, was simply a function of ‘who had authority over whom, and whether that authority could be interfered with from outside’.⁵³ So, to take a famous example, Magna Carta was concerned to limit the King’s power to issue the writ of *praecipe* if by doing so a baron’s right to determine the issue in his court would thereby be lost.⁵⁴ And, before the Reformation, of course, there operated within England a comprehensive array of ecclesiastical courts

deriving their authority from the Bishop of Rome, giving rise to a range of disputes.⁵⁵

The ramifications of a federal distribution of sovereignty for a nation's judicial system first received thoroughgoing theoretical consideration by the authors of the Constitution of the United States of America. That history is given detailed treatment elsewhere in this book, and so is not repeated here.⁵⁶ Suffice it to say, for a range of practical as well as principled reasons, they concluded that a federal system of government necessarily entailed a federal judicial system. The nature and incidents of the resulting 'federal jurisdiction' are described in detail elsewhere in this book.⁵⁷ But it is sufficient to note, for present purposes, that the American model, more or less faithfully copied over to the Australian context, sits comfortably with the idea of courts as creatures of sovereigns: that is to say, if there is to be a Commonwealth and States, it seems natural that there should be Commonwealth courts and, in addition, State courts.

It did not have to be so. Proper recognition of the fact that, while the Crown may establish courts, a court so created is in all practical senses independent of its creator, might have led to an appreciation that sovereigns do not 'possess' courts in any very meaningful way. Furthermore, a clearer understanding of the role of courts would have provided further reasons not to regard a connection to a particular sovereign as essential. As Dixon observed:⁵⁸

[T]he part played by the courts is, or should be, to decide, in the ordinary course of ascertaining and enforcing the law, whether government action in reference to the citizen was lawful or unlawful, valid or void; that is in the case of legislation to decide whether it was effectual to make a change in the law, or leave it unaltered. This function must be performed whenever the necessity arises for enforcing rights which depend upon a doubtful exercise of power. Every court in the land must exercise it. The only alternative when such a question arises is for it to refuse jurisdiction.

...

[I]n such a state of affairs, it would appear natural to endeavour to establish the courts of justice as independent organs which were neither Commonwealth nor State. The basis of the system is the supremacy of the law. The courts administering the law should all derive an independent existence and authority from the Constitution.

If that thought had been pursued, then a range of perceived issues or motivations (to take an obvious example, that each polity needed its own courts to appropriately protect its own interests) would likely have been dismissed as misconceived, and a range of fundamentally different alternative structures might have been contemplated. But, as Dixon

remarked, the Australian founders could not escape from the fascination of the American model, and ‘its contemplation damped the smouldering fires of their originality’.⁵⁹

Of course, in two significant respects, the American model was not followed. The first is the ability of the Commonwealth to vest State courts with federal jurisdiction.⁶⁰ The second concerns the fact that the High Court may hear appeals from State Supreme Courts *coupled* with the fact that that appellate jurisdiction is unlimited in its scope represents a significant departure from the American federal judicial model.⁶¹ In that country, where the Supreme Court does not possess an equivalent general appellate jurisdiction, the result is that the highest court of each State is the ultimate authority in relation to the law of that State.⁶² That may well be appropriate where the accepted view is that there does not exist ‘a “general” common law unconnected to the commands of any specific sovereign’.⁶³ But where, as in Australia, ‘[w]e conceive a State as deriving from the law; not the law as deriving from a State’,⁶⁴ the notion of different courts being the ultimate authority on the law in different jurisdictions is anathema. So, in the end, as Sir Owen Dixon observed:⁶⁵

In establishing the High Court under the Australian Constitution the principle suggested was recognised, but it was not carried to its proper conclusion. On the contrary, the extraordinary conception of a federal jurisdiction was adopted.

B. THE AUSTRALIAN JUDICIAL SYSTEM

Before turning to consider how the broad historical themes identified above are reflected in and carried over into the Australian judicial system, it may be useful to sketch the components of that system.

1. High Court of Australia

At the apex of the Australian judicial system sits the High Court of Australia. It sits at the apex because, pursuant to section 73 of the Constitution, it has jurisdiction to hear and determine appeals from (inter alia) the State Supreme Courts and lower federal courts.⁶⁶ Following the abolition of appeals to the Privy Council,⁶⁷ it is thus the ultimate appellate

Court in Australia, regardless of where an action may have been commenced, or in what court.

It also has a significant ‘original’ jurisdiction, delineated in sections 75 and 76 of the Constitution. The former section confers jurisdiction directly on the High Court (including in the important instance of matters in which a writ of mandamus or prohibition or an injunction is sought against an officer of the Commonwealth), whereas the latter authorizes the Commonwealth Parliament to confer additional jurisdiction in respect of defined matters on the High Court should it choose to do so. The most significant conferral of original jurisdiction on the High Court pursuant to section 76 has been in respect of matters arising under the Constitution or involving its interpretation.⁶⁸ As a matter of curiosity, it might be observed that another conferral of jurisdiction under section 76 is effected by the *Nauru (High Court Appeals) Act 1976* (Cth), with the result that the High Court can hear (in its original jurisdiction) an ‘appeal’ from the Supreme Court of Nauru.⁶⁹

A small portion of the High Court’s jurisdiction is exclusive of both lower federal and State courts.⁷⁰ The remainder of its jurisdiction is declared to be exclusive of the jurisdiction of State courts,⁷¹ but, as will be seen below, nearly all of that jurisdiction is at the same time vested (subject to conditions) by the Commonwealth Parliament in State courts.⁷²

Historically, the High Court also exercised jurisdiction sourced in Imperial legislation.⁷³ Today, it is also constituted as the Court of Disputed Returns.⁷⁴

2. Lower Federal Courts

The Constitution provides that the judicial power of the Commonwealth may be vested ‘in such ... federal courts as the Parliament creates’. At the time of federation it was accurately predicted that ‘for some time there will be no necessity for the creation of any inferior federal courts, but that all the cases in which the original jurisdiction of the Commonwealth is invoked can be dealt with either by the High Court itself or by the Courts of the States’.⁷⁵

Apart from the Commonwealth (later Australian) Industrial Court⁷⁶ and the Federal Court of Bankruptcy,⁷⁷ there were no inferior federal courts

until the Family Court of Australia was created in 1975,⁷⁸ and the Federal Court of Australia was created in 1976.⁷⁹

The Federal Court has a wide, almost general, federal jurisdiction,⁸⁰ and the Family Court exercises a jurisdiction concerning divorce and matrimonial causes (including property settlements and the like), custody and guardianship of children (including child support) conferred upon it by a range of legislation.⁸¹ Both also exercise an appellate jurisdiction.⁸²

The Federal Circuit Court, formerly the Federal Magistrates Court, was created in 1999.⁸³ It has such jurisdiction as may be conferred upon it by legislation,⁸⁴ and proceedings from both the Family Court⁸⁵ and the Federal Court⁸⁶ may be transferred to it.

As a general proposition, it is as well to bear in mind that ‘notions derived from the position of the pre-judicature common law courts of Queen’s Bench, Common Pleas, and Exchequer, as courts of the widest jurisdiction with respect to subject matter and identity of parties and therefore superior courts, have no ready application in Australia to federal courts’ by reason of the fact that they ‘owe their existence and their jurisdiction to the Constitution and to laws made by the Parliament’.⁸⁷ Nevertheless, it should be observed that the Federal Court has an inherent jurisdiction for all practical purposes as wide as that of the State Supreme Courts.⁸⁸

There is also a further significant feature of the jurisdiction of federal courts that must be appreciated to comprehend the width of their jurisdiction. Federal courts (and this includes the High Court⁸⁹) do not only have jurisdiction over those parts of a case that bring it within federal jurisdiction: federal jurisdiction is conferred in respect of ‘matters’, and the courts have jurisdiction over the entire ‘matter’.⁹⁰ There will usually be a single matter where all claims arise out of ‘a common substratum of facts’,⁹¹ even if the facts underlying each claim ‘do not wholly coincide’.⁹² The boundaries of this so-called ‘accrued jurisdiction’ are thus not always easy to discern in a particular case. That is because, ‘in the end, it is a matter of impression and of practical judgment whether a non-federal claim and a federal claim joined in a proceeding are within the scope of one controversy and thus within the ambit of a matter’.⁹³

There is a further basis, although of limited practical significance, upon which the federal courts may exercise jurisdiction, known as the ‘associated jurisdiction’.⁹⁴ By this jurisdiction, federal courts that would not otherwise have jurisdiction have conferred upon them jurisdiction over *separate* but ‘associated’ matters that are *federal*, in the sense that they fall within one of the topics listed in sections 75 and 76 of the Constitution.⁹⁵

3. State Courts

At the time of federation, the highest court in each State was its Supreme Court. Each of those Courts had a jurisdiction that included such jurisdiction as the Courts of King’s Bench, Common Pleas, and Exchequer at Westminster had in England,⁹⁶ along with jurisdiction in equity.⁹⁷ In addition to that wide jurisdiction, their status as superior courts of record, administering both law and equity, implied that those Courts had an ‘inherent jurisdiction’ to do any other things necessary to the effective exercise of their primary jurisdiction.⁹⁸

The course of the twentieth century has required important limits to be recognized to this proposition. It is no longer true to say that ‘State Supreme Courts have been courts of unlimited jurisdiction ... certainly since the commencement of the *Judiciary Act* and, in particular, the rendering by s 38 of the jurisdiction of the High Court exclusive of that of the Courts of the States with respect to various matters’.⁹⁹ That observation refers to a matter mentioned above, namely, that the Commonwealth Parliament has used section 77(ii) of the Constitution to remove State jurisdiction to hear matters falling within the subject matters identified in sections 75 and 76, and then used section 77(iii) to invest those courts with federal jurisdiction to hear such matters.¹⁰⁰ Federal jurisdiction is also invested in State courts by a range of other specific legislative provisions, albeit always subject to the same basic conditions prescribed in section 39(2)(a) and (c).¹⁰¹ In the result, ‘where a matter which would otherwise be within the jurisdiction of a State court answers the description of a matter within s 75 or s 76 of the Constitution, the State court is invested with federal jurisdiction with respect to that matter to the exclusion of State jurisdiction under s 109 of the Constitution’.¹⁰² In a wide range of matters, therefore, the State Supreme Courts (and indeed all other State courts) now

derive their authority to adjudicate from a statute of the Commonwealth Parliament and exercise federal, not State, jurisdiction.¹⁰³

The State Supreme Courts are protected, but not insulated, from interference by the Commonwealth. As has just been described, the Commonwealth Parliament has removed the pre-existing authority that State courts had to decide matters falling within federal jurisdiction, and replaced it with an authority derived from the Commonwealth Parliament. But whenever the Commonwealth Parliament seeks to invest a State court with federal jurisdiction, it must take it ‘as it exists’,¹⁰⁴ meaning that ‘the reconstitution of the tribunal itself or of the organization through which its powers and jurisdiction are exercised’¹⁰⁵ is beyond the power of the Commonwealth Parliament, and ‘the character or constitution’ of State courts and their ‘nature ... as a judicial organism’¹⁰⁶ must be left untouched.¹⁰⁷ In broad terms, therefore, the Commonwealth Parliament ‘cannot change the structure of a State court, but it may confer new functions upon such a court’.¹⁰⁸

Given that the Commonwealth must take State courts as it finds them, it is perhaps unsurprising that the Commonwealth may neither destroy nor curtail in any substantial manner a State’s courts.¹⁰⁹ Nor, however, may the States destroy, or even alter in certain respects, their own Supreme Courts (a proposition the full extent of which was only appreciated relatively recently).

Since 1996, the Constitution has been held to require the continued existence of State courts upon which the Commonwealth may vest jurisdiction under section 77(iii),¹¹⁰ and, in particular, of the State Supreme Courts from which the High Court may hear appeals under section 73(ii).¹¹¹ More than that, however, it is not enough that the States maintain an institution labelled the ‘Supreme Court of a State’; it is ‘beyond the legislative power of a State so to alter the constitution or character of its Supreme Court that it ceases to meet the constitutional description’.¹¹² For example, because appeals from State Supreme Courts to the High Court are an important means by which the unity of the common law is secured, it is likely that States may not prevent appeals to, or review by, their Supreme Courts in relation to decisions of lower State courts.¹¹³

Even more significantly, for practical purposes, is the effect of the so-called *Kable* doctrine, described in detail elsewhere in this book.¹¹⁴ That is, by reason of the fact that State courts are the potential recipients of grants of federal jurisdiction, States may not confer upon those courts a function that would be inconsistent with that potential grant.

Insofar as the organization of the State court systems are concerned, each State has a Supreme Court with a broad civil and criminal jurisdiction. Some, but not all, of those Supreme Courts have a dedicated division constituted as a Court of Appeal which hears appeals both from first instance decisions of the Supreme Court, as well as lower courts of the State. Below the Supreme Court usually, but not invariably, sits an intermediate court, known as the District Court or County Court. Those courts usually have a wide civil jurisdiction, albeit limited in the amount that may be recovered, and a criminal jurisdiction that extends to all but the most serious of crimes. Beneath them there are local, or magistrates', courts. Some States have one or more specialist courts. For example, in New South Wales there is the Land and Environment Court, in Western Australia the Family Court, and so forth.

4. Territory Courts

Section 122 of the Constitution confers a broad legislative power upon the Commonwealth Parliament to make laws for Australia's territories. It was observed in *R v Kirby; Ex parte Boilermakers' Society of Australia* that it 'would have been simple enough to follow the words of section 122 and of sections 71, 73 and 76(ii) and to hold that courts and laws of a Territory were federal courts and laws made by the Parliament. ... But an entirely different interpretation has been adopted, one which brings its own difficulties'.¹¹⁵

So, in *R v Bernasconi* it was held that Chapter III of the Constitution was inapplicable in its entirety to Territory courts.¹¹⁶ Fundamentally, the territories were regarded as being 'outside', and Chapter III concerned only with, the federal system.¹¹⁷ Later cases have repudiated that broad reasoning, and the conclusion that the entirety of Chapter III is necessarily inapplicable to territory courts. But it remains the case that territory courts are not 'other federal courts' created by Parliament for the purposes of sections 71 and 72 of the Constitution.¹¹⁸

Territory courts can, however, be invested with federal jurisdiction.¹¹⁹ That plainly cannot be done pursuant to section 77(iii) of the Constitution, so the source of that power must be section 122.

To the extent that a Territory court is exercising federal jurisdiction, an appeal will lie to the High Court pursuant to section 73(ii) of the Constitution. To the extent that they are exercising non-federal jurisdiction,¹²⁰ then Parliament may authorize an appeal to the High Court pursuant to section 122.¹²¹

Initially, the High Court had complete jurisdiction over the Australian Capital Territory.¹²² In 1933, the Commonwealth Parliament created the Supreme Court of the Australian Capital Territory, which was continued in existence following self-government in 1989, with nearly full control over the Court being transferred to the ACT in 1992.¹²³

The ACT Supreme Court also has jurisdiction with respect to certain of Australia's other territories, namely, the Heard and McDonald Islands,¹²⁴ the Australian Antarctic Territory,¹²⁵ and the Jarvis Bay Territory.¹²⁶

Insofar as the Northern Territory Supreme Court is concerned, a Court by that name was established in 1911,¹²⁷ before being divided into two courts in 1926.¹²⁸ It was restored as a single court in 1931.¹²⁹ In 1961, that Court was abolished, and replaced with another Court.¹³⁰ The Territory gained self-government in 1978, and responsibility for the Supreme Court was transferred to the Territory.¹³¹ The Northern Territory Supreme Court has jurisdiction over the Ashmore and Cartier Islands.¹³²

The Norfolk Island Supreme Court was established in 1957,¹³³ and continued in force after self-government was granted in 1979.¹³⁴ When self-government was withdrawn in 2015, the Supreme Court was left untouched.¹³⁵ The Supreme Court of Norfolk Island has jurisdiction over the Coral Sea Islands.¹³⁶

Although the Cocos (Keeling) Islands and Christmas Island used to have their own Supreme Court, in 1992 jurisdiction over the territories was transferred to the Supreme Court of Western Australia.¹³⁷

5. (Non-court) Tribunals

There is a growing number of non-court tribunals that both the Commonwealth and States have created to decide disputes. Usually the stated or implied objective of these tribunals is to provide a means of resolving disputes that is less formal, cheaper, and more efficient than the court system.

The possibilities that exist at the Commonwealth and State levels regarding the use of tribunals differ markedly, for one fundamental reason: State tribunals may, but Commonwealth tribunals may not, be vested with judicial power. The reason for that restriction is, of course, the separation of powers inherent in Chapter III, as identified in *R v Kirby; Ex parte Boilermakers' Society of Australia*.¹³⁸ As a result, in the Commonwealth sphere, tribunals are limited to the performance of purely administrative functions.¹³⁹

Although States may invest their tribunals with judicial power, there is one significant qualification to that general proposition. The qualification relates to the circumstance where the dispute before a State tribunal involves one or more of the nine categories of federal matters in sections 75 and 76 of the Constitution.¹⁴⁰

If a dispute falling within one of those categories were heard in a State court, it would for the reasons explained above be in the exercise of federal jurisdiction, with the result that an appeal to the High Court would always be available.¹⁴¹ The universal guarantee of the possibility of an appeal to the High Court in all matters of the kinds described in sections 75 and 76 has been held to be central to the scheme established by section 39 of the *Judiciary Act*.¹⁴² Consequently, if State tribunals were vested with State jurisdiction to determine such matters, there would be an alteration, impairment, or detraction from that universal guarantee, and the State law would be inoperative by reason of section 109 of the Constitution.¹⁴³

None of that means, however, that a tribunal (Commonwealth or State) may not form (and act upon) an opinion on a federal Constitutional matter.¹⁴⁴ It is just that, 'like the decision of an administrative official, [the decision of the Tribunal is] effective only to the extent that it has understood the law correctly'.¹⁴⁵

6. Judges and other Court Officers

The outline given above has spoken of the various courts as institutions. And, of course, in a meaningful sense that is what they are. But they are institutions comprised of people, and in that context one issue has arisen from time to time.

The critical constituent elements of any court are, of course, the judges. But this does not mean that a court's jurisdiction may never be exercised by persons other than judges of the court. In *Commonwealth v Hospital Contribution Fund*, it was held that a State court, invested with federal jurisdiction, may exercise that jurisdiction through an officer of the court who is not a member of the court (in that case, a Master).¹⁴⁶ Similarly, although section 71 of the Constitution provides that the High Court is comprised of 'a Chief Justice, and so many other Justices ... as the Parliament prescribes', Mason J observed that this 'did not necessarily exclude the exercise of some jurisdiction and powers by a master or registrar of the Court, whether as a delegate or otherwise, provided that the exercise is subject to review or appeal'.¹⁴⁷ The position was, of course, thus *a fortiori* in relation to other federal courts.¹⁴⁸ It follows that the most significant limitation on the ability of the Commonwealth Parliament to provide for the exercise of federal jurisdiction in federal courts by court officers is that the exercise of judicial power by officers of federal courts must be controlled and supervised by judges, and capable of review by them.¹⁴⁹

C. THE ESSENTIAL FEATURES OF AUSTRALIAN COURTS

The historical and institutional context provided above serves as necessary context for the following more detailed consideration of the nature and qualities of the Australian judicature in the present day.

1. Decisional Independence and Impartiality

The idea that courts should be independent and impartial is now all but universally recognized. It is reflected in article 10 of the Universal Declaration of Human Rights, as well as a range of other international instruments.¹⁵⁰ But 'judicial independence and impartiality may be ensured

by a number of different mechanisms, not all of which are seen, or need to be seen, to be applied to every kind of court'.¹⁵¹ So, in Australia, Gleeson CJ observed that:¹⁵²

there are substantial differences in arrangements concerning the appointment and tenure of judges and magistrates, terms and conditions of service, procedures for dealing with complaints against judicial officers, and court administration. All those arrangements are relevant to independence. The differences exist because there is no single ideal model of judicial independence, personal or institutional. There is room for legislative choice in this area; and there are differences in constitutional requirements.

The fact that independence and impartiality may be secured by a range of different means, however, does not 'deny the central importance of the characteristics of real and perceived independence and impartiality in defining what is a "court" within the meaning of the relevant provisions of Ch III.'¹⁵³ This statement applies whether the court is federal or State. The principal means by which independence is secured in Australia are discussed below.

a) Security of tenure

It will be recalled from the discussion of history above that the solution to the intrusion by the Stuart kings on the independence of the judiciary in England was thought to be the passage of the *Act of Settlement*, providing security of tenure. It is fair to say that the provision of security of tenure also represents a fundamental means by which judicial independence is secured in Australia. Indeed, it has been recognized that the historical path by which the independence of the judiciary was advanced is relevant to identifying the vice at which section 72(iii) was aimed.¹⁵⁴ It must at all times be remembered, though, that, traditionally at least, the 'rule that judges hold their offices during good behavior and not at pleasure is not of general application. It is not part of the common law. It describes an exceptional tenure, one which judicial officers of subordinate courts, for the most part, do not enjoy.'¹⁵⁵

Originally, federal judges were appointed for life.¹⁵⁶ But following a referendum in 1977, section 72 of the Constitution was amended to provide for compulsory retirement at the age of seventy (for High Court judges), and compulsory retirement for other federal judges at an age specified by Parliament, which must not be more than seventy.¹⁵⁷

Once appointed, federal judges enjoy security of tenure in accordance with section 72 of the Constitution. In particular, a federal judge may not be removed from office, 'except by the Governor-General in Council, on an address from both Houses of the Parliament in the same session, praying for such removal on the ground of proved misbehaviour or incapacity'.

Section 72 does not apply to State or Territory courts.¹⁵⁸ Of course, it may be that the principles identified in *Kable* would prohibit at least some incursions on the security of judicial tenure.¹⁵⁹ But it does not follow that the requirements of section 72 are anything like essential attributes for an independent judiciary.¹⁶⁰

As it happens, however, in most jurisdictions there are in fact provisions providing that judges may only be removed on an address of both Houses of Parliament (or just Parliament, in the case of Queensland, the Australian Capital Territory, and the Northern Territory) on the ground of proved misbehaviour or incapacity,¹⁶¹ although in some States, only an address of both Houses of Parliament is required.¹⁶² It is perhaps worth noting, though, that those provisions securing judicial tenure are, in the main, not entrenched.¹⁶³

While the States and Territories do restrict the circumstances in which a sitting judge may be removed from office, there is no general restriction, like that found in section 72 of the Constitution, that judges be appointed until a particular age. The States and Territories thus frequently appoint so-called 'acting' judges, meaning judges who are appointed for a limited and defined period of time.¹⁶⁴ The mere fact that such appointments permit the executive to decide whether to re-appoint an individual judge at the end of his or her term has been criticized by some as undesirable but has not been regarded as inherently problematic in legal terms.¹⁶⁵ There are, however, most likely some limits on the ability to appoint such judges, including the sort of person so appointed (a practitioner to return to practice, or a retired judge continuing to serve?) and the number of judges on a particular court of that character. Overall, a difficulty may arise 'if it were to appear that the use of such persons as acting judges were to become so frequent and pervasive that, as a matter of substance, the court as an institution could no longer be said to be composed of full-time judges having security of tenure until a fixed retirement age'.¹⁶⁶

Returning to the restrictions on a government's ability to remove judges, the quality of the independence secured to the judiciary will, as a practical matter, depend upon at least two things. First, the width, or flexibility, of the concept of 'misbehaviour'. Secondly, the extent to which an address of Parliament may be controlled or called into question.

On the first question, during the Murphy affair, two different opinions on the meaning of 'misconduct' were advanced.¹⁶⁷ The narrower view, propounded by the Solicitor-General, Gavan Griffiths QC, was essentially that the concept was limited to matters pertaining to the performance (or non-performance) of the judicial office or, otherwise, 'the commission of such an offence against the general law of such a quality as to indicate that the incumbent is unfit to exercise the office'.¹⁶⁸ The wider view, set out in an opinion of C W Pincus QC provided to the Senate Select Committee on the Conduct of a Judge,¹⁶⁹ and supported by the Parliamentary Commission of Inquiry that was established in relation to Justice Murphy, was rather that misconduct would be 'such misconduct, whether criminal or not, and whether or not displayed in the actual exercise of judicial functions, as, being morally wrong, demonstrates the unfitness for office of the judge of the judge in question'.¹⁷⁰

On the second question,¹⁷¹ any attempt to challenge a Parliamentary judgment as to the existence of proved misbehaviour would be destined to fail, either by reason of the *Parliamentary Privileges Act 1987* (Cth)¹⁷² (in the case of the Commonwealth), or because of the indirect operation of the *Bill of Rights 1689*¹⁷³ (in the case of the States). If a Parliament establishes an extra-parliamentary inquiry, however, it may be that that inquiry could be subject to the usual administrative law review.¹⁷⁴

Drawing these two threads together, it will thus be seen that there is a relatively wide, and largely un-challengeable discretion, afforded to Parliament in relation to the removal of judges.

A further consideration in this context concerns the possibility of abolishing an entire court. The litigation culminating in *Attorney-General (NSW) v Quin*¹⁷⁵ concerned the abolition of the New South Wales Courts of Petty Sessions, and its replacement by the Local Court of New South Wales. The former stipendiary magistrates were required to apply for appointment to the new court, the stated policy being that all former magistrates would be appointed unless they were considered unfit for judicial office. Five of

one hundred applicants were unsuccessful. The particular details of that litigation are not presently relevant. What is of interest is the observation of Mason CJ that he was ‘unable to equate the failure to appoint magistrates to the Local Court with removal from their previous office’ in circumstances where it was not suggested that ‘the reorganisation of the court structure involving the creation of the Local Courts was other than a genuine reorganisation’ or that ‘its object was to enable the removal from office by covert means of the respondent’.¹⁷⁶ Thus, in addition to the restrictions that States face in abolishing courts by reason of the principles enunciated in *Kable* and *Kirk* discussed above, only ‘genuine’ reorganizations of the court system will be permitted (ie, those not used as a cloak for the dismissal of judges).

b) Security of remuneration

Closely connected with the issue of security of tenure, is the issue of security of remuneration: a judge’s tenure would be worth little, if the judge could not survive on his or her salary.

Section 72(iii) provides that Chapter III judges shall ‘receive such remuneration as the Parliament may fix; but the remuneration shall not be diminished during their continuance in office’. The various State and Territory provisions providing security of tenure to their judges usually also make a similar provision in relation to judicial remuneration. To the extent that they do not, however, the principles identified in *Kable*, once again, would likely provide some restrictions on freedom of State and Territory action in relation to the security of judicial remuneration.¹⁷⁷

It should be observed, however, that neither section 72(iii), nor any equivalent State provision, deals expressly with the nature of the arrangements that must be put in place by Parliament in respect of judicial remuneration at the commencement of a term of judicial office.¹⁷⁸ That is because:

as a matter of history, the principal vice at which this provision was aimed was the legislative reduction in judicial remuneration, after a judge had accepted appointment. Such a reduction was viewed as a means of punishing an independently minded judge or of ensuring a more compliant or co-operative attitude on the part of serving judges in the execution of their function as the third branch of government.¹⁷⁹

In *North Australian Aboriginal Legal Aid Service Inc v Bradley* the appointment of the Chief Magistrate of the Northern Territory was challenged on the basis that, while he was appointed to hold office until the age of sixty-five, his salary was only fixed for the first two years.¹⁸⁰ It was argued that such an appointment infringed the *Kable* doctrine on the basis that ‘the [Territory] court as an institution was not free of government influence in administering the judicial functions invested in the court’.¹⁸¹ Ultimately, the High Court determined that the legislative scheme required both that further determinations in relation to the Chief Magistrate’s remuneration be made, and that they ‘continue or enhance’ existing remuneration.¹⁸² Nevertheless, the High Court did appear to concur with the view that ‘less stringent conditions are necessary in order to satisfy [the] security of tenure’ of inferior courts.¹⁸³

Finally, in this regard, it should be observed that securing judicial remuneration may operate to advance the independence of the judiciary in other ways. For example, it has been said that one ‘not insignificant reason [for the granting of a pension to judges] is to reduce, if not eliminate, the financial incentive for a judge to seek to establish some new career after retirement from office. ... [I]t may otherwise be possible to construe what a judge does while in office as being affected by later employment prospects’.¹⁸⁴ Once again, however, the provision of a pension is not an essential element of judicial independence, even in the more stringent environment of Chapter III.¹⁸⁵

c) Separation of powers

The notions of independence and impartiality also, importantly, ‘connote separation from the other branches of government’.¹⁸⁶ That topic is given comprehensive treatment in another chapter in this book,¹⁸⁷ and so will not be considered in detail here. Suffice it to observe that the principle does not merely distribute power so as to avoid its concentration in one branch of government; it protects the institutional integrity of courts as courts, and thus removes the possibility of a perception that courts or individual judges are in fact agents, or some other manifestation, of the government.

d) *Appointment of judges*

The chief means by which the executive has been able to exert influence over the judiciary since the *Act of Settlement* is through the exercise of the power of appointment. That is to say, it is now largely only in the selection of judges that the executive has any role to play.

Judges of the federal courts are appointed by the Governor-General in Council,¹⁸⁸ and judges of State courts are appointed by the relevant State's Governor in Council. In all cases, the appointment is made on the advice of Ministers. The practice is that the relevant Attorney-General provides the advice, which is usually given in accordance with a decision of Cabinet.¹⁸⁹

Although as a matter of practice, Attorneys-General are likely to consult a range of people before a decision is made, there is, with one exception, no requirement that they do so. That exception concerns appointments to the High Court, where the Commonwealth Attorney-General is required to consult with the State Attorneys-General.¹⁹⁰

2. Procedural Fairness

It is an essential feature of judicial power that it must be exercised in accordance with the judicial process, and the provision of natural justice is a central feature of that process.¹⁹¹ That is a principle of long-standing: it will be recalled, for example, that at common law the Crown could not constitute a court that did not proceed in accordance with established modes of procedure, including procedural fairness.¹⁹²

On the other hand, it must be remembered that the 'rules of procedural fairness do not have immutably fixed content'.¹⁹³ Or, to put it another way, 'procedural fairness has a variable content but admits of no exceptions'.¹⁹⁴ What is 'fair' is said to be, not an 'abstract' concept, but a 'practical' one.¹⁹⁵ So, for example, while it is a 'general rule' that, in adversarial proceedings, 'opposing parties will know *what* case an opposite party seeks to make and *how* that party seeks to make it', the 'general rule is not absolute'.¹⁹⁶ Thus:¹⁹⁷

[I]f legislation provides for novel procedures which depart from the general rule described, the question is whether, taken as a whole, the court's procedures for resolving the dispute accord both parties procedural fairness and avoid 'practical injustice'.

It is important to note the reference in the passage just quoted to ‘legislation’. Although not yet determined in Australia,¹⁹⁸ in the United Kingdom it has been held that there is no inherent power in a court to adopt a procedure whereby the court may rely on evidence that is not disclosed to another party.¹⁹⁹ But, where there is a legislatively prescribed procedure, as *Pompano* shows, Parliament is not limited to procedures that courts may themselves have adopted. The only limitation is that ‘a court cannot be required by statute to adopt a procedure that is unfair’.²⁰⁰ In *Pompano*, therefore, the fact that the party against whom a declaration that it was a criminal organization was sought was not permitted to see certain evidence tendered in support of the application, did not result in a denial of procedural fairness. The overall scheme retained a sufficient level of procedural fairness to ensure consistency with the status of the Queensland Supreme Court as a potential receptacle of federal jurisdiction.

3. Open Justice

It is an essential attribute of the judicial process, and thus of courts, that, subject to limited exceptions, proceedings be conducted in open court.²⁰¹ To take an early example, Sir Edward Coke said, in relation to the first chapter of the Statute of Marlborough,²⁰² that:²⁰³

These words [*in curia domini regis*] are of great importance, for all causes ought to be heard, ordered and determined before the judges of the king’s courts openly in the king’s courts, whither all persons may resort; and in no chambers or other private places: for the judges are not judges of chambers but of courts.

It thus came to be observed that one of the ‘ordinary incidents of English courts of justice’ was that their proceedings should be conducted in public.²⁰⁴ Indeed, it was decided in *Scott v Scott*²⁰⁵ that there was no inherent power in a court of justice to exclude the public.

The importance of the principle in an Australian context may be seen in the decision of the High Court in *Russell v Russell*, where it was held that provisions of the *Family Law Act 1975* (Cth) were invalid to the extent that they required certain proceedings in State courts to be held in private.²⁰⁶ That was because to ‘require that a Supreme Court, possessing all the attributes of an English court of justice, should sit as of course in closed

court is ... to turn that Court into a different kind of tribunal'.²⁰⁷ Sitting in open court was said by Gibbs J to have:²⁰⁸

the virtue that the proceedings of every court are fully exposed to public and professional scrutiny and criticism, without which abuses may flourish undetected. Further, the public administration of justice tends to maintain confidence in the integrity and independence of the courts. The fact that courts of law are held openly and not in secret is an essential aspect of their character. It distinguishes their activities from those of administrative officials, for 'publicity is the authentic hall-mark of judicial as distinct from administrative procedure'.²⁰⁹ To require a court invariably to sit in closed court is to alter the nature of the court.

Once again, though, the principle is not absolute. The open court rule has been qualified or abrogated in numerous circumstances, because, as Gibbs J observed in *Russell*, 'the need to maintain secrecy or confidentiality, or the interests of privacy or delicacy, may in some cases be thought to render it desirable for a matter, or part of it, to be held in closed court'.²¹⁰ Indeed, on some occasions, 'the ordinary rule of open justice in the courtroom may give way to the need for confidentiality in order to avoid prejudice to the administration of justice in cases in which publicity would destroy the subject matter of the litigation'.²¹¹ The question is always whether any incursion on the principle 'so impair[s] the essential or defining characteristics of [a court] as a court'.²¹²

4. Duty to Give Reasons

In *Wainohu v New South Wales* it was stated that the 'centrality, to the judicial function, of a public explanation of reasons for final decisions and important interlocutory rulings has long been recognised'.²¹³ The rationale for the duty was expressed, extra-judicially, by Gleeson CJ, in terms cited with approval by the High Court:²¹⁴

First, the existence of an obligation to give reasons promotes good decision making. As a general rule, people who know that their decisions are open to scrutiny, and who are obliged to explain them, are more likely to make reasonable decisions. Secondly, the general acceptability of judicial decisions is promoted by the obligation to explain them. Thirdly, it is consistent with the idea of democratic institutional responsibility to the public that those who are entrusted with the power to make decisions, affecting the lives and property of their fellow citizens, should be required to give, in public, an account of the reasoning by which they came to those decisions.

In the case of courts from whom appeals lie to the High Court, the duty is also sourced in section 73 of the Constitution: without written reasons, the

right of appeal there guaranteed would be impaired.²¹⁵ It is also an aspect of the open court principle: ‘a court which does not give reasons ... withholds from public scrutiny that which is at the heart of the judicial function: the judicial ascertainment of facts, identification of the rules of law, the application of those rules to the facts and the exercise of any relevant judicial discretion’.²¹⁶

D. CONCLUSION

Overall, it may be seen that the Australian judicature represents the outcome of over a thousand years of experience, struggle, and choice in the administration of justice. The outcome of that process was incorporated, both expressly and by implication, in the Constitutions of the Commonwealth and the States, and those historical influences continue to inform the permissible bounds of legislative interference in the judicial system. A particular view about the nature of courts, and their relationship to sovereigns, may also be seen to have played a role in the adoption of the American federal judicial model. Whether or not that model was the optimum model for the Australian federation, its selection has in no way diminished or inhibited the central, critical, role of courts in society: that of independent arbiters of disputes in accordance with the judicial process.

¹ Walter Map, *De Nugis Curialium* (James ed, Anecdota Oxoniensia 1914) 1: ‘in curia sum, et de curia loquor, et nescio, Deus scit, quid sit curia’. He was, of course, speaking of a ‘court’ in the sense of the place at which a king discharged the business of government but, as will appear, the distinction between that and a court in the sense we use it today was far less distinct in the twelfth century (and indeed for some time afterwards).

² See, eg, *Forge v Australian Securities and Investments Commission* (2006) 228 CLR 45, 76 [64] (Gummow, Hayne, and Crennan JJ).

³ See *Assistant Commissioner Condon v Pompano Pty Ltd* (2013) 252 CLR 38, 72 [68].

⁴ There are also Territory courts, but more on them later.

⁵ Thus s 73 and s 77 of the *Constitution*, eg, distinguish between ‘federal courts’ and a ‘court of a State’.

⁶ See, in relation to the Commonwealth Constitution, *Re Refugee Review Tribunal; Ex parte Aala* (2000) 204 CLR 82, 92 [19] (Gaudron and Gummow JJ).

⁷ *Constitution*, ss 73, 75, and 76.

⁸ See, eg, [Sections C.1.a\)](#), [C.1.b\)](#), and [C.1.c\)](#) below.

⁹ On the relevance of history to constitutional law generally, see *Cheatle v The Queen* (1993) 177 CLR 541, 552; *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520, 567; *Graham v Minister for Immigration and Border Protection* [2017] HCA 33, [79].

¹⁰ *Aala* (n 6), [22] (Gaudron and Gummow JJ).

¹¹ *Re McJannet; Ex parte Minister for Employment, Training and Industrial Relations (Qld)* (1995) 184 CLR 620, 652–53 (Toohey, McHugh, and Gummow JJ). See also, eg, *Williams v Commonwealth (No 2)* (2014) 252 CLR 416, 469 [80]–[81] (French CJ, Hayne, Kiefel, Bell and Keane JJ).

¹² Sir Owen Dixon, ‘The Common Law as an Ultimate Constitutional Foundation’ in *Jesting Pilate* (Law Book Company 1965), 203.

¹³ See *Pompano* (n 3) [68].

¹⁴ These assemblies corresponded to the various administrative divisions and sub-divisions of the kingdom (shires, hundreds, boroughs, tithings, wards, villages, and the like).

¹⁵ See generally Baker, *An Introduction to English Legal History*, (4th edn, OUP 2002) 6–8.

¹⁶ J H Baker, *The Legal Profession and the Common Law* (Hambledon 1986) 159.

¹⁷ *Huddart, Parker & Co Pty Ltd v Moorehead* (1909) 8 CLR 330, 357 (Griffith CJ). See also *TCL Air Conditioner (Zhongshan) Co Ltd v Judges of the Federal Court of Australia* (2013) 251 CLR 533, 575 [107]–[108].

¹⁸ Blackstone, *Commentaries on the Laws of England*, Facsimile of the 1st edn of 1765–769 (University of Chicago Press 1979) 239, 257.

¹⁹ The (rough) equivalent in Anglo Saxon times was the Witan: see Sir Victor Windeyer, *Lectures on Legal History* (2nd edn, Law Book Co 1957) 48; Baker, *An Introduction to English Legal History* (n 15) 17.

²⁰ The famous Great Eyre was a ‘terrifying investigation into the whole administration of a county since [the] last visitation’: Windeyer (n 19) 49.

²¹ See Baker, *An Introduction to English Legal History* (n 15) 18.

²² Baker, *The Legal Profession and the Common Law* (n 16) 158.

²³ See Baker, *An Introduction to English Legal History* (n 15) 19.

²⁴ *ibid* 166.

²⁵ F W Maitland, *Equity: Two Courses of Lectures* (CUP 1913) 3.

²⁶ See generally Fiona Roughley, ‘The Development of the Conscience of Equity’ in *Historical Foundations of Australian Law* (Federation Press 2013) 139; Baker, *An Introduction to English Legal History* (n 15) 97–14.

²⁷ *Prohibitions del Roy* (1607) 12 Co Rep 64; 77 ER 1342.

²⁸ *ibid*.

²⁹ A few years later it was held that the king had no power to legislate by proclamation, either: *Case of Proclamations* (1611) 12 Co Rep 74; 77 ER 1352.

³⁰ Blackstone (n 18) 260.

³¹ See Enid Campbell, ‘Judges at the Bar of Parliament’ (1999) 18 Australian Bar Review 63; Shimon Shetreet, *Judges on Trial* (North-Holland Publishing Co 1976) 5.

³² Baker, *An Introduction to English Legal History* (n 15) at 166.

³³ See *R v Stafford* (1486) Y B Trin 1 Hen VII, fo 26, pl 1; quoted in Baker, *An Introduction to English Legal History* (n 15) 167.

³⁴ *Acts of the Privy Council 1615–1616* (1925) 607.

³⁵ For a summary overview of the clashes between Stuart kings and their judges, see Robert Stevens, *The English Judges* (Hart Publishing 2002) 1–7.

- ³⁶ (1637) 3 St Tr 825.
- ³⁷ See [Baker, *An Introduction to English Legal History* \(n 15\)](#) at 167.
- ³⁸ *Re Justice Archer* (1672) T Raym 217; Lincoln's Inn MS. Misc. 500, fo 206v; discussed in [Baker, *An Introduction to English Legal History* \(n 15\)](#) 167.
- ³⁹ See [Baker, *An Introduction to English Legal History* \(n 15\)](#) 168.
- ⁴⁰ *ibid*.
- ⁴¹ *ibid* 168.
- ⁴² 1 Geo 3 c 23.
- ⁴³ See generally Enid Campbell, 'The Royal Prerogative to Create Colonial Courts' (1964) 4 *Sydney Law Review* 343, 348–49.
- ⁴⁴ *ibid* 348.
- ⁴⁵ *Earl of Derby's Case* (1613) 12 Co Rep 114. See generally [Campbell, 'The Royal Prerogative to Create Colonial Courts' \(n 43\)](#) 349.
- ⁴⁶ 16 Car 1 c 10, c 11. For an Australian statement of the position, see, eg, *McGuinness v Attorney-General for Victoria* (1940) 63 CLR 73, 85 (per Latham CJ), 90 (Starke J), 102 (Dixon J).
- ⁴⁷ See generally [Campbell, 'The Royal Prerogative to Create Colonial Courts' \(n 43\)](#) 348.
- ⁴⁸ 12 Co Rep 31.
- ⁴⁹ See [Sections C.3 and C.4](#) below.
- ⁵⁰ *Trust Company of Australia Ltd v Skiwing Pty Ltd* (2006) 66 NSWLR 77, 82 [21] (Spigelman CJ).
- ⁵¹ See, eg, *K-Generation Pty Ltd v Liquor Licensing Court* (2009) 237 CLR 501, 535 [113]–[131] (Gummow, Hayne, Heydon, Crennan and Kiefel JJ); *Shell Company of Australia Ltd v Federal Commissioner of Taxation* (1930) 44 CLR 530, 543–44; *Attorney-General v British Broadcasting Corporation* [1981] AC 303, 348, 356, 358–60; *Qantas Airways Ltd v Lustig* (2015) 228 FCR 148; *Owen v Menzies* [2013] 2 Qd R 327; *Trust Company of Australia Ltd* (n 50).
- ⁵² See [Pompano \(n 3\)](#) [67] (French CJ).
- ⁵³ [Baker, *The Legal Profession and the Common Law* \(n 16\)](#) 156–57.
- ⁵⁴ Magna Carta, cl 34. See [Baker, *The Legal Profession and the Common Law* \(n 16\)](#) 156.
- ⁵⁵ Perhaps the most famous was that which culminated in the assassination of that turbulent priest, Thomas Becket, the Archbishop of Canterbury, by four knights at the instigation of Henry II.
- ⁵⁶ See Chapter 36 'Federal Jurisdiction'.
- ⁵⁷ See Chapter 36 'Federal Jurisdiction'.
- ⁵⁸ Dixon, 'The Law and the Constitution' in *Jesting Pilate* (Law Book Co 1965) 38, 53.
- ⁵⁹ *ibid* 44.
- ⁶⁰ See Chapter 36 'Federal Jurisdiction'.
- ⁶¹ While the United States Supreme Court may review decisions of State courts, it can only do so where their decisions concern some federal matter (broadly speaking, where the validity of legislation (whether State or federal) is impugned on the basis of the Constitution, or any right, title, privilege, or immunity is claimed under the Constitution): see 28 USC s 1257.
- ⁶² *Erie R. Co v Tompkins* 304 US 64, 74 (1938).
- ⁶³ See Laurence Tribe, *American Constitutional Law*, vol 1 (3rd edn, Foundation Press 2000) 471. See also, eg, *Black and White Taxicab and Transfer Co v Brown and Yellow Taxicab and Transfer Co* 276 US 518 (1928) (Holmes J).
- ⁶⁴ Dixon, 'Sources of Legal Authority' in *Jesting Pilate* (Law Book Co 1965) 198, 199. See also [Dixon, 'The Common Law as an Ultimate Constitutional Foundation' \(n 12\)](#) 203.

⁶⁵ Dixon, ‘The Law and the Constitution’ (n 58) 54.

⁶⁶ That jurisdiction is, by s 73, subject to ‘such exceptions and subject to such regulations as the Parliament prescribes’. As to that, see generally Geoffrey Lindell, *Cowen and Zines’s Federal Jurisdiction in Australia* (4th edn, Federation Press 2016) 432–40. An obvious example of the ‘regulation’ of appeals to the High Court is the imposition of a requirement for the grant of special leave to appeal before an appeal may be instituted in the Court: see *Smith Kline & French Laboratories (Aust) Ltd v Commonwealth* (1991) 173 CLR 194.

⁶⁷ Appeals from the High Court in Constitutional matters were abolished in 1968 by the *Privy Council (Limitation of Appeals) Act 1968* (Cth). All other appeals from the High Court were abolished in 1975 by the *Privy Council (Appeals from the High Court) Act 1975* (Cth). Appeals from State courts were abolished in 1986 by the *Australia Acts*.

⁶⁸ *Judiciary Act 1903* (Cth), s 30(a).

⁶⁹ *Ruhani v Director of Police* (2005) 222 CLR 489.

⁷⁰ *Judiciary Act 1903* (Cth), s 38.

⁷¹ *ibid* s 39(1).

⁷² *ibid* s 39(2).

⁷³ See *Burns v Corbett* [2017] NSWCA 3, [15] (Leeming JA), referring to *Nagrint v The Ship ‘Regis’* (1939) 61 CLR 688.

⁷⁴ *Commonwealth Electoral Act 1918* (Cth), s 354.

⁷⁵ John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (1901 edn, Lexis Nexis, reprinted 2002) 726.

⁷⁶ Created in 1956: *Conciliation and Arbitration Act 1904* (Cth), s 98.

⁷⁷ Created in 1930: *Bankruptcy Act 1924* (Cth), s 18A; *Bankruptcy Act 1966* (Cth), s 21.

⁷⁸ *Family Law Act 1975* (Cth).

⁷⁹ *Federal Court of Australia Act 1976* (Cth).

⁸⁰ See, in particular, *Judiciary Act 1903* (Cth), s 39B(1A).

⁸¹ *Family Law Act 1975* (Cth), *Marriage Act 1961* (Cth), *Child Support (Registration and Collection) Act 1988* (Cth), *Child Support (Assessment) Act 1989* (Cth).

⁸² There is no doubt that Parliament has the authority to create federal appellate courts, and to confer federal appellate jurisdiction on them (and State courts): see *Ah Yick v Lehmert* (1905) 2 CLR 593; Lindell, (n 66) 178–85.

⁸³ *Federal Magistrates Act 1999* (Cth); *Federal Circuit Court of Australia Legislation Amendment Act 2012* (Cth); *Federal Circuit Court of Australia (Consequential Amendments) Act 2012* (Cth).

⁸⁴ *Federal Circuit Court of Australia Act 1999* (Cth), s 10.

⁸⁵ *Family Law Act 1975* (Cth), ss 33B, 33C.

⁸⁶ *Federal Court of Australia Act 1976* (Cth), s 32AB.

⁸⁷ *McJannet* (n 11) 652–53 (Toohey, McHugh and Gummow JJ).

⁸⁸ Derived from s 23 of the *Federal Court Act 1976* (Cth). See, eg, *Jackson v Sterling Industries Ltd* (1987) 162 CLR 612, 623.

⁸⁹ See, eg, *R v Carter; Ex parte Kisch* (1934) 52 CLR 221.

⁹⁰ *Fencott v Muller* (1983) 152 CLR 570.

⁹¹ *Philip Morris Inc v Adam P Brown Male Fashions Pty Ltd* (1981) 148 CLR 457, 512.

⁹² *Fencott* (n 88) 607.

⁹³ *ibid* 608.

⁹⁴ See *Federal Court of Australia Act 1976* (Cth), s 32; *Family Law Act 1975* (Cth), s 33; *Federal Circuit Court of Australia Act 1999* (Cth), s 18.

⁹⁵ See *Philip Morris Inc* (n 91), 494, 516, 538.

⁹⁶ See *Kirk v Industrial Court (NSW)* (2010) 239 CLR 531, 580 [97] and the references there cited.

⁹⁷ See, eg, in relation to the Supreme Court of New South Wales, the 1823 Charter of Justice.

⁹⁸ See *PT Bayan Resources TBK v BCBC Singapore Pte Ltd* (2015) (2015) 89 ALJR 975, [37]; *Pompano* (n 3) [40]; *Keramianakis v Regional Publishers Pty Ltd* (2009) 237 CLR 268, 280 [36]. See also *Grassby v The Queen* (1989) 168 CLR 1, 16–17; *Pelechowski v Registrar, Court of Appeal (NSW)* (1999) 198 CLR 435, 451 [50].

⁹⁹ *McJannet* (n 11) 653 (Toohey, McHugh and Gummow JJ).

¹⁰⁰ See generally Mark Leeming, *Authority to Decide* (Federation Press 2012) 141–52; *Baxter v Commissioners of Taxation (NSW)* (1907) 4 CLR 1087, 1137–138 (Griffith CJ, Barton and O'Connor JJ); *Burns* (n 73) [23].

¹⁰¹ See *Burns* (n 73) [24]–[25]; *Judiciary Act 1903* (Cth), s 39A(1).

¹⁰² *PT Bayan Resources* (n 98) [53] (French CJ, Kiefel, Bell, Gageler and Gordon JJ).

¹⁰³ They also, at least historically, had jurisdiction conferred upon them by Imperial legislation and, still today, have jurisdiction conferred upon them by other States pursuant to the various *Jurisdiction of Courts (Cross-vesting) Act 1987*: see *Burns* (n 73) [16] (Leeming JA).

¹⁰⁴ *Peacock v Newtown Marrickville and General Co-operative Building Society No 4 Ltd* (1943) 67 CLR 25, 37.

¹⁰⁵ *Le Mesurier v Connor* (1929) 42 CLR 481, 498.

¹⁰⁶ *Adams v Chas S Watson Pty Ltd* (1938) 60 CLR 545, 554.

¹⁰⁷ See generally *Russell v Russell* (1976) 134 CLR 495.

¹⁰⁸ *Adams v Chas S Watson Pty Ltd* (1938) 60 CLR 545, 555 (Latham CJ).

¹⁰⁹ Whatever other problems there may be with any such attempt, it would be prohibited by application of the doctrine established in *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31. See *BHP Billiton Ltd v Schultz* (2004) 221 CLR 400, 442–43 [91] (Gummow J).

¹¹⁰ See *Kable v Director of Public Prosecutions (NSW)* (1996) 189 CLR 51, 103 (Gaudron J), 111 (McHugh J), 140 (Gummow J).

¹¹¹ See *ibid* 109–10 (McHugh J), 137–39 (Gummow J).

¹¹² *Forge* (n 2) [63]; *Kirk* (n 96) [96].

¹¹³ See *Kirk* (n 96); *Public Service Association of South Australia Inc v Industrial Relations Commission (SA)* (2012) 249 CLR 398. See also *Kable* (n 110) 109–10 (McHugh J).

¹¹⁴ *Kable* (n 110). See Chapter 28 ‘The Separation of Judicial Power’.

¹¹⁵ (1956) 94 CLR 254, 290 (Dixon CJ, McTiernan, Fullagar and Kitto JJ).

¹¹⁶ (1915) 19 CLR 629, 635 (Griffith CJ, with whom Rich and Gavan Duffy JJ agreed). See also *Porter v The King; Ex parte Yee* (1926) 37 CLR 432.

¹¹⁷ *Attorney-General (Cth) v The Queen; Ex parte Boilermakers' Society of Australia* (1957) 95 CLR 529, 545.

¹¹⁸ See, eg, *Spratt v Hermes* (1965) 114 CLR 226; *Capital TV and Appliances Pty Ltd v Falconer* (1971) 125 CLR 591; *Re Governor, Goulburn Correctional Centre; Ex parte Eastman* (1999) 200 CLR 322.

¹¹⁹ See *North Australian Aboriginal Legal Aid Service Inc v Bradley* (2004) 218 CLR 146, 163 [28]; *Ebner v Official Trustee in Bankruptcy* (2000) 205 CLR 337, 363 [81].

¹²⁰ There is uncertainty about whether they ever would: see Lindell (n 66) 232–43.

- ¹²¹ *Porter* (n 116).
- ¹²² *Seat of Government Acceptance Act 1909* (Cth); *Judiciary Act 1927* (Cth).
- ¹²³ *Seat of Government Supreme Court Act 1933* (Cth); *ACT Supreme Court (Transfer) Act 1992* (Cth). The Court is now constituted pursuant to the *Supreme Court Act 1933* (ACT), but some provisions may only be repealed or amended by the Commonwealth Parliament.
- ¹²⁴ *Heard Island and McDonald Islands Act 1953* (Cth), s 9.
- ¹²⁵ *Australian Antarctic Territory Act 1954* (Cth), s 10.
- ¹²⁶ *Jarvis Bay Territory Acceptance Act 1915* (Cth), s 4D.
- ¹²⁷ *Supreme Court Ordinance 1911*.
- ¹²⁸ *Northern Australia Act 1926* (Cth), s 40.
- ¹²⁹ *Northern Territory (Administration) Act (No 2) 1931* (Cth).
- ¹³⁰ *Northern Territory Supreme Court Act 1961* (Cth).
- ¹³¹ The Court is now constituted under the *Supreme Court Act 1979* (NT).
- ¹³² *Ashmore and Cartier Islands Acceptance Act 1933* (Cth), s 6.
- ¹³³ *Norfolk Island Act 1957* (Cth), s 18.
- ¹³⁴ *Norfolk Island Act 1979* (Cth), s 52.
- ¹³⁵ *Norfolk Island Legislation Amendment Act 2015* (Cth).
- ¹³⁶ *Coral Sea Islands Act 1969* (Cth), s 8.
- ¹³⁷ *Territories Law Reform Act 1992* (Cth); *Cocos (Keeling) Islands Act 1955* (Cth), Pt IVAA; *Christmas Island Act 1958* (Cth), Pt IVA.
- ¹³⁸ (1956) 94 CLR 254.
- ¹³⁹ See, eg, *Brandy v Human Rights and Equal Opportunity Commission* (1995) 183 CLR 245.
- ¹⁴⁰ See generally Lindell (n 66) 309–16; *Attorney-General (NSW) v 2UE Sydney Pty Ltd* (2006) 236 ALR 385; *Commonwealth v Anti-Discrimination Tribunal (Tas)* (2008) 169 FCR 85; *Sunol v Collier* (2012) 81 NSWLR 619; *Owen* (n 51); *Qantas Airways Ltd* (n 51).
- ¹⁴¹ See the discussion of s 39 of the *Judiciary Act* above.
- ¹⁴² See *Burns* (n 73) [75], [78] (Leeming JA).
- ¹⁴³ *ibid* [78], [95], [97] (Leeming JA).
- ¹⁴⁴ *Sunol* (n 140) [17]–[20]; *Owen* (n 51) [115]; *Burns* (n 73) [96].
- ¹⁴⁵ *Sunol* (n 140) [9].
- ¹⁴⁶ (1982) 150 CLR 49, 59 (Gibbs CJ, with whom Stephen and Aickin JJ agreed).
- ¹⁴⁷ *ibid* 64.
- ¹⁴⁸ See also *Harris v Caladine* (1991) 172 CLR 84, 93 (Mason CJ and Deane J), 145 (Gaudron J).
- ¹⁴⁹ *ibid* 121–22 (Mason CJ and Deane J), 164 (McHugh J).
- ¹⁵⁰ See generally H P Lee and Enid Campbell, *The Australian Judiciary* (2nd edn, CUP 2012) 7–9.
- ¹⁵¹ *Forge* (n 2) [84] (Gummow, Hayne and Crennan JJ).
- ¹⁵² *Bradley* (n 119) [3].
- ¹⁵³ *Forge* (n 2) [85]. See also *Pompano* (n 3) [125]; *Ebner* (n 119) [3], [81]; *Bradley* (n 119) [3], [29]; *Gypsy Jokers Motorcycle Club Inc v Commissioner of Police* (2008) 234 CLR 532, 552–53 [10].
- ¹⁵⁴ *Austin v Commonwealth of Australia* (2003) 215 CLR 185, 286–87 [240]–[241].
- ¹⁵⁵ *Spratt v Hermes* (1965) 114 CLR 226, 271 (Windeyer J).
- ¹⁵⁶ *Waterside Workers' Federation of Australia v J W Alexander Ltd* (1918) 25 CLR 434, 442 (Griffith CJ), 457, (Barton J), 474 (Higgins J), 486–87 (Powers J). See also *R v Davison* (1954) 90

CLR 353,365.

¹⁵⁷ *Constitution Alteration (Retirement of Judges)* 1977. The mandatory retirement age for all federal judges now is, in fact, seventy.

¹⁵⁸ See *Kable* (n 110) 115 (McHugh J). See also *Re Governor, Goulburn Correction Centre; Ex parte Eastman* (1999) 200 CLR 322; *Forge* (n 2) [38], [255]

¹⁵⁹ See generally the discussion in Gerard Carney, *The Constitutional Systems of the Australian States and Territories* (CUP 2006) 368–69.

¹⁶⁰ See, eg, *Bradley* (n 119) [3] (Gleeson CJ); *Forge* (n 2) [36] (Gleeson CJ), [65] (Gummow, Hayne and Crennan JJ).

¹⁶¹ See *Constitution Act 1902* (NSW), s 53(2); *Constitution of Queensland Act 2001* (Qld), s 61(2); *Constitution Act 1975* (Vic), s 87AAB(1); *Supreme Court Act 1979* (NT), s 40; *Judicial Commissions Act 1994* (ACT), s 5(1).

¹⁶² *Constitution Act 1934* (SA), s 75; *Constitution Act 1889* (WA), s 55; *Supreme Court (Judges' Independence) Act 1857* (Tas), s 1. Both South Australia and Western Australia do provide, however, for judges to hold office during good behaviour: *Constitution Act 1934* (SA), s 74; *Constitution Act 1889* (WA), s 54.

¹⁶³ See Carney (n 159) 343–44. cf, however, New South Wales and Victoria: *Constitution Act 1902* (NSW), s 7B(1); *Constitution Act 1975* (Vic), s 18(2)(fb).

¹⁶⁴ See *Forge* (n 2). See also *Bradley* (n 117) [3] (Gleeson CJ).

¹⁶⁵ See, eg, *Re Governor, Goulburn Correctional Centre; Ex parte Eastman* (1999) 200 CLR 322; *Bradley* (n 117) [32].

¹⁶⁶ *Forge* (n 2) [47] (Gummow, Hayne and Crennan JJ). See also *Bradley* (n 117) 164.

¹⁶⁷ See generally Lee and Campbell (n 150) 122–24.

¹⁶⁸ Griffith, 'In the Matter of Section 72 of the Constitution', *Parliamentary Debates*, Senate, 28 February 1984, 32–36, quoted in Lee and Campbell (n 150) 122.

¹⁶⁹ Appendix 4 to *Senate Select Committee on the Conduct of a Judge*, Parl Pap No 168 (1984), quoted in Lee and Campbell (n 150) 123.

¹⁷⁰ 'Parliamentary Commission of Inquiry Re The Honourable Mr Justice Murphy' (1986) 2 Australian Bar Review 203, 221. See also at 210 and 230.

¹⁷¹ As to which see Enid Campbell, 'Judicial Review of Proceedings for the Removal of Judges from Office' (1999) 22 University of New South Wales Law Journal 325; Lee and Campbell (n 150) 129–31.

¹⁷² See s 16.

¹⁷³ Article 9. See Lee and Campbell (n 150) 130.

¹⁷⁴ See *Bruce v Cole* (1998) 45 NSWLR 163. The Commonwealth Parliament has passed the *Judicial Misbehaviour and Incapacity (Parliamentary Commissions) Act 2012* (Cth), providing for the establishment of a commission to investigate and report on allegations of misbehaviour or incapacity 'so that they can be well-informed to consider whether to pray for his or her removal under paragraph 72(ii) of the Constitution' (s 3(1)).

¹⁷⁵ (1989) 170 CLR 1.

¹⁷⁶ *ibid* 19.

¹⁷⁷ See generally the discussion in Carney (n 159) 368–69.

¹⁷⁸ *Baker v Commonwealth* (2012) 206 FCR 229, [37].

¹⁷⁹ *ibid* [37].

¹⁸⁰ *Bradley* (n 119) [24].

¹⁸¹ *Bradley* (n 119) [30], quoting *Kable* (n 110) 119 (McHugh J).

- ¹⁸² *Bradley* (n 119) [57].
- ¹⁸³ (ibid [63], quoting *Ell v Alberta* [2003] 1 SCR 857, 874.
- ¹⁸⁴ *Forge* (n 2) [77] (Gummow, Hayne and Crennan JJ).
- ¹⁸⁵ See *Baker* (n 178).
- ¹⁸⁶ *Pompano* (n 3) [125].
- ¹⁸⁷ See Chapter 28 ‘The Separation of Judicial Power’.
- ¹⁸⁸ *Constitution*, s 72(i).
- ¹⁸⁹ See, eg, *Lee and Campbell* (n 150) 85.
- ¹⁹⁰ *High Court of Australia Act* 1979 (Cth), s 6.
- ¹⁹¹ See, eg, *Re Nolan; Ex parte Young* (1991) 172 CLR 460, 496 (Gaudron J). See also *Bass v Permanent Trustee Co Ltd* (1999) 198 CLR 334, [56] (Gleeson CJ, Gaudron, McHugh, Gummow, Hayne and Callinan JJ).
- ¹⁹² See [Section A.1](#) above.
- ¹⁹³ *Pompano* (n 3) [156].
- ¹⁹⁴ ibid [177].
- ¹⁹⁵ See *Re Minister for Immigration and Multicultural and Indigenous Affairs; Ex parte Lam* (2003) 214 CLR 1, 13–14 [37] (Gleeson CJ); *Pompano* (n 3) [156].
- ¹⁹⁶ *Pompano* (n 3) at [156].
- ¹⁹⁷ ibid [157].
- ¹⁹⁸ See ibid at [49], [170].
- ¹⁹⁹ *Al Rawi v Security Service* [2012] 1 AC 531.
- ²⁰⁰ *Pompano* (n 3) [177].
- ²⁰¹ See, eg, *Re Nolan* (n 191) 496 (Gaudron J); *Grollo v Palmer* (1995) 184 CLR 348, 379 (McHugh J); *TCL Air Conditioner* (n 17) [27] (French CJ and Gageler J).
- ²⁰² 52 Hen 3 c 1.
- ²⁰³ 2 Co Inst 103.
- ²⁰⁴ *H (Falsely called C) v C* (1859) 29 JL (P&M) 29, 30.
- ²⁰⁵ [1913] AC 417. See also *Dickason v Dickason* (1913) 17 CLR 50.
- ²⁰⁶ *Russell* (n 107).
- ²⁰⁷ ibid 532 (Stephen J), see also 507 (Barwick CJ), 521 (Gibbs J); contra at 537 (Mason J), 555 (Jacobs J).
- ²⁰⁸ *Russell* (n 107) 520 (Gibbs J).
- ²⁰⁹ *McPherson v McPherson* (1936) AC 177, 200.
- ²¹⁰ *Russell* (n 107) 520. See also *Hogan v Hinch* (2011) 243 CLR 506, [90].
- ²¹¹ *Pompano* (n 3) [70], citing *Gypsy Jokers Motorcycle Club Inc* (n 153) 255.
- ²¹² *Pompano* (n 3) [89].
- ²¹³ (2011) 243 CLR 181, 213 [54] (French CJ and Kiefel J). See also *Grollo* (n 201) 394, (Gummow J); *AK v Western Australia* (2008) 232 CLR 438, 470 [89] (Heydon J).
- ²¹⁴ Murray Gleeson, ‘Judicial Accountability’ (1995) 2 *The Judicial Review* 117, 122, quoted with approval in *AK* (n 213) [89]; *Wainohu* (n 213) [56].
- ²¹⁵ *Wainohu* (n 213) [57].
- ²¹⁶ ibid [58].

CHAPTER 28

THE SEPARATION OF JUDICIAL POWER

MICHELLE FOSTER

A. INTRODUCTION

THE separation of judicial power principle, recognised as implicit in the Constitution by the High Court in the landmark *Boilermakers* case in 1956,¹ has had a significant impact on the nature and content of power exercisable by the respective branches of government, including those at the state level. Moreover, the principle has operated in important respects to fill procedural and substantive gaps in the protections provided by the Constitution. However, such developments have not been without controversy. The fundamental principle has been questioned, and it has been opined that some aspects of the principle lead to inconvenience or inefficiency. Further, some specific applications of the principle, most notably those that follow from the seminal *Kable* decision,² have been vociferously debated.

[Section B](#) considers the history of the principle, and whether it was intended or assumed by the Constitution's drafters. [Section C](#) examines the evolution of the principle in the High Court's jurisprudence, and its underlying rationales. [Section D](#) considers the practical ramifications of the principle, and the methods and techniques adopted by the High Court to respond to some of its 'inconvenient' consequences. The final sections consider two of the core underlying rationales in the context of controversial issues in contemporary jurisprudence. [Section E](#) analyses the separation of judicial power principle and the protection of individual rights, by examining the vexed question of the legality of executive detention. [Section F](#) analyses the separation of judicial power principle and

federalism, focusing on the most significant relevant decision since *Boilermakers*—the *Kable* decision—and its implications for State courts. The chapter concludes by briefly commenting on likely future developments.

B. THE ORIGIN OF THE SEPARATION OF POWERS DOCTRINE IN THE AUSTRALIAN CONSTITUTION

The separation of judicial power is a principle upon which the Australian Constitution is understood to be founded,³ yet, as is the case in the United States Constitution,⁴ there is no explicit textual embodiment of it in the Constitution. For this reason there is no single textual proposal, amendment, or provision upon which the drafters were required to focus and which indicates their specific views of the merits or indeed even existence of such a principle. Indeed, given that the principle has been implied primarily from the *structure* of the Constitution, divining the drafters' intentions is not straightforward: it relies on an understanding of the ideas or motivations of those whose contributions were particularly influential in shaping the form of the Constitution, and on locating pertinent comments scattered throughout the thousands of pages that record the content of the numerous separate meetings that were convened for the purposes of drafting the Australian Constitution. It may therefore be impossible ever to adjudicate convincingly the question whether the drafters did or did not intend the Constitution to rest on an implied separation of judicial power.

Andrew Inglis Clark produced a draft Bill and Memorandum prior to the first Convention that heavily influenced the form of the final Bill.⁵ In drafting that Bill he was 'inspired by the United States of America and its constitutional system'.⁶ That draft contains, as does the final Constitutional text,⁷ separate provision for the three branches of government. The 'Federal Judiciary' in Chapter V begins with section 59, which provides that the 'Judicial power of the Federal Dominion of Australasia shall be vested in one Supreme Court, and in such Inferior Courts as the Federal parliament may from time to time create and establish,'⁸ a provision patently modelled on article III, section 1 of the United States Constitution. Inglis Clark

acknowledged following ‘very closely the Constitution of the United States’.⁹

As Inglis Clark was the drafter most closely acquainted with United States constitutional law and history,¹⁰ it is perhaps unsurprising that there was not extensive debate about whether the separation of powers principle should be adopted on the basis that, in the words of the American federalist James Madison, ‘the accumulation of all powers, legislative, executive and judiciary, in the same hands ... may justly be pronounced the very definition of tyranny’.¹¹

Much of the subsequent debate, where it exists, concerned the importance of judicial independence rather than the separation of judicial power per se, a related but not identical principle. For example, debates about the ultimate formulation of section 71 (the final home for the vesting of judicial power), and in particular whether the Constitution itself or an Act of Parliament would vest jurisdiction in the High Court, elicited consensus as to the fundamental importance of judicial independence.¹² But there is no equivalent of Madison’s poetic invocation of Montesquieu in the Australian Convention debates.¹³

It has thus been argued—most prominently by John Finnis¹⁴ and later by Fiona Wheeler¹⁵—that ‘the primary historical material simply does not support the conclusion that the framers expressly intended to adopt, as a principle of their Constitution, a doctrine of separation of powers’.¹⁶ An alternative view, however, emerges from some contemporaneous commentary. Writing in 1901, Quick and Garran maintained that judicial power ‘is distinct from both the legislative and the executive powers’,¹⁷ and that:

This Constitution vests the legislative, executive and judicial powers respectively in distinct organs; and, though no specific definition of these powers is attempted, it is conceived that the distinction is peremptory, and that any clear invasion of judicial functions by the executive or by the legislature, or any allotment to the judiciary of executive or legislative functions, would be ... unconstitutional.¹⁸

It is thus difficult to conclude whether the scant attention¹⁹ paid to the principle reflects ignorance, ambivalence. or consensus on uncontroversial common ground.²⁰

C. DEVELOPMENT OF THE DOCTRINE: HISTORY, RATIONALE, AND UNDERLYING PRINCIPLES

Regardless of the merits of an argument reliant on original intent, from very early on one element of the separation of judicial power was clearly assumed: that judicial power could not be vested in a non-Chapter III court. In *Huddart Parker* in 1909 Griffith CJ stated that since section 71 provides that the judicial power of the Commonwealth shall be vested in a High Court and such other federal courts the Parliament creates, or invests with federal jurisdiction, it ‘follows that Parliament has no power to entrust the exercise of judicial power to any other hands’.²¹

This, the ‘first limb’ of the separation of judicial power principle, was reaffirmed six years later in the *Wheat Case*, in which the Court considered the Parliament’s conferral of judicial power on the Inter-State Commission, which was not a Chapter III court. Griffith CJ again held that ‘the provisions of sec. 71 are complete and exclusive, and there cannot be a third class of Courts which are neither federal Courts nor State Courts invested with federal jurisdiction’.²² Isaacs J’s judgment in that case proved important for the future development of the doctrine.²³ Isaacs J identified the ‘fundamental principle of the separation of powers as marked out in the Australian Constitution’,²⁴ observing that the structure of the Constitution with its conferral of distinct powers in distinct organs indicates that it has ‘delimited with scrupulous care, the three great branches of government’,²⁵ such that ‘very explicit and unmistakable words’ would be required to ‘undo the effect of the dominant principle of demarcation’.²⁶ Isaacs’ judgment has been described as ‘seminal’, providing ‘the major premise for almost every significant development in the law of separation of powers’.²⁷

In *Alexander’s* case some years later the Court again applied the ‘first limb’, finding that judicial power—in that case the power to enforce awards created in exercise of the conciliation and arbitration power—could not be reposed in a ‘court’ not constituted in compliance with section 72 of the Constitution (in Chapter III).²⁸ Again, Isaacs J provided the most detailed reflection on underlying principle, linking the separation of judicial power with the imperative of federalism by observing that section 72 ‘is one of the strongest guarantees in the Constitution for the security of the States’,²⁹

because the Constitution places ‘the whole fate of the State Constitutions, where they compete with the Federal Constitution, in the hands of the High Court’.³⁰

In 1921 in *In re The Judiciary Act*³¹ the Court began to explore a corollary principle: the implications of the separation of judicial power principle for the powers exercisable by Chapter III courts. The Court observed that the Constitution ‘is based upon a separation of the functions of government’,³² and held that the ‘express statement of the matters in respect of which and the Courts by which the judicial power of the Commonwealth may be exercised is ... clearly intended as a delimitation of the whole of the original jurisdiction which may be exercised under the judicial power of the Commonwealth, and as a necessary exclusion of any other exercise of original jurisdictions’.³³ While the specific finding in that case was that the Parliament lacked authority to vest an advisory jurisdiction in the High Court,³⁴ the reasoning suggested that the separation of powers principle had implications for the scope of powers that may be conferred on federal courts. Thus, the later decision in *Boilermakers*—widely understood to be the definitive identification and application of the separation of judicial power principle and its ‘second limb’—did not emerge from a vacuum.³⁵

Boilermakers considered whether the Parliament had the power to confer on the Court of Conciliation and Arbitration—a Chapter III court—both judicial *and* non-judicial power. The majority³⁶ considered that the separation of judicial power principle encompassed two, distinct,³⁷ principles: that the Parliament cannot confer judicial power on a non-Chapter III court (‘the first limb’); and, that the Parliament cannot confer non-judicial power on a Chapter III court (‘the second limb’). In establishing the ‘second limb’ the Court emphasized: (a) the exhaustive nature of the Chapter III text;³⁸ (b) the structure of the Constitution; and (c) the federal nature of the Constitution. It is in *Boilermakers* that the Court most eloquently explained the structural argument, stating:

If you knew nothing of the history of the separation of powers, if you made no comparison of the American instrument of government with ours, if you were unaware of the interpretation it had received before our Constitution was framed according to the same plan, you would still feel the strength of the logical inferences from Chaps. I, II and III and the form and contents of ss. 1, 61 and 71. It would be difficult to treat it as a mere draftsman’s arrangement.³⁹

Invocation of the powerful influence of the United States constitutional structure was supplemented by reference to United States jurisprudence on the ‘impossibility of mixing judicial and non-judicial functions’.⁴⁰

The federal argument was explained in a manner reminiscent of Justice Isaacs:

upon the [federal] judicature rested the ultimate responsibility for the maintenance and enforcement of the boundaries within which governmental power might be exercised and upon that the whole system was constructed.⁴¹

Accordingly, the ‘powers of the federal judicature must therefore be at once paramount and limited’.⁴² It was imperative that Chapter III courts be independent and impartial to carry out the function of apportioning federal power and responsibility.

Boilermakers was decided by a narrow four to three majority,⁴³ with three separate dissenting judgments. While the dissenting judges readily accepted the first limb,⁴⁴ they rejected the second. Justice Williams’ dissent was the most comprehensive and based on the following factors: (a) the difficulties that the principle of the separation of powers had created in the United States;⁴⁵ (b) the inconvenience of adopting the second limb;⁴⁶ (c) the view that it was British rather than American traditions that should guide interpretation,⁴⁷ particularly since the separation between the legislative and executive branches is incomplete in the Australian Constitution;⁴⁸ (d) the view that the structure of the Constitution was a product of convenience not high principle;⁴⁹ and (e) that there was no High Court precedent for the second limb.⁵⁰ It also rested on the view that there was ‘no harm’ or incompatibility⁵¹ in conferring a mix of powers upon the judicial branch. It is interesting that the concept of *incompatibility* was invoked at this early stage given its more recent prominence.⁵²

The Privy Council emphatically affirmed the decision in a unanimous judgment that largely adopted the reasoning of the High Court majority.⁵³ The Privy Council relied in particular on the United States influence on the form of the Australian Constitution,⁵⁴ and the logical imperative of the ‘bare structure’,⁵⁵ doubting whether ‘had Locke and Montesquieu never lived nor the Constitution of the United States ever been framed, a different

interpretation of the Constitution of the Commonwealth could validly have been reached'.⁵⁶

D. THE CONSEQUENCES OF *BOILERMAKERS*

Boilermakers solidified the two limbs of the separation of judicial power doctrine. The first limb prohibits both the executive and legislative branches from exercising judicial power. Hence, it requires a distinction between administrative tribunals and Chapter III courts, limits the executive's ability to detain, and prohibits legislative usurpation of judicial processes or functions. A notable exception has been the ability of military tribunals to exercise powers akin to judicial power.

The second limb restricts the functions and powers that may be conferred on federal courts, and precludes such courts from exercising a purely advisory or declaratory jurisdiction,⁵⁷ exercising jurisdiction conferred by State Parliaments in a 'cross-vesting' scheme,⁵⁸ or exercising jurisdiction that is otherwise not judicial in nature,⁵⁹ and undertaking merits review since it is not the role of any federal court to 'carry out the executive function of administration or the legislative function of determining policy'.⁶⁰ A notable exception is the concept of *persona designata* which permits reposing non-judicial power in a Chapter III judge provided the power is conferred on the judge and not the court, the judge assents to conferral, and the power is not incompatible with the exercise of federal judicial power.⁶¹

The High Court's decision in *Boilermakers* has received criticism, particularly in relation to the second limb.⁶² The most infamous curial criticism was Barwick CJ's in *R v Joske*. There, his Honour lamented that *Boilermakers* 'leads to excessive subtlety and technicality in the operation of the Constitution without, in my opinion, any compensating benefit'.⁶³ In his Honour's view, *Boilermakers*' 'principal conclusion ... was unnecessary ... for the effective working of the Australian Constitution or for the maintenance of the separation of the judicial power of the Commonwealth or for the protection of the independence of courts exercising that power'.⁶⁴

The dominant criticism focuses on the inconvenience flowing particularly from the second limb. The ability of one body to both

adjudicate and enforce administrative decisions or awards is conducive to efficient justice.⁶⁵ The convenience argument is not new: it was raised in *Alexanders' Case*, but met with a principled riposte from Issacs and Rich JJ who stated that 'the suggested inconvenience sinks into insignificance when the greater considerations are borne in mind.'⁶⁶ In practice, however, this line of criticism has been somewhat countered by the High Court's flexibility in relation to the definition of judicial power and the willingness to accept exceptions to the general principle.⁶⁷ Four factors are significant.

First, the Court has flexibly defined judicial power, preventing the stultifying effect of a strict definition. The Court has consistently appreciated the 'difficulty, if not impossibility, of framing a definition of judicial power that is at once exclusive and exhaustive'.⁶⁸ As Saunders notes, the identification of judicial power 'is difficult at the margin and the margin may be broad'.⁶⁹ Nonetheless the Court has attempted to articulate guiding objective criteria. In 1909 Griffith CJ proffered a definition that is a frequently cited starting point, although an incomplete guide:⁷⁰

the power which every sovereign authority must of necessity have to decide controversies between its subjects, or between itself and its subjects, whether the rights relate to life, liberty or property. The exercise of this power does not begin until some tribunal which has power to give a binding and authoritative decision (whether subject to appeal or not) is called upon to take action.⁷¹

Other core indicia of judicial power can be added. For instance, it has long been understood that the 'punishment of criminal offences and the trial of actions for breach of contract and for wrongs are inalienable exercises of judicial power'.⁷²

Second, further flexibility is provided by the Court's reliance on historical practice to found exceptions to the principle of the separation of judicial power. A notable exception is the power traditionally exercised by the military to discipline military personnel by conducting trials and providing for punishment following conviction. Although the adjudication and punishment of criminal acts is a classic judicial power, the High Court has held that the exercise of such power by a military tribunal does not violate the separation of powers principle even though military tribunals are not Chapter III courts.⁷³ As explained in *White*:

To the judicial system for the determination of criminal guilt ... there was the well-recognised exception for legislatively based military and naval justice systems of the kind which the Supreme Court of the United States had recognised in 1857 and which applied in the Australian colonies at federation.⁷⁴

In addition to longstanding Australian practice, also significant was the fact that the ‘history of statutory regulation of naval and military discipline can be traced in Britain to at least the seventeenth century’.⁷⁵

Historical practice has been significant in other contexts. For example, in considering whether the power conferred on a federal court to issue a ‘control order’ restricting freedom of movement falling short of detention was non-judicial, the Court relied, in part, on an analogy between that power and powers historically enjoyed by courts. Although the power to ‘create new rights and obligations’ is often a strong indicator of *non-judicial* power,⁷⁶ as has long been recognized in United States jurisprudence,⁷⁷ in *Thomas* the Court found that obligation-creating control orders were analogous to bail and apprehended violence orders—both ‘familiar examples of the judicial exercise of power to create new rights and obligations’.⁷⁸ The origins of apprehended violence orders could be traced to the ‘ancient power of justices and judges to bind persons over to keep the peace’.⁷⁹ Hence the Court found that to ‘decide that such powers are exclusively within the province of the executive branch of government would be contrary to our legal history’.⁸⁰

Third, some flexibility is provided by the ‘so-called chameleon doctrine’,⁸¹ whereby ‘a power or function takes its character as judicial or administrative from the nature of the body in which the Parliament has located it’.⁸² This is not an exclusive test,⁸³ however, the nature of the body or person to whom a power is assigned ‘is an element in making’ a decision about the nature of the power.⁸⁴

A fourth source of flexibility is the Court’s acceptance of considerable overlap between judicial and administrative power. This has been crucial in the context of federal administrative tribunals whose processes and functions often resemble those of judicial bodies. The Court has acknowledged that whilst ‘the finding of facts and the making of value judgments, even the formation of an opinion as to the legal rights and obligations of parties, are common ingredients in the exercise of judicial power, they may also be elements in the exercise of administrative and

legislative power’.⁸⁵ The Court has thus held that functions ‘may be classified as either judicial or administrative according to the way in which they are to be exercised’.⁸⁶ Where, for example, a decision-making function is reposed in a tribunal and ‘considerations of policy have an important role to play in the determination to be made by the tribunal’,⁸⁷ the High Court has been willing to accept that the tribunal is not exercising judicial power.⁸⁸ Even where policy considerations are irrelevant, for example, in the case of tribunals with the power to adjudicate whether a person has infringed legislative prohibitions such as anti-discrimination norms by determining ‘rights and duties based upon existing facts and the law’,⁸⁹ the Court has upheld validity.⁹⁰ This flexibility has enabled the Commonwealth to harness the potential of administrative tribunals as high quality, accessible, administrative decision-making bodies. Still, the Court’s insistence that enforceability is one of the few bright line indicia of judicial power⁹¹ means that the utility of such tribunals is hampered by an inability to directly enforce decisions, supporting concerns about the inconvenience of the *Boilermakers* doctrine.

In any event, there can be no question that the moment for any reversal of the doctrine ‘has passed ... and the two limbs of the *Boilermakers*’ Case are now firmly entrenched, by precedent and by institutional practices’.⁹² As Justice Hayne emphasized in *Thomas v Mowbray*, the separation of powers principle has been established ‘beyond argument’.⁹³

The fact that the doctrine is unlikely to be overturned does not make it any less necessary to consider the doctrine’s underlying rationales. Stellios observes that the Court has not always explained the separation of powers doctrine by reference to an underlying theory and that even when theoretical accounts have been offered, the Court has lacked a consistent voice.⁹⁴ Several rationales can be identified.

Most fundamentally, the separation of judicial power principle is informed by the principle of institutional independence. As mentioned above, much of the Convention debates concerning what is now Chapter III focused on the importance of judicial independence, a point emphasized in early doctrinal development. Judicial independence is an important principle in its own right, but also closely linked to another fundamental principle—federalism, and the need to secure an independent judicial body

to adjudicate the allocation of federal power. Another principle that has received more recent prominence has been described as ‘liberty protecting’.⁹⁵ However, it is one thing to set out neat and logical rationales for the principle and another to implement them. Rationales have emerged or evolved over time, and invoking the same rationale has sometimes led to divergent applications.

This can be seen in the application of the liberty-protecting rationale to cases involving the deprivation of liberty without trial by state and federal courts. These cases are not ultimately about whether a power *can* be exercised but whether *the Court* can do so. One application of the principle is that the Court’s exercise of the powers is liberty-protecting, at least relative to its exercise by another branch. As Gleeson CJ said in *Thomas*, responding to the argument that it was for the executive not the Court to exercise the power to issue liberty-restraining control orders, ‘[t]he advantages, in terms of protecting human rights, of such a conclusion are not self-evident’. Rather a finding that the powers were judicial ‘would constitute an advance in the protection of human rights’.⁹⁶ Similarly, in *Fardon*,⁹⁷ which concerned Queensland legislation empowering the Supreme Court to order continuing detention of prisoners after expiry of their sentence, the Chief Justice observed that ‘it might be thought surprising that there would be an objection to having detention decided upon by a court, whose proceedings are in public, and whose decisions are subject to appeal, rather than by executive decision’.⁹⁸ Yet the liberty-protection rationale can be framed in inverse terms: the Court’s exercise of certain powers may impact the Court’s independence and partiality, which is liberty-destructive. In *Thomas*, Kirby J issued a strongly worded dissent emphasizing that the ultimate rationale is the maintenance of independent and impartial courts, which is protective of all secondary principles, including human rights.⁹⁹ His Honour lamented that failure to respect this core principle has ‘grave’ consequences for ‘individual liberty’, and to do so in the face of contemporary dangers from terrorism, ‘would deliver to terrorists successes that their own acts could never secure in Australia’.¹⁰⁰

The next two sections analyse these underlying rationales in light of challenges posed by controversial applications of the separation of powers principle in contemporary jurisprudence.

E. THE SEPARATION OF JUDICIAL POWER AND THE PROTECTION OF INDIVIDUAL RIGHTS

The liberty-protecting rationale has received much contemporary prominence.¹⁰¹ The protection of liberty is a particularly important function in a constitutional system with no Bill of Rights.¹⁰² As stated by Bell J in *M68*, ‘the object of that separation [of judicial power] is the protection of individual liberty’.¹⁰³ The jurisprudential emergence of this rationale can be traced as far back as 1909,¹⁰⁴ and is claimed to have earlier antecedents. In the words of Deane J in *Polyukhovich*:¹⁰⁵

[t]he main objective of the sometimes inconvenient separation of judicial from executive and legislative powers had long been recognized at the time of the federation. It is to ensure that ‘the life, liberty and property of the subject is not in the hands of arbitrary judges, whose decisions are then regulated by their own opinions and not by any fundamental principles of law’.

Deane J cited Blackstone, but may just as easily have been inspired by James Madison’s insistence that separation was essential to avoid ‘tyranny’.

The protection of individual liberty is said to require an independent and impartial judiciary so that fundamental interests cannot be abrogated except by a fair and impartial judicial procedure. Accordingly, the separation of judicial power principle has evolved to fill, at least to a limited extent, the void left by the drafters’ rejection of an explicit due process clause.¹⁰⁶ One important method of achieving this objective is ensuring that the other branches—especially the legislature—do not interfere with or usurp judicial power. Hence legislation may not interfere with the ‘judicial process itself’.¹⁰⁷ The Privy Council’s decision in *Liyanage*—a case concerning legislation which ‘attempted to circumscribe the judicial process on the trial of particular prisoners ... and to affect the way in which judicial discretion as to sentence was to be exercised’¹⁰⁸—is often cited as a classic case in point. Parliament may exercise considerable control over procedural issues such as the rules of evidence,¹⁰⁹ or the ‘standard or burden of proof’,¹¹⁰ and even prescribe mandatory minimum terms of imprisonment,¹¹¹ but it ‘cannot direct the court as to the judgment or order which it might make in an exercise of a jurisdiction conferred upon it’.¹¹²

A challenging and controversial issue in recent decades has been the potential of the separation of judicial power principle to constrain the

Parliament's ability to confer the power to detain on the executive branch. That the key cases have involved the mandatory and indefinite detention of asylum seekers and refugees, including in offshore detention centres funded by Australia, has given the issue particular prominence. Moreover, the fact that personal liberty is considered 'the most basic' of the human rights and freedoms recognized and protected by the common law,¹¹³ and that international human rights bodies have frequently found Australia's scheme of immigration detention to constitute arbitrary deprivation of liberty in certain contexts,¹¹⁴ suggests there can hardly be a more appropriate means by which to test Chapter III's liberty-protecting capacity.

When mandatory immigration detention was introduced in the early 1990s its constitutionality was immediately challenged by thirty-six Cambodian asylum seekers who had arrived in Australia by boat without prior authorization and were detained by the executive pending the assessment of their refugee claims. In adjudicating their claim that the legislative provisions authorizing their executive detention improperly conferred judicial power on the executive, the Court elucidated an aspirational view of Chapter III that suggests significant potential as a source of liberty. In the key judgment, Brennan, Deane, and Dawson JJ explained that the most important exclusively judicial function is 'the adjudgment and punishment of criminal guilt under a law of the Commonwealth'.¹¹⁵ From this followed the principle that, subject to limited exceptions, 'the citizens of this country enjoy, at least in times of peace, a constitutional immunity from being imprisoned by Commonwealth authority except pursuant to an order by a court in the exercise of the judicial power of the Commonwealth'.¹¹⁶

However, the term *citizens* was pivotal. The converse principle was that the status, rights, and immunities enjoyed by an alien (non-citizen) are substantially different from those enjoyed by a citizen. Most importantly, the alien is vulnerable 'to exclusion or deportation'.¹¹⁷ The Court held that the Commonwealth Parliament's power to legislate with respect to 'aliens' 'encompasses the conferral upon the Executive of authority to detain ... an alien in custody for the purposes of expulsion or deportation',¹¹⁸ and that such power constitutes 'an incident of ... executive power'.¹¹⁹

However, the Court was careful to emphasize that the legislature's ability to confer such executive power was 'limited to what is reasonably capable

of being seen as necessary for the purposes of deportation or necessary to enable an application for an entry permit to be made and considered'.¹²⁰ If the detention authorized were not so limited, it would 'be of a punitive nature' and contravene the first limb of the *Boilermakers* principle.¹²¹ In concluding that the provisions in *Lim* were appropriately limited, the Court emphasized two factors: (a) that the legislation prescribed a maximum total period of 273 days of detention; and (b) that a detainee could request removal from Australia and hence 'it always lies within the power of a designated person to bring his or her detention in custody to an end'.¹²² The fact that designated persons were likely to be refugees—and hence to fear persecution in their own country—was not considered to detract from the relevance of the removal option.

A decade later the Court revisited the central reasoning in *Lim* in *Al-Kateb*, which considered the ongoing detention of a stateless Palestinian man who had been found not to be a refugee and could not be released from detention on a protection visa. Mr Al-Kateb potentially faced permanent detention: the *Migration Act* had been amended since *Lim* so that detention was no longer time limited, and Mr Al-Kateb's statelessness meant that he could not bring his detention to an end by 'requesting to be removed from Australia' (no country being required to admit a stateless person).¹²³ Hence his challenge squarely tested Chapter III's ability to deliver concrete rather than aspirational protection.

His challenge was rejected by a narrow four to three majority, though one of the majority judges acknowledged his 'tragic' position.¹²⁴ The crucial step in *Al-Kateb* was to move away from the insistence in *Lim* that executive detention be 'limited to what is reasonably capable of being seen as necessary' for the purposes of deportation or procession. Indeed, the *Al-Kateb* majority explicitly rejected approaches implying judicial restraint on legislative powers, such as tests requiring that laws authorizing detention be 'appropriate and adapted', 'reasonably necessary', or 'reasonably capable of being seen as necessary' for the purpose of deportation or processing.¹²⁵

Instead, the Court adopted a more deferential test focused squarely on the *purpose* of detention.¹²⁶ Since in this case the detention's purpose was to ensure that non-citizens 'do not enter Australia or the Australian community' and can be deported when, and if, it is practicable to do so,¹²⁷ it was 'non-punitive' and hence did not infringe Chapter III.¹²⁸

Contemporaneous decisions rejecting constitutional challenges to the detention of non-citizen children,¹²⁹ and to immigration detention on the basis of harsh conditions or conditions which could give rise to criminal or civil claims,¹³⁰ further clarified that it is the *purpose* of the detention scheme which is pivotal, not the scheme's impact, nor whether it is reasonably capable of being seen to be necessary for relevant purposes. Accordingly, these cases fundamentally called into question any claim that Chapter III acts as a protector of individual rights.¹³¹

However, more recent decisions suggest that the potential of Chapter III to operate as a meaningful constraint on the continuing practice of mandatory immigration detention has not yet been exhausted. The Court has not formally overruled *Al-Kateb*,¹³² nor been required to reconsider whether mandatory detention is unconstitutional.¹³³ However, in a series of cases concerning challenges to aspects of the Commonwealth's immigration detention policy, including detention for the purpose of assessing claims in a so-called non-statutory scheme on Christmas Island,¹³⁴ detention of recognized refugees on security grounds,¹³⁵ detention on a vessel outside Australia's territorial waters,¹³⁶ and detention in an offshore processing centre operated by a sovereign nation at Australia's request,¹³⁷ the Court has emphasized that the *Migration Act* 'does not authorise detention at the unconstrained discretion of the Executive'.¹³⁸

In the most recent cases the Court has embraced the reasoning of *Lim* anew, emphasizing that the power of the executive to detain 'is limited by the purpose of the detention and exists only so long as is reasonably necessary to effect [that purpose]',¹³⁹ sometimes bypassing reference to *Al-Kateb* altogether.¹⁴⁰ And some members of the Court have further clarified the reasoning in *Lim*, with Crennan, Bell, and Gageler JJ explaining in *M76* the necessity referred to in the *Lim* test imports a temporal limit: it is 'not that detention *itself* be necessary for the purposes of the identified administrative processes but that the *period* of detention be limited to the time necessarily taken in administrative processes directed to the limited purposes identified'.¹⁴¹ Hence, the 'temporal limits and the limited purposes are connected such that the power to detain is not unconstrained'.¹⁴² Indeed, what 'begins as lawful custody under a valid statutory provision can cease to be so'.¹⁴³ Further, it has been suggested that

the duration of the detention must be ‘capable of objective determination by a court at any time and from time to time’.¹⁴⁴

This indicates a greater willingness on the part of the Court to scrutinize the basis, purpose, and ongoing legality of instances of immigration detention and suggests the possibility that some manifestations of the system of mandatory indefinite immigration detention may yet be found to be unconstitutional¹⁴⁵ in an inevitable future challenge. There may yet be promise in Chapter III’s capacity to act as a protector of this most fundamental of liberties.

F. THE SEPARATION OF JUDICIAL POWER AND FEDERALISM

The separation of powers principle has never been applied strictly at the *State* level.¹⁴⁶ It is clear that the arguments from text and structure¹⁴⁷ and the imperatives of federalism that were decisive in *Boilermakers*, cannot be applied by analogy to the interpretation of State Constitutions.¹⁴⁸ Although the federal Parliament has always enjoyed the ability to confer federal jurisdiction on State courts pursuant to section 77(iii) of the Constitution, received wisdom was that when vesting federal jurisdiction, the Commonwealth Parliament must ‘take the State court as it finds it’.¹⁴⁹ However, that position was radically transformed by the 1996 *Kable* decision.

The legislation struck down in *Kable* was extreme. The *Community Protection Act* was enacted by the New South Wales Parliament for a single purpose: to ensure that Gregory Wayne Kable—a man who had been convicted of the manslaughter of his wife and was considered to represent a continuing threat to the safety of his children—remained in custody at the expiration of his sentence of imprisonment. It provided that the DPP could apply to the Supreme Court for an order that a specific person be detained in prison for six months if the court was satisfied that the person was likely to commit a serious act of violence and that detention was appropriate for protection of the community.¹⁵⁰ However, the Act only authorized the making of a detention order ‘against Gregory Wayne Kable’ and not against any other person.¹⁵¹

The legislation could not have been enacted validly by the Commonwealth since it involved ‘the Supreme Court in the exercise of non-judicial functions’.¹⁵² Yet settled wisdom was that Chapter III did not directly apply to State Parliaments. In *Kable*, the Court did not overturn this position. Rather, it fashioned a *sui generis* principle; namely, that ‘no government can act in a way that might undermine public confidence in the impartial administration of the judicial functions of State courts’.¹⁵³ The novelty and potentially wide application of the principle has ensured *Kable*’s status as the most influential Chapter III judgment since *Boilermakers*.

The Court based its reasoning on the place of State courts within the Commonwealth Constitution, observing that the ‘working of the Constitution requires and implies the continued existence of a system of State courts with a Supreme Court at the head of the judicial system’.¹⁵⁴ This is because the Constitution requires State courts to be available as a repository of federal jurisdiction, and implies their continued existence by giving a right of appeal from State Supreme Courts to the High Court. Further, the fact that, unlike the United States, Australia has a ‘unified common law’,¹⁵⁵ means that State courts exercising State judicial power ‘cannot be regarded as institutions ... independent of the administration of the law’ by Chapter III courts.¹⁵⁶ Rather, they are ‘part of an integrated system of State and federal courts and organs for the exercise of federal judicial power as well as State judicial power’.¹⁵⁷ Most significant in the chain of reasoning was that the Constitution does not permit ‘two grades of federal judicial power’.¹⁵⁸ Since judicial independence is a ‘basic principle’, State courts ‘must also be, and be perceived to be, independent of the legislature and executive government in the exercise of federal jurisdiction’.¹⁵⁹ This is the case irrespective of whether the State court is in fact exercising federal jurisdiction.¹⁶⁰ In *Kable*, the legislation violated the principle because it made ‘the Supreme Court the instrument of a legislative plan, initiated by the executive government, to imprison the appellant by a process that is far removed from’ ordinary judicial process.¹⁶¹ The majority highlighted the scheme’s *ad hominem* nature¹⁶² and the requirement of prospective risk assessment, which required ‘a guess ... whether, on the balance of probabilities, the appellant will commit an offence’.¹⁶³

It was the need to maintain *public confidence* in the independence of the judiciary that was given most prominence in *Kable*.¹⁶⁴ This rationale runs through the key majority judgments, which emphasized that State courts cannot be conferred non-judicial powers where:¹⁶⁵

the vesting of those functions or duties might lead ordinary reasonable members of the public to conclude that the State court as an institution was not free of government influence in administering the judicial functions invested in the court.

This line of reasoning was inspired by the United States Supreme Court's reasoning in *Mistretta*, which emphasized that the reputation of the judicial branch may not be borrowed by the legislative and executive branches 'to cloak their work in the neutral colors of judicial action'.¹⁶⁶

The *Kable* doctrine was revolutionary and, unsurprisingly, heavily criticized.¹⁶⁷ Yet it initially appeared that the principle might end up a 'dead letter',¹⁶⁸ as few challenges to the validity of State legislation were successful on *Kable* grounds. A decade later, McHugh J opined that the *Kable* decision was of 'very limited application', as it concerned legislation 'almost unique in the history of Australia'.¹⁶⁹

However, the *Kable* doctrine has undergone a revival in recent years both in principle and application. The key move has been to reconceive the principle as a question of institutional integrity rather than public confidence. As the Court emphasized in *NAAJAL*, public confidence 'is an indicator, but not the touchstone of invalidity; the touchstone of invalidity concerns institutional integrity'.¹⁷⁰ This is partly an attempt to anchor the *Kable* reasoning more firmly in the Constitution text, in particular, the references to State courts in Chapter III of the Constitution. It follows from these references that those courts must continue to answer the description of 'courts'. This requires elaborating the 'minimum requirements' necessary to answer that description. The *Kable* principle, by preventing States conferring powers which would deprive courts of those 'minimum requirements',¹⁷¹ is thus a 'stable principle, founded on the text of the Constitution'.¹⁷²

The touchstone requirement is 'institutional integrity';¹⁷³ that is, the 'possession of the defining or essential characteristics of a court including the reality and appearance of its independence and its impartiality'.¹⁷⁴ One

such characteristic is the ‘decisional independence’ of a State court.¹⁷⁵ Hence, legislation has been held invalid where it confines a court’s adjudicative process ‘so that the court is directed or required to implement legislative or executive determinations without following ordinary judicial processes’.¹⁷⁶ Other characteristics are the application of ‘procedural fairness’, general adherence ‘to the open court principle’, and the giving of reasons.¹⁷⁷ Accordingly State legislation interfering with a State court’s ability to apply the principles of procedural fairness has been held invalid.¹⁷⁸ So too has legislation permitting a State judge to act *persona designata* and make significant decisions without the requirement to give reasons.¹⁷⁹

One method of determining whether a particular provision undermines the touchstone requirements of independence and impartiality has been to examine historical practice.¹⁸⁰ For example, the fact that State legislation before and since federation empowered the Governor of a State to appoint acting judges to State Supreme Courts shaped the Court’s conclusion that such a practice does not alone ‘deprive the body of the character of a court, or the capacity to satisfy the minimum requirements of judicial independence’.¹⁸¹ Similarly, the fact that it was accepted at federation ‘that the jurisdiction of the colonial Supreme Courts to grant certiorari for jurisdictional error was not denied by a statutory privative provision’,¹⁸² was instrumental in the Court’s reasoning that the supervisory role of the Supreme Courts ‘was, and is, a defining characteristic of those courts’¹⁸³ and that a State legislature may not exclude ‘any class of official decision, made under a law of the State, from judicial review for jurisdictional error by the Supreme Court of the State’.¹⁸⁴ However, the reliance on historical methodology does not necessarily mean that the defining characteristics of a court were fixed at 1900’,¹⁸⁵ nor that historical practice is dispositive in every case.¹⁸⁶ Indeed, the Court’s understanding of when legislation will impede impartiality has clearly evolved, as exemplified by the Court’s application of the *persona designata* doctrine to State judicial officers.¹⁸⁷

The *Kable* doctrine has excited significant debate, that may be distilled into three critiques which focus on legitimacy, rule of law, and federalism.

Since the legitimacy critique focuses on the cogency of the constitutional reasoning in *Kable*, it goes to questions of constitutional interpretation and

the appropriate scope for judicial creativity, and is thus beyond the scope of this chapter to resolve.¹⁸⁸ However, it can be observed that the particularly robust critique of the public confidence rationale has been to some extent superseded by the Court's recent focus on text and structure.

The related rule of law critique focusses on the implications of a doctrine whose elements are unashamedly indeterminate.¹⁸⁹ The Court has continually acknowledged the 'impossibility of making an exhaustive statement of the minimum characteristics of such an independent and impartial tribunal'.¹⁹⁰ Indeed it has emphasized that it 'is neither possible nor profitable to attempt to make some single all-embracing statement of the defining characteristics of a court',¹⁹¹ and that the doctrine is 'not framed in terms apt to dictate future outcomes'.¹⁹² However, the sharper focus on text and minimum requirements has increased clarity as to the core attributes of a State court: independence, impartiality, procedural fairness, and openness.¹⁹³ Further, it is important to distinguish between indeterminacy in a doctrine's elements and its application. As Stellios argues, the potential for curial differences in evaluating whether the core attributes have been compromised 'is no more or less than in any other area of constitutional law'.¹⁹⁴

The federalism critique relates to what Stellios calls the 'federation enhancing' justification of the separation of powers principle.¹⁹⁵ Heydon J has opined that *Kable* 'cut into that concept of the Australian federation by reducing the legislative freedom of the States',¹⁹⁶ and diversity within the federation.¹⁹⁷ However, this debate may be less about the underlying objectives of the Australian Constitution than the *weight* to be given to different objectives. Application of the *Kable* doctrine has remained attentive to federal diversity concerns, and the possibility that its application may encourage 'institutional uniformity on State judicial systems'.¹⁹⁸ However, the doctrine necessarily implicates other constitutional imperatives, with which federal concerns must be balanced. Gaudron J's insistence that there cannot be 'different grades or qualities of justice, depending on whether judicial power is exercised by State courts or federal courts created by the Parliament',¹⁹⁹ suggests that the federalist imperative, whilst significant, may be subject to the overriding imperative of judicial independence and integrity.

One of the most important consequences of *Kable* is that it has ensured greater equality of standards between State and federal courts, and prevented federal and State Parliaments from utilizing State courts as a method of circumventing Chapter III standards. Indeed, Heydon J acknowledged in an earlier decision that notwithstanding the federal critique of *Kable*, ‘there is no doubt that the decision has had extremely beneficial effects’,²⁰⁰ including the protection of rights such as liberty and property.²⁰¹ Indeed, one element of the minimum requirements, the hearing rule, was described as respecting ‘human dignity and individuality’²⁰² and ‘political liberty’.²⁰³ Such tensions between fundamental, sometimes competing, underlying principles are inherent in Australia’s constitutional system.²⁰⁴

In any event, it is clear that the *Kable* doctrine is entrenched. This does not mean that the distinction between State and federal courts has been obliterated. In *Kable*, Gaudron J reassured State legislatures that the effect of the *Kable* doctrine ‘is not at all comparable’ with the effect of the *Boilermakers* principle.²⁰⁵ Indeed, the Court has steadfastly insisted that State legislatures are not constrained by the federal separation of powers principle.²⁰⁶ For example, the ability to institute a ‘dialogue’ model of human rights, whilst unavailable at the federal level,²⁰⁷ has been upheld at the State level.²⁰⁸ In addition, since the *Kable* doctrine is solely concerned with the powers and constitution of State courts, it does not prevent the legislature or executive at State level acting in ways that would be held invalid at the federal level.²⁰⁹ Arguably the decision in *NAAJAL* is one such case. As Keane J explained, the *Kable* principle ‘depends on the effect of the law upon the functioning of the courts’,²¹⁰ whereas the provision at issue in *NAAJAL* invested a power in the executive government of the Northern Territory.²¹¹

G. THE FUTURE OF THE SEPARATION OF JUDICIAL POWER DOCTRINE

This chapter has revealed that notwithstanding a lack of consensus as to the drafters’ intentions, the principle of the separation of judicial power is well entrenched and has produced a rich, far-reaching, and evolving jurisprudence. Moreover, the principle is now understood to have

implications not only for the federal distribution of judicial power, but also for the ability of State and federal Parliaments to confer certain powers on State courts. Indeed, it is the evolving relationship between the *Boilermakers* principle and *Kable* doctrine that is likely to produce the most interesting future developments.

The outer limits of the *Kable* doctrine and its implications have likely not yet been reached, and one fertile area for continued development will be the extent to which the Court will draw upon principles developed in Chapter III jurisprudence to elucidate the limits of the *Kable* doctrine. Further, it remains to be seen whether there is room for evolution in the *Boilermakers* principle. Some have argued for an abolition of the incompatibility test,²¹² whilst others have suggested that the *Boilermakers* test should be replaced with an incompatibility test.²¹³ Such a move would refocus attention away from the somewhat arid classification of functions required of attempts to pin down the precise nature of judicial power,²¹⁴ and towards a more purposive consideration of the policy and reasons for the separation of powers.²¹⁵ Given recent developments, it seems likely that there will be further convergence between *Boilermakers* and *Kable*, and that they will move ever closer to a relationship of symbiosis.

¹ *R v Kirby; Ex Parte Boilermakers' Society of Australia* (1956) 94 CLR 254.

² *Kable v Director of Public Prosecutions (NSW)* (1996) 189 CLR 51.

³ See, eg, Geoffrey Sawer, 'The Separation of Powers in Australian Federalism' (1961) 35 *Australian Law Journal* 177, 179; Fiona Wheeler, 'Separation of Powers' in Tony Blackshield, Michael Coper, and George Williams (eds), *Oxford Companion to the High Court of Australia* (OUP 2001) 1.

⁴ See *Mistretta v United States* 488 US 361 (1989).

⁵ See William Buss, 'Andrew Inglis Clark's Draft Constitution, Chapter III of the Australian Constitution, and the Assist from Article III of the Constitution of the United States' (2009) 33 *Melbourne University Law Review* 718, 726.

⁶ John Williams, *The Australian Constitution: A Documentary History* (Melbourne University Press 2005) 63, 65–79.

⁷ Ch I concerns the legislative branch with s 1 vesting legislative power in the Parliament; Ch II concerns the executive branch with s 61 conferring executive power in the Queen, exercisable by the Governor-General while Ch III concerns the judicial branch with s 71 conferring judicial power in the High court and other federal courts.

⁸ Williams (n 6) 88.

⁹ *ibid* 67.

¹⁰ See generally Gregory Craven, *Official Record of the Debates of the Australasian Federal Convention* (Legal Books 1986). However, [Wheeler, 'Separation of Powers' \(n 3\)](#) 103, concedes that Barton, Isaacs, and Higgins 'must surely have apprehended the significance of their document's adoption of the structure of the United States Constitution'. See also [Sawer \(n 3\)](#) 179.

¹¹ James Madison, 'The Federalist, 47' in Alexander Hamilton, James Madison, John Jay, and Lawrence Goldman (eds), *The Federalist Papers* (OUP 2008) 239–45.

¹² See [Buss \(n 5\)](#) 730–33. See also Fiona Wheeler, 'Original Intent and the Doctrine of the Separation of Powers in Australia' (1996) 7 *Public Law Review* 96, 100.

¹³ cf [Madison \(n 11\)](#) 240–41.

¹⁴ John M Finnis, 'Separation of Powers in the Australian Constitution: Some Preliminary Considerations' (1968) 3 *Adelaide Law Review* 159, 171–76.

¹⁵ [Wheeler, 'Original Intent and the Doctrine of the Separation of Powers in Australia' \(n 12\)](#).

¹⁶ [ibid](#) 103.

¹⁷ John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (Angus & Robertson 1901) 719.

¹⁸ [ibid](#) 720.

¹⁹ [Wheeler \(n 12\)](#) 100–02.

²⁰ For example, [Wheeler, 'Original Intent and the Doctrine of the Separation of Powers in Australia' \(n 12\)](#) 100, quotes Downer's reference to 'the very cardinal principles on which Federal Constitutions are established' in a context that points strongly to the need for the separation of judicial power.' See also [Wheeler, 'Original Intent and the Doctrine of the Separation of Powers in Australia' \(n 12\)](#) 102, 103.

²¹ *Huddart, Parker & Co Pty Ltd v Moorehead* (1909) 8 CLR 330, 355 (emphasis added).

²² *New South Wales v Commonwealth* (1915) 20 CLR 54, 62 (Griffith CJ), 106 (Powers J), 109 (Rich J) ('*Wheat Case*').

²³ [Finnis \(n 14\)](#) 164.

²⁴ *Wheat Case* ([n 22](#)) 88.

²⁵ [ibid](#) 90.

²⁶ [ibid](#) 90.

²⁷ [Finnis \(n 14\)](#) 164.

²⁸ *The Waterside Workers' Federation of Australia v JW Alexander Ltd* (1918) 25 CLR 434.

²⁹ [ibid](#) 469.

³⁰ [ibid](#).

³¹ (1921) 29 CLR 257 (Knox CJ, Gavan Duffy, Powers, Rich and Starke JJ; Higgins J dissenting).

³² [ibid](#) 264.

³³ [ibid](#) 265.

³⁴ [ibid](#) 265.

³⁵ See [ibid](#) 276–78, for discussion of previous judicial and scholarly authority, especially the judgment of Isaacs J in the *Wheat Case* ([n 22](#)).

³⁶ Dixon CJ, McTiernan, Fullagar and Kitto JJ.

³⁷ *Boilermakers* ([n 1](#)) 271 (Dixon CJ, McTiernan, Fullagar and Kitto JJ).

³⁸ [ibid](#) 272 (Dixon CJ, McTiernan, Fullagar and Kitto JJ).

³⁹ [ibid](#) 275 (Dixon CJ, McTiernan, Fullagar and Kitto JJ).

⁴⁰ [ibid](#) 297–98 (Dixon CJ, McTiernan, Fullagar and Kitto JJ).

⁴¹ [ibid](#) 276 (Dixon CJ, McTiernan, Fullagar and Kitto JJ).

- ⁴² *ibid* 268 (Dixon CJ, McTiernan, Fullagar and Kitto JJ).
- ⁴³ Sawyer ([n 3](#)) 178 argues it could equally well have been decided the other way.
- ⁴⁴ *Boilermakers* ([n 1](#)) 302 (Williams J), 338 (Taylor J).
- ⁴⁵ *ibid* 301 (Williams J).
- ⁴⁶ *ibid* 307 (Williams J).
- ⁴⁷ *ibid* 301 (Williams J).
- ⁴⁸ *ibid* 302 (Williams J).
- ⁴⁹ *ibid* 302; see also 306 where Williams J describes the separation of power principle as ‘vague’.
- ⁵⁰ *ibid* 309 (Williams J); see also 324 (Webb J), 339–41 (Taylor J).
- ⁵¹ *ibid* 309 (Williams J).
- ⁵² *ibid* 313 (Williams J). See also the Commonwealth’s arguments in the Privy Council appeal: *Attorney-General (Cth) v The Queen* (1957) 95 CLR 529, 539–42. The incompatibility test had also been relied upon in the earlier decision in *R v Federal Court of Bankruptcy; Ex parte Lowenstein* (1938) 59 CLR 556.
- ⁵³ *Attorney-General (Cth) v The Queen* (1957) 95 CLR 529.
- ⁵⁴ *ibid* 536.
- ⁵⁵ *ibid* 537.
- ⁵⁶ *ibid* 540.
- ⁵⁷ In *Momcilovic v The Queen* (2011) 245 CLR 1, the High Court held that exercising a jurisdiction to make a declaration of incompatibility where a statute cannot be interpreted consistently with a human rights charter, was not judicial in nature because it had no impact on the rights of parties in dispute. See *Momcilovic* 60 [80], 65 [89] (French CJ), 94 [178] (Gummow J), 123 [280] (Hayne J) 185 [457] (Heydon J), 222 [584] (Crennan and Kiefel JJ), 241 [661] (Bell J). It also would not constitute a ‘matter’: see *In Re Judiciary* ([n 31](#)) 266–67 (Knox CJ, Gavan Duffy, Powers, Rich and Starke JJ).
- ⁵⁸ *Re Wakim; Ex parte McNally* (1999) 198 CLR 511.
- ⁵⁹ *Thomas v Mowbray* (2007) 233 CLR 307.
- ⁶⁰ Bradley Selway, ‘The Principle Behind Common Law Judicial Review of Administrative Action: The Search Continues’ (2002) 30 Federal Law Review 217, 233. See also Patrick Keane, ‘Judicial Power and the Limits of Judicial Control’ in Peter Cane (ed), *Centenary Essays for the High Court of Australia* (LexisNexis Butterworths 2004) 295, 298.
- ⁶¹ *Wilson v Minister for Aboriginal & Torres Strait Islander Affairs* (1996) 189 CLR 1.
- ⁶² See Current Topics, ‘Judicial Powers of the Commonwealth Arbitration Court’ (1956) Australian Law Journal 623; Geoffrey Sawyer, ‘Separation of Judicial Powers in the Australian Constitution’ (1957) Public Law 198; D C Thomson, ‘The Separation of Powers Doctrine in the Commonwealth Constitution: The *Boilermakers*’ Case’ (1956–58) 2 Sydney Law Review 480, 491–92. See also Gabrielle Appleby, ‘Imperfection and Inconvenience: *Boilermakers*’ and the Separation of Judicial Power in Australia’ (2012) 31 University of Queensland Law Journal 265; James Stellios, *Zines’ the High Court and the Constitution* (6th edn, Federation Pres 2015) 218.
- ⁶³ *R v Joske; Ex parte Australian Building Construction Employees and Builders’ Labourers’ Federation* (1974) 130 CLR 87.
- ⁶⁴ *ibid* 90; see also 102 (Mason J).
- ⁶⁵ See, eg, Appleby ([n 62](#)).
- ⁶⁶ *Alexander’s Case* ([n 28](#)) 470; see also 442 (Griffith CJ).
- ⁶⁷ See *Wheeler, ‘Separation of Powers’* ([n 3](#)).
- ⁶⁸ *Precision Data Holdings Ltd v Wills* (1991) 173 CLR 167, 188.

⁶⁹ Cheryl Saunders, ‘The Separation of Powers’ in Brian Opeskin and Fiona Wheeler, *The Australian Federal Judicial System* (Melbourne University Press 2000) 14.

⁷⁰ *ibid.*

⁷¹ *Huddart Parker* (n 21) 357.

⁷² *Brandy v Human Rights & Equal Opportunity Commission* (1995) 183 CLR 245, 258 (Mason CJ, Brennan and Toohey JJ).

⁷³ See *White v Director of Military Prosecutions* (2007) 231 CLR 570, 579–80 [1]–[2] (Gleeson CJ). Although note that the relevant procedure must remain within the command structure of the armed forces and not be an independent stand-alone court: see *Lane v Morrison* (2009) 239 CLR 230.

⁷⁴ *White* (n 73) 596 [52] (Gummow, Hayne and Crennan JJ). See also *Re Tracey: Ex parte Ryan* (1989) 166 CLR 518, 564–66 (Brennan and Toohey JJ).

⁷⁵ *Haskins v Commonwealth of Australia* (2011) 244 CLR 22, 40 [39] (French CJ, Gummow, Hayne, Crennan, Kiefel and Bell JJ).

⁷⁶ *Attorney General (Cth) v Alinta Ltd* (2008) 233 CLR 542, 550 [2] (Gleeson CJ), 553–54 [14] (Gummow J).

⁷⁷ *Prentis v Atlantic Coast Line Co* (1908) 211 US 210, 226, cited in *Alinta* (n 76) 592 (Crennan and Kiefel JJ).

⁷⁸ *Thomas* (n 59) 328 [16] (Gleeson CJ).

⁷⁹ *ibid.*

⁸⁰ *ibid* 329 [17] (Gleeson CJ).

⁸¹ *Alinta* (n 76) 577 [94] (Hayne J) citing *R v Quinn; ex parte Consolidated Foods Corporation* (1977) 138 CLR 1, 8 (Jacobs J); see also 5 (Barwick CJ).

⁸² *White* (n 73) 595 [49] (Gummow, Hayne and Crennan JJ).

⁸³ But see *ibid* 616–17 [123]–[126] (Kirby J).

⁸⁴ *R v Quinn; ex parte Consolidated Foods Corporation* (1977) 138 CLR 1, 5 (Barwick CJ). See also Hayne J in *Thomas* (n 59) 463 [462] citing *R v Spicer; Ex parte Australian builders’ Labourers’ Federation* (1957) 100 CLR 277, 304–05, but also emphasizing that the fact that the ‘recipient of statutory power is a federal court does not conclude the question whether the power thus given to the court is the judicial power of the Commonwealth’. Hayne J states at 467 [472] that the chameleon doctrine ‘does not strip the concept of separation of powers of all meaning’.

⁸⁵ *Precision Data* (n 68) 189. See also *Australian Communications and Media Authority v Today FM (Sydney) Pty Ltd* (2015) 255 CLR 352, 371 [33] (French CJ, Hayne, Kiefel, Bell and Keane JJ).

⁸⁶ *Precision Data* (n 68) 189; *Today FM* (n 68) 371 [33] (French CJ, Hayne, Kiefel, Bell and Keane JJ).

⁸⁷ *Precision Data* (n 68) 191.

⁸⁸ *Alinta* (n 76) 553 [14] (Gleeson CJ), 576 [88] (Hayne J), 597 [168] (Crennan and Kiefel JJ). Although Gummow J, at 553 [14], noted caution needs to be exercised in ‘placing determinative significance ... solely upon considerations of “policy”’, since ‘matters of policy may enter permissibly (and necessarily) into the exercise of judicial power’, citing *Thomas* (n 59) as an example of policy issues being relevant to the judicial decision-making. See also 560 [37] (Kirby J).

⁸⁹ *Brandy* (n 72) 269 (Deane, Dawson, Gaudron and McHugh JJ).

⁹⁰ See *ibid* 264 (Mason CJ, Brennan and Toohey JJ), 269 (Deane, Dawson, Gaudron and McHugh JJ), where the Court made it clear that it was the enforcement issue alone that rendered it invalid.

⁹¹ See *Brandy* (n 72) 268–69. See also *Alexander’s Case* (n 28) 451 (Barton J), 470 (Issacs and Rich JJ), 481 (Powers J).

⁹² Saunders (n 69) 13. Since that comment was made, various decisions have only further affirmed this conclusion. See, eg, *Momcilovic* (n 57) and *Re Wakim* (n 58) 548 [34] (McHugh J). See also Fiona Wheeler, 'The Boilermakers Case' in H P Lee and George Winterton (eds), *Australian Constitutional Landmarks* (CUP 2003) 173.

⁹³ See also *Stellios, Zines' the High Court and the Constitution* (n 62) 328.

⁹⁴ *ibid* 96–97.

⁹⁵ *ibid* 98.

⁹⁶ *Thomas* (n 59) 329 [17] (Gleeson CJ).

⁹⁷ *Fardon v Attorney-General (QLD)* (2004) 223 CLR 575.

⁹⁸ *ibid* 586 [2] (Gleeson CJ).

⁹⁹ *Thomas* (n 59) 336–443 (Kirby J).

¹⁰⁰ *ibid* 443 [388] (Kirby J).

¹⁰¹ See Leslie Zines, 'A Judicially Created Bill of Rights?' (1994) 16 Sydney Law Review 166.

¹⁰² See George Winterton, 'The Separation of Judicial Power as an Implied Bill of Rights' in Geoffrey Lindell (ed), *Future Directions in Australian Constitutional Law: Essays in Honour of Professor Leslie Zines* (Federation Press 1994) 185–208.

¹⁰³ *Plaintiff M68/2015 v Minister for Immigration and Border Protection* (2016) 90 ALJR 297, 318 [97].

¹⁰⁴ *Huddart Parker* (n 21) 382 (Issacs J).

¹⁰⁵ *Polyukhovich v The Commonwealth* (1991) 172 CLR 501, 606 (Deane J).

¹⁰⁶ See Chapter 38 'Due Process'. The Court has 'left open' the question whether the requirements of independence and impartiality implied from Ch III 'could be subsumed in a concept of "due process"': *International Finance Trust Co Ltd v New South Wales Crime Commission* (2009) 240 CLR 319, 353 [50]–[52] (French CJ).

¹⁰⁷ *Australian Building Construction Employees' and Builders Labourers' Federation v Commonwealth* (1986) 161 CLR 88, 96.

¹⁰⁸ *Liyanage v The Queen* [1967] 1 AC 259, 288.

¹⁰⁹ *Nicholas v The Queen* (1998) 193 CLR 173; see also *Gypsy Jokers Motorcycle Club Incorporated v Commissioner of Police* (2008) 234 CLR 532, 560 [39] (Kirby J).

¹¹⁰ *X7 v Australian Crime Commission* (2013) 248 CLR 92, 120 [48] (French CJ and Crennan J).

¹¹¹ *Magaming v The Queen* (2013) 252 CLR 381, 396 [49] (French CJ, Hayne Crennan, Kiefel and Bell JJ).

¹¹² *Nicholas* (n 109) 186 (Mason CJ).

¹¹³ See *Al-Kateb v Godwin* (2004) 219 CLR 562, 577 [19] (Gleeson CJ); *Plaintiff M47/2012 v Director-General of Security* (2012) 251 CLR 1, 191 [528] (Bell J). See also *North Australian Aboriginal Justice Agency Ltd v Northern Territory* (2015) 90 ALJR 38, 63 [94] (Gageler J).

¹¹⁴ See, most recently, *FJ et al v Australia* (22 March 2016) UN Doc CCPR/C/116/D/2233/2013.

¹¹⁵ *Chu Kheng Lim v Minister for Immigration, Local Government and Ethnic Affairs* (1992) 176 CLR 1, 27.

¹¹⁶ *ibid* 28–29.

¹¹⁷ *ibid* 29.

¹¹⁸ *ibid* 32.

¹¹⁹ *ibid*.

¹²⁰ *ibid* 33.

¹²¹ *ibid* 33.

- ¹²² *ibid* 34.
- ¹²³ *Al-Kateb* (n 113) 572 [2] (Gleeson CJ).
- ¹²⁴ *ibid* 580 [31] (McHugh J).
- ¹²⁵ See *Al-Kateb* (n 113) 648 [256] (Hayne J).
- ¹²⁶ See, in particular, *ibid* 647–48 [253]–[255] (Hayne J) for the most explicit rejection of this test, and 663 [303] (Heydon J, agreeing).
- ¹²⁷ *ibid* 584 [45] (McHugh J).
- ¹²⁸ *ibid* 584 [45] (McHugh J), 659 [291] (Callinan J).
- ¹²⁹ See *Re Woolley; ex parte Applicants M276/2003* (2004) 225 CLR 1, which was handed down two months after *Al-Kateb* (n 113).
- ¹³⁰ In *Behrooz v Secretary, Department of Immigration and Multicultural and Indigenous Affairs* (2004) 219 CLR 486, a judgment dated the same day as *Al-Kateb* (n 113) Gleeson CJ noted, at 499 [21], that the ‘the assault, or the negligence, does not alter the nature of detention ... The detention is not for a punitive purpose.’
- ¹³¹ See *Al-Kateb* (n 113) 616 [149], where Kirby J describes the decision as having ‘grave implications for the liberty of the individual in this country’.
- ¹³² It has been asked to re-open and reconsider it but so far has not found it necessary to do so. See, eg, *Plaintiff M76/2013 v Minister for Immigration, Multicultural Affairs and Citizenship* (2013) 251 CLR 322, 371 [146] (Crennan, Bell and Gageler JJ), 377 [172] (Kiefel and Keane JJ), 344 [31] (French CJ). In *M47* (n 113), Gummow J, at 61 [120] and Bell J, at 193 [533] expressed their preference for the approach of Gleeson CJ in dissent in *Al-Kateb* (n 113). However, other judges in *M47* expressly declined to re-open *Al-Kateb*, for instance, Kiefel and Keane JJ, at 381 [190].
- ¹³³ See *M76* (n 132) 335 [4] (French CJ), 369 [136] (Crennan, Bell and Gageler JJ).
- ¹³⁴ See *Plaintiff M61/2010E v the Commonwealth* (2010) 243 CLR 319, 348 [64], where the Court stated that ‘it is not readily to be supposed that a statutory power to detain a person permits continuation of that detention at the unconstrained discretion of the Executive.’
- ¹³⁵ *M47* (n 113) and *M76* (n 132).
- ¹³⁶ See *CPCF v Minister for Immigration and Border Protection* (2015) 255 CLR 514, 533 [96] (Hayne and Bell JJ), in which the Commonwealth had conceded that the relevant legislative powers were required to be exercised ‘within reasonable times’.
- ¹³⁷ See *M68* (n 103).
- ¹³⁸ *Plaintiff S4/2014 v Minister for Immigration and Border Protection* (2014) 253 CLR 219, 230 [22].
- ¹³⁹ *M68* (n 103) 307 [31] (French CJ, Kiefel and Nettle JJ), 317 [95] (Bell J), 322 [184] (Gageler J), 360 [380]–[381] (Gordon J, dissenting).
- ¹⁴⁰ See *S4* 231 [25].
- ¹⁴¹ *M76* (n 132) 369 [139] (emphasis in original). See also *CPCF* (n 136) 585 [217] (Crennan J).
- ¹⁴² *M76* (n 132) 369 [139].
- ¹⁴³ *ibid*. See also *M68* (n 103) 319 [101], where Bell J stated, ‘if a transferee were to be detained for a period exceeding that which can be seen to be reasonably necessary for the performance of those functions, the Commonwealth parties’ participation in the exercise of restraint over the transferee would cease to be lawful,’ and 332–33 [184] (Gageler J).
- ¹⁴⁴ *NAAJAL* (n 113) 64 [99] (Gageler J).
- ¹⁴⁵ See, eg, Joyce Chia, ‘Back to the Constitution: The Implications of Plaintiff S4/2014 for Immigration Detention’ (2015) 38 University of New South Wales Law Review 628.
- ¹⁴⁶ *Kable* (n 2) 109 (McHugh J).

- ¹⁴⁷ See *ibid* 77 (Toohey J).
- ¹⁴⁸ See *ibid* 109–10, 117 (McHugh J).
- ¹⁴⁹ *ibid* 110 (McHugh J), 102 (Gaudron J).
- ¹⁵⁰ *ibid* 62–63 (Brennan CJ).
- ¹⁵¹ *ibid* 63 (Brennan CJ).
- ¹⁵² *ibid* 121–22 (McHugh J).
- ¹⁵³ *ibid* 118 (McHugh J).
- ¹⁵⁴ *ibid* 110 (McHugh J).
- ¹⁵⁵ *ibid* 112 (McHugh J).
- ¹⁵⁶ *ibid* 114 (McHugh J).
- ¹⁵⁷ *ibid* 114–15 (McHugh J), 102 (Gaudron J).
- ¹⁵⁸ *ibid* 115 (McHugh J), 103 (Gaudron J).
- ¹⁵⁹ *ibid* 116 (McHugh J).
- ¹⁶⁰ cf *ibid* 96 (Toohey J).
- ¹⁶¹ *ibid* 122 (McHugh J).
- ¹⁶² In Toohey J’s view this made the Act ‘virtually unique’: *ibid* 98.
- ¹⁶³ *ibid* 106 (Gaudron J).
- ¹⁶⁴ The same rationale was relied upon six days earlier in a decision concerning the federal *persona* designate doctrine: *Wilson* (n 61) 14, 21 (Brennan CJ, Dawson J, Toohey J, McHugh and Gummow JJ).
- ¹⁶⁵ See *Kable* (n 2) 119, 124 (McHugh J), 98 (Toohey J), 107 (Gaudron J), 134 (Gummow J). See also *Fardon* (n 97) 653 [213] (Callinan and Heydon JJ) describing the majority judgments in *Kable*.
- ¹⁶⁶ *Mistretta* (n 4) 407, cited by Gummow J in *Fardon* (n 97) 223 CLR 575 at 615 [91]. *Mistretta* was cited several times in *Wilson* (n 61) 28, 31, 41, 43, 44–46 (Kirby J).
- ¹⁶⁷ See Chapter 15 ‘Constitutionalism’. See also, Jeffrey Goldsworthy, ‘*Kable, Kirk* and Judicial Statesmanship’ (2014) 40 Monash University Law Review 75; Jeffrey Goldsworthy, ‘Constitutional Implications Revisited’ (2011) 30 University of Queensland Law Journal 9; Enid Campbell, ‘Constitutional Protection of State Courts and Judges’ (1997) 23 Monash University Law Review 397, 421–22.
- ¹⁶⁸ See Goldsworthy, ‘*Kable, Kirk* and Judicial Statesmanship’ (n 176) 84. See also *Fardon* 626 (n 97) [134]–[135] (Kirby J).
- ¹⁶⁹ *Fardon* (n 97) 601 [43] (McHugh J).
- ¹⁷⁰ *NAAJAL* (n 113) 54–55 [40] (French CJ, Kiefel and Bell JJ), 68 [124]–[127] (Gageler J). *South Australia v Totani* (2010) 242 CLR 1, 49 [73] (French CJ).
- ¹⁷¹ See Robert French, ‘Essential and Defining Characteristics of Courts in an Age of Institutional Change’ (2013) 23 Journal of Judicial Administration 3.
- ¹⁷² *Forge v Australian Securities and Investments Commission* (2006) 228 CLR 45, 67–68 [41] (Gleeson CJ), 74 [57]–[58] (Gummow, Hayne and Crennan JJ).
- ¹⁷³ *NAAJAL* (n 113) 54 [39] (French CJ, Kiefel and Bell JJ).
- ¹⁷⁴ *NAAJAL* (n 113) 54 [39] (French CJ, Kiefel and Bell JJ), 67 [120] (Gageler J). See also *Forge* (n 172) 67–68 [41] (Gleeson CJ), 76 [64] (Gummow, Hayne and Crennan JJ).
- ¹⁷⁵ *Totani* (n 170) 43 [62] (French CJ).
- ¹⁷⁶ *ibid* 157 [428] (Crennan and Bell JJ), 67 [149] (Gummow J). See also *NAAJAL* (n 113) 54 [39] (French CJ, Kiefel and Bell JJ). See also *Gypsy Jokers* (n 109) 560 [39] (Gummow, Hayne, Heydon and Kiefel JJ).

- ¹⁷⁷ *NAAJAL* (n 113) 54 [39] (French CJ, Kiefel and Bell JJ).
- ¹⁷⁸ *International Finance Trust Co Ltd v New South Wales Crime Commission* (2009) 240 CLR 319, 354–55 [55]–[56] (French CJ).
- ¹⁷⁹ *Wainohu v State of New South Wales* (2011) 243 CLR 181, 230 [109] (Gummow, Hayne, Crennan and Bell JJ). See *Assistant Commissioner Condon v Pompano Pty Ltd* (2013) 252 CLR 38, 71 [67] (French CJ, for a succinct summary of these ‘defining characteristics’). See also *NAAJAL* (n 113) 54 [39] (French CJ, Kiefel and Bell JJ).
- ¹⁸⁰ See *International Finance Trust* (n 178) 353 [52] (French CJ). See also *The Public Service Association and Professional Officers’ Association Amalgamated (NSW) v Director of Public Employment* (2012) 250 CLR 343, 360–62 (French CJ).
- ¹⁸¹ See *Forge* (n 172) 68 [42] (Gleeson CJ), and 141–46 (Heydon J) for a detailed history.
- ¹⁸² *Kirk v Industrial Court of New South Wales* (2010) 239 CLR 531, 580 [97] (French CJ, Gummow, Hayne, Crennan, Kiefel and Bell JJ).
- ¹⁸³ *Kirk* (n 182) 581 [98] (French CJ, Gummow, Hayne, Crennan, Kiefel and Bell JJ).
- ¹⁸⁴ *ibid.*
- ¹⁸⁵ cf Goldsworthy, ‘*Kable, Kirk and Judicial Statesmanship*’ (n 167) 87.
- ¹⁸⁶ See *Totani* (n 170) 37–41 (French CJ).
- ¹⁸⁷ *Wainohu* (n 179) 212 [51] (French CJ and Kiefel J).
- ¹⁸⁸ See most prominently, Goldsworthy (n 167).
- ¹⁸⁹ See, eg, *PSA* (n 180) 370 [62] (Heydon J).
- ¹⁹⁰ *Gypsy Jokers* (n 109) 553 [10] (Gummow, Hayne, Heydon and Kiefel JJ); *K-Generation Pty Ltd v Liquor Licensing Court* (2009) 237 CLR 501, 535 [112] (Gummow, Hayne, Heydon, Crennan and Kiefel JJ).
- ¹⁹¹ *Forge* (n 172) 76 [64] (Gummow, Hayne and Crennan JJ).
- ¹⁹² *K-Generation* (n 190) 530 [90] (French CJ).
- ¹⁹³ *NAAJAL* (n 113) 54 [39] (French CJ, Kiefel and Bell JJ).
- ¹⁹⁴ *Stellios, Zines’ the High Court and the Constitution* (n 62) 293.
- ¹⁹⁵ James Stellios, *The Federal Judicature* (LexisNexis Butterworths 2010) 97.
- ¹⁹⁶ *PSA* (n 180) 369 [61]–[62] (Heydon J).
- ¹⁹⁷ *ibid.*
- ¹⁹⁸ *Pompano* (n 179) 73 [72] (French CJ).
- ¹⁹⁹ *Kable* (n 2) 103 (Gaudron J). See also *Pompano* (n 179) 89 [123] (Hayne, Crennan, Kiefel and Bell JJ).
- ²⁰⁰ *International Finance* (n 178) 379 [140].
- ²⁰¹ *ibid.*
- ²⁰² *ibid* 381 [144].
- ²⁰³ *ibid* 381 [145].
- ²⁰⁴ For instance the tension between federalism and representative democracy displayed in the Senate composition. See also *Totani* (n 170) 45 [66], where French CJ observed that it is ‘possible to have organisational diversity across the Federation without compromising the fundamental requirements of a judicial system’.
- ²⁰⁵ *Kable* (n 2) 103.
- ²⁰⁶ *PSA* (n 180) 353 [14] (French CJ), 368 [57] (Hayne, Crennan, Kiefel and Bell JJ).
- ²⁰⁷ Will Bateman and James Stellios, ‘Chapter III of the Constitution, Federal Jurisdiction and Dialogue Charters of Human Rights’ (2012) 36 Melbourne University Law Review 1, 17–19, 40.

²⁰⁸ See *Momcilovic* (n 57).

²⁰⁹ See *Kable* (n 2) 12, where McHugh J stated that a State Parliament ‘has the constitutional power to pass legislation providing for the imprisonment of a particular individual’.

²¹⁰ *NAAJAL* (n 113) 79 [185], citing *Kuczborski v Queensland* (2014) 254 CLR 51, 99 [231] (Crennan, Kiefel, Gageler and Keane JJ).

²¹¹ *NAAJAL* (n 113) 79 [186].

²¹² Kristen Walker, ‘Persona Designata, Incompatibility and the Separation of Powers’ (1997) 8 Public Law Review 153.

²¹³ See Sir Anthony Mason, ‘A New Perspective on Separation of Powers’ (1996) 82 Canberra Bulletin of Public Administration 1, 1–9.

²¹⁴ *ibid* 5–6.

²¹⁵ *Stellios, Zines’ the High Court and the Constitution* (n 62) 331.

CHAPTER 29

THE CONSTITUTIONALIZATION OF ADMINISTRATIVE LAW

DEBRA MORTIMER*

THE search for a coherent theory that explains developments in judicial review may be a fruitless one. Our adversarial system of litigation means that what comes before the courts has something of an opportunistic and random character. Even public interest litigation has those qualities, for it requires an appropriate vehicle, willing lawyers, sufficient resources, and an appropriate respondent. Judges react to the controversies presented to them in the context in which they are presented. It may not be possible to draw together all the threads of judicial review into a principled and theoretically satisfactory whole.

So it is with the topic for this chapter. The insertion of the Constitution into the centre of Australian administrative law has occurred incrementally, driven by context and necessity. There has been little overruling:¹ rather, there have been shifts in language and emphasis, in circumstances almost entirely concerned with the rocky and changeable course of government policy in Australian migration law, and refugee law in particular. Sometimes the shifts are gentle and speculative. On other occasions, they are firm and visible. With government policy implemented through statute-intensive means, much is at stake for the individuals affected. Further, apparent government impatience with robust judicial review has produced attempts to limit the power of the judiciary to supervise administrative decision-making. In those circumstances, it may have been inevitable that the judicial reaction would be to articulate more strongly the judiciary's

place in Australia's constitutional framework. To adapt an observation made by Bradley Selway, the debate about the nature and extent of judicial review is, and always will be, a constitutional debate.²

It would be a mistake to see this constitutionalization as an assertion by the judiciary of 'supremacy'.³ Rather, it is confirmation by the judiciary of its place in the scheme of the Constitution, neither subordinate to Parliament and the executive, nor dominant over them. In the shift in language and emphasis apparent in the authorities discussed in this chapter, the High Court has, in my opinion, held its constitutional ground.

Although it need not have been so, constitutionalization has occurred by the High Court's emphasis on section 75(v) of the Constitution. After describing the origins, purpose, and role of section 75(v) as the setting for this change in emphasis, this chapter examines the signs of constitutionalization and the key features of public law litigation which have contributed to it. The chapter concludes with a discussion of some of the consequences of constitutionalization, and what future developments might occur.

A. ORIGINS, PURPOSE, AND ROLE OF S 75(v)

In Re Refugee Tribunal; Ex parte Aala, Gaudron and Gummow JJ said:

Section 75(v) may not add to the jurisdiction conferred by s 75(iii). It appears that s 75(v) was included as a safeguard against the possibility that the provision in s 75(iii) respecting matters in which a person being sued on behalf of the Commonwealth is a party would be read down by reference to decisions construing Art III of the United States Constitution.⁴

In times where statutory powers are increasingly given to persons without direct connections to the Commonwealth, or persons from whom the Commonwealth maintains an entitlement to keep some legal distance,⁵ some may doubt there is a sufficient overlap between section 75(iii) and section 75(v) for those seeking to impugn exercises of federal public power to rely wholly upon section 75(iii). In practice, what has occurred (for whatever reason) is that the exercise of the High Court's jurisdiction under section 75(v) has been the focus of litigation in public law cases.

Others have ably traced the origins, scope, and purposes of section 75.⁶ During the Convention Debates, as Robert French has described, the effect of the decision of the Supreme Court of the United States in *Marbury v*

*Madison*⁷ was not clearly understood.⁸ On prompting from Andrew Inglis Clark, Edmund Barton moved for the reinsertion of the subsection at the Melbourne Convention in March 1898, noting it would be ‘scarcely wise of us to leave it out’.⁹

Despite concerns expressed during or around the time of the Convention debates,¹⁰ the availability of powers which are necessary or incidental to the exercise of the Court’s jurisdiction under section 75(v)—including the power to grant remedies not specified in the subsection—is now well established,¹¹ although the High Court has said such powers cannot (and should not) be ‘exhaustively detailed’.¹² That view can be traced back to federation.¹³

Relief by way of mandamus and prohibition under section 75(v) will only issue in circumstances where there is a want or excess of jurisdiction.¹⁴ This proposition, well established early in the jurisprudence of the High Court, is not to be confused with the rise of ‘jurisdictional error’ as a benchmark concept. It is true that the language used in earlier decisions of the High Court (such as *R v War Pensions Entitlement Appeal Tribunal; Ex parte Bott*¹⁵) resonates with that which would be used in cases such as *Plaintiff S157/2002 v Commonwealth*¹⁶ and *Kirk v Industrial Court of New South Wales*.¹⁷ Indeed, there are passages in *Bott* which articulate a distinction between legal errors and merits, and between decisions within and outside jurisdiction, although the language is less emphatic and without a constitutional flavour.¹⁸ In the late 1990s and 2000s these distinctions would become more emphatic and tied to the judicial task of statutory construction, with language and reasoning more overtly based in the Constitution.

The role of certiorari in the High Court’s original jurisdiction has required more attention, because of the absence of certiorari as one of the available remedies founding the Court’s jurisdiction under section 75(v).¹⁹ Zines has described this as a ‘glaring omission’ that may be responsible for a more liberal approach to the grant of prohibition.²⁰ However, the role of certiorari as an ancillary remedy for matters otherwise within the Court’s jurisdiction under section 75(v) is well established;²¹ and the Court is also empowered to grant it (again, where there is otherwise jurisdiction) by section 32 of the *Judiciary Act 1903* (Cth) (*‘Judiciary Act’*).²² The scope of

the remedy, and in particular whether it extended to quashing orders of a superior court for errors made within that court's jurisdiction but said to be apparent on the face of the record, occupied a great deal of the Court's reasoning in *Re McBain; Ex parte Australian Catholic Bishops Conference*, with no clear answer other than what would seem to be a tacit acceptance that the jurisdiction might exist, but discretionary considerations (such as the existence of a right of appeal) would generally tend against its grant.²³ The scope of certiorari—especially in circumstances where the executive interposes persons who may not be 'officers of the Commonwealth' for the purpose of section 75(v), for example by 'contracting out' administrative decision-making functions—remains an issue the High Court has yet to explore in detail.²⁴

The role and purpose of the remedy of injunction within section 75(v) is quite different. With some notable exceptions,²⁵ its potential remains somewhat unexplored, despite judicial hints.²⁶ A majority of the High Court in *Project Blue Sky Inc v Australian Broadcasting Authority* underscored its likely operation outside the field of jurisdictional error, but still within the terms of section 75(v):

Although an act done in contravention of s 160 is not invalid, it is a breach of the Act and therefore unlawful. Failure to comply with a directory provision 'may in particular cases be punishable'. That being so, a person with sufficient interest is entitled to sue for a declaration that the ABA has acted in breach of the Act and, in an appropriate case, obtain an injunction restraining that body from taking any further action based on its unlawful action.²⁷

The way in which the task of statutory construction might combine with the remedy of injunction for non-jurisdictional errors, or future conduct, remains an undeveloped area of Australian administrative law.²⁸

The reach of the term 'officers of the Commonwealth' in section 75(v) includes Ministers²⁹ and federal judges other than High Court judges.³⁰ The High Court has also made clear that the vesting by section 71 of the Constitution of judicial power of the Commonwealth not in the sovereign but in the High Court removes, for all intents and purposes, the notion of Crown immunity.³¹

Edmund Barton described the purpose of section 75(v) in the following terms:

This provision is applicable to those three special classes of cases in which public officers can be dealt with and in which it is necessary that they should be dealt with, so that the High Court may exercise its function of protecting the subject against any violation of the Constitution, or of any law made under the Constitution.³²

Similarly, in the *Bank Nationalization Case* Dixon J stated that section 75(v) 'was written into the instrument to make it constitutionally certain that there would be a jurisdiction capable of restraining officers of the Commonwealth from exceeding Federal power'.³³ Protection of the subject is achieved by judicial supervision of the exercise of public power and the entrenchment in section 75(v) of a 'minimum provision of judicial review'³⁴ has provided the constitutional framework that a generation of public lawyers now take for granted. Judicial focus on that purpose is the best evidence of the conscious constitutionalization of administrative law.

B. THE REFORMS OF THE 1970S AND 1980S

Prior to the federal administrative and judicial reforms of the 1970s, supervision of federal executive action was essentially confined to the High Court.³⁵

Discussions of the reforms can be found elsewhere,³⁶ but they notably included: the creation of the Federal Court in 1976;³⁷ the enactment of a broad merits review system with the creation of the Administrative Appeals Tribunal (AAT);³⁸ the enactment of a judicial review statute designed to modernize, simplify and (to some extent) reform the existing processes and grounds in common law judicial review;³⁹ and the conferral on the Federal Court of the same jurisdiction exercised by the High Court under section 75(v).⁴⁰ In 1997, the introduction of section 39B(1A) of the *Judiciary Act* allowed claims in the nature of judicial review to be brought in the Federal Court's original jurisdiction seeking declaratory and injunctive relief without necessarily having to deal with the complexities of the constitutional writs.⁴¹

Two aspects of the reforms are relevant to the present topic. First, there was a structured, independent merits review process for federal administrative decision-making, resulting in closer scrutiny of a wide range of decisions. From this, litigants could move on to the Federal Court by way

of appeal, and (at least in principle) judicial review.⁴² Thus, judicial consideration of federal administrative decision-making also expanded. With this came commentary and opinion from the Federal Court and the AAT regarding construction of legislation, government policy, and procedure (including independent views from the AAT on what procedural fairness required). The doors to the previously cloistered and opaque world of federal administrative decision-making were thrown open.

Second, the basis on which administrative decisions were to be judicially reviewed altered in substance and in process, as did the composition of the judiciary tasked with undertaking judicial review. No longer would one High Court judge, under an order nisi process, examine a decision, and determine whether there was an arguable case for a respondent to show cause.⁴³ Claims could be brought before a range of judges in the Federal Court, with simpler processes, a perception (if not a reality) of greater accessibility, built-in procedural and substantive discretions, and, in the case of the *Administrative Decisions (Judicial Review) Act 1977* (Cth) (*'AD(JR) Act'*), enumerated grounds of review. A body of jurisprudence began to develop around each ground in section 5 of the *AD(JR) Act*, including grounds familiar to the common law (such as breach of natural justice) and less familiar (such as no evidence).⁴⁴ Likewise, appeals under section 44 of the AAT Act developed a parallel body of learning concerning statutory construction and the identification of legal errors in decisions of the AAT.

Avowedly, these reforms were intended to move administrative law litigation away from 'technicalities' seen as unhelpful to a fair resolution of individual challenges to the lawfulness (and in the case of merits review, the correctness) of exercises of public power.⁴⁵ So, before there was 'constitutionalization' of administrative law, there was 'de-constitutionalization', and an enlarged body of judicial review decision-making at federal level. Where by volume, breadth, and close analysis that judicial supervision began to touch sensitive policy areas, each branch of government needed to mark out its ground.

C. CHANGES IN MIGRATION LAW DURING THE 1990s

Migration law was where the ‘re-constitutionalization’ of administrative law would play out. Migration law had not been previously devoid of controversy, but prior to these changes in federal administrative law, there was comparatively little litigation. Notable exceptions were cases such as *Salemi v McKellar [No 2]*, where, although the claim failed, the Court affirmed its jurisdiction to grant the declaratory and injunctive relief sought.⁴⁶

The *Migration Reform Act 1992* (Cth) brought substantial changes to the regulation of the entry and residence of persons the legislation described, for the first time, as ‘non-citizens’.⁴⁷ Mandatory detention for non-citizens without valid visas was introduced, making liberty one of the individual interests affected by visa decisions.⁴⁸ In contrast to earlier discretionary regimes, more prescriptive decision-making was introduced, including complex criteria attaching to different classes of visa.⁴⁹ The key decision-making provision—section 65 of the *Migration Act*—turned on the satisfaction of the decision-maker that a person did, or did not, meet the prescribed criteria for the grant of a visa. On formation of that satisfaction a duty arose to grant or refuse the visa. The structure of section 65 was to prove critical in future judicial scrutiny of exercises of power under the Act.

There followed a rapid increase in judicial review litigation in migration law, although there were also some contractions.⁵⁰ The fluctuations generally reflected the expansion and contraction of the jurisdiction of the Federal Court to hear judicial review claims, the numbers of asylum seekers arriving in Australia, and, ultimately, the neutering of the federal privative clause in section 474 of the *Migration Act* by the High Court in 2003.⁵¹ However, the overall increase in such litigation is tied to three matters: the link between visas and deprivation of liberty, the increasingly prescriptive criteria necessary to secure the grant of a visa, and the increasingly strict policies surrounding availability of visas. In other words, the more complex the legislative scheme applying to the grant and refusal of visas, and the more closely a person’s liberty is tied to a visa, the more likely challenges to refusals become and the complexities in the scheme must be judicially explored.

D. SIGNS OF CONSTITUTIONALIZATION

1. ‘Jurisdictional Error’ Becomes a Benchmark Concept

Well before the first round of critical migration cases in the late 1990s and early 2000s, there are statements emphasizing the constitutional nature and foundation of the High Court’s supervisory jurisdiction.⁵² What occurred in the late 1990s and early 2000s, however, was the drawing together of a more comprehensive notion of jurisdictional error with the High Court’s constitutional function. It is customary to identify *Craig v South Australia*⁵³ as the genesis of the current concept of jurisdictional error. Although examples of the use of ‘jurisdictional error’ prior to *Craig* can be found,⁵⁴ the Court’s combined rejection of *Anisminic Ltd v Foreign Compensation Commission*⁵⁵ with a general description of jurisdictional error in respect of both tribunals and inferior courts in a unanimous judgment explains why the decision is so significant. The language itself was not new,⁵⁶ including in respect of inferior courts.⁵⁷ Nevertheless, with a broad and functional description of jurisdictional error available after *Craig*, the task of statutory construction and its importance to questions of validity became more prominent, as did judicial intention to locate the judicial review function affirmatively in the Constitution.

2. The Term ‘Constitutional writ’

Describing the remedies listed in section 75(v) as constitutional rather than prerogative writs appears to have begun in judgments of the High Court in the 1950s by McTiernan J,⁵⁸ before being revived in the 1970s and 1980s by Murphy J⁵⁹ and Deane J,⁶⁰ and in the 1990s by Kirby J.⁶¹ A more widespread shift followed upon the insistence by Gaudron and Gummow JJ in *Aala*⁶² that a general change in terminology was required. Thereafter, the term moved into the lexicon of most members of the High Court, inside⁶³ and outside⁶⁴ migration law.

3. Rule of Law and Legality

From the early to mid-1990s, references to the rule of law, and later to the principle of legality, appeared more frequently in judgments of the High Court, although again the terms are not new. Their increased use is part of the judicial return to foundational values in the face of statutory challenges to operating assumptions in the law (such as procedural fairness and general judicial review jurisdiction).

In 1982, Brennan J spoke of the rule of law in the following way:

Judicial review is neither more nor less than the enforcement of the rule of law over executive action; it is the means by which executive action is prevented from exceeding the powers and functions assigned to the executive by law and the interests of the individual are protected accordingly.⁶⁵

There are no constitutional references in this passage. Compare, seventeen years later and after the curtailment of judicial review in relation to migration decisions had well and truly commenced, the judgment of Gummow and Hayne JJ in *Abebe*:

The Constitution, as Dixon J put it in *Australian Communist Party v Commonwealth*, is an instrument framed on the assumption of the rule of law. In the conduct of government under the Constitution, this means at least that, while there is no error of law simply in making a wrong finding of fact, (a) '[i]t is, emphatically, the province and duty of the judicial department, to say what the law is', the terms used by Marshall CJ in *Marbury v Madison*, and (b) to adopt remarks of Isaacs J in *R v Macfarlane; Ex parte O'Flanagan and O'Kelly*, every person 'is entitled to his personal liberty except so far as that is abridged by a due administration of the law'.⁶⁶

Five years later, and a year after *S157*,⁶⁷ in *Electrolux Home Products Ptd Ltd v Australian Workers' Union*, when describing the presumption of statutory construction from cases such as *Coco v The Queen*,⁶⁸ Gleeson CJ brought the concepts together, saying that presumption was:

an aspect of the principle of legality which governs the relations between Parliament, the executive and the courts. The presumption is not merely a common sense guide to what a Parliament in a liberal democracy is likely to have intended; it is a working hypothesis, the existence of which is known both to Parliament and the courts, upon which statutory language will be interpreted. The hypothesis is an aspect of the rule of law.⁶⁹

From the late 1990s these norms were reinforced not by reference to the common law but to the Constitution and the exercise of supervisory judicial power under it. John Basten has observed that the use of these concepts 'does not suggest that the rule of law is being relied upon as a principle giving substantive content to s 75(v)'.⁷⁰ Rather, the rule of law is relied

upon to give substantive content to the correct approach to statutory construction (especially in relation to implications and assumptions such as procedural fairness, reasonableness, and rationality) and, through that, to the court's exercise of its supervisory jurisdiction under section 75(v) to determine what kinds of errors are jurisdictional. Likewise, rule of law principles are available in judicial review proceedings in other federal and State courts.⁷¹

In that sense, the rule of law has been given substantive use, including in matters arising under section 75(v). If it is a step further to say it forms part of the content of section 75(v), it is a small one.

A similar point can be made about legality. Where the core task for courts on judicial review is to discern statutory limits of administrative power, employing legality as a basic assumption in understanding Parliament's 'intention' gives it jurisdictional effect.⁷² If the court's task on judicial review is expressed in constitutional terms, so legality gives constitutional authority to the constructional choices made.

4. The Law/Merits Distinction: Marking Out Judicial Territory

The occasion for Brennan J's distinction in *Attorney-General (NSW) v Quin* was his Honour's clear disapproval of the use of mandamus by the New South Wales Court of Appeal to 'secure some preference in appointment for former magistrates whose judicial offices were abolished'.⁷³

Noting that judicial review had been employed 'to set aside administrative acts and decisions which are unjust or otherwise inappropriate, but only when the purported exercise of power is excessive or otherwise unlawful', Brennan J then set out the well-known passage from *Marbury v Madison*,⁷⁴ and made his own now equally well-known pronouncement distinguishing the legality and the merits of an administrative decision.⁷⁵ In these passages there are no references to the Constitution, nor explicitly to the separation of powers, although it is clear the latter is the foundation for the distinction:

The courts—above all other institutions of government—have a duty to uphold and apply the law which recognizes the autonomy of the three branches of government within their respective spheres of competence and which recognizes the legal effectiveness of the due exercise of power by the Executive Government and other repositories of administrative power.⁷⁶

The safe house that the opinion of Brennan J in *Quin* has provided for courts engaged in judicial review is enthusiastically occupied.⁷⁷ Repetition of his Honour's words in *Quin* has provided courts with a description of their task that places constructional choices and assessments about limits of executive or administrative authority on the correct side of the separation of powers. That is so particularly where the court's jurisdiction derives from section 75(v).⁷⁸ In *Re Minister for Immigration and Multicultural and Indigenous Affairs; Ex parte Lam*, McHugh and Gummow JJ explicitly connected the law/merits distinction, the rule of law, and the constitutional framework of judicial review:

In Australia, the existence of a basic law which is a written federal constitution, with separation of the judicial power, necessarily presents a frame of reference which differs from both the English and other European systems referred to above. Considerations of the nature and scope of judicial review, whether by this Court under s 75 of the Constitution or otherwise, inevitably involves attention to the text and structure of the document in which s 75 appears. An aspect of the rule of law under the Constitution is that the role or function of Ch III courts does not extend to the performance of the legislative function of translating policy into statutory form or the executive function of administration.⁷⁹

This demarcation is manifested in the distinction between jurisdictional and non-jurisdictional error which informs section 75(v).

5. The Rejection of Deference

For the High Court to embrace an approach based on deference could have weakened the Court's position in providing an entrenched minimum provision of judicial review. In *City of Enfield v Development Assessment Commission*,⁸⁰ a case that dealt with a decision of the Development Commission of South Australia, the Court distanced itself from the idea that deference forms any part of the judicial task.⁸¹ In its statutory context, the Court held that the characterization of the nature of an industry as 'special' or 'general' was a jurisdictional fact, and for the judicial branch to determine without deference to the Development Commission.

Relying on the separation of powers and its consequences as set out by Brennan J in *Quin*, the Court accepted that there will be circumstances where on judicial review weight may be given to the findings of an expert tribunal, but then said:

Where the question is whether the tribunal acted within jurisdiction, it must be for the court to determine independently for itself whether that is the case.⁸²

Enfield, like *Craig* and *Quin*, was a judicial review in State jurisdiction, and ‘there was no explicit constitutional imperative to reach the conclusion that judicial deference to the executive’s legal interpretation should be rejected’.⁸³ Nevertheless, the fact that the Court chose to bring together the rejection of the *Chevron* doctrine and the Court’s constitutional supervisory function was a further example of the shift in focus for Australian administrative law.

6. Legislative Curtailment of Judicial Review, and Judicial Responses, in the 1990s and 2000s

From the late 1990s onwards, and after *Craig*, legislative curtailment of judicial review by successive amendments of the *Migration Act* became the setting for the reintroduction of the Constitution into the centre of Australian administrative law. The reasons initially appeared procedural, but were to become entirely substantive and are the most significant manifestations of constitutionalization.

a) Review of ‘satisfaction’ of the decision-maker

By the time *Minister for Immigration and Multicultural Affairs v Eshetu*⁸⁴ came to the High Court, the Court had already dealt with a number of important questions arising under the *Migration Act*,⁸⁵ and had re-emphasized and developed the law/merits distinction in *Minister for Immigration and Ethnic Affairs v Wu Shan Liang*.⁸⁶

Eshetu was decided at a time when (as French J recounted in *NAAV v Minister for Immigration and Multicultural and Indigenous Affairs*⁸⁷) the *Migration Act* restricted the judicial review grounds available in the Federal Court.⁸⁸ Those restrictions led to a bifurcation of Mr Eshetu’s arguments. He sought special leave in respect of grounds of review raised before the Full Federal Court, but also raised *Wednesbury* unreasonableness in the High Court’s original jurisdiction under section 75(v).

Gleeson CJ and McHugh J, and Gaudron and Kirby JJ, did not find the unreasonableness ground made out. However, Gaudron and Kirby JJ applied a constitutional lens to another possible argument:

Although the Tribunal's decision cannot be described as unreasonable, it may be that, to the extent that it failed to consider whether there was a real risk of persecution by reason of a political opinion imputed or likely to be imputed to Mr Eshetu, that was an error amounting to a constructive failure to exercise jurisdiction which would ground relief under s 75(v) of the Constitution. However, that is not a matter that was argued. Nor is it a matter that we need consider.⁸⁹

Gummow J wrote separately, describing section 65 of the *Migration Act* in terms which would prove to be foundational:

The Minister's satisfaction was an anterior matter, being a component of the condition precedent to the discharge of the obligation to grant or refuse the visa.⁹⁰

His Honour then linked this condition precedent to the Court's constitutional jurisdiction:

A determination that the decision-maker is not 'satisfied' that an applicant answers a statutory criterion which must be met before the decision-maker is empowered or obliged to confer a statutory privilege or immunity goes to the jurisdiction of the decision-maker and is reviewable under s 75(v) of the Constitution. This is established by a long line of authority in this Court which proceeds upon the footing that s 75 is a constitutional grant of jurisdiction to the Court.⁹¹

The 'long line of authority' began with *R v Connell; Ex parte The Hetton Bellbird Collieries Ltd*⁹² and ended with *Darling Casino Ltd v NSW Casino Control Authority*.⁹³ Particular emphasis was placed on *Connell*, for its references by Latham CJ to the reviewability of an opinion where formation of an opinion is made a condition of the exercise of power.⁹⁴ Characterizing the formation of a state of satisfaction as a jurisdictional fact led to the conclusion that section 75(v) permitted review in cases where the satisfaction of the decision-maker was based on findings or inferences of fact which were not supported by probative material or logical grounds.⁹⁵

Although Gummow J concluded there was no jurisdictional error in Mr Eshetu's case, his Honour carefully set out how a decision-maker acting under section 65 could exceed her or his jurisdiction. In this, it seems to me his Honour was consciously laying foundations for attention to turn to constitutional judicial review as Parliament continued to narrow the statutory grounds of review under the *Migration Act*.

b) Privative clauses

From curtailment by confining the jurisdiction of statutory courts, Parliament moved to curtailment through privative clauses. This legislative

technique provided the occasion for the High Court to stake its constitutional ground in administrative law.⁹⁶

Before 2003, and outside migration law, the High Court had dealt with the construction and application of privative clauses on many occasions. Early in the Court's history, Griffith CJ pithily encapsulated the conundrum inherent in their operation:

A grant of limited jurisdiction coupled with a declaration that the jurisdiction shall not be challenged seems to me a contradiction in terms.⁹⁷

In *R v Hickman; Ex parte Fox*, in a passage that would be given prominence in *S157*, Dixon J said:

In the first place, it is clear that such a provision cannot, under the Constitution, affect the jurisdiction of this Court to grant a writ of prohibition against officers of the Commonwealth when the legal situation requires that remedy. But a writ of prohibition is a remedy that lies only to restrain persons acting judicially from exceeding their power or authority. It is therefore necessary to ascertain before issuing a writ whether the persons or body against which it is sought are acting in excess of their powers; and that means whether their determination, when made, would be void.⁹⁸

At this level of principle, one can find consistent statements in many subsequent decisions of the High Court.⁹⁹ There were few privative clauses which were found effectively to protect a decision affected by legal error.

In *Darling Casino*, Gaudron and Gummow JJ (Brennan CJ, Dawson and Toohey JJ agreeing) described the relationship between section 75(v) and privative clauses in a way which foreshadowed future judgments in migration law:

Mandamus and prohibition are remedies which are granted in cases of jurisdictional error—refusal to exercise jurisdiction, in the case of mandamus, and excess of jurisdiction, in the case of prohibition. The terms of s 75(v) would be defeated if a privative clause operated to protect against jurisdictional errors being refusal to exercise jurisdiction, or excess of jurisdiction, in the latter case whether by reason of the constitutional invalidity of the law relied upon or the limited terms of a valid law. However, there is no constitutional reason, in our view, why a privative clause might not protect against errors of other kinds by, within the limits of the relevant legislative powers, operating to alter the substantive law to ensure that the impugned decision or conduct or refusal or failure to exercise a power is in fact valid and lawful.¹⁰⁰

Thus, the tension between a privative clause and the Court's constitutional judicial review function was well recognized before 2003. However, no privative clause had the sweeping effect of that introduced in 2001 into the *Migration Act*.¹⁰¹ Its significance was recognized by the constituting of a bench of five Federal Court judges in August 2002 to hear five appeals

representing the spread of migration decisions affected by section 474: see *NAAV*.¹⁰² Three judges (Black CJ, Beaumont and von Doussa JJ) held that section 474(1) was effective to protect, or validate, decisions where there had been an error of law in forming the state of satisfaction required by section 65 of the *Migration Act*.¹⁰³

Wilcox and French JJ dissented on these issues.¹⁰⁴ In broad terms, their Honours found section 474 did not protect decisions under section 65 from judicial review for the kinds of errors set out in *Craig*. French J's dissenting judgment was extensive, and reflects a similar approach to that which would be taken by the High Court in *S157*.

S157 was conducted by way of a case stated in the High Court's original jurisdiction under section 75(v). It challenged the validity and effectiveness of the privative clause, and the majority decision in *NAAV*. In different terms, the judgments of Gleeson CJ and of Gaudron, McHugh, Gummow, Kirby and Hayne JJ proceeded upon firm principles about the separation of powers, the role of the High Court under section 75(v), and the roles of other courts given comparable functions of judicial review.¹⁰⁵ The judgments spend considerable time on the High Court's section 75(v) jurisdiction and rule of law principles; however, their emphasis on statutory construction in reconciling a privative clause with other provisions in a given legislative scheme was clearly directed at the exercise of judicial review functions by all courts.¹⁰⁶ The repeated recognition of the separation of powers directed attention to the general exercise of federal judicial power on judicial review.¹⁰⁷ Jurisdictional error was identified as the operating criterion for review.¹⁰⁸

Why the staunchness of the judicial reaction in *S157*? The confrontational and shifting curtailments by Parliament of federal courts' judicial review jurisdiction in relation to migration decisions,¹⁰⁹ the broad and absolute terms of section 474, its wide ranging effect on an enormous number of administrative decisions made (and powers exercised) under the *Migration Act* where liberty was frequently affected, and the boldness of the Commonwealth's arguments to the High Court all combined to produce the united and fundamental response one sees in the reasons for judgment, especially the joint judgment. Once that response was given, there could be no retreat from the constitutional dimensions of Australian administrative law.¹¹⁰

c) Non-extendable time limits

Since 2003, migration law has continued to provide the occasion for the Court to reaffirm the constitutional function of judicial review in the face of statutory curtailment.

In *Bodruddaza v Minister for Immigration and Multicultural Affairs*,¹¹¹ the plaintiff challenged a fixed time limit imposed by section 486A of the *Migration Act*. In a joint judgment, the Court explored the history of time limits on applications for prerogative relief as the law stood at the time of the commencement of the Constitution and articulated the test of validity as whether ‘directly or as a matter of practical effect, [the provision] does not so curtail or limit the right or ability of applicants to seek relief under s 75(v) as to be inconsistent with the place of that provision in the constitutional structure, as explained in *Plaintiff S157/2002*’.¹¹² The Court held section 486A did curtail the right in an inconsistent way, because it operated on the date of notification without allowances for the numerous circumstances of individuals that might preclude compliance with a non-extendable time limit. That effect, the Court said, ‘subverts the constitutional purpose’ of section 75(v).¹¹³

In *Bodruddaza*, section 75(v) was held to protect access to the High Court, as well as protecting its supervisory function.

d) Non-compellable personal powers

Again in the migration context, by employing what have come to be called ‘non-compellable personal powers’, Parliament has sought to widen the scope of executive power and to immunize it, to the extent possible, from judicial review.¹¹⁴ Two cases illustrate the different ways in which a constitutional perspective has framed review of the exercise of these powers.

Plaintiff M61/2010E v Commonwealth concerned a new process established by the Commonwealth for the assessment of claims for protection under the Refugees Convention made by people who arrived by boat in Australia.¹¹⁵ The Commonwealth contended the process was entirely ‘non-statutory’ and authorized by section 61 of the Constitution. It contended that no obligations of procedural fairness attached to the decision-making process, and that there was no operative decision for the

Court to review. Rather, there were only recommendations to enable the Minister to consider whether to exercise his personal powers under the *Migration Act* to allow a visa application to be made.

The Court identified three features as central to the resolution of the Commonwealth's contentions. They were:

First, the powers under ss 46A and 195A may *only* be exercised by the Minister *personally* (ss 46A(3), 195A(5)). Secondly, the assessment and review were made in consequence of a ministerial direction. Thirdly, in the circumstances of these cases, the continued detention of an offshore entry person [under the *Migration Act*], while an assessment and review were conducted, was lawful only because the relevant assessment and review were directed to whether powers under either s 46A or s 195A could or should be exercised.¹¹⁶

It was the plaintiff's detention which provided the link to the effect on his rights and interests.¹¹⁷ Having drawn a connection between the assessments and recommendations and the exercise of statutory powers, the Court was emphatic about the boundaries of those powers, including the assessments and recommendations on which they were to be based:

First, the determination of whether Australia had protection obligations to the plaintiff was to be made according to law. It is an essential characteristic of the judicature established by Ch III that it declares and determines the limits of power conferred by statute upon decision-makers. The various legislative powers for which the *Constitution* provides are expressed as being 'subject to' the *Constitution* and thus to the operation of Ch III, in particular to the exercise of jurisdiction conferred by s 75. The reasoning supporting decisions made in particular controversies acquires a permanent, larger and general dimension as an aspect of the rule of law under the *Constitution*.

One of the powers whose exercise was being considered was the power to lift the bar under s 46A and permit the plaintiff to make a valid application for a protection visa. Exercise of that power on the footing that Australia owed protection obligations to the plaintiff would be pointless unless that determination was made according to the criteria and principles identified in the *Migration Act*, as construed and applied by the courts of Australia. For the purposes of the Minister considering the exercise of power under s 46A, what the RSA Manual and the IMR Manual both referred to as 'Australian legislation and relevant case law' had, therefore, to be treated as binding upon those who made the assessments and those who reviewed those assessments, not just as 'aid[s] to the interpretation of the Refugees Convention'.¹¹⁸

The Court identified jurisdictional errors in the relevant recommendations (in terms of the law applied and denials of procedural fairness), but held that the non-compellable nature of the Minister's powers meant that

mandamus under section 75(v) was not available. There was therefore no utility in granting certiorari to quash the recommendations.¹¹⁹ Without referring expressly to any particular source of power, the Court granted declaratory relief, which the Commonwealth properly accepted was sufficient to require its decision-making processes to be reformulated in accordance with the Court's decision.

In *Plaintiff S10/2011 v Minister for Immigration and Citizenship*,¹²⁰ four matters were heard together, seeking to build on the Court's decision in the *Offshore Processing Case*. Each matter concerned one of the other personal ministerial powers in the *Migration Act*—ss 48B (to permit a further visa application), 195 (to grant a visa of the Minister's choice to a person in detention), 351 (to substitute a more favourable decision to that of the migration review tribunal), and 417 (to substitute a more favourable decision to that of the refugee review tribunal). The plurality described all of these as 'dispensing powers' because they empower the Minister to 'dispense with requirements of the Act'.¹²¹ All four cases were unsuccessful.

Despite the unanimous judgment in the *Offshore Processing Case*, only one of the two judgments in *S10* (that of Gummow, Hayne, Crennan and Bell JJ) framed the issues in constitutional terms. However, the constitutional framework was not helpful to the plaintiffs. Instead, the Minister's accountability to Parliament for the exercise of the dispensing powers, together with a number of other factors, led their Honours to reject the plaintiffs' contention that procedural fairness attached to the way the Minister decided whether or not to consider exercising those powers.¹²² Although reaching the same conclusion, French CJ and Kiefel J made no references to the role of the Court's supervisory jurisdiction in section 75(v) or section 75(iii). This was not a 'rule of law' case for them; it was one in which Parliament's intention was clearly expressed in the statutory text, and the consequence of the powers in issue being personal and non-compellable was that no procedural fairness could attach.¹²³

Parliament's conferral of non-compellable personal powers has been effective to confine judicial review. In the *Offshore Processing Case* the personal powers arose as the first stage of the decision-making process, and were contended to be effective to remove judicial supervision altogether. In *S10*, the personal powers were exercisable at the end of a process involving

merits and judicial review. In both cases, the Court did not doubt its constitutional supervisory jurisdiction was available, but in *S10* it saw Parliament's restrictions as effective in their express terms. By that perspective, the Court reinforced the role of federal courts in the judicial reviews that had already occurred. The characterization of these personal powers as 'dispensing' powers reveals the Court saw them as supplementary rather than integral to the plaintiffs' rights and interests under the *Migration Act*.

E. CONSEQUENCES OF CONSTITUTIONALIZATION

The foremost consequence of the process of constitutionalization has been the implanting of jurisdictional error as the governing concept in Australian administrative law.¹²⁴ There is no need to add to the considerable literature from its admirers and its critics.¹²⁵ Describing an error as jurisdictional is what now marks out judicial authority to supervise and correct, locates that authority in the Constitution, and preserves it from legislative abolition.

Concurrently with the trend away from the use of the *AD(JR) Act* and State equivalents, there has been a movement away from categories of errors, to broader concepts such as 'inviolable limits' and the 'statutory task' to be derived from what a court sees in the relevant statute.

The place of jurisdictional error in modern Australian administrative law cannot be understood without appreciating how statutory construction informs its identification. The focus, through close analysis of the statutory text and the legislative scheme, on whether Parliament intended an error to vitiate a decision or invalidate conduct¹²⁶ locates the determination of jurisdictional error in the judicial function of statutory construction, where its orthodoxy can scarcely be criticized. The interpretative trilogy of text, context, and purpose¹²⁷ demonstrates fidelity to the 'essential characteristic of the judicature established by Ch III' of determining limits on power, grounding administrative law in the Constitution.

Forecasts that Australian administrative law might be reduced to an exercise in statutory construction may not be borne out.¹²⁸ The prominence of reasonableness, fairness, and rationality review, as well as limited steps towards proportionality, suggest otherwise. Their prominence is a further

consequence of constitutionalization and of the characterization of jurisdictional error as a constitutional concept.

1. Extension to State Supreme Courts: *Kirk* and Section 73(ii)

In 1996, and almost a year after it decided *Craig*, the High Court set out the constitutional importance of maintaining the ‘institutional integrity’ of State courts exercising federal jurisdiction.¹²⁹ The principles in *Kable v DPP (NSW)* have been consistently endorsed, but rarely successfully applied.¹³⁰ It was Gummow J in *Kable* who described the reference to the ‘Supreme Court’ in section 73(ii) of the Constitution as a ‘constitutional expression’ and, after a detailed analysis of the place of State courts in the Constitution, said that

[t]he phrase identifies the highest court for the time being in the judicial hierarchy of the State and entrenches a right of appeal from that court to this Court.¹³¹

That perspective was to prove influential in the extension of *Kable* principles to the content and role of judicial review by state courts.

Kirk concerned a wide privative clause in the *Industrial Relations Act 1996* (NSW), which purported to protect the decisions of the New South Wales Industrial Court from review, including review by the New South Wales Supreme Court. The majority described Supreme Courts as having a ‘defining characteristic’: namely, the power to ‘confine inferior courts and tribunals within the limits of their authority to decide by granting relief in the nature of prohibition and mandamus, and, as explained further in these reasons, also certiorari, directed to inferior courts and tribunals on grounds of jurisdictional error’.¹³²

During an exposition of the concept of jurisdictional error, the majority emphasized its extension to State Supreme Courts by reference to the observations made by Gummow J in *Gould v Brown*:

When viewed against the Constitution in its entirety, Ch III presents a distinct appearance. Upon what had been the judicial structures of the Australian colonies and, upon federation, became the judicial structures of the States, the Constitution by its own force imposed significant changes.¹³³

There is no shortage of commentary about the Court’s decision in *Kirk*.¹³⁴ For present purposes, it is enough to observe that it continues what *Kable*

started, affirming the constitutional place of State Supreme Courts as repositories of an entrenched minimum provision of judicial review.

2. Role of Irrationality and Legal Unreasonableness in Constitutional Writ Review

These still developing grounds are becoming, with each re-articulation by the High Court, more clearly distinct from each other.¹³⁵

Minister for Immigration and Citizenship v SZMDS built on earlier decisions of the Court in which logicity and rationality grounds were recognized by the Court, but were unsuccessful. In *SZMDS* there were two joint judgments, each taking different approaches, one impugning the decision and one upholding it. Only the dissenting judgment of Gummow ACJ and Kiefel J employed constitutional terms in explaining these grounds.¹³⁶ Having recalled that the judicial review jurisdiction exercised by the primary Court was ‘rooted in s 75(v) of the Constitution’,¹³⁷ their Honours said:

In Australia, as Basten JA recently observed, the principles applicable where the jurisdictional fact is a state of satisfaction or opinion are traced back to the use by Latham CJ in *R v Connell; Ex parte Hetton Bellbird Collieries Ltd* of the terms ‘arbitrary, capricious, irrational’ as well as ‘not bona fide’ to stigmatise the formation of an opinion upon which a statutory power was enlivened. Subsequently, for the Supreme Court of Canada, Iacobucci J spoke of decision making upon an assumption which had no basis in the evidentiary material or which was contrary to the overwhelming weight of that material, and also of decisions based upon a contradiction in the processes by which conclusions were reached or upon the drawing of inferences which were not properly open.

A decision upon jurisdictional fact which has these characteristics is treated as a failure to exercise jurisdiction. There has been a purported exercise of public power in the absence of the necessary jurisdictional fact.¹³⁸

Despite the differences between the two joint judgments, both treat lack of rationality as a jurisdictional issue and therefore within what is now accepted to be a constitutional framework of judicial review in which errors flow principally from construction of the empowering statute.

In *Minister for Immigration and Citizenship v Li*,¹³⁹ the High Court turned away from *Wednesbury*¹⁴⁰ as the descriptor of unreasonableness in Australian administrative law, preferring ‘legal unreasonableness’ instead. Distanced from any British origins, the concept was ripe for constitutionalization and that is what occurred.

Li concerned the refusal of an adjournment by a tribunal and thus an exercise of a discretionary power. French CJ, in order to support his opening proposition that ‘[e]very statutory discretion, however broad, is constrained by law’,¹⁴¹ went straight to the constitutional constraints on the exercise of administrative power and a proposition of Dixon J in *Shrimpton v Commonwealth*:

[C]omplete freedom from legal control, is a quality which cannot ... be given under our Constitution to a discretion, if, as would be the case, it is capable of being exercised for purposes, or given an operation, which would or might go outside the power from which the law or regulation conferring the discretion derives its force.¹⁴²

That proposition became the foundation for French CJ’s conclusion that reasonableness is a constraint on a discretion of the kind referred to by Dixon J.¹⁴³

Hayne, Kiefel and Bell JJ noted that ‘[a] standard of reasonableness in the exercise of a discretionary power given by statute had been required by the law long before the first statement of “*Wednesbury* unreasonableness”’,¹⁴⁴ and referred to a passage concerning section 75(v) in *Aala*¹⁴⁵ as well as observations of Brennan CJ in *Kruger v Commonwealth*.¹⁴⁶ Their Honours described section 75(v) as ‘accommodated’ to incorporate such standards and emphasized that the legal standard of reasonableness must be derived from a true construction of the relevant statute.¹⁴⁷ What is interesting for present purposes is the conclusory confirmation that legal unreasonableness, like denial of procedural fairness, is amenable to relief under section 75(v), indicating the proposition was regarded as sufficiently well-established that no more time needed to be spent on it. Gageler J also relied on the statement of Brennan CJ in *Kruger*, but proceeded on a common law implication into a statutory power and made no mention of section 75(v). All of the judgments accepted that a decision which is legally unreasonable is made without jurisdiction. Although rationality and reasonableness depend upon ‘assumptions’ about statutory powers they are unlike other examples of jurisdictional error, which depend on the terms of a particular legislative scheme. Rather, these are assumptions operating across all legislative schemes unless clearly excluded.¹⁴⁸ They are broad assumptions based on the rule of law, which, by their incorporation into jurisdictional error, have a constitutional character.

F. PREDICTIONS AS TO FUTURE DEVELOPMENTS

Further developments in ‘constitutionalized’ Australian administrative law are likely to come from judges building on the concept of jurisdictional error (as has occurred in relation to rationality and reasonableness), from attention given to forms of relief not fully explored, and from use of non-statutory executive power in attempts to avoid review for jurisdictional error. In turn, we are likely to see the continuing demise of statutory forms of review. The *AD(JR) Act* is likely to continue into oblivion, for two principal reasons. First, the control of its application, through the exclusions in schedule 1, is precisely the kind of curtailment that caused constitutionalization to occur in the first place. If the executive and Parliament drive litigants out of statutory judicial review, only constitutional review remains. Second, the small copes of grounds remaining in the *AD(JR) Act* which may not be entirely captured by jurisdictional error because they are more likely to be errors occurring within jurisdiction (eg, failure to follow procedures required by law)¹⁴⁹ may suffer one of two fates. First, they may be drawn into jurisdictional error by way of statutory construction. Alternatively, relief may be declined on a discretionary basis, either because the error is not sufficiently material to the outcome of the decision, or because on a *Project Blue Sky* analysis, the condition imposed by Parliament was not intended to result in invalidity.

There is no reason to suppose the disproportionate contribution of migration law to Australian administrative law will cease in the foreseeable future. It continues to be one of the highest volume areas of federal administrative decision-making, it dramatically affects the interests of individuals, and it continues to be subject to frequent and detailed legislative changes. Further, the sheer volume creates its own streams of jurisprudence, giving rise to judicial reasoning that may track multiple, and not always consistent, paths in the identification of jurisdictional error.

Developments may occur in at least four areas over the next decade as administrative law becomes further constitutionalized. First, judicial review of executive power; second, the injunction jurisdiction under section 75(v); third, the embryonic but clear trend towards entrenching concepts such as reasonableness and rationality, including whether judges will identify proportionality as a third operating assumption in the exercise of public power.¹⁵⁰ Fourth, reactions by the States to federal concepts of judicial

review applying in State courts are likely to raise novel issues. How will State courts reconcile the new federal constitutional focus with their significant common law judicial review jurisprudence, and also perhaps with their natural inclinations to look to the common law to resolve questions in administrative law?

The approach taken by the High Court, as outlined in this chapter, requires considerable adjustment to apply to non-statutory executive power. Although references to the importance of judicial supervision of executive power can be found,¹⁵¹ without the controlling effects of statute the source of limits to be placed on executive power will require fresh consideration.¹⁵² Issues such as the role of procedural fairness in the exercise of executive power remain unresolved.¹⁵³

The scope for the use of injunctive relief pursuant to section 75(v) has been little explored. That is because judicial reviews generally occur after a decision has been made, or a function performed. Over the last fifteen years, several justices of the High Court have made obiter comments about the potential application of the injunction remedy in section 75(v). In *Miah*, Kirby J suggested that it may provide a basis for eliminating the distinction between jurisdictional and non-jurisdictional error.¹⁵⁴ Given developments since *Miah*, that seems unlikely. However, there are two other possibilities. The equitable character of injunction and its history of not being tied to conduct in excess of jurisdiction may lead to claims to restrain continuing or future administrative conduct, rather than parties waiting until a decision is made.¹⁵⁵ The difficulty will lie in establishing to the court's satisfaction that a future decision will be unlawful. The scope of non-jurisdictional error may also be a limiting factor. In *Project Blue Sky*, the Court made it clear that there is a role for injunctions where conduct may be unlawful by reason of a particular statutory provision but the provision does not make compliance a condition of validity.¹⁵⁶ However, that species of unlawfulness is rarely invoked, let alone successfully.¹⁵⁷ The second possibility is that injunctions will be used to develop concepts that are not currently part of jurisdictional error, such as proportionality.

G. CONCLUSION

I respectfully agree with the following observations of Justice John Basten:

[T]he discernible drift towards a theory of judicial review, subject to limitations based on the doctrine of separation of powers, provides a more satisfying rationale for accepted constraints than non-constitutional theories, based on the supposed distinction between errors of law and errors in fact-finding. Similarly, it provides a more satisfying justification for the label ‘jurisdictional error’. In an area where no bright lines can be drawn, and elusive distinctions are inevitable, a jurisprudential explanation capable of coherent articulation is valuable.¹⁵⁸

How often judges continue expressly to connect their task on judicial review with the Constitution depends upon the judicial minds involved and the justiciable controversies which present themselves. However, it is difficult to see any retreat from the insistence that judicial supervision of administrative and executive action in Australia is a constitutional function. Unless Parliament seeks to challenge the place of assumptions of reasonableness, fairness, and rationality in statutory schemes (which would test the qualifications in existing authorities about legislative power to oust them) the scope for further constitutionalization lies principally beyond jurisdictional error. It lies in the use of injunctions and declarations, judicial supervision of the exercise of executive power, and reactions of State courts and Parliaments to the approaches of federal courts. There is every reason to expect further developments.

* Federal Court of Australia. I am most grateful to my Associate, Glyn Ayres, and to Marcus Roberts, a JD student at Melbourne Law School, for their assistance with this chapter.

¹ cf James Spigelman, ‘The Centrality of Jurisdictional Error’ (2010) 21 Public Law Review 77, 81.

² Bradley Selway, ‘The Principle Behind Common Law Judicial Review of Administrative Action—The Search Continues’ (2002) 30 Federal Law Review 217, 229.

³ See the observations of Andrew Inglis Clark, reproduced in Robert French, ‘Constitutional Review of Executive Decisions—Australia’s US Legacy’ (2010) 35 University of Western Australia Law Review 35, 36.

⁴ (2000) 204 CLR 82, 92 [18] (footnotes omitted).

⁵ An acute example is *Plaintiff M68/2015 v Minister for Immigration and Border Protection* (2016) 90 ALJR 297, 307–08 [31]–[36] (French CJ, Kiefel, and Nettle JJ), 317 [93] (Bell J), 331 [173] (Gageler J), 334 [199] (Keane J), 355–57 [352]–[354] (Gordon J).

⁶ See, eg, Leslie Zines, *Cowen and Zines’s Federal Jurisdiction in Australia* (3rd edn, Federation Press 2002) 21–22, 46–57; Leslie Katz, ‘Aspects of the High Court’s Jurisdiction to Grant Prerogative Writs under s. 75(iii) and s. 75(v) of the Constitution’ (1976) 5 University of Tasmania

Law Review 188; James Stellios, 'Exploring the Purposes of Section 75(v) of the *Constitution*' (2011) 34 University of New South Wales Law Journal 70.

⁷ 5 US 137 (1803).

⁸ French (n 3) 35–37.

⁹ Official Record of the Debates of the Australasian Federal Convention (Melbourne, 4 March 1898) 1875.

¹⁰ John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (Angus & Robertson 1901) 779.

¹¹ *DJL v Central Authority* (2000) 201 CLR 226, 240–41 [25] (Gleeson CJ, Gaudron, McHugh, Gummow and Hayne JJ); *Aala* (n 4) 90–91 [14] (Gaudron and Gummow JJ).

¹² *MZXOT v Minister for Immigration and Citizenship* (2008) 233 CLR 601, 621 [33] (Gleeson CJ, Gummow and Hayne JJ).

¹³ Quick and Garran (n 10) 779.

¹⁴ See *R v Murray and Cormie; Ex parte Commonwealth* (1916) 22 CLR 437, 445–46 (Griffith CJ); *R v War Pensions Entitlement Appeal Tribunal; Ex parte Bott* (1933) 50 CLR 228, 242–43 (Rich, Dixon, and McTiernan JJ).

¹⁵ (n 14) esp 242 (Rich, Dixon and McTiernan JJ).

¹⁶ (2003) 211 CLR 476.

¹⁷ (2010) 239 CLR 531.

¹⁸ (n 14) at 243 ('The correctness or incorrectness of the conclusion reached by the tribunal is entirely beside the question whether a writ of mandamus lies') and 244 ('The Tribunal is administrative in its character; it is not a Court of justice. Unless it is expressly required to act on sworn testimony only, it is for the Tribunal to decide when it will exercise its power of taking evidence on oath').

¹⁹ In *Re McBain; Ex parte Australian Catholic Bishops Conference* (2002) 209 CLR 372, 437 [165] Kirby J offered one possible explanation: 'It may have followed a belief that the facility of appeal, envisaged by the Constitution, would, in any case, provide adequate remedies for non-jurisdictional error by judges and courts, at least so far as federal courts were concerned.'

²⁰ Zines (n 6) 51.

²¹ *SI57* (n 16) 507 [80] (Gaudron, McHugh, Gummow, Kirby and Hayne JJ). Declaratory relief is also seen as properly ancillary to the Court's jurisdiction under s 75(v): see *Combet v Commonwealth* (2005) 224 CLR 494, 578–79 [165] (Gummow, Hayne, Callinan and Heydon JJ); *Plaintiff M61/2010E v Commonwealth* (2010) 243 CLR 319, 359–60 [101]–[104] (the Court).

²² *Re McBain; Ex parte Australian Catholic Bishops Conference* (2002) 209 CLR 372, 394 [20] (Gleeson CJ), 403 [56] (Gaudron and Gummow JJ), 411–12 [84] (McHugh J), 467–71 [267]–[278] (Hayne J).

²³ *ibid* 403 [56]–[57] (Gaudron and Gummow JJ), 454–57 [224]–[233] (Kirby J), 471 [279] (Hayne J).

²⁴ See *M61* (n 21) 344–45 [50]–[51], 358–59 [100] (French CJ, Gummow, Hayne, Heydon, Crennan, Kiefel and Bell JJ); Matthew Groves, 'Outsourcing and s 75(v) of the Constitution' (2011) 22 Public Law Review 3.

²⁵ *Plaintiff M70/2011 v Minister for Immigration and Citizenship* (2011) 244 CLR 144 is a relatively recent example.

²⁶ See, eg, *Muin v Refugee Review Tribunal* (2002) 190 ALR 601, 615 [47] (Gaudron J); *Re Minister for Immigration and Multicultural Affairs; Ex parte Miah* (2001) 206 CLR 57, 122–23 [211] (Kirby J), picking up and echoing remarks, again, of Gaudron J in *Abebe v Commonwealth* (1999) 197 CLR 510, 551–52 [105]. Her Honour had made her view of the injunction as a constitutional

remedy clear in *City of Enfield v Development Assessment Commission* (2000) 199 CLR 135, 157–59 [57]–[60].

²⁷ (1998) 194 CLR 355, 393 [100] (McHugh, Gummow, Kirby and Hayne JJ) (footnotes omitted).

²⁸ See, further, Benjamin O'Donnell, 'Jurisdictional Error, Invalidity and the Role of Injunction in s 75(v) of the Australian Constitution' (2007) 28 Australian Bar Review 291, 296, 304–05, 326–29.

²⁹ *Ferrando v Pearce* (1918) 25 CLR 241.

³⁰ *R v Commonwealth Court of Conciliation and Arbitration; Ex parte Whybrow & Co* (1910) 11 CLR 1; *R v Commonwealth Court of Conciliation and Arbitration; Ex parte Brisbane Tramways Co Ltd (No 1)* (1914) 18 CLR 54; *Re McJannet; Ex parte Minister for Employment, Training and Industrial Relations (Qld)* (1995) 184 CLR 620, 652 (Toohey, McHugh and Gummow JJ).

³¹ *Commonwealth v Mewett* (1997) 191 CLR 471, 548 (Gummow and Kirby JJ); *British American Tobacco v Western Australia* (2003) 217 CLR 30, 44 [12], 46–47 [16]–[19] (Gleeson CJ), 57–58 [59], 58–59 [62] (McHugh, Gummow and Hayne JJ), 82–84 [141]–[144] (Kirby J).

³² Official Record of the Debates of the Australasian Federal Convention (Melbourne, 4 March 1898) 1885. The story of how Barton came to propose the reinsertion of what became s 75(v) is recounted in Stellios (n 6) 70–71. Stellios himself identifies three purposes for s 75(v): jurisdiction, federalism, and accountability: Stellios (n 6) 72.

³³ (1948) 76 CLR 1, 363.

³⁴ *S157* (n 16) 513 [103] (Gaudron, McHugh, Gummow, Kirby and Hayne JJ). See also *Bodruddaza v Minister for Immigration and Multicultural Affairs* (2007) 228 CLR 651, 668–69 (Gleeson CJ, Gummow, Kirby, Hayne, Heydon and Crennan JJ).

³⁵ For a discussion of the statutory regimes under the *Judiciary Act 1903* (Cth), see Administrative Review Council, *Federal Judicial Review* (Report no 50, 2012) 25 [2.4].

³⁶ Some of this history is traced by Kenny J in *Jadwan Pty Ltd v Department of Health and Aged Care* (2003) 145 FCR 1, 23–24 [69]–[72]. See also Administrative Review Council (n 35) 9–11, 25–31 [2.1]–[2.28]; Robin Creyke and John McMillan, 'Administrative Law Assumptions ... Then and Now' in Robin Creyke and John McMillan (eds), *The Kerr Vision of Australian Administrative Law—At the Twenty-Five Year Mark* (Australian National University 1998) 1; Linda Curtis, 'The Vision Splendid: A Time for Re-Appraisal' in *ibid* 36.

³⁷ *Federal Court of Australia Act 1976* (Cth), s 5.

³⁸ *Administrative Appeals Tribunal Act 1975* (Cth), s 5.

³⁹ *Administrative Decisions (Judicial Review) Act 1977* (Cth), ('AD(JR) Act').

⁴⁰ *Judiciary Act 1903* (Cth), s 39B(1).

⁴¹ See, eg, *Laginha v Family Court of Australia* (1997) 78 IR 312, 314 (Wilcox J); *Rani v Minister for Immigration and Multicultural Affairs* (1997) 80 FCR 379, 390–91 (Sackville J); *Arnhem Land Aboriginal Land Trust v Minister for Mines and Energy for the Northern Territory* (1997) 78 FCR 556, 564–65 (O'Loughlin J).

⁴² Subject to discretionary control by the court: *AD(JR) Act*, s 10(2).

⁴³ See, eg, *R v Joske; Ex parte Shop, Distributive & Allied Employees' Association* (1976) 135 CLR 194.

⁴⁴ Mark Aronson, Matthew Groves, and Greg Weeks, *Judicial Review of Administrative Action and Government Liability* (6th edn, Lawbook Co. 2017) 258–60[4.640]–[4.650].

⁴⁵ See, eg, Administrative Review Council, *Administrative Decisions (Judicial Review) Act 1977—Exclusions under Section 19* (Report no 1, 1978) 9–10 [12]–[13].

⁴⁶ (1977) 137 CLR 396.

⁴⁷ See, generally, Mary Crock and Laurie Berg, *Immigration, Refugees and Forced Migration: Law, Policy and Practice in Australia* (Federation Press 2011) 473[16.1], 482 [16.28], 634–40 [19.56]–[19.75]. By s 2 of the *Migration Laws Amendment Act 1993* (Cth), the relevant amendments did not come into operation until 1 September 1994.

⁴⁸ Crock and Bird (n 47) 15 [1.37].

⁴⁹ French J traced the history of Australia's migration statutes (to the point of his Honour's decision) with customary precision in *NAAV v Minister for Immigration and Multicultural and Indigenous Affairs* (2002) 123 FCR 298, 397–410 [386]–[429], including the various regimes for judicial review of migration decisions. See also Cheryl Saunders, 'Plaintiff S157/2002: A Case-study in Common Law Constitutionalism' (2005) 12 Australian Journal of Administrative Law 115, 119–20.

⁵⁰ Traced in Stephen Gageler, 'Impact of Migration Law on the Development of Australian Administrative Law' (2010) 17 Australian Journal of Administrative Law 92.

⁵¹ S157 (n 16).

⁵² See, eg, *Re McJannet* (n 30) 652–53 (Toohey, McHugh and Gummow JJ); *Chu Kheng Lim v Minister for Immigration, Local Government and Ethnic Affairs* (1992) 176 CLR 1, 36–37 (Brennan, Deane and Dawson JJ); *Attorney-General (NSW) v Quin* (1990) 170 CLR 1, 35–40 (Brennan J); *Re Coldham; Ex parte Australian Building Construction Employees' & Builders Labourers' Federation* (1985) 159 CLR 522, 530–31 (Gibbs CJ, Wilson and Dawson JJ); *R v Gray; Ex parte Marsh* (1985) 157 CLR 351, 374–75 (Mason J), 379–80 (Brennan J), 377–78 (Deane J), 394 (Dawson J).

⁵³ (1995) 184 CLR 163.

⁵⁴ See, eg, Commonwealth, *Report of the Commonwealth Administrative Review Committee*, Parliamentary Paper No 144 (1971) [34]; Harry Whitmore and Mark Aronson, *Review of Administrative Action* (Law Book Company 1978) 37 ('an ancient ground ... [that] has been refurbished quite a deal in recent years'); and *Public Service Association (SA) v Federated Clerks' Union of Australia, South Australia Branch* (1991) 173 CLR 132, in which it is liberally spread through the judgment of Brennan J. However, its use by McHugh J in the same case reveals a different, narrower, understanding that does not include relevant or irrelevant consideration errors or (perhaps) procedural fairness: at 165–66.

⁵⁵ [1969] 2 AC 147. In rejecting *Anisminic*, the Court affirmed the distinction between non-jurisdictional and jurisdictional errors: *Craig* (1995) 184 CLR 163, 178–79.

⁵⁶ *Bott* (n 14). See above n 18.

⁵⁷ *R v Gray; Ex parte Marsh* (1985) 157 CLR 351, 372 (Gibbs J).

⁵⁸ *R v Commonwealth Court of Conciliation & Arbitration; Ex parte Grant* (1950) 81 CLR 27, 53; *R v Blakeley; Ex parte Association of Architects, &c., of Australia* (1950) 82 CLR 54, 80.

⁵⁹ *R v Neil; Ex parte Cinema International Corporation Pty Ltd* (1976) 134 CLR 27, 36; *Coldham* (n 52) 421; *R v Bain; Ex parte Cadbury Schweppes Australia Ltd* (1984) 159 CLR 163, 165.

⁶⁰ *R v Ross-Jones; Ex parte Green* (1984) 156 CLR 185, 225; *Re Queensland Electricity Commission; Ex parte Electrical Trades Union of Australia* (1987) 72 ALR 1, 14.

⁶¹ *Re Jarman; Ex parte Cook* (1997) 188 CLR 595, 647; *Attorney-General (Qld) v Riordan* (1997) 192 CLR 1, 35; *Re JJT; Ex parte Victoria Legal Aid* (1998) 195 CLR 184, 196 [29]; *Abebe* (n 26) 583–84 [208]–[212]; *Re Wakim; Ex parte McNally* (1999) 198 CLR 511, 620 [237]–[238]; *DJL v Central Authority* (2000) 201 CLR 226, 274 [124].

⁶² (n 4) 92–93 [19]–[21]. See also Kirby J, continuing his Honour's views from the previous decade: at 133–34 [138]; and Hayne J: at 140–41 [161]–[162].

⁶³ See, eg, *Plaintiff S4/2014 v Minister for Immigration and Border Protection* (2014) 253 CLR 219, 235 [39] (French CJ, Hayne, Crennan, Kiefel and Keane JJ).

⁶⁴ See, eg, *Fingleton v The Queen* (2005) 227 CLR 166, 201–02 [89] (McHugh J); *East Australian Pipeline Pty Ltd v Australian Competition and Consumer Commission* (2007) 233 CLR 229, 247–48 [71] (Gummow and Hayne JJ); *X7 v Australian Crime Commission* (2013) 248 CLR 92, 124 [59] (French CJ and Crennan J).

⁶⁵ *Church of Scientology Inc v Woodward* (1982) 154 CLR 25, 70.

⁶⁶ (n 26) 560 [137] (footnotes omitted) (changes in original).

⁶⁷ (n 16).

⁶⁸ (1994) 179 CLR 427, 437 (Mason CJ, Brennan, Gaudron and McHugh JJ). The presumption is that absent clear language courts will not infer that Parliament intended to affect adversely fundamental rights.

⁶⁹ (2004) 221 CLR 309, 329 [21].

⁷⁰ John Basten, ‘Constitutional Elements of Judicial Review’ (2004) 15 Public Law Review 187, 191.

⁷¹ See, eg, *Minister for Immigration and Citizenship v Haneef* (2007) 163 FCR 414; *Sinkovich v Attorney General (NSW)* (2013) 85 NSWLR 783.

⁷² *Zheng v Cai* (2009) 239 CLR 446, 455–56 [28] (French CJ, Gummow, Crennan, Kiefel and Bell JJ).

⁷³ (n 52) 170 CLR 1, 34.

⁷⁴ 5 US 137 (1803).

⁷⁵ *Quin* (n 52) 35.

⁷⁶ *ibid* 37–38.

⁷⁷ Stephen Gageler has called Brennan J’s analysis ‘top down reasoning at the highest level’: ‘The Underpinnings of Judicial Review of Administrative Action: Common Law or Constitution?’ (2000) 28 Federal Law Review 303, 307.

⁷⁸ See, eg, *Enfield* (2000) 199 CLR 135, 152–55 [43]–[48]; cf *Botany Bay City Council v Minister of State for Transport and Regional Development* (1996) 66 FCR 537, 561ff; and see *Bruce v Cole* (1998) 45 NSWLR 163, 184–85.

⁷⁹ (2003) 214 CLR 1, 24–25 [76]–[77].

⁸⁰ (2000) 199 CLR 135.

⁸¹ And thus from the *Chevron* doctrine: *Chevron USA Inc v Natural Resources Defense Council Inc* 467 US 837 (1984).

⁸² *Enfield* (n 80) 155 [48] (Gleeson CJ, Gummow, Kirby and Hayne JJ), Gaudron J agreeing at 158–59 [59]–[60].

⁸³ Stephen McLeish, ‘The Nationalisation of the State Court System’ (2013) 24 Public Law Review 252, 256. McLeish describes this as ‘another nationalising force in Australia’, with the Constitution affecting common law judicial review principles.

⁸⁴ (1999) 197 CLR 611.

⁸⁵ See, eg, *Chan v Minister for Immigration and Ethnic Affairs* (1989) 169 CLR 379; *Minister for Immigration and Ethnic Affairs v Guo* (1997) 191 CLR 559.

⁸⁶ (1996) 185 CLR 259.

⁸⁷ (n 49).

⁸⁸ See the then s 476(2) of the *Migration Act* which excluded the grounds of natural justice and unreasonableness.

⁸⁹ *Eshetu* (n 84) 641 [102].

⁹⁰ *ibid* 647 [119].

⁹¹ *ibid* 651 [131] (footnotes omitted).

⁹² (1944) 69 CLR 407, 428 (Latham CJ), 438–39 (Starke J).

⁹³ (1997) 191 CLR 602, 631–33 (Gaudron and Gummow JJ).

⁹⁴ *Eshetu* (n 84) 652 [133] (Gummow J).

⁹⁵ *ibid* 656–57 [145].

⁹⁶ *SI57* (n 16).

⁹⁷ *Baxter v New South Wales Clickers' Association* (1909) 10 CLR 114, 131, to which Gleeson CJ refers in *SI57* (n 16) 484 [10].

⁹⁸ (1945) 70 CLR 598, 614.

⁹⁹ See, eg, *R v Murray; Ex parte Proctor* (1949) 77 CLR 387, 394 (Latham CJ), 398 (Dixon J); *O'Toole v Charles David Pty Ltd* (1990) 171 CLR 232, 250 (Mason CJ), 270 (Brennan J), 292 (Deane, Gaudron and McHugh JJ); *Coldham* (n 52) 418 (Mason ACJ and Brennan J), 427 (Deane and Dawson JJ); *Deputy Commissioner of Taxation v Richard Walter Pty Ltd* (1995) 183 CLR 168, 185 (Mason CJ), 192 (Brennan J), 207 (Deane and Gaudron JJ), cf McHugh J at 241–42; *Darling Casino* (n 93) 632–33 (Gaudron and Gummow JJ). It is notable that in *Richard Walter* at least two judges discussed the necessity of s 75(v), and whether it was procedural or substantive: at 221 (Dawson J), 231–32 (Toohey J).

¹⁰⁰ (1997) 191 CLR 602, 632–33 (footnotes omitted).

¹⁰¹ A history of Australia's migration statutes is traced, as I have noted, by French J in *NAAV* (n 49) 397–410 [386]–[429]. Eight Bills were introduced and passed by Parliament at this time, in the wake of the events surrounding the MV Tampa and the asylum seekers on that ship: see *Ruddock v Vadarlis* (2001) 110 FCR 491. The terms of that privative clause, s 474 of the *Migration Act*, were comprehensive and are set out in *NAAV*: at 409 [424].

¹⁰² *NAAV* (n 49).

¹⁰³ See, eg, Black CJ, picking up the descriptions of jurisdictional error set out in *Craig* 184 CLR 163, 179: at *NAAV* (n 49) 314 [30]. See also Beaumont J at 340 [105] and von Doussa J at 479 [636]. Denials of procedural fairness were also held to be protected: *ibid* 305 [4] (Black CJ), 374 [277] (Beaumont J), 482 [645] (von Doussa J).

¹⁰⁴ *ibid* 385 [332], 392 [373] (Wilcox J); 443 [523], 448 [537] (French J).

¹⁰⁵ Callinan J's judgment proceeded on a different basis: *SI57* (n 16) 531–32 [152]–[153], 534–35 [160].

¹⁰⁶ *ibid* 483–84 [7]–[8], 493 [33] (Gleeson CJ), 501 [60], 505 [72] (Gaudron, McHugh, Gummow, Kirby, and Hayne JJ).

¹⁰⁷ *ibid* 484 [9] (Gleeson CJ), 505 [73], 505–06 [75] (Gaudron, McHugh, Gummow, Kirby and Hayne JJ).

¹⁰⁸ *ibid* 490 [25] (Gleeson CJ), 508 [84] (Gaudron, McHugh, Gummow, Kirby and Hayne JJ).

¹⁰⁹ See *Re Minister for Immigration and Multicultural Affairs; Ex parte Applicant S20/2002* (2003) 198 ALR 59, 65 [27] (McHugh and Gummow JJ): 'The contraction in the operation of the ADJR Act has attached added significance to s 75(v). The decisions upon s 75(v), which extend across the whole period of the court's existence, may have been overlooked or discounted by administrative lawyers as being largely of immediate concern for industrial law. That, as this litigation illustrates, can no longer be so.'

¹¹⁰ Some might see *Federal Commissioner of Taxation v Futuris Corp Ltd* (2008) 237 CLR 146 as a qualified retreat in respect of 'no-invalidity' clauses, but, as Spigelman has argued, the result in that case should be seen in the context of the arguments put to the Court and the fact that the taxpayer had made a separate application to the AAT for merits review of the Commissioner's decision: Spigelman (n 1) 90–91.

- ¹¹¹ (n 34).
- ¹¹² *ibid* 671 [53] (footnotes omitted) (Gleeson CJ, Gummow, Kirby, Hayne, Heydon and Crennan JJ).
- ¹¹³ *ibid* 672 [58].
- ¹¹⁴ See, eg, s 417 of the *Migration Act*, subsection (7) of which provides that the Minister ‘does not have a duty to consider whether to exercise the power under subsection (1)’, being a power to substitute certain decisions of the AAT relating to protection visas with another decision more favourable to the applicant.
- ¹¹⁵ (2010) 243 CLR 319.
- ¹¹⁶ *ibid* 348 [62] (the Court) (*italics in original*).
- ¹¹⁷ *ibid* 353 [76].
- ¹¹⁸ *ibid* 355–56 [87]–[88] (footnotes omitted) (*changes in original*).
- ¹¹⁹ *ibid* 358–59 [99]–[100].
- ¹²⁰ (2012) 246 CLR 636.
- ¹²¹ *ibid* 656 [57].
- ¹²² *ibid* 667–68 [99]–[100].
- ¹²³ *ibid* 654–55 [50].
- ¹²⁴ Described by McHugh and Gummow JJ in *Applicant S20* (n 109) 73 [59] as manifesting ‘the separation between the judicial power and the legislative function of translating policy into statutory form and the executive function of administration of those laws’.
- ¹²⁵ See, eg, Chris Finn, ‘Constitutionalising Supervisory Review at State Level: The End of *Hickman*?’ (2011) 21 Public Law Review 92, 103–04; Justice Nye Perram, ‘*Project Blue Sky*: Invalidity and the Evolution of Consequences for Unlawful Administrative Action’ (2014) 21 Australian Journal of Administrative Law 62.
- ¹²⁶ Both of these matters emerge from the High Court’s reasons in *Project Blue Sky* (n 27) 388–89 [91] (McHugh, Gummow, Kirby and Hayne JJ).
- ¹²⁷ See, eg, *Alcan (NT) Alumina Pty Ltd v Commissioner of Territory Revenue* (2009) 239 CLR 27, 46–47 [47] (Hayne, Heydon, Crennan and Kiefel JJ) and the cases there cited.
- ¹²⁸ See, eg, Gageler, ‘The Underpinnings of Judicial Review’ (n 77) 312.
- ¹²⁹ *Kable v DPP (NSW)* (1996) 189 CLR 51.
- ¹³⁰ See *Baker v The Queen* (2004) 223 CLR 513, 535 [54] (Kirby J); Brendan Lim, ‘Attributes and Attribution of State Courts—Federalism and the *Kable* Principle’ (2012) 40 Federal Law Review 31, 33, 43–44. But exceptions exist: eg, *International Finance Trust Co Ltd v NSW Crime Commission* (2009) 240 CLR 319; *South Australia v Totani* (2010) 242 CLR 1.
- ¹³¹ (n 129) 141–42.
- ¹³² *Kirk* (n 17) 566–67 [55] (French CJ, Gummow, Hayne, Crennan, Kiefel and Bell JJ). The three key paragraphs in *Kirk* concerning what is there described as the ‘constitutional significance of the supervisory jurisdiction of the State Supreme Courts’ appear at 580–81 [98]–[100].
- ¹³³ (1998) 193 CLR 346, 444 [186].
- ¹³⁴ See, eg, John Basten, ‘Jurisdictional Error after *Kirk*: Has It a Future?’ (2012) 23 Public Law Review 94; Perram (n 125) 70–71.
- ¹³⁵ *cf Minister for Immigration and Citizenship v SZMDS* (2010) 240 CLR 611, 645–46 [124] (Crennan and Bell JJ).
- ¹³⁶ There are no constitutional references in the relevant parts of the reasons of Crennan and Bell JJ: see *ibid* 644–48 [121]–[130], and their Honours take a less absolute approach to discerning error: *ibid* [131].

- ¹³⁷ *ibid* 616 [7].
- ¹³⁸ *ibid* 620–21 [23]–[24] (footnotes omitted).
- ¹³⁹ (2013) 249 CLR 332.
- ¹⁴⁰ *Associated Provincial Picture Houses Ltd v Wednesbury Corporation* [1948] 1 KB 223.
- ¹⁴¹ *Li* (n 139) 348 [23].
- ¹⁴² (1945) 69 CLR 613, 629–30.
- ¹⁴³ *Li* (n 139) 349–52 [24]–[30].
- ¹⁴⁴ *ibid* 362 [64].
- ¹⁴⁵ (n 4) 100 [39].
- ¹⁴⁶ (1997) 190 CLR 1, 36.
- ¹⁴⁷ *Li* (n 139) 363–64 [64] (Hayne, Kiefel and Bell JJ).
- ¹⁴⁸ It is difficult to see how statutory authorization to make a legally unreasonable decision would withstand scrutiny under s 75(v), on current authorities. It seems likely that such authorizations, if made, would go the way of privative clauses.
- ¹⁴⁹ *AD(JR) Act*, s 5(1)(b).
- ¹⁵⁰ In particular, whether the reasoning in decisions such as *McCloy v New South Wales* (2015) 257 CLR 178 will be extended to administrative law. In *CPCF v Minister for Immigration and Border Protection* (2015) 89 ALJR 207, 223–24 [45], French CJ, in describing the limits of lawful executive detention (with a reference to the plurality in *Li* at [74] and his Honour’s own reasons at [30]) said: ‘Being incidental and therefore purposive it must not be obviously disproportionate in duration or character to the purpose it serves.’
- ¹⁵¹ See *Ruddock v Vadarlis [No 2]* (2001) 115 FCR 229, 242–43 [30]–[31] (French J).
- ¹⁵² Some commentators have suggested there can be few such limits: see, eg, Jeremy Kirk, ‘The Entrenched Minimum Provision of Judicial Review’ (2004) 12 Australian Journal of Administrative Law 64, 67.
- ¹⁵³ See, eg, the obiter comments of Keane J in *CPCF* (n 150) 288 [505]–[509].
- ¹⁵⁴ (n 26) 122–23 [211]–[212].
- ¹⁵⁵ See Deane and Gaudron JJ in *Deputy Commissioner of Taxation v Richard Walter Pty Ltd* (1995) 183 CLR 168, 206–07, where their Honours saw no reason to confine injunctive relief under s 75(v) to jurisdictional errors. See also *Abebe* (n 26) 551–52 [104]–[105] (Gaudron J); *Miah* (n 26) 122–23 [211]–[212] (Kirby J); *Futuris* (2008) 237 CLR 146, 162 [47] (Gummow, Hayne, Heydon and Crennan JJ). For an example of injunction as an effective public law remedy see *M70* (n 25) 244 CLR 144.
- ¹⁵⁶ (n 27) 393 [100] (McHugh, Gummow, Kirby and Hayne JJ).
- ¹⁵⁷ See, eg, *Coordinated Construction Co Pty Ltd v Climatech (Canberra) Pty Ltd* [2005] NSWCA 229, [29] (Hodgson JA), [53] (Ipp JA). In *Wingfoot Australia Partners Pty Ltd v Kocak* (2013) 252 CLR 480 the Court confirmed the existence of errors of law within jurisdiction, but did not identify in any detail what kinds of errors they would be.
- ¹⁵⁸ Basten (n 70) 201.

PART VI

FEDERALISM

CHAPTER 30

DESIGN

NICHOLAS ARONEY

A. INTRODUCTION

CENTRAL to the design of Australia's federal system are two important propositions affirmed in the preamble to the Constitution.¹ These propositions are, firstly, that the Constitution was predicated on an agreement between the people of the Australian colonies and, secondly, that the intention was to unite the colonies into an indissoluble federal commonwealth. The Australian Constitution does not rest upon the consent of an already consolidated people; nor does it create a unitary state. It is the result of an agreement among several mutually independent political communities and it establishes a federal system of government that preserves their continuing existence as self-governing polities.²

This idea of a federal commonwealth involves four fundamental elements.³ Firstly, the foundational element concerns the origin of the Constitution in a negotiated agreement between constituent States. The entire federating process was initiated, designed, and supervised by the governments and legislatures of the six Australian colonies. The process involved the establishment of two successive federal Conventions, the first held in 1891, the second in 1897–98. Both Conventions were charged with responsibility of negotiating and drafting a proposed Constitution for the federation of the colonies. Each colony was equally represented at the two Conventions.⁴ The draft Constitution produced by the first Convention lapsed due to lack of support among the colonial governments, whereas the efforts of the second Convention were ultimately successful. The draft produced by the second Convention was referred to the colonial legislatures

for comment, further revised by the Convention, and ultimately submitted to the voters in each colony for approval. Only then was the Constitution finally presented to the British Parliament for enactment into law in 1900.⁵

Secondly, the Constitution simultaneously established the governing institutions of the Commonwealth of Australia (sections 1, 61, 71), guaranteed the continuing existence and operation of the governing institutions of the constituent States (section 106), and made provision for their concurrent operation in their respective jurisdictions (sections 51, 107, 109).⁶ The fact that prior to federation the colonies had exercised general governing powers over their respective territories implied that they would continue to exercise such powers after federation, subject only to those limitations necessary to establish the Commonwealth and confer appropriate governing powers upon it. The guiding principle was to grant the Commonwealth responsibility for those matters that the colonies were not able to address effectively themselves, either individually or co-operatively. The Commonwealth's legislative powers were therefore confined to particular topics (sections 51 and 52), its executive power extended only to the maintenance and execution of the Constitution and the laws of the Commonwealth (section 61), and its judicial power was limited to particular heads of jurisdiction (sections 73, 75, 76). The framers believed the Commonwealth's legislative powers should for the most part be concurrent with those of the States, thus preserving the power of the States to legislate in those fields (section 51). This gave rise to the possibility of inconsistencies between Commonwealth and State laws. It was provided that such inconsistencies would be resolved in favour of the Commonwealth (section 109). Provision was also made for the transfer to the Commonwealth of certain departments of the public service of each State and for the vesting in the Governor-General of certain matters previously vested in the State Governors (sections 69 and 70). The framers also recognized the need to address the relationship between the Commonwealth and State judicial systems. They did this by providing that the jurisdiction of the High Court of Australia would include the determination of appeals from the Supreme Courts of the States (section 73) and that the original jurisdiction of the High Court (sections 75 and 76) could be conferred on State courts (section 77(iii)).⁷ In these ways, the framers created a system in which the Commonwealth and the States would function as mutually independent governments, each with their distinct

institutions and constitutionally guaranteed powers and responsibilities, operating within an integrated system of government organized under the Constitution.

Thirdly, the governing institutions of the Commonwealth reflect the fact that the federation was, and is, a composition of constituent States. This is primarily secured through the bicameral structure of the federal Parliament, consisting of a Senate in which the people of each State were represented (section 7) and a House of Representatives in which the people of the Commonwealth were represented (section 24).⁸ It is also secured by requiring Ministers of the Crown at a federal level to hold seats in the Parliament (section 64) and by constructing the financial powers of the two houses so that the executive government of the Commonwealth would be dependent upon the financial support and political confidence of at least the House of Representatives, if not also to some extent the Senate (section 57).⁹ Given the important role that the High Court must play as the final court of appeal and the independent adjudicator of legal disputes over the interpretation and application of the Constitution, it is also provided that Justices of the High Court (and of any other federal court) are to be appointed by the Governor-General in Council, cannot be removed except on an address from both Houses of the Parliament on the ground of proved misbehaviour or incapacity, and their remuneration cannot be diminished during their continuance in office (section 72).

Fourthly, the Constitution establishes an indissoluble federal Commonwealth.¹⁰ Neither the Commonwealth nor the States have power to dissolve or change the terms of the federal union unilaterally. The Constitution is not alterable except through a prescribed process which requires the initiative to be taken by the House of Representatives and the Senate, and which requires any amendment proposal to be approved by a majority of the people of the States and a majority of the people of the Commonwealth (section 128). In this way, the framers of the Australian Constitution designed a federal system that could not be altered fundamentally without the approval of those from whom the institutions of government derived their legitimate authority.¹¹ Further, in the event of any legal dispute involving the Commonwealth or the States, the framers anticipated that the matter would be adjudicated by the High Court of Australia, the members of which, although appointed by the federal

government, would be responsible to interpret and apply the law of the Constitution to the dispute in a manner independent of the Commonwealth and the States.¹² The Constitution would thus operate as a higher law binding the political institutions of both orders of government.

These four themes are fundamental to the Constitution's federal design. While the Constitution gives effect to several other important constitutional principles and values,¹³ virtually all the provisions of the Constitution are related to and shaped by federalism in one way or another. It is the objective of this chapter to demonstrate exactly how this is the case, principally by undertaking a thematic survey of the particular provisions of the Constitution and explaining their intended role within the federal system as a whole. In so doing, the chapter will necessarily involve some reflection on the constitutional models that influenced the framing of the Constitution, the theories according to which those models were interpreted, and the ways in which those theories and models were adapted by the framers to their own local conditions and aspirations. For the social, economic, and political context in which the Constitution was brought into being, as well as the constitutive processes by which it was drafted, ratified, and enacted into law, all had a significant influence on its federal design.

B. FORMATION

The preamble to the *Commonwealth of Australia Constitution Act 1900* (UK) attributes the origin and legitimacy of the Australian Constitution to an agreement between the people of the constituent colonies to be united into one indissoluble federal Commonwealth.¹⁴ The framers of the Constitution derived the idea of an agreement between constituent States from their reading of a range of contemporary writers on the subject of federalism, the most influential of whom were James Madison, James Bryce, Edward Freeman, and Albert Venn Dicey.¹⁵ All of these writers characterized existing federal systems—such as the United States, Switzerland, and, to a lesser extent, Canada and Germany—as being authentically founded upon treaty-like agreements between constituent States.¹⁶ Madison, whose incisive analysis of the American Constitution played a strategically important role in the federation debate in Australia, pointed to a systematic relationship between the formative basis of federal

systems in a federative compact and the representative structures, configurations of power, and amendment processes adopted thereunder.¹⁷ Partly because the Australian framers were influenced by Madison, and partly because Madison's analysis provided an insight into the underlying dynamics of federal constitution-making, the text, structure, and principles of the Australian Constitution reflected this relationship between formation, representation, configuration of power, and amendment.¹⁸

Madison's analysis of the structural features of the American federal system was reproduced by Thomas Just in a booklet prepared for the delegates of the first federal Convention held in Sydney in 1891 on the instructions of the then Tasmanian Attorney-General, Andrew Inglis Clark.¹⁹ The leading Tasmanian delegate to the Convention, Clark prepared a draft Constitution that proved to be very influential.²⁰ In a confidential memorandum, Clark explained that his draft was premised on a 'voluntary union' among 'independent communities', and that this made certain features of the proposed constitution virtually inevitable, especially the delegation of a limited number of specific powers to the federal Parliament, while the powers not delegated would be reserved to the constituent States and their people, as well as the principle that each of the constituent States would be represented equally in one of the Houses of the federal Parliament.²¹ Although the textual details of the Constitution developed through numerous iterations over the remainder of the decade, these two features of the federal system, predicated on its formation through an agreement among the constituent colonies, remained fundamental to its federal design.

Admittedly, there were a small number of delegates to the federal Conventions who did not agree. Rather than conceive the federation to be predicated on the agreement of the colonies, two influential Victorian delegates, Isaac Isaacs and Henry Bournes Higgins, would have preferred to have seen it founded on the consent of the Australian people as a whole. Higgins in particular advocated that the Constitution should be ratified ultimately by a national referendum and he reasoned about the design of the Constitution in a manner that was premised on the sovereignty of the people of the entire nation, without regard to the distinct political communities into which they were grouped politically.²² Drawing on accounts of constitutional law and political theory advanced by A V Dicey and John

Burgess,²³ Higgins maintained that there must in every political community exist some institution or body in which ‘ultimate sovereignty’ is located.²⁴ According to Higgins, while the ‘theoretical sovereignty’ of the British Parliament had to be acknowledged, ‘practical sovereignty’ in Australia ‘ought to rest with the Australian people’ as a whole.²⁵ Following John Locke,²⁶ Higgins further argued that popular sovereignty must mean majority rule,²⁷ and he understood this to require that a majority of the people of Australia should play a decisive role in the ratification of the Constitution, in the election of members of the federal Parliament, and in any decision to amend the Constitution.²⁸

However, Higgins’ approach flew in the face of the unavoidable reality that, despite their constitutional dependence on the British Parliament, the Australian colonies were mutually independent and had long been exercising local powers of self-government and constitutional self-determination, most of them since the 1850s.²⁹ Federation would therefore have to depend on the consent of each colony. As Samuel Griffith, then Premier of Queensland, observed at an important conference held in Melbourne in 1890, the Australian colonies had been ‘accustomed for so long to self-government’, they had ‘become practically almost sovereign states’.³⁰ Any federation of the Australian colonies would therefore have to depend on ‘public opinion in the different colonies’ and there was therefore no point in formulating ‘abstract resolutions’ about the kind of federation to be established ‘unless effect will be given to them’ by the colonial legislatures.³¹

Those who wished to establish a relatively centralized federal system had to yield to this reality. Alfred Deakin, a leading delegate from Victoria, observed at the Adelaide sitting of the second Convention:

[It is] not merely a question as to which form can be most logically deduced from certain premises which may or may not be generally accepted; it is a question between equal contracting parties, as to the terms and conditions on which they will enter the Federation.³²

The framers of the Constitution thus recognized that a genuinely federal system would have to be created, meaning a system which acknowledged the fundamentally constitutive role of the colonies, expressed in the distribution of governing authority, the construction of the representative institutions of the federal government, and the procedures by which the

Constitution could be changed in the future. The most important difference between the two federal Conventions was that while the first consisted of delegates of the colonial legislatures and anticipated that the proposed Constitution would have to be approved by those legislatures, the second Convention consisted of members directly elected by the voters in four of the five colonies and anticipated ratification of the Constitution by referenda held in each colony prior to its enactment by the Imperial Parliament. In both Conventions, the principle of an agreement among the colonies remained fundamental; what differed was exactly how that agreement was to be secured and expressed. As will be seen, this subtle difference between the two Conventions implied certain important differences in the federal design of the Constitution.

C. DISTRIBUTION OF POWERS

The objective of the Australian framers was to design a Constitution suitable for the establishment of a federal Commonwealth, by which they meant, as James Bryce had put it, a ‘commonwealth of commonwealths’.³³ A federal union of the Australian colonies therefore involved the establishment of a federal government to which substantial but particular powers would be granted, subject to which the existing powers, privileges, and territorial rights of the colonies would remain as they were prior to federation.³⁴ As the Premier of New South Wales, Henry Parkes, put it in one of the principal resolutions adopted by the federal Convention of 1891:

the powers and privileges and territorial rights of the several existing colonies shall remain intact, except in respect to such surrenders as may be agreed upon as necessary and incidental to the power and authority of the National Federal Government.³⁵

Parkes’ resolution envisaged the creation of a ‘national federal government’ possessing a full array of legislative, executive, and judicial powers that could be exercised independently of the States, but it just as clearly envisaged the preservation and continuance of all of the existing self-governing powers, privileges, and territorial rights of the States, subject only to such surrenders as might be agreed upon as necessary to the creation of the federal government. The prevailing idea was that any such federation would have to occur ‘on principles just to the several colonies’.³⁶ Parkes’ resolution made clear that it would be for representatives of the colonies

themselves to determine by negotiation what those principles would be, in line with the proposition that the federation must rest upon the agreement and consent of its constituent States. Charles Kingston, who would soon become Premier of South Australia, put it this way:

[W]e are dealing with autonomous States, who have long enjoyed the blessing of self-government, and who should not be asked—and who, if asked, would not be likely to accede to the request—to sacrifice any of their existing powers other than those which it is absolutely necessary should be surrendered in the national interest.³⁷

1. Legislative Powers

This understanding of the fundamental premises of the federation led to a certain view of the configuration of powers between the Commonwealth and the States. The States were seen as possessing original powers of local self-government which would ‘continue’ under rather than be ‘established’ by the Constitution (sections 106 and 107). Federation did not entail the eradication of their independent legislative, executive, and judicial powers of local self-government. Their continuance, subject to the Constitution, was one of the fundamental presuppositions of the federal compact. However, federation also involved the establishment of the Commonwealth as a genuine ‘federal government’ possessing similarly independent legislative powers over certain carefully defined and limited topics (sections 51 and 52). By agreeing to unite in one indissoluble federal Commonwealth ‘under the Constitution’, the States accepted that their powers of local self-government would continue ‘subject to’ the Constitution, and that in the case of any inconsistency between a law of the Commonwealth and a law of a State, the former would prevail to the extent of the inconsistency (section 109).

What principle, then, would guide the identification of the particular powers to be conferred upon the Commonwealth? Samuel Griffith proposed that the States should only surrender those powers that were ‘necessary to the establishment of a general government to do for them collectively what they cannot do individually for themselves, and which they cannot do as a collective body for themselves’.³⁸ Richard O’Connor similarly argued that the States should retain power over all matters they could suitably manage themselves and that only ‘necessary’ matters should come within the jurisdiction of the federal government.³⁹ Frederick Holder said that the

States should retain control of every matter that was ‘local’ or concerned each State considered in isolation, whereas matters of ‘national’ or ‘inter-state’ character or importance should be conferred upon the federation—provided that they could be exercised ‘more wisely and well and effectively’ in that way.⁴⁰ Henry Dobson put the matter clearly when he proposed that the Constitution should reserve to the States ‘those powers which they can better carry out for themselves’, while conferring upon the federal government ‘those powers of common or general concern which a united Government can manage much better for the good of the people than the individual States’.⁴¹ William McMillan added that sufficient power ought to be given to the federal government to enable it to be a ‘strong, stable national government ... able to confront the whole outside world’, while reserving to the States sufficient powers to manage their local affairs.⁴²

After long debate, the framers settled upon a relatively long list of matters in respect of which the Commonwealth Parliament would be able to legislate.⁴³ Some were particularly concerned with the affairs, institutions, or governmental needs of the Commonwealth itself: such as taxation, borrowing, and acquisition of property.⁴⁴ Many of them concerned relations with the outside world: powers over trade and commerce with other countries, bounties on the export of goods, defence, quarantine, fisheries, naturalization and aliens, foreign corporations, immigration and emigration, influx of criminals, external affairs, and relations with the islands of the Pacific.⁴⁵ Several of them were explicitly of a ‘interstate’ character: including powers concerning interstate trade and commerce; service and execution of the judgments of State courts throughout the Commonwealth; recognition throughout the Commonwealth of the laws, public acts and records, and judicial proceedings of the States; and the conciliation and arbitration of industrial disputes extending beyond the limits of any one State.⁴⁶ Others were considered especially appropriate for Commonwealth regulation: for example, postal, telegraphic, telephonic, and other like services; census and statistics; currency, coinage, and legal tender; banking; insurance; weights and measures; bills of exchange; bankruptcy and insolvency; intellectual property; trading and financial corporations; marriage; divorce and matrimonial causes; invalid and old-age pensions; and particular races.⁴⁷ Of these provisions, several explicitly protected the

States from undue interference in one way or another.⁴⁸ Moreover, consistent with the origins of the federation in an agreement among the States, provision was made for the referral of additional legislative powers by the States to the Commonwealth.⁴⁹

It was understood that each head of power served not only to describe the power that was positively conferred upon the Commonwealth, but also to mark out that which was not granted and therefore reserved to the States.⁵⁰ Indeed, there was reason to anticipate that in the interpretation of these provisions, the High Court would follow the approach that had been applied by the Privy Council to the provisions of the *British North America Act 1867*, under which federal legislation was characterized by reference to its ‘pith and substance’, or ‘true nature and character’, in order to ascertain the head of power to which the law ‘really belongs’.⁵¹ Such an approach was used in Canada to determine whether a law was properly characterized as falling under the list of matters conferred on the federal government or the list of matters conferred on the constituent provinces. This required the courts to interpret both lists of powers together, making room for each set of powers to operate. The High Court did, in fact, apply this approach for several decades in its interpretation of the Australian Constitution. However, this was later eclipsed by an approach which asked only whether a federal law could be ‘fairly characterised’ in a manner that connected it with a head of federal legislative power, even if the law had other more important characteristics that concerned matters falling outside the Commonwealth’s legislative powers.⁵² The older ‘pith and substance’ approach tended to reserve larger domains of legislation to the States, while the newer ‘multiple characterisation’ approach supported an interpretation of the powers of the Commonwealth just about as widely as the language used could conceivably sustain.⁵³

Most of the powers conferred upon the Commonwealth Parliament were concurrent with the States, which meant that both the States and the Commonwealth would be able to legislate in those fields, although Commonwealth laws would prevail over State laws in the case of any inconsistency (section 109). A smaller number of powers were exclusive to the Commonwealth because they related to matters that would be of concern only to the Commonwealth, namely the seat of government of the Commonwealth, places acquired by the Commonwealth, the

Commonwealth public service, and territory surrendered by a State to the Commonwealth (sections 52, 111; and see section 122).⁵⁴ Other powers were relinquished by the States to enable the Commonwealth to regulate a topic exclusively, such as excise and customs duties, and bounties on the production or export of goods (section 90),⁵⁵ as well as the coinage of money and the maintenance any naval or military force without the consent of the Commonwealth (sections 114 and 115). For, as much as the framers wished to preserve the States as independent self-governing communities, they also wished to ensure the Commonwealth would be effectively equipped to regulate matters within its jurisdiction notwithstanding any State laws or policies to the contrary.

The framers therefore deliberately stated that the Commonwealth Parliament would have power to make laws for the ‘peace, order, and good government of the Commonwealth’ (sections 51 and 52). These were terms of art used by the British Parliament to confer legislative power on colonial legislatures in the fullest terms and they had been used to describe the legislative powers of the Australian colonies.⁵⁶ As Quick and Garran explained,⁵⁷ the Privy Council had decided that such colonial powers were ‘as large, and of the same nature, as those of the Parliament itself’,⁵⁸ and ‘as plenary and as ample within the limits prescribed ... as the Imperial Parliament in the plenitude of its power possessed and could bestow’.⁵⁹ Although the colonial Parliaments might be ‘restricted’ as to the topics on which and the territory in respect of which they might legislate,⁶⁰ within that jurisdiction their powers were ‘unrestricted’.⁶¹

This principle applied to both the Commonwealth and the States. The Commonwealth would, within its enumerated topics, exercise otherwise generally unlimited legislative powers, while the States would continue to possess the general powers of governance for their respective territories they had been exercising for several decades. That is why the Commonwealth Constitution, unlike its Canadian counterpart, did not specify the legislative powers of the States. As Alexander Cockburn put it, ‘to define means to limit’, and it was not intended that the powers retained by the States would be limited, except in the particular ways required by the establishment of the Commonwealth.⁶² Samuel Griffith similarly pointed out that while the colonies would have to ‘surrender’ some of their

‘absolute powers’ to the federation, they would otherwise remain in the condition of practically autonomous political communities.⁶³

2. Executive Power

In the minds of the framers there was a close relationship between legislative, executive, and judicial power. The legislative powers of the Commonwealth were limited to particular topics considered appropriate to the establishment of a federal Commonwealth, and the design of the executive and judicial powers of the Commonwealth followed much the same logic.⁶⁴ Quick and Garran put it this way:

Legislation consists in the making of laws. It is contrasted with the Executive power, whose office is to enforce the law, and with the Judicial power which deals with the interpretation and application of the law in particular cases.⁶⁵

On this view, there could be no executive or judicial power without a pre-existing law to enforce, interpret, and apply, and the usual source of this law would be an exercise of legislative power by the Parliament. Such a proposition could not be taken quite literally, for the law to be administered and applied had to include the Constitution itself, as well as the whole body of common law developed and administered by the courts. Yet the temporal priority of legislative power over executive and judicial power suggested that the metes and bounds of executive and judicial power would, in principle, be determined by pre-existing law.⁶⁶ Thus, as far as the executive power of the Commonwealth was concerned, the basic proposition, as Griffith put it in 1891, was that the executive power of the Commonwealth would be co-extensive with its legislative power.⁶⁷ Similarly, the judicial power of the Commonwealth was necessary, Barton argued, to ensure that federal laws, as well as the Constitution itself, would effectively be enforced.⁶⁸

The objective was to ensure that the Commonwealth would have full capacity to operate as an independent and self-sufficient government within its prescribed fields of operation. While the exact terms of the Commonwealth’s legislative, executive, and judicial powers developed during the course of the deliberations, the powers of the Commonwealth were designed to operate in conjunction with each other to achieve this basic objective.

In Griffith's first draft of the relevant provision in 1891, the executive power of the Commonwealth was defined so that it extended to 'all matters with respect to which the legislative powers of the parliament may be exercised, excepting only matters, being within the legislative powers of a state, with respect to which the parliament of that state for the time being exercises such powers'.⁶⁹ Griffith later recognized the awkwardness and ambiguity of such language, and later proposed that the executive power be described in positive terms, namely that it would extend to 'the execution of the provisions of this constitution, and the laws of the commonwealth'.⁷⁰ But despite the change in terminology, Griffith's intention for the provision seems to have been the same: that the executive power of the Commonwealth would be 'coextensive' with its legislative power.⁷¹ Alfred Deakin would later express a similar, although somewhat wider view, that the Commonwealth's executive power was 'at least coextensive' with its legislative power.⁷² Deakin here meant that executive power could, at a minimum, be exercised with respect to any of the topics that fell within the legislative power of the Parliament, whether or not legislation on such topics had been enacted. However, there is reason to think that Griffith, as well as Barton, expected that legislation would be necessary. Griffith, for example, noted that specific provision was made in the Constitution for the exercise of executive power over certain particular matters that were to be taken over by the Commonwealth immediately upon its coming into existence,⁷³ whereas other matters would be 'left to be dealt with by the federal legislature from time to time as they may think fit'.⁷⁴ Similarly, Barton later referred to what he called 'ordinary executive acts' as being 'the offspring of statutes'.⁷⁵ While their intended meanings are not entirely clear, the question of the scope of the executive power of the Commonwealth was resolved broadly in line with the apparent views of Griffith and Barton in *Williams v Commonwealth*.⁷⁶

Consistent with the colonial context in which they were operating, the framers also provided that the executive power of the Commonwealth would be formally vested in the Queen, and exercised by her representative, the Governor-General (section 61). It was generally understood that this implied that all of the prerogatives historically recognized by the common law appropriate to be exercised by the Commonwealth would be exercisable by the Governor-General.⁷⁷ It was also understood, as Harrison

Moore later explained, that the internal organization of the federal government would not be regulated solely by statute but would be 'freely organised as utility ... may suggest within the ultimate bounds of the law'.⁷⁸

While the exact metes and bounds of the executive power of the Commonwealth were thus expressed in somewhat open-ended and ambiguous terms, it was clear that the executive power of the Commonwealth was intended to operate in a manner independent of the States, just as the States were intended to continue to operate independently of the Commonwealth.⁷⁹ As the head of an independently established government intended to operate in accordance with the practices of parliamentary responsible government, the Governor-General's responsibilities necessarily included appointment of a Federal Executive Council to advise the Governor-General (section 62), appointment of Ministers of the Crown to administer government departments (section 64),⁸⁰ appointment of civil servants to work in those departments (section 67), expenditure of monies authorized by the Constitution or appropriated by legislation (section 83), and collection of taxes such as customs and excise duties and payment of bounties (section 86). One of the benefits of federating was the greater capacity of a federation of States to defend itself against external threats, and the Governor-General's powers therefore included command of the naval and military forces of the Commonwealth, with responsibility to protect every State against external invasion and, on application by a State, against domestic violence (sections 68 and 119). In turn, each State was required to make provision for the detention in its prisons of persons accused or convicted of offences against the laws of the Commonwealth, and for the punishment of persons convicted of such offences, and the Commonwealth was empowered to make laws to give effect to this (section 120). As part of the federal bargain, the Commonwealth Executive Government also took over responsibility for civil servants, government departments, and property transferred by the Constitution from the States to the Commonwealth (sections 69, 70, 84, and 85). In addition, the Commonwealth became responsible for the administration of certain transitional financial arrangements with the States (sections 87–90, 93–95), and was given power to make grants of financial assistance to States (section 96) in lieu of their relinquishment of lucrative excise and customs duties (section 90). With some insight, Alfred Deakin

foresaw that exclusive power of the Commonwealth over customs duties and excise duties, together with its power to make grants to the States on the terms and conditions that it thinks fit (section 96) and to take over the public debts of the States (section 105), would enable the Commonwealth to exercise influence over the States to an extent that many of the other framers of the Constitution did not seem to anticipate.⁸¹

3. Judicial Power

Alongside the legislative and executive powers of the Commonwealth, it was recognized at an early stage that a federal judiciary would also be needed, first to operate as a general court of appeal for Australia, and, secondly to ensure the enforcement of federal laws against individual citizens without having to rely on the States as intermediaries.⁸² At the Convention of 1891, Parkes proposed a resolution, adopted by the Convention, that a federal supreme court should be established constituting a high court of appeal for Australia, the decisions of which would be final.⁸³ Much of the early debate over this clause concerned the question whether the Australian court would displace the Privy Council.⁸⁴ That such a possibility was seriously contemplated reflected the outlook of many of the framers: they understood the establishment of a federation to be a means by which the capacity of Australians to govern themselves would be enhanced and extended. As Barton later put it:

We sit here as the makers of our own Constitution. We propose to frame the Constitution so as to secure the assent of the Imperial Parliament; but our first charge is to prepare such a Constitution as will receive the approval of our own people... . If Australia is to be the maker of its own Constitution, it is fairly competent to be the interpreter of its own Constitution.⁸⁵

Dicey had said that the essence of a federation consists in a division of power between federal and State governments, ultimately to be adjudicated by an independent court of superior jurisdiction.⁸⁶ Consistent with this view, the framers considered the High Court to be essential to the very 'fabric' of the Constitution,⁸⁷ for it would resolve disputes between the Commonwealth and the States concerning the constitutional validity of their enactments and executive actions.⁸⁸ The very existence of the High Court was therefore mandated directly by the Constitution itself (section 71), and its independence from the federal government was protected through

guarantees of tenure and salary (section 72).⁸⁹ And yet, there were misgivings about the immense powers and responsibilities that it would exercise. Recognizing the inherently political nature of constitutional interpretation, Patrick Glynn argued that the Court ought to be representative both of the Commonwealth and the States in a way that would be true to the federal nature of the Constitution as a whole.⁹⁰ He, among others, said that the Court should be composed of the chief justices of the State supreme courts.⁹¹ While this proposal was ultimately not accepted, it reflected the extent to which the federation was seen as something constructed out of its constituent States. However, the view that prevailed was that the Court, appropriately independent, could be trusted to apply the law of the Constitution with impartiality as between the interests of the Commonwealth and the States.⁹² Whether that has been the case, and whether Glynn was right to be concerned, is an open question.⁹³

As the ultimate court of appeal for the federation, particularly in constitutional matters, the High Court was given general appellate jurisdiction from the decisions of State courts (section 73) and nine heads of original jurisdiction (sections 75 and 76).⁹⁴ Curiously, its vitally important jurisdiction concerning matters arising under the Constitution or involving its interpretation, or arising under laws made by the Parliament, depended on legislation enacted by the Parliament (section 76(i) and (ii)). However, as soon as the High Court was established in 1903, jurisdiction in such matters was conferred by the *Judiciary Act* and has been exercised by the High Court ever since.⁹⁵ The federal design of the Australian judicial system also included the so-called ‘autochthonous expedient’ in section 77(iii), which allows the Commonwealth to vest original federal jurisdiction in State courts. Section 77(ii) also allows the federal Parliament to define ‘the extent to which the jurisdiction of any federal court shall be exclusive of that which belongs to or is invested in the courts of the States’. This ensured that the State and Commonwealth judicial systems could evolve into an integrated system of courts, regulated, within the constraints of the Constitution, by the Commonwealth and the States, with the High Court functioning as the ‘keystone of the federal arch’.⁹⁶

4. Independence and Interdependence

Sir Owen Dixon once observed that '[t]he foundation of the Constitution is the conception of a central government and a number of State governments separately organized'.⁹⁷ It was not anticipated by the framers that the Commonwealth or the States would ordinarily be able to interfere with the operation of the governing institutions of the other, except as clearly required by the Constitution. A principle of mutual independence, with limited interdependence, was the underlying assumption, and the framers drafted the Constitution with this assumption constantly in mind. For example, the framers rejected the proposition that it would be appropriate for the Commonwealth Constitution to contain any substantive provision concerning the State Constitutions,⁹⁸ save that they would 'continue' and that they would be 'subject to' the necessary boundaries of their legislative powers (sections 107, 108, and 109) and other specific provisions giving the Commonwealth limited powers over aspects of their instrumentalities and operations (eg, sections 51(xxxi), 77(iii), 78, 90, 92, 98, and 102). Apart from these qualifications, the framers resolutely resisted any suggestion that the Commonwealth Constitution, or the Commonwealth itself, might interfere with the independent powers of local self-governance possessed by the colonies. Even Sir George Grey's suggestion that the people of each State be authorized to adopt their own Constitution by a majority vote, while attractive in principle to many of the framers, was not included in the Commonwealth Constitution because it was thought inappropriate to interfere with the State Constitutions through the federating process.⁹⁹

However, it was also recognized that a successful federation would require a considerable amount of co-operation between the Commonwealth and the States.¹⁰⁰ One practically very significant section required full faith and credit to be given throughout the Commonwealth to the laws, public acts and records, and judicial proceedings of every State (section 118). There were also several provisions protecting the people of each State from action by the Commonwealth or by another State. For example, the Commonwealth was prohibited, by any law or regulation of trade or commerce, from abridging the rights of any State or the residents of a State to the reasonable use of waters of rivers for conservation or irrigation (section 100). Another important provision protected the residents of one State from discriminatory action taken by another State (section 117). This

section was seen as a less intrusive alternative to Clark's proposal that the Constitution contain a provision modelled on article IV and the Fourteenth Amendment of the United States Constitution, which prohibits any State from making or enforcing any law 'abridging any privilege or immunity of the citizens of other States' or denying to any person 'the equal protection of the laws'.¹⁰¹ Among the reasons for preferring a more limited provision was a disagreement about the nature of citizenship within a federation. Some framers wanted a form of national citizenship to be established, but others insisted that in a federation there must be a dual citizenship of both the Commonwealth and the States. The result was that the Constitution remained silent on citizenship, and left the decision as to whether the States would enact laws which might deny to people their rights to equality before the law (such as through racially discriminatory laws) in the hands of their elected Parliaments.

The legislative powers of the Commonwealth were also deliberately conferred 'subject to' the Constitution. The Constitution contains several explicit prohibitions and restrictions on the legislative powers of the Commonwealth. They include requirements that the trial on indictment of any offence against any law of the Commonwealth shall be by jury (section 80); that freedom of interstate trade, commerce, and intercourse shall be absolutely free (section 92);¹⁰² that no preferences shall be given to one State or part of a State by any law or regulation of trade, commerce, or revenue (section 99); that the rights of the States to the reasonable use of waters or rivers for conservation or irrigation shall not be abridged (section 100); that the Commonwealth shall not tax the property of a State (section 114); and that the Commonwealth shall make no law for establishing any religion, for imposing any religious observance, or prohibiting the free exercise of any religion, and that no religious test shall be required as a qualification for any office or public trust under the Commonwealth (section 116). Thus, only a relatively small number of provisions might be said to safeguard the rights of individuals, and even these provisions have some sort of federalism rationale underlying or shaping them. The guarantee of freedom of interstate trade, commerce, and intercourse (section 92) is a leading example.¹⁰³

D. REPRESENTATION

The third important aspect of the federal design of the Constitution concerned the composition and structure of the governing institutions of the Commonwealth. As noted, the most obvious way in which this occurred was the requirement that the federal Parliament would consist of a Senate in which the people of each Original State were equally represented (section 7) and a House of Representatives in which the people of the Commonwealth were represented (section 24). The bicameral structure of the Parliament was understood to contribute several advantages to the system of government as a whole.¹⁰⁴ These included the belief that it would improve parliamentary deliberation and the quality of legislation by subjecting any proposed law to two independent legislative processes,¹⁰⁵ it would increase the democratic representativeness of the Parliament through two different electoral systems, generating two politically different chambers,¹⁰⁶ and it would contribute to the separation of powers by countering the tendency of Westminster systems of responsible government to consolidate control over both executive and legislative power into the same political hands.¹⁰⁷ However, while these were important motivating reasons, the exact design of the Parliament depended very fundamentally on federal principles.¹⁰⁸

1. The Senate

Quick and Garran considered the Senate to be ‘one of the most conspicuous, and unquestionably the most important, of all the federal features of the Constitution’, for it is the chamber in which the States are represented ‘as separate entities’, as ‘co-equal political communities’ and as ‘corporate parts of the Commonwealth’.¹⁰⁹ The representation of the people of the States in the Senate went to the fundamentals of the federation. This is best understood by reference to its most rigorous critic, H B Higgins, whose argument against equality of representation of the States was based on his belief, noted earlier, that constitutions ought to be founded on the consent of the people of the nation as a whole.¹¹⁰ Deakin argued from a similar premise when he questioned the very existence of the States as entities distinct from their constituent people:

I cannot conceive of an entity called the state apart from the people whose interests it embodies; nor can I conceive anything within the state which can claim an equal authority with the final verdict, after solemn consideration, of the majority of its citizens. If the hon. Gentleman [Griffith] has any metaphysical entity in his mind which can be placed above this, I shall be glad to learn its nature.¹¹¹

While the argument was formidable, defenders of equality of representation had a ready set of responses. Thus, Griffith accepted Deakin's premise the States should be understood as 'aggregations of their own people', but he pointed out that 'the majorities of the separate States might be of a different opinion from the majority of the people of Australia'.¹¹² Barton similarly argued that it would be 'possible for the representative principle to be preserved and instituted from its very foundation in two chambers just as well as in one': the Senate would represent the people collected together as States, while the House of Representatives would represent the people of the entire Commonwealth, organized in local electorates.¹¹³ An overwhelming majority of the framers of the Constitution agreed with this latter view. Their fundamental reason, as Richard Baker put it, was that the federation was necessarily founded upon a 'compact ... between the constituent states',¹¹⁴ and that an essential feature of a genuinely federal commonwealth was that the States would be entitled to representation in the Parliament.

In providing for the equal representation of the States in the Senate, the framers followed the example of the United States and Switzerland, and deliberately departed from the Canadian and German models, in which the constituent polities were not equally represented. However, the American model was not followed slavishly. At the time the Australian Constitution was being drafted, American senators were chosen by the legislature of each State, rather than directly by the people.¹¹⁵ This reflected the view that the most important and effective means by which democratic decision-making would occur was through deliberative assemblies, which would gather in the form of elected legislatures or specially elected conventions to debate issues and make determinations in an environment of rational discussion.¹¹⁶ Much the same idea influenced the delegates to the first federal Convention in 1891. The delegates had themselves been appointed by the colonial legislatures, and they agreed to a system in which senators would be chosen by those legislatures. However, the second Convention of 1897–98 was directly elected by the voters in four of the five colonies that participated, and the value of 'direct democracy' which this presupposed led

a majority of the delegates to settle upon a Senate that would be ‘directly chosen’ by the people of each State, just as the House of Representatives would be ‘directly chosen’ by the people of the Commonwealth.¹¹⁷

The Australian Senate was designed to represent the people of the States rather than the governments and Parliaments of the States. This distinction has important implications for how the purposes and functions of the Senate should be understood and its effectiveness assessed.¹¹⁸ Although some of the framers spoke as if the Senate would protect the institutional interests of the States, these remarks are best understood in the context of a Senate nominated by the State legislatures. Once it had been decided that the Senate would be directly elected the rationale for its existence had to change, albeit subtly. As John Downer argued, so long as the States were guaranteed equal representation in the Senate:

state rights will come very little into these matters, and the results will be highly satisfactory, because we shall know that we really have become so much one people that these smaller considerations never occur to anybody at all.¹¹⁹

Even in 1891 John Hackett foresaw the point, when he argued that the ‘main function of the Senate’ would be:

to cement these isolated communities together, to make a dismembered Australia into a single nation, ... to convert the popular will into the federal will ... to give full voice to the wishes of the populace, but, at the same time, to take care before that voice issues forth as the voice of Australia that it shall be clothed with all the rights and duties of the federal will.¹²⁰

On this view, equality of representation in the Senate would ensure that the people of each State would be properly represented as ‘a people’, freeing them to engage in national debate in a non-parochial manner, knowing that they would be entitled to that equal share of representation appropriate to an independent body politic, and could use this if their sectional interests were ever seriously in jeopardy.¹²¹ In this sense, equal representation in the Senate would serve to unify rather than divide the nation, while at the same time recognizing that what was being created was a federal Commonwealth or, as James Bryce had put it, a ‘commonwealth of commonwealths’.¹²²

After considerable debate, the framers decided that senators would ordinarily be chosen by the people of each State voting ‘as one electorate’, unless the Commonwealth Parliament provided otherwise (section 7).¹²³ This emphasized the idea, as Barton explained, that the Senate would

represent each State as a whole, just as the House of Representatives would represent the people of the Commonwealth organized into local electorates.¹²⁴ The Commonwealth Parliament was, however, empowered to divide the States into districts for the purposes of Senate elections, and there was also an exception included for the State of Queensland, the Parliament of which was authorized to divide the State into divisions and to determine the number of senators to be chosen for each division. This special provision was included because at the time many in northern and central Queensland were expressing a desire to form themselves into a separate colony. Neither of these powers have, in fact, been exercised, but the latter in particular reflects the extent to which the Constitution was a result of a negotiated agreement among representatives of the colonies. Queensland had not sent delegates to the second federal Convention, but it was recognized that if the colony was to be convinced to join the federation special provision would need to be made to accommodate its particular needs.

The function of the Senate as a mature House of review, intended to bring an additional layer of careful deliberation to the consideration of proposed legislation and the scrutiny of government policy and administration, was reinforced by the provision that senators would ordinarily hold office for six years and that half of the senators would have to stand for re-election every three years (section 13). The Senate was thus designed to be a semi-continuous body that would be entirely dissolved only when there was a double dissolution, which, as will be seen, was part of the intended solution to resolve deadlocks between the two Houses over proposed legislation (section 57).

It was also recognized that when a senator died or was disqualified or resigned prior to the expiration of his or her term in office (see sections 19, 20, and 45), special provision would have to be made for that senator's replacement. To avoid the expense and inconvenience of holding a State-wide election to fill the vacancy, the framers determined that the replacement senator would be chosen by the two Houses of the relevant State Parliament, sitting and voting together, or, where the Parliament was not in session, be determined by the State government (section 15). This reflected the view that senators were representatives of their respective States and that it was appropriate that a casual vacancy be filled by a person chosen by the State. The provision has since been amended in 1977 in an

attempt to constitutionalize the practice that had developed that the replacement senator must belong to the same political party as the senator being replaced.¹²⁵ It is not clear that the new provision has improved the operation of the Senate, however, as it is now routinely used by the established parties to appoint their preferred candidates to senatorial seats without them first being elected.

During the debate over the design of the electoral system for the two houses of the Parliament, the framers had to consider exactly which aspects of the system would be entrenched in the Constitution and what powers the Commonwealth and State Parliaments would have to shape its details. This entailed a judgement about those features that were constitutionally essential and those that ought to be subject to legislative change and adaptation. It also involved a judgement about the respective roles of the Commonwealth and States in that process. Consistent with the federal foundations of the Constitution, the detailed rules regulating elections for both the Senate and the House of Representatives were initially those which applied in the States, subject to the Commonwealth Parliament providing otherwise. As understood at the time, this involved granting the Commonwealth Parliament a ‘supervisory’ power to correct any distortions in the system and to establish a uniform electoral system if this was deemed necessary.¹²⁶ In effect, the Commonwealth Parliament was given power, subject to the Constitution, to determine such matters as the franchise, the qualifications of candidates, the number of members of Parliament, voting procedures, the size and location of electoral divisions, and other related matters.¹²⁷ Thus, while each State was initially to be represented by six senators, the Commonwealth could alter this, provided the equal representation of the Original States in the Senate was maintained (section 7). It was recognized that the Parliament might adopt for the Senate a proportional electoral system based on a ‘single transferrable vote’, known as the Hare-Clark system.¹²⁸ Indeed, as early as 1902 the government of Prime Minister Edmund Barton proposed the adoption of such a system, but it was not until the 1949 election that such a system was implemented for the Senate.¹²⁹

2. House of Representatives

The framers of the Constitution intended that the House of Representatives would represent the people of the Commonwealth as a whole. In theory, this might have been achieved by requiring that the House be elected by the entire people of the federation voting as one electorate. However, the framers also envisaged the House of Representatives as the institution through which local communities would be represented, much like the system of counties, boroughs, and cities that had been the basis of the traditional mode of representation within the House of Commons in the United Kingdom, and the similar systems adopted in each of the Australian colonies. This two-fold character of the House of Representatives posed an interesting set of questions about how the people of the Commonwealth as a whole might be represented through a system of local electorates.¹³⁰

The design of the House of Representatives reflected the constitutively federal nature of the Commonwealth. While it may, in theory, have been possible to define the composition of the House of Representatives in a manner that made no reference to the States, the framers provided that the number of members of the House chosen in the several States would be in proportion to the respective numbers of their people (section 24). This principle of proportionality did not treat the States as equals: it ensured the more populated States would have a proportionately larger representation than the less populated ones. However, the construction of the Commonwealth out of constituent States meant that the framers found it natural to refer to the States as the basic units into which the people of the Commonwealth were divided, even for the purpose of defining the House of Representatives. Indeed, so essential were the States to the system, that the framers qualified the principle of proportionality by guaranteeing to each Original State a minimum of at least five members in the House of Representatives (section 24).

Nonetheless, a certain predominance was given to the House of Representatives, both in terms of its numerical size and its powers over proposed legislation. The extent to which it was designed to be a more powerful institution than the Senate turned on the framers' understanding of the nature of parliamentary responsible government and how such a system might best be integrated with a federal system. As it had operated in the United Kingdom and the Australian colonies, parliamentary government

had depended on the view that the executive powers formally vested in the Queen and exercised in the colonies by her Governors ought ordinarily to be exercised on the advice of Ministers of the Crown who had the confidence of the lower House of the Parliament, the House of Commons in the United Kingdom and the Legislative Assemblies of the Australian colonies. However, these systems operated in the context of unitary systems of government in which upper Houses were not democratically elected. The federal nature of the Australian system suggested that the States should be equally represented in one of the Houses of the federal Parliament. Those who most strongly supported this fundamental feature of the Parliament believed that, as in the United States and Switzerland, the Senate should have the same powers over legislation as the House of Representatives. Those who disagreed, when they found themselves unable to overturn the equal representation of the States, attempted to moderate the powers of the Senate in order to establish a system in which the executive government would be responsible to the House of Representatives alone, in accordance with the received traditions of parliamentary responsible government.¹³¹

The stand-off between these two positions was resolved by an uneasy compromise that consisted of several elements. Firstly, it was decided that while the two Houses would possess the same basic powers in relation to the enactment of legislation and the performance of their representative and inquisitorial functions, the House of Representatives alone would have the power to initiate and amend money bills (section 53).¹³² This did not quite mandate that Ministers of the Crown would be responsible only to the House of Representatives, but it made the development of such a system most likely. In combination with provisions that required that appropriation bills be recommended by message of the Governor-General (section 56), that Ministers of the Crown must hold seats in Parliament (section 64), and that government revenue form one consolidated revenue fund that could only be appropriated by a law passed by the Parliament (sections 81 and 83), it certainly ensured that, as a practical matter, there would have to be a very close relationship between the executive government and the Parliament. Nonetheless, the Senate was, as matter of the law, given power to refuse to pass money bills, and the framers knew that this entailed, in effect, the power to bring down a government.¹³³ As anticipated by the framers, a system of parliamentary government has developed in which governments are formed with the confidence of only the House of

Representatives, but in 1975 the Senate demonstrated its capacity to refuse supply and thereby bring down a government.¹³⁴ While it is unlikely this power will be used again by the Senate in the foreseeable future, the availability of the power demonstrates how important this aspect of the federal principle has been in Australian political history.

A second aspect of the compromise involved the relative powers of the two Houses in cases of deadlock. It was decided that the House of Representatives would, as nearly as practicable, be twice the size of the Senate (section 24) and that, in the event of a prolonged deadlock between the two Houses, an intervening double dissolution, and re-election of both houses, the proposed legislation could be enacted at a joint sitting of the two houses (section 57). This meant that, while in the ordinary course of events the concurrence of the Senate would be required for the passage of legislation (section 53), in the case of a sustained deadlock, the will of the House of Representatives would usually, although not necessarily, prevail. The deadlock-breaking process has been used on several occasions to dissolve both houses and hold an election in which every member of both the House and the Senate must be re-elected, but only on one occasion to enact legislation at a joint sitting.¹³⁵

E. AMENDMENT

The federation of the Australian colonies was premised on the political capacity of the colonies to negotiate the terms on which they would be united into a federal Commonwealth. Since the 1850s, the colonies had been exercising powers of local self-government through responsible governments and elected Parliaments, and had also exercised powers of local self-determination through the capacity of the colonial Parliaments to amend their own Constitutions.¹³⁶ Because these powers were derived from and remained subject to the ultimate legal powers of the Imperial Parliament, the scheme of federation agreed to by the colonies in the late 1890s was submitted to the Parliament at Westminster for enactment into law in 1900. But while the Parliament demonstrated its capacity to insist that certain changes be made to the provisions concerning appeals to the Privy Council (section 74), it was recognized that the colonies had the moral right to decide the terms on which they would federate and they in

turn insisted that the Constitution be enacted in the form that it had been approved by the people voting in referenda held in each colony. Consistent with this outlook, the framers included within the text of the Constitution several ways in which it could be amended. Each of these mechanisms reflected aspects of the federal design of the Constitution as a whole.

The first such mechanism concerns the many times the Constitution makes provision ‘until the Parliament otherwise provides’ (see section 51(xxxvi)). The framers considered that some aspects of the Constitution, although necessary to enable the machinery of government to operate, dealt with matters appropriate for further change and adaptation by ordinary legislation. This means that some aspects of the Constitution can be altered by the Commonwealth acting unilaterally, although it should also be recalled that such enactments will ordinarily have to be passed by both Houses of the Parliament, representing respectively the people of the States and the people of the Commonwealth.

Apart from these particular matters, which were treated as more or less transitional in nature, the framers considered, following Dicey, that the terms of the federal compact had to be contained in a rigid constitution that could not be amended unilaterally by either the Commonwealth or any one of the States. By agreeing to federate the States committed themselves, with the Commonwealth, to a joint constitutional destiny that neither of them individually could control. The only question was exactly what procedure would be prescribed for the amendment of the Constitution.¹³⁷

At the first federal Convention, Samuel Griffith’s initial proposal was that such changes to the Constitution would have to be passed by absolute majorities of both Houses of the Parliament and then submitted for approval by specially elected Conventions held in each State.¹³⁸ James Munro objected to such a procedure on the ground that it enabled a bare majority of States to change the Constitution when a majority of the people of Australia as a whole might not agree, and he called instead for ‘a reference to the whole of the people of Australia in one convention’.¹³⁹ However, Munro was opposed by Duncan Gillies, who argued that just as the federation was going to be formed through an agreement between the States, so any amendment to the federal bargain would need to be supported by a majority of the States.¹⁴⁰ In response, Griffith proposed that the clause be changed to require approval by a majority of State Conventions as well

as by Conventions representing a majority of the people of the Commonwealth.¹⁴¹ Others, however, pointed out that this might still enable changes to be carried against the will of a majority of the Australian people, and several delegates expressed their preference for a dual referendum along the lines of the Swiss model, in which the people of the Commonwealth and the people of each State would vote directly on proposed changes. John Cockburn, for example, argued that just as the people will insist on the right to ‘speak directly’ through referenda in the establishment of the Constitution, ‘so they will in regard to any alteration of the constitution’, and he proposed that the Constitution only be altered ‘by a majority of the people of each state, from whom this constitution originated’.¹⁴² While the Convention in 1891 ultimately approved Griffith’s revised proposal,¹⁴³ the idea that the Constitution should only be amended by dual referendum prevailed at the second Convention in 1897–98.

This shift to the use of a referendum for the amendment of the Constitution reflected the decision taken by the premiers and legislatures of the colonies in the lead-up to the second Convention to submit the proposed Constitution to the people of each colony for approval in a referendum. It also reflected the fact that the delegates of four of the five the colonies at the Convention had themselves been directly elected by the voters in those colonies. As Garran wrote on the eve of the second Convention, ‘[w]e are already committed to the Referendum to decide upon the acceptance of the Constitution in the first instance; and it seems equally applicable to subsequent amendments of the Constitution’.¹⁴⁴ Barton observed, similarly, that ‘for the making of a Constitution, or for the alteration of that Constitution, ... it is a wise and a right thing that there should be a vote of the people taken’.¹⁴⁵ Isaacs likewise pointed out that it would be easier to convince the people of the colonies to ratify the Constitution if they could be assured that they could amend it.¹⁴⁶

But while the new procedure introduced an important element of direct democracy and rejected the use of State Conventions, the new clause nevertheless retained a requirement that any proposed alteration first be passed by an absolute majority of both Houses of Parliament. In other words, it did not provide for popular initiative of proposed alterations, as did the Swiss Constitution,¹⁴⁷ even though the referendum was in other respects modelled on the Swiss precedent. The initiative would remain with

the Houses of Parliament, and therefore with elected politicians. At the second Convention, Deakin proposed that a majority of the State Parliaments might also have a right to initiate proposals,¹⁴⁸ and Isaacs supported a suggestion of the Legislative Assembly of Victoria that in the event of a difference between the two Houses of Parliament, an amendment passed by just one of the houses be referred 'to the direct determination of the people'.¹⁴⁹ Neither was immediately successful. However, at a special premiers meeting held in 1899 after the first referendum to approve the Constitution had failed in New South Wales, the latter idea was approved subject to the further requirement that the proposed amendment be passed twice in the House supporting the measure.¹⁵⁰ As a consequence, section 128 of the Constitution provides that in the case of a prolonged deadlock between the two Houses, the Governor-General may submit the alteration proposed and supported by only one of the Houses to the electors. As a matter of law, this enables either house to initiate a constitutional referendum, and it appears that the premiers of the day expected that, even if it was the Senate that proposed the change, the Governor-General would be constitutionally obliged to submit the proposal to a referendum.¹⁵¹ However, because the Governor-General ordinarily acts on the advice of a Prime Minister who has the support of the House of Representatives, it quite possible, and indeed very likely, that a Prime Minister will not advise the Governor-General to do so unless the proposal has been approved by the House of Representatives.¹⁵² Some of the framers, like John Downer and Vaiben Louis Solomon, foresaw the problem, but their concerns were rejected by those, like Isaacs, Higgins, and Deakin, who believed that there would be a positive duty, incumbent on the government of the day, to ensure that the proposal be referred to the people.¹⁵³

By agreeing that the Constitution could be amended by majorities of the people of the Commonwealth and the people of the States, the framers constructed a federation in which the people of each State were committed to a Constitution that could be amended against their will. However, it is important to note that from the very beginning it was recognized that the special representation of each State in the federal Parliament needed to be especially protected. In Griffith's draft clause, any such change would require the consent of the particular State or States concerned.¹⁵⁴ That it was the representation of each State that was specifically protected is

instructive. While other changes to the Constitution, such as the expansion of the legislative powers of the Commonwealth, would necessarily affect the States, the framers were willing to allow these to be altered by a majority of States notwithstanding the opposition of a minority. Indeed, at the 1891 Convention, concern was expressed whether this protective provision was sufficiently explicit as regards the 'minimum number of representatives' to which each State would be entitled. Griffith therefore proposed an amendment which extended the protective words to 'the minimum number of representatives of a state in the house of representatives'¹⁵⁵ and the provision was later framed so that it protected the proportionate representation of each State in both houses.¹⁵⁶ This concern to protect the States' representation in the Parliament underscored the delegates' prevailing interest in the preservation of federal representation for the States as constituent members of the federation. Despite the important changes that were made to the amendment clause at the second Convention, the principle of individual State consent to any change to its representation in the Parliament was consistently affirmed, and indeed expanded.¹⁵⁷ At the Premiers' Conference of 1899, it was agreed to accord 'the fullest protection' to the States so that, in addition, 'no alteration of territory' of a State should be made 'without the consent of the people as well as of the Parliament of the State affected' and an amendment to the clause was accordingly made.¹⁵⁸ This additional qualification reflected in most emphatic terms the fundamental principle that the federation rested on the consent of every constituent State.

Indeed, the principle of individual State consent went even deeper in the Constitution. One further way in which it was expressed was the capacity of individual States to refer additional legislative powers to the Commonwealth (section 51(xxxvii)). Even more fundamentally, Griffith proposed at the first Convention that the Constitution include a capacity to exercise within the Commonwealth 'any power' which at the establishment of the Constitution could 'be exercised only by the Parliament of the United Kingdom'. Such a power was extraordinarily significant. Griffith's goal was to bring to an end the need to turn to the United Kingdom for fundamental constitutional change for both the Commonwealth and the States.¹⁵⁹ But although the power was to be vested in the Commonwealth Parliament, because the foundation of the Constitution was a compact between the

States, the clause stipulated that the power could only be exercised ‘at the request or with the concurrence of the Parliaments of all the States directly concerned’. As Griffith explained:

after the federal parliament is established anything which the legislatures of Australia want done in the way of legislation should be done within Australia, and the parliament of the commonwealth should have that power. It is not proposed by this provision to enable the parliament of the commonwealth to interfere with the state legislatures; but only, when the state legislatures agree in requesting such legislation, to pass it, so that there shall be no longer any necessity to have recourse to a parliament beyond our shores.¹⁶⁰

The significance of the clause, which appears in the Constitution as section 51(xxxviii), is difficult to underestimate. As an important aspect of the movement in Australia towards constitutional self-determination, it anticipated the development of Australia’s independent ‘dominion’ status within the British Empire, as would be recognized by the Balfour Report of 1926 and enacted into law by the *Statute of Westminster 1931* (UK). As a provision that depended on decisions of the Parliaments of both the Commonwealth and the relevant State or States, it reflected the foundations of the Australian Constitution in a compacting agreement between the States. It was used in 1986 to enact the Australian version of the *Australia Act 1986* (Cth), through which the legislative power of the British Parliament to legislate for Australia was definitively brought to an end. And for essentially the same reason, the procedure stipulated in section 15 of the *Australia Act* for the amendment of the *Statute of Westminster* and the *Australia Act* depended on essentially the same process of enactment by the Commonwealth Parliament at the request or with the concurrence of the Parliaments of all the States.

F. CONCLUSIONS

Looking back on the process by which the Australian Constitution had come into being, Quick and Garran observed:

[T]he people of the Commonwealth, in the majority of States, will not feel inclined to interfere with the principles of local liberty, local self-government, State autonomy, and State individuality which pervade the Constitution. They will recoil from an Imperial policy of consolidation and centralization, which would swallow up, absorb, and obliterate the States.¹⁶¹

This statement captures much of the prevailing understanding of the nature of Australian federation and the assumptions upon which the Constitution

was founded. First of all, Quick and Garran ascribed effective constitutive power to the people of the Commonwealth, organized in their respective States. The constitutional future of the federation would rest, they claimed, on decisions made by the people in a majority of the States. Second, they asserted that the principles of local liberty, local self-government, State autonomy, and State individuality pervade the Constitution. Intrinsic to the federal design of the Constitution is a rejection of an Imperial policy of consolidation and centralization. The States are the essential building blocks of the federation, and the people of the States, Quick and Garran predicted, will not embrace a policy that would swallow up, absorb, or obliterate the states.

Since 1900, as is well known, the power of the Commonwealth has waxed while the States have waned. The Commonwealth has pressed the boundaries of its competences to their outer limits and the High Court of Australia has largely supported the Commonwealth with a capacious approach to the interpretation of its powers.¹⁶² Nonetheless, the States remain essential and vital components of the Australian political system. The Australian Constitution is constitutively and institutionally federal in terms of its formation, its distribution of powers, its system of representative democracy, and its amendment procedures. The constitutional fundamentals of the federation guarantee the continuation of the self-governing powers of the States within the federal framework. The great bulk of day-to-day services in health, education, urban affairs, land use, transport, and the administration of justice continue to be delivered by the settled administrative institutions of the State governments. Australia's political parties have had to organize themselves so as to compete at both political levels, and the Australian media has organized itself to be able to report on State and federal politics in a form suitable to these distinguishable constituencies. Moreover, although Australia does not have first-order territorial cultural diversity, demographic patterns across the continent have produced a second-order diversity from State to State measured in terms of such factors as ethnicity, language, religion, and economics, and the political leadership of each State has had to respond with its own unique policy responses to the specific issues and challenges posed by those particular cultural, social, and economic conditions.¹⁶³ The future of Australian federalism will continue to depend on the interplay of

this great diversity of constitutional, political, economic, and cultural factors.

¹ *Commonwealth of Australia Constitution Act 1900* (UK), preamble.

² See Chapter 35 ‘The Federal Principle’.

³ See John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (Angus & Robertson, 1901) 292–94, 332–42, discussed in Nicholas Aroney, *The Constitution of a Federal Commonwealth: The Making and Meaning of the Australian Constitution* (CUP 2009) 3–6.

⁴ New Zealand was represented at the first Convention by three delegates. Queensland was not represented at the second Convention, but later held a referendum at which the proposed Constitution was approved. Western Australia was represented, but the Constitution was not approved by its voters until after it had been enacted into law. For this reason, Western Australia was not referred to in the preamble to the Constitution. This reflected the principle that federation would not be forced upon any colony without its agreement.

⁵ For more detail, see Chapter 3 ‘Federation’.

⁶ See Chapter 31 ‘Power’.

⁷ See Chapter 36 ‘Federal Jurisdiction’.

⁸ See Chapter 24 ‘Parliaments’.

⁹ See Chapter 35 ‘The Federal Principle’ and Chapter 25 ‘Executives’.

¹⁰ cf *Texas v White* 74 US (7 Wall) 700, 19 L Ed 227 (1869), 725 (Chase CJ), describing the United States of America as ‘an indestructible union composed of indestructible states’.

¹¹ See Chapter 5 ‘Evolution’.

¹² Chapter 7 ‘Rule of Law’.

¹³ See, eg, Chapter 15 ‘Constitutionalism’.

¹⁴ See also *Commonwealth of Australia Constitution Act 1900* (UK), covering cl 3.

¹⁵ See Aroney, *The Constitution of a Federal Commonwealth* (n 3) ch 3.

¹⁶ See, eg, James Bryce, *The American Commonwealth*, vol I (2nd edn, Macmillan 1889) 12–15, 17–22, 332; A V Dicey, *Introduction to the Study of the Law of the Constitution* (5th edn, Macmillan 1897) 137–38, 139, n 1.

¹⁷ James Madison, ‘Federalist No 39’ in Clinton Rossiter (ed), *The Federalist Papers* (New American Library 1961) 45.

¹⁸ For a fuller discussion, see Aroney, *The Constitution of a Federal Commonwealth* (n 3) 73–77, 107.

¹⁹ Thomas Just, *Leading Facts Connected with Federation* (The Mercury Office 1891), 38; John A La Nauze, *The Making of the Australian Constitution* (Melbourne UP 1974) 23.

²⁰ For more detail, see Chapter 3 ‘Federation’.

²¹ Andrew Inglis Clark, ‘Australian Federation (Confidential)’ (1891).

²² For example, Henry Bournes Higgins, *Essays and Addresses on the Australian Commonwealth Bill* (Atlas Press 1900) 11; Official Report of the National Australasian Convention Debates (Sydney, 1897) 259–60, discussed in Aroney, *The Constitution of a Federal Commonwealth* (n 3) 130–33, 211–12, 218–21.

²³ Dicey (n 16); John W Burgess, *Political Science and Comparative Constitutional Law* (Ginn & Co 1890).

²⁴ Higgins (n 22) 9.

²⁵ *ibid.*

²⁶ John Locke, *Two Treatises of Government* (CUP 1960 [1689]) §96.

²⁷ Higgins (n 22) 13, 72.

²⁸ *ibid.* 11.

²⁹ See Chapter 15 ‘Constitutionalism’.

³⁰ Official Report of the National Australasian Convention Debates (1890) 10.

³¹ *ibid.* 8.

³² Official Report of the National Australasian Convention Debates (Adelaide, 1897) 650.

³³ Bryce, *The American Commonwealth* (n 16) 12–15. See Nicholas Aroney, ‘A Commonwealth of Commonwealths: Late Nineteenth-Century Conceptions of Federalism and Their Impact on Australian Federation, 1890-1901’ (2002) 23(3) *Journal of Legal History* 253.

³⁴ See Aroney, *The Constitution of a Federal Commonwealth* (n 3) chs 9 and 10.

³⁵ Official Report of the National Australasian Convention Debates (Sydney, 1891) 23. Edmund Barton’s corresponding resolution in 1897–98 was in similar terms except that it referred to ‘such surrenders as may be agreed upon to secure uniformity of law and administration in matters of common concern’: Official Report of the National Australasian Convention Debates (Adelaide, 1897) 17, 395.

³⁶ Official Report of the National Australasian Convention Debates (Melbourne, 1890) x; Official Report of the National Australasian Convention Debates (Sydney, 1891) 2.

³⁷ Official Report of the National Australasian Convention Debates (Sydney, 1891) 153.

³⁸ Official Report of the National Australasian Convention Debates (Sydney, 1891) 31–32.

³⁹ Official Report of the National Australasian Convention Debates (Adelaide, 1897) 50–51.

⁴⁰ *ibid.* 144.

⁴¹ *ibid.* 191.

⁴² *ibid.* 223.

⁴³ The list was longer and more elaborate than that found in the United States Constitution.

⁴⁴ Section 51(ii), (iv), (xxxi), (xxxiii).

⁴⁵ Section 51(i), (iii), (vi), (vii), (ix), (x), (xix), (xx), (xxvii), (xxviii), (xxix), (xxx), (xxxii).

⁴⁶ Section 51(i), (xxiv), (xxv), (xxxv).

⁴⁷ Section 51(v), (xi), (xii), (xiii), (xiv), (xv), (xvi), (xvii), (xviii), (xx), (xxi), (xxii), (xxiii), (xxvi).

⁴⁸ Section 51(ii), (xiii), (xiv), (xxxi), (xxxiv).

⁴⁹ Section 51(xxxvii).

⁵⁰ See, eg, Official Report of the National Australasian Convention Debates (Sydney, 1891) 699; Official Report of the National Australasian Convention Debates (Melbourne, 1898) 502–04, 596–97, 600, 1008–10, 504–05.

⁵¹ *Russell v The Queen* (1882) 7 App Cas 829, 839–40. See also *Union Colliery Co of British Columbia Ltd v Bryden* [1899] AC 580, 587.

⁵² See, eg, *Fairfax v Federal Commissioner of Taxation* (1965) 114 CLR 1.

⁵³ Compare, eg, *R v Barger* (1908) 6 CLR 41; *Amalgamated Society of Engineers v Adelaide Steamship Co Ltd* (1920) 28 CLR 129. For more detail, see Nicholas Aroney, Peter Gerangelos, James Stellios, and Sarah Murray, *The Constitution of the Commonwealth of Australia: History, Principle and Interpretation* (CUP 2015) 117–43.

⁵⁴ Several of the topics in s 51 are effectively exclusive to the Commonwealth because they were not possessed by the colonies prior to federation: eg, borrowing money on the public credit of the Commonwealth, service and execution throughout the Commonwealth of the civil and criminal process and judgments of State courts, and, possibly, external affairs (ss 51(iv), (xxiv), (xxix)). See Quick and Garran (n 3) 656, 934.

⁵⁵ Note, however, the exceptions contained in ss 91 and 112. On customs and excise duties, see Chapter 32 'Money'.

⁵⁶ *Riel v R* (1885) 10 App Cas 675, 678. See Chapter 31 'Power'.

⁵⁷ Quick and Garran (n 3) 509–15.

⁵⁸ *R v Burah* (1878) 3 App Cas 889, 904 (India).

⁵⁹ *Hodge v The Queen* (1883) 9 App Cas 117, 132 (Ontario).

⁶⁰ Quick and Garran (n 3) 354–55, 569–72, 631–32.

⁶¹ *Powell v Apollo Candle Company* (1885) 10 App Cas 282, 290 (New South Wales).

⁶² Official Report of the National Australasian Convention Debates (Sydney, 1891) 201.

⁶³ *ibid*, 338.

⁶⁴ See Chapter 26 'Separation of Legislative and Executive Power'.

⁶⁵ Quick and Garran (n 3) 385.

⁶⁶ See Chapter 15 'Constitutionalism'.

⁶⁷ Official Report of the National Australasian Convention Debates (Sydney, 1891) 527.

⁶⁸ *ibid* 95–6.

⁶⁹ *ibid* 777.

⁷⁰ *ibid* 777.

⁷¹ *ibid* 527, 777.

⁷² Alfred Deakin, 'Position of Commonwealth and States in Relation to Treaties: Source and Extent of Commonwealth Executive Power and External Affairs Power: Nature of Adherence to Treaties: Channel of Communication Between States and Empire or Foreign Powers', and 'Channel of Communication with Imperial Government: Position of Consuls: Executive Power of the Commonwealth' in Patrick Brazil and Bevan Mitchell (eds), *Opinions of Attorneys-General of the Commonwealth of Australia, Volume 1: 1901-14* (Australian Government Publishing Service 1981) 2, 3, 130.

⁷³ For example, *Commonwealth Constitution*, ss 69 and 70.

⁷⁴ Official Report of the National Australasian Convention Debates (Sydney, 1891) 527.

⁷⁵ Official Report of the National Australasian Convention Debates (Adelaide, 1897) 910.

⁷⁶ *Williams v Commonwealth* (2012) 248 CLR 156.

⁷⁷ George Winterton, *Parliament, the Executive and the Governor-General: A Constitutional Analysis* (Melbourne UP 1983) xx.

⁷⁸ Harrison Moore, *The Constitution of the Commonwealth of Australia* (John Murray 1902) 212.

⁷⁹ Quick and Garran (n 3) para 272.

⁸⁰ Commonwealth Ministers hold such offices as the Parliament prescribes or the Governor-General directs (s 65), and their salaries are determined by Parliament (s 66).

⁸¹ John A La Nauze, 'The Chariot Wheels of the Central Government' (1952) *The Economic Record* 239. See Chapter 32 'Money' and Chapter 34 'The Passage Towards Economic Union in Australia's Federation'.

⁸² Federal Conference, Melbourne (1890) 89–91. Initially, the premiers had agreed only on the desirability of a union of the colonies 'under one legislative and executive government': Federal

Conference, Melbourne (1890) 19–20. See Chapter 36 ‘Federal Jurisdiction’.

⁸³ Official Report of the National Australasian Convention Debates (Sydney, 1891) 23.

⁸⁴ For more detail, see James Stellios, *The Federal Judicature: Chapter III of the Constitution: Commentary and Cases* (LexisNexis Butterworths, 2010) 9–33.

⁸⁵ Official Report of the National Australasian Convention Debates (Melbourne, 1898) 2330.

⁸⁶ Dicey (n 16) 130–55, 410–13.

⁸⁷ See, eg, Official Report of the National Australasian Convention Debates (Sydney, 1891), 698 (Clark); Official Report of the National Australasian Convention Debates (Adelaide, 1897), 937 (Dobson), 938 (Downer), 940 (Kingston), 950–51 (Symon), 952–53 (Barton), 953 (Higgins), 956 (Downer, Cockburn); Official Report of the National Australasian Convention Debates (Melbourne, 1898), 268 (Barton), 271 (Symon), 272 (Kingston), 275 (Downer), 279 (Higgins), 286 (O’Connor), 289 (Isaacs) 291 (Downer).

⁸⁸ Official Report of the National Australasian Convention Debates (Adelaide, 1897) 962 (Barton, referring to O’Connor’s observation).

⁸⁹ See, eg, Official Report of the National Australasian Convention Debates (Adelaide, 1897), 944–45 (Glynn), 946 (Kingston), 947–49 (Isaacs), 950–51 (Symon), 951–53 (Barton).

⁹⁰ Official Report of the National Australasian Convention Debates (Melbourne, 1898) 267–68.

⁹¹ Official Report of the National Australasian Convention Debates (Adelaide, 1897) 70 (Edward Braddon, Patrick Glynn), 83 (Simon Fraser) 236 (Philip Fysh).

⁹² Official Report of the National Australasian Convention Debates (Melbourne, 1898) 279–81 (Higgins).

⁹³ For a discussion of this point, see James Allan and Nicholas Aroney, ‘An Uncommon Court: How the High Court of Australia Has Undermined Australian Federalism’ (2008) 30 Sydney Law Review 245. See also Nicholas Aroney and John Kincaid (eds), *Courts in Federal Countries: Federalists or Unitarists?* (University of Toronto Press 2017).

⁹⁴ See Chapter 36 ‘Federal Jurisdiction’.

⁹⁵ *Judiciary Act 1903* (Cth), s 30.

⁹⁶ Official Report of the National Australasian Convention Debates (Adelaide, 1897) 951 (Symon).

⁹⁷ *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31, 82.

⁹⁸ See Aroney, *The Constitution of a Federal Commonwealth* (n 3) 256–66.

⁹⁹ Official Report of the National Australasian Convention Debates (Sydney, 1891) 327–28, 330–32, 477–78 (Grey), 327 (Gillies), 328–29 (Playford), 329 (Downer), 329–30 (Griffith), 330 (Jennings), 335 (Deakin), 336 (Barton), 478 (Parkes).

¹⁰⁰ See Chapter 33 ‘Co-operative Federalism’.

¹⁰¹ Official Report of the National Australasian Convention Debates (Sydney, 1891) 962; Official Report of the National Australasian Convention Debates (Adelaide, 1897) 1241; Official Report of the National Australasian Convention Debates (Melbourne, 1898) 246–48, 664–91, 1780–1802, 2397.

¹⁰² This restriction applies also to the States.

¹⁰³ See Chapter 34 ‘The Passage Towards Economic Union in Australia’s Federation’.

¹⁰⁴ See Quick and Garran (n 3) 385–87; Richard Baker, *A Manual of Reference to Authorities for the Use of the Members of the National Australasian Convention* (E.A. Petherick and Co 1891) ch 6.

¹⁰⁵ Official Record of the National Australasian Convention Debates (Sydney, 1897) 548.

¹⁰⁶ *ibid* 321.

¹⁰⁷ Quick and Garran (n 3) 381–82. See Nicholas Aroney, Scott Prasser and John Nethercote (eds), *Restraining Elective Dictatorship: The Upper House Solution?* (University of Western Australia

Press 2008).

¹⁰⁸ See Chapter 24 ‘Parliaments’.

¹⁰⁹ Quick and Garran (n 3) 414.

¹¹⁰ Official Report of the National Australasian Convention Debates (Sydney, 1897) 259–60.

¹¹¹ Official Report of the National Australasian Convention Debates (Sydney, 1891) 74–75.

¹¹² *ibid*, 78.

¹¹³ *ibid*, 91.

¹¹⁴ *ibid*, 111.

¹¹⁵ United States Constitution, art I, s 3, cls 1 and 2, altered by Amendment XVII.

¹¹⁶ Jack N Rakove, *Original Meanings: Politics and Ideas in the Making of the Constitution* (Alfred A Knopf 1996) 236; Melvin E Bradford, *Original Intentions on the Making and Ratification of the United States Constitution* (University of Georgia Press 1993) 9–10.

¹¹⁷ For more detail, see Aroney, *The Constitution of a Federal Commonwealth* (n 3) 56–60, 164–7, 217.

¹¹⁸ For more detail, see Aroney et al, *The Constitution of the Commonwealth of Australia*: (n 53) 58–60.

¹¹⁹ Official Report of the National Australasian Convention Debates (Sydney, 1897) 269; see also Official Report of the National Australasian Convention Debates (Adelaide, 1897) 539, 646, 665.

¹²⁰ Official Report of the National Australasian Convention Debates (Sydney, 1891) 280.

¹²¹ As has happened very occasionally: see Campbell Sharman, ‘The Australian Senate as a States House’ (1977) 12(2) *Politics* 64.

¹²² Bryce, *The American Commonwealth* (n 16) 12–15.

¹²³ Official Report of the National Australasian Convention Debates (Sydney, 1897), 360, 366, 371–73, 374, 377, 388, 380, 382, 387; Official Report of the National Australasian Convention Debates (Melbourne, 1898), 1923–24.

¹²⁴ Official Report of the National Australasian Convention Debates (Adelaide, 1897) 669; Official Report of the National Australasian Convention Debates (Sydney, 1897) 360–61, 377; Official Report of the National Australasian Convention Debates (Melbourne, 1898) 1923–25.

¹²⁵ *Senate (Casual Vacancies) 1977* (Cth). See Geoffrey Sawer, *Federation under Strain* (Melbourne UP 1977) 129–35.

¹²⁶ Official Report of the National Australasian Convention Debates (Sydney, 1897) 454. See Aroney, *The Constitution of a Federal Commonwealth* (n 3) 234–35.

¹²⁷ *Commonwealth Constitution*, ss 7–10, 27, 29–31, 34 (but see s 44).

¹²⁸ Such a system had been advocated prior to federation by Andrew Inglis Clark, Catherine Helen Spence, and Edward Nanson, drawing on the earlier work of Thomas Hare and John Stuart Mill.

¹²⁹ See David Farrell and Ian Mcallister, *The Australian Electoral System: Origins, Variations and Consequences* (UNSW Press 2006) 29–36.

¹³⁰ Aroney, *The Constitution of a Federal Commonwealth* (n 3) 224–27.

¹³¹ *ibid* 200–06, 237–39.

¹³² In addition, ss 54 and 55 were inserted to prevent the House of Representatives from ‘tacking’ other matters to taxation and appropriation money bills, to ensure that the Senate would be able to deliberate and vote upon bills dealing with those other matters.

¹³³ Quick and Garran (n 3) 214, 216–17, 673; Higgins (n 22) 16–17; A B Piddington, *Popular Government and Federation* (Angus & Robertson 1898) 6–8; James Bryce, *Studies in History and Jurisprudence* (Clarendon Press 1901) I, 515–18.

¹³⁴ Sawer (n 124).

¹³⁵ Harry Evans and Rosemary Laing, *Odgers' Australian Senate Practice* (13th edn, Department of the Senate 2012) 693–94.

¹³⁶ *Colonial Laws Validity Act 1865* (UK).

¹³⁷ See Chapter 5 ‘Evolution’.

¹³⁸ Official Report of the National Australasian Convention Debates (Sydney, 1891) 884.

¹³⁹ *ibid* 884–86, 888.

¹⁴⁰ *ibid* 884–85.

¹⁴¹ *ibid* 890–91.

¹⁴² *ibid* 893–94.

¹⁴³ *ibid* 897.

¹⁴⁴ Robert Randolph Garran, *The Coming Commonwealth: An Australian Handbook of Federal Government* (Angus & Robertson 1897) 184; see also Quick and Garran ([n 3](#)) 150–55, 160–65.

¹⁴⁵ Official Report of the National Australasian Convention Debates (Melbourne, 1898) 772.

¹⁴⁶ *ibid* 724, 757.

¹⁴⁷ *Swiss Constitution*, 1890 Amendment, art. 121.

¹⁴⁸ Official Report of the National Australasian Convention Debates (Melbourne, 1898) 730–31.

¹⁴⁹ *ibid* 716–24.

¹⁵⁰ Quick and Garran ([n 3](#)) 988. See also Official Report of the National Australasian Convention Debates (Melbourne, 1898), 736 (Reid and Isaacs), 741 (Higgins).

¹⁵¹ Quick and Garran ([n 3](#)) 220.

¹⁵² In 1915, 1965, and 1983 respectively, an amendment proposal passed by only the Senate and two amendment proposals passed by both Houses, were not submitted to referendum by the Governor-General acting on the advice of the government of the day: Evans and Laing ([n 135](#)) 330–31.

¹⁵³ Official Report of the National Australasian Convention Debates (Melbourne, 1898) 725–26 (Downer), 727–28 (Deakin), 752 (Solomon), 750–51 (Barton), 726 (Isaacs), 740–41 (Higgins), 763–65 (Wise).

¹⁵⁴ Official Report of the National Australasian Convention Debates (Sydney, 1891) 884.

¹⁵⁵ *ibid* 897–98.

¹⁵⁶ *Commonwealth Constitution*, s 128, para 5.

¹⁵⁷ Higgins predictably objected: see Official Report of the National Australasian Convention Debates (Melbourne, 1898) 766–69. See also Higgins ([n 22](#)) 6–12, 20.

¹⁵⁸ See Quick and Garran ([n 3](#)) 216–20, 974–75; cf. Official Report of the National Australasian Convention Debates (Sydney, 1891) 897–98 (Griffith).

¹⁵⁹ Official Report of the National Australasian Convention Debates (Sydney, 1891) 490–91.

¹⁶⁰ *ibid* 524; cf 490.

¹⁶¹ Quick and Garran ([n 3](#)) 992.

¹⁶² Allan and Aroney, ‘An Uncommon Court: How the High Court of Australia Has Undermined Australian Federalism’ ([n 93](#)).

¹⁶³ Nicholas Aroney and Campbell Sharman, ‘Territorial Politics and the Federal Frame in Australia’ in Eve Hepburn and Klaus Detterbeck (eds), *Handbook of Territorial Politics* (Edward Elgar forthcoming 2017).

CHAPTER 31

POWER

MARK LEEMING*

A. OVERVIEW

THE Australian Constitution is mostly about power. It is much more about power than it is about rights. This chapter seeks to explain and illustrate why that is so.

The starting point is the Australian constitutional arrangement which creates a federal system, each of whose national and subnational polities possesses legislative, executive, and judicial branches derived from and reflecting a Westminster system of responsible government, with ample scope for overlap and conflict between the powers of each branch. The questions involving the scope and interrelationship of those powers include questions which are subtle and complex. The position is quite different from that in other legal systems, most notably because of the relative absence of entrenched individual rights.

This chapter takes the following form. First, the nature of the structures established by the Commonwealth and State Constitutions is described. Then the nature of the limitations of, and interactions between, the powers conferred upon those structures is considered, illustrating the different qualities of legislative, executive, and judicial power and the different relationships between those powers, and seeking to explain why many of these questions remain the subject of continuing development more than a century after federation.

Legislative, executive, and judicial power combine in connection with what has been described, in Professor Saunders' words, as the 'constitutionalisation of Australian administrative law'. That in turn arises from three features of the Australian legal system relating to power. They

are the distinction between the limits to the exercise of powers and the merits of a particular exercise of power, the rule that courts and courts alone may conclusively determine the limits of executive power, and the entrenched supervisory jurisdiction of the High Court and the State Supreme Courts. One important consequence, discussed below in connection with implied limitations on legislative power, is a structural preference for ‘institutional checks and balances over direct protection of rights’, leading to a reduced incentive to explore ‘techniques associated with a more rights conscious jurisprudence, of which proportionality is an example’.¹ That is to say—and it is central to this chapter—that there is a greater focus in the Australian legal system upon *power*, as opposed to *rights*.

This chapter is about *public* power: the powers conferred by the Commonwealth and State Constitutions upon the instruments of government. By and large, those Constitutions are silent on the *private* powers enjoyed by natural and artificial persons such as corporations (eg, to enter into contracts or to deal with property). Instead, they presuppose a system of common law which recognizes personal and proprietary rights and obligations and curial mechanisms to enforce them. Indeed, a remarkable feature of the Australian legal system is that the constituent political polities are treated as legal persons and disputes as to the existence and limits of their powers are subjected to the exercise of judicial power by the courts.

B. PUBLIC POWER WITHIN THE COLONIAL AUSTRALIAN LEGAL SYSTEMS

A convenient approach to explaining public power in the Australian legal system turns out to be an historical one. The critical elements are the reception of common law and the creation of colonial institutions of government in the nineteenth century and the federation of the Australian colonies in 1901. The importance of federation cannot fully be appreciated without regard to those nineteenth century developments. Each is summarized below. Notwithstanding important constitutional developments thereafter, by and large it has been the working out of the consequences of those structures which has given rise to the complexity and continuing centrality of questions of power within the Australian legal system.

But convenience of exposition is not the sole reason for the historical approach adopted in this chapter. Historical continuity is an essential element of the Australian judicial technique, and is a powerful limitation upon the exercise of judicial power, especially in relation to constitutional decisions, which are hard to reverse. Gummow J's strongly worded statement does not underplay the importance of restraint:²

it would be to pervert the purpose of the judicial power if, without recourse to the mechanism provided by s 128 and entrusted to the Parliament and the electors, the Constitution meant no more than what it appears to mean from time to time to successive judges exercising the jurisdiction provided for in Ch III of the Constitution.

The final section of this chapter returns to such issues of precedent and comity and incrementalism.

1. Reception of Common Law and its Pervasive Influence

All six Australian colonies were founded by the British. New South Wales (from which Victoria and Queensland were carved out), Van Diemen's Land, and Western Australia were founded as penal settlements initially under military rule. South Australia was also carved out of New South Wales but was founded as a colony for free settlers, under a special Act of Parliament which provided for the establishment of local government when the population reached 50,000.³

In each case, English common law (as well as applicable statutes) was received.⁴ As will be seen subsequently in this chapter, and explained in detail and perceptively by Justice Gummow in [chapter 8](#) 'Common Law', the common law is—and in a number of senses—the ultimate foundation of the powers established by the Australian legal system. The 'antecedent system of jurisprudence' constituted by the common law, whose pervasive effect was an 'unexpressed assumption' and the 'source of the legal conceptions that govern us' to which Sir Owen Dixon famously referred,⁵ provided and provides the framework for analysing the limitations of legislative, executive, and judicial power within the Australian legal system. Common law conceptions supply the context in which the Constitution is read, but also basal common law notions (such as jurisdiction, inconsistency, and invalidity) have been applied to the federal and governmental concepts created by the Constitution so as to delineate and resolve disputes about the exercise of public power. The quality of, and

relationship between, legislative, executive, and judicial power is deeply informed by English constitutional notions of government, especially responsible government, and the principles of statutory construction. Those matters remain important in the legal system in the twenty-first century.

Received common law was administered in the colonial Supreme Courts. Once local legislatures were established, the interaction of colonial legislative and judicial power proved to be highly influential, including in the following three respects. First, there was a long tradition of courts determining colonial legislation void for repugnancy, which had vital consequences for the ready acceptance of the notion of judicial review and the invalidity of legislation.⁶ To anticipate, the notion of Australian courts determining the validity of the exercise of federal and State legislative power was accepted throughout Australia. 'In our system, the principle in *Marbury v Madison* is accepted as axiomatic',⁷ even though it was incomprehensible to an aged Lord Halsbury hearing an early Australian appeal.⁸ Secondly, it was the Australian colonies (together with New Zealand and the Cape colonies) which first created mechanisms by which the colonial government was amenable to suit in local courts and could be obliged to meet the resultant judgment.⁹ This deeply informed the subjection of the politics created by federation in 1901 to the authority of courts.¹⁰ Thirdly, colonial decisions on the limited ability to exclude prerogative relief were influential more than a century later in resolving the conflict between a law to protect an exercise of executive power and the Supreme Court's jurisdiction to subject the same exercise of power to judicial review.¹¹

2. Colonial Governments in the Nineteenth Century

In the mid-nineteenth century, four Australian colonies (New South Wales, Victoria, South Australia, and Van Diemen's Land, renamed as Tasmania) achieved responsible government.¹² That came about through negotiation, not revolution, although the amenable and conciliatory attitude from the Colonial Office was heavily influenced by the loss of the American colonies as well as the discovery of the Australian goldfields.¹³ A fifth colony (Queensland) with a local representative and responsible legislature was carved out from New South Wales in 1859,¹⁴ and a sixth (Western

Australia) achieved responsible government in 1891, only weeks before the first federal Convention.

The theory and practical operation of responsible government as practised in the Australian colonies ensured that the exercise of executive power was subject to the control of the elected chamber. The consequence was, on the whole, a pattern of short-term, unstable colonial governments throughout the nineteenth century.¹⁵ Even so, responsible government informed the drafting of the Commonwealth Constitution and was in large measure to be replicated in the new federal structures created by it.¹⁶

The legislative power exercised by colonial Parliaments was conferred in general terms (typically, laws for the ‘peace, order and good government’ of the colony) but was subject to a series of important limitations. Principal among these were the requirement to obtain royal assent, which could be refused, or reserved, or simply withheld until the bill had lapsed¹⁷ and the inability to make laws repugnant to Imperial legislation.¹⁸ Thus colonial legislative power was subject to both (Imperial) executive power and colonial judicial power—quite different from the English system from which it derived. The limitations on the legislative power exercised by colonial legislatures were familiar to the founders of the Australian federation.

C. FEDERATION AND THE TWENTIETH CENTURY

The six Australian colonies achieved a federal union in 1901.¹⁹ Once again, they did so without any revolution, but entirely through negotiated legal outcomes with the Imperial government. The Australian Constitution is substantially a document drafted in Australia, approved by majorities in each colony, but enacted by the Westminster Parliament as a schedule to an Imperial statute.²⁰ That process coincidentally followed the course taken half a century earlier by the first four colonies which attained responsible government. It picked up in large measure the conceptions of legislative, executive, and judicial power reflected in colonial responsible government. However, the text and structure of the Constitution is very different, largely reflecting the influence of the United States in terms of federalism and separation of powers.²¹ Conspicuous by its absence was any detailed

statement protective of rights. That was no accident, as [chapter 37](#) ‘Rights Protection in Australia’ explains.

The Commonwealth of Australia created in 1901 was a self-governing colony, not qualitatively different from the six colonies which had preceded it and which continued as ‘States’. Its laws were subject to assent by the vice-regal representative (the Governor-General)²² and void if repugnant to Imperial law.²³ It had but limited international legal personality. Decisions of the High Court of Australia were subject to appeal to the Privy Council.

However, the possibility that Australia would become a sovereign nation was implicit in the structures established in 1901. As much was recognized at the time.²⁴ The steps by which that occurred (including the Balfour declaration, the enactment and adoption of the Statute of Westminster, the abolition of appeals to the Privy Council, and the enactment of the *Australia Acts*) are described in more detail in [chapter 4](#) ‘Independence’ in this volume.

At the same time, those essentially political developments were of vital importance in the working out of basic questions of power within the new Australian legal system. Their effect was to remove an external and superior source of legislative, executive, and judicial power—that emanating from Westminster and Whitehall. For the last three decades, the Australian legal system has been essentially local.

D. THE EXISTENCE, MANNER OF EXERCISE, AND LIMITS OF PUBLIC POWER

It will be useful to bear in mind three key distinctions when examining questions turning on the interaction of the public powers defined and regulated by the federal and State Constitutions. The first is whether power exists. The second is how a power should be exercised. The third is whether the purported exercise of power is valid.

The first and third questions are determined by courts, through the exercise of judicial power. The second question is a matter for the body exercising power—which is to say, it is a policy question, to be determined by the legislature, in the context of the exercise of legislative power, and by the executive, when exercising executive power. Thus the courts—exercising judicial power—determine the *existence* and *limits* of legislative

and executive power at the national and subnational level. As Dixon J famously said, the Commonwealth Constitution goes ‘directly to the conceptions of ordinary life’ and:²⁵

From beginning to end [the Constitution] treats the Commonwealth and the States as organizations or institutions of government possessing distinct individualities. Formally they may not be juristic persons, but they are conceived as politically organized bodies having mutual legal relations and amenable to the jurisdiction of courts upon which the responsibility of enforcing the Constitution rests.

This may be said to amount to the *legalization* of many of the questions of public power within the Australian legal system. The link with colonial innovations subjecting government to curial control is clear.

The determination of the *content* of legislative and executive power, within those limits, is a matter of the ordinary political process, for which governments are accountable to the legislature, and legislators accountable to the electorate. As Gageler J has recently said:²⁶

Electoral choice is the means of constituting the Parliament of the Commonwealth, and of indirectly constituting the Executive Government of the Commonwealth. Electoral choice thereby constitutes the principal constraint on the constitutional exercise by the Parliament of the legislative power of the Commonwealth, and on the lawful exercise by Ministers and officers within their departments of the executive power of the Commonwealth.

The clashes of power which require resolution *within* the legal system, rather than by the political process, tend to arise either because of a conflict between national and subnational governments, or because of a limitation of legislative or executive power. Those conflicts are resolved by courts.

The focus above upon judicial power enforcing the limits of legislative and executive power is not to imply that judicial power is supreme—far from it. It will be seen below that judicial power is subject to powerful forces of self-restraint, enforced by the system of appeals and review, and that the occasion for its exercise is determined by the choices of litigants, and that in any event it is susceptible to being overturned by the exercise of legislative power.

Judicial power is inherently different. For immediate purposes, it may be noted that courts have consistently emphasized the *non-political* nature of the task conferred upon them. For example, French CJ in *Williams v Commonwealth* said, in the context of rejecting the Commonwealth’s submission on the scope federal executive power conferred by section 61 of the Constitution:²⁷

section 61 does not empower the Commonwealth, in the absence of statutory authority, to contract for or undertake the challenged expenditure on chaplaincy services in the Darling Heights State School. That conclusion depends upon the text, context and purpose of s 61 informed by its drafting history and the federal character of the Constitution. It does not involve any judgment about the merits of public funding of chaplaincy services in schools.

Indeed, the High Court has embraced what was said in *Mistretta* that ‘the legitimacy of the Judicial Branch ultimately depends on its reputation for impartiality and nonpartisanship’,²⁸ from which have been derived constitutional limitations.²⁹

E. FEDERAL LEGISLATIVE POWER

The Constitution confers powers on the Commonwealth Parliament to make laws ‘with respect to’ certain subjects in sections 51 and 52. This conferral of legislative power is expressly made ‘subject to this Constitution’. Sections 76 and 77 also confer power on the Commonwealth Parliament to make laws conferring jurisdiction on the High Court and other federal courts, and investing federal jurisdiction in State courts. The effect is to limit federal legislative power in a number of distinct ways.

First, in contrast with the plenary grants of legislative power to the State legislatures, the Constitution expressly confers *limited* legislative power on the Commonwealth Parliament by reference to particular subjects. Moreover, some of those subjects are *themselves* expressly limited. Thus there is power to make laws with respect to banking and insurance, ‘other than State banking’ and ‘other than State insurance’. These have consistently been held to impose a limit upon legislative power.³⁰ The subject matter of the grant of legislative power carries with it, expressly, a limitation as to its exercise.

There are subtler textual limitations, too. For example, it has been said of the grant of power to make laws with respect to ‘trade and commerce with other countries, and among the States’, that it ‘compels a distinction between trade and commerce with other countries, and among the States, on the one hand, and other forms of trade and commerce, on the other. It does not permit an argument that trade and commerce in Australia is one indivisible whole.’³¹ There is similar subtlety in the power to make laws with respect to ‘the acquisition of property on just terms’. Those words are an important (and rare) constitutional guarantee, but there is also involved

an important question of characterization, having regard to the existence of other powers (most obviously, taxation) to which they cannot apply.³²

Secondly, noting that the conferral of federal legislative power is made 'subject to this Constitution', Commonwealth legislative power is expressly limited by sections of the Constitution itself. Examples are sections 92 (interstate trade, commerce, and intercourse 'shall be absolutely free') and 114 (prohibition on federal tax on State property).

Thirdly, Commonwealth legislative power is subject to *implied* limits deriving from the text and structure of the Constitution. One example is the incapacity of the Commonwealth Parliament to enact a law which 'impairs the capacity of a State to function in accordance with the constitutional conception of the Commonwealth and the States as constituent entities of the federal structure'.³³ Another example may be seen in the failure of a basal element of the 'cross-vesting' scheme, which operated for more than a decade, whereby federal laws purported to endorse the conferral by State laws of State jurisdiction upon federal courts.³⁴ Other examples are addressed in other chapters in this work.³⁵

Rather than attempting to enumerate a list of examples limiting legislative power, this chapter examines more generally the complex way in which public power is limited within the Australian legal system. In each case, it is the task of the judiciary, in the exercise of federal judicial power, to determine the precise limits of legislative power in particular instances. In theory, a question of validity may be raised in any court (State or federal) in which federal jurisdiction has been invested. The policy which has long been followed is to invest *all* Australian courts with federal jurisdiction, subject to the existing limitations of subject matter and remedies.³⁶ This policy explains the relatively late creation of federal courts below the High Court.³⁷ Thus, State courts, including local or magistrates' courts, exercise federal jurisdiction on a daily basis, in criminal prosecutions under federal law (either committing an accused to stand trial, or determining his or her guilt in the exercise of summary jurisdiction), and whenever federal law is the source of a plaintiff's claim or a defendant's defence in civil litigation. The questions of power identified above may be determined in lower courts, especially in terms of setting aside the invalid exercise of executive power (eg, quashing a federal search warrant) but also including matters arising under the Constitution,³⁸ although there is also a facility to remove a

case presenting such questions to a higher court including directly to the High Court.³⁹

Notwithstanding the foregoing, the key questions of the scope of the limited grants of legislative power to the Commonwealth Parliament were on the whole resolved in the first century following federation, and favourably to the Commonwealth. That may be seen as a consequence of the open-textured language of the heads of power, the breadth of the words ‘with respect to’, the absence of heads of power reserved to the States, and the broad approach to the construction of a Constitution which is difficult to amend and intended to be long-lasting.⁴⁰ Important expansive decisions on the scope of the corporations power,⁴¹ the external affairs power,⁴² and the taxation power⁴³ support a great deal of important federal legislation. It is far from clear that this was the result anticipated at the time.

Legislative power was conferred on the new federal polity in two principal ways. The first was to confer *exclusive* legislative power in relation to a small number of well-defined subjects: with respect to its essential attributes (the seat of government and the federal public service), and with respect to the power to impose duties of customs and excise following the imposition of uniform duties of customs.⁴⁴ The latter power was carefully limited, including obligations to restore all surplus revenue to the States, and for not more than one quarter of the net revenue from duties of customs and excise to be applied by the Commonwealth to its expenditure.⁴⁵ However, by a series of measures, upheld by the High Court, those protections were outflanked.⁴⁶

Exclusive federal legislative power has also been effected by a small number of constitutional prohibitions upon State legislative power: for example, prohibitions against coining money and raising naval or military forces and upon taxation upon Commonwealth property.⁴⁷ The result is that the federal legislative powers in section 51(vi) and (xii) to make laws with respect to, respectively, the naval and military defence of the Commonwealth, and currency, coinage, and legal tender, are for practical purposes exclusive.

But a more important reason for the supremacy of federal legislative power arises from the concurrent heads of power in section 51, coupled with the interpretation which has been given to section 109, which gives supremacy to federal laws over inconsistent State laws.

The list of thirty-nine heads of power originally enacted in the Constitution contains many which are expressly qualified with respect to the concurrent legislative powers of the States. Thus the power to make laws with respect to trade and commerce is expressly linked to trade and commerce with other countries, and among the States; its apparent textual premise is that there will be some trade and commerce which is outside its scope. Likewise the industrial relations power is confined by reference to industrial disputes extending beyond the limits of any one State; again it seems to proceed on the basis that an industrial dispute confined within a single State is outside its scope. That is not to say that there will be complex issues as to when the exercise of federal power with respect to interstate trade, or industrial disputes, will impact upon intrastate matters; the only point being made is the textual qualification upon the grant of power. A different approach is seen in the powers with respect to banking and insurance, which in each case exclude from the grant of power 'State banking' and 'State insurance' (which were profitable areas of government activity at the time of federation and for many decades thereafter); but once again, the grant of power carries with it a textual limitation.

The majority of the heads of federal legislative power deal with focused subject matters of self-evidently appropriate national concern: postal services, quarantine, fisheries in Australian waters, weights and measures, copyrights, patents and trade marks, marriage, immigration, the influx of criminals. Those matters are important, but even though the grant of power is unqualified, the limited subject matter of these heads of power means that even an appropriately expansive reading of them remains within reasonably well-defined limits. However, within that otherwise narrowly circumscribed list of powers here were two which became, in the last quarter of the twentieth century, of substantial importance: the power to make laws with respect to 'Foreign corporations, and trading or financial corporations formed within the limits of the Commonwealth', and 'external affairs'.⁴⁸ It is doubtful that it was foreseen in 1901 that companies would come to dominate Australian economic life, or that laws with respect to corporations could be so widely drawn.⁴⁹ Although it was foreseeable that the new federal colony might in time attain international sovereignty and enter into international treaties, it is doubtful that it was foreseen how bilateral and multilateral treaties would proliferate, and extend over such a wide range of subject matters (eg, discrimination, industrial safety, the rights of women

and children, the protection of the environment). As Kim Santow once observed, it has been the expansive interpretation of the corporations and external affairs powers, coupled with a narrowing of the reach of section 92,⁵⁰ which have empowered the Commonwealth legislature to regulate the national economy.⁵¹

Finally, it is well established that a federal law can in its own terms confer an immunity from State laws, thereby engaging section 109 so as to render State laws inoperative. For example, a federal law can confer an immunity from State taxation,⁵² or environmental assessment,⁵³ or from any law which would extinguish native title.⁵⁴ That is not to say that exclusively federal legislation is invariable, or even the norm; in many cases, a federal regulatory regime co-exists (explicitly or implicitly) alongside a State regime, or else there are identical State laws. But the existence of power is distinct from its exercise. By and large, and subject to the express and (especially) implied limitations on legislative power, the Commonwealth Parliament may choose the manner and extent of regulation of most aspects of Australian economic activity and many aspects of social activity.⁵⁵

F. STATE LEGISLATIVE POWER

The nature of State legislative power is quite different. Plenary legislative power is conferred on State legislatures by the various State Constitutions.⁵⁶ That is to say, rather than power being conferred by reference to enumerated subject matters, each State legislature has *general* power to make laws for the ‘peace, order, and good government’ of the State.⁵⁷ It was established that the power extends to matters with a ‘remote or general’ connection with the State.⁵⁸ Thus, State laws have vested jurisdiction in the Supreme Courts of all other States, so that, for example, a question concerning land in Queensland may be litigated in New South Wales.⁵⁹ Further, notions that the terms of the grants of power contain some limitation have not gained support.⁶⁰

Moreover, most provisions of the State Constitutions are *not* entrenched. Thus the Queensland legislature could, by ordinary Act, reconstitute itself so as to abolish one of its chambers.⁶¹ It is possible to prevent this from

occurring, but cases where such questions arise are few.⁶² Thus, most of the provisions of the *Constitution Act 1902* (NSW) may be amended by an ordinary Act of the New South Wales legislature. It follows that, for the most part, the source of any limitation upon State legislative power is not to be found in the State Constitutions—an unentrenched constitution can sustain neither express nor implied limitations upon legislative power. The contrast with the Commonwealth Parliament is marked.

However, speaking generally, limits on State legislative power arise by reference to some external, *superior* source: formerly, the Imperial Parliament and now, the Commonwealth Constitution and federal laws.⁶³

Until 1986, State legislatures lacked power to enact laws which were repugnant to Imperial laws by reason of the *Colonial Laws Validity Act 1865* (Imp). That restriction led to a deal of complexity; for example, a plaintiff suffering personal injury whilst on Sydney Harbour who sued the shipowner would confront an extraordinarily complex legal regime.⁶⁴ That restriction was abolished in 1986 by the *Australia Acts 1986* (Cth) and (UK). The same legislation confirmed that the State legislatures had extraterritorial legislative capacity, if confirmation were required.⁶⁵

In the absence of other textual restrictions or qualifications, the questions relevant to State legislative power are essentially twofold. The first is whether there was an implied limitation upon legislative power flowing from the Commonwealth Constitution. The second is whether a federal law is inconsistent with a State law such that section 109 of the Constitution renders the latter inoperative. An important conceptual distinction underlies those two questions.

Implied restrictions on legislative power detract from the general legislative competence of the State legislatures. Thus there is no *power* to enact a law which detracts from a Supreme Court's entrenched supervisory jurisdiction. On the other hand, while there is legislative *power* to enact a State law which is inconsistent with federal law, such a law will not be *operative* while the federal law remains in force. Although inconsistent State laws will be 'invalid' to the extent that they are 'inconsistent with a law of the Commonwealth' by reason of section 109 of the Constitution, this is not, strictly, a 'limitation' on State legislative power, so much as a mechanism for dealing with conflicts between *valid* exercises of legislative power by the States and the Commonwealth. The force of the distinction

can readily be appreciated by observing that when the inconsistent federal law is repealed or can no longer be sustained by a head of federal legislative power, the inoperativity produced by section 109 ceases.⁶⁶

Finally, it should be noted that difficult federal questions arise in relation to the interaction between legislative and *executive* power. These cannot be addressed fully in this chapter.⁶⁷ It must suffice to observe that a State law cannot unilaterally vest functions in a federal officer,⁶⁸ and that there are limitations upon the extent to which federal laws may require State officials to act in connection with matters in federal jurisdiction.⁶⁹

G. IMPLIED CONSTITUTIONAL LIMITATIONS UPON LEGISLATIVE POWER

The continuing importance of *implied* limitations upon legislative power will be clear from the foregoing. Here too, courts have emphasized their limited role. As Brennan CJ said in *McGinty v Western Australia*:⁷⁰

Implications are not devised by the judiciary; they exist in the text and structure of the Constitution and are revealed or uncovered by judicial exegesis. No implication can be drawn from the Constitution which is not based on the actual terms of the Constitution, or its structure.

Both federal and State legislative power is subject to *implied* limitations, as noted above,⁷¹ some of which are addressed in detail in other chapters in this volume.⁷² This chapter outlines one limitation: the entrenched supervisory jurisdiction of Chapter III courts.

Seventy years ago, Australia's most distinguished judge famously observed:⁷³

It is, of course, quite impossible for the Parliament to give power to any judicial or other authority which goes beyond the subject matter of the legislative power conferred by the Constitution. ... It is equally impossible for the legislature to impose limits upon the quasi-judicial authority of a body which it sets up with the intention that any excess of that authority means invalidity, and yet, at the same time, to deprive this Court of authority to restrain the individual action of the court or body by prohibition.

In the last decade, some (but not all) of the consequences of that statement have been worked out by the High Court. While Parliaments may legislate to subtract from and qualify both the limits of powers conferred, and also the authority of courts to review its exercise or non-exercise, Chapter III courts have a constitutionally entrenched jurisdiction to grant relief from

jurisdictional error.⁷⁴ Specifically, the High Court's jurisdiction applies at the federal level; that of the State Supreme Courts at the State level. As Gageler J has recently said:⁷⁵

It is equally impossible for a State Parliament to impose limits upon the administrative or judicial authority of a body which it sets up with the intention that any excess of that authority means invalidity, and yet, at the same time, to deprive the Supreme Court of that State of authority to declare and enforce the limits it has set. That is the consequence of the holding in *Kirk v Industrial Court (NSW)* that '[l]egislation which would take from a State Supreme Court power to grant relief on account of jurisdictional error is beyond State legislative power'.

This entrenched supervisory jurisdiction to correct jurisdictional error operates as a limit on *legislative* power at both federal and State levels, as Parliaments are unable to legislate to limit Chapter III courts' supervisory jurisdiction. This comes about at the federal level in two ways:⁷⁶

First, the jurisdiction of [the High Court] to grant relief under s 75(v) of the Constitution cannot be removed by or under a law made by the Parliament. Specifically, the jurisdiction to grant s 75(v) relief where there has been jurisdictional error by an officer of the Commonwealth cannot be removed. Secondly, the judicial power of the Commonwealth cannot be exercised otherwise than in accordance with Ch III. The Parliament cannot confer on a non-judicial body the power to conclusively determine the limits of its own jurisdiction.

Parliament thus cannot legislate either to remove the High Court's jurisdiction to grant relief under section 75(v) of the Constitution, or to confer power on a non-judicial body to conclusively determine the limits of its own jurisdiction.

The limitation upon State legislative power was explained in *Kirk*,⁷⁷ in relation to a privative clauses which purported to prevent appeal or review from all decisions of a State industrial court. The joint judgment relied on an acceptance, at the time of federation, that the jurisdiction of the colonial Supreme Courts to grant certiorari for jurisdictional error could not be denied by a statutory privative provision.⁷⁸ The joint judgment continued:⁷⁹

The supervisory jurisdiction of the Supreme Court was at federation, and remains, the mechanism for the determination and the enforcement of the limits on the exercise of State executive and judicial power by persons and bodies other than the Supreme Court. The supervisory role of the Supreme Court exercised through the grant of prohibition, certiorari and mandamus (and habeas corpus) was, and is, a defining characteristic of those courts.

The principal sources of these implied limitations were thus the colonial institutions upon which federation built, coupled with the provisions in sections 75(v) and 73 of the Constitution. The latter were conscious

Australian innovations departing from the model of article III of the United States Constitution. Section 75(v) of the Constitution confers upon the High Court, as part of its original jurisdiction, jurisdiction in all matters in which a writ of mandamus, or prohibition, or an injunction, is sought against an officer of the Commonwealth. This section ‘bears the indelible mark of *Marbury*’,⁸⁰ and was included so as to avoid the outcome in that case.⁸¹ It ‘secures a basic element of the rule of law. The jurisdiction of the Court to require officers of the Commonwealth to act within the law cannot be taken away by Parliament.’⁸²

The difference between the conceptions of the United States and Australian legal systems is profound. Gleeson and Yezerksi have written of the limited scope of the conception of judicial review by Marshall CJ in *Marbury*: ‘the judiciary did not maintain an overall superintendence of the constitutional order and some questions of constitutional interpretation were conclusively left to the other branches’.⁸³ In contrast, the framers of the Australian Constitution conceived of judicial review as ‘necessarily involving judicial supremacy in matters of constitutional interpretation’.⁸⁴

Finally, the touchstone for the limitation upon legislative power is review of *jurisdictional error*. The High Court in *Kirk* concluded that the distinction between jurisdictional and non-jurisdictional error ‘marks the relevant limit on State legislative power. Legislation which would take from a State Supreme Court power to grant relief on account of jurisdictional error is beyond State legislative power. Legislation which denies the availability of relief for non-jurisdictional error of law appearing on the face of the record is not beyond power’.⁸⁵ More remains to be said on that subject, but it is best deferred, because it is the exercise of executive and judicial power considered below which marks the occasion for the jurisdictional error.

H. EXECUTIVE POWER

In contrast with the qualifications attaching to the conferrals of legislative and judicial power, the Australian Constitution says little in terms about executive power.⁸⁶ It does not follow that there are no limits. No differently from the limits of legislative power, the limits of executive power are to be determined by the courts. A feature of the separation of powers under the

Constitution is ‘the preclusion of administrative bodies from finally determining the limits of their authority and from thereby arrogating an attribute of judicial power’.⁸⁷ One consequence of *Kirk* is that the same would appear to be true of State administrative bodies.

Litigation involving challenges to the validity of exercises of executive power is much more frequent than litigation challenging the validity of exercises of legislative power. For one thing, executive action is far more common than enacting legislation. For another, the authority for the exercise of most executive power, whether at the federal or State level, is legislation (primary or delegated),⁸⁸ and power conferred on the executive by legislation will invariably be qualified. Some of those qualifications will be express—for example, preconditions to the exercise of the power and conditions and limitations to which it is subject. A decision may not be authorized until a report has been prepared and considered, or there has been specified notification or publication, and even then, only with the concurrence of another agency. There may be substantial scope for dispute as to the legal meaning of the empowering legislation—for example, is the statutory precondition to the exercise of power the *fact* that something has occurred, or the *opinion* that something has occurred.⁸⁹ Another recurring issue is whether some qualifications upon the exercise of executive power may be implied. For example, it is easily seen how legislation will be construed so as to impose a qualification that the donee of the power act reasonably, and in a way which accords procedural fairness to those directly affected by the exercise of power. In short, the richness of legislative language and the legal meaning given to it by courts creates much greater scope for dispute than the more limited constraints imposed upon law-making by the Constitution.

For those reasons, it is in the nature of things that there will be disputes as to whether a particular exercise of executive power is authorized by statute. In such cases, litigants can invoke the jurisdiction of Australian courts to review the exercise of executive power. Two mechanisms exist for doing so. The first is by the exercise of the supervisory jurisdiction inherited from the superior courts at common law in Westminster, by writs of prohibition, mandamus, and certiorari, to which are added declaratory and injunctive relief. The second is pursuant to more modern statutory regimes, which often relaxed the tests for judicial review and expanded the

bases available and the nature of the remedies which could be ordered.⁹⁰ Both mechanisms grew in importance in the second half of the twentieth century with the growth of the modern administrative state. It is clear that the statutory mechanism is itself susceptible to being cut back; a guiding principle within the Australian legal system is that what has been conferred by statute may be taken away.⁹¹ Attempts to do so, at both federal and State levels, have led in recent decades to the *constitutional* developments noted above, leading to the recognition of the entrenched supervisory jurisdiction of courts.⁹²

The foundation of the entrenched supervisory jurisdiction is ‘jurisdictional error’. There is no easy definition of what amounts to ‘jurisdictional error’. That is because it is a conclusion—which is to say, it is functional. The High Court has been candidly explicit in this respect: the joint judgment in *Kirk* stated that ‘denominating some questions as “jurisdictional” is almost entirely functional ... If it is understood that the word “jurisdiction” is not a metaphysical absolute but simply expresses the gravity of the error, it would seem that this is a concept for which we must have a word and for which use of the hallowed word is justified.’⁹³ How then is the gravity of an error to be evaluated? Very often it will turn on questions of statutory construction, because the statute will be construed so as to shed light upon what matters associated with the exercise of the power are important—so important such that a departure from them invalidates the exercise of the power. Statutory construction is a central aspect of the exercise of judicial power, and in the Australian legal system, there is no scope for ‘deference’ to the legal meaning given to statutes by the executive.⁹⁴

Careful consideration has been given to this issue by Robertson J who said:⁹⁵

[R]ecent High Court authority shows that this is a case specific inquiry and it is not one which should be analysed by reference to fixed categories or formulas, to the effect that a decision within a category or formula is always or is never affected by jurisdictional error: compare *Universal Camera Corp v National Labor Relations Board* (1951) 340 US 474 at 489 per Frankfurter J, delivering the opinion of the Supreme Court. Useful for analysis though categories or formulas are, they should be seen as servants rather than masters. To proceed otherwise in the area of jurisdictional error is to look for more precision than the nature of the subject admits.

The reference to the judgment delivered by Frankfurter J sixty-five years ago includes the following perceptive analysis of the limitations upon rule-

based descriptions of the legal system:

A formula for judicial review of administrative action may afford grounds for certitude but cannot assure certainty of application. Some scope for judicial discretion in applying the formula can be avoided only by falsifying the actual process of judging or by using the formula as an instrument of futile casuistry.

The three features of the Australian legal system which underlie, in Professor Saunders' words, to the 'constitutionalisation of Australian administrative law'. They are the distinction mentioned above between the limits to the exercise of powers and the merits of a particular exercise of power, the rule that courts and courts alone may conclusively determine the limits of executive power, and the entrenched supervisory jurisdiction of the High Court and the State Supreme Courts.⁹⁶ One important consequence, already touched on in connection with implied limitations on legislative power, and emphasized by Professor Saunders, is a structural preference for 'institutional checks and balances over direct protection of rights', leading to a reduced incentive to explore 'techniques associated with a more rights conscious jurisprudence, of which proportionality is an example'. That is to say—and it is central to this chapter—that there is a greater focus in the Australian legal system upon *power*, as opposed to *rights*.

I. JUDICIAL POWER

The role of the judiciary under the Australian Constitution in determining the existence and limits of power can be distinguished from that of the courts in, for example, Canada and India. In order for Australian courts to determine the existence and limits of power, they must have before them a justiciable controversy (a 'matter' to use the language of Chapter III of the Constitution). The High Court long ago held that 'there can be no matter within the meaning of [section 76 of the Constitution] unless there is some immediate right, duty or liability to be established by the determination of the Court'.⁹⁷ Australian courts may not advise on the constitutionality of an exercise of power in the abstract. There is thus no scope for the referral by either the Commonwealth legislature or executive of questions of law to the High Court, nor an ability to deliver advisory opinions.⁹⁸ This limitation has important consequences for the prosecution or ordinary civil and criminal litigation, for hypothetical questions in civil or criminal litigation may not

be determined in the abstract, even though there may be occasions when all parties consider it desirable to do so.⁹⁹ Plainly, the Australian system does not permit, at the federal level, any equivalent to the reference question mechanism under the Canadian *Supreme Court Act*, or the presidential reference under article 143 of the Constitution of India.¹⁰⁰

Quite different notions of separation of judicial power from legislative and executive power operate at the federal and State levels. It was (perhaps belatedly) recognized that the text and structure of the Constitution (notably, Chapters I, II, and III mentioned above) sustained broad implications that federal judicial power could not be conferred on non-courts, and that federal courts could not have non-judicial power conferred upon them.¹⁰¹ This is not the place to seek to articulate the qualifications to those general propositions. Of greater importance is the absence of a comparable doctrine of separation of powers at the State level.¹⁰² But that is not to say that there are no implied limitations upon the interaction of legislative power and courts including State courts.

All Australian courts must adhere to certain minimal standards, such as to give reasons for the exercise of judicial power, as well as to accord procedural fairness.¹⁰³ That falls short of a right to 'due process'.¹⁰⁴ Of course, the content or extent of the obligation to give reasons and to accord procedural fairness will depend on the particular court and the particular decision being made by that court. The sufficiency of reasons will be influenced by the nature of the court (inferior or superior), the importance of the controversy, and the nature of any rights of appeal that have been created. For example, more by way of reasons will be required if an appeal lies by way of rehearing than if an appeal lies only on question of law.¹⁰⁵ More generally, there can be no single, comprehensive statement of what is essential to a court.¹⁰⁶ However, the obligation to give reasons marks a large difference between judicial power and the other forms of public power within the Australian legal system, and a failure to do so may result in the decision being set aside on appeal or review.

It is an essential characteristic of judicial power to determine the legal meaning of legislation; that follows from the acceptance of *Marbury v Madison*. But that power too is limited. As Professor Goldsworthy has recently observed, even a *legislative* attempt to require courts to give an

excessively creative meaning to legislation will be invalid, if the result is that courts will be performing a legislative function.¹⁰⁷

1. Judicial Power Affected by Precedent and Comity

It is settled that there is a single common law of Australia.¹⁰⁸ This is in contrast with the position in the United Kingdom, where the Supreme Court hears and determines Scottish appeals applying a very different system of law, and is unlike the United States, where there is a separate common law in each State, as well as ‘enclaves’¹⁰⁹ of federal common law.¹¹⁰

Of course, as a matter of practice, divergent decisions by intermediate State appellate courts create divergent common law principles.¹¹¹ Thus at present intermediate appellate courts take differing views as to the admissibility of tendency and coincidence evidence in criminal trials.¹¹² In theory, where intermediate appellate courts take differing views on a legal question, their ‘disagreement will indicate that not all of these courts will have correctly applied or declared the common law’.¹¹³ This follows from the structure of the judiciary created by the Constitution, and the basal proposition that there can only be one correct answer to any question of law. However, in practical terms, it means that, for a time, the same dispute will be resolved differently by the exercise of judicial power in different courts.

Hence the importance of courts exercising judicial power being subject to obligations of comity and deference to earlier decisions and to the decisions of other courts. It is necessary to entertain a ‘strong conviction’ that an earlier decision of the same court is wrong before overruling it, because the power to do so is informed by matters going beyond the particular case, and extend to the considerations of certainty, predictability, and transparency of the law.¹¹⁴ A unanimous High Court in *Farah Constructions Pty Ltd v Say-Dee Pty Ltd* said: ¹¹⁵

Intermediate appellate courts and trial judges in Australia should not depart from decisions in intermediate appellate courts in another jurisdiction on the interpretation of Commonwealth legislation or uniform national legislation unless they are convinced that the interpretation is plainly wrong. Since there is a common law of Australia rather than of each

Australian jurisdiction, the same principle applies in relation to non-statutory law.

It may be that the deference reflected in that statement adds little to the constraints of comity which Australian courts have long since applied in relation to each other's decisions.¹¹⁶ But however the principle of comity be expressed, it amounts to a real restriction upon the exercise of judicial power.

2. The Relationship between Legislative and Judicial Power, and Executive and Judicial Power

Many aspects of these relationships are apparent from what has been said above, to which three points may be added. First, appeals are creatures of statute (supplemented by the appeals process mandated by section 73 of the Constitution).¹¹⁷ Thus legislation provides for the appellate review of exercises of judicial power by lower courts.

Secondly, there are other important ways in which judicial power is qualified by legislation. It has been settled for centuries that a statute will override a judge-made rule. More controversially, it is well settled that a statute can override the determination of a court in a particular case, and even do so before the case is determined.¹¹⁸ 'The circumstance that a statute affects rights in issue in pending litigation does not necessarily involve an invasion of judicial power.'¹¹⁹ A statute can also validate, with retrospective effect, the exercise of executive power which a court has held to be invalid.¹²⁰

Thirdly, judicial power operates differently in connection with public power than with private power. Only the parties are bound directly by the determination of a particular controversy (which is not to say that the precedential effect of the decision will not affect other parties). However, where a dispute involving the executive has been resolved by the courts, the effect of judicial power is to bind the executive generally. That is a consequence of it being, 'emphatically, the province and duty of the judicial department to say what the law is'.¹²¹ Allsop CJ has observed that 'This passage has been recognised as central to the administration of justice and to the relationship between the judiciary and executive in this country',¹²² in the course of criticizing in (appropriately) strong language the apparent

failure by the executive to follow the law as stated by a superior court of record:

What should not occur is a course of conduct whereby it appears that the courts and their central function under Chapter III of the Constitution are being ignored by the executive in the carrying out of its function under Chapter II of the Constitution, in particular its function under s 61 of the Constitution of the execution and maintenance of the laws of the Commonwealth.

J. CONCLUSIONS

Much of the substantive body of constitutional and administrative law within the Australian legal system may fairly be described as concerning the nature and control of public power. The approach taken in this chapter has been to seek to illustrate the nature of the issues at a conceptual level.

The key points which emerge are the complexity of the limitations and interactions between the different powers of the various polities within the federation, the subjection of those polities to the exercise of federal judicial power, and the variety of ways in which judicial power is itself limited and constrained, all of this reflecting the working out of the legal consequences of structures established more than a century ago against the background of the common law.

The upshot is a more powerful appreciation that the Constitution is an instrument conferring and regulating power, and in complex ways—some of which are still unfolding. As noted at the outset, conflicts between power (whether it be legislative, executive, or judicial) and individual rights are relatively infrequent, in contrast with the position in many other legal systems.

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¹ See Cheryl Saunders, 'Constitution as Catalyst: Different Paths within Australasian Administrative Law' (2012) 10 New Zealand Journal of Public and International Law 143; see also William Gummow, 'Rationality and Reasonableness as Grounds for Review' in Debra Mortimer (ed), *Administrative Justice and its Availability* (Federation Press 2015) 13, 15–16.

² *SGH Ltd v Commissioner of Taxation* (2002) 210 CLR 51, 75, [44] (Gummow J). See also *Re Wakim; ex parte McNally* (1999) 198 CLR 511, 549[35] (McHugh J).

³ The *South Australia Colonisation Act 1834* (4 & 5 Will 4 c 95), ss 22 and 23, and see Ralph Hague, *Hague's History of the Law in South Australia* (University of Adelaide Barr Smith Press

2005).

⁴ The details are complex: see Mark Leeming, *Resolving Conflicts of Laws* (Federation Press 2011) 36–38; Bruce McPherson, *The Reception of English Law Abroad* (Supreme Court of Queensland Library 2007) 310–12.

⁵ Sir Owen Dixon, ‘The Common Law as an Ultimate Constitutional Foundation’ in Severin Woinarski (ed), *Jesting Pilate* (2nd edn, William Hein & Co 1997) 203, 205.

⁶ See Mark Leeming, *Resolving Conflicts of Laws* (Federation Press, 2011), pp 106–39; Mark Leeming, *Authority to Decide: The Law of Jurisdiction in Australia* (Federation Press 2012) 241–52.

⁷ *Australian Communist Party v Commonwealth* (1951) 83 CLR 1, 262–63 (Fullagar J). For a different emphasis, see Ronald Sackville, ‘The Changing Character of Judicial Review in Australia: The Legacy of *Marbury v Madison*?’ (2014) 25 Public Law Review 245.

⁸ *Webb v Outrim* [1907] AC 81. Of Griffith CJ’s response in *Commissioners of Taxation (NSW) v Baxter* (1907) 4 CLR 1087 it has been said that it ‘is the most vitriolic judgment in the Commonwealth Law Reports’: Murray Gleeson, ‘The Centenary of the High Court: Lessons from History’ (Paper delivered in Supreme Court of Victoria, 3 October 2003).

⁹ See Paul Finn, *Law and Government in Colonial Australia* (OUP 1987) 141–59, Leeming, *Authority to Decide* (n 6) 237–41.

¹⁰ See Leeming, *Authority to Decide* (n 6) ch 8.

¹¹ See *Kirk v Industrial Court (NSW)* (2010) 239 CLR 531, 580 [97] (‘[A]ccepted doctrine at the time of federation was that the jurisdiction of the colonial Supreme Courts to grant certiorari for jurisdictional error was not denied by a statutory privative provision’) and see text at (n 86) and (n 93) ff below.

¹² For details, see Arthur Keith, *Responsible Government in the Dominions*, vol 1 (Clarendon Press 1912) 25–41 and Alexander Melbourne, *Early Constitutional Development in Australia* (University of Queensland Press 1963).

¹³ See *Rowe v Electoral Commissioner* (2010) 243 CLR 1, 109–10 [336]–[342]; *New South Wales Aboriginal Land Council v Minister Administering the Crown Lands Act* (2015) 303 FLR 87, 113 [122]–[123].

¹⁴ See James Allsop, ‘Queensland’s Constitutional Inheritance from New South Wales’ in Michael White and Aladin Rahemtula, *Queensland’s Constitutional Past, Present and Future* (Supreme Court of Queensland Library 2010).

¹⁵ Keith (n 12) 324. (‘In the case of the states there has been the same lack of political continuity, and the average life of a Government has been extremely short. There have been thirty-four Ministries in New South Wales since 1856, twenty-six in Queensland since 1859, forty-one in South Australia since 1856, thirty-three in Victoria and twenty-seven in Tasmania. The average duration of a Ministry has thus been very short, save in a few cases of coalitions, and in some cases comically so’).

¹⁶ See Sir Samuel Griffith, *Notes on Australian Federation: Its Nature and Probable Effects* (1896) 17, quoted in John Quick and Robert Randolph Garrahan, *The Annotated Constitution of the Australian Commonwealth* (1901) 704; and see *McCloy v New South Wales* (2015) 257 CLR 178, 224–25 [107] (Gageler J).

¹⁷ See Anne Twomey, *The Constitution of New South Wales* (Federation Press 2004) 230–38 (listing thirteen bills which were permitted to lapse between 1843 and 1900).

¹⁸ This was originally a limitation of legislative power in the colonial constitutions, ‘repugnancy’ reflecting both an administrative assessment within the Colonial Office, and a curial determination at common law. The meaning of the limitation was uncertain, until, ultimately, a limited view of repugnancy was enacted in the *Colonial Laws Validity Act 1865* (Imp). See D B Swinfen, *Imperial*

Control of Colonial Legislation 1813-1865 (Clarendon Press, Oxford, 1970) and [Leeming, *Resolving Conflicts of Laws* \(n 4\)](#) 106–30.

¹⁹ Federation is described in detail in Chapter 3.

²⁰ See Helen Irving (ed), *The Centenary Companion to Australian Federation*, (Cambridge University Press, 1999) and John La Nauze, *The Making of the Australian Constitution* (Melbourne University Press, 1972).

²¹ See Erling Hunt, *American Precedents in Australian Federation* (AMS Press 1930) and James Stellios, *The Federal Judicature: Chapter III of the Constitution* (LexisNexis 2010), [ch 2](#).

²² For example, the Customs Tariff (British Preference) Bill 1906 was withdrawn out of concern that assent would not be given: see [Twomey, *The Constitution of New South Wales* \(n 17\)](#) 236.

²³ See, eg, *Union Steamship Co of New Zealand Ltd v Commonwealth* (1925) 36 CLR 130 (federal law void for repugnancy with *Merchant Shipping Acts 1894 and 1906* (Imp)).

²⁴ See *Alqudsi v Commonwealth of Australia; Alqudsi v R* (2015) 91 NSWLR 92, 123 [152]–[154].

²⁵ *Bank of NSW v The Commonwealth* (1948) 76 CLR 1, 363; and see *SGH Ltd v Commissioner of Taxation* (2002) 210 CLR 51, 66–67 [13].

²⁶ *McCloy* ([n 16](#)) 226 [111].

²⁷ (2012) 248 CLR 156, 179–80 [4].

²⁸ *Mistretta v United States* 488 US 361 at 407 (1989).

²⁹ See *Grollo v Palmer* (1995) 184 CLR 348.

³⁰ See *Deputy Commissioner of Taxation v State Bank (NSW)* (1992) 174 CLR 219.

³¹ *Pape v Commissioner of Taxation* (2009) 238 CLR 1, 150–51 [436] (Heydon J), by reference to *Airlines of NSW Pty Ltd v New South Wales [No 2]* (1965) 113 CLR 54, 88, 115, 128, 142–44, 155; *Attorney-General (WA) v Australian National Airlines Commission* (1976) 138 CLR 492, 499, 502–03, 508–11.

³² See *Attorney-General (Cth) v Schmidt* (1961) 105 CLR 361, 371–72; *Burton v Honan* (1952) 86 CLR 169, 180–81; *Nintendo Co Ltd v Centronics Systems Pty Ltd* (1994) 181 CLR 134, 161.

³³ *Clarke v Federal Commissioner of Taxation* (2009), 240 CLR 272, 306 [65]. Earlier decisions are *Austin v Commonwealth* (2003) 215 CLR 185; *Re Australian Education Union; ex parte Victoria* (1995) 184 CLR 188; *Queensland Electricity Commission v Commonwealth* (1985) 159 CLR 192; *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31 (see Chapter 35 ‘The Federal Principle’).

³⁴ *Re Wakim* ([n 2](#)).

³⁵ See [Chapters 38](#) ‘Due Process’, [40](#) ‘Political Participation’, and [44](#) ‘Legality’.

³⁶ Notably, by s 39(2) of the *Judiciary Act 1903* (Cth), which provides that ‘The several Courts of the States shall within the limits of their several jurisdictions, whether such limits are as to locality, subject-matter, or otherwise, be invested with federal jurisdiction, in all matters in which the High Court has original jurisdiction or in which original jurisdiction can be conferred upon it’, subject to certain exceptions. Although the extent of the exceptions to this general investment of federal jurisdiction has changed, the essential policy has been in place for more than a century.

³⁷ The Federal Court of Australia and Family Court of Australia were created in the mid-1970s, the Federal Circuit Court of Australia (formerly the Federal Magistrates Court) was created in 1999. Beforehand, there were federal bankruptcy and industrial courts: see [Leeming, *Authority to Decide* \(n 6\)](#) 136–37.

³⁸ See for a recent example *R v Alqudsi; Alqudsi v Commonwealth of Australia* [2015] NSWSC 1222, (2015) 91 NSWLR 92 (challenge to validity of *Crimes (Foreign Incursions and Recruitment) Act 1978* (Cth)).

³⁹ See, eg, *Attorney-General of the Commonwealth v The Queen & Anor*; *Alqudsi v The Commonwealth of Australia*; *Alqudsi v The Queen* [2015] HCATrans 343 (removing directly to the High Court the question whether the right to trial by jury authorized by s 80 of the Constitution permitted a State law to confer a discretion upon a court to order a judge-along trial); the question was answered negatively: *Alqudsi v Commonwealth* [2016] HCA 24.

⁴⁰ The statement in *McCulloch v Maryland* 17 US 316 (1819) ‘We must never forget, that it is a Constitution we are expounding’, has often been applied.

⁴¹ *Strickland v Rocla Concrete Pipes Ltd* (1971) 124 CLR 468; *Commonwealth v Tasmania* (1983) 158 CLR 1 (‘*Tasmanian Dam Case*’); *Re Dingjan; ex parte Wagner* (1995) 183 CLR 323; *New South Wales v The Commonwealth* (‘the Work Choices Case’) (2006) 229 CLR 1.

⁴² *Tasmanian Dam Case* (n 41); *Victoria v Commonwealth* (1996) 187 CLR 416 (‘*Industrial Relations Act Case*’).

⁴³ See, for example, the discussion in Chapters 31 ‘Money’ and 34 ‘The Passage Towards Economic Union in Australia’s Federation’.

⁴⁴ See ss 52, 90.

⁴⁵ See ss 87, 93.

⁴⁶ See Anne Twomey, ‘Public Money—Federal-State Financial Relations and the Constitutional Limits on Spending Public Money’ (Centre for Independent Studies, 2014).

⁴⁷ See ss 114, 115.

⁴⁸ Section 51(xx), (xxix).

⁴⁹ See, eg, *Re Dingjan* (n 41); *Work Choices Case* (n 41).

⁵⁰ See Chapter 34 ‘The Passage Towards Economic Union in Australia’s Federation’.

⁵¹ Kim Santow, ‘Aspects of Judicial Restraint’ (1995) 13 Australian Bar Review 116, 144.

⁵² *Commonwealth v Queensland* (1920) 29 CLR 1; *Australian Coastal Shipping Commission v O’Reilly* (1958) 99 CLR 132.

⁵³ *Botany Municipal Council v Federal Airports Authority* (192) 175 CLR 453.

⁵⁴ *Western Australia v Commonwealth* (1995) 183 CLR 373, 467–68.

⁵⁵ Whether or not that is a good thing, or a bad thing is a large question, and one which is outside the scope of this chapter (and like most large questions, the answer may well be that it is partly good and partly bad, but that it is certainly contestable).

⁵⁶ *Constitution Act 1902* (NSW); *Constitution of Queensland 2001* (Qld); *Constitution Act 1934* (SA); *Constitution Act 1934* (Tas); *Constitution Act 1975* (Vic); *Constitution Act 1889* (WA).

⁵⁷ Until 1986, as French CJ observed in *South Australia v Totani* (2010), 242 CLR 1, 44 [64], this power was ‘also derived from s 5 of the *Colonial Laws Validity Act 1865* (Imp). Since 1986, they can be derived from s 2(2) of the *Australia Acts*.’

⁵⁸ *Pearce v Florenca* (1976) 135 CLR 507; *Port Macdonnell Professional Fishermen’s Association Inc v South Australia* (1989) 168 CLR 340.

⁵⁹ For example, *Auzcare Pty Ltd v Idameneo (No 123) Pty Ltd* [2015] NSWCA 412.

⁶⁰ See for example *Union Steamship Co of Australia Pty Ltd v King* (1988) 166 CLR 1, 10; *Durham Holdings Pty Ltd v New South Wales* (2001) 205 CLR 399.

⁶¹ See *Taylor v Attorney-General of Queensland* (1917) 23 CLR 457.

⁶² A rare example is *Attorney-General (WA) v Marquet* (2003) 217 CLR 545. On the topic of the nature and enforceability of state ‘manner and form’ provisions, see Anne Twomey, *The Australia Acts 1986—Australia’s Statutes of Independence* (Federation Press 2011).

⁶³ One State (Victoria) has enacted the *Charter of Human Rights and Responsibilities Act 2006* (Vic) which is intended to require statutory provisions to be interpreted in a way which is compatible

with human rights.

⁶⁴ See, eg, *Kirmani v Captain Cook Cruises Pty Ltd (No 1)* 159 CLR 351. This chapter passes over the further complexities present, prior to 1989, by reason of the *Colonial Courts of Admiralty Act* 1890 (Imp), as to which see [Leeming, *Authority to Decide*](#) (n 6) 223–29 and, for an example, *Nagrint v The Ship Regis* (1939) 61 CLR 688.

⁶⁵ *Port Macdonnell Professional Fishermen's Association Inc v South Australia* (1989) 168 CLR 340, 369–73.

⁶⁶ See *Butler v Attorney General (Vic)* (1961) 106 CLR 268 at 283; [Leeming, *Resolving Conflicts of Laws*](#) (n 4) ch 5.

⁶⁷ See, eg, Chapter 36 'Federal Jurisdiction'.

⁶⁸ See *MZXOT v Minister for Immigration and Citizenship* (2008) 233 CLR 601, 620–21 [27] and the cases there cited.

⁶⁹ See *Solomons v District Court (NSW)* (2002) 211 CLR 119.

⁷⁰ (1996) 186 CLR 140, 168.

⁷¹ Text at [notes 33–34](#).

⁷² See [Chapter 38](#) 'Due Process', [Chapter 40](#) 'Political Participation', and [Chapter 44](#) 'Legality'.

⁷³ *R v Hickman; ex parte Fox and Clinton* (1945) 70 CLR 598, 616 (Dixon J).

⁷⁴ *Plaintiff S157/2002 v Commonwealth* (2003) 211 CLR 476; *Kirk* (n 11). See Margaret Allars, 'The Distinction between Jurisdictional and Non-jurisdictional Errors: Its Significance and Rationale' in Debra Mortimer (ed), *Administrative Justice and its Availability* (Federation Press 2015) 74.

⁷⁵ *Duncan v Independent Commission Against Corruption* (2015) 256 CLR 83, 100, [35].

⁷⁶ *S157* (n 74) 512 [98].

⁷⁷ *Kirk* (n 11).

⁷⁸ *ibid* 580[97] by reference to *The Colonial Bank of Australasia v Willan* (1874) LR 5 PC 417, 442. For criticism, see Oscar Roos, 'Accepted Doctrine at the Time of Federation and *Kirk v Industrial Court of NSW*' (2013) 35 Sydney Law Review 781; Jeffrey Goldsworthy, 'Kable, Kirk and Judicial Statesmanship' (2014) 40 Monash University Law Review 75, esp 93–99.

⁷⁹ *Kirk* (n 11) 580–81 [98]–[99].

⁸⁰ See Justin Gleeson and Robert Yezerski, 'The Separation of Powers and the Unity of the Common Law' in Justin Gleeson, James Watson, and Ruth Higgins (eds), *Historical Foundations of Australian Law: Institutions, Concepts and Personalities*, vol I (Federation Press 2013), 297, 316.

⁸¹ To be precise, it was included, then unthinkingly deleted, then restored: see [Leeming, *Authority to Decide*](#) (n 6) 244–52.

⁸² *S157* (n 74) 482–83 [5] (Gleeson CJ).

⁸³ Gleeson and Yezerski (n 80) 319.

⁸⁴ *ibid*.

⁸⁵ *Kirk* (n 11) 581 [100].

⁸⁶ See Paul Craig and Adam Tomkins, *The Executive and Public Law* (OUP 2006) 2; Simon Evans, 'Continuity and Flexibility: Executive Power in Australia' at 89 in the same volume.

⁸⁷ [William Gummow](#), 'Rationality and Reasonableness as Grounds for Review' (n 1) 15–16, by reference to *Hickman* (n 73) 618 (Dixon J).

⁸⁸ The executive power of the Commonwealth defined in s 61 of the Constitution is subject to limitations whose exact limits are, at present, not well established: see *Pape* (n 31) and *Williams* (n 27). Likewise, the executive power of the colonies preserved by s 107 included non-statutory, or prerogative, powers, whose limits are not well-established: see, eg, Selena Bateman, 'Constitutional Dimensions of State Executive Power: An Analysis of the Power to Contract and Spend' (2015) 26

Public Law Review 255; Cheryl Saunders, ‘The Sources and Scope of Commonwealth Powers to Spend’ (2009) 20 Public Law Review 256. This section, accordingly, is directed to the mainspring of executive power, whose source is statute.

⁸⁹ See *Woolworths Ltd v Pallas Newco Pty Ltd* (2004) 61 NSWLR 707.

⁹⁰ Notably, the *Administrative Decisions (Judicial Review) Act 1977* (Cth). See Neil Williams SC, ‘Constitutional Writ Review and the ADJR Act’ in Debra Mortimer (ed), *Administrative Justice and its Availability* (Federation Press 2015) 128.

⁹¹ *Kartinyeri v Commonwealth* (1998) 195 CLR 337.

⁹² See *Federal Judicial Review* (Report by Administrative Report Council 2012) ch 3.

⁹³ *Kirk* (n 11) 570–71 [64], by reference to the work of Professor Jaffe.

⁹⁴ *Enfield City Corporation v Development Assessment Commission* (2000) 199 CLR 135, 151–54, 158 [39]–[44], [59]. Contrast the position in the United Kingdom, Canada, and the United States, as observed by William Gummow, ‘The Constitutional Role of the Judge’ (2014) 25 Public Law Review 3.

⁹⁵ *Minister for Immigration and Citizenship v SZRKT* (2013) 212 FCR 99, 121 [77]; see also Alan Robertson, ‘The Contemporary Approach to Jurisdictional Error’ in Debra Mortimer (ed), *Administrative Justice and its Availability* (Federation Press 2015) 59.

⁹⁶ See Saunders, ‘Constitution as Catalyst: Different Paths within Australasian Administrative Law’ (n 1); see also Gummow (n 1) 15–16.

⁹⁷ *In re Judiciary and Navigation Acts* (1921) 29 CLR 257, 265.

⁹⁸ *ibid* 266, 267 (‘we can find nothing in Chapter III of the Constitution to lend colour to the view that Parliament can confer power or jurisdiction upon the High Court to determine abstract questions of law without the right or duty of any body or person being involved’).

⁹⁹ See *Bass v Permanent Trustee Co Ltd* (1999) 198 CLR 334; *Director of Public Prosecutions (Cth) v JM* (2013) 250 CLR 135. The position is in fact more nuanced, and so long as there be a real dispute, there are facilities for its efficient determination by way of declaratory relief or separate questions: see, eg, *Mellifont v Attorney-General (Queensland)* (1991) 173 CLR 289; *Croome v Tasmania* (1997) 191 CLR 119.

¹⁰⁰ See Mahabir Jain, *Indian Constitutional Law* (6th edn, 2010) 268–75.

¹⁰¹ See also Chapter 28 ‘Separation of Judicial Power’.

¹⁰² See, eg, *Kirk* (n 11) 573 [69].

¹⁰³ See, eg, *Condon v Pompano Pty Ltd* (2013) 252 CLR 38, 71–72, 105, 110 [67], [177], [194].

¹⁰⁴ See Chapter 38 ‘Due Process’.

¹⁰⁵ See *Saad v Fares* [2015] NSWCA 385, [24]–[29], by reference to what was said in *Douglass v The Queen* [2012] HCA 34, 86 ALJR 1086, 1089 [12].

¹⁰⁶ *Kuczborski v Queensland* (2014) 254 CLR 51, 90 [106].

¹⁰⁷ Jeffrey Goldsworth, ‘The Constitution and its Common Law Background’ (2014) 25 Public Law Review 265, 271.

¹⁰⁸ *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520, 568; *John Pfeiffer Pty Ltd v Rogerson* (2000) 203 CLR 503, 517–18 [15]; see further Chapter 8 ‘Common Law’.

¹⁰⁹ *Banco Nacional de Cuba v Sabbatino* 376 US 398, 426 (1964).

¹¹⁰ For a comparison of the position in Australia, Canada, and the United States, see Mark Leeming, ‘Common Law Within Three Federations’ (2007) 18(3) Public Law Review 186.

¹¹¹ *Kable v Director of Public Prosecutions (NSW)* (1996) 189 CLR 51, 112 (McHugh J).

¹¹² *Velkoski v The Queen* [2014] VSCA 123; *Saoud v R* [2014] NSWCCA 136; this may be resolved following the recent grant of special leave in *Hughes v The Queen* [2016] HCATrans 201.

- ¹¹³ *Lipohar v The Queen* (1999) 200 CLR 485, 505–06 [45].
- ¹¹⁴ See (for a recent example) *Nightingale v Blacktown City Council* (2015) 91 NSWLR 556, 561–62 [23].
- ¹¹⁵ (2007) 230 CLR 89, 151–52 [135].
- ¹¹⁶ Mark Leeming, ‘Farah and its Progeny: Comity Among Intermediate Courts’ (2014) 12(2) *The Judicial Review* 165.
- ¹¹⁷ For details, see James Crawford and Brian Opeskin, *Australian Courts of Law* (4th edn, OUP 2004); Dean Mildren, *The Appellate Jurisdiction of the Courts in Australia* (Federation Press 2015).
- ¹¹⁸ See *Australian Building Construction Employees’ and Builders Labourers’ Federation v The Commonwealth* (1986) 161 CLR 88; *H A Bachrach Pty Ltd v Queensland* (1998) 195 CLR 547; *Duncan* (n 75) 98 [26].
- ¹¹⁹ *R v Humby; Ex parte Rooney* (1973) 129 CLR 231, 250 (Mason J), approved in *Bachrach* (n 118) [17].
- ¹²⁰ See, eg, *Duncan* (n 75).
- ¹²¹ *Marbury v Madison* 5 US 87 at 111 (1803).
- ¹²² In *Indooroopilly Children Services (Qld) Pty Ltd* (2007) 158 FCR 325, 327 [5], by reference to *Attorney-General (NSW) v Quin* (1990) 170 CLR 1, 35–36; *Enfield* (n 94) 152–154 [42]–[44]; *Truth About Motorways Pty Ltd v Macquarie Infrastructure Investment Management Ltd* (2000) 200 CLR 591, 635 [116].

CHAPTER 32

MONEY

STEPHEN MCLEISH*

THE establishment of the Commonwealth of Australia required consideration and resolution of a series of questions about money. These included: how the establishment of the Commonwealth would be funded, what powers the Commonwealth and the States would have to raise money, how the governments of the States would continue to be funded after the former colonies lost some of their taxing powers on becoming States, and what would be the responsibilities of the legislative and executive branches in the financial affairs of the Commonwealth.

The last of these issues primarily concerned matters internal to the Commonwealth. Each of the others raised questions about the relationship between the Commonwealth and the States which were fundamental to the establishment of the federation. All of the matters called for specific treatment in the constitutional text. As will be seen, decisions of the High Court have meant that these more difficult questions, with large implications for federalism, have to a significant extent become matters for political, rather than legal resolution.

This has emerged from the relevant provisions of the Constitution, together with the way in which the High Court has interpreted the Constitution, both generally and in the case of particular financial provisions. Against the background of judicial interpretation, the political forces have played out to produce an outcome in which the Commonwealth enjoys dominant powers of taxation and exercises considerable influence over a significant proportion of State spending. While judicial interpretation of aspects of the Constitution has recently taken greater account of federal considerations, it remains doubtful whether such developments will have

any significant impact on the dominant financial position of the Commonwealth.

This chapter will outline the main provisions of the Constitution dealing with money and describe how they address the above matters. It will then outline the principal High Court decisions which have guided the understanding of these provisions. The decisions are of two kinds: those concerning the interpretation of the Constitution and the federation more generally; and those about financial matters in particular.

The financial arrangements which developed alongside and as a consequence of those judicial decisions will then be described, before noting more recent developments in the law governing Commonwealth expenditure and their possible implications for the future.

A. PROVISIONS OF THE CONSTITUTION DEALING WITH MONEY

Section 69 of the Constitution provides that, on the establishment of the Commonwealth, the departments of customs and excise in each State were transferred to the Commonwealth. The departments of posts, telegraphs and telephones, naval and military defence, lighthouses, lightships, beacons and buoys, and quarantine, were to be transferred on dates subsequently proclaimed by the Governor-General.

Section 84 provides that, when any department of the public service of a State was transferred, all its officers became subject to the control of the Executive Government of the Commonwealth. Section 85 vested in the Commonwealth all property of the State used exclusively in connection with the department and provides that the Commonwealth assumed the current obligations of the State in respect of the department transferred.

A series of provisions deals with the treatment of customs and excise. Revenue from these sources represented about three quarters of the income of the colonies at the time of federation.¹ Surrendering that revenue, as part of the establishment of a free trade area, had large implications for the new States.

Consistent with the immediate transfer of the relevant State departments, section 86 declares that, on the establishment of the Commonwealth, the collection and control of duties of customs and excise, and the control of the payment of bounties, passed to the executive government of the

Commonwealth. However, the power to impose such duties or to grant bounties initially remained with the States, pending transition to a regime of uniform customs and duties. During the transition period, the Commonwealth was required by section 89 to account to the States for the revenues it collected, after deducting expenditure incurred in maintaining the transferred departments and the State's per capita share of other Commonwealth expenditure.

At least in its initial years, it was envisaged that the cost of running the Commonwealth would be met substantially from customs and excise revenue. To that end, section 87 required that, during the ten years after the establishment of the Commonwealth, no more than one quarter of the net revenue of the Commonwealth from duties of customs and excise was to be applied annually towards its expenditure. The balance was required to be paid to the States or towards the payment of interest on debts of the States taken over by the Commonwealth. However, the revenue of the Commonwealth was in the first instance required to be applied to the payment of the expenditure of the Commonwealth: section 82.

The debts of the States to which section 87 refers were the subject of section 105, which enabled the Commonwealth to take over the public debts of the States, and for the States to indemnify the Commonwealth in respect of those debts. The interest thereafter payable was required to be deducted from the surplus revenue, if any, of the Commonwealth.

Section 88 required uniform duties of customs to be imposed within two years after the establishment of the Commonwealth. Once that happened, a series of provisions operated to mark the end of the transition. First, on the imposition of uniform customs and duties, the power of the Commonwealth Parliament to impose duties of customs and excise, and to grant bounties on the production and export of goods, became exclusive by virtue of section 90. Secondly, from that point it was declared that trade, commerce, and intercourse among the States was to be absolutely free: section 92.

Section 93 then continued the provisions of section 89 for five years after the imposition of uniform duties of customs, and thereafter until Parliament otherwise provided. Section 94 stipulates that, after five years from the imposition of uniform duties of customs, Parliament may provide, on such basis as it deems fair, for the monthly payment to the States of all surplus revenue of the Commonwealth. These provisions, it seems, do not enable Parliament to remove the requirement originating in section 89 for monthly

payments of surplus revenue to the States; they only alter the basis of apportioning that revenue among the States.²

In addition, section 96 provides that, during the ten-year period after the establishment of the Commonwealth, and thereafter until the Parliament otherwise provides, the Parliament may grant financial assistance to any State on such terms and conditions as the Parliament thinks fit.

Various specific heads of Commonwealth legislative power bear on the question of money. Most importantly, section 51(ii) empowers the Parliament to make laws with respect to taxation, but not so as to discriminate between States or parts of States (in that respect complementing section 99, which prohibits the Commonwealth, by any law or regulation of trade, commerce, or revenue, from giving preference to one State or any part thereof over another). Complementing section 90 and other provisions, section 51(iii) provides for laws with respect to bounties on the production or export of goods, but so that such bounties will be uniform throughout the Commonwealth. Section 51(iv) provides for laws with respect to the borrowing of money on the public credit of the Commonwealth, and section 51(xii) enables laws to be made with respect to currency, coinage, and legal tender. Section 115 prohibits the States from coining money or making anything but gold or silver coin a legal tender in payment of debts.

The Commonwealth's taxing powers are qualified, in so far as section 51(ii) requires taxation not to discriminate between States. On the other hand, because section 109 ensures that Commonwealth legislation prevails over State laws to the extent of any inconsistency between them, and by virtue of section 90, the Commonwealth's effective powers of taxation are considerably greater than those of the States, as explained further below.

The modern reader considering these provisions would not recognize in many of them the way in which Australian public finance operates, or has operated for a very long time. As explained below, the envisaged system under which the Commonwealth would be funded by duties of customs and excise, with the surplus being returned to the States, did not eventuate. On the other hand, the constitutional provisions to which it is now convenient to turn, dealing with the requirements internal to the Commonwealth for the raising and spending of money, remain familiar.

The principles governing how the Commonwealth raises and spends money were derived substantially from the Westminster system of

responsible government. Section 81 of the Constitution provides that all revenues or moneys raised or received by the executive government of the Commonwealth are to form one Consolidated Revenue Fund, to be appropriated for the purposes of the Commonwealth in the manner imposed by the Constitution. Section 83 prohibits money being drawn from the Treasury of the Commonwealth except under appropriation made by law. Proposed laws appropriating revenue or moneys cannot originate in the Senate: section 53. Section 56 provides that a proposed law for the appropriation of revenue or moneys shall not be passed unless the purpose of the appropriation has, in the same session, been recommended to the House of Representatives by message of the Governor-General. Such a message would of course only be conveyed on the advice of the responsible Minister. Therefore the legislative branch must be engaged, through the mechanism of parliamentary appropriation, in expenditure by the executive branch.

Similarly, the executive is required to be involved in raising taxes. Again, proposed laws imposing taxation cannot originate in the Senate: section 53. The Senate cannot amend proposed laws imposing taxation or appropriating revenue or moneys for the ordinary annual services of government: section 53. To prevent misuse of these limits on the Senate's power, proposed laws of these kinds may deal only with the appropriation, or the imposition of taxation, respectively: sections 54, 55. Accordingly, the executive government of the Commonwealth, formed in the House of Representatives and responsible to the Parliament, has the democratic accountability for the raising of taxes and the appropriation of revenues.³

The arrangements set out in these provisions have counterparts in the States, whose own constitutions are continued under section 106 of the Constitution. They all reflect and reinforce principles of responsible government. They might be thought to have less significance to the shape of federal relations. However, as noted at the end of this chapter, the role of the Senate in legislating for Commonwealth appropriation, and taxation, may yet be important by virtue of its composition of equal numbers of senators from each State. Moreover, it has been recognized that section 96, which empowers the Commonwealth to make grants to the States, both facilitates such grants and ensures the involvement of the States in the decision to spend Commonwealth money in reliance on that power. In these

ways, considerations of the federal relationship may be relevant to the scope of Commonwealth powers in these areas.

B. FEDERALISM IN CONSTITUTIONAL INTERPRETATION

The early High Court approached the Constitution on the basis that the States had, before federation, enjoyed plenary legislative powers which were 'reserved' to them by the Constitution subject only to the limited powers conferred upon the Commonwealth. As such, the Court considered whether a power 'was intended to be withdrawn from the States, and conferred upon the Commonwealth'.⁴ This meant construing Commonwealth powers narrowly. A second aspect of the 'reserved powers' doctrine was that the heads of legislative power in s 51 were construed so that what was omitted from one head of power could not be supplied by another. For example, because section 51(i) conferred power with respect to interstate trade and commerce, other heads of power were not to be read as conferring power with respect to intrastate trade and commerce.⁵

Applying the first aspect, the Court in *Peterswald v Bartley* held that '[t]he Constitution contains no provisions for enabling the Commonwealth Parliament to interfere with the private or internal affairs of the States, or to restrict the power of the States to regulate the carrying on of any businesses or trades within their boundaries'.⁶

The understanding of federalism which underlay this doctrine, and which was evident also in the 'immunity of intergovernmental instrumentalities', by which the States were conceived of as independent entities not subject to Commonwealth legislative power,⁷ was not to survive the departure of the founding members of the High Court. In the *Engineers Case* the Court set forth a new approach to constitutional interpretation, which emphasized the character of the Constitution as part of a British statute.⁸

The Court in the *Engineers Case* rejected the idea that the Constitution should be construed having regard to abstract notions of federalism. It repudiated 'an interpretation of the Constitution depending on an implication which is formed on a vague, individual conception of the spirit of the compact, which is not the result of interpreting any specific language to be quoted, nor referable to any recognised principle of the common law of the Constitution'.⁹

Arguably inconsistently with the approach just described, the Court identified the ‘cardinal features’¹⁰ of the Australian constitutional system in a manner that omitted the fact that the Constitution established a federation. The two features were said to be the common sovereignty of all parts of the British Empire and the principle of responsible government. In contrast, despite the fact that the United States is a federation, American law offered only ‘secondary and subsidiary’ assistance.¹¹

The notion that general conceptions or assumptions about federalism should not inform the interpretation of the Constitution, especially as to the limits of Commonwealth legislative power, has been firmly part of Australian constitutional law ever since.¹² While the Court has recognized that the decision in the *Engineers Case* cannot be taken to deny the federal nature of the Constitution,¹³ and has held that, by implication from that nature, the Commonwealth is precluded from legislating so as to destroy the constitutional power of the States or their ability to function as independent entities,¹⁴ its general approach has sometimes downplayed the significance of the federal system. In particular, there is no presumed ‘federal balance’ which the Court seeks to preserve.¹⁵

C. CONSTITUTIONAL INTERPRETATION OF MONEY PROVISIONS

The way in which the modern Australian federal system approaches the issue of money can now be examined. It will be seen that the High Court’s interpretive stance in relation to federalism has enabled the Commonwealth to acquire a dominant position within the federation in both raising and spending money.

First, four key decisions in this area will be described: two concerning spending and two about taxation. The cases themselves form an important part of the historical narrative in this area. The other part of that narrative concerns intergovernmental and other initiatives by which the raising and spending of money within the federation has been managed.

The first case concerned the operation of the Constitution’s provisions governing the ‘surplus revenue’ of the Commonwealth. In 1908 the Commonwealth Parliament appropriated moneys for coastal naval defence and invalid and old-age pensions, and paid those moneys out of Consolidated Revenue into trust accounts from which moneys could be

drawn over time, beyond the current financial year. In the *Surplus Revenue Case*,¹⁶ New South Wales contended that the sums paid out did not constitute ‘expenditure of the Commonwealth’ and that they therefore constituted part of the surplus revenue of the Commonwealth which was required by sections 89 and 94 to be paid to the States.

The High Court rejected this argument, pointing to the need for public finances to be managed in a way that accommodated long-term governmental purposes and fluctuating financial circumstances. It held that surplus revenues did not include moneys lawfully appropriated out of Consolidated Revenue for a purpose of the Commonwealth. The fact that the moneys were still in the trust accounts did not mean that they were part of surplus revenue.¹⁷

This decision revealed that the Commonwealth, through Parliament’s power of appropriation, had the ability to ensure that it had no surplus revenue. Since the scope for a lawful appropriation under section 81 extends to any of the purposes of the Commonwealth, the guaranteed transfer of surplus revenue to the States was proved illusory.

It has long been the case that, although the lawfulness of an appropriation may be determined judicially, the scope for judicial review of *Appropriation Acts* may be influenced by the fact that accountability for public finances rests ultimately with the Parliament.¹⁸ The *Surplus Revenue Case* marks an early illustration of the fact that issues in federal financial relations are resolved primarily in the political branches of government. So, as has subsequently been observed, in providing with respect to the audit of Commonwealth revenue and expenditure, section 97 of the Constitution reveals that the finance provisions were constructed on the basis that the executive’s expenditure of money was to be reviewed by an office holder who was obliged to report to Parliament.¹⁹

The High Court soon confirmed that the scope of section 96, enabling the giving of financial assistance to the States, was also substantially a matter for determination by the political branches. The *Federal Aid Roads Act 1926* (Cth) authorized the execution, on behalf of the Commonwealth, of agreements with each State for the making of payments to the State in such amounts, at such times, and subject to such conditions as the Minister may determine for the purpose of the construction of roads. The Act appropriated such amount as was necessary for the purposes of the agreements. Victoria

and South Australia alleged that the Act and any agreements made under it were beyond the powers of the Commonwealth and that the moneys purportedly appropriated were part of the surplus revenue of the Commonwealth. They contended that section 96 did not enable the Commonwealth to appropriate Commonwealth moneys for the purposes of the Act, not being purposes with respect to which laws could be made under section 51. They further submitted that the Act breached section 99 of the Constitution as a law of trade, commerce, or revenue giving preference to one State over another.

The High Court shortly rejected the arguments.²⁰ It stated only that the Act was valid, as being ‘plainly warranted’ by section 96 and was not affected by section 99 or any other provision of the Constitution.²¹ Given the importance of this decision, it is regrettable that the Court offered no reasoning. Evidently, the result was considered obvious.

In *Deputy Federal Commissioner of Taxation (NSW) v WR Moran Pty Ltd*²² the Court affirmed that determination of the terms and conditions attaching to financial assistance, including its amount, could be delegated to an executive authority. Latham CJ stated that the Constitution did not provide that *Appropriation Acts* must not discriminate between States or that federal expenditure in the States must be equal in any sense.²³ In particular, section 96 was not limited by any prohibition of discrimination. The remedy for any abuse of the power it conferred was ‘political and not legal in character’.²⁴

Barwick CJ later explained that section 96 had enabled the Commonwealth ‘to intrude in point of policy and perhaps of administration into areas outside Commonwealth legislative competence’.²⁵ Although it was essential under section 96 that there be a ‘consensual aspect’, in that a State must accept the proffered conditions before a grant is made, ‘in point of economic fact, a State on occasions may have little option’.²⁶ Both the width of section 96 and the need for State consent serve to bring its practical operation squarely into the political, rather than the legal arena. The legal significance of the ‘consensual’ nature of section 96 remains largely unexplored, as noted later in this chapter.

D. TAXING POWERS

The operation of the so-called 'Braddon clause' in section 87, whereby three quarters of net revenue from duties of customs and excise was guaranteed to the States, was terminated by the *Surplus Revenue Act 1910* (Cth). Together with the ineffective provisions for treatment of surplus revenue of the Commonwealth more generally, this left the Commonwealth free to determine how it made payments to the States. Initially, it adopted a system of annual per capita grants. In the meantime, both Commonwealth and State governments began enacting new taxes. At the same time, the States were borrowing; their interest payments were roughly equivalent to the per capita grants they were receiving from the Commonwealth.²⁷

This state of affairs led to the making of a financial agreement between the Commonwealth and the States in 1927. The agreement provided for the Commonwealth to take over State debts and to meet the interest payments to the extent of the per capita grant amounts, which were discontinued. The agreement was given effect in 1928 by the insertion of section 105A in the Constitution. This meant that the States would no longer receive per capita grants but would also not have public debts. Broadly speaking, the States would be substantially funded by their own revenue collections (subject to any financial assistance grants under section 96).²⁸

The principal State sources of revenue over time have included payroll tax, land tax, stamp duty, mining royalties, insurance taxes, and motor vehicle charges. States formerly imposed death duties and 'business franchise fees' in respect of tobacco, alcohol, and petrol. A series of High Court cases first narrowed and then denied the ability of the States to impose the business franchise fees. Earlier, death duties had been abolished, but not because of any judicial decision.

Income tax was initially a major source of State revenue, but the Commonwealth started to levy its own income tax in 1915 in order to raise funds for defence spending. The two taxes operated simultaneously, but inefficiently,²⁹ until the Second World War required the Commonwealth to raise increased revenue.

The uniform tax scheme enacted by the Commonwealth in 1942 had four elements. The *Income Tax Act 1942* (Cth) imposed Commonwealth income tax at a rate calculated to raise approximately the same revenue as the Commonwealth and States between them had previously raised by way of

income tax. The *State Grants (Income Tax Reimbursement) Act 1942* (Cth) reimbursed the States amounts representing their net income tax revenue, but only if the State did not impose its own income tax. Thirdly, the *Income Tax Assessment Act 1942* (Cth) made it an offence for a taxpayer to pay State income tax until Commonwealth income tax was paid. This priority provision was stated to last only for the duration of the war. Finally, the *Income Tax (War-Time Arrangements) Act 1942* (Cth) enabled the Treasurer to transfer State income tax staff and resources to the Commonwealth if necessary for the defence of the Commonwealth.

Four States challenged the new regime. The High Court upheld the validity of all the legislation.³⁰ It treated the various statutes individually. The *Income Tax Act* was a law with respect to taxation which imposed tax uniformly among the States; the fact that the revenue was disbursed unequally under section 96 did not invalidate the taxing law, nor was discrimination prohibited under section 96. Nor was the Commonwealth seeking to destroy the normal functions or essential activities of the States, since they could impose income tax if they wished, rather than accept financial assistance under the *State Grants Act*. There was no general principle precluding the Commonwealth from causing State taxing regimes to yield to that of the Commonwealth; section 109 of the Constitution, in providing for supremacy of Commonwealth legislation, indicated as much. The priority provision in the *Income Tax Assessment Act* was upheld as a law with respect to taxation, and the *War-Time Arrangements Act* was upheld, by majority, as a law with respect to defence.

Reflecting what he had said in *Moran's Case*, Latham CJ stated that the controversy before the Court was a legal, not a political one. The Court was not authorized to consider whether the impugned Acts were fair and just as between the States, that being a matter for argument 'in Parliament and before the people'. Such matters of policy 'were not for the Court to determine or even to consider'.³¹

Latham CJ rejected the argument that the Constitution impliedly prohibited interference by the Commonwealth with State constitutional functions, capacities, or activities, pointing out that there was no universal or even general opinion as to what functions, capacities, powers, or activities were essential. It was not for the Court to impose upon any parliament any doctrine as to what are the functions of government, or to identify those which are essential or normal.³²

Starke J would have held the *State Grants Act* invalid on the basis that its object was to make the Commonwealth the sole taxing authority in respect of incomes, thereby exercising the Commonwealth's limited legislative powers for ends inconsistent with the separate existence and self-government of the States.³³

The result was that the Commonwealth had legislative power to impose income tax at rates making it effectively impossible for the States to impose their own income taxes. The need to make allowances for the war-time context, and the fact that the States were initially reimbursed, through direct grants, for the revenue foregone, perhaps meant that there was at first less practical impact on the States. But once the exigencies of war had passed, and the relationship ceased between the Commonwealth's additional revenue and the amounts returned to the States, it was clear that the States had lost very significant financial powers. The magnitude of that loss over time is largely within the political control of the Commonwealth.

The States had some cause to hope for a more favourable legal environment with the ending of the war. Although the Court had not rested its decision on the defence power to any significant extent, the Commonwealth was unlikely to be able to derive support from that power as it had in 1942. Further, Sir Owen Dixon, who had not sat on the *First Uniform Tax Case* due to his war-time service as Ambassador to the United States, had in 1947 adumbrated a new constitutional principle that seemed to offer the States a measure of entrenched autonomy.

In *Melbourne Corporation v Commonwealth*,³⁴ the High Court struck down section 48 of the *Banking Act 1945* (Cth), which had prohibited a bank from conducting banking business for a State or any State or local authority except with the consent of the Commonwealth Treasurer. The section was held not to be a valid exercise of the power with respect to 'banking, other than State banking' in section 51(xiii) of the Constitution. The basis for the decision was not that the law was one with respect to State banking, but that it contravened an implication in the Constitution protecting the autonomy of the States.

The judgments in the *Melbourne Corporation* case did not depart from the holding in the *Engineers Case* that there was no constitutional immunity of the States from Commonwealth legislative impact. Instead, they relied on a lesser federal principle, that the Commonwealth could not legislate so as to interfere with the continued existence or constitutional autonomy of the

States. Latham CJ rested his decision on the law being impermissibly one with respect to State governmental functions, as such.³⁵ Rich J held that Commonwealth laws could not 'prevent or impede' the States from performing the normal and essential functions of government.³⁶ Starke J said that the question was whether legislation or executive action on the part of the Commonwealth, or a State, destroys, curtails, or interferes with the operation of the other.³⁷ He stated that, in abuse of the taxation power, the Commonwealth 'raises considerable sums of money not for the purposes of the Commonwealth ... but for compensating the States for the loss of their revenue from income tax'.³⁸ Dixon J held that the foundation of the Constitution is the conception of a central government and a number of State governments separately organized, the continued existence of each of which as independent entities the Constitution predicates.³⁹ As such, the States could not be singled out for special burdens or disabilities, including by taxing laws.⁴⁰ The remaining member of the majority, Williams J, held that a law seeking to direct the States as to the manner in which they exercise their governmental functions is an unlawful interference in the constitutional affairs of the States.⁴¹ Pointedly, he stated that the *First Uniform Tax Case* was explained by 'the overriding necessity of the prosecution of the war'.⁴²

In formulating this principle of 'non-interference',⁴³ the Court relied extensively on United States authority. In doing so, it departed from the *Engineers Case* position that such authority was only of subsidiary assistance. By implication, and through the decision itself, *Melbourne Corporation* showed that, as well as the constitutional principles of responsible government and the 'common sovereignty' of the parts of the British Empire (to the extent still relevant), the federal structure for which the Constitution provides was also important. Although this was not an entirely new development,⁴⁴ the manner in which the decision was explained in some judgments could have been seen as casting doubt on the continued correctness of aspects of the *First Uniform Tax Case*.

The uniform tax scheme was the subject of ongoing political controversy after the war. The end of the war necessitated some revision of the scheme's legal structure. The *War-Time Arrangements Act* came to an end and the priority provision in the *Income Tax Assessment Act* was amended so that it

was no longer limited to the purposes of the war. Grants to the States were provided for in new legislation, the *State Grants (Tax Reimbursement) Act 1946* (Cth), which no longer calculated grants to reflect the income tax formerly imposed by the States but relied principally on population figures instead.

Eventually Victoria and New South Wales brought new proceedings challenging the scheme. They contested the new *State Grants Act*, and the new and wider priority provision in the *Income Tax Assessment Act*.

The challenge to the *State Grants Act* was unanimously dismissed, while a narrow majority held the priority provision invalid.⁴⁵ Dixon CJ noted that, had the operation of section 96 not already been subject to previous authority, it might have been said that section 96 could not be used to influence the exercise by a State of its legislative or executive powers, and that section 96 was conceived as a transitional provision with limited purposes.⁴⁶ However, any such interpretation was no longer a possibility. Although the Chief Justice emphasized the non-coercive nature of section 96, the broad view of the scope of the Commonwealth's power to offer financial assistance under section 96 was therefore well-established.

The invalidity of the priority provision proved to have no practical effect. The Commonwealth continues to impose income tax alone and to distribute significant parts of the revenue it receives to the States by way of section 96 grants.

The constitutional arrangements by which substantial financial powers were assigned to the Commonwealth, together with the Court's approach to constitutional interpretation, therefore contributed to an environment in which the financial relationship between the Commonwealth and the States has developed primarily in the political field, where the Commonwealth has been greatly assisted in achieving its preferred outcomes by the strength of its constitutional position.

E. INTERGOVERNMENTAL ARRANGEMENTS ABOUT PUBLIC BORROWING

The financial agreement by which the Commonwealth took over the debts of the States was made on 12 December 1927 through a Loan Council established by the Commonwealth and the States in 1923 to attempt to co-ordinate their borrowing activities.⁴⁷ The Loan Council was established as a

statutory body by the *Financial Agreement Act 1928* (Cth), which provided for the Commonwealth to borrow on behalf of the States, for all borrowing by the Commonwealth and the States to be regulated by the Loan Council, and for the Commonwealth to make grants to the States. These arrangements were extended to apply to borrowing by semi-governmental and local authorities, by the so-called ‘Gentlemen’s Agreement’ of 1936.

The Gentlemen’s Agreement came to an end in 1984 after some States began using novel funding arrangements and statutory borrowing authorities to circumvent Loan Council limits. A more embracing approach, called ‘Global Borrowing Limits’, was agreed upon instead. This arrangement too broke down as borrowing techniques became more complex. In 1992 the Loan Council adopted new arrangements, under which the Commonwealth and each State were nominated a ‘Loan Council Allocation’ based on their net borrowings, population, fiscal position, and infrastructure needs.

The modern Loan Council is a Ministerial Council consisting of the Commonwealth, State, and Territory Treasurers operating under the ‘Financial Agreement between the Commonwealth, States and Territories’, which was approved by the *Financial Agreement Act 1994* (Cth). The 1994 Financial Agreement continued the Australian Loan Council in existence, and added representation of the Northern Territory and the Australian Capital Territory.

Under that agreement, Commonwealth and State borrowings no longer require approval and the Commonwealth no longer has authority to borrow on behalf of the States. Limits on State borrowing were removed. Instead of borrowings being closely regulated, the emphasis is now on transparency of public finances and reliance on market scrutiny of proposed borrowings.

F. INTERGOVERNMENTAL ARRANGEMENTS ABOUT COMMONWEALTH GRANTS TO THE STATES

While these changes can be seen as having freed the States from some elements of Commonwealth fiscal control, increasing resort over time to section 96 grants, and the imposition of conditions on grants in relation to areas in which the Commonwealth otherwise lacks legislative power, have

led to an increase in substantive Commonwealth regulatory power, together with significant ‘vertical fiscal imbalance’.

Starting with the *Main Roads Development Act 1923* (Cth), a successor to which the High Court upheld in the *Roads Case*, the Commonwealth has increasingly attached conditions to its grants of financial assistance to the States. By the end of the twentieth century about 40 per cent of assistance was given by way of ‘specific purpose payments’ (with conditions attached), the remainder being ‘general revenue assistance’ (‘untied’ grants).⁴⁸ The purposes included hospital and school funding, roads, and payments to third parties, via the States, in areas including education and local government.

In 1997, the High Court held that the New South Wales tobacco franchise fee was a duty of excise within the meaning of section 90 of the Constitution, effectively meaning that State business franchise fees for tobacco, alcohol, and petrol were all duties of excise and therefore invalid.⁴⁹ The result was to deprive the States of a significant source of revenue. The Commonwealth agreed to increase its own rates of customs and excise duty in order to enable it to compensate the States for that loss. Inevitably this exacerbated the extent of the States’ reliance on Commonwealth revenue and led to pressure for revised intergovernmental financial arrangements.

In 1999 the Commonwealth and the States and Territories signed the Intergovernmental Agreement on the Reform of Commonwealth–State Financial Relations. The Commonwealth agreed to pay the States and Territories the net revenue collected by the newly introduced goods and services tax (GST), by way of general revenue assistance. This largely replaced the previous system of untied grants. The States and Territories agreed to abolish a number of taxes and imposts. After this agreement, the number of specific purpose payments grew considerably, as did the extent of the conditions attached to them.⁵⁰

Notwithstanding the prescriptive nature of specific purpose payments, this form of governmental funding meant that the taxing and spending authorities were disconnected. At the same time, the expanding influence of the Commonwealth in areas outside its enumerated legislative powers generated political debate. This led to a revised arrangement, under the auspices of the Intergovernmental Agreement on Federal Financial Relations made in 2008.

The 2008 Intergovernmental Agreement provides for an agreed framework for Commonwealth grants to the States and collaboration between Australian governments on issues of economic and social policy. The Agreement commits the Commonwealth to ongoing financial support for the States and Territories through general revenue assistance (including the continuing provision of GST payments), national specific purpose payments, national health reform funding, and national partnership payments to support the delivery of specified outputs or projects, to facilitate reforms, or to reward jurisdictions that achieve nationally significant reforms.⁵¹ GST revenue is to be distributed to the States and Territories in accordance with the principle of horizontal fiscal equalization.⁵²

National specific purpose payments are granted on conditions but are not tied to achieving particular outcomes. National partnership payments are dependent on meeting specified performance benchmarks in ‘national agreements’.

Six agreements covering healthcare, education, skills and workforce development, disability, affordable housing, and Indigenous reform are appended to the Intergovernmental Agreement.

There are a larger number of national partnerships, covering smaller programmes with titles including ‘improving teacher quality’, ‘indigenous economic participation’, ‘Victorian bushfire reconstruction and recovery plan’, ‘homelessness’, and a series of infrastructure partnerships including both major and small projects. The overall effect of the Intergovernmental Agreement was that ninety-two specific purpose payment agreements were rationalized into six national agreements and sixteen national partnerships.⁵³

The actual payments are made through Commonwealth legislation supported by section 96 of the Constitution. The *Federal Financial Relations Act 2009* (Cth) provides for each of the kinds of payment envisaged by the Intergovernmental Agreement. Section 5 contains a formula for horizontal fiscal equalization as the basis for allocating GST revenue. The formula divides the revenue by reference to the State or Territory’s proportionate ‘adjusted’ population. The adjustment is achieved by the Commonwealth Minister, after consultation with the States and Territories, determining the ‘GST revenue sharing relativity’. The Act provides for national specific purpose payments by indexed annual grants

made on the condition they are spent on the subject matter concerned. It also provides for other general revenue assistance and for national partnership payments.

There has long been political controversy about the allocation of Commonwealth grants among the States. Like the treatment of public borrowing, this has been the subject of various intergovernmental agreements, such as the 2008 Intergovernmental Agreement. Since 1933, the allocation has been overseen, using various methods, by the Commonwealth Grants Commission, an independent statutory body which makes recommendations to the Commonwealth Treasurer after consultation with the States and Territories.

The Commission was established by the *Grants Commission Act 1933* (Cth) and now operates under the *Grants Commission Act 1973* (Cth). Its reports to the Minister relating to grants of assistance under section 96 or grants of assistance to any Territory must be laid before Parliament before any bill relating to the subject of the report is introduced.⁵⁴

The Commission applies the principle of horizontal fiscal equalization, as provided for in the 2008 Intergovernmental Agreement.⁵⁵ This aims to address the imbalance that arises as a result of States having differing abilities to provide comparable levels of service through the imposition of comparable tax burdens, as a result of economic and demographic disparities. This may be contrasted with the vertical fiscal imbalance, which exists because the Commonwealth raises more revenue than it requires for its own expenditure and the States are only able to raise, on average, about half of the revenue they require for their own expenditure responsibilities.⁵⁶ It is the vertical fiscal imbalance that gives rise to the funds available for distribution to the States.

The Commission has adopted an operational definition of horizontal fiscal equalization which provides that the States should receive funding from the pool of GST revenue such that, after allowing for material factors affecting revenues and expenditures, each would have the fiscal capacity to provide services and associated infrastructure to the same standard, if each made the same effort to raise revenue from its own sources and operated at the same level of efficiency.⁵⁷ The Commission produces a recommended 'relativity' for determination by the Minister under the process described above. For the year 2015–16 these relativities varied markedly. New South

Wales, Victoria, Queensland, and the Australian Capital Territory were closest to 1.0, while Western Australia (at 0.300) and the Northern Territory (at 5.571) represented the outlying positions.⁵⁸ The Commission explained that Western Australia has a greater capacity to raise revenue than other jurisdictions, especially from mining royalties, although it needs to spend more per capita on delivering services. The Northern Territory has very high costs of service provision and a lower average revenue raising capacity.⁵⁹

G. COMMONWEALTH POWER TO SPEND MONEY, OTHER THAN UNDER S

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The evolution of the arrangements described above, in a constitutional environment where the Commonwealth enjoys wide legislative powers, has meant that vertical fiscal imbalance, always inherent to some extent through the surplus revenue arrangements in section 94, has become a defining feature of federal financial relations. This invites examination of the powers of the Commonwealth to spend its money, of its own accord or in conjunction with the States. As the Commonwealth looks to control how its revenues are spent, it has relied on a wide view of its executive power, as well as the implied powers said to inhere in nationhood. In that context, it has recently emerged that there are greater limits to the Commonwealth's power to spend money than was once thought, deriving in part from federal considerations.

Until 2009 it had been assumed that section 81 of the Constitution, which permits appropriations from the Consolidated Revenue Fund 'for the purposes of the Commonwealth', conferred power on the Parliament to spend Commonwealth revenue for those purposes. The identification of those purposes divided the High Court in the *AAP Case*,⁶⁰ which involved a challenge to an appropriation for the 'Australian Assistance Plan', for grants to regional councils established to provide social welfare services within regional communities. The appropriation was upheld, but the judgments revealed a variety of opinions about the 'purposes of the Commonwealth'.

A broad view was taken by each of McTiernan, Mason and Murphy JJ, namely that the purposes of the Commonwealth were those identified by the Commonwealth Parliament, not limited to those in respect of which the

Parliament has power to make laws.⁶¹ These judges saw the decision as to appropriation as political rather than legal. However, Mason J regarded section 81 as having a confined operation for a different reason: that the act of appropriation did not authorize the activities in respect of which the money was appropriated. For that reason, his answer as to the ‘purposes of the Commonwealth’ was not dispositive.

Barwick CJ, Gibbs and Jacobs JJ each took a narrower view of the ‘purposes of the Commonwealth’, confining them to purposes in respect of which power to make laws could be found elsewhere in the Constitution, including from the inherent nationhood of Australia.⁶² Barwick CJ saw section 81 as limiting the Commonwealth’s power of appropriation and expenditure to Commonwealth purposes so that, once those purposes were met, there would be surplus revenue in the Consolidated Revenue Fund to be distributed to the States.⁶³ Gibbs J similarly stated that, if any purpose could be nominated as a purpose of the Commonwealth, a surplus could hardly ever be expected to arise.⁶⁴ Each of them allowed that the purposes of the Commonwealth included purposes deriving from the status of the national government,⁶⁵ but held that the appropriation was not sustained by any such purpose. Jacobs J did not advert to the arrangements regarding surplus revenue, but emphasized the importance of the growth in national identity, and the width of the power to make laws incidental to the execution of the executive’s power of expenditure, in identifying the Commonwealth’s purposes.⁶⁶ This led him to uphold the appropriation, despite taking the narrower view of the ‘purposes of the Commonwealth’.

As mentioned, Mason J did not regard section 81 as a source of power for Commonwealth expenditure. He held that an appropriation has a limited effect, providing parliamentary sanction for the withdrawal of money from Consolidated Revenue and its payment to a particular recipient or for a particular purpose, but not the legal authority for the Commonwealth to engage in the activities in connection with which the moneys are to be spent—that authority depended on the extent of the Commonwealth’s legislative, executive, and judicial powers.⁶⁷ That, in turn, required examining the extent of the Commonwealth’s executive power under section 61, together with the incidental power and the Commonwealth’s character as a national government.⁶⁸ While upholding the appropriation, Mason J held these

powers insufficient to bring the Australian Assistance Plan within Commonwealth executive power.⁶⁹

It may therefore have been thought that section 81 conferred upon the Commonwealth a wide power of appropriation and expenditure, at least provided it was exercised for purposes in respect of which the Commonwealth had legislative or executive power. However, in *Pape*⁷⁰ the Court held that section 81 was at best a source of power only for appropriation, or ‘ear-marking’, of money which remains the property of the Commonwealth until spent.⁷¹ The power to spend therefore needed to be found elsewhere.⁷² In *Pape*, support for a law providing for payments to taxpayers as part of an economic stimulus response to the global financial crisis was located by a majority of the Court in the power under section 51(xxxix) to make laws with respect to matters incidental to the execution of the executive power of the Commonwealth in section 61.

The Court had regard to considerations of a federal nature when identifying the scope of the Commonwealth’s power to spend. French CJ held that, while section 61 had to be capable of serving the powers of a national government, the exigencies of national government could not be invoked to set aside the constitutional distribution of powers, including between the Commonwealth and the States.⁷³ Gummow, Crennan and Bell JJ went further, observing that the Constitution, by referring in sections 110 and 119 to the executive government and the administration of the government of a State, assumes the existence and conduct of activities by the executive governments of the States.⁷⁴ It could only be by some constraint having its source in the position of those governments that the government of the Commonwealth could be denied the power, after appropriation, of expending the moneys raised by taxation imposed by the Commonwealth Parliament; the federal nature of the system of government established under the Constitution, and the respective ‘spheres of exercise of executive power’ warranted treating the Commonwealth executive as having spending powers less than those of the United Kingdom executive government in 1901.⁷⁵

Hayne and Kiefel JJ noted that an effectively unlimited Commonwealth power to spend appropriated money does not fit easily with the constitutional structure of the federation, citing *Melbourne Corporation*.⁷⁶ They adopted the view of Mason J in the *AAP Case*, that the executive

power of the Commonwealth does not reach beyond the area of responsibilities allocated to the Commonwealth by the Constitution ascertainable from the distribution of powers and the character and status of the Commonwealth as a national government.⁷⁷ The *Engineers Case* did not mean that reference to the constitutional structure or to implications based upon the division of powers between the integers of the federation was necessarily wrong.⁷⁸ The executive power of the Commonwealth to spend money was confined by the same structural considerations as underpinned the *Melbourne Corporation* principle. In particular, the Parliament that was to control taxation and expenditure under the Constitution was given only limited legislative powers. An unbounded spending power would not be consistent with the constitutional structure of the nation.⁷⁹

The impugned law in *Pape* was unusual, being a spending measure without the need for executive action beyond the spending itself. Questions about the spending and executive powers arose more acutely in *Williams (No 1)*,⁸⁰ which concerned a Commonwealth programme to fund school chaplaincy services, supported by no legislation other than the relevant appropriation.

The Court in *Williams (No 1)* affirmed that section 81 was not a source of power to spend. Since no law authorized the spending or entry into the contracts in question, the power to spend needed to be found in the executive power. In holding the executive power to be comparatively narrow, the Court made observations about the federal nature of the Constitution and notions of democratic accountability through the principles of representative and responsible government.

French CJ, Gummow, Bell and Crennan JJ each rejected the notion that the scope of the Commonwealth's executive power was to be ascertained by reference to the subject matters of Commonwealth legislative power. Along with Hayne and Kiefel JJ, they also rejected the argument that the Commonwealth's power to spend was effectively unlimited. That was not least because such a view would enlarge Commonwealth legislative power, through the power in section 51(xxxix) to make laws with respect to the execution of the executive power, and because it would enable spending in areas in which the Commonwealth was otherwise only able to spend by making section 96 grants.⁸¹ They also relied on the function of the Senate as a chamber designed to protect the interests of the States and to act as a

check on the executive branch.⁸² French CJ held that the national character of the Commonwealth government did not entitle it to carry out the programme by executive action alone; to do so would extend Commonwealth executive powers and correspondingly reduce those of the States, thus compromising the essential and characteristic feature of a truly federal government.⁸³ Hayne J, in particular, emphasized that a broad view of Commonwealth executive power would, through section 51(xxxix), render section 96 superfluous and enable its requirement of State consent to be bypassed.⁸⁴

Hayne and Kiefel JJ held that no Commonwealth legislative power could sustain the national schools chaplaincy programme, and so even on a generous view of the scope of Commonwealth executive power, power was lacking. The remaining members of the majority held that the executive power was not co-extensive with the areas of legislative power. No executive power peculiarly adapted to the needs of the nation was involved in the programme. To the contrary, the States could have provided such a programme themselves.

The Commonwealth therefore lacked executive power to enter into or spend money under the contracts implementing the school chaplaincy programme. In response, the Commonwealth Parliament enacted legislation which sought to afford a foundation for the programme.⁸⁵ The legislation was subsequently held to be beyond power.⁸⁶ The Court rejected a Commonwealth submission that its executive power extends to all matters reasonably capable of being seen as of national benefit or concern, being all those matters that befit the national government as discerned from the Constitution. Instead, the Commonwealth was ‘the central polity of a federation in which independent governments exist in the one area and exercise powers in different fields of action carefully defined by law’.⁸⁷

The *Williams* cases show that section 96 is important to the constitutional structure as a means of enabling co-operative expenditure of Commonwealth moneys within the federation. They also show that the fact that Australia has a federal system which divides power between the integers of the federation is an important consideration in constitutional interpretation.

H. MODERN RELEVANCE OF FEDERAL CONSIDERATIONS IN CONSTITUTIONAL INTERPRETATION

The decisions in *Pape* and *Williams* were influenced, to a significant extent, by federal considerations. Those considerations are not new, being identified at least as long ago as *Melbourne Corporation*. Similarly, despite the discrediting of the reserved powers doctrine, an interpretation of the Constitution effecting a substantial expansion of Commonwealth power into areas hitherto occupied by the States has always, on that account, been viewed with caution.⁸⁸ Recognition that section 96 limits Commonwealth power, by attaching conditions to the exercise of the power to grant financial assistance, is consistent with other cases that have held that constitutional limits may apply to section 96 in like manner to other heads of Commonwealth power.⁸⁹ Moreover, despite the emphasis in the *Engineers Case* on responsible government and its rejection of a priori assumptions about ‘federal balance’, the Court has never ignored the federal nature of the Constitution. The question has always been about the extent to which federal considerations bear on particular issues of interpretation.

As has been seen, in the field of taxation, federal questions have to date had comparatively little bearing on the matters decided. Considerations such as those described above were absent in the *Roads Case* and were not prominent in the *Uniform Tax Cases* except in the dissenting judgment of Starke J. But federal concerns will probably be raised in issues of interpretation regarding taxation, and other areas of financial power, in the future. For example, Latham CJ in the *First Uniform Tax Case* stated that the conditions on which financial assistance is offered must not travel beyond inducement or temptation into ‘compulsion’,⁹⁰ but the Court has not yet examined the issue of coercion under section 96 more generally.⁹¹

It can be seen that the allocation of financial powers in the Australian federation has largely been determined by political means; judicial intervention has been limited. This has involved substantial reliance on intergovernmental arrangements and political settlements. The High Court has generally emphasized the political nature of the issues, leaving the political branches democratically accountable for decisions to tax and to spend. But it has also recognized that the issues arise in a federal context, and that more than one polity in the federation may have a role in their

resolution. The governing constitutional framework can be expected to continue to require that the financial relationship of the Commonwealth and the States, and their respective powers to raise and spend money, are to be understood and identified with a steady eye on the federal nature of the Constitution.

* Judge of Appeal, Supreme Court of Victoria. I am grateful for the research assistance of Ryan Kornhauser and Hannah Aroni and the helpful contributions of Michael Crommelin, Shawn Rajanayagam, Rudi Kruse, and the editors.

¹ Australian Government, 'Reform of the Federation White Paper: COAG and Federal Financial Relations' (Issues Paper No 5, February 2015) 60 ('2015 Issues Paper').

² *New South Wales v Commonwealth* (1908) 7 CLR 179, 188, 205 ('Surplus Revenue Case').

³ *Combet v Commonwealth* (2005) 224 CLR 494, 570 [143].

⁴ *Peterswald v Bartley* (1904) 1 CLR 497, 507.

⁵ *A-G (NSW) ex rel Tooth and Co Ltd v Brewery Employees Union (NSW)* (1908) 6 CLR 469, 502–03.

⁶ *Peterswald* (n 4) 507.

⁷ *D'Emden v Pedder* (1904) 1 CLR 91; *Deakin v Webb* (1904) 1 CLR 585; *The Federated Amalgamated Government Railway and Tramway Service Association v The New South Wales Railway Traffic Employés Association* (1906) 4 CLR 488.

⁸ *Amalgamated Society of Engineers v Adelaide Steamship Co Ltd* (1920) 28 CLR 129 ('Engineers Case').

⁹ *ibid* 145.

¹⁰ *ibid* 146.

¹¹ *ibid* 146; see generally at 146–48.

¹² See, eg, *Pape v Federal Commissioner of Taxation* (2009) 238 CLR 1, 117–18 [333]; *New South Wales v Commonwealth* (2006) 229 CLR 1, 73–4 [54], 120–21 [195]–[196] ('Work Choices'); *Commonwealth v Tasmania* (1983) 158 CLR 1, 169 ('Tasmanian Dam').

¹³ *Australian Capital Television Pty Ltd v Commonwealth* (1992) 177 CLR 106, 134 (referring to *West v Commissioner of Taxation (NSW)* (1937) 56 CLR 567; *Essendon Corporation v Criterion Theatres Ltd* (1947) 74 CLR 1; *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31 ('Melbourne Corporation'); *Queensland Electricity Commission v Commonwealth* (1985) 159 CLR 192; and *State Chamber of Commerce and Industry v Commonwealth* (1987) 163 CLR 329 ('Second Fringe Benefits Tax Case'). See also Keven Booker and Arthur Glass, 'The Engineers Case' in H P Lee and George Winterton (eds), *Australian Constitutional Landmarks* (CUP 2003) 34, 50–52.

¹⁴ *Melbourne Corporation* (n 13).

¹⁵ See n 12 above.

¹⁶ (n 2).

¹⁷ *ibid* 191, 193, 199, 200, 205–06.

¹⁸ See, eg, *ibid* 206; *Commonwealth v Colonial Combing, Spinning and Weaving Co Ltd* (1922) 31 CLR 421, 451; *Victoria v Commonwealth* (1975) 134 CLR 338 ('AAP Case'); *Brown v West* (1990) 169 CLR 195, 205; *Combet* (n 3) 577 [160].

- ¹⁹ *Combet* (n 3) 569 [140].
- ²⁰ *Victoria v Commonwealth* (1926) 38 CLR 399 ('*Roads Case*').
- ²¹ *ibid* 406.
- ²² (1939) 61 CLR 735 ('*Moran's Case*'), *affd* on appeal to the Privy Council (1940) 63 CLR 338.
- ²³ *ibid* 758.
- ²⁴ *ibid* 764.
- ²⁵ *AAP Case* (n 18) 357. See also *Williams v Commonwealth* (2012) 248 CLR 156, 235–36 [148] ('*Williams (No 1)*').
- ²⁶ *AAP Case* (n 18) 357.
- ²⁷ Cheryl Saunders, 'The Uniform Income Tax Cases' in H P Lee and George Winterton (eds), *Australian Constitutional Landmarks* (CUP 2003) 64, providing a detailed account of the events leading to the challenges and their outcome.
- ²⁸ *ibid*.
- ²⁹ The difficulties, and some of the attempts to address them, are described in *ibid* 64–65.
- ³⁰ *South Australia v Commonwealth* (1942) 65 CLR 373 ('*First Uniform Tax Case*').
- ³¹ *ibid* 409.
- ³² *ibid* 422–23.
- ³³ *ibid* 442–44.
- ³⁴ (n 13).
- ³⁵ *ibid* 61–62; see also at 55–56.
- ³⁶ *ibid* 66.
- ³⁷ *ibid* 75.
- ³⁸ *ibid* 73.
- ³⁹ *ibid* 82.
- ⁴⁰ *ibid* 81.
- ⁴¹ *ibid* 99–100. McTiernan J dissented, without deciding whether the constitutional principle existed: at 94.
- ⁴² *ibid* 100.
- ⁴³ Later decisions have revealed the difficulty in attributing a label to the principle: see, eg, *Austin v Commonwealth* (2003) 215 CLR 185; *Clarke v Federal Commissioner of Taxation* (2009) 240 CLR 272.
- ⁴⁴ See, eg, *West* (n 13) 688–89.
- ⁴⁵ *Victoria v Commonwealth* (1957) 99 CLR 575 ('*Second Uniform Tax Case*').
- ⁴⁶ *ibid* 609.
- ⁴⁷ A useful short history of the Loan Council appears in *The Australia Loan Council*, Department of the Parliamentary Library, Research Note 43 (2002). Much of the present summary is drawn from this account.
- ⁴⁸ *Specific Purpose Payments and the Australian Federal System*, Parliamentary Library, (Research Paper 17, 2008).
- ⁴⁹ *Ha v New South Wales* (1997) 189 CLR 465.
- ⁵⁰ *2015 Issues Paper* (n 1) 13.
- ⁵¹ Cl 19.
- ⁵² Cl 26.
- ⁵³ *2015 Issues Paper* (n 1) 18.

- ⁵⁴ Section 25.
- ⁵⁵ Section 5.
- ⁵⁶ Commonwealth Grants Commission, <https://www.cgc.gov.au/index.php?option=com_content&view=article&id=35&Itemid=314> accessed 1 March 2016.
- ⁵⁷ Commonwealth Grants Commission, *Report on GST Revenue Sharing Relativities 2015 Review*, vol 1, 2.
- ⁵⁸ *ibid* 3.
- ⁵⁹ *ibid* 4–5.
- ⁶⁰ (n 18).
- ⁶¹ *ibid* 367–69, 394–96, 417–19. Latham CJ reached the same conclusion in *A-G (Vic) ex rel Dale v Commonwealth* (1945) 71 CLR 237, 253–56 (*‘Pharmaceutical Benefits Case’*).
- ⁶² *AAP Case* (n 18) 361–63, 373–75, 412–15.
- ⁶³ *ibid* 355–60.
- ⁶⁴ *ibid* 374.
- ⁶⁵ *ibid* 361–62, 375.
- ⁶⁶ *ibid* 412–14.
- ⁶⁷ *ibid* 396.
- ⁶⁸ *ibid* 397.
- ⁶⁹ *ibid* 400–01.
- ⁷⁰ (n 12).
- ⁷¹ *ibid* 55 [111], 73 [177]–[178], 113 [320], 210–11 [601]–[602]. French CJ, Hayne and Kiefel JJ did not regard s 81 as a source of power at all, but as regulating the exercise of a power to appropriate found in other provisions.
- ⁷² See also *ICM Agriculture Pty Ltd v Commonwealth* (2009) 240 CLR 140, 169 [41].
- ⁷³ *Pape* (n 12) 62 [131]. As the Chief Justice pointed out (at 49 [92]), a similar observation had been made by Barwick CJ in relation to s 81 in the *AAP Case*; see also the observations in that case of Gibbs J (at 378) and Mason J (at 398).
- ⁷⁴ *Pape* (n 12) 83 [214].
- ⁷⁵ *ibid* 85 [220].
- ⁷⁶ *ibid* 114–15 [325].
- ⁷⁷ *ibid* 115–16 [327].
- ⁷⁸ *ibid* 117–18 [333].
- ⁷⁹ *ibid* 117–20 [333]–[339], 124 [357].
- ⁸⁰ (n 25).
- ⁸¹ *ibid* 192–93 [37], 234–36 [143]–[148], 251–52 [197]–[199], 267–71 [241]–[253], 347 [501].
- ⁸² *ibid* 205–06 [60]–[61], 235 [145].
- ⁸³ *ibid* 216–17 [83].
- ⁸⁴ *ibid* 267–70 [243]–[248].
- ⁸⁵ *Financial Framework Legislation Amendment Act (No 3) 2012* (Cth).
- ⁸⁶ *Williams v Commonwealth (No 2)* (2014) 252 CLR 416.
- ⁸⁷ *ibid* 469 [83]; see also at 471 [99].
- ⁸⁸ See, eg, *Williams (No 1)* (n 25) 267 [242].
- ⁸⁹ See, eg, *A-G (Vic) ex rel Black v Commonwealth* (1981) 146 CLR 559 (laws for establishing a religion, contrary to s 116); *ICM Agriculture Pty Ltd v Commonwealth* (2009) 240 CLR 140 (laws

with respect to the acquisition of property other than on just terms, contrary to s 51(xxxi)).

⁹⁰ (n 30) 417–18; see also at 436 (Rich J), 451, 455 (McTiernan J); *Second Uniform Tax Case* (n 45) 610 (Dixon CJ).

⁹¹ Latham CJ referred to United States authority in the *First Uniform Tax Case*: (n 30) 418. Federal considerations there have led to a line being drawn where permissible pressure or ‘encouragement’ turns into impermissible compulsion. See, eg, *South Dakota v Dole*, 483 US 203, 211 (1987); *National Federation of Independent Business v Sebelius* 567 US __ (2012) 50–55 (Roberts CJ, Breyer and Kagan JJ), 39–42 (Scalia, Kennedy, Thomas and Alito JJ), 60 (Ginsburg and Sotomayor JJ).

CHAPTER 33

CO-OPERATIVE FEDERALISM

ROBERT FRENCH

A. INTRODUCTION

CO-OPERATIVE federalism was once described in the High Court as ‘a political slogan’ and ‘not a constitutional term’.¹ The case in which that was said was one in which six out of seven Justices of the High Court held that State Parliaments could not validly invest jurisdiction in federal courts even pursuant to an intergovernmental agreement between the States and the Commonwealth. Justice Michael McHugh, who made the observation, rejected any suggestion that co-operative federalism could operate as a gap-filler in the distribution of legislative powers under the Australian Constitution or otherwise inform its interpretation. Justice Michael Kirby, in dissent, described the achievement of the agreement and the impugned ‘cross-vesting’ legislation, which gave effect to it, as ‘precisely the co-operation for the removal of inconvenient impediments to good government which the Australian Constitution fosters rather than forbids’.² Both observations invite closer consideration of the term ‘co-operative federalism’ and the part it plays in the working of Australia’s constitutional arrangements. That consideration first requires a brief reflection upon the nature of federalism.

B. FEDERALISM

Federalism denotes a class of systems of government in which power is distributed between one national government and several sub-national governments, each responsible for a part of the national territory. The

powers of the national government and the regional governments directly affect individuals and other legal persons within their respective areas of competence. The distribution of governmental powers between the centre and the regions is effected by a constitution which cannot be amended unilaterally by the central government or by the regions acting separately or together. The distribution of competence between the national government and the regional governments is interpreted and policed by a judicial authority.³ Federalism so understood includes a federation in which a strong central government presides over something close to a unitary State. At the other end of the spectrum strong regional polities under a weak central government may approximate a confederation.⁴ The difference is that the latter term usually describes an association of States rather than one State with an internal distribution of powers. That is not to exclude the possibility of a federation or a ‘federative pact’ which is not a federal state, a concept which some have sought to apply to Europe.⁵ The opportunity and need for co-operative action in a federation is likely to be a function of its position along the spectrum, reflected in particular constitutional arrangements and variable factors, including domestic and supranational political and economic issues.

C. CO-OPERATIVE FEDERALISM—A WORKING DEFINITION

Co-operative federalism refers broadly to an attribute of a federation whereby its component governments routinely engage in co-operative action with a view to achieving common objectives. Co-operation may be legislative, administrative, judicial, or a mixture of all or some. It may be vertical, involving central and regional governments or horizontal involving regional governments only. It may use joint decision-making mechanisms or a single decision-maker acting under a consultative regime.⁶ Co-operative federalism is not exhaustive of the attributes of federations to which it applies. There are other ‘federalisms’ which, at least in theory, can co-exist with it. They include so-called ‘laboratory federalism’ whereby the success or failure of one polity in implementing a new policy may be a guide to others⁷ and ‘competitive federalism’ in which regional polities compete with each other in enacting laws and policies to attract investment and population. Other species identified have included ‘co-ordinate’ or

‘dual’, ‘co-ordinative’ and ‘coercive’ federalisms.⁸ The taxonomy of ‘federalisms’ is limited only by human creativity and its possibilities need not be explored further here.

D. AUSTRALIA’S FEDERAL CONSTITUTION

Australia’s federal Constitution confers legislative power on the Commonwealth Parliament with respect to enumerated topics set out in section 51. Although for the most part those powers are concurrent with the legislative powers of State Parliaments, they are paramount. A State law inconsistent with a Commonwealth law is invalid to the extent of the inconsistency by operation of section 109 of the Constitution. By reason of paramountcy, the broad judicial interpretation of its powers, and its financial strength as the primary revenue raiser deriving from its taxation power and the power to make conditional grants to the States, the Commonwealth is the dominant party in the federation. In 1920 in *Amalgamated Society of Engineers v Adelaide Steamship Co Ltd*⁹ the High Court held that Commonwealth legislative power was to be interpreted broadly and that the Commonwealth could enact legislation affecting States and their agencies. The decision marked a significant departure from previous decisions of the High Court interpreting Commonwealth powers narrowly so as not to impact upon ‘reserved’ powers of the States.

Some of the powers conferred upon the Commonwealth Parliament have been interpreted as ambulatory and enable it effectively to legislate with respect to subjects outside the enumerated list. Leading examples are the taxation power,¹⁰ the external affairs power,¹¹ and the corporations power.¹² Nevertheless, Australia is not a unitary State and Commonwealth powers do not cover all the matters which might be the subject of legislation. Moreover there are limits imposed on the legislative power of the Commonwealth and the States by express guarantees and prohibitions and judicially developed doctrines. Those doctrines include the proposition that the Commonwealth cannot make a law which will destroy or weaken the functioning of the States or their capacity to govern. That important qualification was developed in a number of cases dating back to 1947.¹³

Australia’s Constitution was a product of a nineteenth century colonial culture informed by a strong British legal and constitutional heritage and a

notion of one 'people' or 'race', terms which were used interchangeably.¹⁴ This was reflected in early colonial laws restricting immigration; the power conferred on the Commonwealth by section 51(xxvi) of the Constitution to make laws for the people of any race, other than Aboriginal people, for whom it was deemed necessary to make special laws; and the enactment immediately after federation of the *Immigration Restriction Act 1901* (Cth). Against the white nationalist background and general concerns about the colonizing activities of France and Germany in the Pacific Region, a central element of the Constitution was the creation of an economic union in which the States and their people were accorded formal equality. Accordingly, trade, commerce, and intercourse among the States was to be 'absolutely free'.¹⁵ The Commonwealth Parliament was to have exclusive power with respect to customs, excise, and bounties.¹⁶ It was to impose uniform duties of customs within two years after its establishment.¹⁷ It could make laws with respect to taxation under section 51(ii) but not so as to discriminate between States or parts of States.¹⁸ It could also make laws providing for bounties, uniform throughout the Commonwealth, on the production or export of goods.¹⁹ Section 99 provided that the Parliament could not, by any law or regulation of trade, commerce or revenue, give preference to one State or any part thereof over another. A resident in any State could not be subject, in any other State, to any disability or discrimination which would not be equally applicable to him or her if resident in such other State.²⁰

The Constitution also confers powers on the Commonwealth Parliament to give national effect to certain classes of State governmental action. They are powers to make laws with respect to the service and execution throughout the Commonwealth of the civil and criminal process and the judgments of the courts of the States²¹ and the recognition throughout the Commonwealth of the laws, the public Acts and records, and the judicial proceedings of the States.²² There is a mandate imposed upon the Commonwealth by section 118 to give full faith and credit 'to the laws, the public Acts and records, and the judicial proceedings of every State'.²³

The free trade and anti-discrimination provisions of the Constitution created a 'Commonwealth economic union, not an association of States each with its own separate economy'.²⁴ However it might be manifested in Australia, competitive federalism cannot extend to discriminatory or

protectionist measures which would infringe those provisions of the Constitution designed to maintain the economic union. On the other hand, the economic provisions do not mandate co-operative federalism in the sense defined earlier. Co-operative federalism is likely to be driven by factors including, but not limited to, national objectives of economic efficiencies calculated to enhance Australia's ability to compete in global markets.

Federalism has a particular application today in multi-ethnic societies as a constitutional form which can accommodate diverse ethnic groups in distinct territorial concentrations within one national polity. Australia was not a federation born out of the need to provide a *modus vivendi* between different geographically defined ethnic communities. Diversity was not on the nation-building agenda. Nor was social inclusion. There was very little recognition in the Constitution of the position of Indigenous People except to marginalize them for electoral purposes²⁵ and to expressly carve them out from the application of the Commonwealth power to make special laws for the people of particular races.²⁶ That carve-out, which had left the States as the principal repositories of the power to make laws with respect to Aboriginal and Torres Strait Islander peoples, was removed by referendum in 1967.²⁷ Its removal conferred legislative power with respect to those Indigenous Australians on the Commonwealth Parliament. It marked an important step forward in the evolution of national attitudes to Aboriginal and Torres Strait Islander peoples. Much else has changed since the Constitution came into existence. Contemporary Australia is a multi-ethnic society comprising people from 180 different countries and a population of whom nearly half were born overseas or had one parent born overseas. Its ethnic diversity is a product of immigration. Cultural and ethnic diversity and the special position of Australia's Indigenous Peoples give rise to issues to which all levels of government must respond and respond co-operatively in order to avoid overlap and duplication.

E. CO-OPERATION AND THE FUNCTIONING OF THE CONSTITUTION

Although the historical imperatives driving the formation of the Australian federation in the late nineteenth century differed significantly from those driving the formation of federations in the twentieth century, the drafting of

the Constitution and the creation of the Commonwealth were, as federal constitutions generally have to be, co-operative undertakings. Moreover, the agreements reached between the colonial delegates about the distribution of powers between the Commonwealth and the States not only allowed for the possibility of co-operative action in the years ahead, but created the occasions for its necessity.

The character of the Constitution as the product of a co-operative undertaking is reflected in the Preamble to the *Commonwealth of Australia Constitution Act 1900* (Imp).²⁸ The Preamble refers to the ‘agreement’ of the people of New South Wales, Victoria, South Australia, Queensland, and Tasmania ‘to unite in one indissoluble Federal Commonwealth’. Western Australia, which had its referendum too late for inclusion in the Preamble, was included, by operation of section 3 of the Act, in the Proclamation of the Constitution.

A central idea in the Australian federal system has been identified as ‘[t]he conception of independent governments existing in the one area and exercising powers in different fields of action carefully defined by law.’²⁹ Despite the power of the Commonwealth Parliament relative to that of the State Parliaments, the Constitution leaves space for extensive intergovernmental co-operation.³⁰ There is nothing novel about that proposition. The High Court has repeatedly acknowledged it. Starke J, in 1939, said:

Co-operation on the part of the Commonwealth and the States may well achieve objects that neither alone could achieve; that is often the end and the advantage of co-operation. The court can and ought to do no more than inquire whether anything has been done that is beyond power or is forbidden by the Constitution.³¹

In *R v Humby; Ex parte Rooney*,³² Gibbs J, holding valid provisions of the *Matrimonial Causes Act 1959* (Cth) empowering a court to order that a party make payments to a public authority of a State, observed that the Constitution was not intended to inhibit co-operation between the Commonwealth and the States and their respective agencies.³³ That is a negative principle. Co-operative action is not forbidden. There have been more positive statements. In *R v Duncan; Ex parte Australian Iron and Steel Pty Ltd*³⁴ the Court upheld the validity of Commonwealth and New South Wales laws constituting and conferring powers upon a Coal Industry Tribunal. The Commonwealth and the State, each acting in its own field,

could supply the deficiencies in the power of the other to achieve a uniform and complete legislative scheme subject to limitations such as those provided by section 92 of the Constitution.³⁵ That co-operation was characterized by Deane J as ‘a positive objective of the Constitution’.³⁶ Mason J made an important generalization underpinned by the proposition that co-operative activity is necessarily contemplated by the division of powers:

A federal constitution which divides legislative powers between the central legislature and the constituent legislatures necessarily contemplates that there will be joint co-operative legislative action to deal with matters that lie beyond the powers of any single legislature.³⁷

The term ‘co-operative federalism’ appeared in the judgment of Gibbs CJ in *R v Winneke; Ex parte Gallagher*.³⁸ Finding no constitutional impediment to a combined inquiry by the Commonwealth and the States into related subject matters, the Chief Justice observed that it would be ‘difficult to imagine why the Parliament would wish to forbid such a sensible exercise of co-operative federalism’.³⁹ In *Davis v Commonwealth*⁴⁰ Mason CJ, Deane and Gaudron JJ, holding that the Commonwealth’s executive power extended to the commemoration of the bicentenary of Australia’s colonization, acknowledged that the States had a part to play ‘whether as part of an exercise in co-operative federalism or otherwise’.⁴¹ The term ‘co-operative federalism’ as used in these judgments cannot be dismissed as a ‘political slogan’. It describes a class of activity treated as an attribute of the operation of the Federation. Within the limits imposed by the Constitution, it can facilitate federal functionality. That facilitative character allows for different degrees of co-operative federalism extending beyond the minimum which is necessary to the functioning of the federation.

The Constitution leaves space for rivalrous intergovernmental behaviour. Such rivalrous behaviour, as already noted, has attracted the designation ‘competitive federalism’. It is a practice which is not embedded in or necessary to the functioning of the Commonwealth, although it may yield benefits. It is promoted by those who see the Commonwealth as having assumed, or having been given by judicial interpretation, or having been ceded by the States, too much governmental power at the expense of the States. It may be a reaction to the plausible proposition that co-operative federalism manifested in intergovernmental agreements supported by uniform or mirror legislation, on topics beyond the unaided reach of

Commonwealth power, may further centralize power at the expense of the States. There is space for both competition and co-operation, but views differ on how much space each should occupy. The National Commission of Audit, established by the federal government in 2013, propounded competitive federalism as a desideratum based upon principles of ‘subsidiarity’ and ‘sovereignty’. In Chapter 6 of its Report, the Commission said:

The competitive dimension of a federation can inject the right incentives into the system for governments to improve public sector efficiency. It can also improve accountability and encourage more responsive government.⁴²

Subsidiarity was said to require that policy and service delivery as far as practicable be devolved to the level of government closest to the people receiving the services. The principle of ‘sovereignty’ meant that as far as practicable each level of government should be ‘sovereign in its own sphere’.⁴³ Those propositions have a certain absolutism about them. The scope for co-operative and competitive activity will depend upon the degrees of freedom available to the States. Those may vary from time to time depending upon the extent to which the Commonwealth is dominant and prescriptive in areas in which it can rely upon its paramountcy in legislative power, its financial dominance, and its executive power. The balance between co-operation and competition will depend upon the degree of consensus about common objectives. Given the size of Australia’s population and the globalization, not only of trade and commerce, but also of issues such as crime, terrorism, racial and other discrimination, climate change, environmental protection, and biosecurity, the balance would seem to favour co-operative federalism. There can, however, be too much of a good thing. Too much co-operative federalism may gradually transform the country into something that, while in form a federation, is in substance a unitary State.

F. CO-OPERATION IN THE CONSTITUTIONAL TEXT

In examining the scope for co-operative action under the Australian Constitution reference must be made to its provisions which contemplate such action. These include provisions expressly conditioning the exercise of Commonwealth power upon the consent of affected States. Two such

provisions confer power to make laws with respect to the acquisition of any railways of a State on terms arranged between the Commonwealth and the State⁴⁴ and railway construction and extension in any State.⁴⁵ More fundamentally, the surrender by a State of territory to the Commonwealth and the alteration of the limits of States and the formation of a new State by separation of territory from an existing State are also conditioned by the Constitution upon consent.⁴⁶

Significant co-operative action has been undertaken under section 51(xxxvii) of the Constitution which empowers the Commonwealth Parliament to make laws with respect to the matters referred to it by any State or States, but so that the law shall extend only to the States by whose Parliaments the matter is referred, or which afterwards adopt the law.⁴⁷ Referrals and adoptions support important Commonwealth legislation including legislation relating to mutual recognition of occupational qualifications and certain product standards between States and Territories,⁴⁸ corporations,⁴⁹ terrorism,⁵⁰ de facto relationships,⁵¹ water,⁵² and personal property securities.⁵³ A referral may be of a subject matter on which the Commonwealth is thereby authorized to legislate or, as is commonly the case, of a matter defined by the text of a proposed law.

Section 51(xxxvii) defines a head of legislative power conferred on the Commonwealth Parliament. It is not a power conferred on the States to refer matters. Like every other legislative power conferred by section 51, it is subject to the Constitution and so attracts the application of constitutional prohibitions and guarantees. A law made by the Commonwealth Parliament in the exercise of the power attracts the operation of the paramountcy provision, section 109, in respect of inconsistent State laws.⁵⁴

There are some constructional and technical questions about references. One question is whether a reference unlimited in time can be revoked. Another is whether a Commonwealth law, which is passed pursuant to a reference, is contingent, for its continuing operation, in each referring or adopting State on the reference or adoption not being revoked by the State. The amendment of laws made under a reference would be uncontroversial where the reference is of a subject matter. However, if a specific text was referred an amendment of the law passed pursuant to that reference would likely be invalid unless amendment is specifically provided for in the reference or a further reference is made. It may not be enough to say that

the amendment is supported by a head of Commonwealth legislative power. State interests can be protected against unilateral Commonwealth action in relation to a text-based referral by requiring the consent of each referring and adopting State to any amendment or the consent of a Ministerial Council comprising representatives of the referring and adopting States.⁵⁵ Further protection may be obtained by the insertion of a sunset provision in the law itself.⁵⁶ An obvious advantage of this essentially co-operative mechanism is that, where agreement has been reached between the Commonwealth and all of the States on the text of a law to be referred as a matter under section 51(xxxvii), the result will be a single Commonwealth law of uniform application. On the other hand, if not all the States join the result will be a Swiss cheese law. The history of subject and text referrals is that they occur on an ad hoc basis as an agreed means of dealing with a particular topic of national concern. There is no discernible criterion for selection of referral as against other co-operative schemes.

The Commonwealth may also make laws with respect to the exercise within the Commonwealth, at the request or with the concurrence of the Parliaments of all the States directly concerned, of any power which could at the establishment of the Constitution be exercised only by the Parliament of the United Kingdom or by the Federal Council of Australasia.⁵⁷ The High Court in *Port MacDonnell Professional Fishermen's Association Inc v South Australia*⁵⁸ held that the words 'at the establishment of this Constitution' referred to the point in time immediately before the establishment of the Constitution. In the result, the power conferred by section 51(xxxviii) was not limited by the topics enumerated in section 51.⁵⁹ In *Sue v Hill*,⁶⁰ three Justices of the Court held, citing *Port MacDonnell*, that the effect of section 51(xxxviii) is to empower the Commonwealth Parliament to 'make laws with respect to the local exercise of any legislative power which, before federation, could not be exercised by the legislatures of the former Australian colonies'.⁶¹ Their Honours described the provision as a potential enhancement of State legislative powers because the Parliaments of the States were the 'potential recipients of legislative power under a law made pursuant to the paragraph.'⁶²

In the area of financial relations, section 105 of the Constitution, as amended in 1910, provides for the taking over by the Commonwealth Parliament of the public debts of the States. Section 105A, introduced by

amendment in 1928, provides for the Parliament to make agreements with the States with respect to their public debts. It also provides for the Commonwealth Parliament to make laws for the carrying out of such agreements. The history of sections 105 and 105A demonstrates that co-operative federalism can engender litigious federalism. In 1927 the Commonwealth and the States entered into a Financial Agreement under which the Commonwealth took over public debts of the States as at 1 July 1929, pursuant to section 105. The States undertook to pay certain amounts due as interest and to contribute to a sinking fund. The *Financial Agreement Act 1928* (Cth) was made pursuant to the 1927 Agreement. An Australian Loan Council, comprising representatives of the Commonwealth and State Governments, was created to raise and distribute future loans to the States.

New South Wales defaulted on payments due under the Financial Agreement. In response the Commonwealth enacted the *Financial Agreements Enforcement Act 1932* (Cth), under section 105A of the Constitution, which authorized the Attorney-General for the Commonwealth to seek a declaration in the High Court of the amount due and payable by a defaulting State. The declaration would have the effect of a judgment debt and would be a charge on the defaulting State's revenue. The validity of the enforcement legislation was upheld against a challenge by New South Wales in the *First Garnishee Case*.⁶³

In 1978, the High Court held in *Sankey v Whitlam*⁶⁴ that the Financial Agreement 1927 was not a law. That decision arose out of a private prosecution of former Prime Minister Gough Whitlam and three former members of his Ministry for allegedly conspiring to effect a purpose unlawful 'under a law of the Commonwealth' namely borrowing by the Commonwealth of Australia from overseas sources in contravention of the Financial Agreement 1927. The Agreement had been validated by the *Financial Agreement Validation Act 1929* (Cth) and subsequent Agreements effecting amendments to it had been approved by statute, including the *Financial Agreement Act 1944* (Cth). Gibbs ACJ in his judgment made the common point:

The Financial Agreement purports to be an agreement, not a law. It was not made by any legislature, although it received legislative approval and ratification. It may be varied or rescinded by the parties: s 105A(4). Section 105A itself draws a distinction between the agreements which it authorizes on the one hand and laws made to validate or carry out any such agreement on the other.⁶⁵

Stephen J characterized the agreements contemplated by section 105A as ‘contracts between quite special parties, each possessing legislative powers and to whose capacity to contract and to perform its obligations constitutional principles and provisions apply’.⁶⁶

Section 96 is, in form, a consensual mechanism although it is sometimes described as an instrument of coercive federalism. It confers legislative power on the Commonwealth Parliament to make conditional grants of financial assistance to the States:

During a period of ten years after the establishment of the Commonwealth and thereafter until the Parliament otherwise provides, the Parliament may grant financial assistance to any State on such terms and conditions as the Parliament thinks fit.

Any State is free not to accept such financial assistance because the terms and conditions are unacceptable or for any other reason. Despite the limited temporal operation contemplated but not mandated by its text, section 96 has provided a durable foundation for the expansion of Commonwealth power through the terms and conditions it imposes on financial assistance which are not confined by the enumerated subject matters of Commonwealth legislative power in section 51. Laws made under section 96 providing for conditional grants often have the political character of offers that cannot be refused.

An early example of the application of section 96 was the *Federal Aid Roads Act 1926* (Cth) which authorized the execution by the Commonwealth of agreements made between the Commonwealth and the States providing for the payment of moneys to the States for the construction and reconstruction of roads. Victoria and South Australia challenged the validity of the legislation arguing, among other things, that the Commonwealth could not attach conditions to its grant, pursuant to section 96, so that it amounted in substance to the exercise of a legislative power not within section 51 of the Constitution.⁶⁷ The judgment of the Court was characterized by a remarkable brevity:

The Court is of opinion that the *Federal Aid Roads Act* No 46 of 1926 is a valid enactment. It is plainly warranted by the provisions of sec 96 of the Constitution, and not affected by those of sec 99 or any other provisions of the Constitution, so that exposition is unnecessary. The action is dismissed.⁶⁸

As appears from that judgment, the section is not limited by the anti-discrimination provisions in section 99. It was later seen in *Moran's Case* as

providing a mechanism for ‘adjusting ... inequalities in accordance with the judgment of the Parliament’.⁶⁹ *Moran’s Case* was affirmed in the Privy Council.⁷⁰

In the *First Uniform Tax Case* in 1942, the validity of an Act providing for grants to States on condition that they had not imposed their own income tax was upheld. In the *Second Uniform Tax Case* in 1957, Dixon CJ, who had not sat on the *First Uniform Tax Case*, suggested that if section 96 had been before the Court for the first time the Court might have held that it did not authorize any attempt by the Commonwealth to influence the direction of the exercise by the State of its legislative or executive powers.⁷¹ It was too late to adopt any such limited interpretation of the provision. However, it did not authorize coercive laws.⁷² The Chief Justice summed up the effect of the *Federal Aid Roads Act Case*. Paraphrasing that summary, the power conferred by section 96 is well exercised although the State is bound to apply the money to an object outside the powers of the Commonwealth and although the payments are left to the discretion of the Commonwealth Minister; and the money is provided as the Commonwealth’s contribution to an object for which the State is also to contribute funds.⁷³

Although not limited by anti-discrimination provisions of the Constitution, the question whether laws making grants under section 96 can require acquisition of property by the recipient States other than on just terms, has been considered in a number of cases. Section 51(xxxi) of the Constitution constrains the Commonwealth’s power to make laws for the acquisition of the property of any State or person by a requirement that the acquisition be on just terms. In *ICM Agriculture Pty Ltd v Commonwealth*⁷⁴ the majority of the High Court upheld the correctness of *PJ Magennis Pty Ltd v Commonwealth*⁷⁵ in which legislation providing for financial assistance to the States for the acquisition of land other than on just terms was held to be invalid. It has been suggested, however, that that limitation can be overcome by Commonwealth/State arrangements which are not ratified by legislation but merely left to operate on an administrative level.⁷⁶

Intergovernmental agreements are a feature of many federations. In the more than two dozen federal and confederal systems there are hundreds of intergovernmental agreements pertaining to virtually all aspects of government activities.⁷⁷ They cover a large spectrum of arrangements with

varying degrees of formality and serving a variety of purposes.⁷⁸ In Australia, agreements between the executive governments of the Commonwealth and the States lie at the heart of much Commonwealth/State co-operative activity.⁷⁹ As Jeffrey Parker has written in a recent monograph, Australia provides a fertile environment for such agreements and, according to his study, ranks third among federations in the number of accords it has created.⁸⁰

As with the Financial Agreement 1927, an intergovernmental agreement between the Commonwealth and the States in the exercise of their respective executive powers is not a law of either the Commonwealth or the States. The primary source of Commonwealth power to enter into agreements of this kind is to be found in section 61 of the Constitution which provides:

The executive power of the Commonwealth is vested in the Queen and is exercisable by the Governor-General as the Queen's representative, and extends to the execution and maintenance of this Constitution, and of the laws of the Commonwealth.

The High Court has, in recent times, had occasion to consider the scope of the executive power, particularly in relation to the expenditure by the Commonwealth, outside the framework of section 96, on programmes delivered within the States which are not authorized by Commonwealth statutes and do not fall within any of the heads of Commonwealth legislative power. Such expenditure requires appropriation legislation pursuant to section 81 of the Constitution. However, appropriation legislation is a necessary but not a sufficient condition of the power to expend public money. Authority for the expenditure has to be found either in the Constitution or in a law made under it.⁸¹ Section 61 may, in some circumstances, be a source of such power and may support legislation to give effect to its exercise under the incidental power in section 51(xxxix). Section 51(xxxix) confers power on the Commonwealth Parliament to make laws with respect to matters incidental to the execution of any power vested by the Constitution in the Parliament or in either House thereof, or in the government of the Commonwealth or in the federal judicature or in any department or officer. While some classes of expenditure may be authorised by section 61 on matters not covered by the enumerated heads of power in section 51, those subject areas are circumscribed. Moreover it does not authorize expenditure on any topic on which a law could be made.⁸² Thus

Commonwealth funding for the provision of chaplains in the school systems of the States, not authorized by statute and not referable to a head of legislative power, was held to be outside the authority conferred by section 61.⁸³

There is then a question, not yet answered, about the extent to which intergovernmental agreements entered into by the Commonwealth in the exercise of its executive power will support legislation under the incidental power to give effect to them. That question may be side-stepped where the legislative scheme giving effect to an intergovernmental agreement involves interlocking statutes made by the States and the Commonwealth, each acting within the scope of its constitutional powers.

G. CONSTITUTIONAL BOUNDARIES

The co-operative action reflected in legislative schemes giving effect to intergovernmental arrangements is confined to the space which the Constitution of the Commonwealth and those of the States provides. Determining the validity of legislation giving effect to a co-operative arrangement in a particular case will involve the definition of constitutional limits by interpretation of the Constitution and the application of the limits thus defined. Limits upon power have been encountered in relation to co-operative arrangements involving federal courts and Commonwealth executive authorities exercising functions under State law. The common point to emerge from these cases is that where the Constitution imposes a limit on governmental action that limit cannot be abrogated simply because the law which is said to transgress it is made in the exercise of co-operative federalism. On the other hand, where constructional choices are available, including in relation to implications drawn from the Constitution, there does not seem to be any reason in principle why the fact that one choice facilitates or allows co-operative action should not weigh in its favour. The validity and utility of that proposition, however, would no doubt depend upon the level of generality at which the term 'co-operative action' or its analogues is applied.

Without overt reference to co-operative federalism, the paramountcy provision, section 109 of the Constitution, has been applied so as not to prevent the valid enactment of a State law which deals with the same

subject matter as a Commonwealth law but where both laws allow for administrative co-operation in their implementation so that there is no 'operational inconsistency'.⁸⁴ The characterization of concurrent Commonwealth and State statutes on the same subject matter, as not inconsistent for the purposes of section 109 may be assisted by provisions which appear in a number of Commonwealth laws stating that they are not intended to exclude or limit the concurrent application of a State law on the same subject.⁸⁵

Chapter III of the Constitution, which provides for the exercise of the judicial power of the Commonwealth, defines in section 75 the original jurisdiction of the High Court and in section 76 additional original jurisdiction which may be conferred on the High Court by the Parliament. With respect to any of the matters mentioned in those two sections, the Parliament may also make laws investing any court of a State with federal jurisdiction.⁸⁶ There is no requirement that the States consent notwithstanding the resource implications of each additional grant of jurisdiction.

A leading decision in relation to federal courts, noted at the beginning of this chapter, was *Re Wakim*.⁸⁷ Under a national co-operative scheme State laws conferred original and appellate jurisdiction on the Federal Court of Australia with respect to matters in which the Supreme Courts of each State had jurisdiction other than by reason of a law of the Commonwealth or another State. A Commonwealth law authorized the Federal Court to exercise jurisdiction (whether original or appellate) conferred on it by a State law relating to cross-vesting of jurisdiction. The scheme was designed to overcome difficulties and uncertainties created by boundaries between federal and State jurisdiction and the 'accrued' jurisdiction of courts exercising federal jurisdiction to also deal with claims arising under State law or at common law which form part of the federal matter.⁸⁸ The High Court held, by a six to one majority, that the only jurisdiction able to be conferred on the Federal Court was defined by reference to the matters set out in sections 75 and 76 of the Constitution. No polity other than the Commonwealth could confer such jurisdiction. The provision of the Commonwealth Act purporting to confer jurisdiction on the Federal Court not found in section 75 or section 76, was invalid. Gleeson CJ acknowledged that there was general approval of the cross-vesting scheme

but said that approval was irrelevant to constitutional validity. The Parliaments of the Commonwealth, the States, and the Territories could not, by co-operation, amend the Constitution. The expedient provided in Chapter III for conferring federal jurisdiction on State courts was sustained not by its expediency but by a specific grant of legislative power. The question before the Court was whether the reverse process was effected without such an express grant of power.⁸⁹ McHugh J observed that co-operative federalism did not assist those supporting the validity of the legislation. The designation by his Honour of co-operative federalism as a political slogan preceded his observation that:

It records a result reached as the result of a State and the Commonwealth legislating *within the powers* conferred on them by the Constitution.⁹⁰

Underlying its invocation was ‘a good deal of loose thinking’. Gummow and Hayne JJ referred to *Duncan’s Case*⁹¹ observing that it recognized, as had long been recognized, that the Constitution not only does not forbid Commonwealth/State co-operation but expressly provides in some respects for such co-operation.⁹² They added that no amount of co-operation could supply a power where none existed:

To hold to the contrary would be to hold that the Parliaments of the Commonwealth and the States could, by co-operative legislation, effectively amend the Constitution by giving to the Commonwealth power that the Constitution does not give it.⁹³

Kirby J, who dissented, found no reason of constitutional principle or policy to forbid the kind of legislative co-operative scheme between all of the governments and legislatures of the Commonwealth instanced by the two legislative systems of cross-vesting. In the end the difference between Kirby J and the majority was on the scope and limits of constitutional power in relation to the impugned legislation.

Difficulty has been encountered also in the area of executive co-operation involving the conferral by State law of powers and duties on Commonwealth officers where such conferral is supported by Commonwealth law. In *R v Hughes*⁹⁴ the Court held:

1. a State by its laws cannot unilaterally invest functions under that law in officers of the Commonwealth;
2. a State law which purports to give to a Commonwealth officer a wider power or authority than that, the acceptance of which is prescribed by Commonwealth law would, to that extent, be inconsistent with the Commonwealth law and invalid under section 109 of the Constitution.⁹⁵

Commonwealth law can permit a Commonwealth authority to exercise a non-obligatory function conferred on it by State law. It does not require the support of any express Commonwealth head of power. If a State law purports to impose a duty on a Commonwealth duty, then the duty must be authorized and imposed by a Commonwealth law which is in turn supportable by reference to a head of Commonwealth legislative power. If there be an intergovernmental agreement by which duties may be imposed on Commonwealth officers to carry out functions under State law, then the argument would be open that a Commonwealth law imposing such a duty may be an exercise of the incidental power under section 51(xxxix) in aid of the executive power of the Commonwealth under section 61.

Those constraints have been reflected in Commonwealth legislation dealing with the conferral of powers and functions under State and Territory laws in relation to joint regulatory regimes. An example was found in provisions of the former *Trade Practices Act 1974* (Cth), now the *Competition and Consumer Act 2010* (Cth) (*CC Act*) relating to functions conferred upon the National Competition Council, the Australian Competition and Consumer Commission, and the Australian Competition Tribunal. The Act provided, in effect, that if the State could impose a duty on the Commonwealth body, with the consent of the Commonwealth, and that duty would be consistent with constitutional doctrines, then it would operate by force of State law alone. If the imposition of the duty required the support of Commonwealth laws then that support was provided.⁹⁶

H. CO-OPERATIVE FEDERALISM IN PRACTICE

As appears from the preceding discussion there is a variety of techniques whereby co-operative federalism can be practised consistently with the Australian Constitution. They include the following:

1. Intergovernmental executive agreements providing for:
 - (a) uniform legislation enacted separately by each participating polity;
 - (b) enactment by one unit in the federation of a standard law then adopted by other parties to the agreement.
2. The referral of State legislative powers authorizing Commonwealth law-making under section 51(xxxvii) on a particular topic or according to the text of a proposed Bill.
3. Administrative co-operation by way of intergovernmental agreements which may or may not be supported by legislation.

The leading political mechanism for the practice of co-operative federalism in Australia is the Council of Australian Governments (COAG), which was established in 1992. Its members are the Prime Minister, State and Territory Premiers and Chief Ministers, and the President of the Australian Local Government Association. It has adopted an extensive reform agenda which emphasises ‘co-operative working relationships’. That agenda involves the implementation of an intergovernmental agreement on federal financial relations which commenced on 1 January 2009. The object of the agreement is ‘to enhance collaborative federalism by reducing the previous complexity of the Commonwealth’s financial relations with the States and the Territories, promoting greater flexibility in service delivery, and enhancing public accountability for achieving outcomes’.⁹⁷ The agreement provides an umbrella for a number of National Agreements, National Partnerships, Project Agreements, and Implementation Plans. Six National Agreements cover the service areas of health care, education, skills and workforce development, disability, affordable housing, and Indigenous reform. National Partnership Agreements are said to define mutually agreed objectives, outcomes and outputs and performance benchmarks or milestones related to the delivery of specific projects, improvements in service delivery or reform. Project Agreements are a species of national partnership used to implement projects considered low-value and/or low risk. Implementation Plans are subsidiary documents to some of the National Partnership Agreements.

The National Commission of Audit (Commission) in its Report in 2014 pointed to the generation of over 300 documents under the intergovernmental agreement process. In addition to the six National Agreements, there were fifty-one National Partnership Agreements and 230 Implementation Plans. The merits of the co-operative arrangements thus described have been debated and in particular criticized by the Commission.⁹⁸ Beyond the federal financial relations framework, COAG,

in 2011, agreed upon five themes of strategic importance said to ‘lie at the intersection of jurisdictional responsibilities’. They were:

1. A long-term strategy for economic and social participation.
2. A national economy driven by our competitive advantages.
3. A more sustainable and liveable Australia.
4. Better health services and a more sustainable health system for all Australians.
5. Closing the gap on indigenous disadvantage.

It is unnecessary to explore matters of recent or current controversy about the operation of COAG. It is sufficient to observe, at least in a formal sense, the practice of co-operative federalism is entrenched in intergovernmental arrangements in Australia.

The history of the regulation of corporations in Australia provides a case study for a succession of different co-operative arrangements endeavouring to effect national consistency.

In 1961, under a Uniform Companies Act Scheme, each State Parliament passed a *Companies Act* which mirrored the terms of the *Companies Act* of every other State. The law in each State had application only within the territorial limits of its jurisdiction. State judicial power over companies was exercised by the courts of the States. There was thus a mosaic of similar laws throughout the country rather than one law covering the whole country. The scheme was simple in concept, but susceptible to the development of differences over time because of pressures brought to bear upon particular State legislatures.

In 1981 the Uniform Companies Act Scheme was replaced by another co-operative scheme based upon the *Companies Act 1981* (ACT) enacted by the Commonwealth Parliament for the Australian Capital Territory in reliance upon section 122 of the Constitution. Each of the States passed a Companies Code which reflected the provisions of the Commonwealth Act. The Scheme was overseen by a Ministerial Council for Companies and Securities and a national regulator, called the ‘National Companies and Securities Commission’, which worked in conjunction with State regulatory authorities.

In 1989 the Commonwealth, acting unilaterally in reliance upon the corporations power, passed the *Corporations Act 1989* (Cth) imposing a national scheme of corporate regulation. It established the Australian Securities Commission (ASC) under that Act. In 1990, the High Court held elements of the Act invalid because the Commonwealth did not have power

to make laws about the incorporation of companies.⁹⁹ Following that decision the Commonwealth Parliament enacted the *Corporations Act 1989* (ACT) and the *Australian Securities Commission Act 1989* (ACT), each being a law for the Australian Capital Territory. The States each passed their own statutes which applied the provisions of the ACT Acts, designated as the Corporations Law and the ASC Law respectively, as laws of the respective States. The States also purported to confer jurisdiction on the Federal Court and the State Supreme Courts with respect to civil matters arriving under their Corporations and ASC Laws. As already noted, in 1999 the High Court struck down so much of the legislation as purported to confer jurisdiction on the Federal Court with respect to matters arising under the State laws.¹⁰⁰ The difficulties caused by this invalidation of the cross-vesting of State jurisdiction to the Federal Court were compounded by Court's decisions, already mentioned, concerning scheme laws which conferred functions under State law upon federal authorities such as the Commonwealth Director of Public Prosecutions and the Australian Securities and Investments Commission.¹⁰¹

The invalidation of the cross-vesting arrangements under the co-operative corporations scheme led, ultimately, to another co-operative solution whereby the States referred to the Commonwealth the power to make laws in terms of the texts of a proposed *Corporations Act 2001* (Cth) and an *Australian Securities and Investments Commission Act 2001* (Cth). These Bills largely reflected the terms of the former Corporations Law and ASIC Law. Each State also referred to the Commonwealth power to make laws with respect to:

The formation of corporations, corporate regulation and the regulation of financial products and services ... to the extent of the making of laws with respect to those matters by making express amendments to the corporations legislation.

The latter reference had effect only to the extent that the matter was not already a subject of Commonwealth power. There was a five-year sunset clause for each reference.

There are many other areas in which co-operative schemes, some involving complex legislation, are in place. They include, but are by no means limited to, national competition policy, energy regulation, road and rail transport, shipping, and water.¹⁰²

It suffices to refer by way of example to energy regulation. In 2004, the Commonwealth, State, and Territory governments entered into the Australian Energy Market Agreement. The Agreement has been amended a number of times, most recently in 2013. The Agreement provides for the establishment of a regulatory body, the Australian Energy Regulation (AER), governed by Part IIIAA of the *CC Act* and the Australian Energy Market Commission (AEMC) established by the *Australian Energy Market Commission Establishment Act 2004* (SA). The Agreement records that different jurisdictions have different roles within the national framework:

- The Commonwealth, New South Wales, Victoria, Queensland, Tasmania, and the Australian Capital Territory undertook to enact implementing legislation to participate in the National Electricity Law, the National Gas Law, and the National Energy Retail Law with the effect of conferring functions and powers in respect of electricity and natural gas on the AEMC and the AER and enabling those bodies to exercise functions and powers within their respective jurisdictions.
- South Australia undertook:
 - to enact the *National Energy Retail (South Australia) Act 2011* (SA) to create the National Energy Retail Law under which the National Energy Retail Regulations and the National Energy Retail Rules operate;
 - to amend the pre-existing *National Electricity (South Australia) Act 1996* (SA), which gave effect to the National Electricity Market in accordance with the Agreement;
 - to enact the *National Gas (South Australia) Act 2008* (SA) to create the National Gas Law under which the National Gas Regulations and the National Gas Rules operate.
- Western Australia undertook only to confer functions on the AEMC in respect of natural gas pipeline access for which purpose it passed the *National Gas Access (WA) Act 2009* (WA) retaining the option to join the various national laws; and
- The Northern Territory undertook to implement the National Gas Law only.

The implementing legislation was enacted by each jurisdiction as a law of that jurisdiction within its territorial limits and made special provision for the application of the National Gas Access (Western Australia) Law. The Commonwealth legislation, the *Australian Energy Market Act 2004* (Cth), applies the national laws in offshore areas of each State and Territory and the Western Australian law in respect of offshore pipelines in that State.

I. CONCLUSION

Co-operative federalism, as practised in Australia, is immanent in the functioning of the federation but has an extra-constitutional dimension. It is designed to serve objectives which go well beyond those achievable by the exercise of Commonwealth legislative power and the separate exercise by the States of their powers. It may well have a tendency to centralize power notwithstanding the intergovernmental agreements and supervisory arrangements involved in its implementation. Every topic which is treated, albeit by consensus, as one requiring co-operative action becomes potentially a topic of which it can be said that it is best dealt with at a national level. Once a topic has been accorded national significance in this way, it becomes difficult for participating governments to withdraw from the arrangements and allow fragmentation to supplant a unified approach. Co-operative arrangements based on intergovernmental agreements and ministerial councils also raise questions about the accountability of the executive governments to their Parliaments and the precise location of responsibility for the administration of the schemes.¹⁰³

Co-operative federalism undoubtedly offers benefits, particularly in the enhancement of economic efficiencies associated with the reduction of unnecessary complexity and associated transactional costs in legislative and administrative regimes. On the other hand, there are attributes of federalism not dependent on co-operative activity from which benefits may be derived. Regional innovation, whether gathered under the rubric of ‘laboratory federalism’ or ‘competitive federalism’ also has benefits for the federation as a whole. Co-operative federalism is necessary and important and perhaps the dominant attribute to which Australians should aspire in the working of their federation. However, it is not the only attribute by which the federation can be enriched and benefits to Australians as a whole enhanced.

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- ¹ *Re Wakim; Ex parte McNally* (1999) 198 CLR 511, 556 [54] (McHugh J).
- ² *ibid* 610 [209] (footnote omitted).
- ³ Geoffrey Sawer, *Modern Federalism* (2nd edn, Pitman 1976) 1.
- ⁴ *ibid* 6, from which the preceding general description is taken.
- ⁵ See Charles Leben, ‘A Federation of Nation States or a Federal State?’ in Christian Joerges, Yves Mény, and J H H Weiler (eds), *What Kind of Constitution for What Kind of Polity? Responses to Joschka Fischer* (European University Institute 2000) 110.
- ⁶ See generally Thomas O Hueglin and Alan Fenna, *Comparative Federalism: A Systematic Inquiry* (2nd edn, University of Toronto Press 2015) 238–46.
- ⁷ *New State Ice Co v Liebmann* 285 US 262, 311 (Brandeis J) (1932).
- ⁸ Ross Cranston, ‘From Co-operative to Coercive Federalism and Back?’ (1979) 10 *Federal Law Review* 121.
- ⁹ (1920) 28 CLR 129 (‘Engineers’ Case’).
- ¹⁰ Constitution, s 51(ii); *South Australia v Commonwealth* (1942) 65 CLR 373 (‘First Uniform Tax Case’); *Victoria v Commonwealth* (1957) 99 CLR 575 (‘Second Uniform Tax Case’); *Fairfax v Federal Commissioner of Taxation* (1965) 114 CLR 1; *Ray Morgan Research Pty Ltd v Federal Commissioner of Taxation* (2011) 244 CLR 97.
- ¹¹ Constitution, s 51(xxix); *R v Burgess; Ex parte Henry* (1936) 55 CLR 608; *Koowarta v Bjelke-Petersen* (1982) 153 CLR 168; *Commonwealth v Tasmania* (1983) 158 CLR 1 (‘Tasmanian Dam Case’); *Richardson v Forestry Commission* (1988) 164 CLR 261; *Victoria v Commonwealth* (1996) 187 CLR 416 (‘Industrial Relations Act Case’).
- ¹² Constitution, s 51(xx); *New South Wales v Commonwealth* (2006) 229 CLR 1 (‘Work Choices Case’).
- ¹³ *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31; *Victoria v Commonwealth* (1971) 122 CLR 353; *R v Coldham; Ex parte Australian Social Welfare Union* (1983) 153 CLR 297; *Queensland Electricity Commission v Commonwealth* (1985) 159 CLR 192; *Re Australian Education Union; Ex parte Victoria* (1995) 184 CLR 188; *Austin v Commonwealth* (2003) 215 CLR 185; *Clarke v Federal Commissioner of Taxation* (2009) 240 CLR 272; *Fortescue Metals Group Ltd v Commonwealth* (2013) 250 CLR 548.
- ¹⁴ Robert Birrell, *Federation: The Secret Story* (Duffie and Snellgrove 2001) 287.
- ¹⁵ Constitution, s 92.
- ¹⁶ Constitution, s 90.
- ¹⁷ Constitution, s 88.
- ¹⁸ As to the application of which see *R v Barger* (1908) 6 CLR 41, 678, 107; *Elliott v Commonwealth* (1936) 54 CLR 657, 668, 683; *Conroy v Carter* (1968) 118 CLR 90; *Permanent Trustee Australia Ltd v Commissioner of State Revenue (Vic)* (2004) 220 CLR 388; *Fortescue* (n 13).
- ¹⁹ Constitution, s 51(iii).
- ²⁰ Constitution, s 117. See *Street v Queensland Bar Association* (1989) 168 CLR 461.
- ²¹ Constitution, s 51(xxiv) and see generally *McGlew v New South Wales Malting Co Ltd* (1918) 25 CLR 416; *Aston v Irvine* (1955) 92 CLR 553; *Ammann v Wegener* (1972) 129 CLR 415; *Dalton v New South Wales Crime Commission* (2006) 227 CLR 490; *Mok v Director of Public Prosecutions (NSW)* (2016) 330 ALR 201; *Service and Execution of Process Act 1992* (Cth) made under this provision.
- ²² Constitution, s 51(xxv). See *Renton v Renton* (1918) 25 CLR 291.

²³ *Breavington v Godleman* (1988) 169 CLR 41; *McKain v RW Miller & Co (SA) Pty Ltd* (1991) 174 CLR 1; *Stevens v Head* (1993) 176 CLR 433; *Kruger v Commonwealth* (1997) 190 CLR 1; *John Pfeiffer Pty Ltd v Rogerson* (2000) 203 CLR 503.

²⁴ *Capital Duplicators Pty Ltd v Australian Capital Territory (No 2)* (1993) 178 CLR 561, 585 (Mason CJ, Brennan, Deane and McHugh JJ) (footnote omitted).

²⁵ By the device of excluding ‘aboriginal natives’ from a count of the people of the Commonwealth or of a State or other part of the Commonwealth: Constitution, s 127.

²⁶ Constitution, s 51(xxvi) (as made).

²⁷ Robert S French, ‘The Race Power: A Constitutional Chimera’ in H P Lee and George Winterton, *Australian Constitutional Landmarks* (CUP 2003) 180–212.

²⁸ 63 & 64 Vict, c 12.

²⁹ *Fortescue* (n 13) 605–06 [119] (Hayne, Bell and Keane JJ) citing *R v Kirby; Ex parte Boilermakers’ Society of Australia* (1956) 94 CLR 254, 267–68 (‘*Boilermakers’ Case*’).

³⁰ *Melbourne Corporation* (n 13) 82–83.

³¹ *Deputy Federal Commissioner of Taxation (NSW) v WR Moran Pty Ltd* (1939) 61 CLR 735, 774 (‘*Moran’s Case*’).

³² (1973) 129 CLR 231.

³³ *ibid* 240.

³⁴ (1983) 158 CLR 535 (‘*Duncan’s Case*’).

³⁵ *ibid* 552 (Gibbs CJ).

³⁶ *ibid* 589.

³⁷ *ibid* 560.

³⁸ (1982) 152 CLR 211.

³⁹ *ibid* 218.

⁴⁰ (1988) 166 CLR 79.

⁴¹ *ibid* 94.

⁴² Report of the National Commission of Audit, *Towards Responsible Government*, Phase One (February 2014) 68.

⁴³ *ibid*, Ch 6.1, Recommendation 7, 70.

⁴⁴ Constitution, s 51(xxxiii).

⁴⁵ Constitution, s 51(xxxiv).

⁴⁶ Constitution, ss 111, 123, and 124.

⁴⁷ Constitution, s 51(xxxvii). See generally *Graham v Paterson* (1950) 81 CLR 1; *R v Public Vehicles Licensing Appeal Tribunal (Tas)*; *Ex parte Australian National Airways Pty Ltd* (1964) 113 CLR 207 and for further discussion Andrew Lynch, ‘After a Referral: The Amendment and Termination of Commonwealth Laws Relying on Section 51(xxxvii)’ (2010) 32 *Sydney Law Review* 363; Anne Twomey and Glenn Withers, ‘Federalist Paper 1: Australia’s Federal Future’, A Report for the Council of the Australian Federation (April 2007) 2; Robert S French, ‘The Referral of State Powers’ (2003) 31 *University of Western Australia Law Review* 19.

⁴⁸ *Mutual Recognition Act 1992* (Cth) as to which see generally *Board of Examiners under the Mines Safety and Inspection Act 1994 (WA) v Lawrence* (2000) 100 FCR 255.

⁴⁹ *Corporations Act 2001* (Cth).

⁵⁰ *Criminal Code Act 1995* (Cth), Pt 5.3, as amended by the *Criminal Code Amendment (Terrorism) Act 2003* (Cth).

⁵¹ *Family Law Act 1975* (Cth), Pt VIIIAB inserted by the *Family Law Amendment (De Facto Financial Matters and Other Measures) Act 2008* (Cth).

⁵² See, eg, *Water Act 2007* (Cth), Pts 1A, 2A, 4, 4A, 10A, 11A.

⁵³ *Personal Property Securities Act 2009* (Cth).

⁵⁴ Anne Twomey, *The Constitution of New South Wales* (Federation Press 2004) 809–15.

⁵⁵ See *Criminal Code Act 1995* (Cth), s 100.8 as inserted by the *Criminal Code Amendment (Terrorism) Act 2003* (Cth) upon a referral by all the States of powers with respect to terrorism. However, the validity of this section was called into question in *Thomas v Mowbray* (2007) 233 CLR 307, 381–84 [211]–[219] (Kirby J), 462 [457] (Hayne J), 509–11 [602]–[608] (Callinan J). For further discussion see Lynch (n 47) 379–80; Australian Energy Market Agreement, 6.5 and 6.6: <<https://www.aer.gov.au/industry-information/energy-industry-regulation>> accessed 24 October 2016.

⁵⁶ The referrals for the *Mutual Recognition Act 1992* (Cth) were fixed. The referrals for the *Corporations Act 2001* (Cth) were for a five-year period. The *Commonwealth Powers Act 1943* (NSW) and its contemporaries in the other States was limited to a period of five years after the end of the war, see s 4.

⁵⁷ *Constitution*, s 51(xxxviii). See Twomey, *The Constitution of New South Wales* (n 54) 815–22.

⁵⁸ (1989) 168 CLR 340.

⁵⁹ *ibid* 376.

⁶⁰ (1999) 199 CLR 462.

⁶¹ *ibid* 491 [62] (Gleeson CJ, Gummow and Hayne JJ) (footnote omitted).

⁶² *ibid*.

⁶³ *New South Wales v Commonwealth (No 1)* (1932) 46 CLR 155. As to the history of the political stand-off that led to the default by New South Wales and ultimately the dismissal of its Premier by the Governor of the State, see Anne Twomey, ‘The Dismissal of the Lang Government’ in George Winterton (ed), *State Constitutional Landmarks* (Federation Press 2006) 129–60.

⁶⁴ (1978) 142 CLR 1.

⁶⁵ *ibid* 29.

⁶⁶ *ibid* 74. See also 88–89 (Mason J), 106 (Aickin J).

⁶⁷ *Victoria v Commonwealth* (1926) 38 CLR 399, 405 (‘*Federal Aid Roads Act Case*’).

⁶⁸ *ibid* 406.

⁶⁹ *Moran’s Case* (n 31) 764 (Latham CJ), 767 (Rich J agreeing), 809 (McTiernan J agreeing). See also at 775 (Starke J).

⁷⁰ *WR Moran Pty Ltd v Deputy Federal Commissioner of Taxation (NSW)* (1940) 63 CLR 338.

⁷¹ *Second Uniform Tax Case* (n 10) 609.

⁷² *ibid*.

⁷³ *ibid* 606.

⁷⁴ (2009) 240 CLR 140, 169–70 [40]–[45] (French CJ, Gummow and Crennan JJ), 206 [174] (Heydon J agreeing).

⁷⁵ (1949) 80 CLR 382.

⁷⁶ Gabriël A Moens and John Trone (eds), *Lumb, Moens and Trone The Constitution of the Commonwealth of Australia Annotated* (8th edn, LexisNexis Australia 2012) 721.

⁷⁷ Jeffrey Parker, *Comparative Federalism and Intergovernmental Agreements Analyzing Australia, Canada, Germany, South Africa, Switzerland and the United States* (Routledge 2015) 2.

⁷⁸ *ibid* 1.

⁷⁹ See generally Cheryl Saunders, 'Intergovernmental Agreements and the Executive Power' (2005) 16 Public Law Review 294.

⁸⁰ Parker (n 77) 47.

⁸¹ *Pape v Federal Commissioner of Taxation* (2009) 238 CLR 1.

⁸² *Williams v Commonwealth* (2012) 248 CLR 156.

⁸³ *Williams v Commonwealth (No 2)* (2014) 252 CLR 416.

⁸⁴ *Momcilovic v The Queen* (2011) 245 CLR 1, 113–14 [251] (Gummow J) and authorities there collected.

⁸⁵ *R v Credit Tribunal; Ex parte General Motors Acceptance Corporation (Australia)* (1977) 137 CLR 545; *Momcilovic* (n 84) 119–21 [266]–[272] (Gummow J).

⁸⁶ *Judiciary Act 1903* (Cth), ss 39, 39A.

⁸⁷ (n 1).

⁸⁸ *Philip Morris Inc v Adam P Brown Male Fashions Pty Ltd* (1981) 148 CLR 457; *Fencott v Muller* (1983) 152 CLR 570; *Stack v Coast Securities (No 9) Pty Ltd* (1983) 154 CLR 261.

⁸⁹ *Re Wakim* (n 1) 540 [2].

⁹⁰ *ibid* 556 [54] (emphasis in original).

⁹¹ *Duncan's Case* (n 34).

⁹² *ibid* 577 [113] referring to ss 51(xxxiii), (xxxiv), (xxxvii), (xxxviii).

⁹³ *ibid*.

⁹⁴ (2000) 202 CLR 535.

⁹⁵ *ibid* 553 [31].

⁹⁶ For example *CC Act*, s 44ZZMA (3) and (4).

⁹⁷ Council of Australian Governments, 'COAG's Reform Agenda' <<http://pandora.nla.gov.au/pan/82622/20140515-0011/www.coag.gov.au/node/21.html> > accessed 3 October 2017.

⁹⁸ Report of the National Commission of Audit (n 42) ch 3.3.

⁹⁹ *New South Wales v Commonwealth* (1990) 169 CLR 482.

¹⁰⁰ *Re Wakim* (n 1).

¹⁰¹ In addition to *R v Hughes* discussed above, see also *Byrnes v The Queen* (1999) 199 CLR 1; *Bond v The Queen* (2000) 201 CLR 213; *McLeod v Australian Securities and Investments Commission* (2002) 191 ALR 543. See also Alex de Costa, 'The Corporations Law and Cooperative Federalism after *R v Hughes*' (2000) 22 Sydney Law Review 451; James McConvill and Darryl Smith, 'Interpretation and Cooperative Federalism; *Bond v The Queen* from a Constitutional Perspective' (2000) 29 Federal Law Review 75.

¹⁰² See generally Robert S French, 'The Incredible Shrinking Federation: Voyage to a Singular State' in Gabrielle Appleby, Nicholas Aroney, and Thomas John (eds), *The Future of Australian Federalism: Comparative and Interdisciplinary Perspectives* (CUP 2012) 39–65.

¹⁰³ See for example Cheryl Saunders, 'Cooperative Arrangements in Comparative Perspective' in Appleby et al (n 102) 414–31, 420–24.

CHAPTER 34

THE PASSAGE TOWARDS ECONOMIC UNION IN AUSTRALIA'S FEDERATION

JUSTIN GLEESON*

A. INTRODUCTION

THE theme of this chapter is one of progress over the last 116 years in the adaption of the Australian Constitution towards the (as yet unfinished) goal of achieving the fullest possible economic union. The vision of the framers of the Constitution was largely one of a negative economic union, in which section 92 would promote the high ideal of free trade and commerce among the States, with the market otherwise generally left to its own devices. A series of economic, legal, and political forces since the Constitution came into force in 1901 have meant that the Constitution, while unchanged in terms, now serves a much richer form of economic union, both negative and positive. Section 92 has been re-focused on its true purpose, after years of distraction, and is now supplemented by a clearer appreciation of the prohibition on preferences under section 99, a broad interpretation given to Commonwealth legislative powers in section 51, and a flexible if somewhat messy use of a variety of techniques for legislative and executive co-operation between the Commonwealth and State governments. Despite this progress, there remain restraining forces, particularly the High Court's desire to preserve elements of a 'federal balance', and a reluctance to date to embrace fully a European notion of a single common market. Over-simplified, Australia's economic union has moved from co-ordinate, through co-operative, federalism towards (although not fully reaching)

integrated federalism, much as Professor Sawyer had observed to occur within successful federations.¹

This chapter is in four sections. [Section B](#) outlines theoretical concepts that underlie ‘economic union’ within a federation and describes the rather limited form of a negative economic union reflected in the express terms of the new Constitution. [Section C](#) considers the key moves to strengthen Australia’s *negative* economic union over the last 116 years. [Section D](#) extends this exercise to the development of a functioning (but as yet incomplete) *positive* economic union. [Section E](#) concludes, and adverts to that which is currently unfolding, namely the increasing enmeshment of Australia’s national economy with global markets, politics and institutions.

B. THE CONCEPT OF ECONOMIC UNION AND THE POSITION AT FEDERATION

Professor Sawyer, in his famous work published in 1969, identified six general principles of federalism first embodied in the United States Constitution, which he saw as reflected in every federal system thereafter. He went on to identify eleven more specific features of the United States model, which he saw as largely replicated in federal systems thereafter. One of these further features is that while the United States model affords the ‘Centre’ and the ‘Regions’ concurrent powers to raise any form of tax, the Regions are prohibited from levying import or export duties and no government can levy duties on exports from Region to Region. These restrictions are directed to ensuring an internal ‘common market’ and preventing Centre discrimination.²

It is convenient here, when speaking of a ‘common market’ or ‘economic union’ within a federal framework, to identify some of the available conceptual frameworks. One framework views the idea of economic union through four prisms: mobility, equality, economic management, and supra-national organization. Comparisons can be made between federations as to how far each meets these expectations, while at the same time preserving distinctively local elements. Another framework, which will be adopted in this chapter, is to divide the mechanisms by which economic union can be achieved within a federation into the negative and the positive: negative integration concerns prohibitive measures that may impede economic

union, whereas positive integration involves affirmative measures to harmonize divergent laws or practices or provide for mutual recognition of different standards.³

Whichever framework is adopted, it is necessary to keep squarely in mind the *purpose* or *goal* of economic union within the particular federation. Who is the ‘common market’ intended to benefit? Is it the individual, federating *States* who stand to benefit from the economic union? Is the goal the *aggregate* economic growth of the entire political community? Is it the rights of *individual traders* that are at stake?

The United States Constitution was the primary, but not exclusive, model of a federal economic union available to the Australian framers. Consistent with Sawyer’s analysis, the framers noted a congressional power to levy duties, imposts, and excises (provided they were uniform); a prohibition on tax or duty being laid on articles exported from any State; a prohibition on preference being given by any regulation of commerce or revenue to the ports of one State over those of another; and a prohibition on any State, without the consent of Congress, laying any imposts or duties on imports or exports.⁴

Equally central to the United States experience was that Congress was given an express power to regulate ‘Commerce ... among the several States’. This power was construed from as early as 1824 as exclusive: its express grant prevented the States from entering the field of regulating interstate trade, whether Congress had passed a law on the subject or not.⁵ Herein lay the origins of the ‘dormant commerce clause’ which, in the Australian context, would later find modified form in the express guarantee of free trade and commerce among the States in section 92. The dormant commerce clause requires the balancing of the effects of a law hindering national trade against the importance of the particular State interest promoted by it, rather than simply a narrow inquiry into cross-border protection.⁶

One early strand in the United States dormant commerce clause jurisprudence should be noted for its significance to later developments in Australia. The importance of allowing the free operation of trade across State lines was such that, where the subject matter of regulation was *capable* of treatment in a uniform manner, it must occur *only* at a single, federal level. Thus, in 1886, the United States Supreme Court in *Wabash*

held that railway carriage operating across State lines could not be made subject to differential rate regulation by different States. The Court struck down the local statute in light of the dormant commerce clause, without needing to find that it ‘protected’ local operators and even though local trade was burdened in the same way as interstate trade.⁷

Coming to Australia, one of the key drivers in the move to federation was a shared desire to create a ‘common market’, and to assure freedom of intercolonial trade. The proponents of federation spoke grandiloquently. Parkes told the audience in Albury: ‘With Federation, all trace of Customs officers along our borders would be swept away’.⁸ Garran declaimed that ‘[e]xclusive federal control of the customs is necessary for the basis of commercial union without which federation would be a mockery’.⁹

The opening resolutions of the Conventions of 1891 and 1897–98 called for ‘absolutely free’ trade and intercourse between the colonies. The difficult conditions of the 1890s depression strengthened the case for federation and its perceived corollary of intercolonial free trade: it was hoped that this would end the internecine tariff warfare between the colonies, revitalize trade and commerce, and permit unfettered development of natural resources. Both the free traders of New South Wales and the protectionists of Victoria united in this measure even if they differed in the level at which the new uniform tariffs should be set.

As the High Court noted *Cole v Whitfield*,¹⁰ the principal goals of the movement toward the federation of the Australian colonies were the elimination of intercolonial border duties and discriminatory burdens and preferences in intercolonial trade and the achievement of intercolonial free trade.¹¹ Concerns about the defence of the Australian colonies did not play nearly as central a role here as they did in the United States (or later with the European Community).

Accordingly, the Australian Constitution contains a modified United States commerce clause in section 51(i) and the power of taxation in section 51(ii) is qualified by a requirement that taxation not discriminate between States or parts of States. The remainder of the key provisions fall under Chapter IV titled ‘Finance & Trade’, including: an express, and exclusive, grant of power to the Commonwealth to substitute a uniform Commonwealth scheme for State customs and excise duties (sections 86–90), with State bounties exempted (section 91); an express guarantee that

interstate trade, commerce, and intercourse shall be absolutely free, after that uniform Commonwealth scheme was effected (section 92); an express grant of power to the Commonwealth to regulate navigation, shipping, and State railways (section 98) and to forbid discriminatory or preferential railway tariffs (section 102); an express prohibition preventing the Commonwealth from preferring one State over another through the passing of any law or regulation of trade, commerce, or revenue (section 99); an express prohibition preventing the Commonwealth from abridging certain riparian rights held by the States and their residents (section 100); and the establishment of (the now defunct) Inter-state Commission to adjudicate trade disputes (section 103).

Some observations should now be made on the form of economic union established by the Australian Constitution. First, as in the United States, the framers contemplated a largely *negative* form of integration: barriers to the free movement of persons and goods throughout the area of the intended new common market were prohibited, rather than a more positive form of economic union being adopted, whereby one or more of the new federation's polities would be positively charged with the task of bringing about the fullest possible economic union.

Secondly, the division of legislative and executive powers between the polities, as understood by the framers, did not invite a strong, centralized positive or harmonized economic union. As to legislative powers, Chapter I of the Australian Constitution followed the model of the United States Constitution and the *British North America Act* in Canada, in listing exhaustively the legislative powers of the new Commonwealth Parliament. Almost all were conferred on a non-exclusive basis. The States separately retained all their legislative powers except for those exclusively vested in the Commonwealth (although if there was inconsistency, the Commonwealth law would prevail).

The list of powers allocated to the Commonwealth Parliament in section 51 was based largely around a core list which Sawyer had identified from the United States experience as necessary for the central government in a federation: taxation; foreign and interstate commerce; defence; naturalization; bankruptcy, coinage, standards of weights and measures; posts; patents and copyrights; centre territories and property. It was supplemented by a few additions largely suggested by United States experience or doubts: banking and insurance, together with a novel power

over conciliation and arbitration of interstate industrial disputes. The trade and commerce power was extended expressly by section 98 to laws with respect to navigation and shipping and to railways the property of any State. An intriguing power over foreign corporations, and trading and financial corporations formed within the limits of the Commonwealth, was added, particularly with the experience of the financial crash of the 1890s in mind, but was hardly expected to become a centrepiece of Commonwealth legislative power.

Overall, the Commonwealth legislative powers that might be employed to bring about a positive economic union were limited. No power was given to the Parliament over intrastate trade, agriculture, or manufacturing production, the principal utilities (water, power, land transport), internal order or police, the criminal law (or indeed, commercial and civil law). Overall, the framers assumed that the States would largely preserve their autonomy to regulate separately dealings within their geographic boundaries.

Further, the initial view taken by the High Court was that where a power was not given to the new Parliament, it was ‘reserved’ to the States, and the express heads of Commonwealth power should not be construed as extending into reserved areas absent unequivocal language. Thus the *interstate* trade and commerce power in section 51(i) conveyed an implication that *intrastate* trade and commerce was the exclusive preserve of the States, and the other heads of Commonwealth power would not be construed to allow legislation affecting domestic trade and commerce.¹²

Thirdly, while a taxation power was given to the Commonwealth (section 51(ii)), it was not expected that its use would be significant, and there were provisions contemplating surplus revenue would be returned to the States (sections 87 and 94). The power to grant financial resistance to the States on conditions (section 96) was contemplated as reserved for the exceptional case. Overall, no strong power of central economic management of the economy was envisaged.

Why did the framers take this restrictive view of economic union? At one level, the various colonies wished to retain their governance structures and powers. As Sawyer noted, ‘[f]ifty years of responsible self-government, from six metropolitan centres, which formed the natural foci of economic development around the habitable perimeter of an arid continent, had

created sufficient local particularism to make federalism the strongest degree of unity which the people desired'.¹³

At another level, as Professor Saunders has pointed out, the framers could not anticipate the full range of economic advantages that might be obtained through federation. While agreement was reached on a subset of issues—such as the need to eliminate State border tariffs and to establish a common tariff against the outside world—larger issues, such as ways to maximize vibrant and efficient economies at both State and federal level, were left unresolved.¹⁴

In addition, federation came about under the reign of freedom of contract¹⁵ and before the era of the modern statute. Trade and commerce were matters left largely to the agreement of the parties, supplemented by limited protection of the common law. The State's role was to provide the supportive institutions of law and administration that would allow trade and commerce to flourish under their own guises. Within the federation, each State would retain its separate courts to deal with disputes arising from trade and commerce; its facilities of administration to incorporate companies, register land dealings and the like; and its laws to regulate industrial conditions, health, sanitation, and public mischiefs. It was not the core business of the States to engage in direct regulation of trade and commerce, and the role of state protection of the 'consumer' was still far in the future. Little wonder then that there was no perception that such direct, intrusive regulation of trade and commerce should be placed among the powers of the new national government.

In summary, to return to Sawyer's paradigm, the framers created a new Constitution employing primarily a model of co-ordinate federalism, with prohibitions such as section 92 designed to promote a negative economic union, and with little conception that much power would need to be exercised at the 'Centre' to foster a positive economic union. The States would be left as the primary polities to regulate trade and commerce, if and when it proved necessary.

C. NEGATIVE ECONOMIC UNION AS IT HAS DEVELOPED IN AUSTRALIA SINCE FEDERATION

This section will first identify some of the changing economic forces facing Australia since federation, before considering two key constitutional developments that have steered the nation towards a closer form of a *negative* economic union: the re-orientation of section 92 towards its intended purpose and increased reliance on section 99 (and its cousin in section 51(ii)).

1. Changing Economic Forces

Three economic forces require particular mention. *First*, the First and Second World Wars hastened the idea that closer economic union was essential to the nation's survival. The economy was mobilized on an unprecedented scale. The Commonwealth used the defence power in section 51(vi) to regulate the transport of men and materials. Regulations made under the *National Security Act 1939* (Cth) were upheld by the High Court that would have been difficult to sustain during peacetime.¹⁶ Williams J captured this powerful force when in 1943 his Honour invoked 'the impact of total war upon the national economy' as a call to judicial arms.¹⁷

Secondly, peacetime carried the emerging notion of a national economy into a new headspace: the idea that it was the duty of the national government to ensure a safety net for individuals through national insurance and social security schemes, and beyond that to promote national economic and social prosperity that all citizens could enjoy. Buoyed by Keynesian ideals, the Chifley government effected a widespread legislative and executive programme of 'pump-priming', public enterprise, and nationalization. The Commonwealth established a public aluminium ingot industry jointly with the Tasmanian government, a public whaling industry, a public monopoly on atomic energy raw materials, television under the Broadcasting Control Board, joint Commonwealth-State governmental supervision of the coal industry in New South Wales and the Snowy River Hydro-Electric Scheme. It facilitated the compulsory purchase of private overseas telecommunications services, re-established a Commonwealth Shipping Line, and sought (unsuccessfully) to nationalize the airlines and private banks.¹⁸

Thirdly, there was a commercial force, which was global, pervasive, and continuing beyond any one single event. The post-war years witnessed a surge in demand for Australian goods and services. State markets increasingly became national markets in meeting that increased demand. The Commonwealth responded by implementing a national competition policy in 1995. The recent advent of the Internet has created the ‘new economy’, as it was described by Judge Posner,¹⁹ rendering geographic borders less relevant than in 1901. Services and communications are now available instantly and anywhere in the federation.

2. Negative Economic Union and Section 92

Against that background, we may start with section 92. No provision has been productive of greater judicial anxiety than section 92.²⁰ If one freezes the frame immediately after the Second World War, one can see in the *Bank Nationalisation Case*²¹ that section 92 was caught between theories. The Court held by majority that sub-sections 46(4)–(8) of the *Banking Act 1947* (Cth) infringed section 92. Rich and Williams JJ adhered to an individual rights view of section 92.²² Starke J preferred a broader search for an impermissible burden in the impugned law’s object, character, and effect as a whole.²³ Latham CJ said that the provision gave the individual trader no separate cause of action.²⁴ McTiernan J agreed.²⁵ On the individual rights question, Dixon J took a similar position to the Chief Justice, doubting whether the purpose of section 92 was to protect the individual trader.²⁶ His Honour developed his still nascent ‘criterion of operation’ theory. The impugned provisions were obnoxious because they closed up ‘every bank but a government bank’ and transferred ‘the whole trade’ in a commodity to the government.²⁷ For Latham CJ and McTiernan J, the law was valid, because an expropriation of property did not necessarily entail a breach of section 92.²⁸

The ratio of the Court was hardly clear but it seems that section 92 protected interstate traders against the wholesale transferral of their businesses to Commonwealth or State governments, especially where that burden was direct and immediate, as distinct from an indirect, inconsequential, or remote burden. Only laws falling within a narrow area of reasonable restrictions that were so indirect or consequential would be

exempted. Section 92 was concerned with ensuring that Commonwealth and State governments did not impose blanket, compulsory, or forbidding burdens on individuals engaged in interstate trade;²⁹ as such it was hardly a force for promoting economic union in Australia.

The ‘criterion of operation’ theory of section 92 assumed some ascendancy after the *Bank Nationalisation Case*, but without complete success. By 1988, the High Court was prepared in *Cole v Whitfield* to thoroughly re-examine the conflicting precedents. It concluded that s 92 was not about protecting the individual trader; nor did it call for the ‘highly artificial’ criterion of operation doctrine. *Cole v Whitfield* rejected that view inherent in the *Bank Nationalisation Case* that any measure which directly and immediately imposed a burden on interstate trade was prohibited unless it could fall within a narrow exception of reasonable restrictions.

Rather, section 92 was about guaranteeing that interstate trade or commerce was free of discriminatory burdens of a protectionist kind. *Cole v Whitfield* reoriented section 92 towards its ostensible true purpose at federation: namely, as one of a group of provisions, including sections 99 and 102, that were apt to ensure that the federation would be a ‘free trade’ area, in which legislative or executive discrimination against interstate trade and commerce would be prohibited.³⁰

Cole v Whitfield, by clarifying the focus of section 92, ultimately strengthened its role in advancing a negative economic union in Australia. Yet, as the High Court came to note in 2008 in *Betfair (No 1)*, section 92 can never be isolated from developments simultaneously occurring in the Australian legal and economic milieu.³¹ The High Court’s decision in 1997 in *Ha*³² provided a more expansive concept for duties of excise within section 90, in the course of recognizing that sections 90 and 92 are intended to play a complementary role in the creation and fostering of national markets and ‘economic unity’. The approach in *Betfair (No 1)* was to retain the test of *Cole v Whitfield*, but to apply it in a more sophisticated economic fashion. ‘Protectionism’ as discussed in *Cole v Whitfield* is now to be seen as the preclusion of *competition*, and competition is an activity that occurs in *markets* for goods or services. Section 92 prohibits the erection of barriers to economic union; a union which now must be understood as including national markets, along with the remnants of more traditional markets delineated by State geographical boundaries.

One of the challenges posed by the increased competition and markets focus of a section 92 *Cole v Whitfield* enquiry post *Betfair (No 1)* is an *evidentiary* one. How does a party challenging a measure prove that there is a relevant and sufficient burden on interstate trade occurring in a relevant market? How does a party defending a measure prove that any discriminatory burden imposed by a measure can be justified as reasonably necessary or proportionate to a proper objective? Is expert evidence required? Does the inquiry shade into an anti-trust type competition analysis? Those issues were partly explored in *Betfair (No 2)* where Betfair was able to establish that a measure neutral on its face was more burdensome to it than to intrastate traders, at the level of its profit margin, essentially because of its choice of a particular business model.³³ The High Court was not persuaded that this difference should be characterized as discrimination or protectionism, in circumstances where Betfair had not established by evidence (lay or expert) that the likely practical effect of the measure would be an impediment to Betfair as the interstate trader increasing market share or profits.³⁴

A further issue left unresolved by *Betfair (No 2)* is whether the 'protectionism' aspect of section 92 is now superfluous, particularly where the impugned measure impacts on a national market that operates irrespective of State lines. It was noted earlier³⁵ that the dormant commerce clause jurisprudence in the United States reaches beyond cases of pure protectionism. Similarly, in the European Union jurisprudence under the *Dassonville* test, the focus is on whether the impugned measure has a sufficient anti-competitive effect within the common market as a whole, without a need to show that traders of one State have been favoured over traders of another.³⁶

Keifel J has written in favour extra-judicially of the European approach.³⁷ In *Betfair (No 2)* she argued for it, while acknowledging that it was unnecessary to decide the point in that case. The plurality expressed no view on the point.³⁸

Professor Puig has also disputed the view expressed in *Cole v Whitfield* that the framers intended section 92 would eradicate protectionism among the States. The drafting history of the section shows otherwise, he argues; discrimination of any kind, protectionist or not, was the target of the

framers, who intended to create a national or common market for local commodities.³⁹

As yet, this step has not been taken in Australia. Whatever its intrinsic appeal, it would need to be reconciled with the text of section 92, which after all focuses on trade or commerce *among the States*, and with the further evidentiary implications of introducing something approximating a fully blown anti-trust analysis into a Constitutional question.⁴⁰

3. Negative Economic Union and Sections 51(ii) and 99

The course of the twentieth and early twenty-first centuries has seen two further provisions of the Constitution assume increasing importance in the establishment of a negative economic union. This is so both in High Court cases and in the very serious attention given to them in the design of Commonwealth legislative and administrative measures. Section 51(ii) gives the Commonwealth power to make laws with respect to ‘taxation’, subject to the proviso that such laws must not ‘discriminate between States or parts of States’. Section 99 goes further and provides that ‘the Commonwealth shall not, by any law or regulation of trade, commerce, or revenue, give preference to one State or any part thereof over another State or any part thereof’.

These provisions can be explained, using Sawyer’s terminology, as guarantees against Centre discrimination in its dealings with Regions.⁴¹ In *Fortescue*⁴² French CJ stated that these provisions were intended as formal protections of economic ‘equality’ between the States and their people, as well as the economic union between the Commonwealth and States more generally.

Four aspects should then be noted. *First*, there is the question of the types of laws or measures that fall for scrutiny under these provisions. It is relatively easy to identify what is a law for taxation, thus attracting the proviso in section 51(ii). Section 99 has a broader reach. A law or regulation of revenue includes a law with respect to taxation⁴³ but may also include any revenue charges imposed by the Commonwealth for use of a service, such as fees for postal or telecommunications services or railway rates.⁴⁴

How broad is the reach of a law or regulation of ‘trade or commerce’ within section 99? It includes laws made under the trade and commerce

power in section 51(i). On the other hand, it would not extend to a law that could only be made under a head of power other than section 51(i), such as law which could only be supported by the defence power.⁴⁵ It remains open, however, whether section 99 might also apply to laws that can be characterized as laws of ‘trade and commerce’ but are made in reliance on a head of power other than section 51(i).⁴⁶ Such laws might include laws made under the corporations power in section 51(xx) or laws made under the external affairs power in section 51(xxix). If section 99 does apply to such laws, then it has considerable force in strengthening a negative economic union. It would mean, for example, that when the Commonwealth designs a measure to advance an aspect of trade and commerce, but in reliance on heads of power other than section 51(i), it must guard against preference. This may limit the ability to favour projects that are particularly needed in one part of Australia more than others, or to trial schemes in one part of Australia ahead of others. At the very least, a preference analysis would be called for in such cases.

Secondly, there is some overlap between the meanings of the words ‘discriminate’ in section 51(ii) and ‘preference’ in section 99. It has long been accepted that there can be no preference without discrimination.⁴⁷ A law will discriminate for the purposes of section 51(ii) or section 99 if the discrimination is based on geography or locality.⁴⁸ For example, in *Cameron*, the High Court invalidated Commonwealth regulations that required the Commissioner of Taxation to assign different prescribed values on livestock of the same kind in different States when calculating the profits made on the sale of livestock.⁴⁹

Importantly, however, a tax law will not discriminate ‘if its operation is general throughout the Commonwealth even though, by reason of circumstances existing in on or more of the States, it may not operate uniformly’.⁵⁰ Accordingly, the High Court has rejected challenges to a law that adopted State taxes (as Commonwealth laws) on all Commonwealth places in a State,⁵¹ and to a law that made allowance for royalties paid under State laws in fixing a miner’s tax liability,⁵² even though the taxes and royalties differed from State to State. This approach reflects the federal balance within Australia’s economic union: the Centre cannot discriminate against the Regions, but in determining what is discrimination the Regions can continue to regulate and respond to local economic conditions in

diverse manners and the Centre has latitude in responding to Regional variations.

Discrimination involves ‘the unequal treatment of equals or the equal treatment of those who are not equals, where the differential treatment and unequal outcome is not the product of a distinction which is appropriate and adapted to the attainment of a proper objective’.⁵³ Such a test may permit the Commonwealth to defend a measure against attack under section 51(ii) or section 99 on the ground that, while it may treat States or parts of States differently, there is no discrimination if that difference can be properly justified by the pursuit of some other legitimate objective. However, it should be noted that in *Fortescue Hayne, Bell and Keane JJ* suggested, without deciding, that the concept of discrimination previously endorsed by the High Court under section 99 may not apply to section 51(ii). Their Honours said that the limitation in section 51(ii) ‘may be read as assuming that there are no differences between States (or parts of States) which would warrant a law with respect to taxation distinguishing between them’.⁵⁴ The remaining Justices did not decide this point.

Thirdly, not every discrimination between the States or parts thereof will amount to a ‘preference’ for the purposes of section 99.⁵⁵ In relation to laws of trade and commerce a ‘preference’ must produce ‘some tangible advantage obtainable in the course of trading or commercial operations’ or ‘some material or sensible benefit of a commercial or trading character’.⁵⁶ In *Crowe*,⁵⁷ for example, the High Court rejected a section 99 challenge to a statutory allocation of board members of the Dried Fruits Control Board, which meant that some States had more members than others, because it could not be said that the measure gave preference of a *commercial* kind to any State or part of a State.

Fourthly, it would seem inconsistent with the language of section 96—which provides that ‘the Parliament may grant financial assistance to *any* State on such terms and conditions *as the Parliament thinks fit*’—to hold that section 99 requires the Commonwealth to give the same grant of financial assistance to *all* States. As a consequence, it would seem possible for the Commonwealth to rely upon section 96, for example, to provide financial assistance to one State on the condition that the State passes that assistance onto persons in a particular industry within that State so as to confer an advantage over competitors in other States. To adopt Sawyer’s

paradigm, this suggests that section 99 is an incomplete protection against the Centre discriminating against Regions and acting in ways that might impede the development of an economic union.

D. POSITIVE ECONOMIC UNION AS IT HAS DEVELOPED IN AUSTRALIA SINCE FEDERATION

This section will consider two key developments towards a *positive* economic union: a broadening in the interpretation of the heads of legislative power; and the deployment of a variety of co-operative schemes.

1. A More Liberal Interpretation of the Heads of Commonwealth Legislative Power

The High Court's interpretation of the scope of the enumerated powers in section 51 of the Constitution has broadened significantly since federation. The Commonwealth Parliament now can (and regularly does) rely upon those powers to make a wide suite of laws to achieve positive economic integration. Apart from the external affairs power,⁵⁸ the clearest example of this trend is section 51(xx), which gives the Commonwealth Parliament power to make laws with respect to 'foreign corporations, and trading or financial corporations formed within the limits of the Commonwealth'.

The history of section 51(xx) commences with *Huddart Parker*,⁵⁹ in which a majority of the High Court construed the corporations power narrowly in light of the reserved state powers doctrine. A law regulating a trading corporation in its domestic trade fell outside section 51(xx). Despite the High Court's rejection of the reserved state powers doctrine in 1920,⁶⁰ it was not until 1971 in *Strickland* that the High Court had the opportunity to declare that the reasoning in *Huddart Parker* 'was in error'.⁶¹

Following *Strickland* and up until the decision in 2006 in *Work Choices*,⁶² there was a division of judicial opinion as to the scope of section 51(xx). The narrow view was that section 51(xx) only supported laws directed at the *trading* activities of trading corporations or the *financial* activities of financial corporations, and the fact that the corporation was *foreign* 'should be significant in the way in which the law relates to it'.⁶³ This view was based upon a concern to reconcile 'the apparent width of s

51(xx) and the maintenance of the federal balance which the Constitution requires'.⁶⁴

Proponents of a broader view of section 51(xx) argued that the corporations power was 'plenary'⁶⁵ and that 'at the very least, a law which is expressed to operate on or by reference to the business functions, activities, or relationships of constitutional corporations is a law with respect to those corporations'.⁶⁶ The broader view was ultimately endorsed in *Work Choices*.⁶⁷ There the High Court held that section 51(xx) supported legislation that regulated the employment relations of trading, financial, and foreign corporations and their employees.

Section 51(xx) has become an important lever to foster positive integration unforseen by the framers, both by reason of the increasingly broad interpretation given to it and the significant, indeed ubiquitous, place that corporations have now assumed in the economic life of Australia. For example, the Commonwealth has been able to develop a national system of workplace relations that applies to up to 85 per cent of Australian employees so as to 'promote the economic prosperity and welfare of the people of Australia'.⁶⁸

The capacity of the Commonwealth to use the corporations power to facilitate positive integration has some limits. *First*, the corporations power refers only to 'foreign corporations, and trading or financial corporations formed within the limits of the Commonwealth'. While the test for whether a corporation meets this description is relatively well settled,⁶⁹ the application of that test to a particular corporation can turn on matters of fact and degree, which means that it may not always be clear in advance whether a given law applies to a particular corporation. A *second* limit, recently established, is that the corporations power will not support a law which merely gives the Commonwealth the authority to enter a funding agreement with a corporation or make a payment with a corporation.⁷⁰ In addition there are constitutional limitations sourced from other constitutional provisions that limit the ability of section 51(xx) to be used to achieve positive integration. For example, the Commonwealth cannot legislate to regulate all aspects of the employment relationships of State-owned corporations, even if they meet the description of corporations in section 51(xx), without contravening the *Melbourne Corporation* principle.⁷¹

The High Court's broad approach to section 51(xx) can be contrasted with the relatively strict approach it has traditionally taken to aspects of the trade and commerce power in section 51(i) of the Constitution. Section 51(i) affords the Commonwealth Parliament a power to make laws with respect to '[t]rade and commerce with other countries, and among the States'. At first blush, this power might appear to offer the Commonwealth an important tool to facilitate a positive economic union. However, the High Court's interpretation of the provision has meant that the potential of section 51(i) to facilitate a positive economic union has gone largely unrealized to date. The High Court has sharply distinguished between interstate and international trade and commerce, which the Commonwealth can rely upon section 51(i) to regulate, and intrastate trade and commerce, which the Commonwealth cannot rely upon section 51(i) to regulate.⁷² This distinction must be preserved 'however out of touch with practical conceptions or with modern conditions [it] may appear to be',⁷³ save where the interrelationship is so close that regulation of the latter is essential for effective regulation of the former.⁷⁴ A majority of the High Court refused to extend this reasoning by reference to economic considerations.⁷⁵

The High Court's strict approach can be contrasted to the approach of the United States Supreme Court to article I, section 8, clause 3 of the United States Constitution (on which section 51(i) was based) which authorizes the Congress 'to regulate commerce with foreign nations and among the several States'. For much of the twentieth century, the United States Supreme Court held that Congress could regulate local activity, even though it may not be regarded as commerce, 'if it exerts a substantial effect on interstate commerce' irrespective of whether such effect might be described as 'direct' or 'indirect'.⁷⁶ The High Court dismissed the United States Supreme Court's approach because of its potential negatively to affect Australia's federal system.⁷⁷

The High Court has not had an opportunity to reconsider the fundamentals of section 51(i) in the last four decades. Should such a case arise, there may be factors pulling in different directions. On the one hand, the very language of section 51(i) ('trade and commerce ... , among the States') mirrors that of the prohibition in section 92. If the integrated national economy must now be the focus of section 92,⁷⁸ why not equally so for section 51(i)? Wherever there is a national market, should section

51(i) allow the Commonwealth Parliament to regulate all activity within it, even activity which might viewed on its own have an intrastate focus? Against this, however, the concern for preserving a federal balance in the recent *Williams* cases⁷⁹ may point in the opposite direction. Interestingly, the United States Supreme Court, driven in part by concerns of federalism, has been narrowing the scope of Congress' power with respect to intrastate commerce over the last two decades.⁸⁰

2. A Positive Economic Union by Co-operation Between the Commonwealth and States

Australia's constitutional history has shown increasing deployment of various kinds of legislative and executive co-operation between the States, or between the Commonwealth and the States, so as to promote a positive economic union in areas where no single polity can act alone.

A common pre- and post-federation mechanism was for one colony or State to adopt a precedent statute, often based on a British model, and for other colonies and States to enact a statute in like terms.⁸¹ Next, conferences between the Commonwealth and the States in 1937 and 1938 produced the first truly uniform scheme for the regulation of air navigation,⁸² which was effected by a referral of legislative power over that subject matter by the States to the Commonwealth under section 51(xxxvii). The post-war period saw the States agree to two particularly important schemes for regulation of the national economy: uniform hire purchase law in 1959⁸³ and uniform company law in 1961.⁸⁴

More recent times have seen efforts at Commonwealth–State co-operation of three types. The *first* main technique, which is the hardest to achieve politically, has been for the States to refer legislative power to the Commonwealth under section 51(xxxix), thus supporting a single Commonwealth law that can regulate an area of activity for the entire nation. Some referrals take the form of referral of power over a defined subject matter. More commonly, there is what is called a 'text-based referral': that is a referral of power to legislate defined by reference to a text agreed in advance with the referring States, with the 'initial reference' usually supplemented by an 'amending reference' which permits Commonwealth responsiveness to the law's necessary development.⁸⁵

There are unresolved difficulties in how an amending reference works and whether and how an amending reference may be revoked.⁸⁶ Referrals of power have allowed the Commonwealth to legislate uniformly in areas affecting the economic union such as the Corporations Law, private-sector worker conditions,⁸⁷ and the mutual recognition of qualifications and regulatory standards;⁸⁸ the latter having been particularly effective in pursuing a closer economic union and increased trade between the Commonwealth, States, and Territories.⁸⁹ The first such mutual recognition agreement (MRA) was negotiated on 11 May 1992, with each State and Territory either referring their powers to enact mutual recognition legislation to the Commonwealth⁹⁰ or adopting the Commonwealth law after its enactment.⁹¹ With a view to promoting freedom of movement of goods and services in an Australian national market, that MRA permits⁹² the sale of goods in a State or Territory if those goods can be sold lawfully in another State or Territory; and the carrying on of any occupation in a State or Territory by a person who is registered in connection with an equivalent occupation in another State or Territory.⁹³ The capacity of individuals to rely on the *Mutual Recognition Act 1992* (Cth) to invalidate inconsistent State or Territory legislation gives further impetus to a closer economic union.⁹⁴

The Commonwealth has negotiated two major MRAs since 1992. The Trans-Tasman Mutual Recognition Arrangement was agreed in 1996 and came into force on 1 May 1998 under the *Trans-Tasman Mutual Recognition Act 1997* (Cth). The arrangement effectively extended the MRA, with exceptions,⁹⁵ to New Zealand. A European Community–Australia Mutual Recognition Agreement was also agreed in 1998 and came into force on 1 January 1999; although that MRA has the status of a binding treaty between the governments of Australia and the European Community.

The *second* main technique for co-operation involves legislative schemes whereby a primary or model law is passed by the Commonwealth or one State, and then the other polities pass legislation which *applies* that legislation as part of their own law or which in terms *mirrors* the legislation of the leading polity. Usually an intergovernmental agreement will precede and underpin such a scheme, enabling the lead jurisdiction to develop and enact a model bill in consultation with other governments. Applied law

schemes are more likely to result in initial and ongoing uniformity, particularly if amendments to the lead jurisdiction's law are applied automatically in the other jurisdictions.⁹⁶ Mirror legislation schemes are more complex because they require the Parliament of each participating State government to pass amendments.⁹⁷

The Constitution is not adverse to these forms of co-operative federalism to achieve a positive economic union.⁹⁸ However, co-operative schemes must respect not only section 92 but also the implications drawn from the balance of the Constitution. In *Re Wakim*,⁹⁹ six members of the Court held that a scheme which vested jurisdiction of matters in which State Supreme Courts had jurisdiction in the Federal Court offended Chapter III. Subsequently in *Hughes*¹⁰⁰ the High Court held that the Commonwealth's power to consent to a conferral of State executive power upon a federal agency was ineffective in the absence of a clear source of Commonwealth constitutional power. The particular difficulties that these rulings caused for a national scheme for corporate regulation impelled the States to agree to the more radical step of referring their power to the Commonwealth to enable it to re-enact and subsequently amend the relevant Corporations legislation, albeit with provisions allowing the States to 'roll-back' their referrals in specific cases.¹⁰¹ This history demonstrates that co-operative schemes designed to promote a positive economic union are possible under the Constitution, but markers designed to preserve the 'federal balance' mean that they are often difficult and cumbersome to negotiate to fruition.

The *third* main technique for co-operation of is section 96 grants. The Commonwealth and States can reach intergovernmental agreements on how a particular sector of the economy should be funded and operated and implement such agreements through grants to the States on agreed conditions. The funding and regulation of the tertiary education sector operates on this basis.

Overall, a patchwork quilt of co-operation between the Commonwealth and the States has developed. The technique employed will depend on the circumstances of the case, the outcome of bargaining between the Commonwealth and the States, and the weight given to federal values, such as the 'Federal balance'. In some cases, this may led to partial but not complete uniformity within the Australian economy.

E. CONCLUSION: ECONOMIC UNION IS SHAPED INCREASINGLY BY FORCES OUTSIDE THE NATION

As this chapter has shown, while the framers of Australia's Constitution envisaged primarily a negative economic union, Australia's economic union now includes, in addition, significant positive elements. That trend towards a more positive economic union is likely to continue for two interrelated reasons.

The *first* is that the High Court has read the Commonwealth Parliament's power to legislate with respect to 'external affairs' in section 51(xxix) in an expansive way. The power supports laws that implement international agreements to which Australia is a party.¹⁰² This has allowed the Commonwealth Parliament to enact national laws in areas, such as the environment and industrial relations, in which it otherwise might not have had the power to legislate. Such laws have undoubtedly facilitated the creation of an economic union.

The *second* reason is that there has been a proliferation in the number and scope of international organizations, treaties, and the development of other sources of hard and soft international law. Trade is increasingly becoming indifferent to borders between Australia and the rest of the world. Since the late 1980s, Australia has entered a number of Bilateral Investment Treaties with countries such as China, Hong Kong, India, and Mexico concerning the promotion and protection of private investment by nationals and companies of the other country in Australia (and conversely by Australian nationals and companies in the other country). In more recent years, Australia has entered a number of Free Trade Agreements (FTAs) with countries including China, Korea, Malaysia, Singapore, and the United States to reduce trade barriers between the countries and signed the Trans Pacific Partnership Agreement.¹⁰³

Thus the kind of trade barriers that the framers of Australia's Constitution tried to break down between the States are being increasingly broken down at the supra-national level. The reasons given for breaking down trade barriers at a supra-national level echo those given by the framers of Australia's Constitution. Importantly, the terms of these agreements often extend beyond simply removing trade barriers and call for a positive economic union. Some agreements require mutual recognition of different standards in the manufacture and production of goods, so enabling the

Commonwealth to regulate the quality and standard of goods which were previously solely the preview of State regulation. Or again, the agreement may call for environmental standards enabling the Commonwealth to impose that standard across the whole nation, including in areas otherwise of purely State concern.

While the growing proliferation of these agreements and treaties may expand Commonwealth power to enable the Commonwealth to achieve a more positive economic union, two caveats should be noted. The *first* is that these agreements and treaties may in some circumstances restrict the Commonwealth's ability to impose its desired standards on the nation. There is a risk, for example, that the Commonwealth will abstain from enacting laws (or will have to pay a substantive price for enacting laws), which are contrary to the terms of an agreement or treaty. A telling warning comes from the *S D Myers* NAFTA Arbitration where Canada was found in breach of NAFTA obligations and ordered to pay compensation when it acted to preserve the economic strength of a local industry by banning a foreign investor from exporting a product for processing in the United States.¹⁰⁴

The *second* is that it is primarily the Commonwealth executive, rather than the Parliament, that determines whether to enter such agreements or treaties, on what terms and with what dispute resolution mechanisms. Although the Commonwealth Parliament is required to implement any agreement or treaty as law before it can be enforced domestically, agreements or treaties are enforced at the international level without Parliament's involvement.¹⁰⁵ Australia may become a respondent to an action brought in an international forum for an alleged breach by the Commonwealth (or a State) of an agreement or treaty in which a plaintiff seeks a significant amount in damages because of the prior decision of the Commonwealth executive to enter the agreement or treaty. An adverse international award against the Commonwealth might then be enforced domestically as a matter in federal jurisdiction under section 75(iii). Australia recently avoided such an outcome when its 2011 Plain Packaging Legislation survived challenge in an international arbitration.¹⁰⁶ Decisions which can have a significant impact on the shape and extent of a positive economic union thus often now lie with the Commonwealth executive.

To return to [Sawer's 1969](#) work, international forces have led to, and are likely to continue to result in, a more powerful 'Centre' at the expense of

‘Regions’. To that extent, a greater positive economic union may be superimposed upon the now well reinforced negative union. A key challenge for the future will be how the ‘Centre’, in both its legislative and executive arms, chooses to manage these forces. The ever increasing trend to enter such international agreements, and submit to standards which must be honoured within Australia at risk of suit internationally, serves further to integrate Australia into one or more supra-national economic unions. That in turn may place under challenge the very concept of a domestic economic union, which the provisions of the Constitution discussed in this chapter were designed to serve.

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¹ Geoffrey Sawer, *Modern Federalism* (C A Watts & Co Ltd 1969) ch VIII. Since Sawer’s seminal work, the term ‘integrated federalism’ has been used to describe federal systems such as that practised in Germany in which sub-national governments participate in national law-making (see generally Thomas O Hueglin and Alan Fenna, *Comparative Federalism: A Systematic Inquiry* (2nd edn, University of Toronto Press 2015) 39. That newer description of ‘integrated federalism’ is not adopted in this chapter.

² Sawer (n 1) 1–17.

³ See generally, Anne Mullins and Cheryl Saunders, ‘Introduction’ in Anne Mullins and Cheryl Saunders (eds), *Economic Union in Federal Systems* (Federation Press 1994).

⁴ US Constitution, art I, §§ 8, 9.

⁵ *Gibbons v Ogden*, 22 US 1 (1824).

⁶ *Cooley v Board of Wardens*, 53 US 299 (1851).

⁷ *Wabash, St Louis & Pacific Railway Company v Illinois*, 118 US 557 (1886).

⁸ Henry Parkes, *The Federal Government of Australasia: Speeches Delivered on Various Occasions (November 1889–May 1890)* (Turner and Henderson 1890) 46.

⁹ Robert Garran, *The Coming Commonwealth* (Angus and Robertson 1897) 142.

¹⁰ *Cole v Whitfield* (1988) 165 CLR 360.

¹¹ *ibid* 392.

¹² See *Peterswald v Bartley* (1904) 1 CLR 497, 507 (Griffith CJ).

¹³ Sawer (n 1) 41.

¹⁴ Cheryl Saunders, ‘Fiscal Federalism—A General and Unholy Scramble’ in Gregory Craven (ed), *Australian Federation* (Melbourne UP 1992) 102–03, 125.

¹⁵ See generally Patrick Atiyah, *The Rise and Fall of Freedom of Contract* (OUP 1979).

¹⁶ See, eg, *Andrews v Howell* (1941) 65 CLR 255.

¹⁷ *Peacock v Newtown Marrickville & General Co-operative Building Society No 4 Ltd* (1943) 67 CLR 25, 49 (Williams J).

¹⁸ Leslie Crisp, *The Australian Federal Labour Party 1905-51* (Hale & Iremonger 1978) 289.

- ¹⁹ Richard Posner, ‘Antitrust in the New Economy’ (2001) 68 Antitrust Law Journal 925.
- ²⁰ *Cole v Whitfield* (n 11) 383–84.
- ²¹ *Bank of New South Wales v Commonwealth* (1948) 76 CLR 1.
- ²² *ibid* 282 (Rich and Williams JJ), cf 231 (Latham CJ), 305 (Starke J).
- ²³ *ibid* 305 (Starke J).
- ²⁴ *ibid* 230–31 (Latham CJ).
- ²⁵ *ibid* 397 (McTiernan J).
- ²⁶ *ibid* 388 (Dixon J).
- ²⁷ *ibid* 388–89 (Dixon J).
- ²⁸ *ibid* 232 (Latham CJ), 397 (McTiernan J).
- ²⁹ *ibid* 389 (Dixon J).
- ³⁰ *Cole v Whitfield* (n 11) 391–94.
- ³¹ *Betfair Pty Ltd v Western Australia* (2008) 234 CLR 418 (‘*Betfair (No 1)*’).
- ³² *Ha v NSW* (1997) 289 CLR 465.
- ³³ *Betfair Pty Ltd v Racing NSW* (2012) 249 CLR 217 (‘*Betfair (No 2)*’).
- ³⁴ *ibid* 270 [56] (French CJ, Gummow, Hayne, Crennan and Bell JJ).
- ³⁵ See text accompanying (n 7).
- ³⁶ *Procureur du Roi v Benoît and Gustave Dassonville* (C-8/74) [1974] 2 ECR 837, 852.
- ³⁷ Susan Kiefel, ‘Section 92: Markets, Protectionism and Proportionality—Australian and European Perspectives’ (2010) 36(2) Monash Law Review 3.
- ³⁸ *Betfair (No 2)* (n 33), 393 [127] (Kiefel J); see also 271 [57] (French CJ, Gummow, Hayne, Crennan and Bell JJ).
- ³⁹ Gonzalo Villalta Puig, ‘Intercolonial Free Trade: The Drafting History of Section 92 of the Australian Constitution’ (2011) 30(2) University of Tasmania Law Review 1.
- ⁴⁰ For a critique of Kiefel J’s view, see *Betfair (No 2)* (n 33) 273 [64] (Heydon J).
- ⁴¹ Sawyer (n 1) 16–17.
- ⁴² *Fortescue Metals Group Ltd v The Commonwealth* (2013) 250 CLR 548, 576 [3], 585 [49] (French CJ).
- ⁴³ *Elliott v The Commonwealth* (1936) 54 CLR 657, 668 (Latham CJ).
- ⁴⁴ *Permanent Trustee Australia Ltd v Commissioner of State Revenue (Victoria)* (2004) 220 CLR 388, 422 [84] (Gleeson CJ, Gummow, Hayne, Callinan and Heydon JJ).
- ⁴⁵ *Morgan v Commonwealth* (1947) 74 CLR 421, 455 (Latham CJ, Dixon, McTiernan and Williams JJ).
- ⁴⁶ *ibid* 455, 458 (Starke J).
- ⁴⁷ *Fortescue* (n 42) 567 [4], 575 [30], 580 [39] (French CJ), 607 [124] (Hayne, Bell and Keane JJ).
- ⁴⁸ *ibid* 591 [70] (Hayne, Bell and Keane JJ), 629 [199] (Kiefel J).
- ⁴⁹ *Cameron v Deputy Commissioner of Taxation* (1923) 32 CLR 68.
- ⁵⁰ See, eg, *Fortescue* (n 42) 563 [5], 574–83 [26]–[46] (French CJ), 605 [117] (Hayne, Bell and Keane JJ), 623 [174] (Crennan J), 629 [202] (Kiefel J).
- ⁵¹ *Permanent Trustee* (n 44) 422–23 [85]–[86], 424 [91] (Gleeson CJ, Gummow, Hayne, Callinan and Heydon JJ).
- ⁵² See *Fortescue* (n 42) 585 [49] (French CJ), 605 [117]–[118], 606 [121], 607 [125] (Hayne, Bell and Keane JJ), 617 [155], 619 [162], 622 [172] (Crennan J), 635 [224]–636 [227] (Kiefel J).

⁵³ *Austin v Commonwealth* (2003) 215 CLR 185, 247 [118] (Gaudron, Gummow and Hayne JJ) and the authorities cited therein; *Permanent Trustee* (n 44) 424 [89] (Gleeson CJ, Gummow, Hayne, Callinan and Heydon JJ) endorsed this understanding of discrimination.

⁵⁴ *Fortescue* (n 42) 604 [115].

⁵⁵ *ibid* 575 [30] (French CJ), 607 [124] (Hayne, Bell and Keane JJ).

⁵⁶ See *Elliott* (n 43) 668 (Latham CJ), 683 (Dixon J).

⁵⁷ *Crowe v Commonwealth* (1935) 54 CLR 69.

⁵⁸ For example, in *Victoria v Commonwealth* (1996) 187 CLR 416 (*‘Industrial Relations Act Case’*) the High Court upheld provisions of the *Industrial Relations Act 1988* (Cth) that gave effect to conventions of the International Labor Organisation. As a result, the Commonwealth was able to regulate a broad range of subject matter—such as minimum wages and parental leave—that had previously been regulated exclusively by the States.

⁵⁹ *Huddart Parker & Co v Moorehead* (1909) 8 CLR 330.

⁶⁰ *Amalgamated Society of Engineers v Adelaide Steamship Co Ltd* (*‘Engineer’s Case’*) (1920) 28 CLR 129, 150, 155.

⁶¹ *Strickland v Rocla Concrete Pipes Ltd* (1971) 124 CLR 468, 489 (Barwick CJ). See also 499 (McTiernan J), 511 (Menzies J), 513 (Owen J), 515 (Walsh J), 522, 525 (Gibbs J).

⁶² *New South Wales v The Commonwealth* (2006) 229 CLR 1 (*‘Work Choices Case’*).

⁶³ *Actors and Announcers Equity of Australia v Fontana Films Pty Ltd* (1982) 150 CLR 169, 182–83 (Gibbs CJ); *The Commonwealth v Tasmania* (1983) 158 CLR 1, 117–18 (Gibbs CJ) (dissenting), 202 (Wilson J) (dissenting), 316 (Dawson J) (dissenting) (*‘The Tasmanian Dam Case’*); *Re Dingjan; Ex parte Wagner* (1995) 183 CLR 323, 346 (Dawson J).

⁶⁴ *Actors Equity* (n 63) 182 (Gibbs CJ).

⁶⁵ *The Tasmanian Dam Case* (n 63) 212 (Murphy); *Actors Equity* (n 63), 207–08 (Mason J) (Aickin J agreeing).

⁶⁶ *Re Dingjan* (n 63) 364 (Gaudron J).

⁶⁷ *Work Choices Case* (n 62) 114 [178] (Gleeson CJ, Gummow, Hayne, Heydon and Crennan JJ).

⁶⁸ *ibid* 58 [7], 68 [45], 97 [121] (Gleeson CJ, Gummow, Hayne, Heydon and Crennan JJ).

⁶⁹ The test is whether a sufficient proportion of its current overall activities warrant its description as a trading or financial corporation (see, eg, *State Superannuation Board v Trade Practices Commission* (1982) 150 CLR 282, 303 (Mason, Murphy and Deane JJ)).

⁷⁰ *Williams v The Commonwealth (No 2)* (2014) 252 CLR 416, 461 [50] (French CJ, Hayne, Kiefel, Bell and Keane JJ).

⁷¹ A law will contravene the *Melbourne Corporation* principle if it imposes some special disability or burden on a State’s exercise of its powers and fulfilment of its functions which curtails the State’s capacity to function as a government (see *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31, 70 (Starke J), 75 (Dixon J)).

⁷² See, eg, *The King v Burgess; Ex parte Henry* (1936) 55 CLR 608, 628–29 (Latham CJ), 671 (Dixon J); *Airlines of NSW Pty Ltd v New South Wales (No 2)* (1965) 113 CLR 54, 77–79 (Barwick CJ), 113–15 (Kitto J), 132 (Taylor J), 142–44 (Menzies J), 149–50 (Windeyer J).

⁷³ *Airlines of NSW Case* (n 72) 115 (Kitto J).

⁷⁴ See, eg, *ibid* 93, 98 (Barwick CJ), 116 (Kitto J), 167 (Owens J). See also *Attorney-General (Western-Australia) v Ex rel Ansett Transport Industries (Operations) Pty Ltd v Australian National Airlines Commission* (1976) 138 CLR 492 (*‘WA Airlines Case’*), 499 (Barwick CJ), 502–03 (Gibbs J) 509–11 (Stephen J).

⁷⁵ *WA Airlines Case* (n 74) 499 (Barwick CJ), 503 (Gibbs J), 510–11 (Stephen J); cf 530–31 (Murphy J) (Mason J did not decide the point).

⁷⁶ See, eg, *Wickard v. Filburn*, 317 US 111, 125 (1942).

⁷⁷ See, eg, *Burgess; Ex parte Henry* (n 72) and *Airlines of NSW Case* (n 72).

⁷⁸ See, eg, *Betfair (No 1)* (n 31) and *Betfair (No 2)* (n 33).

⁷⁹ *Williams v The Commonwealth* (2012) 248 CLR 156; *Williams (No 2)* (n 70).

⁸⁰ See, for example, *United States v Lopez*, 514 US 549 (1995), *National Federation of Independent Business v Sebelius*, 567 US __ (2012).

⁸¹ For example, the *Sale of Goods Acts Act 1893* (UK) was the model for legislation passed in all Australian colonies (and later, the States and Territories). See also Richard Leach, *Interstate Relations in Australia* (University of Kentucky Press 1965) 132–34.

⁸² See, eg, the *Air Navigation Act 1938* (NSW) and corresponding State and Territory legislation.

⁸³ See, eg, the *Hire-Purchase Act 1959* (Qld) and corresponding State and Territory legislation.

⁸⁴ See, eg, the *Companies Act 1961* (Vic) and corresponding State and Territory legislation. See generally, Leach (n 81) 136–41.

⁸⁵ Andrew Lynch, ‘After a Referral: The Amendment and Termination of Commonwealth Laws Relying on s 51 (xxxvii)’ (2010) 32 Sydney Law Review 363, 372.

⁸⁶ Compare the views in *Thomas v Mowbray* (2007) 233 CLR 307, 377 [199] (Kirby J), 461, 462 [451], [454] (Hayne J).

⁸⁷ See *Fair Work Act 2009* (Cth) and accompanying State legislation.

⁸⁸ See *Mutual Recognition Act 1992* (Cth) and accompanying State legislation.

⁸⁹ Council of Australian Governments, ‘Mutual Recognition of Goods and Occupations’ <<https://www.coag.gov.au/about-coag/agreements/agreement-relating-mutual-recognition>> accessed 4 March 2016.

⁹⁰ See, eg, *Mutual Recognition (New South Wales) Act 1992* (NSW).

⁹¹ See, eg, *Mutual Recognition (South Australia) Act 1993* (SA). A short history of the MRA is discussed in Cheryl Saunders, ‘Administrative Law and Relations between Governments: Australia and Europe Compared’ (2000) 28 Federal Law Review 264, 271–72.

⁹² See particularly *Mutual Recognition Act 1992* (Cth), Pts 2 (‘Goods’) and 3 (‘Occupations’).

⁹³ Intergovernmental Agreement on Mutual Recognition 1992, Recitals A and B.

⁹⁴ See *Coca-Cola Amatil (Aust) Pty Ltd v Northern Territory of Australia* (2013) 215 FCR 377 in the context of repugnant Northern Territory legislation.

⁹⁵ See the *Trans-Tasman Mutual Recognition Act 1997* (Cth), sch 1 (Customs controls and tariffs, intellectual property, taxation and business franchises, and the implementation of international obligations); see also s 44 (no amendment without consultation).

⁹⁶ See, eg, the *Water Efficiency Labelling and Efficient Standards Act 2005* (Cth) and associated State and Territory legislation.

⁹⁷ See, eg, the *National Environment Protection Council Act 1994* (Cth) and corresponding State and Territory legislation.

⁹⁸ *R v Duncan; Ex parte Australian Iron & Steel Pty Ltd* (1983) 158 CLR 535, 552 (Gibbs CJ).

⁹⁹ *Re Wakim; ex parte McNally* (1999) 198 CLR 511.

¹⁰⁰ *R v Hughes* (2000) 202 CLR 535.

¹⁰¹ See George Williams, ‘Cooperative Federalism and the Revival of the Corporations Law: Wakim and Beyond’ (2002) 20 Corporate and Business Law Journal 160.

¹⁰² See, eg, the *Industrial Relations Act Case* (n 58) 487 (Brennan CJ, Toohey, Gaudron, McHugh and Gummow JJ), 573 (Dawson J).

¹⁰³ Awaiting US implementation as of June 2016.

¹⁰⁴ *S D Myers, Inc v Canada*, First Partial Award, 13 November 2000, UNCITRAL (NAFTA).

¹⁰⁵ This is not to say that Parliament may not comment upon a proposed treaty: since 1996 the government has tabled treaties in Parliament at least fifteen joint sitting days before it has taken binding treaty action and the Joint Standing Committee on Treaties has reviewed and reported on such treaty actions.

¹⁰⁶ *Philip Morris Asia Limited v The Commonwealth of Australia*, Permanent Court of Arbitration, Award on Jurisdiction and Admissibility, 17 December 2015.

CHAPTER 35

THE FEDERAL PRINCIPLE

MICHAEL CROMMELIN

A. INTRODUCTION

THE *Commonwealth of Australia Constitution Act 1900* (UK) provided for the people of the six Australian colonies to be united in ‘a Federal Commonwealth under the name of the Commonwealth of Australia’,¹ a self-governing polity within the British Empire.² The existing colonies, already self-governing polities within the Empire,³ became the ‘Original States’ in the federation.⁴

The federal principle is thus a foundational element of the Constitution, along with representative democracy, responsible government, separation of judicial power, and the rule of law. The Constitution does not, however, specify the content of the federal principle. This chapter seeks to determine that content from the historical context of the Constitution, the text and structure of the Constitution, and the jurisprudence of the High Court of Australia.

This search reveals three core ingredients of the federal principle: multiple polities, limited authority of polities, and reciprocal responsibility among polities. These ingredients are tightly intertwined.

B. MULTIPLE POLITIES

1. Historical Context

In their contemporaneous account of the Australian federation movement and revealing commentary on the Constitution derived from it, John Quick

and Robert Garran point out that the word 'federal' occurs fifteen times in the *Commonwealth of Australia Constitution Act* (apart from references to the Federal Council of Australasia).⁵ According to usage at that time, the term had four distinct meanings: (1) a union of states linked together in one political system; (2) the new state formed by such a union; (3) a dual system of government, central and provincial; and (4) the central governing organs in such a dual system of government.⁶ The last of these contributes nothing to understanding the federal principle. The first reflects the 'compact theory' prevalent at the time of the establishment of the United States of America. The second and the third both involve the creation of a new polity by the federal union.

Quick and Garran suggest the second meaning provides an apt description of the Australian federation, at least in some respects:

It implies that the union has created a new State, without destroying the old States: that the duality is in the essence of the State itself that there is a divided sovereignty, and a double citizenship. This is the sense in which Freeman, Dicey and Bryce speak of a 'Federal State;' and it is the sense in which the phrase 'a Federal Commonwealth' is used in [section 3 of the Commonwealth of Australia Constitution Act] and in the preamble. The word 'Federation' ... is ... used as synonym for the concrete 'Federal State.'⁷

The third meaning also illuminates significant aspects of the Australian union. According to Quick and Garran:

Federal ... is properly applied to denote a dual but co-ordinate system of government, under one Constitution and subject to a common sovereignty, in which one State employs two separate and largely independent governmental organizations in the work of government; the whole governing system, central and general, as well as provincial and local, constituting the federal government; the central and general government being one branch, and the provincial and local governments forming the other branch of the governing organization.⁸

Both of these two meanings are clearly distinguishable from the first identified by Quick and Garran, a union in which the central government, with only legislative powers, does not itself constitute a polity.⁹ The framers of the Constitution, acutely conscious of the shortcomings of the Federal Council of Australasia set up in 1885,¹⁰ readily agreed upon the need to establish a national polity in addition to the existing colonial polities.

The national polity could not, however, replace the existing colonial polities. Both history and geography were opposed to any such suggestion. The original colony of New South Wales, dating from 1788, was later joined not only by Western Australia in 1829 and South Australia in 1836,

both located beyond the territorial boundaries of New South Wales, but also by Tasmania in 1825, Victoria in 1851, and Queensland in 1859, all by separation from New South Wales. The demand for colonial proliferation continued unabated until federation with strongly supported separation movements in central and north Queensland. The Australian people were strongly resistant to government from afar. The vast Australian continent required a number of self-governing political communities.¹¹

The framers of the Constitution, with their accumulated wealth of experience in colonial government, agreed from the outset that these polities must continue in the Australian union with substantial (if diminished) authority exercisable within their established territorial boundaries. The National Australasian Convention that met in Melbourne in 1891 endorsed four principles proposed by Sir Henry Parkes ‘to establish and secure an enduring foundation for the structure of a federal government’, the first of which was:

That the powers and privileges and territorial rights of the several existing colonies shall remain intact, except in respect to such surrenders as may be agreed upon as necessary and incidental to the power and authority of the National Federal Government.¹²

At the same time, the Commonwealth must comprise legislative, executive, and judicial branches, unlike the ill-starred Federal Council of Australasia.¹³ The people of the new States would participate directly in the new polity without relinquishing membership of their State polities.¹⁴ Just as representative government had provided a measure of self-government in the colonies during the latter part of the nineteenth century, its incorporation in the design of the new polity would ensure an extension of self-government to the Australian people in the twentieth century.¹⁵

Quick and Garran confirm the importance of popular initiatives in various colonies, especially Victoria and New South Wales, in reviving the federation movement in the mid-1890s after the failure of the colonial legislatures to respond to the Constitution Bill produced at the Melbourne Convention in 1891. The Australasian Federation Enabling Acts required popular election in four colonies of the delegates to the Constitutional Conventions in 1897 and 1898, and popular ratification subsequently in all colonies of the draft Constitutions that emerged from those Conventions before the submission of the final product to United Kingdom government for enactment by the United Kingdom Parliament.¹⁶ The influence of the

people was also apparent in the substantial modifications made to the 1891 Constitution Bill by the Conventions in 1897 and 1898, especially those requiring direct election of senators in the Original States and approval at referendum of proposed amendments to the Constitution.¹⁷

2. Text and Structure

Accordingly, the Constitution establishes the Commonwealth as a complete polity in functional terms with legislative, executive, and judicial branches: The Parliament (Chapter I), The Executive Government (Chapter II), and The Judicature (Chapter III). The Constitution also provides for the continuation of the constitutions of the Original States, each of which was then (as it is today) complete in its possession of legislative, executive, and judicial branches.¹⁸ The result is a collection of seven polities invested with the full range of governmental functions, exercising shared authority.

Despite yielding certain powers to the Commonwealth,¹⁹ the States continue as self-governing polities within the federal union with extensive legislative, executive, and judicial authority.²⁰

The federal union is organized on the basis of territory. The States retain their pre-federation colonial boundaries that play a vital part in the distribution of authority among the Commonwealth and State polities. The Constitution confirms the territorial integrity of each State by requiring the consent of its legislature, together with the approval of the electors of the State, for any alteration of the territorial limits of that State.²¹ In addition the Constitution requires the consent of the relevant State Parliament for the formation of a new State by separation of territory from that State, and the consent of the Parliaments of all affected States for formation of a new State by the union of two or more States or parts of those States.²² The Commonwealth encompasses the territory of all of the States and federal territories.

C. ARCHITECTURE AND AUTHORITY

1. Historical context

The design of the Commonwealth Parliament presented formidable challenges to the framers of the Constitution in realizing the federal principle. They readily accepted the need for a bicameral Parliament with one House comprising representatives of the people of each of the States, the other representatives of all of the people of the Commonwealth.²³ Beyond that, there were significant differences. First was the matter of equal representation of the States in 'their' House, the Senate, as proposed by Parkes in 1891 but not by Barton in 1897.²⁴ Despite vigorous opposition voiced by delegates from New South Wales and Victoria, equal representation was accorded to the Original States.²⁵ Next was the closely related issue of the relative authority of the two Houses, the Senate, and the House of Representatives. Again, although the issue was strenuously contested, the views of the delegates of the smaller colonies prevailed. The Senate would have equal power with the House of Representatives in respect of all proposed laws other than those imposing taxation or appropriating public funds.²⁶ The objective was that the bicameral structure of the Parliament with equal representation of the States in the Senate and broad equality of power vested in both Houses would provide a political constraint upon the exercise of the legislative authority of the Commonwealth in accordance with the federal character of the Australian union.²⁷

But the federal principle also required that all of the Australian polities, the Commonwealth and the States, have limited authority, the scope of which would be prescribed by the Constitution and placed beyond the reach of Commonwealth and State legislatures and governments.

The framers initially considered two models for allocation of legislative power to the Commonwealth and the States, those of the United States and Canada. The former specified a modest list of federal powers but no State powers. The latter contained a more extensive list of federal powers together with a similar list of provincial powers; both federal and provincial powers were exclusive, apart from a few exceptions. The framers chose the United States model although the list of federal powers that they produced

was considerably longer than that in the United States Constitution. They did so in the mistaken belief that United States model would be more effective than the Canadian in limiting the scope of federal legislative power.²⁸

In some respects, the design of the Commonwealth executive was relatively uncontroversial. During the Sydney Convention in 1891, Dibbs confessed to ‘possessing a slight tinge of republican notions’ but that idea was peremptorily dismissed then and never seriously revived.²⁹ Instead, the framers applied the experience that they had acquired during the latter part of the nineteenth century in colonial governments based upon United Kingdom principles and practices, albeit with local adaptation.³⁰ Moreover, unlike the situation with the Parliament, the Commonwealth executive was unconstrained by any provision for involvement by the States in its composition, structure, or authority

However, a Senate with powers equal to those of the House of Representatives created a major dilemma for the framers in the design of the Commonwealth executive. Was such a Senate compatible with the principle of responsible government, a familiar and highly regarded element of all colonial constitutions? Many of the framers thought not.³¹

There was no easy way out of this quandary, and the framers were driven to compromise. The Constitution would explicitly recognize the principle of responsible government but only to the extent that Commonwealth Ministers must be or become members of the Commonwealth Parliament.³² Otherwise, the content of that principle would be determined by constitutional convention.³³ The States would have equal representation in the Senate but its power in the enactment of proposed laws appropriating revenue and imposing taxation would be somewhat curtailed.³⁴ The authority of the House of Representatives in relation to proposed laws originating in that house would also be strengthened by the provision for a joint sitting as the final stage of the deadlocks mechanism,³⁵ given the relative sizes of the two Houses.³⁶

The framers recognized that the judicature would be the ‘sole arbiter and interpreter of the constitution’.³⁷

Another major consideration in the design of the Australian union was the desire of the founders to resolve the fractious fiscal competition among

the colonies by establishing free trade and a common market within the union. This would be achieved by a constitutional affirmation of freedom of interstate trade and intercourse together with the conferral of exclusive power to impose customs duties on the Commonwealth, subject to agreement upon distribution of the proceeds of the Commonwealth tax.³⁸ After little and rather confused debate, the framers of the Constitution expanded the exclusive power of the Commonwealth to include duties of excise.³⁹ Nevertheless, this grant of extensive fiscal authority to the Commonwealth carried a significant proviso: the Constitution must mitigate the impact upon the States of this loss of their principal source of revenue.⁴⁰

2. Text and Structure

The Constitution established a bicameral Commonwealth legislature comprising (along with the Queen) the Senate and the House of Representatives,⁴¹ with members of both chambers directly chosen by the people.⁴² In doing so it identified the centrality of the people within the Commonwealth polity and confirmed the status of representative democracy as a foundational element of the constitutional framework, closely related to the federal principle.⁴³ As an interim measure, the Constitution initially adopted the franchise as prescribed by each State for its more numerous legislative chamber, but only until the Commonwealth Parliament 'otherwise provides'.⁴⁴ This power of the Parliament to determine the qualification of electors is subject to democratic requirements; the franchise must be the same for both the Senate and the House of Representatives, each elector must have only one vote for senators and one for members of the House of Representatives, and adults who have the right to vote at elections for the more numerous House of a State legislature cannot be denied the right to vote at elections for either House of the Commonwealth Parliament.⁴⁵

The federal character of the Australian union is clearly evident in several aspects of the design of the Parliament. The composition of both Houses is highly significant, as is the relationship between them. Moreover, the authority of the Parliament is limited.

The Original States are entitled to equal representation in the Senate, regardless of their population.⁴⁶ The Constitution requires the people of

each State to vote as one electorate in choosing their senators, again until the Parliament ‘otherwise provides’.⁴⁷ Senators are chosen for a fixed term of six years, and serve on a rotation basis that provides for expiry of the terms of half of the senators chosen from each State every three years.⁴⁸ The Constitution confers powers on the Parliament to make laws prescribing the method of choosing senators (which must be uniform for all States) and regulating the conduct of Senate elections.⁴⁹ At the same time, though, the Constitution empowers the Governor of each State to issue the writs for election of senators,⁵⁰ authorizes the Parliament of a State to make laws for determining the times and places of election of senators for the State,⁵¹ and provides that a casual vacancy in the Senate shall be filled by the vote in a joint sitting of the Houses of Parliament of the relevant State.⁵²

The House of Representatives is composed of members directly chosen by the people of the Commonwealth, for a term of up to three years.⁵³ The Constitution recognizes the place of the States in the federal body politic by requiring that the number of members chosen in each of the States shall be in proportion to the respective numbers of their people,⁵⁴ thereby precluding the creation of electorates straddling State or territory boundaries. It restricts the number of members of the House of Representatives, as nearly as practicable, to twice the number of senators.⁵⁵ It also entitles each Original State to at least five members, regardless of its population.⁵⁶ Subject to these requirements, the Constitution confers broad powers on the Parliament to determine the boundaries of electoral divisions, the number of members to be chosen for each division, the conduct of elections for the House of Representatives, and the voting system for the House of Representatives.⁵⁷

The relationship between the houses is intricate and carefully drawn, with all the attributes of an uneasy compromise. The Senate’s power in the enactment of legislation is equal to that of the House of Representatives, apart from particular exceptions relating to taxation and appropriation measures.⁵⁸ However, the Constitution provides an elaborate mechanism to resolve disputes between the houses in relation to proposed laws originating in the House of Representatives, involving a simultaneous dissolution of the two houses followed by an election for all members of both of them, and culminating (if necessary) in a joint sitting of all the members of both

Houses.⁵⁹ The relative size of the two Houses, with the number of members of the House of Representatives about twice that of the Senate, is a significant but not decisive factor in determining the outcome of the joint sitting.

In accordance with the federal principle, the Constitution prescribes limits upon the legislative authority of all Australian polities.

The Constitution limits the authority of the Commonwealth Parliament by conferring power on it to make laws for the peace, order, and good government of the Commonwealth with respect to specified subjects only.⁶⁰ In a few highly significant cases, that power is exclusive.⁶¹ aspects of fiscal policy (duties of customs and excise, bounties on the production or export of goods),⁶² monetary policy,⁶³ defence,⁶⁴ admission or establishment of new States,⁶⁵ and government of Commonwealth territories.⁶⁶ Mostly, however, Commonwealth legislative powers are concurrent.⁶⁷ In the event of inconsistency between the law of a State and the law of the Commonwealth, the latter prevails.⁶⁸

Moreover, the Constitution places specific limitations on Commonwealth legislative authority with respect to trade, commerce, and intercourse among the States,⁶⁹ taxation of property of any kind belonging to a State,⁷⁰ and matters of religion.⁷¹ It also prohibits discrimination between States in taxation matters,⁷² State preference in trade, commerce, and revenue matters,⁷³ and discrimination based upon State of residence.⁷⁴

The Constitution does not confer power on State Parliaments; that is a matter for the State Constitutions. They do so in general terms, to make laws for the peace, order, and good government of the State in all cases whatsoever.⁷⁵ Implicit in this language and inherent in the nature of the State polities is some limitation on their extraterritorial legislative authority.⁷⁶ As previously noted, section 106 of the Constitution underpins State constitutions with the declaration that they shall continue as at the establishment of the Commonwealth until altered in accordance with their own provisions.⁷⁷ At the same time, the Constitution does impose significant limitations upon State legislative authority arising from the exclusive legislative power of the Commonwealth Parliament,⁷⁸ the declaration that Commonwealth legislation prevails over inconsistent State legislation in the broad field of concurrent legislative power,⁷⁹ the

requirement that trade, commerce, and intercourse among the States ‘shall be absolutely free’,⁸⁰ and various prohibitions upon the raising or maintaining any naval or military force, the imposition of any tax on property of any kind belonging to the Commonwealth,⁸¹ the creation of currency and legal tender,⁸² and the discriminatory treatment of residents of other States.⁸³

The Constitution confers the executive power of the Commonwealth on the Queen and makes it exercisable by the Governor-General as her representative.⁸⁴ It requires the establishment of a Federal Executive Council to advise the Governor-General in the government of the Commonwealth and provides for the appointment of its members by the Governor-General.⁸⁵ It authorizes the Governor-General to appoint the Queen’s Ministers of State for the Commonwealth to administer Commonwealth departments established by the Governor-General in Council⁸⁶ and declares that they shall be members of the Federal Executive Council.⁸⁷ The States play no part in the appointment of Commonwealth Ministers.

Significantly, while membership of Parliament is not a prerequisite to appointment as a Minister, no Minister can hold office for more than three months without being or becoming a senator or a member of the House of Representatives.⁸⁸ This requirement affirms the status of responsible government as a foundational element of the Constitution, notwithstanding the structure of the Constitution with its separate chapters relating to the Parliament and the executive.⁸⁹

The federal limits upon the executive authority of the Australian polities are less explicit than those upon their legislative authority. The Constitution provides that the executive power of the Commonwealth ‘extends to the execution and maintenance of this Constitution, and of the laws of the Commonwealth’.⁹⁰ It does not prescribe any limits on the scope of State executive power, or attempt to resolve any conflict arising from the inconsistent exercise of Commonwealth and State executive power.

The federal character of the Australian union is apparent in some aspects of the design of the Australian judicature, together with the requirement of separation of judicial power that is implicit in the organization in distinct

chapters of the provisions of the Constitution dealing with the three branches of government.

The Constitution confers the judicial power of the Commonwealth upon the High Court of Australia, such other federal courts as the Parliament creates, and such other courts as the Parliament invests with federal jurisdiction.⁹¹ This provision is premised upon two significant and related distinctions: the first between two categories of courts, federal courts created by the Commonwealth Parliament and State courts in existence the time of federation or created by State legislatures thereafter in accordance with their constitutions;⁹² and the second between two distinct categories of jurisdiction, federal and state.

The Justices of the High Court and other federal courts are appointed by the Governor-General in Council, and may be removed only by the Governor-General in Council on an address from both Houses of the Commonwealth Parliament.⁹³ The States play no part, just as the Commonwealth plays no part in the appointment or removal of judges of State courts.

The Constitution places the High Court at the apex of the entire Australian judicature by conferring appellate jurisdiction on it from all decisions of any Justice exercising the original jurisdiction of the Court, any other federal court, any court exercising federal jurisdiction, and the Supreme Court of any State.⁹⁴

The Constitution also confers original jurisdiction directly upon the High Court in a number of specified matters.⁹⁵ Furthermore, it empowers the Parliament to make laws conferring additional original jurisdiction on the Court in specified matters,⁹⁶ defining the jurisdiction of any other federal court, and investing federal jurisdiction in any State court.⁹⁷

Several elements of this structure depart substantially from the federal principle: the appointment of Justices of the High Court solely by the Commonwealth executive without ratification by the Senate or approval by the States; the general appellate jurisdiction (extending to decisions of State courts in matters of State jurisdiction) of the High Court; and the investiture by the Commonwealth Parliament of federal jurisdiction in State courts.

D. RECIPROCAL RESPONSIBILITY

1. Historical Context

The framers of the Constitution well understood that, as a consequence of the design of the Australian union as a collection of polities, the Constitution must determine the relationship among those polities. That relationship would comprise several facets; it would be complex and fluid. The polities would be complete, distinct and, to some extent, independent. Despite their differences in population and area, the States would be equal in many constitutional respects. The relationship between the Commonwealth and the States would not be hierarchical,⁹⁸ even though laws of the Commonwealth would prevail over those of the States, the High Court of Australia would have unlimited appellate jurisdiction and the Parliament could confer federal jurisdiction on State courts.

All polities, the Commonwealth and the States, would assume reciprocal responsibilities in the Australian union. These responsibilities would be quite distinct from the many opportunities provided by the Constitution for co-operation among the polities as a corollary of the distribution of powers among them, as these opportunities would not entail obligations.⁹⁹ In contrast, the Constitution would impose a variety of obligations, some on the Commonwealth to ensure its action in relation to matters within its exclusive authority such as defence, monetary policy, and fiscal management,¹⁰⁰ others on the States in relation to the operation of the Senate.¹⁰¹

The Commonwealth's responsibilities with respect to defence and monetary policy were uncontentious.¹⁰² Its responsibility for distribution among the Australian polities of the revenue derived from Commonwealth taxation, arising from its exclusive fiscal authority, was anything but. There was no easy way out of the dilemma described by one of the framers of the Constitution as 'the hardest nut to crack'.¹⁰³ Delegates expressed serious misgivings about the situation in which one polity would be responsible for raising public revenues for the others;¹⁰⁴ in the end, however, they accepted that they had no choice.¹⁰⁵ The achievement of the Australian union depended on a solution to 'the financial question'.

Distribution of Commonwealth revenue among the Australian polities required two types of provisions in the Constitution, one for determining the total amount to be provided by the Commonwealth to the States, and the other for determining the amounts to be allocated by the Commonwealth to each of the States. As to the former, the issue was whether the Constitution should prescribe a formula for calculating the total amount or whether that task should be left to the Parliament. As to the latter, opinion was deeply divided between a simple allocation to each State on the basis of its population (the per capita method) and a more complicated, but perhaps 'fairer', allocation to each State of a fixed proportion of the net revenue collected within its territory (the collections method); yet another possibility was to leave this matter to the Parliament, too.¹⁰⁶

2. Text and Structure

The Constitution provides that the polities are complete, distinct, and independent in various ways. The new Commonwealth comprises three branches, legislative, executive, and judicial, each of which has authority conferred upon it directly by the Constitution.¹⁰⁷ The States retain their pre-federation Constitutions, substantially intact, until altered in accordance with the requirements of those Constitutions.¹⁰⁸ The equality of the States is amply acknowledged in the representation of the Original States in the Senate,¹⁰⁹ the strict protection accorded to the integrity of State territorial boundaries,¹¹⁰ the need for the consent of the Parliaments of affected States for the formation of new States,¹¹¹ and the requirement for approval of a proposed amendment of the Constitution by a majority of electors in a majority of States, as well as an overall majority of all electors.¹¹² The States are also entitled to impartial treatment by the Commonwealth in any law or regulation of trade, commerce, or revenue.¹¹³

The relationship among the States within the Australian union is shaped by several provisions of the Constitution which establish a common market,¹¹⁴ allow interstate mobility,¹¹⁵ prohibit discrimination among residents of different States based upon their place of residence,¹¹⁶ and ensure the recognition and legal effect of State laws, public records, and judicial proceedings throughout the Commonwealth.¹¹⁷

The States are responsible to the Commonwealth for issuing writs for Senate elections,¹¹⁸ filling Senate casual vacancies,¹¹⁹ and incarceration of persons accused or convicted of offences against Commonwealth laws.¹²⁰ In addition, they must not intrude upon matters of Commonwealth exclusive authority: the national capital and other Commonwealth places;¹²¹ Commonwealth departments transferred by the Constitution from the States;¹²² duties of customs and of excise, and bounties on the production or export of goods;¹²³ naval and military defence;¹²⁴ taxation of Commonwealth property;¹²⁵ and currency, coinage, and legal tender.¹²⁶

The Commonwealth is responsible to the States for matters placed by the Constitution beyond their control. Three stand out.

First, as a corollary of the exclusive power of the Commonwealth over naval and military defence, the Commonwealth must protect the States against invasion and, on the application of any State, against domestic violence.¹²⁷

Secondly, as the States have little authority over monetary policy, the Commonwealth is responsible for the establishment and maintenance of the Australian monetary union.¹²⁸

Finally, as a consequence of the exclusive power on the Commonwealth to impose duties of customs and excise, the Commonwealth has responsibility for fiscal policy and a particular obligation to share with the States the public revenues derived from Commonwealth taxation. That obligation comprises several rather elaborate components: a limitation upon Commonwealth expenditure of the proceeds of Commonwealth duties of customs and excise, for at least the first ten years of the Australian union;¹²⁹ specific requirements to distribute the Commonwealth's surplus revenue among the States according to the collections method prior to the imposition of Commonwealth duties of customs and excise and for at least the next five years,¹³⁰ and then on such basis as the Parliament 'deems fair';¹³¹ and broad authority for the Parliament to provide 'financial assistance to any State on such terms and conditions as the Parliament thinks fit'.¹³²

E. JUDICIAL EXEGESIS

As the ‘sole arbiter and interpreter of the Constitution’,¹³³ the High Court of Australia has the task of putting flesh on the bones of the federal principle.

1. Multiple Polities

The significance of multiple polities in the design of the Australian federal union was apparent to the three members of the first High Court, all of whom had played prominent parts in drafting the Constitution: Griffith CJ (leader of the 1891 Convention), Barton J (leader of the 1897–98 Convention), and O’Conner J (member of the 1897–98 Convention).¹³⁴ In its first case the new Court held that the State of Tasmania lacked the power to impose stamp duty upon an officer of the Commonwealth in relation to a receipt that he was required by Commonwealth statute to give for payment of his salary, pointing out that Tasmania and the Commonwealth were distinct polities with discrete powers of limited application.¹³⁵ Only two years later, the Court held that similar constraints precluded the Commonwealth Parliament from regulating the terms of employment of officers of the State of New South Wales. The doctrine of immunity of Commonwealth and State instrumentalities, founded upon the necessity for freedom of each polity from the control of the other, was reciprocal.¹³⁶

By 1920, however, the composition of the High Court had changed completely as had its mood.¹³⁷ In the *Engineers Case*, also involving the power of the Commonwealth Parliament to regulate terms of employment of State officials, the plurality disparaged the doctrine of immunity of instrumentalities as ‘an interpretation of the Constitution depending on an implication which is formed on a vague, individual conception of the compact.’¹³⁸ They cast aside the federal principle and instead emphasized ‘two cardinal features of our political system which are interwoven in [the] texture [of the Australian Constitution] and ... radically distinguish it from the American Constitution ... One is the common sovereignty of all parts of the British Empire; the other is the principle of responsible government.’¹³⁹

Neither of these ‘cardinal features’ could supplant the federal principle within the Australian union, however. The common sovereignty of all parts of the British Empire was inextricably bound up with the unity and

indivisibility of the Crown, a doctrine which, long before *Engineers*, Harrison Moore had predicted would lead to ‘inconvenience and mischief’ in any federation.¹⁴⁰ Forty years later, Latham CJ remarked that as a legal principle, the doctrine ‘tends to dissolve into verbally impressive mysticism’.¹⁴¹ The principle of responsible government, although undeniably significant in the internal organization of the Commonwealth and the State polities in the Australian union, had no bearing on the distribution of power to those polities or the relationship between them.

So the High Court soon revived the federal principle, replacing the repudiated doctrine of immunity of instrumentalities with a more modest restraint upon interference between Commonwealth and State polities.¹⁴² This doctrinal reconstruction culminated in the *State Banking Case*, decided in 1947.¹⁴³ The Court confirmed there that the Constitution not only provided for the establishment of multiple polities, Commonwealth and State, but also required their maintenance and continuation.¹⁴⁴ In the words of Dixon J:

The foundation of the Constitution is the conception of a central government and a number of State governments separately organised. The Constitution predicates their continued existence as independent entities.¹⁴⁵

Notwithstanding the assertion by the plurality in the *Engineers’ Case* that political constraints would suffice to prevent abuse of power in the Australian union,¹⁴⁶ the Court in the *Melbourne Corporation Case* held that the federal structure of the union entails legal constraints upon interference between polities.

The *Melbourne Corporation* doctrine is now well entrenched in Australian jurisprudence. Nevertheless, the High Court recently observed that the doctrine ‘has proved insusceptible of precise formulation’.¹⁴⁷ In practice it provides a measure of protection to the States against interference by the Commonwealth in the performance of their functions. The problem lies in determining the extent of that protection. While the doctrine also protects the Commonwealth against State interference, the Commonwealth is less likely to invoke that protection as it has more explicit means of resisting interference by States.¹⁴⁸

In early cases the Court distinguished between measures specifically directed by one polity against another and measures of general application,

describing the former as discrimination.¹⁴⁹ The *Melbourne Corporation Case* squarely raised this distinction as section 48 of the *Banking Act 1945 (Cth)* prohibited a bank from conducting any banking business *for a State or any of its authorities*. The Court acknowledged the distinction although two members rejected the description of specific measures as discrimination, for different reasons.¹⁵⁰ Specific measures involved the placement of a ‘special burden’ by one polity on another.¹⁵¹ It was clear that the impugned provision of the *Banking Act 1945* imposed such a burden on the States, but was that either necessary or sufficient to invoke the constitutional constraint upon interference between polities? Apparently not. The federal principle ensured the continuing existence of the States as distinct polities within the Australian union and their capacity to function as such polities.¹⁵²

The Court revisited the distinction between specific and general measures in 1985 in *Queensland Electricity Commission v Commonwealth*,¹⁵³ a challenge to the validity of a Commonwealth statute directed at agencies of the Queensland government.¹⁵⁴ After an extensive review of the authorities relating to the *Melbourne Corporation* doctrine, Mason J concluded:

‘This review ... shows that the principle is now well established and that it consists of two elements: (1) the prohibition against discrimination which involves the placing on the States of special burdens or disabilities; and (2) the prohibition against laws of general application which operate to destroy or curtail the continued existence of the States or their capacity to function as governments (citation omitted). The second element of the prohibition is necessarily less precise than the first; it protects the States against laws which, complying with the first element because they have a general application, may nevertheless produce the effect which it is the object of the principle to prevent.’¹⁵⁵

In contrast, Dawson J formulated the doctrine on a broader basis; the two elements of discrimination and special burden merely illustrated the application of the doctrine but did not determine its content.

[U]nless it is otherwise apparent from the nature of a Commonwealth legislative power or the language in which it is conferred, a Commonwealth law may not unduly interfere with the exercise by a state of its constitutional or governmental functions... Discrimination against the States or their agencies may point to breach as may a special burden placed upon the States by a law of general application. Be that as it may, a general proposition arises by implication from the federal structure of the Constitution that the Commonwealth Parliament cannot impair the capacity

of the States to exercise for themselves their constitutional functions; that is to say, their capacity ... to function effectually as independent units.¹⁵⁶ In the words of Gibbs J, 'the reason for the limitation is ... to protect the integrity of the States'.¹⁵⁷

In *Re Australian Education Union; Ex parte Victoria*, the Court acknowledged the possibility of confusion among statements of the *Melbourne Corporation* doctrine but chose not to resolve it on that occasion.¹⁵⁸ The case turned on the scope of Commonwealth legislative power to prescribe the terms and conditions of employment of Victorian public servants. The plurality recognized that application of the *Melbourne Corporation* doctrine involved difficult matters of degree.¹⁵⁹ The doctrine did not necessarily preclude the application of Commonwealth industrial awards to the vast majority of State employees.¹⁶⁰ At the same time, some matters were critical to a State's capacity to function as a government, such as determination of the number, identity, terms and conditions of employment, and dismissal of State employees, and the appointment, removal, and terms of engagement of Ministers, ministerial assistants and advisers, heads of department and high level statutory office holders, parliamentary officers, judges, and others 'at the higher levels of government'.¹⁶¹ In a strong dissent, Dawson J described such distinctions as 'artificial'; they failed to ensure the capacity of a State to function as a polity in the Australian union.¹⁶²

In two recent cases, the High Court clarified the *Melbourne Corporation* doctrine by adopting the broader formulation of it as a corollary of the federal principle protecting the multiple polities within the Australian union.¹⁶³ The cases challenged the validity of Commonwealth legislation that imposed a tax upon State judges and State members of Parliament¹⁶⁴ in respect of their pension and superannuation benefits.¹⁶⁵ In *Austin*,¹⁶⁶ Gaudron, Gummow and Hayne JJ declined to adopt the conclusion of Mason J in the *Queensland Electricity Commission Case* that the doctrine comprised two elements, discrimination and special burdens,¹⁶⁷ on the ground that it could obscure the 'fundamental constitutional conception' underlying the doctrine.¹⁶⁸ Instead:

There is, in our view, but one limitation, though the apparent expression of it varies with the form of the legislation under consideration. The question presented by the doctrine in any given case requires the assessment of the impact of particular laws by such criteria as ‘special burden’ and ‘curtailment’ of capacity of the States ‘to function as governments’. These criteria are to be applied by consideration not only of the form but also the ‘the substance and actual operation’ of the federal law (citation omitted). Further, this inquiry inevitably turns upon matters of evaluation and degree of ‘constitutional facts’ which are not readily established by objective methods in curial proceedings.¹⁶⁹

In *Clarke*, the plurality quoted this passage with approval;¹⁷⁰ French J also acknowledged that the doctrine was derived from the design of the Australian union as an agglomeration of distinct polities:

The constitutional implication considered in *Austin* and its precursors means that the Commonwealth cannot, by the exercise of its legislative power, significantly impair, curtail or weaken the capacity of the States to exercise their constitutional powers and functions (be they legislative, executive or judicial) or significantly impair, curtail or weaken the actual exercise of those powers or functions. The *Constitution* assumes the existence of the States as ‘independent entities’. This implies recognition of the importance of their status as components of the federation.¹⁷¹

2. Architecture and Authority

The provisions of the Constitution allocating limited authority to the Commonwealth and State polities also created significant challenges for the High Court of Australia from the very beginning.

The deficiencies of the model chosen for conferring legislative authority upon the Commonwealth and the States were soon apparent. Commonwealth powers are specified, but State powers are not. Most Commonwealth powers are concurrent, as are State powers. Within the realm of shared power, Commonwealth legislation prevails over inconsistent State legislation. The scope of legislative powers depends on the meaning given by the High Court to the terse and imprecise language of the Constitution. The failure to specify any exclusive State legislative powers means that the Constitution provides the High Court with scant textual guidance in determining the scope of Commonwealth legislative powers.¹⁷²

The allocation method for executive authority is different but no less demanding in its application. The executive power of the Commonwealth ‘extends to the execution and maintenance of this Constitution, and of the laws of the Commonwealth’.¹⁷³ State Constitutions (including the executive power of the States) continue, subject to the Commonwealth Constitution, until altered in accordance with their own requirements.¹⁷⁴

The first High Court took up the challenge involved in determining the scope of Commonwealth legislative powers with a doctrine of ‘reserved powers’ that curtailed Commonwealth power to prevent intrusion upon established legislative functions of the States.¹⁷⁵ This doctrine was repudiated by the Court in the *Engineers’ Case* along with the doctrine of immunity of instrumentalities. In the words of the plurality:

It is undoubted that those who maintain the authority of the Commonwealth Parliament to pass a certain law should be able to point to some enumerated power containing the requisite authority. But we also hold that, where the affirmative terms of a stated power would justify an enactment, it rests upon those who rely on some limitation or restriction upon the power, to indicate it in the Constitution.¹⁷⁶

In the aftermath of the *Engineers’ Case*, the question for the High Court was whether the federal principle was relevant in determining the scope of Commonwealth legislative power. The *Melbourne Corporation* doctrine protected the constitutional integrity of the States. But was that integrity confined to institutional matters or did it also require the maintenance of a measure of legislative authority in the States?

Paradoxically, Dixon J apparently favoured the narrower view in the *Melbourne Corporation Case*:

The foundation of the Constitution is the conception of a central government and a number of State governments separately organized. The Constitution predicates their continued existence as independent entities. Among them it distributes powers of governing the country. The framers of the Constitution do not appear to have considered that power itself forms part of the conception of a government. They appear rather to have conceived the States as bodies politic whose existence and nature are independent of the powers allocated to them.¹⁷⁷

Whether or not the framers of the Constitution excluded power from their conception of government, the High Court has frequently done so. Outstanding examples include the *Uniform Tax Cases* and the *Payroll Tax Case* (extension of the fiscal dominance of the Commonwealth over the States),¹⁷⁸ the *Tasmanian Dam Case* (implementation of international treaty obligations on matters otherwise beyond the authority of Parliament),¹⁷⁹ the *Native Title Act Case* (protection and regulation of land rights of Indigenous peoples),¹⁸⁰ the *Work Choices Case* (regulation of the activities of foreign corporations and domestic trading and financial corporations)¹⁸¹ and the *MRRT Case* (taxation of ‘above normal profits’ derived from production of prescribed mineral resources).¹⁸² Attempts to invoke the *Melbourne*

Corporation doctrine were firmly rebuffed by the Court in all of these cases on the basis that Commonwealth legislation encroaching upon matters of traditional State legislative activity, however substantial the intrusion may be, did not ‘impose any special burden or disability on the exercise of powers and fulfilment of functions of the States which curtails their capacity to function as governments’.¹⁸³

In contrast, the High Court has reaffirmed the significance of the federal principle in recent cases requiring determination of the scope of the executive power of the Commonwealth.

In *Pape v Federal Commissioner of Taxation*, the Court identified section 61 of the Constitution as the source of Commonwealth authority to spend public funds. Members of the Court were unable to agree upon the scope of the power and, in particular, whether it extended to the short-term fiscal measures adopted by the Commonwealth in response to the global financial crisis.¹⁸⁴ But all agreed that the power was limited in scope and some identified the federal principle as a basis for the limitation. As Hayne and Kieffell JJ explained:

The executive power of the Commonwealth is the executive power of a polity of limited powers. The *Engineers’ Case* decided that the powers are not to be understood as confined by a priori assumptions. But no statement of this Court suggests that the executive power of the Commonwealth is unbounded.¹⁸⁵

*Williams v The Commonwealth*¹⁸⁶ was a challenge to the validity of the National School Chaplaincy Program established by the Commonwealth by means of administrative guidelines, contractual arrangements, and expenditure of public funds, without legislative authorization other than appropriation of the necessary funds. The High Court relied on different aspects of the federal principle in its response to the Commonwealth’s submissions on the scope of the executive power of the Commonwealth. The first was that the Commonwealth, by analogy to a natural person, had almost unlimited capacity to contract and spend. The Court pointed out that, unlike a natural person, the Commonwealth was a political entity established by the Constitution and that its expenditure involved public funds.¹⁸⁷ The second was that the executive power of the Commonwealth encompassed at least all of the matters within the scope of its legislative power. That too was rejected. According to French CJ:

A Commonwealth Executive with a general power to deal with matters of Commonwealth legislative competence is in tension with the federal conception which informed the function of the Senate as a necessary organ of Commonwealth legislative power. It would undermine the parliamentary control of the executive branch and weaken the role of the Senate.¹⁸⁸

Shortly afterwards, the Parliament enacted legislation to remedy the deficiency in Commonwealth executive power. The validity of that legislation was then challenged in *Williams v The Commonwealth* [No 2].¹⁸⁹ The High Court upheld the challenge on the ground that Parliament lacked the power to enact the legislation, and refused to reconsider its decision in *Williams v The Commonwealth*. In doing so, the Court explicitly repudiated any assumption that the Commonwealth's executive power to spend and contract is the same as that of the British Executive. Once more, it invoked the federal principle:

This assumption, which underpinned the arguments advanced by the Commonwealth parties about executive power, denies the 'basal consideration' (citation omitted) that the *Constitution* effects a distribution of powers and functions between the Commonwealth and the States. The polity which, as the Commonwealth parties rightly submitted, must 'possess all the powers that it needs in order to function as a polity' is the central polity of a federation in which independent governments exist in the one area and exercise powers in different fields of action carefully defined by law (citation omitted). It is not a polity organised and operating under a unitary system or under a flexible constitution where the Parliament is supreme.¹⁹⁰

3. Reciprocal Responsibility

In stark contrast to its willingness to acknowledge the significance of multiple polities in the Australian union and to determine and enforce the limits placed by the Constitution upon the authority of those polities, the High Court has been reluctant to recognize and give legal effect to the reciprocal responsibilities imposed by the Constitution on the Commonwealth and the States.

In *R v The Governor of South Australia*, the High Court refused an application for a writ of mandamus ordering the Governor of South Australia to issue a writ pursuant to section 12 of the Constitution for the election of a senator for South Australia, following upon a declaration by the Court of Disputed Returns that the recent election of one of the three senators for that State was void.¹⁹¹ The question was whether it had jurisdiction to compel performance, assuming that section 12 of the Constitution imposed a public duty on the Governor. The answer lay in the nature of the functions and duties of the Governor of the State under the

Constitution with respect to the election of senators.¹⁹² The Court pointed out:

There are in fact, three modes in which the place of a senator may be filled—popular election, choice by both Houses of Parliament, and appointment by the Governor with the advice of the Executive Council. In a case where the choice ought to be made by both Houses of Parliament it is quite clear that this Court could not command those Houses to meet and choose a senator and it would be immaterial whether a writ had or had not been issued by the Governor for holding a popular election. It is equally clear that the Governor could not be commanded to do an act which he can only do with the advice of the Executive Council. As, therefore, this Court would have no authority to correct by mandamus a mistake of one kind as to the mode of choice, it seems clear that it was not intended to have authority by mandamus in such matters at all.¹⁹³

It seems surprising that, in the course of landmark decisions on the authority of the Commonwealth to deal with internal threats to Australia's security, the High Court has made no reference to the responsibility placed explicitly by section 119 of the Constitution upon the Commonwealth to protect the States against invasion and domestic violence. In 1951, the Court held that the Parliament did not have the power to enact the *Communist Party Dissolution Act 1950* (Cth).¹⁹⁴ In 2007, the Court decided that the Parliament did have the power to insert anti-terrorism provisions in the *Criminal Code Act 1995* (Cth).¹⁹⁵ Possible sources of Commonwealth legislative power were section 51(vi) of the Constitution (naval and military defence of the Commonwealth and of the several States, and the control of the forces to execute and maintain the laws of the Commonwealth); sections 51(xxxix) and 61 of the Constitution (incidental power together with the executive power);¹⁹⁶ perhaps an implied legislative power for protection of the Commonwealth against domestic attack.¹⁹⁷ The Commonwealth's responsibility under section 119 was apparently irrelevant.¹⁹⁸

This fixation upon power to the exclusion of responsibility has been illustrated best in the High Court's demolition of the hard-fought financial settlement that the framers incorporated in the Constitution. At the heart of that settlement was the responsibility placed upon the Commonwealth to use its extensive fiscal authority, much of which was exclusive, to raise public revenues on behalf of all polities in the Australian union, Commonwealth and State, to be shared fairly among them.

The demolition began in 1908 with the Court's decision in the *Surplus Revenue Case* that the Commonwealth Parliament could evade the responsibility imposed upon it by section 94 of the Constitution to distribute

the surplus revenue of the Commonwealth to the States ‘on such basis as it deems fair’ by eliminating the surplus through the simple device of appropriating moneys from the Consolidated Revenue Fund for future Commonwealth expenditure.¹⁹⁹ The decision was a sad triumph of form over substance. A majority of the Court held that the outcome depended on the meaning of ‘surplus revenue’ in section 94 of the Constitution, having regard to the language of related sections 89 and 93;²⁰⁰ some also considered the power of the Parliament to enact the *Surplus Revenue Act 1908* (Cth);²⁰¹ Barton J framed the issue in terms of the validity of the appropriation acts.²⁰² Little attention was given to the historical context or structural implications of the numerous provisions of the Constitution that made up the financial settlement.²⁰³ Tellingly, Isaacs J merely remarked that the primary object of the financial clauses, read together and understood as part of a scheme of government, was ‘the creation and maintenance of the Commonwealth’,²⁰⁴ apparently devoid of any constitutional responsibility for alleviation of the parlous fiscal position of the States within the Australian union. A century later, nothing has changed.²⁰⁵

Subsequently, the High Court reinforced the Commonwealth’s financial dominance over the States in momentous decisions relating to income tax and excise duties without any regard to the responsibility for sharing the public revenues derived from Commonwealth taxation fairly with the States. In the *First Uniform Tax Case*, the Court upheld the validity of wartime Commonwealth legislation supplanting State income taxes.²⁰⁶ Although the States later succeeded in overturning Commonwealth legal barriers to their reinstatement of income taxes,²⁰⁷ they have been deterred from doing so by practical and political considerations. In *Ha v New South Wales*, the Court confirmed that the Commonwealth’s exclusive legislative power to impose excise duties now encompassed practically all taxation of commodities,²⁰⁸ far beyond the mere taxation of local manufacture of goods as thought at the time of federation.²⁰⁹

Finally, the demolition of the financial settlement was concluded by decisions of the Court on the scope of the power conferred on Parliament by section 96 of the Constitution to grant financial assistance to any State on such terms and conditions as the Parliament thinks fit. The Court rebuffed most attempts to constrain such terms and conditions,²¹⁰ apart from

exceptions attributable to specific provisions of the Constitution such as section 116²¹¹ and section 51 (xxxi).²¹² Again, the Court was preoccupied with Commonwealth power rather than its responsibility to share public revenues with the States. More recently, members of the Court have drawn attention to ‘the significance of s 96 in the federal structure’, but without acknowledgment of Commonwealth responsibility to the States in fiscal matters.²¹³

F. CONCLUSION

The core ingredients of the federal principle in the Australian union are politics, power, and responsibility. The Constitution establishes the Commonwealth polity and guarantees the continuation of the State politics. The States are part of the Commonwealth but distinct entities within it. The Constitution prescribes the complex relationship among the multiple politics based upon their limited authority and reciprocal responsibility.

The federal principle requires the maintenance of all politics and their capacity to function as such within the Australian union. While the Commonwealth needs little protection from the States, given the distribution of authority within the Australian union, the reverse is certainly not the case. The High Court has responded to the need for protection of the States by proscribing the exercise of Commonwealth authority that threatens the institutional integrity of the States.

The adequacy of that protection is open to question, however, especially in relation to the allocation of legislative authority between the Commonwealth and the States. The consistent refusal of the High Court to take account of the federal principle in determining the scope of Commonwealth legislative powers is surprising, on three counts. First, the failure of the Constitution to specify any exclusive legislative powers of the States leaves them vulnerable to unchecked expansion of Commonwealth powers expressed in ambulatory terms. Secondly, the capacity of States to function as distinct politics within the Australian union surely depends on their retention of some measure of exclusive legislative power; that can be achieved only by limitation of the scope of Commonwealth legislative powers since Commonwealth laws override inconsistent State laws. Thirdly, the High Court’s acknowledgment of the federal principle in recent cases

involving the scope of the executive power of the Commonwealth seems difficult to reconcile with its refusal to do so in cases involving Commonwealth legislative powers.

The neglect of reciprocal responsibility amounts to an even greater shortcoming in the operation of the federal principle in the Australian union. This deficiency may be attributable to the view that political means of recognition and enforcement of reciprocal responsibilities are both appropriate and adequate without any need to resort to legal means. The High Court's decision in the *Surplus Revenue Case* lends some support to it, and the plurality in the *Engineers Case* expressed a similar view with respect to determination of the scope of Commonwealth legislative powers. However, the Court soon acknowledged the incapacity of the political process to determine the scope of legislative authority in the federal union. Reliance upon Parliament to determine the scope of its own powers creates an obvious and insoluble conflict of interest. Precisely the same problem exists in relation to responsibilities. The failure of Parliament to accept and discharge its constitutional responsibilities is best illustrated by the sad fate of the financial settlement, established as a cornerstone of the Australian union.²¹⁴ In light of this historical experience, the persistent reticence of the High Court to enforce responsibility stands in stark contrast with its willingness to prescribe limits on power.

¹ *Commonwealth of Australia Constitution Act 1900* (UK), s 3; see also the preamble to this Act.

² *Commonwealth of Australia Constitution Act 1900* (UK), s 8

³ Chapter 4 'Independence'

⁴ *Commonwealth of Australia Constitution Act 1900* (UK), s 6

⁵ John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (Legal Books 1976) 332; they overlook a further occurrence, in s 51(xxxix).

⁶ *ibid* 333.

⁷ *ibid*.

⁸ *ibid* 334.

⁹ *ibid*; a more appropriate descriptor for this union would be 'confederate'.

¹⁰ *Federal Council of Australasia Act 1885* (UK).

¹¹ Cheryl Saunders, *The Constitution of Australia* (Hart Publishing 2011) 3–5.

¹² Official Report of the National Australasian Convention Debates (Sydney, 1891) 23 (Parkes); see also Official Report of the National Australasian Convention Debates (Adelaide, 1897) 395 (Barton).

¹³ *ibid*.

¹⁴ Official Report of the National Australasian Convention Debates (Sydney, 1891) 93 (Barton); see also Official Report of the National Australasian Convention Debates (Adelaide, 1897) 97, 642 (Higgins).

¹⁵ Official Report of the National Australasian Convention Debates (Adelaide, 1897) 395 (Barton); Quick and Garran (n 5) 418–19, 449–50

¹⁶ *ibid* 150–165; see also Saunders, *The Constitution of Australia* (n 11) 11–12.

¹⁷ Chapter 5 ‘Evolution’.

¹⁸ *Constitution*, s 106

¹⁹ *ibid* ss 52, 69, 90, 114, 115.

²⁰ *ibid* ss 106, 107; Andrew Inglis Clark, *Studies in Australian Constitutional Law* (1901) 12–13.

²¹ *Constitution*, s 123; see also s 128.

²² *ibid* s 124.

²³ Official Report of the National Australasian Convention Debates (Sydney, 1891) 23 (Parkes); see also Official Report of the National Australasian Convention Debates (Adelaide, 1897) 395 (Barton).

²⁴ *ibid*.

²⁵ Official Report of the National Australasian Convention Debates (Adelaide, 1897) 641–68, 1190; see also Official Report of the National Australasian Convention Debates (Sydney, 1897) 256–55.

²⁶ Official Report of the National Australasian Convention Debates (Sydney, 1891) 113 (Baker); see also Official Report of the National Australasian Convention Debates (Adelaide, 1897) 21 (Barton).

²⁷ Michael Crommelin, ‘The Federal Model’ in Gregory Craven (ed), *Australian Federation: Towards the Second Century* (Melbourne UP 1992) 33, 36–39.

²⁸ James Crawford, ‘The Legislative Power of the Commonwealth’ in Gregory Craven (ed), *The Convention Debates 1891–1898; Commentaries, Indices and Guide*, vol VI (Legal Books 1986) 113; see also Crommelin, ‘The Federal Model’ (n 27) 33, 39–40.

²⁹ Official Report of the National Australasian Convention Debates (Sydney, 1891) 185–88 (Dibbs), 228–29 (Gillies), 272 (McMillan), 301 (Abbott), 323 (Parkes); see Michael Crommelin, ‘The Executive’ in Gregory Craven (ed), *The Convention Debates 1891–1898; Commentaries, Indices and Guide*, Volume VI (Legal Books 1986) 127–30.

³⁰ Paul Finn, *Law and Government in Colonial Australia* (OUP) 1987.

³¹ Official Report of the National Australasian Convention Debates (Sydney, 1891) 35, 37 (Griffith); Official Report of the National Australasian Convention Debates (Adelaide, 1897) 175 (Isaacs).

³² *Constitution*, s 64.

³³ Crommelin, ‘The Executive’ (n 29) 136–42; see also Crommelin, ‘The Federal Model’ (n 27) 33, 40–43.

³⁴ *Constitution*, s 53.

³⁵ *ibid* s 57.

³⁶ *ibid* s 24.

³⁷ Official Report of the National Australasian Convention Debates (Sydney, 1891) 198 (Cockburn); see also 2:129, 445.

³⁸ Official Report of the National Australasian Convention Debates (Sydney, 1891) 23 (Parkes); see also Quick and Garran (n 5) 125.

³⁹ Cheryl Saunders, 'Fiscal Federalism—A General and Unholy Scramble' in Gregory Craven (ed), *Australian Federation: Towards the Second Century* (MUP 1992) 101, 103.

⁴⁰ Quick and Garran (n 5) 827; see also Saunders, 'Fiscal Federalism' (n 39) 104.

⁴¹ *Constitution*, s 1.

⁴² *ibid* ss 7, 24.

⁴³ Paul Finn, 'A Sovereign People, A Public Trust' in Paul D Finn (ed), *Essays on Law and Government*, vol 1 (Law Book Company 1995) 1, 24.

⁴⁴ *Constitution*, ss 8, 30, 31, 51(xxxvi); the Parliament provided otherwise in 1902.

⁴⁵ *ibid* s 8, 30.

⁴⁶ *ibid* s 7.

⁴⁷ *ibid* ss 7, 51(xxxvi).

⁴⁸ *ibid* ss 7, 13.

⁴⁹ *ibid* ss 9, 10, 51(xxxvi).

⁵⁰ *ibid* s 12.

⁵¹ *ibid* s 9.

⁵² *ibid* s 15.

⁵³ *ibid* ss 24, 28.

⁵⁴ *ibid* s 24.

⁵⁵ *ibid*.

⁵⁶ *ibid*.

⁵⁷ *ibid* ss 29, 31, 51(xxxvi).

⁵⁸ *ibid* s 53.

⁵⁹ *ibid* s 57.

⁶⁰ Chapter 31 'Power'.

⁶¹ *Constitution*, s 52.

⁶² *ibid* ss 90, 91, 114; see also s 51(ii).

⁶³ *ibid* ss 115, s 51(xii).

⁶⁴ *ibid* ss 114, 119.

⁶⁵ *ibid* s 121.

⁶⁶ *ibid* s 122.

⁶⁷ *ibid* s 51.

⁶⁸ *ibid* s 109.

⁶⁹ *ibid* s 92.

⁷⁰ *ibid* s 114.

⁷¹ *ibid* s 116.

⁷² *ibid* s 51(ii).

⁷³ *ibid* s 99.

⁷⁴ *ibid* s 117.

⁷⁵ *Constitution Act 1902* (NSW), s 5; cf *Constitution Act 1975* (Vic), s 16: 'to make laws in and for Victoria in all cases whatsoever'.

⁷⁶ But note *Australia Acts 1986* (Cth and UK), s 2.

⁷⁷ *Constitution*, s 106; see also s 107.

⁷⁸ *ibid* s 52.

- ⁷⁹ *ibid* s 109.
- ⁸⁰ *ibid* s 92.
- ⁸¹ *ibid* s 114.
- ⁸² *ibid* s 115.
- ⁸³ *ibid* s 117.
- ⁸⁴ *ibid* s 61.
- ⁸⁵ *ibid* s 62.
- ⁸⁶ The expression ‘Governor-General in Council’ means the Governor-General acting with the advice of the Federal Executive Council: *ibid* s 63.
- ⁸⁷ *ibid* s 64.
- ⁸⁸ *ibid*.
- ⁸⁹ *Victorian Stevedoring and General Contracting Co Pty Ltd v Dignan* (1931) 46 CLR 73.
- ⁹⁰ *Constitution*, s 61.
- ⁹¹ *ibid* s 71.
- ⁹² *ibid* s 106.
- ⁹³ *ibid* s 72.
- ⁹⁴ *ibid* s 73; see also s 74, which limits appeals to the Judicial Committee of the Privy Council from the High Court; *Australia Act 1986* (Cth) & (UK), s 11.
- ⁹⁵ *Constitution*, s 75.
- ⁹⁶ *ibid* s 76.
- ⁹⁷ *ibid* s 77.
- ⁹⁸ W Harrison Moore, *The Constitution of the Commonwealth of Australia* (John Murray 1903) 70.
- ⁹⁹ Chapter 33 ‘Co-operative Federalism’.
- ¹⁰⁰ Other matters would include the establishment of the High Court of Australia and the Interstate Commission: *Constitution*, ss 71, 101.
- ¹⁰¹ *ibid* ss 12, 15.
- ¹⁰² Quick and Garran (n 5) (monetary policy), 964 (defence).
- ¹⁰³ Official Report of the National Australasian Convention Debates (Sydney, 1897) 9 (Symons); Cheryl Saunders, ‘The Hardest Nut to Crack; The Financial Settlement in the Commonwealth Constitution’ in Gregory Craven (ed), *The Convention Debates 1891-1898; Commentaries, Indices and Guide*, vol VI (Legal Books 1986) 149.
- ¹⁰⁴ Saunders, ‘The Hardest Nut to Crack’ (n 103) 163.
- ¹⁰⁵ Saunders, ‘Fiscal Federalism’ (n 39) 108.
- ¹⁰⁶ Saunders, ‘The Hardest Nut to Crack’ (n 103) 165–69.
- ¹⁰⁷ Chapters I, II, and III.
- ¹⁰⁸ *Constitution*, s 106; see also ss 107, 108.
- ¹⁰⁹ *ibid* s 7; see also s 15.
- ¹¹⁰ *ibid* s 123.
- ¹¹¹ *ibid* s 124; cf s 121.
- ¹¹² *ibid* s 128.
- ¹¹³ *ibid* s 99; see also s 51(ii).
- ¹¹⁴ *ibid* ss 90, 92.
- ¹¹⁵ *ibid* s 92.
- ¹¹⁶ *ibid* s 117.

- ¹¹⁷ *ibid* s 118.
- ¹¹⁸ *ibid* s 12.
- ¹¹⁹ *ibid* s 15.
- ¹²⁰ *ibid* s 120.
- ¹²¹ *ibid* s 52(i).
- ¹²² *ibid* s 52(ii).
- ¹²³ *ibid* s 52(iii), 90.
- ¹²⁴ *ibid* s 114.
- ¹²⁵ *ibid*.
- ¹²⁶ *ibid* s 115.
- ¹²⁷ *ibid* s 119.
- ¹²⁸ *ibid* ss 115, 51(xii).
- ¹²⁹ *ibid* s 87.
- ¹³⁰ *ibid* ss 89, 93.
- ¹³¹ *ibid* s 94.
- ¹³² *ibid* s 96.
- ¹³³ Official Report of the National Australasian Convention Debates (Sydney, 1891) 198 (Cockburn).
- ¹³⁴ Saunders, *The Constitution of Australia* (n 11) 84.
- ¹³⁵ *D’Emden v Pedder* (1904) 1 CLR 91, 113–15.
- ¹³⁶ *Federated Amalgamated Government Railway and Tramway Service Association v New South Wales Railway Traffic Employees Association* (1906) 4 CLR 488, 537–38.
- ¹³⁷ Saunders, *The Constitution of Australia* (n 11) 85.
- ¹³⁸ *Amalgamated Society of Engineers v Adelaide Steamship Co Ltd* (1920) 28 CLR 129, 145 (Knox CJ, Isaacs, Rich and Starke JJ) (‘*Engineers’ Case*’).
- ¹³⁹ *ibid* 146.
- ¹⁴⁰ William Harrison Moore, ‘The Crown as Corporation’ (1904) 20 Law Quarterly Review 351, 359; see *Sue v Hill* (1999) 199 CLR 462, 501 (Gleeson CJ, Gummow and Hayne JJ).
- ¹⁴¹ *Minister of Works (WA) v Gulson* (1944) 69 CLR 338, 350–51 (Latham CJ).
- ¹⁴² *Pirrie v McFarlane* (1925) 36 CLR 170, 184 (Knox CJ), 192 (Isaacs J), 216–17 (Higgins J), 229 (Starke J); *West v Commissioner of Taxation (NSW)* (1937) 56 CLR 657, 668–69 (Latham CJ), 681 (Dixon J), 687 (Evatt J).
- ¹⁴³ *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31.
- ¹⁴⁴ *ibid*, 55 (Latham CJ), 65–66 (Rich J), 70 (Starke J), 77, 81–82 (Dixon J), 99 (Williams J).
- ¹⁴⁵ *ibid* 82 (Dixon J).
- ¹⁴⁶ *Engineers’ Case* (n 138) 151–52 (Knox CJ, Isaacs, Rich and Starke JJ).
- ¹⁴⁷ *Austin v Commonwealth* (2003) 215 CLR 185, 258 (Gaudron, Gummow and Hayne JJ); quoted in *Fortescue Metals Group Limited v The Commonwealth* (2013) 250 CLR 548, 610 (Hayne, Bell and Keane JJ) (‘*MRRT Case*’).
- ¹⁴⁸ *Constitution*, s 109; see *Melbourne Corporation* (n 143) 82–83 (Dixon J).
- ¹⁴⁹ *Pirrie v McFarlane* (1925) 36 CLR 170, 184 (Knox CJ), 217 (Higgins J), 229 (Starke J); *West* (n 142) 668–69 (Latham CJ), 681 (Dixon J), 687 (Evatt J).
- ¹⁵⁰ *Melbourne Corporation* (n 143) 61 (Latham CJ), 75 (Starke J); cf 66 (Rich J), 99–100 (Williams J); *contra* 94 (McTiernan J).

- ¹⁵¹ *ibid* 81 (Dixon J).
- ¹⁵² *ibid* 52–53, 55, 61–62 (Latham CJ), 65–66 (Rich J), 70, 74–75 (Starke J), 77–83 (Dixon J), 99 (Williams J); *contra* 88–89 (McTiernan J).
- ¹⁵³ *Queensland Electricity Commission v Commonwealth* (1985) 159 CLR 192.
- ¹⁵⁴ *Conciliation and Arbitration (Electricity Industry) Act 1985* (Cth).
- ¹⁵⁵ *Queensland Electricity Commission* (n 153) 217; see also 216–19 (Wilson J), 234–36 (Brennan J).
- ¹⁵⁶ *ibid* 260; see also 205–07 (Gibbs CJ), 245–46 (Deane J).
- ¹⁵⁷ *ibid* 207.
- ¹⁵⁸ (1994–95) 184 CLR 188, 227 (Mason CJ, Brennan, Deane, Toohey, Gaudron and McHugh JJ).
- ¹⁵⁹ *ibid* 228.
- ¹⁶⁰ *ibid* 230.
- ¹⁶¹ *ibid* 230–31.
- ¹⁶² *ibid* 249–50.
- ¹⁶³ *Queensland Electricity Commission* (n 153) 260.
- ¹⁶⁴ *Clarke v Commissioner of Taxation* (2009) 240 CLR 272.
- ¹⁶⁵ *Superannuation Contributions Tax (Members of Constitutionally Protected Superannuation Funds) Imposition Act 1997* (Cth).
- ¹⁶⁶ *Austin* (n 147).
- ¹⁶⁷ *Queensland Electricity Commission* (n 153) 217.
- ¹⁶⁸ *Austin* (n 147) 258–59.
- ¹⁶⁹ *ibid* 249.
- ¹⁷⁰ (n 164) 307; see also 312 (Hayne J).
- ¹⁷¹ *ibid* 298.
- ¹⁷² Crommelin, ‘The Federal Model’ (n 27) 33, 43.
- ¹⁷³ *Constitution*, s 61.
- ¹⁷⁴ *ibid* s 106.
- ¹⁷⁵ *R v Barger* (1908) 6 CLR 41, 67 (Griffith CJ, Barton and O’Connor JJ).
- ¹⁷⁶ *Engineers’ Case* (n 138) 154 (Knox CJ, Isaacs, Rich and Starke JJ).
- ¹⁷⁷ *Melbourne Corporation* (n 143) 82.
- ¹⁷⁸ *South Australia v The Commonwealth* (1942) 65 CLR 373 (‘First Uniform Tax Case’); *Victoria v The Commonwealth* (1957) 99 CLR 575 (‘Second Uniform Tax Case’); *Victoria v The Commonwealth* (1971) 122 CLR 353 (‘Payroll Tax Case’).
- ¹⁷⁹ *The Commonwealth v Tasmania* (1983) 158 CLR 1 (‘Tasmanian Dam Case’).
- ¹⁸⁰ *Western Australia v The Commonwealth* (1995) 183 CLR 373 (‘Native Title Act Case’).
- ¹⁸¹ *New South Wales v The Commonwealth* (2006) 229 CLR 1, 119–20 (‘Work Choices Case’).
- ¹⁸² *MRRT Case* (n 147) 607–11 (Hayne, Bell and Keane JJ); see also 563 (French CJ), 636–37 (Kiefel J).
- ¹⁸³ *ibid* 611.
- ¹⁸⁴ (2009) 238 CLR 1, 56–64 (French CJ), 83–88 (Gummow, Crennan and Bell JJ), 114–24 (Hayne and Kiefel JJ), 177–99 (Heydon J).
- ¹⁸⁵ *ibid* 118–19 (in dissent); see also 181, 199 (Heydon J), cf 60 (French CJ), 85 (Gummow, Crennan and Bell JJ).
- ¹⁸⁶ (2012) 249 CLR 156.

- ¹⁸⁷ *ibid* 184 (French CJ), 237 (Gummow and Bell JJ), 253–54 (Hayne J), 346 (Crennan J), 393–94 (Kiefel J).
- ¹⁸⁸ *ibid* 205; see also 234 (Gummow and Bell JJ), 248, 252 (Hayne J).
- ¹⁸⁹ (2014) 252 CLR 416.
- ¹⁹⁰ *ibid* 469 (French CJ, Hayne, Kiefel, Bell and Keane JJ), 471 (Crennan J).
- ¹⁹¹ (1907) 4 CLR 1492 (Griffith CJ, Barton, O'Connor, Isaacs and Higgins JJ).
- ¹⁹² *ibid* 1510.
- ¹⁹³ *ibid* 1512; see also Mark Leeming, 'Judicial Review of Vice-Regal Decisions: *South Australia v O'Shea*, Its Precursors and Its Progeny' (2015) 36 *Adelaide Law Review* 1.
- ¹⁹⁴ *Australian Communist Party v The Commonwealth* (1951) 83 CLR 1 (Latham CJ, dissenting) ('*Communist Party Case*').
- ¹⁹⁵ *Thomas v Mowbray* (2007) 233 CLR 307.
- ¹⁹⁶ Note also *Pape* (n 184) 83 (Gummow, Crennan and Bell JJ): 'the phrase "maintenance of this Constitution" in s 61 ... conveys the idea of the protection of the body politic or nation of Australia'.
- ¹⁹⁷ *Communist Party Case* (n 194) 259–60 (Fullagar J; cf *Thomas v Mowbray* (n 195) 361–62 (Gummow and Crennan JJ).
- ¹⁹⁸ cf *Pape* (n 184) 83 (Gummow, Crennan and Bell JJ): 'The *Constitution* assumes ... in s 119 ... the existence and conduct of activities by the "Executive Government of the State"'.
- ¹⁹⁹ *New South Wales v The Commonwealth* (1908) 7 CLR 179 ('*Surplus Revenue Case*').
- ²⁰⁰ *ibid* 189 (Griffith CJ), 197 (O'Connor J), 200 (Isaacs J), 205 (Higgins J).
- ²⁰¹ *ibid* 199 (Isaacs J), 205 (Higgins J).
- ²⁰² *ibid* 192.
- ²⁰³ *Constitution* ss 90, 81, 83, 87, 89, 93, 94, 96.
- ²⁰⁴ *Surplus Revenue Case* (n 199) 201.
- ²⁰⁵ *Pape* (n 184) 83 (Gummow, Crennan and Bell JJ); note also *Williams v The Commonwealth* (n 186) 245 (Hayne J).
- ²⁰⁶ *First Uniform Tax Case* (n 178).
- ²⁰⁷ *Second Uniform Tax Case* (n 178).
- ²⁰⁸ (1997) 189 CLR 465.
- ²⁰⁹ *Peterswald v Bartley* (1904) 1 CLR 497 (Griffith CJ, Barton and O'Connor JJ).
- ²¹⁰ *Victoria v The Commonwealth* (1926) 38 CLR 399 ('*Federal Roads Case*'); *First Uniform Tax Case* (n 178); *Deputy Federal Commissioner of Taxation (NSW) v W R Moran Pty Ltd* (1939) 61 CLR 735; *Second Uniform Tax Case* (n 178).
- ²¹¹ *Attorney-General for Victoria; Ex rel Black v The Commonwealth* (1981) 146 CLR 556.
- ²¹² *P J Magennis Pty Ltd v The Commonwealth* (1949) 80 CLR 382; *ICM Agriculture Pty Ltd v The Commonwealth* (2009) 240 CLR 140; *Spencer v The Commonwealth* (2009) 241 CLR 118; *Williams v The Commonwealth* (n 186) 235 (Gummow and Bell JJ).
- ²¹³ *Williams v The Commonwealth* (n 186) 235–36 (Gummow and Bell JJ).
- ²¹⁴ The equally sad fate of the Interstate Commission provides another example.

CHAPTER 36

FEDERAL JURISDICTION

JAMES STELLIOS

A. INTRODUCTION

WHEN lamenting the adoption by the framers of the Constitution of the American conception of federal jurisdiction, Sir Owen Dixon once said:

But the Framers of the Australian Constitution had studied closely the principles upon which the American Constitution dealt with judicial power and found themselves unable to believe that these principles were not an integral part of federalism. Accordingly they established a federal jurisdiction extending actually or potentially to much the same description of matters as are covered by federal jurisdiction [in the United States].¹

It is certainly true that the matters of federal jurisdiction identified in sections 75 and 76 closely track the territory of federal jurisdiction identified in article III of the United States Constitution. However, it is not true, as a general proposition, that the framers of the Constitution closely studied the principles upon which the American Constitution dealt with judicial power. Specifically, it is not true that the framers considered, in any detailed way, the necessity of federal jurisdiction to the Australian conditions of federalism.

In the United States the creation of federal jurisdiction was the necessary concomitant of the establishment of the judicial arm of federal government which, in turn, was driven by particular political, social, and economic forces. The same could not be said of the conditions for Australian federalism. Indeed, as Sir Owen suggested, there were good reasons in the Australian context for a unitary system of courts to enforce the totality of Australian law. ‘Our conception of the unity of the law’, he said, ‘might naturally have led us to regard the courts of law as established to administer

justice, not as agents either of State or of Commonwealth.’² In short, federalism Australian-style did not require a federal system of courts.

This discordance of concept and context was further dislocated by the ‘autochthonous expedient’: the facility provided to Parliament for the use of State courts to exercise federal jurisdiction. What may have been achieved through the creation of a unitary system of courts was to be achieved through a convoluted judicial structure. The judicial framework thus presented by the framers lacked a coherent narrative, and left the High Court with much work to do in identifying a normative framework for the exercise of federal jurisdiction, particularly the place of State courts within that system.

The primary purpose of this chapter is to identify the origins, content, and operation of federal jurisdiction in Australia. The secondary purpose is to suggest that the discordance between the concept and purpose of federal jurisdiction left the High Court with the challenging task of conceptualizing ‘judicial federalism’.³ In executing that task, High Court jurisprudence has presented differing conceptions of the place of State courts within the federal judicial system.

B. AMERICAN ORIGINS AND AUSTRALIAN APPROPRIATIONS

Article III of the United States Constitution establishes the judicial arm of federal government. The ‘judicial power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish’ (article III, section 1). The circumstances in which this judicial power could be exercised were enumerated in section 2(1): ‘all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority; to all Cases affecting Ambassadors, other public Ministers and Consuls; to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a party; to Controversies between two or more States, between a State and Citizens of another State, between Citizens of different States, between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.’⁴

Although there was little debate about these provisions during the American Conventions, it is clear that the content of federal jurisdiction was a direct consequence of the American political, social, and economic experience that preceded the drafting of that clause. The creation of federal jurisdiction would ensure uniformity of interpretation of the Constitution and federal laws, and to facilitate and protect foreign relations and transborder (State and national) trade and finance in the face of partisan local judiciaries and legislatures.⁵

This was not the position of the colonies in the late nineteenth century. The unity of the common law and uniform application of Imperial laws was maintained by the Privy Council. There were no discernible concerns about the capacity of colonial judiciaries to deliver even-handed justice and, in any event, there was the safeguard of appeal to the Queen in Council. Furthermore, foreign relations were not the domain of the colonies.

Neither the movement to federation, nor the Convention debates, reveal any political, social, or economic factors requiring adoption of the American model of federal jurisdiction. The *Federal Council of Australasia Act 1885* (Imp) made no provision for a federal judicial system. The Resolution of the Australasian Federal Conference in 1890 referred only to a union of Colonies ‘under one legislative and Executive Government’.⁶ During the course of those proceedings, Alfred Deakin spoke of establishing a federal judiciary consisting of a court of appeal and federal courts.⁷ Having identified the areas of federal jurisdiction in article III of the United States Constitution, he said that ‘[e]xactly similar circumstances must arise throughout Australia’. However, why this was so was not explained. Indeed, in response to concerns that the establishment of federal courts would create unnecessary additional expense, Deakin said that State courts could be ‘federalized’:⁸ a suggestion that was antithetical to any distrust of State judiciaries.

The Resolutions to be discussed during the 1891 Convention referred only to the establishment of a High Court of Appeal.⁹ However, it became clear during the initial exchanges on the resolution that the Convention’s brief was to consider the creation of a set of federal courts.¹⁰ The draft Constitutions circulated by Clark¹¹ and Kingston¹² ahead of the 1891 Convention listed as heads of federal jurisdiction the same items found in article III. In explaining the drafting of these provisions, Clark made it clear

that he had ‘followed the American model’ in proposing ‘the establishment of a Federal Judicatory separate and distinct from the Judicial system of the several Provinces’ and that the ‘matters ... placed under the jurisdiction of the Federal Judicatory are the same as those placed by the Constitution of the United States under the jurisdiction of the Supreme Court of the American Union’.¹³ The only additional matter referred to in the Clark draft was what became section 75(v) of the Constitution. However, as will be further noted, rather than seeking to add an additional head of jurisdiction, the inclusion of that provision was an attempt by Clark to ensure that the High Court had *original* jurisdiction in such matters in response to the decision of the United States Supreme Court in *Marbury v Madison*.¹⁴ There was little consideration of these provisions during the debates and they found their place in the final 1891 draft of the Constitution.

Three comments may be made at this stage of the drafting history. First, following the United States model, the identification of matters of federal jurisdiction was concomitant to the establishment of federal courts. Secondly, federal courts were seen as necessary otherwise it would be an ‘imperfect’ Constitution¹⁵ or a ‘mutilated government’.¹⁶ Thirdly, however, there was no clear explanation as to why a separate set of federal courts with federal jurisdiction was needed for an effective federal system of government. Why, as Sir Owen later suggested, could there not be a unitary system of courts operating within a federal Constitution? Alternatively, as Sir Owen said when giving evidence to the Royal Commission on the Constitution, why not have State courts determining the kinds of cases identified as enlivening federal jurisdiction?¹⁷ There were concerns expressed during the Convention Debates about protecting the flow of British capital, but those concerns were ventilated in the context of proposals to sever appeals to the Privy Council and establish the High Court as the ultimate court of appeal.¹⁸ Unlike the American experience, the judicial status quo posed no threat to interstate or international trade and finance, and one way or another there would be an ultimate court of appeal ensuring uniformity in the interpretation of Imperial laws (including the Constitution) and federal laws, and the application of common law principles. And, it was easy enough, as was achieved by covering clause 5, to require State courts to apply the Constitution and federal statutes, necessarily subjecting the Commonwealth Parliament and federal executive

to judicial review. Of course, closer attention would have been required to the institutional design of such a system (eg, appointment of judges and questions of funding). However, there was nothing from the historical context that suggested that the judicial system in Australia needed to be structured along federal lines. It would seem that in this respect, as in many others, the United States blueprint ‘damped the smouldering fires’ of the framers’ originality.¹⁹ The American conception of federal jurisdiction was thus appropriated to a different context and with no clear normative framework.

The 1897–98 Convention revealed only two additional points of significance for federal jurisdiction. The first was the adoption, for reasons of economy, of the ‘autochthonous expedient’. The creation of a lower set of federal courts would be an expensive proposition and, having sought the advice of Sir Samuel Griffith, the Convention agreed to add to the Constitution this Australian variation to the American model which ultimately found its place as section 77(iii) of the Constitution.²⁰ However, the acceptance that State courts could be used to exercise federal jurisdiction sat uncomfortably with the premise that underpinned the American adoption of federal courts and federal jurisdiction. When commenting on section 77 of the Constitution, Quick and Garran observed that ‘[c]onfidence in the integrity and impartiality of the Bench prevents any jealousy or distrust of this wide federal jurisdiction; and the same confidence makes it possible to contemplate without misgiving the exercise of federal jurisdiction by State courts’.²¹ By contrast, the adoption of federal courts in the United States was grounded firmly in the perceived failings of State courts.

The second point of significance from the 1897–98 Convention was the omission and then re-insertion of the forerunner to section 75(v). As will be discussed below, there were two relevant purposes for the re-insertion of section 75(v). The first purpose can be identified as an *accountability* purpose: section 75(v) was designed to ensure that Commonwealth officers were held to account for their actions. There is nothing about this expressed purpose that necessarily required the creation of federal courts. The second purpose can be described as one *protective* of Commonwealth officers from the exercise of State judicial power. This might well have offered a forceful conceptual foundation for the establishment of federal jurisdiction for litigation involving the new federal body politic. However, it sat

uncomfortably with the acceptance of the autochthonous expedient for the exercise of such federal jurisdiction.

When summing up at the end of the Melbourne session in 1898, Barton said that '[w]e have provided for a Judiciary, which will determine questions arising under this Constitution, and with all other questions which should be dealt with by a Federal Judiciary'.²² But, nothing during the 1897–98 Convention debates sheds further light on the reasons for the establishment of federal jurisdiction. To the contrary, the discordance between the concept of federal jurisdiction and the Australian context was further dislocated by the adoption of the autochthonous expedient, leaving the High Court with a difficult task of conceptualizing judicial federalism.

C FEDERAL JURISDICTION IN OPERATION

This chapter will now turn to consider the operation of federal jurisdiction in Australia.

1. Untangling Federal Jurisdiction

The concept of 'federal jurisdiction' needs some untangling. The expression appears in four sections in Chapter III of the Constitution. Section 71 vests the judicial power of the Commonwealth in the High Court, lower federal courts, and 'such other courts as it invests with federal jurisdiction'. Section 73(ii) provides the High Court with appellate jurisdiction from the judgments of courts 'exercising federal jurisdiction'. Section 77(iii), giving effect to the autochthonous expedient, provides Parliament with power to vest 'any court of a State with federal jurisdiction'. Finally, section 79 provides that '[t]he federal jurisdiction of any court may be exercised by such number of judges as the Parliament prescribes'.

The concept of federal jurisdiction, however, has various dimensions, three of which are relevant for present purposes.²³ First, the expression is descriptive of the subject matters in relation to which Commonwealth judicial power may be exercised. Those subject matters are set out in sections 75 and 76 and largely mirror the territory of federal jurisdiction in article III, section 2 of the United States Constitution. These matters will be explored in more detail below.

Secondly, the expression refers to the source of authority to exercise judicial power. As Griffith CJ said in *Ah Yick v Lehmert*,²⁴ the expression means ‘the authority to exercise the judicial power of the Commonwealth ... within limits prescribed’. In this sense, it can be distinguished from State jurisdiction to exercise judicial power. As Gleeson CJ, Gaudron and Gummow JJ said in *Australian Securities and Investments Commission v Edensor Nominees Pty Ltd*,²⁵ State jurisdiction is ‘the authority which State Courts possess to adjudicate under the State Constitution and laws’ whereas federal jurisdiction is ‘the authority to adjudicate derived from the Commonwealth Constitution and laws’. In this second sense, federal jurisdiction can also be distinguished from *Commonwealth judicial power*. They are distinct concepts.²⁶

Thirdly, federal jurisdiction also involves the notion of a ‘law area’. As it was said in *John Pfeiffer Pty Limited v Rogerson*, ‘with respect to matters that fall within federal jurisdiction, the Commonwealth of Australia is, itself, a law area’.²⁷ That federal jurisdiction in this sense extends ‘throughout the Commonwealth’²⁸ has important implications for the way in which litigation is conducted in federal and State courts exercising federal jurisdiction (when used in the sense of federal authority to resolve a dispute).

In short, a court will be exercising federal jurisdiction if (i) a dispute falls within a matter of federal jurisdiction (the first sense); and (ii) the court has been conferred by the Constitution or Parliament with federal authority to determine that dispute (the second sense). If a court is exercising federal jurisdiction in this second sense, its jurisdiction is federal (ie, national) in character extending throughout the Commonwealth (the third sense). These will now be considered in turn.

2. The Matters of Federal Jurisdiction

The nine matters of federal jurisdiction are set out in sections 75 and 76: section 75 identifies matters (i) arising under any treaty; (ii) affecting consuls or other representatives of other countries; (iii) in which the Commonwealth, or a person suing or being sued on behalf of the Commonwealth, is a party; (iv) between States, or between residents of different States, or between a State and a resident of another State; and (v) in which a writ of mandamus or prohibition or an injunction is sought

against an officer of the Commonwealth. Section 76 identifies matters (i) arising under this Constitution, or involving its interpretation; (ii) arising under any laws made by the Parliament; (iii) of Admiralty and maritime jurisdiction; and (iv) relating to the same subject matter claimed under the laws of different States.

As Gummow J emphasized in *Truth About Motorways v Macquarie Infrastructure Investment Management Ltd*²⁹ the conditions enlivening federal jurisdiction differ across the various matters. Some matters (eg, sections 75(ii), (iii), and (iv)) are identified ‘by the identity of the parties not by the source of the rights and liabilities’. Others are identified ‘by the source of those rights and liability’ (eg, ss 76(i), (ii), and (iii)) or ‘by the nature of the remedy sought against a party who answers particular description (as in s 75(v))’. Identifying whether a court is exercising federal jurisdiction must, therefore, begin with an appreciation of the matters of federal jurisdiction. This chapter will consider the heads of federal jurisdiction in three groupings: (a) sections 75(iii) and (v); (b) sections 76(i) and (ii); and (c) the remaining heads.

a) Section 75(iii) and (v)

Inglis Clark’s draft Constitution provided in clause 62 that the ‘judicial power of the Federal Dominion of Australia’ would extend to various matters including ‘all cases in which the Federal Dominion of Australasia shall be a party’ (clause 62(v)). In clauses 63 and 64, Inglis Clark then allocated matters of federal jurisdiction to *either* the original jurisdiction *or* the appellate jurisdiction of the High Court. Included in clause 63 within the *original* jurisdiction of High Court were cases ‘in which a Writ of Mandamus or Prohibition shall be sought against a Minister of the Crown for the Federal Dominion of Australasia’.³⁰ Such a matter was not separately identified in the list of federal matters in clause 62. The same pattern and structure was adopted in the first official draft of the Constitution.³¹

There are two points that may be made about these early draft provisions. First, it followed the pattern of provisions found in article III of the United States Constitution: there was a list of cases in relation to which the judicial power of the United States extended and there was then an allocation of those cases to *either* the original *or* appellate jurisdiction of the Supreme

Court. Secondly, the addition of the prerogative writs jurisdiction to these provisions was in direct response to the United States Supreme Court's decision in *Marbury v Madison* in which the Supreme Court held that it lacked original jurisdiction to issue mandamus against James Madison, the Secretary of State, to compel the delivery of a commission to William Marbury. The difficulty to be overcome, as seen by Inglis Clark, was the absence of original jurisdiction for the High Court in relation to such claims. Thus, as originally conceived, what is now the section 75(v) matter of federal jurisdiction was not intended to be a separate head of jurisdiction to the other enumerated heads. Such claims for prerogative relief must have been assumed by Inglis Clark to fall within the enumerated heads of jurisdiction, including the forerunner to section 75(iii). On this view, section 75(v) had no other, free-standing purpose.

However, confusion then followed in the drafting process and what transpired fundamentally altered the viewed purpose of section 75(v). During the 1897–98 Convention, in the absence of Inglis Clark and following some confusion as to its intended purpose, the provision was deleted. With Inglis Clark's intercession from Tasmania, the provision was then reinstated, but not in the way initially conceived. This drafting history is too detailed to be outlined here.³² What is important is that two views emerged as to the purpose of section 75(v): the first was a view that section 75(v) was needed to ensure that there was jurisdiction in which Commonwealth officers could be held accountable for their actions (the *accountability* view); the second was a view that Commonwealth officers needed to be protected from an exercise of State judicial power by State courts (the *protection of Commonwealth officers* view).

It is the accountability view that has been accepted by the High Court as the purpose of section 75(v). In *Plaintiff S157/2002 v Commonwealth*,³³ five judges said:

The reservation to this Court by the Constitution of the jurisdiction in all matters in which the named constitutional writs or an injunction are sought against an officer of the Commonwealth is a means of assuring to all people affected that officers of the Commonwealth obey the law and neither exceed nor neglect any jurisdiction which the law confers on them.³⁴

The alternative explanation of section 75(v) as protective of federal officers has not been a feature of High Court cases.

The accountability view has also found reflection in the cases on section 75(iii) despite there being little discussion of section 75(iii) during the Convention debates. By contrast to the accepted purpose of section 75(v), there is also a strong hint of the view that federal jurisdiction in section 75(iii) offers protection to Commonwealth officers. In *Bank of NSW v Commonwealth*,³⁵ when identifying a conceptual link between sections 75(iii) and (v), Dixon J said:

The purpose of s 75(iii) obviously was to ensure that the political organization called into existence under the name of the Commonwealth and armed with enumerated powers and authorities, limited by definition, fell in every way within a jurisdiction in which it could be impleaded and which it could invoke. Section 75(iii) cannot be read without s 75(v) which, it is apparent, was written into the instrument to make it constitutionally certain that there would be a jurisdiction capable of restraining officers of the Commonwealth from exceeding Federal power. ...

At all events, the purpose of providing a jurisdiction which might be invoked by or against the Commonwealth could not, in modern times, be adequately attained and secured against colourable evasion, unless it was expressed so as to cover the enforcement of actionable rights and liabilities of officers and agencies in their official and governmental capacity, when in substance they formed part of or represented the Commonwealth.³⁶

With these respective purposes in mind, the High Court has given each of section 75(iii) and (v) a broad and expansive scope of operation. In relation to section 75(iii), the identified purposes have ensured a broad reading for the expression ‘the Commonwealth, or a person suing or being sued on behalf of the Commonwealth’ to avoid ‘colourable evasion’.³⁷ The Court will look, as a matter of substance, to factors of control in determining whether an officer or agency ‘form[s] part of or represent[s] the Commonwealth’.³⁸

‘Officers of the Commonwealth’ for the purposes of section 75(v) includes *executive* and *judicial* officers,³⁹ although State court judges exercising federal jurisdiction do not fall within the expression.⁴⁰ Whether private persons exercising federal statutory powers can be ‘officers of the Commonwealth’ remains unclear.⁴¹ So is the question of whether a corporate personality takes a person outside the expression.⁴² Preventing ‘colourable evasion’ by the Commonwealth may well justify taking a broad view of the expression in these contexts.⁴³

The three remedies identified in section 75(v) are mandamus, prohibition, and injunction. The first two, now referred to as ‘constitutional writs’,⁴⁴ have their origins in the prerogative writs. The injunction is equitable in origin, and it is unclear why that additional remedy was included in section 75(v). It did not form part of Inglis Clark’s draft clause, and was not in the provision that was struck out of the draft Constitution during the 1897–98 Convention debates. It appeared, without explanation, in the clause that was reintroduced late in the 1897–98 Convention. What appears to be accepted is that, unlike the constitutional writs, injunction is not controlled by jurisdictional error.⁴⁵ It is unclear why other prerogative writs were not included.⁴⁶ However, the Court has the power to issue those remedies if they are required to resolve the dispute otherwise falling within the Court’s jurisdiction.⁴⁷

It is now well accepted that the constitutional writs are driven by the concept of jurisdictional error.⁴⁸ There will be jurisdictional error attracting mandamus where an officer of the Commonwealth has failed to exercise a duty; there will be jurisdictional error attracting prohibition where an officer has exceeded his or her authority. The task of differentiating between jurisdictional error and non-jurisdictional error has been recognized by the Court as being outcome driven. In *Kirk v Industrial Relations Commission of NSW*,⁴⁹ the Court recognized that the concept played a ‘functional’ role ‘to validate review when review is felt to be necessary’. It is not ‘a metaphysical absolute but simply expresses the gravity of the error’.⁵⁰ The traditional common law grounds of review have been accepted to give rise to jurisdictional error and, in an age of statutes, failure to comply with mandatory requirements will also provide the basis for a claim for jurisdictional error.⁵¹

The jurisdiction under section 75(v) has been put under strain by legislative attempts to limit the scope of judicial review, flushing out the Court’s understanding of the purpose to be served by that provision. A classic form of privative clause seeks to insulate a decision from being ‘challenged, appealed against, quashed or called into question, or be subject to prohibition, mandamus or injunction, in any court on any account whatever’.⁵² The inclusion of a privative clause within a legislative scheme creates a tension. On the one hand, a statutory scheme delimits and limits the scope of statutory authority or jurisdiction. On the other hand, the

privative clause seeks to shield from judicial review decisions that exceed the scope of that authority or jurisdiction. Obviously, a literal reading of these provisions would be contrary to section 75(v) which operates on the concept of jurisdictional error. But, giving some meaning to the operation of these provisions in the face of section 75(v) has proved difficult.

In *Hickman*⁵³ it appeared that the Court was prepared to give such clauses an expansive operation. Provided the decision was ‘a bona fide attempt to exercise [the] power, that it relate[d] to the subject matter of the legislation, and that it [was] reasonably capable of reference to the power given to the [decision-maker]’,⁵⁴ then the privative clause was seen as operating to insulate the decision from judicial review. On that view, the privative clause indirectly operated to expand the jurisdiction of the decision-maker by impliedly relaxing the statutory delimitations and limitations on the authority of the decision-maker. Provided the *Hickman* provisos were satisfied, the decision-maker was considered to be operating within their jurisdiction. Such a curious reconciliation of conflicting statutory provisions permitted Parliament, in a wholesale way, to immunize decision-making from judicial review without close consideration of the particular delimitations or limitations set out in the context of a particular statutory scheme. If section 75(v) is indeed about accountability, the *Hickman*-style privative clause shields *legal* and *political* accountability: it expands the decision-maker’s authority indirectly by excluding the jurisdiction of the courts and does so in a wholesale way without sensitivity to the particular legislative provisions in question.

It is understandable, then, that this view has not prevailed. In *S 157*,⁵⁵ a case considering a *Hickman*-style privative clause inserted into the *Migration Act 1958* (Cth), the Court reconceived how privative clauses are seen to operate. Rather than operating to expand the scope of the decision-maker’s jurisdiction, the *Hickman* provisos were seen by the Court as limiting the insulation offered by a privative clause. What insulation is actually given to a decision-maker’s decision has to be determined by a context sensitive consideration of the delimitations and limitations on the decision-maker’s authority.⁵⁶ Although the Court left open the possibility that a *Hickman* clause might operate, in some limited circumstances, in the way in which *Hickman* was traditionally understood (ie, expanding the jurisdiction of the decision-maker), on the Court’s reasoning, the

circumstances would be rare indeed. Context-specific analyses of statutory authority would seem to be unassisted by a generally worded, wholesale exclusion of a court's review jurisdiction.

As it unfolded, the Court in fact read the privative clause in a way that gave it no work to do in identifying the scope of the decision-maker's jurisdiction. The Court held that 'decisions' subject to the privative clause included only decisions unaffected by jurisdictional error. If there was jurisdictional error, which was the very point of engaging in the statutory reconciliation process, then the privative clause was inoperative. The necessary consequence was that the privative clause had no role to play in the reconciliation process both because of its imprecision and overreach and because its operation could not be self-referential. The Court supported its reasoning by emphasizing the accountability role performed by section 75(v).⁵⁷

The Court has been more accommodating with another form of clause that seeks to limit the scope for judicial review of Commonwealth decision-making. In *Futuris*,⁵⁸ the Court considered a 'no-invalidity clause'⁵⁹ in section 175 of the *Income Tax Assessment Act 1936* (Cth): '[t]he validity of any assessment shall not be affected by reason that any of the provisions of this Act have not been complied with'. Unlike the classic *Hickman*-style clause, this type of provision directly seeks to expand the jurisdiction of a decision-maker by deeming a decision to be valid despite non-compliance with statutory limitations or requirements. However, it does so in a wholesale way without particular attention to the delimitations and limitations on the decision-maker's jurisdiction. The High Court held in *Futuris* that this style of clause was effective to expand the jurisdiction of the decision-maker. It may be, however, that any residual concerns about accountability were addressed by the comprehensive scheme within the Act for reviews and appeals of tax assessment.⁶⁰

b) Sections 76(i) and (ii)

The Constitution and Commonwealth laws are given their binding force by covering clause 5 to the Constitution. In the absence of federal jurisdiction, State courts were bound to apply and give effect to constitutional and federal statutory provisions. Sections 76(i) and (ii) merely identify these as matters of federal jurisdiction. The basic principles underlying both

provisions are clear and expansive. The classic statement about s 76(ii), which is equally applicable to s 76(i), is ‘that a matter may properly be said to arise under a federal law if the right or duty in question in the matter owes its existence to federal law or depends upon federal law for its enforcement’.⁶¹ To demonstrate, the case of *LNC Industries v BMW*⁶² involved a contractual dispute between parties where the subject matter of the contract was an import licence granted under Commonwealth legislation. As the Court said, the ‘very subject of the issue between the parties [was] an entitlement under the Regulations’⁶³ and consequently, the rights or duties in question owed their existence to a federal law and enlivened the jurisdiction in section 76(ii). Similarly, the Commonwealth legislative scheme for the registration and enforcement of arbitration awards was considered in *TCL Air Conditioner (Zhongshan) Co Ltd v Judges of the Federal Court of Australia* to confer federal jurisdiction on the relevant courts.⁶⁴ The federal legislation allowing for recognition and enforcement gave rise to statutory rights and obligations presenting a matter under section 76(ii).⁶⁵

In the context of section 76(i), the appellants in *British American Tobacco Australia Ltd v The State of Western Australia*⁶⁶ were tobacco wholesalers who had paid franchise fees under Western Australian legislation. Following the decision of the Court in *Ha v New South Wales*,⁶⁷ the appellants instituted proceedings in the Supreme Court of Western Australia for a declaration that the Western Australian provisions were invalid and for the recovery of amounts already paid as money had and received. The recovery claim was considered to give rise to a matter under section 76(i) ‘because the asserted obligation to repay would not exist were it not for the operation of s 90 [of the Constitution] to invalidate the [Western Australian provisions]’.⁶⁸

c) The remaining heads of federal jurisdiction

As Professor Zines said, the remaining areas of federal jurisdiction ‘have been regarded by most lawyers as useless, meaningless or inappropriate’.⁶⁹ The inclusion of these provisions can be attributed largely to ‘unthinking copying of the United States Constitution’.⁷⁰

The treaties jurisdiction derives directly from the similarly worded provision in the United States Constitution. However, the constitutional context for the entry into, operation, and enforcement of international treaties differs considerably between the two systems. In the United States, treaties are made pursuant to article II, section 2(2) by the President with the advice and consent of the Senate and, pursuant to the Supremacy Clause in article IV(2), are made ‘the supreme Law of the Land’. It has been accepted in that constitutional system that self-executing treaties can be enforced by a domestic court without any implementing domestic legislation.⁷¹ The Australian position is very different. The power to enter into treaties is part of the executive power in section 61. There is no constitutional requirement for parliamentary involvement, and the treaty is not made binding on domestic courts by covering clause 5. As Brennan CJ, Toohey, Gaudron, McHugh and Gummow JJ said in *Victoria v Commonwealth*⁷² ‘[a]s a general proposition, under the common law, entry by the Executive into a treaty is insufficient, without legislation to implement it, to modify the domestic or municipal legal order by creating or changing public or private legal rights and obligations’. And, the conditioning jurisdictional requirement of a ‘matter’ means that section 75(i) will not be enlivened unless there is a justiciable controversy involving domestically enforceable rights and obligations.⁷³

Section 75(ii) is enlivened in matters ‘affecting consuls or other representatives of other countries’. A matter would arise under that head where such a person is a party to the dispute, but the use of the word ‘affecting’ tends to give the matter a broader, but unclear, scope. The diversity jurisdiction in section 75(iv) (ie, where there are non-government, opposing parties from different States) has been given a limited scope of operation by the High Court. It will not be triggered where a corporation is a party, even though other, non-corporate parties otherwise satisfy the terms of the provision; nor will it be enlivened where there are at least two opposing non-corporate parties from the same State.⁷⁴ In relation to the government party dimensions of section 75(iv), a different, more expansive approach has been taken. A similar approach to that in relation to section 75(iii) has been applied to the meaning of ‘State’ in section 75(iv).⁷⁵ Maintaining supervision of government parties in federal jurisdiction

evidently has been more important than controlling, within federal jurisdiction, the private relationships of corporate and non-corporate parties.

The Admiralty and maritime jurisdiction under section 76(iii) ‘extends to matters of the kind generally accepted by maritime nations as falling within a special jurisdiction, sometimes called Admiralty and sometimes called maritime jurisdiction, concerned with the resolution of controversies relating to marine commerce and navigation’.⁷⁶ It is, for at least two reasons, largely redundant. First, the word ‘matter’ conditions the jurisdiction and, as is the case with the jurisdiction under section 75(i), there must be a dispute between parties in relation to domestically enforceable legal rights and duties. Secondly, with the enactment of the *Admiralty Act 1988* (Cth), admiralty disputes give rise to matters under section 76(ii). The jurisdiction in section 76(iv) is of unclear origin and scope. The best guess⁷⁷ is that it derived from the head of federal jurisdiction in the United States identified as ‘Controversies—between Citizens of the same State claiming Lands under Grants of different states’. However, on its face, it has scope to apply to disputes involving choice of law questions about the applicable State provisions where the dispute has connections with multiple State law areas.

2. Federal Authority to Exercise Commonwealth Judicial Power

The constitutional scheme for the vesting of federal jurisdiction is set out in sections 75–77 of the Constitution. The matters in section 75 are vested in the High Court by that provision itself. Section 76 confers power on Parliament to vest in the High Court federal jurisdiction to determine the additional matters set out in section 76. Section 77(i) authorizes Parliament to vest federal jurisdiction in lower federal courts in relation to any of the matters set out in sections 75 and 76, and section 77(iii) does the same for State courts thereby giving effect to the autochthonous expedient. The constitutional landscape is completed by section 122. Although the place of Territory courts within the constitutional system has been the subject of considerable uncertainty, the High Court has accepted that Territory courts created under section 122 of the Constitution fall within the words in section 71 ‘such other courts as it invests with federal jurisdiction’. Accordingly, Territory courts may be invested with federal jurisdiction and,

consequently, may exercise Commonwealth judicial power.⁷⁸ The source of power to confer that federal jurisdiction appears to be section 122.⁷⁹

Pursuant to the constitutional machinery in sections 76 and 77, Commonwealth legislation confers federal jurisdiction on the High Court, lower federal courts, State courts, and Territory courts. Many of the primary statutory provisions are set out in the *Judiciary Act 1903* (Cth) (*'Judiciary Act'*). Jurisdiction in relation to matters under section 76(i) is conferred on the High Court by section 30(a) of the *Judiciary Act*. From the very beginning, Parliament took up the option of the autochthonous expedient to vest State courts with federal jurisdiction. With some important exceptions set out in section 38, section 39(2) of the *Judiciary Act* gave State courts a broad grant of federal jurisdiction in relation to most heads in sections 75 and 76.⁸⁰ Specific provision was made for the vesting of federal criminal jurisdiction in State courts, first by the *Punishment of Offences Act 1901* (Cth), and then by section 68(2) of the *Judiciary Act*. By amendment to section 68 in 1976, this federal criminal jurisdiction was then vested in Territory courts. State and Territory courts remain the primary vehicles for the exercise of federal criminal jurisdiction.

Until the 1970s, Parliament made limited use of lower federal courts.⁸¹ However, the Family Court of Australia was established in 1975, followed by the Federal Court of Australia in 1976. The Family Court's jurisdiction was, and continues to be, limited and specialized. It is primarily sourced in section 76(ii) and conferred by a number of federal Acts in relation to family matters, marriage, and child support. Although the jurisdiction of the Federal Court was initially confined to certain specialized areas of jurisdiction, that Court now has a broad grant of jurisdiction in relation to sections 75(v), s 76(i), and (ii). Section 39B of the *Judiciary Act* confers much of this jurisdiction, but many other federal statutes confer additional jurisdiction. The other lower federal court, the Federal Circuit Court of Australia, is conferred with federal jurisdiction by a plethora of federal statutes, primarily in relation to matters arising under section 76(ii).

There is a 'general incapacity of any Parliament or legislature other than the Parliament of the Commonwealth to affect the exercise of federal jurisdiction'.⁸² Consequently, State laws, of their own force, cannot regulate the exercise of federal jurisdiction: they cannot confer powers on courts exercising federal jurisdiction, nor determine 'how or in what

circumstances those powers are to be exercised’.⁸³ Such laws must be applied by Commonwealth legislation: section 79(1) of the *Judiciary Act* being the primary mechanism by which that occurs. Section 79(1) ‘fills that gap’ left by the ‘general incapacity’ ‘by picking up the text of a State law governing the exercise of State jurisdiction and applying that text as a Commonwealth law to govern the manner of exercise of federal jurisdiction’.⁸⁴

3. The Law Area of Federal Jurisdiction

What laws are to be applied in the law area of federal jurisdiction? There are four main sources of law within the Australian legal system: the Constitution; federal statutes; the common law; and State statutes.⁸⁵ There are few difficulties with the application of the first three categories in federal jurisdiction—whether exercised by federal or State courts. Covering clause 5 to the Constitution requires the application of the Constitution and federal statutes. The single common law of Australia applies, at the least, by virtue of section 80 of the *Judiciary Act*, if not ‘as part of the ultimate constitutional foundation’.⁸⁶

The application of State laws within federal jurisdiction has raised some difficult questions. For a considerable period, it seemed to be accepted by the High Court that no State law could be applied in federal jurisdiction unless it was picked up and applied as a ‘surrogate’ federal law.⁸⁷ That view has not prevailed. As already mentioned, State Parliaments do not have the legislative capacity to govern the exercise of federal jurisdiction. Such laws must be, and are (through section 79 of the *Judiciary Act*), picked up by federal legislation. However, the High Court in *Rizeq* has accepted that State laws which apply ‘independently of anything done by a court’⁸⁸ operate of their own force in federal jurisdiction: they apply in the national law area as State laws.⁸⁹

This can lead to a difficult exercise of differentiating between State laws that affect the exercise of federal jurisdiction (which are incapable of direct application as State laws) and those that apply ‘independently of anything done by a court’. It generally is accepted that laws simultaneously can prescribe norms of conduct and confer a power on a court to provide a remedy for a breach of those norms.⁹⁰ The decision in *Rizeq* also raises

difficult questions about the choice of applicable State law in federal jurisdiction in circumstances where there is more than one option. It has been accepted that common law choice of law rules, through the operation of section 80 of the *Judiciary Act*, are capable of applying State statutes to a multi-jurisdictional dispute heard in federal jurisdiction.⁹¹ However, in circumstances where such rules are inapplicable to a dispute, it is unclear how a court exercising federal jurisdiction will choose between alternative State statutory provisions.

4. Returning to Sir Owen's View

In giving evidence to the Royal Commission on the Constitution, Sir Owen Dixon canvassed the inutility of federal jurisdiction. It was unfortunate for litigants that federal jurisdiction had been identified by reference to 'the character of the controversy arising in the litigation'.⁹² It would have been 'wiser' to allow the High Court, in its appellate jurisdiction, to maintain the uniformity of constitutional interpretation and enforcement of federal law. Admiralty jurisdiction and jurisdiction to hear disputes involving consuls could have been exercised by State courts.⁹³ As Sir Owen said in relation to section 75(ii) jurisdiction, '[w]hy should a State court be any the less fit to entertain litigation affecting him than it was when it was a court of a colony?'⁹⁴

The diversity jurisdiction of section 76(iv) was subjected to similar adverse comment: '[t]he courts of no State were ever, so far as we are aware, accused of partiality towards their own citizens, nor does there seem any reason for suspecting them of it'.⁹⁵ The same might be said of section 75(v). The view that section 75(v) was intended to protect Commonwealth officers from State courts sits uncomfortably with the assumption underpinning the autochthonous expedient. And, the accountability role of section 75(v) could have been achieved equally by a State Supreme Court. Of the other heads of jurisdiction, Sir Owen noted that the treaty jurisdiction had no separate work to do⁹⁶ and the content of section 76(iv) remained obscure.⁹⁷

Thus, the goal of uniformity of outcome could not be said to justify the creation of federal jurisdiction. The accepted objective of creating an Australian court of appeal, and the ongoing role of the Privy Council,

would have ensured uniform outcomes across the federal system. Nor was there the fear of local partialities that shaped the creation of federal jurisdiction in the United States.

That is not to say that the heads of federal jurisdiction have not been put to good use by the High Court for other purposes. The power of Parliament under section 77(ii) of the Constitution to make matters of federal jurisdiction exclusive of State jurisdiction was instrumental in minimizing the role of the Privy Council as a court of appeal from State courts.⁹⁸ Additionally, the identification of the *Commonwealth* and *States* in section 75(iii) and (iv) has been held to remove any immunity to suit in actions against those parties.⁹⁹ Furthermore, the rigorous interpretation of section 75(v) has presented the other arms of government with significant obstacles in their attempts to shield their actions from judicial scrutiny. And, although the protection of Commonwealth officers view of section 75(v) has not been embraced by the Court, Parliament has withheld that jurisdiction from State courts,¹⁰⁰ arguably assisting in the development of a distinctive national polity.

D. CONCEPTIONS OF FEDERAL JURISDICTION

If the inclusion of federal jurisdiction in the Constitution was dysfunctional in the way suggested, it then falls to the High Court to design judicial federalism. Two ways in which the High Court has done so have already been noted. First, an expansion of federal jurisdiction principles facilitated the contraction of the role of the Privy Council as a court of appeal from the States. Secondly, section 75(iii), (iv), and (v) have provided the foundation for greater government accountability by removing immunity from suit and limiting the scope for Parliament's removal of judicial review jurisdiction. Consciously or subconsciously, the achievement of judicial nationhood and the rule of law have been normative drivers for the interpretation of Chapter III.

There has been, however, a deeper normative exercise in designing judicial federalism that has unfolded at the interface of the two core values underlying Chapter III: federalism and the administration of federal justice. There have been three visions presented of the place of State courts within the federal judicial system and their role in the exercise of federal

jurisdiction. The first is a separationist conception (or minimalist conception of integration) where State courts, warts and all, are seen as merely options available to Parliament. On this view, if there are no State courts in existence or Parliament does not like the institutional features of, or functions and powers conferred on, State courts by State Parliaments, then Parliament has the option of setting up its own federal courts.

The second conception is more integrationist in orientation: State courts must be available for the exercise of federal jurisdiction, but if Parliament does not like the look of State courts for the exercise of federal jurisdiction, then they have the option of setting up their own federal courts. The third conception is even more integrationist: State courts must be available for the exercise of federal jurisdiction and must be presented to the federal Parliament with certain baseline characteristics for the exercise of federal jurisdiction. On this conception, the baseline characteristics, which are measured functionally (ie, what is necessary for the exercise of federal jurisdiction), are necessary to allow Parliament a real and effective choice in the exercise of federal jurisdiction.¹⁰¹

The first of these conceptions is evident in the early statement by Griffith CJ in *Federated Sawmill, Timberyard and General Woodworkers' Employees' Association (Adelaide Branch) v Alexander*¹⁰² that, when investing federal jurisdiction in State courts, the Commonwealth Parliament must take State courts as it finds them. As Isaacs J said in *Murray and Cormie*,¹⁰³ 'the Constitution, by Ch III, draws the clearest distinction between Federal Courts and State Courts, and while enabling the Commonwealth Parliament to utilize the judicial services of State courts recognize in the most pronounced and unequivocal way that they remain "State Courts" '. Having quoted this passage, Knox CJ, Rich and Dixon JJ in *Le Mesurier v Connor*¹⁰⁴ went on to say:

The Parliament may create Federal Courts, and over them and their organization it has ample power. But the Courts of a State are the judicial organs of another Government. They are created by State law; their existence depends upon State law; that law, primarily at least, determines the Constitution of the Court itself, and the organization through which its powers and jurisdictions are exercised. ... To affect or alter the constitution of the Court itself or of the organization through which its jurisdiction and powers are exercised is to go outside the limits of the power conferred and to seek to achieve a further object, namely, the regulation or establishment of the instrument or organ of Government in which judicial power is invested, an object for which the Constitution provides another means, the creation of Federal Courts.

This conception of State courts and federal jurisdiction may be seen as one of the bases for the decision in *Commonwealth v Hospital Contribution Fund*¹⁰⁵ to permit the exercise of federal jurisdiction by non-judicial officers of State courts if such courts are constituted in that way. Adopting the dissenting view of Gibbs J in *Kotsis v Kotsis*,¹⁰⁶ Mason J in the *HCF case* said:

[t]here is every reason for supposing that the framers of the Constitution intended to arm the Parliament of the Commonwealth with a power to invest federal jurisdiction in a State court as it happened to be organized under State law from time to time. Although the Commonwealth Parliament has no power to alter the structure or organization of State courts, its freedom of action is completely preserved. It has the choice of investing State courts with federal jurisdiction or of establishing appropriate federal courts.

However, Mason J also emphasized another, very different, consideration: the effectiveness of federal jurisdiction:

As we know the exercise of federal jurisdiction may suddenly intrude into the exercise of non-federal jurisdiction without the court or the parties perceiving that a federal element has arisen. The consequence is that if the States adopt a curial organization for the despatch of non-federal business that differs from the *Kotsis* specification the intrusion of a federal element in the exercise of what is thought to be non-federal jurisdiction could make the hearing abortive. There is no reflection in the provisions of Ch III of an intention to submerge the exercise of federal jurisdiction in problems of this kind.

While, in this context, there was a convergence of federalism concerns for State courts and considerations going to the effective exercise of federal jurisdiction, the two were soon to diverge, and that divergence marks a shift in the Court's conception of judicial federalism. That shift came with the establishment of the Federal Court of Australia with jurisdiction which overlapped with State jurisdiction exercised by State courts.

The Federal Court had been given jurisdiction to hear claims arising under the *Trade Practices Act 1974* (Cth). Given the nature of the legal relationships and transactions underlying such claims, the factual ingredients of the dispute might also give rise to common law claims which, ordinarily, would be pursued in a State court exercising State jurisdiction. The question presented to the High Court in a series of cases was whether the common law claims could also be decided by the Federal Court. They would, the Court concluded, if the claims arose from the same legal dispute before the Federal Court. In constitutional language, the Federal Court would have jurisdiction if the trade practices claims and the common law claims fell within the same 'matter' of federal jurisdiction conferred on the

Federal Court. In accepting that the common law claims could be determined in this ‘accrued’ federal jurisdiction, Mason J’s view about the scope of federal jurisdiction was influential. In *Philip Morris Incorporated v Adam P Brown Male Fashions Pty Ltd*¹⁰⁷ Mason J said:

It is highly unlikely that [the framers] intended to embrace a narrow technical meaning [of the word ‘matter’] which would result in an undue fragmentation of a total controversy, leaving its resolution to decisions by both State courts and this Court or State courts and federal courts. The probability is that they contemplated that by their dispositions they were providing for the determination either in State or federal courts of an entire controversy which the parties wished to bring to a court for resolution.¹⁰⁸

While this putative intention of the framers may not have matched the historical experience outlined above, Mason J’s conclusions ultimately rested upon consideration of the underlying constitutional values: on the one hand, ‘the role and status of the Federal Court and the Supreme Courts of the states’ and, on the other, ‘the desirability of enabling the Federal Court to deal with attached claims so as to resolve the entirety of the parties’ controversy’.¹⁰⁹ In deciding to give the word ‘matter’ a broad meaning to encompass non-severable State claims, Mason J prioritized the interests of the litigants in federal jurisdiction over concerns for any diminished place for State courts. The conception of judicial federalism underlying this view was made clearer by Mason, Brennan and Deane JJ in *Stack v Coast Securities (No 9)*:

A central element in this design for the exercise of the judicial power of the Commonwealth is the power given to Parliament to make a choice between conferring federal jurisdiction on federal courts which it creates and investing federal jurisdiction in State courts. There is no indication in Ch III that the making of this choice was to be strongly weighted against the creation of federal courts in favour of investing federal jurisdiction in State courts, as it would be if the Constitution were to deny power to give authority to federal courts to decide the whole of a single justiciable controversy of which a federal issue forms an integral part.¹¹⁰

These cases laid the foundation for a shift in our conception of judicial federalism. Section 77 did not merely present options to the Commonwealth Parliament for the vesting of federal jurisdiction. At least in relation to federal courts, that option had to be a real and effective one for the administration of federal justice: the principles of accrued jurisdiction could not weight that choice in favour of State courts.

However, the majority position in these cases presented a lopsided view of judicial federalism. Federal courts, which were subject to separation of

judicial power limitations, could exercise federal jurisdiction to resolve the entire federal matter. But, State courts, which could resolve the entire federal matter (and more), could be regulated by State Parliaments free of Chapter III constraints. This absence of a constitutional baseline of constraint had the potential to weight Parliament's choice against (or perhaps in favour of) choosing State courts in the exercise of federal jurisdiction.

The decision in *Kable v Director of Public Prosecutions (NSW)*¹¹¹ restored the equilibrium and completed the transformation in conception of judicial federalism. It is unnecessary to outline the case or trace its subsequent development and refinement. All that is necessary is to note the two constitutional principles arising from that case. First, that provisions of the Constitution, particularly the autochthonous expedient, contemplate the continuing existence of State courts. If they do not exist, then the option for the exercise of federal jurisdiction by State courts 'would be frustrated in [its] entirety'.¹¹² To use the words of Gummow J, section 77(iii) is not 'but a facility'.¹¹³

This first *Kable* limitation effected a shift from the first conception of the federal judicial system to the second. State Parliaments had to retain State courts for the exercise of federal jurisdiction. However, if *Kable* were limited to that first principle, State Parliaments might still define the characteristics of State courts in a way that fell short of a minimum constitutional standard. If that were the case, then the Commonwealth Parliament would be forced to establish federal courts for the exercise of federal jurisdiction.

It was the second *Kable* principle that effected the final shift: that State 'courts' must have minimum constitutional characteristics to exercise federal jurisdiction and, thus, cannot be given powers or functions that are incompatible with that federal role. As has been clearer since *Kable*, the touchstone requirement is for institutional integrity. These minimum constitutional standards are required because there cannot be 'two grades of federal judicial power'.¹¹⁴ As was the case in the accrued jurisdiction cases, the need to allow the Commonwealth Parliament a real and effective choice for the administration of federal justice was seen as qualifying any federalism-inspired concern for State autonomy.

E. CONCLUSION

Views will differ on the legitimacy of this transformation. However, the text of Chapter III is sparse and, as outlined in this chapter, its history is unhelpful. The inattention of the framers to the American concept of federal jurisdiction, and its relevance to the Australian context, left a normative vacuum to be filled by the High Court. The afterthought of the autochthonous expedient was a bold experiment unknown to the American federal structure and subject to little consideration by the framers. The implications of this institutional design were unclear. In such circumstances, the interpretive exercise must resort to underlying constitutional values and, given the course of constitutional decision-making since 1900, it is not surprising that those underlying values might be prioritized differently over time.

¹ Sir Owen Dixon, 'Address by the Hon Sir Owen Dixon KCMG to the section of the American Bar Association for International and Comparative Law' (1943) 17 *Australian Law Journal* 138, 140.

² *ibid* 140.

³ To borrow the expression used by Gavan Griffith and Geoffrey Kennett, 'Judicial Federalism' in Brian Opeskin and Fiona Wheeler (eds), *The Australian Judicial System* (Melbourne UP 2000) 37.

⁴ Section 2(2) then allocated the items of federal jurisdiction to either the original or appellate jurisdiction of the Supreme Court.

⁵ See, eg, John Preis, 'Reassessing the Purposes of Federal Question Jurisdiction' (2007) 42 *Wake Forest Law Review* 247; John P Frank, 'Historical Bases of Federal Judicial System' (1948) 23 *Indiana Law Journal* 236.

⁶ See John M Williams, *The Australian Constitution: A Documentary History* (Melbourne UP 2005) 25.

⁷ *Official Record of the Australasian Federation Conference*, Melbourne, 10 February 1890, 25.

⁸ Williams (n 6) 26.

⁹ *ibid* 42.

¹⁰ See James Stellios, *The Federal Judicature: Chapter III of the Constitution* (LexisNexis 2010) 52–53.

¹¹ Williams (n 6) 88–89.

¹² *ibid* 127.

¹³ *ibid* 69.

¹⁴ See James Stellios, 'Exploring the Purposes of Section 75(v) of the Constitution' (2011) 34 *University of New South Wales Law Journal* 70.

¹⁵ *Official Report of the National Australasian Convention Debates* (Sydney, 6 March 1891) 96 (Barton).

¹⁶ Official Report of the National Australasian Convention Debates (Sydney, 11 March 1891) 253 (Inglis Clark).

¹⁷ Commonwealth of Australia, *Report of the Royal Commission on the Constitution* (Parliamentary library—Parliament of Australia 1929) 99–104.

¹⁸ See Stellios, *The Federal Judicature: Chapter III of the Constitution* (n 10) 15–24.

¹⁹ Sir Owen Dixon, ‘The Law and the Constitution’ (lecture, Melbourne, March 1935) in Severin Woinarski (ed), *Jesting Pilate and Other Papers and Addresses* (Lawbook 1965) 38, 44. See at 54.

²⁰ John A La Nauze, *The Making of the Australian Constitution* (Melbourne UP 1972) 130–31.

²¹ John Quick and Robert Randolph Garran, *The Annotated Constitution of the Australian Commonwealth* (Angus & Robertson 1901) 804.

²² Official Report of the National Australasian Convention Debates (Melbourne, 17 March 1898) 2477.

²³ See Mark Leeming, *Authority to Decide: The Law of Jurisdiction in Australia* (Federation Press 2012) 1–12.

²⁴ (1905) 2 CLR 593, 603.

²⁵ (2001) 204 CLR 559, 570, quoting *Baxter v Commissioners of Taxation (NSW)* (1907) 4 CLR 1087, 1142.

²⁶ See *CGU Insurance Limited v Blakeley* (2016) 90 ALJR 272, 279 [25].

²⁷ (2000) 203 CLR 503, 514.

²⁸ *Commonwealth v Mewett* (1997) 190 CLR 1, 524–24; *Pfeiffer* (n 27) 530.

²⁹ (2000) 200 CLR 591, 624.

³⁰ *Williams* (n 6) 106–07.

³¹ *ibid* 151.

³² See Stellios, ‘Exploring the Purposes of Section 75(v) of the Constitution’ (n 14).

³³ (2003) 211 CLR 476.

³⁴ *ibid* 513–14. See also at 482–83.

³⁵ (1948) 76 CLR 1 (‘*Bank Nationalisation*’).

³⁶ *ibid* 363, 367. See also *Inglis v Commonwealth Trading Bank of Australia* (1960) 119 CLR 334, 335–36 (Barwick CJ).

³⁷ *Bank Nationalisation* (n 35) 363, 367.

³⁸ *ibid*. See also *Inglis* (n 36).

³⁹ *R v Commonwealth Court of Conciliation and Arbitration; Ex parte Whybrow* (1910) 11 CLR 1; *R v The Commonwealth Court of Conciliation and Arbitration; Ex parte the Brisbane Tramways Company Limited* (1914) 18 CLR 54.

⁴⁰ *R v Murray and Cormie; Ex parte the Commonwealth* (1916) 22 CLR 437. A Commonwealth officer is likely to remain an ‘officer of the Commonwealth’ when performing functions under State or Territory legislation: see *Re Cram; Ex parte NSW Colliery Proprietors’ Association Ltd* (1987) 163 CLR 117; Graeme Hill, ‘Reviewing Decisions by Commonwealth Bodies Made under State or Territory Legislation’ (2006) 17 Public Law Review 112, 117.

⁴¹ See *Plaintiff M61/2010E v Commonwealth* (2010) 243 CLR 319.

⁴² See *Broadbent v Medical Board of Queensland* [2011] FCA 980.

⁴³ See Peter Cane and Leighton McDonald, *Principles of Administrative Law: Legal Regulation of Governance* (2nd edn, OUP 2012) 47–49; Mark Aronson and Matthew Groves, *Judicial Review of Administrative Action* (5th edn, Lawbook 2013) 41–43.

⁴⁴ *Bodruddaza v Minister for Immigration and Multicultural Affairs* (2007) 228 CLR 651, 666.

- ⁴⁵ *Commissioner of Taxation v Futuris Corporation Ltd* (2008) 237 CLR 146, 162.
- ⁴⁶ See William Gummow, ‘The Scope of Section 75(v) of the *Constitution*: Why Injunction but No Certiorari?’ (2014) 42 Federal Law Review 241; Lisa Burton, ‘Why These Three? The Significance of the Selection of Remedies in Section 75(v) of the Australian *Constitution*’ (2014) 42 Federal Law Review 253.
- ⁴⁷ *S157* (n 33) 507.
- ⁴⁸ See *Futuris* (n 45) 161–62.
- ⁴⁹ (2010) 239 CLR 531.
- ⁵⁰ *ibid* 57–71, quoting from Jaffe ‘Judicial Review: Constitutional and Jurisdictional Fact’ (1957) 70 Harvard Law Review 953, 963.
- ⁵¹ See Leeming (n 23) ch 3; Cane and McDonald (n 43) ch 5; Aronson and Groves (n 43) chs 4–9.
- ⁵² This was the form of privative clause considered in *R v Hickman; Ex parte Fox and Clinton* (1945) 70 CLR 598.
- ⁵³ *ibid*.
- ⁵⁴ *ibid* 615 (Dixon J). Subsequently, the Court appeared to accept a fourth proviso that a decision could give rise to jurisdictional error if there was non-compliance with ‘imperative duties or inviolable limitations or restraints’: See, eg, *R v Coldham; Ex parte Australian Workers’ Union* (1982) 153 CLR 415, 419.
- ⁵⁵ *S157* (n 33).
- ⁵⁶ *ibid* 502–04.
- ⁵⁷ *ibid* 513–14; 482–83.
- ⁵⁸ *Futuris* (n 45).
- ⁵⁹ See Leighton McDonald, ‘The Entrenched Minimum Provision of Judicial Review and the Rule of Law’ (2010) 21 Public Law Review 14.
- ⁶⁰ *ibid* 129.
- ⁶¹ *R v Commonwealth Court of Conciliation and Arbitration; Ex parte Barrett* (1945) 70 CLR 141, 154.
- ⁶² (1983) 151 CLR 575.
- ⁶³ *ibid* 581.
- ⁶⁴ (2013) 251 CLR 533.
- ⁶⁵ See also *PT Bayan Resources TBK v BCBC Singapore Pte Ltd* (2015) 258 CLR 1, 21–22 [54]–[55].
- ⁶⁶ (2003) 217 CLR 30.
- ⁶⁷ (1997) 189 CLR 465.
- ⁶⁸ *British American Tobacco* (n 66) 52.
- ⁶⁹ Leslie Zines, ‘Federal, Associated and Accrued Jurisdiction’ in Brian Opeskin and Fiona Wheeler (eds), *The Australian Judicial System* (Melbourne UP 2000) 284.
- ⁷⁰ To adopt the words used by Professor Zines, *ibid* 284–89.
- ⁷¹ See, eg, *Ware v Hylton* 3 US 199 (1796) and *Fairfax’s Devisee v Hunter’s Lessee* 11 US 603 (1813) where treaties protecting the commercial and property interests of British creditors and property owners were given effect to without implementing legislation.
- ⁷² (1996) 187 CLR 416, 480.
- ⁷³ *Re East; Ex parte P Nguyen* (1998) 196 CLR 354, 362. cf the more expansive view in Leeming (n 23) 206–17.

⁷⁴ See *Australian Temperance and General Mutual Life Assurance Society Ltd v Howe* (1922) 31 CLR 290; *Cox v Journeaux* (1934) 52 CLR 282; *Crouch v Commissioner for Railways (Qld)* (1985) 159 CLR 22.

⁷⁵ See *Crouch* (n 74); *State Bank of New South Wales v Commonwealth Savings Bank of Australia* (1986) 161 CLR 639.

⁷⁶ *Owners of the Ship 'Shin Kobe Maru' v Empire Shipping Co Inc* (1994) 181 CLR 404, 424.

⁷⁷ See Leslie Katz, 'The History of the Inclusion in the Commonwealth Constitution of section 76(iv)' (1991) 2 Public Law Review 228, 240–41.

⁷⁸ See, eg, *Northern Australian Aboriginal Justice Agency Limited v Northern Territory* (2015) 256 CLR 569, 593 [39], 615 [111].

⁷⁹ *Northern Territory v GPO* (1999) 196 CLR 553, 591 (Gleeson CJ and Gummow J), 650–51 (Hayne J).

⁸⁰ This does not extend to Territory courts. It is clear that Territory courts can exercise non-criminal federal jurisdiction (see *Blunden v Commonwealth* (2003) 218 CLR 330, 335–36 relying on s 56 of the *Judiciary Act*), however, the statutory conferral of that jurisdiction is not always clear: see *Pfeiffer* (n 27).

⁸¹ See Robert French, 'Federal Courts Created by Parliament' in Brian Opeskin and Fiona Wheeler (eds), *The Australian Judicial System* (Melbourne UP 2000) ch 5; Australian Law Reform Commission, *The Judicial Power of the Commonwealth: Report—A Review of the Judiciary Act 1903 and Related Legislation* (ALRC 2001) chs 4, 5, 20, and 21.

⁸² *Rizeq v Western Australia* [2017] HCA 23; (2017) 344 ALR 421, 434 [58].

⁸³ *ibid* 446 [103].

⁸⁴ *ibid* 435 [63].

⁸⁵ I will leave to one side the application of Territory laws in federal jurisdiction.

⁸⁶ *Pfeiffer* (n 27) 531.

⁸⁷ *Commonwealth v Mewett* (1997) 191 CLR 471, 554 (Gummow and Kirby JJ). See also *Solomons v District Court of New South Wales* (2002) 211 CLR 119, 124.

⁸⁸ *Rizeq* (n 82) 446 [105].

⁸⁹ *ibid* 431 [47]–[48]. For a discussion of the position prior to *Rizeq*, see Graeme Hill and Andrew Beech, '“Picking up” State and Territory Laws under s 79 of the Judiciary Act—Three Questions' (2005) 27 Australian Bar Review 25, 29–36; Will Bateman and James Stellios, 'Chapter III of the Constitution, Federal Jurisdiction and Dialogue Charters of Human Rights' (2012) 36 Melbourne University Law Review 1, 36–39.

⁹⁰ See, eg, *Hooper v Hooper* (1955) 91 CLR 529, 535–536.

⁹¹ See, eg, *Pfeiffer* (n 27) 531.

⁹² Commonwealth of Australia (n 17) 99.

⁹³ *ibid* 101.

⁹⁴ *ibid* 102.

⁹⁵ *ibid* 103.

⁹⁶ *ibid* 102.

⁹⁷ *ibid* 104.

⁹⁸ See James Stellios, 'The Centralisation of Judicial Power within the Australian Federal System' (2014) 42 Federal Law Review 357, 381–83.

⁹⁹ See *British American Tobacco* (n 66).

¹⁰⁰ See *Judiciary Act* s 38(e); *Administrative Decisions (Judicial Review) Act 1977* (Cth), s 9.

¹⁰¹ A fourth conception is that State courts must have baseline characteristics to exercise federal jurisdiction, but State Parliaments are not required to present State courts with those baseline characteristics. If they do not exhibit those characteristics, then they are not courts which can exercise federal jurisdiction. That conception, however, has been rejected: see *K-Generation Pty Ltd v Liquor Licensing Court* (2009) 237 CLR 501, 544.

¹⁰² (1912) 15 CLR 308.

¹⁰³ *Murray and Cormie* (n 40) 452.

¹⁰⁴ (1929) 42 CLR 481, 495–96.

¹⁰⁵ (1982) 150 CLR 49 (*HCF case*).

¹⁰⁶ (1970) 122 CLR 69.

¹⁰⁷ (1981) 148 CLR 457.

¹⁰⁸ *ibid* 512–13.

¹⁰⁹ *ibid* 513.

¹¹⁰ (1983) 154 CLR 261.

¹¹¹ (1996) 189 CLR 51.

¹¹² *ibid* 103 (Gaudron J). See also at 110 (McHugh J), 140 (Gummow J).

¹¹³ *ibid* 142.

¹¹⁴ *ibid* 115 (McHugh J).

PART VII

RIGHTS

CHAPTER 37

RIGHTS PROTECTION IN AUSTRALIA

SCOTT STEPHENSON

A. INTRODUCTION

FOLLOWING their spread across the world in the second half of the twentieth century, it has become exceedingly rare for a country not to have a bill of rights.¹ Australia is a notable exception, lacking a constitutional (or statutory) bill of rights at the national level.² As a result, the Australian Constitution implicitly assigns principal responsibility for rights—the task of determining their identity, scope, and limits—to the legislature. The executive and judiciary perform the subsidiary, but also important, roles of enforcing and adjudicating the rights contained in the statutes the legislature enacts. In the absence of a bill of rights, the Constitution’s structural features assume special significance in determining the state of rights protection in Australia. They directly affect the protection of rights by establishing the conditions under which the three arms of government, and especially the legislature, perform their tasks. They also indirectly affect the protection of rights by providing the basis for constitutional implications that can have rights-protective effects. The Constitution, for example, establishes a system of representative government, which directly affects rights by ensuring that the legislature is comprised of members directly chosen by, and ultimately accountable to, the people, thus reducing the risk of gross violations of rights. It also indirectly affects rights because the High Court has held that, to maintain the Constitution’s system of representative government, limits must be placed on the legislature’s power to, for example, disenfranchise people—that is, the Court has drawn on a

structural feature to limit legislative power in a way that has the effect of protecting the right to vote.

An understanding of the Constitution's contribution to the protection of rights requires answers to three questions. First, why does the Constitution not include a bill of rights? [Section B](#) of this Chapter explains that the Constitution's preference for legislative rather than judicial resolutions to rights issues is the product of a shifting mixture of philosophical, historical, political, and institutional reasons. The initial decision not to include a bill of rights in the Constitution was grounded in a belief in the capacity of representative democracy to protect rights and a fear that a bill of rights would prevent the States from enacting racially discriminatory legislation. Over time, the latter justification has fallen away while the former has risen in prominence and been joined by a number of more pragmatic considerations such as the difficulty of amending the Constitution to add a bill of rights as well as the partisan and federal divisions that surround the issue of rights reform.

Second, what does the Constitution say about rights in the absence of a bill of rights? [Section C](#) provides an overview of the small number of provisions found in the Constitution that explicitly relate to rights. They are scattered throughout the document, do not amount to—and were not intended to—form a comprehensive bill of rights, and make, on the whole, a modest contribution to the protection of rights. Part of the reason for their diminutive stature is the Court's interpretation of some of these provisions. It has adopted narrow constructions of the provisions related to trial by jury (section 80) and freedom of religion (section 116). While the freedom from discrimination on the basis of State residence (section 117) has fared somewhat better, the scope of protection it provides is inherently narrow, excluding forms of discrimination that are not based on State residence. The Court has adopted broader constructions of the provisions related to economic rights such as the acquisition of property on just terms (section 51(xxxi)) and freedom of interstate trade, commerce, and intercourse (section 92).

Third, how does the Constitution's other provisions affect rights? [Section D](#) details how a number of the Constitution's structural features directly and indirectly contribute to the protection of rights. Representative democracy, the separation of powers, bicameralism, federalism, and the rule of law are considered. While their contributions are generally positive, it is important

to acknowledge that they can also impede rights protection by creating deleterious institutional dynamics and hindering innovation. For instance, federalism creates more venues for deliberation on rights issues, but it can also produce ‘races to the bottom’ as subnational jurisdictions seek to outbid each other in enacting ever more draconian policies. Another example is the separation of judicial powers, which helps secure an independent and impartial judiciary, but can also stymie novel forms of rights protection by restricting the functions that can be conferred on courts and other bodies.

B. A CONSTITUTION WITHOUT A BILL OF RIGHTS

1. History

When the Australian Constitution was being drafted in the 1890s, Andrew Inglis Clark, who was Attorney-General of Tasmania and has been described as ‘the primary architect of our Constitution’,³ sought to include several rights. He was a great admirer of the United States Constitution and after the Australasian Federation Conference in Melbourne in 1890 he prepared a draft Constitution that included two rights of American provenance: the right to a jury trial in federal cases and the right to freedom of religion.⁴ When the first official draft of the Constitution was created and revised in 1891, Clark successfully campaigned for the addition of another right derived from the Fourteenth Amendment to the United States Constitution, which would have prohibited the States from making or enforcing ‘any law abridging any privilege or immunity of citizens of other States of the Commonwealth’ and from denying ‘to any person, within its jurisdiction, the equal protection of the laws’.⁵ Clark’s efforts were, however, largely undone during the final rounds of drafting that took place in 1897–98 and in which he did not directly participate. Although there were both proponents and opponents for the inclusion of rights in the Constitution, the latter camp tended to carry the most votes and the scope of each right was narrowed. The right to a jury trial was confined to indictable (rather than all) offences and the right to freedom of religion was confined to the Commonwealth (rather than also including the States). The right to the privileges and immunities of State citizenship and to the equal

protection of the laws was effectively removed. All that remained was the protection of a State's residents from disability or discrimination by another State on the basis of residence.

Since 1901, a number of attempts have been made to amend the Constitution to include more protection for rights, but none has succeeded. In 1944, the Labor government proposed a set of amendments that would have expanded the Commonwealth's legislative power for a period of five years to facilitate reconstruction after the end of the Second World War. The temporary provisions would have also included several new restrictions on power, including one preventing the Commonwealth and States from abridging freedom of speech or expression and one extending the operation of the right to freedom of religion to the States. The proposed amendments were put to a referendum and defeated, achieving a vote in favour of 46 per cent nationwide and a majority in only two of the six States. In 1983, the Labor government announced a plan to introduce a bill of rights that would begin life as a statutory instrument and later be inserted into the Constitution. After it faced opposition from, in particular, the States, the project was abandoned in the lead-up to the 1984 election.

The next major initiative came in 1985 when the Labor government established a constitutional commission to undertake a wide-ranging review of the Constitution, including consideration of whether rights were adequately protected. The commission's interim report was released in 1987. While it reserved the issue of a constitutional bill of rights to its final report, it did make the modest recommendation of extending the existing rights related to the acquisition of property, jury trials, and freedom of religion to the States. The government decided not to wait for the final report and instead proposed a set of constitutional amendments based on the interim report in order to coincide with the bicentenary of European settlement in Australia in 1988. Each proposal was defeated at the ballot box. The proposal to extend the existing constitutional rights to the States achieved a vote in favour of 31 per cent nationwide and a majority in no State. Following this result, there was no appetite for pursuing the recommendations in the commission's final report, which included a comprehensive constitutional bill of rights. Since then, governments have generally avoided the pursuit of constitutional rights reform. In 2008, for example, the Labor government established a consultation committee to inquire into the protection of human rights in Australia and precluded it

from considering a constitutionally entrenched bill of rights. The committee recommended the introduction of a statutory bill of rights, but the government declined to adopt the recommendation.⁶

The history of constitutional protection for rights in Australia is, in essence, one of steadfast adherence to the original prioritization of legislative over judicial responsibility for rights. The rights provisions found in the Constitution are few in number and limited in scope, vestiges of Clark's unsuccessful attempt to insert a more robust albeit still limited set of rights during the drafting process. Subsequent efforts to expand the catalogue of rights have all failed even when exceedingly modest in ambition, such as in 1988. As a result, many reform efforts have focused on measures that do not involve constitutional amendment, including statutory prohibitions on actions that violate human rights,⁷ the establishment of bodies to investigate and hear human rights complaints,⁸ and changes to the parliamentary process to foster greater awareness of human rights issues.⁹ Taking constitutional amendment off the table, a process predominantly controlled by the federal government, has created opportunities for another dimension of Australia's constitutional system to play an enlarged role in the protection of rights: federalism. The States and Territories have served as sites of experimentation, for example, pioneering the enactment of statutory bills of rights,¹⁰ as well as sites of contestation, contributing to debates on rights issues by challenging the federal government's positions on rights via statements and legislative acts.¹¹

2. Explanations and Justifications

The reasons for Australia's constitutional position on rights are a shifting mixture of the philosophical, historical, political, and institutional. One reason why the constitutional drafters opposed a bill of rights was to maintain racially discriminatory legislation.¹² John Forrest, Premier of Western Australia, for example, opposed the proposal to insert an equal protection clause into the Constitution in the following terms:¹³

It is of no use for us to shut our eyes to the fact that there is a great feeling all over Australia against the introduction of coloured persons. It goes without saying that we do not like to talk about it, but still it is so. I do not want this clause to pass in a shape which would undo what is about to be done in most of the colonies, and what has already been done in Western Australia, in regard to that class of persons.

Unsurprisingly, this reason has not stood the test of time. However, another argument against constitutionally entrenched rights that can be traced back to the drafting period and continues to hold considerable sway in contemporary Australia is that the country's system of representative and responsible government adequately safeguards rights. This view is neatly captured by Harrison Moore's statement in 1902 that '[t]he great underlying principle [of the Australian Constitution] is, that the rights of individuals are sufficiently secured by ensuring, as far as possible, to each a share, and an equal share, in political power'.¹⁴ Former Prime Minister Robert Menzies put it in the following terms in 1967:¹⁵

Should a Minister do something which is thought to violate fundamental human freedom he can be promptly brought to account in Parliament. If his Government supports him, the Government may be attacked, and, if necessary defeated. And if that ... leads to a new General Election, the people will express their judgement at the polling booths. In short, responsible government in a democracy is regarded by [Australians] as the ultimate guarantee of justice and individual rights.

It continues to be invoked in contemporary debates about rights protection.¹⁶ In its more theoretical formulations, there are two principal lines of argument against the introduction of comprehensive, rights-based judicial review. First, rights issues raise difficult and contested moral and political questions on which people have good faith, reasonable disagreements. Consequently, the arm of government that most closely respects the principles of representation and political equality—the legislature—should resolve them.¹⁷ Second, empowering courts to undertake rights-based judicial review risks politicizing the judiciary and turning these moral and political questions into legal questions, empowering lawyers and judges at the expense of other members of the public.¹⁸

Three additional, related reasons help explain Australia's history of unsuccessful attempts at amending the Constitution to expand protection for rights. First, the States have often played an important role in opposing proposed amendments related to rights on the ground that they would undermine the federal system, centralizing power by granting the Commonwealth authority to regulate the subjects to which the rights relate (eg, a right to education might directly or indirectly give the Commonwealth power over schools). Second, proposed amendments related to rights have often been the subject of partisan contestation with

one major political party in support and the other in opposition. Third, the Constitution's amendment procedure (section 128) imposes a demanding double majority requirement, requiring a proposed amendment to be approved at a referendum by a majority of voters nationally and a majority of voters in a majority of States, which is especially difficult to achieve if there is State and/or partisan opposition to the proposal.

C. CONSTITUTIONAL PROVISIONS

Although the Constitution does not contain a bill of rights, it is not entirely devoid of provisions that protect, or that may be interpreted in ways that protect, rights. In terms of economic rights, there are provisions dealing with the acquisition of property on just terms, and freedom of interstate trade, commerce, and intercourse. In terms of civil and political rights, there are provisions dealing with trial by jury, freedom of religion, and freedom from discrimination on the basis of State residence. With some exceptions, the Court has tended to adopt narrow constructions of the civil and political rights and slightly broader constructions of the economic rights. On the whole, however, the provisions play a modest role in the protection of rights in Australia—even the implications discussed below in [section D](#) are arguably more significant—and it would be incorrect to suggest that they form a de facto bill of rights.

1. Economic Rights

Section 51(xxxi) grants Commonwealth Parliament the power to make laws with respect to '[t]he acquisition of property on just terms' and is thus considered to have a dual character—it confers legislative power but also restricts its exercise by requiring the provision of just terms. The Court has described the provision in generous terms, calling it 'a very great constitutional safeguard'¹⁹ and 'a constitutional guarantee'²⁰ of a 'fundamental character'.²¹ The provision is 'concerned with matters of substance rather than form' and its principal terms—'acquisition', 'property', and 'just terms'—are 'to be construed liberally'.²² The Commonwealth cannot avoid the operation of section 51(xxxi) by using a 'statutory description' that avoids the language of 'acquisition'²³ or by

adopting ‘a circuitous device to acquire indirectly the substance of a proprietary interest’.²⁴ It is, however, a requirement that someone acquire property; the mere extinguishment of or interference with a proprietary right is not, by itself, sufficient.²⁵ The term ‘property’ extends beyond its traditional conceptions to encompass ‘every species of valuable right and interest’²⁶ including, for example, choses in action, confidential information and native title, but not statutory rights that were intended to be subject to future impairment.²⁷ The requirement to provide ‘just terms’ is not equated with compensation according to the market value of the property. The Court will look at the ‘justice of the terms provided’, which offers Parliament some scope to take into account other considerations such as ‘the interests of the public [and] the Commonwealth’.²⁸ The guarantee in section 51(xxxi) applies to Parliament’s power to make laws with respect to the Territories (section 122)²⁹ and potentially to its power to make grants of financial assistance to the States (section 96).³⁰

Section 92 states that ‘trade, commerce, and intercourse among the States ... shall be absolutely free’. Its alluringly simple language in fact generated considerable division within the Court for several decades as rival understandings of its philosophical underpinnings vied for ascendancy. The individual rights theory, which conceptualizes section 92 as ‘a personal right attaching to the individual and not attaching to the goods’,³¹ competed against the free trade theory, which conceptualizes section 92 as a provision designed ‘to create a free trade area throughout the Commonwealth’.³² In 1988, the High Court settled the matter in a unanimous judgment endorsing a version of the latter theory, holding that section 92 prohibits measures that discriminate against interstate trade and commerce with the purpose or effect of protecting intrastate trade or industry against competition from other States.³³ Despite the demise of the individual rights theory, section 92 continues to operate in a rights-protective manner, offering individuals engaged in interstate trade and commerce a substantial level of protection from State interference.³⁴

2. Civil and Political Rights

Section 80 states that ‘[t]he trial on indictment of any offence against any law of the Commonwealth shall be by jury’. The Court has interpreted the

provision so as to allow Parliament to determine which offences are to be tried on indictment and, consequently, which offences attract the jury trial requirement.³⁵ This renders the provision, in so far as it operates as a rights-based guarantee, ‘in practice worthless’.³⁶ An accused is unable to decline a trial by jury if one is required by section 80.³⁷ For those trials where a jury is required, the Court has stated that section 80 protects ‘“the essential features” of “the institution of ‘trial by jury’ with all that was connoted by that phrase in constitutional law and in the common law of England”’.³⁸ Unanimity and representativeness are, according to the Court, two such features.³⁹

Section 116 contains four limbs related to religion. It prohibits the Commonwealth from making any law (1) ‘for establishing any religion’, (2) ‘for imposing any religious observance’, or (3) ‘for prohibited the free exercise of any religion’. The provision also states that (4) ‘no religious test shall be required as a qualification for any office or public trust under the Commonwealth’. The Court has interpreted section 116 narrowly by limiting limbs (1)–(3) to those laws that have the proscribed outcome (eg, to establish a religion) as their purpose; it is insufficient for a law merely to bring about, or have the tendency to bring about, the proscribed outcome.⁴⁰ Further, the Court has confined limb (1) to laws designed to establish a national religion, excluding laws that merely give aid or encouragement to religion,⁴¹ granted only limited protection to religious practice, as opposed to religious belief, under limb (2),⁴² and confined limb (4) to government offices rather than government-funded offices.⁴³

Section 117 provides that ‘[a] subject of the Queen, resident in any State, shall not be subject in any other State to any disability or discrimination which would not be equally applicable to him if he were a subject of the Queen resident in such other State.’ For most of the twentieth century, the Court adopted a narrow interpretation of the provision, holding that it only applied where the disability or discrimination was imposed on the basis of State residence rather than on the basis of both State residence and domicile.⁴⁴ The Court shifted approach in 1989 in *Street v Queensland Bar Association*.⁴⁵ Describing section 117 as an important constitutional guarantee that should be construed liberally,⁴⁶ the Court held that residency does not require some element of permanence in the State and that the

provision covers practical as well as formal discrimination. A law violates section 117 if, first, it imposes a burden or disadvantage to which the individual would not be subject if he or she were a resident of another State and, second, that burden or disadvantage is not permissible. Different formulations of the second element were adopted in *Street*, with Brennan, Deane, Toohey and Gaudron JJ stating that section 117 permits burdens or disadvantages that are proportionate to a relevant distinction and Mason CJ, Brennan and McHugh JJ stating that section 117 permits those burdens or disadvantages that are assertions of State autonomy assumed by the Constitution. Some subsequent cases have, however, appeared to adopt a narrower approach to the application of section 117 albeit without overturning *Street*.⁴⁷

D. STRUCTURAL FEATURES

The provisions explicitly related to rights are not the only way in which the Constitution contributes to the protection of rights. Many of the structural features of government established and regulated by the Constitution, such as federalism, the separation of powers, and representative and responsible government, affect rights. The connection between structure and rights is especially important in Australia for two reasons.

First, without a bill of rights the structural features that shape the political process take on greater relevance because that process is the principal means by which rights are identified, defined, and limited. This situation stands in contrast to systems with an entrenched bill of rights where there is an institution apart from the political process—the judiciary—to which members of the public can appeal if the outputs of the political process are thought to be incompatible with rights. Recourse to the courts is more limited in Australia.

Second, somewhat counterintuitively given its cautious approach to the Constitution's rights-related provisions, the Court has derived a number of implications from the Constitution's structural features that operate in ways similar to rights. Although these implications lack some characteristics of a right (eg, there is typically no compensation if they are violated) and the Court assiduously refuses to describe them as rights, they are closely related to rights insofar as they share their principal characteristic, namely they

operate as a limitation on executive and legislative power. The rationale for these rights-related implications is that either they are necessary to preserve a structural feature (eg, freedom of political communication is required to maintain Australia's system of representative and responsible government) or they are a by-product of a structural feature (eg, aspects of a fair trial, such as the right to be heard by an independent and impartial adjudicator, are protected as a result of preserving the separation of powers). They are, for the most part, comparatively recent additions to the constitutional canon, first emerging in the late 1980s and early to mid 1990s.

They are controversial features of Australia's constitutional landscape. One difficulty with rights-related implications is that they push up against the division of institutional responsibilities contained in the Constitution. The fact that the Constitution partially regulates each structural feature suggests that its silences are deliberate—that the Constitution permits the legislature to modify any element that it does not explicitly regulate. Most relevantly, the omission of a bill of rights was, as mentioned above, a deliberate choice to leave questions about rights to legislatures rather than courts.

Another difficulty arises at the point of application. Given the Constitution's vast silences, it would be unreasonable and unworkable for the Court to declare that every element of a structural feature—no matter how small or inconsequential—is immune from legislative modification. For example, it would be a stretch for the Court to hold that the Constitution's system of representative government requires paper (as opposed to electronic) voting. While the Court tends to state that it only draws those implications that are necessary to preserve a structural feature, there is considerable scope for disagreement about what is and is not necessary. Finally, the drawing of implications requires the Court to engage in the difficult task of determining what limitations (if any) Parliament can impose on a constitutionally protected element. For example, can Parliament restrict freedom of political communication to preserve other values? While these difficulties are not insurmountable, they do highlight why implications are a contested feature of Australian constitutionalism.

1. Representative and Responsible Government

a) Direct effects on rights

The Constitution creates a federal government that operates according to the principles of representative and responsible government.⁴⁸ Consistent with their roots in the United Kingdom's uncodified constitution, these principles find only minor and indirect recognition in the constitutional text and are consequently maintained through a combination of constitutional convention, implication, principle, and text supplemented by case law and statute.

Representative government refers to the idea of legislative accountability to the people and finds its strongest textual support in sections 7 and 24, which require the Senate and House of Representatives respectively to be composed of persons 'directly chosen by the people of the Commonwealth'. A number of provisions (eg, sections 8–10, 12, 25–34, 41, 51(xxxvi)) relate to the procedures for federal elections and thus provide indirect support for the position that Australia is to have a system of representative government at the federal level. Many of them are, however, transitional and thus the Constitution leaves most electoral issues, such as who is entitled to vote and which voting system is to be used, to Parliament to determine.

Responsible government refers to the idea of executive accountability to the legislature and finds some textual support in section 64, which empowers the Governor-General to appoint officers (ie Ministers) to administer the government's departments and prohibits these Ministers from holding office for a period of longer than three months unless they become a senator or member of the House of Representatives. The Constitution thus requires the Ministry to come from Parliament. The other features of responsible government, such as individual and collective responsibility, the appointment of the Prime Minister, and the formation and role of Cabinet, are primarily maintained through and in accordance with constitutional convention.

Representative and responsible government directly affect rights by rendering the executive and legislature accountable to the people. This reduces the risk that government will be inclined to and can in fact take actions that grossly violate the people's rights. The contribution of these structures to the protection of rights is not, however, wholly positive. Electoral forms of accountability can exacerbate the vulnerability of subsets

of the people. Legislators might, for example, seek to ignore or even erode the rights of an unpopular minority because it confers on them an electoral advantage. While periodic elections are the principal mechanism of accountability in a system of representative government, they are supplemented by quotidian public supervision of government facilitated by the media, petitions to elected representatives, and participation in the activities of government through, for example, submissions to parliamentary committees and executive inquiries. Responsible government helps prevent, identify, and remedy rights violations by facilitating legislative oversight of the executive, which occurs through processes such as Senate estimates⁴⁹ and through the conventions that each Minister answers for the actions of his or her department in Parliament (individual responsibility) and that the Ministry answers for the actions of the government in Parliament (collective responsibility).

b) Indirect effects on rights: voting and political communication

The right to vote and freedom of political communication are the two main implications the Court has drawn from the Constitution's system of representative and responsible government. They are only briefly introduced below as they are analysed in detail in [Chapters 39](#) 'Expression' and [40](#) 'Political Participation'.

In *Roach v Electoral Commissioner*⁵⁰ and *Rowe v Electoral Commissioner*,⁵¹ the Court established that the Constitution requires universal adult suffrage. As Gummow, Kirby and Crennan JJ said in *Roach*, '[v]oting in elections for the Parliament lies at the very heart of the system of government for which the Constitution provides'.⁵² In that case, the Court held that Parliament cannot disenfranchise all prisoners, but that it could disenfranchise prisoners serving terms of three years or longer. In *Rowe*, a majority of the Court invalidated legislation restricting the time in which a voter could seek to enrol in an election. It held that the procedures for enrolling to vote are constitutionally protected because these procedures affect the franchise and, as a result, Parliament can only restrict them if it has a 'substantial' reason compatible with the maintenance of the system of representative government. By contrast, in an earlier case, *Attorney-General (Cth); Ex rel McKinlay v Commonwealth*,⁵³ the Court held that equality of voting power (ie equal numbers of electors in electoral divisions) is not a

constitutionally protected element of the system of representative government.⁵⁴

In *Australian Capital Television Pty Ltd v Commonwealth*⁵⁵ and *Nationwide News Pty Ltd v Wills*,⁵⁶ the Court held that the Constitution's system of representative and responsible government requires freedom of political communication. Subsequent decisions have seen the Court express different views on which limitations Parliament may place on the freedom and the method for resolving such questions. The first major point of contention that arose in the case law was the extent to which freedom of political communication should be limited to protect individual reputation through the law of defamation. Initially the Court prioritized freedom of political communication by employing it to create a 'constitutional defence' to defamation proceedings,⁵⁷ but subsequently altered course to give greater weight to the interests underpinning defamation law by abandoning the constitutional defence and instead reformulating the common law defence of qualified privilege to encompass freedom of political communication.⁵⁸ Another point of contention is the extent to which freedom of political communication can be limited to prevent persons from engaging in offensive conduct. The Court split four to three in *Coleman v Power*,⁵⁹ which involved a person arrested for calling a police officer corrupt in a public mall, and split three to three in *Monis v The Queen*,⁶⁰ which involved a person charged for sending offensive letters through the mail. Another set of cases relate to the extent to which freedom of political communication limits the ability of legislatures to regulate political donations.⁶¹

2. Bicameralism

Section 1 of the Constitution establishes Commonwealth Parliament as a bicameral legislature comprising a House of Representatives and a Senate. A second legislative chamber is an institutional mechanism capable of directly affecting rights by creating opportunities and incentives for greater deliberation on rights issues, helping to ensure that perspectives are not overlooked and legislative proposals are robustly debated. The Constitution endows the Senate with a number of characteristics that augment its ability to contribute to deliberation. First, its law-making powers are almost equal to those of the House of Representatives.⁶² In most cases, therefore, the

Senate's views on rights cannot be ignored because it has the power to delay or block the passage of legislation. Second, senators are elected by the people.⁶³ This imbues the Senate with a degree of democratic legitimacy, which provides it with a firmer basis to challenge the House of Representative's positions on rights and to stand its ground in the event of a confrontation. Third, senators are elected for six-year terms in comparison to the three-year terms of members of the House of Representatives.⁶⁴ This longer period in office affords senators more scope to look beyond the immediate electoral consequences of proposed legislation to a broader set of considerations, which may include rights. Fourth, consistent with constitutional convention, the Senate is not the chamber where government is formed or where the Prime Minister sits. This creates some distance between the Senate and the most partisan elements of the political process—the identity and performance of the government and Prime Minister—and thus provides it with more latitude to operate in a non-partisan or bipartisan manner. This in turn provides more latitude for rights issues to receive discrete consideration rather than be folded into consideration of more partisan issues such as the policy objectives of proposed legislation.

Not all of the Senate's institutional characteristics, however, necessarily enhance its capacity to deliberate on rights issues. Section 64 of the Constitution envisages that Ministers can come from either the House of Representatives or the Senate. A small number of Ministers generally come from the Senate and each Minister has someone who represents him or her in the other House. As a result, the Senate is not entirely removed from the forms of partisan contestation that occur in the House of Representatives. This situation is further exacerbated by the fact that the principal point of identification for a senator is his or her political party. The Senate was designed to be the forum in which the States' interests would be represented in the federal government. The Constitution reflects this rationale, with section 7 requiring the Senate to be composed of senators from each State and for each original State to have an equal number of representatives. However, political party affiliation, which finds no mention in the Constitution, has come to dominate the organization of the Senate largely to the exclusion of senators' State of origin. As a result, the same partisan divisions that are found in the House of Representatives are replicated in the Senate. It is somewhat alleviated by the electoral system used to select senators (proportional representation), which favours the election of

independents and members from smaller political parties. Consequently, the political party that has a majority in the House of Representatives does not ordinarily have a majority in the Senate,⁶⁵ thus requiring the government to negotiate with senators from outside its party to ensure the passage of its legislation.

The committee system is one area where the Senate has leveraged its institutional position to enhance awareness, oversight, and discussion of rights issues. Section 49 of the Constitution recognizes committees as an essential instrument of each chamber, stating ‘[t]he powers, privileges, and immunities of the Senate and of the House of Representatives, and of the members and the committees of each House, shall be such as are declared by the Parliament’. Committees undertake detailed inquiries into a large range of issues that produce extensive reports containing specific recommendations for reform. Not only do they enhance deliberation within Parliament by providing a space for the exchange of views on discrete elements of proposed and existing legislation, but they also facilitate deliberation between Parliament and the people as citizens can participate through the provision of written submissions and oral evidence. Although the House of Representative’s committees perform important work, the Senate is well placed to make a more substantive and effectual contribution due to the abovementioned characteristics. Its attenuated level of partisanship provides greater scope for committee members to work together to develop consensus reports and its strong law-making powers provide it with the capacity to ensure the government responds to a committee’s report if the Senate so chooses.

A number of Senate committees have remits that directly or indirectly relate to the protection of rights. The Senate Standing Committee for the Scrutiny of Bills (‘Scrutiny Committee’), which was established in 1981, is appointed to report on whether proposed laws, inter alia, ‘trespass unduly on personal rights and liberties’, ‘make rights, liberties or obligations unduly dependent upon insufficiently defined administrative powers’, and ‘make rights, liberties or obligations unduly dependent upon non-reviewable decisions’.⁶⁶ The Senate Standing Committee on Regulations and Ordinances (‘Regulations and Ordinances Committee’), which traces its origins back to 1932, evaluates disallowable instruments such as delegated legislation against a similar set of rights-based standards.⁶⁷ Both committees are comprised of six senators, three being members of the

government party with the other three being members of non-government parties. Senators comprise one half of the Parliamentary Joint Committee on Human Rights (PJCHR), which was established in 2011 to examine proposed and existing legislation for compatibility with seven international human rights treaties to which Australia is a party.⁶⁸ Other committees also play a role in scrutinizing the actions of government, which may include actions that affect rights. For instance, the Senate estimates process, which is conducted by legislative and general purpose standing committees, assesses the performance of the public service and its administration of government policy and programmes.⁶⁹

There is a question over the extent to which the committee system makes a difference in terms of rights protection. On the one hand, the PJCHR's performance has come under criticism for its ineffectiveness and tendency for reports to split along partisan lines.⁷⁰ On the other hand, part of the Regulations and Ordinances Committee's role is to recommend to the Senate that it disallow instruments that violate rights and the Senate has never rejected a Committee recommendation that an instrument be disallowed.⁷¹ The Regulations and Ordinances Committee and the Scrutiny Committee largely operate in a non-partisan manner, with the chair and deputy chair assigned to Senators from different political parties and with the identity of the party that holds the chair generally considered to be of little significance to how they operate.⁷²

3. Federalism

The Constitution establishes a federal system of government through the creation of a federal, or Commonwealth, government and by recognizing the continued existence of the six federating colonies as States.⁷³ Federalism can have a substantive or deliberative effect on rights. In terms of substance, federalism can contribute to the protection of rights by dividing power between two levels of government, by giving individuals two levels of government to petition on rights issues, and by providing individuals with the option to move between sub-national jurisdictions if one violates their rights. However, it can also undermine protection for rights by encouraging States to compete with each other in the enactment of increasingly draconian legislation to, for example, discourage criminals

from relocating to their jurisdiction. These notions, which originate in the United States, have less salience in Australia because the federal system has not produced significant, enduring differences in substantive outcomes on rights.⁷⁴ States tend to adopt similar policies to each other and the Commonwealth exerts a large degree of control over States' policy positions. There are a number of possible explanations for this, including the small number of States (compared to the United States), the fact that Australia's cultural diversity is not expressed along federal lines (as in Canada and Switzerland), and the Commonwealth's fiscal dominance over the States.

Federalism can also contribute to the protection of rights by facilitating rights deliberation.⁷⁵ The States can serve as platforms for raising and expressing alternative views on rights issues under consideration by the federal and other State governments while the federal government can serve the same function vis-à-vis the States. A government can contribute through the articulation of views and by taking, or proposing to take, actions that highlight alternative positions on rights, which may prompt other governments to justify their position or to consider changing it. Even where policy uniformity results, federalism adds a greater range of participants and more points of engagement and accommodation to the policy creation process, which creates more opportunities for discussion and debate on rights.

4. Separation of Powers

The Constitution establishes a tripartite separation of powers. Sections 1, 61, and 71 vest the legislative, executive, and judicial powers of the Commonwealth in Parliament, the Governor-General, and the judiciary respectively. The principle of responsible government ensures that Australia does not have a strict separation of *institutions* between the executive and legislature, which the High Court has understood to preclude a strict separation of *powers*—the legislature has broad discretion to delegate legislative power to the executive.⁷⁶ The Court has, however, maintained a far more rigorous separation between the judiciary and other arms of government, holding that only those courts mentioned in section 71 can be vested with federal judicial power (no other institutions can exercise it) and

that federal courts can only exercise judicial power or powers ancillary or incidental to the exercise thereof (no other powers can be exercised).

At a general level, the separation of powers contributes to the protection of rights by controlling and limiting the power of public office holders, thus reducing the risks to rights that are associated with concentrated and unchecked power. Separating power across institutions ensures that no person or group of persons is judge in their own cause and everyone is subject to the law, thus incentivizing public officer holders to make, enforce, apply, and interpret the law in a fair, predictable, and rational manner. Australia's version of the separation of powers, with its emphasis on the judicial dimension of the doctrine, contains a more specific and identifiable set of contributions to rights protection, but it also operates to restrict innovation in the area of rights protection.

a) Protecting rights

Australia's separation of judicial powers doctrine is a longstanding one that traces its origins to 1909⁷⁷ and its full articulation to 1956.⁷⁸ However, several Court decisions in the early 1990s put a rights-based spin on it, suggesting that the separation of powers could serve, as a number of leading scholars suggested, as an 'implied bill of rights'⁷⁹ or a 'judicially created bill of rights'.⁸⁰ The principal development during this period related to the definition of judicial power. Members of the Court began to define judicial power in a way that might include protection for rights. Once defined in this way, Commonwealth Parliament could not vest the judiciary with functions that required them to ignore or contravene the definition's rights-related elements as that would amount to the conferral of a non-judicial power on a court. Further, this definition of judicial power reduced the range of functions that the federal executive or legislature could perform without judicial participation, thus ensuring that the exercise of certain powers related to rights remained subject to judicial oversight.

Two forms of rights protection came to be associated with the separation of powers. First, the Court began to speak of judicial power requiring the adjudication of disputes consistent with 'due process', 'a fair trial', or 'natural justice'. In *Leeth v Commonwealth*, for example, Deane and Toohey JJ said that the provisions of Chapter III of the Constitution 'not only identify the possible repositories of Commonwealth judicial power.

They also dictate and control the *manner* of its exercise'.⁸¹ Gaudron J said that judicial power must be exercised 'in accordance with the judicial process', which means that it must be exercised 'fairly'.⁸² Mason CJ, Dawson and McHugh JJ said that '[i]t may well be that any attempt on the part of the legislature to cause a court to act in a manner contrary to natural justice would impose a non-judicial requirement inconsistent with the exercise of judicial power'.⁸³ In *Chu Kheng Lim v Minister for Immigration, Local Government and Ethnic Affairs*, Brennan, Deane and Dawson JJ said that Commonwealth Parliament cannot require or authorize courts 'to exercise judicial power in a manner which is inconsistent with the essential character of a court or with the nature of judicial power'.⁸⁴

Second, the Court began to employ the concept of judicial power to restrict the ability of the executive and legislature to detain people without judicial involvement. In *Polyukhovich v Commonwealth*,⁸⁵ six judges held that the Constitution prohibits Commonwealth Parliament from enacting a bill of attainder because a declaration of guilt accompanied by the imposition of punishment is a judicial power and thus can only be exercised by a court. In *Lim*, Brennan, Deane and Dawson JJ said that, some exceptional cases aside, 'the involuntary detention of a citizen in custody by the State is penal or punitive in character and, under our system of government, exists only as an incident of the exclusively judicial function of adjudging and punishing criminal guilt'.⁸⁶

Additionally, during this period the Court extended an attenuated version of the same requirements to the States. Although the separation of judicial powers doctrine only applies at the federal level, in *Kable v Director of Public Prosecutions (NSW)*⁸⁷ the Court held that, as State courts can be invested with federal jurisdiction under section 77(iii) of the Constitution, State legislatures cannot confer functions on State courts that are incompatible with or repugnant to the exercise of federal judicial power.

The Court's exuberance in this area was, however, short lived. Following changes to the membership of the Court, these dimensions of the separation of judicial powers doctrine were eroded through narrow readings of prior cases and the creation of new exceptions. With respect to due process, in *Nicholas v The Queen* the Court held that Parliament has significant discretion to alter the common law rules that relate to fairness or natural

justice.⁸⁸ Brennan CJ's remarks struck a markedly different tone from those expressed in *Leeth*:⁸⁹

It is the faithful adherence of the courts to the laws enacted by the Parliament, however undesirable the courts may think them to be, which is the guarantee of public confidence in the integrity of the judicial process and the protection of the courts' repute as the administrator of criminal justice.

In *Magaming v The Queen*,⁹⁰ the Court held that mandatory sentencing does not amount to an impermissible interference with, or usurpation of, judicial power. With respect to bills of attainder, in *Duncan v New South Wales* the Court rejected a challenge to legislation cancelling three specified mining licences, stating that '[l]egislative detriment cannot be equated with legislative punishment'.⁹¹ In relation to executive detention, a narrow majority in *Al-Kateb v Godwin*⁹² held that the principle in *Lim* does not apply to non-citizens detained for immigration purposes even if the detainee faced the prospect of indefinite detention and, in *Re Woolley; Ex parte Applicants M276/2003*,⁹³ even if it involves children. Finally, the Court confined the operation of the *Kable* doctrine in subsequent decisions. Over a decade went by without the Court invalidating another State law on this ground, leading Kirby J to lament that it had become 'a constitutional guard-dog that would bark but once'.⁹⁴ However, since 2009 the Court has breathed new life into the *Kable* doctrine, using it to invalidate a number of State laws.⁹⁵ These decisions have imposed some, albeit limited, restrictions on the ability of State legislatures to create regimes imposing control orders on individuals with links to suspected criminal organizations.

b) Hindering innovation

The separation of judicial powers doctrine has also functioned to impede legislative efforts to enhance rights protection in Australia. The Court's strict application of the doctrine creates an institutional rigidity that inhibits innovative approaches to ventilating and remedying rights violations. In 1986, Commonwealth Parliament established the Human Rights and Equal Opportunity Commission, a novel type of institution designed to perform a range of human rights functions, including research, education, monitoring compliance with international human rights treaties, and complaint handling. Several anti-discrimination statutes empowered the Commission to receive written complaints alleging unlawful discrimination, to hold an

inquiry into the matter, and to make a determination, which could include a declaration that the respondent pay compensation to the complainant. Parliament attempted to accommodate the separation of judicial powers doctrine by denying the Commission the power to enforce its determinations because it was not a court. Instead, the legislation directed the Commission to lodge its determinations in a registry of the Federal Court and, after the expiry of a twenty-eight-day period in which the respondent could lodge a review of the determination, they became enforceable as an order of the Court. In *Brandy v Human Rights and Equal Opportunity Commission*,⁹⁶ the Court rejected the scheme, holding that the Commission was exercising judicial power even though its determinations were not binding because registration was compulsory and automatic. Parliament had to abandon the hybrid approach and separate the tasks of investigation and conciliation (assigned to the Commission) from the tasks of adjudication and enforcement (assigned to the judiciary).

A second example is from the *Charter of Human Rights and Responsibilities Act 2006* (Vic), which adopts an innovative approach to rights protection that is sometimes described in terms of ‘dialogue’. The Act provides for a system of rights-based judicial review while also granting Victorian Parliament a significant degree of flexibility to override or disregard those judicial decisions with which it disagrees. For example, if a court cannot interpret a statute compatibly with a Charter right, it can issue a declaration of inconsistent interpretation, but declarations do not affect the validity or operation of the statute, merely serving to alert Parliament to the rights issue that the court identified. In *Momcilovic v The Queen*,⁹⁷ the Court dealt a significant blow to this innovative mechanism, unanimously finding it to be a non-judicial power due to its non-binding character. As a result, the mechanism cannot be introduced at the federal level. While a narrow majority upheld it at the State level, finding it to be compatible with the *Kable* doctrine, two judges observed that it would be inappropriate to issue a declaration in any criminal case.⁹⁸ Further, members of the Court strongly disparaged the notion of ‘dialogue’,⁹⁹ demonstrating a lack of sympathy for Victorian Parliament’s attempt to innovate in this area.

5. The Rule of Law

In *Australian Communist Party v Commonwealth*, Dixon J said that the Constitution:¹⁰⁰

is an instrument framed in accordance with many traditional conceptions, to some of which it gives effect, as, for example, in separating the judicial power from other functions of government, others of which are simply assumed. Among these I think that it may fairly be said that the rule of law forms an assumption.

The Court frequently cites this passage.¹⁰¹ Although the Court has acknowledged that the full implications of these words have yet to arise for consideration,¹⁰² its understanding of the rule of law appears to be a ‘thin’ conception encompassing the notions that the executive and legislature are bound by the Constitution and that it is the Court’s role to enforce the Constitution against the other arms of government. It has thus held that Parliament cannot determine the scope of its law-making powers¹⁰³ and executive action cannot be completely shielded from judicial review.¹⁰⁴ This conception of the rule of law affords a degree of protection for rights by ensuring exercises of public power are authorized, and remain within the limits imposed, by law. Consistent with the absence of a bill of rights, the Court has generally refrained from embracing a ‘thick’ conception of the rule of law that would require the content of the law to comply with a particular set of rights.

The rule of law may be a constitutional assumption, but it is not entirely without textual foundation. Clause 5 of the Preamble points to the Constitution’s status as supreme law, stating that ‘[t]his Act, and all laws made by the Parliament of the Commonwealth under the Constitution, shall be binding on the courts, judges, and people of every State and of every part of the Commonwealth’. Section 75 guarantees an ‘entrenched minimum provision of judicial review’,¹⁰⁵ granting the High Court original jurisdiction in all matters in which the Commonwealth is a party (section 75(iii)) and in which ‘a writ of Mandamus or prohibition or an injunction is sought against an officer of the Commonwealth’ (section 75(v)). Although section 75(v) does not stipulate the circumstances in which a person can seek a writ, the Court has sought to preserve a set of grounds—errors of ‘sufficient gravity’ as to be characterized by the Court as jurisdictional in kind—on which a section 75(v) writ can be issued.¹⁰⁶ Section 73

establishes the Court's appellate jurisdiction, which includes all judgments from 'the Supreme Court of any State'. The High Court has held that section 73 requires the states to maintain Supreme Courts with supervisory jurisdiction over the State executive and lower State courts, thus extending the entrenched minimum provision of judicial review to the State level.¹⁰⁷

E. CONCLUSION

The Australian Constitution's contribution to the protection of rights is more opaque and diffuse than what occurs in most other countries due to the absence of a bill of rights. A search of the Constitution's text reveals only a small number of provisions that appear to be rights and a search of the case law reveals that they have only limited effect in practice. The Constitution's structural features make a larger albeit piecemeal contribution. Ultimately, therefore, one must look well beyond the Constitution to understand the state of rights protection in Australia for its contribution is, on the whole, modest.

¹ David S Law and Mila Versteeg, 'The Declining Influence of the United States Constitution' (2012) 87 New York University Law Review 762, 772–76.

² There are two statutory bills of rights at the sub-national level: *Human Rights Act 2004* (ACT); *Charter of Human Rights and Responsibilities Act 2006* (Vic).

³ *Theophanous v Herald & Weekly Times Ltd* (1994) 182 CLR 104, 172 (Deane J).

⁴ A copy of Clark's draft Constitution is available in John M Williams, *The Australian Constitution: A Documentary History* (Melbourne UP 2005) 63–112. For an overview of Clark's influence on the Constitution, see John M Williams, '“With Eyes Open”: Andrew Inglis Clark and Our Republican Tradition' (1993) 25 Federal Law Review 149.

⁵ Quoted in Williams, *The Australian Constitution* (n 4) 233. The addition of this clause is attributed to Clark: John A La Nauze, *The Making of the Australian Constitution* (Melbourne UP 1972) 68.

⁶ It did, however, enact legislation altering the executive and legislature's responsibilities for the protection of rights: *Human Rights (Parliamentary Scrutiny) Act 2011* (Cth).

⁷ *Racial Discrimination Act 1975* (Cth); *Sex Discrimination Act 1984* (Cth); *Disability Discrimination Act 1992* (Cth); *Age Discrimination Act 2004* (Cth).

⁸ *Australian Human Rights Commission Act 1986* (Cth).

⁹ See (n 6).

¹⁰ See (n 2).

¹¹ Scott Stephenson, 'Federalism and Rights Deliberation' (2014) 38 Melbourne University Law Review 709.

- ¹² La Nauze, *The Making of the Australian Constitution* (n 5) 231–32.
- ¹³ Official Record of the Debates of the Australasian Federal Convention (Melbourne, 8 February 1898) 666.
- ¹⁴ Harrison Moore, *The Constitution of the Commonwealth of Australia* (John Murray, 1902) 329.
- ¹⁵ Robert Menzies, *Central Power in the Australian Commonwealth: An Examination of the Growth of Commonwealth Power in the Australian Federation* (University Press of Virginia, 1967) 54.
- ¹⁶ See, eg, Queensland Legal Affairs and Community Safety Committee, *Inquiry into a Possible Human Rights Act for Queensland* (Report No 30, 55th Parliament, June 2016) xiii–xix.
- ¹⁷ See, eg, Jeremy Waldron, *Law and Disagreement* (OUP 1999).
- ¹⁸ See, eg, Mark Tushnet, ‘Policy Distortion and Democratic Debilitation: Comparative Illumination of the Countermajoritarian Difficulty’ (1995) 94 Michigan Law Review 245.
- ¹⁹ *Trade Practices Commission (Cth) v Tooth & Co Ltd* (1979) 142 CLR 397, 403 (Barwick CJ).
- ²⁰ *ICM Agriculture Pty Ltd v Commonwealth* (2009) 240 CLR 140, 212 [185] (Heydon J). Others have, however, warned against describing it as a ‘guarantee’: *Commonwealth v WMC Resources Ltd* (1998) 194 CLR 1, 48 [126] (McHugh J).
- ²¹ *Minister of State for the Army v Dalziel* (1944) 68 CLR 261, 285 (Rich J).
- ²² *Telstra Corporation Ltd v Commonwealth* (2008) 234 CLR 210, 230 [43] (Gleeson CJ, Gummow, Kirby, Hayne, Heydon, Crennan and Kiefel JJ).
- ²³ *Theophanous v Commonwealth* (2006) 225 CLR 101, 126 [60] (Gummow, Kirby, Hayne, Heydon and Crennan JJ).
- ²⁴ *Bank of New South Wales v Commonwealth* (1948) 76 CLR 1, 349 (Dixon J).
- ²⁵ *Mutual Pools & Staff Pty Ltd v Commonwealth* (1994) 179 CLR 155; *Nintendo Co Ltd v Centronics Systems Pty Ltd* (1994) 181 CLR 134; *JT International SA v Commonwealth* (2012) 250 CLR 1.
- ²⁶ *Dalziel* (n 21) 290 (Starke J).
- ²⁷ See generally James Stellios, *Zines’s the High Court and the Constitution* (6th edn, Federation Press 2015) 620–25.
- ²⁸ *Grace Bros Pty Ltd v Commonwealth* (1946) 72 CLR 269, 291 (Dixon J).
- ²⁹ *Wurridjal v Commonwealth* (2009) 237 CLR 309.
- ³⁰ *ICM Agriculture Pty Ltd* (n 20).
- ³¹ *James v Cowan* (1930) 43 CLR 386, 418 (Isaacs J). See generally Stellios (n 27) ch 7.
- ³² *Cole v Whitfield* (1988) 165 CLR 360, 391 (Mason CJ, Wilson J, Brennan J, Deane J, Dawson J, Toohey J and Gaudron J). See generally Stellios (n 27) ch 8.
- ³³ *Cole v Whitfield* (n 32).
- ³⁴ See, eg, *Betfair Pty Ltd v Racing New South Wales* (2012) 249 CLR 217.
- ³⁵ *R v Archdall and Roskrige; Ex parte Carrigan and Brown* (1928) 41 CLR 128; *Kingswell v The Queen* (1985) 159 CLR 264; *Cheng v The Queen* (2000) 203 CLR 248.
- ³⁶ Geoffrey Sawer, *Australian Federalism in the Courts* (Melbourne UP 1967) 19. George Williams and David Hume write that Sawer’s statement ‘remains correct today’: *Human Rights under the Australian Constitution* (2nd edn, OUP 2013) 355.
- ³⁷ *Brown v The Queen* (1986) 160 CLR 171.
- ³⁸ *Cheatle v The Queen* (1993) 177 CLR 541, 557–58.
- ³⁹ *ibid.*
- ⁴⁰ *Kruger v Commonwealth* (1997) 190 CLR 1, 86 (Toohey J), 161 (Gummow J).

- ⁴¹ *Attorney-General (Vic) (Ex rel Black) v Commonwealth* (1981) 146 CLR 559.
- ⁴² *Kruger*([n 40](#)).
- ⁴³ *Williams v Commonwealth* (2014) 252 CLR 416.
- ⁴⁴ *Davies v Jones* (1904) 2 CLR 29.
- ⁴⁵ (1989) 168 CLR 461.
- ⁴⁶ *ibid* 485 (Mason CJ), 554 (Toohey J).
- ⁴⁷ See, eg, *Sweedman v Transport Accident Commission* (2006) 226 CLR 362.
- ⁴⁸ *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520, 557–59.
- ⁴⁹ Harry Evans and Rosemary Laing (eds), *Odgers' Australian Senate Practice* (13th edn, Department of the Senate 2012) 361–64.
- ⁵⁰ (2007) 233 CLR 162.
- ⁵¹ (2010) 243 CLR 1.
- ⁵² *Roach* ([n 50](#)) 198 [81].
- ⁵³ (1975) 135 CLR 1.
- ⁵⁴ However, in a more recent case French CJ, Kiefel, Bell and Keane JJ said that '[e]quality of opportunity to participate in the exercise of political sovereignty is an aspect of the representative democracy guaranteed by our Constitution': *McCloy v New South Wales* *McCloy v New South Wales* (2015) 257 CLR 178, 207 [45].
- ⁵⁵ (1992) 177 CLR 106.
- ⁵⁶ (1992) 177 CLR 1.
- ⁵⁷ *Stephens v West Australian Newspapers Ltd* (1994) 182 CLR 211.
- ⁵⁸ *Lange* ([n 48](#)).
- ⁵⁹ (2004) 220 CLR 1.
- ⁶⁰ (2013) 249 CLR 92.
- ⁶¹ *Unions NSW v New South Wales* (2013) 252 CLR 530; *McCloy* ([n 54](#)).
- ⁶² *Constitution*, s 53.
- ⁶³ *ibid* s 7.
- ⁶⁴ *ibid* ss 7, 28.
- ⁶⁵ Evans and Laing ([n 49](#)) 13.
- ⁶⁶ Parliament of Australia, *Senate Standing Order No 24*.
- ⁶⁷ Parliament of Australia, *Senate Standing Order No 23*.
- ⁶⁸ *Human Rights (Parliamentary Scrutiny) Act 2011* (Cth).
- ⁶⁹ Parliament of Australia, *Senate Standing Order No 26*.
- ⁷⁰ George Williams and Daniel Reynolds, 'The Operation and Impact of Australia's Parliamentary Scrutiny Regime for Human Rights' (2016) 41 *Monash University Law Review* 469, 479–83.
- ⁷¹ Evans and Laing ([n 49](#)) 457.
- ⁷² *ibid* 459.
- ⁷³ *Constitution*, ss 106, 107.
- ⁷⁴ This is not to say that they have no salience: see, eg, Brendan Lim, 'Laboratory Federalism and the Kable Principle' (2014) 42 *Federal Law Review* 519.
- ⁷⁵ Scott Stephenson, 'Federalism and Rights Deliberation' (2014) 38 *Melbourne University Law Review* 709.
- ⁷⁶ *Victorian Stevedoring and General Contracting Co Pty Ltd v Dignan* (1931) 46 CLR 73.
- ⁷⁷ *Huddart, Parker & Co Pty Ltd v Moorehead* (1909) 8 CLR 330.

- ⁷⁸ *R v Kirby; Ex parte Boilermakers' Society of Australia* (1956) 94 CLR 254.
- ⁷⁹ George Winterton, 'The Separation of Judicial Power as an Implied Bill of Rights' in Geoffrey Lindell (ed), *Future Directions in Australian Constitutional Law: Essays in Honour of Professor Leslie Zines* (Federation Press 1994) 185.
- ⁸⁰ Leslie Zines, 'A Judicially Created Bill of Rights?' (1994) 16 Sydney Law Review 166.
- ⁸¹ (1992) 174 CLR 455, 486–87 (emphasis added).
- ⁸² *ibid* 502.
- ⁸³ *ibid* 470.
- ⁸⁴ (1992) 176 CLR 1, 27.
- ⁸⁵ (1991) 172 CLR 501.
- ⁸⁶ *Lim* (n 84) 27.
- ⁸⁷ (1996) 189 CLR 51.
- ⁸⁸ (1998) 193 CLR 173.
- ⁸⁹ *ibid* 197 [37].
- ⁹⁰ (2013) 252 CLR 381.
- ⁹¹ (2015) 255 CLR 388, 409 [46].
- ⁹² (2004) 219 CLR 562.
- ⁹³ (2004) 225 CLR 1.
- ⁹⁴ *Baker v The Queen* (2004) 223 CLR 513, 535 [54].
- ⁹⁵ *International Finance Trust Co Ltd v New South Wales Crime Commission* (2009) 240 CLR 319; *South Australia v Totani* (2010) 242 CLR 1; *Wainohu v New South Wales* (2011) 243 CLR 181.
- ⁹⁶ (1995) 183 CLR 245.
- ⁹⁷ (2011) 245 CLR 1.
- ⁹⁸ *ibid* 229 [605].
- ⁹⁹ *ibid* 67–68 [95] (French CJ), 84 [146] (Gummow J, Hayne J agreeing), 207 [534] (Crennan and Kiefel JJ).
- ¹⁰⁰ (1951) 83 CLR 1, 193.
- ¹⁰¹ *Plaintiff S157/2002 v Commonwealth* (2003) 211 CLR 476, 513–14 [103]–[104]; *APLA Ltd v Legal Services Commissioner (NSW)* (2005) 224 CLR 322, 351 [30] (Gleeson CJ and Heydon J), 441 [350] (Kirby J); *Thomas v Mowbray* (2007) 233 CLR 307, 342 [61] (Gummow and Crennan JJ); *Momcilovic* (n 97), 216 [563] (Crennan and Kiefel JJ); *Totani* (n 95) 42 [61] (French CJ).
- ¹⁰² *Kartinyeri v Commonwealth* (1998) 195 CLR 337, 381 (Gummow and Hayne JJ).
- ¹⁰³ *Communist Party Case* (n 100).
- ¹⁰⁴ *S157* (n 101).
- ¹⁰⁵ *ibid* 513 [103] (Gaudron, McHugh, Gummow, Kirby and Hayne JJ).
- ¹⁰⁶ *ibid* 513–14 [104] (Gaudron, McHugh, Gummow, Kirby and Hayne JJ).
- ¹⁰⁷ *Kirk v Industrial Court of New South Wales* (2010) 239 CLR 531.

CHAPTER 38

DUE PROCESS

FIONA WHEELER*

A. INTRODUCTION

THERE is no express guarantee of procedural or substantive due process in the Australian Constitution. Such a guarantee was rejected by the framers who believed that representative parliamentary democracy, on the British model, would safeguard the liberties of Australians. At the same time, the framers regarded a federal judicial system, including an independent Supreme Court able to rule on disputes between the Commonwealth and the States and serve as a national court of appeal, as an essential part of the new federation.¹ As a result, Chapter III of the Constitution is directed to ‘The Judicature’ (ss 71–80). It specifies that ‘[t]he judicial power of the Commonwealth shall be vested in a Federal Supreme Court, to be called the High Court of Australia, and in such other federal courts as the Parliament creates, and in such other courts as it invests with federal jurisdiction’ (s 71). The Chapter secures the tenure of Justices of the High Court and other federal courts (s 72). It also defines the jurisdiction of the High Court and the federal jurisdiction that can be conferred on federal and State courts (ss 73, 75–77).

Chapter III has generated a large body of case law and is today interpreted by the High Court as giving rise to a number of implied due process protections. These protections flow from several related principles long recognized by the Court as integral to the Constitution—the judicial review function of the courts, the separation of federal judicial power, and the underlying ‘assumption’ of ‘the rule of law’.² For most of the twentieth century, the Court treated these principles primarily as constraints on the

institutional allocation of power.³ However, more recently, their rights-protective role has received increased attention. The turning point was the 1989 opinion of Deane J in *Re Tracey; Ex parte Ryan* in which, in expansive terms, he described the ‘separation of judicial from executive and legislative powers’ as ‘the Constitution’s only general guarantee of due process’.⁴

It is important to appreciate that the Australian due process guarantees do not correspond with the wide-ranging guarantees of procedural and substantive due process mandated by the Fifth and Fourteenth Amendments to the United States Constitution.⁵ Rather, due process in Australia is a more limited safeguard anchored in the historic features of courts. As Gageler J said in 2013 in *Magaming v The Queen*:

Due process is constitutionally guaranteed at least to the extent that the court must always be independent of the executive and impartial, that the procedure adopted by the court ... must always be fair to the individual, and that the processes of the court must (at least ordinarily) be open to the public.⁶

Partly because of its strong association with United States jurisprudence, the terminology of ‘due process’ is yet to pass into general High Court usage.⁷ Nonetheless, the expression draws attention to the values that make it so important that disputes about legal entitlements are decided by courts.⁸ So regarded, the expression has much to commend it, especially as Australia’s constitutional system has historically placed its faith in the institutions of government—including the courts—to protect liberty interests.

The analysis that follows is in five sections. [Section B](#) examines the unsuccessful attempt in the 1890s to incorporate an express due process clause in the Australian Constitution. In the context of the framers’ general rejection of express constitutional rights, [section C](#) looks at the High Court’s historical recognition that Chapter III of the Constitution incorporates judicial review of the validity of legislative and executive action and a separation of federal judicial power. [Sections D](#) and [E](#) examine how in recent decades the Court has distilled a group of due process guarantees binding on the Commonwealth and the States from this institutional framework, primarily the separation of federal judicial power and the notion of autonomous courts. [Section F](#) considers key issues in future development of Australian due process law. As will be seen, the due

process guarantees have the potential to reinforce, but also to undermine, the legitimacy of the courts. Given Australia's constitutional heritage, it is argued that the Australian conception of due process should navigate close to its institutional origins.

B. AN EXPRESS DUE PROCESS GUARANTEE?

A proposal to include an express due process guarantee in the Australian Constitution was debated at the second Constitutional Convention in Melbourne in 1898. The clause voted on by delegates provided, in the language of the Fourteenth Amendment to the United States Constitution, that '[a] state shall not deprive any person of life, liberty, or property without due process of law'.⁹ So worded, the provision limited the authority of the States who, under the federal division of power, had primary responsibility for criminal law.

The proponent of the clause was New South Wales delegate, Richard O'Connor, who was to become a founding Justice of the High Court. O'Connor argued that the clause was required as a brake on majority passion. He claimed:

In the ordinary course of things such a provision at this time of day would be unnecessary; but we all know that laws are passed by majorities, and that communities are liable to sudden and very often to unjust impulses—as much so now as ever. The amendment is simply a declaration that no impulse of this kind which might lead to the passing of an unjust law shall deprive a citizen of his right to a fair trial.¹⁰

The opposing view maintained that the society which the colonists had established in Australia made a brake of this kind redundant. In a well-known passage, South Australian delegate, John Cockburn, proclaimed:

Why should these words be inserted? They would be a reflection on our civilization. Have any of the colonies of Australia ever attempted to deprive any person of life, liberty, or property without due process of law? ... People would say—'Pretty things these states of Australia; they have to be prevented by a provision in the Constitution from doing the grossest injustice'.¹¹

The clause was rejected by a margin of twenty-three to nineteen.¹² While Cockburn's assertion that it was unnecessary was echoed by others,¹³ the failure of O'Connor's proposal was also connected to debates over whether

the presence in the Constitution of rights-protective measures would, contrary to the desire of some delegates, forbid racially discriminatory legislation.¹⁴

That a due process clause was debated and rejected exemplifies the traditional view that the Australian Constitution is not based on distrust of government.¹⁵ As Professor William Harrison Moore wrote in 1910:

Fervid declarations of individual right, and the protection of liberty and property against the government, are conspicuously absent from the Constitution; the individual is deemed sufficiently protected by that share in the government which the Constitution ensures him.¹⁶

This view shaped the High Court's approach to constitutional interpretation for much of its history, creating a mindset generally unfavourable to the fostering of rights-based limitations on power.¹⁷ More recently, some High Court Justices have suggested that rejection of a due process clause shows that, under the Constitution, 'the protection of personal liberty was left to the rule of law'.¹⁸ The High Court's contemporary due process jurisprudence should be seen in light of these perspectives.

C. JUDICIAL REVIEW AND SEPARATION OF POWERS

Despite the absence of an Australian Bill of Rights, the newly created High Court asserted authority to strike down Commonwealth and State legislation as contrary to the Constitution. As part of this judicial review function, it also asserted that the judicial power of the Commonwealth ('federal judicial power') is exclusively vested in the courts listed in Chapter III. The connection between these principles—judicial review and the separation of federal judicial power—crystallized in the mid-twentieth century when their full significance as limitations on the institutional allocation of power at Commonwealth level became apparent. While the High Court in this period regarded each principle as protective of federalism and the rule of law, the Court did not use the language of due process to describe their operation or effect. Nonetheless, each principle protected 'basic rights'¹⁹ by means of important constitutional safeguards.

1. Judicial Review and the *Communist Party Case*

The most powerful expression of the High Court's judicial review function is the *Communist Party Case* decided in 1951.²⁰ From the plaintiffs' perspective, the ruling in this case vindicated their claims to due process of law in dramatic fashion. As a matter of constitutional analysis, however, that vindication was indirect and limited in nature.

At issue was the validity of the *Communist Party Dissolution Act 1950* (Cth). The Act stated in its preamble that the Australian Communist Party (ACP) engaged in activity 'designed to bring about the overthrow' of the Australian polity 'and the attainment of economic, industrial or political ends by force, violence, intimidation or fraudulent practices'.²¹ Section 4 of the Act 'declared' the ACP 'to be an unlawful association' which was henceforth 'dissolved'. Sections 5 and 9 allowed the Commonwealth executive to dissolve bodies associated with the communist movement, and to subject individual communists to civil disabilities, if satisfied that those bodies or persons posed a threat to national security and defence. At the time, the *Crimes Act 1914* (Cth) contained a subversion offence triable in the courts.²² However, in the cold war context, the Menzies Government decided that communism should be suppressed by ad hominem measures that superseded established legal process.²³

By a six to one majority, the High Court found the *Dissolution Act* invalid. This was essentially because the Commonwealth did not have authority, under the federal division of powers, over communism as such. Parliament had thus sought to '“recite itself” into power',²⁴ by proclaiming that communism was a defence threat. However, this usurped the role of the courts who had exclusive authority under the Constitution to determine the validity of legislative and executive action, including whether a law served a defence purpose.²⁵ As Fullagar J wrote, 'in our system the principle of *Marbury v Madison* is accepted as axiomatic'.²⁶ Dixon J similarly stated that the Constitution was founded on the rule of law.²⁷ It followed that, at least in peacetime,²⁸ the Commonwealth could not directly penalize communists for subversive conduct otherwise than by criminal proceedings.

The *Communist Party Case* is popularly lauded as a victory for due process. Yet that victory did not reflect a specific due process jurisprudence being the product of a determination that Parliament had overreached its

competence vis-à-vis the courts.²⁹ The ACP's victory was also subject to the qualification that, as matters stood in the 1950s, the Australian States remained free under the Constitution to enact their own versions of the *Dissolution Act*.³⁰

2. Separation of Powers and the *Boilermakers' Case*

Shortly after the *Communist Party Case*, the High Court decided *R v Kirby; Ex parte Boilermakers' Society of Australia*.³¹ There the Court expanded the separation of powers under the Constitution, giving the principle fresh prominence after a period of relative quiescence.³² The Court had previously determined that Chapter III stops the Commonwealth from conferring federal judicial power on non-court bodies.³³ In the *Boilermakers' Case*, it held that Chapter III also stops the Commonwealth from conferring any other type of power on federal and State courts.³⁴ The separation principle was thus extended to bar federal courts from legislative and executive functions.

In interpreting the Constitution in this way, the *Boilermakers'* majority alluded to the object of the separation of federal judicial power, linking it to judicial review and judicial independence in a federation. Dixon CJ, McTiernan, Fullagar and Kitto JJ wrote:

The position and constitution of the judicature could not be considered accidental to the institution of federalism: for upon the judicature rested the ultimate responsibility for the maintenance and enforcement of the boundaries within which governmental power might be exercised and upon that the whole system was constructed.³⁵

The Privy Council on appeal likewise stated:

[I]n a federal system the absolute independence of the judiciary is the bulwark of the constitution against encroachment whether by the legislature or by the executive. To vest in the same body executive and judicial power is to remove a vital constitutional safeguard.³⁶

On the facts of the case, the High Court held that the Commonwealth Court of Conciliation and Arbitration could no longer make industrial awards for resolution of labour disputes and also enforce those awards.³⁷ The immediate outcome in the *Boilermakers' Case* was thus largely institutional in effect.

While *Boilermakers*’ linked the separation principle to federalism, other High Court opinions have described the principle as maintaining wider values of individual liberty and the rule of law. In 1909 in *Huddart, Parker and Co Pty Ltd v Moorehead*, Isaacs J referred to Blackstone’s claim that ‘[w]ere it [judicial power] joined with the legislative, the life, liberty, and property of the subject would be in the hands of arbitrary judges, whose decisions would be then regulated only by their own opinions, and not by any fundamental principles of law’.³⁸ According to Isaacs J, this and related passages from Blackstone were ‘a legitimate source of instruction’ in understanding Chapter III.³⁹ In 1996 in *Wilson v Minister for Aboriginal and Torres Strait Islander Affairs*, five High Court Justices recognized both rationales, stating that the separation principle ‘advances two constitutional objectives: the guarantee of liberty and, to that end, the independence of Ch III judges’⁴⁰ observing that judicial independence ‘is especially important in a federal system’.⁴¹ As discussed later, the idea that the separation of federal judicial power serves important objectives, notably in promoting the rule of law, plays a key role in contemporary due process jurisprudence.

3. Federal and State Judicial Power

After the *Boilermakers*’ Case, the separation principle continued to channel federal judicial power to courts with the safeguards conventionally associated with judicial process. In 1986 in *Building Construction Employees and Builders’ Labourers Federation of New South Wales v Minister for Industrial Relations* (‘BLF’), Street CJ of the Supreme Court of New South Wales summarized that process at general law and the values it serves:

The built-in protections of natural justice, absence of bias, appellate control, and the other concomitants that are the ordinary daily province of the courts, are fundamental safeguards of the democratic rights of individuals. For Parliament, uncontrolled as it is by any of the safeguards that are enshrined in the concept of due process of law, to trespass into this field of judging between parties ... is an affront to a society that prides itself on the quality of its justice.⁴²

In this period, however, the separation of powers did not operate at State level. As a consequence, in *BLF*, the New South Wales Court of Appeal held that the New South Wales Parliament could validly usurp the role of the judiciary and, contrary to ‘due process of law’, direct the outcome of litigation pending in a State court against a prominent trade union.⁴³ While

at federal level, this was prohibited by Chapter III,⁴⁴ cases concerning the federal separation of powers after the *Boilermakers' Case* emphasized technical analysis of whether particular functions could be classified as judicial or not.⁴⁵ The judicial process demanded by Chapter III received little attention.⁴⁶

From the late 1980s, all this changed. A distinct due process jurisprudence arose at federal level much of which has now, as a result of a radical shift in the High Court's construction of Chapter III, been replicated in the States. These two developments—the emergence of an implied guarantee of due process at federal level and its extension to the States—are examined in the sections that follow.

D. IMPLIED DUE PROCESS AT FEDERAL LEVEL

The federal due process guarantee was the product of a subtle, but important, adjustment by the High Court in how it viewed the separation principle. By and large the Court reconceptualized the principle from one concerned primarily with formal allocation of power to a substantive or purposive doctrine designed to achieve certain constitutional ends.⁴⁷ In doing so, it invoked the ideas underlying the separation of federal judicial power discussed above, emphasizing its rule of law objectives. Though this did not initially lead to findings of invalidity, the Justices repeatedly affirmed that the Constitution governs the process by which federal judicial power can be discharged. The guarantee's emergence coincided with the Mason Court, its embrace of legal realism, and focus on the rights-protective capacity of the Constitution.⁴⁸

1. The General Guarantee

In *Re Tracey; Ex parte Ryan*, Deane J described the 'general guarantee of due process' as follows:

The guilt of the citizen of a criminal offence and the liability of the citizen under the law ... can be conclusively determined only by a Ch III court acting as such, that is to say, acting judicially.⁴⁹

He elaborated on this in *Polyukhovich v Commonwealth*.⁵⁰ There he said that the separation of federal judicial power is designed 'to ensure that "the

life, liberty, and property of the subject [is not] in the hands of arbitrary judges”’.⁵¹ The due process requirement, he reasoned, operated to secure this goal:

That objective will ... be achieved only by the Constitution’s requirement that judicial power be vested exclusively in the courts which it designates if the judicial power so vested is exercised by those courts in accordance with the essential attributes of the curial process ...⁵²

Gaudron J was the other early proponent of the guarantee. In *Re Nolan; Ex parte Young*, she said:

[A]n essential feature of judicial power is that it must be exercised in accordance with the judicial process ... the general features of that process ... include open and public enquiry (subject to limited exceptions), the application of the rules of natural justice, the ascertainment of the facts as they are and as they bear on the right or liability in issue and the identification of the applicable law, followed by an application of that law to those facts ...⁵³

Unlike Deane J, Gaudron J did not explicitly invoke the objects of the separation principle in aid of the guarantee. Yet her resort to historical practices of courts in identifying the features of ‘judicial process’ led her to also identify the guarantee as maintaining the rule of law. In her words:

The determination in accordance with the judicial process of controversies as to legal rights and obligations ... is vital to the maintenance of an open, just and free society ... the judicial process protects the individual from arbitrary punishment and the arbitrary abrogation of rights by ensuring that punishment is not inflicted and rights are not interfered with other than in consequence of the fair and impartial application of the relevant law to facts which have been properly ascertained.⁵⁴

Subsequently, in *Chu Kheng Lim v Minister for Immigration, Local Government and Ethnic Affairs*,⁵⁵ the guarantee was endorsed by other Mason Court Justices. There Brennan, Deane and Dawson JJ denied that federal judicial power could be exercised contrary to ‘the essential character of a court or ... the nature of judicial power’.⁵⁶ As a result of this and similar judicial statements, the guarantee was affirmed.⁵⁷

2. Procedural Heartland

As regards the elements of the guarantee, the procedural norms identified by Gaudron J in the first passage quoted above from *Re Nolan; Ex parte Young* represent its central operation. That passage was endorsed in 2014 in *Kuczborski v Queensland* by Crennan, Kiefel, Gageler and Keane JJ.⁵⁸

Earlier, in 1999 in *Bass v Permanent Trustee Co Ltd*, six Justices likewise stated:

Judicial power involves the application of the relevant law to facts as found in proceedings conducted in accordance with the judicial process. And that requires that the parties be given an opportunity to present their evidence and to challenge the evidence led against them.⁵⁹

Federal judicial power must thus be exercised ‘openly, impartially, and in accordance with fair and proper procedures’.⁶⁰ The established processes of legal reasoning must also be employed. As Deane J recognized in *Polyukhovich*, Parliament could not, for example, validly authorize a federal court to decide a matter by ‘disregard[ing] ... the law’ and doing ‘whatever they [the court] considered to be desirable in the public interest’.⁶¹

That openness, impartiality, and a fair hearing comprise the ‘heartland’ of the federal due process guarantee is unsurprising.⁶² What would be surprising is if Parliament could oust these indicia of the exercise of judicial authority by courts.⁶³ That said, these norms are broad and, expressed as general propositions, will not always provide clear guidance in specific cases. In particular, it is accepted that they may give way, at least to some extent, to competing social interests such as national security or the needs of ‘vulnerable witnesses’.⁶⁴ Moreover, while due process offers the potential to insulate established rules of evidence, proof, and general trial procedure from legislative modification,⁶⁵ there are signs that the Court will proceed cautiously in this regard, so long as courts remain free to determine ‘ultimate issues of guilt or innocence’.⁶⁶ As others have pointed out, over-zealous defence of existing practices could cause rigidity and create a perception of courts as resistant to democratic change.⁶⁷

3. Boundaries of the Guarantee

Beyond the procedural heartland of the due process guarantee its scope has been contested. In their dissenting opinions in *Polyukhovich*, Deane and Gaudron JJ each found a retroactive federal criminal law invalid on the basis, at least in part, that it would require a court to act contrary to judicial process.⁶⁸ Later, in *Leeth*, they claimed that federal judicial power must be exercised consistently with ‘equal justice’.⁶⁹ In both cases, Toohey J lent

support to this broad conception of due process,⁷⁰ but Mason CJ, Dawson and McHugh JJ were opposed.⁷¹ Writing together in *Leeth*, Mason CJ, Dawson and McHugh JJ acknowledged the legitimacy of procedural constraints on federal judicial power but appeared to suggest that an ‘equal justice’ requirement would encroach upon the content of laws that courts are asked to apply.⁷² Subsequently, Dawson J in *Kruger v Commonwealth*, after noting the historical reasons for the absence of an Australian Bill of Rights,⁷³ stated that ‘it is possible to regard the separation of judicial power from the other powers of government as affording a measure of due process but it is due process of an essentially procedural rather than a substantive kind’.⁷⁴

In the years since, the idea that retroactive criminal laws and unequal laws are at odds with Chapter III has not gained momentum. Rather, the High Court has emphasized in recent opinions that Chapter III is not a panacea for unjust laws and that courts are generally bound under the Constitution to apply harsh measures.⁷⁵ Nonetheless, development of a limited guarantee of procedural equality in the exercise of federal judicial power remains possible.⁷⁶ In *Kruger*, Gaudron J maintained that:

Ch III operates to preclude the conferral on courts of discretionary powers which are conditioned in such a way that they must be exercised in a discriminatory manner ... there is [thus] a limited constitutional guarantee of equality before the courts, not an immunity from discriminatory laws ...⁷⁷

Gaudron J’s view presumably draws from historical acceptance that trial discretions should be exercised non-arbitrarily. Yet absent a Bill of Rights, the Australian Constitution provides an uncertain framework from which to distil binding categories of arbitrary and non-arbitrary difference.⁷⁸ It may be then that any equal justice guarantee closely follows the contours of natural justice, providing a measure of equality for parties in the hearing process, including an impartial judge ‘equidistant’⁷⁹ from both parties.⁸⁰ So confined, such a safeguard should be accepted.

4. Legislative and Executive Punishment

Regardless of its scope, due process protection would be fragile if Parliament or the executive could assert judicial authority. The High Court has long accepted that certain functions, notably criminal and civil trials,

are exclusively judicial in nature and, at federal level, can only be given to courts.⁸¹ Two foundational due process cases—*Polyukhovich* and *Lim*—strengthened this aspect of Chapter III by recognizing new ways in which the federal separation principle can be infringed. The cases thereby strengthened Chapter III’s commitment to due process.

In *Polyukhovich*, the Court considered the validity of Commonwealth legislation retroactively making it a criminal offence, to be determined by an Australian court, for a person to have engaged in a ‘war crime’⁸² in Europe during the Second World War. A majority upheld the law against Chapter III challenge. In doing so, the Justices recognized that a federal Act of Attainder purporting to punish a nominated person or group independently of a finding of guilt by a court would contravene the separation principle and be invalid.⁸³ This was despite the Australian Constitution not containing an express prohibition of Acts of Attainder such as article I, section 9, clause 3 and article I, section 10, clause 1 of the United States Constitution. One consequence of this finding is that it provides a strong argument for invalidity, apart from want of a head of legislative power, were the *Communist Party Dissolution Act 1950* (Cth) passed today.⁸⁴

By contrast, a more contentious due process constraint was advanced by Brennan, Deane and Dawson JJ in their joint opinion in *Lim*. There the Court considered whether asylum seekers could validly be held by the Commonwealth executive in immigration detention pending resolution of their asylum claims. The three Justices, taking a substantive approach to the separation principle and invoking the values which make a criminal trial an exclusively judicial function, formulated a general immunity from executive detention. They reasoned that, with some exceptions, ‘the involuntary detention of a citizen in custody by the State is penal or punitive in character and ... exists only as an incident of the exclusively judicial function of adjudging and punishing criminal guilt’.⁸⁵ It followed that:

[T]he citizens of this country enjoy, at least in times of peace, a constitutional immunity from being imprisoned by Commonwealth authority except pursuant to an order by a court in the exercise of the judicial power of the Commonwealth.⁸⁶

In other words, as Gageler J said in 2015 in *North Australian Aboriginal Justice Agency Ltd v Northern Territory* (‘*NAAJA*’), given ‘the concern for

the protection of personal liberty’ which lies ‘at the core of our inherited constitutional tradition’,⁸⁷ the immunity ‘reserves punitive detention presumptively to the judicial power [and thus to] ... adjudication by a court acting in accordance with a judicial process’.⁸⁸

The potential of this immunity to forestall executive detention has not, however, been realized. A combination of factors accounts for this.⁸⁹ In *Lim*, Brennan, Deane and Dawson JJ accepted that detention of non-citizens for the purpose of assessing asylum claims falls outside the immunity.⁹⁰ Subsequently, in 2004 in *Al-Kateb v Godwin*, the Court by a four to three margin denied a constitutional challenge to the open-ended detention of a stateless person whose claim for asylum in Australia had been rejected.⁹¹ The immunity has also been weakened by recognition of additional types of non-punitive detention excepted from it.⁹² Indeed, Gaudron J declined to recognize a Chapter III immunity, claiming that the exceptions to the rule were so ill-defined as to deny the rule itself.⁹³

Despite its unsettled history, the *Lim* immunity has persisted as a line of argument in the High Court, most prominently in testing the boundaries of immigration detention. Recent High Court opinions acknowledge the immunity and suggest that, over time, it may consolidate into an enduring safeguard of liberty interests.⁹⁴

E. IMPLIED DUE PROCESS AT STATE LEVEL

Paradoxically, since the turn of the century, development of constitutionally entrenched due process has occurred primarily at State, not federal, level. Whereas a High Court majority is yet directly to apply the due process guarantee to strike down federal legislation,⁹⁵ the Court has used due-process style protections to invalidate State measures, most dramatically in 1996 in *Kable v Director of Public Prosecutions (NSW)*.⁹⁶ There the Court found, in a ruling that fundamentally recast the law governing State courts and judges, that Chapter III of the Constitution extends a version of separation of powers to the States. In its current form, the ‘*Kable* principle’ safeguards due process at State level in two key ways. First, *Kable* makes it clear that States cannot abolish their Supreme Courts.⁹⁷ Secondly, State legislation cannot impair the ‘institutional integrity’ of a State court,⁹⁸ a

concept that incorporates the essential features that distinguish courts, in terms of Chapter III, from non-judicial entities.⁹⁹

By virtue of these constraints, many—though not all—applications of the implied guarantee of due process at federal level now operate in the States. Before addressing the effect of the *Kable* principle, however, the landmark decision in *Kable* will be considered.

1. *Kable*'s Case

In *Kable*, a High Court majority struck down the *Community Protection Act 1994* (NSW) as contrary to Chapter III. The Act was ad hominem legislation that applied to an individual specified by name. When the Act was passed, the individual was serving a sentence of imprisonment for manslaughter that was due to expire in the following month.¹⁰⁰ Section 5(1) of the Act empowered the Supreme Court of New South Wales, at the instigation of the Director of Public Prosecutions, to order the '[p]reventive detention' of the individual if satisfied he was 'more likely than not to commit a serious act of violence' and that such detention 'is appropriate, for the protection of a particular person or persons or the community generally'. Other features of the Act included the requirement that it be construed giving priority to community protection and that detention proceedings were civil in nature, including as to standard of proof.¹⁰¹ The Act also provided that certain materials were admissible in evidence that may not ordinarily have been received in court.¹⁰²

The finding of invalidity relied on a novel reading of Chapter III. Gaudron, McHugh and Gummow JJ, in separate opinions, interpreted Chapter III as establishing an 'integrated system of State and federal courts'.¹⁰³ This flowed from Chapter III's stipulation that State courts can exercise federal jurisdiction and that State Supreme Courts, like federal courts, are subject to High Court appellate oversight.¹⁰⁴ It followed that State courts could not be given functions, either by State or Commonwealth legislation, inimical to their participation in these arrangements.¹⁰⁵ In *Kable*, this was expressed as a prohibition upon conferral on State courts of functions 'repugnant to or incompatible with their exercise of the judicial power of the Commonwealth'.¹⁰⁶ In later cases, the prohibition was framed in terms of the need to preserve 'that institutional integrity of the State

courts which bespeaks their constitutionally mandated position in the Australian legal system'.¹⁰⁷

On the facts of *Kable*, the plurality regarded the *Community Protection Act* as a clear breach of this new norm. In the circumstances, the ad hominem preventive detention function undermined public confidence in the Supreme Court's impartiality from the political branches.¹⁰⁸ Moreover, it distorted judicial process by empowering the Court to imprison an individual not for an offence proved at trial, but because of a finding—described by Gaudron J as 'an educated guess'¹⁰⁹—about his future behaviour, the finding being reached in proceedings shorn of safeguards normally associated with criminal adjudication.¹¹⁰ In short, this was not what Chapter III contemplated of a State or federal court.

2. The *Kable* Principle

The immediate result in *Kable*—the failure of the *Community Protection Act*—can be seen as an affirmation by the High Court of due process values.¹¹¹ Yet the deeper significance of the case for due process in Australia lies in the finding that State courts, in determining both State and federal cases, are subject to entrenched constitutional standards. In the years since *Kable*, the High Court has fleshed out those standards by invoking traditional conceptions of courts and judicial power.¹¹² As a result, the French Court affirmed that State courts must exhibit essential features that mirror the federal due process heartland. In *NAAJA*, French CJ, Kiefel and Bell JJ said that the defining features of a court under the *Kable* principle include:

the reality and appearance of its independence and its impartiality ... It is also a defining characteristic of courts that they apply procedural fairness and adhere as a general rule to the open court principle and give reasons for their decisions.¹¹³

Moreover, as previously noted, in *Kuczborski*, four Justices applying the *Kable* principle endorsed Gaudron J's description in *Re Nolan; Ex parte Young* of the 'processes which characterise the judicial function'.¹¹⁴ As both State and federal doctrines draw from an historical-functional reading of what is involved in Chapter III's allocation of federal judicial power to bodies described as courts,¹¹⁵ this unity of outcome makes sense. It follows

that the functions of *all* Australian courts—federal, State, and territory¹¹⁶—must now be exercised ‘openly, impartially and in accordance with fair and proper procedures’.¹¹⁷

The High Court has applied the *Kable* principle to invalidate State legislation on several occasions.¹¹⁸ While the principle has been criticized for its indeterminacy,¹¹⁹ there is little to suggest that the Court will broaden *Kable* to review the substantive content of laws applied by State courts as opposed to the structures and processes by which those courts are sustained. The Court has maintained that the *Kable* principle does not go further than the federal separation of powers,¹²⁰ which, as discussed, has not supported a substantive due process doctrine. However, the boundary between ‘the function of a court’ and ‘the law which a court is to apply in the exercise of its function’¹²¹ is unclear and there are cases, such as *Kable* itself, where the categories blur. *Totani*,¹²² where the Court struck down a South Australian provision that required a State court, on application by the chief of police, to subject an individual to a control order if satisfied that he or she was a member of a body declared by the Attorney-General to be involved in serious criminal conduct might be seen in this way.¹²³

3. S157 and Kirk

Expansion of the *Kable* principle is more likely on a different front. In 2010 in *Kirk v Industrial Court of New South Wales*,¹²⁴ an opinion of six Justices, again employing an historical-functional analysis, ruled that it is an essential feature of ‘the Supreme Court of a State’, envisaged in Chapter III, that it retain authority to review the decisions of State officials for jurisdictional error.¹²⁵ Thus, a privative clause cannot validly remove a Supreme Court’s capacity to enforce key administrative law constraints, such as the principles of natural justice, to which official decision-making is otherwise subject.¹²⁶ In so deciding, French CJ, Gummow, Hayne, Crennan, Kiefel and Bell JJ said:

To deprive a State Supreme Court of its supervisory jurisdiction enforcing the limits on the exercise of State executive and judicial power by persons and bodies other than that Court would be to create islands of power immune from supervision and restraint.¹²⁷

Significantly, this finding essentially replicates for the States the effect of section 75(v) of the Constitution.¹²⁸ That provision, which gives the High Court original jurisdiction in ‘all matters ... in which a writ of Mandamus or prohibition or an injunction is sought against an officer of the Commonwealth’ guarantees the High Court’s capacity to provide relief for jurisdictional error on the part of federal officials.¹²⁹ In *Plaintiff S157/2002 v Commonwealth*, the Court described section 75(v) as securing ‘an entrenched minimum provision of judicial review’ which ‘assur[ed] to all people affected that officers of the Commonwealth obey the law and neither exceed nor neglect any jurisdiction which the law confers on them’.¹³⁰ *Kirk* now embeds a like assurance in the States.

Together, *S157* and *Kirk* keep open the doors of Australian courts to persons who claim that their rights and interests have been adversely affected by unlawful government action. However, to what extent this is so remains to be seen.¹³¹ In *Bodruddaza v Minister for Immigration and Multicultural Affairs*, the High Court found that a non-extendable time limit in the *Migration Act 1958* (Cth) for initiating section 75(v) proceedings before the Court of eighty-four days from notification of the impugned decision was at odds with section 75(v) and invalid.¹³² The logic of *Kirk* is that the same conclusion must now follow in like circumstances in the States.¹³³ Whether the Commonwealth and the States can circumvent judicial review by enacting unfettered statutory discretions or directly excluding grounds of review presents more complex questions,¹³⁴ noting the Court is generally unsympathetic to the notion of uncontrolled executive authority.¹³⁵

F. FUTURE ISSUES

When Deane J described the separation of judicial power in *Re Tracey; Ex parte Ryan* as ‘the Constitution’s only general guarantee of due process’,¹³⁶ he was speaking of a separation principle that operated solely at federal level and which emphasized formal definitions of power. The transformation since then in the scope of Chapter III’s protection of due process is remarkable. Viewed in context, however, there is no necessary discontinuity in the Court’s approach. For most of last century, ‘the

requirements of a progressive people'¹³⁷ found expression in development of the 'modern regulatory state'.¹³⁸ The Court's focus in this era on the definition and distribution of judicial and non-judicial power was largely concerned with accommodating the separation principle to this phenomenon.¹³⁹ Today, in a more rights-focused society that is less comfortable with the authority of the state, the Court's shift towards articulating the 'liberty-protecting rationale'¹⁴⁰ of a separate judiciary reflects an evolving social and political environment.¹⁴¹

As due process is an informal category, further aspects of the Constitution arguably come within it.¹⁴² The bodies of law analysed above form the core of constitutional due process in Australia, however. So confined, two critical issues for the future are the extent of convergence between federal and State due process doctrine and the legitimacy of the due process implications as a whole. These related issues are considered in turn.

1. Convergence

The requirement that all Australian courts operate in an open, impartial, and procedurally fair manner and the outcomes in *S157* and *Kirk* are manifestations of what Stephen McLeish has described as 'a tendency to convergence of legal principles applicable to courts and judicial power at a State and federal level'.¹⁴³ Of the remaining differences, the most important is that state judicial power can still, as *BLF* showed, be diverted from courts, avoiding ordinary due process constraints.¹⁴⁴ The High Court may in future find that some State judicial functions must be exercised by courts, and courts alone, on the basis that the functions, like those in *Kirk*, are distinctive to a 'court' or 'Supreme Court'.¹⁴⁵ Writing extra-judicially, Chief Justice French has described an essential feature of a court as:

The conferring upon the court of judicial power—that is to say the authority and duty to decide controversies and to discharge functions traditionally regarded as a subject of judicial power or analogous to such functions.¹⁴⁶

Yet this does not mean that State judicial power cannot be shared with non-judicial entities. It follows that some other factor—such as the need to ensure the unity of Australian law under High Court appellate control or

historical exegesis¹⁴⁷—is required to support a conclusion that certain State judicial functions are exclusive to State courts. This might seem speculative, but in *Totani* the power to order punitive detention at State level was identified by two Justices as potentially residing solely in State courts.¹⁴⁸

Whatever the fate of these wider claims, federal and State due process seems destined to continue to merge in other ways. For example, it is strongly arguable that a State Act of Attainder could not be applied by a State court without impairing that court's decisional independence contrary to *Kable*.¹⁴⁹ More significantly, the legislation in *BLF* would almost certainly fail today on *Kable* grounds.¹⁵⁰

2. Legitimacy

The expansion in the reach of the due process guarantees, especially deep into the State sphere following *Kable* and *Kirk*, raises questions about their legitimacy. Professor Jeffrey Goldsworthy in particular has argued that neither the *Kable* principle as applied by the Court, nor the justification for its extension in *Kirk*, can be located in the text and structure of the Constitution. He claims that these implied limitations on State power are contrary to the intentions of the framers and many decades of constitutional practice in which they 'escaped ... notice'.¹⁵¹ A full analysis of his detailed and careful argument is not possible here. However, several points can be expressed.

First, the federal due process heartland is widely accepted and has been High Court orthodoxy for many years. As argued here and elsewhere, 'the implication is a modest one'.¹⁵²

Secondly, the idea that State courts—whether a 'Supreme Court' or other 'court'—must display entrenched features consistently with Chapter III is perhaps a less modest implication. Yet to read the Constitution as requiring that the States must have courts and that to satisfy that term, a body must normally act openly and apply the rules of natural justice is hardly radical legal reasoning.¹⁵³ That an earlier generation did not read the Constitution in this way should not frame later approaches to it.¹⁵⁴

Thirdly, the *Kable* principle at present is nonetheless significantly indeterminate.¹⁵⁵ It is thus easy to imagine how the due process doctrines

could be extended, in the absence of express rights protection, for use as antidotes to the perceived injustice of a federal or State law.¹⁵⁶ As already noted, in recent opinions the Court has, for good reason, disavowed its capacity to use Chapter III in this way. In *Kuczborski v Queensland*, for example, four Justices stated that ‘to demonstrate that a law may lead to harsh outcomes, even disproportionately harsh outcomes’ does not enliven the *Kable* principle, which is directed to ‘the integrity of the judicial function’.¹⁵⁷ That accepted, however, the indeterminacy remains.

Against this backdrop, future development of due process directly engages the limits of the High Court’s authority in two intersecting respects: its general approach to constitutional interpretation and its reliance in forging the due process guarantees on the notion of autonomous courts. As to the latter, a fundamental theme in Australian separation of powers jurisprudence is the demarcation between legality and merits review, courts being confined in their judicial authority to the former.¹⁵⁸ After noting the significance of this distinction for Australian administrative law, Professor Cheryl Saunders has observed that:

[T]he Australian preference for institutional checks and balances over direct protection of rights has raised the stakes for institutional effectiveness through separation of powers and lowered the incentive to explore techniques associated with a more rights conscious jurisprudence ... [such as] proportionality ...¹⁵⁹

Importantly, Australian reliance on ‘institutional effectiveness through separation of powers’ embraces not just the courts, but also the role of the legislative and executive branches in making and implementing policy choices, those choices being legitimized by electoral processes that, like judicial process, enjoy constitutional protection.¹⁶⁰ If the High Court, under the rubric of due process, strays from preserving the integrity of the courts into the merits of legislative and executive action, it risks violating both its role under the separation of powers and the rationale for the distinctive due process safeguards that attend the judicial function.¹⁶¹

Yet, given the broad language of Chapter III, the dilemma for the Court is that the limits of ‘the integrity of the judicial function’¹⁶² will not be uncovered by legal analysis alone.¹⁶³ Rather, a socio-political assessment, characteristic of the judicial review function of apex courts in applying written constitutions over time,¹⁶⁴ is also involved. This is not an invitation,

under another name, to engage in merits review in pursuit of due process goals but, on the contrary, underscores the importance of the Court remaining conscious of the limits on its authority.

G. CONCLUSION

The Australian constitutional ethos looks primarily to well-functioning institutions, including the courts, to protect individual rights as opposed to supporting freestanding assertions of individual autonomy from government interference. A commitment to due process in the operation of the courts, as opposed to the law they dispense, fits neatly within this tradition. The qualification in the previous sentence is important—to accept due process claims as reflecting the institutional distinctiveness of the courts necessarily involves a like acceptance of the distinctive role of the other branches in promoting individual rights and interests. The question for the future of due process under the Australian Constitution is the balance between these different ways of safeguarding liberty in a democracy.

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¹ James Stellios, *The Federal Judicature: Chapter III of the Constitution* (LexisNexis Butterworths 2010) 52–55.

² *Australian Communist Party v Commonwealth* (1951) 83 CLR 1, 193 (Dixon J).

³ Christine Parker, ‘Protection of Judicial Process as an Implied Constitutional Principle’ (1994) 16 *Adelaide Law Review* 341, 344; George Winterton, ‘The Separation of Judicial Power as an Implied Bill of Rights’ in Geoffrey Lindell (ed), *Future Directions in Australian Constitutional Law: Essays in Honour of Professor Leslie Zines* (Federation Press 1994) 185, 189–90.

⁴ (1989) 166 CLR 518, 580.

⁵ cf Thomas O Sargentich, ‘Due Process, Procedural’ in Kermit L Hall (ed), *The Oxford Companion to the Supreme Court of the United States* (2nd edn, OUP 2005) 273; Peter Charles Hoffer, ‘Due Process, Substantive’ in Kermit L Hall (ed), *The Oxford Companion to the Supreme Court of the United States* (2nd edn, OUP 2005) 274.

⁶ (2013) 252 CLR 381, 400–01 [64] (citations omitted).

⁷ See *International Finance Trust Co Ltd v New South Wales Crime Commission* (2009) 240 CLR 319, 353 [52] (French CJ). That the guarantees are still evolving is another reason offered for restraint in using the ‘due process’ descriptor: *Thomas v Mowbray* (2007) 233 CLR 307, 355 [111] (Gummow and Crennan JJ).

⁸ See *Magaming* (n 6) 400 [63] (Gageler J).

⁹ *Official Report of the Debates of the Australasian Federal Convention*, (Melbourne, 8 February 1898), 688, 690.

- ¹⁰ *ibid* 683. See also at 673, 688–89.
- ¹¹ *ibid* 688.
- ¹² *ibid* 690.
- ¹³ *ibid* 678 (Charles Kingston), 683 (Josiah Symon), 687–88, 689 (Isaac Isaacs).
- ¹⁴ *ibid* 664–91; J A La Nauze, *The Making of the Australian Constitution* (Melbourne UP 1972) 230–32; John M Williams, ‘Race, Citizenship and the Formation of the Australian Constitution: Andrew Inglis Clark and the “14th Amendment”’ (1996) 42 *Australian Journal of Politics and History* 10.
- ¹⁵ La Nauze (n 14) 227, 231.
- ¹⁶ William Harrison Moore, *The Constitution of the Commonwealth of Australia* (2nd edn first published 1910, Legal Books 1997) 78.
- ¹⁷ Sir Anthony Mason, ‘The Role of a Constitutional Court in a Federation: A Comparison of the Australian and the United States Experience’ (1986) 16 *Federal Law Review* 1, 8–11.
- ¹⁸ *South Australia v Totani* (2010) 242 CLR 1, 155 [423] (citation omitted) (Crennan and Bell JJ). See also *Momcilovic v The Queen* (2011) 245 CLR 1, 216 [563] (Crennan and Kiefel JJ).
- ¹⁹ *R v Quinn; Ex parte Consolidated Foods Corporation* (1977) 138 CLR 1, 11 (Jacobs J).
- ²⁰ *Communist Party Case* (n 2).
- ²¹ *Communist Party Dissolution Act 1950* (Cth) preamble [5] (‘*Dissolution Act*’).
- ²² George Winterton, ‘The Communist Party Case’ in H P Lee and George Winterton (eds), *Australian Constitutional Landmarks* (CUP 2003) 108, 126.
- ²³ *ibid* 112, 117–18 (including Deputy Opposition Leader Evatt’s critique of the legislation), 130.
- ²⁴ *Communist Party Case* (n 2) 206 (McTiernan J).
- ²⁵ This view was succinctly expressed by Fullagar J in a passage using the Commonwealth’s ‘lighthouses’ power in s 51(vii) to illustrate the principle concerned: *ibid* 258.
- ²⁶ *ibid* 262 (citation omitted).
- ²⁷ *ibid* 193.
- ²⁸ *ibid* 195 (Dixon J), 206–07 (McTiernan J), 227 (Williams J), 258–59 (Fullagar J). These Justices recognized the wartime position may be different.
- ²⁹ Winterton ‘The Communist Party Case’ (n 22) 133, quoting Brian Galligan, *Politics of the High Court* (University of Queensland Press 1987) 203: ‘The *Communist Party* case was not primarily about civil liberties but about the limits of legislative and executive power and supremacy of the judiciary in deciding such questions’; George Williams, ‘*Communist Party Case*’ in Tony Blackshield, Michael Coper, and George Williams (eds), *The Oxford Companion to the High Court of Australia* (OUP 2001) 122, 123. See also Geoffrey Lindell, ‘The Australian Constitution: Growth, Adaptation and Conflict—Reflections About Some Major Cases and Events’ (1999) 25 *Monash University Law Review* 257, 273–80.
- ³⁰ Winterton, ‘The Communist Party Case’ (n 22) 132.
- ³¹ (1956) 94 CLR 254 (‘*Boilermakers’ Case*’). The decision was upheld by the Privy Council: *A-G (Cth) v The Queen* (1957) 95 CLR 529.
- ³² See generally Fiona Wheeler, ‘The Boilermakers Case’ in H P Lee and George Winterton (eds), *Australian Constitutional Landmarks* (CUP 2003) 160.
- ³³ *Waterside Workers’ Federation of Australia v J W Alexander Ltd* (1918) 25 CLR 434.
- ³⁴ *Boilermakers’ Case* (n 31) 278, 289, 296 (Dixon CJ, McTiernan, Fullagar and Kitto JJ). It was previously settled that the Commonwealth could not impose non-judicial functions on State courts: *Queen Victoria Memorial Hospital v Thornton* (1953) 87 CLR 144.
- ³⁵ *Boilermakers’ Case* (n 31) 276.

- ³⁶ *A-G (Cth) v The Queen* (n 31) 540–41.
- ³⁷ *Boilermakers' Case* (n 31) 288–89 (Dixon CJ, McTiernan, Fullagar and Kitto JJ).
- ³⁸ (1909) 8 CLR 330, 382–83 (emphasis in original). See William Blackstone, *Commentaries on the Laws of England*, vol 1 (first published 1765, The Legal Classics Library 1983) 259.
- ³⁹ *Huddart* (n 38) 383.
- ⁴⁰ (1996) 189 CLR 1, 11 (Brennan CJ, Dawson, Toohey, McHugh and Gummow JJ).
- ⁴¹ *ibid* 12–13 (Brennan CJ, Dawson, Toohey, McHugh and Gummow JJ). On the High Court's normative justifications for the separation of federal judicial power, see James Stellios, 'Reconceiving the Separation of Judicial Power' (2011) 22 Public Law Review 113, 119–20; [Stellios, *The Federal Judicature* \(n 1\)](#) 96–102.
- ⁴² (1986) 7 NSWLR 372, 376.
- ⁴³ That the legislation upheld in this case so operated was recognized by Street CJ and Kirby P: *ibid* 378 (Street CJ), 395 (Kirby P). The Court denied the existence in the State of an enforceable separation of judicial power: at 381 (Street CJ), 400–01 (Kirby P), 407 (Glass JA), 407–12 (Mahoney JA), 416–20 (Priestley JA).
- ⁴⁴ *Australian Building Construction Employees' and Builders Labourers' Federation v Commonwealth* (1986) 161 CLR 88, 96 (Gibbs CJ, Mason, Brennan, Deane and Dawson JJ).
- ⁴⁵ See generally James Stellios, *Zines' The High Court and the Constitution* (6th edn, Federation Press 2015) 221–68.
- ⁴⁶ But see *R v Trade Practices Tribunal; Ex parte Tasmanian Breweries Pty Ltd* (1970) 123 CLR 361, 374 (Kitto J).
- ⁴⁷ See Parker, 'Protection of Judicial Process' (n 3) 344–48, 354–55; [Winterton, 'The Separation of Judicial Power as an Implied Bill of Rights' \(n 3\)](#) 199.
- ⁴⁸ On the Mason Court, see Paul Kildea and George Williams, 'The Mason Court' in Rosalind Dixon and George Williams (eds), *The High Court, the Constitution and Australian Politics* (CUP 2015) 244.
- ⁴⁹ *Re Tracey; Ex parte Ryan* (n 4) 580.
- ⁵⁰ (1991) 172 CLR 501.
- ⁵¹ *ibid* 606 (brackets in original), quoting Blackstone. See Blackstone (n 38) 259.
- ⁵² *Polyukhovich* (n 50) 607 (citation omitted). See also *Leeth v Commonwealth* (1992) 174 CLR 455, 486–87 (Deane and Toohey JJ).
- ⁵³ (1991) 172 CLR 460, 496. See also *Harris v Caladine* (1991) 172 CLR 84, 150 (Gaudron J); *Polyukhovich* (n 50) 703–04 (Gaudron J); *Leeth* (n 52) 502 (Gaudron J); *Nicholas v The Queen* (1998) 193 CLR 173, 208–09 (Gaudron J).
- ⁵⁴ *Re Nolan; Ex parte Young* (n 53) 496–97. The links between Deane J's and Gaudron J's reasoning are recognized in Parker, 'Protection of Judicial Process' (n 3) 355. On differences in their reasoning, see Fiona Wheeler, 'Due Process, Judicial Power and Chapter III in the New High Court' (2004) 32 Federal Law Review 205, 209–11.
- ⁵⁵ (1992) 176 CLR 1.
- ⁵⁶ *ibid* 27. See also *Leeth* (n 52) 470 (Mason CJ, Dawson and McHugh JJ).
- ⁵⁷ See generally Wheeler, 'Due Process' (n 54).
- ⁵⁸ (2014) 254 CLR 51, 118–19 [226]. See also *Assistant Commissioner Condon v Pompano Pty Ltd* (2013) 252 CLR 38, 95 [142] (Hayne, Crennan, Kiefel and Bell JJ).
- ⁵⁹ (1999) 198 CLR 334, 359 [56] (citations omitted) (Gleeson CJ, Gaudron, McHugh, Gummow, Hayne and Callinan JJ).

⁶⁰ *Wilson* (n 40) 22 (Gaudron J). See also *Magaming* (n 6) 400–01 [64] (Gageler J). See also (n 6) and accompanying text.

⁶¹ *Polyukhovich* (n 50) 607.

⁶² On the guarantee in this ‘heartland’, see Wheeler, ‘Due Process’ (n 54) 212–20.

⁶³ *Polyukhovich* (n 50) 607 (Deane J).

⁶⁴ *Pompano* (n 58) 72 [68] (French CJ). That the due process guarantee can yield to competing interests was recognized by Gaudron J in *Re Nolan; Ex parte Young* (n 53) 496. See also (n 53) and accompanying text.

⁶⁵ *Stellios, Zines’ The High Court and the Constitution* (n 45) 300–07.

⁶⁶ *Nicholas* (n 53) 277 [249] (Hayne J). See *X7 v Australian Crime Commission* (2013) 248 CLR 92, 120–21 [48] (French CJ and Crennan J); *Kuczborski* (n 58) 122–23 [240]–[244] (Crennan, Kiefel, Gageler and Keane JJ); *Graham v Minister for Immigration and Border Protection* [2017] HCA 33, [31]–[37] (Kiefel CJ, Bell, Gageler, Keane, Nettle and Gordon JJ). See also *Nicholas* (n 53).

⁶⁷ *Stellios, Zines’s The High Court and the Constitution* (n 45) 306–07; Sir Anthony Mason, ‘A New Perspective on Separation of Powers’ (1996) 82 *Canberra Bulletin of Public Administration* 1, 2.

⁶⁸ *Polyukhovich* (n 50) 608–14 (see especially 612), 626, 631–32 (Deane J), 704–08 (Gaudron J).

⁶⁹ *Leeth* (n 52) 487 (Deane and Toohey JJ), 502–03 (Gaudron J). Deane and Toohey JJ also claimed that Commonwealth laws are subject to a general implied guarantee of equality: at 485–90.

⁷⁰ See *Polyukhovich* (n 50) 689–90. In *Leeth*, Toohey J wrote with Deane J.

⁷¹ *ibid* 531–40 (Mason CJ), 643–51 (Dawson J), 717–22 (McHugh J) (each Justice denying retroactive federal criminal laws infringe Chapter III); *Leeth* (n 52) 467–71 (Mason CJ, Dawson and McHugh JJ) (denying the Constitution guarantees equality either generally or in exercise of federal judicial power).

⁷² *Leeth* (n 52) 469–70; Winterton, ‘The Separation of Judicial Power as an Implied Bill of Rights’ (n 3) 203.

⁷³ (1997) 190 CLR 1, 61, 67.

⁷⁴ *ibid* 68. See also at 63.

⁷⁵ *Kuczborski* (n 58) 116 [217] (Crennan, Kiefel, Gageler and Keane JJ); *Magaming* (n 6) 397–98 [52] (French CJ, Hayne, Crennan, Kiefel and Bell JJ), 413–14 [104]–[108] (Keane J).

⁷⁶ See Wheeler, ‘Due Process’ (n 54) 221–24.

⁷⁷ *Kruger* (n 73) 112 (citation omitted).

⁷⁸ Geoffrey Kennett, ‘Individual Rights, the High Court and the Constitution’ (1994) 19 *Melbourne University Law Review* 581, 604; *Stellios, The Federal Judicature* (n 1) 305.

⁷⁹ Stephen Parker, ‘The Independence of the Judiciary’ in Brian Opeskin and Fiona Wheeler (eds), *The Australian Federal Judicial System* (Melbourne UP 2000) 62, 68.

⁸⁰ Wheeler, ‘Due Process’ (n 54) 224 and see accompanying authorities.

⁸¹ See, eg, *Federal Commissioner of Taxation v Munro* (1926) 38 CLR 153, 175 (Isaacs J).

⁸² *War Crimes Act 1945* (Cth), s 9. The Act’s definition of ‘war crime’ did not correspond with relevant international law, see Penelope Mathew, ‘War Crimes Act Case’ in Tony Blackshield, Michael Coper, and George Williams (eds), *The Oxford Companion to the High Court of Australia* (OUP 2001) 705.

⁸³ *Polyukhovich* (n 50) 536, 539 (Mason CJ), 612 (Deane J), 646–49 (Dawson J), 685–86 (Toohey J), 721 (McHugh J). See also at 706 (Gaudron J).

⁸⁴ Leslie Zines, ‘A Judicially Created Bill of Rights?’ (1994) 16 *Sydney Law Review* 166, 173–74; Winterton, ‘The Separation of Judicial Power as an Implied Bill of Rights’ (n 3) 190–92.

- ⁸⁵ *Lim* (n 55) 27.
- ⁸⁶ *ibid* 28–29 (citation omitted). See generally at 27–29.
- ⁸⁷ (2015) 256 CLR 569, 610 [94].
- ⁸⁸ *ibid* 620 [129]. See generally at 610–12 [94]–[103]. See also Zines (n 84) 174.
- ⁸⁹ See Jeffrey Steven Gordon, ‘Imprisonment and the Separation of Judicial Power: A Defence of a Categorical Immunity from Non-Criminal Detention’ (2012) 36 Melbourne University Law Review 41, 42–43.
- ⁹⁰ *Lim* (n 55) 32.
- ⁹¹ (2004) 219 CLR 562. In the majority, Hayne J, with whom Heydon J agreed, doubted the *Lim* immunity: at 648–51 [257]–[268]. See also *Re Woolley; Ex parte Applicants M276/2003* (2004) 225 CLR 1, 24–27 [57]–[62], where McHugh J rejected the immunity in the form stated in *Lim*.
- ⁹² *Kruger* (n 73) 62 (Dawson J), 84–85 (Toohey J), 162 (Gummow J). See also *Al-Kateb* (n 91) 584 [45] (McHugh J); *NAAJA* (n 87) 611 [98] (Gageler J).
- ⁹³ *Lim* (n 55) 55; *Kruger* (n 73) 109–11. In *Kruger*, Gaudron J recognized the Commonwealth’s ability to authorize executive detention is limited by the federal distribution of powers: at 110–11.
- ⁹⁴ See *NAAJA* (n 87) 592–93 [37]–[38] (French CJ, Kiefel and Bell JJ), 610–12 [94]–[103] (Gageler J), 651–52 [235]–[237] (Nettle and Gordon JJ); *Plaintiff M68/2015 v Minister for Immigration and Border Protection* (2016) 257 CLR 42, 69–70 [40] (French CJ, Kiefel and Nettle JJ), 86 [97]–[98] (Bell J), 111 [184] (Gageler J), 124 [238] (Keane J), 160 [379], 162 [388], 165–66 [401] (Gordon J). For a defence of the immunity, see Gordon (n 89).
- ⁹⁵ In *Lim*, a majority found s 54R of the *Migration Act 1958* (Cth), which prohibited a court from ordering release of an asylum seeker from immigration detention, contravened Chapter III. See *Lim* (n 55) 35–37 (Brennan, Deane and Dawson JJ), 53, 58 (Gaudron J). This finding promoted due process but, as Bateman recognizes, can be justified as a traditional application of the separation principle: Will Bateman, ‘Procedural Due Process under the Australian Constitution’ (2009) 31 Sydney Law Review 411, 417.
- ⁹⁶ (1996) 189 CLR 51.
- ⁹⁷ *Kirk v Industrial Court of New South Wales* (2010) 239 CLR 531, 566 [55], 580 [96] (French CJ, Gummow, Hayne, Crennan, Kiefel and Bell JJ). cf *BLF* (n 42) 401 (Kirby P).
- ⁹⁸ See the formulation of the *Kable* principle by six Justices in *A-G (NT) v Emmerson* (2014) 253 CLR 393, 424 [40] (French CJ, Hayne, Crennan, Kiefel, Bell and Keane JJ).
- ⁹⁹ *Forge v Australian Securities and Investments Commission* (2006) 228 CLR 45, 76 [63] (Gummow, Hayne and Crennan JJ); *Wainohu v New South Wales* (2011) 243 CLR 181, 208–09 [44] (French CJ and Kiefel J).
- ¹⁰⁰ Gareth Griffith, ‘The *Kable* Case: Implications for New South Wales’ (Briefing Paper No 27, NSW Parliamentary Library 1996) 4.
- ¹⁰¹ *Community Protection Act 1994* (NSW), ss 3(2), 14, 15 respectively.
- ¹⁰² *ibid* s 17.
- ¹⁰³ *Kable* (n 96) 114 (McHugh J).
- ¹⁰⁴ *ibid* 100–02 (Gaudron J), 112–15 (McHugh J), 137–43 (Gummow J).
- ¹⁰⁵ As Gaudron J said in *Kable*, ‘the limitation derives from the necessity to ensure the integrity of the judicial process and the integrity of the courts specified in s 71 of the Constitution’: *ibid* 104. See also at 116 (McHugh J), 143 (Gummow J).
- ¹⁰⁶ *ibid* 103 (Gaudron J). See also at 116 (McHugh J), 135 (Gummow J).
- ¹⁰⁷ *Fardon v A-G (Qld)* (2004) 223 CLR 575, 617 [101] (Gummow J), quoted with approval in *Pompano* (n 58) 89 [123] (Hayne, Crennan, Kiefel and Bell JJ).

- ¹⁰⁸ *Kable* (n 96) 120–24 (McHugh J), 133–34 (Gummow J).
- ¹⁰⁹ *ibid* 106. See also at 123 (McHugh J).
- ¹¹⁰ *ibid* 106–08 (Gaudron J), 122–24 (McHugh J), 131–32 (Gummow J). The fourth member of the majority, Toohey J, decided on a narrower basis. For a critique of his judgment, see Stellos, *Zines's The High Court and the Constitution* (n 45) 277–78.
- ¹¹¹ cf Elizabeth Handsley, 'Do Hard Laws Make Bad Cases? The High Court's Decision in *Kable v Director of Public Prosecutions (NSW)*' (1997) 25 Federal Law Review 171, 177–78, arguing that *Kable* may impair due process by prompting State legislatures to channel certain decisions away from State courts.
- ¹¹² See, eg, *Totani* (n 18) 38 [50], 41–45 [59]–[66] (French CJ), 63 [131]–[134] (Gummow J), 157 [427] (Crennan and Bell JJ), 162 [443] (Kiefel J); *Pompano* (n 58) 46–47 [1]–[3], 72 [68] (French CJ).
- ¹¹³ *NAAJA* (n 87) 594 [39] (citations omitted).
- ¹¹⁴ *Kuczborski* (n 58) 118–19 [226] (Crennan, Kiefel, Gageler and Keane JJ). See also, eg, *North Australian Aboriginal Legal Aid Service Inc v Bradley* (2004) 218 CLR 146, 163 [29] (McHugh, Gummow, Kirby, Hayne, Callinan and Heydon JJ).
- ¹¹⁵ On the purposive nature of the *Kable* principle, see *Kuczborski* (n 58) 119 [228] (Crennan, Kiefel, Gageler and Keane JJ).
- ¹¹⁶ The *Kable* principle applies to territory courts: *Bradley* (n 114) 163 [28] (McHugh, Gummow, Kirby, Hayne, Callinan and Heydon JJ).
- ¹¹⁷ Adopting Gaudron J regarding the federal due process guarantee: *Wilson* (n 40) 22. See also *Magaming* (n 6) 400–01 [64] (Gageler J).
- ¹¹⁸ *International Finance Trust Co Ltd* (n 7); *Totani* (n 18); *Wainohu* (n 99).
- ¹¹⁹ See, eg, Gabrielle J Appleby and John M Williams, 'A New Coat of Paint: Law and Order and the Refurbishment of *Kable*' (2012) 40 Federal Law Review 1, 28–29.
- ¹²⁰ *H A Bachrach Pty Ltd v Queensland* (1998) 195 CLR 547, 561–62 [14] (Gleeson CJ, Gaudron, Gummow, Kirby and Hayne JJ).
- ¹²¹ *Leeth* (n 52) 469 (Mason CJ, Dawson and McHugh JJ).
- ¹²² *Totani* (n 18).
- ¹²³ The majority described s 14(1) of the *Serious and Organised Crime (Control) Act 2008* (SA) as an invalid attempt by the political branches 'to enlist' the Magistrates Court of South Australia to carry out the executive will that limitations be placed on the liberty of certain persons without consideration by the court of their conduct: *ibid* 52 [82] (French CJ), 67 [149] (Gummow J), 88–89 [226], 92–93 [236] (Hayne J), 160 [436] (Crennan and Bell JJ), 172–73 [479]–[481] (Kiefel J). For an analysis of the case, see Elizabeth Southwood, 'Extending the *Kable* Doctrine: South Australia v *Totani*' (2011) 22 Public Law Review 89.
- ¹²⁴ *Kirk* (n 97).
- ¹²⁵ *ibid* 566 [55], 580–81 [97]–[100] (French CJ, Gummow, Hayne, Crennan, Kiefel and Bell JJ).
- ¹²⁶ *ibid* 566–67 [55], 581–83 [100]–[105].
- ¹²⁷ *ibid* 581 [99].
- ¹²⁸ See James Spigelman, 'The Centrality of Jurisdictional Error' (2010) 21 Public Law Review 77.
- ¹²⁹ *Plaintiff S157/2002 v Commonwealth* (2003) 211 CLR 476, 482–83 [5] (Gleeson CJ), 512 [98] (Gaudron, McHugh, Gummow, Kirby and Hayne JJ).
- ¹³⁰ *ibid* 513–14 [103]–[104] (Gaudron, McHugh, Gummow, Kirby and Hayne JJ).

¹³¹ Peter Cane and Leighton McDonald, *Principles of Administrative Law: Legal Regulation of Governance* (2nd edn, OUP 2012) 189, 197–206 (for a detailed analysis).

¹³² (2007) 228 CLR 651, 671–72 [53]–[60] (Gleeson CJ, Gummow, Kirby, Hayne, Heydon and Crennan JJ). Section 486A of the *Migration Act 1958* (Cth) prescribed an initial twenty-eight-day limit from notification of the impugned decision for initiating proceedings, the High Court being empowered to extend this by a maximum fifty-six days. See also *Graham* (n 66) where a provision of the *Migration Act 1958* (Cth) allowing the Minister to withhold material from the court used by the Minister in cancelling a visa was found to conflict with s 75(v) of the *Constitution*.

¹³³ See Spigelman (n 128) 89–90. cf *Trives v Hornsby Shire Council* (2015) 89 NSWLR 268, 280–81 [46]–[50] (Basten JA).

¹³⁴ Cane and McDonald (n 131) 197–98. For one analysis, see Will Bateman, ‘The *Constitution* and the Substantive Principles of Judicial Review: The Full Scope of the Entrenched Minimum Provision of Judicial Review’ (2011) 39 *Federal Law Review* 463.

¹³⁵ See, eg, *S157* (n 129) 512–13 [100]–[102] (Gaudron, McHugh, Gummow, Kirby and Hayne JJ).

¹³⁶ *Re Tracey* (n 4) 580.

¹³⁷ *Munro* (n 81) 178 (Isaacs J).

¹³⁸ *White v Director of Military Prosecutions* (2007) 231 CLR 570, 595 [48] (Gummow, Hayne and Crennan JJ).

¹³⁹ See Fiona Wheeler, ‘The Separation of Judicial Power and Progressive Interpretation’ in H P Lee and Peter Gerangelos (eds), *Constitutional Advancement in a Frozen Continent: Essays in Honour of George Winterton* (Federation Press 2009) 222, especially at 222–30.

¹⁴⁰ Stellios, *The Federal Judicature* (n 1) 98.

¹⁴¹ Wheeler, ‘The Separation of Judicial Power and Progressive Interpretation’ (n 139).

¹⁴² The express guarantee of jury trial in s 80 of the *Constitution* is one contender.

¹⁴³ Stephen McLeish, ‘The Nationalisation of the State Court System’ (2013) 24 *Public Law Review* 252, 252.

¹⁴⁴ *K-Generation Pty Ltd v Liquor Licencing Court* (2009) 237 CLR 501, 544 [153] (Gummow, Hayne, Heydon, Crennan and Kiefel JJ). Another potential difference is the standard for infringement of the general due process guarantee might be more readily exceeded in federal cases, see Fiona Wheeler, ‘Constitutional Limits on Extra-Judicial Activity by State Judges: *Wainohu* and Conundrums of Incompatibility’ (2015) 37 *Sydney Law Review* 301, 311.

¹⁴⁵ Southwood (n 123) 95; James Stellios, ‘The Centralisation of Judicial Power within the Australian Federal System’ (2014) 42 *Federal Law Review* 357, 371.

¹⁴⁶ Robert French, ‘Essential and Defining Characteristics of Courts in an Age of Institutional Change’ (2013) 23 *Journal of Judicial Administration* 3, 11. See also *Kable* (n 96) 117 (McHugh J).

¹⁴⁷ As to both of which, see Stellios, *Zines’s The High Court and the Constitution* (n 45) 294–99.

¹⁴⁸ *Totani* (n 18) 50–51 [76] (French CJ), 66–67 [146]–[147] (Gummow J).

¹⁴⁹ See *Polyukhovich* (n 50) 706 (Gaudron J).

¹⁵⁰ See Fiona Wheeler, ‘*BLF v Minister for Industrial Relations*: The Limits of State Legislative and Judicial Power’ in George Winterton (ed), *State Constitutional Landmarks* (Federation Press 2006) 362, 383–87. See now *Totani* (n 18) 52 [82] (French CJ), 63–64 [132]–[135] (Gummow J), 157 [428], 160 [436] (Crennan and Bell JJ); *A-G (NT) v Emmerson* (n 98) 426–27 [44]–[45] (French CJ, Hayne, Crennan, Kiefel, Bell and Keane JJ).

¹⁵¹ Jeffrey Goldsworthy, ‘*Kable, Kirk* and Judicial Statesmanship’ (2014) 40 *Monash University Law Review* 75. The quote is at 109 and several of Goldsworthy’s arguments are summarized at 104–

05. Goldsworthy signals he may be open to an alternative rationale for *Kirk* advanced by Professor Leslie Zines at 103–04. See Stellios, *Zines's The High Court and the Constitution* (n 45) 297–99.

¹⁵² Wheeler, 'Due Process' (n 54) 210. Goldsworthy's critique of *Kable* and *Kirk* does not address the federal due process guarantee: Goldsworthy (n 151).

¹⁵³ cf Goldsworthy's reference to 'the notion of constitutional functions' as a potential basis for the *Kable* principle: Goldsworthy (n 151) 105. An argument that specifically locates due process in the notion of a 'court' has been proposed by Bateman: Bateman, 'Procedural Due Process' (n 95) 433–42.

¹⁵⁴ See Goldsworthy (n 151) 109.

¹⁵⁵ See *NAAJA* (n 87) 619–20 [126]–[127] (Gageler J). Though the same can be said of the High Court's definition of judicial and non-judicial power, see Stellios, *Zines's The High Court and the Constitution* (n 45) 221–68.

¹⁵⁶ cf *Durham Holdings Pty Ltd v New South Wales* (2001) 205 CLR 399, 431 [73] (Kirby J). See also Goldsworthy (n 151) 105–07.

¹⁵⁷ *Kuczborski* (n 58) 116 [217] (Crennan, Kiefel, Gageler and Keane JJ).

¹⁵⁸ See the authorities collected in Cheryl Saunders, 'The Separation of Powers' in Brian Opeskin and Fiona Wheeler (eds), *The Australian Federal Judicial System* (Melbourne UP 2000) 3, 26–27. See also *Re Citizen Limbo* (1989) 92 ALR 81.

¹⁵⁹ Cheryl Saunders, 'Constitution as Catalyst: Different Paths Within Australasian Administrative Law' (2012) 10 New Zealand Journal of Public and International Law 143, 157. See, on separation of powers and legal and merits review, at 148–49, 154–55.

¹⁶⁰ See, eg, *Roach v Electoral Commissioner* (2007) 233 CLR 162.

¹⁶¹ See Goldsworthy (n 151) 108, quoting Greg Taylor on the limits separation of powers places on judges; *Magaming* (n 6) 414 [107] (Keane J).

¹⁶² *Kuczborski* (n 58) 116 [217] (Crennan, Kiefel, Gageler and Keane JJ).

¹⁶³ cf the like observation of Professor Leslie Zines on interpretation of Commonwealth 'executive power' in s 61 of the Constitution, quoted in *M68* (n 94) 96 [129] (Gageler J).

¹⁶⁴ For an Australian analysis, see Galligan (n 29).

CHAPTER 39

EXPRESSION

ADRIENNE STONE

A. INTRODUCTION

FREEDOM of expression is protected in all modern democratic constitutions¹. At first glance, the Australian Constitution seems to be an exception. The absence of a provision protecting freedom of expression is just one aspect of a widely noted more general feature—the sparsity of protection for rights.² Yet the full picture is considerably more complicated. Freedom of expression has long had a foothold in Australian constitutional law and in 1992 the High Court of Australia developed a doctrine known as ‘the freedom of political communication’ which, to some extent, operates like a guarantee or right of freedom of expression.

This chapter traces the way in which freedom of expression is recognized in Australian constitutional law with special attention to the freedom of political communication. It will outline the current operation of this doctrine, seeking to identify its major themes. The chapter will also consider the extent to which the freedom of political communication resembles an explicit and generally expressed right of freedom, commonly found in other constitutions.

B. FREEDOM OF EXPRESSION, DEMOCRACY, AND CONSTITUTIONAL LAW

The argument that freedom of expression is essential for, or intrinsic to, democratic government is one of most influential ideas in liberal political thought. Freedom of expression is valued because it allows citizens to get information about their government, to hold their governments accountable

to them, and to exercise choice as to who governs them. It also assists citizens in communicating their wishes to their government, enabling governments to be more responsive.³

The intrinsic relationship between freedom of expression and democracy has long been translated into constitutional argument. It is the most common justification given in support of constitutional rights of freedom of expression even across constitutional traditions that reach quite different conclusions on specific issues.⁴ It is, for instance, a key justification for the law of the First Amendment to the Constitution of the United States⁵ and the guarantee of freedom of expression under the Canadian Charter of Rights and Freedoms⁶ notwithstanding the significant differences between these bodies of law on questions like the regulation of hate speech, pornography,⁷ and political donations.⁸

The strength of this connection is such that constitutionalists have long argued that even when a constitution does not include a constitutional right of freedom of expression, an analogous protection for expression arises. As far back as 1969, Professor Charles Black argued that much of the protection of freedom of speech, assembly, and petition currently granted under the First Amendment, would be required under the United States Constitution, even in the absence of constitutional text, as necessary to ensure the proper workings of the national government.⁹

This line of thought has received judicial recognition as well. The Supreme Court of Israel has employed a similar form of reasoning to find that the Israeli Basic Law also protects freedom of expression, despite the absence of an explicit guarantee.¹⁰ In Canada, before the enactment of the *Charter*, the Supreme Court drew inferences from the democratic nature of the Canadian Constitution to conclude that held provincial legislation was invalid for interference with the freedom of the press.¹¹ The resulting limitation applied only to provincial legislatures, but the reasoning relied upon precisely the kind of relationship between freedom of expression and democratic government just discussed:

The [British North America Act] contemplates a parliament working under the influence of public opinion and public discussion. There can be no controversy that such institutions derive their efficacy from the free public discussion of affairs, from criticism and answer and counter-criticism, from attack upon policy and administration and defence and counter-attack; from the freest and fullest analysis and examination from every point of view of political proposals.¹²

Indeed, the Canadian reasoning is particularly apposite to the Australian case because it takes account of both representative and responsible government. The Supreme Court extolled freedom of expression both for its power to facilitate the proper representation of the people in the legislature and because it assists in holding Ministers responsible to the Crown. As the Chief Justice concluded, the importance of freedom of expression ‘is signally true in respect of the discharge by Ministers of the Crown of their responsibility to Parliament, by members of Parliament of their duty to the electors, and by the electors themselves of their responsibilities in the election of their representatives’.¹³

C. THE ORIGINS OF FREEDOM OF POLITICAL COMMUNICATION IN AUSTRALIAN CONSTITUTIONAL LAW

The Australian iteration of these ideas was to come in 1992 in *Australian Capital Television v Commonwealth*.¹⁴ But even before that case, freedom of expression had some constitutional or quasi-constitutional status. As in other common law countries, freedom of expression had long been understood as a fundamental value that informs the common law¹⁵ and, through the principle of legality, the interpretation of statutes.¹⁶ In addition, freedom of expression had already found its way into Australian constitutional law through the characterization process. In *Davis v Commonwealth*,¹⁷ the High Court had held invalid aspects of a Commonwealth law establishing an Authority to regulate the celebration of the 1988 Bicentennial. The challenged laws affected freedom of expression by requiring the consent of the Bicentennial Authority for the use of designated phrases—including the phrase ‘200 years’—without the consent of the Bicentennial Authority. The High Court held that this ‘extraordinary power to regulate the use of expression in everyday use’ lay beyond the Commonwealth’s undoubted power to make laws for the celebration of the Bicentennial.¹⁸ The same kind of reasoning persuaded a majority in *Nationwide News v Wills* to find that the Commonwealth’s power with respect to industrial relations (section 51(xxxv)) extended to the creation of the Industrial Relations Commission but not to the enactment of laws that make it an offence to bring the Commission into disrepute.¹⁹

In *Australian Capital Television*,²⁰ however, the High Court (by majority) went a step further and held that the *Constitution* contained an *implication* that protected freedom of political communication about political matters. The ‘freedom of political communication’ as the doctrine has become known is derived from provisions of the Australian Constitution that establish the Parliament and electoral system. The most important of these are the provisions that require members of the Houses of Parliament be ‘directly chosen by the people’ (sections 7 and 24), ensure responsible government by requiring Ministers to be members of the Houses of Parliament, and provide for a participatory amendment process with parliamentary and popular elements (section 128). Stated in brief, the High Court reasoned that freedom of political communication is ‘indispensable’²¹ to the proper operation of these aspects of the Constitution. It allows citizens to communicate their views to representatives, allows representatives and the executive to be responsive and accountable to them. In doing so, freedom of political communication ensures that the choice of representatives exercised by voters under sections 7 and 24 is a ‘true choice’.²²

The reasoning bears an obvious affinity to the arguments employed in Canada and Israel. But despite these obvious affinities with the law of other countries, the Australian doctrine has developed in its own ways and reflects the particularities of the Australian Constitution and its constitutional and political culture. Perhaps the most significant of these features has been the distinctive Australian approach to implications in constitutional law.

D. FREEDOM OF POLITICAL COMMUNICATION AS AN IMPLICATION

The idea of an ‘implication’ in Australian constitutional law has deep roots. Judges have long recognized that there are some doctrines of Australian constitutional law that are not expressed in the text. An ‘implication’ may simply be an instance of a more general feature of interpretation of any legal text, pursuant to which judges articulate unexpressed assumptions, give precise meaning to imprecise language, or otherwise make explicit matters not evident in the text alone. Implications have, however, been

treated as distinct ideas in Australian constitutional law²³ and their proper role the subject of some controversy.²⁴

The starting point for this debate lies in the High Court's landmark decision in *Amalgamated Society of Engineers v Adelaide Steamship Co Ltd*²⁵ in which the High Court overruled previous decisions recognizing an 'implied' limit on the power of the Commonwealth known as the 'immunity of instrumentalities'. In doing so, the High Court reiterated an orthodox approach to statutory interpretation in the British tradition pursuant to which 'the only safe course is to read the language of the statute in what seems to be its natural sense'.²⁶

Engineers is commonly taken as the foundation stone of the High Court's commitment to a 'textualist' method of interpretation and more generally of the Australian preference for 'legalism' in judicial reasoning.²⁷ That is, Australian judges, more than any of their counterparts in the common law world, adhere to the idea that judges should, so far as possible, decide cases by reference only to *legal* materials and without reference to ideas, concepts, or values without a firm legal basis.²⁸ Nonetheless, *Engineers*' has never been thought to preclude the drawing of implications altogether. Indeed, Justice Dixon explicitly rejected the idea of a rule precluding constitutional implications, writing that 'of all instruments, a written constitution would seem the last to which it could be applied'.²⁹

In order to reconcile this openness to implication with its legalism, the Court has defined the scope for implications by reference to constitutional text³⁰ or the 'structure' established by that text.³¹ Implications must be 'necessary' to secure the proper working of the *Constitution*, understood by reference to its text, and implications that alter the Constitution or respond to perceived political necessities should be resisted. Windeyer J succinctly captured this view when he wrote, 'our avowed task is simply the revealing of uncovering of implications that are already there'.³²

These principles explain why the freedom of political communication attracted controversy. According to its critics the freedom of political communication is not squarely based in the constitutional text, a view expressed clearly in the dissenting reasons of Dawson J in *Australian Capital Television*:³³

The legal foundation of the Australian Constitution is an exercise of sovereign power by the Imperial Parliament. The significance of this in the interpretation of the Constitution is that the Constitution is to be construed as a law passed pursuant to the legislative power to do so. *If implications are to be drawn, they must appear from the terms of the instrument itself and not from extrinsic circumstances.*

In academic writing, the freedom of political communication has been derided by critics of the Court as an instance of impermissible judicial activism.³⁴ The question of whether the recognition of the freedom of political communication was an impermissible implication is for practical purposes moot, as the Court has consistently reaffirmed the doctrine as a proper implication.³⁵ Nonetheless, as we shall see, the controversy has had continuing effects on the doctrine, notably in the Court's determination to identify a secure textual foundation for the implication.

E. FREEDOM OF POLITICAL COMMUNICATION: THE FUNDAMENTALS ELEMENTS

Turning to the fundamental elements of the freedom of political communication, the High Court's decision in *Lange*,³⁶ decided five years after *Australian Capital Television*,³⁷ provides the most useful starting point for analysis.

The background to *Lange* is instructive. Between *Australian Capital Television* in 1992 and *Lange* in 1997 divisions between members of the Court about the nature and extent of the freedom of political communication appeared to grow. They are most vividly illustrated by the judgments in *Theophanous v Herald and Weekly Times* (1994).³⁸ In that case, the High Court, by majority, extended the freedom of political communication into the law of defamation, holding that the freedom of political communication gave rise to a new defence to actions for defamation. That defence prevented a public official or candidate for public office from bringing an action for the publication of false and defamatory statement where the defendant can show that it was unaware of the falsity and not reckless with regard to its truth and that the publication was reasonable in all the circumstances.³⁹ Unlike *Australian Capital Television* in which only Dawson J dissented from the drawing of the implication,⁴⁰ *Theophanous* was decided by a narrow majority with Brennan and McHugh JJ—who had been part of the majority recognizing the freedom of political

communication in earlier cases—now joining Dawson J in dissent. Their reasons for dissent went to the heart of the doctrine. As the dissenting Justices put their point, the *Theophanous* majority had treated the freedom of political communication as if it were a ‘freestanding’ implication, rather than one tied to the Constitution’s text and structure.⁴¹ McHugh J summarized the point in a related case:

It appears to be a free-standing principle, just as if the Constitution contained a Ch IX with a s 129 which read: ‘Subject to this Constitution, representative democracy is the law of Australia, notwithstanding any law to the contrary.’⁴²

Three years later *Lange*, which arose out of defamation claim brought by a former Prime Minister of New Zealand against the Australian Broadcasting Corporation (ABC), provided an opportunity to reconsider the doctrine. Indeed, when *Lange* was argued, there appeared to be a distinct possibility that the High Court would overrule *Theophanous* and even some doubt as to the future of the implied freedom of political communication.⁴³ However, *Lange* saw a unanimous reaffirmation of the freedom of political communication though some aspects of the Court’s reasoning also seemed to reformulate the doctrine in response to criticisms.

1. Foundations

In a manner that recalls the textualism of the *Engineers’ Case*, the *Lange* Court reaffirmed the freedom of political communication’s foundation in the Constitution’s text. As it is expressed in *Lange*, the freedom of political communication is derived from the ‘text and structure’⁴⁴ of the Constitution, notably the requirement of sections 7 and 24 that the members of the Senate and the House of Representatives be ‘directly chosen by the people’ of each State and of the Commonwealth respectively.⁴⁵ These sections ‘read in context, require the members of the Senate and the House of Representatives to be directly chosen at periodic elections by the people’⁴⁶ and required that communication ‘which enables the people to exercise a free and informed choice as electors’ cannot be restricted.⁴⁷

In addition, the High Court also relied upon those sections of the Constitution that create a system of responsible ministerial government⁴⁸ holding that they ‘necessarily imply a limitation on legislative and executive power to deny the electors and their representative information

concerning the conduct of the executive branch of government throughout the life of a federal Parliament'.⁴⁹ Finally, the Court considered that section 128, which provides for amendment by popular referendum, in turn requires the protection of information 'that might be relevant to the vote [electors] pass in a referendum to amend the Constitution'.⁵⁰

Moreover, in an apparent response to the claim that *Theophanous* relied upon a 'free-standing' principle, the Court held that the implication was to be construed *only* by reference to constitutional text and structure:⁵¹

[T]he Constitution gives effect to the institution of 'representative government' only to the extent that the text and structure of the Constitution establish it ... the relevant question is not, 'What is required by representative and responsible government? It is, 'What do the terms and structure of the Constitution prohibit, authorise or require?'

In other words, there is no 'free-standing' principle of representative and responsible government in the Constitution (much less a principle of freedom of political communication). Rather there are specific institutions of representative and responsible government identified in the text of the Constitution and the freedom of political communication protects political communication in so far as it is reasonably necessary for the proper functioning of *those institutions*. In this respect, *Lange* is a strong reiteration of the legalist foundations of the freedom of political communication.

2. Defamation, the Common Law, and the Freedom of Political Communication

In another apparent response to criticism, the *Lange* Court declined to adopt the particular rule enunciated in *Theophanous*.⁵² The *Theophanous* defence *displaced* the previous common law defence of qualified privilege, which had no application to publications 'to the world at large' such as in newspapers or by way of broadcasting.⁵³ This displacement of the common law defence of qualified privilege by a constitutional principle was criticized by dissenters in *Theophanous* on the grounds that the Constitution is properly addressed to legislative and executive action and thus not, directly, to the common law.⁵⁴

The Court in *Lange* accepted this account of the relationship between the common law and the Constitution. However, it did not leave the common

law untouched. The Court also held that ‘the Constitution, the federal, State and territorial laws, and the common law in Australia together constitute the law of this country and form “one system of jurisprudence”’⁵⁵ and that ‘[w]ithin that single system, the basic law of the Constitution provides the authority for the enactment of valid statute law and may have effect on the content of the common law.’⁵⁶ Consequently, although it departed from the ‘constitutional defence’ enunciated in *Theophanous*, the *Lange* Court altered the common law by extending the operation of qualified privilege so that:⁵⁷

Each member of the Australian community has an interest in disseminating and receiving information, opinions and arguments concerning government and political matters that affect the people of Australia.

3. Lange: Reformulation or Reaffirmation?

The features of *Lange* just discussed might suggest that rather than merely reaffirming the freedom of political communication, *Lange* reformulates the doctrine to conform to orthodox methods of constitutional implication. With deeper reflection, however, it is apparent that *Lange* does not change very much. On the question of foundations, the emphasis on ‘text and structure’ is not clearly different from the approach evident in the majority judgments in *Australian Capital Television*.⁵⁸ Further, and perhaps in proof of this point, the apparently reformulated defence of qualified privilege is substantively very similar to the *Theophanous* defence. Both cases provide that the defence arises in relation to the publication of defamatory, false statements on ‘government and political matters’, and both also require the publisher to prove reasonableness of conduct.⁵⁹ Moreover, although framed as an extension of the common law, the Court has made it clear that the *Lange* defence is constitutionally entrenched and cannot be altered by the Parliament.⁶⁰

F. TEST FOR THE APPLICATION OF THE FREEDOM OF POLITICAL COMMUNICATION

1. The Lange Test

It is not clear, then, that *Lange* represented a significant revision of either the foundations of the freedom of political communication or its application to the law of defamation. However, *Lange* was undoubtedly significant for its enunciation of a two-stage test for the application of the freedom of political communication. That test, as slightly altered in *Coleman v Power*,⁶¹ is as follows:

1. First, does the law effectively burden freedom of communication about government or political matters either in its terms, operation, or effect?
2. Secondly, if the law effectively burdens that freedom, is the law reasonably appropriate and adapted to serve a legitimate end and in a manner compatible with the maintenance of the constitutionally prescribed system of representative and responsible government and the procedure prescribed by *Commonwealth of Australia Constitution*, section 128, for submitting a proposed amendment of the Constitution to the informed decision of the people?

If the first question is answered ‘yes’ and the second ‘no’, the law is invalid.⁶²

The first stage of this test is principally directed towards identifying the communication to which the freedom of political communication applies. The second stage is directed towards identifying whether the law *impermissibly* burdens political communication and reflects the fact, evident from the inception of the freedom of political communication, that the protection it confers is not absolute.

2. Structured Proportionality: *McCloy v New South Wales*

The second stage of the *Lange* test thus performs the role often performed in other Constitutions by a general limitation clause, such as section 1 of the Canadian Charter. Such limitation clauses are typically employed through a ‘structured proportionality’ analysis⁶³ and the *Lange* test therefore raised a question about the status of this kind of proportionality analysis in Australian constitutional law. For almost two decades, the question appeared to be answered by *Lange* itself which treated the second stage of the *Lange* test as equivalent to a test of proportionality.⁶⁴

Nonetheless, despite the apparent clarity of *Lange* on this score, in *McCloy v New South Wales*⁶⁵ the Court (by majority) introduced a ‘structured’ proportionality analysis as a separate element of its reasoning. Following *McCloy*, the test for application of the freedom of political communication is now:⁶⁶

1. Does the law effectively burden the freedom in its terms, operation or effect? ...
2. Are the purpose of the law and the means adopted to achieve that purpose legitimate, in the sense that they are compatible with the maintenance of the constitutionally prescribed system of representative government? This question reflects what is referred to ... as ‘compatibility testing’
...
3. Is the law reasonably appropriate and adapted to advance that legitimate object? This question involves what is referred to in these reasons as ‘proportionality testing’ to determine whether the restriction which the provision imposes on the freedom is justified.

The proportionality analysis entailed by the third stage of the test was further defined in a way that is clearly influenced by (though does not replicate) proportionality analysis applied in other constitutional systems:⁶⁷

The proportionality test involves consideration of the extent of the burden effected by the impugned provision on the freedom. There are three stages to the test—these are the enquiries as to whether the law is justified as suitable, necessary and adequate in its balance in the following senses:

suitable—as having a rational connection to the purpose of the provision;

necessary—in the sense that there is no obvious and compelling alternative, reasonably practicable means of achieving the same purpose which has a less restrictive effect on the freedom;

adequate in its balance—a criterion requiring a value judgment, consistently with the limits of the judicial function, describing the balance between the importance of the purpose served by the restrictive measure and the extent of the restriction it imposes on the freedom.

If the measure does not meet these criteria of proportionality testing, then the answer to question 3 will be ‘no’ and the measure will exceed the implied limitation on legislative power.

3. The Effect of the *McCloy* Test

The reformulation of the test in *McCloy* has met with some controversy within the Court. One concern is that proportionality replaces the ‘element of judgment’ in the *Lange* test with a more rigid inquiry. Gordon J gave voice to this idea in *Murphy v Electoral Commissioner*:⁶⁸

The ‘necessity’ stage of the *McCloy* test would require a court to inquire as to whether there exists an ‘obvious and compelling alternative, reasonably practicable means of achieving the same purpose which has a less restrictive effect’ on the franchise. If that inquiry is answered positively, then a law will (not may) be invalid.

There are questions about whether such a rigid inquiry (which alone may result in the invalidity of legislation) is appropriate at all in the Australian constitutional context, where the judicial branch of government cannot exercise legislative or executive power.

Another concern, advanced by Gageler J, raises the prospect that proportionality is a ‘one size fits all’ test.⁶⁹ The alternative approach to which Gageler J alludes⁷⁰ is a ‘categorical’ approach to limits whereby the Court proceeds on a case-by-case basis, identifying particular approaches to the question of limitations in particular cases. The proponents of a categorical approach regard the flexible balancing element of proportionality as undermining the predictability and certainty required by the rule of law.⁷¹

A full discussion of these critiques is beyond the scope of this chapter. However, it is worth noting that proportionality, as adopted in *McCloy* may principally serve to make explicit the reasoning that was implicit in the *Lange* standard. Indeed, that is the approach to proportionality offered by the majority in *McCloy* who clearly intended to elaborate upon, rather than reformulate, the *Lange* test:

All parties accepted that the *Lange* test was to be applied in this case ... The only question, then, is as to *what is required by the Lange test*.⁷²

To elaborate upon this idea, it is relatively easy to see that the ‘suitability’ and ‘necessity’ elements of proportionality analysis form part of freedom of political communication analysis. Consider the laws challenged in *Unions NSW v New South Wales* which, in the context of a legislative scheme regulating electoral donations and expenditure, prevented persons other than New South Wales electors from donating to New South Wales political campaigns; and aggregated the electoral expenditure incurred by a party with ‘affiliated organisations’ for the purposes of determining the application of expenditure limits.⁷³ These laws failed at the suitability step. The Court identified a purpose that the law might legitimately serve—the prevention of corruption and undue influence in the New South Wales electoral system—but held that the challenged laws were not rationally related to that purpose. The necessity step—the availability of alternative less restrictive means—is also part of the *Lange* analysis, as far back as *Levy v Victoria*,⁷⁴ in which the Court reviewed regulations that limited

protestors' access to hunting areas during a weekend nominated for duck hunting. One argument put to the Court was that the protection of protesters could have been secured without the complete exclusion of protesters from the hunting areas. However, the argument was rejected, by a majority who considered that the challenged law was not unnecessarily restrictive.⁷⁵

The remaining step—balancing—has not been explicitly identified as an element of the test. Nonetheless, the 'balancing' process is inevitably part of the 'necessity' analysis. I have made this point elsewhere:

The 'balancing' arises because, although the mere availability of less restrictive means to achieve its end is relevant to a law's validity, it is not determinative ... in considering the availability of less restrictive means the court is really considering whether the means actually used to achieve a particular end were justified, *given the alternatives*.⁷⁶

On this analysis, the necessity stage of the proportionality test is a specific aspect of a larger question, whether the end pursued is worth the restriction imposed.

The real significance of *McCloy* appears therefore to be that it makes explicit aspects of reasoning that were already implicit in the *Lange* test. Indeed, this seems to be the view of the majority in *McCloy* itself. In adopting proportionality analysis, the Court held that, rather than a direct comparison with the text and structure of the Constitution or an 'impressionistic judgment' as to validity:⁷⁷

The *Lange* test requires a more structured, and therefore more transparent, approach. In the application of that approach it is necessary to elucidate how it is that the impugned law is reasonably appropriate and adapted, or proportionate, to the advancement of its legitimate purpose.

Whether proportionality analysis makes a difference over time remains to be seen. Much will depend on how it is applied. Several possibilities suggest themselves. One is that by clearly identifying balancing as a separate step of the analysis, the balancing element will be given more emphasis and will result in 'stricter' or more rigorous judicial scrutiny. However, it is also possible that the approach adopted in *McCloy* will simply render explicit the stages of the proportionality analysis previously implicit in *Lange* and will not fundamentally change the High Court's approach. In this eventuality, the flexibility sought by Gordon J in the application of the 'necessity' element could be preserved. The requirement that the alternative be 'obvious and compelling' would become the mechanism for determining when the availability of alternative means

invalidated the challenged law, thus preserving the ‘element of judgment’ previously part of the *Lange* test.⁷⁸ A third possibility is that proportionality may prove to be a mechanism through which more case-specific rules are developed. Proportionality tests can, over time, converge into more specific and categorical approaches,⁷⁹ in which case the case-by-case treatment envisaged by Gageler J may eventuate.

For the moment, however, as the fate of proportionality analysis remains unclear, the remainder of this chapter will focus on the *Lange* test which has been the dominant approach to freedom of political communication for most of its history and address each stage of the *Lange* test in turn.

G. THE APPLICATION OF THE FIRST STAGE: WHAT IS A BURDEN ON ‘POLITICAL COMMUNICATION’?

1. What is Political Communication?

The first matter that arises under the *Lange* test is whether the challenged law is a ‘burden’ on political communication. That question requires, in turn, some consideration of what kinds of communication come within the purview of the freedom of political communication. This question is referred to in this chapter as the question of ‘scope’ or ‘coverage’.⁸⁰

a) Non-verbal communication

The High Court quickly made clear that the freedom of political communication applied to non-verbal forms of communication, a hardly surprising conclusion given the underlying logic of a doctrine which applies to ‘communication’ rather than a narrower concept like ‘speech’. Explicit confirmation of this feature of the doctrine came in *Levy v Victoria*,⁸¹ a challenge to a law that applied to prevent protest activities including non-verbal forms of protest such as collecting and displaying killed and injured birds. The High Court ultimately upheld the law under the second limb of the *Lange* test but confirmed that ‘protests by non-verbal conduct are today a commonplace of political expression’ and hence within the scope of the freedom of political communication.⁸²

Questions as to the scope of the freedom become more complex, however, when the focus is upon the *content* rather than the mode of communication. *Lange* refers to ‘communication about government or political matters’ but as already discussed, the underlying logic of the freedom of political communication directs attention not to a general concept but to the institutions of representative and responsible government established by the Constitution, namely elections for the House of Representatives and the Senate, the provisions for responsible government, and the referendum process established by section 128. So, pursuant to the *Lange* test, the question becomes, what kinds of communication are necessary for the proper function of these institutions? As suggested in more detail elsewhere,⁸³ there are at least three categories of communication that have a strong claim for inclusion within the coverage of the freedom of political communication.

b) Explicitly political communication

Most obviously, the freedom of political communication would cover ‘explicitly political communication’. That is, it covers communication explicitly *about* government such as discussion of current and proposed federal laws and referenda, the policy proposals and platforms of government and opposition parties, the business of the federal Parliament, the public conduct of members of Parliament, and the conduct of the executive arms of government. These matters are obviously relevant to a voter’s choice in federal elections and the other institutions protected by the freedom.

A potential complication in this category arises from the fact that freedom of political communication is derived from structures of federal government and therefore would appear at first sight to cover only communications about the behaviour, policy, and personnel of the federal Parliament and federal executive or about the referendum procedure. However, the High Court has made clear, most recently in *Unions NSW*, that federal and State politics are sufficiently interrelated that the freedom of political communication covers the discussion of State political matters, such as current and proposed State laws and referenda, the policy proposals and platforms of the government and opposition parties, the business of the

State parliaments, the public conduct of members of State Parliaments, and the conduct of the executive arms of government.⁸⁴

In principal, at least, the freedom of political communication should also cover discussion of the public functions of government officials carrying into effect government policy and enforcing the law. So in *Coleman v Power*,⁸⁵ criticism of a police officer was held to be protected by the freedom of political communication. The same kind of argument would include discussion of the business of courts and, at least in some circumstance, the public conduct of the judiciary.⁸⁶ Although courts are not themselves institutions protected by the freedom of political communication, *discussion* of courts can illustrate how laws are functioning, and where they need reform. Therefore, at least where the conduct of courts reflects upon the conduct of the legislature and executive, discussion of courts may be 'political communication' within the meaning of the freedom.⁸⁷

c) Possible subject of future laws or policies

In addition to these matters, there is also a strong argument as a matter of first principles for the inclusion of matters that may *become* the subject of law or policy in the future (such as changing the Australian flag, reintroducing national service, abolishing the States, or reintroducing the death penalty).⁸⁸ Indeed, the distinction between this category of communication and the discussion of current laws and policies is rather difficult to draw. The *failure* to make a policy proposal or to take action in respect of one of these matters is itself revealing about the government, indicating satisfaction with the status quo or at the very least inertia on these questions. In addition, the discussion of issues before they reach the political agenda has intrinsic value for the political process. A voter's understanding of many issues, especially the most complex ones, is likely to be developed over time and cannot realistically be left to the point at which the judgment of voters is to be exercised.

d) Communication on matters indirectly relevant to voter choice

The argument for the inclusion of this last category of communication within the coverage of the freedom of political communication suggests that

according to the doctrine's underlying logic, a very large swathe of communication is potentially within its coverage. The federal Parliament considers a wide array of issues, and the breadth of federal government involvement in modern life means that it is almost impossible to be sure that any matter of public significance will not become the subject of federal political debate.

The potential breadth of its coverage becomes even clearer if we consider the discussion of matters that are not themselves likely to be the subject of law or government action, but might nonetheless influence the attitudes of voters towards the government such as issues of religion, philosophy, history, medical science, and sociology. Once again, the logic of the freedom of political communication points strongly to the inclusion of this category of communication. Voters' understanding of, and attitudes to, these matters can affect their attitudes on questions of public policy, their attitudes to the government, and ultimately their vote at a federal election.

The breadth of the category 'political communication' has not been fully considered by the High Court. However, it is notable that in *Attorney-General (SA) v Corporation of the City of Adelaide*⁸⁹ it was conceded (and the Court accepted that) public preaching by a 'Street Church' was political communication for the purposes of a challenge based on the freedom of political communication. French CJ explained:⁹⁰

Plainly enough, preaching, canvassing, haranguing and the distribution of literature are all activities which may be undertaken in order to communicate to members of the public matters which may be directly *or indirectly* relevant to politics or government at the Commonwealth level. The class of communication protected by the implied freedom in practical terms is wide.

The Chief Justice did not explain how communication might be 'indirectly' relevant to politics or government. One possibility, consonant with the facts of *Corneloups' Case*, is that such communication helps voters form views on fundamental matters that in turn are relevant to the voter's views on discrete political issues. This approach may greatly broaden the category of communication within the coverage of the freedom of political communication. It seems highly plausible, for instance, that a voter's basic morality, beliefs about or understanding of human nature and the world are 'indirectly' relevant to politics of government in this sense. If that is true then much communication on matters of philosophy, religion, sociology, and science are likely to be potentially within the coverage of the freedom of political communication. If this line of reasoning is developed further it

might be that in its scope, the freedom of political communication is not much different from constitutional rights and guarantees that protect ‘expression’ or ‘speech’.⁹¹

2. What is an ‘Effective Burden’ on Political Communication?

Determining the scope of the concept of ‘communication on government or political matters’ is the principal focus of the first limb of the *Lange* test. Nonetheless several other matters arise.

First, the formulation of the test assumes that infringement of the freedom of political communication arise from ‘law’, an assumption that reflects fundamental structural features of the freedom of political communication. It is, first, ‘negative’ in the sense that it protects political communication from interferences rather than conferring a positive right or entitlement to communication.⁹² In addition, it is ‘vertical’ in operation which means that it applies to governmental rather than private action. (Though, its vertical operation does not, as we have seen, preclude its application to the common law.)⁹³

Second, the reference to an ‘effective’ burden would seem to preclude some trivial burdens on political communication. It appears from *Monis*,⁹⁴ however, that in practice, the threshold established by this aspect of the test is very low. Indeed, Hayne J’s judgment in that case raises doubt as to whether the effectiveness requirement provides any additional filter at all. His Honour rejected an argument that the law challenged in that case (a section of the *Commonwealth Criminal Code*) was valid because it imposed only an insubstantial or slight burden on expression. In Hayne J’s words, even a ‘little’ burden on political communication qualifies as an ‘effective burden’ for the purposes of the first limb of the *Lange* test.⁹⁵

3. The Application of the Second Stage: Limitations on Freedom of Political Communication

The first stage of the *Lange* test thus identifies the communication within the scope of the freedom and identifies circumstances in which such communication is subject to a burden. When a law burdens freedom of political communication within the meaning of this first stage of the test, the analysis shifts to the second stage, which itself has two elements: it is a

test of both *means* and *ends*. That is, it requires both that the end pursued by the challenged law and the means through which it pursues that end to be compatible with the ‘constitutionally prescribed system of representative and responsible government’. Indeed, in *Coleman*, the Court revised the test slightly to make it absolutely clear that both the end pursued by the law *and* the means employed must be compatible with the constitutionally prescribed system of government.⁹⁶

The second stage of the *Lange* test is thus governed by the same underlying logic as the first. Just as the first stage in effect asks ‘what kind of political communication is relevant to the proper function with the proper function of the institutions of representative and responsible government established by the Constitution?’, the second stage asks ‘what kind of laws burdening freedom of political communication are nonetheless compatible with the proper functioning of those institutions?’ To put the point more concretely: what kinds of limits on freedom of political communication are nonetheless compatible with the exercise of a ‘true choice’ in federal elections, the proper accountability of the executive to Parliament, and the proper functioning of the referendum process?

Despite the appeal to the textual foundations of the freedom of political communication, the questions raised at the second stage of the analysis are highly complex and raise matters on which reasonable minds can disagree. The Court is thus faced with inescapable choices that give it a large role in determining the nature of freedom of political communication in Australia.⁹⁷ As the freedom of political communication case law develops a fuller understanding of the freedom of political communication and the values it serves is emerging. Though for the moment at least, the overall picture remains somewhat complex and unsettled. Two illustrations will make the point.

a) Politics, money, and ‘enhancement regulation’

The first is provided by cases concerning laws regulating political advertising and political donations: *Australian Capital Television and Unions NSW. Australian Capital Television*, the High Court’s first implied freedom case, considered a challenge to a Commonwealth law that prohibited paid political advertising during election periods. As was pointed out at the time, the case posed an especially hard set of questions that are

familiar to theorists of freedom of expression in other contexts.⁹⁸ Laws that limit freedom of speech in the context of political donations and campaign financing are usually seen as addressing the problem of corruption in the political process and (more controversially) reducing the ‘distorting’ effects of allowing the wealthy to dominate the political process. Thus they are apparently justified by the same values—notably the promotion of democratic government—on which freedom of speech itself depends. These laws raise a conundrum: is it permissible for the state to limit expression to ‘enhance’ public discourse and in turn the democratic system of government (which, after all, is an important justification for freedom of expression in the first place)? Or to put the question another way: can *limits* on freedom of expression be justified on the basis that they *enhance* the values on which freedom of expression depends?

The law challenged in *Australian Capital Television* shows how the question arises within the context of the freedom of political communication. The challenged law limited political communication by prohibiting paid electronic advertising during election periods but, because its rationale was to reduce the influence of rich donors on the political process, it could also be characterized as a law that *enhanced* representative and responsible government.

Though the question was not fully resolved in *Australian Capital Television*⁹⁹ the ‘enhancement’ argument did attract some support in that and later cases.¹⁰⁰ Indeed, in *Coleman*, Justice McHugh is quite explicit that these forms of argument are permissible in principle, stating:

Communications on political and governmental matters are part of the system of representative and responsible government, and they may be regulated in ways that enhance or protect the communication of those matters. Regulations that have that effect do not detract from the freedom. On the contrary, they enhance it.¹⁰¹

The Court ultimately adopted a clear position on the matter in *Unions NSW* and in *McCloy*, in which the Court accepted that a law directed to ‘the elimination of undue influence, understood in the sense of unequal access to government based on money’ was a legitimate purpose within the meaning of the *Lange* test.¹⁰²

The conclusion that a law limiting freedom of political communication may legitimately seek to equalize opportunity for political communication, or ‘enhance’ political debate, is entirely consistent with the underlying logic

of the freedom of political communication. However, it is difficult to see that the conclusion is *required* by the notion of a ‘true choice’. On the contrary, there is a well-established view of freedom of expression that would be highly suspicious of such attempts, fearing that government would deliberately use such restrictions in ways that prefer its own interests or otherwise distort political debate. In the United States, this suspicion has hardened into a rule against such enhancement laws.¹⁰³ If one accepted the American view of the propensity of regulation to distort political debate, one could readily conclude that such laws undermined the electoral choice guaranteed by the Constitution.

As argued elsewhere, therefore, a court’s determination of whether ‘enhancement’ regulation is a permissible limitation on political communication depends on its assessment of whether the state is to be *trusted* in the regulation of expression.¹⁰⁴ A broader comparative perspective is illuminating. Political traditions—like Canada’s—that are relatively more accepting of the role of the state in general (and in the regulation of expression in particular) are more likely to regard this form of regulation as permissible. Whereas, the notably libertarian American tradition is predictably more suspicious of government action. Viewed in this light, it is not surprising that the High Court has accepted the argument for ‘enhancement’ laws, given the Australian political tradition of legislative action in pursuit of the common good.¹⁰⁵ The point to note, however, is that it is values deep within the Australian political tradition which were determinative rather than the ‘text and structure’ of the Constitution as explained in *Lange*.

b) Civility and insult

This emerging picture of the freedom of political communication is, however, complicated by *Coleman* in which the High Court quashed the conviction of an activist convicted under a Queensland law criminalizing the use of ‘threatening, abusive, or insulting words to any person’ in or near a public place.¹⁰⁶ By majority, the Court held that such a law could only validly apply to political communication if it is limited to circumstances in which the accused either intends to provoke a violent response or such a response is reasonably likely.

Of particular note is the majority's rejection of a form of the 'enhancement argument' just discussed. This argument is clearly put in the judgment of Heydon J in dissent. Insulting words, his Honour held, 'are inconsistent with civilised standards' and consequently: ¹⁰⁷

A legislative attempt to increase the standards of civilization to which citizens must conform in public is legitimate. In promoting civilised standards, s 7(1)(d) not only improves the quality of communication on government and political matters by those who might otherwise descend to insults, but it also increases the chance that those who might otherwise have been insulted, and those who might otherwise have heard the insults, will respond to the communications they have heard in a like manner and thereby enhance the quantity and quality of debate.

He concludes, later in the judgment, that '[i]nsulting words damage, rather than enhance, any process which might lead to voter appreciation of the available alternatives'. ¹⁰⁸

The majority rejects this argument in an especially definitive manner holding that the pursuit of civility is not a 'legitimate end' within the meaning of the *Lange* test. In other words, rather than focusing on the means pursued by the law and whether those means are 'reasonably appropriate and adapted' to a legitimate end, the majority held that a law aimed at promoting civility is, *by reason of that fact*, invalid.

Gummow and Hayne JJ make the point most clearly: ¹⁰⁹

If s 7(1)(d) is not construed in the way we have indicated, but is construed as prohibiting the use of any words to a person that are calculated to hurt the personal feelings of that person, it is evident that discourse in a public place on any subject (private or political) is more narrowly constrained by the requirements of the Vagrants Act. And the end served by the Vagrants Act (on that wider construction of its application) would necessarily be described in terms of ensuring the civility of discourse. *The very basis of the decision in Lange would require the conclusion that an end identified in that way could not satisfy the second of the tests articulated in Lange.* What Lange decided was that the common law defence of qualified privilege to an action for defamation must be extended to accommodate constitutional imperatives. That extension would not have been necessary if the civil law of defamation (which requires in one of its primary operations that a speaker not defame another) was itself, without the extension of the

defence of qualified privilege, compatible with the maintenance of the constitutionally prescribed system of government.

The pursuit of civility is—to put it starkly—not a legitimate end within the scheme of the freedom of political communication, and a law aimed at promoting civility is never valid.

The other members of the majority seem to take a similar position. Notably McHugh J found that insults are protected *even if* they diminish political debate: ¹¹⁰

The use of insulting words is a common enough technique in political discussion and debates. No doubt speakers and writers sometimes use them as weapons of intimidation. *And whether insulting words are or are not used for the purpose of intimidation, fear of insult may have a chilling effect on political debate. However, as I have indicated, insults are a legitimate part of the political discussion protected by the Constitution.*

And Kirby J likewise swiftly rejects Justice Heydon's view: ¹¹¹

[Justice Heydon's] chronicle appears more like a description of an intellectual salon where civility always (or usually) prevails ... Australian politics has regularly included insult and emotion, calumny and invective, in its armoury of persuasion ... the Constitution addresses the nation's representative government as it is practised.

The rejection of the enhancement argument in this context is by no means inconsistent with its position with respect to electoral spending and donations, but it does require explanation. In the passages just quoted the explanations take two forms: Gummow and Hayne JJ rely on precedent, holding that an argument relying on civility as a justification for a law limiting political communication was inconsistent with *Lange*. McHugh and Kirby JJ rely instead on established modes of political debate in Australia, rejecting Heydon J's analysis as inconsistent with those practices.

Neither argument is fully convincing. In terms of Gummow and Hayne JJ's position, although the law of defamation can be understood as enforcing rules of civility, ¹¹² defamation is not clearly analogous to the criminal insult law. The application of the *Lange* rule depends both on the content of the communication (which must be defamatory and false) and the reasonableness of the speaker's conduct. The insults prohibited by the law challenged in *Coleman* differed in both these respects: the law applied to

insults that are not necessarily false and which may inflict no harm on the speaker's reputation; and applied to deliberately offensive language.¹¹³

Turning to McHugh and Kirby JJ's claims, it is easy to accept the truth of this account as a *description* of Australian political debate but it is not clear why the concept of 'representative government as it is practised' should provide the 'base-line' for the assessment of validity. Political practices are ordinarily judged against constitutional standards rather than the other way around. In any event, such arguments are of little help where laws and practices point in different directions.¹¹⁴ If the long history of political insult, to which McHugh and Kirby JJ refer, exists alongside a long history of regulation of insulting behaviour,¹¹⁵ it is necessary to explain why one practice rather than the other had priority in determining the content of the freedom of political communication.

Put more precisely, the question that *Coleman* poses is 'why does the Constitution *not* allow a government to pursue *civility* through the regulation of public insult (even if it would increase engagement in public debate) but allow a government to pursue *equality* in political debate through the regulation of political donation?'

It seems likely that such a reason can only be found with a more normatively driven account of the strength of these competing values. As I have argued elsewhere, a certain kind of egalitarianism may provide the missing argument. The concept of 'civility' may have its roots in social conventions of honour and respect due to the well-born. In some societies (notably France and Germany) these notions have been adapted by 'levelling up'. That is, these societies now extend to all, the 'honour' once due to only the noble. By contrast, the United States is a society that has 'levelled down'. Equality is realized by denying to all the protection of notions of honour and respect once due to the well-born alone. This analysis may provide a clue as to the real basis of the Court's approach in *Coleman*. As I have suggested elsewhere:¹¹⁶

It is perhaps significant that, like the United States, Australia is a society of the New World and one to which the notions of honour that might found a strong respect for 'civility' are largely foreign. The rejection of the idea that 'civility' in public debate is a legitimate reason to curtail political communication might have its roots in a discomfort with the aristocratic origins of the notion of civility in public debate.

But once again, later cases complicate the picture. In *Monis* the High Court was evenly divided on the validity of a Commonwealth criminal law

addressed to offensive letter writing.¹¹⁷ Among those judges who found the law invalid, the judgments of the Chief Justice and Hayne J are most clearly of a piece with the reasoning in *Coleman*. For these Justices the case is governed by the finding in *Coleman*. As in the earlier case, the end pursued by the law challenged in *Monis*—the prevention of hurt feelings through the giving of offence—was held to be not legitimate.¹¹⁸

However, Crennan, Kiefel and Bell JJ found the law challenged in this case to be valid, and distinguished *Coleman* on two grounds. First, they held that the law challenged in *Monis* is aimed at preventing only a very serious form of offence that causes ‘significant emotional reaction or psychological response’, a limitation not evident in the *Coleman* law.¹¹⁹ Second, the law in *Coleman* concerned statements made in a public place whereas this law operates to prevent the intrusion of very offensive material in to the home and the workplace.¹²⁰ Taken together these features led the judges to the conclusion that the specific provision—section 471.12 of the *Criminal Code 1995* (Cth)—pursued a legitimate object and did not go beyond what was reasonably necessary to achieve its object. In these circumstances their finding is that it is legitimate for a law to address particularly serious ‘offensiveness’ and that this particular law does so in a relatively restrained way.¹²¹

H. CONCLUSION

Freedom of political communication is now a well-established element of Australian constitutional law. Much about its basic nature is clear: it is an implication drawn from the text and structure of the Constitution; it operates to prevent government interference rather than to confer a ‘positive’ entitlement; it applies directly to the legislature and executive of federal, State, and Territory governments and ‘indirectly’ to the common law; and its protection, while not absolute, is conferred on communication about ‘government and political matters’ at the federal, State, and Territory level, and goes beyond the explicitly political to matters ‘indirectly’ relevant to the government and politics.

However, both methodological and substantive matters remain to be further developed. As a matter of method, the significance of proportionality analysis remains to be seen. As a matter of substance, it

remains to be seen which kinds of communication qualify as ‘indirectly’ relevant to government and politics and, depending on how that concept is developed, the coverage of the freedom of political communication is potentially quite broad. Further, while the Court has been clear that ‘enhancement’ arguments may be highly persuasive in some contexts (such as the regulation of political donations) it is equally clear that the pursuit of ‘civility’ (in the sense of the avoidance of mere offence and hurt feeling) is not a legitimate end justifying limitation on political communication. As *Monis* demonstrates, moreover, there are many instances that will not fall clearly within these categories and the development of a fuller picture of the freedom of political communication will emerge only over time in the light of decided cases. Case-by-case development of principles is of course typical of constitutional doctrine in general and is especially marked in the case of rights or guarantees, like freedom of expression, which are expressed in general terms. In this last respect, as in many others, the freedom of political communication resembles a guarantee of freedom of political communication found in other constitutions.

¹ Adrienne Stone, ‘The Comparative Constitutional Law of Freedom of Expression’ in Rosalind Dixon and Tom Ginsburg (eds), *Comparative Constitutional Law* (Edward Elgar 2011) 406.

² See Chapter 37 ‘Rights Protection in Australia’.

³ See generally, Frederick Schauer, *Free Speech: A Philosophical Enquiry* (CUP 1981) 35–46; Kent Greenawalt, ‘Free Speech Justifications,’ (1989) 89 *Columbia Law Review* 119, 145–146.

⁴ Eric Barendt, *Freedom of Speech* (OUP 2007) 18.

⁵ *Whitney v California* 274 US 357, 37_ (1927): ‘freedom to think as you will and speak as you think are means indispensable to the discovery and spread of political truth’.

⁶ *Irwin Toy Ltd v Quebec (AG)* [1989] 1 SCR 927, 976; *Ford v Quebec (AG)* [1988] 2 SCR 712, 756–57.

⁷ See, eg, Adrienne Stone, ‘The Canadian Constitutional Law of Expression’ in Richard Albert and David Cameron (eds), *Canada In the World: Comparative Perspectives on the Canadian Constitution* (CUP, forthcoming).

⁸ Yasmin Dawood ‘Democracy, Power and the Supreme Court: Campaign Finance Reform in Comparative Context’ (2006) 4 *International Journal of Constitutional Law* 269.

⁹ Charles Black, *Structure and Relationship in Constitutional Law* (Louisiana State University Press 1969) 40–48.

¹⁰ Suzie Navot, *The Constitutional Law of Israel* (Kluwer Law International 2007) 234. The foundational case is the Supreme Court’s 1953 decision *Kol Ha’am Co., Ltd v Minister of the Interior* H CJ 73/53, P.D. 7871 available in English at <http://elyon1.court.gov.il/files_eng/53/730/000/Z01/53000730.z01.pdf> accessed 6 October 2017>.

¹¹ *Re Alberta Legislation* (1938) 2 DLR 81, 107–08 (Duff CJ and Davis J).

- ¹² *ibid* 133.
- ¹³ *ibid* 133.
- ¹⁴ *Australian Capital Television v Commonwealth* (1992) 177 CLR 104. A Commonwealth law prohibiting electronic advertising during election campaigns was found invalid. The flaw in the law lay in the ‘free-time’ provisions which allocated broadcasting time free of charge to political parties and candidates but in a way that favoured incumbent candidates and established political parties
- ¹⁵ See, eg, *Ballina Shire Council v Ringland* (1994) 22 NSWLR 60; *Brown v Classification Review Board* [1998] FCA 319.
- ¹⁶ *Tajjour v New South Wales* (2014) 254 CLR 508, 545–47 (French CJ); *Evans v New South Wales* (2008) FCR 576.
- ¹⁷ *Davis v Commonwealth* (1988) 166 CLR 79.
- ¹⁸ *ibid* 199–200.
- ¹⁹ *Nationwide News v Wills* (1992) 177 CLR 1, 29–31 (Mason CJ), 49 (Brennan J), 101 (McHugh J).
- ²⁰ *Australian Capital Television* (n 14).
- ²¹ *ibid* 138–40.
- ²² *ibid* 270 (McHugh J); *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 106, 560.
- ²³ For a comprehensive analysis, see Jeremy Kirk, ‘Constitutional Implications (II): Doctrines of Equality and Democracy’ (2001) 25 Melbourne University Law Review 24; Jeremy Kirk ‘Constitutional Implications (I): Nature, Legitimacy, Classification, Examples’ (2000) 24 Melbourne University Law Review 645.
- ²⁴ Jeffrey Goldsworthy, ‘Implications in Language, Law and the Constitution’ in Geoffrey Lindell (ed), *Future Directions in Australian Constitutional Law* (Federation Press 1994) 150.
- ²⁵ *Amalgamated Society of Engineers v Adelaide Steamship Co Ltd* (1920) 28 CLR 129 (‘Engineers’).
- ²⁶ *ibid* 149, quoting *Vacher and Sons Ltd v London Society of Compositors* [1913] AC 107, 112 (Lord Haldane LC).
- ²⁷ Jeffrey Goldsworthy, ‘Australia: Devotion to Legalism’ in Jeffrey Goldsworthy (ed) *Interpreting Constitutions: A Comparative Study* (OUP 2007) 120; Greg Craven, ‘Heresy as Orthodoxy: Were the Founders Progressivists?’ (2003) 31 Federal Law Review 87. See generally Chapter 20 ‘Judicial Reasoning’.
- ²⁸ Goldsworthy, ‘Australia: Devotion to Legalism’ (n 27) 106.
- ²⁹ *West v Commissioner of Taxation (NSW)* (1937) 56 CLR 393, 413.
- ³⁰ An important early statement is found in the *Engineers* (n 25) 155 (per Knox CJ, Isaacs, Rich and Starke JJ), referring to the ‘ordinary principles of construction’ which are applied ‘so as to discover in the actual terms of the instrument their expressed or necessarily implied meaning’ (emphasis added).
- ³¹ *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31 recognizing an implication prohibiting the Commonwealth from exercising its powers in such a way as to threaten the continued existence of a State or its capacity to exercise its essential state functions. See also *Austin v Commonwealth* (2003) 215 CLR 185.
- ³² *Victoria v Commonwealth* (1971) 122 CLR 353, 402 (‘Payroll Tax Case’).
- ³³ *Australian Capital Television* (n 14) 181 (emphasis added).
- ³⁴ The Court’s leading academic critic, Jeffrey Goldsworthy, accepts neither that ‘practical necessity’ is the proper touchstone for the drawing of implications or that the test of practical necessity would in any case establish an appropriate basis for the freedom of political

communication. Jeffrey Goldsworthy, 'Constitutional Implications and Freedom of Political Speech' (1997) 23 Monash University Law Review 362. See also Tom Campbell, 'Judicial Activism—Justice or Treason' (2001) 10 Otago Law Review 307; Tom Campbell 'Democracy, Human Rights and Positive Law' (1994) 16 Sydney Law Review 195.

³⁵ *Lange* (n 22).

³⁶ *ibid.*

³⁷ *Australian Capital Television* (n 14).

³⁸ *Theophanous v Herald and Weekly Times* (1994) 182 CLR 104.

³⁹ *ibid* 140–41. The *Theophanous* Court was clearly influenced by *New York Times v Sullivan* 376 US 254 (1964), though the Australian rule is formulated differently. On the influence of *New York Times* see Adrienne Stone, 'The Freedom of Political Communication, the Constitution and the Common Law' (1998) 26 Federal Law Review 219.

⁴⁰ Although Brennan J recognized the implied freedom of political communication in *Nationwide News v Wills* (1992) 177 CLR 1, 46–47 he dissented in *Australian Capital Television* (n 14) in the result on the grounds that the challenge law did not infringe the implied freedom of political communication.

⁴¹ *Theophanous* (n 38) 163 (Brennan J), 191 (Dawson J), 194 (McHugh J).

⁴² *McGinty v Western Australia* (1994) 186 CLR 140, 234.

⁴³ Adrienne Stone, '*Lange, Levy and the Direction of the Freedom of Political Communication under the Australian Constitution*' (1998) 21 University of New South Wales Law Journal 117, 119–20.

⁴⁴ The notion of 'structure' is prominent in other implications as well notably the implication preventing the Commonwealth from interfering with the capacity of States to exercise their essential State functions is recognized as an implication from the federal structure of the Constitution. *Melbourne Corporation* (n 31) 74 (Starke J), 88 (McTiernan J); see also 83 where Dixon J describes the implication as one that 'the efficacy of the system logically demands'.

⁴⁵ *Lange* (n 22) 557.

⁴⁶ The High Court relied on s 1 (vesting the power of the Commonwealth in the Parliament); s 8 and s 30 (electors for the Senate and the House of Representatives to vote only once); s 25 (persons of any race disqualified from voting at elections not be counted in determining electorates under s 24); s 28 (duration of the House of Representatives); s 13 (six years to be the longest term served by a Senator); and s 28 (the House of Representatives to continue for no longer than three years): *Lange* (n 22) 557.

⁴⁷ *Lange* (n 22) 557.

⁴⁸ Section 6 (requiring a session of Parliament at least once a year); s 83 (requiring that money to be appropriated from the treasury by law); s 62 (executive power of the Queen exercised on 'initiative and advice' of Ministers); s 64 (requiring Ministers to sit in Parliament); s 49 (adopting the 'power privileges and immunities' of the House of the Parliament of the United Kingdom): *Lange* (n 22) 561.

⁴⁹ *Lange* (n 22) 561.

⁵⁰ *ibid.*

⁵¹ *ibid.*

⁵² The *Lange* Court did not, however, overrule *Theophanous* explicitly. Rather it found that *Theophanous* contained no binding statement of constitutional principle. The majority in *Theophanous* consisted of a joint judgment of Mason CJ, Toohey and Gaudron JJ and a separate judgment of Deane J, who formulated a slightly different rule but indicated his support for the result reached by the other members of the majority: *ibid* 554–55.

- ⁵³ *Toogood v Spyring* (1834) 149 ER 1044.
- ⁵⁴ *Theophanous* (n 38) 117–18 (Brennan J).
- ⁵⁵ *Lange* (n 22) 564, citing *McArthur v Williams* (1936) 55 CLR 324, 347.
- ⁵⁶ *Lange* (n 22) 564.
- ⁵⁷ *ibid* 571.
- ⁵⁸ *Australian Capital Television* (n 14) 134 (Mason CJ), 228 (McHugh J).
- ⁵⁹ *Theophanous* (n 38) 140–41; *Lange* (n 22) 573.
- ⁶⁰ *Lange* (n 22) 566. Adrienne Stone, ‘The Constitution and the Common Law: A Reply’ (2002) 26 Melbourne University Law Review 646.
- ⁶¹ *Coleman v Power* (2004) 220 CLR 1, 78 (Gummow and Hayne JJ), 50 (McHugh J), 82 (Kirby J).
- ⁶² *Lange* (n 22) 567–58.
- ⁶³ For the Canadian approach see *R v Oakes* [1986] 1 SCR 103. See Chapter 21 ‘Standards of Review in Constitutional Review of Legislation’.
- ⁶⁴ In a footnote that immediately followed the passage just quoted, the High Court stated ‘[i]n this context, there is little difference between the test of reasonably appropriate and adapted and the test of proportionality’. *Lange* (n 22) 567, n 272.
- ⁶⁵ *McCloy v New South Wales* (2015) 257 CLR 178.
- ⁶⁶ *ibid* 193–94 [2] (French CJ, Kiefel, Bell and Keane JJ).
- ⁶⁷ *ibid*. See also *R v Oakes* [1986] 1 SCR 103, 138–40 applying a three-stage proportionality test as a means of applying the requirement in s 1 of the *Canadian Charter of Rights and Freedoms* that limitations on *Charter* rights be ‘demonstrably justified in a free and democratic society’.
- ⁶⁸ *Murphy v Electoral Commissioner* [2016] HCA 36, [298]–[299] (footnotes omitted).
- ⁶⁹ *McCloy* (n 65) 235 [142].
- ⁷⁰ *McCloy* (n 65) 237 [146]–[148], 235 [141], citing the fuller discussions in Adrienne Stone, ‘The Limits of Constitutional Text and Structure: Standards of Review and the Freedom of Political Communication’ (1999) 23 Melbourne University Law Review 668, 676–79, 681–84; Adrienne Stone, ‘The Limits of Constitutional Text and Structure Revisited’ (2005) 28 University of New South Wales Law Journal 842, 844–45.
- ⁷¹ For a full discussion of these competing approaches, see Stone, ‘The Limits of Constitutional Text and Structure’ and Stone, ‘The Limits of Constitutional Text and Structure Revisited’ (n 70).
- ⁷² *McCloy* (n 65) 200.
- ⁷³ *Unions New South Wales v New South Wales* (2013) 252 CLR 530.
- ⁷⁴ *Levy v Victoria* (1997) 189 CLR 579.
- ⁷⁵ *ibid* 614–15 (Toohey and Gummow JJ), 627 (McHugh J), 647–48 (Kirby J).
- ⁷⁶ Stone, ‘The Limits of Constitutional Text and Structure’ (n 70) 682 (footnotes omitted). Indeed, the majority reasons apparently equate the requirement of ‘reasonableness’ with these criteria and specifically note that the criterion is not to be applied in a manner that substitutes judicial for legislative judgment: *McCloy* (n 65) 211, 217.
- ⁷⁷ *McCloy* (n 65) 201.
- ⁷⁸ In this respect, it is notable that the Canadian Supreme Court has resisted any temptation to develop proportionality in ways that create a more rigid form of inquiry. *Thomson Newspapers Co. v. Canada (A.G.)* [1998] 1 SCR 877; see generally Sujit Choudhry, ‘So What is the Real Legacy of *Oakes*? Two Decades of Proportionality Analysis under the Canadian *Charter*’s Section 1’ (2006) 34 Supreme Court Law Review 501, 512–13.

⁷⁹ See Frederick Schauer, 'The Convergence of Rules and Standards' (2003) New Zealand Law Review 303.

⁸⁰ See Schauer, *Free Speech* (n 3) 91.

⁸¹ Levy (n 74).

⁸² Levy (n 74) 595 (Brennan CJ); see also 613 (Toohey and Gummow JJ), 622–23 (McHugh J), 286 (Kirby J).

⁸³ Adrienne Stone, 'Rights, Personal Rights and Freedoms: The Nature of the Freedom of Political Communication' (2002) 25 Melbourne University Law Review 374.

⁸⁴ *Unions NSW* (note 73) 550.

⁸⁵ Coleman (n 61).

⁸⁶ However, the extent to which the freedom of political communication applies to discussion of courts and the judiciary has not been definitively resolved. Differing views were expressed by McHugh and Kirby JJ in obiter in *APLA v Legal Services Commission (NSW)* (2005) 224 CLR 322, 361 [67] (McHugh J), 440 [347] (Kirby J). See also *Herald & Weekly Times v Popovic* (2003) 9 VR 1, 10, 105 in which two members of the Victorian Court of Appeal cast doubt on whether discussion of the conduct of proceedings by a judicial officer was 'a communication concerning government and political matters' that attracted the protection of the freedom of political communication.

⁸⁷ See *APLA* (n 86) 361; note the distinction drawn by Gleeson CJ and Heydon J between communication on matters relevant to the functioning of the executive and legislature and other kinds of communication about courts.

⁸⁸ For a longer argument along these lines see Adrienne Stone, 'Rights, Personal Rights and Freedoms: The Nature of the Freedom of Political Communication' (2001) 25 Melbourne University Law Review 374, 384–85.

⁸⁹ *Attorney-General (SA) v Corporation of the City of Adelaide* (2013) 249 CLR 1 ('Corneloups' Case').

⁹⁰ *ibid* 44.

⁹¹ Though it is difficult to see that the concept of 'political communication' might cover some matters at the outer edge of other guarantees such as nude dancing, as in the United States (*Barnes v Glen Theatre Inc* 501 US 560 (1991)) or soliciting for purposes of prostitution, as in Canada (*Reference re ss. 193 & 195.1(1)(c) of Criminal Code (Canada)* (the *Prostitution Reference*) [1990] 1 SCR 1123).

⁹² *McClure v Australian Electoral Commission* (1999) 163 ALR 734, 740–41 [28] (Hayne J): 'The freedom is a freedom from governmental action; it is not a right to require others to provide a means of communication. The petitioner's case depends upon him having some right to require others to disseminate his views.' Cited with approval in *Mulholland v Australian Electoral Commission* (2004) 220 CLR 181, 245 [182] (Gummow and Hayne JJ); 224 [109] (McHugh J).

⁹³ Stone, 'Constitution and the Common Law' (n 60); Graeme Hill and Adrienne Stone, 'The Constitutionalisation of the Common Law' (2004) 25 Adelaide Law Review 67.

⁹⁴ *Monis v The Queen* (2013) 249 CLR 92.

⁹⁵ *ibid* 160–61 [173]. On this last point, Crennan, Kiefel and Bell JJ (212 [343]) agreed that the provision at issue in *Monis* burdened the freedom, but left open the possibility that a law the effect of which is 'so slight as to be inconsequential' may survive the first stage of the *Lange* test and thus be valid.

⁹⁶ Coleman (n 61) 50 [92] (McHugh J), 78 [196] (Gummow and Hayne JJ), 82 [212] (Kirby J).

⁹⁷ See further Adrienne Stone, '“Insult and Emotion, Calumny and Invective”: Twenty Years of Freedom of Political Communication' (2011) 30 University of Queensland Law Journal 79.

⁹⁸ Frederick Schauer, 'Free Speech in a World of Private Power' in Tom Campbell and Wojciech Sadurski (eds), *Freedom of Communication* (Dartmouth 1994) 1.

⁹⁹ In *Australian Capital Television* the question was side-stepped as the law was held invalid because of the unequal way in which it distributed 'free time' (free access to electronic media) to candidates and parties based on performances at previous elections *Australian Capital Television* (n 14) 131–32 (Mason CJ).

¹⁰⁰ *ibid* 129 (Mason CJ).

¹⁰¹ *Coleman* (note 61) 90.

¹⁰² *McCloy* (n 65) 248 [183] (Gageler J), citing *Unions NSW* (n 73) 545 [8], 557 [51] (French CJ, Hayne, Crennan, Kiefel and Bell JJ), 579 [138] (Keane J).

¹⁰³ Thus, the Supreme Court of the United States famously declared in *Buckley v Valeo* 424 US 1, 48–49 (1976) that: '[T]he concept that government may restrict the speech of some elements of our society in order to enhance the relative voice of others is wholly foreign to the First Amendment.'

¹⁰⁴ For a longer analysis of this point, see Adrienne Stone 'How to Think about the Problem of Hate Speech: Understanding a Comparative Debate' in Katharine Gelber and Adrienne Stone (eds), *Hate Speech and Freedom of Speech in Australia* (Federation Press 2007) 59.

¹⁰⁵ Paul Kelly, *100 Years: The Australian Story* (Allen & Unwin 2001) 116 describing Australia's early post-Federation constitutional and political tradition sees it as a 'system of enlightened state power ... erected ... to civilise capitalism'. (I thank Simon Evans for pointing me to this source).

¹⁰⁶ *Vagrants, Gaming and Other Offences Act 1931* (Qld), s 7(1)(d).

¹⁰⁷ *Coleman* (n 61) 122 [324] (footnotes omitted).

¹⁰⁸ *ibid* 126 [332].

¹⁰⁹ Upholding the challenged law but only on the basis that it is limited so as to apply to political communication only in circumstances where insulting words are 'intended to, or they are reasonably likely to provoke unlawful physical retaliation': *ibid* 77 [193], 78–79 [199].

¹¹⁰ *ibid* 54 [105] (emphasis added).

¹¹¹ *ibid* 91 [238].

¹¹² See Robert Post, 'The Social Foundations of Defamation Law: Reputation and the Constitution' (1986) 74 *California Law Review* 691.

¹¹³ The formulations used by the various members of the Court varied but an element of deliberate offence appears to be common: *Coleman* (n 61) 26 [14] (Gleeson CJ), 40 [65] (McHugh J), 74 [183] (Gummow and Hayne JJ), 87 [226] (Kirby J), 108–09 [287] (Callinan J); however, cf 118 [314] (Heydon J).

¹¹⁴ Thus Justice Heydon relies on established practice in dissent to *support* the challenged law. He observes that the law regulating insulting words 'operates in an area in which discussion has traditionally been curtailed in the public interest or as part of the general law': *Coleman* (n 61) 123 [327].

¹¹⁵ Roger Douglas, 'The Constitutional Freedom to Insult: The Insignificance of *Coleman*' (2005) 16 *Public Law Review* 23.

¹¹⁶ Adrienne Stone, 'Insult and Emotion' (n 97) 97.

¹¹⁷ *Monis* (n 94).

¹¹⁸ *ibid* 133–34 [73] (French CJ), 139 [97]–[98] (Hayne J).

¹¹⁹ *ibid* 211 [338].

¹²⁰ *ibid* 214 [348].

¹²¹ *ibid* 216 [352].

CHAPTER 40

POLITICAL PARTICIPATION

JOO-CHEONG THAM*

THIS chapter on ‘Political Participation’ deals with the form of political participation centrally contemplated by the Australian Constitution—electoral participation. As the High Court observed in *Lange*, the system of responsible and representative government under the Constitution seeks to ensure that such government is undertaken by those who enjoy the confidence of the people—and ‘(t)hat confidence is ultimately expressed or denied by the operation of the *electoral* process’.¹

The chapter charts the evolution of constitutional law in relation to electoral participation through a focus on the power of the Commonwealth Parliament over federal elections. A starting point of its analysis is a distinction between an *emphasis on the breadth* of legislative power over federal elections and an *emphasis on constraint*. The chapter also explains how particular emphasis on the scope of legislative power over elections is informed by views taken on the relationship between the legislative power over federal elections and its impact on Australia’s democracy. In some cases, it is possible to identify a *benign view* of such power—that is, a perception that the exercise of such power will enhance Australia’s democracy; in others, a contrary view—a *sceptical view*—can be found where the exercise of legislative power over federal elections is seen to threaten Australia’s democracy; and of course, there are cases where there is simply an *agnostic view*.

The following section sets out the provisions of the Constitution dealing with electoral participation. It goes on to explain how early High Court decisions underscored the breadth of this power, most notably by characterizing it as ‘plenary’. Of particular note are the judgments of Isaac J

who held a benign view of Commonwealth legislative power over federal elections underpinned by a deep paradox: the ability of the people to shape their electoral system and how it effects democracy—through the exercise of legislative power—is itself an important incident of their democratic rights.

A detailed account of the case of *McKinlay* follows. In retrospect, *McKinlay* can be seen as a crucial turning point. While the judgments of Barwick CJ (and to a lesser extent, Gibbs, Stephen and Mason JJ) emphasized—in their different ways—the breadth of legislative power over federal elections, the judgments of McTiernan, Jacobs and Murphy JJ, began to shift the emphasis to the constraints on such power, particularly, from sections 7 and 24 of the Constitution. *McKinlay* further witnessed the emergence of two variants of the emphasis on constraint itself: one based on a benign view of legislative power (McTiernan and Jacobs JJ) and another based on a sceptical view which saw the exercise of such power as posing risks to Australia’s system of representative government (Murphy J).

This chapter goes on to illustrate how these three broad perspectives—the emphasis on the breadth of legislative power over federal elections, constraint based on a benign view of legislative power, constraint based on a sceptical view of legislative power—map on three aspects of the legislative power in relation to federal elections. The emphasis on breadth is strongly reflected in the body of authorities that insist upon legislative freedom in relation to the federal electoral system; the approach stressing constraint based on a benign view of legislative power is embodied in the ‘right to vote’ cases of *Roach* and *Rowe*; and the perspective of constraint based on a sceptical view of legislative power is adopted in a number of judgments of the High Court that deal with challenges to campaign finance laws based on the implied freedom of political communication.

A. THE POWER OF THE COMMONWEALTH PARLIAMENT OVER FEDERAL ELECTIONS: A PLENARY POWER?

The provisions of the Australian Constitution dealing with electoral participation are found in Chapter I, ‘The Parliament’. This chapter deals with a range of matters concerning federal elections, including: how members of Parliament should be elected;² the number of representatives in

each House of Parliament;³ electoral divisions;⁴ the duration of each Parliament;⁵ qualifications of electors;⁶ qualifications of members of Parliament⁷ and also disqualifying provisions;⁸ and disputed elections.⁹

There are significant requirements prescribed by Chapter I. Section 7 requires that the senator for each State be ‘directly chosen by the people of the State’, while section 24 mandates that members of the House of Representatives be ‘directly chosen by the people of the Commonwealth’. The latter provision also stipulates that the number of members of the House of Representatives be ‘as nearly as practicable, twice the number of the senators’ with ‘(t)he number of members chosen in several States ... in proportion to the respective numbers of their people’.¹⁰ A different formula applies to the Senate—which was originally intended to represent the States—with equal representation for each State.¹¹ The Constitution stipulates the maximum duration of each House of Representatives to be three years¹² and the term of service for senators to be six years.¹³

Other requirements are clearly aimed at ensuring uniformity in relation to elections for the Senate and the House of Representatives. Qualifications of electors for both Houses are to be the same,¹⁴ and so are qualifications of members of both Houses.¹⁵ Section 44 also provides for five disqualifying circumstances that apply to members of both Houses.

Two important requirements with respect to voting can be found in Chapter I. Firstly, plural voting is prohibited, meaning that each elector in a federal election is allowed to vote only once.¹⁶ Secondly, there is section 41, which provides as follows:

No adult person who has or acquires a right to vote at elections for the more numerous House of the Parliament of a State shall, while the right continues, be prevented by any law of the Commonwealth from voting at elections from either House of the Parliament of the Commonwealth.

When reading the text of Chapter I, however, one is struck not by the requirements it stipulates, but by the broad power it confers on the Commonwealth Parliament to legislate in relation to federal elections. Chapter I states that the Parliament may make laws in relation to: the qualification of electors for the Senate,¹⁷ the method of election of senators,¹⁸ and the alteration of the number of members of the House of Representatives.¹⁹ In other situations, Chapter I specifies the arrangements that apply in the first instance—in most, cases, relying upon State laws—

with these arrangements only applying ‘until the Parliament otherwise provides’ in most cases. As section 51(xxxvi) confers upon the Commonwealth Parliament the power to legislate on ‘matters in respect of which this Constitution makes provision until the Parliament otherwise provides’, this means that the Constitution additionally confers upon the Commonwealth Parliament the power to make laws relating to: electoral divisions,²⁰ qualifications of electors,²¹ qualifications of members of Parliament,²² disputed elections,²³ and federal elections generally.²⁴

The breadth of the power of the Commonwealth Parliament over federal elections was recognized by the early cases of *Smith v Oldham*²⁵ and *Judd v McKeon*²⁶ with several judges characterizing the power of the Commonwealth Parliament over federal elections as ‘plenary’. In *Smith*, the High Court unanimously upheld section 181 of the *Commonwealth Electoral Act*, which imposed the requirement—including on newspaper proprietors—that election material be signed by their author/s giving their true name and address at the end of the publication,²⁷ an early Australian example of what is referred to in electoral law as authorization requirements.²⁸

In rejecting the challenge to the validity of this provision, the High Court concluded that the power of the Commonwealth Parliament over federal elections extended beyond ‘the conduct of elections in its official aspect’²⁹ and ‘the mechanical process of election’.³⁰ Griffith CJ stated that:

It is not disputed that that Parliament has power to make laws for the regulation of federal elections ... Perhaps, ‘regulation of elections’ is an inexact term. What is really meant is regulation of the conduct of persons with regard to elections. The main object of laws for that purpose is, I suppose, to secure freedom of choice to the electors.³¹

Barton J similarly concluded that the Commonwealth Parliament had the power to make ‘a law dealing with the conduct of citizens as affecting elections’.³²

For Isaacs J, restricting the power of the Commonwealth Parliament to the supervision of the mechanical process of the election was to ‘neglect the vital principle behind it’³³—which was ‘(t)he vote of every elector is a matter of concern to the whole Commonwealth’.³⁴ In other words, how the ‘people’ chose their representatives is of collective concern to the ‘people’ as a whole.

This ‘vital principle’ or ‘public interest’³⁵ explains the emphasis of Isaacs J on the plenary power of the Commonwealth Parliament over federal elections—collective concerns underpinned the collective power of the ‘people’ in determining the federal electoral system through the exercise of legislative power. In his Honour’s words:

It is, of course, conceded the Commonwealth Parliament has plenary power over federal elections. But plenary power is incapable of restraint; and it is a mere lip loyalty to principle, if, while acknowledging the doctrine, it be assiduously sought to defeat its application. The limits of plenary power end only with the subject matter in respect of which it may be exercised.³⁶

In *Judd*,³⁷ there was an unsuccessful challenge to the constitutional validity of compulsory voting. The principal argument of the appellant was that section 128A (12) of the *Commonwealth Electoral Act 1918–1925* (Cth), which stated that ‘every elector who ... fails to vote at an election without a valid and sufficient reason for such failure ... shall be guilty of an offence’, was not a valid exercise of the power conferred by section 9 of the Commonwealth Constitution on the ground that it did not involve ‘choosing’ under this section.³⁸

This argument was unanimously rejected by the High Court. For Knox CJ, Gavan Duffy and Starke JJ, the challenged compulsory voting provision was compatible with ‘choosing’ under section 9 of the Commonwealth Constitution because ‘[i]n common parlance “to choose” means no more than to make a selection between different things or alternatives submitted, to take by preference out of all that are available’.³⁹ For Isaacs J, ‘[t]he compulsory performance of a public duty is entirely consistent with freedom of action in the course of performing it’.⁴⁰ In concluding that the challenged provision was valid, Rich J tersely stated ‘[t]he vote is not merely a right but a duty’.⁴¹

In reaching their conclusion, Knox CJ, Gavan Duffy and Starke JJ, echoing the judgment of Isaacs J in *Smith*, said that the power in section 9 of the Commonwealth Constitution is ‘plenary and unrestricted’ and subject only to the requirement of uniformity in the method of choosing for all States.⁴²

The judgment of Isaacs J in *Smith* highlighted how questions concerning the electoral system collectively concerned the ‘people’, and how this ‘vital principle’ underpinned the ‘plenary’ scope of the power of the

Commonwealth Parliament over federal elections.⁴³ In *Judd*, Isaacs J continued on this theme by drawing a connection between the importance of the right to vote and the power of the Commonwealth Parliament over federal elections:

That the franchise may be properly regarded as a right, I do not for a moment question. It is a political right of the highest nature. The Constitution in sec. 41 speaks of the right to vote. But I am equally free from doubt that Parliament, in prescribing a ‘method of choosing’ representatives, may prescribe a compulsory method. It may demand of a citizen his services as a soldier or juror or voter. The community organized, being seised of the subject matter of parliamentary elections and finding no express restrictions in the Constitution, may properly do all it thinks necessary to make elections as expressive of the will of the community as they possibly can be.⁴⁴

This paragraph not only suggests that the broad power of the Commonwealth Parliament over federal elections is compatible with the significance of the right to vote, but also—crucially—the exercise of this power is an expression of ‘the will of the community’. As put in another part of his Honour’s judgment:

Each elector may—if *that be the will of the community expressed by its Parliament*—be placed under a public duty to record his opinion as to which of the available candidates shall in relative preference become the representative or representatives of the constituency in Parliament.⁴⁵

Isaacs J’s dicta can be summed up in the following paradox—the power of the Commonwealth Parliament over federal elections, in particular how it effects democracy, is itself profoundly democratic given that Parliament is supposed to represent the views of the community.⁴⁶ In other words, popular sovereignty extends not only to the regulation of elections but is given effect through parliamentary supremacy (plenary power).

This perspective clearly reflects a benign view of the exercise of such power. As Isaacs J put in *Judd*: ‘(t)he community organized ... may properly do all it thinks necessary to make elections as expressive of the will of the community as they possibly can be’.⁴⁷ The key notion here seems to be that legislative power over federal elections is both democratic in terms of process (the exercise of the power) and outcomes (the impact of such exercise).

This connection between legislative power and democratic process and outcomes is also apparent in [Harrison Moore’s 1902](#) treatise, *The Constitution of the Commonwealth of Australia*,⁴⁸ which memorably stated that:

The predominant feature of the Australian Constitution is the prevalence of the democratic principle, in its most modern guise.⁴⁹

This was because '[t]he Constitution of the Commonwealth of Australia bears every mark of confidence in the capacity of the people to undertake every function of government'.⁵⁰ This, one may add, included the function of designing electoral laws with '[t]he system, governing the qualifications of members and electors ... dictated by a desire to rest those qualifications upon the widest possible basis'.⁵¹ And should there be a threat to democratic rights, the remedy is to be found through the political process. For Harrison Moore:

The great underlying principle is that the rights of individuals are sufficiently secured by ensuring, as far as possible, to each a share, and an equal share, in political power.⁵²

B. THE *McKINLAY* CASE: A FORK IN THE ROAD

In *Smith and Judd*, the 'plenary' power of the Commonwealth Parliament over federal elections was not said to be subject to any limitations from sections 7 and 24 of the Constitution which, respectively, required the Senate and the House of Representatives to be 'directly chosen by the people of the State(s)' and 'directly chosen by the people of the Commonwealth'. Indeed, neither of the judgments referred to sections 7 and 24. Decades later, in its 1972 decision of *Fabre v Ley*, the High Court would unanimously state that 'the legislative power of the Parliament (to enact an electoral law for the election of Parliament) is not subject to any restriction other than that which flows from s. 41 of the Constitution'.⁵³

A crucial turning point in the approach of the High Court to the power of the Commonwealth Parliament over federal elections is the case of *McKinlay*.⁵⁴ The principal issue in this case,⁵⁵ was whether provisions of the *Commonwealth Electoral Act 1918–1975* (Cth), which dealt with the redistribution of States into electoral divisions for elections to the House of Representatives, was invalid on the basis that they failed to provide for a House that was 'chosen by the people of the Commonwealth' under section 24 of the Constitution. Specifically, it was said that this phrase required that each electoral division contain the same number of people, or alternatively, the same number of electors, and that the challenged provisions were invalid for failing to provide for such equality.

The High Court issued six separate judgments in this case with all but Murphy J dismissing this challenge. These judgments reveal different approaches to legislative power over federal elections in their answers to two central questions:

- 1) What is the relationship between the provisions of the Constitution conferring power on the Commonwealth Parliament over federal elections and section 24?
- 2) What meaning should be given to the phrase, 'directly chosen by the people of the Commonwealth', as appears in section 24?

Of all the judgments, Barwick CJ's is the most in keeping with the emphasis in *Smith* and *Judd* on the 'plenary' power of the Commonwealth Parliament over federal elections. His Honour concluded that the power of the Parliament in relation to electoral divisions under section 29 of the Constitution, and in relation to the franchise under section 30, is not subject to section 24 because these provisions were not made 'subject to the Constitution'⁵⁶—section 24 was not 'dominant'.⁵⁷ Further, for Barwick CJ, the Constitution is 'built upon confidence in a system of parliamentary Government with ministerial responsibility'⁵⁸—and, importantly, the 'confidence reposed in the Parliament' in relation to its 'plenary power' under sections 29 and 30 has not been 'misplaced'.⁵⁹

The Chief Justice further rejected the argument that 'directly chosen by the people' in section 24 required equality in electoral divisions either in terms of people or electors. For Barwick CJ:

the expression 'directly chosen by the people' is merely emphatic of two factors: first, that the election of members should be direct and not indirect as, for example, through an electoral college and, secondly, that it shall be a popular election.⁶⁰

His Honour added, '[i]t is not an indirect reference to any particular theory of government'.⁶¹ The latter statement was consistent with the opening paragraphs of his Honour's judgment, where Barwick CJ made clear his approach to the questions at hand:

The problem ... presented to the Court is a matter of the legal construction of the Constitution of Australia, itself a legal document; an Act of the Imperial Parliament. The problem is not to be solved by resort to slogans or to political catch-cries or to vague and imprecise expressions of political philosophy.⁶²

Barwick CJ was, however, alone in concluding that section 24 did not impose any limitations on the power of the Commonwealth Parliament over

federal elections; all the other judges explicitly or implicitly proceeded on the basis that section 24 did limit such power and that the principal issue concerned the meaning of ‘directly chosen by the people’. This represented a break from the decisions in *Smith*, *Judd*, and *Fabre*, all of which did not consider the ‘plenary’ power in relation to federal elections to be subject to the requirements of section 24⁶³—none of these decisions were mentioned in *McKinlay*.

Apart from this key issue, the judgment of Gibbs J was similar in key respects to that of Barwick CJ. Gibbs J emphasized that ‘[o]ur duty is to declare the law as enacted in the Constitution and not to add to its provisions new doctrines which may happen to conform to our own prepossessions’.⁶⁴ Rejecting the argument that ‘directly chosen by the people’ requires equality in the number of persons or electors in electoral divisions, his Honour pointedly observed, ‘[t]he section says nothing in terms as to the weight to be given to the votes of those people who cast them’⁶⁵ and that ‘[i]t does not mention equality’.⁶⁶

As to ‘[t]he argument that equality of numbers within electoral divisions is an essential concomitant of a democratic system, so that in any constitution framed upon democratic principles it must have been intended to guarantee that electorates would so far as practicable contain an equal number of people or of electors’, this contention, according to Gibbs J, ‘begs the question and ignores history’.⁶⁷ For Gibbs J, the argument ignored how the historical development of electoral systems did not reflect such a principle of equality. It also begged the question, which is: what is it that the Constitution requires? Here, the judgment of Gibbs J emphasized the breadth of legislative power over federal elections and expressed a benign view of such power:

The Constitution does not lay down particular guidance on these matters; the framers of the Constitution trusted the Parliament to legislate with respect to them if necessary, no doubt remembering that in England, from which our system of representative government is derived, democracy did not need the support of a written constitution.⁶⁸

The judgment of Mason J shared the textual approach of Barwick CJ and Gibbs J. Rejecting the plaintiffs’ attempt to interpret section 24 as providing for ‘the shibboleth “one vote, one value”’, his Honour curtly stated, ‘(t)he submission finds no support in the language itself’.⁶⁹ Mason J did, however, say in heavily qualified terms that it was ‘perhaps conceivable’

that gross disproportionality in the number of electors or people in electoral divisions may ‘raise a question’ that section 24 was breached.⁷⁰

The judgment of Stephen J can also be said to express an emphasis on the breadth of legislative power, albeit with an agnostic stance as to the impact of such power on Australia’s democracy. Further, unlike Barwick CJ, Gibbs and Mason JJ, Stephen J was prepared to go beyond the explicit words of section 24 and ground his decision in what Barwick CJ somewhat dismissively referred to as ‘a theory of government’. In particular, Stephen J was prepared to discern in section 24 ‘[t]hree great principles, representative democracy (by which I mean that the legislators are chosen by the people), direct popular election, and the national character of the lower House’.⁷¹

For Stephen J, however, the principle of representative democracy (as his Honour defined it) was not to be understood prescriptively. His Honour adopted a polymorphous understanding of this principle: while there are key ‘ingredients’⁷² or ‘factors’⁷³ relevant to this principle such as enfranchisement of electors and numerical equality of electors in electoral divisions, none of ‘these in absolute form is necessarily imported into the Constitution by the selection of representative democracy as the chosen mode of government for the nation’⁷⁴—‘representative democracy is descriptive of a whole spectrum of political institutions, each differing in countless respects yet answering to that generic description’ and while ‘[t]he spectrum has finite limits’, ‘at no one point within the range of the spectrum does there exist any single requirement so essential as to be determinative of the existence of representative democracy’.⁷⁵

The judgment of Stephen J reflected an emphasis on the breadth of legislative power in relation to federal elections, explicitly and implicitly. Explicitly, by rejecting the challenge on the basis that the Constitution entrusted Commonwealth and State Parliaments with ‘wide powers of shaping as they see fit the details of this nation’s electoral system’⁷⁶ with the topic of electoral divisions, in particular, ‘a quite unequivocal instance of the Constitution reposing power in the legislatures to determine these matters’;⁷⁷ and implicitly through his polymorphous understanding of representative democracy which led his Honour to conclude that it was ‘unreal’ to find that section 24 imposed a requirement of equality in electoral divisions.⁷⁸

The judgments of Barwick CJ, Gibbs, Mason and Stephen JJ can be contrasted with the joint judgment of McTiernan and Jacobs JJ with the latter reflecting an emphasis on constraining legislative power. A key difference here stems from the evolutionary approach to ascertaining the meaning of section 24 adopted by McTiernan and Jacobs JJ. According to their Honours, '[t]he words "chosen by the people of the Commonwealth" fall to be applied to different circumstances at different times' with 'the common understanding of the time' relevant to determining its application.⁷⁹ While concluding that section 24 'embrace[s] the notion of equality of numbers in so far as the choice of members must be by the people of the Commonwealth',⁸⁰ their Honours, however, rejected the challenge on the basis that 'there is nothing in our history and our development as a nation which would require that before a member be described as chosen by the people of the Commonwealth absolute or as nearly as practicable absolute equality of numbers of the people exist in every constituted electoral district in a State'.⁸¹

The emphasis of McTiernan and Jacobs JJ on constraint is obvious from their Honours' focus on the requirements of section 24. Their judgments, however, show there is no necessary connection between an emphasis on constraint and a sceptical view of legislative power over federal elections and its perceived threat to the integrity of the federal electoral system. On the contrary, the emphasis placed by their Honours on constraining this legislative power is based on a benign view of such power. This is reflected in their Honours' approach in giving content to the requirements of section 24 by reference to 'the common understanding of the time'. Such understanding, their Honours imply, would be distilled from *legislative developments* in relation to the federal electoral system. So much appears from their comment concerning suffrage or the franchise which is a creature of statute:

For instance, the long established universal adult suffrage may now be recognized as a fact and as a result it is doubtful whether, subject to the particular provision in s. 30, anything less than this could now be described as a choice by the people.⁸²

So it is in the judgment of McTiernan and Jacobs JJ that legislative protection of the suffrage is transmuted into constitutional constraint.

The judgment of Murphy J, on the other hand, can be understood as one reflecting an emphasis on constraint based on a sceptical view of the

exercise of legislative power over federal elections. For Murphy J, the lone dissenter, '[t]he main question is whether the Australian Constitution guarantees electoral democracy'.⁸³ In adopting a broad construction of section 24, in particular, his Honour stated that '[g]reat rights are often expressed in simple phrases',⁸⁴ and that the meaning of section 24 was influenced by the 'silent operation of constitutional principles'.⁸⁵

In the event, Murphy J concluded that 'directly chosen by the people' in section 24 required the alternatives of equality of number of electors or persons (as his Honour found to be the approach of the United States Supreme Court) for four reasons. First, the positioning of the phrase and it being expressed in 'the language of command'.⁸⁶ Second, '[t]he democratic theme of equal sharing of political power which pervades the Constitution', and here quoting Harrison Moore that '[t]he predominant feature of the Australian Constitution is the prevalence of the democratic principle, in its most modern guise'.⁸⁷ Third, the phrase originating from the United States Constitution and what Murphy J saw as the 'compelling' construction adopted by the United States Supreme Court.⁸⁸

The emphasis on constraining legislative power in relation to federal elections is evident from the first three reasons. The sceptical view of legislative power over federal elections, on the other hand, is found in the fourth reason which, according to Murphy J, is '[t]he absence of any other means of redress for those deprived of an equal share of representation, even where it is grossly unequal'.⁸⁹ Here Murphy J emphatically rejected the ability of Parliament to redress electoral unfairness—'with few exceptions, legislators who hold office because of an unbalanced electoral system will not act to change the system'.⁹⁰ Murphy J went further, '[t]he more unbalanced it becomes, the more severe are the consequences of correction and the more reluctant are the legislators to change it'.⁹¹

So in contrast with the emphasis on breadth based on a benign view of legislative power over federal elections exemplified by Isaacs J in *Smith* and *Judd* and Barwick CJ in *McKinlay*, for Murphy J, there was a rupture between popular sovereignty and parliamentary supremacy when it came to electoral unfairness, justifying a significant role for constitutional safeguards enforced by the High Court.

In sum, *McKinlay* reveals three divergent perspectives to the power of the Commonwealth Parliament over federal elections: the various emphases on

the breadth of the power (Barwick CJ, Gibbs, Stephen and Mason JJ); an emphasis on constraint based on a benign view of the power (McTiernan and Jacobs JJ); and an emphasis on constraint based on a sceptical view (Murphy J). The significance of these perspectives goes beyond *McKinlay*. As will be seen below, these perspectives help make sense of the Australian constitutional law on electoral participation and, indeed, may cast light on the ‘deep’ structure of this body of law.

The next section examines the body of authorities that (continue to) emphasize the breadth of the power of the Commonwealth Parliament over federal elections, albeit more in the manner of Stephen J’s judgment in *McKinlay* rather than that of Barwick CJ. It is followed by an examination of the ‘right to vote’ cases of *Roach* and *Rowe*, decisions which stress constraint based on a benign view of legislative power, with the judgment of McTiernan and Jacobs JJ in *McKinlay* serving as a cornerstone for these judgments. The analysis is completed by a third section which draws out how key strands of the High Court decisions in relation to the implied freedom of political communication and campaign finance laws reflect a perspective of constraint based on a sceptical view of legislative power in relation to federal elections, broadly in line with the judgment of Murphy J in *McKinlay*.

C. LEGISLATIVE FREEDOM IN RELATION TO THE FEDERAL ELECTORAL SYSTEM

In a number of decisions, the High Court has found key aspects of the Australian electoral system to be well within the power of the Commonwealth Parliament—including: compulsory voting,⁹² the list system and group voting tickets,⁹³ compulsory or full preferential voting,⁹⁴ party registration laws,⁹⁵ and distributions of electoral divisions.⁹⁶ These decisions reflect an emphasis on the breadth of legislative power over federal elections, and this chapter deals with them in four parts: how these decisions interpreted the express requirement of choice under sections 7 and 24; their consideration of whether there is an implied requirement of equality (or a prohibition against discrimination) arising from these provisions; the decision in *Mulholland* which, harking back to the dicta of Isaacs J in *Smith and Judd*, highlights the democratic nature of the

legislative power over federal elections; and the latest in this line of cases, the 2016 unanimous High Court decision in *Day*.⁹⁷

1. Legislative Power and Choice

As discussed earlier, the High Court in *Judd* characterized the power of the Commonwealth Parliament in relation to federal elections as ‘plenary’, and held that compulsory voting was compatible with the requirement of choice under sections 7 and 24.⁹⁸ What emerges from *Judd* is that these sections do not require that electors be able to choose whomever they wish, nor do these sections require electors to choose according to a method of voting that they prefer.

This is made plain in *Langer v Commonwealth*,⁹⁹ where the High Court unanimously held that the compulsory preferential system provided to the House of Representatives under section 240 of the *Commonwealth Electoral Act 1918* (Cth) was compatible with section 24 of the Constitution.¹⁰⁰ As Brennan CJ stated in that case:

What the Constitution requires is that the law prescribe a method of voting which leaves the voter free to make a choice, not that the law leave the voter free to choose the method of voting by which a voter’s choice is to be made.¹⁰¹

Citing Isaacs J in *Smith*, Brennan CJ further characterized the power of the Commonwealth Parliament in relation to elections for the House of Representatives as ‘a plenary power’, and provided that Parliament were to prescribe a method of voting that allowed for ‘a free choice among the candidates for election’, such a method was within the Parliament’s legislative power.¹⁰² As section 240 allowed for ‘a discriminating choice among the candidates for election to the House of Representatives’, Brennan CJ went on to find the section compatible with section 24.¹⁰³

In a joint judgment, Toohey and Gaudron JJ found section 240 of the *Commonwealth Electoral Act* to be compatible with section 24, ‘no matter how broadly the words “chosen by the people” are construed’.¹⁰⁴ Dawson J reached the same conclusion, adding that ‘[t]he Constitution does not require the provision of any particular electoral system’,¹⁰⁵ emphasizing the ‘wide powers’ conferred by sections 29 and 31 of the Constitution and the ‘wide choice of electoral systems’ which Parliament can adopt.¹⁰⁶ McHugh

J similarly held that section 240 did not breach section 24 of the Constitution ‘by requiring a voter to record a preference for a candidate that he wishes to vote against’.¹⁰⁷ Referring to the phrase, ‘chosen by the people’, in section 24, his Honour said ‘[t]hose words were not intended to confer a personal right on each elector to vote for the candidate of his or her choice’.¹⁰⁸ In similar terms, Gummow J stated that:

s 24 (of the Constitution) does not confer upon each elector a personal right to vote for the candidate of that elector’s choice, and, therefore, a right (or immunity) not to state a preference for a candidate whom the elector does not wish to be elected.¹⁰⁹

Another unsuccessful challenge was made to the validity of the compulsory preferential voting system in *Ditchburn*,¹¹⁰ this time on the basis that this system was in breach of the injunction in sections 8 and 30 of the Constitution that ‘each elector shall vote only once’. Hayne J, sitting as the Court of Disputed Returns, rejected the challenge, finding that ‘[t]he choice (of a voter) is expressed in a complex way but it remains a single expression of the will of that voter’.¹¹¹

2. Legislative Power, Equality, and Discrimination

The question of whether section 24 of the Constitution gives rise to an implied requirement of equality of numbers in electoral divisions for the House of Representatives arose in the case of *McGinty*.¹¹² This, of course, was the key issue in *McKinlay*, with the High Court in that case rejecting any such requirement.¹¹³ Emboldened, however, by the implied freedom of political communication decisions of *Nationwide News*,¹¹⁴ *Australian Capital Television*,¹¹⁵ *Theophanous*,¹¹⁶ and *Stephens*,¹¹⁷ a challenge was made to the electoral districting arrangements under Western Australian electoral laws, seeking that *McKinlay* be overruled.¹¹⁸ Under these arrangements, electoral districts for the Western Australian Legislative Assembly in metropolitan areas had nearly twice the number of electors as those for the rest of the State.

The majority of Brennan CJ, Dawson, McHugh and Gummow JJ, rejected the challenge based on section 24 principally on the basis that, whatever implications could be drawn from section 24 in relation to equality of numbers in electoral divisions, these implications did not apply

to State electoral laws.¹¹⁹ Toohey and Gaudron JJ dissented on the basis that the challenged provisions of the Western Australian electoral laws offended the implications of representative democracy found in the *Constitution Act 1889* (WA).¹²⁰

Strictly speaking then, the High Court did not have to determine whether section 24 of the Constitution impliedly required equality of numbers in electoral divisions for the House of Representatives. All the judges except for Brennan CJ, however, devoted key parts of their judgments to this question, with Dawson, McHugh and Gummow JJ rejecting any such requirement, while Toohey and Gaudron JJ accepted that the Constitution required equality of voting power in relation to the House of Representatives.

The judgments of Brennan CJ, Dawson, McHugh and Gummow JJ stressed that any constitutional implications in relation to representative government were to be derived from the text and structure of the Constitution.¹²¹ For Dawson J, this meant that the constitutional concept of representative government only provided ‘an irreducible minimum requirement that the people be “governed by representatives elected in free elections by those eligible to vote”’¹²²—‘(o)therwise the form of representative government which we are to have is left to Parliament, provision being made until Parliament otherwise provides’.¹²³ According to Dawson J, the power conferred upon the Commonwealth Parliament in this context extended to laws concerning electoral divisions, and together with his Honour’s endorsement of the majority decision in *McKinlay*,¹²⁴ Dawson J therefore rejected any constitutional requirement of equality of voting power.

Dawson J’s judgment contains important passages on the rationale for the broad power conferred upon the Commonwealth Parliament in relation to federal elections. According to Dawson J, the exercise of this power required the Commonwealth Parliament ‘to determine questions of a political nature about which opinions may vary considerably’,¹²⁵ especially in light of the ‘hundreds of electoral systems in existence today by which a form of representative government might be achieved’¹²⁶ with ‘[t]heir merits ... judged by a number of different criteria which are likely to be incompatible with one another’.¹²⁷ As such, Dawson J considered it ‘unwise to freeze into a constitutional requirement a particular aspect of an

electoral system the attraction of which might vary at different times, in different conditions and to different eyes'.¹²⁸

The views of McHugh J on whether there is a constitutional requirement of equality of voting power is summed up in the following statements:

Equality of voting power is not a fundamental feature of the Constitution. On the contrary, inequality of individual voting power is one of its striking features.

...

Under the Constitution, therefore, individual Australians do not have an equal share in the sovereignty of Australia.¹²⁹

On the question of whether section 24 gave rise to an implied requirement of equality of voting power, Gummow J essentially followed the approach of Mason J in *McKinlay*.¹³⁰ Like Dawson J, Gummow J also highlighted the broader rationales for conferring broad power on the Commonwealth Parliament in relation to federal elections. A key passage of Gummow J's judgment provides as follows:

The recurrent phrase 'until the Parliament otherwise provides' has a deeper significance. Its effect is to accommodate the notion that representative government is a dynamic rather than a static institution and one that has developed in the course of this century. The accommodation is effected in the Constitution itself by authorizing the legislature to make appropriate provision from time to time. It is by this means that the Constitution continues to speak to the present and allows for development of the institution of government by changes which may not have been foreseen a century ago) or, if foreseen by some, were not then acceptable generally.¹³¹

Through this conferral of power, the Constitution made 'allowance for the evolutionary nature of representative government',¹³² and in this respect, 'the architects of the Constitution "placed great faith in the capacity of the elected senators and members to design statute law for a system of representative self-government, notwithstanding that they would be legislating in their own interest" '.¹³³

Gummow J further added that '(t)o adopt as a norm of constitutional law the conclusion that a constitution embodies a principle or a doctrine of representative democracy or representative government ... is to adopt a category of indeterminate reference'¹³⁴ with difficulty arising 'where the wide range for variable judgment depends upon, or at least includes as a significant element, matters primarily or significantly of political weight and estimation'.¹³⁵

The judgments of Dawson, McHugh and Gummow JJ strongly reflect an emphasis on the breadth of legislative power over federal elections, with Dawson and Gummow JJ further proceeding upon a benign view of such power in the context of the polymorphous and dynamic nature of representative government.

The judgments of Toohey and Gaudron JJ, on the other hand, express a perspective of constraint based on a benign view of legislative power. Toohey J, with whom Gaudron J generally agreed,¹³⁶ concluded that ‘(e)quality of voting power is an underlying general requirement in the Constitution’,¹³⁷ deriving from the phrase, ‘chosen by the people’ in section 24, ‘but more fundamentally from the very structure of the system of government enshrined in the Constitution’.¹³⁸ The emphasis on constraint is clear from this conclusion.

A benign view of legislative power in relation to federal elections is bound up with Toohey J’s interpretive approach—‘[t]he Constitution must be construed as a living force and the Court must take account of political, social and economic developments since that time’.¹³⁹ Foreshadowing the approach taken in *Roach* and *Rowe* (and citing McTiernan and Jacobs JJ in *McKinlay*) Toohey J said:

while the essence of representative democracy remains unchanged, the method of giving expression to the concept varies over time and according to changes in society. It is the current perception which is embodied in the Australian Constitution.¹⁴⁰

Similar to the approach taken in *Roach* and *Rowe*, Toohey J referred to *contemporary legislation* as giving content to the ‘current perception’ of representative democracy, with the requirement of equality of electorate size under such legislation anchoring the constitutional requirement of equality of voting power.¹⁴¹ Reconciling his judgment with *McKinlay*, Toohey J considered that *McKinlay* could be distinguished as ‘[m]ost members of the Court did not examine the requirements of representative democracy’.¹⁴²

The High Court decisions in *McKinlay* and *McGinty* then provide little support for a constitutional requirement of equality of voter power in relation to elections for members of the House of Representatives. They can be grouped together with a series of unsuccessful challenges to the Senate group voting system, where arguments were made that this voting system breached an implied prohibition against discrimination arising from section

7 of the Constitution. In three decisions, the High Court sitting as the Court of Disputed Returns rejected these arguments. The key decision here are that of Gibbs CJ in *McKenzie*,¹⁴³ a decision later affirmed by Dawson J in *Abbotto*,¹⁴⁴ and Hayne J in *McClure*.¹⁴⁵

The Senate group voting system in *McKenzie* provided for two ways of voting: ‘above the line’ for registered political parties and ‘below the line’ for candidates. Electors voting ‘above the line’ could do so formally by marking ‘1’; their preferences would then be governed by the group voting ticket lodged by the registered party. A formal vote of those voting ‘below the line’ required a preference to be indicated for every single candidate (as illustrated in *Langer*).

In *McKenzie*, Gibbs CJ acknowledged that candidates of political parties which are not registered may be disadvantaged in various ways, for example the (unregistered) party’s name did not appear on the ballot paper or ‘the simplified voting procedure’ of ‘above the line’ voting was not available to these candidates.¹⁴⁶ His Honour was also prepared to assume that section 7 of the Constitution ‘requires that the Senate be elected by democratic methods’.¹⁴⁷ However, Gibbs CJ concluded:

it cannot be said that any disadvantage caused by the sections of the Act now in question to candidates who are not members of parties or groups so offends democratic principles as to render the sections beyond the power of the Parliament to enact.¹⁴⁸

3. Mulholland: Legislative Power Over Federal Elections as a ‘Democratic Solution’

In *Mulholland v Australian Electoral Commission*,¹⁴⁹ both the constitutional requirements as to choice and equality under sections 7 and 24 were implicated in a challenge to the federal party registration rules.¹⁵⁰ Two rules under Part XI of the *Commonwealth Electoral Act 1918* (Cth), in particular, were challenged: the ‘500 rule’ which required that a party seeking registration under the Act have at least 500 members unless it had one member who was a member of the Commonwealth Parliament; and the ‘no overlap rule’ which required that the members put forth by a party seeking registration not overlap with members of another registered party. As noted by Gummow and Hayne JJ, while ‘[t]he registration system [is] permissive rather than mandatory’, registration conferred ‘various advantages or privileges’, including: eligibility for public funding, the

naming of the registered parties on the ballot, and the ability of the parties to direct preferences through the group voting tickets.¹⁵¹

In six separate judgments, the High Court unanimously found that these two rules did not breach the requirements in sections 7 and 24 that members of the Commonwealth Parliament ‘be directly chosen by the people’. This was principally on the basis that these rules could be justified as measures to ensure that the benefits and privileges of registration—in particular party identification on the ballot paper—accrued to parties that enjoyed a minimum degree of public support and, in so doing, aided informed voting by the electors.¹⁵²

In reaching this conclusion, the judgments all emphasized the breadth of the power of the Commonwealth. Kirby J spoke of ‘the ample scope of the Parliament’s power to enact electoral laws’;¹⁵³ Callinan J referred to ‘the very broad power of the Parliament’ to make laws drawing lines in electoral laws;¹⁵⁴ and Gleeson CJ observed that:

determining the electoral process in a representative democracy requires regulation of many matters, of major and minor significance, and the Constitution gives Parliament a wide range of choice.¹⁵⁵

A number of the judges went on to explain the broader rationales for such breadth of power, beyond what was spelt out in the text of the Constitution. According to the judges, such power was conferred to allow the evolution of representative government in Australia in the context where the concept of representative government encompassed a diversity of electoral systems.¹⁵⁶ Gleeson CJ and Kirby J emphasized, in particular, how the Constitution provided for such evolution *according to the changing views of the Australian community*. For Kirby J, ‘[t]he Constitution does not impose rigid limitations on the power of the Federal Parliament, in enacted electoral law, to respond to changing attitudes concerning the conduct of elections’.¹⁵⁷ In the spirit of what Isaacs J emphasized in *Smith and Judd*, Gleeson CJ said that:

Leaving it to Parliament, subject to certain fundamental requirements, to alter the electoral system in response to changing community standards of democracy is a democratic solution to the problem of reconciling the need for basic values with the requirement of flexibility.¹⁵⁸

For Kirby J, the need for (democratic) flexibility had to be seen in conjunction with the risk of ‘laws that permit temporary majorities to entrench themselves against effective democratic accountability’.¹⁵⁹ Given

‘the abuse of legislative power for partisan advantage is potentially a special risk in the case of electoral laws’,¹⁶⁰ Kirby J proposed a standard of ‘scrupulous care’ in relation to the provisions said to breach the express requirements in the Constitution (including those in sections 7 and 24).¹⁶¹ His Honour, however, considered the challenged provisions valid for most of the same reasons as the rest of Court, finding that the challenged provisions were not ‘measures protecting incumbent political parties, to which courts such as this Court must be alert in considering statutory amendments to electoral law’.¹⁶²

Was there an implied prohibition against discrimination in the sense of differential treatment arising from sections 7 and 24? None of the judges expressly found so. Gleeson CJ side-stepped this question by finding the challenged rules valid due to the breadth of power conferred upon the Commonwealth Parliament and the justifications underlying the rules.¹⁶³ McHugh J was prepared to accept that ‘a point could be reached where the electoral system is so discriminatory that the requirements of ss 7 and 24 are contravened’, but concluded that such a point was clearly not reached by the challenged rules.¹⁶⁴ Gummow and Hayne JJ said that ‘the invocation by the appellant of unreasonable discrimination between candidates does not advance the argument’ given that ‘differential treatment and unequal outcomes may be the product of a legislative distinction which is appropriate and adapted to the attainment of a proper objective’.¹⁶⁵ The judgment of Kirby J studiously avoids a sustained discussion of discrimination in an analysis grounded in proportionality.¹⁶⁶ As for Callinan J, ‘the challenged provisions cannot be said to involve any *unreasonable* discrimination’ as ‘[t]he Constitution itself contemplates discrimination’.¹⁶⁷ On the *assumption* that there was an implied prohibition against unreasonable discrimination arising from sections 7 and 24, Heydon J found that such a prohibition was not breached by the challenged rules.¹⁶⁸

4. Day v Australian Electoral Officer for the State of South Australia

Following the 2013 federal election, there were serious concerns that the group voting tickets under the Senate voting system allowed the ‘gaming’ of the system through elaborate preference deals, concerns fuelled in particular by the election of Ricky Muir, a Victorian candidate for the

Australian Motoring Enthusiast Party after having polled only 0.5 per cent of first preference votes cast in the State.¹⁶⁹ So strong were these concerns that the foreword to the Joint Standing Committee on Electoral Matters' report on Senate voting practices in that election began by stating that '[t]he 2013 federal election will long be remembered as a time when our system of Senate voting let voters down'.¹⁷⁰

These concerns culminated in the passage of the *Commonwealth Electoral Amendment Act 2016* (Cth). The Act abolished group voting tickets in line with a key recommendation of the Joint Committee on Electoral Matters¹⁷¹ and put in their place provisions requiring an elector to number sequentially at least six preferences (parties) 'above the line' on the ballot paper or to number sequentially at least twelve preferences (candidates) if s/he voted 'below the line' on the ballot paper. The latter provisions were challenged in *Day*. This challenge was dismissed by a unanimous High Court decision.

The decision of High Court was explicitly based on an emphasis on the breadth of legislative power over federal elections. Citing statements by McHugh J and Gummow and Hayne JJ in *Mulholland* to that effect,¹⁷² the Court said '[t]hose general considerations weigh against the plaintiffs' arguments in this case'.¹⁷³

The emphasis on the breadth can also be seen implicitly in the Court's rejection of the two key arguments made by the plaintiffs. The plaintiffs argued that the challenged provisions, by allowing for two alternative ways of voting (above the line and below the line), breached section 9 of the Constitution which conferred power on the Commonwealth Parliament to make laws 'prescribing *the method* of choosing senators' (emphasis added).¹⁷⁴ Rejecting this argument, the Court said:

'Method' is a constitutional term to be construed *broadly* allowing for more than one way of indicating choice within a single uniform system. What the plaintiffs contended for is a pointlessly formal constraint on parliamentary power to legislate in respect of Senate elections which has nothing to do with the purpose of national uniformity.¹⁷⁵

The other key argument made by the plaintiffs involved a submission that the requirement in section 7 of the Constitution that Senators be 'directly chosen by the people of the State' meant that candidates for the Senate should be elected 'without the intervention of any intermediary or third party'. It followed, according to the plaintiffs, that the challenged

provisions, by allowing electors to vote ‘above the line’ for candidates by reference to their political parties, breached this requirement.¹⁷⁶

The Court curtly dismissed these arguments: ‘A vote marked above the line is as much a vote for individual candidates as a vote below the line’.¹⁷⁷ Of importance here is the Court’s reference to the earlier decisions in *McKenzie*, *Abbotto*, *McClure*, and *Ditchburn*¹⁷⁸ which dismissed challenges to the Senate group voting system.¹⁷⁹

D. THE RIGHT TO VOTE

1. No Express Right to Vote

With one exception, the text of the Constitution does not provide a promising foothold for arguing that it contains an express right to vote.¹⁸⁰ Its various provisions signal the breadth of power conferred upon the Parliament over federal elections. More than this, the Constitution clearly contemplated the disenfranchisement of many residents in Australia. Section 24, which requires that ‘[t]he numbers of members chosen in the several States shall be in proportion to the respective numbers of their people’, is followed in quick succession by section 25, which openly acknowledges racial discrimination—it provided that if the law of any State disqualified persons of any race from voting for representatives of the more numerous House of the State Parliament, such persons shall not be counted for the purpose of section 24. Section 128, which deals with alterations of the Constitution through referenda, nodded towards female disenfranchisement by providing that ‘until the qualification of electors of members of the House of Representatives becomes uniform throughout the Commonwealth, only one-half the electors voting for and against the proposed law shall be counted in any State in which adult suffrage prevails’.

The one exception is section 41 which states the following:

No adult person who has or acquires a right to vote at elections for the more numerous House of the Parliament of a State shall, while the right continues, be prevented by any law of the Commonwealth from voting at elections from either House of the Parliament of the Commonwealth.

In *King v Jones*, the High Court unanimously concluded that ‘adult person’ in section 41 meant persons who had attained twenty one years of age.¹⁸¹ In part, this ruling was based on the meaning of ‘adult person’ at the time of federation.¹⁸² It was also grounded in the rejection of alternative interpretations: a definition based on ‘maturity’ was deemed too vague and uncertain,¹⁸³ while defining ‘adult person’ according to the State laws of majority was considered to run counter to the uniform Commonwealth franchise.¹⁸⁴

The case of *Sipka* considered a more fundamental question concerning the scope of section 41: did it extend to the right to vote in elections for the more numerous House of State Parliaments as acquired from time to time? By a majority (Murphy J dissenting), the High Court held that section 41 had a much more limited effect, and that it applied only up until the time when the federal franchise was established. With such a construction, the ‘practical effect of s. 41 is spent’.¹⁸⁵

The joint judgments of Gibbs CJ, Mason and Wilson JJ and that of Brennan, Deane and Dawson JJ are strongly similar. A key starting point for both judgments was that section 41 did not itself confer a right to vote because of the use of the word ‘prevented’. According to these judgments, the right to vote or ‘constitutional franchise’¹⁸⁶ protected by section 41 was, in fact, found in sections 8 and 30 of the Constitution, which provides that the qualification of electors for the Commonwealth Parliament shall be that as prescribed by State laws in relation to the more numerous House of the State Parliaments—but only ‘[u]ntil Parliament otherwise provides’. Once the Commonwealth Parliament provided for the federal franchise through the *Commonwealth Franchise Act 1902* (Cth), there was no right to vote to be protected by section 41.¹⁸⁷ Both joint judgments were also strongly influenced by ‘obvious considerations of policy’,¹⁸⁸ notably by what they saw as the imperative of a uniform franchise,¹⁸⁹ and for Gibbs CJ, Mason and Wilson JJ, the history of section 41.¹⁹⁰

2. An Implied Right to Vote

The High Court decision in *Sipka* foreclosed the possibility of an *express* right to vote under the Constitution. But did the Constitution provide for an *implied* right to vote, particularly, one implied from sections 7 and 24

requiring that the Senate and the House of Representatives be ‘directly chosen by the people’?

This was, in fact, a question dealt with by the judges in *McKinlay*, with a majority of the judges answering ‘no’. For Barwick CJ, section 24 did not guarantee universal adult suffrage because the provisions conferring power on the Commonwealth Parliament in relation to the franchise were not subject to section 24.¹⁹¹ For section 24 to provide such a guarantee, according to Gibbs J, this would require ‘the people’ to be read as ‘all the people’. In his Honour’s view, this would result in ‘a manifest absurdity’ as ‘it would mean that babes in arms, lunatics and criminals were entitled to vote’.¹⁹² Furthermore, Gibbs J drew attention to sections 25, 30, 41, and 128 of the Constitution, where ‘it was recognized that people might be constitutionally denied franchise on the ground of race, sex or lack of property’.¹⁹³ Mason J similarly highlighted sections 25 and 30 in concluding that ‘the Constitution does not guarantee or insist upon universal adult suffrage’.¹⁹⁴ As discussed earlier, Stephen J adopted a polymorphous understanding of representative democracy, which implied ‘adult suffrage, free of discrimination on the grounds of race, sex, property or educational qualification’ was not ‘in absolute form ... necessarily imported into the Constitution by the selection of representative democracy as the chosen mode of government for the nation’.¹⁹⁵

The other three judges, however, drew different conclusions. For Murphy J, ‘the silent operation of constitutional principles’ meant that disenfranchisement based on sex or property qualification would contravene section 24, as members of the House of Representatives could not then be considered as being ‘chosen by the people’.¹⁹⁶ The judgment of McTiernan and Jacobs JJ, which adopted an evolutionary approach to interpreting section 24, perhaps went the furthest. As noted earlier, this approach was based in part upon ‘the common understanding of the time on those who must be eligible to vote before a member can be described as chosen by the people of the Commonwealth’.¹⁹⁷ Elaborating on this, their Honours said that:

the long established universal adult suffrage may now be recognized as a fact and as a result it is doubtful whether, subject to the particular provision in s. 30, anything less than this could now be described as a choice by the people.¹⁹⁸

Conflicting dicta on whether sections 7 and 24 gave rise to an implied right to vote is also found in *McGinty*. Brennan CJ said that '[i]n view of the fact that the franchise has historically expanded in scope, it is at least arguable that the qualifications of age, sex, race and property which limited the franchise in earlier times could not now be reimposed so as to deprive a citizen of the right to vote'.¹⁹⁹ Dawson and McHugh JJ firmly rejected any such implied right. For Dawson J, 'the qualifications of electors are to be provided for by parliament under ss 8 and 30 and may amount to less than universal suffrage, however politically unacceptable that may be today'.²⁰⁰ McHugh J stated that '[t]he Constitution ... makes the federal Parliament the final arbiter on whether there should be *universal suffrage*, secret ballot, preferential or proportional voting or first past the post voting'.²⁰¹

The other three judges, Toohey, Gaudron and Gummow JJ, however, expressly adopted the evolutionary approach found in the joint judgment of McTiernan and Jacobs JJ in *McKinlay*, concluding that 'universal adult suffrage' was now a constitutional requirement.²⁰² As discussed earlier, this is an approach that emphasizes constraint based on a benign view of the legislative power in relation to federal elections. As will become clear in the following discussion, this is the approach that prevails in the decisions of *Roach* and *Rowe*.

2. *Roach v Electoral Commissioner*: A Constitutional Right to Vote

In *Roach v Electoral Commissioner*,²⁰³ the High Court, by a majority of four to two, concluded that there is a constitutional right to vote. The case involved a challenge to the constitutionality of the prisoner disenfranchisement provisions enacted by the *Electoral and Referendum Amendment (Electoral Integrity and Other Measures) Act 2006* (Cth) (2006 amendments). Prior to this enactment taking effect, and as a result of amendments made in 2004, prisoners serving a sentence of three years or more were disqualified from voting in federal elections (2004 amendments). The 2006 amendments disqualified all prisoners serving a sentence. Gleeson CJ, Gummow, Kirby and Crennan JJ (Hayne and Heydon JJ dissenting) found the 2006 amendments to be constitutionally invalid. The entire Court, however, found the 2004 amendments to be valid.

In the first instance, the judgment of Gleeson CJ acknowledges how the Constitution 'reflects a high level of acceptance of ... the notion of

sovereignty of Parliament in the scheme of government’, ‘[n]owhere ... more plainly illustrated in the extent to which the Constitution left it to Parliament to prescribe the form of our system of representative democracy’.²⁰⁴ And one result of legislative action was ‘universal adult suffrage’.²⁰⁵

The Chief Justice, however, went on to hold that Parliament could not now legislate to remove universal adult suffrage. Favourably quoting the dicta of McTiernan and Jacobs JJ in *McKinlay* on universal adult suffrage, Gleeson CJ concluded that ‘the words of ss 7 and 24, because of changed historical circumstances, including legislative history, have come to be a constitutional protection of the right to vote’.²⁰⁶

This meant that ‘disenfranchisement of any group of adult citizens on a basis that does not constitute a substantial reason for exclusion from such participation would not be consistent with choice by the people’.²⁰⁷ A substantial reason, according to Gleeson CJ, required ‘some rationale for the exception’—‘the definition of the excluded class or group would need to have a rational connection with the identification of community membership or with the capacity to exercise free choice’.²⁰⁸ Gleeson CJ considered that lack of citizenship could provide a substantial reason for exclusion, whereas his Honour thought it highly doubtful that adherence to a particular religion could furnish such a reason.²⁰⁹

Gleeson CJ consequently found the 2006 amendments to be invalid on the ground that they were more severe than section 44(ii) of the Constitution, which disqualified those serving a sentence of imprisonment of one year or more from being members of the Commonwealth Parliament,²¹⁰ and gave rise to ‘arbitrary’ consequences in the context of short-term prison sentences (those shorter than six months) given that imprisonment depended on availability and practicability of other sentencing options.²¹¹

The joint judgment of Gummow, Kirby and Crennan JJ reached broadly similar conclusions as those of Gleeson CJ, but through a different route. Like Gleeson CJ, their Honours identified the key constitutional question in relation to voter disqualification as to whether the disqualification was for a ‘substantial’ reason.²¹² They, however, elaborated that:

A reason will answer that description if it be reasonably appropriate and adapted to serve an end which is consistent or compatible with the maintenance of the constitutionally prescribed system of representative government.²¹³

Gummow, Kirby and Crennan JJ also did not place much emphasis on ‘changed historical circumstances’. The constitutional protection of the right to vote seems, according to their Honours, to stem from the centrality of voting in the Constitution—‘[v]oting in elections for the Parliament lies at the very heart of the system of government which the Constitution provides’.²¹⁴ For reasons similar to Gleeson CJ, the joint judgment of Gummow, Kirby and Crennan JJ also ruled the 2006 amendments to be invalid,²¹⁵ and the 2004 amendments, on the other hand, to be constitutionally valid.²¹⁶

Hayne J (with whom Heydon J agreed)²¹⁷ dissented, finding both the 2004 and 2006 amendments to be constitutionally valid. For his Honour, ‘the words “directly chosen by the people” are to be understood as an expression of generality, not as an expression of universality’,²¹⁸ because of the history of sections 7 and 24²¹⁹ and the provisions of the Constitution conferring power upon the Commonwealth Parliament in relation to the franchise.²²⁰ Hayne J further rejected references to ‘common understanding’ in interpreting ‘directly chosen by the people’ (as McTiernan and Jacobs JJ in *McKinlay* would have it) because of the ‘obvious difficulty’ of ascertaining such an understanding and, more fundamentally, because ‘[p]olitical acceptance and political acceptability’ should not determine the scope of legislative power.²²¹

3. *Rowe v Electoral Commissioner*: A Constitutional Right to Maximum Voting Participation?

In the case of *Roach*, it is only the judgment of Gleeson CJ that could plausibly be said to strongly reflect a perspective that emphasizes constraint on the legislative power in relation to federal elections based on a benign view of the power. In the case of *Rowe*, a majority of judges adopted this perspective, and went further in terms of the intensity of the constraint, by characterizing the power of the Commonwealth Parliament in relation to elections as purposive.²²²

Up until *Rowe*, there had been little support for the notion that the power of the Commonwealth Parliament in relation to federal elections is a purposive power. An exception is the judgment of Kirby J in *Mulholland*, where his Honour said that ‘the constitutional powers in issue are of a purposive character, namely powers afforded for the purpose of providing for the conduct of elections to the Federal Parliament’.²²³ Another exception is the judgment of Dawson J in *Langer v Commonwealth*, where his Honour considered that the power under section 31 (and section 51(xxxvi)) relating to elections for members of the House of Representatives ‘may properly be regarded as a purposive power and it is therefore open to test the validity of a law enacted in the purported exercise of that power by asking whether the law is reasonably and appropriately adapted to the achievement of an end which lies within power’.²²⁴ These instances aside, the High Court has, until *Rowe*, tended to treat the legislative power in relation to federal elections as a power over subject matter. The joint judgment of Gummow and Hayne JJ in *Mulholland* represented this dominant view when their Honours said that:

the view of Dawson J as to the ‘purposive’ nature of the head of legislative power was not adopted by the other members of the Court in *Langer* and should not now be accepted.²²⁵

This view was overturned in *Rowe* with French CJ, Gummow and Bell JJ characterizing the power of the Commonwealth Parliament in relation to federal elections as purposive.

The legislation challenged in *Rowe* concerned the closing of the electoral rolls after the writs for a federal election are issued. From 1983 to 2006, a statutory grace period of seven days after the issue of the writs applied to claims for enrolment or transfer of enrolment. On 17 July 2010, a federal election was announced to be held on 21 August 2010 with writs for the election issued on 19 July 2010. The *Electoral and Referendum Amendment (Electoral Integrity and Other Measures) Act 2006* (Cth) had the effect, in relation to the 2010 federal elections, of closing the rolls to new enrolments on the day the writs were issued and closing the rolls to transfers of enrolment three days after the writs were issued. These provisions were challenged on the basis that they breached the requirements in sections 7 and 24 that members of the Commonwealth Parliament be ‘directly chosen by the people’.²²⁶ This challenge succeeded with a majority of the Court

finding the challenged provisions invalid (French CJ, Gummow, Crennan and Bell JJ; Hayne, Heydon and Kiefel JJ dissenting).

All of the majority judges adopted the evolutionary approach to interpreting section 24 found in the joint judgment of McTiernan and Jacobs JJ in *McKinlay*. French CJ stated that:

The content of the constitutional concept of ‘chosen by the people’ has evolved since 1901 and is now informed by the universal adult-citizen franchise which is prescribed by Commonwealth law. The development of the franchise was authorised by ss 8 and 30 of the *Constitution*, read with s 51(xxxvi). Implicit in that authority was the possibility that the constitutional concept would acquire, as it did, a more democratic content than existed at Federation. That content, being constitutional in character, although it may be subject to adjustment from time to time, cannot now be diminished. In *Attorney-General (Cth); Ex rel McKinlay v The Commonwealth*, its evolution was linked in the judgment of McTiernan and Jacobs JJ to ‘the common understanding of the time on those who must be eligible to vote before a member can be described as chosen by the people of the Commonwealth’.²²⁷

French CJ further elaborated:

The term ‘common understanding’, as an indication of constitutional meaning in this context, is not to be equated to judicial understanding. Durable legislative development of the franchise is a more reliable touchstone. It reflects a persistent view by the elected representatives of the people of what the term ‘chosen by the people’ requires.²²⁸

The approach of French CJ strongly appears to be based on a linear (or Whiggish) understanding of representative democracy in the sense that representative democracy is seen to advance through various stages with a later stage being viewed as more developed than those preceding. This is reflected in his dicta that the constitutional concept of ‘chosen by the people’ ‘would acquire, as it did, a *more democratic content* than existed at Federation’ and that such content ‘being constitutional in character’ ‘cannot now be *diminished*’.

The judgment of French CJ further notable for its characterization of the legislative power in relation to federal elections as purposive. In a key passage, French CJ states:

Individual voting rights and the duties to enrol and vote are created by laws made under the *Constitution* in aid of the requirement of direct choice by the people. An electoral law which denies enrolment and therefore the right to vote to any of the people who are qualified to be enrolled can only be justified if it serves the purpose of the constitutional mandate. If the law’s adverse legal or practical effect upon the exercise of the entitlement to vote is disproportionate to its advancement of the constitutional mandate, then it may be antagonistic to that mandate. If that be so, it will be invalid.²²⁹

This meant that ‘legislators (must) attend to the mandate of “choice by the people” to which all electoral laws must respond’.²³⁰ According to French CJ, their failure to adequately do so in adopting a law which imposes a detriment disproportionate to its benefit meant that the law lacked a ‘substantial reason’ as understood by the majority in *Roach*—this would spell its invalidity even when ‘*its provisions nevertheless results in members of Parliament being “directly chosen by the people”*’.²³¹

Applying his approach, French CJ found the challenged provisions—‘an electoral law of a procedural or machinery character’²³²—to be unconstitutional: its detriment in terms of the exercise of vote was disproportionate to the benefits that were sought to be secured in terms of the integrity of the electoral process given there was no existing problem of electoral fraud and that the Australian Electoral Commission was able to deal effectively with the number of late enrolment claims.²³³

The joint judgment of Gummow and Bell JJ appears to take two tracks. On the one hand, Gummow and Bell JJ expressly state that ‘s 51(xxxvi) of the *Constitution* may be described as purposive in the sense that it is facilitative of the particular method of choice to be employed by qualified electors’.²³⁴

Other parts of their judgment, however, seem to follow what has been the prevailing approach of considering the power of the Commonwealth Parliament over federal elections, in particular the franchise, as being subject to the requirements in sections 7 and 24. Speaking on the legislative development of the franchise and methods of voting, their Honours stated that this ‘always was to be overseen by the imperative of *popular choice* found in ss 7 and 24 of the *Constitution*’.²³⁵ In another part of their judgment, their Honours adopted the portion of Gleeson CJ’s judgment where his Honour concludes that there is a ‘constitutional protection of the right to vote’ given ‘changed historical circumstances’, particularly, the ‘common understanding’.²³⁶ In addition, their Honours, in concurrence with Crennan J,²³⁷ state that ‘the term “chosen by the people” had come to signify the share of individual citizens in political power by the means of a democratic franchise’.²³⁸

Moreover, and consistent with viewing sections 7 and 24 as qualifying the power of the Commonwealth Parliament in relation to federal elections rather than supplying the (constitutional) purpose for such power, Gummow

and Bell JJ essentially apply *Roach* to the challenged provisions—‘[t]he requirements operate to achieve disqualification in the sense used in *Roach*’.²³⁹ For reasons similar to French CJ, their Honours found that these provisions lacked a ‘substantial reason’ and were, therefore, invalid.²⁴⁰ Crennan J’s judgment in this regard was broadly similar to that of Gummow and Bell JJ.²⁴¹

Hayne, Heydon and Kiefel JJ, dissented on two main grounds. First, they considered that the challenged provisions did not affect the franchise and hence, it was not appropriate to apply *Roach*.²⁴² Second, the challenge to the impugned provisions could only succeed if the Constitution required maximum participation of eligible voters, a premise that they rejected.²⁴³

E. CAMPAIGN FINANCE AND THE IMPLIED FREEDOM OF POLITICAL COMMUNICATION

The judgment of Murphy J in *McKinlay* is one which stresses constraint on the legislative power in relation to federal elections based on a sceptical view of such power. To his judgment can be added others in the decisions of the High Court dealing with challenges to campaign finance laws based on the implied freedom of political communication.²⁴⁴

The implied freedom is, of course, a constraint or limitation on legislative power over federal elections.²⁴⁵ More to the point of this chapter, it is a constraint that has been applied with explicitly sceptical views of this power when it comes to laws affecting the freedom. In the *Australian Capital Television* case, Mason CJ insisted on heightened scrutiny in this context:

the Court must scrutinise with scrupulous care restrictions affecting free communication in the conduct of elections for political office for it is in that area that the guarantee fulfils its primary purpose.²⁴⁶

Such heightened scrutiny is arguably connected with the sceptical view his Honour expressed in the following passage:

Experience has demonstrated on so many occasions in the past that, although freedom of communication may have some detrimental consequences for society, the manifest benefits it brings to an open society generally outweigh the detriments. All too often attempts to restrict the freedom in the name of some imagined necessity have tended to stifle public discussion and criticism of government. The Court should be astute not to accept at face value claims by the legislature and the Executive that freedom of communication will, unless curtailed, bring about corruption and distortion of the political process.²⁴⁷

In *McCloy v New South Wales*, Gageler J elaborated upon the sceptical view expressed by Mason CJ in *Australian Capital Television*. For Gageler J, restrictions on political communication in the conduct of elections for public office should involve ‘close scrutiny’ with the standard of justification being one of a ‘compelling justification’.²⁴⁸ This was because of:

The ever-present risk within the system of representative and responsible government established by Chs I and II of the *Constitution* ... that communication of information which is either unfavourable or uninteresting to those currently in a position to exercise legislative or executive power will, through design or oversight, be impeded by legislative or executive action to an extent which impairs the making of an informed electoral choice and therefore undermines the constitutive and constraining effect of electoral choice.²⁴⁹

For Gageler J:

The judicial power, insulated from the electoral process by the structural requirements of Ch III of the *Constitution*, is uniquely placed to protect against that systemic risk. Here, as elsewhere within our constitutional tradition, ‘the absolute independence of the judiciary is the bulwark of the constitution against encroachment whether by the legislature or by the executive’.²⁵⁰

Along with explicit scepticism of Mason CJ in *Australian Capital Television* and Gageler J in *McCloy* are also judgments that arguably reflect implicit scepticism of the exercise of legislative power when it comes to laws that provide for differential treatment in terms of the political communication. In a number of judgments, including those of Mason CJ in *Australian Capital Television* and Gageler J in *McCloy*,²⁵¹ there appears to be a presumptive stance against the constitutionality of such laws, laws that are said to discriminate. This is so with Nettle J’s judgment in *McCloy*²⁵² with his Honour requiring a ‘strong justification’ for such laws.²⁵³ It is also the case with the judgment of Keane J in *Unions NSW*²⁵⁴ and perhaps too with the plurality in that case through their emphasis on how the invalidated provisions were ‘selective’²⁵⁵ and ‘targeting’²⁵⁶ particular groups and individuals.

F. CONCLUSION

By analysing the constitutional law on electoral participation through a focus on the power of the Commonwealth Parliament over federal elections, this chapter has drawn out three different perspectives towards such power: an emphasis on the breadth of such power based on a benign view of its exercise; an emphasis on constraining this power based on a benign view of its exercise; and an emphasis on constraining this power based on a sceptical view of its exercise.

These perspectives clearly differ in terms of the scope they allow for legislative power in relation to federal elections. They also obviously differ in terms of how they view the impact of such power on Australia's democracy: the perspective emphasizing breadth based on the benign view of such power not only sees the exercise of such power as enhancing Australia's democracy²⁵⁷ but also considers the use of such power in itself as an exercise in popular sovereignty;²⁵⁸ by contrast, the perspective emphasizing constraint based on a sceptical view of such power sees the risk of the legislature subverting the democratic process, therefore rupturing the link between popular sovereignty and parliamentary supremacy.²⁵⁹

Beyond these (more) obvious differences, these perspectives adopt contrasting orientations in other crucial ways. The emphasis on breadth based on a benign view is grounded in a polymorphous understanding of representative government²⁶⁰ whereas the emphasis on constraint based on a benign view can be traced to a more linear understanding.²⁶¹ Another contrast concerns their orientation to changing community attitudes to the electoral system as expressed in legislative developments: judges emphasizing the breadth of legislative power over federal elections based on a benign view see these changes as a reason for maintaining legislative flexibility;²⁶² while those emphasizing constraint based on a benign view have leveraged upon these changes to impose constitutional restrictions on this power.²⁶³

A further contrast concerns the proper role of the judiciary in adjudicating constitutional questions concerning electoral laws. For some judges emphasizing the breadth of power based on a benign view, the political nature of these questions was a reason for restraint on the part of judiciary.²⁶⁴ Compare this with the position of those who emphasize

constraint based on a sceptical view: the *raison d'être* for judicial intervention—the risk of the legislature subverting the democratic process—means the judiciary will be necessarily deciding highly controversial political questions. And further compare these orientations with the perspective that emphasizes constraint based on a benign view where these questions seem to be treated as apolitical (a matter of common understanding) and therefore unproblematic in terms of the constitutional adjudication.

Given these profound differences, it is difficult to see how the three perspectives can be reconciled. Indeed, it is difficult to see the High Court even attempting to reconcile them as the three perspectives seem to be running on parallel tracks: the emphasis on the breadth of such power based on a benign view of its exercise mapping on the cases dealing with the electoral system generally; the emphasis on constraining this power based on a benign view of its exercise prevailing with the implied right to vote; and the emphasis on constraining this power based on a sceptical view of its exercise emerging from decisions dealing with the implied freedom and campaign finance.

The result would seem to be the fragmentation of the Australian constitutional law on electoral participation.

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¹ *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520, 559 (emphasis added). Another form of political participation contemplated by the Australian Constitution is participation in the amendment of the Constitution through the mechanism provided under s 128 of *Constitution of the Commonwealth of Australia*. This chapter does not examine this form of participation in detail.

² *Constitution of the Commonwealth of Australia*, ss 7, 9, 24.

³ *ibid* ss 7, 9, 24–26.

⁴ *ibid* ss 7, 29.

⁵ *ibid* ss 13, 28.

⁶ *ibid* ss 8, 30, 41.

⁷ *ibid* ss 16, 34.

⁸ *ibid* ss 43–46.

⁹ *ibid* s 47.

¹⁰ *ibid* s 24.

¹¹ *ibid* s 7.

¹² *ibid* s 20.

- ¹³ *ibid* s 13.
- ¹⁴ *ibid* ss 8, 30.
- ¹⁵ *ibid* ss 16, 34.
- ¹⁶ *ibid* ss 8, 30.
- ¹⁷ *ibid* s 8.
- ¹⁸ *ibid* s 9.
- ¹⁹ *ibid* s 27.
- ²⁰ *ibid* ss 7, 29.
- ²¹ *ibid* ss 8, 30.
- ²² *ibid* ss 16, 34.
- ²³ *ibid* s 47.
- ²⁴ *ibid* ss 10, 31.
- ²⁵ (1912) 15 CLR 355.
- ²⁶ (1926) 38 CLR 380.
- ²⁷ *Smith* (n 25).
- ²⁸ Graeme Orr, *The Law of Politics: Elections, Parties and Money in Australia* (Federation Press 2010).
- ²⁹ *Smith* (n 25) 360 (Barton J).
- ³⁰ *ibid* 362 (Isaacs J).
- ³¹ *ibid* 358.
- ³² *ibid* 360.
- ³³ *ibid* 362.
- ³⁴ *ibid*.
- ³⁵ *ibid* 363.
- ³⁶ *ibid*.
- ³⁷ *Judd* (n 26).
- ³⁸ Another issue in *Judd* (n 26) was one of statutory interpretation—whether the elector who did not vote because of his membership of the Socialist Labour Party prohibited him from voting as all the candidates supported capitalism. All the judges except Higgins J found there was not a ‘valid and sufficient reason’.
- ³⁹ *Judd* (n 26) 383. Higgins J concurred with the rest of the judges on the constitutional validity of the challenged provision: *ibid* 387.
- ⁴⁰ *ibid* 385.
- ⁴¹ *ibid* 390.
- ⁴² *ibid* 383.
- ⁴³ See text above accompanying (n 35)–(n 36).
- ⁴⁴ *Judd* (n 26) 385.
- ⁴⁵ *ibid* 386 (emphasis added).
- ⁴⁶ For Isaacs J, the connection between the scope of power conferred upon the Commonwealth Parliament and the system of representative government under the *Commonwealth Constitution* went beyond the field of federal elections. In *Federal Commissioner of Taxation v Munro* (1926) 38 CLR 153, 178, his Honour stated that ‘the Constitution is for the advancement of representative government’ after highlighting the ‘necessary constitutional means by which Parliament may in its discretion meet, and is at present accustomed to meet, the requirements of a progressive people’.

⁴⁷ *Judd* (n 26) 385.

⁴⁸ Harrison Moore, *The Constitution of the Commonwealth of Australia* (John Murray 1902).

⁴⁹ *ibid* 327.

⁵⁰ *ibid* 328.

⁵¹ *ibid* 328. See also *ibid* 106.

⁵² *ibid* 329.

⁵³ (1972) 127 CLR 665, 669.

⁵⁴ *Attorney-General (Cth); Ex rel. McKinlay v Commonwealth* (1975) 135 CLR 1.

⁵⁵ A successful challenge was made to ss 3, 4, and 12 of the *Representation Act 1905–1975* (Cth) on the basis they breached the requirement in s 24 of the *Constitution* that number of members of the House of Representatives ‘shall be in proportion to the respective numbers of their people’.

⁵⁶ *McKinlay* (n 54) 18–19.

⁵⁷ *ibid* 19.

⁵⁸ *ibid* 24.

⁵⁹ *ibid* 25–26.

⁶⁰ *ibid* 21.

⁶¹ *ibid*.

⁶² *ibid* 17.

⁶³ See text above accompanying (n 25), (n 26) and (n 53).

⁶⁴ *McKinlay* (n 54) 44–45.

⁶⁵ *ibid* 44.

⁶⁶ *ibid* 45.

⁶⁷ *ibid*.

⁶⁸ *ibid* 46.

⁶⁹ *ibid* 61.

⁷⁰ *ibid*.

⁷¹ *ibid* 56.

⁷² *ibid*.

⁷³ *ibid* 57.

⁷⁴ *ibid*.

⁷⁵ *ibid*.

⁷⁶ *ibid*.

⁷⁷ *ibid* 58.

⁷⁸ *ibid*.

⁷⁹ *ibid* 36.

⁸⁰ *ibid* 35.

⁸¹ *ibid* 36–37.

⁸² *ibid* 36.

⁸³ *ibid* 64.

⁸⁴ *ibid* 65.

⁸⁵ *ibid* 68–69.

⁸⁶ *ibid* 71.

⁸⁷ *ibid*.

⁸⁸ *ibid.*

⁸⁹ *ibid.*

⁹⁰ *ibid* 72.

⁹¹ *ibid.*

⁹² *Judd* (n 26). A recent challenge to compulsory voting was unsuccessful before the South Australian Supreme Court: *Holmdahl v Australian Electoral Commission (No 2)* [2012] SASFC 110. Special leave was refused on appeal to the High Court: *Holmdahl v Australian Electoral Commission* [2013] HCATrans 072. See also *Faderson v Bridger* (1971) 126 CLR 271.

⁹³ *McKenzie v Commonwealth* [1984] HCA 75, (1984) 59 ALJR 190, 57 ALR 747; *Abbotto v Australian Electoral Commission* (1997) 144 ALR 352; *McClure v Australian Electoral Commission* [1999] HCA 31, (1999) 163 ALR 734; *Ditchburn v Australian Electoral Officer (Qld)* [1999] HCA 40, (1999) 165 ALR 147 (22 July 1999).

⁹⁴ *Langer v Commonwealth* (1995–96) 186 CLR 302; *Ditchburn* (n 93).

⁹⁵ *Mulholland v Australian Electoral Commission* (2004) 220 CLR 181.

⁹⁶ *McKinlay* (n 54); *McGinty v Western Australia* (1995–96) 186 CLR 140.

⁹⁷ *Day v Australian Electoral Officer for the State of South Australia* [2016] HCA 20.

⁹⁸ See discussion in text accompanying (n 26).

⁹⁹ *Langer* (n 94). The decision in *Langer* was applied in *Muldowney v South Australia* (1996) 186 CLR 352.

¹⁰⁰ Another aspect of *Langer* concerned whether the implied freedom of political communication was breached by s 329A of the *Commonwealth Electoral Act 1918* (Cth) which prohibited publishing material with the intention of encouraging persons to vote other than in accordance with section 240 said to breach this freedom. By a majority (Dawson J dissenting), s 329A was found to be valid. This aspect of *Langer* is discussed in Chapter 39 ‘Expression’.

¹⁰¹ *Langer* (n 94) 316.

¹⁰² *ibid* 317.

¹⁰³ *ibid.*

¹⁰⁴ *ibid* 333.

¹⁰⁵ *ibid* 323.

¹⁰⁶ *ibid* 343.

¹⁰⁷ *ibid* 340.

¹⁰⁸ *ibid* 341.

¹⁰⁹ *ibid* 349.

¹¹⁰ *Ditchburn* (n 93).

¹¹¹ *ibid* [11].

¹¹² *McGinty* (n 96). For discussion of *McGinty*, see George Williams, ‘Sounding the Core of Representative Democracy: Implied Freedoms and Electoral Reform’ (1995–96) 20 Melbourne University Law Review 848; Greg Carne, ‘Representing Democracy or Reinforcing Inequality: Electoral Distribution and *McGinty v Western Australia*’ (1997) 25 Federal Law Review 351. See also Peter Creighton, ‘Apportioning Electoral Districts in a Representative Democracy’ (1994) 24 University of Western Australia Law Review 78 which provides an analysis of the *McGinty* proceedings.

¹¹³ See text above accompanying (n 54)–(n 113).

¹¹⁴ *Nationwide News Pty Ltd v Wills* (1992) 177 CLR 1.

¹¹⁵ *Australian Capital Television Pty Ltd and New South Wales v The Commonwealth* (1992) 177 CLR 106.

¹¹⁶ *Theophanous v Herald & Weekly Times Ltd* (1994) 182 CLR 104.

¹¹⁷ *Stephens v West Australian Newspapers Ltd* (1994) 182 CLR 211.

¹¹⁸ *McGinty* (n 96) 143.

¹¹⁹ *ibid* 175–76 (Brennan CJ), 189 (Dawson J), 250–51 (McHugh J), 289–94 (Gummow J).

¹²⁰ *ibid* 210–16 (Toohey J), 216 (Gaudron J).

¹²¹ *ibid* 168 (Brennan CJ), 182–83 (Dawson J), 231 (McHugh J), 284–85 (Gummow J). The emphasis prevailed in the unanimous High Court decision in *Lange* where it was said that ‘(s)ince *McGinty* it has been clear, if it was not clear before, that the Constitution gives effect to the institution of “representative government” only to the extent that the text and structure of the Constitution establish it’: *Lange* (n 1) 566–67.

¹²² *McGinty* (n 96) 182.

¹²³ *ibid* 183.

¹²⁴ *ibid* 188–89.

¹²⁵ *ibid* 182.

¹²⁶ *ibid* 183.

¹²⁷ *ibid*.

¹²⁸ *ibid* 186.

¹²⁹ *ibid* 236.

¹³⁰ *ibid* 286.

¹³¹ *ibid* 280–81 (footnotes omitted).

¹³² *ibid* 279.

¹³³ *ibid* 279–80, quoting G S Reid and Martyn Forrest, *Australia’s Commonwealth Parliament 1901-1988: Ten Perspectives* (Melbourne UP 1989) 87.

¹³⁴ *McGinty* (n 96) 269.

¹³⁵ *ibid* 270.

¹³⁶ *ibid* 216.

¹³⁷ *ibid* 204.

¹³⁸ *ibid* 203.

¹³⁹ *ibid* 200.

¹⁴⁰ *ibid* 201.

¹⁴¹ *ibid* 202.

¹⁴² *ibid* 205.

¹⁴³ *McKenzie* (n 93).

¹⁴⁴ *Abbotto* (n 93).

¹⁴⁵ *McClure* (n 93).

¹⁴⁶ *McKenzie* (n 93) [5].

¹⁴⁷ *ibid* [7].

¹⁴⁸ *ibid* [8].

¹⁴⁹ (2004) 220 CLR 181.

¹⁵⁰ Another issue concerned the implied freedom of political communication which is dealt with in Chapter 39 ‘Expression’.

¹⁵¹ *Mulholland* (n 149) 230.

¹⁵² *ibid* 192 (Gleeson CJ), 214 (McHugh J), 239 (Gummow and Hayne JJ), 271–72 (Kirby J), 296–97 (Callinan J), 302–303 (Heydon J).

¹⁵³ *ibid* 260.

¹⁵⁴ *ibid* 296.

¹⁵⁵ *ibid* 194–95.

¹⁵⁶ *ibid* 189 (Gleeson CJ), 213–14 (McHugh J), 237 (Gummow and Hayne JJ), 254 (Kirby J).

¹⁵⁷ *ibid* 254–55.

¹⁵⁸ *ibid* 189.

¹⁵⁹ *ibid* 257 citing Lawrence Tribe who is also cited by Gummow and Hayne JJ: *ibid* 238. See also Kirby J's approach in *Attorney-General (WA) v Marquet* (2003) 217 CLR 545.

¹⁶⁰ *Mulholland* (n 149) 261–62.

¹⁶¹ *ibid* 261.

¹⁶² *ibid* 272.

¹⁶³ *ibid* 194–95.

¹⁶⁴ *ibid* 217.

¹⁶⁵ *ibid* 234.

¹⁶⁶ *ibid* 268–73.

¹⁶⁷ *ibid* 296.

¹⁶⁸ *ibid* 302.

¹⁶⁹ See generally Antony Green, 'Is it Time for a Fundamental Review of the Senate's Electoral System?' *Papers on Parliament* No 62, October 2014; Michael Maley, 'Senate Electoral Reform' on AUSPUBLAW (29 September 2015) <<https://auspublaw.org/2015/09/senate-electoral-reform/>> accessed 26 September 2017.

¹⁷⁰ Joint Standing Committee on Electoral Matters, *Interim Report on the Inquiry into the Conduct of the 2013 Federal Election: Senate Voting Practices* (2014) v.

¹⁷¹ *ibid* xvii (Recommendation 2).

¹⁷² *Day v Australian Electoral Officer for the State of South Australia* [2016] HCA 20 (French CJ, Kiefel, Bell, Gageler, Keane, Nettle and Gordon JJ, 13 May 2016) [19].

¹⁷³ *ibid* [20].

¹⁷⁴ *ibid* [38].

¹⁷⁵ *ibid* [44] (emphasis added).

¹⁷⁶ *ibid* [46]–[47].

¹⁷⁷ *ibid* [48].

¹⁷⁸ See text above accompanying (n 110), (n 143)–(n 145).

¹⁷⁹ *Day* (n 17 (French CJ, Kiefel, Bell, Gageler, Keane, Nettle and Gordon JJ) [23]–[24].

¹⁸⁰ On the right to vote more generally, see Adrian Brooks, 'A Paragon of Democratic Virtues? The Development of the Commonwealth Franchise' (1993) 12 *University of Tasmania Law Review* 208; Jennifer Norberry, 'The Evolution of the Commonwealth Franchise—Tales of Inclusion and Exclusion' in Graeme Orr, Brian Mercurio, and George Williams (eds), *Realising Democracy: Electoral Law in Australia* (Federation Press 2003); Bryan Mercurio and George Williams, 'The Australian Diaspora and the Right to Vote' (2004–05) 32 *University of Western Australia Law Review* 1; Graeme Orr, *The Law of Politics: Elections, Parties and Money in Australia* (2010) ch 3.

¹⁸¹ *King v Jones* (1972) 128 CLR 221.

¹⁸² *ibid* 229–34, 239 (Barwick CJ), 245–48 (Menzies J), 261–62 (Gibbs J), 269–70 (Stephen J).

¹⁸³ *ibid* 237–39 (Barwick CJ), 244 (McTiernan J), 254–55 (Walsh J), 262 (Gibbs J), 271 (Stephen J).

¹⁸⁴ *ibid* 240–41 (Barwick CJ), 251–52 (Walsh J), 265 (Gibbs J), 271 (Stephen J).

¹⁸⁵ *R v Pearson; Ex parte Sipka* (1983) 152 CLR 254, 280 (Brennan, Deane and Dawson JJ). For critiques of *Sipka*, see Anne Twomey, ‘The Federal Constitutional Right to Vote in Australia’ (2000) 28(1) Federal Law Review 125; Jonathan Crowe and Peta Stephenson, ‘An Express Constitutional Right to Vote? The Case for Reviving Section 41?’ (2014) 26(2) Sydney Law Review 205.

¹⁸⁶ *Sipka* (n 185) 278 (Brennan, Deane and Dawson JJ).

¹⁸⁷ *ibid* 260–1 (Gibbs CJ, Mason and Wilson JJ), 278–79 (Brennan, Deane and Dawson JJ).

¹⁸⁸ *ibid* 261 (Gibbs CJ, Mason and Wilson JJ).

¹⁸⁹ *ibid* 261 (Gibbs CJ, Mason and Wilson JJ), 279 (Brennan, Deane and Dawson JJ).

¹⁹⁰ *ibid* 261–62 (Gibbs CJ, Mason and Wilson JJ).

¹⁹¹ *McKinlay* (n 54) 18.

¹⁹² *ibid* 44.

¹⁹³ *ibid*.

¹⁹⁴ *ibid* 62.

¹⁹⁵ *ibid* 56.

¹⁹⁶ *ibid* 69.

¹⁹⁷ *ibid* 36.

¹⁹⁸ *ibid*.

¹⁹⁹ *McGinty* (n 96) 166–67.

²⁰⁰ *ibid* 183.

²⁰¹ *ibid* 244 (emphasis added).

²⁰² *ibid* 201 (Toohey J), 221 (Gaudron J), 286 (Gummow J).

²⁰³ (2007) 233 CLR 162. For discussion of *Roach*, see Anthony Gray, ‘The Guaranteed Right to Vote in Australia’ (2007) 7(2) Queensland University of Technology Law and Justice Journal 178; Cornelia Koch and Lisa Hill, ‘The Ballot Behind Bars after *Roach*: Why Disenfranchise Prisoners?’ (2008) 33 Alternative Law Journal 220; Graeme Orr and George Williams, ‘The People’s Choice: The Prisoner Franchise and the Constitutional Protection of Voting Rights in Australia’ (2009) 8 Election Law Journal: Rules, Politics and Policy 123.

²⁰⁴ *Roach* (n 203) 173.

²⁰⁵ *ibid*.

²⁰⁶ *ibid* 174.

²⁰⁷ *ibid*.

²⁰⁸ *ibid*.

²⁰⁹ *ibid*.

²¹⁰ *ibid* 180.

²¹¹ *ibid* 181.

²¹² *ibid* 199.

²¹³ *ibid*.

²¹⁴ *ibid* 198.

²¹⁵ *ibid* 200–02.

²¹⁶ *ibid* 203–04.

²¹⁷ *ibid* 223.

²¹⁸ *ibid* 206.

²¹⁹ *ibid* 210.

²²⁰ *ibid* 211.

²²¹ *ibid* 219.

²²² For discussion of *Rowe*, see Ruth Greenwood, ‘A Progressive Court and a balancing test: *Rowe v Electoral Commissioner*’ (2010) 14 *University of Western Sydney Law Review* 119; Graeme Orr, ‘The Voting Rights Ratchet’ (2011) 22 *Public Law Review* 83; Anne Twomey, ‘*Rowe v Electoral Commissioner*—Evolution or Creationism?’ [2012] *University of Queensland Law Journal* 181; James Allan, ‘The Three ‘R’s of Recent Australian Judicial Activism: Roach, Rowe and (no) “Riginalism” ’ (2012) 36 *Melbourne University Law Review* 743.

²²³ *Mulholland* (n 149) 267.

²²⁴ *Langer* (n 94) 325.

²²⁵ *Mulholland* (n 149) 238–39.

²²⁶ *Rowe v Electoral Commissioner* (2010) 243 CLR 1, 1.

²²⁷ *ibid* 18 (footnotes omitted).

²²⁸ *ibid*.

²²⁹ *ibid* 12.

²³⁰ *ibid* 19.

²³¹ *ibid* 21 (emphasis added).

²³² *ibid* 20.

²³³ *ibid* 38–39.

²³⁴ *ibid* 60–61.

²³⁵ *ibid* 47 (emphasis original).

²³⁶ *ibid* 48.

²³⁷ *ibid* 117.

²³⁸ *ibid* 47.

²³⁹ *ibid* 57.

²⁴⁰ *ibid* 61.

²⁴¹ *ibid* 119–21.

²⁴² *ibid* 73, 77 (Hayne J), 94 (Heydon J).

²⁴³ *ibid* 73–76 (Hayne J), 128–31 (Kiefel J).

²⁴⁴ A full treatment of these cases is found in Chapter 39 ‘Expression’. This section focuses on how some of the judgments in these cases reflect an emphasis on constraining legislative power in relation to federal elections based on a sceptical view of this power. On campaign finance laws more generally, see Joo-Cheong Tham, *Money and Politics: The Democracy We Can’t Afford* (University of New South Wales Press 2010); Orr, *The Law of Politics* (n 28) ch 11.

²⁴⁵ *Lange* (n 1) 560

²⁴⁶ *Australian Capital Television* (n 115) 144.

²⁴⁷ *ibid* 145.

²⁴⁸ (2005) 257 CLR 178, 239 [153].

²⁴⁹ *ibid* 227 [115].

²⁵⁰ *ibid* 227–28 [116].

²⁵¹ *ibid* 233–34 [136]–[137].

²⁵² Ibid 259 [222], 262 [235]–[236], 265 [244], 267–68 [250]–[251], 270 [257], 271–72 [262]–[266], 273–74 [271].

²⁵³ *ibid* 259 [222].

²⁵⁴ *Unions NSW v NSW* (2013) 252 CLR 530, 578.

²⁵⁵ *ibid* 558.

²⁵⁶ *ibid* 561.

²⁵⁷ See text accompanying (n 59).

²⁵⁸ See text accompanying (n 34)–(n 36), (n 43)–(n 46), (n 157)–(n 158).

²⁵⁹ See text accompanying (n 34)–(n 35), (n 160)–(n 161), (247), (249).

²⁶⁰ See text accompanying (n 72)–(n 75), (127).

²⁶¹ See text accompanying (n 227)–(n 228).

²⁶² See text accompanying (n 128), (n 131).

²⁶³ See text accompanying (n 82), (n 202), (n 206), (n 227)–(n 228), (n 236).

²⁶⁴ See text accompanying (n 125).

CHAPTER 41

PROPERTY

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A. INTRODUCTION

THE protection of private property from arbitrary confiscation is canonically cited as among the few examples of an express rights guarantee found in the Australian Constitution.¹ However, to call the constitutional protection afforded to property an ‘express right’ is somewhat misleading. This has to do with the highly unconventional formulation of Australia’s expropriation clause as a conferral of legislative power. Whereas most expropriation clauses in written constitutions are listed among other rights provisions, the Australian expropriation clause is listed among other grants of legislative power in section 51 of the Constitution. Paragraph (xxxi) of that section provides that:

The Parliament shall ... have power to make laws ... with respect to ... the acquisition of property on just terms from any State or person for any purpose in respect of which the Parliament has power to make laws.

Notwithstanding this formulation, the relevant qualification imposed on this grant of legislative power—namely, the requirement that the acquisition of property be ‘on just terms’—has long been understood as affording general constitutional protection to private property rights. The qualification is said to ‘abstract’ the power to acquire property from other grants of legislative power, meaning that insofar as laws that fall under other heads of legislative power acquire property, they too must do so ‘on just terms’.² In this regard, section 51(xxix) is functionally equivalent to more conventional expropriation clauses found in written constitutions with bills of rights.

Even so, it is perhaps more accurate to refer to section 51(xxxi) as an ‘implied guarantee’ rather than an express right.³

In exploring the parameters of the constitutional protection of private property rights in Australia, a central theme of this chapter will be that the unique formulation of section 51(xxxi) has informed the High Court’s approach to its interpretation. In particular, the chapter will suggest that there are unresolved tensions between the status of section 51(xxxi) as a legislative power-conferring provision and its status as a constitutional guarantee. These tensions are most evident in the High Court’s regulatory expropriations jurisprudence: cases where the Court must determine whether a law that does not have the expropriation of property as its object nevertheless amounts to an ‘acquisition’ within the meaning of section 51(xxxi), thereby enlivening the ‘on just terms’ requirement. Despite the High Court’s insistence that section 51(xxxi) is best understood as a constitutional guarantee and not a supplementary grant of legislative power, the Court has tackled this key interpretive question by using the same approach used to determine whether a law falls within a grant of legislative power. Issues concerning the purposes and values that underlie the constitutional protection afforded to property rights have been avoided in favour of an approach that seeks to define the scope of constitutional protection afforded to property based on a metaphysical distinction between ‘acquisitions’ and ‘mere deprivations’. It will be suggested that these tensions ultimately betray a deeper ambivalence about the place of rights in Australian constitutionalism.

B. THE INTERPRETIVE QUESTIONS PRESENTED

It will be helpful to begin by briefly describing the central interpretive issues presented by section 51(xxxi), which concern the scope of constitutional protection afforded to private property rights. Section 51(xxxi) is a general limitation on Commonwealth legislative power, including the power to make laws for the Territories.⁴ It does not apply to the exercise of Commonwealth executive power.⁵ It also does not apply directly to the States, although it does prohibit the Commonwealth from making a grant of financial assistance to a State with a condition that would require the State to acquire property on unjust terms.⁶

Within this sphere of operation, there are four interpretive questions presented by the text of section 51(xxxi). The first two questions go to the question of when the expropriations clause is engaged:

- (1) What interests are constitutionally protected 'property'? (the 'property question')
- (2) What constitutes an 'acquisition' of property? (the 'acquisition question')

The second two questions go to the question of when an expropriation is legitimate, and arise only when the expropriations clause is engaged:

- (3) What limitations are there to the purposes for which property may be acquired? (the 'purposes question')
- (4) What does 'on just terms' require? (the 'just terms question')

The acquisitions question has by far proven the most contentious and is the interpretive issue that has occupied most of the High Court's attention. It will be suggested that one reason that the acquisitions question is so vexed has to do with the Court's approach to the 'property question', where 'property' has been given an extremely capacious interpretation. Before turning to these definitional issues, however, I will briefly comment on the second two questions.

1. The Purposes Question

The question of legitimate purposes is an issue that may be contentious in cases where there is a direct confiscation of property (eg, where the Commonwealth takes title to land through the exercise of its powers of eminent domain). In cases of indirect acquisition, where the object of the law is not to acquire property but some regulatory objective, the issue does not strictly speaking arise. That is because where the object of the law is to pursue some regulatory objective there will always be a preliminary question about whether the law falls under an enumerated grant of Commonwealth legislative power: that is, the law may be invalid for want of legislative power, independently of the question of whether the law is invalid because it acquires property on otherwise than just terms. In such cases the issue is not whether the purpose of the acquisition is valid, but whether there is an acquisition at all.

Where the object of the law is to acquire property, however, there is a distinct question about whether the purpose of the acquisition is valid.

Section 51(xxxi) requires that acquisition be for a ‘purpose in respect of which the Parliament has power to make laws’. This can be compared with other expropriation clauses, which not uncommonly require that property be expropriated for ‘the public good’ or ‘in the public interest’.⁷ Such requirements suggest that the state could not simply acquire property in order to transfer it to another person for his or her own private benefit. Although this appears to be an important justiciable limitation on the power to expropriate property that requires courts to investigate the likely public benefit of the expropriation, this has sometimes been doubted on the basis that courts are ill-suited for such inquiries and will avoid them where possible. For instance, even the ‘public use’ requirement under the United States Constitution,⁸ which is generally thought to be exceptional in its wide protection of private property rights, has been interpreted as co-extensive with the scope of the State’s legislative powers.⁹ In practice, then, generally worded ‘public purpose’ requirements may not impose meaningful limitations on the power to expropriate property.

The same is largely true of the purposes requirement under section 51(xxxi), but for a different reason. In principle, the requirement is an important justiciable limitation on the Commonwealth’s power to acquire property, given the limited, enumerated purposes for which Parliament can make laws. In practice, however, the broad construction given to grants of Commonwealth legislative power and the principle of dual-characterization—whereby a law whose predominant subject matter does not form a grant of legislative power can be valid so long as it can also be characterized as a law with respect to a grant of legislative power¹⁰—suggest that the purposes requirement is unlikely to be a significant limitation on Commonwealth power to compulsorily acquire property. For example, Parliament does not have the power to legislate with respect to the environment. However, Parliament does have the power to implement treaties, and thus could compulsorily acquire land for the purpose of giving effect to a treaty obligation to protect the environment.¹¹

2. The just terms question

The phrase ‘on just terms’ has been construed rather narrowly as meaning ‘with compensation’. Phrases such as ‘fair compensation’, ‘just compensation’, or ‘quid pro quo’ are often used interchangeably with, or

even in place of, ‘just terms’.¹² Debates about the meaning of ‘just terms’ have thus primarily concerned the measure of compensation required, and in particular under what circumstances departures from market value are constitutionally valid or even mandated.¹³ For instance, it has been debated whether the public interest ought to be taken into account when determining compensation.¹⁴ It has also been recognized that monetary compensation may be inadequate in some cases, particularly where the property acquired has significant social, cultural, or even spiritual value, although this matter has yet to be squarely addressed or resolved.¹⁵

Although the meaning of the phrase ‘on just terms’ will not be explored here, it should be noted that ‘with compensation’ is not the only available interpretation.¹⁶ For instance, the requirement of ‘just terms’ could be interpreted more broadly as a requirement of ‘fair dealing’. There is some evidence that the framers selected the phrase ‘just terms’ in order to incorporate requirements of fair dealing or due process that go beyond the payment of compensation.¹⁷ There is also some judicial support in favour of this broader construction.¹⁸ Were this broader construction adopted, the phrase ‘on just terms’ could incorporate additional requirements beyond the payment of adequate compensation. Moreover, just terms analysis could even implicate the question of whether compensation is required at all in circumstances where the acquisition otherwise meets the requirements of fair dealing.¹⁹ To date, however, there has been ‘little judicial elaboration of what the phrase means’.²⁰

3. The Definitional Questions: What Constitutes an ‘Acquisition of Property’?

Section 51(xxxi) analysis is thus focused primarily on determining whether there is an acquisition of property: if the law effects an ‘acquisition of property’, then the payment of compensation is necessarily required. The most contentious issue concerning the interpretation of section 51(xxxi) occurs where legislation that does not have the acquisition property as its object nevertheless appears to have that practical effect, as an indirect consequence of some otherwise legitimate regulatory objective. I refer to such cases as ‘regulatory expropriation’ cases. When do such laws amount to an ‘acquisition of property’ for the purposes of section 51(xxxi)?

To appreciate the nature of this interpretive problem, it is first necessary to say something about how the High Court has approached the property question and the acquisition question. The Court's approach to these two definitional questions has been guided by the 'now well established' proposition that 's 51(xxxi) enjoys the status of a constitutional guarantee'.²¹ From the proposition that section 51(xxxi) has the status of a constitutional guarantee, it is thought to follow that the provision must be construed liberally, by giving a broad interpretation both to 'property' and to 'acquisition'.²²

As a result, 'property' for section 51(xxxi) purposes includes an extremely wide description of interests, encompassing any interest in relation to the use or control of a 'thing', whether tangible or intangible, and however 'innominate' or 'anomalous'.²³ This includes interests that would not meet the technical description of 'property' in either law or equity, such as choses in action or payments of money.²⁴ Moreover, because section 51(xxxi) does not apply to the States, which are the source of most real property and land use legislation, the property interests at stake in regulatory expropriations cases infrequently involve land. Challenges to laws that alter entitlements under statutory benefit or payment schemes are far more common than challenges to land use regulation.²⁵ The constitutional description of property in Australia is thus highly unusual from a comparative perspective, where challenges to land use regulation are mainstay.

'Acquisition' has received a broad interpretation as well. The relevant property interest 'acquired' need not be received by the Commonwealth but could be received by a third party.²⁶ Moreover, the interest received need not 'correspond precisely' with the interest taken,²⁷ and may be 'slight' or 'insubstantial' in comparison.²⁸ Finally, the receipt of the interest can be indirect, in the sense that it is the effect of a law that has some non-confiscatory purpose.²⁹ Recognition that the indirect receipt of a property interest can amount to an acquisition is, of course, recognition of the possibility of regulatory expropriations engaging section 51(xxxi). I now turn to how the High Court has approached this issue.

C. DEFINING THE SCOPE OF ‘ACQUISITIONS’: THE PROBLEM OF REGULATORY EXPROPRIATIONS

We are now in a position to appreciate why the problem of regulatory expropriations presents the most difficult question concerning the interpretation of section 51(xxxi). Due to the breadth of the interpretation of ‘property’ and ‘acquisition’, it is evident that many regulatory laws impact rights and obligations in a way that could plausibly be described as effecting an ‘acquisition of property’.³⁰ However, it is clearly both undesirable and implausible to hold that all such laws require the payment of compensation. To do so would make the Commonwealth’s otherwise plenary grant of legislative power within the subject matters granted to it unduly narrow, a result that seems inconsistent with the Constitution’s design.³¹ On the other hand, it would clearly also be unacceptable if the Commonwealth could evade its constitutional obligation to pay compensation for the acquisition of property simply by enacting regulatory legislation that accomplishes the same objective of a direct acquisition: for instance, by mandating that certain property only be used in the service of a particular Commonwealth purpose. When should the Commonwealth have to pay compensation for the expropriative consequences of its regulatory activities and when should it not? This section will examine how the High Court has approached this interpretive problem.

1. Characterization Analysis vs Rights Analysis

The problem of regulatory expropriations is an inescapable and often times intractable issue encountered by any constitutional system that protects private property rights from expropriation. Indeed cognizance of the problem of regulatory expropriations has led some countries to exclude the protection of property from arbitrary confiscation from their written constitution,³² and the inability to resolve the problem has led others to repeal their expropriation clauses.³³ From this broader comparative perspective, the Australian approach to the problem is distinctive in that it reflects a deep and unresolved ambivalence about the status of section 51(xxxi) as a constitutional guarantee, as opposed to a limited conferral of legislative power.

While accepting that section 51(xxxi) is a constitutional guarantee, the High Court has simultaneously accepted that determining when regulatory expropriations of property require compensation is an interpretive problem that should be approached through ‘characterization’. Characterization is a well-established method of analysis in Australian constitutional law that is used to determine whether a Commonwealth law is authorized by a grant of legislative power. Using this method, the Court’s approach to regulatory expropriations is to determine whether the law in question is a law ‘with respect to’ the subject matter of the acquisition of property, or whether it is a law ‘with respect to’ some other subject matter that forms a grant of legislative power.³⁴ In the context of section 51(xxxi), this has been described as the search for the ‘sole or dominant character’ of the law.³⁵ In this respect the approach to section 51(xxxi) appears to be much stricter than ordinary characterization analysis, and it is often thought to be ‘an exception to the general principle that a law can bear more than one character for the purposes of s 51’.³⁶ Either a law is an acquisition of property or it is not. The central analysis in many section 51(xxxi) cases thus concerns whether a law that appears to effect an acquisition of property is nevertheless *better described* as incidental to the subject matter of another grant of legislative power.

From a comparative perspective, this approach is highly unusual. Determining whether a law is inconsistent with a constitutional guarantee is a task that is ordinarily associated with constitutional rights analysis. Constitutional rights analysis performs two distinct but closely interrelated tasks. First, constitutional rights analysis must give ‘content’ to the constitutional guarantee. This is typically accomplished by articulating the set of *values* served by the interest such that it is the subject of constitutional protection. Secondly, constitutional rights analysis must define the ‘scope’ of the constitutional guarantee by articulating what constitute *reasonable limitations* on its enjoyment. This is typically accomplished by prescribing a method for evaluating and balancing competing values, such as proportionality. By contrast, the task of characterization analysis is to determine whether the law in question meets the objective description of an ‘acquisition’. Values are not expressly articulated,³⁷ and considerations of ‘justice’, ‘fairness’, and ‘proportionality’ that are ordinarily used to define reasonable limitations are

regarded as both irrelevant and inappropriate.³⁸ As Kiefel J recently explained, '[s]ection 51(xxxi) contains its own limits and conditions. The requirement of just terms applies if the law ... provides for the acquisition of property. That is the question to be addressed and it is not answered by a test of proportionality.'³⁹

From a domestic constitutional law perspective, this approach is also somewhat anomalous. It distinguishes the analysis of section 51(xxxi) from other rights and freedoms guaranteed by the Australian Constitution, such as the implied freedom of political communication,⁴⁰ and the express freedom of trade, commerce, and intercourse among the States.⁴¹ In the context of these other constitutional guarantees, the High Court's technique of defining and limiting the scope of the relevant freedom characteristically includes: analysing the relevant values that the freedom protects; examining whether those values have been burdened by the impugned law; and evaluating the reasonableness of the burden by determining whether the law is 'reasonable appropriate and adapted' (or 'proportionate') to a legitimate end.

Such considerations are not in play in the context of section 51(xxxi). Instead, the Court has developed two sets of doctrinal techniques that rely on characterization analysis. These are described in the sections that follow. I suggest that neither approach is satisfying: both betray the Court's ambivalence about the status of section 51(xxxi) as a constitutional guarantee.

2. Techniques of Characterization Analysis

a) The metaphysics of acquisition

The first and primary technique used to define and limit the scope of the Commonwealth's constitutional obligation to pay compensation for regulatory expropriations relies on the metaphysical distinction between an 'acquisition' (where something is received) and a 'mere deprivation' (where something is taken, but nothing received). In developing this approach, the takings clause of the Fifth Amendment of the United States Constitution has served as an important foil.⁴² As Justice Mason explained in the *Tasmanian Dam case*:

The emphasis in s 51(xxxi) is not on a ‘taking’ of private property but on the acquisition of property. ... [I]t is not enough that legislation adversely affects or terminates a pre-existing right that an owner enjoys in relation to his property; *there must be an acquisition* whereby the Commonwealth or another acquires an interest in property, *however slight or insubstantial it may be*.⁴³

Thus whereas the United States Supreme Court openly engages in value-laden balancing of competing interests when determining whether a law merely regulates property or whether it effects a taking,⁴⁴ the High Court has insisted that section 51(xxxi) presents the more objective and straightforward task of determining whether the law can be characterized as a law with respect to the acquisition of property.⁴⁵ Characterization analysis proceeds by examining facts about the law’s terms, its operation, and its practical effect on the rights, obligations, immunities, and liabilities of the relevant parties. It is alleged that difficult questions of value and balancing competing interests, which are ill-suited for judicial determination, are thereby avoided.

The difficulty with this contention, however, is that the metaphysics of acquisition is highly unreliable. Property has an inherently reciprocal nature insofar as it describes as set of relationships between persons with respect to things. As a result, laws that modify or extinguish a property interest will often result in the receipt of an interest or benefit by another, even if that was not the law’s intended effect.⁴⁶ The breadth of the interpretation given to ‘property’ and ‘acquisition’ compound this difficulty. Accordingly, it has been conceded that the ‘[t]he dichotomy between extinguishment and acquisition cannot be pressed too far’.⁴⁷ Moreover, numerous judgments have acknowledged that, in at least some circumstances, a deprivation can amount to an acquisition—particularly when a law has the effect of completely extinguishing or sterilizing a property right of all of its value.⁴⁸ The dividing line between an ‘acquisition’ and a ‘mere deprivation’ in regulatory expropriation cases is therefore often a matter of degree and judgment. Considerations of value and reasonable limitations are of necessity in play.

An example will help illustrate. In the 2009 case *ICM Agriculture*,⁴⁹ the State of New South Wales extinguished valuable statutory water licences pursuant to a section 96 grant from the Commonwealth made for water conservation purposes (and hence implicating section 51(xxxi)). ‘Bore licences’ were extinguished and replaced with ‘aquifer access licences’,

resulting in a 70 per cent reduction in the plaintiff's water entitlements. In arguing that this constituted an acquisition of property and not a mere deprivation, the plaintiff relied on *Newcrest Mining*,⁵⁰ where the Court had held that a prohibition on operations for the recovery of minerals in a national park effected an acquisition of property. While acknowledging that the mineral resources were vested in the Crown at all material times, in *Newcrest* the Court reasoned that the prohibition 'was an effective sterilisation' of the plaintiff's rights under certain statutory mining licences,⁵¹ which thereby 'enhanced' '[t]he Commonwealth's interest in respect of the minerals'.⁵²

Given the reasoning in *Newcrest*, it was difficult to see how the law at issue in *ICM Agriculture* did not similarly effect an acquisition of property. Both cases concerned a valuable, limited natural resource that is vested in the Crown and allocated by statute via a licencing regime, providing limited statutory entitlements to exploit the resource. In both cases, the Crown's title to the natural resource was encumbered by an obligation to regulate that resource in the public interest, and the statutory licencing scheme in question was enacted to fulfil that obligation. Moreover, it was evident in *ICM Agriculture* that the purpose of extinguishing bore licences and replacing them with licences with lesser entitlements was to enhance the quantity of a resource vested in New South Wales, which the State was then at liberty to choose to conserve or re-allocate.

In the result, however, the Court distinguished *Newcrest Mining* on the basis that extinguishing the bore licences effected a mere deprivation of the licence holders' water entitlements. The crux of the majority's reasoning was that water is an important natural resource that has long been vested in the Crown and therefore the State didn't 'acquire' anything new.⁵³ However, as just noted, the same was clearly true of the mineral resources at issue in *Newcrest*, so this did not serve to distinguish the facts of the case. Rather, the crucial distinguishing factor concerned the unique physical properties of water that have historically cast doubt on whether water can form the subject matter of 'property' at all, given the common law's emphasis on physical possession. This point is emphasized in both judgments.⁵⁴ Unlike mineral resources, water by its very nature is fluid and elusive: it 'has no certain course, no defined limits, but ... oozes through the soil in every direction in which the rain penetrates', and it is subject to

fluctuation due to seasonal rainfall and other climate events.⁵⁵ Water is thus simply incapable of physical possession in the same manner as mineral resources, rendering talk of ‘acquisition’ metaphysically unmanageable and even incoherent.

This reasoning is highly dissatisfying. Even if the metaphysical point is correct—and whatever the limitations in the common law imagination of property—it is difficult to understand why the physical properties of a resource should dictate the outcome of a question concerning constitutional rights and obligations. Moreover, despite the Court’s insistence that the relevant constitutional question ‘neither requires nor permits consideration of any of the large and difficult policy questions’ in play,⁵⁶ it is evident that making value judgments and balancing competing interests are unavoidable in this context. Indeed there are indications in both sets of joint reasons that the Court was in fact persuaded by considerations that are appropriate to constitutional rights analysis. These included:

1. the view that the conservation of water resources is an important social policy, particularly given the value of water to human life;⁵⁷
2. the view that the regulation of water entitlements via a statutory licencing regime is a rational method for achieving that social policy;⁵⁸ and
3. the view that the burden on property rights was reasonable, given the reciprocity of benefits and burdens inherent in such a regulatory scheme.⁵⁹

The problem with the Court’s insistence on ‘acquisition’ as a metaphysical criterion is that considerations of this kind, which appear to play an important role in determining the outcome, are suppressed in the analysis. As a result, there is poor guidance. To be clear: this is not a criticism of the outcome, but a criticism of characterization analysis. The result in *ICM Agriculture* would have been better explained by openly articulating why, in the Court’s view, the burden that private property owners had to bear for the public good was justified, whereas in *Newcrest* it was not. Such an explanation is both available and plausible on the facts, but it requires embracing rights analysis.

b) Categorical exemptions

A second set of techniques that the High Court has developed to limit the scope of regulatory expropriations is to define certain categories of laws that are exempt from the operation of section 51(xxxi). These techniques

similarly rely on characterization analysis: if the law can be characterized as a law that falls within an exempt category, then there is no constitutional obligation to provide compensation. There are two sets of categories: subject matter-based categories, and characteristic-based categories.

i) Subject matter-based categories

Subject matter-based categories represent a significant way of limiting the operation of section 51(xxxi). The exemption applies to certain topics of legislation for one of two reasons: either there is a ‘contrary intention’ that is express or manifest in the grant of legislative power on that subject matter,⁶⁰ or else the notion of ‘just terms’ is ‘inconsistent’, ‘incongruous’, or ‘irrelevant’ to the exercise of legislative power with respect to that subject matter.⁶¹ The core example of a categorically exempt subject matter is taxation. The purpose of taxation is the acquisition of property (within the wide meaning of ‘property’ for the purpose of section 51(xxxi)⁶²). A constitutional obligation to provide compensation for taxation would therefore defeat the very purpose of the grant of the Commonwealth power of taxation.⁶³

Although the categorical exclusion of taxation from the operation of section 51(xxxi) seems uncontroversial, other subject matter-based categories raise difficult questions. For instance, the High Court has consistently affirmed the categorical exclusion of forfeiture laws—that is, laws that prescribe the confiscation of property as a consequence of the breach of a legal norm—in the strongest possible terms. The exclusion of forfeiture laws from the ambit of section 51(xxxi) applies even where the forfeited property was owned by an innocent third party who had no involvement in or knowledge of the breach of the relevant legal norm,⁶⁴ and even where the forfeited property was acquired by innocent means, unrelated to the breach of the relevant legal norm.⁶⁵ For instance, in its most recent forfeiture decision, *Emmerson*, the High Court upheld a law that provided for the confiscation of *all* property owned by a person declared to be a ‘drug trafficker’ on the basis of past qualifying convictions, regardless of the connection between the property and the relevant drug-related offences.⁶⁶ In defending an absolute categorical exemption even in

such circumstances, where the result strikes many as extreme and unfair, the Court observed that ‘drastic’, ‘far-reaching’, and ‘draconian’ forfeiture laws have a long history in the common law world.⁶⁷

This position is difficult to reconcile with the status of section 51(xxxi) as ‘a very great constitutional safeguard’.⁶⁸ Although forfeiture, like taxation, necessarily effects an acquisition of property, the purpose of forfeiture is not acquiring property but enforcing a legal norm of conduct. Yet in circumstances of the kind just described, it is arguable that the confiscation of property goes beyond what is necessary or reasonable to achieve that purpose. Such ‘disproportionality’ between ends and means may indicate that the forfeiture law is in fact an arbitrary confiscation of property, designed to achieve some other purpose besides the enforcement of a legal norm of conduct. In the *Emmerson* case, for instance, there was evidence that the law was enacted as a revenue-raising measure.⁶⁹

Despite these concerns, there is no requirement of proportionality between the breach of the relevant legal norm of conduct and the property subject to forfeiture. Indeed the High Court has gone even farther, holding that it is both ‘irrelevant’ and ‘wrong’ for courts to analyse whether the forfeiture of property is a reasonable or proportionate response to ensuring compliance with legal norms.⁷⁰ As the Court explained in *Emmerson*:

The proper inquiry ... is the *subject matter* of the statutory scheme. The question is whether the statutory scheme can be properly *characterised* as a law with respect to forfeiture. ... That inquiry ... precludes any inquiry into the proportionality, justice or wisdom of the legislature’s chosen measures.⁷¹

This too is an area of section 51(xxxi) jurisprudence that betrays the limitations of characterization analysis. The Court has sometimes suggested that forfeiture laws that effect arbitrary confiscations of property are unlikely to be incidental to the source of legislative power under which the norm of conduct was enacted and therefore likely to be invalid for want of legislative power,⁷² even though not invalid for acquiring property on otherwise than just terms. However, counter examples such as *Emmerson* suggest that characterization analysis is the problem and not the solution. Characterization may be a method of analysis that is appropriate for determining the scope and content of a grant of legislative power, but it hardly seems appropriate for determining the scope and content of a constitutional guarantee.

ii) Characteristic-based categories

The second set of categories that are exempt from the operation of section 51(xxxi) define a set of characteristics as the basis for categorical exemption. There are two predominant categories of this kind. The first category includes laws regulating property rights that are ‘inherently susceptible to variation, modification or extinguishment’.⁷³ The second category includes laws that regulate property rights by way of ‘adjustments of the competing rights, claims or obligations of persons in a particular relationship or area of activity’.⁷⁴

These categories are less significant than subject matter-based categories because they have proven unstable in application, producing disagreement among members of the Court and leading to inconsistent results.⁷⁵ The difficulty lies in defining their scope: both categories identify characteristics that arguably describe *all laws* that pose the problem of regulatory expropriations. Thus, while it has been conceded that ‘prima facie ... a right which has no existence apart from statute is one that, of its nature, is susceptible of modification or extinguishment’,⁷⁶ the proposition that that all statutory rights are ‘inherently susceptible to variation’ and therefore exempt from the operation of section 51(xxxi) has been firmly rejected.⁷⁷ Similarly, while it has been acknowledged that all regulation of property rights involves the adjustment of competing rights, claims, or obligations in some sense, it is also clear that not all such laws are exempt from the requirement of compensation.⁷⁸

Due to these difficulties, the status of characteristic-based categories as defining unqualified categorical exemptions from the operation of section 51(xxxi) has been called into question.⁷⁹ Moreover, there is a trend in recent cases where the Court has declined to apply them in favour of re-asserting the distinction between acquisitions and mere deprivations as the central consideration. *JT International*, the recent constitutional challenge to Commonwealth legislation mandating plain packaging for tobacco products, provides a good example. In that case, the Court could have easily relied on the ‘inherently susceptible to variation’ and ‘adjustments’ categories to resolve the section 51(xxxi) issue. The property in question, various intellectual property rights held by tobacco companies, consisted of contingent statutory rights that were exercised in a heavily regulated area

(tobacco packaging). However, the reasoning of all of the majority justices relied exclusively on the notion of an acquisition as metaphysically distinct from a mere deprivation, attempting to re-distance section 51(xxxi) analysis from American takings jurisprudence by emphasizing that the determinative question is whether the law effects an acquisition.⁸⁰ In addition, several justices cast doubt on the utility of characteristic-based categories.⁸¹

The trouble with both categories, as Kirby J once observed, is that '[t]hey postulate as self-evident a disqualifying feature that needs to be established convincingly when it is challenged' and 'the feature is assumed to act as a disqualification ... without necessarily explaining why it has that effect.'⁸² This is an apt observation made by one of the most rights-conscious judges to serve on the High Court. Current analysis relying on these categories focuses on what purport to be purely formal features of particular kinds of laws. This approach is unhelpful and misleading. It is evident that underlying both characteristic-based categories are considerations that go to rights analysis, such as the protection of legitimate expectations (which goes to the *values* that section 51(xxxi) protects), and the reciprocity of socially shared benefits and burdens (which goes to *reasonable limitations* on the scope of protection afforded to those values). The better approach would be openly acknowledge and articulate these considerations.

D. CONCLUSION: AMBIVALENCE ABOUT THE STATUS OF SECTION 51(xxxi) —SOURCE OF POWER OR CONSTITUTIONAL GUARANTEE?

Section 51(xxxi) serves two purposes. Firstly, it ensures that the Commonwealth has the power to acquire property.⁸³ This is the purpose of the express conferral of power 'to make laws ... with respect to ... the acquisition of property', and helps explain the placement of paragraph (xxxi) in section 51 alongside other enumerated heads of legislative power. Although in many circumstances the acquisition of property would be incidental to the exercise of another grant of legislative power, making an express grant of power to acquire property unnecessary, this is not always obvious.⁸⁴ Thus section 51(xxxi) provides an important 'supplementary power', placing the Commonwealth's power to compulsorily acquire property beyond doubt.⁸⁵ Secondly, section 51(xxxi) prevents the arbitrary

deprivation of property.⁸⁶ This is the purpose of its requirement that acquisitions of property be ‘on just terms’. Thus section 51(xxxi) is also understood to provide an important constitutional guarantee—especially so, one might contend, in a Constitution that otherwise contains so few express rights and freedoms.

As the foregoing discussion has demonstrated, apprehension of the dual purpose of section 51(xxxi) has generated visible tensions in Australian constitutional property jurisprudence. The High Court has refused to analyse section 51(xxxi) in the same manner as other constitutional rights and freedoms. Instead, the interpretive task of defining the scope of the constitutional obligation to provide ‘just terms’ for the acquisition of property has been approached through characterization analysis, the interpretive method used to define the scope of grants of legislative power. In many cases this approach appears to be inconsistent with, and even appears to undermine, the status of section 51(xxxi) as a constitutional guarantee. I conclude by suggesting that these tensions reflect a deep and unresolved ambivalence about the proposition that section 51(xxxi) is a constitutional guarantee.

Using an interpretive method that is designed for determining whether a law is authorized by a constitutional grant of legislative power is inappropriate for the different and distinctive task of determining whether a law is inconsistent with a constitutional guarantee. At least some members of the Court have appreciated this incongruity, criticizing characterization analysis on the basis that it ‘saps s 51(xxxi) of content in a manner inconsistent with its frequent recognition as an important constitutional guarantee’.⁸⁷ What, then, explains the High Court’s commitment to characterization analysis as the applicable interpretive approach?

One possibility is simply a discomfort with rights analysis. In comparative terms, rights occupy an unusual place in Australian constitutional law, particularly given the Constitution’s lack of a bill of rights. It is fair to say that jurisprudential techniques associated with constitutional rights analysis—while certainly not unknown—are less familiar to Australian constitutional law. It is also fair to say that such techniques fit less comfortably with Australian conceptions of the judicial role and the exercise of judicial power.⁸⁸ By contrast, characterization analysis encompasses a set of well-established and familiar interpretive techniques. But perhaps more importantly, characterization analysis

purports to absolve courts of difficult questions concerning constitutional value and how to balance competing interests that rights analysis necessarily entails.

This discomfort with rights analysis arguably reflects an even broader disquiet with constitutional rights. For instance, the High Court has been unwavering in its position that the implied freedom of political communication is not a constitutional right but a structural limitation on legislative power, insisting that '[t]he freedom is to be understood as addressed to legislative power, *not rights*, and as effecting a restriction on that power.'⁸⁹ Even so, the Court's consistent rejection of the proposition that the freedom of political communication is a constitutional right has not prevented the development of rights analysis in that context. Although there remains debate about whether a structured proportionality test is the correct approach, it is nevertheless well-established and uncontroversial that the analysis of the freedom of political communication requires considering the values the freedom protects and determining what constitutes reasonable limitations on those values.⁹⁰ The unusual place of rights in Australian constitutional law thus does not fully explain why the Court has approached the interpretation of section 51(xxxi) through characterization analysis rather than through rights analysis.

This leads to a second possibility, which is that despite the Court's ongoing affirmation that section 51(xxxi) is a constitutional guarantee, there are in fact unresolved doubts about that proposition. It is noteworthy that in recent years at least one justice has expressly dissented from the view that section 51(xxxi) is a constitutional guarantee,⁹¹ and another has implicitly done so, by suggesting that it is a mistake to think that the provision 'guarantees freedom from acquisition other than on just terms' and thus that proportionality analysis of the kind used in the context of other constitutional guarantees is wholly inappropriate.⁹² In addition, at least some other members of the Court have expressed reservations about the status of section 51(xxxi) as a constitutional guarantee in response to interpretive challenges presented by the problem of regulatory expropriations. For instance, some justices have emphasized that section 51(xxxi) should be understood as 'primarily' a grant of legislative power,⁹³ while others have suggested that describing section 51(xxxi) as a

‘constitutional guarantee’ has the potential to ‘obscure the fact that it is a qualification imposed upon a legislative power’.⁹⁴

If section 51(xxxi) is not to be understood as a constitutional guarantee, then what is the alternative? One possibility, forcefully argued by Professor Rosalind Dixon,⁹⁵ is that the provision should instead be understood as a supplementary grant of legislative power: that is, as designed to grant the power to acquire property in circumstances that fall outside the sphere of matters incidental to the exercise of other grants of legislative power. Were this view of section 51(xxxi) accepted, it would appear to resolve many of the difficulties that the High Court’s interpretive approach has produced. For one thing, characterization would no longer be an incongruous method of analysis.

Although the High Court has so far resisted the view that section 51(xxxi) should be understood exclusively as a limited conferral of legislative power, there are nevertheless indications of, if not doubt, then ambivalence—or perhaps even regret—about its status as a constitutional guarantee. By interpreting section 51(xxxi) as a constitutional guarantee, the Court must grapple with the problem of regulatory expropriations, which requires defining limitations on the State’s power to regulate property rights for the public good. This is widely regarded as one of the most contentious interpretive tasks in constitutional rights jurisprudence, and is frequently cited by critics as a reason not to afford constitutional protection to private property rights in the first place.⁹⁶ Whether or not this assessment of the problem is correct, it is clear that it is an interpretive task that requires a method of rights analysis. Articulation of the relevant constitutional values and what constitutes reasonable limitations on those values, however controversial, simply cannot be avoided. Unless and until the High Court is prepared to embrace the implications of the view that section 51(xxxi) is a constitutional guarantee—namely, to accept that it should be analysed in the same manner as other constitutional guarantees—it is suggested that the status of section 51(xxxi) as a constitutional guarantee will require reconsideration.

¹ See Chapter 37 ‘Rights Protection in Australia’. Section 51(xxxi) is the oldest property clause among Commonwealth countries with written constitutions: Tom Allen ‘Commonwealth

Constitutions and the Right not to be Deprived of Property’ (1993) 42 International & Comparative Law Quarterly 523, 525.

² *Director of Public Prosecutions; Ex parte Lawler* (1994) 179 CLR 270, 283 (Deane and Gaudron JJ).

³ *Theophanous v Commonwealth* (2006) 225 CLR 101, 112–13 (Gleeson CJ).

⁴ *Wurridjal v Commonwealth* (2009) 237 CLR 309. By extension, the Territories—which derive their legislative power from the Commonwealth—are also subject to the requirements of s 51(xxxi): see, eg, *Northern Territory (Self-Government) Act 1978*, s 50.

⁵ *Johnston Fear & Kingham & The Offset Printing Co Pty Ltd v Commonwealth* (1943) 67 CLR 314.

⁶ *ICM Agriculture Pty Ltd v Commonwealth* (2009) 240 CLR 140.

⁷ See, eg, *Basic Law for the Federal Republic of Germany*, s 14(3); *Constitution of the Republic of South Africa*, s 25(2).

⁸ Amend V.

⁹ *Hawaii Housing Authority v Midkiff*, 467 US 229, 240 (1984) (holding that ‘The “public use” requirement is ... coterminous with the scope of a sovereign’s police powers’).

¹⁰ See James Stellios, *Zines’s The High Court and the Constitution* (6th edn, Federation Press 2015) 19–47.

¹¹ The scenario in the *Tasmanian Dam Case* presented this possibility, although the Commonwealth chose to prohibit environmentally harmful activities rather than compulsorily acquire land: *The Commonwealth of Australia v Tasmania* (1983) 158 CLR 1. The purpose of the legislation at issue in that case was to protect a wilderness area but also to give effect to the Commonwealth’s treaty obligations under the World Heritage Convention. The State of Tasmania’s argument that the regulation of conduct amounted to an acquisition of property was unsuccessful.

¹² See, eg, *Airservices Australia v Canadian Airlines* (2000) 202 CLR 133, 252–53 (McHugh J).

¹³ See Tom Allen, ‘The Acquisition of Property on Just Terms’ (2000) 22 Sydney Law Review 351, 369–75.

¹⁴ See, eg, *Grace Bros Pty Ltd v Commonwealth* (1946) 72 CLR 269, 280 (Latham CJ). But see *Georgiadis v Australian & Overseas Telecommunications Corp* (1994) 179 CLR 297, 310–11 (Brennan J).

¹⁵ These issues were raised in *Wurridjal* (n 4), a case involving the Commonwealth acquisition of land with sacred Aboriginal sites. See Matthew T Stubbs, ‘The Acquisition of Indigenous Property on Just Terms: *Wurridjal v Commonwealth*’ (2011) 33 Sydney Law Review 119, 124–27.

¹⁶ See Lael K Weis, ‘“On Just Terms”, Revisited’ (2017) 45 Federal Law Review 223, 250–52.

¹⁷ See Duane L Ostler, ‘The Drafting of the Australian Commonwealth Acquisition Clause’ (2009) 28 University of Tasmania Law Review 211, 232–35.

¹⁸ See, eg, *Attorney General (NT) v Emmerson* (2014) 253 CLR 393, 446 [109] (Gageler J, dissenting); *Grace Bros* (n 14) (Latham CJ), 285 (Starke J), 290, 291 (Dixon J); *Nelungaloo Pty Ltd v The Commonwealth* (1952) 85 CLR 545, 569 (Dixon J), 600 (Kitto J); *Wurridjal* (n 4) 425 [305], 426 [309] (Kirby J).

¹⁹ See Weis (n 16).

²⁰ *Commonwealth v WMC Resources Ltd* (1998) 194 CLR 1, 102–03 (Kirby J, dissenting).

²¹ *Australian Tape Manufacturers Association Ltd v The Commonwealth* (1993) 176 CLR 480, 509 (Mason CJ, Brennan, Deane and Gaudron JJ) (‘ATM’). See also *Clunies-Ross v The Commonwealth* (1984) 155 CLR 193, 201–02 (Gibbs CJ, Mason, Wilson, Brennan, Deane and Dawson JJ); *ICM Agriculture* (n 6) 212 [185] n 301 (Heydon J, dissenting) (listing recent judgments affirming the proposition that s 51(xxxi) is a constitutional guarantee).

²² See, eg, *Georgiadis* (n 14) 303 (Mason CJ, Deane and Gaudron JJ); *ATM* (n 21) 509 (Mason CJ, Brennan, Deane and Gaudron JJ); *Newcrest Mining (WA) Ltd v The Commonwealth* (1997) 190 CLR 513, 568 (Gaudron J).

²³ *Bank of New South Wales v Commonwealth* (1948) 76 CLR 1, 349 (Dixon J); *Georgiadis* (n 14) 314 (Dawson J, dissenting in the result) (*'Bank Nationalisation Case'*).

²⁴ See, eg, *ATM* (n 21) 509 (Mason CJ, Brennan, Deane and Gaudron JJ); *Georgiadis* (n 14) 314 (Dawson, dissenting in the result); *Newcrest Mining* (n 22) 602 (Gummow J) (Toohey J and Gaudron J agreeing).

²⁵ See, eg, *Georgiadis* (n 14) (entitlement to bring cause of action under workers' compensation law); *Health Insurance Commission v Peverill* (1994) 179 CLR 226 (entitlement of medical practitioner to fee for assigned benefit); *Theophanous* (n 3) (entitlement to superannuation benefits).

²⁶ See, eg, *Trade Practices Commission v Tooth & Co Ltd* (1979) 142 CLR 397, 426 (Mason J), 451 (Aicken J, dissenting in the result).

²⁷ See eg *Georgiadis* (n 14) 305 (Mason CJ, Deane and Gaudron JJ); *WMC Resources* (n 20) 28 [49] (Toohey J, dissenting), 35 [77] (Gaudron J).

²⁸ See, eg, *WMC Resources* (n 20) 28 [49] (Toohey J, dissenting).

²⁹ See, eg, *Newcrest Mining* (n 22) 595 (Gummow J) (Toohey J and Gaudron J agreeing); *Tooth* (n 26) 415 (Stephen J).

³⁰ As the High Court has acknowledged: see, eg, *Mutual Pools and Staff Pty Ltd v The Commonwealth of Australia* (1994) 179 CLR 155, 189 (Deane and Gaudron JJ); *Tooth* (n 26) 413–15 (Stephen J).

³¹ See *Mutual Pools* (n 30) 189 (Deane and Gaudron JJ) ('If every such law which incidentally altered, modified or extinguished proprietary rights or interests ... were invalid unless it provided a quid pro quo of just terms, the legislative powers of the Commonwealth would be reduced to an extent which could not have been intended by those who framed and adopted the Australian Constitution.')

³² For example, the decision to leave the right to property out of the *Canadian Charter of Rights and Freedoms 1982* was directly influenced by the obstacle that the constitutional protection of property has presented for social welfare legislation in the United States: see Alexander Alvaro, 'Why Property Rights Were Excluded from the Canadian Charter of Rights and Freedoms' (1991) 24 Canadian Journal of Political Studies 309, 318; Sujit Choudhry, 'The *Lochner* Era and Comparative Constitutionalism' (2004) 2 International Journal of Constitutional Law 1, 16–27.

³³ For example, The Constitution of India was amended in 1978 to remove the expropriation clause, art 31, and to demote property from a 'fundamental right' to a mere 'legal right' (under the more modest art 300A): *Constitution (Forty-Fourth) Amendment Act 1978*. The Forty-Fourth Amendment was enacted in response to the Supreme Court of India's invalidation of socio-economic reform legislation under art 31 (among other fundamental rights).

³⁴ For a good general discussion of the characterization approach as it applies to s 51(xxxi), as well as relevant authorities, see *Airservices Australia* (n 12) 247–50 [332]–[339] (McHugh J).

³⁵ *Airservices Australia* (n 12) 248 [333] (McHugh J); see also *Tooth* (n 26) 433 (Mason J). But see *WMC Resources* (n 20) 90 [237] (Kirby J, dissenting).

³⁶ *Airservices Australia* (n 12) 250 [339] (McHugh J). But see *Mutual Pools* (n 30) 188 (Deane and Gaudron JJ).

³⁷ See Simon Evans, 'When is an Acquisition of Property not an Acquisition of Property? The Search for a Principled Approach to s 51(xxxi)' (2000) 11 Public Law Review 183(criticizing this aspect of s 51(xxxi) jurisprudence).

³⁸ See, eg, *Emmerson* (n 18) 439 [85] French CJ, Hayne, Crennan, Kiefel, Bell and Keane JJ; *ICM Agriculture* (n 6) 182 [90] Hayne, Kiefel and Bell JJ.

³⁹ *JT International SA v The Commonwealth of Australia* (2012) 250 CLR 1, 119 [340] Kiefel J.

⁴⁰ See Chapter 39 ‘Expression’.

⁴¹ *Constitution*, s 92, see Chapter 32 ‘Money’ and Chapter 34 ‘The Passage Towards Economic Union in Australia’s Federation’.

⁴² See, eg, *Mutual Pools* (n 30) 202–03 (Dawson and Toohey JJ); *Peeverill* (n 25) 248 (Dawson J). The Fifth Amendment relevantly provides that: ‘nor shall private property be taken for public use, without just compensation.’

⁴³ *Tasmanian Dam Case* (n 11) 145 (Mason J) (emphasis added). See also *Mutual Pools* (n 30) 185 (Deane and Gaudron JJ).

⁴⁴ The leading authority describing this approach is *Penn Central Transportation Co v. New York*, 438 US 104 (1978).

⁴⁵ See, eg, *Tasmanian Dam Case* (n 11) 247–48 (Brennan J), *JT International* (n 39) 39 [117] (Gummow J).

⁴⁶ See *WMC Resources* (n 20) 16–17 [16] (Brennan CJ) (identifying the reciprocal nature of property rights as the reason why it is difficult to draw a sharp distinction between deprivations and acquisitions).

⁴⁷ *Georgiadis* (n 14) 321 (Toohey J, dissenting in the result). This statement was a concession to the majority, who found that there was an acquisition, whereas his Honour found that the law effected a mere deprivation.

⁴⁸ See, eg, *Georgiadis* (n 14) 305 (Mason CJ, Deane and Gaudron JJ); *JT International* (n 39) 46 [136] (Gummow J); *Mutual Pools* (n 30) 173 (Mason CJ), 175 (Brennan CJ), 194 (Dawson and Toohey JJ), 223 (McHugh J); *Peeverill* (n 25) 236 (Mason CJ, Deane and Gaudron JJ); *WMC Resources* (n 20) 15 [13] (Brennan CJ), 36 [80] (Gaudron J).

⁴⁹ (n 6).

⁵⁰ (n 22).

⁵¹ *ibid* 635 (Gummow J).

⁵² *ibid* 530 (Brennan CJ) (dissenting in the result, but agreeing on the acquisition issue).

⁵³ *ICM Agriculture* (n 6) 179–80 [81]–[82] (French CJ, Gummow and Crennan JJ), 201–03 [147]–[154] (Hayne, Kiefel and Bell JJ).

⁵⁴ *ibid* 173–74 [55]–[57] (French CJ, Gummow and Crennan JJ), 188–90 [109]–[112] (Hayne, Kiefel, and Bell JJ).

⁵⁵ *ibid* 189 [110] (Hayne, Kiefel and Bell JJ) (citation omitted).

⁵⁶ *ibid* 182 [90] (Hayne, Kiefel and Bell JJ).

⁵⁷ For instance, at the outset of the joint reasons of Hayne, Kiefel and Bell JJ, their Honours acknowledge that, ‘water and rights to use water are of critical importance ... to society as a whole’: *ibid* 182 [90].

⁵⁸ The history of the regulation of water entitlements is considered at length in both majority judgments: *ibid* 174–76 [58]–[67] (French CJ, Gummow and Crennan JJ), 191–95 [116] [129] (Hayne, Kiefel and Bell JJ).

⁵⁹ Arguably, important considerations here were the fact that the licence holders’ rights were replaced rather than simply eliminated, and the fact that they received structural adjustment payments to help offset their losses: *ibid* 159–60 [6]–[7] French CJ, Gummow and Crennan JJ.

⁶⁰ See *Nintendo Co Ltd v Centronics Systems Pty Ltd* (1994) 181 CLR 134, 160 (Mason CJ, Brennan, Deane, Toohey, Gaudron and McHugh JJ).

⁶¹ See *Lawler* (n 2) 285 (Deane and Gaudron JJ); *Theophanous* (n 3) 126 [60] (Gummow, Kirby, Hayne, Heydon and Crennan JJ).

⁶² It is accepted that money is ‘property’ for s 51(xxxi) purposes: *ATM* (n 21) 509 (Mason CJ, Brennan, Deane and Gaudron JJ).

⁶³ See, eg, *ATM* (n 21) 508–09 (Mason CJ, Brennan, Deane Gaudron JJ); *Newcrest Mining* (n 22) 654 (Kirby J).

⁶⁴ *Burton v Honan* (1952) 86 CLR 169 (upholding the forfeiture of an illegally imported car that was in possession of a bona fide purchaser for value); *Lawler* (n 2) (upholding the forfeiture of a leased fishing vessel where the owners had no knowledge of the lessees’ illegal fishing activities, were unlikely to recover from the lessees, and where the lessees had also paid a fine).

⁶⁵ *Emmerson* (n 18).

⁶⁶ *ibid.*

⁶⁷ *ibid* 416–19 [15]–[22] (French CJ, Hayne, Crennan, Kiefel, Bell and Keane JJ). The Court has emphasized this point in other cases as well: see, eg, *Burton* (n 64) 178–79 (Dixon CJ); *Lawler* (n 2) 280 (Brennan J), 289 (Dawson J), 294 (McHugh J); *Theophanous* (n 3) 126 [60] (Gummow, Kirby, Hayne, Heydon and Crennan JJ).

⁶⁸ *Tooth* (n 26) 403 (Barwick CJ).

⁶⁹ *Emmerson* (n 18) 408–09 (headnote), 437 [79] (French CJ, Hayne, Crennan, Kiefel, Bell and Keane JJ).

⁷⁰ *ibid* 435 [75] (French CJ, Hayne, Crennan, Kiefel, Bell and Keane JJ).

⁷¹ *ibid* 438 [80] (French CJ, Hayne, Crennan, Kiefel, Bell and Keane JJ) (emphasis added).

⁷² See, eg, *Lawler* (n 2) 285–86 (Deane and Gaudron JJ).

⁷³ See, eg, *Georgiadis* (n 14) 305–06 (Mason CJ, Deane and Gaudron JJ); *Peverill* (n 25) 237 (Mason CJ, Deane, and Gaudron JJ).

⁷⁴ See, eg, *Nintendo* (n 60) 161 (Mason CJ, Brennan, Deane, Toohey, Gaudron and McHugh JJ).

⁷⁵ cf *Airservices Australia* (n 12) 255 (McHugh J), 300 (Gummow J) 304–05 (Hayne J), 155–56 (Gaudron J, dissenting) (reaching opposite conclusions about the application of the ‘adjustments’ category to the facts); *Georgiadis* (n 14) 305–06 (Mason CJ, Deane and Gaudron JJ), 327–28 (McHugh J, dissenting) (reaching opposite conclusions about the application of the ‘inherently susceptible’ category to the facts).

⁷⁶ *Georgiadis* (n 14) 305–06 (Mason CJ, Deane and Gaudron JJ).

⁷⁷ See, eg, *Attorney-General (NT) v Chaffey* (2007) 231 CLR 651, 664 (Gleeson CJ, Gummow, Hayne and Crennan JJ), 669 (Kirby J), 671 (Callinan J); *Telstra Corporation Ltd v The Commonwealth* (2008) 234 CLR 210, 232 [49] (Gleeson CJ, Gummow, Kirby, Hayne, Heydon, Crennan and Kiefel JJ); *Wurridjal* (n 4) 439–40 [363]–[364] (Crennan J).

⁷⁸ See, eg, *Airservices Australia* (n 12) 299–300 [500] (Gummow J); *ICM Agriculture* (n 6) 226–28 [216] (Heydon J, dissenting); *WMC Resources* (n 20) 98–99 (Kirby J, dissenting).

⁷⁹ See *Peverill* (n 25) 236 (Mason CJ, Deane and Gaudron JJ); *WMC Resources* (n 20) 16–17 [16] (Brennan CJ), 29–30 [53]–[56] (Toohey J, dissenting), 35–36 [78]–[79] (Gaudron J), 70 [182] (Gummow J), 91–92 [237] (Kirby J, dissenting).

⁸⁰ *JT International* (n 39) 12 [30], 17–19 [41]–[44] (French CJ), 33 [100], 39–40 [116]–[118], 48–49 [144]–[145] (Gummow J), 54 [164], 55–57 [166]–[169] (Hayne and Bell JJ), 92–93 [278] (Crennan J), 120 [344], 123–29 [353] – [372] (Kiefel J).

⁸¹ *ibid* 11 [30] (French CJ), 30 [88] (Gummow J) (expressly holding that the ‘inherently susceptible to variation’ category could not resolve the matter).

⁸² *Chaffey* (n 77) 669 [44] (Kirby J).

⁸³ *Grace Bros* (n 14) 290–91 (Dixon J).

⁸⁴ This was a point raised by Sir Edmund Barton during the Convention Debates, in proposing the inclusion of an expropriation clause: see *Official Report of the National Australasian Convention Debates (Third Session)* (Melbourne 1898) 151.

⁸⁵ Rosalind Dixon, ‘Overriding Guarantee of Just Terms or Supplementary Source of Power?: Rethinking s 51(xxxi) of the Constitution’ (2005) 27 *Sydney Law Review* 639, 640.

⁸⁶ *Grace Bros* (n 14) 291 (Dixon J).

⁸⁷ *ICM Agriculture* (n 6) 230 [222] Heydon J (dissenting). Justice Kirby has similarly criticized characterization analysis as a method of interpreting s 51(xxxi) qua constitutional guarantee: See, eg, *WMC Resources* (n 20) 90 [237] Kirby J (dissenting).

⁸⁸ For instance, in *Momcilovic v The Queen* (2011) 245 CLR 1 several members of the High Court held that a requirement in a statutory rights instrument to interpret legislation consistently with rights provisions was incompatible with the exercise of federal judicial power. See Chapter 28 ‘The Separation of Legislative and Executive Power’.

⁸⁹ *Unions NSW v New South Wales* [2013] HCA 58 [36] (French CJ, Hayne, Crennan, Kiefel and Bell JJ) (emphasis added).

⁹⁰ See Chapter 39 ‘Expression’.

⁹¹ This is the view of McHugh J: see, eg, *WMC Resources* (n 20) 50 [131], 51–52 [133]–[34] (McHugh J).

⁹² *JT International* (n 39) 119 [340] (Kiefel J).

⁹³ See, eg, *Lawler* (n 2) 284–85 (Deane and Gaudron JJ); *WMC Resources* (n 20) 34 [75] (Gaudron J).

⁹⁴ *Newcrest Mining* (n 22) 552 (Dawson J, dissenting).

⁹⁵ ‘Overriding Guarantee of Just Terms or Supplementary Source of Power?’ (n 85).

⁹⁶ Gregory S Alexander, *The Global Debate over Constitutional Property: Lessons for American Takings Jurisprudence* (Chicago 2006) 1–74; Jennifer Nedelsky, ‘Should Property Be Constitutionalized? A Relational and Comparative Approach’ in Gregory S Alexander, Geert E van Maanen, and André J van der Walt (eds) *Property on the Threshold of the 21st Century* (MAKLU 1996) 417.

CHAPTER 42

RELIGION

CAROLYN EVANS

A. INTRODUCTION

SECTION 116 is a constitutional oddity. A section that expressly limits the power of the Commonwealth, it is found within the chapter on the States. A seeming rights provision, it is unmoored from any Bill of Rights or broader constitutional scheme of rights. A section that might be thought to deal with some of the most complex constitutional questions of State-Church relationships, it has generated very little case law. It is arguably the detachment of section 116 from a formal Bill of Rights or a clear place within the broader values and structure of the Constitution that has prevented it from becoming constitutionally and socially significant in the way such provisions have generally been in comparable countries' provisions on religion.

As a general rule, provisions on religion within constitutional or quasi-constitutional instruments (eg, statutory bills of rights) have directed the minds of those interpreting them to broad and complex questions of principle with respect to the relationship between religions and the State, the role of individual rights, and the role of religion in a given society.¹ These issues are often hotly contested and cases arising under the religion provisions of constitutions commonly generate social and political controversy. As societies develop and change, the interpretation of religious provisions sometimes adapts to better fit changing realities on the ground or in response to political/ideological disputes—and such disputes can be highly politically contentious.²

Yet section 116 has played a relatively muted role in Australian political and social debate and judgments have generally not engaged with these complex questions in the same detailed way as has been the case in other jurisdictions. The most significant contribution that Australian case law has made to broader comparative law in this area has indeed occurred outside the direct constitutional realm in a case around the definition of a religion for the purposes of pay-roll tax. The High Court, when faced with the rare cases that raise section 116, has tended to give little focus to the usual religious freedom/establishment principles. Instead, the Court focuses in on the types of institutional, structural, and interpretative questions that are familiar to it from other Commonwealth constitutional contexts. There is little that is distinctive about the interpretation of section 116 despite its distinctive appearance in the Constitution.

After an overview of the history and context of section 116, this chapter examines the way that the High Court has interpreted the term religion, the free exercise clause, and the establishment clause. The definitional issue brings the Court closest to the usual interpretative exercise relevant to other constitutional and statutory provisions and its case law in this area has been more sophisticated and detailed than has been in the other two areas. With respect to religious freedom and non-establishment, the Court has had a focus on technical aspects of interpretation, parliamentary sovereignty, and limitations of the role of the courts that have allowed it to avoid the necessity of engaging in the deeper, more complex issues that arise in similar constitutional contexts. Such an approach has its strengths and may do justice to the (rather ill-defined) views of the founders but does leave increasingly contested issues of religious freedom solely to the political process.

By way of contrast, in other jurisdictions these matters have become increasingly judicialized. In the United States, on whose religious clauses section 116 was modelled, the interpretation of the First Amendment with respect to religion has played a significant role in legal, political, and public debate. The issues that are considered under its auspices cover a significant range of social activity from prayer in schools,³ to using prohibited substances in religious ceremonies,⁴ to the wording on currency.⁵ Other jurisdictions, such as the United Kingdom and Canada, have also increasingly turned to the courts to resolve complex disputes around religion.

B. HISTORY AND CONTEXT OF SECTION 116

Section 116 of the Commonwealth Constitution reads:

Commonwealth not to legislate in respect of religion

The Commonwealth shall not make any law for establishing any religion, or for imposing any religious observance, or for prohibiting the free exercise of any religion, and no religious test shall be required as a qualification for any office or public trust under the Commonwealth.

The section sits awkwardly in Chapter V which deals with the States, indicating both its unusual history and the relatively limited amounts of serious attention given to it during the constitutional Conventions.⁶

Some of the issues around the role of religion in the Constitution were politically contentious during the constitution-making process. There was an early move to include in the draft to the 1891 Constitutional Convention two clauses with respect to religion: the first (clause 46) was expressed in very similar terms to the present section 116; the second (clause 81) prohibited the States (but not the Commonwealth) from making laws that interfered with the free exercise of religion.⁷ Only the second clause was adopted by the Convention.⁸ A relatively small amount of time and attention was given to the issue at the Convention.⁹

The issue of religion was then raised in a different manner during the 1897 Constitutional Convention when several groups began to agitate for a reference of some kind to God in the Constitution.¹⁰ Some of the suggestions made were quite significant, including one in a petition drafted by the New South Wales Council of Churches in 1897 that ‘in the preamble of the Constitution of the Australian Commonwealth it be recognised that God is the supreme Ruler of the world, and the ultimate source of all law and authority’.¹¹ There were only a relatively small number of the founders for whom the issue was significant but there was considerable political pressure from various groups including church and women’s groups that argued in favour of its inclusion.¹² A resulting compromise led to the drafting and acceptance of the preambular words, ‘Whereas the people of New South Wales, Victoria, South Australia, Queensland and Tasmania, *humbly relying on the blessing of Almighty God*, have agreed to unite in one indissoluble Federal Commonwealth’.

The political movement that pushed for greater recognition of God, however, gave rise to political opposition both from those concerned about

religious freedom in principle (including Andrew Inglis Clark, who was committed to the idea of the separation of church and state)¹³ and religious minorities, especially the Seventh Day Adventists, who were concerned about religious oppression by the majority.¹⁴ They were particularly concerned that the preamble might give rise to a right for the Commonwealth to make laws including a requirement to observe Sunday as the Sabbath.

Again, this issue was not a high order priority for those drafting the Constitution and Henry Higgins, who took a leading role in drafting what became section 116, appeared not to put a great deal of time or thought into the drafting. Higgins was concerned both that the preamble might give rise to a belief that the Commonwealth could institute Christianity and also with a concern, based on a United States case, that even without the preamble, the courts might find that the Commonwealth had power to institute certain laws to protect the majority understanding of Christianity. As Beck notes, Higgins' drafts and the discussion of them do not evidence any significant thought being put in to the precise form of words used or even much consideration as to precisely what evil they were intended to prevent.¹⁵ The main example of a problematic law that the Commonwealth might make was one imposing a Sabbath and there was also a general concern expressed about the importance of religious tolerance and freedom from government oppression. The debate was not detailed, however, and the resulting combination of the reference to God in the preamble and the restrictions in section 116 was a political compromise that satisfied a sufficient number of voters that their concerns had been taken into account.

C. THE DEFINITION OF A RELIGION

In an early Australian case, Latham CJ gave a concise insight into the difficulties faced by judges in attempting to define a religion:

It would be difficult, if not impossible to devise a definition of religion which would satisfy the adherents of all the many and various religions which exist, or have existed, in the world. There are those who regard religion as consisting principally in a system of beliefs or statement of doctrine. So viewed religion may be either true or false. Others are more inclined to regard religion as prescribing a code of conduct. So viewed a religion may be good or bad. There are others who pay greater attention to religion as involving some prescribed form of ritual and observance.¹⁶

These definitional problems are not restricted to the Australian context. While some constitutions only extend protection or recognition to a limited and defined religion(s),¹⁷ Australia in common with other liberal democracies extends its constitutional protection to any group that falls within the definition of a religion. Worldwide, there have been numerous attempts by various superior courts to develop a definition of religion that is sufficiently inclusive to extend to the variety of groups that are understood to be religious but has sufficient boundaries so that the term is meaningful.¹⁸

There is no judicial definition of a religion that has attracted widespread, let alone universal, support in common law countries. The task is a very complex one because the term religion is applied to very disparate groups—from highly formal groups with detailed theologies and practices, agreed hierarchies and histories of thousands of years to small, informal groups with some shared practices and very limited histories. There are also concerns that the legal privileges given to religions or the financial and personal devotion that followers give to religions have encouraged the unscrupulous to don the mantle of religiosity for personal advantage rather than sincere belief.¹⁹

In Australia, the most comprehensive discussion of the definition of religion has occurred in the context of a provision giving a taxation exemption to religions and not in the constitutional context.²⁰ The Church of the New Faith (more commonly known as the Scientologists) challenged the decision of the commissioner of pay-roll tax, who had held that the Church was not a religion for the purposes of exemptions from taxation. The case is important for constitutional purposes, however, with Mason ACJ and Brennan J noting the connection to section 116:

The chief function in the law of a definition of religion is to mark out an area within which a person subject to the law is free to believe and to act in accordance with his belief without legal restraint. Such a definition affects the scope and operation of s. 116 of the Constitution and identifies the subject matter which other laws are presumed not to intend to affect. Religion is thus a concept of fundamental importance to the law.²¹

Their Honours assume that the term religion will have a consistent meaning across both statutory provisions and the Constitution. This is not an unreasonable approach but underlines the extent to which section 116 is treated as ‘ordinary law’ rather than dealt with in the realm of constitutional

rights. Indeed, the language used in the quotation above is in many ways more rights oriented and elevated than the judicial language deployed in many of the judgments that directly raise section 116.

Perhaps because of the complexities inherent in defining religion, there was no majority definition of religion in the case, with the five justices developing three different definitions between them. All of them, however, concluded that Scientology should be accepted as a religion for the purposes of the Act. It is not uncommon for cases dealing with Scientology or similar ‘new religious movements’ to provide the catalyst for a decision on the definition of religion in a number of jurisdictions,²² and by unanimously accepting Scientology as a religion for both statutory and constitutional purposes the High Court signalled a relatively broad and inclusive approach to the definition of religion.

The definition from the case which has had the most influence over time is that of the joint judgment of Mason ACJ and Brennan J. Their judgment tries to determine an ‘objective criterion’ against which groups that claimed to be religions could be tested.²³ To determine the content of that criterion, they looked to the ‘indicia exhibited by acknowledged religions’.²⁴ The judgment is therefore focused on a quasi-empirical approach rather than the more philosophical or even theological approaches taken by courts in some other jurisdictions.²⁵ Their Honours are cautious to ensure that the field of acknowledged religions is not limited to the Judaic religions because of the ‘diverse ethnic and cultural components of contemporary Australian society’, and so must include religions which are ‘not monotheistic or even theistic’.²⁶

Mason ACJ and Brennan J referred to a number of studies of religion and pointed out that it would be both impossible and improper for judges to make a determination about the true nature of religion.²⁷ They note, however, that they are obliged to come to a definition for legal purposes and note that this definition cannot simply be based on majoritarian preferences or prejudices or otherwise ‘the guarantees in s 116 of the Constitution would lose their character as a bastion of freedom’ given that ‘minority religions—not well established and accepted—stand in need of especial protection’.²⁸ (Again, it is noteworthy that their Honours focus so much on the constitutional implications of the case, even though the Constitution was not at issue in the case.)

After an examination of both scholarly work on religion and the case law of the United States Supreme Court, Mason ACJ and Brennan J set out a two-part test. A religion must consist of, first, a ‘belief in a supernatural Being, Thing or Principle; and second, the acceptance of canons of conduct in order to give effect to that belief’.²⁹

While they came to a slightly different definition, Wilson and Deane JJ adopted a similar approach by defining religion by reference to indicia or guidelines ‘derived by empirical observation of accepted religions’.³⁰ This approach is more flexible than the Mason/Wilson approach, as their Honours leave scope for change over time and for weighing different criteria differently depending on the particular context.³¹ In their judgment, Wilson and Deane JJ set out some of the more important indicia, including that the ideas and/or practices that purport to be religious involve belief in the supernatural.³² This criterion is sufficiently important that the justices doubted whether something can be a religion without it. Other indicia include ideas about man’s place in the universe and its relation to the supernatural, ideas about a code of conduct or standards, and an identifiable group that (though they were less certain about this) perceives itself as religious.³³ This judgment also reflects the difficulties that judges have in coming to a definition of religion that is wholly satisfactory, about which the justices were quite open.³⁴

Murphy J took a rather different approach to the definition issue—he was far less concerned than the others with the problems of fraud or any overly expansive definition (possibly because he viewed *all* religions with a jaundiced eye) and far more focused on ensuring sufficient inclusivity. He discussed a wide range of circumstances in which a group may be determined to be religious.³⁵ One theme common to his examples is that the group must claim to be religious. In addition, for Murphy J, it is sufficient if the group’s beliefs or practices ‘are a revival of, or resemble, earlier cults’, or if they believe in a ‘supernatural Being or Beings’ (including worship of a God, spirit, or the sun or stars), or if they offer to ‘find meaning and purpose in life’, or if they are Indigenous religions.³⁶ In addition, his Honour denies that a religion must require belief in a God,³⁷ or that it must claim exclusive access to religious truth,³⁸ or that it must have consistently

claimed religious status over time,³⁹ or that it must be involved with propitiation and propagation,⁴⁰ or that it must be accepted by the public.⁴¹

The very open-ended and indeterminate nature of the Murphy judgment and the complexities of the Wilson/Deane approach made each of them difficult in terms of application in broader legal contexts. It is therefore the comparatively simple and determinate Mason/Brennan test that has been taken up by and incorporated in other legal contexts in Australia.⁴² It has also been adopted by the Supreme Court of the United Kingdom.⁴³

The judgments in this case and the *dicta* comments of Latham CJ in the *Adelaide Company of Jehovah's Witnesses Case* reflect an open and nuanced approach to defining religion. Even in a judgment written while Australia was under active Japanese attack, Latham CJ references the importance of being inclusive of a wide range of religions that were quite different to the majority religions of Australia at the time, including Shintoism.⁴⁴ All of the judges who have examined the issue have been conscious of the dangers of being culturally narrow-minded or prejudiced in defining religion, and there has not been a significant case in Australia in which a group claiming to be a religion has been denied legal rights or privileges on the basis that it is not religious. It was also recognized early that section 116 protects not only religion but the 'right of a man to have no religion'.⁴⁵

Curiously, it is in the cases on the definition of religion in which the judges have used the most compellingly rights oriented language with respect to section 116. Such an approach might have signalled a commitment to the protection of freedom of religion which the Mason/Brennan judgement described as 'the paradigm freedom of conscience ... the essence of a free society'.⁴⁶ When the courts have turned to cases which could have given some substantive protection to the very wide groups of religions that have been accepted as deserving of protection, the approach of the High Court has become far more restrictive.

D. NON-ESTABLISHMENT OF RELIGION

1. The General Approach to Interpreting Section 116

There has been only one case that has engaged with the non-establishment clause in detail: *Attorney-General (Vic.) v Ex Rel Black v Commonwealth*⁴⁷ (more commonly known as the DOGS case, as one of the key parties was the Defence of Government Schools group). The case challenged the expenditure of Commonwealth government funding which was provided to the States on the proviso that it be used to fund non-government schools. Almost all such schools were religious and a substantial majority of them were Catholic. It was argued that such provision of funding violated the non-establishment clause by providing relatively direct Commonwealth funding for the support of religious purposes.⁴⁸

There is little doubt that such a case would have been successful in the United States at that time and the DOGS group argued, inter alia, that the case law of the Supreme Court on these matters should be followed because the non-establishment clause of section 116 was based on the equivalent provision in the United States Constitution.⁴⁹

Only Murphy J accepted these arguments with all the other justices rejecting them for a variety of reasons. At the heart of the disagreement between Murphy J and the other justices was a philosophical difference about the place and meaning of section 116 in the Commonwealth Constitution.

Justice Murphy's interpretative stance was influenced by the role that he argued section 116 played as a guarantee of constitutional rights:

The guarantees of personal freedom against the imposition of any religious observance and the prohibition of free exercise of any religion and the requirement of any religious test should be read widely consistently with their brevity and with constitutional usage. As I said in *Attorney-General (Cth) v Ex rel. McKinlay v. The Commonwealth* 'Great rights are often expressed in simple phrases.' It would detract greatly from the freedom of and from religion guaranteed by those clauses if they were to be read narrowly. In the same way the establishment clause should be read widely. To refuse to read the establishment clause with generality because so read it covers some of the ground covered by the other guarantees in s. 116 is to interpret s. 116 as if it were a clause in a tenancy agreement rather than a great constitutional guarantee of freedom of and from religion.⁵⁰

The barbed comment about a tenancy agreement was an implicit criticism of the approach of the other justices, all of whom denied that section 116

had a role to play in the protection of rights, except at the very high end of violations. Several justices were quite explicit about their belief that the section was not to be interpreted as a right. Stephen J, for example, stated that section 116 is ‘not, in form, a constitutional guarantee of the rights of individuals; ... instead takes the form of express restriction upon the exercise of Commonwealth legislative power’.⁵¹ He went on to note that it cannot be viewed as ‘the repository of some broad statement of principle concerning the separation of church and state, from which may be distilled the detailed consequences of such separation’. One reason for this is that ‘by fixing upon four specific restrictions of legislative power, the form of the section gives no encouragement to the undertaking of any such distillation’.⁵²

Once section 116 is seen as a restriction on the power of the legislature, it follows that the usual constitutional approach of reading such restrictions narrowly applies.⁵³ This approach brings the Court back into the familiar and comfortable territory of interpretation and connects the jurisprudence neatly with the traditional common law deference to parliamentary sovereignty.⁵⁴ It is the Commonwealth and the powers of the Commonwealth that are at the heart of the judicial enquiry rather than the individual and his or her rights.

Similarly, Mason J focuses on technical interpretative issues combined with an assumption that the primary role of section 116 is a restriction on power to justify distinguishing the approach to be taken in Australia from that taken in the United States:

Here, however, we are dealing, not with a grant of legislative power, but with a prohibition against the exercise of legislative power. In such a context ‘for’ is more limiting than ‘respecting’; ‘for’ connotes a connexion by way of purpose or result with the subject matter which is not satisfied by the mere circumstance that the law is one which touches or relates to the subject matter. In this respect the first prohibition in s. 116 is narrower than its American counterpart.⁵⁵

The focus given to this particular difference in words has a significant impact on the meaning of the provision. Along similar lines, Mason J continues that section 116 reflects more of a concern with ‘the establishment of one religion as against others’ compared to the United States Constitution because the First Amendment ‘speaks of the “establishment of religion”, not the “establishment of *any* religion”’. Although reference to the constitutional Debates was considered

impermissible at the time of the judgment, he bolstered this conclusion by reference to the church and state relationship in the United States and in the Australian colonies in the nineteenth century, which he argues ‘suggests that the first clause in s. 116 was the expression of a profound sentiment favouring religious equality in the Australian colonies’.⁵⁶

Wilson J likewise argued that the two constitutional provisions were divergent in ‘word and context’. The context is different because section 116 is not part of a Bill of Rights and the ‘plaintiffs’ claims that it represents a personal guarantee of religious freedom loses much of its emotive and persuasive force when one must add “but only as against the Commonwealth”’.⁵⁷

This combination of historical understanding and detailed statutory interpretation led all of the justices other than Murphy J to focus on the English experience of an established Church and to assume that it was a Church with such characteristics that the provision sought to prohibit. Once the semantic differences with the United States Constitution were exposed in this manner, the detailed and rich case law from the United States became irrelevant.

Justice Murphy alone dissented from this broad approach:

The United States’ decisions on the establishment clause should be followed. The arguments for departing from them (based on the trifles of differences in wording between the United States and the Australian establishment clauses) are hair-splitting, and not consistent with the broad approach which should be taken to constitutional guarantees of freedom.⁵⁸

The detailed work undertaken on the drafting history of section 116 by Luke Beck suggests that neither of these claims has quite the historical backing that they would suggest. Despite the very detailed and forensic analysis by the majority, the precise wording of the section was not really a result of careful thought about either the meaning of ‘respecting’ compared with ‘for’ or the insertion of the word ‘any’ before religion.⁵⁹ Such differences are more plausibly explained by a lack of attention to detail in the process. However, there is also no reason to ascribe to the founders the very broad approach to understanding the establishment clause that would have been the result of following the Murphy approach. At the time of drafting, the United States Supreme Court had not issued any judgments on the meaning of establishment in the United States Constitution and was

decades away from the robust interpretations that Murphy sought to follow.⁶⁰

As none of the justices took an explicitly originalist approach to interpreting the provision, the fact that their analysis does not track the historical development of the section is hardly fatal to the approach that they took. Yet both the majority and dissenter do use the historical context to bolster their case and neither of them give a wholly accurate reflection of that history.

2. The Meaning of Establishment

Despite the majority justices taking the same broad approach, there was no shared definition of establishment, but the judgments generally indicated that the danger against which section 116 protected was that of an established Church along the lines of the Church of England. There is no concern for ‘excessive entanglement’ or ‘a wall of separation between Church and State’ that have created reasonably strict barriers around government engagement with religion in the United States at various points in its history.⁶¹

Barwick CJ held that establishment involved ‘the identification of the religion with the civil authority so as to involve the citizen in a duty to patronize, protect and promote the established religion. In other words, establishing a religion involves its adoption as an institution of the Commonwealth’.⁶² Expressing broadly the same opinion in briefer terms, Gibbs J held that the Commonwealth could establish a religion only if it was to ‘constitute a particular religion or religious body as a state religion or a state church’.⁶³

Stephen J also discussed establishment in terms of creating a state church.⁶⁴ He did, however, sound a note of caution as establishment was created by the ‘sum total’ of a range of laws and that no ‘single element of those relations, viewed in isolation, itself creates establishment’.⁶⁵ He did not extrapolate that the danger that a religion may be established across a period of time and a collection of single instances, none of which in themselves are sufficient to breach section 116, may be an argument for a more critical scrutiny of each of the ‘single elements.’ This is arguably one of the concerns that underlies the stricter approach to establishment that the

United States courts have taken, as it can be difficult to know where precisely to draw the line between reasonable and unreasonable levels of intertwinement between religion and the state.

Mason J defined establishment as the ‘authoritative establishment or recognition by the State of a religion or a church as a national institution’.⁶⁶ Justice Wilson too linked the notion of establishment to the ‘recognition of a religion as a national institution’ and noted that this recognition results in a ‘reciprocal relationship between church and state which confers and imposes rights and duties upon both’, although he claimed that he did not need to develop the details of that relationship in his judgment.⁶⁷

Given this very narrow definition of establishment and interpretation of the meaning of the establishment clause of section 116, it is unsurprising that the five majority justices had no difficulty reaching the conclusion that the funding provisions that were challenged in this case fell far short of what was required for establishment (although some recognized that funding might be part of an establishment in the sense outlined in their judgement).⁶⁸

Unless this approach to interpreting section 116 is effectively challenged, it is therefore likely that the establishment clause is a dead letter.⁶⁹ It is hardly surprising that the most significant challenge to the role of religion in government (the schools’ chaplains cases) have basically been fought and won on the grounds of the spending power rather than section 116.⁷⁰ Given that Australian society is likely to become more religiously fragmented and diverse, the danger of establishment in the sense outlined by the majority is negligible and the incentives to bring further challenges low.⁷¹

E. FREE EXERCISE OF RELIGION

1. Approach to the Free Exercise Clause

The free exercise clause of section 116 had the potential to be one of the most potent provisions of the Constitution. The equivalent clause in the first amendment of the United States Constitution has generated a substantial case law dealing with issues from the rights of the Amish to withdraw their children from school at fourteen⁷² to Native American ceremonies using

banned peyote⁷³ to conscientious objection to military service.⁷⁴ In the United Kingdom, the religious freedom section in the *Human Rights Act* has also seen substantial use in recent years including with respect to wearing religious symbols at work,⁷⁵ slaughter of cattle,⁷⁶ and restrictions on religious dress in schools.⁷⁷ The Canadian Supreme Court has engaged with religious freedom issues including the wearing of a religious knife to school,⁷⁸ setting up a religious structure on an apartment balcony,⁷⁹ and photos on drivers' licences.⁸⁰

By contrast, the Australian High Court has taken such a restrictive—and at times hostile—approach to those seeking to assert their religious freedom rights under section 116 that it has discouraged further litigation.⁸¹ Various cases have taken a narrow approach to what behaviour is covered and an expansive view of the circumstances in which it is permissible for restrictions to be imposed.

As with establishment, these outcomes are influenced by an approach to section 116 that sees it as a restriction on government power (and therefore to be read restrictively) rather than as a rights provision. Even Gaudron J, whose approach to the issue, as discussed below, has been more nuanced than most, was clear and explicit in holding that section 116 acted as a limitation on the Commonwealth's power rather than a free-standing right. Amongst other things, this meant that while the High Court might hold that legislation that breached section 116 was invalid, there could be no right to compensation or other civil remedies such as those claimed by the plaintiffs in the particular case.⁸²

The High Court has given little consideration as to the meaning or content of the term free exercise. Quite a proportion of the relatively small number of cases which raise the issue have been dismissed with little or no reasoning—the meaning of the provision was assumed to be self-evident.

For example, a relatively early constitutional case involved a man who sought the chance to use section 116 to defend his refusal to attend the training required under the *Defence Act 1903* (Cth). He argued that his Christian beliefs required him to be a conscientious objector.⁸³ While conscientious objectors were, as far as practically possible, to be accommodated by working in non-combat roles, as a British male he still had obligations under the Act that he said conflicted with his religious beliefs.⁸⁴ The Justices dealt with the case in the briefest possible terms, with

Griffith CJ declaring the appellant's position as 'absurd'⁸⁵ and Barton J declaring that the case is 'as thin as anything of the kind that has come before us'.⁸⁶ There was no real reasoning given in the case with their Honours simply assuming that it was clear that this sort of claim was outside the boundaries of section 116—despite the fact that conscientious objection to military service cases have formed an important element of the religious freedom case law in many jurisdictions.⁸⁷

A similar lack of reasoning characterized the dismissal of a case brought by a man who refused, on the basis of religious conviction, to pay the portion of his taxation that would be used to provide for abortions⁸⁸ and to dismiss a claim that a legal obligation to reveal the contents of a religious confession was a breach of section 116.⁸⁹ Simpson J claimed that this later case was 'devoid of merit and entirely misconceived' despite the potentially serious implications for certain religious groups of the decision.⁹⁰ Religious confession is a well-established and seminal religious practice for a number of Christian religions—if intrusions into the confessional seal do not amount to a limitation of free exercise, it must be an extremely limited category.

Those cases which have given some consideration to the meaning of free exercise have indicated that it has some content while being less explicit about what might be included. An important step was the determination in the *Adelaide Company of Jehovah's Witnesses Case*,⁹¹ where Latham CJ denied that the provisions of section 116 apply only to religious beliefs, but extend also to actions. This was clear given that the wording of the section explicitly refers to the free *exercise* of religion. Thus, he concluded that the section goes beyond the protection of beliefs and 'protects also acts done in pursuance of religious belief as part of religion'.⁹² This was important as the United States Supreme Court had for a time developed a very restrictive interpretation of the free exercise provision by holding that it only applied to protect religious beliefs and not acts.⁹³ This has never been accepted in Australia.

Mason ACJ and Brennan J in the *Scientology Case*⁹⁴ touched on the connection between religious belief and action when they noted that 'religion encompasses conduct, no less than belief.'⁹⁵ Their Honours described religious action in broad terms, noting that in theistic religions it

will normally include some ritual observances but that, more broadly, religious actions are what ‘man feels constrained to do or to abstain from doing because of his faith in the supernatural’.⁹⁶ Obtaining the benefit of being religious (the tax relief in the *Scientology Case*) required the believer to show a ‘real connexion’ between the conduct and the belief in the supernatural.⁹⁷

This was the most detailed consideration given to the types of actions that might be covered by the free exercise provision but the comments are clearly dicta insofar as they have this purpose. Rather, in the context of the case, it was relevant with respect to which activities carried out by the Scientologists were subject to tax relief—it is not clear that the same considerations would play into the definition of free exercise for section 116.

One of the reasons that more consideration has not been given to the definition of free exercise is that, as with the establishment jurisprudence, the Court is focused more on restrictions on the power of the Commonwealth than on the rights of the individual. The most recent High Court case to consider free exercise was the ‘stolen generations’ case of *Kruger*.⁹⁸ In that case, the Aboriginal plaintiffs who had been taken from their parents under a law for the ‘protection’ of Aborigines complained that the law was invalid for a number of reasons, one of which was that it breached their free exercise of religion. (This was because Aboriginal children were taken away from their traditional lands and prohibited by the state-run institutions from exercising their traditional religious practices.) On one reading this could be a powerful case, with actions undertaken by the Commonwealth having had the effect of completely denying the children their religious freedom and connection with the traditional religious practices of their people.

The section 116 claim ended up attracting relatively little attention from the Court, with no real consideration of the way in which the actions of the Commonwealth impacted on the religious freedom of the children. Instead, the majority of justices focused in on the word ‘for’. As a law was only prohibited if it was ‘for’ limiting free exercise, it followed that the *purpose* of the law had to be such a restriction—it could not come about indirectly or as a result of a law that was ‘for’ a different purpose. In this case, the law itself did not mention religion (and fairly clearly had other purposes in mind) and thus the law could not be ‘for’ preventing the free exercise of

religion.⁹⁹ On this reasoning, a law must relatively directly and intentionally ban a religious practice for it to fall foul of section 116.

An important note of caution was sounded by Gaudron J with respect to this general approach. She rightly argued that there were two reasons for construing section 116 more liberally. The first was contextual and related to the power of the Commonwealth. The Commonwealth does not have a general power to legislate and has no specific power with respect to religion—thus a law that prohibits a religious practice would be invalid for lack of power and the free exercise clause would have no role to play.¹⁰⁰ The second reason was that courts should ‘construe constitutional guarantees liberally, even limited guarantees of the kind effected by section 116’.¹⁰¹ She also signalled a discomfort at the prevalent textual focus in interpreting section 116. She was concerned that the pedantic approach adopted by some justices, which focuses on whether the law was ‘for’ some other purpose even if it had the effect of limiting religious freedom, adopted an inappropriate approach to constitutional interpretation. It gives rise to the very real danger that governments could find ways to do indirectly what they could not do directly. Her Honour suggested that a better approach would be to interpret section 116 as extending ‘to laws which operate to prevent the free exercise of religion, not merely those which, in terms, ban it.’¹⁰²

Despite this serious and important criticism of the majority approach, the requirement that the law have the purpose of restricting free exercise remains the test today. Such an approach requires the single word ‘for’ to become the focus of the clause with little consideration as to how the protection of free exercise might be enlivened. The Court can then ask itself a relatively simple set of questions around the purpose of the law, again bringing the judges back into familiar territory of determining the purpose of a statute. Questions about the impact on the rights of individuals will almost never be a feature of the analysis that is undertaken.

A slightly different approach (or a variation on the purpose requirement) was set out in dicta in the *Scientology Case*. Mason ACJ and Brennan J made a rather wide claim that ‘general laws to preserve and protect society are not defeated by a plea of religious obligation to breach them’.¹⁰³ While they drew on the United States Supreme Court case of *Cantwell v Connecticut*¹⁰⁴ from the 1940s, they failed to note the Supreme Court’s

later decision in *Wisconsin v Yoder*,¹⁰⁵ which did allow a claim of religious freedom to prevail over a law of general application and had been followed since. The reasoning of the Supreme Court was a more detailed version of the concerns of Gaudron J—that if a general law could never be said to breach free exercise, the government can do indirectly that which could not be done directly. While the practical implications for the rights of the individuals affected would be the same, the legal results would be completely different. When taking a rights approach, that is an important consideration. When seeing the free exercise clause as a restriction on power, it is of less relevance.

Mason ACJ and Brennan J did make it clear, however, that there may be constitutional problems with laws that ‘discriminate against religion generally or against particular religions or against conduct of a kind which is characteristic only of a religion’.¹⁰⁶ The United States Supreme Court has taken a similar approach at times when its interpretation has been more restrictive.¹⁰⁷

2. Restrictions on Free Exercise

Another reason that the free exercise clause in section 116 has been ineffectual is that even when there has been a clear interference with religious freedom, such interference may be held to be constitutionally justified. It is widely recognized that religious freedom is not an absolute right—the right of one person to exercise his or her religious beliefs can often clash with the rights of others or can create serious problems that justify some level of restriction. At an extreme end, for example, no law-abiding society would allow religious groups to engage in burning heretics or stoning adulterers even if such groups sincerely believed that this was required by their religion.¹⁰⁸

Unlike more modern bills of rights,¹⁰⁹ the Australian Constitution does not expressly include a limitations clause that sets out the circumstances in which free exercise can be limited, but such limitations have been read in by the High Court over time. There is no consensus about what hurdle has to be overcome by the Commonwealth in order to demonstrate that the intrusion on free exercise is justified. The usual approach of the Court to section 116 that focuses on text and history is of little use here because there is no explicit test and little evidence of relevant historical context.

Again, there is limited case law that directly addresses this issue, with the most relevant case being that of the *Adelaide Company of Jehovah's Witnesses Case*.¹¹⁰ This case held that not every interference with religion is a breach of section 116, but only those that are an 'undue infringement[s] of religious freedom'.¹¹¹ In terms, it appears to strike a reasonable balance in theory between the legitimate interests of government and the rights of the individual. The formulation is brief, however, and the implications of the test have never been examined in detail. When combined with the notion that a law of general application cannot be a breach of section 116, even if it has serious implications for free exercise, it creates a fairly limited realm for religious freedom.

Even if the precise nature of the test for permissible restrictions on free exercise is unclear, the results for religious groups can be onerous. The leading case in this regard is the *Adelaide Company of Jehovah's Witnesses Case*, which considered government regulations that purported to dissolve the Jehovah's Witnesses because of their opposition to war and the detrimental effects that their preaching was said to have on morale. The case raised a number of issues including the scope of the defence power and the breadth of the enabling legislation. However, Latham CJ, with whom McTiernan J agreed, held that (with one exception)¹¹² the regulations were valid and that the Jehovah's Witnesses could be dissolved, at least for the duration of the war.¹¹³ Latham CJ's judgment was based in part on a very wide interpretation of the defence power of the Commonwealth, but it demonstrates the difficulty of ensuring religious freedom during times of national emergency and the extent to which provisions protecting rights can be read down by courts, especially when minority religious groups are involved.¹¹⁴

F. CONCLUSION

The case law and secondary literature on section 116 are remarkably thin compared to that of other jurisdictions with similar provisions. The very high bars that the courts have set for finding a breach of one of the clauses of section 116 have the virtue of not creating a tension between the establishment and free exercise clauses, as has sometimes been the case in the United States. When a non-establishment clause is interpreted

expansively, it runs the danger of cutting across an equally expansively interpreted free exercise clause. Consider the case of a public school in which a student group wishes to run a prayer group and in which student groups require a faculty sponsor. If such an activity is prohibited, it may fall foul of the free exercise provision. However, if the school appears to be giving official support to a religious group, it may appear to be breaching the prohibition on establishment.

The Australian jurisprudence gives rise to no such tension. Anything that amounted to an establishment in Australia would be likely to be so severe that it would also breach free exercise requirements. Beck argues that the founders were not entirely clear about the evil which section 116 was intended to prohibit, but that it probably was at the more serious end of religious oppression rather than intending section 116 to be interpreted as a broad, rights-protecting section. The case law to date certainly follows that general approach.

The Australian approach to interpreting the free exercise and establishment clauses has a certain coherence, and possibly a consistency with the intention of the founders (although such intention is hard to distil from historical records). However, it does mean that section 116 is almost redundant. By focusing in on highly traditional and generally black letter approaches to section 116, the High Court has kept within its comfort zone and largely dealt itself out of wider considerations of principle. In so doing, one of the few provisions in the Australian Constitution that could have provided for some protection of individual rights has thus far been rendered a dead letter.

¹ The literature in this area is vast. For some good introductory, comparative works, see: Silvio Ferrari and Rinaldo Cristofori (eds), *Law and Religion: An Overview*, vol 1, (Ashgate 2013); John Witte and M Christian Green (eds), *Religion and Human Rights: An Introduction* (OUP 2012).

² See, eg, Carolyn Evans, 'Constitutional Narratives: Constitutional Adjudication on the Religion Clauses in Australia and Malaysia' [2009] *Emory International Law Review* 23.

³ See, eg, *McCullum v Board of Education* 333 US 203 (1948); *Engel v Vitale* 370 US 421 (1962); *Abington School Dist. v Schempp* 374 US 203 (1963).

⁴ See, eg, *Employment Division, Department of Human Resources of Oregon v Smith* 494 US 872, 874–76 (1990).

⁵ See, eg, *Abington School Dist.* (n 3) 303 (Brennan J); *Aronow v United States* 432 F.2d 242 (1970) (United States Court of Appeals, Ninth Circuit).

⁶ Robert French, 'Religion and the Constitution' (Speech to WA Society of Jewish Jurists and Lawyers Inc, Perth, 14 May 2013) 2–7.

⁷ John Reynolds, 'A.I. Clark's American Sympathies and his Influence on Australian Federation' (1958) 32 Australian Law Journal 62, 67.

⁸ Clifford L Pannam, 'Travelling Section 116 With a US Road Map' (1963) 4(1) Melbourne University Law Review 41, 51–52.

⁹ Luke Beck, *The Foundations of Section 116 of the Australian Constitution: An Historical and Contextual Analysis* (PhD, University of Sydney 2016) 66–68.

¹⁰ Anne Winckel, 'Almighty God in the Preamble' (1999) 4 The New Federalist 78, 79–80.

¹¹ Richard Ely, *Unto God and Caesar: Religious Issues in the Emerging Commonwealth, 1891–1906* (Melbourne UP 1976) 21.

¹² Helen Irving, 'Fair Federalists and Founding Mothers' in Helen Irving (ed), *A Woman's Constitution? Gender and History in the Australian Commonwealth* (Hale and Iremonger 1996).

¹³ Richard Ely, 'Andrew Inglis Clark on the Preamble of the Australian Constitution' (2001) 75(1) Australian Law Journal 36.

¹⁴ Beck (n 9) 75–77.

¹⁵ Beck (n 9); Stephen McLeish, 'Making Sense of Religion and the Constitution: A Fresh Start for s116' (1992) 18(2) Monash University Law Review 207, 207, 219–21, 223. McLeish notes that, in one sense, the 'religion clauses resemble an exercise in cynical expediency' rather than a 'profound vision of Church and state in the new federation'.

¹⁶ *Adelaide Co of Jehovah's Witnesses Inc v Commonwealth* (1943) 67 CLR 116, 123.

¹⁷ See, eg, the Constitution of the Islamic Republic of Iran which in art 1 sets out the 'general principle' that Iran is an 'Islamic Republic, endorsed by the people of Iran on the basis of their longstanding belief in the sovereignty of truth and Qur'anic justice' with only limited rights for 'recognised minorities'.

¹⁸ See, eg, Kent Greenwalt, *Religion as a Concept in Constitutional Law* (1984) 72 California Law Review 752; Wojciech Sadurski, 'On Legal Definitions of "Religion"' (1989) 63 Australian Law Journal 834.

¹⁹ Although in *Church of the New Faith v Commissioner of Pay-roll Tax (Vic)* (1983) 154 CLR 120 ('*Scientology Case*') case, Mason ACJ and Brennan J warn that 'charlatanism is a necessary price of religious freedom' (at 141), and Wilson and Deane JJ also held that it is irrelevant to the determination of religious status whether members are 'gullible or misguided or, indeed, that they may be or have been deliberately misled or exploited' (at 171).

²⁰ *Pay-roll Tax Act 1971* (Vic), s 10. The factual background to the case is outlined in *Scientology Case* (n 19) 128–29 (Mason ACJ and Brennan J).

²¹ *Scientology Case* (n 19) 130.

²² For a useful recent case that includes the history of the United Kingdom not accepting Scientology as a religion see *R (Hodkin & Anor) v Registrar General of Births, Deaths and Marriages* [2013] UKSC 77.

²³ *Scientology Case* (n 19) 132.

²⁴ *ibid* 133.

²⁵ Compare to the use of the work of more theological authors by the United States courts, eg, Paul Tillich, *Theology of Culture* (OUP 1959) 7–8.

²⁶ *Scientology Case* (n 19) 133.

²⁷ *ibid* 133, 135.

²⁸ *ibid* 131–32.

- ²⁹ *ibid* 136.
- ³⁰ *ibid* 173.
- ³¹ *ibid*.
- ³² *ibid* 174.
- ³³ *ibid*.
- ³⁴ *ibid* 175.
- ³⁵ *ibid*.
- ³⁶ *ibid*.
- ³⁷ *ibid* 154–56.
- ³⁸ *ibid* 160.
- ³⁹ *ibid* 156–57.
- ⁴⁰ *ibid* 158.
- ⁴¹ *ibid* 159.
- ⁴² For an overview see: Carolyn Evans, *Legal Protection of Religious Freedom in Australia* (Federation Press 2012), 62–65.
- ⁴³ *Hodkin* (n 22).
- ⁴⁴ *Adelaide Company of Jehovah's Witnesses Case* (n 16) 124–25.
- ⁴⁵ *ibid* 123 (Latham CJ).
- ⁴⁶ *Scientology Case* (n 19) 130.
- ⁴⁷ *Attorney-General (Vic) ex rel Black v Commonwealth* (1981) 146 CLR 559.
- ⁴⁸ For an overview of the facts see: *ibid* 588 (Gibbs J), 643–48 (Wilson J).
- ⁴⁹ For a discussion of the relevant case law, see: *ibid* 625–30 (Murphy J).
- ⁵⁰ *ibid* 623 (Murphy J).
- ⁵¹ *ibid* 605 (Stephen J).
- ⁵² *ibid* 609 (Stephen J).
- ⁵³ See, eg, Mason J at *ibid* 615. Although Barwick CJ directly refuted that proposition saying ‘I can find no reason why the words of the Constitution should not be given their full effect, whether they be expressed in a facultative or prohibitory provision’ (at 577).
- ⁵⁴ See, eg, *Amalgamated Society of Engineers v Adelaide Steamship Co Ltd* (1920) 28 CLR 129; *Project Blue Sky Inc v Australian Broadcasting Authority* (1998) 194 CLR 355.
- ⁵⁵ *Black* (n 47) 616 (Mason J).
- ⁵⁶ *ibid* 615 (Mason J).
- ⁵⁷ *ibid* 652–53 (Wilson J).
- ⁵⁸ *ibid* 632 (Murphy J).
- ⁵⁹ Beck (n 9) 200–05.
- ⁶⁰ Beck in chapter 7 of his thesis (n 9) details the likely information about the United States position that was available to the drafters of the Australian Constitution.
- ⁶¹ For a useful overview see: John Witte and Joel A Nichols, *Religion and the American Constitutional Experiment* (Westview Press 2011) 169–206.
- ⁶² *Black* (n 47) 581.
- ⁶³ *ibid* 597.
- ⁶⁴ *ibid* 605.
- ⁶⁵ *ibid* 606.
- ⁶⁶ *ibid* 616.

⁶⁷ *ibid* 653.

⁶⁸ *ibid* 618 (Mason J).

⁶⁹ For a critique of the decision, see: Wojciech Sadurski, 'Neutrality of Law Towards Religion' (1990) 12 Sydney Law Review 420.

⁷⁰ The plaintiff tried unsuccessfully to use the prohibition against a religious test for an 'office ... under the Commonwealth'. The claim was dismissed with only brief discussion and the issue of establishment was not raised. *Williams v Commonwealth* (2012) 248 CLR 156, 222–23.

⁷¹ One unsuccessful attempt to challenge legislation on the basis that it infringed the non-establishment provision was *Nelson v Fish* (1990) 21 FCR 430, in which a litigant in person failed in his argument that he should be allowed to be a registered marriage celebrant as a minister of his own religion.

⁷² *Wisconsin v Yoder* 406 US 205 (1972).

⁷³ *Oregon* (n 4).

⁷⁴ *United States v Seeger* 380 US 163 (1965).

⁷⁵ *Eweida v British Airways plc* [2010] EWCA Civ 80.

⁷⁶ *R (on the application of Swami Suryananda) v Welsh Ministers* [2007] EWCA Civ 893.

⁷⁷ *R (Begum) v Governors of Denbigh High School* [2006] UKHL 15.

⁷⁸ *Multani v Commission scolaire Marguerite-Bourgeoys* 2006 SCC 6.

⁷⁹ *Syndicat Northcrest v Amselem* 2004 SCC 47.

⁸⁰ *Alberta v Hutterian Brethren of Wilson Colony* 2009 SCC 37.

⁸¹ An additional factor is that s 116 by terms is restricted to the Commonwealth whereas the United States Constitution applies also to the States and the *Human Rights Act* (UK) applies across the whole country. A number of issues of particular concern with respect to religious freedom in Australia (eg, religious education in State schools which has been particularly controversial) are within State rather than Commonwealth jurisdiction.

⁸² *Kruger v Commonwealth* (1997) 190 CLR 1, 125.

⁸³ *Krygger v Williams* (1912) 15 CLR 366.

⁸⁴ *Defence Act 1903* (Cth), s 143(3), cited in *Krygger* (n 83) 368.

⁸⁵ *Krygger* (n 83) 371.

⁸⁶ *ibid* 373. See also Barton J's conclusion (at 372) that 'the *Defence Act* is not a law prohibiting the free exercise of the appellant's religion', and Griffith CJ (at 369): 'The constitutional objection entirely fails.'

⁸⁷ *Bayatyan v. Armenia* [GC], no 23459/03, judgment of 7 July 2011; *United States v Seeger* 380 US 163 (1965).

⁸⁸ *Daniels v Deputy Commission of Taxation* [2007] SASC 114 (3 April 2007), [31]–[33] (David J).

⁸⁹ *SDW v Church of Jesus Christ of Latter-Day Saints* (2008) 222 FLR 84, 94–95 (Simpson J).

⁹⁰ *ibid* 95.

⁹¹ (1943) 67 CLR 116.

⁹² *ibid* 124.

⁹³ *Reynolds v United States* 98 US 145 (1878).

⁹⁴ *Scientology Case* (n 19).

⁹⁵ *ibid* 135.

⁹⁶ *ibid*.

⁹⁷ *ibid*.

⁹⁸ (1997) 190 CLR 1.

⁹⁹ *ibid* 40 (Brennan CJ), 60–61 (Dawson J), 86 (Toohey J).

¹⁰⁰ *ibid* 131. While this is a valid argument, as the legislative power of the Commonwealth came to be understood more expansively, it has lost some of its persuasive power as a law might simultaneously be ‘for’ multiple purposes.

¹⁰¹ *ibid*. Beck’s work, however, casts some doubt on this reasoning. He argues that the protection of religious freedom in s 116 was considered unnecessary by a number of delegates because the Commonwealth had no power to legislate with respect to religion. It was added in an abundance of caution because of Higgins’ concerns detailed above.

¹⁰² *ibid*.

¹⁰³ *Scientology Case* (1983) 154 CLR 120, 136. See also *Kruger* (n 82) 160 (Gummow J).

¹⁰⁴ 310 US 296 (1940).

¹⁰⁵ (n 72).

¹⁰⁶ *Scientology Case* (1983) 154 CLR 120, 136.

¹⁰⁷ See, eg, *Reynolds* (n 93); *Oregon* (n 4).

¹⁰⁸ There was a strange concern that s 116 might allow some violent religious practices when the issue was being discussed in the Convention Debates. For an overview see French (n 6) 4–6.

¹⁰⁹ Many of these are based on the International Covenant of Civil and Political Rights, which in art 18(3) says that religious freedom may only be limited when such limitations are ‘prescribed by law and are necessary to protect public safety, order, health, or morals or the fundamental rights and freedoms of others’.

¹¹⁰ *Adelaide Company of Jehovah’s Witnesses Case* (n 16).

¹¹¹ *ibid* 131 (Latham CJ).

¹¹² *ibid* 141 (Latham CJ), 157 (McTiernan J).

¹¹³ *ibid* 147–48 (Latham CJ), 157 (McTiernan J).

¹¹⁴ The Company of Jehovah’s Witnesses in Adelaide at the time had only around 200 members. The judgment of Williams J demonstrates the level of prejudice that could be found against the group: *ibid* 160.

CHAPTER 43

EQUALITY

DENISE MEYERSON

A. INTRODUCTION

THIS chapter considers the extent to which the Australian Constitution protects the right of individuals to equality and non-discrimination. It is not concerned with aspects of the Constitution that protect the States from discrimination at the hands of the Commonwealth. The Commonwealth is unable, for instance, to give preference to one State over another in relation to trade, commerce, or revenue, or to discriminate between States in laws relating to taxation. The kind of equality protected by these and related prohibitions is the equality of political entities that underpins a federal system. Equality of this kind is not the subject of this chapter, which is concerned solely with the extent to which the Constitution forbids the passing of laws that discriminate against individuals or that subject individuals who are the same in relevant respects to different treatment. As will be seen, the Constitution neither expressly nor impliedly contains a guarantee of general legal equality for individuals, although it does prohibit one kind of discrimination against individuals, namely, discrimination on the ground of out-of-State residence. Furthermore, there are some respects in which the Constitution expressly contemplates inequality, including race-based inequality—a singular fact that has been taken to defeat the notion that the Constitution contains an implied guarantee of equality.

B. ABSENCE OF AN EXPRESS GUARANTEE OF EQUAL PROTECTION

The Australian Constitution is unlike many democratic constitutions in not expressly granting a positive right to equal treatment or even containing a general guarantee of individual equality as a restriction on Commonwealth legislative power. This was a deliberate choice on the part of the framers. At the 1898 Constitutional Convention in Melbourne, the delegates rejected a comprehensive provision proposed by the legislature of Tasmania, which had been drafted by the Tasmanian Attorney-General, Andrew Inglis Clark. Clark's provision read as follows:

The citizens of each State, and all other persons owing allegiance to the Queen and residing in any territory of the Commonwealth, shall be citizens of the Commonwealth, and shall be entitled to all the privileges and immunities of the citizens of the Commonwealth in the several States, and a State shall not make or enforce any law abridging any privilege or immunity of citizens of the Commonwealth, nor shall a State deprive any person of life, liberty, or property without due process of law, or deny to any person within its jurisdiction the equal protection of the laws.¹

The final aspect of this provision replicated the Equal Protection clause of the Fourteenth Amendment to the United States Constitution, which was originally intended to secure the equal status of former slaves following the American Civil War. The Equal Protection clause provides that '[n]o state shall ... deny to any person within its jurisdiction the equal protection of the laws'.

Although the discussion of Clark's proposed provision was 'confused and wandering,'² perhaps as a result of its extensive reach and the delegates' unfamiliarity with some of the concepts, it appears that there were two main objections to the idea that an equal protection clause should be included in the Constitution. First, it was felt that the rights and freedoms of individuals were better protected via the democratic political process than by their constitutional entrenchment. In this respect, the framers preferred the British approach of responsible government to the American approach of rights-based fetters on the exercise of governmental power, regarding the American system as too distrustful of legislatures.³ Secondly, and less benignly, many of the delegates were concerned that an equality guarantee would restrict the ability of the States to pass racially discriminatory laws. It was feared, for instance, that Western Australian legislation that prevented Asians and Africans from obtaining miners' licences and Victorian factory legislation that discriminated against the Chinese might be struck down.⁴

C. ABSENCE OF AN IMPLIED GUARANTEE OF EQUAL PROTECTION

In the case of *Leeth v Commonwealth*,⁵ the High Court considered the question whether the Constitution contains an implied guarantee of general legal equality or general principle of non-discrimination against individuals. The case concerned the validity of a provision in the *Commonwealth Prisoners Act 1967* (Cth), which directed Chapter III Courts when sentencing federal offenders to determine the non-parole period by reference to the laws of the State or Territory in which the offender happened to be convicted. Since the minimum term of imprisonment varied greatly as between the different States and Territories, persons convicted of identical offences against the same Commonwealth law could be subjected to very different treatment, depending on where they were convicted.

The majority of the Court upheld the law, with three of the judges rejecting the idea that the Constitution impliedly forbids discrimination in the operation of Commonwealth laws. By contrast, two judges, Deane and Toohey JJ, held that the doctrine of legal equality contained in the common law had been incorporated in the Constitution by implication and that it prevents the enactment of laws that discriminate between people on irrational or irrelevant grounds (except where the implied limit would be inconsistent with the nature of a particular grant of legislative power), as well as laws that require courts to discriminate on such grounds in the exercise of the judicial power of the Commonwealth. They would have invalidated the challenged legislation for the first of these reasons.

Deane and Toohey JJ mentioned several considerations in support of the implied guarantee. First, they invoked the ‘conceptual basis’ of the Constitution in the free agreement of ‘the people’, implicit in which, they said, is ‘the notion of the inherent equality of the people as the parties to that compact’.⁶ Secondly, they took the view that certain restrictions on the manner in which Commonwealth judicial power can be exercised flow from the separation of judicial power and its exclusive vesting in designated courts in terms of Chapter III of the *Constitution*. They said that these courts must ‘exhibit the essential attributes of a court and observe, in the exercise of that judicial power, the essential requirements of the curial process, including the obligation to act judicially’, explaining that this requires a court to treat the parties before it ‘fairly and impartially as equals before the law and to refrain from discrimination on irrelevant or irrational

grounds'.⁷ Finally, they referred to other provisions in the Constitution that they saw as reflecting the doctrine of legal equality and announcing its status as an underlying principle, such as the provisions mentioned above that protect the States from discrimination at the hands of the Commonwealth. While the application of the *expressio unius est exclusio alterius* rule might seem to suggest that only the expressly mentioned forms of discrimination are prohibited—the express inclusion of one or more things of a class implying that other things of the same class are excluded—Deane and Toohey JJ took the view that the kinds of discrimination expressly prohibited by the Constitution are merely instantiations of a more general non-discrimination principle.

Gaudron J would also have invalidated the Commonwealth legislation but not on the basis that there is a general guarantee of legal equality in the Constitution preventing the Commonwealth from passing discriminatory laws—a notion that she rejected. Instead, she favoured only the narrower view that Chapter III of the Constitution supports a more limited guarantee of equal treatment before the courts. She stated that there are constraints on the way in which federal judicial power can be exercised and that the concept of equal justice (treating like persons alike) is fundamental to the judicial process in terms of Chapter III. Since she found that the impugned provision directed courts exercising federal jurisdiction to exercise power by reference to a criterion which would result in discrimination, she would have struck it down. The other judges did not, however, agree that the legislation required courts to act in a discriminatory manner. They were of the view that the legislation directed courts to treat all federal offenders similarly, by applying the minimum term provisions of the State or Territory in which the offender was convicted.

The idea of a general guarantee of equality was reconsidered in *Kruger v Commonwealth (Stolen Generations Case)*,⁸ in which it was argued that an ordinance authorizing the forced removal of Indigenous children from their families was invalid. The idea that the Constitution contains an implied guarantee of equal treatment was decisively rejected by the majority of the High Court.⁹ Several of the judges made the point (about which more will be said shortly) that there are many respects in which the Constitution contemplates inequality in the operation of laws made under it, undermining the case for such a guarantee.¹⁰ At the same time, the idea that

there might be a process-related dimension to the exclusive vesting of federal judicial power in Chapter III courts was treated more sympathetically, and Gaudron J's view about the non-discriminatory manner in which judicial power must be exercised may ultimately be maintained as an implication from Chapter III.¹¹ In this regard, recent cases regarding the inability of State Parliaments to remove the essential or defining characteristics of State courts—which characteristics include institutional integrity, independence, impartiality, and fairness¹²—may perhaps be brought to bear in support of the notion that equality of treatment before the courts is a constitutionally protected aspect of judicial process that cannot be removed by Commonwealth laws.¹³

D. PROHIBITION OF DISCRIMINATION ON THE BASIS OF OUT-OF-STATE RESIDENCE

The Tasmanian proposal had not only included a general equality guarantee modelled on the Fourteenth Amendment. Clark also believed that it was necessary for the Constitution to provide for a national or Commonwealth citizenship and to guarantee that no State would be able to pass legislation abridging the privileges and immunities conferred by citizenship of the Commonwealth.¹⁴ Clark was influenced here by Article IV, section 2 of the United States Constitution (the Privileges and Immunities clause), which provides, in the interests of common citizenship and national unity, that '[t]he citizens of each state shall be entitled to all the privileges and immunities of citizens in the several states'.

There was, however, resistance among the Convention delegates to the idea of a national citizenship to which positive rights would be attached. It seems that the main source of this resistance was the fear that Clark's proposal would prevent the States from passing racially discriminatory legislation, such as the Western Australian mining and Victorian factory legislation mentioned above.¹⁵ One delegate expressed concern that a citizenship clause might prevent New South Wales from legislating to stop a 'Chinaman' from Victoria from crossing its borders.¹⁶

In the end, a 'pale imitation'¹⁷ of the Privileges and Immunities clause (framed in the negative and stripped of all references to the guaranteed

privileges and immunities of citizens) found its way into the Australian Constitution in the form of section 117. Section 117 provides that:

A subject of the Queen, resident in any State, shall not be subject in any other State to any disability or discrimination which would not be equally applicable to him if he were a subject of the Queen resident in such other State.

This formulation was favoured on the ground that it did not preclude racially discriminatory laws, since such laws discriminate on the ground of colour and race, not on the ground of residence. Hence section 117 would not apply to them.¹⁸

The upshot is that although the Constitution does not contain a general guarantee of equality for individuals, it does prohibit discrimination against individuals on one particular ground, the ground of out-of-State residence, provided that the individuals are resident in a State and a subject of the Queen, where 'subject of the Queen' is now understood to refer to a subject of the Queen of Australia.¹⁹ The provision does not, however, prevent States from treating their own residents in discriminatory ways, or, for that matter, subjecting out-of-State residents to discriminatory treatment to which State residents are also subject.

In general, the protection conferred by section 117 has more to do with federalism considerations than the value of equality as a fundamental moral and political ideal. This ideal emerged in modern times as a counter to the hereditary hierarchies and privileged statuses of the feudal past. As the American Declaration of Independence famously proclaimed, 'all men are created equal'. When this Enlightenment idea is translated into constitutional provisions that protect equality as a fundamental right, all persons are guaranteed that they will be treated with equal consideration and respect, regardless of the group into which they happen to be born or their status. Contemporary guarantees primarily seek to prevent discriminatory treatment on the basis of 'suspect' characteristics such as race and sex, which have been used historically as grounds for disadvantaging and treating less favourably members of certain significant groups in society. A typical example of a contemporary constitutional equality guarantee is section 15 of the Canadian Charter of Rights and Freedoms, which provides:

- (1) Every individual is equal before and under the law and has the right to the equal protection and benefit of the law without discrimination and, in particular, without discrimination based on race, national or ethnic origin, colour, religion, sex, age or mental or physical disability.
- (2) Subsection 1 does not preclude any law, program or activity that has as its object the amelioration of conditions of disadvantaged individuals or groups including those that are disadvantaged because of race, national or ethnic origin, colour, religion, sex, age or mental or physical disability.

It is obvious that section 117's prohibition on discrimination on the ground of out-of-State residence does not speak to these kinds of moral concerns. Its purpose is the more limited federal purpose of ensuring that Australian residents are treated equally within each State.

Initially, the High Court interpreted section 117 very restrictively, so as to confer minimal protection, possibly out of a desire to protect 'States' rights'.²⁰ In the first section 117 case, *Davies v Western Australia*,²¹ an estate tax that applied at a higher rate to beneficiaries not 'bona fide residents of and domiciled in Western Australia' survived challenge on the basis that the law discriminated on the basis of both residence and domicile, not residence alone: residents of Western Australia who were not domiciled in Western Australia were also required to pay the higher rate.

Along similar lines, in *Henry v Boehm*,²² the High Court rejected a challenge to South Australian Rules of Court that required applicants for admission to practice who had previously been admitted in another State to reside continuously in South Australia for a certain period of time. The majority reasoned that since the rules required residence in South Australia only for a temporary period, not permanently, they did not discriminate on the ground of out-of-State residence. The majority also observed that residents of South Australia who had previously been admitted in another State were subject to the same requirement as out-of-State residents if they sought admission in South Australia—they, too, had to reside in South Australia. The majority concluded that the Rules did not discriminate between residents of South Australia and non-residents.

However, in *Street v Queensland Bar Association*,²³ the High Court reversed direction, expressly overruling *Henry v Boehm*. It had become apparent that the reasoning in *Henry v Boehm* was 'a triumph of form over substance'.²⁴ The *Street* case concerned Queensland admission rules. These rules required barristers who sought admission in Queensland based on prior admission as barristers elsewhere in Australia to reside in Queensland

and to cease practising elsewhere. Although the same requirements applied to Queensland residents who sought admission in such circumstances, the High Court focused attention in the *Street* case on the impact of the rules on out-of-State residents, rather than the form in which they were cast. The Court held that a requirement can be discriminatory on the ground of out-of-State residence even if it applies to both residents and non-residents. The key question is not whether the rule discriminates on its face on the ground of out-of-State residence, but whether the practical effect of the impugned rule is such as to impose a disproportionate burden on out-of-State residents. If so, the application of section 117 will be attracted. This was the case with the Queensland rules. It was beside the point that Queensland residents applying for admission in reliance on admission elsewhere also had to reside in Queensland, since they were not required to give up their place of residence. Likewise, although such individuals were prohibited from practising outside Queensland, they were not prohibited from practising where they resided.

Although the section 117 guarantee is not expressly qualified, the more generous interpretation of section 117 articulated in the *Street* case necessitated some consideration of the scope of the protection and its limits. That there must be implied limits to the operation of section 117 is obvious. For instance, it goes without saying that the section cannot apply when out-of-State residents are denied the right to vote in State elections. However, there was disagreement in the *Street* case as to the rationale for the exceptions and their extent. Some of the judges sought guidance from the United States jurisprudence under the Privileges and Immunities clause, whereas others found the United States cases unhelpful and took the view that section 117 is more protective than the Privileges and Immunities clause as interpreted by United States courts. Brennan J went so far as to say that section 117 is closer, conceptually, to the Fourteenth Amendment than the Privileges and Immunities Clause.

Cutting across this disagreement, there were further disagreements. Some of the judges made reference to the role of section 117 in creating national unity, while simultaneously emphasizing the need not to exceed the federal purpose of the section by giving it an interpretation that would unduly curtail the autonomy of the States. Others were less protective of State autonomy and took the more stringent view that any exceptions would have to be justified as necessary implications from the Constitution. Finally,

Gaudron J held that the words used in the section expressly indicate its purpose and consequently that there is no need to have recourse to an unexpressed federal purpose. Since the section speaks in terms of ‘disability or discrimination’, Gaudron J thought that the limits to its protection should be identified by reference to this phrase. Applying this approach, she explained that if there are relevant differences between out-of-State residents and residents within the legislating State, differential treatment appropriate to such differences is not discriminatory and does not fall foul of section 117. These various disagreements have not yet been resolved.²⁵

Two final points should be mentioned. First, successful reliance on section 117 will not, generally speaking, lead to invalidity of the infringing law. Instead, it appears that section 117 confers immunity from the operation of the infringing law on those individuals who would otherwise be affected by it. In so far as individuals not so affected are concerned, the law will remain valid.²⁶ Secondly, it has not yet been decided whether section 117 is applicable to Commonwealth laws. This issue was mentioned but not resolved in the *Street* case.

E. RACE AND INEQUALITY IN THE AUSTRALIAN CONSTITUTION

As noted above, one of the reasons why the High Court has held that there is no general constitutional implication of equality in the Constitution is the existence of provisions expressly sanctioning inequality and differential treatment. The unequal constitutional treatment of Indigenous Australians (Aboriginal and Torres Strait Islander peoples) is of most relevance for this discussion. The Constitution made no mention of Australia’s Indigenous peoples at the time of drafting other than in two singular sections, described as ‘highly negative in character’,²⁷ in which Indigenous Australians were mentioned only for purposes of exclusion. The sections were section 51(xxvi) and section 127. Section 51(xxvi) has been amended and section 127 deleted. In addition to these two provisions, there is a third race-based provision, section 25, which remains in the Constitution unaltered.

Section 51(xxvi), known as the ‘races power’, initially provided that the Commonwealth Parliament could legislate with respect to ‘the people of any race, other than the aboriginal race in any State, for whom it is deemed necessary to make special laws’. The Constitutional Convention Debates

make clear that the primary purpose of this section was to allow the Commonwealth to pass laws which discriminated against 'alien races'. Laws of this kind had previously been passed in the colonies and the States were to remain able to pass such laws, since the grant of legislative power to the Commonwealth was to be concurrent, not exclusive. It was expressly argued in favour of the provision that it would license discrimination of a kind that would be forbidden under the Fourteenth Amendment to the United States Constitution.²⁸ Edmund Barton remarked at the 1898 Convention that the section was required to enable the Commonwealth to 'regulate the affairs of the people of coloured or inferior races who are in the Commonwealth'.²⁹ In their summing up of the provision in their annotated commentary on the Constitution, John Quick and Robert Garran explained that '[i]t enables the Parliament to deal with the people of any alien race after they have entered the Commonwealth; to localise them within defined areas, to restrict their migration, to confine them to certain occupations, or to give them special protection and secure their return after a certain period to the country whence they came'.³⁰ In general, the prevalent attitude was of white superiority and indifference to the welfare of members of other races. To the extent that protective measures were contemplated, this was in respect of members of 'European races', such as Dutch and British subjects who had entered Australia.³¹ As to why Indigenous Australians were excluded from the operation of section 51(xxvi), the matter was not discussed in the Convention Debates.³² It seems clear, though, that the intention was not to protect them against discrimination at the hands of the Commonwealth. Instead, it was thought that laws relating to Indigenous peoples were a matter for the States.³³ It was also believed that Indigenous Australians were a dying race and that their future was unimportant.³⁴

Section 127, the other provision excluding Indigenous Australians, was titled 'Aborigines not to be counted in reckoning population' and provided that '[i]n reckoning the numbers of the people of the Commonwealth, or of a State or other part of the Commonwealth, aboriginal natives shall not be counted'. Section 127 was initially proposed in connection with certain transitional financial arrangements between the States and the Commonwealth that have long since ceased to operate. These arrangements governed the contribution the States were required to make to

Commonwealth expenses and the return of surplus Commonwealth revenue to the States. The apportionment of these expenses and reimbursements was to be in proportion to the population of the States, with Indigenous Australians being excluded from the population counts in terms of section 127. Then, at a late stage of drafting, section 127 was placed in the 'Miscellaneous' section, with the result that it also excluded Indigenous Australians from being counted for the purposes of section 24.³⁵ In terms of section 24, the number of members of the House of Representatives to be chosen in each State must be in proportion to the number of the people of each State. Section 127 excluded 'aboriginal natives' from being counted as among the relevant people of the State for purposes of section 24.

Yet a minority of Indigenous Australians had the right to vote in their States (and thereby the right to vote in Commonwealth elections by virtue of section 41 of the Constitution, provided that such rights existed prior to the establishment of a uniform franchise by the Commonwealth), and section 127 did not affect these entitlements. This meant that even those Indigenous Australians who had the right to vote in their State were not counted as part of the population of the State for purposes of determining the number of members of the House of Representatives to be chosen in that State.

This provision has been said to be 'blatantly discriminatory' and 'completely contrary to any notion of equality', precluding 'any implication of equality benefiting Aboriginal Australians' in respect of events prior to its deletion from the Constitution.³⁶ It has also been described as 'extraordinary'.³⁷ There is very little evidence as to why it was thought appropriate not to count Indigenous Australians for the purposes mentioned above. 'Practical difficulties' in enumerating their numbers may have played a contributing role.³⁸ Part of the explanation may be that some aspects of the operation of section 127 were financially beneficial for the States. When the section was debated at the Adelaide Convention in 1897, reservations expressed by a South Australian delegate were countered with the observation that when the time came to divide the expenses of the federal government per capita, the exclusion of 'aboriginal natives' would mean that 'South Australia will have so much the less to pay'. The clause was then agreed to without further discussion. The next year, in Melbourne, it was said that the section concerned the reckoning of the number of people

of a State where it would not be 'fair to include the aborigines'. Why this would not be fair was not explained.³⁹ Two recent commentators say that the purpose of section 127 was 'to prevent Queensland and Western Australia from acquiring more parliamentary seats or federal funds by virtue of their large Aboriginal populations. In this sense Aboriginal people were seen as a type of illegitimate population ballast, with no political significance or value.'⁴⁰

In 1967, a referendum was held to amend the Constitution. Although sections 51(xxvi) and 127 did not exclude Indigenous Australians from the rights of citizenship, the Constitution did not prohibit legislation with that effect.⁴¹ Growing concern about the dispossession of Indigenous Australians, their shamefully discriminatory treatment, and their seriously disadvantaged circumstances, coupled with the constitutional restriction on the Commonwealth Parliament's ability to make special laws to assist them, culminated in a proposal to remove the negative and exclusionary references to Indigenous Australians from the Constitution. It was proposed, in particular, that section 127 should be deleted and that the race power should be amended by deleting the words 'other than the aboriginal race in any State'.

There was overwhelming, record-breaking support for the amendments among Australian electors, signalling the end of constitutional exclusion. The changes were not, however, accompanied by the constitutional recognition of Aboriginal and Torres Strait Islander peoples as the first peoples of Australia or by an acknowledgement of their connection to country. Nor were any rights conferred on them. Instead, the result of the 1967 referendum was simply the erasure of all references to Indigenous Australians in the Constitution. Here a contrast can be drawn with other constitutions, such as the Canadian Constitution, which in section 35 recognizes and affirms 'the existing aboriginal and treaty rights of the aboriginal peoples of Canada'. Furthermore, the only change to the races power involved the removal of an exception to it. It remained otherwise intact, raising difficult questions about whether it remains a source of power for racially discriminatory legislation.

This question was canvassed in *Kartinyeri v Commonwealth* (the *Hindmarsh Island Bridge Case*).⁴² The case concerned the validity of the *Hindmarsh Island Bridge Act 1997* (Cth), which restricted the operation of

another Act, the *Aboriginal and Torres Strait Islander Heritage Protection Act 1984* (Cth). The latter Act allows the Minister to make declarations in relation to the protection and preservation of areas and objects ‘of particular significance to Aboriginals’. The former Act denied the Minister the authority to make such declarations in two specific areas, thereby adversely altering the position of certain Ngarrindjeri people who had made an application under the *Heritage Act* in relation to these areas before the commencement of the *Bridge Act*. The question was whether the *Bridge Act* was supported by section 51(xxvi).

For some of the judges, this question could not be answered without determining whether the scope of the races power had been cut down by virtue of the amendment to section 51(xxvi) of the Constitution. On the view argued for by the plaintiffs, the effect of the amendment was to limit the use of the races power to the enactment of laws for the benefit of members of a particular race (or, in the alternative, to the enactment of laws for the benefit of members of the Aboriginal race). On the opposing view, the amendment merely placed Aboriginal and Torres Strait Islander peoples in the same position, constitutionally speaking, as the people of other races. That is, it simply extended to them the Commonwealth Parliament’s original power to pass laws for the people of any race, including the power to enact adversely discriminatory legislation. The Commonwealth Solicitor-General argued in favour of the latter view, stating that the power is unlimited and, indeed, that it has ‘direct racist content’.⁴³

Gummow and Hayne JJ favoured the latter view, holding that the power is not confined to beneficial laws and can be used to affect adversely the people of any race (unless, perhaps, Parliament has ‘manifestly abused’ its power). By contrast, Kirby J held that the 1967 amendment reflected the intention that section 51(xxvi) should authorize only positive or beneficial laws. He said that to find otherwise would be ‘a complete denial of the clear and unanimous object of the Parliament in proposing the amendment ... It would amount to a refusal to acknowledge the unprecedented support for the change, evident in the vote of the electors of Australia’.⁴⁴ Gaudron J agreed with Gummow and Hayne JJ in relation to the effect of the amendment. According to her, it merely removed an exception to the power and did not alter its nature. Hence if section 51(xxvi) were simply a power to legislate with respect to the people of any race, there could be no doubt that it could authorize detrimental laws. At the same time, she took the view

that the words ‘for whom it is deemed necessary to make special laws’ impose a limit on what would otherwise be the unrestricted scope of the races power. She stated that a special law could be necessary only if Parliament could reasonably judge that there is a relevant difference between the people of the race to whom the law is directed and the people of other races, such as to require the differential treatment. She also thought that the special law must be reasonably capable of being viewed as appropriate and adapted to the relevant difference. Finally, she found it difficult to believe that it could ever be ‘necessary’ to make laws that operated to the disadvantage of a racial minority, and she found this even more difficult in the case of Indigenous Australians, since the only relevant difference on which such laws could be based would be their serious disadvantage, and ‘only laws directed to remedying their disadvantage could reasonably be viewed as appropriate and adapted to their different circumstances’.⁴⁵ Gaudron J’s approach would likely lead to the same outcome as Kirby J’s approach, at any rate in the case of Indigenous Australians, albeit by a different route. The remaining two judges did not find it necessary to consider the scope of section 51(xxvi).

Since there was no majority regarding the scope of section 51(xxvi) in the *Hindmarsh Island Bridge Case*, the matter remains unresolved and it is possible, even likely, that the Constitution still authorizes detrimental treatment on the basis of race. Many commentators consequently believe that the races power should be repealed, and that a power should be conferred on the Commonwealth Parliament to make laws with respect to Aboriginal and Torres Strait Islander peoples, so that the Commonwealth can continue to make laws on matters such as heritage protection and native title. It would, however, have to be made clear that the power is confined to beneficial laws. There are a variety of possible ways to prevent a power of this kind from being used to legislate to the detriment of Indigenous Australians. One expedient, based on the recommendations of the Expert Panel on Constitutional Recognition of Indigenous Australians,⁴⁶ would be to couple the new grant of legislative competence with a constitutional guarantee of non-discrimination on the ground of race, with the guarantee itself qualified by an exception for special measures designed to redress disadvantage and past discrimination and to protect the cultures, languages, or heritage of any group. Alternatively, protection against adverse racial discrimination might be guaranteed only to Aboriginal and Torres Strait

Islander peoples.⁴⁷ A referendum would need to be held on these matters before any amendments could be made.

Finally, the third provision in the Constitution that mentions race, namely, section 25, provides that if a State disqualifies all persons of a race from voting in State elections for the more numerous (that is, lower) House of the State Parliament, then ‘in reckoning the number of the people of the State or of the Commonwealth, persons of that race resident in that State shall not be counted’. The reckoning in question refers back to section 24, which provides, as explained above, that the number of members of the House of Representatives to be chosen in each State must be in proportion to the respective numbers of their people. Section 25 was influenced by section 2 of the Fourteenth Amendment to the United States Constitution, which provides that if a State denies the right to vote to any male inhabitants of the State who have attained twenty-one years of age and are United States citizens, its representation in the House of Representatives will be proportionately reduced, unless the citizens in question have participated in rebellion or other crime. As with the Equal Protection clause and the Privileges and Immunities clause, it was Clark who had pressed for the inclusion of a comparable provision in the Australian Constitution.⁴⁸

Section 25 has a protective effect, in as much as it provides that a State that withholds voting rights on racial grounds will be penalized by a reduction in its representation in the Commonwealth Parliament. This penalty did not, however, serve to deter the disenfranchisement of Indigenous Australians prior to the 1967 amendments, since in terms of section 127 they could not be counted for purposes of apportioning federal representation among the States, whether or not they could vote in a State. Withholding voting rights from Indigenous Australians consequently did not put States at any numerical disadvantage in Parliament.⁴⁹

Now that section 127 has been repealed, section 25 is a disincentive to disenfranchising Indigenous Australians (along with members of other races). However, the disincentive is no longer necessary, since it is highly unlikely that any State would discriminate in this way today. Furthermore, the character of the ‘remedy’ for racial disenfranchisement is troubling. Section 25 discourages racial disenfranchisement by a State by notionally ‘subtracting’ the members of the discriminated against race from the population of the State for purposes of calculating the number of members of the House of Representatives to which the State is entitled. Although

recourse to this measure would not make members of the race any worse off legally than the State has already made them, it would add symbolic insult to the original injury, sending a message of inequality and marginalization comparable to the message previously sent by section 127.⁵⁰

A further concern about section 25 is that it may undermine any attempt to draw an implication from the Constitution that there must be a universal franchise at State level, corresponding to the implication requiring a universal Commonwealth franchise.⁵¹ Certainly, section 25 has been thought to defeat other implications. For instance, it has been used to support the view that the Constitution does not require electoral divisions that are roughly equal in size.⁵² Section 25 was also mentioned in the *Stolen Generations Case* as supplying a reason for rejecting the view that there is an implied constitutional guarantee of equality.⁵³ It is therefore quite possible that section 25 could also be used to negative an implication that the States must have universal franchises. For all of these reasons, its repeal is now widely favoured.

F. CONCLUSION

The Australian Constitution contains no general constitutional guarantee of equal treatment for individuals, which means that there is no legal obstacle to the Commonwealth Parliament enacting laws that treat people differently on arbitrary or irrelevant grounds. Moreover, section 25 reflects past practices of racial disenfranchisement and the races power specifically authorizes the Commonwealth Parliament to make laws on the basis of race. It has not been decided whether the 1967 amendments to the Constitution impliedly cut down on the scope of the races power by preventing the Parliament from passing laws that discriminate against people of particular races. However, if current efforts to secure recognition for Aboriginal and Torres Strait Islander peoples in the Constitution are successful, it is likely that the Constitution will in the future provide express protection against racially discriminatory laws at least for Indigenous Australians, and possibly all Australians, depending on what model of recognition is ultimately chosen.

- ¹ John A La Nauze, *The Making of the Australian Constitution* (Melbourne UP 1972) 230.
- ² Haig Patapan, 'The Dead Hand of the Founders: Original Intent and the Constitutional Protection of Rights and Freedoms in Australia' (1997) 25 *Federal Law Review* 211, 226.
- ³ *ibid* 231–32.
- ⁴ La Nauze (n 1) 231–32.
- ⁵ (1992) 174 CLR 455.
- ⁶ *ibid* 486.
- ⁷ *ibid* 487.
- ⁸ (1997) 190 CLR 1.
- ⁹ See also *Putland v The Queen* (2004) 218 CLR 174.
- ¹⁰ *Kruger* (n 8) 44–45 (Brennan CJ), 64 (Dawson J), 113 (Gaudron J), 155 (Gummow J).
- ¹¹ Cheryl Saunders and Megan Donaldson, 'Values in Australian Constitutionalism' in Dennis Davis, Alan Richter, and Cheryl Saunders (eds), *An Inquiry into the Existence of Global Values through the Lens of Comparative Constitutional Law* (Hart Publishing 2015) 35.
- ¹² *Assistant Commissioner Condon v Pompano Pty Ltd* (2013) 252 CLR 38, 103 (Hayne, Crennan, Kiefel and Bell JJ).
- ¹³ Nicholas Aroney, Peter Gerangelos, Sarah Murray, and James Stellios, *The Constitution of the Commonwealth of Australia: History, Principle and Interpretation* (CUP 2015) 585–86.
- ¹⁴ John M Williams, 'Race, Citizenship and the Formation of the Australian Constitution: Andrew Inglis Clark and the "14th Amendment"' (1996) 42 *Australian Journal of Politics and History* 10, 12.
- ¹⁵ *ibid* 13–14.
- ¹⁶ Brian Galligan and John Chesterman, 'Aborigines, Citizenship and the Australian Constitution: Did the Constitution Exclude Aboriginal People from Citizenship?' (1997) 8 *Public Law Review* 45, 57.
- ¹⁷ John M Williams, '"With Eyes Open": Andrew Inglis Clark and Our Republican Tradition' (1995) 23 *Federal Law Review* 149, 178.
- ¹⁸ George Williams, 'Race and the Australian Constitution: From Federation to Reconciliation' (2000) 38 *Osgoode Hall Law Journal* 643, 650.
- ¹⁹ Following *Nolan v Minister for Immigration and Ethnic Affairs* (1988) 165 CLR 178, as affirmed in *Street v Queensland Bar Association* (1989) 168 CLR 461, 505 (Brennan J), 525 (Deane J), 541 (Dawson J), 554 (Toohey J), 572 (Gaudron J).
- ²⁰ Genevieve Ebbeck, 'Section 117: The Obscure Provision' (1991) 13 *Adelaide Law Review* 23, 26.
- ²¹ (1904) 2 CLR 29.
- ²² (1973) 128 CLR 482.
- ²³ (1989) 168 CLR 461.
- ²⁴ *ibid* 523 (Deane J).
- ²⁵ For discussion of the differences of opinion in the *Street* case, see Michael Mathieson 'Section 117 of the Constitution: The Unfinished Rehabilitation' (1999) 27 *Federal Law Review* 393; Amelia Simpson, 'The (Limited) Significance of the Individual in Section 117 State Residence Discrimination' (2008) 32 *Melbourne University Law Review* 639.
- ²⁶ *Street* (n 23) 486 (Mason CJ), 502–03 (Brennan J).
- ²⁷ Geoffrey Sawer, 'The Australian Constitution and the Australian Aborigine' (1966–1967) 2 *Federal Law Review* 17, 17.

²⁸ John M Williams and John Bradsen, ‘The Perils of Inclusion: The Constitution and the Race Power’ (1997) 19 *Adelaide Law Review* 95, 111–12.

²⁹ Williams (n 18) 649.

³⁰ *ibid.*

³¹ Sawyer (n 27) 18, 22–23.

³² *ibid.* 18.

³³ Brian Galligan and John Chesterman, ‘Aborigines, Citizenship and the Australian Constitution: Did the Constitution Exclude Aboriginal People from Citizenship?’ (1997) 8 *Public Law Review* 45, 47.

³⁴ Sawyer (n 27) 18.

³⁵ La Nauze (n 1) 68.

³⁶ *Kruger* (n 8) 113 (Gaudron J).

³⁷ Sawyer (n 27) 25.

³⁸ These difficulties were mentioned in the case for deleting s 127 that was put to the people of Australia in 1967. As to the outcome of which, see the discussion below.

³⁹ For discussion of these matters, see Anne Twomey, ‘An Obituary for s 25 of the Constitution’ (2012) 23 *Public Law Review* 125, 131–32.

⁴⁰ Hilary Charlesworth and Andrea Durbach, ‘Equality for Indigenous Peoples in the Australian Constitution’ (2011) 15 *Australian Indigenous Law Review* 64, 64.

⁴¹ Galligan and Chesterman (n 33) 45–46.

⁴² (1998) 195 *CLR* 337.

⁴³ Williams (n 18) 654.

⁴⁴ *Kartinyeri* (n 42) 413.

⁴⁵ *ibid.* 367.

⁴⁶ Expert Panel on Constitutional Recognition of Indigenous Australians, *Recognising Aboriginal and Torres Strait Islander Peoples in the Constitution: Report of the Expert Panel* (2012).

⁴⁷ For discussion of this and other options, see Anne Twomey, ‘A Revised Proposal for Indigenous Constitutional Recognition’ (2014) 36 *Sydney Law Review* 381.

⁴⁸ Twomey, ‘Obituary’ (n 39) 126–27.

⁴⁹ Elisa Arcioni, ‘Excluding Indigenous Australians from “The People”: A Reconsideration of Sections 25 and 127 of the *Constitution*’ (2012) 40 *Federal Law Review* 287, 306–07.

⁵⁰ cf *ibid.* 294–95, 308.

⁵¹ Twomey, ‘Obituary’ (n 39) 141.

⁵² *Attorney-General; Ex rel McKinlay v Commonwealth* (1975) 135 *CLR* 1, 20 (Barwick CJ), 58 (Stephen J). For discussion, see Twomey, ‘Obituary’ (n 39) 136.

⁵³ *Kruger* (n 8) 64 (Dawson J), 112–13 (Gaudron J).

CHAPTER 44

LEGALITY

DAN MEAGHER*

A. INTRODUCTION

THE principle of legality is a strong common law presumption of statutory interpretation. It holds that ‘courts should not impute to the legislature an intention to interfere with fundamental rights. Such an intention must be clearly manifested by unmistakable and ambiguous language.’¹ The principle has a long, though not always distinguished, common law pedigree as will be detailed below.² Yet in contemporary Australian law, and the common law world more generally, it has become the pre-eminent interpretive tool deployed by judges to protect common law rights, freedoms, and principles in the face of an ever-expanding and intrusive statute book.³ Indeed what is arguably its most famous and normatively influential exposition comes from the United Kingdom. In the House of Lords decision in *Simms*, in a passage routinely endorsed by senior appellate courts in Australia, Lord Hoffman observed:

[T]he principle of legality means that Parliament must squarely confront what it is doing and accept the political cost. Fundamental rights cannot be overridden by general or ambiguous words. This is because there is too great a risk that the full implications of their unqualified meaning may have passed unnoticed in the democratic process. In the absence of express language or necessary implication to the contrary, the courts therefore presume that even the most general words were intended to be subject to the basic rights of the individual.⁴

However, what is fascinating, controversial, and question begging are judicial statements that suggest the principle of legality has a constitutional dimension or status in contemporary Australian law. Consider the following statement made by French CJ of the High Court of Australia in a 2010

speech titled (not insignificantly) ‘Protecting Human Rights Without a Bill of Rights’ delivered to the John Marshall Law School in Chicago: ‘the [principle of legality] can be regarded as “constitutional” in character even if the rights and freedoms which it protects are not’.⁵ The characterization of a common law presumption as ‘constitutional’ seems counter-intuitive and what that might entail as an interpretive matter remains largely unexplored by Australian courts. Yet this development has arguably coincided with and is an important part of the High Court’s elevation of the rules and principles of statutory interpretation in Australia to the constitutional realm. As Basten J has observed extra-judicially ‘[t]he High Court has somewhat enigmatically recognised the constitutional significance of the rules of statutory interpretation, for example in *Zheng v Cai*’.⁶ Dyson Heydon recently suggested in this regard ‘that whenever the High Court starts talking about its constitutional position, or that of the courts more generally, it is time to reach for one’s gun.’⁷

The principle of legality has a healthy operation in ensuring that deprivation [of individual rights or freedoms] will not take place unless the legislative language is clear. What is added by seeking to explain the ideas underlying legislative intention and the principle of legality by reference to what the legislature understands about its constitutional relationship with the judiciary?⁸

In any event, this chapter will seek to identify and explore the relationship between the common law principle of legality and the Australian Constitution. To this end, the final section of the chapter—[section E](#)—will consider in some detail how the courts might use the Constitution to provide a stronger normative justification for the principle, better fix the content of the rights it operates to protect, and inform the manner in which it is applied. The analysis undertaken is based on the view that much of the recent (and likely future) development of the principle in Australia—indeed the principles of statutory interpretation more generally—may well be constitutionally driven. In order to do so the present status of the principle of legality will be outlined in [section B](#), its evolution in Australian law traced ([section C](#)), and the key points of doctrinal controversy and methodological disagreement identified ([section D](#)).

What emerges is, I think, both fascinating and extraordinary. In recent case law every member of the High Court has endorsed the core concept of

the principle of legality and its value to the citizen in our age of statutes. Yet in fundamental respects the core content of the principle remains soft (which rights, freedoms, and principles are fundamental and why?), its scope indeterminate (are considerations of justification and proportionality relevant?), and the normative justification for its robust contemporary deployment by Australian courts contested. The position of the common law principle of legality in Australian law is, then, at once assured and elusive.

B. CONTENT

In *X7*⁹ and *Lee No 1*¹⁰ every member of the High Court in either one or both decisions endorsed the following passage from the judgment of Mason CJ, Brennan, Gaudron and McHugh JJ in *Coco*:

The insistence on express authorization of an abrogation or curtailment of a fundamental right, freedom or immunity must be understood as a requirement for some manifestation or indication that the legislature has not only directed its attention to the question of the abrogation or curtailment of such basic rights, freedoms or immunities but has also determined upon abrogation or curtailment of them. The courts should not impute to the legislature an intention to interfere with fundamental rights. Such an intention must be clearly manifested by unmistakable and unambiguous language. General words will rarely be sufficient for that purpose if they do not specifically deal with the question because, in the context in which they appear, they will often be ambiguous on the aspect of interference with fundamental rights.¹¹

In doing so the High Court has identified and emphatically endorsed the core concept of the principle of legality—that Parliament must consider and then consciously decide whether its legislation is to infringe fundamental rights and freedoms. ‘That is not a low standard’ as Kiefel J observed in *X7*.¹² And the rights-protective capacity of the principle is further enhanced by the fact that its application does not require ambiguity on the face of the relevant statute.¹³ As French CJ explained in *Momcilovic*, the principle ‘requires that statutes are construed, where constructional choices are open, to avoid or minimize their encroachment upon rights and freedoms at common law’.¹⁴ Our courts do so by proceeding from the interpretive premise that a statute does not infringe fundamental rights and freedoms. So when Parliament legislates it does so against this pre-existing common law (rights) backdrop that can be trumped only by statutory language that is irresistibly clear and precise as to the rights issue in legislative play.

The principle of legality must, then, yield when a statute makes clear that a fundamental right or freedom is to be curtailed or abrogated. In order to do so Parliament must ‘squarely confront’¹⁵ and then consciously decide—using ‘clear and unequivocal [statutory] language’¹⁶ to express that decision—that the relevant right, freedom, or principle in legislative play is to be infringed. That is the requirement and rights-protective strength of the principle. The authorization for such infringement must be done expressly or by necessary implication.¹⁷ In terms of the latter, the High Court said in *Coco* that ‘[s]uch an implication may be made, in some circumstances, if it is necessary to prevent the statutory provisions from becoming inoperative or meaningless’.¹⁸ That sets a very high bar indeed. Not surprisingly the Court has said that the statutory infringement of fundamental rights and freedoms by necessary implication would be ‘very rare ... as general words will almost always be able to be given some operation, even if that operation is limited in scope’.¹⁹ It is, however, possible as the High Court’s recent decisions in *SIO*²⁰ and *Lee No 1*²¹ demonstrate.

Importantly, the principle applies to both primary and secondary (or delegated) legislation.²² In terms of the latter, as Heydon J explained in *City of Adelaide*, ‘[t]he principle of legality can apply both to parliamentary legislation creating a power to make delegated legislation, and to the delegated legislation itself’.²³ But as Dennis Pearce and Stephen Argument rightly point out the ‘effect in regard to such [delegated] legislation is very different from [its] effect in relation to Acts’.²⁴ Delegated legislation may only infringe common law rights, freedoms, and principles if the empowering statute provides that power expressly or by necessary implication.²⁵ So if delegated legislation infringes fundamental rights without clear parliamentary authorization the application of the principle will operate to invalidate it or, if interpretively possible, result in its reading down to protect the right, freedom, or principle engaged.²⁶ In either case the potency and rights-protective capacity of the principle of legality in the context of delegated legislation is apparent. Indeed it is worth noting that *Simms* involved the application of the principle to secondary not primary legislation. The result was a successful challenge to prison rules that infringed the common law right to freedom of expression of the relevant prisoners without clear parliamentary authority. Relevantly, Lord Hoffman

concluded that '[w]hat this case decides is that the principle of legality applies to subordinate legislation as much as to acts of Parliament'.²⁷

In terms of the rights, freedoms, and principles presently considered fundamental at common law, a consensus of sorts has emerged. In Australia, for example, French CJ writing extra-judicially has provided the following non-exhaustive list:²⁸

- the right of access to the courts;
- immunity from deprivation of property without compensation;
- legal professional privilege;
- privilege against self-incrimination;
- immunity from the extension of the scope of a penal statute by a court;
- freedom from extension of governmental immunity by a court;
- immunity from interference with equality of religion;
- the right to access legal counsel when accused of a serious crime;
- no deprivation of liberty, except by law;
- the right to procedural fairness when affected by the exercise of public power;
- freedom of speech and movement.

To these we can add the right to open justice, freedom from retrospective criminal laws, and *mens rea* as an element of crimes created by statute.²⁹

The upshot, as Paul Finn first observed in 1992 and Spigelman CJ more recently in his 2008 McPherson lectures, is that this catalogue of rights, freedoms, and principles may be said to constitute a 'common law bill of rights'.³⁰ But less clear is how and when they become fundamental at common law and the criteria used by the courts to recognize them as such. Relevantly, Brennan J observed in *Re Bolton*:

Many of our fundamental freedoms are guaranteed by ancient principles of the common law or by ancient statutes which are so much part of the accepted constitutional framework that their terms, if not their very existence, may be overlooked until a case arises which evokes their contemporary and undiminished force.³¹

This suggests that statutes can be the original source of fundamental common law rights and freedoms. So the origins of the common law rights

to liberty, habeas corpus, property, a fair trial and due process might well be traced to *Magna Carta* and the later *Petition of Right 1628*.³² Moreover in *Buck v Comcare*, in the context of interpretively protecting a *statutory* right of an employee to workers compensation, Finn J observed:

To confine our interpretative safeguards to the protection of ‘fundamental common law rights’ is to ignore that we live in an age of statutes and that it is statute which, more often than not, provides the rights necessary to secure the basic amenities of life in modern society.³³

It may be, then, that the longevity and durability of a right, freedom, or principle applied by the courts (whatever its original or continuing legal source—common law, statute, the Constitution, customary law, international law) is what is judicially decisive in this regard.³⁴ In any event, at least two points are worth noting here in terms of the content of the common law bill of rights. The first is that the recognition of a right, freedom, or principle as fundamental is ultimately a matter of a judicial choice. That is both interpretively significant (as the application of the principle ‘change[s] what appears to be the natural meaning of a legislative provision’³⁵) and controversial (‘in so far as it requires judges to construct common law values, and in respect of the material they can legitimately use in this building exercise’³⁶). The second is that the judicial recognition of new ones would appear likely if not evitable.³⁷ Spigelman CJ, for example, has suggested that the common law may soon recognize a presumption that Parliament does not intend to legislate in a manner that discriminates with respect to gender, race, religion, and other internationally recognized grounds.³⁸ And the High Court has recently stated that ‘the principle of construction is not confined to the protection of rights, freedoms or immunities that are hard-edged, of long-standing or recognized and enforceable or otherwise protected at common law. *The principle extends to the protection of fundamental principles and systemic values.*’³⁹ This revives an aspect of the principle—that it applies to ‘the general system of law’—first outlined in the seminal judgment of O’Connor J in the 1908 High Court case of *Potter v Minahan*.⁴⁰ What is fascinating is that this part of the principle had lost its legitimacy in the age of statutes to the extent that it involved judicial resistance to *any* legislative modification of common law doctrine.⁴¹ But in *X7*, for example, we see its contemporary revival in the context of a statute that sought to ‘authoris[e] the compulsory

examination of a person charged with, but not yet tried for, an indictable Commonwealth offence about the subject matter of the pending charge'.⁴² Relevantly, it led Hayne and Bell JJ to observe:

[T]he rule is not confined to legislation which may affect rights. It is engaged in the present case because of the effects which the asserted construction of the ACC Act provisions authorizing compulsory examination would have not only on the rights, privileges and immunities of a person charged with an indictable Commonwealth offence, but also on a defining characteristic of the criminal justice system.⁴³

The High Court applied the principle to protect from legislative diminution a 'defining characteristic' of the common law, in this instance the 'accusatorial nature of the criminal justice system'.⁴⁴ Specifically, '[t]he fundamental principle that the onus of proof beyond reasonable doubt rests on the Crown' and its 'companion rule that an accused cannot be required to testify to the commission of the offence charged'.⁴⁵ This 'development' is a case of back to the future. To expound the content of the common law bill of rights now protected by the principle of legality the High Court has returned to the case (and statement of principle) to which it claims the modern conception of the principle of legality in Australia can be traced.

C. EVOLUTION

In Australia the High Court has traced the origins of the principle to the following statement of O'Connor J in *Potter*:

It is in the last degree improbable that the legislature would overthrow fundamental principles, infringe rights, or depart from the general system of law, without expressing its intention with irresistible clearness; and to give any such effect to general words, simply because they have that meaning in their widest, or usual, or natural sense, would be to give them a meaning in which they were not really used.⁴⁶

The above statement was in fact a direct quotation from the 1905 edition of the United Kingdom treatise *Maxwell on the Interpretation of Statutes*.⁴⁷ However, as the Australian High Court recently noted, the origins of *that* quotation 'can be traced to a statement of Marshall CJ in the Supreme Court of the United States in 1805'.⁴⁸ It was not a bold declaration of the judicial will to protect what are now called 'human rights'. Rather, it represented the prevailing judicial view of statutes as pollutants in the pure waters of

common law doctrine and so to be resisted and confined to the extent interpretively possible.⁴⁹

It clearly demonstrates that judges have long used their interpretive powers to trim and control the excesses of statutory power to protect the important common law rights and interests *of the day*. For much of the twentieth century these were the common law rights and interests of the propertied and ruling elite, most relevantly to property, freedom of contract, and individual liberty. Though to the extent that an ordinary citizen possessed one of these rights—the right to liberty for example—then they too enjoyed the interpretive protection of the common law. But whilst the principle of legality, as we now call it, was formally expressed in terms of promoting legislative intention, its past application (too) often thwarted the parliamentary will as Lord Devlin observed extra-judicially in 1976:

In the past, judges have been obstructive. But the source of the obstruction, it is very important to note, has been the refusal of judges to act on the ordinary meaning of words. They looked for the philosophy behind the Act and what they found was a Victorian Bill of Rights, favouring (subject to the observance of the accepted standards of morality) the liberty of the individual, the freedom of contract and the sacredness of property, and which was highly suspicious of taxation.⁵⁰

In Australia this approach came to characterize the High Court's construction of tax statutes. It was especially associated with the era in which Sir Garfield Barwick was Chief Justice.⁵¹ Writing extra-judicially on these matters in 2009 then Chief Justice Gleeson observed that '[j]udges were accused of overstepping the bounds of interpretation. When, to use Lord Devlin's expression, they were obstructive, the result was political, and public, questioning of the legitimacy of what they were doing.'⁵² This word of caution as to what sustains the legitimacy of the principle of legality must be kept firmly in mind. As will be considered in more detail below, the principle (as strong rights presumption) is still one of *interpretation*. When it can be applied, its role is to assist in working out the *meaning* of a statute. If routinely deployed to obstruct the legislative will to protect common law rights, freedoms, and principles (even those more in accordance with a contemporary conception of 'human rights') that legitimacy is imperilled. This is, I think, what Gleeson CJ had in mind when he warned that '[e]ffective judicial support for human rights is strengthened by insistence upon such legitimacy, and weakened by disregard for it'.⁵³

In any event, the catalyst for the contemporary renaissance of the principle of legality can, arguably, be traced to ‘[t]he rise and rise of human rights’ as a core concern of the international legal order in shocked response to the horrors of the Second World War.⁵⁴ The development of an international law of human rights came to exert an important influence on the common law and provided judges with ‘an updated set of values’⁵⁵ to undertake the progressive renovation of the principle. In Australia it was not only these external developments that came to influence the rights-protective capacity of the common law. The willingness of our High Court from the 1990s onwards to imply rights and freedoms from the text and structure of the Australian Constitution and to treat seriously the few expressly provided should not be underestimated in understanding the contemporary renovation of the principle of legality.⁵⁶ In this way the catalogue of fundamental common law rights and freedoms expanded beyond the holy trinity of life, liberty, and property to include, for example, freedom of speech. Relevantly, the derivation of the implied constitutional right to freedom of political communication by the High Court in 1992 was, arguably, the catalyst for the recognition that freedom of speech more generally was a fundamental right at common law.⁵⁷ And the Constitution has also buttressed—if not inspired—the strengthening of the common law rights to fair trial, procedural fairness, and court access from legislative encroachment.

The centrality of the principle of legality to contemporary Australian law was underlined in a trio of cases decided by the High Court between 1987 and 1992, one of which was *Coco*.⁵⁸ These arose at the time that the first standing commissions to investigate public corruption and serious and complex crime were established.⁵⁹ The relevant statutes that did so provided extraordinary investigative powers to these commissions including the power to compel persons to answer questions on oath even when those answers might tend to incriminate them.⁶⁰ And a steady flow of migration cases (which is now something of a flood) began to reach the High Court around this time. This combination of *legislative* developments—and the judicial reaction to them—arguably, hastened the expansion and strengthening of the principle.

In terms of migration policy, for example, the principle’s renaissance emerged from successive and ongoing legislative attempts by Australian

governments to seriously limit and sometimes exclude the rights to liberty, natural justice, and access to the courts of persons seeking asylum, especially those arriving by boat.⁶¹ The entrenched judicial review jurisdiction provided by section 75(v) of the Constitution has provided both the legal avenue to the High Court in these migration cases and the constitutional vehicle used by the Court to develop the grounds upon which that review and relief is sought. As Gleeson CJ explained in *S157*—a case where the High Court narrowly construed a provision that sought to oust its review powers of migration decisions—section 75(v) ‘secures a basic element of the rule of law. The jurisdiction of the Court to require officers of the Commonwealth to act within the law cannot be taken away by Parliament.’⁶² Parliament may of course change the content of statute law subject to the Constitution. ‘But the executive government must obey the law. That is what the rule of law means.’⁶³ And so too for the principle of legality which the High Court has described as ‘an aspect of the rule of law’⁶⁴ but one, the application of which is said to be, in full accordance with parliamentary supremacy and the full exercise of its legislative powers.⁶⁵

In these contemporary legislative contexts where the rights, freedoms, or principles in play are particularly close to the judicial heart and animate important constitutional values—such as the rights to natural justice, criminal due process, and access to the courts—the common law bill of rights has proven strongly resistant to legislative encroachment, maybe defiantly so.⁶⁶ At least two points can be made here. The first is that certain fundamental rights at common law are now, arguably, almost constitutional in strength and that in these contexts the principle of legality operates as a strong Australian species of clear statement rule of the kind familiar to lawyers in the United States.⁶⁷ The second is that these developments demonstrate the willingness of our courts to aggressively use the common law (and constitutional) interpretive tools available to read down statutes that facially operate to seriously infringe fundamental rights. Does this suggest that the obstructive judicial approach outlined above by Lord Devlin is now operating to protect a contemporary common law (rather than Victorian) bill of rights? If so, it raises the question as to compatibility of such approach to the application of the principle with its original normative justification. It is to this, and other, fundamental issues with the

contemporary conception of the principle of legality that I now turn to consider.

D. CONTROVERSY

The passage from *Potter* outlined above makes clear that the original normative justification for applying the principle was to ascertain the meaning of legislation as intended by the enacting Parliament. That passage, and justification, has been endorsed in recent decisions of the High Court.⁶⁸ But the Court has also emphasized the salutary role the principle can play when judges give legislators prior notice of the common law (rights) backdrop against which their legislation will be construed. This may improve the clarity—and rights-sensitivity—of legislation promoting democracy and rule of law values in the process. It is these notions—not the discovery of authentic legislative intention—that lie at the heart of *Coco* and Lord Hoffman’s famous passage in *Simms* that Parliament must ‘squarely confront’ the rights issues in its legislation and consciously decide upon their abrogation or curtailment with unmistakably clear statutory language.

Brendan Lim has persuasively argued that two distinct and rival justifications for the principle have emerged and that to suggest its modern conception (and justification) as articulated in *Coco* and *Simms* can be traced to *Potter* with its original emphasis on authentic legislative intention perpetuates a common law ‘myth of continuity’.⁶⁹ That may well be so. However, the High Court has said recently that ‘legislative intention ... is a fiction which serves no useful purpose’.⁷⁰ In doing so the Court has described the nature of its interpretive function in the following, arguably question-begging, terms:

[J]udicial findings as to legislative intention are an expression of the constitutional relationship between the arms of government with respect to the making, interpretation and applications of laws ... the preferred construction by the Court of the statute in question is reached by the application of rules of interpretation accepted by all arms of government in the system of representative democracy.⁷¹

Richard Ekins and Jeffrey Goldsworthy have forcefully argued that the High Court’s apparent untethering of statutory interpretation from legislative intention ‘is inconsistent with constitutional principle, and

threatens to render interpretive practice unintelligible’.⁷² In any event, the modern characterization of legislative intention as the *result* (not the lodestar) of applying the principles of statutory intention cleared the linguistic and normative ground for Gageler and Keane JJ in *Lee No 1* to describe the justification for the principle as follows:

More recent statements of the principle in this court do not detract from the rationale identified in *Potter*, *Bropho* and *Coco* but rather reinforce that rationale. That rationale not only has deep historical roots; it serves important contemporary ends. It respects the distinct contemporary functions, enhances the distinct contemporary processes, and fulfills the shared contemporary expectations of the legislative and judicial branches of government. As put by Gleeson CJ in *Electrolux Home Products*, in terms often since quoted with approval, the principle ... ‘is not merely a common sense guide to what a Parliament in a liberal democracy is likely to have intended; it is a working hypothesis, the existence of which is known both to Parliament and the courts, upon which statutory language will be interpreted’.⁷³

In this way the High Court has quite consciously underlined the historical continuity of the principle of legality in terms of both content and justification. It has done so as part (or maybe the consequence) of re-conceptualizing the nature of the interpretive duty of judges as one where the ascertainment of legislative intent is the product not the goal of statutory interpretation.

In terms of the content of the common law bill of rights, and its possible future expansion, French CJ has made the following extra-judicial observation:

One area which awaits further exploration is the interface between human rights norms in Conventions to which Australia is a party or in customary international law and the presumption against statutory displacement of fundamental rights and freedoms of the common law. If the former can inform the latter through developmental processes of the kind mentioned in *Mabo* then the content of the so-called principle of legality may be deepened.⁷⁴

Relevantly, Professors Dyzenhaus, Hunt, and Taggart have said that it is legitimate and consistent with the common law’s own methodology for it to draw on international human rights norms to update the ‘set of values’ that it protects through the application of the principle of legality. In doing so, they argue, it ‘assists in combating eclecticism or subjectivity in the identification of fundamental rights [as] human rights treaties are an “ostensibly objective source”, expressing the opinions, formed often over a considerable period of time, of many countries’.⁷⁵

In *Kaba*, a 2014 decision of the Supreme Court of Victoria, Bell J endorsed a strong form of this argument when in detailed obiter comments

he said that *all* the rights and freedoms in the International Covenant of Civil and Political Rights (ICCPR) should now be treated as fundamental for the purposes of the principle.⁷⁶ Significantly, the adoption of international human rights norms as the rights touchstone for the principle of legality necessitates the incorporation of its concomitant methodology—proportionality—into its framework. As Bell J observed ‘most of the rights specified in the ICCPR are susceptible to limitation by a state provided that the standards of legality and proportionality (or necessity) are complied with’.⁷⁷ This related (common law) development was prudent in his Honour’s view for ‘Australian courts of high authority have, for some time, been applying a proportionality standard in the process of reading down legislation according [to] the principle of legality’.⁷⁸ But in my view that important methodological claim is not supported by the authorities cited by Bell J.⁷⁹ Indeed the language and method of proportionality was completely absent from the relevant cases—*Evans*, *Al Masri*, and *Haneef*. It would be extraordinary, then, if these judges were adopting and applying such a significant and controversial new development in common law method without expressly stating that this was, in fact, what was being done or at least contemplated.

The principle of legality was applied in these cases to determine the meaning of general statutory words or phrases where their natural and grammatical meaning engaged fundamental common law rights and freedoms. That posed a particular challenge in a case like *Evans*.⁸⁰ The relevant provision was a broad law-making power conferred upon a local council to regulate a large religious event to be held on the streets of Sydney. It did not expressly authorize the abrogation or curtailment of fundamental rights (of persons wishing to protest at the event) but the very nature of the law-making power in this local government context appeared to authorize by *necessary implication* at least some interference. It was the *extent* of that interference that had to be judicially determined. The broad and general wording of the law-making power left open interpretive scope for the protection of the common law free speech rights of protesters. In the event, the Court’s application of the principle gave effect to the object of the statute (the primary interpretive duty) in a manner that accommodated so far as possible the common law (free speech) rights of those affected in doing so. It was a classic example of ‘where the text of a statute presents

constructional choices, the principle of legality will favour that choice which least disturbs common law freedoms'.⁸¹

That process, I would argue, was still firmly within the realms of *interpretation*. It was done to ascertain the extent to which the law-making power authorized by necessary implication (by regulation or by-law) the interference with fundamental rights in order to achieve its purpose. It was not undertaken to judicially evaluate whether the local council could *justify* the infringement of the common law free speech rights of protestors in pursuit of its legislative policy. That latter (justification) inquiry is the essence of proportionality, as I understand it. It provides an analytical framework to judicially evaluate the justification for legislation and its underlying policy. It is not a tool that assists in working out the *meaning* of legislation which is the object of judicial *interpretation* of which the principle of legality forms an important part.⁸² That is why, for example, in the context of Australian constitutional law that when a court assesses whether legislative or executive action is invalid for offending section 92, the implied freedom or the federal franchise—the meaning of the impugned law must, necessarily, be determined before the proportionality inquiry is undertaken.⁸³ And the still unresolved controversy in Australian bills of rights jurisdictions as to the proper relationship between the interpretation and limitation provisions (eg, sections 7 and 32 under the *Charter*) stems in part from the logical difficulty of seeking to incorporate proportionality—which as Professor Paul Rishworth rightly notes ‘is more a matter of *evaluation* than interpretation’⁸⁴—into the interpretive process itself.⁸⁵

In my view, then, proportionality does not presently form part of the principle’s methodology and nor should it on account of the fundamental distinction between interpretation and justification analysis just outlined.⁸⁶ There are, moreover, legitimate separation of powers concerns that would attend its incorporation. The balancing of competing rights and interests, and striking a reasonable compromise of them in law, is a core function of the legislature. To the extent that proportionality requires this kind of analysis, there is a serious question as to whether judges have the time, expertise, and resources to do so properly in the context of litigation. The very nature of the proportionality inquiry—evaluating whether the infringement of common law rights and freedoms is justified in the pursuit of legislative policy—also sits uncomfortably with the *interpretive* role of

judges under the Constitution and its strong separation of judicial power.⁸⁷ And there would, arguably, be significant doubt as to the compatibility of such a development with the contemporary justification for the principle detailed above. The courts require ‘a clear indication that the legislature has directed its attention to the rights and freedoms in question, and has consciously decided upon abrogation or curtailment’.⁸⁸ But if the content of common law rights, freedoms, and principles are qualified by a proportionality analysis that is, necessarily, context (and therefore case) specific, it is difficult to see how Parliaments (and parliamentary counsel) can ‘squarely confront’ and ‘consciously decide’ common law rights issues in its legislation.

This last point brings to the surface an issue and problem with the method of the principle of legality more generally. The essence of, and normative justification for the principle in contemporary Australian law holds only if Parliament has clear and prior notice as the *content* of the common law bill of rights. But that is not possible if the content of the relevant ‘right’ (ie, what it requires or guarantees in a particular context) is highly contextual, indeterminate, and contested. This most clearly arises with rights such as freedom of speech, but the problem of indeterminacy, arguably, pertains to all fundamental rights, freedoms, and principles at common law to some degree. The content and scope of even long-established common law rights such as property, liberty, and natural justice are highly contextual and subject to reasonable disagreement. If so, then the content of the relevant ‘right’ in play must, necessarily, be determined by judges at the point of legislative application in order to resolve the case. The application of the principle of legality is not, then, asserting the relevant content of the *pre-existing* common law right, but enforcing a post-legislative judicial approximation of what that ‘right’ requires or guarantees in that specific context.

It may be that this methodological problem is intractable as it reflects the indeterminacy of rights—a common law manifestation of the controversy that has long attended the judicial role under statutory and constitutional bills of rights—and the fact that in rights cases other competing rights and interests *always* come into play. Yet the principle can only operate coherently and in accordance with its contemporary justification if Parliament (and parliamentary counsel) has clear and prior notice as to the *content* of the common law bill of rights. Without this knowledge

Parliament cannot ‘squarely confront’ the common law rights issues in its legislation and ‘consciously decide’ whether or not to curtail or abrogate the fundamental rights in legislative play. If the principle of legality operates to obscure from Parliament the common law (rights) backdrop against which it legislates, the clarity or rights-sensitivity of that legislation cannot be improved. This undercuts, rather than promotes, the democratic and rule of law values that underpin the modern conception of the principle and its contemporary justification.

Finally, there may also be an issue with that now familiar part of the contemporary justification that states the ‘existence of [the principle] is known both to Parliament and the courts’.⁸⁹ If made as an empirical claim, then it is one that remains unverified. Indeed important recent scholarship from the United States has found that members of Congress and those involved in drafting legislation were for the most part ignorant of clear statement rules and most interpretive presumptions.⁹⁰ French CJ on the other hand has said that ‘[i]t can be taken to be a presumption of which those who *draft* legislation, regulations and by-laws’.⁹¹ That too is an unsubstantiated claim. However, anecdotal evidence would suggest that offices of parliamentary counsel throughout Australia are well aware of the principle of legality, but struggle with the uncertain content of the common law bill of rights and its uneven application by the courts.

E. DEVELOPMENT

In Australia the articulation and development of the principles of statutory interpretation—of which the principle of legality is an important part—are increasingly driven by constitutional imperatives.⁹² In this way, as noted, the High Court has recently stated that ‘judicial findings as to legislative intention are an expression of the constitutional relationship between the arms of government with respect to the making, interpretation and applications of laws’.⁹³ This passage highlights the centrality of the separation of powers to the interpretive role of Australian courts and firmly locates that task within that *constitutional* framework. It underlines, for example, the recent extra-judicial observation of Basten J that ‘[i]f statutory interpretation is at the core of the judicial function, the Commonwealth Parliament must be constrained in its ability either to expand or diminish

that function.’⁹⁴ Significantly, this proposition seems to entail that not only must the content of all statutory rules and common law principles of statutory interpretation conform to the constitutional separation of powers, but that their application is central to the exercise of (federal) judicial power established and conferred by Chapter III of the Constitution.

Even so, this constitutional proposition is stated at a high level of abstraction. It does not mean, for example, that existing statutory rules of interpretation are now all of a sudden constitutionally suspect. But it does, arguably, point towards the fuller integration of statutes into our constitutional framework by requiring their interpretation and application to be compatible with constitutional principle.⁹⁵ Those of a more cynical mind might, however, suggest that it further evidences the contemporary constitutional leviathan (that is Chapter III) colonizing yet another sizeable chunk of the Australian legal landscape. Either way, it cannot be denied that since the High Court announced in *Lange* that ‘[t]here is but one common law in Australia’⁹⁶ and that it (as well as statutes) must conform to the Constitution,⁹⁷ the development of legal principle in a range of areas has been driven by constitutional imperatives and values.⁹⁸ In that spirit the remainder of the chapter will offer tentative suggestions as to the role the Constitution might play (or is already playing) in providing a stronger normative justification for the principle of legality, better fixing the content of the common law bill of rights it operates to protect and informing the manner in which it is applied.

The High Court, as noted in [section D](#), has recently sought to underline the historical continuity of the principle in terms of both content and justification. It has done so by re-conceptualizing the nature of the interpretive duty of judges as one where determining legislative intention is the product not the goal of statutory interpretation. That is to use the language of ‘legislative intention’ in terms of the principle (and statutory interpretation more generally) when the interpretive process in fact undertaken has little to do with the discovery of what Parliament actually meant or was likely to have intended. In terms of the principle of legality Lim is quite correct, then, to claim that a common law myth of continuity is being perpetuated here. The High Court *has* effectively dispensed with the original positive justification for the principle outlined in *Potter*.

In the United States commentators have long observed that the judicial application of the normative or substantive canons of statutory construction—clear statement rules—is not undertaken in faithful service of congressional intent.⁹⁹ For example, Professors Eskridge and Frickey have observed that ‘the substantive canons are not policy neutral. They represent value choices by the Court.’¹⁰⁰ If so, then as Ernest Young has rightly noted, American judges ‘must find some other source of legal justification for the normative values that the canons protect’.¹⁰¹ In Australia, the reconstruction of the justification for the principle to provide it with a constitutional foundation has been underway for some time in my view. That necessarily had to occur as part of the process of the High Court untethering statutory interpretation from notions of authentic legislative intention. Both manifestations of that reconstruction are, arguably, apparent in Gleeson CJ’s now widely endorsed statement from *Electrolux*:

The [principle] is not merely a common sense guide to what a Parliament in a liberal democracy is likely to have intended; it is a working hypothesis, the existence of which is known both to Parliament and the courts, upon which statutory language will be interpreted. The hypothesis is an aspect of the rule of law.¹⁰²

As the rule of law is an assumption upon which the Constitution was framed,¹⁰³ there is in this regard at least a quasi-constitutional significance to the principle of legality. But more concretely is the centrality of the principles of statutory interpretation—*of which the principle of legality forms an important part*—to the exercise of (federal) judicial power pursuant to Chapter III of the Constitution. The proposition which I think, necessarily, flows from this is that the *Constitution* provides the ultimate foundation—and so normative justification—for the principle of legality in contemporary Australian law. If so, then constitutional imperatives and values can inform the content of the common law bill of rights that the principle protects and the manner in which it does so. In this way, the Constitution might perform a similar role for the principle to that which the High Court outlined in *Pfeiffer* regarding the interaction between section 118 and the common law choice of law rule.¹⁰⁴

In terms of which rights, freedoms, and principles the common law may come to recognize as fundamental, the argument that international human rights norms might provide the relevant touchstone was outlined in [section D](#). Some of the benefits and problems with such a development were

canvassed in light of Bell J endorsing a version of this argument in *Kaba*. There is, however, an additional, separation of powers-based, reason why the High Court might choose to look primarily to the Constitution not international law to source and inform future development in this regard. Australian judges appear keen to develop and apply the principle of legality but not the presumption of consistency with international law. The judicial ambivalence (and sometimes hostility) with the latter likely relates to the *source* of the rights that the presumption operates to protect. The rights protected by the presumption of consistency are derived from international law, so are necessarily derived from a source that is *external* to the Australian legal system. On the other hand, the rights protected by the principle of legality are derived from the common law, so in this sense are derived from an *internal* source. Australian judges may be concerned with the *legitimacy* of using an interpretive presumption to incorporate into the domestic legal system (through interpretation not legislation) norms derived from a source that is external to it. And this legitimacy concern is, arguably, prompted by the strong separation of judicial power established by the Constitution.

Moreover the Constitution itself provides Australian courts with a potent internal—and so quintessentially legitimate—legal source from which to reason in order to protect fundamental rights, freedoms, and principles. In the following passage from the judgment of Gageler and Keane JJ in *Lee No 1* there is, arguably, a focus on the internal—constitutional—orientation of the principle of legality:

[I]t exists to protect from inadvertent and collateral alteration rights, freedoms, immunities, principles and values that are important within our system of representative and responsible government under the rule of law.¹⁰⁵

This directs us to consider and identify those rights, freedoms, and principles central to the proper functioning of *our* constitutional system of democratic government and the maintenance of the rule of law. Of course the present content of the common law bill of rights already does so in important respects. Consider, for example, the common law rights to liberty, property, freedom of speech, natural justice, criminal due process, open justice, and access to the courts. It is not too difficult to discern the important constitutional values that underpin these rights, freedoms, and principles and which are, in turn, vindicated when the principle is applied to the construction of statutes. And there are certainly other constitutional

principles that might inform the development of existing fundamental rights and provide the source for the recognition of new ones.

The ‘basic continuity of statutory and constitutional interpretation’¹⁰⁶ was evident, for example, in the High Court’s decision in *Coleman*.¹⁰⁷ In that case Gummow and Hayne JJ and Kirby J applied the principle of legality to the construction of a statute to vindicate (and so protect) the high constitutional value attached to ‘political communication’.¹⁰⁸ In doing so they made clear that if the relevant public order offence was not narrowly construed in this way then it would have infringed the implied constitutional right to freedom of political communication.¹⁰⁹ That is, the principle of legality was applied to preserve the law’s validity and to avoid determining the constitutional (rights) issue. The principle of legality was, then, used as a tool of constitutional avoidance.¹¹⁰ In American law this interpretive approach is known as the *Ashwander* principle. And as Brandeis J explained, one important manifestation of it is that ‘if a case can be decided on either of two grounds, one involving a constitutional question, the other a question of statutory construction or general law, the Court will decide only the latter’.¹¹¹ This approach—which is also considered orthodox in Australian constitutional law¹¹²—provides, arguably, a less intrusive and more democratic alternative to judicial review whilst still bringing to bear important constitutional values on the process of statutory interpretation. It is not without controversy, however, as Professor Schauer has forcefully argued in the American context:

[I]n interpreting statutes so as to avoid ‘unnecessary’ constitutional decisions, the Court frequently interprets a statute in ways that its drafters did not anticipate, and, constitutional questions aside, in ways that its drafters may not have preferred. Accordingly, it is by no means clear a strained interpretation of a ... statute that avoids a constitutional question is any less a judicial intrusion than the judicial invalidation on constitutional grounds of a less strained interpretation of the same statute.¹¹³

Moreover and relevantly for present purposes, Schauer suggests that ‘like the *Ashwander* principle, plain statement rules [of which the principle of legality is arguably an Australian example] sneak constitutional considerations in the back door, and thus again are instances not of avoiding constitutional questions but of deciding them’.¹¹⁴ It was precisely this issue that led to the dissenting judgment of Gageler J in *Northern Australian Aboriginal Justice Agency Limited v Northern Territory*.¹¹⁵ The judges in

the majority, through the application of the principle of legality, gave a police detention provision a narrow construction to ensure its compatibility with the constitutional separation of powers.¹¹⁶ Gageler J on the other hand stated that ‘a court has no warrant for departing from ordinary principles of statutory construction in pursuit of constitutional validity. And a court has no warrant for preferring one construction of a statutory provision over another merely to avoid constitutional doubt.’¹¹⁷ Relevantly, he did not consider that the majority’s construction of the provision to be reasonably open on the ordinary principles of statutory interpretation.¹¹⁸ And in terms of how the principle of legality was applied by the majority, Gageler J critically observed ‘that it provides no licence for a court to adjust the meaning of a legislative restriction on liberty which the court might think to be unwise or ill-considered’.¹¹⁹

In any event, Australia’s constitutional system of representative and responsible government might underpin and inform a range of fundamental political and democratic participation rights—for example, to vote, associate, assemble and organize, communicate and access political information—that the application of the principle to statutes would vindicate. This symbiotic relationship between the Constitution and statutory interpretation might inform also the recognition of freedom of religious belief and exercise as fundamental at common law;¹²⁰ and the right to non-discrimination as well, should the proposed referendum to expunge the constitutional references to race (and recognize Indigenous Australians) proceed and succeed.

However, it might be that federalism is the (largely dormant) constitutional principle with the capacity to re-shape and expand the content of the common law bill of rights. In the recent series of Commonwealth executive power cases, for example, the federal principle was central to the High Court’s tightening of the constitutional limits on Commonwealth spending.¹²¹ If so minded could the High Court expand the scope of the principle to include a strong presumption that Commonwealth statutes do not encroach upon the core constitutional powers and functions of the States? The obvious constitutional obstacle is the *Engineers* decision and its ‘explosion’ of the reserved powers doctrine.¹²² But, arguably, expanding the content of the principle along these lines is different. Its application would not limit the scope of Commonwealth legislative power and nor would that

be its purpose. The plenary nature of Commonwealth legislative power remains intact but clarity and specificity in its exercise would be required when core State functions and areas of responsibility (eg, education, health, public order and safety, intrastate commercial activity) were implicated. That is perfectly consistent with *how* the principle of legality operates with respect to existing common law rights and freedoms. And in the *Melbourne Corporation* principle, the constitutional architecture exists already in Australia for such a development to occur at the common law interpretive level.¹²³ In this way, the federal principle would infuse both the construction and drafting of statutes. It may also bring greater clarity to the notoriously elusive *interpretive* task that bedevils the application of the constitutional inconsistency test under section 109.¹²⁴

In the United States, for example, the Supreme Court has developed a suite of federalism-derived clear statement rules that when applied to statutes vindicate this foundational constitutional principle. It is worth noting here that the federal principle is no less foundational in Australia's constitutional architecture; and that the supremacy clause (the American constitutional analogue to our section 109) has not precluded the Supreme Court from developing these important interpretive principles. Moreover as Eskridge and Frickey have argued, 'a good case can be made for such quasi-constitutional law' to protect under-enforced constitutional norms such as federalism:¹²⁵

They are essentially unenforceable by the Court as a direct limitation upon Congress's power, and are best left to the political process. But the Court may have a legitimate role in forcing the political process to pay attention to the constitutional values at stake, and ... clear statement rules are a practical way for the Court to focus legislative attention on these values.¹²⁶

This characterization of federalism as an under-enforced constitutional norm is equally applicable in Australia if not more so.¹²⁷ And the same can, arguably, be said of religious liberty, the freedom of political communication, and the principles of responsible and representative government more generally. There are but few cases since federation where the application of these constitutional principles in judicial review has resulted in legislative or executive action being invalidated. There is, then, an opportunity for the High Court to expand the content and scope of the principle to vindicate a range of important constitutional imperatives and values some of which are presently dormant and under-enforced. If so,

however, the issue (and controversy) of constitutional avoidance detailed above will become more acute if the principle of legality is applied to protect these new constitutionally inspired fundamental rights, freedoms, and principles.

The final way the Constitution might play a useful role in the development of the principle of legality is to inform the manner in which it is applied. It could do so in at least three ways. First, if the principles of statutory interpretation (including legality) lie at the core of the judicial function then the application of those principles must, necessarily—as a matter of constitution law—be *interpretation* not some other form of reasoning like proportionality. It is certainly true that Australian courts including the High Court undertake proportionality analysis in a range of contexts including the law of sentencing, characterization, anti-discrimination, and rights.¹²⁸ But in the context of determining (constitutional and statutory) rights cases, which is the closet analogue to the application of the principle of legality, proportionality is *not* undertaken as part of the interpretive process. In *Momcilovic*, for example, four members of the High Court said that justification analysis forms no legitimate part of judicial *interpretation* in the context of the *Charter of Human Rights and Responsibilities Act 2006* (Vic).¹²⁹ ‘[T]he justification of limitations on human rights is a matter for the Parliament. That accords with the constitutional relationship between the Parliament and the judiciary.’¹³⁰ If so, then it might reasonably be argued that, as legality is a principle of *interpretation*, to incorporate proportionality into its methodology would run counter to this constitutional imperative.

The manner in which the principle is applied might be informed also by the constitutional separation of powers and the respective allocation of functions and responsibilities that it entails. It might point towards a more nuanced application of the principle depending on the nature and content of the relevant right, freedom, or principle *and* the legislative context in which it has arisen. Maybe this is what Gleeson CJ had in mind when he observed in *Electrolux* that ‘modern legislatures regularly enact laws that take away or modify common law rights. The assistance to be gained from a presumption will vary with the context in which it is applied.’¹³¹ Yet the requirement of legality as detailed in *Coco*—that only unmistakable and unambiguous statutory language operates to curtail or abrogate fundamental

rights and freedoms—applies (at least formally) to the entire common law bill of rights. But the rights, freedoms, and principles of which it is comprised vary greatly in terms of the nature and specificity of their content; and this in turn conditions the ease (or difficulty) with which the courts can determine what a particular right or freedom might require in any given context.

There may be, then, a constitutional justification for the courts to apply the principle with a particular strictness to those fundamental rights such as liberty, property (including native title), natural justice, open justice, access to the courts, and criminal due process that fall within the heartland (in terms of jurisdiction and expertise) of judicial power. On the other hand, when the content of the right, freedom, or principle is ‘highly contextual and contingent’ and/or the primary responsibility for its vindication is allocated by the Constitution to the political arms of government—such as freedom of speech—then maybe the principle ought not to be applied with the same *Coco*-mandated strictness. I would add to this category religious liberty, federalism, non-discrimination, and the suite of political and democratic participation rights outlined above, in the event they come to be recognized as fundamental at common law.

In order to do so, the High Court could adopt a more flexible conception of ‘necessary implication’ than the one outlined in *Coco*. The nature of legislation that engages these sorts of highly contextual and contingent rights (such as freedom of speech) will, necessarily, be pursuing other important rights and interests (such as privacy, security, public order). In these contexts a more flexible conception might manifest as a judicial willingness to consider whether a statute necessarily implied *some* interference with fundamental rights without having to first meet *Coco*’s high threshold requirement—which is, to recall, that an implication of this kind can be made only ‘if it is necessary to prevent the statutory provisions from becoming inoperative or meaningless’.¹³² A more flexible conception of ‘necessary implication’ already characterizes some important legality cases in my view, especially those concerning the application of the principle to delegated law-making powers.¹³³ It is an interpretive approach, moreover, that sits easily within the directive of French CJ that ‘where the text of a statute presents constructional choices, the principle of legality will favour that choice which least disturbs common law freedoms’.¹³⁴

Finally, there is the present disconnect between the contemporary justification for the principle and the manner in which judges apply it to determine the rights issues in legislation. In [section D](#) it was noted that in most cases judges must determine or divine the ‘content’ of the common law right, freedom, or principle (ie, what it requires or guarantees in the relevant context) at the point of legislative application. This is both controversial (it assumes judges can determine that content without recourse to contested political and moral claims as to what the rights entail) and difficult to square with its contemporary justification. It is not possible for Parliament (and parliamentary counsel) to ‘squarely confront’ and decide common law rights issues in its legislation without clear and prior notice as to the content of the common law bill of rights. As noted, this methodological problem is intractable in my view. There is no obvious solution that the Constitution or indeed any other legal principle or value can supply. The very nature of rights (indeterminate, highly contextual, and subject to reasonable disagreement) and litigation (where disputes as to their content arise) makes it difficult, if not impossible, for judges to detail with precision and in advance what the right, freedom, or principle requires.

Yet this section has suggested ways in which the Constitution might provide a stronger normative justification for legality, better fix the content of the rights it operates to protect, and inform the manner in which it is applied. I am not suggesting here that recourse to the Constitution in this way provides precise, neutral, and self-evident imperatives capable of mechanical application to the principle of legality. There is, inevitably, room for reasonable disagreement as to the content and requirement of constitutional principle. But it does provide an internal normative touchstone that Australian judges can use to shape, justify, and defend their conception of legality as a legitimate *interpretive* tool to protect human rights in our age of statutes. A constitutional foundation *may* provide a clearer picture (to the political arms of government) as to what principle is and its role in the Australian legal system; the kinds of fundamental rights it seeks to protect (and why); and, depending on the right, freedom, and principle in legislative play, the strength with which the courts will apply the principle in order to do so. This should at least give Parliament (and parliamentary counsel) a better sense of when its legislation must use irresistibly clear statutory language to curtail or abrogate (certain) fundamental rights; and just as importantly, in what legislative and rights

contexts a more flexible judicial conception of ‘necessary implication’ will give them some drafting leeway to strike an appropriate balance between the competing rights and interests in its legislation without having to expressly address every conceivable common law rights issue.

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¹ *Coco v The Queen* (1994) 179 CLR 427, 437 (Mason CJ, Brennan, Gaudron and McHugh JJ).

² See text accompanying notes 45–52.

³ See Dan Meagher, ‘The Common Law Principle of Legality in the Age of Rights’ (2011) 35 Melbourne University Law Review 49.

⁴ *R v Secretary of State for the Home Department; Ex parte Simms* [2000] 2 AC 115, 131 (HL).

⁵ Robert French, ‘Human Rights Protection in Australia and the United Kingdom’ (Speech delivered at the Anglo-Australasian Law Society and Constitutional and Administrative Law Association, London, 5 July 2012) 22 <<http://www.hcourt.gov.au/assets/publications/speeches/current-justices/frenchcj/frenchcj05july12.pdf>> accessed 27 September 2017.

⁶ John Basten, ‘The Principle of Legality: An Unhelpful Label?’ in Matthew Groves and Dan Meagher, *The Principle of Legality in Australian and New Zealand Law* (Federation Press 2017) 75.

⁷ John Dyson Heydon, ‘The “Objective” Approach to Statutory Construction’ (Current Legal Issues Seminar Series, Banco Court, Supreme Court of Queensland, 8 May 2014) 164 <<https://media.sclqld.org.au/documents/publications/queensland-legal-yearbook/2014/queensland-legal-yearbook.pdf>> accessed 27 September 2017

⁸ *ibid.*

⁹ *X7 v Australian Crime Commission* (2013) 248 CLR 92, n 57 (French CJ and Crennan J), n 167 (Hayne and Bell JJ), n 237 (Kiefel J).

¹⁰ *Lee v New South Wales Crime Commission* (2013) 251 CLR 196, n 260 (Crennan J), n 350 (Kiefel J), [310]–[312] (Gageler and Keane JJ).

¹¹ (n 1) 437 (Mason CJ, Brennan, Gaudron and McHugh JJ) (footnote omitted), endorsed at 446 (Deane and Dawson JJ).

¹² *X7* (n 9) [158].

¹³ *Daniels Corporation International Pty Ltd v Australian Competition and Consumer Commission* (2002) 213 CLR 543. See Dennis Rose, ‘The High Court Decisions in *Al-Kateb* and *Al Khafaji*—A Different Perspective’ (2005) 8 Constitutional Law and Policy Review 58, 59–60.

¹⁴ *Momcilovic v The Queen* (2011) 245 CLR 1 [43].

¹⁵ *Simms* (n 4).

¹⁶ *Momcilovic* (n 14) [43] (French CJ).

¹⁷ *Coco* (n 1) 438 (Mason CJ, Brennan, Gaudron and McHugh JJ).

¹⁸ *ibid.*

¹⁹ *ibid.*

²⁰ *Plaintiff S10-2011 v Minister for Immigration and Citizenship* (2012) 246 CLR 636.

²¹ (n 10).

²² See Dan Meagher and Matthew Groves, ‘The Common Law Principle of Legality and Secondary Legislation’ (2016) 39 University of New South Wales Law Journal 450.

²³ *Attorney-General (SA) v Corporation of the City of Adelaide* (2013) 249 CLR 1 [150].

²⁴ Dennis Pearce and Stephen Argument, *Delegated Legislation in Australia* (4th edn, LexisNexis Butterworths 2012) 308.

²⁵ *R v Secretary of State for the Home Department, Ex parte Pierson* [1998] AC 539, 575 (Lord Browne-Wilkinson).

²⁶ *Simms* (n 4) 132 (Lord Hoffman).

²⁷ *ibid.*

²⁸ ‘Protecting Human Rights Without a Bill of Rights’ (Speech delivered at the John Marshall Law School, Chicago, 26 January 2010) 26–27 <<http://www.hcourt.gov.au/assets/publications/speeches/current-justices/frenchcj/frenchcj26jan10.pdf>> accessed 27 September 2017.

²⁹ *Momcilovic* (n 14) [444] (Heydon J).

³⁰ See Paul Finn, ‘Statutes and the Common Law’ (1992) Western Australia Law Review 7, 27; The James Spigelman, ‘The Common Law Bill of Rights’ in *Statutory Interpretation and Human Rights* (University of Queensland Press 2008) 1–50.

³¹ *Re Bolton; Ex parte Beane* (1987) 162 CLR 514, 520–21.

³² See generally James Clarke Holt, *Magna Carta* (2nd edn, CUP 1992).

³³ (1996) 66 FCR 369, 364–65.

³⁴ See Meagher ‘The Common Law Principle of Legality in the Age of Rights’ (n 3) 456–59.

³⁵ Sir Philip Sales, ‘A Comparison of the Principle of Legality and Section 3 of the *Human Rights Act 1998*’ (2009) 125 Law Quarterly Review 598, 605.

³⁶ David Dyzenhaus, Murray Hunt, and Michael Taggart, ‘The Principle of Legality in Administrative Law: Internationalisation as Constitutionalisation’ (2001) 1 Oxford University Commonwealth Law Journal 5, 6.

³⁷ See French ‘Protecting Human Rights Without a Bill of Rights’ (n 28) 25–36.

³⁸ Spigelman (n 30) 29.

³⁹ *Lee No 1* (n 10) [313] (Gageler and Keane JJ) (emphasis added).

⁴⁰ (1908) 7 CLR 277, 304.

⁴¹ See *R v Janceski* (2005) ALR 580, 591 (Spigelman CJ); *Malika Holdings Pty Ltd v Stretton* (2001) 204 CLR 290 [28]–[29] (McHugh J).

⁴² *X7* (n 9) [70] (Hayne and Bell JJ).

⁴³ *ibid* [87].

⁴⁴ *ibid.*

⁴⁵ *ibid* [102] citing *Environment Protection Authority v Caltex Refinery Co Pty Ltd* (1993) 477, 503 (Mason CJ and Toohey J).

⁴⁶ (n 40) 304 (footnotes omitted).

⁴⁷ Peter Benson Maxwell, *Maxwell on the Interpretation of Statutes* (4th edn, Sweet & Maxwell 1905) 122.

⁴⁸ *Lee No 1* (n 10) [307] (Gageler and Keane JJ) citing *United States v Fisher* (1805) 6 US 358, 390.

⁴⁹ See Roscoe Pound, ‘Common Law and Legislation’ (1908) 21 Harvard Law Review 383.

⁵⁰ ‘Judges and Lawmakers’ (1976) 39 Modern Law Review 1, 13–14.

⁵¹ See Geoffrey Lehmann, 'The Income Tax Judgments of Sir Garfield Barwick: A Study in the Failure of the New Legalism' (1983) 9 Monash University Law Review 115.

⁵² Murray Gleeson, 'The Meaning of Legislation: Context, Purpose and Respect for Fundamental Rights' (2009) 20 Public Law Review 26, 34.

⁵³ *ibid.*

⁵⁴ Conor Gearty, *Can Human Rights Survive?* (CUP 2006) 25–28.

⁵⁵ Claudia Geiringer, 'The Principle of Legality and the *Bill of Rights Act*: A Critical Examination of *R v Hansen*' (2008) 6 New Zealand Journal of Public and International Law 59, 89.

⁵⁶ See Dan Meagher, 'The Common Law Presumption of Consistency with International Law: Some Observations from Australia (and Comparisons with New Zealand)' [2012] New Zealand Law Review 465, 479–81.

⁵⁷ See *Nationwide News Pty Ltd v Wills* (1992) 177 CLR 1, 31 (Mason CJ); *Australian Capital Television Pty Ltd v Commonwealth* (1992) 177 CLR 106.

⁵⁸ *Coco* (n 1); *Re Bolton* (n 31); *Bropho v Western Australia* (1990) 171 CLR 1.

⁵⁹ See Mark Weinberg, 'The Impact of Special Commissions of Inquiry/Crime Commissions on Criminal Trials' (Speech delivered at the Supreme Court of New South Wales Annual Conference, 1 August 2014) <<http://assets.justice.vic.gov.au/supreme/resources/66d960d7-4dae-4b13-853c-71a94e97a424/the+impact+of+special+commissions+of+inquiry+weinberg+j+-+1+aug+2014.pdf>> accessed 27 September 2017.

⁶⁰ *ibid* 2–3.

⁶¹ See Jane McAdam and Fiona Chong, *Refugees: Why Seeking Asylum is Legal and Australia's Policies Are Not* (University of New South Wales Press 2014).

⁶² *Plaintiff S157/2002 v Commonwealth* (2003) 211 CLR 476 [5].

⁶³ Murray Gleeson, *The Rule of Law and the Constitution* (ABC Books, 2000) 68.

⁶⁴ *Electrolux Home Products Pty Ltd v Australian Workers' Union* (2004) 221 CLR 309, 329 (Gleeson CJ).

⁶⁵ French 'Protecting Human Rights Without a Bill of Rights' (n 28) 34.

⁶⁶ See *Lacey v Attorney-General (Qld)* (2011) 242 CLR 573.

⁶⁷ See Dan Meagher, 'The Principle of Legality as Clear Statement Rule' (2014) 36 Sydney Law Review 413.

⁶⁸ *Lee No 1* (n 10) [307]–[310] (Gageler and Keane JJ).

⁶⁹ Brendan Lim, 'The Normativity of the Principle of Legality' (2013) 37 Melbourne University Law Review 372, 378–82.

⁷⁰ *Lacey* (n 66) [43] (French CJ, Gummow, Hayne, Crennan, Kiefel and Bell JJ).

⁷¹ *Zheng v Cai* (2009) 239 CLR 446 [28] (French CJ, Gummow, Crennan, Kiefel and Bell JJ).

⁷² Richard Ekins and Jeffrey Goldsworthy, 'The Reality and Indispensability of Legislative Intentions' (2014) 36 Sydney Law Review 39, 42.

⁷³ (n 10) [312] (footnotes omitted).

⁷⁴ Robert French, 'Oil and Water? International Law and Domestic Law in Australia' (Speech delivered at the Brennan Lecture, Bond University, 26 June 2009) 20 <<http://www.hcourt.gov.au/assets/publications/speeches/current-justices/frenchcj/frenchcj26June09.pdf>> accessed 27 September 2017.

⁷⁵ Dyzenhaus, Hunt, and Taggart (n 36) 33.

⁷⁶ *DPP v Kaba* (2014) 44 VR 526.

⁷⁷ *Ibid* 580 [186].

- ⁷⁸ *ibid.*
- ⁷⁹ See Dan Meagher, ‘The Principle of Legality and Proportionality’ in Groves and Meagher (n 6) 114.
- ⁸⁰ *Evans v New South Wales* (2008) 168 FCR 576.
- ⁸¹ Robert French, ‘Bending Words: The Fine Art of Interpretation’ (University of Western Australia, Faculty of Law, Guest Lecture Series, 20 March 2014, Perth) 7 <<http://www.hcourt.gov.au/assets/publications/speeches/current-justices/frenchcj/frenchcj20Mar14.pdf>> accessed 27 September 2017.
- ⁸² But see *Pham v Secretary of State for the Home Department* [2015] UKSC 19 at [119] where Lord Reed observed that ‘where Parliament authorises significant interferences with important legal rights, the courts may interpret the legislation as requiring that any such interference should be no greater than is objectively established to be necessary to achieve the legitimate aim of the interference: in substance, a requirement of proportionality.’
- ⁸³ See, eg, in the context of the implied freedom *Coleman v Power* (2004) 220 CLR 1 [3] (Gleeson CJ), [49] (McHugh J), [158] (Gummow and Hayne JJ), [207] (Kirby J), [272] (Callinan J), [306] (Heydon J).
- ⁸⁴ Paul Rishworth et al, *The New Zealand Bill of Rights* (OUP 2003) 26.
- ⁸⁵ See *Momcilovic* (n 14).
- ⁸⁶ But see Bruce Chen, ‘The Principle of Legality: Issues of Rationale and Application’ (2015) 41 Monash University Law Review 329, 362–69.
- ⁸⁷ *Momcilovic* (n 14) [35]–[36] (French CJ).
- ⁸⁸ *Coco* (n 1) 437.
- ⁸⁹ *Electrolux* (n 64) [21] (Gleeson CJ).
- ⁹⁰ See Abbe R Gluck and Lisa A Bressman, ‘Statutory Interpretation from the Inside—An Empirical Study of Congressional Drafting, Delegation, and the Canons’ (2013) 65 Stanford Law Review 901 and (2014) 66 Stanford Law Review 725.
- ⁹¹ *City of Adelaide* (n 23) [42].
- ⁹² See John Basten, ‘Constitutional Dimensions of Statutory Interpretation’ (2018) 25 Australian Journal of Administrative Law (forthcoming).
- ⁹³ *Zheng* (n 71).
- ⁹⁴ Basten ‘Constitutional Dimensions of Statutory Interpretation’ (n 92).
- ⁹⁵ Ernest A Young, ‘The Continuity of Statutory and Constitutional Interpretation: An Essay for Phil Frickey’ (2010) 98 California Law Review 1385.
- ⁹⁶ *Lange v Australian Broadcasting Corporation* (1997) 189 CLR 520, 563.
- ⁹⁷ *ibid* 566.
- ⁹⁸ See William Gummow, ‘The Constitution: Ultimate Foundation of Australian Law? (2005) 79 Australian Law Journal 167.
- ⁹⁹ See William N Eskridge Jr, ‘The New Textualism and Normative Canons’ (2013) 113 Columbia Law Review 531.
- ¹⁰⁰ William N Eskridge Jr and Philip P Frickey, ‘Quasi-Constitutional Law: Clear Statement Rules as Constitutional Lawmaking (1992) 45 Vanderbilt Law Review 593, 595–96.
- ¹⁰¹ Young (n 95) 1380.
- ¹⁰² *Electrolux* (n 64) [21] (Gleeson CJ).
- ¹⁰³ *Australian Communist Party v Commonwealth* (1951) 83 CLR 1, 193 (Dixon J).
- ¹⁰⁴ *John Pfeiffer Pty Ltd v Rogerson* (2000) 203 CLR 503.

- ¹⁰⁵ (n 10) [313].
- ¹⁰⁶ Young (n 95) 1384.
- ¹⁰⁷ *Coleman* (n 83).
- ¹⁰⁸ *ibid* [184]–[185] (Gummow and Hayne JJ), [250]–[253] (Kirby J).
- ¹⁰⁹ *ibid* [195]–[199] (Gummow and Hayne JJ), [254]–[257] (Kirby J).
- ¹¹⁰ Thanks to Lael Weis for pointing out this aspect of the principle of legality to me.
- ¹¹¹ *Ashwander v Tennessee Valley Authority* 297 US 288, 347 (1936) (Brandeis J).
- ¹¹² See *Coleman* (n 83) [3] (Gleeson CJ), [49]–[68] (McHugh J), [158] (Gummow and Hayne JJ), [207] (Kirby J), [306] (Heydon J).
- ¹¹³ Frederick Schauer, ‘Ashwander Revisited’ (1995) *Supreme Court Review* 71, 74 (footnote omitted).
- ¹¹⁴ *ibid* 87–88 (footnote omitted).
- ¹¹⁵ (2015) 256 CLR 569 .
- ¹¹⁶ *ibid* [23]–[25] (French CJ, Kiefel and Bell JJ), [212]–[223] (Nettle and Gordon JJ).
- ¹¹⁷ *ibid* [76] (footnote omitted). Justice Gageler also gave at [78] a further reason as to why this species of constitutional avoidance ought to be deprecated: ‘The reason is that the facility merely to express constitutional doubt as the basis for making a constructional choice “allows judges to articulate constitutional principles in a context where the real impact of those principles—the invalidation of a law—will be unfelt” in a manner than “is anomalous in a case-or-controversy legal system that (ostensibly) abhors advisory opinions” ’. The internal quotes are from Neal Kumar Katyal and Thomas P Schmidt. ‘Active Avoidance: The Modern Supreme Court and Legal Change’ (2015) 128 *Harvard Law Review* 2109, 2112, 2164.
- ¹¹⁸ *ibid* [80].
- ¹¹⁹ *ibid* [81].
- ¹²⁰ See Kevin Boreham, ‘International Law as an Influence on the Development of the Common Law: *Evans v New South Wales*’ (2008) 19 *Public Law Review* 271.
- ¹²¹ *Williams v Commonwealth* (2012) 248 CLR 156 [37] (French CJ); see Stephen McLeish, ‘Federal Implications Under the Australian Constitution’ (2014) 25 *Public Law Review* 172.
- ¹²² *Amalgamated Society of Engineers v Adelaide Steamship Co Ltd* (1920) 28 CLR 129.
- ¹²³ *Melbourne Corporation v Commonwealth* (1947) 74 CLR 31.
- ¹²⁴ See Geoffrey Lindell, ‘Grappling with Inconsistency between Commonwealth and State Legislation and the Link with Statutory Interpretation’ (2005) 8(2) *Constitutional Law and Policy Review* 25.
- ¹²⁵ (n 100) 597.
- ¹²⁶ *ibid*.
- ¹²⁷ See Stephen Gageler, ‘Beyond the Text: A Vision of the Structure and Function of the Constitution’ (2009) 32 *Australian Bar Review* 138.
- ¹²⁸ See Susan Kiefel, ‘Proportionality—A Rule of Reason’ (2012) 23 *Public Law Review* 85.
- ¹²⁹ (n 14) [34]–[36] (French CJ), [430]–[435] (Heydon J), [568]–[573] (Crennan and Kiefel JJ).
- ¹³⁰ *ibid* [36] (French CJ).
- ¹³¹ (n 64) [19].
- ¹³² (n 1) [438].
- ¹³³ See Dan Meagher and Matthew Groves, ‘The Common Law Principle of Legality and Secondary Legislation’ (2016) 39 *University of New South Wales Law Journal* 469–77
- ¹³⁴ French, ‘Bending Words: The Fine Art of Interpretation’ (n 81).

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